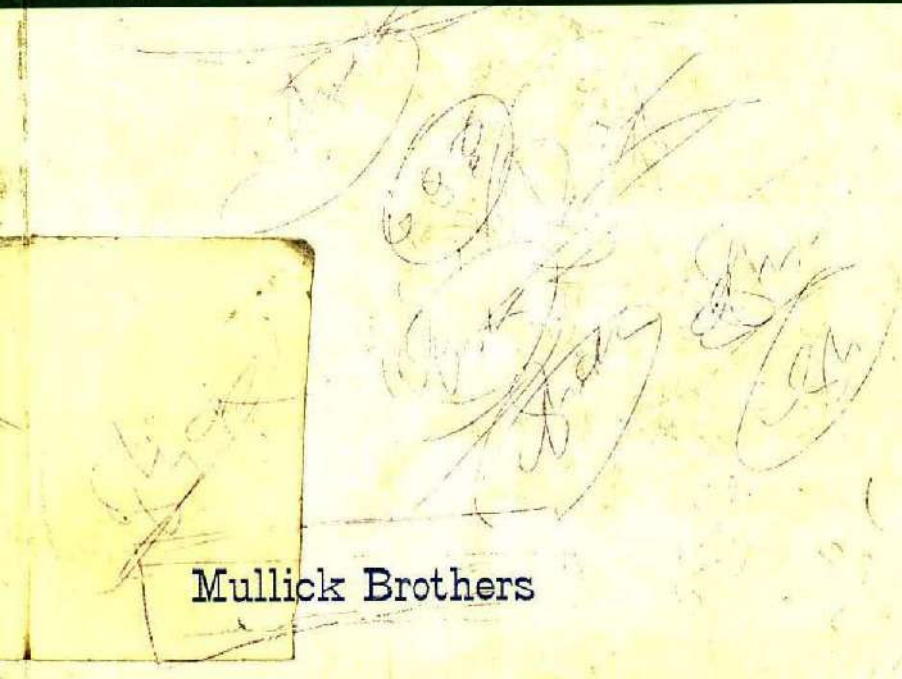
Mahmudul Islam

Constitutional Law of Bangladesh

Second Edition



Mullick Brothers

CONSTITUTIONAL LAW OF BANGLADESH

Second Edition

Mahmudul Islam
Senior Advocate
Supreme Court of Bangladesh

Mullick Brothers
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Dedicated to the memory of

my father

from whom I had my

first lessons in jurisprudence

PREFACE TO THE SECOND EDITION

Since the publication of the first edition of the book, almost six years have elapsed. In the meantime all the copies printed were sold out. I am grateful to the readers in general and to my colleagues in the profession in particular for their warm reception of the book. I felt my labour well spent.

In these seven years many developments have taken place. The inertia of the initial stage of interpretation passed away. The Supreme Court seems to have been well on course for a positive approach having regard to the well expressed social goals the framers intended to achieve through the process of law. In *Dr. Mohiuddin Farooque* v. *Bangladesh,* (49 DLR (AD) 1), the Appellate Division took note of the special character of the Constitution and of the objectives mentioned in the Constitution to liberalise the standing issue and thereby paving the way for a purposive interpretation of the Constitution. In *Secretary, Ministry of Finance v. Masdar Hossain*, (2000 BLD (AD) 104), the same trend continued. This decision has gone a long way in affirming the independence of the judiciary as a basic feature of the Constitution and together with *Dr. Mohiuddin Farooque* will pass on as trend setters in constitutional interpretation in Bangladesh.

Until recently, there was a reluctance to view the provisions of art.31 and 32 as requiring the law to be reasonable and as importing the concept of due process of the American jurisdiction. Though not explicit, slum clearance case (*Ain-O-Shalish Kendra v. Bangladesh*, 1999 BLD 488) shows that the Supreme Court is ready to apply the due process test to determine the validity of governmental actions and several other cases in this direction followed. While appreciating the change in the attitude of the Supreme Court, it must be remembered that in constitutional interpretation a balance between the existing social conditions and the rights of the individuals should be made, and in deciding the disputes involving fundamental rights the social perspective and the current values cannot be lost sight of. (see *Nasreen Fatema v. Bangladesh*, 49 DLR 542)

In this edition, I have incorporated all the important judicial decisions handed down by the Supreme Court of Bangladesh and

reported in different law reports to make the book up to date in the matter of precedents. New principles like the doctrines of legitimate expectation, proportionality and public trust are emerging in constitutional and administrative law adjudication in different jurisdictions. I have tried to introduce these principles in discussion and commented on their applicability in Bangladesh. There is a necessity of evaluating these principles in the context of our social and economic conditions before grafting them in our jurisdiction.

In revising the text, I left the arrangement undisturbed so that the readers used to the arrangement of the first edition may quickly find out the topics they want to read.

In revising the book, I have taken the help of a number of lawyers. Of them, Ms. Nihad Kabir and Mr. Probir Neogi examined and corrected the manuscript, while Ms. Nahid Mahtab revised the table of cases. Mr. Rafique-ul Huq, the former Attorney General, helped me with quite a number of recent books and digests. My Assistant, Mr. Joydeb Nandi, spent considerable time in typing and printing the manuscripts. I am grateful to all of them. I am also grateful to the publisher for taking immense care in printing this edition.

This edition represents the position of the law as it stood on 31 December 2001.

31 January 2002 Mahmudul Islam

PREFACE TO THE FIRST EDITION

A constitution adopted through democratic process is expected to reflect the consensus of the people about their political organisation and the democratic values they cherish. Whatever may be written in a constitution, the success of democracy and realisation of the democratic values depends on a proper environment created by the actors in the political scene who must have faith and conviction in the utility and effectiveness of the rule of law and constitutionalism and must work relentlessly to establish it. In the absence of such conviction and commitment, the constitutional law may turn into what Wade and Bradley called "a transparent cover for a power-struggle that is not conducted in accordance with anything deserving the name of law".

The Constitution of Bangladesh came into operation in December, 1972. It was a robust document. Not only did it embody the principles of constitutionalism, rule of law and human rights, it made specific provisions for realisation of these lofty ideals. Unfortunately, soon this beautiful document began to receive rough treatment during both democratic and Martial Law regimes and it wore a completely distorted look. It is only recently that the Twelfth Amendment has restored the Constitution almost to its original shape and character. In this book an attempt has been made to view the constitutional law of Bangladesh in the light of the high ideals envisioned by the framers of the Constitution.

Analysis and review of the decisions of the superior courts is essential for the development of law in a country. Such review is regularly done in all countries having common law system. In Bangladesh, however, there is no specific journal devoted to this purpose and review of the decisions of the superior courts is few and far between. I have tried to examine and review the decisions of the Supreme Court of Bangladesh on constitutional law to the best of my ability. The nature of the subject leaves room for differing views and I do not claim infallibility. Even if some of the views expressed in this work are found to be incorrect, I hope that the questions raised and the views expressed will conduce to the development of the constitutional law in Bangladesh.

Constitutional law deals with the general principles regarding the functions of different organs of the State and their relationship with the people, while administrative law deals in detail with the powers and functions of the administrative authorities. Both are branches of public law and are so inter-related that it is difficult to distinguish one from the other. No attempt has been made to include or to exclude any principle of administrative law. While dealing with the principles of constitutional law, those principles of administrative law which naturally came into the discussion have been discussed.

The book is written primarily for students of law and members of the legal profession. To meet their needs, an effort has been made to deal mainly with the legal questions and issues which frequently confront the members of the profession, leaving aside those questions with which a student of political science is more concerned.

In writing this book I have taken help from many books. I have freely used the books on constitutional law by Wade & Bradley, B. Schwartz, H.M. Seervai, Dr. W.A. Wynes, A.K. Brohi, Dr. D.D. Basu and Dr. M.P. Jain, American Jurisprudence and the books on administrative law by H.W.R. Wade and B. Schwartz. I am grateful to the learned authors and to the editors of American Jurisprudence.

During the years of legal practice, I became associated with some of the important constitutional law cases and it generated a keen interest in me in the constitutional law in Bangladesh. I thought of writing on the subject. Being aware of my limitations, timidly I broached the subject with Mr. Justice Mustafa Kamal and Syed Ishtiaq Ahmed, former Attorney-General for Bangladesh. Both of them profusely encouraged me. Mr. Justice Kamal rang me up at regular intervals to enquire about the progress of the work. Mr. Ahmed was always there to discuss the complicated issues with me and to give valuable suggestions and advice. I made the fullest use of his rich library. He not only bought me an updated set of Basu's Commentary on the Constitution of India, he made a personal computer available for my work. Almost four years have passed since then. When the draft was ready Mr. Ahmed, in spite of his pre-occupations, willingly gave his valuable time to scan the whole draft and point out flaws in my thought-process wherever he found them and suggested improvements. Without his help it would have been difficult for me to complete the work.

Mr. Rafique-ul Huq, former Attorney-General for Bangladesh, made his beautiful law library available to me and I freely borrowed books and journals from his library. Whenever he went abroad he brought a few books on constitutional law for my use. When I had difficulty in publishing the book, he used his good offices and persuaded Mr. M. Morshed Khan, the Chairman of Arab Bangladesh Bank, to facilitate the publication by booking in advance substantial number of copies of the published work.

I must acknowledge with thanks the co-operation of all those who encouraged and assisted me. Constraints of space prevent me from mentioning all by name. Of them Miss Nihad Kabir, Barrister, took the trouble of reading the entire draft to check errors in the text besides giving many useful suggestions. Mr. Abdur Rahman Chowdhury, Advocate, did the painful job of checking the correctness of the citations and preparing the table of cases. Mr. Murad Reza, Advocate, helped me by providing some recent publications. Mr. Md. Ebadatullah and Mr. Matiur Rahman, Assistants of Syed Ishtiaq Ahmed and mine, complied with my innumerable requests.

This book would not have been written if I would have to write it with pen and paper. The innumerable changes that I made were possible because of the use of a personal computer. My son, Asif, fed a substantial portion of the draft in the computer and gave me lessons on computer operation. But I have the propensity of pressing the wrong button creating various kinds of problems. The task of rectifying the mistakes and retrieving the lost matters fell upon my youngest son, Arif, who also performed the vexing job of formatting the entire work and checking and correcting the innumerable mistakes committed by a novice computer operator as I am.

I am grateful to the Bangladesh Institute of Law and International Affairs for accepting my offer for publication of the book and as publisher agreeing to take the responsibility of marketing and distribution of the book.

I am thankful to Shaikat Printing and Packaging Limited for doing a fine printing job. I must also thank Mr. Mahbubul Alam Tara, Member of Parliament and Whip, and Mr. Haroon Rashid and Mr. Sukumar Chowdhury of Haroon Enterprise Limited for the help rendered to me.

I shall be less than just if I do not mention the part played by my wife. During these four years I could not stop my professional

work. Therefore I had to snatch the time which rightfully belonged to her. After meeting the demands of the profession, I worked late every night. There were times when I felt totally exhausted and thought of giving up. She bore with remarkable patience the travail of remaining awake late at night while I worked. She encouraged me in doing the job and urged me to proceed when I slowed down. This book is as much hers as it is mine.

Dhaka
20 January 1995 Mahmudul Islam

CONTENTS

Preface to the Second Edition vii
Preface to the First Edition ix
Table of cases xix
Supplement xci

Chapter I Introductory 1
Historical background 4
Features of the Constitution of 1972 14
Changes in the Constitution 17
Interpretation of constitution 23
The proper approach to interpretation 24
Principles of statutory interpretation 32
Uses of foreign decision 46
Prospective overruling 46
Preamble 47
Citizenship 50
Fundamental principles of State policy 52
Rule of law 58
Separation of powers 64
Supremacy of the Constitution 66
Supremacy of the constitution and Martial law 69

Chapter 2 Fundamental rights 87
General consideration 90
Scheme of Part III 93
Right to equality 104
Doctrine of classification 104
Reasonable classification 106
Presumption of constitutionality 113
Bases of classification 116
Economic regulations, taxation and equal protection 132
Conferment of discretionary powers 135
Equality clause and arbitrariness 144

Discrimination by administrative acts 147
Discrimination on ground of religion etc. 153
Admission to educational institutions 156
Discriminations in public employment 158
Protection of law 172
Meaning of 'in accordance with law' 172
American 'due process' 175
Sweep of art.31 181
Life, liberty, body, reputation and property 187
Deprivation of life and personal liberty 192
Safeguards as to arrest and detention 197
Cases other than preventive detention 198
Preventive detention 202
Prohibition against forced labour 206
Protection in respect of trial and punishment 207
Ex post facto law 208
Double jeopardy 211
Speedy and fair trial 213
Self-incrimination 218
Torture and cruel and degrading punishment 220
Freedom of movement 222
Freedom of assembly 227
Freedom of association 230
Freedom of thought, conscience, speech and the press 239
Speech and expression 239
Permissible restrictions 246
Freedom of the press 255
Freedom of occupation, religion and property 262
Freedom of trade, business and occupations 264
Freedom of religion 270
Right to property 273
Protection of home and correspondence 275
Right to enforce fundamental rights 280
Savings of certain laws 281
Effect of violation of fundamental rights 283

Chapter 3 The Executive 291
President 291
Prime Minister, Cabinet and other Ministers 293
Powers and functions of the executive 294
Collective and individual responsibility of Ministers 302
Relation between the executive and Parliament 304
Executive power 306
Ordinance making power 310
Rule making power 316
Emergency power 317
Power of pardon and reprieves 321
Non-party Care-taker government 326
Local government 331
Attorney General 334

Chapter 4 The Legislature 337
Composition and duration of Parliament 337
Membership of Parliament 339
Qualification and disqualification 339
Vacation of seat 348
Resignation by members of Parliament 353
Officers of Parliament 356
Meeting of Parliament 359
Termination of Parliament 361
Functions of Parliament 361
Legislation 362
Delegated legislation 367
Control of public finance 381
Deliberation and discussion 390
Amendment of the Constitution 391
Parliamentary committees 408
Ombudsman 411
Parliamentary privileges 413
Validity of proceedings 418
Privileges of members and officers 420
Freedom of speech of members 421
Publication in relation to proceedings of Parliament 422

Breach of privilege and contempt of Parliament 423
Fundamental rights and privileges 426

Chapter 5 The Judiciary 429
Chief Justice and other Judges of Supreme Court 430
Seat of the Supreme Court 435
Jurisdiction of the High Court Division 436
Power of judicial review 436
Principles followed by court in judicial review 439
Doctrine of political question 444
Writ jurisdiction: enforcement of fundamental rights 447
Nature of the remedy 447
Procedure and practice 451
Alternative forum for enforcement of the rights 453
Writ jurisdiction: matters other than fundamental rights 456
Writ of *certiorari* 457
Writ of prohibition 524
Writ of *mandamus* 527
Writ of *habeas corpus* 535
Writ of *quo warranto* 552
Nature of the proceedings 558
Efficacious remedy provided by law 563
Disputed question of fact 574
Enforcement of contractual right 575
Estoppel 584
Procedure and practice 589
Power of review 599
Writ jurisdiction: aggrieved party 601
Writ jurisdiction: interim and final order 610
Interim order 610
Final order 614
Writ jurisdiction: against whom available 616
Supervisory power of the High Court Division 620
Power of transfer of cases 623
Appellate Division: Powers and jurisdiction 624
Grant of certificate 625
Right of appeal in case of particular sentence 626

Grant of leave to appeal 626
Power to do complete justice 634
Power of review 640
Appellate Division: Advisory opinion 648
Binding effect of judgments of the Supreme Court 650
Contempt of the Supreme Court 655
What constitutes contempt of court 656
Rule making power of the Supreme Court 664
Subordinate courts 665
Administrative Tribunal 674

Chapter 6 Election, service and other topics 685
Franchise and election 685
Election Commission 688
Comptroller and Auditor General 693
Services of the Republic 695
Doctrine of pleasure 697
Law and rule to regulate conditions of service 699
Protection against arbitrary dismissals, etc. 703
Public Service Commission 727
Territory and property of the Republic 731
Contracts, deeds and treaties 732
Special provisions relating to some constitutional offices 735
Suits by and against Bangladesh 736
Savings of existing laws and repeals 739
Transitional and temporary provisions 741

Appendix A The Proclamation of Independence 747

Appendix B Laws Continuance Enforcement Order 749

Appendix C Provisional Constitution of Bangladesh Order 751

Appendix D The Constitution of the People's Republic of Bangladesh 753

Appendix E U.N. Universal Declaration of Human Rights 829

Index 835

TABLE OF CASES

Para

A

A.B. Sarin v. B.C. Patel, AIR 1951 Bom 423 ..... 5.179
A.C.T. Officer v. Dharmendra Trading, AIR 1988 SC 1247 ..... 5.137
A.D.M. v. Shukla, AIR 1976 SC 1207 ..... 5.216
A.G. British Columbia v. A.G. Canada, [1914] AC 153 ..... 5.212
A.G. for Alberta v. A.G. for Canada, [1947] AC 503 ..... 2.235
A.G. for Gambia v. Momodou, [1948] AC 689 ..... 1.52, 2.7
A.G. for Ontario v. A.G. for Canada, [1896] AC 348 ..... 1.52, 5.242
A.G. for Ontario v. A.G. for Canada, [1947] AC 127 ..... 1.69
A.G. for Ontario v. Reciprocal Insurers, [1924] AC 328 ..... 4.27
A.G. of Alberta v. A.G. of Canada, [1939] AC 117 ..... 1.69
A.G. of Australia v. The Queen, PLD 1957 PC 115 ..... 5.81
A.G. of Gambia v. Momodou, [1984] AC 689 ..... 1.52, 2.7
A.G. of Hong Kong v. Ng Yuen, [1983] 2 AC 629 ..... 5.63A, 5.75
A.G. of N.S.W. v. Brewery Employees Union, 6 C.L.R. 469 ..... 1.52
A.G. of Pakistan v. Abdul Hamid, 15 DLR (SC) 96 ..... 5.228, 5.229
A.G. of Trinidad & Tobago v. Phillips, [1995] 1 AC 545 ..... 3.48, 3.49
A.G. v. Denby, [1925] 1 Ch 596 ..... 4.40
A.G. v. Great Eastern Railway, [1880] 5 AC 473 ..... 5.15A, 5.34
A.G. v. Ind. Broadcast Authority, [1973] 1 All E.R. 689 ..... 5.159
A.G. v. Lockwood, (1842) 9 M & W 378 ..... 1.48
A.G. v. Mustafa Ibrahim, 19 CLR 195 ..... 1.96
A.G. v. Prince Ernest Augustus, [1957] AC 436 ..... 1.59, 1.73
A.G. v. Ryan, [1980] AC 718 ..... 5.52, 5.63
A.G. v. Times Newspaper Ltd [1991] 2 All E.R. 398 ..... 5.228
A. Mannan v. Collector of Customs, 40 DLR 273 ..... 4.53
A.I. Works v. C.C.Exports, AIR 1974 SC 1539 ..... 2.19
A.K. Roy v. India, AIR 1982 SC 710 ..... 3.33, 3.35, 4.66, 5.13, 5.90, 5.151
A.K. Subbiah v. Karnataka Leg. Council, AIR 1979 Kant 24 ..... 4.88
A.L. Kalra v. P & E Corp of India, AIR 1984 SC 1361 ..... 2.65, 2.70
A.P. v. McDowell & Co., AIR 1996 SC 1627 ..... 5.80A
A.P. v. Merit Enterprises, (1998) 8 SCC 749 ..... 5.42
A.P. v. Raja Reddy, AIR 1967 SC 1458 ..... 2.54
A.P. v. Sree Rama Rao, AIR 1963 SC 1723 ..... 5.40
A.P. State Fin. Corp. v. Off. Liq., AIR 2000 SC 2642 ..... 1.70
A.P.S.R.T. Corp. v. Satyanarayan, AIR 1965 SC 1303 ..... 5.67, 5.144
A.R. Antulay v. R.S. Nayak, AIR 1988 SC 1531 ..... 5.198, 5.214
A.R.K. Associates v. WASA, 1999 BLD 349 ..... 5.132

A.R. Antulay v. R.S. Nayak, AIR 1992 SC 1701.....2.145, 2.146
A.R. Niazi v. Pakistan, 20 DLR (SC) 196.....5.143
A. Sanjeevi v. Madras, AIR 1970 SC 1102.....3.23
A.T. Mridha v. State, 25 DLR 335.....5.177
A.Y.B.I. Siddiqui v. Bangladesh, 2000 BLD 75.....4.69
A.Z. Rafique v. BCSIR, 32 DLR (AD) 83.....5.31
Abbas v. India, AIR 1971 SC 481.....2.22, 2.174, 2.189, 2.199
Abdul Ahad Chy v. Habibur Rahman, 1995 BLD 124.....5.171
Abdul Awal Munshi v. BWDB, 6 BLC 463.....5.235A
Abdul Aziz v. West Pakistan, 11 DLR (SC) 126.....1.60, 2.130
Abdul Bashar v. Kamrul Hasan, 3 BLC (AD) 229.....6.9
Abdul Baqui Baluch v. Pakistan, 20 DLR (SC) 249.....3.44, 5.17
5.41, 5.94, 5.98, 5.100
Abdul Bari Sarker v. Bangladesh, 46 DLR (AD) 37.....5.9
Abdul Gafur v. Secy. Ministry of Estt., 1997 BLD 453.....2.111, 2.111A, 5.88
Abdul Ghani v. Pakistan, PLD 1958 Lah 584.....2.209
Abdul Hafiz v. D.G. Anti-Corruption, 51 DLR 72.....2.152
Abdul Hai Khan v. State, 40 DLR (AD) 226.....5.192
Abdul Hai v. Chief Election Commr., 15 DLR 678.....5.145
Abdul Hakim v. Bangladesh, 49 DLR 438.....5.122
Abdul Hakim v. Electin Commn., 48 DLR 490.....5.40
Abdul Halim v. Abul Hasan Chy, 2001 BLD 391.....4.5
Abdul Hamid Mollah v. Ali Mollah, 44 DLR (AD) 223.....5.192
Abdul Hamid v. East Pakistan, 24 DLR 142.....5.119
Abdul Hamid v. Nurul Islam, 42 DLR (AD) 49.....5.129
Abdul Hannan v. Collector of Customs, 40 DLR 273.....4.40
Abdul Hannan v. Secy. Ministry of Home, 43 DLR 131.....5.25
Abdul Huq Sikdar v. Div. Manager, BADC, 48 DLR 574.....5.123, 5.171
Abdul Haq v. Fazlul Quader Chy, 15 DLR 355.....63
Abdul Hashim v. Election Commn., 48 DLR 490.....5.41
Abdul Jabbar v. Abdul Wahed, PLD 1974 SC 33.....5.46
Abdul Jabbar v. Registrar, Co-op. Societies, 1986 BLD 145.....1.66, 5.50
Abdul Jalil v. Chairman REB, 45 DLR 24.....2.204
Abdul Jalil v. Sharon Laily, 50 DLR (AD) 55.....5.103
Abdul Kaiyum v. Krisnananda, 49 DLR (AD) 140.....5.190
Abdul Kamil v. State, PLD 1958 SC 12.....5.192
Abdul Karim Sarker v. State 38 DLR (AD) 188.....5.228, 5.231
Abdul Karim v. Commr. Khulna, 16 DLR (SC) 624.....5.127
Abdul Karim v. Deputy Commr., 15 DLR 483.....5.91
Abdul Khader v. Mysore, AIR 1953 SC 355.....2.234
Abdul Khaleque v. Court of Settlement, 44 DLR 273.....2.213, 5.34
Abdul Khaliq v. Bangladesh, 1987 BLD (AD) 121.....5.146
Abdul Khalique v. Election Commn., 1989 BLD 415.....5.121, 5.129
Abdul Latif Howladar v. BPDB, 46 DLR 384.....5.147

Abdul Latif Howladar v. ADC (Rev.), 50 DLR 638.....5.41, 5.129
Abdul Latif Mirza. v. Bangladesh, 31 DLR (AD) 1.....1.60, 2.98
2.131, 2.132, 5.93-5.99, 5.106-5.109, 5.192
Abdul Latif Niazi v. West Pak, PLD 1967 SC 52.....6.40
Abdul Latif v. Bangladesh, 43 DLR 446.....5.235
Abdul Latif v. Commr., AIR 1968 All 44.....5.56
Abdul Latif v. West Pakistan, 14 DLR (SC) 300.....5.54
Abdul Majid Sheikh v. Mushaffe Ahmed 17 DLR (SC) 63.....6.29, 6.31, 6.35
Abdul Majid v. Noor Jahan, PLD 1967 SC 221.....5.120
Abdul Majid v. State, PLD 1963 Dac 661.....2.143
Abdul Mannan Chy v. Lalmohan, C.A. 19 of 1978.....5.187
Abdul Mannan Talukdar v. HBFC, 1990 BLD (AD) 71.....5.235
Abdul Mannan v. Hasan M. Khandker, 1996 BLD (AD) 147.....2.83
Abdul Mannan v. Kulada Ranjan, 31 DLR (AD) 195.....5.188
Abdul Mannan v. Secy. Ministry of LGRD, 52 DLR 471.....5.129
Abdul Mannan v. State, 44 DLR (AD) 60.....5.192
Abdul Matin v. Election Commn., 45 DLR 220.....6.8
Abdul Matin v. State, 44 DLR (AD) 8.....5.195
Abdul Momen v. Dhaka city Corp., 50 DLR 300.....2.205
Abdul Mukit Chy v. Chief Elect. Commr., 41 DLR 57.....5.123, 5.129
Abdul Naim v. Bd. of Directors, Sonali Bank, 3 BLC (AD) 1.....6.60A
Abdul Quader Farazi v. Chief Election Commr., 50 DLR 636.....6.9
Abdul Quadir v. West Pak, 19 DLR (SC) 398.....6.33, 6.39
Abdul Quddus v. M.S. Khan, 13 DLR 213.....5.49
Abdul Rahiman v. Sadasiv, AIR 1969 SC 302.....4.8
Abdul Wahab v. Ali Ahmed, 44 DLR (AD) 55.....5.188
Abdul Wahab v. S. E. C., W.P.2053 of 2000 (Unreported).....2.50
Abdullah-Ar-Rabbani v. T.C.B., 42 DLR 258.....5.129
Abdur Rab v. Registrar, J.S. Companies, PLD 1960 Dac 541.....5.88
Abdur Rahim v. Bangladesh, 48 DLR 538.....5.138
Abdur Rahim v. Bombay, AIR 1959 SC 1315.....2.157
Abdur Rahim v. Sadasiv, AIR 1969 SC 1359.....4.8
Abdur Rahman v. Bangladesh, 49 DLR 344.....5.36
Abdur Rahman v. Collector & Dy. Commr., 16 DLR (SC) 470.....4.40, 5.34
5.51, 5.54, 5.59
Abdur Rahman v. Gr. Capt. Shamim, 49 DLR 628.....5.113
Abdur Rahman v. Secy. Ministry of Industries, 48 DLR 431.....5.171
Abdur Rahman v. Sultan, 35 DLR (AD) 51.....5.55
Abdur Rashid Sarker v. Bangladesh, 48 DLR (AD) 99.....6.71
Abdur Rashid v. Bangladesh 31 DLR 233.....6.33
Abdur Rashid v. Ind. Court, 19 DLR (SC) 449.....2.108
Abdur Rashid v. Momtaz Ali, 44 DLR (AD) 270.....5.188
Abdur Rashid v. State, 1 BLC 180.....2.143
Abdur Rashid v. State, 18 DLR (WP) 154.....2.150

Abdur Razzaque v. Bangladsh, 2 BLC 369.....5.88
Abdur Rouf v. Abdul Hamid, 17 DLR (SC) 515.....5.13, 5.34, 5.73
Abdur Rouf v. Fazlur Rahman, 43 DLR (AD) 23.....6.9
Abdur Rouf v. Golam Rasul, 1997 BLD (AD) 141.....5.190
Abdur Rouf v. Ministry of LGRD, 43 DLR 29.....5.55, 5.129
Abdus Sabur Khan v. Karachi University, 18 DLR (SC) 422.....5.54
Abdus Salam v. Agrani Bank, 47 DLR 175.....5.132
Abdus Salam v. Chairman, Election Authority, 17 DLR 191.....5.156
Abdus Salam v. State, 10 DLR (SC) 176.....5.228
Abdus Samad Azad v. Bangladesh, 44 DLR 354.....2.173, 3.4
Abdus Sattar v. Bangladesh, 45 DLR (AD) 65.....2.29
Abed Ali v. Bangadesh, 1 BLC 39.....5.87
ABSK Sangh v. India, AIR 1981 SC 298.....2.225
Abu Bakr Siddique v. Justice S. Ahmed, 49 DLR 1.....1.62, 5.9
5.114, 5.143, 6.16A
Abu Hossain v. Registrar, Trade Union 45 DLR 192.....2.169
Abu Mohammad v. Bangladesh, 52 DLR 352.....5.132
Abu Saleh M. Nasim v. Banglaesh, 1998 BLD (AD) 251.....6.18
Abu Taher Chy v. State, 42 DLR (AD) 253.....5.186, 5.192
Abu Taher Mia v. Farazuddin, 41 DLR 543.....5.116
Abu Taleb v. Bangladesh, 45 DLR (AD) 45.....5.188
Abul A'la Moudoodi v. State Bank, PLD 1969 Lah 908.....2.156
Abul A'la Moudoodi v. West Pak., 17 DLR (SC) 209.....2.21, 2.24, 2.161
2.171, 2.172, 2.231, 2.234, 5.51, 5.53, 5.54, 5.55, 5.62
Abul Bashar v. Bangladesh, 50 DLR (AD) 11.....3.13, 5.27, 5.87
Abul Bashar v. Kamrul Hasan, 3 BLC (AD) 229.....6.9
Abul Hashim v. Election Commn, 48 DLR 490.....5.40
Abul Hossain v. Bangladesh, 34 DLR 255.....5.130
Abul Hossain v. Secy. Ministry of Home, 44 DLR 521.....2.67
Abul Kalam Azad v. Bangladesh, 3 BLC 139.....3.52
Abul Kashem v. Khodeja Akhtar, 31 DLR (AD) 316.....5.189
Acharaj v. Bihar, AIR 1967 Pat 114.....2.134
Adamjee Jute Mills v. Controller, Imports, 20 DLR 791.....2.109
Adams v. Metropolitan Police Commn., [1980] RTR 289.....5.88
Adams v. Milwaukee, 228 US 572.....62
Adams v. Tanner, 244 US 590.....2.103
Aditya Kumar v. Rajendra Med. College, AIR 1971 SC 1005.....5.150
Advocate General v. Shabir Ahmad, 15 DLR (SC) 355.....5.228
Afia Khatun v. Secy. Ministry of Works, 44 DLR 225.....2.44
Afsar Ali Chy v. Bangladesh, 43 DLR 593.....2.26, 2.46
Afsar Khan v. State, PLD 1964 SC 205.....5.187
Aftabuddin v. Bangladesh, 48 DLR 1.....1.76, 1.77, 2.65, 5.27, 5.234
Afzal Hossain v. Chief Election Commr., 45 DLR 255.....6.7
Agragami Engrs. v. Bangladesh Bank, 45 DLR 134.....5.72

Agrani Bank v. Sultana Jute Mills, 47 DLR 37.....5.124
Agri. Industrial Training Bd. v. Kent, [1970] 2 QB 19.....5.49
Agri. Market Comm v. Shalimar Chemical, AIR 1997 SC 2502.....4.40
Agri. Training Bd. v. Aylesbury Mushroom,[1972] 1 WLR 190.....5.49
Ahluwalia v. India, AIR 2001 SC 1309.....5.20
Ahmedabad Municipal Corp v. Nawab Khan, AIR 1997 SC 152.....2.111
Ahmed Hossain v. Collector of Customs, 48 DLR (AD) 199.....5.124
Ahmed Nazir v. Bangladesh, 27 DLR 199.....5.107, 5.108, 5.111, 5.218
Ahsanullah v. Bangladesh, 44 DLR 179.....3.34
Ain-O-Salish Kedra v. Bangladesh, 1999 BLD 488.....2.111
Air India v. Nergesh Meerza, AIR 1981 SC 1829.....2.42, 4.40
Air-way Electric Appliance Corp v. Day, 266 US 71.....2.29
Ajay Canu v. India, AIR 1988 SC 2027.....2.158
Ajay Hashia v. Khalid Mujib, AIR 1981 SC 487.....2.65, 2.74
Ajit Singh v. Punjab, AIR 1967 SC 856.....2.206
Ajoy Kumar v. Saila Behari, AIR 1957 Orissa 15.....5.113
Akbar Ali v. Iftekhar Ali, PLD 1956 FC 50.....5.204
Akbar Ali v. Raziur Rahman, 18 DLR (SC) 426.....5.32
Akhlaq Hussain v. Pakistan, PLD 1968 SC 201.....5.67
Akhtari Begum v. Court of Settlement, 2 BLC 341.....5.41
Akramuzzaman v. Bangladesh, 52 DLR 209.....2.28
Alabama State Fed. of Labour v. McAdory, 325 US 450.....2.32, 5.15
Alam Ara Huq v. Bangladesh, 42 DLR 98.....2.132, 5.111
Alauddin Sardar v. Surendra, 40 DLR (AD) 257.....5.188
Albrecht v. U.S., 273 US 1.....2.143
Aleya Begum v. Bangladesh, 53 DLR 63.....2.111
Alex v. Urmese, AIR 1970 Ker 312.....5.115
Akhtar Hossain v. Secy. Ministry of Health, 1 BLC 549.....5.120
Alhaj Jamshed Ali v. Abdullah, 2000 BLD (AD) 189.....6.8
Al-Helal Rice Mills v. BSRS, 51 DLR (AD) 51.....5.146A, 5.201
Ali Ekabbar Farazi v. Bangladesh, 26 DLR 394.....1.57, 2.213
Ali Emdad v. Labour Directorate, 1998 BLD (AD) 137.....6.60A
Ali Hossain Fakir v. Bangladesh, 50 DLR 231.....5.27
Ali Newaz Gardezi v. Md. Yussuf, 15 DLR (SC) 9.....5.192, 5.201
Ali Reza Khan v. Election Commin., 50 DLR 58.....6.1
Ali v. R, [1992] 2 All E.R. 1, 1.52,1.53.....1.52, 1.53, 1.87
All India Bank Employees v. N.I.T., AIR 1962 SC 171.....2.169, 2.175
All India S.S. Assn. v. S.S. Society, AIR 1989 SC 88.....2.26
Allen v. Smith, 84 Ohio St. 283.....2.36
Alleppy v. Ponnoose, AIR 1979 SC 385.....4.40
Al-Sayer Navigation v. Delta Int., 34 DLR (AD) 110.....4.63
Altaf Hossain v. Abul Kashem, 45 DLR (AD) 53.....5.188, 6.9
Altaf Hossain v. Ch. Elec. Commr., 18 DLR (SC) 164.....5.35, 5.120
Altaf Hussain v. Shabbir Hussain, PLD 1961 Lah 449.....5.72

Alver v. U.S., 245 US 366.....2.211
Amalgamated Coal v. Janapad Sabha, AIR 1964 SC 1013.....5.22
Amalgamated Meat Cutters v. Connally, 337 F. Supp.737.....4.31
Amanulah v. Bangladesh, W.P.2930 of 1992 (unreported).....2.218A, 2.221
Amarendra v. Narendra, AIR 1953 Cal 114.....5.113
Amaresh Chandra v. Bangladesh, 31 DLR (AD) 240.....5.56, 5.106
Ameerunnessa v. Mahboob Begum, AIR 1953 SC 91.....2.31, 2.38
Amela Khatun v. Court of Settlement, 46 DLR 18.....5.34
American Communications Assn. v. Doud, 339 US 382.....2.171
Amina Begum v. Md. Nazir, PLD 1985 SC 260.....5.42
Aminul Huq v. Rafiqul Hasan, 1996 BLD (AD) 174.....2.38
Aminul Islam v. Bangladesh Biman 1982 BLD 1.....2.86, 4.40
Aminul Islam v. Mujibur Rahman, 44 DLR (AD) 56.....5.192
Amirul Islam v. Golam Mostafa, 1995 BLD (AD) 21.....5.165, 5.187
Amjad Hossain v. Bangladesh, 50 DLR 458.....5.124
Amjad Hossain v. Ch. Elec. Commr., 27 DLR 373.....5.125
Amritlal v. Collector, AIR 1975 SC 538.....5.24
Amritsar Municipality v. Punjab, AIR 1969 SC 1100.....2.19, 5.150
Anadi Mukta Sadguru Trust v. Rudani, AIR 1989 SC 1607.....5.87, 5.88
Anakapalle Co-operative v. India, AIR 1973 SC 735.....2.45
Anam Adhinarayan v. A.P., AIR 1958 AP 16.....5.146
Anand Behari v. Ram Sahay, AIR 1952 MB 31.....5.113
Anand Rao v. Maharashtra, AIR 1972 SC 1232.....5.192
Ancient Steamship Co. v. Member (A & R), 2 MLR (AD) 302.....5.129
Anderson v. Dunn, 5 L Ed 242.....4.94
Andhra Scientific Co. v. Seshagiri, AIR 1967 SC 408.....5.68
Andre P.R. Ambard v. A.G. of Trininad, AIR 1936 PC 141.....2.190, 5.225
Andresen v. Maryland, 427 US 463.....2.217
Angana Ranjan v. Director, Technical Edn., 31 DLR 184.....5.124
Angus v. Robertson, [1879] 5 AC 63.....1.62
Anil Kumar v. East Pakistan, 23 DLR 108.....5.128
Anisminic Ltd v. Foreign Compen. Trib., [1968] 2 QB 862.....5.37
Anisminic Ltd v. Foreign Compen. Trib., [1969] 2 AC 147.....5.37, 5.42, 5.63
Anisul Islam Mahmood v. Bangladesh, 44 DLR 1.....5.41, 5.82, 5.128
Anjuman-E-Ahmadia v. D.C. Sargoda, 18 DLR (SC) 517.....5.126, 5.127
Ansumali v. West Bengal, AIR 1952 Cal 632.....5.103
Anwaruddin v. Asstt. Commissioner, 1 BLC (AD) 164.....1.103
Anwar Hossain v. Election Commission, 2001 BLD 546.....4.10B, 6.7A
Anwar Hossain Chy v. Bangladesh, 1989 BLD (Spl) 1.....1.42 1.53
1,55, 1.57, 1.60, 1,70, 1.72, 1.73, 1.74, 1.84. 1.88, 1.90
1.94, 2.167, 2.235 4.56 - 4.68, 5.3, 5.10, 5.13, 5.15, 5.174, 5.188
Anwar Karim v. Bangladesh Bank, 52 DLR 1.....2.28, 2.29
Anwar v. Bangladesh 28 DLR 428.....5.105
Anwara Begum v. Shah Newaz, 43 DLR (AD) 156.....5.188

Anwarul Haq v. Bangladesh, 31 DLR 21 ..... 6.35
Appa Rao, In Re, (1887) 13 IA 155 ..... 5.205
Apparel Export Promotion v. Chopra, AIR 1999 SC 625 ..... 2.1A, 2.72, 2.112
Appukutty v. STO, AIR 1966 Ker 55 ..... 4.54
Arbab Md. Hashem Khan v. Crown, 6 DLR (FC) 1 ..... 5.98
Argersinger v. Hamlin, 407 US 25 ..... 2.120
ARK Associates v. WASA, 1999 BLD 349 ..... 5.132
Arlidge v. Mayor of Islington, [1909] 2 KB 127 ..... 4.40
Arnold v. King Emperor, 41 I.A. 149 ..... 2.195
Art.143, In Re, AIR 1965 SC 745 ..... 2.125, 4.88, 4.92, 4.98, 4.99, 5.8 5.103, 5.212, 5.221
Aruna Sen v. Bangladesh, 27 DLR 122 ..... 5.93, 5.94, 5.104, 5.109
Arunachala Nadar v. Madras, AIR 1959 SC 300 ..... 2.22, 2.206
Arunachalam v. Southern Roadways, AIR 1960 SC 1191 ..... 5.145
Asaduzzaman v. Bangladesh, 42 DLR (AD) 144 ..... 2.169
Asghar Ali v. Dhirendra Nath, 49 C.W.N. 658 ..... 5.113
Ashbridge Investments v. H. & L.G., [1965] 1 WLR 1320 ..... 5.38, 5.43
Asian Tobacco Co. v. A.C. of Customs, 1997 BLD 413 ..... 5.129
Asiatic Engineering v. Achhru Ram, AIR 1951 All 746 ..... 5.121
Asma Begum v. Court of Settlement, 3 BLC 238 ..... 5.41
Asma Jilani v. Punjab, PLD 1972 SC 139 ..... 1.9, 1.10, 1.121.13, 1.14 1.16, 1.17, 1.94, 1.97, 1.99, 1.100, 5.16, 5.68, 5.219, 6.64
Asoke Gulati v. B.S. Jain, AIR 1987 SC 424 ..... 2.83
Asoke Kumar v. Delhi Adm, AIR 1982 SC 1143 ..... 2.164
Asoke Kumar v. Nat. Insurance, AIR 1998 SC 2046 ..... 5.150
Asoke Kumar v. U.P., (1998) 2 SCC 502 ..... 5.139
Asom Rashtrabhasha Pracher v. Assam, AIR 1989 SC 2126 ..... 2.169
Assam v. Bimal, AIR 1963 SC 1612 ..... 6.40
Assam v. Kripanath, AIR 1967 SC 459 ..... 6.39
Assam v. M.K. Das, AIR 1970 SC 1255 ..... 6.39
Assam v. Sristikar, AIR 1957 SC 414 ..... 2.206
Assessing Officer v. Burmah Eastern, 1981 BLD (AD) 450 ..... 5.124
Associated Cement Companies v. Sharma, AIR 1965 SC 1595 ..... 5.178, 5.240, 5.241
Associated Press v. NLRB, 301 US 103 ..... 2.195
Associated Prov. Picture v. Wednesbury Corp., [1948]1 KB 223 ..... 5.47,5.72,5.80A
Asst. Collector v. Dunlop India, AIR 1985 SC 330 ..... 5.124 5.166
Asst. Commr. Com. Tax v. Dharmendra Trading, AIR 1988 SC 1247 ..... 5.137
Asst. Collector v. Melwani, AIR 1970 SC 962 ..... 2.141
Asst. Collector v. National Tobacco, AIR 1972 SC 2563 ..... 5.82
Aswini Kumar v. Hari Mohan, 36 DLR (AD) 1 ..... 5.8, 5.35
Ataur Rahman v. Md. Nasim, 52 DLR 16 ..... 4.88, 4.89
Ataur Rahman v. Ministry of Communications, 49 DLR 331 ..... 5.134
Atchison T & S.F.R. Co. v. Campbell, 61 Kan 439 ..... 2.114
Athimoolam v. Dy. Com. Tax Officer, AIR 1953 Mad 10 ..... 5.128

Atlas Roofing Co. v. O.S.H.R.C., 430 US 442 ..... 2.206
Authorised Officer v. A.W. Mullick, 20 DLR (SC) 229 ..... 5.77, 5.79, 5.90, 5.128
Awas Samasya v. M.P., AIR 1983 M.P. 12 ..... 5.113
Awlad Hossain v. Haji Moniruddin, 40 DLR 427 ..... 5.121
Ayesha Khatun v. Major Shabbir, 1993 BLD 186 ..... 5.93, 5.103
Ayesha Salahuddin v. Lab. Court, 32 DLR (AD) 68 ..... 5.33
Ayr Harbour Trustees v. Oswald, [1883] 8 App. Cas. 623 ..... 5.77
Ayub Ali v. Bangladesh, 46 DLR 191 ..... 5.174, 5.235
Azad Rickshaw Pullers v. Punjab, AIR 1981 SC 14 ..... 5.160, 5.169
Azeez Basha v. India, AIR 1968 SC 662 ..... 2.31
Azharuddin v. A.D.C.(Rev.), 19 DLR 489 ..... 5.128
Azizul Haq v. Bangladesh, 42 DLR 189 ..... 5.107, 5.108
Azizul Haq v. East Pakistan, PLD 1968 Dac 728 ..... 5.102
Azizur Rahman v. Bangladesh (Unreported) 5.210
Azizur Rahman v. Nasiruddin, PLD 1965 SC 236 ..... 5.113
Azra Zaman v. Bangladesh, 34 DLR 247 ..... 5.153

B

B.C.C.I. v. Abdul Sattar Shah, 2 MLR (AD) 313 ..... 5.166
B.I.W.T.A. v. BIWTA Ghat Sramik Union, 1982 BLD (AD) 83 ..... 2.133
B.I.W.T.C. v. Birds (BD) Agencies, (Unreported) 5.134
B. Mishra v. Registrar, Orissa H.C., (1974) 1 SCC 314 ..... 5.225
B. Misra v. B. Dixit, AIR 1972 SC 2466 ..... 5.179
B.S. Bhadera v. India, AIR 1969 SC 118 ..... 6.20
B.S.E.H.R. v. Bangladesh, 53 DLR 1 ..... 1.76, 2.111
B.S.I.C. v. Mahbub Hossain, 29 DLR (SC) 41 ..... 2.77, 5.31, 5.88, 5.131, 5.173, 6.15, 6.22
B.S.R.S. v. M/S Haque Brothers (Unreported) 5.204
B.W.D.B. v. Labour Court, 2001 BLD (AD) 117 ..... 5.201
Babar Ali v. State, 44 DLR (AD) 10 ..... 5.192
Babubhai v. Nandalal, AIR 1974 SC 2105 ..... 5.140
Babulal Parate v. Maharashtra, AIR 1961 SC 884 ..... 2.163, 2.164, 2.197
Baburao v. Bombay Housing Board, AIR 1954 SC 153 ..... 2.46
Bachan Singh v. Punjab, AIR 1980 SC 898 ..... 5.24
Bachan Singh v. Punjab, AIR 1982 SC 1325 ..... 1.82, 2.33, 2.117
Bachittar v. Punjab, AIR 1963 SC 395 ..... 3.13
Badrinath v. T.N., AIR 2000 SC 3243 ..... 2.81
Badrul Haq Khan v. Election Trib., 15 DLR (SC) 389 ..... 4.78,4.82, 5.37
Badrunnessa v. Vice Chancellor, 30 DLR 268 ..... 5.41, 5.123
Badsha Mia v. Abdul Latif, 43 DLR (AD) 10 ..... 5.227, 5.230
Bahawal v. State, 14 DLR (SC) 273 ..... 5.227
Baijnath v. Bhopal, AIR 1957 SC 494 ..... 2.141
Baijnath v. U.P., AIR 1965 All 151 ..... 5.115
Baikuntha v. Chief Med. Officer, AIR 1992 SC 1020 ..... 6.33

Bajwa v. Punjab, AIR 1999 SC 1510 ..... 2.852
Baker v. Carr, 369 US 186 ..... 5.16
Bakul Howladar v. State, 43 DLR (AD) 14 ..... 5.194
Bala Krisna Ayer v. Ramaswami Ayer, AIR 1965 SC 195 5,18
Balaji v. Income-Tax Officer, AIR 1962 SC 123 ..... 2.206
Balakotiah v. India, AIR 1958 SC 232 ..... 2.169
Baldeo Singh v. Bihar, AIR 1957 SC 612 ..... 5.177
Baldev Raj v. India, AIR 1981 SC 70 ..... 5.79, 6.33
Baldev Raj v. Punjab, AIR 1984 SC 986 ..... 6.33
Baldy v. Hunter, 171 US 388 ..... 1.96
Baleswar v. Dist. Magistrate, AIR 1959 All 71 ..... 4.6
Balmadies Plantation v. T.N., AIR 1972 SC 2240 ..... 5.152
Banamali Pal v. Nazrul Islam, 3 BLC (AD) 162 ..... 2.8A
Banarsi Das v. U.P., AIR 1956 SC 520 ..... 2.79
Banarsi v. M.P., AIR 1958 SC 909 ..... 4.34
Bandhua Mukti Morcha v. India, AIR 1984 SC 802 ..... 2.111, 2.133, 5.160
Bangladesh Anjuman-e-Ahmedia v. Bangladesh, 45 DLR 185 ..... 5.54
Bangladesh Bank v. Abdul Mannan, 46 DLR (AD) 12.88, 2.227, 5.204, 6.15, 6.22
Bangladesh Bank v. Administrative App. Trib., 44 DLR (AD) 239 ..... 5.186
Bangladesh Bank v. Zafar Ahmed Chowdhury, 2001 B:D (AD) 6 ..... 5.228
Bangladesh Biman v. Lt. Col. (Retd) Zainul Abedin, 2000 BLD (AD) 230 ..... 4.40
Bangladesh Biman v. Syed Aftab Ali, 39 DLR (AD) 151 ..... 5.188
Bangladesh Electrical Assn. v. Bangladesh, 46 DLR 221 ..... 5.156
Bangladesh Enemy Property v. Abdul Mazid, 27 DLR (AD) 52 ..... 6.64
Bangladesh Krishi Bank v. Meghna Enterprise, 50 DLR(AD) 194 ..... 2.26, 2.66, 2.105, 2.105, 5.15
Bangladesh NCTB Board v. Shamsuddin, 48 DLR (AD) 1842.8A, 2.25A, 2.177A
Bangladesh Parjatan Corp. v. Mofizur Rahman, 46 DLR (AD) 46 ..... 5.138
Bangladesh Parjatan Corp. v. Shahid, 43 DLR (AD) 154 ..... 2.88
Bangladesh Retd. Employees Welfare Assen v. Bangladesh, 51 DLR (AD) 121 2.29, 2.29A, 2.38, 5.162
Bangladesh Sangbadpatra v. Bangladesh, 43 DLR (AD) 126 ..... 5.162
Bangladesh Sericulture Bd. v. F. Rahman, 41 DLR (AD) 25 ..... 5.191
Bangladesh Soya-Protein Project v. Secy. Ministry of MDMR, 6 BLC 681 ..... 5.63D
Bangladesh Steamer Assn. v. Bangladesh, 31 DLR (AD) 272 ..... 5.188
Bangladesh Telecom Ltd v. B.T.T.B., 48 DLR (AD) 20 ..... 5.52, 5.54, 5.56 5.127, 5.132, 5.135, 5.190, 5.199
Bangladesh Water Dev. Board v. M/S Shamsul Huq, 2000 BLD (AD) 41 ..... 5.127
Bangladesh v. A.K.M. Zahangir, 34 DLR (AD) 173 ..... 1.62, 5.2 5.175, 5.188, 5.241, 6.18, 6.22
Bangladesh v. Abdul Motaleb, 45 DLR (AD) 108 ..... 6.33, 6.39
Bangladesh v. Abdur Rob, 33 DLR (AD) 143 ..... 5.174
Bangladesh v. Ahmed Nazir, 27 DLR (AD) 41 ..... 5.20, 5.168, 5.192
Bangladesh v. Al-Mamun, 1997 BLD (AD) 77 ..... 2.26, 5.63E

Bangladesh v. Amela Khatun, 53 DLR (AD) 55 ..... 5.49
Bangladesh v. Amir Hossain, 48 DLR (AD) 75 ..... 1.87A, 5.88
Bangladesh v. Anwar Ahmed, 51 DLR (AD) 42 ..... 5.128, 5.143, 5.144
Bangladesh v. Ashraf Ali, 49 DLR (AD) 161 ..... 5.41
Bangladesh v. Azizur Rahman, 46 DLR (AD) 19..... 2.34, 2.83, 2.85, 5.210, 6.19
Bangladesh v. Commercial Trust Co., 46 DLR (AD) 89 ..... 5.61
Bangladesh v. Court of Settlement, 51 DLR (AD) 87 ..... 5.146A
Bangladesh v. Court of Settlement, 2 MLR (AD) 378 ..... 5.41
Bangladesh v. Court of Settlement, 53 DLR (AD) 26 ..... 5.201
Bangladesh v. Court of Settlement, 48 DLR 502 ..... 5.122
Bangladesh v. Dhaka Lodge, 40 DLR (AD) 86 ..... 5.201
Bangladesh v. Dhaka Steel Works, 45 DLR (AD) 69 ..... 3.135.188
Bangladesh v. Dr. Dhiman Chowdhury, 47 DLR (AD) 53 ..... 5.104, 5.105, 5.108
Bangladesh v. Dr. Nilima Ibrahim, 1982 BCR (AD) 177 ..... 5.15, 5.34
Bangladesh v. Ghulam Azam, 46 DLR (AD) 192 ..... 5.53, 5.62, 5.122
Bangladesh v. Ghulam Azam, 2001 BLD (AD) 62 ..... 2.156
Bangladesh v. Habib Zamil, 52 DLR (AD) 174 ..... 5.129
Bangladesh v. Haji Abdul Gani, 32 DLR (AD) 233 ..... 2.227
Bangladesh v. H.M. Ershad, 52 DLR (AD) 162 ..... 2.218
Bangladesh v. Hon'ble Judge, 34 DLR (AD) 212 ..... 3.12, 4.43
Bangladesh v. Idrisur Rahman, 1999 BLD (AD) 291 ..... 1.72, 5.15, 5.234A
Bangladesh v. Khandker Tajuddin, 51 DLR (AD) 64 ..... 5.165, 5.187
Bangladesh v. Kundeswari Aushadhalaya, 29 DLR (AD) 128 ..... 4.40
Bangladesh v. Mahbubuddin Ahmed, 50 DLR (AD) 154 ..... 5.120, 5.235
Bangladesh v. Mahbubur Rashid, 1981 BLD (AD) 300 ..... 1.102
Bangladesh v. Mashiur Rahman, 50 DLR (AD) 205 ..... 5.201
Bangladesh v. Md. Afzal, 40 DLR (AD) 154 ..... 5.188
Bangladesh v. Md. Alauddin, 38 DLR (AD) 81 ..... 6.15, 6.22
Bangladesh v. Md. Azizur Rahman 1982 BLD (AD) 176 ..... 2.77
Bangladesh v. Md. Faruque, 51 DLR (AD) 112 ..... 2.88A, 5.18, 5.235
Bangladesh v. Md. Fazlul Haq, 43 DLR (AD) 144 ..... 6.37
Bangladesh v. Md. Habibur Rahman, 31 DLR (AD) 152 ..... 3.11, 3.12, 3.13
Bangladesh v. Md. Ismail Hossain, 31 DLR (AD) 127 ..... 6.36
Bangladesh v. Md. Jalil, 48 DLR (AD) 10 ..... 5.41
Bangladesh v. Md. Matiur Rahman, 1982 BLD (AD) 109 ..... 6.51
Bangladesh v. Mirza Ali, 2 MLR (AD) 300 ..... 5.108, 5.111
Bangladesh v. Mizanur Rahman, 2000 BLD (AD) 212 ..... 5.128, 5.219
Bangladesh v. Salekuzzaman, 52 DLR (AD) 166 ..... 6.51
Bangladesh v. Salimullah, 35 DLR (AD) 1 ..... 1.101
Bangladesh v. Shafiuddin Ahmed, 50 DLR (AD) 27 ..... 1.87A, 2.79A
2.81, 3.28, 5.27, 5.89, 5.233, 5.234 6.21, 6.49, 6.51
Bangladesh v. Shahjahan Siraj, 32 DLR (AD) 1 ..... 5.233
Bangladesh v. Shakhipur Islamia High School, 45 DLR (AD)23 ..... 5.188
Bangladesh v. Syeda Chand Sultana, 51 DLR (AD) 24 ..... 5.25

Bangladesh v. Tajul Islam, 49 DLR (AD) 177 ..... 5.56
Bangladesh v. Winifred Rubie, 34 DLR (AD) 162 ..... 1.81, 2.76
Bank of Baroda v. Nagachaya Debi, AIR 1989 SC 2105 ..... 5.24
Bank of Maharashtra v. Race Shipping & Transport, AIR 1995 SC 1368 ..... 5.166
Banthia v. India, AIR 1970 SC 1453 ..... 2.208
Banwarilal Agarwalla v. Bihar, AIR 1961 SC 849 ..... 5.49
Bar Council v. Surjeet Singh, AIR 1980 SC 1612 ..... 4.40
Bareilly Dev. Authority v. Ajai Pal, [1989] 2 SCC 117 ..... 2.71
Barium Chemicals v. C.L. Board, AIR 1967 SC 295 ..... 2.19, 5.75, 5.76, 5.143, 5.144
Barker v. Wingo, 407 US 514 ..... 2.145
Basanta Kumar v. Eagle Rolling Mills, AIR 1964 SC 1260 ..... 4.32
Basappa v. Naghappa, AIR 1954 SC 440 ..... 5.41
Basaratulla v. Auditor-General, 21 DLR 526 ..... 5.51
Basheshar Nath v. C.I.T., Delhi, AIR 1959 SC 149 ..... 2.237, 5.15, 5.22
Bashir Ahmed v. BJMC, 44 DLR (AD) 267 ..... 5.188
Basti Sugar Mills v. Ram Ujagar, AIR 1964 SC 355 ..... 2.206
Basudev v. Sida Kanhu, (1998) 8 SCC 194 ..... 2.107
Bazal Ahmed v. West Pakistan, PLD 1957 Lah 388 ..... 2.158
Bazlur Rahman v. Shamsunnessa, 11 MIA 604 ..... 1.57
Beatty v. Gilbanks, [1882] 2 QBD 308 ..... 2.8A, 2.163, 2.164
Beauharnais v. Illinois, 343 US 520 ..... 2.191
Beazell v. Ohio, 269 US 167 ..... 2.136
Begum Nusrat Bhutto v. Chief of Army Staff, PLD 1977 SC 657 ..... 1.95, 1.99, 1.100
Begum Shamsunnahar v. Speaker, 17 DLR (SC) 21 ..... 1.57
Begum Tahmina v. Bangladesh, 52 DLR 503 ..... 5.152
Begum Zebunnessa v. Pakistan, 10 DLR (SC) 44 ..... 2.194
Behram v. Bombay, AIR 1955 SC 123 ..... 2.230
Belayet Hossain v. Bangladesh, 6 BLC (AD) 60 ..... 5.49
Bell v. Director of Public Pros., [1985] 2 All E.R. 585 ..... 2.145
Benazir Bhutto v. Pakistan, PLD 1988 SC 416 ..... 5.161
Bengal Immunity v. Bihar, AIR 1955 SC 661 ..... 1.70, 5.152
Bennett & Coleman v. India, AIR 1973 SC 106 ..... 2.19, 2.174, 2.178, 2.195, 2.196
Berubari Union, In Re, AIR 1960 SC 845 ..... 1.73
Betts v. Brady, 86 L.Ed. 1595 ..... 2.120
Betty v. Gilbanks, (1882) 9 QBD 308 ..... 2.163
Bhabesh D. Parish v. India, AIR 2000 SC 2047 ..... 5.166
Bhadrachalan Paper Boards v. Mandol Revenue Officer, (1996) 6 SCC 634 ..... 5.139
Bhagat Singh v. Emperor, AIR 1931 PC 111 ..... 3.32
Bhagwan Swarup v. Maharashtra, AIR 1965 SC 682 ..... 2.143
Bhairulal v. Bombay, AIR 1954 Bom 116 ..... 5.115, 5.116
Bharat Hari Singhania v. Comm. Wealth Tax, AIR 1994 SC 1355 ..... 1.67
Bharat Kala Bhandar v. Damangao Municipality, AIR 1966 SC 249 ..... 4.52, 5.145
Bharat Kumar v. Kerala, AIR 1997 Kerala 291 ..... 2.175
Bharat Singh v. Haryana, AIR 1988 SC 2181 ..... 5.143

Bharat Surfactants (Pvt) Ltd v. India, AIR 1989 SC 2054 ..... 2.46
Bhatnagar v. India, AIR 1957 SC 478 ..... 4.34, 4.39
Bhikraj v. India, AIR 1962 SC 113 ..... 6.56
Bhikusha v. Kamgar Union, AIR 1963 SC 806 ..... 2.47
Bhim Singh v. J & K, AIR 1986 SC 494 ..... 2.128, 5.20
Bhim v. India, AIR 1981 SC 234 ..... 1.78
Bholanath, In Re, AIR 1961 Pat 1 ..... 5.225
Bhopal Sugar Ind. Ltd v. I.T.O. Bhopal, AIR 1961 SC 182 ..... 5.88
Bhubaneswar v. Bihar, AIR 1973 SC 399 ..... 5.193
Bi-Metallic Co. v. Colorado, 239 US 441 ..... 5.51
Biddle v. Perovich, 274 US 480 ..... 3.36
Bidi Supply Co. v. India, AIR 1956 SC 479 ..... 2.68, 2.705.81
Bihar E.G.F.Co-op. Society v. Sipahi, AIR 1977 SC 2149 ..... 5.87, 6.59
Bihar L.S.Society v. C.J. of India, AIR 1987 SC 38 ..... 5.160
Bihar v. Abdul Majid, AIR 1954 SC 245 ..... 5.218
Bihar v. Bihar Distillery Ltd., AIR 1997 SC 1511 ..... 2.105
Bihar v. Kameshwar, AIR 1952 SC 252 ..... 1.61, 2.8A, 2.235, 4.28, 4.84
Bihar v. Kameswar Prasad, AIR 2000 SC 2306 ..... 2.8A, 2.25A
Bihar v. Misra, AIR 1971 SC 1667 ..... 2.164, 2.172, 2.197
Bihar v. Murad Ali Khan, AIR 1989 SC 1 ..... 2.143
Bihar v. Radha Krisna, AIR 1983 SC 684 ..... 6.53
Bihar v. S.B. Mishra, AIR 1971 SC 1011 ..... 6.38, 5.39
Bihar v. Sailabala, AIR 1952 SC 329 ..... 2.182, 2.183
Bijoy Cotton Mills v. Ajmeer, AIR 1955 SC 33 ..... 2.206
Bilkis Akhtar Hossain v. Secy. Ministry of Home, 2 BLC 257 ..... 5.20
Binay Tripathy v. India, AIR 1994 SC 502 ..... 3.54
Bindra Ban v. Sham Sunder, AIR 1959 Punj 83 ..... 5.113
Bindra v. India, AIR 1998 SC 3058 ..... 6.33
Bir Bhadra Pratap v. D.M. Azamgarh, AIR 1959 All 384 ..... 2.128
Bira Kishore Deb v. Orissa, AIR 1964 SC 1501 ..... 2.31
Birds (BD) Agencies v. Secy. Food, (Unreported) 5.134
Birendra Dey v. D.C. Jessore (Unreported) 5.88
Birkdale D.E.Supply Co. v. Southport Corp.,[1926] AC 355 ..... 5.77
Bishamber Dayal v. U.P., AIR 1982 SC 33 ..... 2.51
Bishambhar Nath v. U.P., AIR 1966 SC 573 ..... 5.60
Bishan Das v. Punujab, AIR 1961 SC 1570 ..... 2.70
Biswanath v. Emperor, AIR 1945 FC 67 ..... 1.66
Bhagat Ram v. H.P., AIR 1983 SC 45 ..... 5.80A
Blackburn v. Att. Gen., [1971] 2 All E.R. 1380 ..... 5.159
Board of Education v. Rice, [1911] AC 179 ..... 5.61, 5.88
Board of Int. & Secondary Edn v. Rumana Ahmed, 1992 BLD (AD) 160 ..... 5.51
5.59
Board of Regents v. Roth, 408 US 564 ..... 2.112, 2.114
Boddie v. Connecticut, 401 US 67 ..... 2.101

Bolling v. Sharpe, 347 US 497 ..... 2.67, 2.112
Bombay Corporation v. Pancham, AIR 1965 SC 1008 ..... 2.114
Bombay v. Apte, AIR 1961 SC 578 ..... 2.143
Bombay v. Atma Ram, All 1951 SC 157 ..... 2.131
Bombay v. Balsara, AIR 1951 SC 318 ..... 2.24, 2.26, 2.29, 2.47, 2.236, 5.15
Bombay v. Bombay Edn. Society, AIR 1954 SC 561 ..... 2.72
Bombay v. Kathi Kalu, AIR 1961 SC 1808 ..... 2.153
Bombay v. Shaubhagchand Doshi, AIR 1957 SC 892 ..... 6.33
Bombay v. United Motors, AIR 1953 SC 252 ..... 2.54
Borhanuzzaman v. A. Rahman, 46 DLR (AD) 94 ..... 5.61
Bourne v. Keane, [1919] AC 815 ..... 5.219
Bouie v. City of Columbia, 378 US 347 ..... 2.137
Boyd v. U.S., 116 US 616 ..... 2.8
Bradbury v. Enfield LBC, [1967] 1 WLR 1311 ..... 5.50
Bradlough v. Gossett, 12 QBD 271 ..... 4.84, 4.86
Brahma Prakash v. U.P., AIR 1954 SC 10 ..... 5.223
Brahmanbaria Paurashava v. Bangladesh, 51 DLR (AD) 64 ..... 2.96
Brajlal Manilal v. India, AIR 1964 SC 1643 ..... 5.60
Brandenburg v. Ohio, 395 US 444 ..... 2.182
Branzburg v. Hayes, 408 US 665 ..... 2.176, 2.194, 2.195
Breen v. Amalgamated Engineers, [1971] 2 QB 175 ..... 5.63E, 5.79
Brij Bhushan v. J & K, AIR 1986 SC 1003 ..... 2.71
Brij Mohan v. Punjab, AIR 1988 SC 948 ..... 5.79
British Coal Corp. v. R, AIR 1935 PC 158 ..... 1.48, 1.61
British Oxygen Co. v. Board of Trade, (197) AC 610 ..... 5.77
British Railway Board v. Pickin, [1974] AC 765 ..... 4.42B
Bromley LBC v. Greater London Council, [1983] 1 AC 768 ..... 5.77
Brown v. Ohio, 432 US 161 ..... 2.143
Buck v. Bell, 274 US 200 ..... 2.39
Buckely v. Valeo, 424 US 1 ..... 2.171
Budhan Chowdhury v. Bihar, AIR 1955 SC 191 ..... 2.69
Bugdaycay v. Secy. of State, Home, [1987] AC 514 ..... 2.7
Builders Supply Corp. v. India, AIR 1965 SC 1061 ..... 6.65
Bunbury v. Fuller, [1853] 9 Ex 111 ..... 5.42
Burdick v. U.S., 236 US 79 ..... 3.46
Burges v. Salmon, 97 US 381 ..... 2.137
Burma Construction v. Orissa, AIR 1962 SC 1320 ..... 5.170
Burmach Oil Co. v. Port of Chittagong, PLD 1962 SC 113 ..... 5.88
Burns v. Wilson, 346 US 137 ..... 5.176
Buxley Paints v. Bangladesh, 31 DLR (AD) 266 ..... 5.188

C

C.A. Rajendran v. India, AIR 1968 SC 507 ..... 2.80
C.B. Boarding & Lodging Co. v. Mysore, AIR 1970 SC 2042 ..... 1.79, 2.47, 2.58

C.B.S. v. Democratic National Committee, 412 US 94 ..... 2.194
C.I.T. v. Fazlur Rahman, 16 DLR (SC) 506 ..... 5.51, 5.54
C.K. Achuthan v. Kerala, AIR 1959 SC 490 ..... 2.71
C.P. & Berar Sales Tax, In Re, AIR 1939 FC 1 ..... 1.61, 1.71
C. Subramaniam v. Speaker, AIR 1969 Mad 10 ..... 4.84
Cafetaria & Restaurant Workers Union v. McElroy, 367 US 886 ..... 2.100
Calcutta Discount co. v. I.T.O., AIR 1961 SC 372 ..... 5.42
Calcutta Gas Co. v. West Bengal, AIR 1962 SC 1044 ..... 5.156
Calder v. Bull, 3 Dall. 386 ..... 2.137
Caldwell v. Mann, 157 Fla 633 ..... 2.45
Calero-Toledo v. Pearson Yacht Leasing Co., 416 US 663 ..... 2.101
Califano v. Webster, 430 US 313 ..... 2.37
Calvin v. Carr. [1980] AC 574 ..... 5.62
Cama v. Banwarilal, AIR 1953 Nag 81 ..... 5.116
Campbell v. Holt, 115 US 620 ..... 2.114
Canada Dominion Sugar Co. v. Canadian N.W.I.S.Ltd.[1947] AC 46 ..... 5.136
Capt. Md. Azhar v. Commr., Karachi Div., 17 DLR(SC) 439 ..... 6.31, 6.39, 6.51
Carew & Co. v. Lqabour Court, 50 DLR 396 ..... 2.72, 2.77
Carey v. Population Services International, 431 US 678 ..... 2.108
Carington v. Rash, 380 US 89 ..... 2.27
Carl Still GmbH v. Bihar, AIR 1961 SC 1615 ..... 5.40, 5.81
Carltona Ltd v. Commr. Of Works, [1943] 2 All E.R. 560 ..... 5.76
CATA Sales Society v. A.P., AIR 1977 SC 2313 ..... 5.55
Catholic Bank of India v. George Jacob, AIR 1968 Ker 3 ..... 2.47
Cauvery Water Dispute, In Re, AIR 1992 SC 522 ..... 5.214
Cawaji & Co. v. Mysore, AIR 1975 SC 813 ..... 5.170
Central Coal Fields v. Jaiswal Coal, AIR 1980 SC 2125 ..... 4.67
Central I.W.T. Corp. v. Brojo Nath, AIR 1986 SC 1571 ..... 2.63, 2.88, 2.107
Central Union Trust Co. v. Garvan, 254 US 554 ..... 2.101
Century Spinning v. Ulhasnagar Mun., AIR 1971 SC 1021 ..... 5.137, 5.148
Chairman, B. W. D. B.. v. Shamsul Huq, 51 DLR (AD) 169 ..... 5.169
Chairman, Bd. of Mining Exam. v. Ramjee, AIR 1977 SC 965 ..... 5.51
Chairman, BRTC v. Nasimuddin, 3 BLC (AD) 225 ..... 5.132
Chairman, Civil Aviation v. K.A. Rouf, 46 DLR (AD) 145 ..... 5.164
Chairman, REB v. Abdul Jalil, 3 BLC (AD) 79 ..... 2.203
Chairman, Rly Bd. v. Abdul Majid, 18 DLR (SC) 532 ..... 6.35
Chairman, Rlt Bd. v. Chandrima, AIR 2001 SC 988 ..... 5.20
Chairman, Steel Corp. v. Masood Raza, 30 DLR (AD) 169 ..... 5.88
Chajju Ram v. Neki, AIR 1922 PC 112 ..... 5.205
Chamarbaughwalla v. India, AIR 1957 SC 628 ..... 1.60, 2.235
Chanan Singh v. Registrar, Co-operative, AIR 1976 SC 1821 ..... 5.152
Chand Mia Sowdagar v. S.M.A. Rahman, 43 DLR (AD) 225 ..... 5.188
Chandgi Ram v. Election Tribunal, AIR 1965 Punj 433 ..... 4.6
Chandler v. Director of Public Prosecution, [1964] AC 763 ..... 1.63

Chandpur Jute Suppliers v. Artha Rin Adalat, 2 BLC 49.....2.29, 2.47, 2.105
Chandpur Mills Ltd v. D.M., 11 DLR (SC) 53.....5.131
Chandra Kanta v. Sk. Habib, AIR 1975 SC 1500.....5.204
Chandra Mohan v. U.P., AIR 1966 SC 1987.....1.61, 1.70, 1.85, 5.234
Chandra Sekhar v. Orissa, AIR 1972 SC 486.....5.15
Chandra v. Rajasthan, AIR 1956 Raj 188.....2.133
Chandramouleswar v. Patna High Court, AIR 1970 SC 370.....5.234A
Chandravarker v. Ashalata, AIR 1987 SC 117.....5.179
Chandrika Jha v. Bihar, AIR 1984 SC 322.....5.77
Charan Das v. Asstt. Collector, AIR 1968 Cal 28.....5.56
Charan Lal Sahu v. India, AIR 1990 SC 1480.....2.31, 5.62
Chatturbhuj v. Moreswar, AIR 1954 SC 236.....4.8
Chaturbhai v. India, AIR 1960 SC 424.....2.208
Chertsey UDC v. Mixnam's Prop., [1964] 2 All E.R. 627.....5.72
Chetak Construction Ltd v. Om Prakash, (1998) 3 SCC 577.....5.2280
Chetker v. Viswanath, AIR 1970 SC 1832.....5.34
Chevron Lines v. Chairman, BOGMC, 43 DLR 218.....5.87
Chicago I & L.R. Co. v. Hackett, 228 US 559.....2.49, 2.229
Chicago R.I. & P.R. Co. v. Perry, 259 US 548.....2.49
Chicot County Drainage v. Baxter State Bank, 308 US 371.....2.229
Chief Commr. Karachi v. Dina Sohrab, 11 DLR (SC) 113.....5.54
Chief Const. N.W.Police v. Evans, [1982] 3 All E.R. 141.....5.12, 5.54
Chingleput Bottlers v. Majestic Bottlers, AIR 1984 SC 1030.....5.52
Chintaman Rao v. M.P., AIR 1951 SC 118.....2.22, 2.24, 5.15
Chiranjit Lal v. India, AIR 1951 SC 41.....2.31, 2.51, 2.114, 5.15, 5.156
Chitra v. India, AIR 1970 SC 35.....2.72
Chitralekha v. Mysore, AIR 1964 SC 1823.....3.13
Chittagong Chemical Complex v. Labour Court, 46 DLR (AD) 182.....5.41
Chittagong Engineering v. Certificate Officer, 17 DLR 404.....5.124
Chittagong Engineering v. I.T.O., 22 DLR (SC) 443.....5.124
Chittagong Medical College v. Shahryar Murshed, 48 DLR (AD) 33.....5.55
Chittagong Textile Mills v. Bangladesh, 1979 BSCR 440.....6.64
Chittaranjan Sutar v. Secy, Judicial, 17 DLR 451.....2.21, 2.22, 2.40, 2.214
Chotabhai v. India, AIR 1962 SC 1006.....4.53
Chotey Lal v. U.P., AIR 1951 All 228.....5.89
Chowdhury Md. Yusuf v. Bangladesh Biman, 31 DLR 199.....2.77, 6.15
Chuhar Singh v. Haryana, AIR 1977 SC 386.....5.192
Chunnu Chowdhury v. D.M., 41 DLR 156.....2.131, 5.107
Church of God v. KKRMC Welfare Assocn, AIR 2000 SC 2773.....2.209
Cinnamond v. British Airport Authority, [1980] 2 All E R 368.....5.63A
Cipriano v. Houma, 395 US 701.....2.39
City Bank Ltd. v. Bangladesh Bank, 51 DLR (AD) 262.....2.29, 2.48
City Corner v. P.A. to Collector, AIR 1976 SC 143.....5.60
City of Worcester v. Worcester C.S. Rly, 196 US 539.....3.52

Civil Service Commn. v. N.A.L.C., 413 US 548 ..... 2.171
Clerk v. Titusville, 184 US 329 ..... 2.36
Col. A.S. Sangwan v. India, AIR 1981 SC 1545 ..... 2.70
Col. Hasmat Ali v. Bangladesh, 47 DLR (AD) 1 ..... 2.223
Collector, Cen. Excise v. Azizuddin Ind., PLD 1970 SC 439 ..... 5.170
Collector of Cen. Excise v. Waliullah Chowdhury,PLD 1966 SC 788 ..... 6.39
Collector of Customs v. A. Hannan, 42 DLR (AD) 167 ..... 5.128, 5.138
Collector of Customs v. A.S. Bava, AIR 1968 SC 13 ..... 5.128
Collector of Malabar v. Erimmal Ebrahim, AIR 1957 SC 688 ..... 2.123, 5.103
Collector of Masulipatam v. Venkata, 8 MIA 529 ..... 6.59
Color Photo Services v. NBR, 3 BLC 78 ..... 5.79
Commonwealth v. Hazel, 155 Ky 30 ..... 2.36
Commr., HRE v Swamiar, AIR 1954 SC 282 ..... 2.114, 2.209, 2.210, 4.54, 5.81
Commr. of Customs v. Cure & Deeley. [1961] 3 All E.R. 641 ..... 4.40
Commr. Of Customs v. Ghiasuddin Chy, 50 DLR (AD) 129 ..... 5.165, 5.166, 5.167
Commr. Of Customs v. SARC Enterprise, 51 DLR (AD) 165 ..... 5.167
Commr. of I.T. v. Gulistan Cinema, 28 DLR (AD) 14 ..... 1.48, 5.183
Commr. of I.T. v. Manindra & Manindra, AIR 1984 SC 1182 ..... 5.75, 5.79
Commr. of I.T. v. Mullick Brothers, 33 DLR (AD) 274 ..... 5.208, 6.64
Commr. of Police v. Gordhandas, AIR 1952 SC 16 ..... 5.90
Commr. of Taxes v. Justice S. Ahmed, 42 DLR (AD) 162 ..... 5.8
Communist Party of Indiana v. Whitcomb, 414 US 441 ..... 2.169
Communist Party v. Bharat Kumar, AIR 1998 SC 184 ..... 2.175
Conforce Ltd v. Titas Gas T & D Co. Ltd, 42 DLR 33 ..... 5.129, 5.132, 5.173
Congreve v. Home Office, [1976] QB 629 ..... 5.75
Connaly v. General Construction Co., 269 US 385 ..... 2.104
Connick v. Meyers, 461 US 138 ..... 2.180
Connolly v. Union Sewer Pipe Co., 184 US 540 ..... 2.47
Consolidated Rendering co. v. Vermont, 207 US 541 ..... 2.48
Consumer Edn & Research Centre v. India, AIR 1995 SC 922 ..... 1.75
Controller of Examinations v. Mahimuddin, 44 DLR (AD) 305 ..... 5.123, 5.128, 5.191
Cooverjee v. Excise Commissioner, AIR 1954 SC 220 ..... 2.204
Cornelius v. NAACP, 473 US 788 ..... 2.179
Corp. of Calcutta v. Liberty Cinema, AIR 1965 SC 1107 ..... 4.33, 4.35, 4.39
Corp. of Trivandram v. Md. Haneefa, AIR 1958 Ker 61 ..... 2.46
Council of C.S.U. v. Minister, C.S., [1984] 3 All E.R. 935 ..... 5.38, 5.52, 5.63A, 5.72, 5.80A
Counselman v. Hitchcock, 142 US 547 ..... 2.152
Countess of Rhodes v. Kireally Water Works, [1882] 7 AC 649 ..... 1.60
County Board of Arlington v. Richards, 434 US 5 ..... 2.27
Cox v. Hakes, [1890] 15 AC 506 ..... 1.60
CREEDNZ Inc. v. Governor General, [1981] NZLR 172 ..... 5.79
Crescent Cotton Oil Co. v. Mississippi, 257 US 129 ..... 2.49

Crowell v. Benson, 285 US 22 ..... 5.45
Cummings v. Birkenhead Corp., [1972] Ch 12 ..... 5.77
Cummings v. Missouri, 18 L. Ed. 356 ..... 2.207
Custodian, Evacuee Property v. A. Shakur, AIR 1961 SC 1087 ..... 5.40
Customs Collector v. Shantilal, AIR 1966 SC 197 ..... 5.128
Cyril Sikdar v. Nazmul Huda, 46 DLR 555 ..... 4.88

D

D.A.V. College v. Punjab, AIR 1971 SC 1731 ..... 5.23
D.A.V. College v. Punjab AIR 1971 SC 1737 ..... 2.169
D.C. & G.M.A.I. Works v. India, AIR 1983 SC 937 ..... 2.19
D.F.O. South Kheri v. Ram Sanehi, AIR 1973 SC 205 ..... 5.132
D.F.O. v. Biswanath Tea Co., AIR 1981 SC 1368 ..... 2.19
D.G. Prison v. Md. Nasiruddin, 53 DLR (AD) 30 ..... 6.40
D.K. Basu v. W.B., AIR 1999 SC 610 ..... 2.111
D.K. Khanna v. India, AIR 1973 H.P. 30 ..... 5.68
D.M. Lahore v. Raza Kazim, 13 DLR (SC) 66 ..... 4.39, 5.91
D.N. Banerjee v. P.R. Mukherjee, AIR 1953 SC 58 ..... 5.179
D.P.O. v. Challappan, AIR 1975 SC 2216 ..... 6.43
D. Ramaswami v. T.N. AIR 1982 SC 793 ..... 6.33
D.S. Nakara v. India, AIR 1983 SC 130 ..... 1.75, 2.38, 2.65, 5.160
D'Silva v. India, AIR 1962 SC 1130 ..... 6.51
Dacca Match Workers v. Bangladesh, 29 DLR 188 ..... 5.157
Dacca National Medical Inst. v. East Pak., 10 DLR 343 ..... 2.169 2.172
Dacca Picture Palace Ltd v. Pakistan, 18 DLR 442 ..... 4.32, 4.34, 4.39
Dahyabhai v. Ramji, AIR 1971 Guj 232 ..... 5.119
Dalbir Singh v. Punjab, AIR 1962 SC 1106 ..... 2.182, 2.185
Dalbir Singh v. Punjab, AIR 1979 SC 1384 ..... 5.214
Dalia Parveen v. Bangladesh Biman, 48 DLR 132 ..... 2.40, 2.72
Dalmia Airways v. Sukumar, AIR 1951 Cal 193 ..... 5.179
Dalmia Cement (Bharat) Ltd v. India, (1996) 10 SCC 104 ..... 2.53, 2.203
Dalmia Cement Ltd v. Workers Union, PLD 1958 SC 153 ..... 2.133
Damayanti v. India, AIR 1971 SC 966 ..... 2.169, 2.172
Damodor v. Co-op. Seeds Store, 8 DLR 342 ..... 5.88
Dandridge v. Williams 397 US 471 ..... 2.30
Daphtary v. Gupta, AIR 1971 SC 1132 ..... 2.190, 2.192
Darley v. R., [1846] 12 Cl and Fin 520 ..... 5.113
Darshan Masih v. State, PLD 1990 SC 513 ..... 5.161
Darshanlal v. India, AIR 1992 SC 1848 ..... 2.36
Darsan Oils Pvt. Ltd v. India, AIR 1995 SC 370 ..... 2.51
Daruka & Co. v. India, AIR 1973 SC 2711 ..... 2.51
Daryao v. U.P., AIR 1961 SC 1457 ..... 5.150
Das v. Divisional Superintendent, AIR 1960 All 538 ..... 6.43
Dastagir v. Madras, AIR 1960 SC 756 ..... 2.152

Dattatraya v. Bombay, AIR 1952 SC 181 ..... 2.130, 3.13
Davidow v. Wadsworth Manufacturing Co., 211 Mich 90 ..... 2.48
Davis Warehouse Co. v. Bowles, 321 US 144 ..... 5.15
Daya v. Joint C.C.I.E., AIR 1962 SC 1796 ..... 2.206
Dayananda Sagar v. Vatal Nagraj, AIR 1976 SC 2183 ..... 5.204
Day-Brite Lighting Inc v. Missouri, 342 US 421 ..... 2.103
De Jonge v. Oregon, 299 US 353 ..... 2.186
Deb Sadhan Roy v. W.B., AIR 1972 SC 1924 ..... 2.130
Debaranjan v. Comptroller, AIR 1985 SC 306 ..... 2.70
Debesh Chandra Das v. India, AIR 1970 SC 77 ..... 6.38
Debs, In re, 158 US 564 ..... 3.30
Deena v. India, AIR 1983 SC 1155 ..... 5.24
Deepchand v. U.P., AIR 1959 SC 648 ..... 2.230, 2.234
Dehri Rohtas Light Rly v. Dist. Board, AIR 1993 SC 802 ..... 5.122
Delhi Jal Board v. Mahindar, AIR 2000 SC 2767 ..... 2.81
Delhi Judicial Service Assn. v. Gujarat, AIR 1991 SC 2176 ..... 5.201, 5.218
Delhi Laws Act, In Re, AIR 1951 SC 332 ..... 4.33
Delhi Municipality v. B.G.S. & W Mills, AIR 1968 SC 1232 ..... 4.35
Delhi Transport Corp. v. DTC Mazdoor Congress, AIR 1991 SC 101 ..... 1.82
2.58, 2.63, 2.88, 5.15
Delicia Dairy Products v. Collector of Customs, 51 DLR 381 ..... 5.123
Delwar Hossain v. Bangladesh, 52 DLR (AD) 120 ..... 5.27
Dennis v. U.S., 339 US 162 ..... 2.26
Denny v. Bennett, 128 US 489 ..... 2.37
Deodat Rai v. State, AIR 1951 All 718 ..... 2.39
Deodhar v. Maharashtra, AIR 1974 SC 259 ..... 2.85, 5.22
Deputy Commr., Andaman v. Consumer Co-op. Stores, AIR 1999 SC 696 ..... 5.170
Deputy Director v. Deena Bandhu, AIR 1965 SC 484 ..... 5.79
Derbyshire CC v. Times Newspaper, [1993] 1 All E.R. 1011 ..... 2.191
Devadason v. India, AIR 1964 SC 179 ..... 2.70, 2.92
Devendrappa v. Karnataka SSID Corp, AIR 1998 SC 1064 ..... 2.17A, 2.185
Devi Das v. Punjab, AIR 1967 SC 1895 ..... 4.34, 4.35, 4.39
Devilal v. S.T.O., AIR 1965 SC 1150 ..... 5.150
Dewan Abdul Kader v. Bangladesh, 46 DLR 596 ..... 2.174
Dewan Singh v. Haryana, AIR 1976 SC 1921 ..... 5.58
Dhaka Warehouse v. Asstt. Collector, 1991 BLD (AD) 227 ..... 5.124, 5.128
Dhakeswari Cotton Mills v. C.I.T., AIR 1955 SC 65 ..... 5.59, 5.60, 5.186
Dhanu Mia v. State, 43 DLR (AD) 119 ..... 5.195
Dhanwatey v. Commr. of Income Tax, AIR 1968 SC 683 ..... 5.214
Dhanyalakshmi Rice Mills v. Commr. C.S.,AIR 1976 SC 2243 ..... 5.146
Dhirendra Mondal v. Supdt.& Remembrancer, AIR 1954 SC 424 ..... 2.56
Dhirendra Nath Sarker v. Bangladesh, 31 DLR 151 ..... 6.26
Digyadarson v. A.P. AIR 1970 SC 181 ..... 2.211
Dilruba Rana v. Secy. Ministry of Home, 6 MLR 50 ..... 2.156

Dimes v. Props. of G.J. Canal, [1852] 3 HLC 759 ..... 5.65
Dinesh Chandra v. Assam, AIR 1978 SC 17 ..... 6.18, 6.33
Dinker v. Maharashtra, AIR 1999 SC 152 ..... 1.66
Direct Recruit Class II Engg. v. Maha., AIR 1990 SC 1607 ..... 2.26
Director General, NSI v. Sultan Ahmed, 1 BLC (AD) 71 ..... 2.26
Director, Public Prosecution v. Jones, [1999] 2 All E.R. 257 ..... 2.163
Director, Public Prosecution v. Schildkamp, [1971] AC 1 ..... 1.63
Director of Rationaing v. Calcutta Corp., AIR 1960 SC 1355 ..... 6.65
District Registrar v. Koyyakutti, AIR 1979 SC 1060 ..... 5.169
Ditty v. Hampton, 490 SW 2d 772 ..... 2.36
Dixon v. B.B.C. [1979] 2 All E.R. 112 ..... 1.63
Dobbert v. Florida, 432 US 282 ..... 2.136
Doe v. McMillan, 412 US 306 ..... 4.89
Dombrowski v. Eastland, 387 US 82. ..... 4.99
Dominion Hotel Inc. v. Arizona, 249 US 265 ..... 2.47
Dorset Yacht Co. v. Home Office, [1970] AC 1044 ..... 6.62
Mohammad v. Returning Officer, 17 DLR (WP) 126 ..... 5.125
Dost Textiles Mills v. S.B. Nath, 40 DLR (AD) 45 ..... 5.13
Douglas v. Jeanetts, 319 US 157 ..... 2.176
Douglas v. South Georgia Grocery Co., 180 Ga 519 ..... 2.36
Dr. Abdul Lahel Based v. Ministry of Health, 38 DLR 409 ..... 5.174, 5.235
Dr. Abu Ahmed v. Bangladesh, 1982 BLD 98 ..... 2.56
Dr. Ahmed Hossain v. Bangladesh, 44 DLR (AD) 109 ..... 4.2, 6.4
Dr. Ahmed Hossain v. Bangladesh, 51 DLR (AD) 75 ..... 4.10C
Dr. Ahmed Hossain v. Shamsul Huq Chowdhury, 1 BLC 321 ..... 5.225
Dr. B. Ramchandra v. Orissa, AIR 1971 SC 2197 ..... 5.98, 5.103
Dr. Bonham, 8 Co. Rep. 113b 5.64
Dr. Habibullah v. Secy, Home Affairs, 41 DLR 160 ..... 2.130, 2.132, 5.106
Dr. Kamal Hossain v. Serajul Islam, 21 DLR (SC) 23 ..... 5.113, 5.116
Dr. M.A. Hadi v. Bangladesh, 50 DLR 218 ..... 5.123
Dr. M. Amin Durrani v. West Pakistan, PLD 1966 SC 99 ..... 6.34
Dr. Md. Yusuf Ali v. Chancellor, R.U., 1998 BLD 1 ..... 5.55, 5.143
Dr. Mohiuddin Farooque v Bangladesh, 49 DLR (AD) 1 ..... 1.53, 1.77, 2.156 5.13A, 5.163, 5.164
Dr. Mohiuddin Farooque v. Bangladesh, 50 DLR 84 ..... 5.164
Dr. Mohiuddin Farooque v. Bangladesh, 48 DLR 433 ..... 2.111, 5.164
Dr. Md. Mahiuddin v. Dr. Hasanuzzaman, 44 DLR 535 ..... 5.223
Dr. M.O. Ghani v. Dr. A.N.M. Mahmud, 18 DLR (SC) 463 ..... 5.127
Dr. Nurul Islam v. Bangladesh, 1981 BLD 12 ..... 5.73, 5.138, 6.67
Dr. Nurul Islam v. Bangladesh, 33 DLR (AD) 201 ..... 2.25, 2.60, 2.63 2.88, 2.109, 5.15, 5.71, 5.73, 5.74, 5.188, 6.18B, 6.19, 6.33
Dr. Waliur Rahman v. Bangladesh, 50 DLR (AD) 26 ..... 5.165
Dudani v. S.D. Sharma, AIR 1986 SC 1455 ..... 5.150
Dulal v. District Magistrate, AIR 1958 Cal 365 ..... 2.134

Dulichand v. Bangladesh, 33 DLR (AD) 30 ..... 5.16, 6.64
Duncan v. Jones, [1935] All E.R. Rep. 710 ..... 2.163
Durayappa v. Fernando, [1967] 2 AC 337 ..... 5.63
Durga Shankar v. Raghuraj, AIR 1954 SC 520 ..... 6.4
Durga Singh v. Punjab, AIR 1957 Punj 97 ..... 4.6
Durgah Committee v. Syed Hussain Ali, AIR 1961 SC 1402 ..... 2.209, 2.211
Dwarkadas v. Sholapor S. & Co., AIR 1951 Bom 86 ..... 2.114
Dwaraka Prasad v. U.P., AIR 1954 SC 224 ..... 2.56, 2.208
Dwarakadas v. Port of Bombay Authority, AIR 1989 SC 1642 ..... 2.65, 2.68, 2.71
Dy. Managing Director N.B.P. v. Ataul Haq, 17 DLR (SC) 74 ..... 5.31
Dyson Holdings Ltd v. Cox, [1996] QB 503 ..... 1.69

E

E.C. Barsay v. Bombay, AIR 1961 SC 1762 ..... 3.13
E.I.C. Church Union v. Essex C.C., [1963] AC 808 ..... 5.69
E.P. Royappa v. T.N., AIR 1974 SC 555 ..... 2.65
East and West Steamship Co. v. Pakistan, 10 DLR SC) 52 ..... 2.58, 2.62, 4.33, 4.34
East India Co. v. Syed Ally, 7 MIA 555 ..... 6.62
East India Comml. Co. v. Collector, AIR 1962 SC 1893 ..... 5.55, 5.81
East India Tobacco Company v. A.P., AIR 1962 SC 1733 ..... 2.54
East Pakistan v. Abdus Sobhan Sowdagar, 16 DLR (SC) 38 ..... 5.41
East Pakistan v. Amir Hossain, 15 DLR (SC) 110 ..... 5.41
East Pakistan v. Azim Rahim, 20 DLR (SC) 71 ..... 5.127, 5.129
East Pakistan v. Daulatput Jute Mills, 20 DLR (SC) 61 ..... 5.151
East Pakistan v. Dr. K.A. Mansur, 14 DLR 1 ..... 6.51
East Pakistan v. Hiralal, PLD 1970 SC 399 ..... 5.102, 5.103
East Pakistan v. Kshiti Dhar Roy, 16 DLR (SC) 457 ..... 5.41, 5.127, 5.129
East Pakistan v. Md. Abdu Mia 11 DLR (SC) 377 ..... 6.34
East Pakistan v. Md. Atiqullah, 21 DLR 765 ..... 6.15
East Pakistan v. Mehdi Ali Khan, 11 DLR (SC) 318 ..... 1.101, 2.231
East Pakistan v. Nur Ahmed, 16 DLR (SC) 375 ..... 4.40, 5.51
East Pakistan v. Rowshan Bijoya, 18 DLR (SC) 214 ..... 5.98
East Pakistan v. S.A. Khan, 40 DLR (AD) 202 ..... 5.188
East Pakitan v. Sajjad Ali Mazumder, 14 DLR (SC) 13 ..... 6.34
East Pakistan v. Sirajul Haq, 19 DLR (SC) 281 ..... 4.33, 4.39, 5.15
Eastern Beverage Ind. v. Bangladesh, 47 DLR 32 ..... 4.40, 5.49
Eastern Hosiery M.S.B.S. Samity v. Bangladesh, 27 DLR 674 ..... 5.157
Eastland v. U.S. Servicemen's Fund 421 US 491 ..... 4.99
Ebrahim v. Custodian General, AIR 1952 SC 319 ..... 5.43
Ebrahim v. Bombay, AIR 1954 SC 229 ..... 2.22, 2.157
Edward Mills v. Ajmeer, AIR 1955 SC 25 ..... 4.34
Edwards v. A.G. of Canada, [1930] AC 124 ..... 1.51
Edwards v. Bairstow, [1955] 3 All E.R. 48 ..... 5.40
Edwin Ward Scadding v. Louis Lorant, 10 E.R. 164 ..... 5.117

Ekram Ibrahim Lody v. Bangladesh, 47 DLR 256 ..... 2.156
Elahi Cotton Mills v. Pakistan, PLD 1997 SC 582 ..... 2.53, 2.54
Election Commn. v. Dr. Subramanium, AIR 1996 SC 1810 ..... 5.70A, 6.7A
Election Commn. v. Saka Venkata, AIR 1953 SC 210 ..... 4.10
Election Commn. v. Shivaji, AIR 1988 SC 61 ..... 6.4
Electricity Board v. Mohan Lal, AIR 1967 SC 1857 ..... 1.62
Ellis v. Dubowski, [1921] 2 KB 621 ..... 5.76
Elrod v. Burns, 427 US 347 ..... 5.13
Emdadul Haque v. Bangladesh, 42 DLR 110 ..... 5.49
Emperor v. Benoari Lal, AIR 1945 PC 48 ..... 1.51, 3.32
Enamul Huq v. Dhaka University, 43 DLR 507 ..... 5.41
Engel v. O'Malley, 219 US 128 ..... 2.36
Engineering Mazdoor v. Hind Cycle, AIR 1963 SC 874 ..... 5.178
Entick v. Carrignton, [1765] St. Tr. 1030 ..... 2.217
Erfan Ali v. Joynal Abedin, 35 DLR (AD) 216 ..... 5.189
Eshugbayi Eleko v. Nigeria, 1931 AC 662 ..... 6.62
Essex Inc Congregational Church Union v. Essex CC, [1963] AC 808 ..... 5.35
Estate Duty, In Re, AIR 1944 FC 73 ..... 5.213
Estate Trust v. Singapore I.T., 1937 A.C. 898 ..... 5.82
Estrin v. Moss, 221 Tenn 657 ..... 2.47
Etti v. Secy. of State, AIR 1939 Mad 663 ..... 6.61
Euclid v. Amber Realty Co., 272 US 265 ..... 1.69, 2.103
Eurasian Equipments v. West Bengal, AIR 1975 SC 266 ..... 2.71, 5.31
Evans v. Bartlane, [1937] AC 473 ..... 5.35
Ewing v. Mytinger & Caselberry, 339 US 594 ..... 2.101, 5.62
Ex p. Garland, 18 L Ed. 366 ..... 3.47, 3.48
Ex p. Grossman, 267 US 87 ..... 3.48
Excel Wear v. India, AIR 1979 SC 25 ..... 1.78
Executive Engr. v. Mohammad Ali, 41 DLR (AD) 64 ..... 6.25
Exparte Off. Receiver In Re Reed Bowen, [1897] 19 QBD 174 ..... 5.156
Exparte Royall, 117 US 241 ..... 2.229
Exparte Sidebotham, [1879] 14 Ch. D 458 ..... 5.156
Express Newspapers v. India, AIR 1958 SC 578 ..... 2.18, 2.22, 2.195, 2.196
Express Newspapers v. India, AIR 1986 SC 872 ..... 2.65, 2.195, 5.73

F

F v. F, [1971] Probate 1 ..... 1.67
F.N. Roy v. Collector of Customs, AIR 1957 SC 648 ..... 5.58
Fahey v. Mallonee, 332 U.S. 245 ..... 2.101, 4.31
Faisal Mahtab v. Bangladesh, 44 DLR 168 ..... 2.1085.108
Faiz Ahmed v. Registrar Co-op. Societies, 14 DLR (SC) 183 ..... 5.88, 6.22
Fakir Chand v. Bhagwati, AIR 1958 Punj 287 ..... 5.180
Faretta v. California, 422 US 806 ..... 2.150
Farid Ahmad v. West Pakistan, PLD 1965 Lah 135 ..... 2.173

Farid Mia v. Amjad Ali, 42 DLR (AD) 13.....5.114, 5.116, 5.123, 5.129
Farida Rahman v. Bangladesh, 33 DLR 130.....5.106
Faridsons Ltd v. Pakistan, 13 DLR (SC) 233.....5.51, 5.53, 5.54
Farooq A.K. Leghari v. Pakistan, PLD 1999 SC 504.....5.17, 2.106
Farmer v. Cotton Trustees, [1915] AC 922.....5.40
Farquharson v. Morgan, [1894] 1 QB 552.....5.35, 5.120
Faruk v. M.P., AIR 1970 SC 93.....2.208, 5.24
Farzana Haq v. Bangladesh, 1991 BLD 533.....5.107, 5.108, 5.124
Farzana Haque v. Dhaka University, 42 DLR 262.....5.51
Farzand Ali v. West Pakistan, 22 DLR (SC) 203.....4.10, 4.19, 4.85
5.13, 5.113, 5.117, 5.118, 6.33
Fateh Khan v. State, 15 DLR (SC) 51.....5.194
Fatema Khatun v. Deputy Commr., 3 MLR (AD) 71.....5.129
Fawcett Properties Ltd v. Bucks CC, [1961] AC 636.....5.71
Fazal Bhai v. Custodian General, AIR 1961 SC 1397.....5.55
Fazal Din v. Evacuee Property, PLD 1971 SC 779.....5.13
Fazal Din v. Lahore I.T., 21 DLR (SC) 225.....5.84, 5.156
Fazalan v. Crown, 8 DLR (FC) 1.....5.192
Fazal Khan v. State, 16 DLR (SC) 117.....5.192
Fazl-E-Haq v. State, 13 DLR (SC) 254.....5.178
Fazle Rabbi v. Election Commn., 44 DLR 14.....4.2, 4.3, 4.57, 4.70
Fazlul Haq Chowdhury v. Bangladesh, 30 DLR 144.....5.124, 5.128, 6.33, 6.40
Fazlul Hoque v. State, 26 DLR (AD) 11.....1.19
Fazlul Karim Selim v. Bangladesh, 33 DLR 406.....2.196, 5.52, 5.77
Fazlul Quader Chowdhury v. Abdul Haq, 18 DLR (SC) 69.....1.70, 5.14
5.96, 5.113, 5.115
Fazlul Quader Chowdhury v. Shah Nawaz, 18 DLR (SC) 62.....1.28, 4.10D
Fazlur Rahman Akond v. Bangladesh, 52 DLR (AD) 116.....5.122
Fazlur Rahman Chowdhury v. Bangladesh, 39 DLR 314.....5.39, 5.174, 5.176
Fazlur Rahman v. Agrani Bank, 51 DLR 350.....5.132
Fazlur Rahman v. Ministry of Home, 41 DLR 459.....5.174
FCIC v. Merril, 332 US 380.....5.137
Fedco v. Bilgrami, AIR 1960 SC 415.....2.206
Federal Trade Commn. v. Cement Institute, 333 US 683.....5.69
Ferguson v. Skrupa, 372 US 726.....2.103, 2.104
Fertilizer Corp. Kamgar v. India, AIR 1981 SC 344.....5.84, 5.160
Findlay v. Secy of State, Home Deptt., [1985] AC 318.....5.63C
Fisher v. Minister of Public Safety, [1998] AC 673.....2.154
Fisher v. Minister of Public Safety, [1999] 2 WLR 349.....2.154
Flemming v. Nestor, 363 US 603.....2.137
Food Corp. v. Kamdhenu Cattle Feed, AIR 1993 SC 1601.....2.71, 5.63B
Forkan Ali v. Bangladesh, 2000 BLD 415.....1.66
Forward Construction v. Probhat, AIR 1986 SC 391.....5.150
Fox v. Standard Oil Co., 294 US 79.....2.36

Francis Coralie v. Union Territory, AIR 1981 SC 746.....2.111, 2.112
Francis v. Chief of Police, [1973] 2 All E.R. 251.....2.184
Frank v. Mangnum, 237 US 309.....2.137
Franklin v. Minister T. & C.Planning, [1948] AC 87.....5.69
Franks v. Delaware, 98 Sup. Ct. 2674 (1978).....2.221
Frank Shipping Ltd v. Bangladesh, 2 MLR (AD) 353.....5.165
Freedman v. Maryland, 380 US 51.....2.199
Friends Copr v. Commr of Customs, 3 MLR 281.....5.128
Frome United Brew. v. Bath Justices, [1926] AC 586.....5.66
Frost v. Corporation Com. of Oklahoma, 278 US 515.....2.114
Fuentes v. Shevrin, 407 US 67.....2.101
Fuerst Day Lawson Ltd. v. Jindal Exports, AIR 2001 SC 2293.....5.214
Ful Chand v. Md. Hammad, 34 DLR (AD) 361.....2.231
Furnell v. Whangarei High School Board, [1973] AC 660.....5.62

G

G.D. Karkare v. T.L. Shevde, AIR 1952 Nag 330.....5.113, 5.116
G.M. Jamuna Oil Co. v. Chairman, Labour Court, 2000 BLD (AD) 240.....5.204
G.M. Jamuna Oil Co. v. Golap Rahman, 34 DLR (AD) 166.....5.34
G.M. Loondhkhar v. State, PLD 1957 Lah 497.....2.132
G.M. South Cen. Rly v. Siddhanti, AIR 1974 SC 1755.....5.146
G.N. Railway v. Sunburst, 287 US 358.....1.72
G.S. Gill v. Punjab, AIR 1974 SC 1898.....6.38
G. Sarana v. Lucknow University, AIR 1976 SC 2428.....5.70B
Gadavarman v. India, AIR 1997 SC 1233.....2.111
Gajapati Narayan Deo v. Orissa, AIR 1953 SC 375.....4.29
Gandumogula v. Jagapathiraju, AIR 1967 SC 647.....5.145
Ganesh Oil Mills v. C.I.T., 31 DLR (AD) 56.....5.183
Ganga Pratab v. Allahabad Bank, AIR 1958 SC 293.....5.181
Ganga Sugar Corporation v. U.P., AIR 1980 SC 286.....5.214
Gannysons v. Sonali Bank, 37 DLR (AD) 42.....5.197, 5.209
Garewal v. Punjab, AIR 1959 SC 512.....6.39
Garg v. India, AIR 1981 SC 2138.....2.33, 2.53, 3.37
Garner v. Louisiana, 368 US 157.....5.15
Gautam v. UOI, (1993) 1 SCC 78.....5.63F
Gazi Jashimuddin v. Bangladesh, 50 DLR 31.....2.77
Geduldig v. Aiello, 417 US 484.....2.30
Gem Palace v. India, AIR 1970 Raj 225.....2.52
General Manager v. Rangachari, AIR 1962 SC 36.....2.77, 2.91
General Manager v. Shiddhanti, AIR 1974 SC 1755.....2.84
General Medical Council v. Spackman, [1943] AC 627.....5.55A
Gertz v. Robert Welch, Inc, 418 US 323.....2.191
Ghaira Hayet v. Pakistan, 12 DLR (SC) 271.....6.22
Ghosh v. Joseph, AIR 1963 SC 812.....2.164, 2.171, 2.172, 2.180, 2.185

Ghulam Azam v. Bangladesh, 46 DLR 29 ..... 2.131, 5.122
Ghulam Azam v. Bangladesh, 45 DLR 423 ..... 5.122
Ghulam Hussan v. India, AIR 1973 SC 1138 ..... 5.113
Ghulam Jilani v. West Pakistan 19 DLR (SC) 403 ..... 5.94, 5.98
Ghulam Mohiuddin v. Chief Sett. Commr., 16 DLR (SC) 654 ..... 5.35, 5.120
5.122, 5.151
Ghulam Mostafa v. Pakistan, PLD 1966 SC 268 ..... 5.90
Ghulam Sarwar v. Pakistan, PLD 1962 SC 142 ..... 1.57, 1.60, 6.29
6.31, 6.32, 6.34, 6.40
Ghulam v. State, AIR 1990 J & K 1 ..... 2.195
Ghulam Zamin v. A.B. Khandker, 16 DLR 486 ..... 2.97, 2.109, 2.110
3.31, 4.33, 4.39, 6.20
Ghyas Siddique v. Bangladesh, 43 DLR 179 ..... 5.151
Giaccio v. Pennsylvania, 382 US 399 ..... 2.104
Gian Kaur v. India, AIR 1996 SC 946 ..... 2.111
Gibson v. Berryhill, 411 US 564 ..... 5.68
Gideon v. Wainwright, 372 US 335 ..... 2.120
Giasuddin v. Dhaka MunicipalCorp., 49 DLR 199 ..... 2.111
Glass Chatons v. India, AIR 1961 SC 1514 ..... 2.206, 2.208
Godavari Sugar v. Kopargaon T.S.K.Sabha, AIR 1961 SC 1016 ..... 2.206
Godavarman v. India, AIR 1997 SC 1233 ..... 2.111
Gokaraju v. A.P., AIR 1981 SC 1473 ..... 5.117, 5.118
Golak Nath v. Punjab, AIR 1967 SC 1643 ..... 1.72, 2.4
Golam Ali Shah v. State, 22 DLR (SC) 247 ..... 1.61
Golam Kibria v. Abdul Wadud, 1979 BSCR 313 ..... 5.129
Golam Mowla v. East Pakistan, 15 DLR 125 ..... 5.124
Golam Sabir v. Pan Allotment Committee, 19 DLR 689 ..... 2.109
Goldberg v. Kelly, 397 US 254 ..... 5.52
Gonzalez v. Freeman, 334 US 570 ..... 5.52
Goodman v. Kennedy, 459 Pa 313 ..... 2.36
Goodyear India Ltd v. Haryana, AIR 1990 SC 779 ..... 1.61
Gopal Narain v. U.P., AIR 1964 SC 370 ..... 2.45, 2.55
Gopal v. U.P., AIR 1964 SC 370 ..... 2.55
Gopalan v. India, AIR 1966 SC 816 ..... 5.98
Gopalan v. Madras, AIR 1950 SC 27 ..... 1.48, 1.58, 2.17, 2.98, 2.130, 2.158, 5.15
Gopeswar Prasad v. Bihar, AIR 1951 Pat 570 ..... 2.41
Gopichand v. Delhi Administration, AIR 1959 SC 609 ..... 2.46
Gopinath Ghose v. State, 32 DLR (AD) 177 ..... 6.53
Gora v. U.S., 340 US 857 ..... 2.182
Gore v. U.S. 357 US 386 ..... 2.143
Gorham v. Bishop of Exeter, [1850] 15 QBD 52 ..... 1.62
Goss v. Lopez, 419 US 565 ..... 5.62
Gouse v. Kerala, AIR 1980 SC 271 ..... 4.53
Government and Civil E.O. Comm. v. Windsor, 353 US 364 ..... 5.15

Govinda Menon v. India, AIR 1967 SC 1274 ..... 5.82
Govinda v. Chief Controller, AIR 1967 SC 839 ..... 2.84
Govinda v. M.P., AIR 1975 SC 1378 ..... 2.157, 2.159
Grace Bros. Pty Ltd v. Commonwealth, 72 C.L.R. 269 ..... 4.68
Graddage v. Harringey L.B.C., [1975] 1 WLR 241 ..... 5.49
Grameen Bank Karmachari Union v. Labour A.T., 51 DLR 179 ..... 5.34
Gram Panchayet v. Collector, AIR 1991 SC 1082 ..... 5.148
Great Western Railway v. Bater, [1923] AC 21 ..... 5.40
Green Pharmacy v. Bangladesh, 42 DLR 307 ..... 5.88
Gregg v. Geogia, 428 US 153 ..... 2.154
Griffin v. Illinois, 351 US 12 ..... 1.72
Grihayan Ltd v. Bangladesh, 47 DLR (AD) 12 ..... 5.138, 5.139
Grindlays Bank v. Ind. Tribunal, AIR 1981 SC 606 ..... 5.34
Grindlays Bank v. ITO, AIR 1980 SC 656 ..... 5.169
Grosjean v. American Press Co., 297 US 233 ..... 2.112, 2.196
Grunwick Processing Lab. v. ACAS, [1978] AC 277 ..... 5.49
Guera v. Bapiste, [1995] AC 397 ..... 2.154
Gujrat v. High Court of Gujrat, (1998) 7 SCC 392 ..... 2.134
Gujarat State Fin.Corp. v. Lotus Hotels, AIR 1983 SC 848 ..... 5.137
Gujarat v. Bava, AIR 1980 SC 1144 ..... 2.46
Gujarat v. Dharamdas, AIR 1982 SC 781 ..... 2.46
Gujarat v. Shri Ambica Mills, AIR 1974 SC 1300 ..... 2.19, 2.230
Gujrat v. Umed Bhai, AIR 2001 SC 1109 ..... 6.33
Gulab Singh v. Collector, Furukkabad, AIR 1953 All 585 ..... 5.179
Gulabchand v. Gujarat, AIR 1965 SC 1153 ..... 5.150
Gulf C & S.F.R. Co. v. Ellis, 165 US 150 ..... 2.47
Gulf Colorado Company v. Ellis, 165 US 150 ..... 2.33
Gunapati v. Ajmeer, AIR 1955 SC 188 ..... 2.208
Gunapati v. Nafisul, AIR 1954 SC 636 ..... 2.123, 2.1284.98
Gupta v. J & K, AIR 1982 SC 1579 ..... 5.234A
Gurbachan v. Bombay, AIR 1952 SC 221 ..... 2.58, 2.158, 2.160
Gurdev v. Punjab, AIR 1964 SC 1585 ..... 6.33
Gurucharan v. Madras, AIR 1942 Mad 539 ..... 6.61
Gurusharan Sing v. New Delhi Municipal Corp, AIR 1996 SC 1175 ..... 2.8A, 2.25A
Guruswami Nadar v. Ezhumalai Panchayet, AIR 1968 Mad 271 ..... 4.53
Guruswamy v. Mysore, AIR 1954 SC 592 ..... 5.132, 5.151

H

H.M. Ershad v. Abdul Muqtadir Chowdhury, 53 DLR 569 ..... 4.6A, 4.6B
H.M. Ershad v. Bangladesh, 2001 BLD (AD) 69 ..... 2.1B, 2.156, 5.51
H.M. Ershad v. State, 45 DLR 533 ..... 2.143
H.M. Ershad v. State, 43 DLR (AD) 50 ..... 3.6
H.M. Ershad v. State, 6 BLC (AD) 18 ..... 5.192, 5.199
H.M. Ershad v. Zahedul Islam Khan, 2001 BLD (AD) 142 ..... 4.6

H.P. v. Nurpur Pvt. Bus Operators, AIR 1999 SC 3880 ..... 5.201
H.P. v. Student's Parent, Med.College, AIR 1985 SC 910 ..... 5.160
H.P. v. Umed Ram, AIR 1986 SC 847 ..... 2.111
H.R. Banthia v. India, AIR 1970 SC 1453 ..... 2.47
HFDM De Sila v. Bangladesh, 2 BLC 179 ..... 2.106, 5.55
Habiba Mahmud v. Bangladesh 45 DLR (AD) 89 ..... 2.131, 5.107, 5.109
Habibullah Khan v. S. Azharuddin, 35 DLR (AD) 72 ..... 5.51, 5.146, 5.154, 5.188
Habibullah v. Elec. Commn., 1989 BLD 496 ..... 5.150
Hafiz Md. v. U.P.S.C. Board of Waqf, AIR 1965 All 333 ..... 5.120
Hafiz v. State, AIR 1967 M.P. 257 ..... 5.115
Haji Ahmed v. E. Pakistan, 15 DLR 423 ..... 6.42
Halima Khatun v. Bangladesh, 30 DLR (AD) 207 ..... 1.57, 1.100
Hall & Company v. Shoreham-by-Sea UDC, [1964] 1 WLR 240 ..... 5.72
Hamdard Dawakhana v. India, AIR 1960 SC 554 ..... 2.174, 2.178
Hamidul Huq Chowdhury v. Bangladesh, 33 DLR 381 ..... 1.35, 4.68, 5.34, 5.51
Hamidul Huq Chowdhury v. Bangladesh, 34 DLR 190 ..... 2.29, 2.31, 2.196, 5.129
Hamidullah v. Khurshid Ahmed, PLD 1958 SC 516 ..... 5.186
Hamidur Rahman v. E. Pakistan, 21 DLR 866 ..... 6.15
Hanauer v. Woodruff, (1872) 17 Wallace 570 ..... 1.96
Handlon v. Town of Belleville, 71 A.2d 624 ..... 5.239
Hanif Quraishi v. Bihar, AIR 1958 SC 731 ..... 2.51, 2.211, 2.225
Hannam v. Bradford Corp., [1970] 1 WLR 937 ..... 5.66
Hanover Insurance v. Muralidhar, 10 DLR (SC)136 ..... 5.188
Hans Muller v. Supdt., Presidency Jail, AIR 1955 SC 367 ..... 5.15
Hansmukh v. Gujarat, AIR 1981 SC 28 ..... 2.125
Hanson v. Church Commr., [1977] 3 All E.R. 404 ..... 5.59, 5.71
Hanson v. Radcliffe U.D.C., [1922] 2 Ch. 490 ..... 5.71
Hansraj v. State, AIR 1956 All 641 ..... 2.126
Har Saran Varma v. Chandra Bhan Gupta, AIR 1962 All 301 ..... 5.113
Har Shanker v. Dy. Excise & Tax Commr., AIR 1975 SC 1121 ..... 5.131
Harakchand v. India, AIR 1970 SC 1453 ..... 2.235
Harbans Lal v. Div. Supdt., Central Rly, AIR 1960 All 164 ..... 5.121
Harbans Singh v. U.P., AIR 1982 SC 849 ..... 3.49
Harbans Singh v. U.P., AIR 1991 SC 531 ..... 2.112
Harford Steam Boiler v. Harrison, 301 US 459 ..... 2.26
Hargovind v. Raghukul, AIR 1979 SC 1109 ..... 6.47
Hari Dutt v. H.P., AIR 1980 SC 1426 ..... 5.234A
Hari Khemu v. Deputy Commissioner, AIR 1956 SC 559 ..... 2.158
Hari Kishan v. Maharashtra, AIR 1962 SC 911 ..... 2.125, 2.131
Hari Krishna v. India, AIR 1966 SC 619 ..... 2.44
Hari Singh v. U.P., AIR 1984 SC 1020 ..... 5.122
Hari Vishnu Kamath v. Ahmed Ishaque, AIR 1955 SC 233 ..... 5.63, 5.82, 6.4
Harichand v. Mizo Dist. Council, AIR 1967 SC 829 ..... 2.22
Harihara nanda v. Jailor, AIR 1954 All 601 ..... 2.128

Harisankar Bagla v. M.P., AIR 1954 SC 465 ..... 2.208, 4.34
Harla v. Rajasthan, AIR 1951 SC 467 ..... 3.36, 4.37A
Harmindar Singh v. India, AIR 1986 SC 1527 ..... 2.71, 5.132
Harnam Singh v. R.T.A., AIR 1954 SC 190 ..... 2.36, 2.204
Harper v. Virginia State Bd. of Elections, 383 US 663 ..... 2.44
Harshad Singh v. Gujarat, AIR 1977 SC 710 ..... 5.192
Harunur Rashid v. Secy. Ministry of Jute, 49 DLR 596 ..... 2.139
Hartwell Prescott Singh v. U.P., AIR 1957 SC 886 ..... 6.34
Haryana v. Haryana Transport, AIR 1977 SC 237 ..... 5.118
Haryana v. Karnal Distillery, AIR 1977 SC 781 ..... 5.121
Haryana v. Krishna Rice Mills, AIR 1982 SC 1106 ..... 5.151
Haryana v. Lal Chand, AIR 1984 SC 1326 ..... 6.55
Haryana v. Ram Kumar, (1997) 3 SCC 321 ..... 2.25A
Haryana v. Sangar, AIR 1976 SC 1199 ..... 6.31
Haryana v. Shamser Jang, AIR 1972 SC 1546 ..... 6.21
Haryana v. Subash, AIR 1973 SC 2216 ..... 6.48
Hasan Ali v. Collector Land Customs 10 DLR (WP) 71 ..... 2.59
Hasan Imam Chowdhury v. Bangldesh, 1981 BLD (AD) 283 ..... 5.169
Hashmat Ara v. Administrator of Waqf, 3 BLC 447 ..... 5.128
Hasina Bengum v. East Pak, 24 DLR 6 ..... 5.45
Hasina Karim v. Bangladesh, 44 DLR 366 ..... 5.109
Hasna Mansur v. Secy. Ministry of P.W., 34 DLR (AD) 34 ..... 5.135
Hathising Manufacturing Co. v. India, AIR 1960 SC 923 ..... 2.38, 2.137, 2.204
Hazi Waziullah v. A.D.C. Revenue, 41 DLR (AD) 97 ..... 5.188
Hebbert v. Purchas, (1871) 3 PC 664 ..... 5.206
Hector v. A.G. of Antigua & Barbuda, [1990] 2 All E.R.103 ..... 2.176, 2.194
Helaluddin v. Bangladesh, 45 DLR (AD) 1 ..... 5.51, 5.61, 5.192, 6.70
Hem Chandra v. Speaker, AIR 1956 Cal 378 ..... 4.84
Henry v. Campbell, 133 Ga 882 ..... 2.43
Herman King v. R, [1969] AC 304 ..... 2.221
Herndon v. Lowry, 301 US 242 ..... 2.1042.182
Herring v. Templeman, [1973] 3 All E.R. 569 ..... 5.62
Heydon's Case, (1584) 3 Co Rep 7a 1.60
High Commr. for India v. I.M. Lall, AIR 1948 PC 121 ..... 6.25, 6.40
High Court, Bombay v. Shashikanta, AIR 2000 SC 22 ..... 5.41, 6.40
High Court, Rajasthan v. Ramesh Chand, (1998) 8 SCC 749 ..... 5.41
Hill v. California, 401 US 797 ..... 1.72
Himatlal v. Police Commr., AIR 1973 SC 87 ..... 2.164-166, 5.23
Himmatlal v. M.P., AIR 1954 SC 403 ..... 5.128
Hinds v. The Queen, [1976] 1 All E.R. 353 ..... 1.52, 1.71, 2.235, 5.2, 5.236
Hindu Women's Right to Property, AIR 1941 FC 72 ..... 5.15
Hochtief Gammon v. Orissa, AIR 1975 SC 2226 ..... 5.84
Hodel v. Virginia Surface Mining, 452 US 264 ..... 2.101
Hodge Drive-It-Yourself Co. v. Cincinnati, 284 US 335 ..... 2.32

Hodge v. Queen, LR 9 AC 117 ..... 4.32
Hoffman-La Roche v. Secy. of State, [1975] AC 295 ..... 5.63
Home Tel & Tel Co. v. Los Angels, 211 US 265 ..... 5.15
Homi D. Mistry v. Nafisul Hassan, ILR 1957 Bom 218 ..... 4.86
Hong Kong & Shanghai Banking v. Bhaidas, AIR 1951 Bom 158 ..... 5.81
Hopkins Fed. Saving & Loan Assn. v. Cleary, 296 US 315 ..... 5.15
Horn v. Lockhart, 21 L.Ed.657 ..... 1.96
Hoscot v. Maharashtra, AIR 1978 SC 1548 ..... 2.120
Hoshide v. Crown, 44 CWN 82 ..... 2.218
Hosne Ara v. Court of Settlement, 46 DLR (AD) 9 ..... 5.33
Hossain Ali v. Rezia Khatun, 2 BLC (AD) 93 ..... 6.53
Hossainara v. Bihar, AIR 1979 SC 1360 ..... 2.120, 2.127
Hossainara v. Bihar, AIR 1979 SC 1369 ..... 2.144
Hossainara v. Home Secy, AIR 1979 SC 1377 ..... 2.127
Hotel Metropole Ltd v. Employees Union, PLD 1964 SC 633 ..... 5.34
Hounslow LBC v. Twickenham Garden Dev. Ltd, [1971] Ch. 233 ..... 5.63
House Building & L. Association v. Blaisdell, 290 US 398 ..... 1.69
Howard v. Boddington, [1877] 2 PD 203 ..... 5.49
Howell v. Falmouth Boat Const. [1951] 2 All E.R. 278 ..... 5.137
Hubli Electricity Co. v. Bombay, AIR 1949 PC 136 ..... 5.44
Huddart Parker Pty Ltd v. Moorehead, 8 CLR 330 ..... 5.239
Hughes v. Superior Court of California, 339 US 460 ..... 2.30
Hukum Chand v. India, AIR 1972 SC 2427 ..... 4.40
Humayun Kabir v. State, 28 DLR 259 ..... 5.73, 5.109
Hunter v. New York, 396 NY 2d 186 ..... 2.36
Hussain Baksh v. Settlement Commr., 21 DLR (SC) 456 ..... 5.140, 5.146, 5.153

I

I.R.C. v. Fed. of Self-employed, [1981] 2 All E.R. 93 ..... 5.84, 5.159
I.R.C. v. Frere, [1965] AC 402 ..... 1.62
I.T. Commissioner v. Vazir Sultan, AIR 1959 SC 814 ..... 5.216
I.T.O. v. Damodar, AIR 1969 SC 408 ..... 5.143
I.T.O. v. M/S Seth Brothers, AIR 1970 SC 292 ..... 5.142
Ibrahim v. Emperor, AIR 1914 PC 155 ..... 5.187
Ibrahim v. Regional Transport Authority, AIR 1953 SC 79 ..... 2.205
Idaho Dept. of Employment v. Smith, 434 US 100 ..... 2.53
Idris Ali v. Enamul Huq, 43 DLR (AD) 12 ..... 5.204, 5.205
Idrisur Rahman v. Shahiduddin, 1999 BLD 291 ..... 5.15, 5.113, 5.151, 5.234A
Iftekhar Afzal v. Pubali Bank, 50 DLR 623 ..... 5.177, 5.179
Ikram Khan v. S.T.A. Tribunal, AIR 1976 SC 2333 ..... 5.57
Illinois v. Allen, 397 US 337 ..... 2.150
Illinoi v. Rodriguez, 497 US 177 ..... 2.217
Imam Dockyard & Engr Ind. Ltd. v. RAJUK, 2 BLC 202 ..... 5.88
Imtiaz Ahmed v. Ghulam Ali, 15 DLR (SC) 283 ..... 5.40, 5.41, 5.125

Inayat Khan v. M. Anwar, PLD 1976 SC 354 ..... 1.16
Inayetullah v. M.A. Khan, PLD 1964 SC 126 ..... 5.81
Income Tax Officer v. Devinath, AIR 1968 SC 623 ..... 5.216
Inder Singh v. Rajsthan, AIR 1957 SC 510 ..... 2.38, 4.32
India Thermal Ltd. v. M.P., AIR 2000 SC 1005 ..... 5.132
India v. Akbar, AIR 1961 Mad 486 ..... 6.43
India v. Anglo-Afgan Agencies, AIR 1968 SC 718 ..... 5.137
India v. Balakrisnan, AIR 1975 SC 1498 ..... 6.21
India v. Bhana Mal Gulzari Mal, AIR 1960 SC 475 ..... 2.206, 4.34
India v. City Municipal Council, AIR 1978 SC 1803 ..... 6.65
India v. Cynamide India Ltd, AIR 1987 SC 1802 ..... 5.51
India v. Dhanwanti, (1996) 6 SCC 44 ..... 5.214
India v. Dr. Kohli, AIR 1973 SC 811 ..... 2.78
India v. Era Educational Trust, AIR 2000 SC 1573 ..... 5.166
India v. Ganayutham, AIR 1997 SC 3387 ..... 2.22, 5.80A
India v. Ganesh Das, AIR 2000 SC 1102 ..... 4.37A
India v. Giriraj Sharma, AIR 1994 SC 215 ..... 5.80A
India v. Godfrey Philips, AIR 1986 SC 806 ..... 5.137
India v. Gopal Chandra, AIR 1978 SC 694 ..... 4.10D
India v. Harbans Singh, AIR 1959 Punj 39 ..... 6.61
India v. Hindusthan Aluminium, AIR 1979 SC 1459 ..... 4.40
India v. Hindustan Development Corp., AIR 1994 SC 988 ..... 2.36, 2.71 5.63A, 5.63B
India v. Jagannathan, AIR 1987 SC 537 ..... 5.169
India v. Jyoti Prakash, AIR 1971 SC 1093 ..... 3.14
India v. Kashikar, AIR 1986 SC 431 ..... 2.77
India v. Krisnamurthy, (1989) 4 SCC 689 ..... 4.40
India v. Muneesh Suneja, AIR 2001 SC 854 ..... 5.121
India v. Nanak, AIR 1968 SC 1370 ..... 5.150
India v. Oswald Woollen Mills., AIR 1984 SC 1264 ..... 5.166
India v. P.K. Roy, AIR 1968 SC 850 ..... 5.51
India v. Rallia Ram, AIR 1963 SC 1685 ..... 6.57
India v. S.A. Razzak, AIR 1981 SC 360 ..... 6.33
India v. Sadasiv, AIR 1985 Bom 345 ..... 6.61
India v. Seth, AIR 1977 SC 2378 ..... 6.47
India v. S.L. Abbas, 1993 Labour IC 1311 ..... 2.88A
India v. Subramaniam, AIR 1976 SC 2433 ..... 5.215
India v. Sunil Kumar, AIR 2001 SC 1092 ..... 2.139
India v. T.R. Varma, AIR 1958 SC 882 ..... 6.40
India v. Tulsiram, AIR 1985 SC 1416 ..... 2.107, 6.18, 6.33, 6.44, 6.45
India v. Valliappan, AIR 1999 SC 2526 ..... 2.38
India v. V.J. Kamik, AIR 1970 SC 2092 ..... 2.82
Indian Council of Legal Aid v. Bar Council, AIR 1995 SC 691 ..... 2.41
Indian Express Newspapers v. India, AIR 1986 SC 515 ..... 2.36, 2.178, 2.196

Indira Gandhi v. Rajnarayan, AIR 1975 SC 2299 ..... 1.73, 1.87, 4.57, 4.67
Indra Sawhney v. India, AIR 1993 SC 477 ..... 2.91, 2.92
Indrajit Barua v. Election Commn., AIR 1986 SC 103 ..... 6.4
Infant H(K), In re, [1967] 1 All E.R. 226 ..... 4.50
Inland Navigation v. ITO, 19 DLR 871 ..... 5.124
Insan Ali v. Mir Abdus Salam, 40 DLR (AD) 193 ..... 5.188
Institute of C.A. v. Ratna, AIR 1987 SC 71 ..... 5.62
Interstate Circuit v. Dallas, 387 US 903 ..... 2.199
Inveagh v. Ministry of Housing & Local Govt, [1961] 3 All E R 98 ..... 5.63F
Iqbal v. State, 41 DLR (AD) 111 ..... 5.195
Ishaquddin v. Commandant, Bogra Cantt, 51 DLR (AD) 144 ..... 6.22
Islam Ali Mia v. Amal Chandra, 45 DLR (AD) 27 ..... 5.192

J

J & K v. Ghulam Rasool, AIR 1961 SC 1301 ..... 2.69
J & K v. T.N. Khosa, AIR 1974 SC 1 ..... 2.43, 2.82, 6.20
J & K v. Zakki, AIR 1992 SC 1546 ..... 5.89
J.K. Chowdhury v. R.K. Dutta, AIR 1958 SC 722 ..... 5.34
J.M. Desai v. Roshan Kumar, AIR 1976 SC 578 ..... 5.156
J.N. Mishra v. Bihar, AIR 1971 SC 1318 ..... 2.78
J.R.G. Manufacturing Assn. v. India, AIR 1970 SC 1589 ..... 4.35
Jackson v. Indiana, 406 US 715 ..... 2.39
Jaehne v. New York, 128 US 189 ..... 2.136
Jafor v. UOI, (1994) Supp (2) SCC 1 ..... 5.63E
Jagadish v. Chancellor, Bihar Univ., AIR 1968 SC 353 ..... 2.38, 2.58, 5.15
Jagan Singh v. Appellate Tribunal, AIR 1980 Raj 1 ..... 5.119
Jagmohan v. U.P., AIR 1973 SC 947 ..... 2.117
Jahan Khan v. State, PLD 1959 SC 488 ..... 5.192
Jahanara Begum v. State, 46 DLR 107 ..... 5.109
Jaichand v. W.B., AIR 1967 SC 483 ..... 5.73
Jaila Singh v. Rajasthan, AIR 1975 SC 1436 ..... 2.38
Jain Brothers v. India, AIR 1970 SC 778 ..... 2.38
Jaisinghani v. India, AIR 1967 SC 1427 ..... 1.82
Jalan Trading Co. v. Mill Mazdoor, AIR 1967 SC 691 ..... 2.38, 4.34
Jamalpur Arya Samaj v. Daulat Ram, AIR 1954 Pat 294 ..... 5.113
Jamal Shah v. Election Tribunal, 18 DLR (SC) 1 ..... 2.96, 4.10, 5.13
5.26, 5.32, 5.42, 5.88, 5.125
James Finlay v. Chairman, Labour Court, 33 DLR (AD) 58 ..... 5.188
James v. Commonwealth of Australia, [1936] AC 578 ..... 1.51, 1.61, 1.69
James v. Minister of H.L.G., [1968] AC 409 ..... 5.48
Jamil Huq v. Bangladesh, 34 DLR (AD) 125 ..5.16, 5.34, 5.73, 5.103, 5.174, 5.176
Jamir Ali v. Secy. Ministry of Land, 52 DLR 125 ..... 5.146
Jamish v. Morlet, 86 A 2d. 96 ..... 2.229
Jamuna Oil Co. v. S.K. Dey, 44 DLR (AD) 104 ..... 5.188, 6.15, 6.40

Jan Mohammad. v. Gujarat, AIR 1966 SC 385 ..... 2.157, 2.206
Janaki v. J & K, AIR 1973 SC 930 ..... 1.72, 2.79
Janapriya Rice Mills v. Bangladesh, 1997 BLD 63 ..... 2.96
Janardhan v. Hydrabad, AIR 1951 SC 217 ..... 5.103
Janardhan v. State, AIR 1951 SC 124 ..... 2.127
Jatish Chandra v. Hari Sadhan, AIR 1956 Cal 433 ..... 4.90
Jatish Chandra v. Hari Sadhan. AIR 1961 SC 613 ..... 4.80
Jatiya Party v. Election Commission, 2000 BLD (AD) 10 ..... 6.7A
Jatiya Party v. Mutassim Billah, 2000 BLD (AD) 69 ..... 6.8
Jawala Ram v. Pepsu, AIR 1962 SC 1246 ..... 2.137
Jawand Singh v. Om Prakash, AIR 1959 Punj 632 ..... 5.228
Jayantilal Amritlal v. F.N. Rana, AIR 1964 SC 648 ..... 3.28
Jayendra Thakur v. India, AIR 1999 SC 3517 ..... 2.131
Jeff v. New Zealand Dairy Bd.,[1966] 3 All E.R. 863 ..... 5.58
Jeffers v. Whitley (MD NC) 197 F Supp 84 ..... 5.15
Jeshingbai v. Emperor, AIR 1950 Bom 363 ..... 2.158
Jhari Sohani v. East Pakistan, 15 DLR 65 ..... 5.91
Jia Lal v. Delhi Administration, AIR 1962 SC 1781 ..... 2.45
Jiban Kumar v. Abdul Hye, 48 DLR 569 ..... 5.171
Jibendra Kishore v. East Pakistan, 9 DLR (SC) 21 ..... 2.5, 2.7, 2.26
2.27, 2.59, 2.61, 2.62, 2.200, 2.201, 2.209, 2.211
Jijabai v. Pathan Khan, AIR 1971 SC 315 ..... 5.179
Jiminez v. Weinberger, 417 US 628 ..... 2.39
Jit Ram v. Haryana, AIR 1980 SC 1285 ..... 5.137
Jobon Nahar v. Bangladesh, 49 DLR 108 ..... 5.25, 5.55, 5.123
Jogesh Chandra v. Bangladesh, 30 DLR 219 ..... 5.13
John v. Rees, [1970] Ch 345 ..... 5.55A
Joint Anti-Fascist Refugee. v. McGrath, 341 US 123 ..... 5.53
Jolly George v. Bank of Cochin, AIR 1980 SC 470 ..... 2.98
Jones v. James, (1850) 19 LJQB 257 ..... 5.35
Jones v. Portland, 245 US 217 ..... 2.207
Jordan v. American Eagle Fire Ins. Co., 169 F.2d 281 ..... 5.62
Jordan v. Massachusetts, 225 US 167 ..... 5.51
Joseph Kuruvilla v. Reserve Bank, AIR 1962 SC 1371 ..... 2.22, 2.47, 2.48, 2.206
Joseph v. Kerala, AIR 1965 SC 1514 ..... 5.150
Joseph v. Sukumaran, AIR 1987 Ker 140 ..... 5.115
Joseph v. Wilson, 343 US 495 ..... 2.104, 2.199
Joseph Vilangandoa v. Executive Engr., AIR 1978 SC 930 ..... 2.71, 5.56
Joshi v. M.B., AIR 1955 SC 334 ..... 2.72
Joti Timber Mart v. Calicut Mun., AIR 1970 SC 264 ..... 5.15
Joynal Abedin v. Bangladesh, 30 DLR 371 ..... 1.100
Joynal Abedin v. Mafizur Rahman, 44 DLR (AD) 162 ..... 5.189
Jubilee Syndicate v. Collector of Customs, 20 DLR 300 ..... 5.124, 5.128
Junnur Rahman v. BSRS, 51 DLR (AD) 166 ..... 5.235

Julius v. Lord Bishop of Oxford, [1880] 5 App. Cas. 214 ..... 5.90
Jurney v. MacCracken, 294 US 125 ..... 4.94
Jyoti Prasad v. Administrator of Delhi, AIR 1961 SC 1602 ..... 2.56
Jyotirmoy Bhattacharjee v. Secy. W.B., AIR 1952 Cal 562 ..... 5.228

K

K.A. Rouf v. Bangladesh, 1996 BLD 607 ..... 5.88
K.C. Arora v. Haryana, AIR 1987 SC 1858 ..... 2.85
K. Joseph v. Narayanan, AIR 1964 SC 1552 ..... 2.152
K.L. Gauba v. Chief Justice, AIR 1942 FC 1 ..... 5.196
K.P. Chowdhury v. M.P., AIR 1967 SC 203 ..... 6.56
K.S. Employees Union v. G.M. Khulna Shipyard, 30 DLR 368 ..... 5.157
K.T. Moopil Nair v. Kerala, AIR 1961 SC 552 ..... 2.54
Kadra Pahadiya v. Bihar, AIR 1982 SC 1167 ..... 2.145
Kadregula Srinivasha v. A.P., AIR 1960 A.P. 343 ..... 5.122
Kahaosan v. Simirei, AIR 1961 Manipur 1 ..... 2.133
Kalam v. Bangladesh, 2001 BLD 446 ..... 2.111
Kalawati v. H.P., AIR 1953 SC 131 ..... 2.142, 2.153
Kalika Prasad v. Addl. Commr., AIR 1956 All 103 ..... 5.121
Kalipada v. India, AIR 1963 SC 134 ..... 5.49
Kallolimath v. Mysore, AIR 1977 SC 1980 ..... 5.119
Kamala Gaind v. Punjab, 1990 Supp SCC 800 ..... 2.26
Kamaladevi Chattopadhya v. Punjab, AIR 1984 SC 1895 ..... 5.102
Kameswar v. Bihar, AIR 1962 SC 1166 ..... 2.164, 2.175
Kanda v. Government of Malaya, [1962] AC 322 ..... 5.54, 5.60
Kandaswamy v. T.N., AIR 1985 SC 257 ..... 2.56
Kangshari Haldar v. W.B., AIR 1960 SC 457 ..... 2.45
Kanhaiyalal v. Arun Dattatraya, AIR 2000 SC 3681 ..... 1.57
Kanhaiyalal v. Indumati, AIR 1958 SC 444 ..... 1.60, 2.137
Kannayan v. I.T.O., AIR 1968 SC 637 ..... 1.64
Kansas v. Colorado, 206 US 46 ..... 5.239
Kanta Katuria v. Manak chand, AIR 1970 SC 694 ..... 4.7
Kapur Singh v. India, AIR 1960 SC 493 ..... 5.58, 6.40
Kapurchand v. Tax Recovery Officer, AIR 1969 SC 662 ..... 5.103
Karbhari Bhimaji v. Shankar Rao, AIR 1975 SC 575 ..... 4.7
KARIKA v. Secy, LGRD, 45 DLR 324 ..... 5.155
Karnataka v. Suvarna Malini, AIR 2001 SC 606 ..... 2.28
Karnataka P.S.C. v. Vijaya Shanker, AIR 1992 SC 952 ..... 5.53
Karnataka v. D.P. Sharma, AIR 1975 SC 594 ..... 2.54
Kartar Singh v. Piara Ram, AIR 1976 SC 957 ..... 5.151
Kartar Singh v. Punjab, AIR 1956 SC 541 ..... 2.188, 2.91
Kashinath G. Jalmi v. The Speaker, AIR 1993 SC 1873 ..... 5.122
Kasinath v. Bombay, AIR 1954 Bom 41 ..... 5.115
Kasturi v. M.D. State Bank of India, AIR 1999 SC 81 ..... 2.29A

Kasturi Lal Ralia Ram v. U.P., AIR 1965 SC 1039 ..... 6.61
Kasturi Lal v. J & K, AIR 1980 SC 1992 ..... 1.78, 2.68, 2.71
Kathi Raning Rawat v. Saurashtra, AIR 1952 SC 123 ..... 2.32 2.56, 2.68
Katra Education Society v. U.P., AIR 1966 SC 1307 ..... 5.143
Kaushal v. India, AIR 1978 SC 1457 ..... 2.22
Kaushalya Debi v. Bachitar Singh, AIR 1960 SC 1168 ..... 5.40, 5.41
Kavalin v. White, 44 F.2d 49 ..... 3.48
Kawananakoa v. Polybank, 205 US 349, 353 ..... 6.62
Kazi Abdul Wahab c. Bangladsh, 31 DLR 332 ..... 5.55
Kazi Aftabuddin v. Bangladesh, 49 DLR 422 ..... 3.13
Kazi Mukhlesur Rahman v. Bangladesh, 26 DLR (AD) 44 ..... 1.22, 2.156 5.15, 5.152, 5.157, 5.184, 6.54
Kazi Mukhlesur Rahman v. Secy. Ministry of Law, 2 BLC 286 ..... 5.55, 5.87
Kedar Nath Bajoria v. W.B., AIR 1953 SC 404 ..... 2.56, 2.138
Kedar Nath v. Punjab, AIR 1979 SC 220 ..... 3.13
Kedarnath v. Bihar, AIR 1962 SC 955 ..... 2.186
Kehar Singh v. India, AIR 1989 SC 653 ..... 3.45, 3.47, 3.49
Kent v. Dulles, 357 US 116 ..... 2.156, 2.159, 2.160, 4.31
Kerala Education Bill, AIR 1958 SC 956 ..... 1.79, 2.22, 2.30, 5.213
Kerala Hotel & Restaurant v. Kerala, AIR 1990 SC 913 ..... 1.75, 2.27, 2.44, 2.54
Kerala State Electricity Bd/ v. Kurien, AIR 2000 SC 2573 ..... 5.132
Kerala v. Gwalior Silk Mfg. (Wvg) Co., AIR 1973 SC 2734 ..... 5.139
Kerala v. Haji Kutty, AIR 1969 SC 378 ..... 2.54
Kerala v. Joseph, AIR 1958 SC 296 ..... 4.53
Kerala v. N.M. Thomas, AIR 1976 SC 490 ..... 2.24
Kerala v. Roshana, AIR 1979 SC 765 ..... 5.169
Keramat Ali v. Bangladesh, 50 DLR 372 ..... 5.15, 5.40
Keshav Singh v. Speaker, Leg. Assembly, AIR 1965 All 349 ..... 4.92, 4.98
Keshav Talpade v. Emperor, AIR 1943 FC 72 ..... 5.201
Keshavan v. Bombay, AIR 1951 SC 128 ..... 1.68, 2.230, 2.234, 5.15
Keshavananda Bharati v. Kerala, AIR 1973 SC 1461 ..... 2.4, 2.226, 4.57, 4.67
Keyishian v. Board of Regents, 385 US 589 ..... 2.172
Khair Ahmed v. Ministry of Home, 40 DLR 353 ..... 3.13, 5.99, 5.106-5.108
Khalilur Rahman v. Bangladesh, 2000 BLD (AD) 152 ..... 5.129
Khambalia Municipality v. Gujarat, AIR 1967 SC 1048 ..... 4.34
Khan Bahadur v. Shujauddin, 13 DLR (SC) 18 ..... 5.169
Khandige v. Agricultural I.T.O., AIR 1963 SC 591 ..... 2.54
Kh. Modarresh Elahi v. Bangladesh, 2001 BLD 352 ..... 2.163, 2.164, 2.175
Khandker Ehtesham v. State, 33 DLR (AD) 154 ..... 1.100, 5.13, 5.34, 5.73, 5.176
Khandoker Mostaque v. Bangladesh, 34 DLR (AD) 222 ..... 5.13, 5.34, 5.67 5.73, 5.143, 5.176
Kharak Singh v. U.P., AIR 1963 SC 1295 ..... 2.112, 2.157, 2.218
Khare v. Delhi Adm., AIR 1950 SC 211 ..... 2.158, 2.159
Khatri v. Bihar, AIR 1981 SC 928 ..... 2.120, 5.20

Khawaja G. Akbar v. Madarbari Con. Court, 20 DLR 160 ..... 5.128
Khizar Hayat v. Zainab Begum, PLD 1967 SC 402 ..... 5.42, 5.46
Khodeja Begum v. Sadeq sikdar, 50 DLR 181 ..... 2.40
Khorshed Alam v. Ministry of Commerce, 47 DLR 209 ..... 5.171
Khurai Municipality v. Kamal Kumar, AIR 1965 SC 1321 ..... 4.54
Khyerbari Tea Company v. Assam, AIR 1964 SC 925 ..... 2.54, 2.60, 5.24
Kihota Hollohon v. Zachilhu, AIR 1993 SC 412 ..... 2.235, 4.10
King Emperor v. Banwarilal, 72 I.A. 57 ..... 4.32
Kingsley Pictures Corporation v. Regents, 360 US 684 ..... 2.199
Kirit Kumar v. India, AIR 1981 SC 1621 ..... 5.150
Kishan Singh v. Rajasthan, AIR 1955 SC 795 ..... 2.45
Kishanmurthy v. A.P., AIR 1961 AP 283 ..... 6.61
Kleindiest v. Mandel, 408 US 753,763 ..... 2.175
Kochuni v. Madras, AIR 1959 SC 725 ..... 5.18, 5.19, 5.23, 5.149, 5.152
Kochuni v. Madras, AIR 1960 SC 1080 ..... 5.145
Konappa v. Viswanath, AIR 1969 SC 447 ..... 4.8
Kolender v. Lawson, 461 US 352 ..... 2.104
Korban Ali v. Abdul Jalil, 44 DLR (AD) 80 ..... 5.189
Korematsu v. U.S., 323 US 214 ..... 2.158
Kovacs v. Cooper, 336 US 77 ..... 2.183
Kraipak v. India, AIR 1970 SC 150 ..... 5.31, 5.51, 5.65, 5.67
Krishna Chandra v. India, AIR 1974 SC 1589 ..... 5.60, 5.61
Krishna Kumar v. India, AIR 1990 SC 1782 ..... 5.214
Krisna Ballabh v. S.D.O., AIR 1985 SC 1746 ..... 6.4
Krisna Gopal v. Bangladesh, 31 DLR (AD) 145 ..... 5.109
Krisnan Kakkanath v. Kerala, AIR 1997 SC 128 ..... 2.20, 2.70
Krisna v. Divisional Asstt. Engineer, AIR 1979 SC 1912 ..... 6.39
Krisna v. Mathura, AIR 1982 SC 686 ..... 5.216
Kruse v. Johnson, [1898] 2 QB 91 ..... 4.40, 5.72
Kudrat-E-Elahi v. Bangladesh, 44 DLR (AD) 319 ..... 1.54, 1.77, 1.78 1.81, 1.90, 3.34, 3.50-3.52, 4.28, 4.29, 4.66, 5.14, 5.15, 5.151
Kulchinder Singh v. Hardayal Sing, AIR 1976 SC 2216 ..... 5.132
Kulwant v. Gurdial Singh Mama, AIR 2001 SC 1273 ..... 5.214
Kumaon Mondol v. Girija Shakar, AIR 2001 SC 24 ..... 5.64
Kumudini Welfare Trust v. East Pakistan, PLD 1963 Dac 136 ..... 5.128
Kunja Krisna v. Speaker, AIR 1964 Kerala 194 ..... 4.10D
Kunda Kadam v. Soman, AIR 1980 SC 881 ..... 5.152
Kunnahat v. Kerala, AIR 1961 SC 552 ..... 2.54
Kuruma v. R., [1955] AC 197 ..... 2.221
Kushtia Co-operative v. Mujibur Rahman, 44 DLR (AD) 219 ..... 5.227

L

L.G. Chaudhari v. Secy., L.S.G. Deptt., AIR 1980 SC 383 ..... 3.13
L.I.C. v. Escorts Ltd, AIR 1986 SC 1370 ..... 2.68

L.N. Mishra Institute v. Bihar, AIR 1988 SC 1136 ..... 2.30, 2.169
Lachman Das v. Bombay, AIR 1952 SC 235 ..... 2.234
Lachman Dass v. Punjab AIR 1963 SC 222 ..... 2.46
Lake City v. US, 130 US 662 ..... 1.57
Lake Shore & M.S.R. Co. v. Smith, 173 US 684 ..... 2.48
Lake v. Bennett, [1970] 1 QB 663 ..... 5.43
Lakhanpal v. A.N. Roy, AIR 1975 Del 66 ..... 5.116
Lakhi Narayan Das v. Bihar, AIR 1950 FC 59 ..... 3.325.84
Lakhi Ram v. Haryana, AIR 1981 SC 1655 ..... 5.84
Laksmi Shankar v. State, AIR 1979 SC 451 ..... 5.214
Lalima Begum v. Court of Settlement, 49 DLR 325 ..... 5.41
Lal Mia v. State, 41 DLR (AD) 1 ..... 5.192
Lalit Mohan v. India, AIR 1972 SC 995 ..... 6.21
Laliteswar v. Bateswar, AIR 1966 SC 580 ..... 4.8
Lalkhani v. Malkapur Municipality, AIR 1970 SC 1002 ..... 5.215
Lavender & Sons v. Minister, Housing, [1970] 3 All E.R.871 ..... 5.76
Laxmi Khandsari v. U. P., AIR 1981 SC 873 ..... 2.21, 2.235
Lazarus Estates Ltd v. Beasley, [1956] 1 QB 702 ..... 5.73
Leary v. N.U.V.B., [1971] Ch. 34 ..... 5.62
Leeson v. G.C. Med. Edn. Registration, [1889] 43 Ch. 366 ..... 5.65
Lefkowitz v. Cunningham, 431 US 801 ..... 2.152
Legard v. Bull, [1886] 11 AC 648 ..... 5.35
Lehnhausen v. Lake Shore Auto Parts Co., 410 US 356 ..... 2.37
Leo Roy Frey v. Supdt., Dist. Jail, AIR 1958 SC 119 ..... 2.143
Lever Finance v. Westminster LBC,[1970] 3 All E.R. 496 ..... 5.137
Liaquat Hossain v. Pakistan,PLD 1999 SC 504 ..... 2.111A
Life Insurance Corp v. Manubhai, AIR 1993 SC 171 ..... 1.61, 2.174, 2.193
Lilavati v. Bombay, AIR 1957 SC 521 ..... 5.43, 5.44
Lily Thomas v. India, AIR 2000 SC 1650 ..... 5.204
Lincoln Union v. Northwestern Co., 335 US 525 ..... 2.206
Lindsey v. Washington, 301 US 397 ..... 2.136
Linehan v. Waterfront Company 347 US 439 ..... 2.43
Lingappa v. Maharashtra, AIR 1985 SC 389 ..... 1.75
Litterell v. USA (No.2), [1994] 2 All E.R. 203 ..... 6.59A
Liversidge v. Anderson, [1942] AC 206 ..... 5.104
Livingstone v. Westminister Corp., [1940] 2 KB 109 ..... 5.43
Liyanage v. R, [1967] AC 259 ..... 1.52, 1.55, 5.242
Lloyd v. McMohan, [1987] 1 All E.R. 1118 ..... 5.58, 5.62, 5.63B
Local Government Board v. Arlidge, [1915] AC 120 ..... 5.58
Lochner v. New York, 198 US 45 ..... 2.103
London & Clydeside Est. v. Aberdeen DC, [1980] 1 WLR 182 ..... 5.47
London County Council v. A.G., [1905] AC 165 ..... 5.34
London Passenger Trans. Bd. v. Sumner, (1935) 154 LT 108 ..... 4.40
Londoner v. Denver, 210 US 373 ..... 5.51

Los Angeles v. Los Angeles Gas Corp., 251 US 32 ..... 2.114
Louisiana ex rel. Gremillon v. NAACP, 366 US 293 ..... 2.172
Lovell v. Griffin, 303 US 444 ..... 2.177, 2.179, 2.193
Lowe v. Darling, [1906] 2 KB 772 ..... 1.62
Lt. Col. Abdul Mannan v. Bangladesh, 1981 BLD 78 ..... 2.71
Lt. Col. Bhattacharya v. State, 16 DLR (SC) 442 ..... 5.103
Lubin v. Panish, 415 US 709 ..... 2.44
Ludwig v. Massachusetts, 427 US 618 ..... 2.14442
Luis K. Ligett Co. v. Lee, 288 US 517 ..... 2.49
Luke v. I.R.C., [1963] AC 557 ..... 1.48
Lutfu Mia v. Bangladesh, 1981 BLD (AD) 105 ..... 5.75, 5.132
Lutfunnessa v. Bangladesh, 42 DLR (AD) 86 ..... 5.124
Lutfur Rahman v. Div. Mechanical Engr, 51 DLR 133 ..... 1.103
Lutfur Rahman v. Election Commn., 27 DLR 278 ..... 1.70, 5.165, 5.167
Lutfur Rahman v. Golam Ahmed, 39 DLR (AD) 243 ..... 5.191
Luther v. Borden, 12 L.Ed 581 ..... 5.16
Lynch v. U.S., 292 US 571 ..... 2.114

M

M.A. Awal v. Ehtesham Hydar, 28 DLR 285 ..... 5.228
M.A. Faiz v. Bangladesh, 1978 BSCR 359 ..... 5.227, 5.229 ., 5.231
M.A. Hai v. T.C.B., 1988 BLD 228 ..... 5.138
M.A. Hai v. T.C.B., 32 DLR (AD) 46 ..... 5.59, 6.40
M.A. Hashem v. Banglaesh, 1 BLC 5 ..... 5.105
M.A. Rahman v. A.P., AIR 1961 SC 1471 ..... 2.206
M.A. Rashid v. Bangladesh, 33 DLR 366 ..... 6.51
M.A. Salam v. Bangladesh, 47 DLR 280 ..... 2.215
M.A. Zahed v. Moinuddin, 28 DLR (AD) 165 ..... 5.227
M.B. Cotton Association Ltd v. India, AIR 1954 SC 634 ..... 2.38
M.B. Rahman v. D.C.T., 39 DLR 33 ..... 5.123
M.D. BMTF v. Chairman, L.C., 44 DLR (AD) 272 ..... 5.41
M.D. Rupali Bank v. Lab.Court, 45 DLR 397 ..... 5.119
M.D. WASA v. Superior Builders & Engrs, 51 DLR (AD) 565.63A, 5.133, 5.134A
M.H. Khandker v. A.W. Qazilbash, 20 DLR 945 ..... 5.228
M. Hossain v. K.F. Industries, 36 DLR (AD) 102 ..... 5.222
M.K. Achakzai v. Pakistan, PLD 1997 SC 426 ..... 1.95, 1.96, 5.17
M.M. Pathak v. India, AIR 1978 SC 803 ..... 5.15
M.M. Shahidur Rahman v. Bangladesh, 46 DLR 187 ..... 5.27
M. Match Works v. Assistant Collector, AIR 1974 SC 497 ..... 2.55
M. Muzaffaruddin v. Chief S & R. Commr., 1968 SCMR 1136 ..... 5.131
M. Noman v. D.I.T., 16 DLR 537 ..... 5.145
M.P. Oil Extraction v. M.P., AIR 1998 SC 145 ..... 2.45, 2.71, 5.63A
M.P. Sugar Mills v. U.P., AIR 1979 SC 621 ..... 5.137, 5.139
M.P. v. Baldeo Prasad, AIR 1961 SC 293 ..... 2.22, 2.159

M.P. v. Bhailal Bhai, AIR 1964 SC 1006 ..... 5.1225.170
M.P. v. Bharat Singh, AIR 1967 SC 1170 ..... 2.161, 2.230, 3.31
M.P. v. Bhopal Sugar Industries, AIR 1964 SC 1179 ..... 2.45
M.P. v. Chintamon, AIR 1961 SC 1623 ..... 5.60, 6.40
M.P. v. Mandawar, AIR 1954 SC 493 ..... 6.21
M.P. v. Nandalal, AIR 1987 SC 251 ..... 2.26
M.P. v. Ram Naresh, (1970) 3 SCC 173 ..... 6.39
M.P. v. Ranojirao, AIR 1968 SC 1053 ..... 2.114
M.P. v. Shobharam, AIR 1966 SC 1910 ..... 2.126
M.P. v. Veereswar, AIR 1957 SC 592 ..... 2.142, 2.143
M.S. Jain v. Haryana, AIR 1977 SC 276 ..... 5.84
M.S. Sharma v. Sinha, AIR 1959 SC 395 ..... 4.98
M.S. Sharma v. Sinha, AIR 1960 SC 1186 ..... 4.84
M.Y. Baig v. R.T.A., PLD 1965 Dac 33 ..... 5.34
Macleod v. A.G. for N.S.W., (1891) A.C. 455 ..... 5.15
Madar Chandra v. State, 44 DLR (AD) 151 ..... 5.195
Madhav Rao Scindia v. India, 1971 SC 530 ..... 5.16
Madhav v. Mysore, AIR 1962 SC 8 ..... 6.38
Madho Singh v. James Skinner, AIR 1942 Lah 243 ..... 5.174
Madhu Limaye, AIR 1969 SC 1014 ..... 2.128, 5.103
Madhu Limaye v. State, AIR 1959 Punj 506 ..... 2.125
Madhu Limaye v. S.D.M., Monghyr, AIR 1971 SC 2486 ..... 2.164, 2.197
Madhu Limaye v. Ved Murti, AIR 1971 SC 2481 ..... 5.23
Madhubhai Gandhi v. India, AIR 1961 SC 21 ..... 5.15
Madras v. Champakam Dorairajan, AIR 1951 SC 226 ..... 1.79, 2.73
Madras v. Dunkerley & Co., AIR 1958 SC 560 ..... 1.69
Madras v. G. Sundaram, AIR 1965 SC 1103 ..... 5.40
Madras v. V.G. Row, AIR 1952 SC 196 ..... 2.21, 2.22, 2.24, 2.171, 2.172
Madzimbamuto v. Ladner-Burke, [1968] 3 All E.R. 561 ..... 1.93, 1.96
1.97, 5.16, 6.64
Mafatlal Industries Ltd. V. India, (1997) 5 SCC 536 ..... 5.170
Maganbhai v. India, AIR 1969 SC 783 ..... 5.23
Maganlal v. Greater Bombay Municipality, AIR 1974 SC 2009 ..... 2.46, 2.57
Mahabir Jute Mills v. Saxena, AIR 1975 SC 2057 ..... 5.63E
Mahapatra v. Orissa, AIR 1984 SC 1572 ..... 5.70B
Maharaj v. A.G. of Trininad, [1978] 2 All E.R. 670 ..... 5.20
Maharana Jaybhantsinghji v. Gujarat, AIR 1962 SC 821 ..... 4.28
Maharashtra State Bd. v. Paritosh, AIR 1984 SC 1543 ..... 2.70
Maharashtra v. Champalal, AIR 1981 SC 1675 ..... 5.193
Maharashtra v. H.N. Rao, AIR 1970 SC 1157 ..... 2.21
Maharashtra v. Himmatbhai, AIR 1970 SC 1157 ..... 2.206
Maharashtra v. Joshi, AIR 1969 SC 1302 ..... 6.40
Maharashtra v. Kamal, AIR 1985 SC 119 ..... 2.22
Maharashtra v. Madhukar, AIR 1991 SC 207 ..... 2.112

Maharashtra v. Prabhakar, AIR 1966 SC 424 ..... 2.112, 2.193
Maharashtra v. Ravikant, [1991] 2 SCC 373 ..... 5.20
Mahboob Anam v. East Pakistan, PLD 1959 Dac 774 ..... 5.109
Mahboob Rabbani v. West Pakistan, PLD 1963 Lah 53 ..... 5.88
Mahboobuddin Ahmed v. Bangladesh, 50 DLR 417 ..... 1.70, 4.6A, 6.4A
Mahbubur Rahman Sikder v. Mujibur Sikder, 37 DLR(AD) 145 ..... 5.201, 5.203, 5.227
Mahendra v. U.P., AIR 1963 SC 1019 ..... 2.230, 2.234
Mahesh Kumar v. Nagaland, (1997) 8 SCC 176 ..... 5.219
Mahesh Prasad v. U.P., AIR 1955 SC 70 ..... 5.192, 5.219, 6.39
Mahesh v. State, AIR 1991 SC 1108 ..... 5.192
Mahindra v. Punjab, AIR 1999 SC 211 ..... 2.143
Mahler v. Eby, 264 US 32 ..... 2.137
Mahmudul Haq v. Md. Hedayetullah, 48 DLR (AD) 128 ..... 5.123, 6.4, 6.8
Mahmudul Haque v. Shamsul Alam, 36 DLR(AD) 179 ..... 5.35
Mahmudun Nabi v. Mafizur Rahman, 42 DLR (AD) 120 ..... 4.8
Mahmudur Rahman v. State, 48 DLR 94 ..... 5.122
Mahtabuddin v Principal Secy., 42 DLR 1 ..... 1.102
Maj. Akhtaruzzaman (Retd) v. Bangladesh, (Unreported) 4.71, 6.59A
Maj. Gen. Moinul Hossain v. Bangladesh, 50 DLR 370 ..... 2.223, 6.40
Major Hafizur Rahman v. Bangladesh, 29 DLR 34 ..... 5.174, 6.18, 6.18A, 6.22
Makhan Singh v. Punjab, AIR 1964 SC 381 ..... 4.33, 4.39
Maksuda Begum v. Secy. Ministry of Home Affairs, 52 DLR 174 ..... 5.107
Malkani v. Maharashtra AIR 1973 SC 157 ..... 2.221
Malkarjun v. Narahari, 27 I.A. 216 ..... 5.37
Malleshappa Hanamappa v. Myshore, AIR 1961 Mys 88 ..... 6.18
Malloy v. Hogan, 378 US 1 ..... 2.152
Malone v. Metropolitan Police Commissioner, [1979] Ch 344, ... 2.1, 2.217, 2.220
Malone v. United Kingdom, [1984] 7 EHRR 14 ..... 2.217
Malpe Viswanath v. Maharashtra, (1998) 2 SCC 1 ..... 2.24, 2.105
Man. Member, Nirmal Ind. v. Naseem, AIR 1967 A.P. 370 ..... 5.128
Manager, Jute Plastic Plant v. Labour Court, 47 DLR 182 ..... 5.41
Managing Director, Contiforms v. Labour App. Tribunal, 50 DLR 476 ..... 5.41
Manak Lal v. Dr. Prem Chand, AIR 1957 SC 425 ..... 5.70B, 5.67, 5.68
Maneesh Dixit v. Rajasthan, AIR 2001 SC 93 ..... 5.51
Maneka Gandhi v. India, AIR 1978 SC 597 ..... 1.58, 2.2, 2.11, 2.17, 2.18 2.65, 2.98, 2.106, 2.107, 2.156, 2.174, 5.53, 5.55, 5.75
Maneklal v. Makwana, AIR 1967 SC 1373 ..... 2.22
Manganese (Ore) v. Chandilal, AIR 1991 SC 520 ..... 5.201
Mangilal v. App. Tribunal, AIR 1957 Raj 167 ..... 5.120
Manjurul Haq v. Bangladesh, 44 DLR 239 ..... 5.171
Manna Lal v. Collector of Jhalawar, AIR 1961 SC 828 ..... 2.46
Mannalal v. Assam, AIR 1962 SC 386 ..... 2.68
Manohar Lal v. Punjab, AIR 1961 SC 418 ..... 2.206

Mansur Ali v. Ardhendu, PLD 1969 SC 37 ..... 3.44
Mansur Ali v. Janata Bank, 1991 BLD 23 ..... 5.235
Mansur v. Ministry of Home, 42 DLR 272 ..... 5.105, 5.107, 5.108
Mansur Rahman v. East Pakistan, 14 DLR 604 ..... 5.128
Manzoor Hasan v. Zohra Bibi, PLD 1990 SC 924 ..... 5.204
Manzur Hassan v. S.M. Zaman, AIR 1925 PC 36 ..... 2.164
Manzur Kader v. Bangladesh, 49 DLR 237 ..... 5.124
Mapp v. Ohio, 367 US 643 ..... 2.221
Maqbul Ahmed v. Ahmed Impex, 1996 BLD (AD) 133 ..... 5.183
Maqbool v. Bombay, AIR 1953 SC 325 ..... 2.141
Maradana Mosque v. Mahmud, [1966] 1 All E.R. 545 ..... 5.56
Marbury v. Madison, 2 L. Ed. 60 ..... 1.55, 1.88, 2.229, 5.14
Maritime Electric v. Gen. Dairies, A 1937 PC 114 ..... 5.78, 5.139
Marks v. U.S., 430 US 188 ..... 2.136, 2.137
Marshall v. Gordon, 243 US 521 ..... 4.94
Marshall v. Barlow's Inc., 98 Sup. Ct. 1816 (1978) 2.219
Maru Ram v. India, AIR 1980 SC 2147 ..... 3.49
Marwaha v. India, (1987) 4 SCC 31 ..... 2.29A
Mashiur Rahman v. President of Bangladesh, 1997 BLD 55 ..... 4.70A
Masood Raza v. M.A. Faiz & another (Unreported) 5.92
Massachusetts Bd. of Retirement v. Murgia, 427 US 307 ..... 2.27, 2.28, 2.41
Masudul Hasan v. Khadim, PLD 1963 SC 203 ..... 5.84
Masum Iqbal v. BUET, 1997 BLD 7 ..... 5.59
Mata Prasad v. Nageswar, AIR 1925 PC 272 ..... 5.215
Mata Prasad v. Secy. of State, AIR 1931 Oudh 29 ..... 6.61
Mathri v. Punjab, AIR 1964 SC 986 ..... 5.194
Mathrumal v. Chief Inspector of Shops, AIR 1952 All 773 ..... 2.47
Mathur v. India, AIR 1999 SC 129 ..... 6.21
Matiur Rahman v. Bangladesh, 50 DLR 357 ..... 5.88
Mayeedul Islam v. Election Commission, 1996 BLD (AD) 204 ..... 4.6A, 6.4, 6.8
Mayflower Farms Inc. v. P.G. Ten Eyck, 297 US 266 ..... 2.38
McCulloch v. Maryland, 17 US 316 ..... 1.50
McEldowney v. Forde, [1969] 2 All E.R. 1039 ..... 4.40
McGowan v. Maryland, 366 US 420 ..... 2.45, 2.210
McGrain v. Dougherty, 273 US 135 ..... 4.94
McLeans v. Arkansas, 211 US 539 ..... 2.47
McPherson v. McPherson, AIR 1936 PC 246 ..... 2.150
Md. Abdul Halim v. Md. Abul Hasan Chowdhury, W.P.953 of 1998 ..... 4.5
Md. Afzal v. Board of Revenue, 19 DLR (SC) 266 ..... 5.35, 5.120
Md. Akram Khan v. Additional I.G., PLD 1958 SC 256 ..... 5.192, 6.34
Md. Akram v. State, 16 DLR (SC) 695 ..... 5.192
Md. Ali v. Bangladesh, 47 DLR 350 ..... 5.105
Md. Amir Khan v. Controller, Estate Duty, 13 DLR (SC) 105 ..... 5.123, 5.125
Md. Amir Khan v Controller, Estate Duty, 14 DLR (SC) 276 ..... 5.202, 5.204, 5.205

Md. Anwar v. State, 29 DLR 15 ..... 5.108
Md. Aslam v. Wazir Mohammad, PLD 1985 SC 46 ..... 5.201
Md. Asmatullah v. Bangladesh, 28 DLR 22 ..... 5.108
Md. Athar v. Pakistan, 14 DLR (SC) 166 ..... 5.122
Md. Baran v. Member (S&R), PLD 1991 SC 691 ..... 5.119
Md. Faizullah v. Bangladesh, 1981 BLD 1 ..... 2.77, 2.81, 2.85
Md. Farooq Imam v. Claims Commr., 16 DLR (SC) 648 ..... 5.59
Md. Faruk v. M.P., AIR 1970 SC 93 ..... 2.208
Md. Hossain Munir v. Sikander, PLD 1974 SC 139 ..... 5.32
Md. Hossain Umar v. K.S. Dalipsingh, AIR 1970 SC 45 ..... 5.192
Md. Ibrahim v. Pakistan, PLD 1972 SC 332 ..... 6.35
Md. Idris v. E.P. Timber Merchants, 20 DLR (SC) 355 ..... 5.127
Md. Ismail Khan v. Pakistan, 25 DLR 382 ..... 6.31
Md. Jamil Asghar v. Improvement Trust, 17 DLR (SC) 520 ..... 5.39, 5.42, 5.44
Md. Lutful Kabir v. Senior Asstt. Secretary, 29 DLR 45 ..... 6.15
Md. Mohsin v. Bangladesh, 2 MLR (AD) 109 ..... 5.165
Md. Mustakin v. Mutaleb, 45 DLR 733 ..... 5.39
Md. Naseem v. Azra Feroze Bakth, PLD 1968 SC 37 ..... 6.21
Md. Nurul Huda Mia v. WASA, 44 DLR 527 ..... 5.34, 5.73, 5.143
Md. Safiullah v. Pakistan, PLD 1990 SC 79 ..... 5.204
Md. Seraj v. Pakistan, 19 DLR 771 ..... 6.31
Md. Shafi Chowdhury v. East Pakistan, 17 DLR 25 ..... 6.42
Md. Shoib v. Bangladesh, 27 DLR 315 ..... 1.88, 3.31
Md. Siraj Mia v. Director General, 12 DLR 638 ..... 6.38
Md. Yahya v. Bangladesh, 35 DLR 182 ..... 6.64, 6.67
Md. Yasib v. Town Area Committee, AIR 1952 SC 115 ..... 4.40
Md. Yakub v. Chief Settlement Commr., PLD 1965 SC 254 ..... 5.150
Md. Yousuf v. West Pakistan, 22 DLR (SC) 367 ..... 5.115
MDC Bank v. ITO, AIR 1975 SC 2016 ..... 4.24
Meenglass Tea Estate v. Workmen, AIR 1963 SC 1719 ..... 5.65
Meghna Vegetable Oil v. BOGMC, 50 DLR 474 ..... 5.132
Mehboob Ali v. West Pakistan, 15 DLR (WP) 129 ..... 5.126
Mehr Dad v. Settlement & Rehab. Commr., PLD 1974 SC 193 ..... 5.42
Mehta v. India, AIR 1987 SC 1086 ..... 2.111, 5.20, 5.143
Mehta v. India, (1998) 9 SCC 589 ..... 2.111
Mehta v. India, (1997) 2 SCC 411 ..... 2.111
Mehta v. India, (1997) 11 SCC 327 ..... 2.111
Mehta v. India, AIR 1987 SC 965 ..... 5.160
Mehta v. Kamal Nath, (1997) 1 SCC 388 ..... 2.111
Mehta v. Kamal Nath, AIR 2000 SC 1997 ..... 5.198
Mehtab Jan v. Municipal Committee, PLD 1958 Lah 929 ..... 2.158
Member, Board of Revenue v. Akhtar Khan, PLD 1968 SC 270 ..... 5.184
Menhaz Sakib v. Bangladesh, 52 DLR 526 ..... 2.128
Menon v. Rajasthan, AIR 1968 SC 81 ..... 2.80

Menon v. State, AIR 1970 Ker 165.....5.118
Meridian Int;l (PvT) Ltd, v, RAJUK, 53 DLR 35 .....5.120
Mervyn v. Collector of Customs, AIR 1967 SC 52.....2.84
Metropolitan Properties v. Lannon, [1968] 3 All E.R.304.....5.65, 5.66
Meyer v. Nebraska, 262 US 390 .....2.112
Mia Ahmed Kibria v. Bangladesh, 1998 BLD 459 .....5.164
Michigan v. Tyler, 98 Sup Ct. 1942 (1978) 2.219
Middleton v. Texas Power & Light Co., 249 US 152 .....2.36
Miller v. California, 413 US 15.....2.189
Mills v. Alabama, 384 US 214.....2.194
Mills v. London C.C., [1925] 1 KB 213 .....5.76
Minarul Islam v. Bangladesh, 49 DLR 615.....5.41
Mineral Development Co. v. Bihar, AIR 1960 SC 468.....2.208, 5.67, 5.68, 5.80A
Minerva Mills Ltd v. India, AIR 1980 SC 1789.....2.226, 3.44, 4.57, 4.67
Minister of Home Affairs v. Fisher, [1979] 3 All E.R. 21.....1.52, 1.61, 2.7
Ministry of Agri. & Fish. v. Hulkin (unreported).....5.137
Ministry of Agri.& Fish. v. Mathews, [1949] 2 All E.R.724 .....5.137
Minneapolis & S.L.R. Co. v. Beckwith, 129 US 26.....2.47
Mirpur Mazar Co-op Society v. Secy, Ministry of Works, 1 BLC 79.....5.180
Mir Abdul Ali v. Rafiqul Islam, 40 DLR (AD) 75 .....5.189
Mir Ahmed Kibria v. **Bangladesh, 50 DLR 496 .....5.146A**
Mir Ahmed Nawaz v. Supdt. Lyallpur Jail, PLD 1966 SC 357.....2.96, 2.110, 6.62
Mir Md. Kashem v. Administrator of Waqfs, 3 BLC 519 .....5.36
Mirpur Mazaar Co-op Society v. Secy. Ministry of Works, 1 BLC 79 .....5.180
Mirza Ali v. State, 43 DLR 144 .....5.111, 5.151
Mithu v. Punjab, AIR 1983 SC 473 .....2.117
Mittal v. India, AIR 1983 SC 1 .....2.31
Mizanur Rahman v. Ctg. Mun. Corp, 45 DLR 331 .....5.156
Mizan Howladar v. Bangladesh, 1996 BLD 5.....5.122
Mizazul Islam v. State, 41 DLR (AD) 157 .....5.192
Modi Undustries v. UP, AIR 1994 SC 536 .....5.63E
Momanipur Administration v. Tochom Bira, AIR 1965 SC 87.....5.204
Moazzem Hossain v. State, 35 DLR (AD) 290.....5.221, 5.223
Mobarak Ali v. Bangladesh, 50 DLR 10 .....5.128
Mobarak Hossain v. Azad Rahman, 2 BLC (AD) 180.....5.146
Mobarak Hossain v. Mostafa Hossain, 40 DLR (AD) 20.....5.188
Mofazzal Hossain v. State, 45 DLR (AD) 175 .....5.192
Mofizur Rahman v. Bangladesh, 34 DLR (AD) 321 .....1.87, 2.109, 2.110 5.75, 5.188, 6.33
Moghal Tobacco Co. Ltd v. Pakistan, PLD 1959 SC 31.....2.206
Mohammad Brothers v. Collector of Customs, 48 DLR (AD) 48 .....5.128
Mohammad Hossain v. G.M., E.B. Rly, 14 DLR 874.....2.96, 3.31
Mohammad Sadeque v. Rafique Ali, PLD 1965 Dac 330.....5.113, 5.116
Mohamadullah v. Secy, Home Affairs, 1996 BLD 18.....5.13

Mohammedalli v. India, AIR 1964 SC 980 ..... 4.34
Mahammad Ali v. Bangladesh, 47 DLR 350 ..... 5.105
Mohan Reddy v. Charles, AIR 2001 SC 1240 ..... 2.85
Mohd. Yusuf v. Chief Sett. Commr., 20 DLR (SC) 187 ..... 2.97, 2.110
Mohichandra v. Secy, Local Self-govt., AIR 1953 Assam 12 ..... 5.116
Mohinder Singh v. Chief Election Commr., AIR 1978 SC 851 ..... 6.7, 6.8
Mohinder Singh v. State, AIR 1953 SC 415 ..... 5.192
Mohindroo v. District Judge, Delhi, AIR 1971 SC 107 ..... 5.205
Mohini Jain v. Karnataka, AIR 1992 SC 1858 ..... 2.76
Mohit Chandra v. Dist. Magistrate, AIR 1974 SC 2287 ..... 5.151
Mohiuddin Ahmed v. Bangladesh, 49 DLR 353 ..... 2.38
Mohiuddin v. State, AIR 1960 M.P. 265 ..... 5.120
Mohsin Kabir v. Bangladesh, 45 DLR 301 ..... 5.146
Mohsin Sharif v. Bangladesh 27 DLR 186 ..... 5.142
Mohsin Siddique v. West Pakistan, 16 DLR (SC) 151 ..... 5.68, 6.40
Moinuddin v. Delimitation Officer, 17 DLR 181 ..... 5.130
Moinul Hosein v. Sk. Hasina Wazed, 53 DLR 138 ..... 2.190, 5.225, 5.226
Mojibur Rahman v. Manjur Morshed, 3 MLR (AD) 27 ..... 6.40
Mokarram Hossain v. Secy. Cabinet Affairs, 31 DLR (AD) 64 ..... 2.227
Momin Motors Co. v. R.T.A. Dacca, 14 DLR (SC) 102 ..... 5.131
Mominul Haq v. Bangladesh, 1993 BLD 91 ..... 5.108
Momtazuddin Ahmed v. Abdur Rashid, 34 DLR 113 ..... 5.227
Monarch Infrastructure v. Commr. UMC, AIR 2000 SC 2272 ..... 2.71
Moni Begum v. RAJUK, 46 DLR (AD) 154 ..... 5.119, 5.140, 5.146, 5.147
Monoranjan Mukherjee v. Election Commn., 41 DLR 484 ..... 1.102, 4.6
Montreal Street Rly Co. v. Normandin, AIR 1917 PC 142 ..... 1.66, 6.58
Monwara Begum v. Secy. Ministry of Home, 41 DLR 35 ..... 2.130, 5.99
Moore v. East Cleveland, 431 US 494 ..... 1.57, 2.103A
Moore v. Gamgee, (1890) 25 QBD 244 ..... 5.35
Morey v. Doud, 354 US 457 ..... 2.36
Morgan Stanley Mutual Fud v. Kartick, (1994) 4 SCC 225 ..... 5.166
Morrisey v. Brewer, 408 US 471 ..... 2.100
Mosharraf Hossain v. State, 44 DLR (AD) 246 ..... 5.195
Moslemuddin Sikdar v. Chief Secretary, 8 DLR 526 ..... 2.126, 5.103
Mostafa Hossain v. S.M. Faruque, 40 DLR (AD) 10 ..... 4.8, 5.113, 5.115, 5.188
Mostafa Jaglul v. Authorised Officer, 33 DLR 42 ..... 5.143
Mostafa Kamal v. Court of settlement, 48 DLR (AD) 61 ..... 5.41
Mostafa Kamal v. Bangladesh, 2 BLC 207 ..... 5.164
Mostafa Mia v. Lab. Court, 46 DLR 373 ..... 5.61
Mostashir v. Arman Ali, 42 DLR (AD) 12 ..... 5.187
Mota Singh v. Haryana, AIR 1981 SC 484 ..... 5.146
Moti Das v. S.P. Sahi, AIR 1959 SC 942 ..... 2.40
Moti Ram Deka v. N.E.F. Railways, AIR 1964 SC 600 ..... 6.18, 6.28
Motilal Jain v. Bihar, AIR 1968 SC 1509. ..... 5.109

Moti Miyan v. Commissioner, AIR 1960 MP 157 ..... 5.63E
Motor General Traders v. A.P., AIR 1984 SC 121 ..... 4.68
Moudud Ahmed v. Anwar Hossain Khan, 1995 BLD (AD) 12 ..... 5.146
Moyna Mia v. State, 27 DLR (AD) 120 ..... 5.185
Mozaher Sowdagar v. Zahirul Alam, 40 DLR (AD) 62 ..... 5.191
Mozibur Rahman v. Abdul Halim, 2000 BLD (AD) 109 ..... 6.8
Mozibur Rahman v. Chairmanm, D.I.T., 41 DLR (AD) 131 ..... 5.143
Mr. "X" v. Hospital "Z", AIR 1999 SC 595 ..... 2.17A, 2.111, 2.112
MRF Ltd. V. Inspector, Kerala Govt., (1998) 8 SCC 227 ..... 2.22, 2.24
Mriganka Prasad v. Ministry of Communication, 5 BLC 112 ..... 5.235
Mritunjoy Paul v. East Pakistan, 14 DLR 568 ..... 5.124
Mrityunjay v. S.H. Rahman, AIR 2001 SC 1293 ..... 5.130
MSRTC v. Babajan, AIR 1977 SC 1112 ..... 5.150
Mudaliar v. Tamil Nadu, AIR 1973 SC 974 ..... 5.70
Muhammad Ishaq v. State, PLD 1956 SC 256 ..... 1.68
Muhammad Khan v. Additional Commr., PLD 1964 Lah 401 ..... 5.81
Muhammad Tofail v. Abdul Ghafoor, PLD 1958 SC 201 ..... 5.81
Muhammadbhai v. Gujarat, AIR 1962 SC 1517 ..... 2.52, 4.53
Muhammadullah v. Sessions Judge, 52 DLR 374 ..... 2.141
Mujibur Rahman v. Bangladesh, 44 DLR (AD) 111 ..... 1.54, 1.55
1.57, 1.61, 1.63, 1.87, 2.9, 2.98, 5.2, 5.236, 6.20
Mujibur Rahman v. Bangladesh, 1996 BLD (AD) 54 ..... 6.71
Mulgaokar, In Re, AIR 1978 SC 727 ..... 5.228
Mullick Brothers v. Income Tax Officer, 31 DLR (AD) 165 ..... 6.64
Mulumchand v. M.P., AIR 1968 SC 1218 ..... 6.59
Mulevena v. The Admiralty, 1926 SC 842 ..... 6.25
Mumbhai Kamgar v. Abdulbhai, AIR 1976 SC 1455 ..... 1.785.160
Mumtaz Mallick v. Taxing Officer, PLD 1966 SC 753 ..... 5.88
Municipal Board v. S.T.A., AIR 1965 SC 458 ..... 5.55
Municipal Corp of Delhi v. Gurnam Kaur, AIR 1989 SC 38 ..... 5.199, 5.214
Municipal Corp. Jabalpur v. M.P., AIR 1966 SC 837 ..... 5.143
Municipal Corp. v. Jan Md., AIR 1986 SC 1205 ..... 2.22, 2.24, 5.24
Municipal Corporation v. M.P., AIR 1966 SC 837 ..... 5.145
Municipal Council, Ratlam v. Vardichand, AIR 1980 SC 1622 ..... 5.160
Munishamappa v. Venkaramaiyya, AIR 1981 SC 1177 ..... 4.8
Munn v. People of Illinois, 94 US 113 ..... 2.111
Munro v. Watson (1887) 57 LT 366 ..... 4.40
Murari Mohan Das v. Bangladesh, 29 DLR 53 ..... 5.68
Murtaza and Sons v. Nazir Mohd., AIR 1970 SC 668 ..... 5.186
Musser v. Utah, 338 US 95 ..... 2.104
Mustafa Ansari v. Dy. Commr., 17 DLR 553 ..... 2.22, 2.23, 2.159, 2.161
Mustafa Kamal v. Commr. Of Customs, 52 DLR (AD) 1 ..... 5.15A, 5.143A
Kustafa Khar v. Chief Election Commissioner, PLD 1969 Lah 602 ..... 4.10A
Mustafizur Rahman v. D.g. Anti-corruption, 49 DLR 599 ..... 2.152

Mustain Billah v. Bangladesh, 1000 BLD (AD) 1 ..... 6.20
Mutual Loan co. v. Martell, 222 US 225 ..... 2.28, 2.36
Mutual Loan Co. v. Martell, 200 Mass 482 ..... 2.36
Muzibur Rahman Talukder v. AKM Musa, 47 DLR 21 ..... 5.34, 5.73
Myers v. U.S., 272 U.S. 52 ..... 4.68
Mysore v. Bidap, AIR 1973 SC 2555 ..... 6.47
Mysore v. Jayaram, AIR 1968 SC 346 ..... 2.79
Mysore v. Krisna Murthy, AIR 1973 SC 1146 ..... 2.82
Mysore v. Malick Hashim, (1973) 31 STC 358 ..... 4.40
Mysore v. Mysore Spinning & Mfg. Co., AIR 1958 SC 1002 ..... 5.207
Mysore v. Narasinga Rao, AIR 1968 SC 349 ..... 2.77, 2.78
Mysore v. P.N. Rao, AIR 1968 SC 349 ..... 2.80
Mysore v. Ramchandra, AIR 1972 Bom 93 ..... 6.61
Mysore v. Sheshadri, AIR 1974 SC 460 ..... 5.90
Mysore v. Syed Mohammad, AIR 1968 SC 1113 ..... 5.90

N

N.A.A.C.P. v. Alabama, 357 US 449 ..... 2.169, 2.171
N.K.K. Samaj v. Corp. of Nagpur, AIR 1956 Nag 152 ..... 4.53
N.L.R.B. v. Dennelly Garment Co., 330 US 219 ..... 5.69
N.L.R.B. v. Drivers, 362 US 274 ..... 2.175
N.S. Transport v. Punjab, AIR 1976 SC 57 ..... 5.56
N.W.F.P. v. Suruj Narain, AIR 1949 PC 112 ..... 6.39
Naderuzzaman v. Bangladesh, 27 DLR 304 ..... 5.108
Nadira v. State, 2 DLR 80 ..... 2.150
Nafco (Pvt) Ltd v. BSFI Corp, 2 MLR (AD) 402 ..... 5.129
Nagaland v. Ratan Singh, AIR 1967 SC 212 ..... 2.45, 5.121
Nagar Rice Mills v. N.T.G. Brothers, AIR 1971 SC 246 ..... 2.204
Nagaraj v. A.P., AIR 1985 SC 551 ..... 2.70
Nagarajan v. Karnataka, AIR 1979 SC 1676 ..... 5.201, 6.21
Nagarajan v. Mysore, AIR 1966 SC 1942 ..... 2.79, 6.21
Nagendra Bora v. Commr. Hills Div., AIR 1958 SC 398 ..... 5.40, 5.179
Nageswara Rao v. A.P., AIR 1959 SC 1376 ..... 5.70
Nageswara Rao v. APSRTC, AIR 1959 SC 308 ..... 3.13, 5.70
Nagina Silk Mills v. I.T.O., 15 DLR (SC) 181 ..... 5.124
Naimuddin Sardar v. Abdul Kalam Biswas, 41 DLR (AD) 3 ..... 5.189
Naimul Haq v. Dy. Commr., 45 DLR 520 ..... 5.88
Nalini Kanta v. East Pakistan, 13 DLR 11 ..... 6.57
Namboodripad v. Nambiar, AIR 1970 SC 2015 ..... 2.190
Nandalal v. State, AIR 1968 Cal 523 ..... 3.36
Nandini Sathpathy v. Dani, AIR 1978 SC 1025 ..... 2.152
Nannu Gazi v. Awlad Hossain, 43 DLR (AD) 63 ..... 5.192
Narahari Gir v. State, AIR 1955 Pat 177 ..... 5.180
Narain Dass v. Improv. Trust, Amritsar, AIR 1972 SC 865 ..... 2.69

Naraindas v. M.P., AIR 1974 SC 1232 ..... 3.31
Naranjan Singh v. Punjab, AIR 1952 SC 106 ..... 5.98
Narayan Chandra v. Abdul Jabbar Dewan, 52 DLR (AD) 35 ..... 5.190
Narayan v. I.T.O., AIR 1959 SC 213 ..... 5.81
Narayana v. Kerala, AIR 1973 Ker 97 ..... 2.193
Narayanappa v. Mysore, AIR 1960 SC 1073 ..... 5.70
Narayandeju v. Labour App. Tribunal, AIR 1957 Bom 142 ..... 5.179
Narayanlal v. Mistry, AIR 1961 SC 29 ..... 2.141, 2.152
Narendra Kumar v. India, AIR 1960 SC 430 ..... 2.20, 2.24, 2.52, 4.40
Narinder v. Lt. Governor, AIR 1971 SC 2399 ..... 5.89
Nasarullah Khan v. Dist.t Magistrate, PLD 1965 Lah 642 ..... 2.162, 2.166, 2.172
Naseem Bano v. U.P., AIR 1993 SC 2592 ..... 5.143
Naseem Jahan Naim v. G.M., PLD 1968 SC 112 ..... 6.29, 6.31
Nasima Begum v. Bangladesh, 49 DLR (AD) 102 ..... 5.110A
Nasir Ahmed v. Assistant Custodian, AIR 1980 SC 1157 ..... 5.56
Nasiruddin v. Secretary, LGRD, 51 DLR (AD) 213 ..... 5.164
Nasirwar v. M.P., AIR 1975 SC 360 ..... 2.204
Nasreen Fatema v. Bangladesh, 49 DLR 542 ..... 2.29, 2.31, 2.32
2.47, 2.53, 2.169, 2.203
Nasreen Fatema v, Bangladesh, 3 BLC (AD) 190 ..... 2.29, 2.31, 2.32
2,47, 2.53, 2.69, 2.203
Nasrin Hossain v. Bangladesh, 1 MLR 344 ..... 2.156
Nasrin Kader Siddiqui v. Bangladesh, 44 DLR (AD) 161.102, 5.103, 5.188, 5.190
National Bank of Pakistan v. Golam Mostafa, 27 DLR 158 ..... 5.34, 5.124
National Boad of Revenue v. Nasrin Banu, 48 DLR (AD) 171, 178 ..... 5.196
National Buildings Const. v. Raghunathan, AIR 1998 SC 2779 ..... 5.63A, 5.63B
National Engr. v. Ministry of Defence, 44 DLR (AD) 179 ..... 5.85
Nav Rattanmal v. Rajsthan, AIR 1961 SC 1704 ..... 2.46
Nawab Ali v. Md. Aminuddin, 41 DLR 254 ..... 5.129
Nawabkhan v. Gujarat, AIR 1974 SC 1471 ..... 2.160, 5.24, 5.63
Nawabul Alam v. State, 45 DLR (AD) 140 ..... 5.192
Nawaza v. Addl. S & R. Commr., 22 DLR (SC) 13 ..... 5.129
Nazemuddin v. Election Tribunal, 53 DLR (AD) 17 ..... 6.4
Nazir Ahmed v. State, AIR 1936 PC 253 ..... 5.192
Naziruddin v. Hameeda Banu, 45 DLR (AD) 38 ..... 5.196, 5.197
Nazmul Hossain v. State, 48 DLR 417 ..... 4.85, 5.34
Nazmul Huda v. Secy. Cabinet Affairs, 2 BLC 414 ..... 4.55A, 4.85, 5.151
Nazrul Islam Chowdhury v. Abdul Hamid, 1983 BLD (AD) 136 ..... 5.191
Neagle, In re, 135 US 1 ..... 3.30
Neal v. Clerk, 95 US 704 ..... 1.62
Nebbia v. New Hork, 291 US 502 ..... 2.102
Nebraska Press Assn v. Stuart, 427 US 539 ..... 2.198
Neelima v. State of Haryana, AIR 1987 SC 169 ..... 6.48
Nesamony v. Varghese, AIR 1952 Tr. C. 66 ..... 5.116

Nesar Ahmed v. Bangladesh, 49 DLR (AD) 111 ..... 5.128
New Ideal Engineering Works v. B.S.B., 42 DLR (AD) 221 ..... 2.223, 2.227
New India Steel Ind. v. V.D.S. Ind., AIR 1980 SC 1706 ..... 5.187
New India Tea Co. v. Bangladesh, 31 DLR (AD) 303 ..... 5.127, 5.129
New Marine Coal Co. v. India, AIR 1964 SC 152 ..... 6.59
New Orleans v. Dukes, 427 US 297 ..... 2.28, 2.36, 2.38, 2.53, 2.103
New York ex rel Bryant v. Zimmerman, 278 US 63 ..... 2.472.171, 5.15
New York ex rel. Lieberman v. Van de Carr, 199 US 552 ..... 2.47
New York Rapid Transit Corp. v. New York, 303 US 573 ..... 2.32
New York Times v. U.S., 403 US 713 ..... 2.194
New York Times v. Sullivan, 376 US 254 ..... 2.178, 2.186, 2.191
Newabganj Sugar Mills v. India, AIR 1976 SC 1152 ..... 5.170
Newspaper Ltd v. S.I. Tribunal, AIR 1957 SC 532 ..... 5.34
Nicholls v. Tavistock UDC, [1923] 2 Ch 18 ..... 4.40
Nihal Singh v. Rambhai, AIR 1987 M.P. 126 ..... 2.134
Niharendu v. Emperor, 46 CWN (FR) 9 ..... 2.186
Nikli AKMS Samity v. Secy. Land, 45 DLR 1 ..... 5.132
Nilabati Behera v. Orissa, AIR 1993 SC 1960 ..... 5.19, 5.20, 5.149, 6.61
Nishat Jute Mills v. Sanaullah, 40 DLR (AD) 298 ..... 5.188
Nishi Maghu v. J & K, AIR 1980 SC 1975 ..... 2.74
Nityananda v. Khalil, AIR 1961 Punj 105 ..... 5.115
Nixon v. U.S., 506 US 224 ..... 5.17
Noor Hossain v. Nazrul Islam, 2000 BLD (AD) 174 ..... 6.9
Nooruddin v. Titas Gas Trans & Dist. Co. Ltd, 1998 BLD (AD) 272 ..... 5.132
Noorul Hassan v. Pakistan, 9 DLR (SC) 47 ..... 6.26, 6.27, 6.31, 6.34
Norton v. Shelby County, 118 US 425 ..... 2.229
North American Cold Storage v. Chicago, 211 US 306 ..... 2.101, 5.62
North Bengal Sugar Mills v. D.M., 19 DLR (SC) 228 ..... 5.130
North Bihar Agency v. Bihar, AIR 1981 SC 1758 ..... 5.56, 5.60
Northern India Caterers v. Lt. Governor, AIR 1980 SC 674 ..... 2.57, 5.204, 5.206
North South Property Dev. Ltd. v. Ministry of Land, 52 DLR 7 ..... 5.63B
Nottingham CC v. Secy of Envir., [1986] 1 All E.R. 199 ..... 5.72
Novel v. London Express Newspapers, [1919] AC 368 ..... 5.13
Nur Hossain v. East Pakistan, 11 DLR (SC) 423 ..... 1.61
Nur Hossain v. Secy. Ministry of Land, 52 DLR 275 ..... 3.13
Nuruddin v. Titas Gas Transmission, 1998 BLD (AD) 273 ..... 5.129
Nurul Alam v. Abdus Sobhan, 45 DLR (AD) 168 ..... 5.189
Nurul Haq v. Secy. REB, 45 DLR 666 ..... 5.128
Nurul Haque v. Bangladesh, 51 DLR (AD) 140 ..... 5.120
Nurul Hussain v. Bangladesh, 1 BLC (AD) 219 ..... 5.204
Nurul Islam v. Bangladesh, 2001 BLD (AD) 562 ..... 5.235
Nurul Islam v. Bangladesh, 46 DLR (AD) 188 ..... 2.82
Nurul Islam v. Bangladesh, 46 DLR 46 ..... 5.52, 5.85, 5.146
Nurul Islam v. State, 43 DLR (AD) 6 ..... 5.192

Nurun Nahar Begum v. Bangladesh, 49 DLR 432 ..... 2.111A, 2.216A
Nurun Nahar Zaman v. State, 1995 BLD 537 ..... 2.111A
Nuruzzaman v. Secy. Education Dept., 17 DLR 46 ..... 5.128

O

O.P. Bhandari v. Indian Tour. Dev. Corp. AIR 1987 SC 111 ..... 2.88
O.P. Gupta v. India, AIR 1987 SC 2257 ..... 5.73
O'Kelly v. Trusthouse Forte, [1983] 3 All E.R. 456 ..... 5.40
O'Reilly v. Mackman, [1982] 3 All E.R. 1124 ..... 5.38
Oali Ahmed v. Bangladesh, 26 DLR 376 ..... 2.20-2.22, 2.24, 2.165
Odyssey Comm. v. Lok-udayan Sangathna, AIR 1988 SC 1642 ..... 2.174
Ohio Bureau of Employment v. Hodory, 431 US 471 ..... 2.27
Ohralik v. Ohio Bar, 436 US 447 ..... 2.178
Oklahoma Press Publication Co. v. Walling, 327 US 186 ..... 2.195
Olga Tellis v. Bombay Mun. Corp., AIR 1986 SC 180 ..... 2.111, 5.22
Olivier v. Buttigieg, [1966] 2 All E.R. 459 ..... 2.8
Om Prakash v. India, AIR 2000 SC 3689 ..... 5.80A
Om Prakash v. J & K, AIR 1981 SC 1001 ..... 2.70
Omar Faruk v. Bangladesh, 51 DLR 118 ..... 5.153
Ong Ah Chuan v. Public Prosecutor, [1981] AC 648 ..... 1.52, 1.61, 2.5, 2.98
Orient Weaving Mills v. India, AIR 1963 SC 98 ..... 2.36, 2.55
Orissa v. Bhupendra, AIR 1962 SC 945 ..... 3.38
Orissa v. Binapani, AIR 1967 SC 1269 ..... 5.60, 5.63
Orissa v. Chakobhai, AIR 1961 SC 284 ..... 5.57
Orissa v. Chandrasekhara, AIR 1965 SC 532 ..... 5.90
Orissa v. Dhirendra, AIR 1961 SC 1715 ..... 2.56
Orissa v. Khageswar, AIR 1975 SC 1906 ..... 2.84
Orissa v. Madan Gopal, AIR 1952 SC 12 ..... 5.166
Orissa v. Muralidhar, AIR 1963 SC 404 ..... 5.41, 5.179
Orissa v. Ram Chandra, AIR 1964 SC 685 ..... 5.156
Osborne v. President, Director & Co. of Bank 22 US 738 ..... 2.229
Osman Gani v. Moinuddin, 27 DLR (AD) 61 ..... 1.48, 1.65, 1.66
Oxford Knitting v. Sukkur Municipality, 1970 SCMR 537 ..... 5.122
Ozan Lumber Co. v. Union Country Nat Bank, 207 US 251 ..... 2.28

P

P. & O. S.N. Co. v. Secy. of State, 5 Bom. HCR. App.1 ..... 6.61
P. Arumugham v. Madras, AIR 1953 Mad 664 ..... 2.39
P.C. Wadhwa v. India, AIR 1964 SC 423 ..... 6.38
P.D. Aggarwal v. U.P., AIR 1987 SC 1676 ..... 2.856.20
P.J. Irani v. Madras, AIR 1961 SC 1731 ..... 2.56
P.L. Dhingra v. India, AIR 1958 SC 36 ..... 6.28, 6.34
P.N. Duda v. P. Shiv Shanker, AIR 1988 SC 1208 ..... 2.190, 5.225, 5.226

P.P. Enterprise v. India, AIR 1982 SC 1016 ..... 2.206
P. Rajendra v. Madras, AIR 1968 SC 1012 ..... 2.45
P. Sreeramulu v. A.P. AIR 1970 AP 114 ..... 5.35
P.T. Services v. Ind. Court, AIR 1963 SC 114 ..... 5.41
P.T.I. v. India, AIR 1974 SC 1044 ..... 2.196
P.T.R. Exports (Madars) v. India, (1996) 5 SCC 268 ..... 5.63C
P.V. Shivarajan v. India, AIR 1959 SC 556 ..... 2.36
Pabst Corporation v. Milwaukee, 190 Wis 349 ..... 2.38
Padfield v. Minister of Agri., [1968] 1 All E.R. 694 ..... 5.63E, 5.74, 5.79
Padmahashini v. Srinivas, AIR 2000 SC 68 ..... 5.225
Pagla Baba v. State, AIR 1957 Or 130 ..... 2.218
Pak Steel Re-Roll. Mills Assn. v. W.P., PLD 1964 Lah 138 ..... 5.156
Pakala Narayan v. Emperor, AIR 1939 PC 47 ..... 1.73
Pakistan v. A.P. Hasumani, 14 DLR (SC) 220 ..... 5.122
Pakistan v. Abdul Ghani, PLD 1964 SC 68 ..... 6.29
Pakistan v. Abdul Hamid, 13 DLR (SC) 100 ..... 5.88, 5.122, 6.21
Pakistan v. Abdul Wali Khan, PLD 1976 SC 57 ..... 5.67
Pakistan v. Afzal Khan, 11 DLR (SC) 45 ..... 6.31
Pakistan v. Ahmed Saeed Kirmani, PLD 1958 SC 397 ..... 4.84, 4.85
Pakistan v. Ali Ahmed, PLD 1955 FC 522 ..... 4.19
Pakistan v. F.R. Khundkar, 11 DLR (SC) 253 ..... 6.34
Pakistan v. G. Moinul Ahmed, 17 DLR 377 ..... 6.31
Pakistan v. Khandker Ali Afzal, 12 DLR (SC) 38 ..... 5.169, 5.199
Pakistan v. Liaquat Ali, 11 DLR (SC) 73 ..... 6.33
Pakistan v. M.A. Hayat, PLD 1962 SC 28 ..... 5.88, 6.61
Pakistan v. Md. Ayub Khan, 17 DLR (SC) 504 ..... 6.22
Pakistan v. Md. Sayeed, 13 DLR (SC) 94 ..... 5.84, 5.92
Pakistan v. Mehrajuddin, 11 DLR (SC) 260 ..... 5.92
Pakistan v. Moazzem Hossain Khan, 11 DLR (SC) 64 ..... 5.34
Pakistan v. Mohammad Yaqoob, 15 DLR (SC) 369 ..... 6.61
Pakistan v. Mrs. A.V. Isaacs, 22 DLR (SC) 371 ..... 6.25, 6.26
Pakistan v. Mrs. A.V. Isaacs, 9 DLR (SC) 16 ..... 6.26
Pakistan v. Nazir Ahmed, 18 DLR (SC) 333 ..... 6.39
Pakistan v. S.A.H. Bokhari, 13 DLR (SC) 349 ..... 6.22
Pakistan v. Saeed Ahmed, PLD 1974 SC 151 ..... 1.100
Pakistan v. Serajul Islam, 9 DLR (SC) 114 ..... 6.31
Pakistan v. Syed Akhlaque Hossain, PLD 1965 SC 527 ..... 2.5, 2.7, 2.201, 2.207
Pakistan v. Tamizuddin Khan, 7 DLR (FC) 291 ..... 1.12
Pakitan v. Syed Hikmat Khan, 11 DLR (SC) 188 ..... 6.34
P, An Advocate, In Re, AIR 1963 SC 1313 ..... 4.6
Panama Refining Co. v. Ryan, 293 US 388 ..... 4.31
Pandarasannidi v. Madras, AIR 1965 SC 1578 ..... 5.145
Pandia Nadar v. State of T.N., AIR 1974 SC 2044 ..... 2.57
Pandurangarao v. A.P., AIR 1963 SC 268 ..... 2.78

Pankaj Jain v. India, AIR 1995 SC 360 ..... 4.37A
Pannalal Binjraj v. India, AIR 1957 SC 397 ..... 2.58, 2.68, 5.120
Pannuswami v. Returning Officer, AIR 1952 SC 64 ..... 6.4
Parameshwaran v. State Prosecutor, AIR 1951 T.C. 45 ..... 5.113, 5.118
Parashram v. Ram chand, AIR 1982 SC 872 ..... 2.70, 2.71
Paris Adult Theatre v. Slaton, 413 US 49 ..... 2.189, 2.199
Parker v. Bournemouth Corp., (1902) 66 JP 440 ..... 4.40
Parmatma Ram v. Shri Chand, AIR 1962 H.P. 19 ..... 5.113
Partha Sarathi v. A.P., AIR 1966 SC 38 ..... 5.232
Parthasarathi v. A.P., AIR 1973 SC 2701 ..... 5.68
Paruma (Eastern) Ltd v. Mr. A. R. Khan, 31 DLR 124 ..... 5.34
Parvin Akhtar v. RAJUK, 1998 BLD 117 ..... 5.164
Paschim Banga Khet Mazoor Samity v. W.B., AIR 1996 SC 2426 ..... 2.111
Pathumma v. Kerala, AIR 1978 SC 771 ..... 2.21, 2.22, 2.24
Patwabardhan v. Maharashtra, AIR 1977 SC 2051 ..... 2.83
Paul Anthony v. Bharat Gold Mines Ltd, AIR 1999 SC 1416 ..... 6.40
Paul v. Davis, 424 US 693 ..... 2.113
Pawan Alloys & Casting v. UP SEB,(1997) 7 SCC 251 ..... 5.139
Payne v. Superior Courtg of Los Angeles, 17 Cal 3d 908 ..... 2.44
Pearlman v. Harrow School, [1979] 1 All E.R. 365 ..... 5.39
Peerless G.F. & I.Co. v. Reserve Bank, (1992) 2 SCC 343 ..... 2.53
Pensacola Tel. Co. v. W.U. Tel. Co., 24 L.Ed 708 ..... 1.69
Pension Benefit Guarantee Corp. v. R.A. Gray, 467 US 717 ..... 2.109
People's Union for Civil Liberties v. India, AIR 1997 SC 568 ..... 2.176, 2.218
Peoples Union for Demo. Rights v. India, AIR 1982 SC 1473 ..... 2.133, 5.160
People v. Bunis, 9 NY 2d 1 ..... 2.102
People v. Fisher, 24 Wnd. 215 ..... 1.58
People v. Simonsen, 64 Cal App. 97 ..... 2.50
Peterson v. Widule, 157 Wis 641 ..... 2.28
Phani Bhushan v. Province of Bengal, 54 CWN 176 ..... 4.53
Phillips v. Commissioner, 283 US 589 ..... 2.101, 5.62
Phillips v. Director of Public Prosecution, [1992] 1 AC 396 ..... 3.48, 3.49
Phoenix Leasing Ltd. v. Bangladesh Bank, 51 DLR (AD) 258 ..... 2.169
Phoolan Devi v. M.P., (1996) 11 SCC 19 ..... 2.146
Pickering v. Boad of Education, 391 US 563 ..... 2.180
Pierce v. Society of Sister, 268 US 510 ..... 2.19, 2.112
Pillai v. Kerala, AIR 1973 SC 2641 ..... 5.139
Pilu Bux v. Kalandi, AIR 1970 SC 1885 ..... 2.164
Pir Mohammad & Brothers v. Khulna Mun. Committee, 19 DLR 55 4.34, 4.35, 4.39
Poolpandi v. Supdt. Central Excise, AIR 1992 SC 1795 ..... 2.152
Poona City Mun. Corp. v. Dattatraya, AIR 1965 SC 555 ..... 4.52
Pooran Mal v. Director of Inspection, AIR 1974 SC 348 ..... 2.22, 2.218A
Poornanandarao v. A.P., AIR 1982 A.P. 141 ..... 5.120
Popular Bank v. Madhav Nair, AIR 1965 SC 654 ..... 2.152

Port Luis Corp. v. A.G. of Mauritius, [1965] AC 1111 ..... 5.49
Porwal v. Maharashtra, AIR 1981 SC 1127 ..... 2.206
Poulos v. New Hampshire, 345 US 395 ..... 2.229
Pournami Oil Mills v. Kerala, AIR 1987 SC 590 ..... 5.137
Powell v. Alabama, 287 US 45 ..... 2.120
Powell v. Kempton Park Race-Course, [1899] AC 143 ..... 1.62, 1.73
Powell v. McCormack, 395 US 486 ..... 4.88, 5.16, 5.17
Prabhu das v. India, AIR 1966 SC 1044 ..... 2.32
Prabodh Verma v. U.P., AIR 1985 SC 167 ..... 5.146
Pradep Jain v. India, AIR 1984 SC 1420 ..... 2.72
Pradip Das v. Kazal Das, 44 DLR (AD) 1 ..... 5.188
Pradyat v. Chief Justice, AIR 1956 SC 285 ..... 1.64, 6.39
Pradyut v. Suryakant, AIR 1979 Bom 166 ..... 5.214
Prag Ice Mills v. India, AIR 1978 SC 1296 ..... 2.206
Prasan Roy v. CMDA, AIR 1988 SC 205 ..... 5.120
Prasanta v. State, AIR 1952 Cal 91 ..... 2.150
Prashram Thakur v. Ram Chand, AIR 1982 SC 872 ..... 2.70
Pratap Singh v. Punjab, AIR 1964 SC 72 ..... 5.73, 5.143
Pratt v. A.g. of Jamaica,[1994] 2 AC 1 ..... 2.154
Prem Chand Garg v. Excise Commissioner, AIR 1963 SC 996 ..... 5.197, 5.232
Prem Chand v. India, AIR 1981 SC 613 ..... 2.159
Prem Sankar v. Delhi Administration, AIR 1980 SC 1535 ..... 2.112
President v. Mr. Justice Shaukat Ali, PLD 1971 SC 585 ..... 5.67
Presiding Officer v. Sadaruddin, 19 DLR (SC) 516 ..... 5.75, 5.88, 5.90
Priddle v. Fisher & Sons, [1968] 3 All E.R. 506 ..... 5.59
Principal Secretary v. Mahtabuddin, 42 DLR (AD) 214 ..... 1.66, 1.102
Pritam Singh v. State, AIR 1950 SC 169 ..... 5.218
Prithvi Cotton v. Broach Borough Mun., AIR 1970 SC 192 ..... 4.53
Probhakar v. A.P., AIR 1986 SC 210 ..... 2.38
Probhas v. Nithar, AIR 1924 Cal 1054 ..... 5.205
Prof. Dr. Md. Yusuf Ali v. Chancellor, Rajshahi Univ., 1998 BLD 1 ..... 5.53
Prof. Nurul Amin v. Vice Chancellor, 50 DLR 405 ..... 5.123
Prof. Nurul Islam v. Bangladesh, 52 DLR 413 ..... 2.111, 5.163
Progress of Pak. Co. v. Registrar, J.S., PLD 1958 Lah 887 ..... 2.169, 2.171, 2.202
Proprietory Article v. A.G., [1931] All E.R. Rep. 277 ..... 4.68
Prostrollo v. University of South Dakota, 507 F. 2d 775 ..... 2.42
Province of Bengal v. Puri, 51 CWN 753 ..... 6.57
Province of Bombay v. Bombay Mun. Corp., AIR 1947 PC 34 ..... 2.60
Province of Punjab v. Tara Chand, AIR 1947 FC 23 ..... 6.25
Pubali Bank v. Chairman, Labour Court, 44 DLR (AD) 40 ..... 5.188
Pulin v. E.K., (1912) 15 C.L.J. 517 ..... 5.118
Punjab Communications Ltd. v. India, AIR 1999 SC 1801 ..... 5.63A, 5.63C
Punjab National Bank v. India, AIR 1974 SC 950 ..... 5.187
Punjab Tin Supply v. Central Govt., AIR 1984 SC 87 ..... 2.38

Punjab v. Ajaib Singh, AIR 1953 SC 10 ..... 1.57, 1.60, 2.123, 5.174
Punjab v. Amar Singh, AIR 1966 SC 1313 ..... 6.40
Punjab v. Balbir, AIR 1977 SC 1717 ..... 5.131
Punjab v. Balraj, AIR 1978 SC 1136 ..... 5.193
Punjab v. Board of Foreign Missions, PLD 1988 SC 382 ..... 5.205
Punjab v. Gurdial Singh, AIR 1980 SC 319 ..... 5.73
Punjab v. Hira Lal, AIR 1971 SC 1777 ..... 2.91
Punjab v. Khan Chand, AIR 1974 SC 543 ..... 2.56
Punjab v. Khanna, AIR 2001 SC 343 ..... 5.67, 5.73
Punjab v. Om Prakash, AIR 1988 SC 2149 ..... 6.57, 6.59
Punjab v. Ram Lubhaya Bagga, AIR 1998 SC 1703 ..... 2.70
Punjab v. Sukh Raj, AIR 1968 SC 1089 ..... 6.38
Puranlal v. India, AIR 1958 SC 163 ..... 2.130
Purbachal Drillers v. Mesbahuddin Ahmed, (Unreported) 5.134
Purkins Application, Re, [1962] 1 WLR 902 ..... 5.41
Purnendu Deb v. India, AIR 1956 Cal 66 ..... 6.61
Purshottam v. India, AIR 1973 SC 1088 ..... 2.80
Purtabpur Co. v. Cane Commr., AIR 1970 SC 1896 ..... 5.77
Purushattam v. Rajsthan, AIR 1979 Raj 18 ..... 5.113
Purushattaman v. Kerala, AIR 1962 SC 694 ..... 4.20, 4.22
Pushpa Thakur v. India, AIR 1986 SC 1199 ..... 6.61
Pyare Lal v. Delhi Administration, AIR 1968 SC 133 ..... 2.205

Q

Qari Abdul Hameed v. Dist. Magste, PLD 1957 Lah 213 ..... 2.165
Qazi Kamal v. RAJUK, 44 DLR (AD) 291 ..... 5.88, 5.184
Quabil Ahmed v. Secy. Ministry of Health, 44 DLR 385 ..... 5.90
QC Shipping Ltd. v. chittagong Port Authority, 51 DLR 64 ..... 5.88
Quaker City Cab Co. v. Pennsylvania, 277 US 389 ..... 2.26
Quarry Owners Association v. Bihar, AIR 2000 SC 2870 ..... 1.57
Quazi Khan v. The State, PLD 1965 Pesh 41 ..... 5.88
Queen Empress v. Ganga Ram, ILR 16 All 136 ..... 5.113
Queen v. Mayor & Justices of Bodin, [1892] 2 QB 21 ..... 5.91
Quinn v. Leatham, [1901] AC 495 ..... 5.215
Quinn v. U.S., 349 US 155 ..... 4.99

R

R & R Ltd v. Madras, AIR 1956 SC 463 ..... 5.43
R. v. Agri. Land Trib., ex p. Bracey, [1960] 1 WLR 911 ..... 5.41
R. v. Altrincham Justices ex p. Pennington, [1975] QB 549 ..... 5.68
R. v. Amber Valley ex p. Jackson, [1984] 3 All E.R. 501 ..... 5.69
R. v. Barnet & Camden R.T. ex p. Frey, [1972] 2 QB 342 ..... 5.75
R. v. Bd. of Visitors etc. ex p. Smith, [1987] QB 106 ..... 5.50
R. v. Birmingham L.P.C., ex p. Kennedy, [1972] 2 QB 140 ..... 5.79

R. v. Brighton Corp. ex p. Shoosmith, [1907] 96 LT 762 ..... 5.75
R. v. Broadcasting complaints Commn ex p Owen, [1985] 2 All E.R. 522 ..... 5.63F
R. v. Burah, 4 Cal 172 ..... 1.51, 1.52, 4.32, 4.65, 5.242
R. v. Barnsley MBC ex p Hook, [1976] 1 WLR 1052 ..... 5.80A
R. v. Bd of Inland Revenue ex p MFK Underwriting [1990] 1 All E. R. 91 ... 5.63B
R. v. BSMS Magistrate ex p. Pinochet (No.2), [1999]1 All E.R. 577 ..... 5.65, 5.68
R. v. C.I.Officer ex p. Kharazi, [1980] 3 All E.R. 373 ..... 5.38
R. v. Cambridge Health Authority ex p B, [1995] 2 All E.R. 129 ..... 5.79
R. v. Cambrone Jusjtices ex p. Pearce, [1955] 1 QB 41 ..... 5.65, 5.66
R. v. Camden LBR Officer ex p. Ebiri, [1981] 1 WLR 881 ..... 5.42
R. v. Campbell, [1953] 1 All E.R. 684 ..... 5.82
R. v. Civil Service App. Tribunal ex p Cunningham, [1991]4 All E.R. 310 .... 5.63E
R. v. Colchester Magste,ex p.Beck, [1979] 2 All E.R. 1035 ..... 5.66
R. v. Commn. for Racial Equality, [1982] AC 779 ..... 5.52
R. v. Compt.-Gen. of Patents, [1953] 1 All E.R. 862 ..... 5.35
R. v. County of London Q.S., [1948] 1 All E.R. 72 ..... 5.82
R. v. Crown Court at Harrow ex p Dave, [1994] 1 All E.R. 315 ..... 5.63E
R. v. Croydon, R.T. ex p. Ryzewska, [1977] QB 876 ..... 5.42
R. v. Customs & Excise ex p. Hedge, [1986] 2 All E.R. 164 ..... 4.40
R. v. Devon county Council ex p Baker, [1995] 1 All E.R. 93 ..... 5.63A
R. v. Devon & Cornwall Ch. Const., ex p. CEG Bd., [1982] QB 458 ..... 5.84
R. v. Easling Council ex p Times Newspapers, [1986] LGR 316 ..... 5.79
R. v. Electricity Commr., [1924] 1 KB 171 ..... 5.51
R. v. Foster, [1985] QB 115 ..... 3.48
R. v. Fullham Rent Trib. ex p. Zerek, [1951] 2 KB 1 ..... 5.37, 5.42
R. v. Fullham Rent Trib.ex p.Philippe,[1950]2 All E.R.211 ..... 5.37
R. v. G.L.C. ex p. Blackburn, [1976] 3 All E.R. 184 ..... 5.84, 5.159
R. v. G.M. Coroner ex p. Tal, [1985] QB 67 ..... 5.37
R. v. Gough, [1993] 646 ..... 5.66
R. v. Governor, Brixton Prison ex p. Armah, [1968] AC 192 ..... 5.37
R. v. Graham Campbell, [1935] 1 KB 594 ..... 4.84
R. v. Greater L.C. ex p. Blackburn,[1976] 3 All E.R. 184 ..... 5.84, 5.159
R. v. Greter Manchester Coroner, [1985] QB 67 ..... 5.58
R. v. Guardians of Lewisham Union, [1897] 1 QB 498 ..... 5.84
R. v. Hackney ,Rent Trib. ex p. Keats, [1951] 2 KB 15 ..... 5.34, 5.44
R. v. Hicklin, [18868] 3 Q.B. 360 ..... 2.189
R. v. Home Secretary ex p. Asif Mahmood Khan, [1984] 1 WLR 1337 ..... 5.63C
R. v. Home Secretary ex p Brind, [1991] 1 AC 696 ..... 5.80A
R. v. Home Secretary ex p Doody, [1994] 1 AC 531 ..... 5.63E, 5.76
R. v. Home Secretary ex p Hargreaves, [1997] 1 WLR 906 ..... 5.63C
R. v. Home Secretary ex p. Hosenball, [1977] 1 WLR 766 ..... 5.53, 5.60
R. v. Home Secretary ex p. Khawaja, [1984] AC 74 ..... 5.34
R. v. Home Secretary ex p Leech, [1993] 4 All E.R. 539 ..... 4.40
R. v. Home Secretary ex p Malhi, [1990] 2 All E.R. 357 ..... 5.63B

R. v. Home Secretary ex p. Mehta, [1975] 1 WLR 1087 ..... 5.42
R. v. Home Secretary ex p Oladehinde, [1991] AC 254 ..... 5.76
R. v. Home Secretary ex p Ruddock, [1987] 2 All E.R. 518 ..... 5.63A, 5.75
R. v. Home Secretary ex p Sakala, (1994) Times, 26 January 5.63B
R. v. Home Secretary., [1993] 4 All E.R. 539 ..... 2.7
R. v. Hull Prison Bd. of Visitors [1979] 1 All E.R. 701 ..... 5.52
R. v. Hull University Visitors ex p Page, [1993] AC 682 ..... 5.38, 5.39
R. v. Immigration Trib. ex p. Mehmet, [1977] 2 All E.R. 602 ..... 5.58
R. v. Inland Revenue Commrs, [1990] 1 All E.R. 173 ..... 5.63B
R. v. IRC ex p. Preston, [1985] AC 835 ..... 5.38, 5.75
R. v. Jockey Club ex p RAM Race Courses, [1993] 2 All E.R. 225 ..... 5.63B
R. v. Kensington I.T.C., [1917] 1 KB 486 ..... 5.121
R. v. Kent Police ex p. Godden, [1971] 2 QB 662 ..... 5.60
R. v. Khan, [1996] 3 All E.R. 289 ..... 2.221
R. v. Lincolnshire Justice ex p. Brett, [1926] 2 KB 192 ..... 5.42, 5.43
R. v. Liverpool C.C. ex p. Liverpool Taxi Assn., [1975] 1 WLR 701 ..... 5.42, 5.50
R. v. Liverpool J.J.ex p.Topping [1983] 1 All E.R.490 ..... 5.66
R. v. London C.C. ex p. Corrie, [1918] 1 KB 68 ..... 5.88
R. v. Ludlow, ex p. Barnsley Corp., [1947] 1 KB 634 ..... 5.44
R. v. Metropolitan Police Commr ex p Blackburn, [1968] 2 QB 150 ..... 5.225
R. v. Metropolitan Police ex p. Rexton, [1972] 1 WLR 232 ..... 5.42
R. v. Ministry of Defence ex p Smith, [1996] QB 517 ..... 5.80A
R. v. Nat Bell Liquors, [1922] 2 AC 128 ..... 5.37
R. v. Police Commr.ex p. Blackburn, [1973] 1 All E.R. 324 ..... 5.159
R. v. Police Commr.ex p.Blackburn, [1968] 1 All E.R. 763 ..... 2.190, 5.84,5.157
R. v. Police Complaint Bd.ex p.Madden, [1983] 2 All E.R. 353 ..... 5.76
R. v. Port Talbot Council ex p Jones, [1988] 2 All E.R. 207 ..... 5.79
R. v. Pugh (Judge) ex p. Graham, [1951] 2 KB 623 ..... 5.42
R. v. Registrar of Companies, [1914] 3 KB 1161 ..... 4.42B, 5.88
R. v. Saint Martin's Guardians, [1851] 7 QB 149 ..... 5.113
R. v. Sang, [1980] AC 402 ..... 2.221
R. v. Secker & Warburg, [1954] 1 WLR 1138 ..... 2.188
R. v. Secy. of State ex p. Brent, [1982] 2 WLR 693 ..... 5.55A
R. v. Secy. of State ex p World Dev. Movement, [1995] 1 All E.R. 611 ..... 5.159
R. v. Sevenoaks D.C. ex p. Terry [1985] 3 All E.R. 226 ..... 5.64, 5.67
R. v. Shropshire Health authority ex p Duffus, (1989) Times, 16 August 5.61B
R. v. Sir R. Carden, (1879) 5 QBD 1 ..... 2.191
R. v. Somerset County Council, ex p Fewings. [1995] 3 All E.R. 20 ..... 5.79
R. v. Special Commr. of I.T., [1888] 21 QBD 313 ..... 5.42
R. v. Speyer, [1916] 1 KB 595 ..... 5.113, 5.116
R. v. St.Edmundsbury ex p.Investors,[1985] 3 All E.R. 234 ..... 5.65, 5.67
R. v. Stratton, (1779) 21 St. Tr. 1045 ..... 1.96
R. v. Sunderland JJ, [1901] 2 KB 357 ..... 5.63
R. v. Sussex JJ ex p. McCarthy, [1924] 1 KB 256 ..... 5.62

R. v. Sussex JJ, [1933] 2 KB 707 ..... 5.41
R. v. Thames Magste ex p. Polemis, [1974] 2 All E.R. 1219 ..... 5.54
R. v. Tottenham & District Rent Tribunal, [1956] 2 All E.R. 863 ..... 5.82
R. v. Tower Hamlets L.S.C. ex p. Kayene, [1975] QB 431 ..... 5.88
R. v. Trading Secretary ex p Lonrho plc, [1989] 2 All E.R. 609 ..... 5.63E
R. v. Transport Secretary ex p Factotame Ltd, [1990] 2 AC 85 ..... 4.1
R. v. Tranport Secretary ex p Pegasus, [1988] 1 WLR 1052 ..... 5.80A
R. v. Transport Secretary ex p Richmond, [1994] 1 All E.R. 651 ..... 5.63C
R. v. Universities Funding Council ex p IDS, [1994] 1 All E.R. 651 ..... 5.63E
R. v. Vestry of St. Pancras, 24 QBD 375 ..... 5.79
R. v. West Kent, [1951] 2 All E.R. 728 ..... 5.82
R. v. Windsor Lic. Justices ex p. Hodes, [1983] 1 WLR 685 ..... 5.77
R. v. Woodhouse, [1906] 2 KB 501 ..... 5.42
R.C. Cooper v. India, AIR 1970 SC 564 ..... 2.19
R.E. Sheehan Co. v. Shuler, 265 US 371 ..... 2.47
R.L. Arora v. U.P., AIR 1964 SC 1230 ..... 2.48
R.S. Das v. Divisional Superintendent, AIR 1960 All 538 ..... 6.43
R.S. Sial v. U.P., AIR 1974 SC 1317 ..... 6.38
R. Sim & Co. v. D.M., 18 DLR (SC) 543 ..... 5.151
Rabia Bashri Irene v. Bangladesh Biman, 52 DLR 308 ..... 2.40, 5.61A. 5.131
Rabindra Nath v. India, AIR 1970 SC 470 ..... 5.122
Rabindra v. India, AIR 1970 SC 470 ..... 5.22
Radha Charan v. Orissa, AIR 1969 SC 237 ..... 2.41
Radha Kanta Banik v. D.C. Rangpur 31 DLR 352 ..... 5.88
Radhakrisna Agarwal v. Bihar, AIR 1977 SC 1496 ..... 2.71, 5.131
Radhakrishnan v. Tamil Nadu, AIR 1974 SC 1862 ..... 5.59
Radheshyam v. Dist.Inspector of Schools, AIR 1987 SC 1628 ..... 5.148
Radhey Sham v. P.M.G., AIR 1965 SC 311 ..... 2.175
Rafique (Md) Hossain v. Speaker, 47 DLR 361 ..... 1.70, 4.10D, 4.10E 4.10F, 4.85, 5.164
Rafique-ul Huq v. Bangladesh, 44 DLR 398 ..... 5.25
Rafiqul Islam v. State, 44 DLR (AD) 264 ..... 5.192
Raghubir Sing v. Municipal Board, AIR 1956 All 324 ..... 5.121
Raghupati v. Bihar, AIR 1989 SC 620 ..... 2.71, 5.51
Raghupathy v. A.P., AIR 1988 SC 1681 ..... 5.80
Ragib Ali v. Bangladesh, 34 DLR 185 ..... 2.108
Rahim Shah v. Chief Election Commr., PLD 1973 SC 24 ..... 5.40
Rahima Akhtar v. Ashim Kumar, 40 DLR (AD) 23 ..... 5.188
Rahima Food Corp. v. Deputy Collector of Customs, 49 DLR 510 ..... 5.79, 5.124
Rahimuddin Bharsha v. Bangladesh, 46 DLR 130 ..... 2.216A, 5.25
Rahmatullah v. Dy. Settlement Commr., 15 DLR (SC) 373 ..... 5.151
Railway Board v. Niranjan, AIR 1969 SC 966 ..... 2.165
Rajagopal v. T.N., AIR 1999 SC 264 ..... 2.112A, 2.191
Raj Bahadur v. Legal Remembrancer, 47 C.W.N. 507 ..... 5.102

Raj Bahadur v. Legal Remembrancer, AIR 1953 Cal 522 ..... 2.123, 2.133
Raj Deo Sharma v. Bihar, (1998) 7 SCC 507 ..... 2.146
Raj Kapoor v. Laxman, AIR 1980 SC 605 ..... 2.199
Raj Kumar Behani v. Bangladesh, 1995 BLD 633 ..... 2.213
Raja Amir Khan v. Sheo Baksh Singh, 11 I.A. 237 ..... 5.36
Raja Narayanlal v. Maneck P. Mistry, AIR 1961 SC 29 ..... 2.49
Rajab Ali v. E. Pak, 10 DLR 385 ..... 5.31, 5.103
Rajendra Singh v. Uma Prasad, AIR 1935 All 117 ..... 5.228
Rajendra v. U.P., AIR 1979 SC 916 ..... 2.117
Rajendraswami v. HRE, AIR 1965 SC 502 ..... 2.234
Rajeswari v. U.P., AIR 1954 All 608 ..... 2.72
Rajib Kamrul Hasan v. State, 53 DLR (AD) 50 ..... 5.51
Rajnarain v. Chairman, Patna Adm., AIR 1954 SC 569 ..... 4.34, 4.40
Rajsthan v. Chawla, AIR 1959 SC 544 ..... 2.184
Rajsthan v. India, AIR 1977 SC 1361 ..... 4.67, 5.16
Rajsthan v. Mukan Chand, AIR 1964 SC 1633 ..... 2.46
Rajsthan v. Pratap Singh, AIR 1960 SC 1208 ..... 2.72
Rajsthan v. Sripal Jain, AIR 1963 SC 1323 ..... 3.13
Rajsthan v. Vidyawati, AIR 1962 SC 933 ..... 6.61
Rajunder v. Bajai, (1836) 1 MIA 117 ..... 5.207
Ram & Sham Co. v. Haryana, AIR 1985 SC 1147 ..... 2.71
Ram Avatar Sharma v. Haryana, AIR 1985 SC 915 ..... 5.79
Ram Bharosey v. Har Swarup, AIR 1976 SC 1739 ..... 5.34
Ram Chandra v. M.P., AIR 1971 SC 128 ..... 5.135
Ram Chandra v. Orissa, AIR 1956 SC 298 ..... 2.45
Ram Chandra v. Secy. W.B., AIR 1964 Cal 265 ..... 5.73
Ram Chandran v. Alagiriswami, AIR 1961 Mad 450 ..... 5.113
Ram Choudhury v. Secy. W.B., AIR 1964 Cal 265 ..... 6.51
Ram Gopal v. M.P., AIR 1970 SC 158 ..... 6.51
Ram Jawaya Kapur v. Punjab, AIR 1955 SC 549 ..... 2.96, 3.31
Ram Krisna Dalmia v. Tendulker, AIR 1958 SC 538 ..... 2.27-2.29, 2.30 2.32, 2.33, 2.56
Ram Lal Wadhwa v. Haryana, AIR 1972 SC 1982 ..... 2.82
Ram Lubhaya Kapur v. India, AIR 1973 P&H 297 ..... 2.38
Ram Manohar v. Supdt. Central Jail, AIR 1955 All 193 ..... 2.128
Ram Narayan v. U.P., AIR 1984 SC 1213 ..... 2.158
Ram Prasad Sahi v. Bihar, AIR 1953 SC 215 ..... 2.31
Ram Rup v. Biswanath, AIR 1958 All 456 ..... 5.179
Rama Dayal v. M.P., AIR 1978 SC 921 ..... 2.190, 2.191
Rama Narang v. Ramesh Narang, (1995) 2 SCC 513 ..... 4.6A
Rama Rani v. Bangladesh, 40 DLR 364 ..... 5.106
Ramana Shetty v. Airport Authority, AIR 1979 SC 1628 ..... 2.26, 2.65 2.68, 2.71, 5.75, 5.132
Ramanath v. Rajasthan, AIR 1967 SC 603 ..... 2.69

Ramanatha v. Kerala, AIR 1973 SC 2264 ..... 6.31
Ramappa v. Bojjappa, AIR 1963 SC 1633 ..... 5.32
Ramchandra v. A.P. Regional Committee, AIR 1965 AP 306 ..... 4.84
Ramchandra v. Maharashtra, AIR 1974 SC 259 ..... 5.122
Ramdhan Das v. Punjab, AIR 1961 SC 1559 ..... 2.206
Ramesh Mehta v. W.B., AIR 1970 SC 940 ..... 2.152
Ramesh Prasad v. Bihar, AIR 1978 SC 327 ..... 2.435.84
Ramesh v. U.P., AIR 1985 SC 766 ..... 5.192
Ramesh v. Bihar, AIR 1978 SC 1676 ..... 6.21
Rameshlal v. India, AIR 1970 Cal 520 ..... 5.15
Rameswar Lal Patwari v. Bihar, AIR 1968 SC 1303 ..... 5.109
Rameswaram v. University of Jodhpur, AIR 1974 Raj 255 ..... 5.113
Ramjilal Modi v. U.P., AIR 1957 SC 620 ..... 2.164
Ramjilal v. I.T. Officer, AIR 1951 SC 97 ..... 2.38
Ramniklal v. Gujarat, AIR 1975 SC 1752 ..... 5.192
Ramsarup v. India, AIR 1966 SC 247 ..... 2.126
Ramsharan v. India, AIR 1989 SC 549 ..... 2.111
Ranabir Das v. Ministry of Home, 28 DLR 48 ..... 5.106, 5.107
Ranendranath v. India, AIR 1965 Cal 434 ..... 2.143
Rangachari v. Secy. of State, AIR 1937 PC 27 ..... 6.24
Ranganathan v. Madras, AIR 1955 SC 604 ..... 1.62
Ranjit Singh v. C.I.T., AIR 1962 SC 92 ..... 1.68
Ranajit Thakur v. India, AIR 1987 SC 2387 ..... 5.80A
Ranjit v. Maharashtra, AIR 1965 SC 881 ..... 2.188, 2.189
Rankin v. McPherson, 483 US 378 ..... 2.180
Ransom v. Higgs, [1974] 3 All E.R. 949 ..... 5.40
Rao Mahroz Akhtar v. Dist. Magste, PLD 1957 Lah 676 ..... 2.158, 2.160
Rao Shiv Bahadur v. V.P., AIR 1953 SC 394 ..... 2.136, 2.137
Rash Behari Panda v. Orissa, AIR 1969 SC 1081 ..... 2.71, 5.151
Rasharaj v. State, 52 DLR 598 ..... 1.66
Rashoraju v. State, 52 DLR 598 ..... 1.66
Rashid & Sons v. I. T. Invest. Commn., AIR 1954 SC 207 ..... 5.128
Rashid Ahmed v. Municipal Board, AIR 1950 SC 163 ..... 4.40
Rashid Ahmed v. State, 21 DLR (SC) 297 ..... 1.57, 1.61, 2.7, 5.185
Rashiduzzaman v. Bangladesh, 49 DLR 43 ..... 5.146, 6.60A
Ratan Chandra v. Adhar Biswas, AIR 1952 Cal 72 ..... 5.121
Ratilal v. Bombay, AIR 1954 SC 388 ..... 2.211
Raunaq Ali v. Chief Settlement Commr., PLD 1973 SC 236 ..... 5.32, 5.43, 5.119
Raunaq International Ltd. IVR Construction Ltd., AIR 1999 SC 393 ..... 5.167A
Ravanna v. Kageerappa, AIR 1954 SC 653 ..... 4.7
Rayala Corp. v. Director of Enforc., AIR 1970 SC 494 ..... 2.56, 2.57
Raymond Ltd. v. M.P. Electricity Bd., AIR 2001 SC 238 ..... 1.72
Raymond v. Honey, [1982] 1 All E.R. 756 ..... 4.40
Rayner (Mincing Lane) Ltd v. Department of Trade, [1990] 2 AC 326 ..... 6.59A

Raza Textiles v. I.T. Officer, AIR 1973 SC 1362 ..... 5.42
Razab Ali v. East Pakistan, 10 DLR 489 ..... 5.146
Raziul Hasan v. Badiuzzaman, 1996 BLD (AD) 253 ..... 5.201
Re Racal Communications, [1980] 2 All E.R. 634 ..... 5.38
Re Regulation & Control of Aeronautics, [1932] AC 54 ..... 5.212
Rear Admiral A.A. Mustafa v. Bangladesh, 46 DLR (AD) 43 ..... 5.184, 6.18
Rear Admiral Mustafa v. Bangladesh, 45 DLR 395 ..... 5.184, 6.18
Rear Admiral Mustafa v. Bangladesh, 51 DLR (AD) 146 ..... 6.18
Re Findlay, [1985] AC 318 ..... 5.79
Re Habibul Islam Bhuiyan, 51 DLR (AD) 57 ..... 5.226
Re Infant H (K), [1967] 1 All E.R. 226 ..... 5.52
Re Harijai Singh, (1996) 6 SCC 466 ..... 2.195
Re P, Advocate, AIR 1963 SC 1313 ..... 4.6
Re Pergamon, [1971] Ch. 388 ..... 5.62
Re Purkins Application, [1962] 1 WLR 902 ..... 5.42
Re Ruhl, 20 Fed Cas 1335 ..... 3.48
Re S. Mugalkar, AIR 1978 SC 727 ..... 5.229
Re Union Benefices of Whippingham, [1954] AC 1111 ..... 5.49
Re WLW, [1972] 1 Ch. 456 ..... 5.60
Rees v. Crane, [1994] 2 AC 173 ..... 5.62
Reference by Governor General, 7 DLR (FC) 395 ..... 1.12, 1.96, 5.212
Reference by President, 9 DLR (SC) 178 ..... 1.48, 1.57, 1.61, 1.70, 1.95
Reference Re Amendment of Constitution of Canada, [1981] 1 SCR 268 ..... 1.6
Regard Chemical Works v. N.B.R., 2001 BLD 362 ..... 5.51
Regional Manager v. Pawan Kumar, AIR 1976 SC 1766 ..... 5.73
Rehana Begum v. Bangladesh, 50 DLR 557 ..... 2.112, 5.103
Rehana Kamal v. Court of Settlement, 3 BLC 213 ..... 2.216A
Repton School Governors v. Repton RDC [1918] 2 KB 133 ..... 4.40
Rehana Begum v. Bangladesh, 50 DLR 557 ..... 5.103
Rehana Kamal v. Court of Settlement, 3 BLC 213 ..... 2.216A
Reserve Bank of India v. Sahasranaman, AIR 1986 SC 1830 ..... 2.85
Retd. Govt. Employees Assn. v. Bangladesh, 46 DLR 426 ..... 2.29, 2.38, 5.162
Richardson v. Ramirez, 418 US 24 ..... 2.39
Ridge v. Baldwin, [1964] AC 40 ..... 5.51, 5.63
Risal Singh v. Chandgi Ram, AIR 1966 Punj 393 ..... 4.6
River Wear Commr. v. Adamson, [1877] 1 App.Cas 743 ..... 1.60
Rizan-ul Hasan v. U.P., AIR 1953 SC 185 ..... 5.228
Robertson v. Minister of Pensions, [1948] 2 All E.R. 767 ..... 5.137
Robson v. Hallet, [1967] 2 QB 939 ..... 2.217
Rokeya Kabir v. Bangladesh, 52 DLR 234 ..... 5.164
Rola Co. (Australia) Ltd v. Commonwealth, 69 C.L.R. 185 ..... 5.240
Roland v. Samuel, [1847] 9 LJOS 280 ..... 5.227
Romesh Thappar v. Madras, AIR 1950 SC 124 ..... 2.169, 2.173, 5.18
Rooney v. North Dakota, 196 US 319 ..... 2.138

Roplas (India) Ltd v. India, AIR 1989 Bom 183 ..... 5.170
Roschen v. Ward, 279 US 337 ..... 2.30
Rose v. Humbles, [1972] 1 All E.R. 314 ..... 5.59
Rosenblatt v. Baer, 383 US 75 ..... 2.191
Roshan Lal v. India, AIR 1967 SC 1889 ..... 6.18
Roshan Lal v. Ishwar Das, AIR 1962 SC 646 ..... 2.38, 5.59
Roth v. U.S. 354 US 476 ..... 2.175
Rowan v. Post Office, 397 US 728 ..... 2.177
Rowjee v. A.P., AIR 1964 SC 962 ..... 5.73, 5.143
Rowshan Bijaya S. Ali Khan v. East Pakistan, 17 DLR 1 ..... 2.125, 2.126 2.129, 2.131, 5.98
Roy v. Orissa, AIR 1960 SC 190 ..... 5.228
Rudramurthy v. Barkatullah, (1998) 8 SCC 275 ..... 5.214A
Rudul Shah v. Bihar, AIR 1983 SC 1086 ..... 5.20
Rup Charan Das v. Bangladesh, 48 DLR 94 ..... 5.129
Rural L.& E. Kendra v. U.P., AIR 1991 SC 2216 ..... 5.20
Russel Vegetable Oil Ltd. v. Collector of Customs, 52 DLR 382 ..... 5.128
Russell v. Duke of Norfolk, [1949] 1 All E.R. 109 ..... 5.51

S

S.A.M. Iqbal v. State, 3 BLC (AD) 125 ..... 5.227
S.A. Sabur v Returning Officer, 41 DLR (AD) 30 ..... 2.26, 2.27, 2.30, 2.32, 5.188
S.B. Roy v. P.N. Banerjee, 72 CWN 50 ..... 5.113
S.C. Advocates-on-Record Assn v India, AIR 1994 SC 268 ..... 1.6, 1.69, 5.4, 5.219
S.C. Mitra & Co. v. Governor-General, (1950) 2 Cal 431 ..... 6.57
S.E. Asia Fire Bricks v. N.M.Union, [1980] 2 All E.R. 689 ..... 5.38, 5.39
S.H.S. Mohammad, In Re, AIR 1951 Bom 285 ..... 2.72
S.M. Faruque v. E. Pakistan, 10 DLR 562 ..... 6.31
S.M. Pandit v. Gujarat, AIR 1972 SC 252 ..... 2.82
S.M. Reza v. Secy. Ministry of Defence, 3 BLC (AD) 80 ..... 6.18A
S.M. Transports v. S. Mutt, AIR 1963 SC 864 ..... 2.114
S.M. Wadud v. Principal Secy., 46 DLR 251 ..... 1.102
S.M. Wali Ahmed v. Mahfuzul Haq, PLD 1957 Dac 209 ..... 1.48, 5.116
S.N. Mukherjee v. India, AIR 1990 SC 1984 ..... 5.63E
S.P. Gupta v. India, AIR 1982 SC 149 ..... 4.67, 5.160
SIEL Ltd v. India, AIR 1998 SC 3076 ..... 2.53
Saadat Khialy v. State, 15 DLR (SC) 81 ..... 5.228
Sabey (H) v. Secy. of State, [1978] 1 All E.R. 586 ..... 5.54
Sachidananda v. W.B., AIR 1987 1109 ..... 2.71
Sadasiv v. Emperor, 74 I.A. 89 ..... 2.186
Saddler v. Sheffield Corp., [1924] 1 Ch 483 ..... 5.79
Sadequddin v. RAJUK, 46 DLR 205 ..... 5.122
Sadequllah v. Bangladesh, 3 BLC 90 ..... 5.122
Sadhu Singh v. State, AIR 1954 SC 271 ..... 5.192

Saghir Ahmed v. U.P., AIR 1954 SC 728 ..... 2.46, 2.204, 5.24
Sagnata Investments v. Norwitch Corp., [1971] 1 QB 614 ..... 5.77
Saheda Khatun v. Administrative App. Tribunal, 3 BLC (AD) 155 ..... 5.12
Saheli v. Commr. of Police, AIR 1990 SC 513 ..... 5.20
Saia v. New Hork, 334 US 558 ..... 2.183, 2.184, 2.193
Saidur Rahman v. State, 45 DLR (AD) 66 ..... 5.192
Saifuddin v. Bombay, AIR 1962 SC 853 ..... 2.209, 2.211
Saiful Islam v. Bangladesh, 50 DLR 318 ..... 1.76
Saiyada Mossarrat v. Hindustan Steel, AIR 1989 SC 406 ..... 5.216
Sajeda Parvin v. Bangladesh, 40 DLR (AD) 178 ..... 5.71, 5.99, 5.110, 5.111, 5.192
Sajjan Singh v. Rajsthan, AIR 1965 SC 845 ..... 4.24, 5.217, 5.219
Sakal Papers v. India, AIR 1962 SC 305 ..... 2.194, 2.196
Sakhi Daler Khan v. Supdt. incharge, PLD 1957 Lah 813 ..... 2.128
Sakhwant v. Orissa, AIR 1955 SC 166 ..... 2.30
Salabuddin v. A.P., AIR 1984 SC 1905 ..... 2.114
Saleemullah v. Bangladesh, 47 DLR 218 ..... 1.76
Saleemullah v. Justice M.A. Quddus Chowdhury, 46 DLR 691 ..... 1.77
Saleemullah v. State, 44 DLR (AD) 309 ..... 2.190
Saleh Ahmed Khan v. Additional Secy., 41 DLR 210 ..... 3.13
Saleh Ahmed v. Bangladesh, 36 DLR (AD) 26 ..... 6.36
Saleha Begum v. Court of Settlement, 49 DLR 243 ..... 5.25, 5.123
Salehuddin v. D.C. Food, 20 DLR 165 ..... 5.128
Sales Tax Officer v. Abraham, AIR 1967 SC 1823 ..... 4.40
Sambamurthy v. A.P., AIR 1987 SC 663 ..... 4.57, 4.67
Samirannessa v. Kamaluddin, 43 DLR (AD) 175 ..... 5.192
Samiruddin v. State, 41 DLR (AD) 129 ..... 5.192
Sampath Kumar v. India, AIR 1987 SC 386 ..... 4.57, 4.67
Samuels v. McCurdy, 267 US 188 ..... 2.137
Sanaullah Khan v. Safura Khatun, 52 DLR (AD) 39 ..... 5.187
San Antonio Ind. School Dist. v. Rodriguez, 411 US 1 ..... 2.44
Sangram Singh v. Election Tribunal, AIR 1955 SC 425 ..... 5.59
Sanjit v. Rajasthan, AIR 1983 SC 328 ..... 2.133
Sankaranarayana v. Kerala, AIR 1971 SC 1997 ..... 6.18
Santi Swarup v. India, AIR 1955 SC 624 ..... 2.234
Santokh Singh v. Delhi Adm., AIR 1973 SC 1091 ..... 2.182, 2.193
Santosh Kumar Saha v. D.M. Faridpur, PLD 1959 Dac 738 ..... 5.37
Saraswati Syndicate v. India, AIR 1975 SC 460 ..... 2.206
Sarat Chandra v. Khagendra Nath, AIR 1961 SC 334 ..... 3.48
Sarguja Transport v. S.I.A.T., AIR 1987 SC 88 ..... 5.148
Sarwari Begum v. Bangladesh, 45 DLR 571 ..... 5.25
Sarwarjan Bhiyan v. Bangladesh, 1993 BLD 209 ..... 5.122
Sarwarlal v. Hydrabad, AIR 1960 SC 862 ..... 1.68
Sasankalal v. Pakistan, 21 DLR 108 ..... 2.209
Sashi Bhusan v. Asgar Ali, 20 DLR (SC) 217 ..... 5.184

Satish Chandra v. Univ. of Rajsthan, AIR 1970 Raj 184 ..... 5.113
Satpal v. Haryana, AIR 2000 SC 1702 ..... 3.49
Satwant Singh v. Asstt.Passport Officer, AIR 1967 SC 1836 ..... 2.70, 2.138
Satwant Singh v. Punjab, AIR 1960 SC 266 ..... 2.138
Satya Deo Prasad v. Bihar, AIR 1975 SC 367 ..... 2.130
Satyanarayan v. Mallikarjun, AIR 1960 SC 137 ..... 5.179
Satyavir v. India, AIR, 1986 SC 555 ..... 6.18
Sauders v. Carr, 268 Cal App 2d 10 ..... 2.109
Saurashtra Cement v. India, AIR 2001 SC 8 ..... 5.214
Saxena v. Chief Justice, AIR 1996 SC 2481 ..... 2.191
Sayedur Rahman v. Secy. Home Affairs, 1986 BLD 272 ..... 5.106, 5.108
Sazedur Rahman v, Secy. Ministry of Estt., 50 DLR 407 ..... 5.25, 5.123
Schacht v. U.S., 398 US 58 ..... 2.176
Schaefer v. U.S., 251 US 466 ..... 2.182
Schechter Paultry v. U.S., 295 US 495 ..... 4.31
Schick v. Reed, 419 US 256 ..... 3.46, 3.48
Schneckloth v. Bustamote, 412 US 212 ..... 2.217
Schneider v. Irvington, 308 US 147 ..... 2.177
Schneider v. New Hampshire, 315 US 568 ..... 2.183
Schneider v. State, 308 US 147 ..... 2.179
Sebastian Hongray v. India, AIR 1984 SC 1026 ..... 5.20
Secy. Aircraft Engrs. v. Registrar, T.U., 45 DLR (AD) 122 ..... 2.26
2.56, 2.169, 2.170, 5.24, 5.188
Secy. Industries v. Saleh Ahmed, 1981 BLD (AD) 91 ..... 5.138
Secy. IRD v. Nasrin Banu, 48 DLR (AD) 171 ..... 3.13
Secy. Jaipur Dev. Authority v. Daulat, (1997)1 SCC 35 ..... 2.25A
Secy. Ministry of Estt. v. Md. Jahangir, 51 DLR (AD) 148 ..... 2.26
Secy. Ministry of Finance v. Masdar Hossain, 2000 BLD (AD) 104 ..... 1.70
1.87, 1.87A, 3.49C, 4.24, 4.67, 5.4, 5.89, 5.233
5.233A, 5.234 - 5.234C, 5.234F, 5.234G, 6.15, 6.19, 6.21
Secy. Ministry of Finance v. Masdar Hossain, 2001 BLD (AD) 126 ..... 5.210A,
5.234F, 5.234G
Secy. Ministry of Food v. M.F. Ltd 44 DLR (AD) 166 ..... 1.67
Secy. Ministry of I & B v. Cricket Assen., AIR 1995 SC 1236 ..... 2.174
Secy. Ministry of Works v. Hasner Jahan, 6 BLC (AD) 111 ..... 5.123
Secy. Ministry of Works v. Court of Settlement, 51 DLR 396 ..... 5.34
Secy. Parliament v. Kh. Delwar Hossain, 1999 BLD (AD) 276 ..... 4.10B, 4.85
Secy of State for Edn. v. Tameside, [1977] AC 1014 ..... 5.38, 5.41, 5.72
Secy. of State for Employment v. ASLEF (No.2), [1972] 2 QB 455 ..... 5.38
Secy. of State v. Hari Bhanji, ILR 5 Mad 273 ..... 6.61
Secy. of State v. Kamachee Boyee Sahaba, 7 MIA 476 ..... 6.62
Secy. Of State v. Mask, 44 CWN 709 ..... 5.13
Secy. of State v. Moment, 40 IA 48 ..... 6.61
Secy. of State v. Ram, 37 CWN 967 ..... 6.61

Sekendar Ali v. Bangladesh, 42 DLR 346 ..... 2.131, 3.13, 5.107
Sekendar Ali v. BIWTA, 40 DLR (AD) 262 ..... 5.134
Selina Begum v. Bangladesh, 27 DLR 291 ..... 5.108
Semmes v. U.S., 91 US 21 ..... 3.48
Senior Supdt, Post Office v. Izhar Hossain, AIR 1989 SC 2262 ..... 2.60
Sentu v. Bangladesh, 50 DLR 220 ..... 5.103
Serajul Huq Chowdhury v. Nur Ahmed Co., 19 DLR 766 ..... 4.6A
Serajul Islam Thakur v. Bangladesh, 45 DLR 318 ..... 5.235, 6.18, 6.22
Serajul Islam v. D.G. Food, 43 DLR 237 ..... 5.25,5.73
Serajul Islam v. Director General, 42 DLR (AD) 199 ..... 2.139, 5.174
Seshadri v. Dist. Magistrate, AIR 1954 SC 747 ..... 2.22, 2.208
Sewakram v. Karajiya, AIR 1981 SC 1514 ..... 2.195
Sewpujanrai v. Collector of Customs, AIR 1958 SC 845 ..... 2.235, 5.81, 5.82
Sewram v. Sobharam, AIR 1993 SC 212 ..... 4.8
Shafique Ahmed v. BCIC, 45 DLR 95 ..... 5.72, 5.133
Shafiqul Islam v. Administrator of Waqfs, 2 BLC 57 ..... 5.79
Shafiqur Rahman v. Certificate Officer, 29 DLR (AD) 232 ..... 5.120, 5.122, 5.123
Shafiul Azam v. Director of Labour, 44 DLR 582 ..... 5.79
Shah Alam v. Mujibul Haq, 41 DLR (AD) 68 ..... 5.124, 5.125, 5.188, 6.7, 6.8
Shah Mohd. V. Secy. to the President, 1 BLC 8 ..... 6.71
Shahabuddin v. Secy. Youth & Sports, 45 DLR 360 ..... 5.171
Shahadat Ali v. Dy. Commr., 45 DLR 237 ..... 5.88
Shahadat Hussain v. Executive Engineer, 44 DLR 420 ..... 5.133
Shahana Hossain v. Asaduzzaman, 47 DLR (AD) 155 ..... 5.196
Shahar Ali v. A.R. Chowdury, 32 DLR 142 ..... 5.233
Shahdoodul Haque v. Registrar, Co-op., AIR 1974 SC 1896 ..... 5.59
Shahida Mohiuddin v. Bangladesh, W.P. 530 of 2001 ..... 5.31
Shahid Nabi v. Chief Eletion Commr, PLD 1997 SC 32 ..... 4.7
Shahidul Haq v. East Pakistan, 20 DLR 1005 ..... 5.108
Shahiduddin Iskander v. Election Commn., 27 DLR 476 ..... 5.125, 5.129
Shahidun Nabi v. Dhaka Univ., 45 DLR 20 ..... 5.41
Shahinur Alam v. Bangladesh, 50 DLR (AD) 211 ..... 3.13
Shahjahan Ali Khan v. Bangladesh, 52 DLR 99 ..... 2.216
Shahjahan Ali v. D.I.G., 17 DLR 141 ..... 5.67, 5.68
Shahnewaz v.Bangladesh, 50 DLR 633 ..... 5.20
Shahriar Rashid Khan v. Bangladesh, 1998 BLD (AD) 155 ..... 4.24, 4.28
5.15, 5.169, 6.72
Shahriar Rashid Khan v. Bangladesh, 49 DLR 133 ..... 5.13
Sham Bhat v. Agricultural I.T.O., AIR 1963 SC 591 ..... 2.55
Sham Sundar v. India, AIR 1969 SC 212 ..... 2.80, 2.82
Shamdasani v. Central Bank of India, AIR 1938 Bom 431 ..... 5.65
Shameem Hossain v. Mizanur Rahman, 2 BLC 509 ..... 2.40
Shameem v. Bangladesh, 47 DLR (AD) 109 ..... 5.110A
Shamser Ali v. Kafizan, 44 DLR (AD) 231 ..... 5.189

Shamser Singh v. Punjab, AIR 1974 SC 2192 ..... 3.11, 6.45
Shamsuddin v. Bangladesh, 28 DLR 117 ..... 5.108
Shamsuddin v. Gauhar Ayub, 17 DLR (SC) 384 ..... 4.62
Shamsul Huda v. BTMC, 32 DLR 114 ..... 5.12
Shamsul Huq Chowdhury v. Justice Abdur Rouf, 1996 BLD 126 ..... 5.6, 5.115
Shamsunnahar v. Bd. of Int.& Secon. Edn., 1993 BLD 8 ..... 5.54
Shamsunnahar Salam v. Wahidur Rahman, 51 DLR (AD) 129 ..... 5.129
Shamsur Rahman v. Tahera Nargis, 44 DLR (AD) 237 ..... 5.231
Shanker Das v. India, AIR 1985 SC 772 ..... 6.43
Shantistar Builders v. Narayana, AIR 1990 SC 630 ..... 2.111
Shapiro v. Thomspon, 394 US 618 ..... 2.157, 5.52
Sharafuddin Ahmed v. Secy. Home Affairs, 27 DLR 658 ..... 5.99
Shareef v. Commr. Registration of Residents, [1966] AC 47 ..... 5.60
Sharifa Khatun v. Md. Yusuf, 44 DLR (AD) 285 ..... 5.188
Sharma v. India, AIR 1981 SC 588 ..... 5.143
Sharma v. Satish Chandra, AIR 1954 SC 300 ..... 2.152
Sharma v. S.K. Sinha, AIR 1960 SC 1186 ..... 4.20
Sharma v. Srikrisna, AIR 1959 SC 395 ..... 2.195, 5.143, 5.145
Sharping M.S. Samity v. Bangladesh, 39 DLR (AD) 85 ..... 2.71, 5.132, 5.188
Sharping M.S. Samity v. Bangladesh, 1981 BLD 189 ..... 5.132
Sharping M.S. Samity v. Bangladesh, 39 DLR 78 ..... 5.132
Shashikant v. India, (1990) 4 SCC 366 ..... 2.28, 2.29
Shaughnessy v. U.S. , 345 US 206 ..... 5.51
Shearer v. Shield, [1914] AC 808 ..... 5.73
Sheela Barse v. Mkaharashtra, AIR 1983 SC 378 ..... 2.120
Sheikh Abdur Rashid v. Bangladesh 29 DLR 362 ..... 6.15
Sheikh Harunur Rashid v. Secy. Ministry of Jute, 49 DLR 596 ..... 2.139
Sheikh Nasim Anwar v. I.T.O.,19 DLR 421 ..... 5.145
Sheikh Shamsul Haq v. East Pakistan, 10 DLR 417 ..... 6.33
Shell Co. of Aust. v. F.C. of Taxation,[1930] All E.R. Rep.671 ..... 5.236, 5.239
Shelton v. Tucker, 364 US 479 ..... 2.167
Sheonath v. Asst. I.T.C., AIR 1967 Cal 382 ..... 5.128
Shephard v. India, AIR 1988 SC 686 ..... 5.62
Sheppard v. Maxwell, 384 US 333 ..... 2.151, 2.198
Sher Ali v. State, 46 DLR (AD) 67 ..... 5.183
Sheridan v. Salem, 14 ore 328 ..... 4.57
Shetty v. Karnataka, AIR 1989 SC 100 ..... 2.55
Shibu Soren v. Dayananda, AIR 2001 SC 2583 ..... 4.7
Shihab Din v. State, PLD 1964 SC 177 ..... 5.192
Shivamurthy v. Sanganna, (1971) 3 SCC 870 ..... 4.7
Shiv Dutt v. India, AIR 1984 SC 1194 ..... 2.137
Shiv Shankar Mills v. Haryana, AIR 1980 SC 1037 ..... 5.170
Shivacharana v. Mysore, AIR 1965 SC 280 ..... 2.38
Shivdeo Singh v. Punjab, AIR 1963 SC 1909 ..... 5.153

Shohan Ajmee v. Commr. of Customs, W.P.1882 of 2000.....2.105, 4.32, 4.35, 4.36
Short v. Poole Corp., [1926] Ch. 66.....5.47
Shreeram D. Prasad v. Sett. Commn., (1989) 1 SCC 628.....5.63
Shrikrisna Tikara v. M.P., AIR 1977 SC 1691.....5.51
Shrilekha Vidyarthi v. U.P., AIR 1991 SC 537.....2.65, 2.66, 2.70
Shriji Sales Corp v. India, (1997) 3 SCC 398.....5.139
Shrinivasa Reddy v. Mysore, AIR 1960 SC 350.....5.49
Shujat Ali v. India, AIR 1974 SC 1631.....2.82
Shuttlesworth v. Birmingham, 394 U.S. 147.....2.166, 2.179, 2.193, 4.31
Shyam S. Rajgharia v. M.A. Salam, 1988 BLD 127.....5.106, 5.197
Shyam Sunder v. Rajsthan, AIR 1974 SC 890.....6.61
Siddaveerappa v. Mysore, AIR 1971 Mys 200.....4.21
Siliguri Municipality v. Amalendu Das, AIR 1984 SC 653.....5.166
Silver v. Louisville, 213 US 175.....5.15
Silverman v. U. S. 365 US 505.....2.8, 2.217
Silverthorne Lumber Co. v. U.S., 251 US 385.....2.221
Singer Sewing Machine v. C.I.T., 17 DLR (SC) 332.....5.40
Singla v. India, AIR 1984 SC 1595.....2.83
Sinha Gavindji v. D.C.C.I.(1962) 1 SCJ 93.....5.56
Sir Edward Snelson v Judges, H.C., 16 DLR(SC) 535.....5.223, 5.225, 5.229, 5.230
Siraj Din v. Kala, 16 DLR (SC) 94.....5.187, 5.192
Sirajul Islam v. Bangladesh, 53 DLR 127.....5.41
Sita Ram v. U.P., AIR 1972 SC 1168.....4.35, 4.39
Sitapur Municipality v. Prayag Narain, AIR 1970 SC 58.....4.40
Sitharamachary v. Senior Dy. Inspector, AIR 1958 AP 78.....2.169
Sivaramakrishnan v. Arumugha, AIR 1957 Mad 17.....5.116
Sk. Abdul Mannan v. Raj Textile Mills, 42 DLR (AD) 11.....4.62
Sk. Ali Ahmed v. Secy. Home, 40 DLR (AD) 170.....5.51, 5.52, 5.54, 5.55, 5.188
Sk. Pir Mohd v. Khulna Mun. Comm., 19 DLR 55.....5.122
Sk. Shahidul Islam v. State, 44 DLR (AD) 192.....5.195
Skinner v. Oklahoma, 316 US 535.....2.30
Smelting Company of Australia v. C.I.R., [1897] 1 QB 275.....1.62
Smith v. Hughes, [1960] 1 WLR 830.....1.60
Smith v. Inner London Edn., [1978] 1 All E.R. 411.....5.38
Snowden v. Hughes, 321 US 1.....2.69
Sobho Gyanchandani v. Crown, PLD 1952 FC 29.....4.34
Sodhi v. India, AIR 1983 SC 65.....2.158
Sohel Ahmed Chy v. Salahuddin Ayubi, (Unreported, ...5.227
Somaiya Organics (Pvt) Ltd. v. India, AIR 2001 SC 1723.....4.53, 5.201
Somedullah v. Mahmud Ali, 44 DLR (AD) 83.....5.188
Sompong v. State, 45 DLR (AD) 110.....5.192
Sona Mia v. Jamila Khatun, 41 DLR (AD) 113.....5.188
Sonali Bank v. U.C.B.L., 44 DLR (AD) 316.....5.187
Sonali Fishermen v. Bangladesh, 46 DLR 402.....5.133

Southeastern Promotions Ltd v. Conrad, 420 US 546 ..... 2.166, 2.174
Southerid-on Sea Corp. v. Hodgson, [1961] 2 All E.R. 46 ..... 5.137
Southern Fisheries v. Kingfisheries, 34 DLR 23 ..... 5.226
Southern Painters v. F & CT Ltd, AIR 1994 SC 1277 ..... 5.51
Southwestern Oil Co. v. Texas, 217 US 114 ..... 2.52
Sowmittri v. India, AIR 1985 SC 1618 ..... 2.74
Sparks v. Edward Ash Ltd [1943] 1 K.B. 223 ..... 4.40
Special Court Bill, In Re, AIR 1979 SC 478 ..... 1.58
Special Reference no.1 of 1995, 47 DLR (AD) 111 ..... 4.9A, 4.10D 4.10F, 4.85 5.16, 5.17, 5.212
Speiser v. Randail, 357 US 513 ..... 2.176
Spence v. Washington, 418 US 405 ..... 2.175
Square Pharmaceuticals Ltd v. Bangladesh, 3 BLC 22 ..... 5.123, 5.143
Srinivasha Theatre v. T.N., AIR 1992 SC 999 ..... 2.54
Srinivasiah v. Balaji Krisna, AIR 1999 SC 462 ..... 5.204
St. James's Evening Post, (1742) 2 Atk 469 ..... 5.224
Stadmax Ltd. v. G.M., CIB, Bangladesh Bank, 50 DLR 594 ..... 5.129
Stainislaus v. M.P., AIR 1977 SC 908 ..... 2.211
Standard Vacuum Oil v. Chittagong Port, PLD 1961 Dac 278 ..... 5.146
State Bank of India v. Anajn Sanyal, AIR 2001 SC 1748 ..... 2.88A
State Bank of India v. Arvind Shukla, AIR 2001 SC 2391 ..... 6.40
State Bank of Patiala v. Sharma, AIR 1996 SC 1669 ..... 5.56, 5.63
State Trading Corp. v. C.T.O., AIR 1963 SC 1811 ..... 2.19
State v. Abdul Karim Sarker, 37 DLR 26 ..... 5.228
State v. Abdus Sattar, 43 DLR (AD) 44 ..... 5.192, 5.193
State v. Abu Musa, 53 DLR (AD) 87 ..... 5.193
State v. Ashraf Ali, 43 DLR (AD) 83 ..... 5.193
State v. Constable Lal Mia, 44 DLR (AD) 277 ..... 5.193
State v. D.C. Satkhira, 45 DLR 643 ..... 5.93
State v. Divisional Special Judge, 44 DLR (AD) 215 ..... 5.192
State v. Dosso, 11 DLR (SC) 1 ..... 1.6, 1.91
State v. Editor, Pakistan Observer, 10 DLR 255 ..... 5.228
State v. Eliadah McCord, 2 BLC (AD) 1 ..... 3.45
State v. Hindusthan Lever, AIR 1972 All 486 ..... 6.61
State v. Hubbard, 148 Ala 391 ..... 4.57
State v. Joynal Abedin, 32 DLR (AD) 110 ..... 1.60, 1.100, 5.51
State v. Khasru, 43 DLR (AD) 182 ..... 5.192
State v. Mantu, 44 DLR (AD) 287 ..... 5.193
State v. Md. Nawaz, 18 DLR (SC) 503 ..... 5.201
State v. Md. Abdur Rouf, 37 DLR 188 ..... 5.226
State v. Nazrul Islam, 37 DLR 200 ..... 5.225, 5.231
State v. Lt. Col Faruk Rahman, 53 DLR 287 ..... 1.103
State v. Purna Chandra, 22 DLR 289 ..... 2.127
State v. Rafiqul Hyder, 45 DLR (AD) 13 ..... 5.193

State v. Tayeb Ali, 40 DLR (AD) 6 ..... 5.192
State v. Tugla, AIR 1955 All 423 ..... 3.36
State v. Zahir, 45 DLR (AD) 163 ..... 5.31, 5.49, 5.103
State v. Zia-ur-Rahman, PLD 1973 SC 49 ..... 1.100
Statesman v. Deb, AIR 1968 SC 1495 ..... 5.115
Steeples v. Derbyshire C.C., [1984] 3 All E.R. 468 ..... 5.66, 5.69
Stewart Dry Goods Co. v. Lewis, 294 US 550 ..... 2.47
Stockdale v. Hansard, [1839] 8 LJQB 294 ..... 4.90
Stromborg v. California, 283 US 359 ..... 2.175, 2.182, 2.186
Strunk v. U.S., 412 US 434 ..... 2.145
Sturges v. Crowninshield, 4 L.Ed 529 ..... 1.58
Subal Chandra v. M.S. Huq, Magistrate, 12 DLR 220 ..... 5.41
Sudhir Das v. Harimohan Das, 39 DLR (AD) 218 ..... 5.189
Suganmal v. M.P., AIR 1965 SC 1740 ..... 5.170
Sujat Ali v. India, AIR 1974 SC 1631 ..... 2.82, 2.85
Sukdas v. Union Territory, AIR 1986 SC 991 ..... 2.120
Sukhanandan v. India, AIR 1982 SC 902 ..... 5.24
Sukhbans Singh v. Punjab, AIR 1962 SC 1711 ..... 6.38
Sukuruddin v. East Pakistan, 18 DLR 406 ..... 6.34
Suleman v. Board of Revenue, 1970 SCMR 574 ..... 5.122
Sultana Nahar v. Bangladesh, 1998 BLD 363 ..... 2.112, 2.202
5.129, 2.202, 5.164
Sultan Ahmed v. Haji S. Ahmed, 34 DLR (AD) 352 ..... 5.192
Sultan Mahmudul Hasan v. State, 1985 BLD (AD) 323 ..... 2.143
Suman Gupta v. J & K, AIR 1983 SC 1235 ..... 1.72
Sumikin Bushan Corp. v. C.P.A., 6 MLR 251 ..... 2.71
Summerville v. Pressley, 33 SC 56 ..... 2.36
Sunil Batra v. Delhi Administration, AIR 1980 SC 1579 ..... 2.98, 2.112, 5.160
Supdt.& Legal Remem. v. Corp.of Calcutta, AIR 1967 SC 997 ..... 5.218
Superintendent v. Ram Manohar, AIR 1960 SC 633 ..... 2.185, 2.186
Superior Water, Light & Power Co. v. Superior, 263 US 125 ..... 2.114
Supreme Court Bar Assen. V. India, (1998) 4 SCC 409 ..... 5.198
Suranjit Sen Gupta v. Election Trib., 1981 BLD 132 ..... 4.79-4.82
Surat Singh v. Sudama Prasad, AIR 1965 All 536 ..... 4.10D, 5.114
Surendra Mohan Saha v. Bangladesh, 34 DLR 110 ..... 5.227
Surendra v. Nabakrisna, AIR 1958 Orissa 168 ..... 4.86
Suresh v. Punit, AIR 1951 Cal 176 ..... 4.89
Suresh v. Vasant, AIR 1972 SC 1680 ..... 5.151
Suruj Mal v. India, AIR 1982 SC 130 ..... 2.51
Suruj Mall v. A.V. Visvanatha, AIR 1954 SC 545 ..... 5.15
Sushil Kumar v. India, AIR 1986 SC 1636 ..... 5.122
Swadeshi Cotton Mills v. India, AIR 1981 SC 818 ..... 5.52, 5.53
Swami Saran v. U.P.,AIR 1980 SC 269 ..... 6.33
Swaran Singh v. U.P., AIR 1998 SC 2026 ..... 3.49

Sydney Municipal Council v. Campbell, [1925] AC 338 ..... 5.71
Syed A. Mansur v. W.B. Leg. Assembly, AIR 1966 Cal 363 ..... 4.17
Syed Abul Mansoor v. East Pakistan, 28 DLR 337 ..... 6.26, 6.31
Syed Ali Bepari v. Nabaran Molla, PLD 1962 SC 502 ..... 5.187
Syed Ali v. Nishan Singh, 19 DLR (SC) 278 ..... 5.55
Syed Makbool Hussain v. Bangladesh, 44 DLR 39 ..... 2.156, 2.160
Syed Matiur Rob v. Bangladesh, 42 DLR (AD) 126 ..... 5.130
Syed Md. Hasan v. Pakistan 12 DLR (SC) 6 ..... 6.34
Syed Qasim Razvi v. Hydrabad, AIR 1953 SC 156 ..... 2.58, 2.234
Syed Yakoob v. Radhakrisnan, AIR 1964 SC 477 ..... 5.41
Syeda Chand Sultana v. Bangladesh, 48 DLR 547 ..... 2.216A
Syeda Rafiqua Chowdhury v. Secy. Ministry of Commerce, 3 MLR 160 ..... 5.87

T

T.B. Ibrahim v. R.T.A., AIR 1953 SC 79 ..... 4.40
T. Islam v. Dhaka Municipal Corp. (Unreported) 5.135
T.M. Hasan v. Kerala Financial Corp., AIR 1988 SC 157 ..... 2.71
T.N. Educational Services Assn. v. T.N., AIR 1980 SC 379 ..... 2.84
T.N. Seshan v. India, (1998) 4 SCC 611 ..... 6.7A
T.N. v. Jaganathan, AIR 1996 SC 2449 ..... 4.6A
T.R. Tewari v. District Board, AIR 1964 SC 1680 ..... 5.145
Tafijul Haq v. Bangladesh, 1998 BLD (AD) 269 ..... 5.128
Tahera Islam v. Secy Home Affairs, 40 DLR 193 ..... 5.106
Tahera Nargis v. Shamsur Rahman, 41 DLR 508 ..... 2.132, 5.220, 5.227, 5.228
Tahir Beg v. Kausar Ali, PLD1976 SC 504 ..... 4.10D
Takhetray v. Gujarat, AIR 1970 SC 143 ..... 6.33
Talekhal Fishermen v. Bangladesh, 1981 BLD (AD) 103 ..... 5.85
Talib Hussain, AIR 1971 SC 62 ..... 5.98
Tasmil Nadu v. Guruswami, AIR 1997 SC 1199 ..... 5.139
Tamizuddin Khan v. East Pakisatan, PLD 1964 Dac 795 ..... 2.172
Tamizuddin Khan v. Pakistan, 7 DLR (WP) 121 ..... 1.11
Tanner v. Little, 240 US 369 ..... 2.29
Tarapada Dey v. W.B., AIR 1951 SC 174 ..... 2.132
Tarique Rahman v. D.G. Anti-corruption, 52 DLR 518 ..... 2.152
Tariq Transport v. Sargoda Bus Service, 11 DLR (SC) 140 ..... 5.53, 5.156
Tasmina Chowdhury v. Deputy Commr, 49 DLR 29 ..... 5.123, 5.129
Tata cellular v. India, AIR 1996 SC 11 ..... 5.12
Tata Engineering Ltd v. Bihar, AIR 1965 SC 40 ..... 2.19
Tayazuddin v. State, 2001 BLD 503 ..... 2.116
Taylor v. Brighton B.C., [1947] 1 K.B. 736 ..... 4.40
Teh Cheng Poh v. Public Prosecutor,[1980] AC 458 ..... 3.44, 5.17
Tej Kiran Jain v. Sanjiva Reddy, AIR 1970 SC 1573 ..... 4.88, 5.8
Tesco Stores v. Environment Scy., [1995] 2 All E.R. 636 ..... 5.79
Texas v. White, 19 L.Ed 227 ..... 1.96

Thampanoor v. Charupara, AIR 1999 SC 3309 ..... 4.4
Thankamma v. Hon'ble Speaker, AIR 1952 TC 166 ..... 4.10D
The King v. Clerke, [1800] 1 East 38 ..... 5.116
Thomas Dana v. Punjab, AIR 1959 SC 375 ..... 2.141
Thomas v. Collins, 323 US 516 ..... 2.82.176
Thomas v. Punjab, AIR 1959 SC 375 ..... 2.141
Thornberg v. American College of Obstetricians, 476 US 747 ..... 1.47
Tigner v. Texas, 310 US 141 ..... 2.26
Tika Ramji v. U.P., AIR 1956 SC 676 ..... 2.64
Tilokchand v. H.B,. Munshi, AIR 1970 SC 898 ..... 5.22, 5.121, 5.122, 5.150
Time, Inc. v. Firestone, 424 US 448 ..... 2.191
Time v. Hill, 385 US 374 ..... 2.194
Times Film Corporation v. Chicago, 365 US 43 ..... 2.199
Tinker v. Des Monies School District, 393 US 503 ..... 2.175
Titas Gas Karma. Union v. Registrar, T.U. (Unreported) 5.90
Tiwari Kanhaiyalal v. C.I.T., AIR 1975 SC 902 ..... 2.138
Tofazzal Hossain v. East Pakistan, 15 DLR (SC) 139 ..... 5.41
Tofazzal Hossain v. East Pakistan, 17 DLR 76 ..... 2.23
Toombs v. Citizens Board of Wynesboro. 281 US 643 ..... 5.15
Torab Ali v. BTMC, 41 DLR 138 ..... 5.61, 6.40
Toronto Electric Commr. v. Snider, [1925] AC 396 ..... 4.68
Trade Channel v. Collector of Customs, 44 DLR 127 ..... 5.123
Travancore Rayons v. India, AIR 1971 SC 862 ..... 5.58
Trehan v. India, AIR 1989 SC 568 ..... 5.62
Trimbak Gangadhar v. Ramchandra, AIR 1977 SC 1222 ..... 5.179
Trimble v. Gordon, 430 US 762 ..... 2.26, 2.27
Truax v. Raich, 239 US 33 ..... 2.47
Tufail Md. v. Dawoodi, PLD 1965 SC 269 ..... 5.119
Twyford Tea Co. v. Kerala, AIR 1970 SC 1133 ..... 2.55

U

U.C. Bank v. Their Workmen, AIR 1951 SC 230 ..... 5.120
U.K. Assn.of Pro.Engrs. v. A.C.A.S.,[1979] 2 All E.R. 478 ..... 5.66
U.N.R. Rao v. Indira Gandhi, AIR 1971 SC 1002 ..... 3.11
U.P. Singh v. Bd. of Governors, AIR 1984 MP 59 ..... 5.55
U.P. v. Abdus Samad, AIR 1962 SC 1506 ..... 2.128
U.P. v. Babu Ram, AIR 1961 SC 751 ..... 6.21
U.P. v. Bahadur Singh, AIR 1983 SC 845 ..... 5.122
U.P. v. Bridge & Roof Co., (1996) 6 SCC 22 ..... 5.132
U.P. v. Chet Ram, AIR 1989 SC 1543 ..... 5.193
U.P. v. COD Chheoki Employees' Co-op. Society, AIR 1977 SC 1413 ..... 2.169
U.P. v. Dharmendra Singh, AIR 1999 SC 3789 ..... 2.154
U.P. v. Hindusthan Aluminium, AIR 1979 SC 1459 ..... 4.40
U.P. v. Jasoda Nandan, AIR 1974 SC 753 ..... 5.193

U.P. v. Kamal Kishore, AIR 1988 SC 208 ..... 2.164
U.P. v. Kartar Singh, AIR 1964 SC 1135 ..... 2.45
U.P. v. Kaushilya, AIR 1964 SC 416 ..... 2.21, 2.158
U.P. v. Maharaja Dharmendra, AIR 1989 SC 997 ..... 5.56, 5.77, 5.80, 5.135
U.P. v. Mohd Nooh, AIR 1958 SC 86 ..... 5.67, 5.68, 6.40
U.P. v. Mohd. Sharif, AIR 1982 SC 937 ..... 5.56
U.P. v. Murari, AIR 1971 SC 2210 ..... 6.56
U.P. v. Om Prakash Gupta, AIR 1970 SC 679 ..... 3.13
U.P. v. Rafiquddin, AIR 1988 SC 162 ..... 6.48
U.P. v. Raja Ram Jaiswal, AIR 1985 SC 110 ..... 5.79
U.P. v. Renusagar Power Co., AIR 1988 SC 1737 ..... 5.51
U.P. v. Salig Ram Sharma, AIR 1960 All 543 ..... 5.56
U.P. v. Sheo Bachan Rao, AIR 1956 Pat 321 ..... 5.228
U.P. v. Shiv Charan, AIR 1981 SC 1722 ..... 2.71
U.P. v. Shri Brahm Dutta, AIR 1987 SC 943 ..... 5.150
U.P. v. Shyamlal Sharma, AIR 1971 SC 2151 ..... 6.33
U.P. v. Srivastava, AIR 1957 SC 912 ..... 1.66, 5.50, 6.51
U.P. v. Sughar Singh, AIR 1974 SC 423 ..... 2.87
U.S. v. Baltimore & Ohio R.R. Co., 21 L.Ed 597 ..... 3.52
U.S. v. C.I.O., 335 US 106 ..... 5.12
U.S. v. Ceccolini, 98 Sup. 1054 (1978) 2.221
U.S. v. Chicago, 282 U.S. 311 ..... 4.31
U.S. v. Classic, 313 US 299 ..... 1.50, 1.53
U.S. v. Cohen Grocery Co., 255 US 81 ..... 2.104
U.S. v. Delaware, 213 US 366, 1.60 ..... 1.60
U.S. v. Harriss, 347 US 612 ..... 5.15
U.S. v. Janis, 427 US 433 ..... 2.221
U.S. v. Lapp, 244 Fed 377 ..... 4.57
U.S. v. Mackintosh, 283 U.S. 605 ..... 2.182
U.S. v. Paramount Pictures, 334 US 131 ..... 2.199
U.S. v. Raines, 362 US 17 ..... 5.15
U.S. v. Salerno, 481 US 793 ..... 2.116A
U.S. v. Sperry Corp. 493 US 52 ..... 2.109
U.S. v. Wharton, 514 F.2d 406 ..... 5.137
U.S. v. Wilson, 7 Pet. 150 ..... 3.46
U.S. v. Wunderlich, 342 US 98 ..... 5.74
U. Unichovi v. Kerala, AIR 1962 SC 12 ..... 2.206
Udaichand v. Shankarlal, AIR 1978 SC 765 ..... 5.187
Udayasan Karan v. India, AIR 1996 SC 1901 ..... 2.38
Udit Narayan v. Addl. Member, Bd.of Rev., AIR 1963 SC 786 ..... 5.146
Uganda v. Commr. of Prisons, Ex p. Matuvo, [1966] E.A.514 ..... 1.92
Ujjam Bai v. U.P. AIR 1962 SC 1621 ..... 5.37
Union Carbide Corp. v. India, AIR 1992 SC 248 ..... 5.20, 5.55A, 5.198
Union Colliery Co. v. Bryden, [1899] AC 580 ..... 4.27

Union of Benefices, Re, [1954] AC 1111 .....5.47
Union Territory. Chandighar v. Managing Society, AIR 1996 SC 1759.....5.139
United Bank Ltd. v. Meenakshi, AIR 1998 SC 789 .....2.26
United Commercial Bank v. Workman, AIR 1951 SC 230.....5.34
United Commercial Bank v. Freshner Bucket & Redging, 3 BLC 430....5.177, 5.179
United Public Works v. Mitchell, 330 US 75.....2.180
University of California v. Bakke, 438 US 265.....2.73
University of Dacca v. Sajjad Hussain, 34 DLR (AD) 1 .....1.74, 2.136
University of Dacca v. Zakir Ahmed. 16 DLR (SC) 722 ....5.51, 5.54, 5.62, 5.88
University of Dhaka v. Prof. Monwaruddin, 52 DLR (AD) 1 5.107, 5.128, 5.191
University of Mysore v. Govind Rao, AIR 1965 SC 491.....5.112, 5.115
Unni Krishnan v. A.P., AIR 1993 SC 2178 .....1.79. 1.81, 2.76, 2.112
Usery v. Turner Elkhorn, 428 US 1.....2.109, 6.20
Usif Patil v. Crown, 7 DLR (FC) 385, 1.13 .....1.13
Usmania Glass Sheet v. S.T.O., 22 DLR (SC) 437 .....5.152
Usmania Glass v. Asst. Collector, Customs, 19 DLR 592.....5.128
Utility Stores Corp. v. Punjab, PLD 1987 SC 447 .....5.39
Uttar Khand Mahila Parishad v. UP, AIR 1992 SC 1695 .....2.72
Uttara Bank v. Macneil & Kilburn, 33 DLR (AD) 298 .....5.191

V

V.M. Syed v. A.P., AIR 1954 SC 314.....2.54, 5.15
V.T. Khanzode v. Reserve Bank, AIR 1982 SC 917.....6.20
Vacher & Sons v. London Society of Comp., [1913] AC 107 .....1.60
Valentine v. Cherestensen, 316 US 52 .....2.178
Vance v. Universal Amusemmment Company, 445 US 308 .....2.199
Vasantalal v. Bombay, AIR 1961 SC 4 .....4.33, 4.34
Vasant v. Bar Council, (1999) 1 SCC 45 ..... 5.63E
Va
theeswaran v. Tamil Nadu, AIR 1983 SC 361 .....2.154
Veera Ibrahim v. Maharashtra, AIR 1976 SC 1167 .....2.152
Veerarajam v. T.N., AIR 1987 SC 695 .....5.79
Venkata Rao v. Secy of State, AIR 1937 PC 31.....6.24
Venkata Reddy v. A.P., AIR 1985 SC 724.....3.34, 3.38
Venkataraman v. India, AIR 1954 SC 375.....2.139, 2.141
Venkataraman v. India, AIR 1979 SC 49.....5.75
Venkataraman v. Madras, AIR 1951 SC 229 .....2.90
Venkateshwami v. Univ. of Mysore, AIR 1964 Mys 159 .....5.113
Venkateswara v. A.P., AIR 1966 SC 828.....5.156
Venketadri v. Tenali Municpality, AIR 1956 AP 61.....2.46
Venktaraya v. Shivarama, AIR 1961 AP 250.....5.113
Vice Chancellor v. S.K. Ghose, AIR 1954 SC 217 .....5.90
Vice-Chairman v. Shah Ghulam Nabi, 27 DLR (AD) 156.....5.144
Vidya charan Shukla v. Purshattam Lal, AIR 1981 SC 547.....4.6A

Vijavai Pratab v. Ajit, AIR 1966 All 305 ..... 5.228
Vikram v. Bihar, AIR 1988 SC 1782 ..... 2.111
Vilanagandan v. Executive Engineer, AIR 1978 SC 930 ..... 5.54
Vimal v. Prodhan, AIR 1979 SC 1501 ..... 2.129
Vimal v. U.P., AIR 1956 All 56 ..... 2.125
Vinayak Shamrao v. Moreswar Ganesh, AIR 1944 Nag 44 ..... 5.222
Vincent v. India, AIR 1987 SC 990 ..... 2.111
Vineet Narain v. India, AIR 1998 SC 889 ..... 2.150, 5.89A, 5.150, 5.197, 5.201
Virendra v. Punjab, AIR 1957 SC 896 ..... 2.183, 2.185, 2.194, 2.195, 2.197
Virendra Kumar v. India, AIR 1981 SC 947 ..... 5.49
Virginia Pharmacy v. Virginia Citizens, 425 US 748 ..... 2.178
Vishakapatnam Port Trust v. Ram Bahadur, AIR 1997 SC 1057 ..... 5.51
Vishakha v. Rajasthan, AIR 1997 SC 3011 ..... 2.72, 2.112
Viswanath v. Venkatachariya, 1990 (2) Cr.L.J. 2179 ..... 2.190, 5.225
Virudhanagar S.R. Mills v. Madras, AIR 1968 SC 1196 ..... 5.150
Viswanath v. State, AIR 1957 Raj 75 ..... 5.113
Viterelli v. Seaton, 359 US 535 ..... 5.15

W

W.B. v. Anwar Ali Sarker, AIR 1952 SC 75 ..... 2.29, 2.56, 2.58, 2.62
W.B. v. Asoke Dey, AIR 1972 SC 1660 ..... 2.158
W.B. v. B.K. Mandol, AIR 1962 SC 779 ..... 6.56, 6.59
W.B. v. Corp. of Calcutta, AIR 1967 SC 997 ..... 5.217, 6.65
W.B. v. S.K. Ghose, AIR 1963 SC 255 ..... 2.138
W.B. v. Shivananda, AIR 1998 SC 2050 ..... 5.69
W.R. Moran Pty Ltd v. D.C.T., [1940] AC 838 ..... 4.27
W.W. Atkins v. Kansas, 191 US 207 ..... 3.52
WLW, In re, [1972] 1 Ch. 456 ..... 5.58
Waddington v. Miah, [1974] 2 All E.R. 377 ..... 2.1
Wadhwa v. Bihar, AIR 1987 SC 579 ..... 3.38, 4.27
Wadhwani v. Rajsthan, AIR 1958 Raj 138 ..... 4.53
Wahab v. Secretary, Ministry of Land, 1 MLR 338 ..... 1.77
Wahidullah Majumdar v. Bangladesh,49 DLR 237 ..... 5.124
Wajear Rahman v. State, 43 DLR (AD) 25 ..... 5.187
Wali Ahmed v. Mahfuzul Huq, 8 DLR 429 ..... 1.48
Walz v. Tax Commission of New York, 397 US 664 ..... 4.68
Waman Rao v. India, AIR 1981 SC 271 ..... 4.57, 4.67
Wampler v. Lecompte, 282 US 172 ..... 2.32
Ward & Gow v. Krinsky, 259 US 503 ..... 2.32
Warris Meah v. State, 9 DLR (SC) 117 ..... 2.59, 2.64
Warris Miah v. Secy. LGRD, 41 DLR 51 ..... 5.114
Waryam v. Amarnath, AIR 1954 SC 215 ..... 5.177, 5.179
Wasi Haider v. West Pakistan, PLD 1963 Kar 458 ..... 5.88
Wasim Sajjad v. Pakistan, PLD 2001 SC 233 ..... 4.57

Wason v. Walter, LR 4 QB 73 ..... 4.90
Watkins v. U.S., 354 US 178 ..... 4.99
Watson v. Maryland, 218 US 173 ..... 2.38
Wazir Chand v. H.P., AIR 1954 SC 415 ..... 3.29
Webb v. Minister of H.L.G., [1965] 2 All E.R. 193 ..... 5.71, 5.73
Weeks v. U.S., 232 US 383 2,221
West Bengal Elec. Bd. v. Desh Bandhu, AIR 1985 SC 722 ..... 2.88
West Coast Hotel v. Parrish, 300 US 379 ..... 2.103
West Pakistan v. Din Mohammad, PLD 1964 SC 21 ..... 6.21
West Pakistan v. Mehboob, PLD 1962 SC 433 ..... 5.88
West Pakistan v. Nasir Khan, PLD 1965 SC 106 ..... 6.21
West Pakistan v. Shorish Kashmiri, 21 DLR (SC) 1 ..... 1.84, 2.13, 2.98 5.93, 5.94, 5.96, 5.97, 5.104, 5.143
West Pakitan v. Bashir Ahmed, 11 DLR (SC) 232 ..... 6.34
West Virginia State Bd. of Edn. v. Barnette, 319 US 624 ..... 2.1, 2.176, 2.211
Western India Theatre v. Municipal Corp., AIR 1959 SC 582 ..... 4.35
Western India Theatres v. Cantonment Bd., AIR 1959 SC 582 ..... 2.54
Westminster Corp. v. L & N W. Rly co., [1905] AC 426 ..... 5.47, 5.71, 5.73, 5.75
Whalen v. Roe, 429 US 589 ..... 2.103
White and Collins v. Minister of Health, [1939] 2 KB 383 ..... 5.34
Williams v. U.S., 401 US 646 ..... 1.72
Williams v. Walsh, 222 US 415 ..... 2.38
Williamson v. Lee Optical Co., 348 US 483 ..... 1.57, 2.30, 2.103
Winifred Rubie v. Bangladesh, 1981 BLD 30 ..... 1.81, 2.76
Wiseman v. Borneman, [1971] AC 297 ..... 5.62
Withrow v. Larkin, 421 US 35 ..... 5.53
Woodhouse v. Brotherwood Ltd, [1972] 3 All E.R. 92,95 ..... 5.40
Woodson v. North Carolina, 428 US 280 ..... 2.154
Wooley v. Maynard, 430 US 705 ..... 2.176
Woolverhampton N.W. Works v. Hawkes, (1859) 6 CB (NS) 336 ..... 5.13
Workmen, Govt. Silk Facty v. Industrial Trib., AIR 1973 SC 1423 ..... 5.119
Workmen, Hindustan Steel v. Hind. Steel Ltd, AIR 1985 SC 251 ..... 6.44
World Saviours . India, (1998) 7 SCC 507 ..... 2.111
Wukula Mahaz v, Pakistan, PLD 1998 SC 1263 ..... 4.57

Y

Yakus v. U.S., 321 U.S. 414 ..... 4.31
Yick Wo v. Peter Hopkins, 30 L.Ed.220 ..... 2.62
Youngstown Steel & Tube v. Sawyer, 343 US 579 ..... 3.30
Younus Chokder v. Elecion Commn., 46 DLR 395 ..... 5.13
Yunus Mia v. Secy. Public Works, 45 DLR 498 ..... 5.87, 5.122
Yunus v. Mustaquim, AIR 1984 SC 38 ..... 5.179
Yusuf Sk. v. Appellate Tribunal, 29 DLR (SC) 211 ..... 5.41
Yusuf v. Bombay, AIR 1954 SC 321 ..... 2.74

Z

Z.A. Bhutto v. State, PLD 1979 SC 741 ..... 5.205
Zafar Ali v. Gen. Parvez Mosharraf, PLD 2000 SC 869 ..... 4.57
Zaharuddin v. Bangladesh, 6 BLC 712 ..... 5.132
Zahedul Islam v. H.M. Ershad, 6 BLC 301 ..... 4.6, 4.6B
5.113, 5.115
Zahirul Islam v. N.B.L., 46 DLR (AD) 191 ..... 5.128
Zahura Khatun v. Rokeya Khatun, 43 DLR (AD) 98 ..... 5.187
Zainul Abedin v. Biman, 34 DLR 77 ..... 2.86, 6.19, 6.20
Zainul Abedin v. Co-operative Bank, 18 DLR (SC) 482 ..... 5.87
Zainul v. Multan Co-operative, 18 DLR (SC) 482 ..... 5.88
Zaker Hossain v. Abdur Rahim, 42 DLR (AD) 153 ..... 5.123
5.124, 5.125, 6.8
Zaminur Rahman v. Bangladesh, 31 DLR (AD) 171 ..... 4.54
Zamiruddin Ahmed v. Bangladesh, 1981 BLD 304 ..... 5.91, 5.146
Zeaul Haq v. East Pakistan Co-op., 19 DLR 498 ..... 5.88
Zenith Packages v. L. A. Trib., 52 DLR (AD) 160, ... 5.204, 5.205
Ziaur Rahman Khan v. Bangladesh, 49 DLR 491 ..... 3.52
Zilla Parishad v. K.S. Mills, AIR 1968 SC 98 ..... 2.234
Zubaida Nahar v. Khairnnessa, 3 BLC (AD) 170 ..... 5.204
Zucht v. King, 260 US 174 ..... 2.29
Zurcher v. Standford Daily, 98 Sup.Ct.1970 ..... 2.195

SUPPLEMENT

2.36 Classification on the basis of size, amount, quantity or number. Where the authority limits the grant of private warehouse licence to companies having paid up capital of Tk.10 crores or more, the classification does not offend equality clause of the Constitution as though all citizens are equal before the law, they may be subjected to different provisions of law at different times depending upon the circumstances in which they find themselves.[1]

2.71 Government contract. The court made a distinction between enforcement of contract and the tendering process in awarding the contract. When a bidder's tender was once found non-responsive and therefore excluded from consideration, and subsequently the authority held that tender to be responsive on consideration of a clarification letter of that bidder, the court quoted with approval the decision of the Indian Supreme Court in *Tata Cellular v. India*[2], and held in *Hyundai Corporation v. Sumikin Bussan*[3], that even in awarding a contract a public functionary must act within the framework of rule of law and cannot be allowed to act arbitrarily or unreasonably and the court in writ jurisdiction will interfere when the decision making process of the public functionary lacks transparency.

2.77 Discrimination in public employment. The members of the administrative service and the members of other services of the Republic have been appointed on the basis of the same competitive examination and there has not been any different procedure in appointing them and the members of the other services cannot be treated differently from the members of the administrative service without violating the guarantee of article 29 of the Constitution.[4]

2.105 Sweep of article 31. Where the National Board of Revenue restricts the grant of private warehouse licence to companies having paid up capital of Tk.10 crores or more, the restriction does not offend article 31 of the Constitution.[5]

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[1] *S.A. Coconut Mills Ltd. v. Bangladesh*, 54 DLR 1
[2] AIR 1996 SC 11
[3] 54 DLR (AD) 88
[4] *Abdul Mannan v. Bangladesh*, 55 DLR 237
[5] *S.A. Coconut Oil Mills v. Bangladesh*, 54 DLR 1

2.111 Life, liberty, body, property and reputation. Referring to the decision of the Appellate Division in *RAJUK v. Mohsinul Islam*[1], the High Court Division held in *Saleemullah v. Bangladesh*[2] that the State is bound to protect the health and longevity of the people free from threats of man-made hazards unless that threat is justified by law and as such action of authorities in converting open space for park into residential plots is violative of the fundamental right guaranteed under article 31 and 32. In the same vein, it has been held in *Dr. Mohiuddin Farooque v. Bangladesh*[3] that the public functionaries are under obligation to preserve pollution free environment to protect life from all its ill effects and necessary direction was given to them to take sufficient measures to control pollution by industries and factories.

In *Aminul Haq v. Bangladesh*[4] direction was sought to frame guidelines in respect of publishing news item injuring reputation of individuals, but the court declined to give such direction in view of the provisions of Press Council Act, 1974.

2.121 Safeguards as to arrest and detention. The power of the police to arrest under s.54 of the Code of Criminal Procedure, in the view of the High Court Division, is to a large extent inconsistent with the provisions of Part III of the Constitution.[5]

2.152 Protection against self-incrimination. In *BLAST v. Bangladesh*[6] it has been held that remand for the purpose of interrogation is not necessary except for extorting information from an accused by physical torture or other means, but such extortion of information is contrary to the mandate of art.35(4); interrogation of the accused, if necessary, may be done in the jail custody; as is the present practice, prayer for police remand and grant of it is unconstitutional being violative of the fundamental rights ensured by the Constitution.

2.154 Protection against torture and degrading punishment or treatment. The High Court Division held that art.35(5) prohibiting torture or cruel, inhuman or degrading treatment, the very

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[1] 53 DLR (AD) 79
[2] 55 DLR 1
[3] 55 DLR 69
[4] 55 DLR 90
[5] *BLAST v. Bangladesh*, 55 DLR 363
[6] Ibid

system of 'remand' for the purpose of interrogation and extortion of information by application of force is totally against the spirit and explicit provisions of the Constitution.[1] The court found infringement of fundamental right by colourable exercise of power under s.54 or under s.167 of the Code of Criminal Procedure and the court made important recommendations in respect of the exercise of the power under various provisions of the Code of Criminal Procedure including the power under s.54 and 167.

2.160 Freedom of movement. Freedom of leaving the country and returning from a foreign country has been re-iterated in *HM Ershad v. Bangladesh*.[2] Impounding of passport for the purpose of inquiry against the holder of the passport is not a lawful ground for impounding of passport. If such impounding was necessary in the interest of sovereignty and security of Bangladesh, a reply to the notice demanding ought to have been given.[3]

2.211. Freedom of religion. This right is not absolute and reasonable restrictions on the ground of public order or morality may be imposed. Restrictions may be imposed to regulate the activities of a religious group, but prohibition may be imposed only in extreme cases. Where the petitioner approached the authority to set up a permanent police camp in the campus, the entry of the police in the campus cannot be said to be illegal, but there is no law which allows the law enforcing agencies to prohibit a particular religious group from discharging their functions for an indefinite period. They may take necessary action if the situation demands, but prohibiting the devotees from entering the campus cannot be justified.[4]

4.40 Delegated legislation. Where the statute requires the delegatee to specify the guiding principles for determining capacity for imposition of capacity tax and the delegatee set out in the notification the basis of fixation of capacity, the notification in the facts of the case did not suffer from infirmity.[5]

5.4 Appointment of Judges. In *SN Goswami v. Bangladesh*[6] it has been held that appointment of a judge to the Appellate Division

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[1] Ibid.
[2] 7 BLC (AD) 67
[3] *Tofail Ahmed v. Bangladesh*, 54 DLR 403
[4] *Dewanbagi Darbar Sharif v. Bangladesh*, 54 DLR 413
[5] *Bangladesh v. Eastern Beverage*, 7 BLC (AD) 125
[6] 55 DLR 332

from amongst the judges of the High Court Division is not a promotion, it is a fresh appointment made by the President under art.95(1) from amongst the qualified persons and once the requirements as laid down in art.95(2) are fulfilled and the President acts on the advice of the Prime Minister, the High Court Division cannot cause an inquiry as to the reasons for appointing a particular person as a judge of the Appellate Division. On the question of consultation with the Chief Justice in the matter of appointment, the court made a distinction between constitutional consultation and conventional consultation and observed that the concept of consultation under art.116 has no manner of application in case of conventional consultation.

5.20 Nature of the relief to be granted. In *BLAST v. Bangladesh*[1] it has been held art.35(4) & (5) prohibit torture or cruel, inhuman or degrading treatment in police custody are not permissible and the court is competent to award compensation to a victim of torture or to the relation of a person whose death is caused in police custody or jail custody. The court further held that if the question of custodial death becomes a disputed question of fact, it will not be possible to award compensation in writ jurisdiction, but where it is found that the arrest was unlawful and that the person was subjected to torture while he was in police custody or in jail, in that case there is scope for awarding compensation to the victim or his nearest relation, in case of his death.

5.33 Certiorari. The High Court Division in writ jurisdiction does not act as an appellate authority of the Labour Court and when the relief prayed before the Labour Court was confined to a declaration that the dismissal was illegal and no prayer was made for reinstatement with back wages, the High Court Division acted in excess of jurisdiction in granting the relief of reinstatement with 50% back wages.[2]

5.63B Legitimate expectation. The Appellate Division in *BTMC v. Nasiruddin Chowdhury*[3] in a detailed discussion accepted the position that a legitimate expectation cannot be defeated by the executive action unless public interest clearly requires negation of such interest, but at the same time found that such an expectation can

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[1] 55 DLR 363

[2] *BTC v. Azizul Huq*, 7 BLC (AD) 119

[3] 7 BLC (AD) 144,

be given effect to by the court only when the facts of the case clearly and unambiguously give rise to such an expectation. In *Hafizul Islam v. Bangladesh*[1] the petitioner was recommended as the best Chairman for Local Government Award, but the High Court Division negatived his plea of legitimate expectation of being declared as the best Chairman observing that his expectation was neither based on legal ground, nor borne out by any legal begetting. According to the court, "The concept of legitimate expectation is to some extent uncommon in our jurisprudence. The word 'legitimate ' connotes lawfully begotton. An expectation to become legitimate therefore should not be shorn of lawful begetting. The concept of legitimate expectation cannot be given such wide interpretation so as to allow any wishful hope without lawful root."

5.74 Abuse of discretion. In two decisions of the Appellate Division, *Ekushey Television Ltd. v. Dr. Chowdhury Mahmood Hasan*[2] and *Hyundai Corporation v. Sumikin Bussan*[3] lack of transparency in the activities of the executive authority or other public functionaries was held to be a ground for interference in writ jurisdiction. The court reasoned that no public functionary acting in purported exercise of authority under any provision of law or Constitution has an unfettered discretion and therefore cannot act arbitrarily, arbitrariness being the anti-thesis of rule of law and equality clause of article 27 of the Constitution.

5.75 Abuse of discretion. When the discretion is exercised arbitrarily without proper application of mind to the relevant matters and the Board of Investment registered a proposed project without any feasibility report and financial analysis, the court interfered with the exercise of the discretion.[4]

5.80A Proportionality. In *Ekushey Television Ltd. v. Dr. Chowdhury Mahmood Hasan*[5] the doctrine of proportionality as applied by the European Courts of Justice was pressed in aid, but the court declined to consider the application of the doctrine in the case stating, "This concept involves the court to evaluate whether proportionate weight has been attached to one or other consideration

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[1] 2003 BLD 153
[2] 54 DLR (AD) 130
[3] 54 DLR (AD) 88
[4] *Engineer Mahmudul Islam v. Bangladesh*, 55 DLR 171
[5] 55 DLR (AD) 26

relevant to the decision. As a ground for judicial review it is absolutely a new concept to our jurisprudence. And in accepting it this court shall have to accord different weights to different ends or purposes and different means which cannot be allowed in a review."

5.88 Mandamus. Mandamus may issue to compel the police to record first information report.[1]

5.116 Quo warranto. A writ of this nature cannot be maintained by a person to serve the ulterior purpose of another individual.[2]

5.122 Delay as a ground of refusing relief. In *Ekushey Television Ltd. v. Dr. Chowdhury Mahmood Hasan*[3] the Appellate Division re-iterated its holding as regards delay in invoking writ jurisdiction, holding that delay or negligence will not be fatal when it is not shown that interference will defeat a right accrued in the interregnum period. But a writ petition is liable to be dismissed on the ground of inordinate delay.[4]

5.127 Efficacious remedy. When the self same matter is the subject-matter of a pending civil suit, writ petition is not maintainable.[5]

5.128 Efficacious remedy. Where the very basis of issuance of notice under a provision of a law is challenged, writ petition is maintainable without exhaustion of the remedy prescribed by that law.[6] Where the impugned order suffers from inherent lack of jurisdiction, question of exhaustion of efficacious remedy does not arise.[7]

5.143 Pleadings. Where the facts stated in the writ petition are vague and unspecified and the facts are disputed, writ petition is not maintainable.[8]

5.150 Res judicata. Where in an earlier writ petition, among others, a sale deed was challenged, but the court did not issue rule in respect of the sale deed, the relief in respect of the sale deed shall be

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[1] *Yasmin Sultana v. Bangladesh*, 54 DLR 269
[2] *Shaikh Obaidullah v. Syed Shahidul Haq Jamal*, 54 DLR 280
[3] 54 DLR (AD) 130
[4] *Delwar Hossain v. Bangladesh*, 54 DLR 494
[5] *Shahjadi Begum v. Ministry of Communications*, 7 BLC (AD) 41
[6] *American Express Bank v. NBR*, 54 DLR 6.
[7] *Salim v. AC Land*, 54 DLR 72
[8] *Sultana Nahar v. Bangladesh*, 7 BLC (AD) 89

deemed to have been refused and subsequent writ petition claiming the same relief will be barred by *res judicata.*[1]

5.153. Power of review. In *MA Bari v. USOQ Kalyan Samity*[2] the High court Division held a review petition against a judgment in writ jurisdiction maintainable.

5.163 Aggrieved party. In *Dr. Mohiuddin Farooque v. Bangladesh,*[3] the Appellate Division held that in so far as it concerns public wrongs or public injury or invasion of the fundamental rights of an indeterminate number of people any member of the public being a citizen suffering the common injury or common invasion in common with others has a right to invoke the jurisdiction under article 102 of the Constitution. But in *BRAC v. Professor Mozaffar Ahmed*[4] the Appellate Division did not find the writ petitioner to be an aggrieved person as there was nothing in the writ petition to show that the writ petitioner moved the High Court Division for and on behalf of himself as also of other less fortunate persons of the society who have no source or means to invoke the writ jurisdiction, though the writ petitioner was seeking remedy against an alleged public wrong or injury. However, the court in *Ekushey Television Ltd. v. Dr. Chowdhury Mahmood Hasan*[5] found the writ petitioners to have *locus standi* when they were complaining of an alleged public wrong committed by public functionaries. In review, the standing of the writ petitioner was questioned, but the Appellate Division overruled the objection, observing, "The nature of public interest litigation (called PIL hereinafter) is completely different from traditional case which is adversarial in nature whereas PIL is intended to vindicate rights of the people. In such a case benefit will be derived by a large number of people in contrast to a few. PIL considers the interest of others and therefore, the court in a public interest litigation acts as the guardian of all the people whereas in a private case the court does not have such power. Therefore, in public interest litigation the court will lean to protect the interest of the general public and the rule of law vis-à-vis the private interest. Where the rule of law comes in

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[1] *Bangladesh v. Luxmi Janardhan Jew Thakur*, 7 BLC (AD) 114
[2] 55 DLR 289
[3] 49 DLR (AD) 1
[4] 54 DLR (AD)
[5] 54 DLR (AD) 130

conflict with third party interest the rule of law will, of course, prevail."[1]

In *Engineer Mahmudul Islam v. Bangladesh*[2], the petitioner was found to have *locus standi* in a writ petition where approval of the project of container terminal was challenged and the court found that the allegation as to non-application of mind, negligence and arbitrariness on the part of officials and members of the Board of Investment involved in the process of approval and giving registration to the proposed project has its basis. Referring to the decisions of *Ekushey Television Ltd v. Dr. Chowdhury Mahmood Hasan*[3] and *Kazi Mukhlesur Rahman v. Bangladesh*[4] the court held, "Justice delivery system in this part of the world is based on the principle of liberty and justice for all. Public interest litigation means the legal action initiated in a court of law for the enforcement of rights and interest of the citizens in general or a section thereof. The judiciary is to play a vital and important role not only in preventing and remedying abuse and misuse of power but also to eliminate injustice. It must not be forgotten that the cause of justice cannot be allowed to be thwarted by any procedural technicalities. An action may be maintained for judicial redress brought before it by a citizen provided from such action the State will be benefited."

In *SN Goswami v. Bangladesh*[5] an Advocate and another person filed writ petition challenging the appointment of some Judges as Judges of the Appellate Division, the High Court Division negatived their *locus standi*, observing, "This concept of aggrievedness is somehow relaxed in certain special circumstances when it comes to public interest litigation. But even in case of public interest litigation the petitioner must have sufficient interest."

5.168 Interim order. The principle which is followed in respect of granting bail cannot apply in respect of preventive detention cases.[6]

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[1] *Ekushey Television Ltd. v. Dr. Chowdhury Mahmood Hasan*, 55 DLR (AD) 26
[2] 55 DLR 171
[3] 54 DLR (AD) 130
[4] 26 DLR (AD) 44
[5] 55 DLR 332
[6] *Golam Mohammad v. Bangladesh*, 54 DLR 405

5.170 Refund of tax. The collection of excess customs duty being illegal, the Government is under obligation to refund the excess notwithstanding the lapse of three years.[1]

5.172 Writ jurisdiction against whom available. In *Zakir Hossain v. Bangladesh & others*[2] the petitioner complained of breach of contract by Grameen Phone in realising service charges and the court held the writ petition maintainable upon a view that Grameen Phone acts as an agent and licensee of the Government. In *Global Access Ltd v. Bangladesh*[3] a writ petition challenging the action of the Board of Directors of a company was found not maintainable even though the Governor and Deputy Governor of Bangladesh Bank were members of that Board inasmuch they were not performing any function in the affairs of the Republic or any local authority while acting a directors of the company.

5.201 Power to do complete justice. Even though the High Court Division did not take into consideration certain affidavit, the Appellate Division may in exercise of its power to do complete justice may take into consideration statements of such affidavit, *Ekushey Television Ltd v. Dr. Chowdhury Mahmood Hasan*[4]

5.205 Review. A decision does not call for review of judgment unless the decision is on a question of great public importance.[5] In *Ekushey Television v. Dr. Chowdhury Mahmood Hasan*[6] the appellate Division held that it is a fundamental principle of review is that an error as a necessary ground for review must be one which is apparent on the face of the record and so obvious that keeping it on record will be legally wrong. The contention that the court has gone wrong in the application of law to the facts or the exposition of law is erroneous (unless it lays down a bad law) or that inference is drawn on appraisal and appreciation of evidence is erroneous does not constitute valid grounds for review. The court further held that a review may be in order if there has been change of the factual situation and stated that "the conspectus of facts on which the decision is founded is always critical. In a granted situation the

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[1] *Mostafa Kamal v. Collector of Customs*, 7 BLC 524
[2] 55 DLR 130
[3] 55 DLR 433
[4] 55 DLR (AD) 26
[5] *Manoj Kumar v. Bangladesh*, 7 BLC (AD) 42
[6] 55 DLR (AD) 26

conclusion remains critical impeccable. But if it can be shown that the situation differs from that which was taken for granted at the time of hearing of the appeal or the petitions for leave to appeal the decision in a review petition may be different."

5.227 Disobedience to the order of the court. Where the contemner flouted the order of the court, he was convicted and sentenced to imprisonment of six months and gave direction to implement the order of the court, observing, "It is well settled that in appropriate case the mere imposition of imprisonment or fine or both may not meet the ends of justice and there may be necessity to pass an order to purge the contempt by directing the contemner to implement the judgment immediately and further issuing directions for enforcing the same."[1]

[1] *Farooque Hossain v. Iqbal Hossain*, 8 BLC 204

CHAPTER ONE

INTRODUCTORY

1.1 By instinct man is gregarious and lives in company of his fellow beings. This has led to the emergence of society and rules to regulate the conduct of the members of the society. The association was not, however, for mere companionship, but to achieve various objectives and purposes. Dealings between the individuals in the society invariably resulted in disputes. The need to settle disputes gave rise to leadership in the society and with the problem of protection of life and property came the concepts of allegiance and obedience. By a slow and intermittent process of social, economic and political evolution the State emerged as an indispensable institution run by an agency called the government. Constitutional law is a set of legal rules which regulate the structure of the organs of government, their functions, and their relationship with each other and with the citizens. Power has to be conceded to the State for the sake of ordered society, but every power given to the State makes a corresponding inroad into the bundle of rights and liberty of individuals. Gone are the days of *laissez-faire* when the individuals hardly felt the existence of the government. The vast explosion of population, the momentous advancement of technology and the resulting perceived welfare needs of the complex modern society have made pervasive governmental control inevitable. In such a situation the life of individuals is sure to become intolerable if the State can exercise unfettered or arbitrary power. Hence, the modern emphasis is on constitutionalism and constitutional government which not only recognise the need for governmental power, but also insist on limitations on the power of the government. "Western institutional theorists have concerned themselves with the problems of ensuring that the exercise of governmental power, which is essential to the realisation of the values of their societies, should be controlled in order that it should not itself be destructive of the values it was intended to promote."[1] Today, constitutional law, in defining the State power, circumscribes the extent of that power and sets the limit of individual freedom. Thus it not only deals with the powers and functions of the principal branches of government, but also effects an adjustment between individual freedom

[1] M.J. Vile - Constitutionalism and the Separation of Powers, p.1

and the collective needs of society.

1.2 *Sources of constitutional law:* In all cases, except that of the United Kingdom, the fundamental provisions of the governmental system are set forth in a document or set of documents which, as a document, is called the constitution. Constitutional law, however, should not be taken to be synonymous with a constitution. The text of a constitution contains only a bare statement, in general terms, of those aspects of the question relating to the establishment of government as have been considered essential. From this one cannot know fully the constitutional law of a country, though he may form a fair idea about it. A constitution is the core or centre-piece of the constitutional law of a country, but constitutional law is something more which gathers round a constitution in the form of legislation, judicial decisions and conventions and practices to complement it.

1.3 Legislation is an important source of constitutional law. For various reasons which need not be detailed here, a constitution does not make provisions for all conceivable matters but leaves them to be provided by legislation. The Constitution of Bangladesh stipulates that the provisions of the General Clauses Act, 1897 shall apply to the interpretation of the Constitution.[1] For the meaning of 'citizen' reference must be made to the Citizenship Act. The election of the President by the members of Parliament is governed by an Act of Parliament. The Indian Constitution is the lengthiest of all constitutions. Even then it leaves many matters of constitutional importance to be determined by legislation.

1.4 Judicial decisions make up a considerable portion of constitutional law. American constitutional law is not what the framers of the American Constitution set forth more than two hundred years ago. American constitutional law today is what has emerged from the numerous decisions handed down by the American Supreme Court over these years. Even though the Constitution of Bangladesh is far more detailed and recent in origin than the American Constitution, the constitutional law of Bangladesh cannot be fully comprehended without referring to the decisions given by the Supreme Court of Bangladesh. For example, in the exercise of the power of judicial review, the Supreme Court applies certain principles developed by the courts of foreign jurisdictions which are not incorporated in the language of the

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[1] Art.152(2)

Constitution. These principles form part of the constitutional law of Bangladesh because of their application by the Supreme Court.

1.4A The law and custom of parliament is a source of constitutional law. It consists of the rules relating to the functions, procedure, privileges and immunities of parliament, its members and committees. Some of it is stated in the constitution. Most of the matters are covered by the rules of procedure of parliament. There are judicial decisions touching the matter. But part of the law and custom of parliament rests on informal understandings and practices which are to be culled from the resolutions recorded in the proceedings of parliament.

1.5 With the passage of time, in working a constitution and running State affairs, many precedents occur and practices develop. When such precedents and practices are found to have been consistently followed, they are treated as constitutional conventions. Constitutional conventions are "rules of political practice which are regarded as binding by those to whom they apply, but which are not laws as they are not enforced by the Courts or by the House of Parliament".[1] Even though we come across the term in discussions about English constitutional law, it will be wrong to suppose that conventions are peculiar to an unwritten constitution. In Australia and Canada many of the English conventions are observed. Many conventions have also developed in the United States relating to election of the President, the formation, selection and functioning of the President's Cabinet, senatorial approval of certain political appointments and other matters. Speaking about the creation of a convention Sir Ivor Jennings observed-

> We have to ask ourselves three questions: first, what are the precedents; secondly, did the actors in the precedents believe that they were bound by a rule; and thirdly, is there a reason for the rule? A single precedent with a good reason may be enough to establish a rule. A whole string of precedents without such a reason will be of no avail, unless it is perfectly certain that the persons concerned regarded them as bound by it.[2]

1.6 Conventions are generally to be distinguished from law and are treated as non-legal rules. These conventions cannot be enforced in the court of law. Nevertheless, these form part of the constitutional law of a country and deviations from these conventions evoke serious criticism

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[1] O. Hood Phillips - Constitutional and Administrative Law, 4th ed., p.77

[2] The Law and the Constitution, 5th ed., p.136

and create political difficulties in running the government. The question is whether a convention will always have the status of a non-legal rule. There are instances of conventions becoming law by legislative recognition. According to K.C. Wheare, "Convention can become law also by judicial recognition".[1] Kuldip Singh J of the Indian Supreme Court observed, "Once it is established to the satisfaction of the Court that a particular convention exists and is operating then the convention becomes a part of the 'constitutional law' of the land and can be enforced in the like manner."[2] But there are judicial decisions[3] upholding the contrary view and citing these decisions, it has been contended, "On grounds of principle, and on the evidence of these cases, it may safely be concluded that conventions are unable to make the leap from being rules of political obligation to being part of the common law".[4] "

1.6A Authoritative works on constitutional law are treated to be a source of constitutional law, though such works have only persuasive value. When important questions on constitutional law arise, the views of reputed authors like Dicey, Willoughby, Wade, deSmith, Wynes and Seervai carry considerable weight and are often taken into consideration, particularly by the courts. On parliamentary practice, Erskine May is regarded as an undisputed authority.

HISTORICAL BACKGROUND

1.7 In order to understand the constitutional law of a country we must not only refer to the laws and principles that exist outside the constitution, we must also acquaint ourselves with its historical background. There are usually many provisions in a constitution which can be properly understood and applied only if we know the historical facts which led to the adoption of the scheme and the formulation of those provisions of the constitution.

1.8 *Partition of India.* India was being governed by the Government of India Act, 1935 when it was partitioned in 1947. This Act provided for a federal parliamentary form of government, though the Governor

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[1] Modern Constitutions, 2nd ed., p.135

[2] *S.C. Advocates-on-Record Association v. India*, AIR 1994 SC 268, 404

[3] *Reference Re Amendment of the Constitution of Canada*, [1981] 1 SCR 753; *Manuel v. Attorney General*, [1982]3 All E.R. 822

[4] Colin R. Munro – Studies in Constitutional Law, 2nd ed., p.74

General was the real repository of power as the representative of the British sovereign. While partitioning the country, the British Parliament amended this Act and passed the Indian Independence Act, 1947 creating two Dominions - India and Pakistan - and two Constituent Assemblies for the two Dominions. Until the adoption of constitution, the Constituent Assemblies were also to function as federal legislature for the Dominions.

1.9 *Delay in framing constitution in Pakistan:* The Constituent Assembly of India promptly enacted a constitution which came into operation in January, 1950. The Constituent Assembly of Pakistan could not complete its work for quite a long time. There ensued a tussle for power among persons who held positions of advantage in the government. Politicians, no doubt, bungled; but bureaucrats and military officials availed of the opportunity and engaged themselves in palace intrigue. In 1950 the Prime Minister, Liaquat Ali, was murdered and the murderer was killed on the spot so that the real persons behind the murder could not be traced out. Khawaja Nazimuddin, who became the Governor General on the death of M.A. Jinnah, became the Prime Minister and Ghulam Mohammad, an ex-civil servant holding the office of Finance Minister, became the Governor General. In April, 1953 Ghulam Mohammad dismissed Khawaja Nazimuddin and his Cabinet. He appointed Mohammad Ali of Bogra as the Prime Minister. General Ayub Khan joined the Cabinet as the Minister of Defence. Khawaja Nazimuddin clearly commanded a majority in the Constituent Assembly. Under the circumstances, Ghulam Mohammad, only a titular head, had no constitutional authority to dismiss the Prime Minister and to assume the role of a sovereign.[1]

1.10 *Dissolution of Constituent Assembly:* Ultimately the making of the constitution reached the final stage. The draft constitution based on the Objectives Resolutions adopted by the Constituent Assembly had been prepared with the assent of the leaders of various political parties in the Constituent Assembly.[2] The Prime Minister announced that the constitution for Pakistan would be put into operation in December 1954. The vested interests had something other than a smooth constitutional transition in mind. On 24 October 1954 Ghulam Mohammad issued a Proclamation dissolving the Constituent Assembly and reconstituting the Cabinet with Mohammad Ali as the Prime Minister. Ayub Khan and

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[1] *Asma Jilani v. Punjab*, PLD 1972 SC 139, 212.

[2] Ibid, p.213

Iskander Mirza, two army men, were included in the Cabinet.

1.11 S.19 of the Government of India Act, 1935, as originally enacted, conferred power on the Governor General to dissolve the federal legislature. While amending the Act to bring it in line with the Indian Independence Act, this power of dissolution was omitted from s.19. Tamizuddin Khan, the President of the Constituent Assembly, filed a writ petition under s.223-A of the Government of India Act in the Sind Chief Court challenging the dissolution of the Constituent Assembly mainly on the ground that the Governor General had no power of dissolution. The respondents took the plea that the insertion of s.223-A by amendment of the Government of India Act by the Constituent Assembly was invalid for want of assent of the Governor General and the Sind Chief Court had no jurisdiction to entertain the writ petition. The petitioner contended that the amendment of the Government of India Act was a constituent law passed by the Constituent Assembly. It did not require assent of the Governor General and became law as soon as it was authenticated by the Constituent Assembly and published in the official Gazette as per r.62 of the Rules framed by the Constituent Assembly. The constituent laws passed by the Constituent Assembly were never placed before the Governor General for assent and those Acts were acted upon and enforced by the executive government. Such was also the case in India. The Sind Chief Court found that such assent was not necessary for the validity of the amendment and on merits found that the Governor General had no power to dissolve the Constituent Assembly.[1]

1.12 The respondents preferred an appeal before the Federal Court which by a majority judgment allowed the appeal[2] holding that the insertion of s.223-A was invalid for want of assent of the Governor General and the Sind Chief Court had no jurisdiction to entertain the writ petition. Munir CJ, in coming to this finding, resorted to the royal prerogative of the British Crown of withholding assent which was not exercised for the last two and half centuries. The Federal Court did not go into the merits of the case. It was beyond doubt that the Governor General had no power to dissolve of the Constituent Assembly. Cornelius J wrote a powerful dissenting judgment. He held that neither the British sovereign nor the Governor General was a part of the Constituent Assembly and assent was not necessary to impart validity to

[1] *Tamizuddin Khan v. Pakistan*, 7 DLR (WP) 121
[2] *Pakistan v. Tamizuddin Khan*, 7 DLR (FC) 291

the laws passed by the Constituent Assembly. Reading the dissenting judgment one gets the impression that the majority judgment was erroneous.[1] The requirement of assent in respect of constitutional enactments as found by the Federal Court strengthened the hand of the Governor General in manipulating political events. Politics in Pakistan foundered and went adrift, monopolised by wrong persons.

1.13 In view of the finding of the Federal Court in *Tamizuddin Khan*, a large number of constitutional enactments of the Constituent Assembly were going to be invalid for want of assent. The Governor General sought to validate those Acts by indicating his assent retrospectively by an Ordinance. But the Federal Court ruled this to be *ultra vires* the power of the Governor General.[2] In this situation, the Governor General resorted to the advisory jurisdiction of the Federal Court[3] to find a solution for the constitutional deadlock created by the judgment of the Federal Court in *Tamizuddin Khan*. Although the Federal Court could not find any law to meet the situation, it invoked the doctrine of necessity embodied in the maxim, *salus populi est suprema lex* (public welfare is the highest law), and evolved a new political formula for setting up a new Constituent Assembly.[4] The Federal Court found the dissolution of the Constituent Assembly by the Governor General valid stating that when the Constituent Assembly failed to give a constitution and turned itself into a perpetual legislature, the Governor General could dissolve the Constituent Assembly. The Federal Court ignored the fact that the draft constitution was ready and the Prime Minister announced that the constitution would be put into operation by 25 December 1954. The maxim of *salus populi est suprema lex* was pleaded in *Tamizuddin Khan* and the serious consequence of invalidating constitutional enactments for want of the formal assent of the Governor General was pointed out, but the Federal Court refused to apply the maxim in that case. Yet the Federal Court applied this maxim in the situation created by its own decision in *Tamizuddin Khan*.

1.14 *Constitution of 1956:* East Pakistan had a population larger than the population of the four provinces of West Pakistan taken together. East Pakistan was entitled to a larger representation in the federal legislature. In order to avoid the situation, the four provinces of West

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[1] *Asma Jilani v. Punjab*, PLD 1972 SC 139, 214.
[2] *Usif Patil v. Crown*, 7 DLR (FC) 385.
[3] *Reference by Governor General*, 7 DLR (FC) 395
[4] *Asma Jilani v. Punjab*, PLD 1972 SC 139

Pakistan were merged into one province of West Pakistan and the principle of parity between the two units of Pakistan was introduced. The new Constituent Assembly adopted a constitution based on the principle of parity. In the meanwhile Iskander Mirza succeeded Ghulam Mohammad as the Governor General. He refused to assent to the constitution unless the members of the Constituent Assembly agreed to make him the President and he became the first President of Pakistan using the threat.[1]

1.15 This constitution prescribed a federal parliamentary government with the President as its constitutional head. The National Assembly (federal legislature) would be composed of an equal number of members from the two units, East Pakistan and West Pakistan, on the basis of direct election by the people. The Prime Minister and the Cabinet would be responsible to the federal legislature. The constitution incorporated a number of fundamental rights which the legislatures and the executive were forbidden to transgress. The Supreme Court and the High Courts of the provinces were given the power of judicial review. The Supreme Court could be directly petitioned for enforcement of fundamental rights.

1.16 *Martial Law of 1958 and demise of the constitution:* Though the constitution came into operation in March, 1956, no election was held under it to compose the federal legislature with the representatives directly elected by the people. When it was decided that an election would be held in 1959, Iskander Mirza had little chance of being elected as the President by the newly elected federal legislature. He with Ayub Khan abrogated the constitution, dissolved the National and Provincial Assemblies and imposed Martial Law throughout the country by a Proclamation on 7 October 1958. Ayub Khan was appointed the Chief Martial Law Administrator. On 10 October 1958 Iskander Mirza issued the Laws (Continuance in Force) Order which provided that notwithstanding the abrogation of the constitution and subject to any order of the President or Regulation made by the Chief Martial Law Administrator, the country would be governed as nearly as may be in accordance with the abrogated constitution. On 13 October 1958 the now famous case of *State v. Dosso*[2] came up for hearing before the Supreme Court. The main question agitated there was whether the pending proceedings in the nature of *habeas corpus* or *certiorari* had

[1] Ibid, p.161
[2] 11 DLR (SC) 1

abated by reason of the provisions of the Laws (Continuance in Force) Order, 1958. The court on the very next day announced its decision that the proceedings abated, but in giving the reasons for the decision on 23 October 1958 Munir CJ went on to accord legal recognition to the Martial Law itself by describing it as a successful revolution and, therefore, a fresh law-creating organ, even though it does not appear from the judgment that any argument was advanced in this regard.[1] Relying on a theory of jurisprudence propounded by Hans Kelsen (not a principle of law), Munir CJ observed –

> It sometimes happens, however, that a Constitution and the national legal order under it is disrupted by an abrupt political change not within the contemplation of the Constitution ... any such change is called revolution, and its legal effect is not only the destruction of the existing Constitution but also the validity of the national legal order ... if the revolution is victorious in the sense that the persons assuming power ... can successfully require the inhabitants of the country to conform to the new regime, then the revolution itself becomes a law-creating fact because thereafter its own legality is judged not by reference to the annulled Constitution but by reference to its own success. ... Thus a victorious revolution or a successful *coup d'etat* is an internationally recognised legal method of changing a Constitution.[2]

And how effective was the revolution? The person who issued the Proclamation of Martial Law was deposed by Ayub Khan the next day.[3] Munir CJ who went out of the way to give legal recognition to the Martial Law attended a meeting presided over by Iskander Mirza one or two days after imposition of Martial Law[4] and modified the draft of the Laws (Continuance in Force) Order.[5] On the principle of *nemo debet esse judex in causa propria sua* he should not have adjudicated upon the validity and effectiveness of that Order.[6] Having regard to the role of

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[1] *Asma Jilani v. Punjab*, PLD 1972 SC 139, 161

[2] *State v. Dosso*, 11 DLR (SC) 1,5

[3] *Asma Jilani v. Punjab*, PLD 1972 SC 139, 161, 219

[4] M. Asghar Khan - Generals in Politics, p.7

[5] *Asma Jilani v. Punjab*, PLD 1972 SC 139, 178

[6] In *Asma Jilani*, ibid, the Pakistan Supreme Court overruled *Dosso*, but rejected the plea of bias stating, "Mere association with the drafting of a law does not necessarily disqualify a judge from interpreting that law in the light of the arguments advanced before him." The observation is debatable as a person modifying or correcting a draft of a document is likely to have an inclination to hold the document, particularly of the kind involved in the case, valid.

Munir CJ in *Tamizuddin Khan* and *Dosso*, M. Anwar, a senior Advocate of the Supreme Court of Pakistan, gave an interview implicating Munir CJ in the drama of the constitutional breakdown in Pakistan.[1]

1.17 *Constitution of 1962, its demise and birth of Bangladesh:* Ayub Khan set up a Constitution Commission to make recommendations for the future constitution of the country. Even though no election was held under the constitution of 1956 to give the parliamentary form of government prescribed by that constitution a fair trial, the Commission was asked to find out the causes of failure of parliamentary form of government. The Commission recommended a presidential form of government, stating one of the causes of the failure of parliamentary form of government to be undue interference by the Head of the State with the ministries and political parties, and by the central government with the functioning of the government in the provinces. Ayub Khan then managed to secure a so-called mandate by some sort of a referendum to frame a constitution.[2] The constitution framed by him came into operation on 7 June 1962. This constitution of 1962 introduced a system which was euphemistically called a presidential form of government even though the normal checks and balances of such a form of government to prevent one-man rule were not incorporated in the constitution. It, in fact, prescribed an authoritarian rule by one who occupied the position of the President. The President and the members of the National and Provincial Assemblies were to be elected by the members of the Electoral College who were to be elected

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[1] His interview published in weekly "Kahani" runs thus: "There is documentary proof of the fact that Mr. Mohammad Munir was present in Karachi several days before the (imposition of Martial Law) to advise (those that imposed it). And after the imposition of Martial Law he did something, the far-reaching consequences of which ultimately have pushed us in the lap of disaster. He gave this good news to the nation that if a usurper forcibly captures power, then that usurper becomes a legitimate source of law. This was such a dangerous decision that it paved the way for new adventurers." See the case of *Inayat Khan v. M. Anwar*, PLD 1976 SC 354, 361. The Supreme Court found that the language employed was extremely harsh and derogatory and far exceeded the limit of fair comment and it constituted scandalisation of the Court. But in view of the mitigating circumstances, namely, that the decision in *Tamizuddin Khan* and *Dosso* caused misgivings in public mind, and had been criticised at least in private and that *Dosso* was reversed, the court considered that the ends of justice would be met if the respondents were severely reprimanded. See Dieter Conrad's article, *In Defence of the Continuity of Law: Pakistan's Courts in Crises of State, published in Orient, 1983, p.134, 145 (a German Journal for Politics and Economics of the Middle East).*

[2] *Asma Jilani v. Punjab*, PLD 1972 SC 139, 161

by the people. The members of the National and Provincial Assemblies were thus not responsible to the people. People electing the members of the Electoral College had no way of ensuring that their wishes would be reflected in the election of the President and the members of the National and Provincial Assemblies. It was easy to win over the members of the Electoral College contrary to the wishes of the people. The National Assembly had no control over the President who was the repository of all executive powers of the Republic and had also the power of legislation in case of urgent need of which he was the sole judge. To all intents and purposes, it was a one-man show. Two elections were held under the constitution of 1962 which clearly demonstrated that the people could not get persons of their choice elected as their representatives. In 1965 Ayub got himself re-elected as the President. The general impression in the country was that the election was rigged.[1] In 1966 Sk. Mujibur Rahman started a movement in East Pakistan with his 6-Point programme[2] which reflected the

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[1] Ibid, p.220

[2] The Six Points

1. The character of the government shall be federal and parliamentary, in which the election to the Federal legislature and to the legislatures of the federating units shall be direct and on the basis of universal adult franchise. The representation in the Federal legislature shall be on the basis of population.

2. The Federal government shall be responsible only for defence, foreign affairs and currency, subject to the conditions provided in (3) below.

3.(i) Two separate but freely convertible currencies for the two wings may be introduced, or

(ii) One currency for the whole country may be maintained. In this case effective constitutional provisions are to be made to stop flight of capital from East to West Pakistan. Separate Banking Reserve
is to be made and separate fiscal and monetary policy to be adopted for East Pakistan.

4. The power of taxation and revenue collection shall vest in the federating units and the Federal Centre will have no such power. The Federation will have a share in the state taxes for meeting their required expenditures. The Consolidated Federal Fund shall come out of a levy of certain percentage of all state taxes.

5.(i) There shall be two separate accounts for foreign exchange earnings of the two wings.

(ii) Earnings of East Pakistan shall be under the control of East Pakistan Government and that of West Pakistan under the control of West Pakistan Government.

(iii) Foreign exchange requirements of the Federal Government shall be met by the two wings either equally or in a ratio to be fixed.

(iv) Indigenous products shall move free of duty between the two wings.

(v) The Constitution shall empower the unit Governments to establish trade

genuine grievances of the people of East Pakistan. Towards the end of 1968, an agitation was started all over Pakistan by the main political parties against the despotic rule of Ayub Khan and the undemocratic constitution imposed by him. The agitation gathered momentum day by day and was accompanied by wide-spread disturbances throughout the country. The Agartala Conspiracy case started against Sk. Mujibur Rahman and others aborted because of massive movement in East Pakistan. Ayub Khan called a round table conference of political leaders to resolve the political issues which led to the crisis. A solution was near sight, when all on a sudden Ayub Khan decided to relinquish the office of the President and asked the Defence Forces on 24 March 1969 to step in as, according to him, it was beyond the capacity of the civil government to deal with the then prevailing situation. Yahya Khan, the Commander-in-Chief, in disregard of his constitutional and legal duty, by a Proclamation issued on 26 March 1969, abrogated the constitution of 1962, dissolved the National and Provincial Assemblies and imposed Martial Law throughout the country. On 31 March 1969 he promulgated the Provisional Constitution Order which substantially followed the pattern of the Laws (Continuance in Force) Order, 1958. On 30 March 1970 Yahya Khan promulgated the Legal Framework Order and under its provisions elections were held in December, 1970 to the National and Provincial Assemblies on the basis of adult franchise. After a good deal of political manoeuvring, a session of the National Assembly was summoned by Yahya Khan on 3 March 1971 at Dhaka. But the Peoples Party led by Z.A. Bhutto which emerged with majority seats in West Pakistan refused to attend the session at Dhaka and Yahya Khan postponed the session indefinitely. The Awami League led by Sk. Mujibur Rahman which won almost all the seats in East Pakistan and held a clear majority in the National Assembly reacted sharply and in protest of the action taken by Yahya Khan virtually took over the administration in East Pakistan. To meet the situation, Yahya Khan had talks with the important political leaders in Dhaka which subsequent events clearly indicated was a ruse. The ruling junta really intended to take serious military action in East Pakistan to suppress all dissidents for all times. Yahya Khan started his military action with unprecedented brutality, gunning down hundreds of innocent people in Dhaka and other places in East Pakistan in the night of 25 March 1971. The people of

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and commercial relations with, set up trade missions in and enter into agreements with, foreign countries.

6. The setting up of a militia or a paramilitary force for East Pakistan.

East Pakistan took this as an act of betrayal. Sk. Mujibur Rahman "made a declaration of independence at Dacca on March 26, 1971, and urged the people of Bangladesh to defend the honour and integrity of Bangladesh".[1] Thousands took up arms to fight against the Pakistani Armed Forces to liberate the country, Bangladesh. The members of the National and Provincial Assemblies elected in the 1970 election from East Pakistan proclaimed independence of Bangladesh on 10 April 1971 and formed the Government of Bangladesh with Sk. Mujibur Rahman, then in custody in Pakistan, as the President and Syed Nazrul Islam as the Acting President till the release of Sk. Mujibur Rahman.

1.18 *Independence of Bangladesh:* The war of liberation continued for about nine months, at the end of which war broke out between the Pakistan Armed Forces on the one side and the Indian Armed Forces and the Bangladesh Freedom Fighters on the other. On 16 December 1971 the Pakistan Armed Forces surrendered and Bangladesh became fully liberated.

1.19 *Constitution of Bangladesh, 1972:* Sk. Mujibur Rahman was released by the Government of Pakistan in January, 1972 and he returned to Dhaka on 10 January 1972. The next day he, in his capacity as the President of Bangladesh, issued the Provisional Constitution of Bangladesh Order, 1972[2] providing for a parliamentary form of government in the interim period[3] and constituting the Constituent Assembly with the members of National Assembly and East Pakistan Provincial Assembly who were elected by the people of East Pakistan in December 1970 for giving the country a democratic constitution. The Constituent Assembly adopted a constitution[4] which came into operation on 16 December 1972, exactly one year after the liberation of Bangladesh. The fact that the Constitution was thereafter turned into a document permitting autocratic rule is a different matter. The Constitution originally adopted was truly a democratic constitution.

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[1] The Proclamation of Independence, 6th Para, Appendix A; Preamble of the Constitution of Bangladesh.

[2] Appendix C

[3] In *Fazlul Hoque v. State*, 26 DLR (AD) 11, establishment of the parliamentary form of government was challenged as being contrary to the Proclamation of Independence, but the Appellate Division turned down the challenge stating that the Proclamation of Independence invested the President with the "Legislative powers of the Republic" which empowered him "to make any law or legal provision, even of a constitutional nature".

[4] Appendix D

FEATURES OF THE CONSTITUTION OF 1972

1.19A *Origin and character:* The Constitution of Bangladesh is not the outcome of a negotiated settlement with a former colonial power, nor drawn up with the concurrence or approval of any external sovereign power. It is the fruit of a historic war of independence making it a class apart from other constitutions of comparable description.[1] In the Constitution the people feature as the dominant actors and it is a manifestation of what is called 'the people's power'.[2]

1.20 *Sovereign Republic:* The Constitution established Bangladesh as a sovereign unitary Republic.[3] It created one government composed of representatives chosen by the people in contrast to the rule of one man, as in kingship, or one class of men, as in aristocracy. The term 'sovereign' indicates that Bangladesh is subject to no external authority and the term 'Republic' denotes that the Head of the State is not a monarch, but an elected functionary. The Constitution declares that the sovereignty lies with the people and the Constitution is the embodiment and solemn expression of the will of the people.[4]

1.21 *Preamble and Fundamental Principles of State Policy:* Having regard to the constitutional misadventures of the past and usurpation of power by unauthorised persons, the framers of the Constitution thought it necessary to spell out the objectives of the Constitution in the preamble in some detail. Declaring the people to be the source of power and the Constitution, the preamble referred to the national liberation struggle and pledged that the high ideals of nationalism, socialism, democracy and secularism shall be the fundamental principles of the Constitution. The Constitution sought to establish a welfare State and the preamble declared the fundamental aim of the State to be the realisation through democratic process of a socialist society, free from exploitation - a society in which the rule of law, fundamental human rights and freedom, equality and justice would be ensured. The concept of a welfare State was further strengthened by the fundamental principles of State policy which set out the economic, social and political goals of the Constitution and those principles were declared to be fundamental to the governance of Bangladesh and a guide to the

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[1] *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR (AD) 1, Para 41

[2] Ibid

[3] Art.1

[4] Preamble and art.7

interpretation of the Constitution and the laws of Bangladesh.[1]

1.22 *Territory:* The Constitution defined the territory of the Republic to be the territories which immediately before the proclamation of independence constituted the territory of East Pakistan and such other territories as may become included in the Republic.[2] When Bangladesh entered into an agreement with India giving up its claim to Berubari and retaining Dahagram, the Appellate Division held that the agreement involved cession of territory which could not be done except by constitutional amendment.[3] As a result, the Constitution (Third Amendment) Act, 1974 was passed to give effect to the agreement.

1.23 *Supremacy of the Constitution:* The Constitution declared the supremacy of the Constitution and sought to establish a limited government in the sense that every authority in the Republic had power prescribed and limited by the Constitution.[4]

1.24 *Separation of powers:* The Constitution provided for separation of powers between the three organs of the State - executive, legislature and judiciary. It was not a separation of powers of the type practised in the American jurisdiction. What the Constitution did can be said to be an assignment or distribution of different powers of the Republic to the three organs and it provided for separation of powers in the sense that no one organ could transgress the limits set by the Constitution.

1.25 *Fundamental rights:* The Constitution enumerated a number of rights as fundamental rights and no law could be made which was inconsistent with these rights and no action could be taken by the government in derogation of such rights. To that extent, the power of Parliament and the executive was limited. However, certain laws were set apart which could not be challenged on the ground of violation of fundamental rights.[5]

1.26 *Parliamentary form of government:* The Constitution introduced a parliamentary form of government with the President of the Republic as the constitutional head elected by the members of Parliament. The members of Parliament were to be directly elected by the people on the basis of adult franchise. The President would appoint a member of

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[1] Art.8(2)
[2] Art.2
[3] *Kazi Mukhlesur Rahman v. Bangladesh*, 26 DLR (AD) 44
[4] Art.7
[5] Arts.45 - 47A

Parliament who commanded the support of the majority of the members of Parliament as the Prime Minister and would appoint ministers on the recommendation of the Prime Minister. The executive authority of the Republic vested in the Prime Minister who, and also the Cabinet, were responsible to Parliament and through Parliament to the ultimate sovereign, the people. The Prime Minister and the Cabinet could continue so long as they commanded the support of the majority of the members of Parliament. In order to bring in stability of the government, the Constitution made provision prohibiting floor crossing by the members of Parliament.[1]

1.27 *Local government:* The Constitution stipulated that the State shall encourage local government institutions composed of the representatives of the area concerned and that the Republic shall be a democracy in which effective participation by the people through their elected representatives in administration at all levels shall be ensured. In furtherance of these fundamental principles of State policy, the Constitution provided that local government in every administrative unit of the Republic shall be entrusted to bodies composed of persons elected in accordance with law and the power of imposing tax for local purposes shall be conferred on the local government bodies.[2]

1.28 *Judicial review:* The guardianship of the Constitution was given to the Supreme Court. The Supreme Court was given the power of judicial review. Save in some specified situations, the Supreme Court, in exercise of that power, could not only review the State actions to ensure that it did not contravene any provision of the Constitution or the laws of the land, but also could strike down any law for inconsistency with any provision of the Constitution including the provisions guaranteeing fundamental rights.[3]

1.28A *Independence of judiciary:* For guardianship of the Constitution and for the establishment of rule of law independence of judiciary is necessary. Provisions were made to ensure the independence of the Judges of the Supreme Court, subordinate judicial officers and the magistrates exercising judicial functions.[4]

1.29 *Election:* To ensure free and fair election which is an

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[1] Part IV & V
[2] Arts.59 & 60
[3] Art.102; see *Fazlul Quader Chowdhury v. Shah Nawaz*, 18 DLR (SC) 62, 65
[4] See Part VI

indispensable pre-requisite for the success of democracy, the Constitution provided for an independent Election Commission upon which the duty of holding election of the President and the members of Parliament was cast.[1]

1.30 *Civil Service:* The civil service maintains the continuity of the government and the success of the government to a great extent depends on the efficiency of the civil service. So to ensure recruitment of efficient persons in the services of the Republic, the Constitution provided for public service commissions. To obtain the best service it is necessary to have secure and satisfied civil servants and the Constitution guaranteed equality of treatment and security of tenure to them.[2]

1.31 *Amendment of the Constitution:* Parliament was given the power to amend the Constitution. Art.142 provided for a special procedure for such amendment and prescribed that no Bill for amendment should be presented to the President unless it was passed by the votes of not less than two-thirds of the total number of members of Parliament.

CHANGES IN THE CONSTITUTION

1.32 *First Amendment:* In 1973 the Constitution (First Amendment) Act was passed, inserting sub-art.(3) in art.47 whereby any law providing for the detention and trial of war criminals was kept out of the purview of the provisions of Part III relating to fundamental rights.

1.33 *Second Amendment:* The Constitution did not provide for proclamation of emergency and suspension of fundamental rights during emergency and in view of the provisions of art.33 preventive detention was not possible. It was felt that the Constitution should be amended to provide for these. Accordingly, by the Constitution (Second Amendment) Act of 1973 art.33 was amended providing for preventive detention and Part IXA was inserted conferring power on Parliament and the executive to deal with emergency situations and providing for suspension of enforcement of the fundamental rights during the period of emergency.

1.34 *Third Amendment:* As stated earlier, the Constitution (Third Amendment) Act, 1974 was passed to give effect to the agreement with India giving up the claim in respect of Berubari and retaining Dahagram

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[1] Part VII
[2] Part IX

and Angorpota.

1.35 *Fourth Amendment:* In January, 1975 the Constitution (Fourth Amendment) Act, 1975 was passed transforming the Constitution beyond any resemblance with the original.[1] Part VIA was incorporated prescribing that there would be only one political party in the State, thereby rendering a severe blow to the democratic set up of the Constitution. Art.102(1) which conferred power on the High Court Division to enforce the fundamental rights was repealed and by an amendment of art.44 Parliament was empowered to establish by law a constitutional court, tribunal or commission for enforcement of the fundamental rights. The parliamentary form of government was replaced by a form of government which was an apology of a presidential form as the normal checks and balances of a presidential form of government were not incorporated. A provision was made for a Vice-President who was to be appointed by the President. The President became the repository of the executive power of the Republic which he would exercise with the assistance of ministers selected by him. The President was empowered to appoint the Prime Minister and other ministers from among the members of Parliament or persons qualified to be elected as members of Parliament. The President would preside over the meetings of the Council of Ministers, and the Prime Minister and all other ministers would hold office during the pleasure of the President. The Ministers had the right to speak and take part in the proceedings of Parliament, but they were not entitled to vote unless they were members of Parliament. The Judges of the Supreme Court were made removable by the President on the ground of misbehaviour or incapacity. The provision for consultation with the Chief Justice in respect of the appointment of puisne Judges of the Supreme Court was repealed. The control in respect of subordinate courts and judges was taken away from the Supreme Court and vested in the President. The system introduced was a mishmash of parliamentary and presidential forms of government and the upshot was that the President emerged as the all-powerful authority in the Republic.

1.36 *First Martial Law:* The government of Sk. Mujibur Rahman

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[1] In *Hamidul Huq Chowdhury v. Bangladesh*, 34 DLR 381, the High Court Division observed that by the Fourth Amendment the basic and essential features of the Constitution were altered and destroyed, but did not declare the amendment to be invalid because of the lapse of time and change of political system in consequence of the change of government.

was toppled by an army *coup d'etat* on 15 August 1975. Khandoker Mushtaque Ahmed assumed the office of the President and imposed Martial Law in the country. On 20 August 1975 he issued a Proclamation providing that the Constitution would, subject to the Proclamation and Martial Law Regulations and Orders made by him, continue to remain in force, but no court including the Supreme Court or any tribunal or authority would have any power to call in question or declare void the Proclamation or any Martial Law Regulation or Order made by him. On 6 November 1975 by the Proclamation (Second Amendment) Order, 1975 Khandoker Mushtaque Ahmed assumed power to hand over the office of the President to any person and he handed over the office of the President to A.M. Sayem CJ. Justice Sayem issued the Proclamation of 8 November 1975 in his capacity as the President and Chief Martial Law Administrator modifying the Proclamation of 20 August 1975. Part VIA, which provided for the one-party system, was omitted from the Constitution and it was stated, "Parliament shall stand dissolved ... and general election of Members of Parliament shall be held before the end of February, 1977." Thereafter by successive Proclamation Orders amendments were made in the Constitution. By the Second Proclamation (Seventh Amendment) Order, 1976 the President and Chief Martial Law Administrator amended art.44, inserted a new art.64A and substituted Part VI of the Constitution, bifurcating the Supreme Court into Supreme Court and High Court, replacing the term 'Supreme Court' by the term 'High Court' in art.44 and creating the office of Advocate General. This amendment restored the power of the High Court Division (then called 'High court') to enforce the fundamental rights. By Third Proclamation of 29 November 1976 the President appointed Ziaur Rahman as the Chief Martial Law Administrator. In 1977 Ziaur Rahman became the President and in his capacity as the President and Chief Martial Law Administrator he issued the Proclamation Order No.1 of 1977 adding the expression 'Bismillah-Ar-Rahman-Ar-Rahim' before the preamble of the Constitution and amending the preamble replacing the expression 'historic struggle for national liberation' by the expression 'a historic war for national independence' and the expression 'nationalism, socialism, democracy and secularism' by the expression 'absolute trust and faith in the Almighty Allah, nationalism, democracy and socialism meaning economic and social justice'. By the Second Proclamation (Tenth Amendment) Order, 1977, the bifurcation of the Supreme Court was undone and the original position was restored. The Constitution gave the President the power to dissolve Parliament at any time. If

Parliament refused to pass the budget as demanded by the President, the President could exercise his power of dissolution, but there was a snag in it. If Parliament refused to accede to the demand of the President, dissolution of Parliament would land him in difficulty because without a budget having been passed he could not run the government as no money could be withdrawn from the Consolidated Fund except under an appropriation made by an Act of Parliament. Hence Ziaur Rahman further amended the Constitution by inserting a new art.92A which authorised the President, in the event of failure of Parliament to pass the Appropriation Act, to withdraw money from the Consolidated Fund for a period of 120 days and that time was sufficient to have a new Parliament elected. This power enabled the President to have any monetary demand met by Parliament under threat of dissolution. The Fourth Amendment already gave huge power to the President and this amendment removed the only difficulty relating to the budget, giving the President a handle to render Parliament subservient.

1.37 *Fifth Amendment:* The above amendments of the Constitution, not made by Parliament, were *per se* invalid and would be inoperative once the Constitution was fully restored. So, when a new Parliament was elected in the election held under the Martial Law, Ziaur Rahman got Parliament to pass the Constitution (Fifth Amendment) Act, ratifying all the Proclamations and Proclamation Orders and the amendments, modifications and omissions made in the Constitution by such Proclamations and Proclamation Orders and all actions of the Martial Law authorities and declaring those to have been validly made and done.[1] It may be noted that the Constitution (Fifth Amendment) Act was passed when the Constitution was not fully restored.

1.38 *Sixth Amendment:* On the death of Ziaur Rahman, Justice Abdus Sattar, the then Vice-President, became the Acting President. In the election of the President in 1981 he was a candidate and the question arose whether he could contest in the election without resigning from the office of the Vice President. To remove any doubt the Constitution (Sixth Amendment) Act, 1981 was passed providing, among others, that if a Vice-President is elected as President, he shall be deemed to have vacated his office on the date on which he enters upon the office of the President.

1.39 *Another Martial Law:* After the Presidential election in 1981, the political situation continued to deteriorate and Hussain Muhammad

[1] For a discussion on the validity of such amendment, see Para 4.69

Ershad, the Chief of the Army, proclaimed Martial Law on 24 March 1982, assumed all powers of the government as the Chief Martial Law Administrator and suspended the Constitution with immediate effect. The Proclamation mentioned the state of turmoil in which the country was placed and the necessity of imposing Martial Law. On 11 April 1982 he issued the Proclamation (First Amendment) Order, 1982 laying down rules as to how Bangladesh would be governed. In the Proclamation Order it was provided that a Chief Justice shall retire on reaching the age of sixty two or completing three years as Chief Justice, whichever was earlier. This provision was directed against the sitting Chief Justice who completed more than three years as Chief Justice and it was repealed when the turn of the next Chief Justice to retire came on completion of three years as Chief Justice[1] and he continued as the Chief Justice beyond three years.

1.40 On 8 May 1982 the Proclamation (Second Amendment) Order of 1982 was issued inserting paragraph 4A in the Schedule of the Proclamation of 24 March 1982 providing that the Chief Martial Law Administrator might establish permanent Benches of the High Court Division at such places as may be fixed by him. Pursuant to this permanent Benches of the High Court Division were set up at four places in the beginning and the number was ultimately increased to seven. In June, 1986 the Proclamation (Third Amendment) Order, 1986 was passed whereby the permanent Benches of the High Court Division outside the capital were renamed as Circuit Benches. After withdrawal of Martial Law in November, 1986 the Circuit Benches were, by notification, renamed as Sessions of the High Court Division.

1.41 *Seventh Amendment:* On the withdrawal of Martial Law on 10 November 1986 Ershad got Parliament to pass the Constitution (Seventh Amendment) Act, 1986 following the pattern adopted in the Constitution (Fifth Amendment) Act, 1979. By the same amending Act, the retiring age of the Judges of the Supreme Court was fixed at 65 in place of 62.

1.42 *Eighth Amendment:* The lawyers started a movement against the setting up of permanent Benches of the High Court Division outside the capital by the Martial Law authorities and the movement continued even after the withdrawal of Martial Law. The process of setting up permanent Benches of the High Court Division was contended to be

[1] Proclamation Order No.IV of 1985

unconstitutional and in this situation the Constitution (Eighth Amendment) Act, 1988 was passed amending art.100 of the Constitution and thereby setting up six permanent Benches of the High Court Division outside the capital and authorising the President to fix by notification the territorial jurisdiction of the permanent Benches. By the same amending Act, Islam was made the State religion of Bangladesh.[1]

1.43 *Ninth Amendment:* The Constitution (Fourth Amendment) Act, 1975 made provision for a Vice-President to be appointed by the President. In the absence of the President, the Vice-President would act as the President. The Constitution (Ninth Amendment) Act, 1989 was passed providing for election of the Vice-President and making amendments in respect of the terms of office of the President and Vice-President. Before this amendment was made, political movement was going on for formation of a care-taker government for holding free and fair election. The opposition gave a formula for the appointment of a neutral person as the Vice-President and resignation of the President so that the newly appointed Vice-President could act as the President and hold the election. To put a spanner in the operation of the formula, the Ninth Amendment inserted a new art.55A whereby appointment of a new Vice-President, to be effective, would require the confirmation by the majority of the total number of members of Parliament.

1.44 *Tenth Amendment:* Art.65(3) originally provided for reservation of fifteen seats for women for ten years who would be elected by the members of Parliament. By the Second Proclamation Order No. IV of 1978 the number of the reserved seats was increased to thirty and the period was increased to fifteen years. By the Constitution (Tenth Amendment) Act, 1990 the period was extended for another ten years from the date of the first meeting of the next Parliament.[2]

1.45 The movement against the Ershad regime was going on and the movement intensified in 1990. In October that year the movement took a serious turn and the three alliances formed by the political parties demanded transfer of power to a caretaker government headed by a neutral person. The three alliances reached a consensus and made a public declaration setting forth the mode and manner of the transfer of power.

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[1] The amendment so far as it related to the creation of permanent Benches of the High Court Division was found to be *ultra vires* the Constitution by the Appellate Division in *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1 = 41 DLR (AD) 165

[2] This period expired on 14 July 2001

1.46 *Eleventh and Twelfth Amendments:* Ershad had to yield to the demand of the three alliances and he handed over power to Shahabuddin Ahmed CJ after appointing him as the Vice-President. Justice Shahabuddin Ahmed formed the caretaker government in line with the Joint Declaration of the three alliances and held the election of the members of Parliament. The new Parliament passed the Constitution (Eleventh Amendment) Act, 1991 ratifying all actions taken by the caretaker government and the appointment of Justice Shahabuddin Ahmed as the Vice-President. Parliament also passed the Constitution (Twelfth Amendment) Act, 1991 restoring the parliamentary form of government substantially as provided in the original Constitution. Pursuant to the last amendment of the Constitution, the election of the President was held and the new government was formed.

1.46A *Thirteenth Amendment:* Under the original dispensation, when Parliament was dissolved or stood dissolved the Prime Minister and other Ministers would hold office till the general parliamentary election was held. There were allegations of massive rigging in a by-election resulting in movement for non-party care-taker government for the period between dissolution of Parliament and holding of the general parliamentary election. The sixth Parliament passed the Thirteenth Amendment providing for such non-party care-taker government consisting of one Chief Adviser and not more than ten Advisers to run the affairs of the government during that period in order to ensure free and fair general election.[1]

INTERPRETATION OF CONSTITUTION

1.47 *Necessity of interpretation:* Language is an imperfect vehicle of communication and there arises the necessity and problem of interpretation. Even the plainest word or phrase may have more than one meaning. Professor H.L.A. Hart spoke of general words which, according to him, have a core meaning or 'standard instance' in which no doubts are felt about its application.[2] L. Fuller took up the simple word 'sleep' and presented the following situation to demonstrate the fallacy in Hart's contention -

> Let us suppose that in leafing through the statutes, we come upon the

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[1] See Para 3.55 - 3.59

[2] Positivism and the Separation of Law and Morals, 71 Harv. Law Review, 593, 607

> following enactment: "It shall be a misdemeanour, punishable by fine of five dollars, to sleep in any railway station." ... Suppose I am a judge, and that two men are brought before me for violating this statute. The first is a passenger who was waiting at 3 A.M. for a delayed train. When he was arrested he was sitting upright in an orderly fashion, but was heard by the arresting officer to be gently snoring. The second is a man who had brought a blanket and pillow to the station and had obviously settled himself down for the night. He was arrested, however, before he had a chance to go to sleep. Which of the cases presents the 'standard instance' of the word 'sleep'.[1]

The problem becomes acute when it comes to constitutional interpretation. In the words of White J of the US Supreme Court, a constitution "is not a deed setting forth the precise metes and bounds of its subject matter, rather, it is a document announcing fundamental principles in value-laden terms that leave ample scope for the exercise of normative judgment by those charged with interpreting and applying it."[2] Furthermore, the language of a constitution being general, the expressions used are capable of harbouring divergent conclusions.[3]

1.48 ***The proper approach to interpretation:*** The rules for interpretation of all written documents are the same in the sense that the object is the ascertainment of the intention sought to be expressed in words. Hence it is generally said that the principles relating to interpretation of statutes are applicable in interpreting the provisions of a constitution.[4] The question is how far the literal interpretation approach of statutory construction is applicable to the interpretation of a constitution. Even in statutory interpretation, the literal approach does not hold the complete sway. Geoffrey Marshall[5] observed that the traditional English principles and maxims of interpretation have wavered

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[1] Positivism and Fidelity to Law - A Reply to Professor Hart, 71 Harv. Law Review, 630, 664

[2] Opinion in *Thornberg v. American College of Obstetricians*, 476 US 747, 789

[3] Tribe and Dorf – On Reading of the Constitution, p.15 (It is therefore not surprising that readers on both the right and left of the American political center have invoked the Constitution as authority for strikingly divergent conclusions about the legitimacy of existing institutions and practices.)

[4] *Reference by President*, 9 DLR (SC) 178; *Commissioner of I.T. v. Gulistan Cinema*, 28 DLR (AD) 14; *Osman Gani v. Moinuddin*, 27 DLR (AD) 61; *British Coal Corp. v. R*, (1935) AC 500; *Gopalan v. Madras*, AIR 1950 SC 27; *Wali Ahmed v. Mahfuzul Huq*, 8 DLR 429

[5] Constitutional Theory, 1971, p.74

between two positions - one being that the words in which legislators have couched their instructions merely provide evidence (possibly the best) of their aims or intentions[1] and the other being that the actual aims and intentions of legislative persons merely provide evidence of the meaning of the legislators' words (and thereby) of the instruments which emerge from their deliberations.[2] Before we consider the extent of application of the principles of statutory interpretation in respect of a constitution, it is necessary to understand the nature of a constitution as a written instrument.

1.49 A constitution is different from statutes in nature and character. It is an organic instrument; it grows with the passage of time. It is general in its statements, while a statute is generally specific. Unlike a statute liable to revisions to meet different situations, a constitution is intended to be permanent and to cover all situations of the unfolding future regarding the political organisation of a nation. Above all it is a document under which laws are made and from which laws derive their validity.

1.50 From the beginning, the American Supreme Court felt that a constitution must be given a treatment different from statutes and proceeded on liberal interpretation. In *McCulloch v. Maryland*[3] it observed, "We must never forget that it is a constitution we are

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[1] *A.G. v. Lockwood*, (1842) 9 M & W 378, 398 (The rule of law I take it upon the construction of all statutes is, whether they be penal or remedial, to construe them according to the plain literal and grammatical meaning of the words in which they are expressed unless that construction leads to a plain and clear contradiction of the apparent purpose of the Act or to some palpable and evident absurdity.)

[2] *Luke v. I.R.C.*, [1963] AC 557, 577 (It is only where the words are absolutely incapable of construction which will accord with the apparent intention of the provision and will avoid a wholly unreasonable result, that the words of the enactment must prevail.)

[3] 17 US 316; *U.S. v. Classic*, 313 US 299, 316 (In determining whether a provision of the Constitution applies to the new subject-matter, it is of little significance that it is one with which the framers were not familiar. For in setting up an enduring framework of government they undertook to carry out for the indefinite future and in all the vicissitudes of the changing affairs of men, those fundamental purposes which the instrument itself discloses. Hence we read its words, not as we read legislative codes which are subject to continuous revision with the changing course of events, but as the revelation of the great purposes which were intended to be achieved by the Constitution as a continuing instrument of the government. If we remember that 'it is a Constitution we are expounding', we cannot rightly prefer, of the possible meanings of the words, that which will defeat rather than effectuate the constitutional purpose.)

expounding" and went on to say that a constitution is intended to endure for ages to come and consequently to be adapted to the various crises of human affairs. In the words of Roscoe Pound -

> The Constitution is not a glorified police manual. Constitutional provisions lay down great principles to be applied as starting points for legal and political reasoning in the progress of society. A constitution may lay down hard and fast rules such as, for example, those fixing the exact terms of office and apportioning duties among public functionaries. But the principles established by the constitution are not to be interpreted and applied strictly according to the literal meaning of words used by the framers as if they laid down rules. Interpretation of constitutional principles is a matter of reasoned application of rational precepts to conditions of time and place.[1]

1.51 In the colonial era the Privy Council followed the literal interpretation rule in the interpretation of constitutional enactment.[2] In interpreting the Constitutional Acts of Canada and Australia, the Privy Council, however, noted the difference between a statute and a constitutional enactment and observed in respect of the Constitutional Act of Canada -

> But there are statutes and statutes; and the strict construction deemed proper in the case, for example, of a penal or taxing statute or one passed to regulate the affairs of an English Parish, would often be subversive of Parliament's real intent if applied to an Act passed to ensure the peace, order and good government of a British Colony.[3]

Subsequently, the Privy Council in *James v. Commonwealth of Australia*[4] quoted with approval the following observation of Higgins J of the Australian High Court -

> Although we are to interpret words of the Constitution on the same principles of interpretation as we apply to any ordinary law, these very

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[1] Law Finding Through Experience and Reason, 1960, p.63

[2] *R. v. Burah*, 4 Cal 172; *Emperor v. Benoari Lal*, AIR 1945 PC 48 (The question whether an Ordinance is intra vires or ultra vires does not depend on consideration of jurisprudence or policy. It depends simply on examining the language of the Government of India Act and of comparing the legislative authority conferred on the Governor-General with the provisions of the Ordinance by which he is purporting to exercise that authority.)

[3] *Edwards v. A.G. of Canada*, [1930] AC 124

[4] [1936] AC 578, 614

> principles of interpretation compel us to take into account the nature and scope of the Act that we are interpreting - to remember that it is a Constitution, a mechanism under which laws are to be made and not a mere Act which declares what the law is to be.[1]

1.52 After the colonial era gave way to the Commonwealth era, the attitude of the Privy Council changed. While giving independence to the former colonies, the British Parliament in agreement with the representatives of various shades of political opinion enacted constitutions for these colonies which are now called constitutions of the Westminster model.[2] These constitutions, adopted under the influence of the European Convention for the Protection of Human Rights and the United Nations Universal Declaration of Human Rights, 1946, provided for fundamental rights with entrenched provisions. In *Ministry of Home Affairs v. Fisher* the question arose whether for the purpose of citizenship and related rights the word 'child' in the Bermudan Constitution meant only legitimate child. Lord Wilberforce deliberated-

> ... the question must inevitably be asked whether the appellants' premise, fundamental to their arguments, that those provisions are to be construed in the manner and according to the rules which apply to the Acts of Parliament, is sound. In their Lordships' view there are two possible answers to this. The first would be to say that, recognising the status of the Constitution as, in effect, an Act of Parliament, there is room for interpreting it with less rigidity, and greater generosity, than other Acts, such as those which are concerned with property, or succession, or citizenship ... The second would be more radical: it would be to treat a constitutional instrument such as this as *sui generis*, calling for principles of interpretation of its own, suitable to its character as already described, without necessary acceptance of all the presumptions that are relevant to legislation of private law.[3]

The Privy Council adopted the second one and observed -

> This is in no way to say that there are no rules of law which should

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[1] *A.G. of New South Wales v. Brewery Employees Union*, 6 C.L.R. 469, 611.

[2] A discussion on the nature, character and pattern of such constitutions can be found in *Hinds v. The Queen*, [1976] 1 All E.R., 353, 359-60. It is to be noted that the Constitution of Bangladesh is similar in nature and pattern and the decisions of the Privy Council in respect of constitutions of the Westminster model have great persuasive value.

[3] [1979] 3 All E.R. 21, 26

> apply to the interpretation of a constitution. A constitution is a legal instrument giving rise, amongst other things, to individual rights capable of enforcement in a Court of law. *Respect must be paid to the language which has been used and to the traditions and usage which have given meaning to that language. It is quite consistent with this, and with the recognition that rules of interpretation may apply, to take as a point of departure for the process of interpretation a recognition of the character and origin of the instrument, and to be guided by the principle of giving full recognition and effect to those fundamental rights and freedoms with a statement of which the Constitution commences.*[1] (italics supplied)

One may say that the approach in *Fisher* is confined to the consideration and interpretation of fundamental rights. But this is not correct. The Privy Council clearly stated in a subsequent case that a constitution, and in particular, its provisions relating to fundamental rights should be given a generous and purposive construction.[2] In *Hinds v. The Queen*, another Westminster model constitution came up for consideration and though there was no express prohibition in the Constitution of Jamaica on Parliament in the matter of setting up courts, the Privy Council implied such limitation as was necessary to conform to the manifest intention emerging from the scheme of the constitution. Lord Diplock observed -

> To seek to apply to constitutional instruments the canons of construction applicable to ordinary legislation in the fields of substantive criminal or civil law would, in their Lordships' view, be misleading ...[3]

In respect of the grant of legislative power the following observation in *R. v. Burah* is cited to support the literal approach or to negative an implied prohibition on legislative power -

> If what has been done is legislation, within the general scope of the affirmative words which give the power and it violates no *express* condition or restriction by which that power is limited ... it is not for any Court of Justice to inquire further, or to enlarge constructively those

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[1] Ibid; see also *Ong Ah Chuan v. Public Prosecutor*, [1981] AC 648, 671 (Having regard to the scheme of the constitution, the Privy Council refused to give a literal construction to the expression 'in accordance with law'.)

[2] *A.G. for The Gambia v. Momodou*, [1984] AC 689, 700

[3] [1976] 1 All E.R. 353, 360.

conditions and restrictions.[1] (italics supplied)

The word 'express' does not exclude necessary implications.[2] Immediately after speaking against constructively enlarging the express conditions and restrictions, the Privy Council found an implied prohibition observing -

> Their Lordships agree that the Governor-General in Council could not, by any form of enactment, create in India, and arm with general legislative authority a new legislative power, not created or authorised by the Councils Act.[3]

Though legislative power cannot be narrowed down by enlarging express conditions and restrictions, the nature of a constitution must be kept in view. Having regard to the federal nature of the Canadian Constitution, the Privy Council refused to give a literal meaning to the expression 'peace, order and good government' in s.91 of British North America Act, 1867 as there was hardly any subject enumerated in s.92 of the Act upon which the Parliament of Canada could not legislate to the exclusion of the provincial legislatures and a literal interpretation would destroy the autonomy of the provinces.[4]

1.53 Every constitution is founded on some social and political values and legal rules are incorporated to build a structure of political institutions aimed to realise and effectuate those values. Therefore, the legal rules incorporated in the body of a constitution cannot be interpreted in isolation from those social and political values and the purpose which emerge from the scheme of the constitution. That is why Lord Wilberforce in *Fisher* held that though the rules of statutory interpretation will generally be applicable, the court has to take as a point of departure for the process of interpretation a recognition of the character and origin of the constitution. Need for recognition of the character and origin arises for giving purposive interpretation of a constitution. The Appellate Division took into consideration the character and origin of the Constitution to determine the purpose of

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[1] 4 Cal 172, 180-181

[2] Seervai - Constitutional Law of India, 3rd ed., p.2669

[3] 4 Cal 172, p.181

[4] *A.G. for Ontario v. A.G. for Canada*, [1896] AC 348, 361; See also *Hinds v. The Queen*, [1976] 1 All E.R. 353, *Liyanage v. R*, [1967] AC 258, *Ong Ah Chuan v. Public Prosecutor*, [1981] AC 648; *Ali v. R*, [1992] 2 All E.R. 1, for implied limitations on legislative power.

judicial review under art.102 and from such determination arrived at the meaning of the expression 'person aggrieved' in art.102.[1] It is true that the meaning of express provisions of a constitution cannot be altered on consideration of the supposed spirit of the constitution or on notions of any political theory. But when the spirit and purpose emerge clearly from the scheme or express provisions of the constitution, it will be contrary to the intention of the framers to give a construction which is not in accord with such spirit or purpose.[2] Thus if the scheme of the constitution assimilates the principle of separation of powers, a prohibition in making a law contrary to that principle has to be implied.[3] The court cannot rightly prefer, of the possible meanings of the words, that which will defeat rather than effectuate the constitutional purpose.[4] The imperatives of a liberal and generous interpretation are much more in respect of the Bangladesh Constitution in view of the fact that the social and political objectives have been clearly stated in the preamble and the fundamental principles of State policy.[5] The Appellate Division in accepting the theory of basic structure of the Constitution in *Anwar Hossain Chowdhury v. Bangladesh*[6] interpreted the Constitution on the basis of its spirit and scheme without caging the interpretation within the confines of the written words. The said decision recognised some basic features of the Constitution like supremacy of the Constitution, independence of judiciary and rule of law[7], and unless there is any definite contra indication in the Constitution, the constitutional language must be interpreted in a way as will subserve those basic features of the Constitution. It has to be noted that the principles of statutory interpretation are "frequently statements not so much of hard-and-fast rules of law, as of a general judicial approach to the task of interpreting

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[1] *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR (AD) 1, Para 40-48

[2] See the approach of the Appellate Division in *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR (AD) 1

[3] *Ali v. R*, [1992] 2 All E.R. 1 (Though there was no specific prohibition in the Constitution, the Privy Council held invalid a law permitting the Director of Public Prosecutions, a member of the executive government, to select the mandatory death penalty simply by choosing the forum as it breached the principle of separation of powers)

[4] *U.S. v. Classic*, 313 US 299, 316; *Aftabuddin v. Bangladesh*, 48 DLR 1, 13 (An interpretation repugnant to the intent and object of the Constitution cannot be adopted in preference to the one which conforms to it.)

[5] See Para 1.70 & 1.95

[6] 1989 BLD (Spl) 1

[7] Ibid, Para 377 and 443

statutes in particular contexts."[1] The Constitution, however, has provided a binding rule of law in stating that the fundamental principles of State policy shall be a guide to the interpretation of the Constitution and the laws of Bangladesh.[2] The court is, therefore, required to take note of the scheme and objectives of the Constitution as evinced by those principles of State policy and cannot construe any provision contrary to such principles of State policy unless the language of a provision is so clear as to convince the court that in that particular instance the framers wanted to make a departure.

1.54 *Express and implied meaning:* It is sometimes stated that in interpreting a written constitution no implication can be made.[3] Such a statement does not take into account the meaning of 'meaning'. Every expression of ideas has express and implied meanings and both meanings are real and important. In statutory construction courts do take cognisance of implications. There is no reason to exclude the consideration of implications in constitutional interpretation. "The implications from the provisions of a constitution are sometimes exceedingly important, and have large influence upon its construction."[4]

1.55 The language of a constitution being general in nature, it is imperative to take notice of the implications, particularly those which arise from the words used.[5] The maxim *expressio unius est exclusio alterius*, applied also in constitutional interpretation, is an instance of negative implication. The Constitution of Bangladesh nowhere says that the Supreme Court has power of judicial review of laws on the ground of inconsistency with any provision of the Constitution other than the provisions of Part III. But this power of judicial review is accepted as a

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[1] Sir Rupert Cross - Statutory Interpretation, 2nd ed., p.4. These principles are merely guides and often it will be found that two principles applicable to the same case guide one to opposite directions and if a court wants to apply both the principles, it will end with a blank sheet of paper.

[2] Art.8(2)

[3] *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319, 351 (It may be noted that shortly before this case the Appellate Division in *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111, invoked the doctrine of implied powers.)

[4] Cooley - Constitutional Limitations, 1927, p.138

[5] 16 Am Juris 2d. Const. Law Para 107 (Since constitutions must of necessity be general rather than detailed and prolix, many of the essentials with which they treat are impliedly controlled or dealt with by them, and implication plays a very important part in constitutional construction.)

necessary implication from the scheme of the Constitution and art.7. In *Kudrat-E-Elahi* the court found limitation on the power of the government in respect of the formation of a local government body with nominated persons as a necessary implication from the provisions of art.59 read with arts.7, 9 and 11.[1] Even though art.117 is silent about the person manning the administrative tribunal, M.H. Rahman J, having regard to the scheme of the Constitution, implied that the person must have knowledge of law and skill in adjudication.[2] The decision in the famous case of *Marbury v. Madison*[3] was based on implications, so was the decision in *Anwar Hossain Chowdhury v. Bangladesh*[4]

1.56 ***Principles of statutory interpretation:*** With the caveat in respect of the special position of the Constitution of Bangladesh calling for principles of interpretation of its own, we shall briefly discuss the principles of statutory interpretation as are applicable in respect of interpretation of the Constitution.[5]

1.57 *Ascertainment of intention:* The function of the court in interpreting any provision of a constitution is to ascertain the intention of its makers.[6] This is the polestar of the principles of construction of a constitution and all other principles are only rules or guides to aid in the determination of that intention.[7] As the language primarily expresses the intention, effort should be made at the first instance to gather it from the words used[8] and upon consideration of the whole of the enactment.[9] A clause cannot be interpreted in isolation and must be construed as part of

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[1] 44 DLR (AD) 319; *Liyanage v. R*, [1967] AC 259, 286 (The Constitution of Ceylon did not expressly vest judicial power in the judiciary exclusively, but having regard to the scheme of the constitution and particularly the fact that judicial power had always been vested in the courts, the Privy Council held that the constitution had vested the judicial power in the judiciary exclusively.)

[2] *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111, 122

[3] 2 L. Ed. 60

[4] 1989 BLD (Spl) 1

[5] For detailed discussion of the principles of statutory interpretation the readers are referred to the standard text books on the subject like Maxwell and Craies in the English jurisdiction and Sutherland and Crawford in the American jurisdiction.

[6] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1

[7] 16 Am Juris 2d. Const. Law Para 92

[8] *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111; *Mahboobuddin Ahmed v. Bangladesh*, 50 DLR 417, 423; *Aftabuddin v. Bangladesh*, 48 DLR 1

[9] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1; *Reference by President*, 9 DLR (SC) 178

a unified whole. "The legal intendment is that each and every clause has been inserted for some useful purpose, and, when rightfully understood has some practical operation; each word, it has been said, must be presumed to have been carefully chosen and intentionally placed, as though it had been hammered into place."[1] Every word must be given effect to and no word as a general rule should be rendered meaningless or inoperative.[2] The court must lean in favour of a construction which will render every word operative rather than that which makes some words idle or nugatory.[3] When the same expression is used in several places, it has to be construed as meaning the same thing unless the context otherwise requires. In the same way if different words are used, they must be understood as conveying different meanings[4], unless the context otherwise requires[5]. For example, though in popular sense the expressions 'dismissal' and 'removal from service' have the same meaning, but different expressions having been used, the same meaning to both terms was not given.[6] In ascertaining the intention it is wrong to start with some *a priori* idea of that intention and then to try by interpretation to wedge into the words of the constitution.[7] If the language of the constitution is not only plain, but admits of only one meaning, the language declares the intention[8] even if the result is harsh.[9] In such a case the court is not at liberty to search for a meaning beyond the instrument.[10] But when a provision apparently within the competence of the legislature to make appears to be unduly harsh or absurd, the court is put to inquiry whether the framers of the constitution intended to confer such power on the legislature.[11] This is particularly so

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[1] 16 Am Juris 2d, Const. Law, Para 101

[2] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1; *Begum Shamsunnahar v. Speaker*, 17 DLR (SC) 21

[3] *Reference by President*, 9 DLR (SC) 178

[4] *Quarry Owners Assocn v. Bihar*, AIR 2000 SC 2870

[5] *Kanhaiyalal v. Arun Dattatraya*, AIR 2000 SC 3681

[6] *Ghulam Sarwar v. Pakistan*, PLD 1962 SC 142, 199

[7] *Reference by President*, 9 DLR (SC) 178

[8] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1; *Punjab v. Ajaib Singh*, AIR 1953 SC 10

[9] *Bazlur Rahman v. Shamsunnissa*, 11 MIA 604; *Halima Khatun v. Bangladesh*, 30 DLR (AD) 207

[10] *Lake City v. US*, 130 US 662

[11] Cooley - Constitutional Limitations, 1927, p.153 (We do not say, however, that if a clause should be found in a constitution which should appear at first blush to demand a construction leading to monstrous and absurd consequences, it might not be the duty of

when the concept of reasonable law is woven in the fabric of the constitution as in the case of the American and the Bangladesh Constitution. It will be seen that generally the court defers to the legislative judgment regarding the reasonableness of a law[1], but when a statute was found to be quite unreasonable and unnecessarily impinging on the accepted values of the society, the American Supreme Court declared such law void as not being permitted by the constitution.[2]

1.58 It is said that though the spirit of the constitution is to be respected no less than its letters, that spirit is to be gathered from its words, and neither practice nor extrinsic circumstances can control its clear language.[3] "When the fundamental law has not limited, either in terms or by necessary implication, the general powers conferred upon the legislature, we cannot declare a limitation upon the notion of having discovered something in the spirit of the Constitution which is not even mentioned in the instrument".[4] On this reasoning the Indian Supreme Court refused to import the concept of reasonableness of 'procedure established by law' in art.21. But having regard to the scheme and objective of the constitution, the court subsequently did so.[5] When the spirit and purpose of the constitution clearly emerge from the express words and an apparently clear language of a provision is found to be inconsistent with that spirit or purpose, it becomes doubtful if the framers of the constitution intended the meaning the language of the provision apparently bears. The court is then required to search for a meaning in conformity with the spirit or purpose of the constitution.

1.59 *The golden rule of interpretation:* The golden rule of interpretation is that words should be read in their ordinary, natural and grammatical meaning. But the rule cannot be applied when a word used is ambiguous or obscure. And even the plainest word may have different meanings. For example, the word 'residence' may mean the place where

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the court to question and cross-question such clause closely, with a view to discover in it, if possible, some other meaning more consistent with the general purposes and aims of these instruments.); *Rashid Ahmed v. State*, 21 DLR (SC) 297; *Ali Ekabbar Farazi v. Bangladesh*, 26 DLR 394 (reversed on a different ground)

[1] *Williamson v. Lee Optical Co.*, 348 US 483; *New Orleans v. Dukes*, 427 US 297

[2] *Moore v. East Cleveland*, 431 US 494

[3] *Sturges v. Crowninshield*, 4 L. Ed 529

[4] *People v. Fisher*, 24 Wnd. 215, 220 (quoted in Cooley's Constitutional Limitations, 1927, p.351; *Gopalan v. Madras*, AIR 1950 SC 27

[5] *Maneka Gandhi v. India*, AIR 1978 SC 597; *Special Court Bill*, 1978, AIR 1979 SC 478

a person has his abode for some period or his permanent home, whether or not he is residing there for the time being. Hence a word used cannot be construed in isolation and must be understood in the context in which it is used. It was thought that it would be wrong for a court to look beyond the words with which it was immediately concerned if their meaning was clear when they were considered in isolation. But this isolationist approach did not find favour with the courts. The words used in a provision must be read in its context to find out if its meaning is clear and unambiguous.[1] In *A.G. v. Prince Ernest Augustus* Viscount Simmonds observed -

> ... words, and particularly general words, cannot be read in isolation, their colour and content are derived from their context. So it is that I conceive it to be my right and duty to examine every word of a statute in its context, and I use "context" in its widest sense, which I have already indicated as including not only other enacting provisions of the same statute, but its preamble, the existing state of the law, other statutes in *pari materia*, and the mischief which I can, by those and other legitimate means, discern the statute was intended to remedy.[2]

1.60 In order to clear up ambiguity, obscurity or other difficulties resort may be had to history in construing the constitution.[3] The mischief rule enunciated in *Heydon's* case[4] is particularly useful in removing ambiguity. The rule requires consideration of four matters: (a) what was the common law before the making of the Act, (b) what was the defect for which the common law did not provide, (c) what remedy Parliament

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[1] Sir Rupert Cross - Statutory Interpretation, 2nd ed., p.48-49

[2] [1957] AC 436, p.461

[3] Dr. Wynes - Legislative, Executive and Judicial Powers in Australia, 5th ed., p.19; *State v. Joynal Abedin*, 32 DLR (AD) 110; *Chamarbaughwalla v. India*, AIR 1957 SC 628; *River Wear Commissioners v. Adamson*, [1877] 1 App. Cas 743 (A statute provided that the owner of every vessel would be answerable for any damage done by the vessel to the dock except where at the time when the damage was caused the vessel was in charge of a compulsory pilot. A question arose whether an owner of an abandoned vessel which was driven by storm (act of God) against a pier would be liable. The court examined the position prior to the enactment of the statute and having regard to the fact that there was no liability in common law for damage done by act of God held that the statute did not create liability in such situation stating, "The sections appear ... to be sections of procedure only, dealing with mode in which a right of action for damages already existing shall be asserted, and not creating a right of action for damages where no right of action for damages against any one existed before.")

[4] (1584) 3 Co Rep 7a

has provided and (d) the true reason of the remedy.[1] Where the words used are ambiguous and susceptible of more than one meaning, it is legitimate to consider the consequences which would result from any particular construction, for, there are many things which the legislature is presumed not to have intended to bring about and a construction which would not lead to any one of these things should be preferred to one which would lead to one or more of them.[2] If two meanings are possible that meaning is to be assigned which comports with justice and good conscience[3] or which is reasonable[4] or which will ensure the smooth and harmonious working of the constitution[5] or which will not be inconsistent with fundamental rights[6] or which saves the statute from invalidity.[7] However, constitutional provisions should not otherwise be stretched by interpretation to save the validity of statutes; in all circumstances the full scope and extent of the constitutional provisions must first be determined and if the statute in question is capable of a construction which is in conformity with the true meaning of the constitution, then that construction is to be adopted.[8]

1.61 *Liberal interpretation:* Even though the principles of statutory interpretation will generally be applicable in case of interpretation of a constitution, a constitution being an organic instrument intended to be permanent and to cover all changing situations in the society "it has the

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[1] *Smith v. Hughes*, [1960] 1 WLR 830 (A law prohibited prostitutes from soliciting 'in the street'. The defendant contended that she was in the balcony or window and not in the street. The contention was rejected and it was held, "For my part, I approach the matter by considering what is the mischief aimed at by this Act. Everybody knows that this was an Act intended to clean up the streets, to enable people to walk along the streets without being molested or solicited by common prostitutes.")

[2] *Vacher & Sons v. London Society of Compositors*, [1913] AC 107; *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1

[3] *Cox v. Hakes*, [1890] 15 AC 506; *Ghulam Sarwar v. Pakistan*, PLD 1962 SC 142, 171 (where restricted meaning of 'dismissal' in s.240(3) of the Government of India Act, 1935 would result in injustice in that termination of service for misconduct would entitle a delinquent employee to show cause notice while termination of service without any allegation of misconduct would not entitle an innocent employee to any show cause notice, the court preferred the wider meaning)

[4] *Countess of Rhodes v. Kirealty Waterworks*, [1882] 7 AC 649

[5] *Punjab v. Ajaib Singh*, AIR 1953 SC 10

[6] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1, 14; *Kanhaiyalal v. Indumati*, AIR 1958 SC 444, 447.

[7] *US v. Delaware*, 213 US 366

[8] *Abdul Aziz v. West Pakistan*, 11 DLR (SC) 126

greatest claim to be construed *ut res magis valeat quam pereat*"[1] (it is better that it should live than it should perish). If two constructions are possible, the court shall adopt that which implements, and discard that which stultifies, the apparent intention of the framers of the constitution.[2] The rule of strict construction applied to penal and fiscal statutes is not applicable in the matter of constitutional interpretation. Constitutional enactment should be interpreted liberally and not in any narrow or pedantic sense.[3] In interpreting a constitution, the widest construction possible in its context should be given according to the ordinary meaning of the words and each general word should be held to extend to all ancillary and subsidiary matters.[4] Where the constitution grants a power, that construction most beneficial to the widest amplitude of powers must be adopted[5] and all such powers which are necessary to effectuate the power specifically granted must be presumed to have been given.[6] The court in construing a provision conferring a right ought not to adopt a construction which would unduly restrict that right; that construction which renders the right fully effective and operative should be given.[7] In respect of fundamental rights and freedoms of individuals, the court will give a generous interpretation avoiding what has been called 'the austerity of tabulated legalism' suitable to give the individuals the full measure of the fundamental liberties.[8] However, it

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[1] *C.P. & Berar Motor Spirit Sales Tax Act*, AIR 1939 FC 1; *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111; *Goodyear India Ltd. v. Haryana*, AIR 1990 SC 779

[2] *Bihar v. Kameswar*, AIR 1952 SC 252; *Chandra Mohan v. U.P.*, AIR 1966 SC 1987

[3] *C.P. & Berar Motor Spirit Sales Tax Act*, AIR 1939 FC 1; *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1; *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111; *James v. Commonwealth of Australia*, [1936] AC 578, 614

[4] *Nur Hossain v. East Pakistan* 11 DLR (SC) 423 (It was contended that the expression 'acquisition' is confined to obtaining proprietary right and does not include 'requisition' which is a mere taking of possession. The court gave a wide meaning to include requisition within the expression 'acquisition'); *Golam Ali Shah v. State*, 22 DLR (SC) 247; *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111

[5] *British Coal Corp. v. R.*, AIR 1935 PC 158; *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111

[6] *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111 (Power given under art.117(2) to provide for appeal against the decision of Administrative Tribunal is construed to include the power to provide the forum of the appeal).

[7] *Rashid Ahmed v. State*, 21 DLR (SC) 297; *Life Insurance Corp. v. Manubhai*, AIR 1993 SC 171

[8] *Minister of Home Affairs v. Fisher*, [1980] AC 319, 328 (A question arose whether Bermuda-born illegitimate children fell within the meaning of 'child' in s.11(5)(d) of the Bermudan Constitution. The Privy Council held that changes in social condition

has to be kept in mind that by construction a provision is not extended to meet a case for which provision has clearly and undoubtedly not been made.[1]

1.62 *Rules of language:* In construing the provisions of a constitution, the principles of *noscitur a sociis*[2], *ejusdem generis*[3] and *expressio unius est exclusio alterius* are applicable. *Noscitur a sociis* is the principle that where two or more words, which are susceptible of analogous meaning are coupled together, they are understood to be used in their cognate sense. They take their colour from each other, and the more general is restricted to a sense analogous to the less general.[4] *Ejusdem generis* represents the principle that where particular words are followed by general words, the general words should not be construed in their widest sense, but should be held as applying to objects, persons or things of the same general nature or class as those specifically enumerated unless of course there is a clear manifestation of a contrary purpose. Where the general words immediately follow or are closely associated with specific words, their meaning must be limited by reference to the preceding words.[5] Thus when the word 'tribunal' followed the word 'court' in art.102(5), the Appellate Division held that the former must be one which is shown to exercise the judicial power of the State, possess some trappings of a court and has been cast the duty to act judicially and does not include a mere administrative tribunal.[6] To invoke the application of the *ejusdem generis* rule, there must be a distinct genus or category. The specific words must apply not to different objects of a widely differing character but to something which can be called a class or a kind of objects. Where this is lacking, the rule cannot apply.[7] *Expressio unius est exclusio alterius* means that express mention of a thing excludes things which are not mentioned. If a statute

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had narrowed down the gulf between legitimate and illegitimate children and constitutional provisions require generous interpretation particularly in respect of fundamental rights and hence 'child' included illegitimate child); *Ong Ah Chuan v. Public Prosecutor*, [1981] AC 648, 670.

[1] *Reference by President*, 9 DLR (SC) 178

[2] *Neal v. Clerk*, 95 US 704; *I.R.C. v. Frere*, [1965] AC 402

[3] 16 Am Juris 2d, Const. Law, Para 91; *Powell v. Kempton Park Race-Course Co.*, [1899] AC 143

[4] *Angus v. Robertson*, [1879] 5 AC 63; *Ranganathan v. Madras*, AIR 1955 SC 604

[5] *Smelting Company of Australia v. Commr. of Inland Revenue*, [1897] 1 QB 275

[6] *Bangladesh v. A.K.M. Zahangir*, 34 DLR (AD) 173, 205

[7] *Electricity Board v. Mohan Lal*, AIR 1967 SC 1857

enumerates the things upon which it is to operate, everything else must necessarily and by implication be excluded from its operation and effect. So if a statute directs certain acts to be done in a specified manner by certain persons, their performance in any manner other than that specified or by any person other than the one named is prohibited.[1] In order to apply this principle it is not enough to show that the express and the tacit are incongruous, it must also be shown that they cannot be reasonably intended to co-exist.[2] There are other limitations on the application of this principle, such as, where something has been mentioned by way of abundant caution without any attempt to make it exhaustive the principle shall have no application.[3] The principle is to be used only as a means of ascertaining the legislative intent and is not applicable where it is clear that the law makers did not intend to exclude a thing not mentioned.[4]

1.63 *Titles, headings and arrangement of particular provisions:* In *Mujibur Rahman v. Bangladesh*[5] it was contended that the provision for administrative tribunals having been included in the Judiciary Part, a tribunal is to be treated as co-ordinate to, or equally effective as, the High Court Division and in the absence of any express provision must be composed of a person appointed in the same manner and entitled to the same security of tenure as a Judge of the Supreme Court. The court, however, did not accept the contention based on the place occupied by art.117 in the Constitution. It is sometimes said that the division of a constitution into chapters and sections is a mere matter of convenience for the purpose of reference, and is not of significance in applying the rules of construction and interpretation.[6] When the language of the provision sought to be construed, read in the context, is unambiguous, title, headings, marginal notes and particular position occupied by the provision cannot control the clear meaning of the provision. But when the language is not clear or doubt is felt as to its true meaning, the place occupied by a particular provision in the statute may be decisive.[7] The

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[1] Crawford - The Construction of Statutes, 1940, p.335; Cooley - Constitutional Limitations, 1927, p.139; *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319, 333

[2] *Lowe v. Darling*, [1906] 2 KB 772

[3] *Gorham v. Bishop of Exeter*, [1850] 15 QBD 52; see *A.B. Siddique v. Justice Shahabuddin Ahmed*, 49 DLR 1

[4] *A.B. Siddique v. Justice Shahabuddin*, 49 DLR 1

[5] 44 DLR (AD) 111

[6] 16 Am Juris 2d, Const. Law, Para 131

[7] Sir Rupert Cross - Statutory Interpretation, 2nd ed., p.55 (citing the decision of

headings prefixed to sections or set of sections in modern statutes are regarded as preambles to those sections and they may be consulted to resolve any ambiguity in the law.[1] Though long title may be used as an aid to construction, the balance of authorities suggests that short title may not be taken into account in construing a statute.[2] In *Chandler v. Director of Public Prosecutions*[3] Lord Reid opined that marginal notes cannot be used as an aid to construction. But his observation in the later decision of *Schildkamp*[4] has resulted in uncertainty in this regard.

1.64 *Definition Clause and General Clauses Act:* Art.152(1) defines certain terms used in the Constitution. Those terms must be understood as defined in that article and the court is not at liberty to give any other meaning to those terms. The court can give a different meaning where the subject dealt with or the context in which the term is used necessitates a departure. Art.152(2) provides that the General Clauses Act, 1897 shall be applicable in relation to the Constitution as it applies in relation to statutes and s.6 of that Act shall be applicable in respect of any statute which has been repealed by the Constitution or has become void or ceases to have effect by virtue of the provisions of the Constitution. The rules of construction laid down in this Act are applicable to the interpretation of the Constitution.[5] The court has also to follow the definition of the terms given in the Act in interpreting the Constitution, unless the context requires some other meaning to be given.[6]

1.65 Art.153(2) provides for an authentic text of this Constitution in Bengali and an authentic text of an authorised translation in English and as per the terms of art.153(3) in case of conflict between the Bengali text and the English text, the Bengali text shall prevail.[7]

1.66 *Mandatory and directory provisions:* The question frequently arises whether a particular provision is mandatory or directory. The

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Director of Public Prosecution v. Schildkamp, [1971] AC 1); Seervai – Constitutional Law of India, 4th ed., vol.1, p.244

[1] Maxwell - Interpretation of Statutes, 12th ed., p.11; *Dixon v. B.B.C.*, [1979] 2 All E.R. 112; *Abdul Haq v. Fazlul Quader Choowdhury*, 15 DLR 35

[2] Maxwell, p.4, 6

[3] [1964] AC 763

[4] [1971] AC 1

[5] *Pradyat v. Chief Justice*, AIR 1956 SC 285

[6] *Kannayan v. I.T.O.*, AIR 1968 SC 637

[7] *Osman Gani v. Moinuddin*, 27 DLR (AD) 61

courts usually hesitate to declare that a constitutional provision is directory. As a general rule a constitutional provision is held to be mandatory unless it appears from the express terms thereof, or by necessary implication from the language used, that it is intended to be directory.[1] Prohibitory language is nearly always construed as being mandatory.[2] It is a cardinal rule of construction that when statutory restrictions are couched in negative terms they are almost invariably held to be mandatory.[3] When a provision requires that something shall be done or done in a particular manner or form declaring what shall be the consequence of non-compliance, it has to be regarded as imperative.[4] The use of the expression 'shall' is generally, but not always, taken to be indicative of the mandatory nature of a particular provision.[5] The court has to ascertain the intention of the legislature and in doing so the court may consider the nature and design of the statute and the consequence which would follow from construing it the one way or the other, the impact of other provisions whereby the necessity of complying with the provisions in question is avoided, the circumstances, namely, that the statute provides for a contingency of the non-compliance with the provision, the fact that the non-compliance with the provision is or is not visited by some penalty, the seriousness or trivial consequences that follow therefrom and, above all, whether the object of the legislation will be defeated or furthered.[6] When a particular provision relates to performance of a public duty and the case is such that to hold null and void acts done in respect of this duty would work serious general inconvenience or injustice to persons who have no control over those entrusted with the duty and at the same time would not promote the main object of the provision, such a provision should be held to be

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[1] *Osman Gani v. Moinuddin*, 27 DLR (AD) 61; 16 Am Juris 2d. Const. Law Para 136; Cooley - Constitutional Limitations, 1927, p.159 (Constitutions do not usually undertake to prescribe mere rules of proceeding, except when such rules are looked upon as essential to the thing to be done; and they must be regarded in the light of limitations upon the power to be exercised ... If directions are given respecting the times or modes of proceeding in which a power should be exercised, there is at least a strong presumption that the people designed it should be exercised in that time and mode only ...)

[2] 16 Am Juris 2d., Const. Law, Para 137

[3] *Osman Gani v. Moinuddin*, 27 DLR (AD) 61

[4] *Rasharaj v. State*, 52 DLR 598

[5] *U.P. v. Srivastava*, AIR 1957 SC 912 (Court held that the provision of consultation with the Public Service Commission by the government is directory)

[6] *Forkan Ali v. Banglaesh*, 2000 BLD 415

directory only, the neglect of which does not affect the validity of the acts done.[1] Permissive constitutional language, such as the word 'may' is usually treated as intended to be merely permissive. But the use of a such word is not conclusive[2] and it depends largely, if not altogether, on the object sought to be achieved by the provision in question. "Where the object of the provision is to clothe public officers with power to be exercised for the benefit of third persons, or for the public at large, that is, where the public interest or a private right requires that the thing be done, then the language though permissive in form is peremptory".[3]

1.67 If a mandatory provision is disobeyed, the transaction contrary to that provision will be void. But non-compliance with a provision which is directory will not render any transaction invalid. It, however, does not mean that a directory provision need not be complied with; substantial compliance, as opposed to strict compliance, with such provision is required, though the entire disregard of such directory provision would not necessarily invalidate the action.[4] In *F v. F*[5] it was held that in certain situations non-compliance with a mandatory

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[1] *Montreal Street Rly Co. v. Normandin*, AIR 1917 PC 142; *Abdul Jabbar v. Registrar, Co-operative Societies*, 1986 BLD 145 (s.18(2) of the Co-operative Societies Ordinance, 1985 required the election of the managing committee of co-operative societies to be held in accordance with the rules. Framing of the rules was delayed and in the meanwhile the term of the managing committee of a society having expired, election was held according to the old procedure. The constitution of the new managing committee was treated as illegal as it was not in accordance with the rules later prescribed. The court held that the provision of s.18(2) requiring holding of the election in accordance with the rules was directory); *Biswanath v. Emperor*, AIR 1945 FC 67; *U.P. v. Srivastava*, AIR 1957 SC 912

[2] *U.P. v. Srivastava*, AIR 1957 SC 912

[3] 16 Am Juris 2d., Const. Law, Para 138; *Principal Secretary, President's Secretariat v. Mahtabuddin*, 42 DLR (AD) 214 (Martial Law Order No.9 gave to the persons removed from service under the Order a right to apply for review and provided that the Chief Martial Law Administrator 'may' review the order. The court held that the word 'may' ought to be read as 'shall'.); *Dinkar v. Maharashtra*, AIR 1999 SC 152 ('May' read as 'shall' to prevent arbitrary exercise of power by the authority)

[4] Cooley at p.154 observed, "In respect to statutes it has long been settled that particular provisions may be regarded as *directory* merely; by which is meant that they are to be considered as giving directions which *ought* to be followed, but not as so limiting the power in respect to which the directions are given that it cannot effectually be exercised without observing them"; see *Secretary, Ministry of Food v. M.F. Ltd.*, 44 DLR (AD) 166; *Bharat Hari Singhania v. Commr. of Wealth Tax*, AIR 1994 SC 1355, 1365

[5] [1971] Probate 1

direction of law may render a transaction voidable and not void.[1]

1.68 *Retrospective and prospective operation:* In the absence of any clear indication to the contrary, statutory provisions are to be construed as having prospective and not retrospective operation and this rule is equally applicable to constitutional provisions.[2]

1.69 *Generic interpretation:* The general rule governing statutory interpretation that a statute may be read as having a fixed meaning, speaking from the date of enactment is not applicable in the case of constitutional interpretation.[3] "It is undoubted that the terms of the constitution are to be interpreted by reference to their meaning when it was framed, but this does not mean that they are to be read as comprehending only such manifestation of the subject matters named as were known to the framers. Constitution can be and is construed to include such new specific developments of particular matters as may arise."[4] Though the terms of a constitution do not undergo any change and the nature of the grant of power must always remain the same, they apply from generation to generation to all things to which they are in their nature applicable.[5] Thus while interpreting the term 'trade and commerce' in ss.51 and 82 of the Australian Constitution Act, the Privy Council observed -

> The words used are necessarily general and their full import and true

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[1] For a critical analysis of the decision, see Seervai - Constitutional Law, 4th ed., p.253

[2] Cooley - Constitutional Limitations, 1927, p.137; *Muhammad Ishaq v. State*, PLD 1956 SC 256; *Keshavan Madhava Menon v. Bombay*, AIR 1951 SC 128; *Sarwarlal v. Hydrabad*, AIR 1960 SC 862, 865; *Ranjit Singh v. C.I.T.*, AIR 1962 SC 92, 96

[3] *S.C. Advocates-on-Record Association v. India*, AIR 1994 SC 268, 303. Even in statutory interpretation courts have departed from this principle. See Sir Rupert Cross - Statutory Interpretation, 2nd ed., p.51.

[4] Dr. Wynes - Legislative, Executive and Judicial Powers in Australia, 5th ed., p.26; Sir Rupert Cross - Statutory Interpretation, 2nd ed., p.50-51; *House Building & L. Association v. Blaisdell*, 290 US 398; *U.S. v. Classic*, 313 US 299; *A.G. for Ontario v. A.G. for Canada*, [1947] AC 127

[5] 16 Am Juris 2d, Const. Law, Para 92; *Euclid v. Amber Realty Co.*, 272 US 265; *S.C. Advocates-on-Record Association v. India*, AIR 1994 SC 268, 397 (The Constitution has not only to be read in the light of contemporary circumstances and values, it has to be read in such a way that the circumstances and values of the present generation are given expression in its provisions.); *Madras v. Gamon Dunkerly & Co.*, AIR 1958 SC 560; *Dysons Holdings Ltd v. Cox*, [1976] QB 503 (For the protection under the Rent Act, tenant's family was held to include the lady who was living together with the tenant for 21 years as man and wife since the meaning of family has radically changed.)

> meaning can often be appreciated when considered as the year goes on in relation to the vicissitudes of fact which from time to time emerge. It is not that the meaning of the words changes, but the circumstances illustrate and illuminate the full import of that meaning ... It may be that in 1900 the framers of the constitution were thinking of border tariffs and restrictions in the ordinary sense and desired to exclude difficulties of that nature, and to abolish the barrier of the State boundaries so as to make Australia a single country. Thus the framers presumably did not anticipate those commercial and industrial difficulties which have in recent years led to marketing schemes and price control, or traffic regulations such as those for the co-ordination of rail and road services, to say nothing of the new inventions, such as aviation or wireless. The problems, however, of the Constitution can only be solved as they emerge by giving effect to the language used.[1]

The test is whether the new conditions can be included within the scope of the power granted in general terms by the constitution and whether the inclusion would be barred by some of the provisions of the constitution.[2]

1.70 *Harmonious interpretation:* A constitution must be read as a whole. If there be apparent repugnancy between different provisions of a constitution, it should be removed by interpretation. If the repugnancy is real, the court should harmonize them if possible.[3] Where two constructions are possible, the court must adopt that which will ensure a smooth and harmonious working of the Constitution and eschew the other which will lead to absurdity or give rise to particular inconvenience.[4] The court should at the first instance try by interpretation to reconcile the conflict between the two provisions and give effect to both provisions, and a construction which renders either of them inoperative should not be adopted except as the last resort.[5] An amended constitution must also be read as a whole, as if every part of it

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[1] *James v. Commonwealth of Australia*, [1936] AC 587, 614; see also *A.G. of Ontario v. A.G. of Canada*, [1937] AC 99; *A.G. of Alberta v. A.G. of Canada*, [1939] AC 117

[2] *Pensacola Tel. Co. v. W.U. Tel. Co.*, 24 L. Ed 708

[3] *Fazlul Quader Chowdhury v. Abdul Huq*, 18 DLR (SC) 69; *Lutfur Rahman v. Election Commn.*, 27 DLR 278; *Mahboobuddin Ahmed v. Bangladesh*, 50 DLR 417, 423

[4] *Chandra Mohan v. U.P.*, AIR 1966 SC 1987 (Para 14)

[5] *Bengal Immunity Co. v. Bihar*, AIR 1955 SC 661, 736; *Mahboobuddin Ahmed v. Bangladesh*, 50 DLR 417, 423; *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361

had been adopted at the same time and as one law.[1] Art.133(2) of the Pakistan Constitution of 1962 provided that the validity of a law shall not be questioned on the ground of lack of power of the legislature to pass the law. It was in conflict with the provisions of arts.58 and 98 relating to the power of the Supreme Court and the High Courts. By applying the principle of harmonious construction the Pakistan Supreme Court held that art.133(2) was confined to the questions relating to the competence of the central and provincial legislature and the President and the Governors to make law and did not oust the jurisdiction of the superior courts to decide the question of constitutionality of laws.[2] If such a harmonious interpretation is not possible, generally the later provision will prevail over the earlier.[3] But this principle will not apply when there is a particular enactment and a general enactment in the constitution, and the latter, taken in its most comprehensive sense, would overrule the former. The particular enactment must be operative, and the general enactment must be taken to affect only the other parts of the constitution to which it may properly apply.[4] Thus though the judicial officers and magistrates exercising judicial functions are members of the services of the Republic, the general provision of art.133 will not be applicable in respect of their recruitment and Parliament cannot enact law in this regard as art.115 is a special provision conferring plenary power on the President to make rules relating to the recruitment of judicial officers and magistrates exercising judicial functions.[5] Sometimes a provision starts with the expression 'notwithstanding anything in any other law'. Such a *non-obstante* clause is often used by way of abundant caution.[6] However, a *non-obstante* clause comes into play if there is an irreconcilable conflict between two provisions on the same subject matter or on the same issue and the provision containing the *non-obstante* clause prevails over the other provision.[7] In case of conflict between two non-obstante clauses, the

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[1] 16 Am Juris 2d, Const. Law, Para 102; *Anwar Hossain Chowdhury v. Bangladesh* 1989 BLD (Spl) 1

[2] *Fazlul Quader Chowdhury v. Abdul Huq*, 18 DLR (SC) 69, 112

[3] *Mahboobuddin Ahmed v. Bangladesh*, 50 DLR 417, 423;

[4] *Reference by President*, 9 DLR (SC) 178; 16 Am Juris 2d. Const. Law Para 103; *Secretary, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104 (see the finding of the court relating to the extent of rule making power under arts.115 and 133)

[5] *Secy. Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104. Para 34

[6] Bindra - Interpretation of Statutes, 7th ed., p.567

[7] *Mahboobuddin Ahmed v. Bangladesh*, 50 DLR 417, 423

later in point of time will prevail.[1]

1.71 ***Use of foreign decisions:*** In interpreting a constitution foreign decisions are often cited and considered by the court. This is permissible, but the Federal Court rightly gave the warning -

> ... in the last analysis the decision must be based upon the words of the Constitution which the Court is interpreting; and since no two constitutions are in identical terms, it is extremely unsafe to assume that a decision on one of them can be applied without qualification to another. This may be so even where the words and expressions used are the same in both cases; for a word or phrase may take colour from its context and bear different senses accordingly.[2]

The same caution has been given by the Privy Council while interpreting the Jamaican Constitution -

> In seeking to apply to the interpretation of the Constitution of Jamaica what has been said in particular cases about other constitutions, care must be taken to distinguish between judicial reasoning which depended on the express words used in the particular constitution under consideration and reasoning which depended on what, though not expressed, is nonetheless a necessary implication from the subject-matter and structure of the constitution and the circumstances in which it had been made.[3]

1.72 ***Prospective overruling:*** A court does not make law, but finds or discovers the true law. It necessarily follows that a law declared by the court to be invalid becomes invalid from the time of its enactment. In other words, the judicial pronouncement operates retrospectively as also prospectively. Retrospective overruling often causes administrative inconvenience or results in great hardship by disturbing vested rights acquired on the basis of the rule found invalid. To avoid the situation, the American Supreme Court developed the doctrine of prospective overruling whereby a decision of the court operates only in respect of future transactions and does not affect past and closed transactions.[4] However, prospective overruling creates a situation where people similarly placed are dealt with differently simply because of the

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[1] *A.P. State Financial Corp. v. Off. Liquidator*, AIR 2000 SC 3642

[2] *C.P.& Berar Motor Spirit S.T. Act*, AIR 1939 FC 1

[3] *Hinds v. The Queen*, [1976] 1 All E.R. 353, 359

[4] *G.N. Railway v. Sunburst*, 287 US 358; *Hill v. California*, 401 US 797; *Griffin v. Illinois*, 351 US 12; *Williams v. U.S.*, 401 US 646

difference in the time of occurrence. Hence the court resorts to the doctrine of prospective overruling when the normal retrospectivity not merely creates inconvenience, but results in grave injustice or involves extremely burdensome sorting out process for courts or administrators. The Indian Supreme Court applied the doctrine of prospective overruling in the case of *Golak Nath v. Punjab*[1]. In *Suman Gupta v. J & K*[2] the court declared the absolute power of the government to nominate candidates for admission to medical college to be violative of the equality clause, but refused to disturb the existing nominations as the candidates had already covered a substantial part of the course. The Appellate Division while declaring the amendment of art.100 of the Constitution void in *Anwar Hossain Chowdhury v. Bangladesh*[3] ordered "This invalidation, however, will not affect the previous operation of the amended Articles and judgments, decrees, orders etc. rendered or to be rendered and transactions past and closed."[4]

PREAMBLE

1.73 The preamble of a statute throws light as to what the statute intends to reach and it has been clearly permissible to have recourse to it as an aid to construing the enacted provisions of the statute.[5] However, as it is not recognised as a part of the statute on the ground that it is not enacted in the same way the substantive parts of a statute are enacted, it cannot be used to qualify or cut down the statute if the statute is clear and unambiguous.[6] If, however, the language of the statute is not clear and the words used therein are vague or equivocal, then the meaning which comports with the preamble is to be preferred.[7] The same view is sought to be taken about the preamble of a constitution. It is said that the

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[1] AIR 1967 SC 1643

[2] AIR 1983 SC 1235; *Janaki v. J & K*, AIR 1973 SC 930; *Raymond Ltd. v. M.P. Electricity Bd*, AIR 2001 SC 238

[3] 1989 BLD (Spl) 1, Para 201

[4] Ibid, p.234; see also *Bangladesh v. Idrisur Rahman*, 1999 BLD (AD) 291

[5] *A.G. v. Prince Ernest Augustus*, 1957 AC 436; *Powell v. Kempton Park Race-Course Co.*, [1899] AC 143.

[6] *Powell v. Kempton Park Race-Course Co.*, [1899] AC 143

[7] *A.G. v. Prince Augustus*, 1057 AC 436, 467-68 (If the enacting words admit only one construction, that construction will receive effect even if it is inconsistent with the preamble, but if the enacting words are capable of either of the constructions offered by the parties, the construction which fits in with the preamble may be preferred.)

preamble is neither a source of power, nor a limitation on the enacted provisions of a constitution[1] and it cannot be used to modify the language of the constitution if it is clear, plain and unambiguous, giving one and only one meaning.[2] If, however, the language is not clear and the words used therein indicate or are capable of bearing more than one meaning, then the meaning which is nearest to the purpose of the constitution is to be preferred.[3] If the enacting part of the constitution is ambiguous or open to doubt, the preamble may be referred to resolve the ambiguity or doubt, as it is a good means of finding out the meaning.[4] But an ambiguity or doubt must not be created or imagined in order to bring in the aid of the preamble.[5]

1.74 The position of the preamble of the Constitution of Bangladesh is somewhat different and it should not, it is submitted, be likened to the preamble of a statute. The preamble is a part of our Constitution[6] and cannot be amended without a referendum.[7] The framers of the Constitution took pains to state clearly the philosophy, aims and objectives of the Constitution and to describe the qualitative aspects of the polity the Constitution is designed to achieve.[8] In this situation, the preamble of the Constitution, in its role, cannot be relegated to the position of the preamble of a statute. However clear a provision of the Constitution may be, if it is found that the plain meaning of the provision runs counter to the spirit and objectives of the Constitution as stated in the preamble, the question should immediately be asked whether the framers of the Constitution intended to bring about the result which the literal construction produces and the court should search for a meaning in conformity with the spirit and objectives of the Constitution as indicated in the preamble because the substantive provisions have been made to achieve the objects and purposes stated in the preamble. It does not, however, mean that the court can stretch the meaning of the preamble so as to receive support for an interpretation

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[1] *Re Berubari Union*, AIR 1960 SC 845; *Indira Gandhi v. Rajnarayan*, AIR 1975 SC 2299

[2] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1

[3] Ibid

[4] *Pakala Narayan v. Emperor*, AIR 1939 PC 47

[5] *Powell v. Kempton Park Race-Course Co.*, [1899] AC 143; *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1

[6] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1

[7] Art.142(1A)

[8] See Para 1.21

the court wants to give.[1] In *Registrar, University of Dacca v. Sajjad Hussain*[2] the majority judgment of the Appellate Division referred to the 'historic struggle for national liberation' mentioned in the preamble and construed it as being one phase of the continuing struggle after liberation and for such a construction analogy was drawn from communist political philosophy. It is submitted that the qualifying words 'for national liberation' restricted the expanse of the 'historic struggle' which ended with national independence and cannot be comprehended as continuing after achievement of independence. Furthermore, the Constitution of Bangladesh clearly envisages a traditional democratic process and its language cannot be construed with reference to a radically different political philosophy merely because of the use of the words `socialist society' in the preamble.

1.75 This brings us to the expressions 'socialism' and 'socialist society' used in the preamble. Apparently these expressions are vague, but the vagueness disappears when we pay attention to the fact that the framers not only used these expressions but also stated the mode of achieving it by using the expression 'through democratic process' and providing in the substantive part of the Constitution an 18th Century tripartite form of government. Read in the proper perspective, there remains no doubt that the framers did not allude to the communist philosophy of State organisation, but conceived of a democratically run welfare State to eliminate inequality of income and status and standards of life, and to provide a decent standard of living to the working masses of the country.[3] The preamble speaks of 'equality and justice, political, economic and social'. It pledges attainment of a substantial degree of economic, political and social equality and expresses a constitutional concern for providing facilities and opportunities to the people to reach at least minimum standard of health, economic security and civilised living.[4] It brings in the concept of distributive justice which aims at the removal of economic inequalities and the undoing of injustice resulting from transactions and dealings between unequal persons in the society.[5]

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[1] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1

[2] 34 DLR (AD) 1

[3] See *D.S. Nakara v. India*, AIR 1983 SC 130, Para 33-34; *Kerala Hotel & Restaurant Association v. Kerala*, AIR 1990 SC 913

[4] *Consumer Education & Research Centre v. India*, AIR 1995 SC 922

[5] See *Lingappa v. Maharashtra*, AIR 1985 SC 389 (It comprehends more than lessening of inequalities by differential taxation, giving debt relief or regulation of contractual relations; it also means the restoration of properties to those who have been

This becomes clearer if we refer to arts.14 and 19 of the Constitution. The preamble also speaks of the supremacy of the Constitution, rule of law and fundamental human right which will be dealt with separately.

CITIZENSHIP

1.75A Art.6 of the Constitution provides that the citizenship of Bangladesh shall be determined and regulated by law. Since most of the rights guaranteed by the Constitution are dependent on citizenship, it is necessary to briefly deal with the legal position in respect of citizenship of Bangladesh.

1.75B The acquisition of the status of citizenship of Bangladesh is governed by two sets of provisions. The provisions of P.O. No.149 of 1972[1] lay down the conditions for claiming citizenship of Bangladesh as on 15.12.1972, while the Citizenship Act, 1951[2] lays down the conditions for the acquisition of citizenship on or after 15.12.1972 by birth within Bangladesh, by descent, by registration and by naturalisation. In terms of art.2 of P.O. No.149 of 1972, (i) a person who or whose father or grandfather was born in the territory now comprising Bangladesh and was a permanent resident of Bangladesh on 25 March 1971 and continued to be so resident, or (ii) a person who was a permanent resident of such territory on 25 March 1971 and continued to be so resident and is not otherwise disqualified for being a citizen by or under any law for the time being in force, shall be deemed to be a citizen of Bangladesh. Hence a person having domicile of origin or domicile of choice in Bangladesh will be a citizen of Bangladesh if he continued to be a permanent resident of Bangladesh after 25 March 1971 till the commencement of the Order.

1.75C Now the question is what is meant by the expression 'permanent resident' and whether a person temporarily residing outside Bangladesh on or after 25 March 1971 will be treated to be a citizen of

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deprived of them by unconscionable bargains; it may also take the form of forced redistribution of wealth as a means of achieving a fair distribution of material resources among the members of the society.)

[1] Bangladesh Citizenship (Temporary Provisions) Order, 1972

[2] This Act has been continued by the Laws Enforcement Continuance Order, 1971 and art.149 of the Constitution. The provision of this Act relating to the status of persons on the commencement of this Act is, however, not applicable and P.O. No.149 of 1972 has made provision in this regard.

Bangladesh. The question of permanent residence is linked with domicile and by domicile we mean a permanent home.[1] When a person resides in a country with the intention to reside there permanently or for an indefinite period, he acquires domicile of that country. Nobody can be without a domicile and the law assigns a domicile of origin to every person at his birth, namely, to a legitimate child the domicile of the father, to an illegitimate child the domicile of the mother and to a foundling the place where he is found.[2] For having a permanent residence a person is not required to be rooted to the place of his permanent residence; for various reasons he may move out; for staying abroad alone a citizen cannot be said to have discontinued his permanent residence.[3] It is only when a person leaves his permanent residence with an intention never to return that he can be said to have changed his permanent residence. The proviso to art.2 stipulates that a person having a permanent residence in the territory now comprised in Bangladesh will be deemed permanent resident of Bangladesh even though he is, in the course of his employment or for the pursuit of his studies, residing in a country which was at war with, or engaged in military operation against Bangladesh and is being prevented from returning to Bangladesh. This provision will not, however, preclude a citizen from explaining his stay abroad for other good reasons.[4] One M.S. Ispahani is the son of a retired Judge of the High Court of East Pakistan who died in Dhaka and his mother is still living in Dhaka. He himself rented a flat apart from is own house at Dhaka which he has acquired with money earned working as a Chartered accountant in the U.K. It has been held that in the facts of the case, M.S. Ispahani has his permanent residence in Bangladesh.[5] Mere expression of a desire to go to Pakistan without taking further steps and thereafter affirming allegiance to Bangladesh will not affect a man's permanent residence in Bangladesh and his citizenship of Bangladesh cannot be denied.[6]

1.75D The Citizenship Act, 1951 recognises citizenship by birth and citizenship by descent. Subject to the exceptions and conditions

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[1] Per Lord Cranworth in *Whicker v. Hume*, (1858) 7 HL Cas 77 at p.79

[2] Cheshire & North – Private International Law, 11th ed., p.143

[3] *Bangladesh v. Ghulam Azam*, 46 DLR (AD) 192, 209. For a detailed discussion on the question of permanent residence and change of domicile, the reader is referred to Chesire & North's Private International Law, 11th ed., chapter 9.

[4] *Bangladesh v. Ghulam Azam*, 46 DLR (AD) 192

[5] *Bangladesh v. Mirza Shahab Ispahani*, 40 DLR (AD) 116

[6] *Mukhtar Ahmed v. Bangladesh*, 34 DLR 29

A-26936

stipulated in ss.4 and 5 of the Citizenship Act, 1951, every person born in Bangladesh, and every person whose father was a Bangladeshi at the time of his birth outside Bangladesh, shall be a citizen of Bangladesh. Under s.9 of this Act, the government may confer citizenship on any person who will be citizen of Bangladesh by naturalisation. S.10 of the Act makes provision for citizenship of Bangladesh in case of women marrying Bangladesh citizens. S.14 of the Act prohibits dual citizenship and a citizen of Bangladesh will cease to be a citizen of Bangladesh unless he renounces citizenship of any other State. By amendment of P.O. No.149 of 1972 a citizen of Bangladesh has been allowed to continue as a citizen of any of the specified States and accordingly, a citizen of Bangladesh can acquire citizenship of any such specified State without losing his citizenship of Bangladesh.

FUNDAMENTAL PRINCIPLES OF STATE POLICY

1.76 Part II of the Constitution narrates the fundamental principles of State policy. It translates into words the socialist society envisioned by the framers in the preamble and sets the economic, social and political goals which the government is required to strive for. These principles adumbrate (a) promotion of local government institutions composed of representatives of the area concerned and with special representation of peasants, workers and women to build democratic structures at the grass-root level[1], (b) participation of women in all spheres of national life[2], (c) guarantee of fundamental human rights and freedoms and respect for the dignity and worth of human persons and effective participation by the people through their elected representatives in administration at all levels[3], (d) principles of State, co-operative and private ownership and control of the instruments and means of production and distribution[4], (e) emancipation of the peasants, workers and backward sections of the people from all forms of exploitation[5], (f) fundamental responsibility of the State to attain, through planned economic growth, a constant increase of productive forces and steady improvement in the material and cultural standard of living of the people with a view to securing to the citizens the provisions of basic necessities of life, right to work, right

[1] Art.9
[2] Art.10
[3] Art.11; *B.S.E.H.R. v. Bangladesh*, 53 DLR 1
[4] Art.13
[5] Art.14

to reasonable rest, recreation and leisure and right to social security in the form of public assistance in cases of undeserved want[1], (g) radical transformation in the rural areas through the promotion of agricultural revolution, rural electrification, development of cottage industry and other industry and improvement of education, communication and public health with a view to remove the disparity in the standards of living between the urban and the rural areas[2], (h) establishment of a uniform, mass-oriented and universal system of education and extending free and compulsory education to all children to such level as may be determined by law, relating education to the needs of society and removal of illiteracy[3], (i) raising the level of nutrition and improvement of public health and morality and measures to prevent the consumption of alcoholic and other intoxicating drinks and of drugs injurious to health and prevention of prostitution and gambling[4], (j) equal opportunity of work and removal of social and economic inequality to attain a uniform level of economic development throughout the Republic[5],(k)payment for work on the basis of the principle 'from each according to his abilities to each according to his work'[6],(l) separation of judiciary from the executive[7],(m) conservation of the cultural traditions and heritage of the people[8], (n) protection of national monuments and objects and places of special artistic or historic importance or interest[9] and (m) promotion of international peace, security and solidarity[10]. Art.21 declares that it is the duty of every citizen to observe the Constitution and the laws and of every public servant at all times to serve the people.

1.77 Art.8(1) states that the principles of absolute trust and faith in

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[1] Art.15
[2] Art.16
[3] Art.17
[4] Art.18
[5] Art.19
[6] Art.20
[7] Art.22; See *Aftabuddin v. Bangladesh*, 48 DLR 1 (Art.116A is a step towards realisation of the principle)
[8] Art.23
[9] Art.24
[10] Art.25; *Saiful Islam v. Bangladesh*, 50 DLR 318 (Extradition of a person who is wanted in another State for criminal activities is not violative of art.25); *Saleemullah v. Bangladesh*, 47 DLR 218 (Sending troops to Haiti as part of international force is not in derogation of art.25)

the Almighty Allah, nationalism, democracy and socialism meaning economic and social justice, together with the principles set out in Part II, shall constitute the fundamental principles of State policy.[1] Further, art.8(1A) stipulates that absolute trust and faith in the Almighty Allah shall be the basis of all actions. Art.8(2) states that these principles shall be fundamental to the governance of Bangladesh and shall be applied by the State in making the laws. Thus these principles place the government under obligation to achieve and maximise social welfare and the basic values of life. Art.8(2), however, specifically provides that these principles are not judicially enforceable.[2] In *Kudrat-E-Elahi v. Bangladesh*[3] the appellants sought enforcement, though indirectly, of these principles pressing in aid the provision of art.7(2). The Appellate Division negatived the contention of the appellants. M. Kamal J pointed out that these are 'principles' as distinguished from 'laws' and as such there is no question of application of art.7. S. Ahmed CJ held these principles to be non-enforceable, stating -

> They are in the nature of People's programme for socio-economic development of the country in peaceful manner, not overnight, but gradually. Implementation of these Programmes require resources, technical know-how and many other things including mass-education. Whether all these pre-requisites for a peaceful socio-economic revolution exist is for the State to decide.[4]

Although not judicially enforceable, the fundamental principles of State policy cast an obligation upon the government to act on them.[5]

1.78 These principles have special value as they are described in art.8(2) as a guide to the interpretation of the Constitution and the laws of Bangladesh. The courts shall have to construe the provisions of the Constitution and the laws in conformity with these principles. Thus in construing the provision of art.59 the Appellate Division took note of the principles of popular representation as stated in arts.9 and 11 and held that there was no scope for forming a local government body outside the ambit of art.59 or composed of non-elected persons.[6] These

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[1] See *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR (AD) 1

[2] See *Saleemullah v. Justice M.A. Quddus Chowdhury*, 46 DLR 691; *Aftabuddin v. Bangladesh*, 48 DLR 1

[3] 44 DLR (AD) 319

[4] Ibid, p.331

[5] *Wahab v. Secretary, Ministry of Land*, 1 MLR 338

[6] *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD)

principles provide the yardstick for testing the reasonableness of a legal provision challenged on the ground of violation of fundamental rights.[1] Any legal provision made to further the principles of State policy will *prima facie* be constitutional. If any provision of the Constitution or any statute is susceptible of more than one meaning, the courts should adopt that meaning which is in conformity with the principles set out in Part II of the Constitution.[2] When a provision of the Constitution seems to be repugnant to the principles of State policy, an effort should be made to construe the provision in conformity with the principles of State policy. However, it will not be permissible, on the basis of those principles, to give the language of any provision of the Constitution a meaning which it cannot bear, unless the language is ambiguous.[3] An apparently clear language of a provision of the Constitution may not appear to be unambiguous when it is found to be inconsistent with any provision of Part II because these principles of State policy having been treated as fundamental to the governance of Bangladesh, it has to be assumed that the other provisions of the Constitution have been made to facilitate, and not to hinder, realisation of the aims and objectives stated in Part II.

1.79 In the Indian jurisdiction the question arose whether the provisions relating to fundamental rights will prevail in case of conflict with the principles of State policy. The Supreme Court initially held that the provisions relating to fundamental rights shall have primacy over the principles of State policy.[4] Subsequently, the court held that it did not see any conflict on the whole between fundamental rights and the principles of State policy.[5] The court held that one should not ignore the principles of State policy, but should adopt the principle of harmonious construction and attempt to give effect to both as much as possible.[6] Fundamental rights are but means to achieve the goals indicated in the principles of State policy. Fundamental rights and the principles of State policy are supplementary and complementary to each other and fundamental rights must be construed in the light of the principles of State policy.[7] The scheme of the Constitution relating to fundamental

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[1] *Kasturi Lal v. J & K*, AIR 1980 SC 1992, 2000

[2] *Mumbhai v. Abdulbhai*, AIR 1976 SC 1455; *Bhim v. India*, AIR 1981 SC 234

[3] *Excel Wear v. India*, AIR 1979 SC 25

[4] *Madras v. Champakam Dorairajan*, AIR 1951 SC 226

[5] *C.B. Boarding & Lodging v. Mysore*, AIR 1970 SC 2042, 2050

[6] *In Re Kerala Education Bill*, AIR 1958 SC 995; *Unni Krisnan v. A.P.*, AIR 1993 SC 2178

[7] *Unni Krisnan v. A.P.*, AIR 1993 SC 2178, Para 141

rights and the principles of State policy is the same as in the Indian Constitution and the same position should obtain under our constitutional dispensation. However, the framers of the Constitution were aware of the possible conflict between the provisions of Part III and the principles of State policy. They envisaged that welfare measures of the State may be hindered by the provisions of Part III of the Constitution and they specifically provided in art.47(1) that in specified matters any law made shall be immune from challenge on the ground of inconsistency with Part III if Parliament declares that such law has been made to give effect to any of the fundamental principles of State policy.

1.80 These principles of State policy will also be a guide to the interpretation of the laws of Bangladesh which means that the provisions of the laws are to be interpreted in conformity with the principles of State policy. What happens if the language of a statute is absolutely clear and that statute is completely repugnant to some of the principles of State policy? In the name of interpretation, the court cannot create a new law and thereby enforce the principles of State policy contrary to the mandate of the Constitution. The court may apply the doctrine of reading down[1] the statute so as to bring it in conformity with the principles of State policy, but the doctrine cannot be applied when the language of the statute is absolutely clear. In such a case the court can do nothing more than leave it for the electorate for a political verdict. Except in such extreme cases, the court has to interpret the statutory provisions in accord with the principles of State policy as mandated by art.8(2).

1.81 In *Winifred Rubie v. Bangladesh*[2] the High Court Division narrowly construed the meaning of 'public purpose' by reference to the principles of State policy and held the requisition of a property for a private school void. The court noted that the school did not conform to the national educational policy and was not recognised by the Director of Public Instruction and, having regard to the principles of State policy stated in arts.14, 17 and 19(1), held that the school could not be categorised as serving a 'public purpose'. The Appellate Division while disagreeing with the High Court Division regarding interpretation of 'public purpose' observed -

> As for the State policy of education it is unfortunate that the learned

[1] see Para 5.12(2)
[2] 1981 BLD 30

> Judges have taken upon themselves an enquiry which is neither warranted by law in the Constitution nor by the arguments of the parties. It is for this reason that the constitutional mandate provides in the chapter on Directive Principles of State Policy that these are not enforceable in the Court of Law.[1]

Whether the particular construction given by the High Court Division to the expression 'public purpose' in relation to education is correct or not is beyond the scope of this work, but no exception can be taken to the effort of the High Court Division to construe the expression with reference to the relevant principles of State policy, as art.8 clearly states that the principles of State policy enumerated in Part II shall be a guide to interpretation of the laws of Bangladesh and such an effort cannot be termed as enforcement of State policy. In order to find the meaning of 'public purpose' in relation to education, the High Court Division was not only entitled, but was also under constitutional obligation, to consider whether the requisition of property for a school of the type involved could be said to serve a public purpose when art.17 mandates the State to adopt effective measures for the purpose of establishing a uniform, mass-oriented and universal system of education.[2] It is submitted that in making the above observation, the Appellate Division did not take into account the relevant provisions of the Constitution. There is a definite distinction between the enforceability of the principles of State policy and the interpretation of laws in conformity with those principles and this distinction has been clearly brought out in *Kudrat-E-Elahi v. Bangladesh*[3]. The Appellate Division laid down that a law cannot be struck down for inconsistency with any of the principles of State policy, but by a process of interpretation with reference to the principles enunciated in arts.9 and 11 held that the government cannot refrain from designating an area as an administrative unit and through that device constitute a local government body with nominated persons in place of elected representatives of the people. In holding this, the Appellate Division did not enforce the principles of art.9 or 11, but construed the provisions of arts.59 and 60 in conformity with those principles to find the limitation on the power of the State in the matter of

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[1] *Bangladesh v. Winifred Rubie*, 1982 BLD (AD) 34, 37

[2] Compare the approach of the Indian Supreme Court in *Unni Krisnan v. A.P.*, AIR 1993 SC 2178, even though the Indian Constitution does not expressly provide that the directive principles of State policy will be guide to interpretation of the constitution and laws of India.

[3] 44 DLR (AD) 319

establishment of local government bodies.

RULE OF LAW

1.82 *Meaning and content:* The preamble of the Constitution of Bangladesh states 'rule of law' as one of the objectives to be attained. The expression 'rule of law' has various shades of meaning and of all constitutional concepts, the rule of law is the most subjective and value laden. A.V. Dicey's concept of rule of law included three things - (i) absence of arbitrary power, that is, no man is above law and the persons in authority do not enjoy wide, arbitrary or discretionary powers, (ii) equality before law, that is, every man, whatever his rank or position, is subject to ordinary laws and the jurisdiction of ordinary courts, and (iii) individual liberties. His thesis has been criticised from many angles, but his emphasis on the subjection of every person to the ordinary laws of the land, the absence of arbitrary power and legal protection for certain basic human rights remains the undisputed theme of the doctrine of rule of law. According to Professor Wade rule of law connotes three ideas - (1) it expresses a preference for law and order within a community rather than anarchy, warfare and constant strife, (2) it expresses a legal doctrine of fundamental importance, namely, that government must be conducted according to law, and that in disputed cases what the law requires is declared by judicial decisions and (3) it refers to a body of political opinion about what the declared rules of law should provide in matters both of substance and of procedure.[1]

1.82A If we take into consideration the different views on rule of law, we find two definite lines of thinking. One represents the view that the power of the State should not be exercised against individuals except in accordance with rules explicitly set out in books available to all and the government as well as the individuals must play according to the rules until they are changed according to rules already stipulated and known to all. This view is not concerned with the quality and contents of the rules, but only insists that whatever be the rules in existence, these must be certain and known and followed until changed. According to this view, the quality of the rules is a matter of substantive justice and not a matter to be considered as a connotation of the rule of law. The other view puts stress upon the quality and content of the rules that may be prescribed. This view assumes that individuals have moral rights and

[1] Wade & Bradley - Constitutional and Administrative Law, 10th Ed., p.97

duties with respect to one another and political rights against the State as a whole. Accordingly, it is not sufficient that the rules should be stated and known and followed by both individuals and the State, something more has to be there to have a truly democratic society in which human dignity and freedom may be ensured, for, in a dictatorship law and order can be maintained and the government can be run in accordance with law promulgated by the dictator and yet there may not be any freedom of the people if the laws made by the dictator do not provide for such freedom. So the proponents of the second view vouch for the quality of the rules to make the concept a meaningful one. The latter view is gradually gaining ground and according to this view, "Law in the context of the rule of law does not mean any law enacted by the legislative authorities, howsoever arbitrary or despotic it may be ... What is a necessary element of the rule of law is that the law must not be arbitrary or irrational and it must satisfy the test of reason and the democratic form of the polity seeks to ensure this element by making the framer of the law accountable to the people."[1] The concept is intended to imply not only that (1) the powers exercised by State functionaries must have a legal basis, that is, they must be based on authority conferred by law, but also that (ii) the law should conform to certain minimum standards of justice, both substantive and procedural. "The concept implies that the ruler must also be subject to law. It is the subordination of all authorities, legislative, executive and others to certain principles which would generally be accepted as characteristic of law, such as the ideas of the fundamental principles of justice, moral principles, fairness and due process. It implies respect for the supreme value and dignity of the individual."[2] It is generally agreed that the minimum content of the concept is that "the law affecting individual liberty ought to be reasonably certain or predictable; where the law confers wide discretionary powers there should be adequate safeguards against their abuse; like should be treated alike, and unfair discrimination must not be sanctioned by law; a person ought not to be deprived of his liberty, status or any other substantial interest unless he is given the opportunity of a fair hearing before an impartial tribunal; and so forth."[3] The rule of law demands that power is to be exercised in a manner which is just, fair and reasonable and not in an unreasonable, capricious or arbitrary

[1] *Bachan Singh v. Punjab*, AIR 1982 SC 1325, 1337
[2] Walker - Oxford Companion to Law. 1980, p.1093
[3] S.A. de Smith - Constitutional and Administrative Law, 4th Ed., p.30

manner leaving room for discrimination.[1] It requires that decisions should be made by the application of known principles and rules and in general, such decisions should be predictable and the citizen should know where he stands; a decision without any principle or rule is unpredictable and is the antithesis of a decision in accordance with the rule of law.[2] Hilaire Barnett rightly concluded saying -

> The rule of law - in its many guises - represents a challenge to State authority and power, demanding that powers both be granted legitimately and that their exercise is according to law. 'According to law' means both according to the legal rules and something over and above purely formal *legality* and imputes the concepts of *legitimacy* and constitutionality. In its turn, legitimacy implies *rightness* or *morality* of law. [3]

1.83 *The Delhi Declaration:* The International Commission of Jurists endeavoured to give material content to the concept in a Congress in New Delhi in 1959 which was attended by eminent jurists from more than fifty countries including Lord Denning and Lord Devlin. That Congress made a declaration known as the *Declaration of Delhi, 1959*.[4] The 'rule of law' according to that declaration relates to:

> (1) the Legislature: there is a right to representative and responsible government; and there are certain minimum standards or principles for the law, including those contained in the Universal Declaration and the European Convention, in particular, freedom of religious belief, assembly and association, and the absence of retroactive penal laws;
>
> (2) the Executive: especially that delegated legislation should be subject to independent judicial control, and that a citizen who is wronged should have a remedy against the State or Government;
>
> (3) the Criminal Process: a 'fair trial' involves such elements as certainty of the criminal law, the presumption of innocence, reasonable rules relating to arrest, accusation and detention pending trial, the giving of notice, and provision for legal advice, public trial, right of appeal, and absence of cruel or unusual punishment;
>
> (4) the Judiciary and the Legal Profession: this requires the independence of the Judiciary, and proper grounds and procedure for

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[1] *Delhi Transport Corp. v. D.T.C. Mazdoor Congress*, AIR 1991 SC 101

[2] *Jaisinghani v. India*, AIR 1967 SC 1427, Para 14

[3] Constitutional and Administrative Law, 1998, p.125

[4] (1959) 2 Jo. International Commission of Jurists 7-54

removal of judges; and imposes a responsibility upon an organised and autonomous legal profession.[1]

1.84 *Rule of law in Bangladesh:* The rule of law is a basic feature of the Constitution of Bangladesh.[2] What is the meaning of 'rule of law' as envisaged in the Constitution? It can be seen from the preamble that fundamental human rights and freedom, equality and justice, political, economic and social have been mentioned after 'rule of law' as if these concepts are not included in 'rule of law'. From this one may argue that 'rule of law' as contemplated in the Constitution concerns the certainty and publicity of law and its uniform enforceability and has no reference to the quality of the law; the Constitution deals with substantive justice separately from 'rule of law'. This argument is merely academic. As there is difference of opinion as to the actual meaning of 'rule of law', the framers of the Constitution, after mentioning 'rule of law' in the preamble, took care to mention the other concepts touching on the qualitative aspects of 'law', thereby showing their adherence to the concept of rule of law as propounded by the latter viewers. If the relevant paragraph of the preamble is read as a whole in its proper context, there remains no doubt that the framers of the Constitution intended to achieve 'rule of law' as advocated by the latter viewers.[3] To attain this fundamental aim of the State, the Constitution has made substantive provisions for the establishment of a polity where every functionary of the State must justify his action with reference to law.[4] 'Law' does not mean anything that Parliament may pass. Arts.27 and 31 have taken care of the qualitative aspects of law. Art.27 forbids discrimination in law or in State actions, while art.31 imports the concept of due process, both substantive and procedural, and thus prohibits arbitrary or unreasonable law or State action. The Constitution further guarantees in Part III certain rights to ensure respect for the supreme value of human dignity.

1.85 *Independent judiciary:* An independent and impartial judiciary is, however, a precondition to rule of law. Constitutional provisions will be mere moral precepts yielding no result unless there is a machinery for enforcement of those provisions and faithful enforcement of those provisions is not possible in the absence of an independent and impartial

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[1] Quoted from O'Hood Phillips - Constitutional and Administrative Law, p.20
[2] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1, Para 443
[3] Arts. 7 and 31
[4] *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (AD) 1, 12

judiciary. The provisions of the Constitution ensure the independence and impartiality of the judges of the Supreme Court.[1] For the establishment of rule of law the subordinate judiciary must also be independent and impartial. "It is the Subordinate Judiciary who are brought most closely into contact with the people, and it is no less important, perhaps indeed even more important, that their independence should be placed beyond question."[2] So that there may not be any interference with judicial work, the rules of procedure of Parliament incorporated the *sub-judice* rule. Parliament shall not accept any petition for consideration by the Committee on Petitions which contains matter *sub-judice* before any court of law[3], nor shall admit any question which contains any reflection on a decision of court of law or any remark as is likely to prejudice a matter which is *sub-judice*[4]. No adjournment motion or resolution shall deal with or relate to any matter which is under adjudication by a court of law.[5] Rule 148 of the Rules of Procedure provide that the right of a member of Parliament to make a motion shall be governed by the condition that it shall not relate to any matter which is under adjudication by a court of law. With regard to the executive branch, art.22 of the Constitution provides that the State shall ensure the separation of the judiciary from the executive organs of the State. But nothing has been done to give effect to this fundamental principle of State policy. The Constitution originally provided that district judges would be appointed on the recommendation of the Supreme Court and other members of the subordinate judiciary would be appointed in accordance with the rules made by the President after consulting the Public Service Commission and the Supreme Court[6] and the control and discipline of persons employed in the judicial service and magistrates exercising judicial functions would vest in the Supreme Court.[7] By the Fourth Amendment it was provided that the appointment of persons to offices in the judicial service or as magistrates exercising judicial functions shall be made by the President in accordance with rules made by him[8] and control and discipline of these persons shall vest

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[1] See Para 5.8
[2] *Chandra Mohan v. U.P.*, AIR 1966 SC 1987, 1993
[3] Rule 100 of the Rules of Procedure
[4] Rule 53 of the Rules of Procedure
[5] Rule 63 and 133 of the Rules of Procedure
[6] Art.115
[7] Art.116
[8] Amended art.115

in the President.[1] By the Second Proclamation Order no.IV of 1978 it was provided that the President shall exercise control and discipline over the persons in the judicial service and the magistrates exercising judicial functions in consultation with the Supreme Court. By the Fourth Amendment art.116A was inserted providing that subject to the provisions of the Constitution, the judicial officers and magistrates shall be independent in the exercise of their judicial functions. In view of the method of appointment and the control of the executive in respect of their service including the power of posting, promotion and grant of leave, the declaration that persons exercising judicial functions shall be independent is without any substance unless the consultation with the Supreme Court is a meaningful one. In order to give effect to the provision of art.116A, the Appellate Division in *Secretary, Ministry of Finance v. Masdar Hossain*[2] ruled that in any consultation under art.116A, the views and opinion of the Supreme Court shall have primacy and gave further directions to ensure the independence in the functioning of the subordinate judiciary.[3]

1.85A *Access to justice:* Rule of law is meaningless unless there is access to justice for the common people. The courts must be accessible to all if rights are to be enforced. It is not sufficient that there exists a system of independent courts, the cost of having recourse to the courts must be such that there is real access to the courts. There may be a set of laws defining the rights of the people, but if the common people cannot seek enforcement of those rights, those rights merely embellish the papers on which they are described and have no significance in real life. The rich and the powerful can always have their way, it is the poor and the weak who need the support of the law. Having regard to the economic situation of the common people, the cost of litigation in Bangladesh is high and is mounting and most people cannot afford to seek remedies in courts. It is absolutely necessary to undertake a meaningful legal aid scheme to ensure access to justice without which it is idle to talk about rule of law.[4]

SEPARATION OF POWERS

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[1] Amended art.116

[2] 2000 BLD (AD) 104

[3] See the discussion on subordinate courts in Para 5.234B-5.234C

[4] See Para 2.111A and Para 2.120

1.86 The powers of the State are generally classified as the legislative power of making rules, the executive power of enforcing those rules and the judicial power of adjudicating disputes by applying those rules. In order to avoid autocratic exercise of powers of the State it is thought that these three powers should be entrusted to three different organs. In practice, however, no water-tight separation of powers is possible or desirable. Even in the United States of America a strict separation of powers is not followed. The prevalent "doctrine of checks and balances requires that after the main exercise has been allocated to one person or body, care should be taken to set up a minor participation of other persons or bodies. Budget and impeachment, judicial review and pardon, are examples of this sort of check".[1]

1.87 The Constitution vests the executive power of the Republic in the executive and the legislative power of the Republic in Parliament. Though there is no specific vesting of the judicial power of the Republic, it is vested in the judiciary.[2] The division of powers is not, however, absolute. The executive can legislate under certain circumstances[3], and, in fact, Parliament cannot make any law relating to the appointment of judicial officers and magistrates exercising judicial functions, which has to be provided for by the President[4]. On the other hand, Parliament can cause a fall of the executive government and impeach the President. Parliamentary Standing Committees can review the enforcement of laws by the Ministries and propose measures for such enforcement and in relation to any matter referred to it by Parliament as a matter of public importance, investigate or inquire into the activities or administration of the Ministries.[5] While the judiciary has the legislative power to make certain rules[6], Parliament can adjudicate certain disputes; it has power to enforce its own privileges and to punish those who offend against them. This may in certain situations bring it in conflict with the courts.[7]

1.87A What the Constitution has done can very well be described as

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[1] Carl J. Friedrich - Constitutional Government and Democracy, 4th ed., p.184

[2] *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111; M. Kamal J - Bangladesh Constitution: Trends and Issues, p.16

[3] Arts.62(2), 93, 115 and 133

[4] See *Secretary, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104

[5] Art.76

[6] Arts.107 and 113

[7] See Para 4.92

an assignment or distribution of the powers of the Republic to the three organs of the government and it provides for separation of powers in the sense that no one organ can transgress the limit set by the Constitution or encroach upon the powers assigned to the other organs.[1] The result is that unless the Constitution has expressly provided otherwise, no one organ can wield the powers of the other organs. Thus in the name of interpretation of the Constitution and the laws, the judiciary cannot create a new law or amend an existing law, which will be offensive as a judicial legislation.[2] Nor can the judiciary give direction to Parliament to make laws or to the President to make rules.[3] The Appellate Division held that when there is a constitutional deviation and constitutional arrangements have been interfered with and altered by Parliament by enacting laws and by the government by issuing various orders, the higher judiciary is within its jurisdiction to bring back Parliament and the executive from constitutional derailment and give necessary direction to follow the constitutional course by making or amending laws or rules.[4] It is submitted that when there is a constitutional deviation in legislative measures, the court can declare such legislative measures to be *ultra vires*, but cannot give a direction to repeal or modify it. It may be noted that art.112 stipulates that all authorities, executive and judicial (but not legislative), shall act in aid of the Supreme Court. Parliament may amend a law retrospectively within certain limits so as to destroy the foundation on which a judicial decision is based, but it cannot set aside a judgment of a court or declare it to be invalid as it will be void as legislative judgment.[5] Parliament cannot pass

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[1] Art.7

[2] Though courts cannot make laws, judicial decisions are important source of law. While acknowledging that courts do make laws, Warren CJ of the US Supreme Court stated, "It doesn't make it consciously, it doesn't do it by intending to usurp the role of Congress but because of the very nature of our job. When two litigants come into court, one says the act of Congress means this, the other says the act of Congress means the opposite of that, and we say the act of Congress means something – either one of the two or something in between, We are making law, aren't we?" – quoted from Henry J. Abraham's The Judicial Process, 1993, p.318

[3] *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27; *Bangladesh v. Amir Hossain*, 48 DLR (AD) 75 (Government having taken decision to remove anomaly in service, the court can direct the government to implement its decision); see also Para 5.234F and 5.234F

[4] *Secretary, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104; *Kudrat-e-Elahi v. Bangladesh*, 44 DLR (AD) 319

[5] *Mofizur Rahman v. Bangladesh*, 34 DLR (AD) 321; *Haryana v. KCF Samity Ltd*,

a law creating an offence and holding a person guilty of the offence nor can pass a law giving a decision in a controversy.[1] A "legislative enactment to pass one man's property over to another would nevertheless be void. If the act proceeded upon the assumption that such other person was justly entitled to the estate and therefore it was transferred, it would be void, because judicial in its nature ...".[2] The power of passing a sentence is essentially judicial and cannot be exercised by any executive authority. A law provided for different sentences for the offence of trafficking in certain drugs to be passed by different forums. In one forum death sentence was mandatory and in other forums a sentence of imprisonment of various terms could be passed. The Director of Public Prosecution, who is a member of the executive government, has been given the discretion to select the forum and he selected the forum in which death sentence was mandatory. Determination of sentence is a judicial act. The convict complained of a breach of the separation of powers as the power of selection of the forum gave the Director of Public Prosecution power to determine the sentence. The Privy Council invalidated the law, holding -

> The vice in the present case is that the Director's discretion to prosecute importation with an allegation of trafficking either in a Court which must impose the death penalty on conviction with the requisite finding or in a Court which can only impose a fine and imprisonment enables him in substance to select the penalty to be imposed in a particular case.[3]

SUPREMACY OF THE CONSTITUTION

1.88 Generally, in a written constitution, all laws must conform to the provisions of the constitution. If there be no limitation on the power of the legislature in making law and the provisions of the constitution can be amended following the same procedure by which an ordinary law can be enacted or amended, there is supremacy of the legislature in the sense that the court cannot question the *vires* of the laws passed by the legislature. If a law is passed which is inconsistent with the constitution, the constitution will be held *pro tanto* amended. But if there are

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AIR 1994 SC 1

[1] *Indira Gandhi v. Rajnarayan*, AIR 1975 SC 2299

[2] Cooley - Constitutional Limitations, 1927, p.357

[3] *Ali v. R*, [1992] 2 All E.R. 1, 9

entrenched provisions in the constitution limiting the power of the legislature in the enactment of laws and amendment of the provisions of the constitution requires stricter procedure, there is no supremacy of the legislature; it is the constitution which is supreme and to it all actions of the legislature and executive must conform whether or not it is stated in the constitution. Having regard to the past constitutional developments, the framers of the Constitution thought it necessary and proper not only to declare the supremacy of the Constitution in the preamble, but also to make a substantive provision in the Constitution and thus art.7 declares that all powers in the Republic belong to the people, and their exercise on behalf of the people shall be effected only under, and by the authority of, the Constitution and further that the Constitution, as the solemn expression of the will of the people, is the supreme law of the Republic, and if any other law is inconsistent with 'this Constitution' that other law shall, to the extent of the inconsistency, be void. This one article fully encompasses the law of the Constitution as regards paramountcy.[1] This article explicitly speaks of (a) sovereignty of the people and the republican character of the State and government, (b) supremacy of the Constitution as the solemn expression of the will of the people and (c) voidability of other laws inconsistent with the supreme law, 'this Constitution' and implicit in the article are the concepts of (d) limited government with three organs performing functions by and under the authority of the Constitution, (e) separation of powers between the three co-ordinate organs of the State as a corollary of designated functions and (f) enforceability of the supremacy of the Constitution by the Supreme Court.[2] When art.7 requires that all powers of the Republic shall be exercised by or under the authority of the Constitution, it means that no public functionary can act arbitrarily or unreasonably inasmuch as the Constitution seeking to establish rule of law and arts.27 and 31 requiring all laws and actions to be non-discriminatory and reasonable, an arbitrary or unreasonable law or action cannot be said to be a law or action passed or taken by or under the authority of the Constitution and will come within the mischief of art.7. The Appellate Division has found 'supremacy of the Constitution' to be one of the basic features of the Constitution of Bangladesh[3] and thus the provisions of art.7 are beyond the amending power of Parliament.

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[1] *Md. Shoib v. Bangladesh*, 27 DLR 318

[2] See the Summary of Submissions in *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1, 28.

[3] Ibid, Para 377

1.89 Supremacy of the Constitution means that its mandates shall prevail under all circumstances. As it is the source of legitimacy of all actions, legislative, executive or judicial, no action shall be valid unless it conforms with the Constitution both in letter and in spirit. If any action is actually inconsistent with the provisions of the Constitution, such action shall be void and cannot under any circumstance be ratified by passing a declaratory law in Parliament. If a law is unconstitutional it may be re-enacted removing the inconsistency with the Constitution or re-enacted after amendment of the Constitution. However, supremacy of the Constitution is a basic feature of the Constitution and as such even by an amendment of the Constitution an action in derogation of the supremacy of the Constitution cannot be declared to have been validly taken. Such an amendment is beyond the constituent power of Parliament and must be discarded as a fraud on the Constitution.

1.90 The Constitution is the supreme law and any other law inconsistent with the Constitution will be void. The question arises whether the expression 'other law' includes an amendment of the Constitution. In *Anwar Hossain Chowdhury*[1] it was contended that an amendment of the Constitution is made by Act of Parliament which falls within the definition of law in art.152(1) and is a law within the meaning of 'that other law' in art.7. It was argued that for paramountcy of constitutional provisions over ordinary laws art.7 was not necessary as such paramountcy is invariably implied in all written constitutions as an accepted principle of constitutional jurisprudence, and unless amendment of the Constitution is included in 'that other law' art.7 will be redundant. Three learned Judges refused to hold an amendment to be included in 'that other law' as it is made by a different procedure in exercise of derivative constituent power. For the purpose of interpretation of art.7 this cannot be a relevant factor as art.7 declares the Constitution itself to be a law and an amendment of the Constitution must also be so. It may be seen that the Constitution (Second Amendment) Act, 1973 included new clauses in arts.26 and 142 to take an amendment of the Constitution out of the mischief of art.26, but no such amendment was made in art.7. One of the learned Judges treated this amendment as an action in abundant caution, but when such caution was not taken in respect of art.7 it is reasonable to contend that Parliament did not intend to exclude amendment of the Constitution from the purview of art.7. It is important to note the difference in

[1] Ibid

language in arts.7 and 26. Art.26 uses the expression 'All existing law inconsistent with the provisions of Part III' while art.7 uses the expression 'if any other law is inconsistent with this Constitution'. 'This Constitution' and 'the provisions of the Constitution' do not have the same meaning and purport. 'This Constitution' means whatever the Constitution stands for, or, in other words, includes the manifest spirit and scheme of the Constitution. 'This Constitution' has been used purposefully, because the use of the expression 'the provisions of the Constitution' would bring art.7 in conflict with art.142 as any amendment of the Constitution must be inconsistent with one or the other provision of the Constitution. It is submitted that having regard to (i) the cardinal principle that by construction no words or provisions should be rendered surplusage, (ii) the omission to amend art.7 in the Constitution (Second Amendment) Act, 1973, (iii) the difference in language in arts.7 and 26 and (iv) the definition of 'law' in art.152(1), an amendment of the Constitution is to be treated as 'that other law' within the meaning of art.7 and such an interpretation is in conformity with the basic structure doctrine accepted in *Anwar Hossain Chowdhury*. In a subsequent case M. Kamal J opined that 'that other law' in art.7 includes constitutional amendments.[1]

SUPREMACY OF THE CONSTITUTION AND MARTIAL LAW

1.91 *Martial Law abrogating constitution:* In international law, Martial Law refers to the powers of a military commander in war time in enemy territory. The Duke of Wellington said in the House of Lords that it is neither more nor less than the will of the General who commands the army. This is distinct from Martial Law as a machinery for the enforcement of internal order in times of war or internal disorder. The latter is normally brought in by a proclamation issued under the authority of the civil government in a situation where it becomes impossible for the civil government to function. Such Martial Law is brought in to assist the State in suppressing disorder and does not destroy the civil government or the legal order. What happens if the military commander forcibly takes over the State power and abrogates the constitution? In 1958 persons bound by oath to maintain the supremacy of the constitution imposed martial law and abrogated the Constitution of Pakistan. The Pakistan Supreme Court found this

[1] *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319, 346

revolutionary government to be legal, holding -

> It sometimes happens, however, that a Constitution and the national legal order under it is disrupted by an abrupt political change not within the contemplation of the Constitution. Any such change is called a revolution, and its legal effect is not only the destruction of the existing Constitution but also the validity of the national legal order.[1]

In such a situation, the legality of the revolutionary government is not to be judged by reference to the annulled constitution but by the success of the revolution.[2]

1.92 The High Court of Uganda came to the same conclusion when the 1962 Constitution of Uganda was abolished by the National Assembly and the 1966 Constitution adopted in its place, as a result of which the then Prime Minister was installed as Executive President with power to appoint a Vice-President. This, according to the court, was a revolution.[3]

1.93 When the Prime Minister of Rhodesia made a unilateral declaration of independence, the question of legality of revolutionary government came up for consideration by the Privy Council in the case of *Madzimbamuto v. Lardner-Burke*[4]. The appellant challenged her husband's detention without trial by the rebel government. Referring to *Dosso* and *Matuvo* Lord Reid, delivering the majority judgment, observed, "Their Lordships would not accept all the reasoning in these judgments but they see no reason to disagree with the results." Then referring to the finding in those two cases that the usurpers effectively entrenched themselves and had no rivals, his Lordship observed -

> It would be very different if there had been still two rivals contending for power. If the legitimate government had been driven out but was trying to regain control it would be impossible to hold that the usurper who is in control is the lawful ruler, because that would mean that by striving to assert its lawful right the ousted legitimate government was opposing the lawful ruler.
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> In their lordships' judgment that is the present position in Southern Rhodesia. The British government acting for the lawful Sovereign is

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[1] *State v. Dosso*, 11 DLR (SC) 1
[2] See Para 1.16
[3] *Uganda v. Commr. of Prisons, Ex p. Matuvo*, [1966] E.A. 514
[4] [1968] 3 All E.R. 561

> taking steps to regain control and it is impossible to predict with certainty whether or not it will succeed ... their lordships are therefore of opinion that the usurping government now in control of Southern Rhodesia cannot be regarded as a lawful government.
>
> **** ****
>
> Their lordships are satisfied that it cannot be held to enact a general rule that a usurping government in control must be regarded as a lawful government.

Lord Pearce agreed with the majority regarding the application of the principle of revolutionary legality, but differed with the opinion of Lord Reid that in the facts of the case the principle of necessity could not be applied to find valid the detention of the husband of the appellant. It clearly appears that the Privy Council was ready to apply the principle of revolutionary legality only in a situation where the usurper had taken full control and had been accepted by the people and there was no one who was opposing the usurper in his claim of right to govern the country, but refused to legitimise the usurper in that case as it thought the restoration of the violated constitutional order to be possible because of the pressure applied by the British Government. If the Privy Council, on the facts of the case, had found otherwise, the Privy Council would have approved the actions of the usurper government.[1]

1.94 The question of revolutionary legality again came up before the Pakistan Supreme Court in *Asma Jilani v. Punjab*[2]. The court found Yahya Khan to be an usurper, overruled *Dosso* and observed -

> We must distinguish clearly between Martial Law as a machinery for the enforcement of internal order and Martial Law as a system of military rule of a conquered or invaded alien territory. Martial Law of the first category is normally brought in by a proclamation issued under the authority of the civil government and it can displace the civil government only where a situation has arisen in which it has become impossible for the civil Courts and other civil authorities to function. The imposition of Martial Law does not of its own force require the closing of the civil Courts or the abrogation of the authority of the civil government. The maxim *inter armes leges silent* applies in the municipal field only where a situation has arisen in which it has become

[1] see Oxford Essays in Jurisprudence, 2nd series (ed. A.W.B. Simpson) p.23
[2] PLD 1972 SC 139

> impossible for the Courts to function, for, on the other hand, it is an equally well established principle that where the civil Courts are sitting and the civil authorities are functioning the establishment of Martial Law cannot be justified. The validity of Martial Law is, in this sense, always a judicial question, for, the Courts have always claimed and have in fact exercised the right to say whether the necessity for the imposition of Martial Law in this limited common law sense existed.[1]
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> From the examination of the various authorities on the subject one is driven to the conclusion that the Proclamation of Martial Law does not by itself involve the abrogation of the civil law and the functioning of the civil authorities and certainly does not vest the commander and the Armed Forces with the power of abrogating the fundamental law of the country. It would be paradoxical indeed if such a result could flow from the invocation in the aid of a State of an agency set up and maintained by the State itself for its own protection from external invasion and internal disorder. If the argument is valid that the Proclamation of the Martial Law by itself leads to the complete destruction of the legal order, then the Armed Forces do not assist the State in suppressing disorder but actually create further disorder, by disrupting the entire legal order of the State. It is, therefore, not correct to say that the Proclamation of Martial Law by itself must necessarily give the commander of the Armed Forces the power to abrogate the Constitution, which he is bound by his oath to defend.[2]

This decision was delivered one day before Martial Law was withdrawn and Z.A. Bhutto, who was holding the rein, was interested in having Yahya Khan declared as a usurper. Furthermore, Pakistan till then claiming East Pakistan as an integral part of Pakistan, it was necessary to overrule *Dosso*. Notwithstanding the political overtone of the decision, it must be said that the usurper not being in control, jurisprudentially, the decision in *Asma Jilani* is correct. It was possible for the court to give the decision as the usurper was not holding power, but a practical difficulty remains when the usurper is running the show. Even if the court refuses to recognise the usurper and declare his actions to be without lawful authority, there is no one to give effect to the decision. This may merely increase the difficulty of the people because of the confusion as to whether to obey the dictate of the usurper or the decision of the court. In this situation, the judge is also in a dilemma, whether to

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[1] ibid, p.187
[2] ibid, p.190.

accept the revolutionary regime contrary to his oath or to resign from office. Judges often reason that resignation would not advance the cause, rather it may be helpful to hold on and wait for the appropriate time to decide the issue of legality.[1] Some writers are of the opinion that finding the rebel government illegal would not in most cases deter the usurper from continuing and he could not be held to be a usurper for all times.[2] But there are others who hold the view that the court should not so readily find legitimacy for the usurper and should explore other possibilities for restoration of the constitutional order as the possibility of the usurper yielding to the verdict of the court cannot be so easily ruled out.[3] It cannot, however, be gainsaid that when a revolutionary regime deeply entrenches itself and is accepted by the State functionaries and the people and the old legal order is dead as it happened in East Pakistan in 1971, there cannot be any conclusion other than that the revolutionary regime is to be given legal recognition for peace and order in the country.

1.95 *Martial Law without abrogating constitution:* In March, 1977 the Peoples Party won the majority in the general election held in

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[1] See the comments of M.H. Rahman J in his article, The Role of Judiciary in Developing Societies, Law and International Affairs, vol.11, Nos.1 & 2 of 1988, p.1, at p.5 ("In that unenviable condition the primary role of a judge will be, if he does not decide to leave post, to hold on. If he fails to roar like a lion it is understandable. If he keeps a glum face and gives a withering look then that will be a good work. For the time being the worthwhile role for him will be to do justice between a citizen and a citizen, so that a foundation may be laid for the future when a citizen will be able to expect justice against the mighty and overbearing as well."); *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1, Para 488

[2] see Dieter Conrad's article in Orient, 1983; M. Kamal J - Bangladesh Constitution: Trends and Issues, p.61 ("Resignation of Judges in revolutionary situations has not been uncommon, but except for the ripple that it causes in the body politic neither the Judges by resignation *en masse* or in ones or twos have been able to deflect the revolutionary regime from following the course of action it chose to pursue nor have the people at large carried the mantle from the Judges to overthrow the extra-constitutional force. On the other hand when Judges resigned in protest against an unconstitutional takeover or when Judges were removed because of obstruction to the wishes of the new authority, their successors on the Bench merely conformed to the wishes of the new regime and often they were also of so low calibre that justice was no longer administered properly. On the other side it may perhaps be rightly argued that the continuance in office of the Judges gives the new regime a semblance of legitimacy.")

[3] Oxford Essays in Jurisprudence, 2nd series, p.41-42

Pakistan. The opposition parties alleged massive rigging in the election. There was passionate street agitation and disturbance resulting in the loss of lives. Inter-party negotiations failed on the issue of an interim authority with adequate powers to supervise fresh election. There was a general crisis of confidence in the government formed by Bhutto. In this background, the Commander-in-Chief of the Army took over power and proclaimed Martial Law. In a case brought by Mrs. Bhutto[1] the respondents took the stand that the constitution was not abrogated; the elected President continued in office; the Chief Justice was giving advice and guidance in legal matters and the sole aim of taking over power was to organise a free and fair election. The Pakistan Supreme Court found as a matter of fact that the government of Bhutto had lost its constitutional authority to rule the country and there was a constitutional deadlock. The court held that the situation was different from the situation obtaining in *Dosso* and *Asma Jilani* where the constitutions were abrogated; the Chief of Army Staff took over temporarily to hold a free and fair election and it was a mere constitutional deviation rather than usurpation as was the case in *Reference by President of Pakistan*[2]. The court applied the principle of State necessity to hold that the taking over of power by the Chief of Army Staff was valid and legal.[3] The Pakistan Supreme Court took somewhat similar view about the Army take-over by General Parvez Mosharraf in October, 1999 proclaiming Provisional Constitution Order and putting the Constitution of 1973 in abeyance; the court pronounced validity of the "extra-constitutional take-over" on the ground of State necessity and conceded to the usurper the power to amend the constitution in *Zafar Ali Shah v. General Parvez Mosharraf*.[4]

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[1] *Begum Nusrat Bhutto v. Chief of Army Staff*, PLD 1977 SC 657

[2] 9 DLR (SC) 178

[3] For re-appraisal of *Begum Nusrat Bhutto*, see *M.K. Achakzai v. Pakistan*, PLD 1997 SC 426 and *Zafar Ali Shah v. General Parvez Mosharraf*, PLD 2000 SC 869

[4] PLD 2000 SC 869 (The court noted, "An overall view of the whole spectrum of circumstances prevalent on or before 12th October, 1999 reveals that the representatives of the people who were responsible for running the affairs of the State were accused of corruption and corrupt practices and failed to establish good governance in the country as a result whereof a large number of references have been filed against the former Prime Minister, Ministers, Parliamentarians and members of the Provincial Assemblies for their disqualification on account thereof. The process of accountability carried out by the former Government was shady, inasmuch as, either it was directed against the political rivals or it was not being pursued with due diligence. We have also noted with concern that all institutions of the State including Judiciary were being systematically

1.96 *Principle of necessity:* We have seen that unconstitutional acts were found legal on application of the principle of necessity. The principle, in its application to constitutional law, means that acts which are otherwise illegal or not permitted by the constitution are to be held legal if done *bona fide* under the stress of necessity with the intention to preserve the constitution, the State or the society.[1] In *Reference by Governor General*[2] Munir CJ after quoting from the statement of Lord Mansfield in *R. v. Stratton*[3] observed -

> The principle clearly emerging from this address of Lord Mansfield is that subject to the condition of absoluteness, extremeness and imminence, an act which would otherwise be illegal becomes legal if it is done bona fide under the stress of necessity, the necessity being referable to an intention to preserve the constitution, the State or the Society and to prevent it from dissolution, and affirms Chitty's statement that the necessity knows no law and the maxim cited by Bracton that necessity makes lawful which otherwise is not lawful. Since the address expressly refers to the right of a private person to act in necessity, in the case of Head of the State justification to act must *a fortiori* be clearer and more imperative.

In the case of *Madzimbamuto*[4] Lord Pearce in his dissenting judgment applied the principle of implied mandate to find the detention of the husband of the appellant by the rebel government valid even though he agreed with the majority that the government of Ian Smith was an unlawful government. Lord Pearce quoted from Grotius, a part of which is reproduced below -

> Now while such a usurper is in possession, the acts of government which he performs may have a binding force, arising not from a right possessed by him, for no such right exists, but from the fact that one to whom the sovereignty actually belongs, whether people, king, or senate, would prefer the measures promulgated by him should meanwhile have the force of law, in order to avoid the utter confusion which would result

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destroyed in the pursuit of self-serving policies. We uphold the plea raised on behalf of the Federation that the democratic institutions were not functioning in accordance with the Constitution, they had become privy to the one man rule and the very purposes for which they were established stood defeated by their passive conduct." – p.1207)

[1] See Para 3.17A

[2] 7 DLR (FC) 395

[3] (1779) 21 St. Tr. 1045

[4] [1968] 3 All E.R. 561

from the subversion of laws and suppression of the Courts.[1]

Lord Pearce termed it as an implied mandate from the lawful sovereign. He cited several decisions from the American, Pakistani and Cypriot jurisdictions[2] to apply the principle of implied mandate in the case. The doctrine of necessity was again applied by the Pakistan Supreme Court in *Asma Jilani, Begum Nusrat Bhutto* and *Zafar Ali Shah*. Dealing with the principle, S.A. de Smith observed -

> In some situations where unconstitutional action has been taken by persons wielding effective political power, it is open to a judge to steer a middle course. He may find it possible to assert that the framework of the pre-existing order still survives, but that deviation from its norms can be justified on grounds of necessity. The principle of necessity, rendering lawful what would otherwise be unlawful, is not unknown to English law; there is a defence of necessity (albeit of uncertain scope) in criminal law, and in constitutional law the application of martial law is but an extended application of this concept. *But the necessity must be proportionate to the evil to be averted, and acceptance of the principle does not normally imply total abdication from judicial review or acquiescence in the supersession of the legal order; it is certainly a transient phenomenon.*[3] (italics supplied)

1.97 What acts of the usurper can be validated by the application of the principle of necessity? Lord Pearce was of the view that such unconstitutional acts can be validated (a) so far as they are directed to and reasonably required for the ordinary orderly running of the State, (b) so far as they do not impair the rights of citizens under the lawful constitution and (c) so far as they are not intended to and do not in fact directly help the usurpation and do not run contrary to the policy of the lawful sovereign.[4] Hamoodur Rahman CJ preferred to call it a principle

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[1] A somewhat similar view was expressed by the Supreme Court of Pakistan in *M.K. Achakzai v. Pakistan*, PLD 1997 SC 426 (517). The court observed that *bona fide* acts in public interest performed by persons assuming authority which turns out to be illegal , are to be assumed to have been performed by a *de jure* authority to avoid dislocation, instability and confusion, while declaring the *de facto* authority illegal.

[2] *Texas v. White*, 19 L. Ed 227; *Horn v. Lockhart*, 21 L.Ed. 657; *Hanauer v. Woodruff*, (1872) 17 Wallace 570; *Baldy v. Hunter*, 171 US 388; *Reference by Governor General*, 7 DLR (FC) 395; *A.G. v. Mustafa Ibrahim*, 19 CLR 195

[3] Constitutional and Administrative Law, 4th Ed., p.78; Pakistan Supreme Court emphatically held against ouster of jurisdiction in *Zafar Ali Shah v. General Pervez Mosharraf*, PLD 2000 SC 869, 1123

[4] *Madzimbamuto v. Lardner-Burke*, [1968] 3 All E.R. 561, 579

of condonation rather than a principle of necessity (where the constitution is sought to be abrogated) and he would condone (1) all transactions past and closed, (2) all acts and legislative measures which are in accordance with, or could have been made, under the abrogated constitution or the previous legal order, (3) all acts which tend to advance or promote the good of the people, and (4) all acts required to be done for the ordinary orderly running of the State, but not any act intended to entrench the usurper more firmly in his power or to directly help him run the country contrary to its legitimate objective.[1] It can be seen that Hamoodur Rahman CJ was expanding the scope of the principle beyond what was proportionate to the necessity. His items (2) and (3) are additions to what Lord Pearce considered to be permissible. Certainly it is dangerous to give the usurper such a long rope which would enable him to further entrench himself as it actually happened in Pakistan after the Pakistan Supreme Court held the 'constitutional deviation' by Ziaul Haq valid by application of the principle of necessity. It seems that Hamoodur Rahman CJ was expanding the scope of the principle to validate the holding of power by Bhutto who was in control of the government. There is no forensic reason to go beyond what Lord Pearce considered valid on the application of the principle.[2]

1.98 Whatever view may be taken about the scope of the principle of necessity, the tests laid down by the courts are easier stated than applied. Referring to the Rhodesian case, it was observed -

> The tests laid down by the Court were obviously difficult ones to apply. The regulations, for example, of the armed forces was, in a sense, something which was within the powers of previous legitimate governments. But the maintenance of discipline in the armed forces and the orders issued to them were equally clearly connected with the purpose of maintaining the government in possession. What, after all, was the order preserved by the government for? Any stability or order preserved by a rebellious government is preserved in some measure against those who might otherwise bring about its fall or the restoration of lawful authority.[3]

This observation underscores the danger of expanding the scope of the principle of necessity. The events following the decision in *Begum*

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[1] PLD 1972 SC 139, 207

[2] For an elaborate discussion on the doctrine of State necessity, see *Zafar Ali Shah v. General Pervez Mosharraf*, PLD 2000 SC 869

[3] Geoffrey Marshall - Constitutional Theory, 1971, p.68

Nusrat Bhutto clearly showed how validation of unconstitutional acts by the court deeply entrenched the usurper in power and yet the Pakistan Supreme Court conceded to the usurper the power of amendment of the constitution in *Zafar Ali Shah*.

1.99 *Bangladesh situation:* The factual position in Bangladesh was different from the situation obtaining in *Dosso* and *Asma Jilani*; rather it had some similarity with the fact pattern of *Begum Nusrat Bhutto* and *Zafar Ali Shah* . In 1975 the usurper did not abrogate the Constitution, but allowed the Constitution to operate subject to the Proclamation and Martial Law Regulations and Orders and shortly thereafter by another Proclamation set a time limit for holding election for full restoration of the disturbed constitutional order. It could not be said that the legal order established by the Constitution was dead. Dieter Conrad in his article[1] made a distinction between the two types of usurpation -

> Briefly, the typical two situations and their essential differences may be described thus: one, where the revolutionary power attempts to change the basic constitutional structure and to introduce a new order; the other, where extra-constitutional action is but taken in order to defend and eventually restore the existing constitution. These two types of extra-constitutional action may conveniently be characterised by drawing on a distinction from German doctrinal discussion, namely of commissarial and sovereign dictatorship ... The difference is that the commissarial dictator is ultimately bound to, though not presently restricted by, the existing constitution, while the sovereign dictator justifying his actions from the future order is not measured by any precise constitutional yardstick (though by the requirements of either a mandate or a final ratification) and usually reserves power to judge on the appropriate time required.

The question of the application of the principle of revolutionary legality arises in the case of a sovereign dictatorship; if the regime is found to be legal because of the effective control of the sovereign dictator and the death of the old legal order, that is the end of the matter. The declaration of independence of East Pakistan was an act of rebellion so far as the constitutional and legal order of Pakistan was concerned, but the destruction of that legal order in East Pakistan was so complete and the acceptance of the new legal order was so indisputable that there could not be any doubt about the lawful right of the emerging Government of

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[1] see f.n. of Para 1.16

Bangladesh to govern the territory. If the court finds that the taking over of power in a manner not contemplated by the constitution was illegal and cannot be legitimised by application of the principle of revolutionary legality, the question would then arise as to whether, and which of, the acts of the sovereign dictator will have to be found legal on application of the principle of necessity.[1] In the case of commissarial dictatorship there is no claim of death of the old legal order and as such the question of application of the principle of revolutionary legality does not arise. It is straightaway a question of the application of the principle of necessity to legalise the actions of the usurper, which the court considers to be a temporary constitutional deviation rather than usurpation, till the constitutional order is restored.

1.100 Thus in the situation obtaining in Bangladesh, the courts were not required to decide on the application of the principle of revolutionary legality. In *Halima Khatun v. Bangladesh*[2] the petitioner filed a writ petition challenging an order of the government treating certain property as abandoned property. The writ petition was dismissed on the ground that the petition involved disputed questions of fact. The petitioner filed a leave petition , but before the petition could be heard, Martial Law Order No. VII of 1977 was promulgated abating the pending proceedings relating to properties treated as abandoned properties by the government. At the hearing, a preliminary objection was raised that in view of the Martial Law Order the leave petition abated. From the petitioner's side it was pointed out that the Constitution has not been abrogated and as such a Martial Law Order cannot be passed ousting the constitutional jurisdiction of the Supreme Court and furthermore the Proclamation under the authority of which the Martial Law Order was passed could not and, in fact, did not oust the constitutional jurisdiction of the Supreme Court. The Appellate Division, while dismissing the leave petition, did not take into consideration the fact that the *Dosso* situation did not prevail in the present case and that the Constitution having not been abrogated the question of a new legal order replacing the existing legal order could not arise. If the Constitution is allowed to operate and the court is operating under the Constitution, there is no principle of law except the principle of State necessity which can be resorted to find the action of the usurper

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[1] *Asma Jilani v. Punjab*, PLD 1972 SC 139, 207; *Begum Nusrat Bhutto v. Chief of Army Staff*, PLD 1977 SC 657

[2] 30 DLR (AD) 207

justified and legal. But the principle of necessity, even if applicable, cannot normally extend to the ouster of the court's jurisdiction.[1] Such ouster of the court's jurisdiction does not really pass the tests of State necessity laid down by the courts[2] and the superior courts continue to have the power of judicial review to judge the validity of any act or action of the Armed Forces, if challenged, in the light of the principles underlying the law of State necessity.[3] It may be argued that without going into the legal issues the Appellate Division should not have accepted the position, as a matter of law, that when any person takes over power in a manner not contemplated by the Constitution and proclaims that the Constitution will be subordinate to his proclamations, the Constitution is relegated from its position as the supreme law and is to operate subject to the proclamations and orders passed by the usurper. In *Joynal Abedin v. Bangladesh*[4] a conviction by a Martial Law Court was challenged in writ jurisdiction and the point was squarely raised that the proclamation of Martial Law cannot take away the constitutional jurisdiction of the Supreme Court when the Constitution remains operative. The High Court Division noted the fact that the Constitution was not abrogated and was allowed to operate, though subordinate to the Martial Law Proclamations, Regulations and Orders, and found that the instant Martial Law was merely a constitutional deviation and not one of Wellingtonian style[5] and notwithstanding the provisions of the Proclamation and Martial Law Regulations, the jurisdiction of the Supreme Court in respect of Martial Law Courts was not ousted. On appeal, the Appellate Division by a majority decision, reversed the High Court Division's judgment without making any inquiry into the legal status of the Martial Law and simply holding, "The moment the country is put under Martial Law, the above noted constitutional provision along with other civil laws of the country loses its superior position."[6] In the subsequent case of *Khandker Ehteshamuddin v. Bangladesh*[7] the

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[1] see S.A. de Smith - Constitutional and Administrative Law, 4th Ed., p.78

[2] *Begum Nusrat Bhutto v. Chief of Army Staff*, PLD 1977 SC 657

[3] *Zafar Ali Shah v. General Pervez Mosharraf*, PLD 2000 SC 869, 1123-24 (On no principle of necessity could powers of judicial review vested in the Superior Courts under 1973 Constitution be taken away); see also *Wasim Sajjad v. Pakistan*, PLD 2001 SC 233

[4] 30 DLR 371

[5] Para 1.91

[6] *State v. Joynal Abedin*, 32 DLR (AD) 110, 123

[7] 1981 BLD(AD) 107 = 33 DLR (AD) 154

Appellate Division following *Halima Khatun* and *Joynal Abedin* held, "It is true that Article 7(2) declares the Constitution as the supreme law of the Republic and if any law is inconsistent with the Constitution that other law shall, to the extent of the inconsistency, be void, but the supremacy of the Constitution cannot by any means compare with the Proclamation issued by the Chief Martial Law Administrator." It appears that the court could not come out of the influence of the holding in *Dosso* even though the situation in that case was different from the situation in *Dosso*. The Appellate Division referred to the decision in *Asma Jilani v. Punjab*[1], *State v. Zia-ur Rahman*[2] and *Pakistan v. Saeed Ahmed*[3] but the important decision of the Pakistan Supreme Court in *Begum Nusraat Bhutto v. Chief of Army Staff* does not appear to have been cited from the Bar.

1.101 Martial Law was imposed in Bangladesh for the second time in 1982. This time the Constitution was suspended. The usurper did not abrogate the Constitution and did not evince any intention to create a new legal order. All throughout the period during which the usurper remained in power there was popular movement against the regime. The usurper sat in dialogue with various political parties disclosing his intention to restore the suspended Constitution. By the *Madzimbamuto* standard, the taking over of the power could not be legalised by application of the principle of revolutionary legality. He could not be treated as a sovereign dictator, having expressed an intention to restore the suspended Constitution and, in fact, having restored it and it was merely a question of the application of the principle of necessity. In *Bangladesh v. Md. Salimullah*[4] the question arose whether the proceedings in writ jurisdiction abated as a result of the suspension of the Constitution and the Proclamation of 24 March 1982. The Appellate Division referring to *Dosso* and *East Pakistan v. Mehdi Ali Khan Panni*[5] answered the question in the affirmative. The court held that where leave petitions or appeals against decision of the High Court Division were pending before the Appellate Division, not only the proceeding before the Appellate Division but also the proceeding concluded in the High Court Division abated on the principle that an appeal is a

[1] PLD 1972 SC 139
[2] PLD 1973 SC 49
[3] PLD 1974 SC 151
[4] 1983 BLD (AD) 10 = 35 DLR(AD) 1
[5] 11 DLR (SC) 318

continuation of the suit. It is submitted that abatement of an appeal does not have the effect of abatement of the suit and if the analogy of suit is brought in, the result should be otherwise. From the judgment it does not appear that any argument was advanced from the Bar that this was a case where the question of application of the principle of revolutionary legality could not arise and the principle of necessity which alone could justify the action of the usurper does not normally permit ouster of the court's jurisdiction.

1.102 *Effect of Martial Law after its withdrawal:* Irrespective of the question of validity of the actions of the usurper during the continuance of Martial Law, it must be accepted that once Martial Law is lifted and the Constitution holds the field exclusively, such extra-constitutional acts cannot have any force and effect except for matters past and closed and by no logic can Martial Law Proclamations, Regulations and Orders have any further force or effect. In *Monoranjan Mukherjee v. Election Commissioner*[1] the question arose whether, after lifting of Martial Law, a person convicted by a Martial Law Court is disqualified from holding an elective office under the Local Government (Union Parishad) Ordinance, 1983. The High Court Division observed -

> The ordinary laws of the country cannot ever contemplate or visualize extra-constitutional offences tried by extra-constitutional Courts or Tribunals in an extra-constitutional dispensation. Nor is there any constitutional mandate to read Martial Law offences and Martial Law Courts whenever there is any reference to criminal offences and conviction in any general law of the land. It is well-settled that Martial Law is not a part of the constitutional scheme of this country. It is a temporary measure, a short-term arrangement. It meets only an interim need. When it leaves, it usually legalises all past actions for purposes of immunity, with the tacit acknowledgement that its interference with the constitutional process is an aberration and needs to be condoned. But while leaving, the Martial Law does not leave any trail of disqualification. It is good as long as it lasts, but with its departure it no longer casts a shadow upon the ordinary laws of the land.

The question in this case was whether a conviction by a Martial Law Court is a criminal conviction within the meaning of the Ordinance to attract the disqualification. The High Court Division rightly took the view that the Ordinance contemplated a criminal conviction by an

[1] 41 DLR 484

ordinary criminal court under the ordinary law of the land and not a conviction by a Martial Law Court under Martial Law Regulations or Orders. It should, however, be noticed that the Fifth and Seventh Amendments of the Constitution by way of inclusion of Paragraphs 18 and 19 in the Fourth Schedule of the Constitution, ratified the Proclamations, Proclamation Orders, Martial Law Regulations and Martial Law Orders and all actions taken under them were imparted validity. The provisions of the General Clauses Act were made applicable to the Proclamations, Martial Law Regulations and Martial Law Orders as if those were Acts of Parliament. Whether these amendments of the Constitution are at all valid is a different question and will be discussed later.[1] Proceeding on the assumption that those amendments are valid, the consequence was that the repeal of Martial Law Regulations and Martial Law Orders attracted the provisions of s.6 of the General Clauses Act[2]. In *Bangladesh v. Mahbubur Rashid*[3] the Appellate Division held valid an order of review under Martial Law Regulations passed after the lifting of Martial Law. The court did not refer to s.6, but it was apparent that the court was proceeding on the premise that the power of review of the government continued by virtue of s.6 notwithstanding the repeal of Martial Law Regulations by the Proclamation withdrawing the Martial Law. In *Mahtabuddin v. Principal Secretary, President's Secretariat*[4] the petitioner's review petition against the order of his removal from service was pending when martial law was withdrawn and the High Court Division issued a *mandamus* for disposal of the review application. Naimuddin Ahmed J made specific reference to the provisions of s.6 to come to the finding that the repeal of the Martial Law Order did not affect the review proceeding. On appeal the Appellate Division approved the reasoning of Naimuddin Ahmed J.[5]

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[1] see Para 4.69

[2] *Nasrin Kader Siddiqui v. Bangladesh*, 44 DLR (AD) 16, Para 71 & 72 (Martial law goes but its actions are ratified and the remnants of martial law are grafted into the constitutional system. Therefore the Proclamation of Martial Law, Martial Law offences and Martial Law courts die a natural death when the martial law is revoked but its legacies and fall outs continue to the extent and in the manner expressly provided by the saving clauses repealing Martial Law Regulations and Orders. - per M. Kamal J)

[3] 1981 BLD (AD) 300

[4] 42 DLR 1

[5] *Principal Secretary, President's Secretariat v. Mahtabuddin*, 42 DLR (AD) 214; *S.M. Wadud v. Principal Secretary, President's Secretariat*, 46 DLR 251; see also *Lutfur*

1.103 Paragraphs 3A(6) and 19(8) of the Fourth Schedule of the Constitution provide that the revocation of Martial Law Proclamations and withdrawal of the martial law shall not revive or restore any right or privilege which was not existing at the time of such revocation and withdrawal. With the imposition of Martial Law in 1982, the pending writ petitions were abated. After withdrawal of Martial Law, the petitioner of one such abated writ petition filed a fresh writ petition which was summarily dismissed by the High Court Division upon a view that at the time of withdrawal of the Martial Law there was no right to invoke writ jurisdiction under art.102 and that right has not been revived or restored. On appeal, the Appellate Division reversed the decision[1] and pointed out that the cause of action (or the right for the enforcement of which the earlier writ petition was filed) did not cease to exist; only the remedy was barred by the Martial Law Proclamation and with the withdrawal of the Martial Law, the bar to the remedy was removed and the writ petition on the same cause of action was maintainable. In *Shahida Mohiuddin v. Bangladesh*[2], the prosecution of the killers of Sheikh Mujibur Rahman was challenged on the ground that at the time of withdrawal of the Martial Law of 1975 the right to prosecute the killers was not in existence because of the provisions of the Indemnity Ordinance, 1975 and in view of paragraph 3A(6) of the Fourth Schedule the prosecution was without lawful authority. In view of the decision of the Appellate Division in *Anwaruddin*, the challenge should fail inasmuch as the Indemnity Ordinance did not exonerate the liability of murder, but merely sought to prevent the prosecution and with the repeal of that Ordinance, there is no bar to the prosecution. Read in proper context, paragraphs 3A(6) and 19(8) refer to, and apply in respect of, the rights and privileges destroyed or affected by the Martial Law Proclamation and not by ordinary laws. The High Court Division, though *prima facie* disagreed with the contention of the petitioner, dismissed the writ petition on the ground that a writ in the nature of *certiorari* would not lie in respect of a proceeding which is pending before the criminal Bench of the High Court Division and left the question of validity of the prosecution open to be raised in the

Rahman v. Div. Mechanical Engr., 51 DLR 133

[1] *Anwaruddin v. Asstt. Commissioner*, 1 BLC (AD) 164

[2] W.P. no.530 of 2001 (Unreported)

pending death reference case. Subsequently, the learned Judge hearing the death reference rejected the contention that the prosecution was without lawful authority.[1]

[1] *State v. Lt. Col. Farook Rahman & others*, 53 DLR 287

CHAPTER TWO

FUNDAMENTAL RIGHTS

2.1 Part III of the Constitution enumerates a host of rights called fundamental rights. In 1650, Grotius, the Dutch political thinker, propounded a theory that when a sovereign of a State infringes the basic human rights of his subjects, it becomes an international question and the sovereign forfeits his right to rule under the law of nations and other nations may be justified in intervening. Though the theory had no immediate impact, it drew the attention of the contemporary political thinkers and by the next century it was being considered that every man has certain natural and inalienable rights necessary for the development of his personality which should be inviolable. The American Constitution adopted in 1787 did not guarantee the enjoyment of any such right. The reaction that followed led to the inclusion of a Bill of Rights in 1789 in the form of ten amendments. More than a century thereafter, the American Supreme Court observed, "The very purpose of a Bill of Rights was to withdraw certain subjects from the vicissitudes of political controversy, to place them beyond the reach of majorities and of officials and to establish them as legal principles to be applied by courts."[1] The Second World War saw the worst trampling of the basic rights of men. In 1948 the United Nations General Assembly adopted the Universal Declaration of Human Rights[2]. The European Convention for the Protection of Human Rights and Fundamental Freedoms was signed in 1950. The importance of fundamental rights in the third world countries, where the democratic tradition has yet to take root, cannot be over-emphasised. Majority rule is accepted because there is no better alternative to it. But there are certain aspects of the liberty of individuals which must be kept beyond the political decision of persons having majority support for the time being. Even in Britain where common law recognised many of the rights mentioned in the Universal Declaration of Human Rights, Parliament's competence to pass laws in derogation of these rights led to the comment that "Civil liberties in Britain are extremely precarious *legal* concepts. They may enjoy a more assured *conventional* status, insofar as the courts, the executive and the

[1] *West Virginia State Bd. of Edn v. Barnette*, 319 US 624, 638

[2] Appendix E

legislature may fear the political or moral consequences of undermining them; but ... conventional understandings about constitutional morality may themselves be nebulous creatures".[1] Speaking about the utility of incorporation of fundamental rights in the constitution, Lord Scarman observed –

> Without a Bill of Rights protected from repeal, amendment, or suspension by the ordinary process of a bare Parliamentary majority controlled by the government of the day, human rights will be at risk.[2]

The necessity of a Bill of Rights may well be demonstrated by citing two English decisions. In *Entick v. Carrington*[3] the warrant issued by the Secretary of State for search and seizure of seditious materials in the house of Entick was found illegal for want of any legal authority, while in *Malone v. Metropolitan Police Commissioner*[4] the practice of telephone tapping by the executive without any clear lawful authority was upheld on the ground that Malone could not point to any legal right of his which the government was under duty not to infringe. The European Convention of Human Rights was ratified by the United Kingdom in 1951, but the British courts regarded the Convention as an aid to interpretation, but had no jurisdiction directly to enforce the rights and freedoms under the Convention.[5] However, the position is now different with the passing of the Human Rights Act, 1998.

2.1A When the framers of our Constitution were considering the question of incorporation of a Bill of Rights, they had before them the experience of different States in the working of such Bill of Rights. The framers of the Constitution were particularly impressed with the formulation of the basic rights in the Universal Declaration of Human Rights. If we make a comparison of Part III of the Constitution with the Universal Declaration of Human Rights, we shall find that most of the rights enumerated in the Declaration have found place in some form or other in Part III of the Constitution and some have been recognised in Part II. The Declaration was followed by two Covenants – Covenant on Civil and Political Rights and Covenant on Economic, Social and Cultural Rights – adopted by the United Nations General Assembly in

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[1] Ian Loveland - Constitutional Law, 1996, p.560; see also H.W.R. Wade – Administrative Law, 6th ed. p.30

[4] English Law - The New Dimension, p.69

[3] (1765) 19 St Tr 1030

[4] [1979] Ch 344

[5] *Waddington v. Miah*, [1974] 2 All E.R. 377

December, 1966. Our courts will not enforce those Covenants as treaties and conventions, even if ratified by the State, are not part of the *corpus juris* of the State unless these are incorporated in the municipal legislation. However, the court can look into these conventions and covenants as an aid to interpretation of the provisions of Part III, particularly to determine the rights implicit in the rights like the right to life and the right to liberty, but not enumerated in the Constitution.[1]

2.1B In recent times we have been talking about human rights and pondering over the means and method of ensuring it. It may be kept in mind that a large segment of our citizenry live in utter poverty and they not only do not have access to the courts to vindicate the rights the Constitution has given them, they are, in fact, not aware that they are entitled to those rights. To talk about their rights in posh hotels and in big seminars is something which does not really help the poor people. It is only by adopting a viable legal aid scheme[2] and pursuing it that we can make the catalogue of rights in the Constitution meaningful for the economically backward section of our citizenry. We have just to remind us that keeping in mind the question of access to justice, the framers of the Constitution have made provision in art.44 for courts other than the High Court Division for enforcement of fundamental rights and Parliament may pass necessary law to enable the poor people seek enforcement of the rights the Constitution has given them.

2.2 *The rights not to be absolute:* Fundamental rights, if granted without any qualification or limitation, may be harmful as absolutely free exercise of such rights by one may be destructive of similar rights of others[3] and such fundamental rights would be a hindrance to governmental measures for the welfare of the community. The First Amendment rights of the American Constitution were granted without

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[1] Ibid, 379 ; *H.M. Ershad v. Bangladesh*, 2001 BLD (AD) 69, 70 (The national courts should not ... straightway ignore the international obligations which a country undertakes. If the domestic laws are not clear enough or there is nothing therein the national courts should draw upon the principles incorporated in the international instruments.); *Apparel Export Promotion Council v. Chopra*, AIR 1999 SC 625, 634 (In cases involving violation of human rights, the courts must for ever remain alive to the international instruments and conventions and apply the same to a given case when there is no inconsistency between the international norms and the domestic law occupying the field.)

[2] Parliament passed the Legal Aid Ain, 1999 and the government has adopted a scheme of legal aid.

[3] *Maneka Gandhi v. India*, AIR 1978 SC 597, 620

any qualification or limitation. The American Supreme Court, however, imported the concept of 'police power', that is, the governmental power exercisable for the welfare of the community, as a limitation on the exercise of such rights. Carefully considering the operation of fundamental rights in the American and other jurisdictions, the framers of the Indian and Pakistani Constitutions specifically provided for restrictions which can be constitutionally imposed on the exercise of fundamental rights guaranteed by the constitution.

2.3 The preamble of the Constitution states that it shall be a fundamental aim of the State to realise a socialist society in which the rule of law, fundamental human rights and freedom, equality and justice will be ensured. For the realisation of this aim, Part III of the Constitution provides for a number of rights as fundamental which the State is prohibited from transgressing. The very purpose stated in the preamble necessitates limitations on the exercise of fundamental rights and the framers of the Constitution provided the limitations, striking a fine balance between the individuals' freedoms and the governmental needs for the welfare of the community.

GENERAL CONSIDERATIONS

2.4 Art.26 provides that all existing laws inconsistent with the fundamental rights as provided in Part III shall to the extent of the inconsistency become void on the commencement of the Constitution and the State shall not make any law inconsistent with those rights. In 1967 the Indian Supreme Court held in *Golak Nath v. Punjab*[1] that a constitutional amendment by an Act of Parliament was a 'law' within the purview of art.13(2) (corresponding to art.26(2) of the Constitution) and it could not take away any fundamental right. So that such an interpretation may not be given, the Constitution (First Amendment) Act, 1973 was passed incorporating clause (3) in art.26 which states, "Nothing in this article shall apply to any amendment of this Constitution made under article 142". Similar amendment has also been made in art.142.

2.5 'State' is defined in art.152 to include Parliament and the expressions 'All existing law' and 'State shall not make law' clearly

[1] AIR 1967 SC 1643 (overruled in *Kesavananda Bharati v. Kerala*, AIR 1973 SC 1461)

show that the prohibition of art.26 is principally addressed to Parliament. It must be understood that the provisions of arts.27 to 29 and 31 to 44 are primarily limitations on the plenary power of legislation of Parliament and these provisions are to be interpreted accordingly. Otherwise the purported entrenchment of arts.27 to 29 and 31 to 44 by art.26 "would be little more than a mockery".[1] In *Jibendra Kishore v. East Pakistan* it was contended that art.18 of the Constitution of Pakistan of 1956 guaranteeing freedom of religion did not put any limitation on the power of the legislature to legislate, but the Supreme Court rejected the contention stating -

> The very conception of a fundamental right is that it being a right guaranteed by the Constitution cannot be taken away by the law, and it is not only technically inartistic but a fraud on the citizens for the makers of a Constitution to say that a right is fundamental but that it may be taken away by the law.[2]

2.6 'Law' is defined in art.152 to include rules, regulations and all those instruments, customs and usages which have the force of law. The prohibition of art.26 is not only applicable to the Acts of Parliament, but to all those which come within the definition of law. As a law cannot be

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[1] *Ong Ah chuan v. Public Prosecutor*, [1981] AC 648, 671 Art.(9(1) of the Singapore Constitution provides, "No person shall be deprived of his life or personal liberty save in accordance with law". It was argued by the Public Prosecutor that the requirements of the constitution are satisfied if the deprivation of life or liberty complained of has been carried out in accordance with provisions contained in any Act passed by Parliament of Singapore, however arbitrary or contrary to fundamental rules of natural justice the provisions of such Act may be. The Privy Council rejected the contention and held "In a constitution founded on the Westminster model and particularly in that part of it that purports to assure to all citizens the continued enjoyment of fundamental liberties or rights, reference to 'law' in such context as 'in accordance with law' and the like, in their Lordships' view, referred to a system of law which incorporates those fundamental rules of natural justice that had formed part and parcel of the common law of England that was in operation in Singapore at the commencement of the Constitution. It would have been taken for granted by the makers of the Constitution that the 'law' to which the citizens could have recourse for the protection of fundamental liberties assured to them by the Constitution would be a system of law that did not flout those fundamental rules. If it were otherwise it would be misuse of language to speak of law as something which affords 'protection' for the individual in the enjoyment of his fundamental liberties, and the purported entrenchment (by article 5) of articles 9(1) and 12(1) would be little more than a mockery.")

[2] 9 DLR (SC) 21, 44; see also the observation of Kaikaus J in *Pakistan v. Syed Akhlaque Hussain*, PLD 1965 SC 527, 580

inconsistent with the provisions of Part III of the Constitution, executive and administrative actions, which must have the backing of law to encroach upon the rights of individuals, cannot also infringe the fundamental rights guaranteed by Part III.

2.7 When rights are guaranteed by the Constitution in achieving the aims and objectives stated in the preamble, those rights are to be liberally interpreted and the exceptions provided in the Constitution are not to be interpreted in a manner which renders those rights inconsequential or illusory.[1] The court will employ intensive level of scrutiny in assessing the lawfulness of the exercise of public powers when fundamental rights are at stake.[2]

2.8 *Trifling violation:* Sometimes infringement of a fundamental right is minimal in nature. In such cases, efforts have been made to apply the maxim of *de minimis non curat lex* (the law does not concern itself with trifles). Though courts generally do not take trifling and immaterial matters into account except under peculiar circumstances, this principle should not be applied in the case of infringement of fundamental rights. In *Olivier v. Buttigieg*[3] the Privy Council observed–

> ... where 'fundamental rights and freedom of the individual' are being considered, a court should be cautious before accepting the view that some peculiar disregard of them is of minimal account.

In stating the danger of applying the principle of *de minimis* the American Supreme Court held -

> It may be that it is the obnoxious thing in its mildest form; but illegitimate and unconstitutional practices get their first footing in that way, namely, by silent approaches and slight deviations from legal modes of procedure.[4]

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[1] *Jibendra Kishore v. East Pakistan*, 9 DLR (SC) 21, 44; *Pakistan v. Syed Akhlaque Hussain*, PLD 1965 SC 527, 580; see also *Rashid Ahmed v. State*, 21 DLR (SC) 297, Para 22; *Ministry of Home Affairs v. Fisher*, [1979] 3 All E.R. 21, 25; *A.G. of Gambia v. Momodou*, [1984] AC 689, 706

[2] *Bugdaycay v. Secy. of State for Home Deptt.*, [1987] AC 514; *R. v. Secy. Of State for Home Deptt.*, [1993] 4 All E.R. 539

[3] [1966] 2 All E.R. 459, 466

[4] *Boyd v. U.S.*, 116 US 616, 635 (quoted with approval in *Silverman v. U.S.*, 365 US 505, 512); *Thomas v. Collins*, 323 US 516 ("if the restraint were smaller than it is, it is from petty tyrannies that large ones take root and grow. This fact can be no more plain than when they are imposed on the most basic rights of all. Seedlings planted on that soil grow great and, growing, break down the foundations of liberty." – at p.543)

2.8A *Illegality and fundamental right*: There may be prohibition or restriction imposed by law. If such prohibition is not violative of any of the fundamental rights enumerated in Part III, there cannot be any right, much less any fundamental right, which will inspire violation of such provision of law; fundamental right can never be invoked for violating any provision of law or other man's right under the law.[1] If a man obtained, through mistake of the administration, certain benefit which is not permissible under the law, another man cannot press in aid art.27 to claim that benefit.[2] On the other hand, though freedom of assembly is subject to reasonable restrictions on the ground of public order, a man's freedom of assembly cannot be curbed simply because it will lead to violence and disturbance of peace by people opposing the purpose of the assembly.[3] It is the duty of the police to prevent those who want to resort to violence.

2.9 ***Scheme of Part III*** : The rights guaranteed by Part III of the Constitution can be classified into two groups. On the one side fall the rights which are general in nature covering the whole range of human activities and on the other fall the rights in respect of specific activities. Fundamental rights guaranteeing equality before law, the equal protection of law and protection of law fall in the first category. Irrespective of the subject matter of legislation, every law must satisfy the requirements of arts.27 and 31. Art.27 is a guarantee against discrimination both in conferment of privileges and imposition of liabilities. Art.28 prohibits discriminatory treatment only on grounds of religion, race, caste, sex or place of birth. Art.29 prohibits discrimination in the matter of employment in the service of the Republic. Art.31

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[1] *Bangladesh NCTB v. Shamsuddin*, 48 DLR (AD) 184, 189 – See Para 2.177A for comments on this decision.

[2] *Gursharan Singh v. New Delhi Municipal Corp*, AIR 1996 SC 1175; *Bihar v. Kameswar Prasad*, AIR 2000 SC 2306

[3] *Beatty v. Gillbanks*, (1882) 9 QBD 308 (An earlier march by Salvation Army was abandoned when it was attacked by a violent mob calling itself 'Skeleton Army'. Local magistrate issued notice forbidding any public assembly. Salvation Army ignored the notice and began a march led by Beatty. Members of Skeleton Army appeared in the scene and Beatty refusing to stop the march was arrested. The High Court held the notice unlawful. A man may not be convicted for doing a lawful act simply because he knew that his doing it might cause another to do an unlawful act.); *Banamali Pal v. Nazrul Islam*, 3 BLC (AD) 162 (If a person is rightfully in possession of his land, his possession should be protected and those who want to commit breach of the peace should be prevented and dealt with by the law enforcing agency.)

prohibits detrimental action affecting individuals otherwise than in accordance with law. This is an analogue of the 'due process concept' of the American jurisdiction.[1] Art.32 provides a protection in respect of deprivation of life and personal liberty. All other relevant articles in Part III offer guarantees in respect of specific liberties of speech and expression, movement, association, assembly, trade and occupation, religion, property, security of home and privacy and rights involved in arrest, detention and trial and punishment.

2.10 Art.27 deals with equality before law and the equal protection of law in general. It does not prohibit reasonable classification. Art.28 has been introduced to make classification only on grounds of religion, race, caste, sex or place of birth *per se* unreasonable except when a provision is made in favour of women, children and backward section of citizens. In the absence of the provisions of art.28, the objection of what is known as reverse discrimination would be raised whenever a beneficial legislation is made in favour of women, children and the backward section of citizens. The matters covered by art.29 would have been covered by arts.27 and 28, but art.29 has been introduced to allow certain special provisions in the matter of public employment in the service of the Republic.

2.11 Art.31 deals with the protection of law to be enjoyed by citizens and persons residing in Bangladesh and, in particular, in respect of life, liberty, body, reputation and property. Deprivation of life or personal liberty can well be covered and protected by art.31, but in view of the fact that deprivation (which means total loss) of life or personal liberty is far more serious a matter than detrimental action in respect of life or personal liberty, the framers of the Constitution thought it necessary to make a separate provision in respect of deprivation of life or personal liberty. Thus detrimental action short of deprivation in respect of life or personal liberty will be covered by art.31, while deprivation of life or personal liberty must fulfil the requirement of art.32. The expression 'liberty' has a personal content in it. So when the framers of the Constitution used the expression 'personal liberty' in art.32 after using the term 'liberty' in art.31, the expression 'personal liberty' must have a narrow connotation meaning freedom from bodily restraint.[2]

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[1] *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111 (per M.H.Rahman J)

[2] In *Maneka Gandhi v. India*, AIR 1978 SC 597, and in some other decisions, the Indian Supreme Court has given expansive meaning to the expression 'personal liberty' appearing in art.21 (corresponding to our art.32). The necessity for such interpretation

2.12 Both arts.31 and 32, so far as 'liberty' is concerned, are in the same terms - any action affecting liberty must be in accordance with law. We will find that the expression 'law' has been used in the sense of *jus* and not in the sense of *lex*[1]. Both the provisions mandate reasonable laws. But since two separate provisions have been made, it may be reasonable to presume that the framers of the Constitution intended the standard of reasonableness to be different for the two provisions; otherwise art.32 will simply be a surplusage.[2]

2.13 The arrest and detention of individuals are actions detrimental to liberty covered by art.31. Yet separate provisions have been made in art.33 to safeguard the individuals against arbitrary and unreasonable arrest and detention. Thus any law providing for arrest or detention, to be valid, must not only be reasonable and non-arbitrary to satisfy the requirement of art.31, it must also be consistent with the provisions of art.33. Art.35 provides certain protection in respect of trial and punishment of individuals.

2.14 The word 'liberty' includes many freedoms in respect of some of which the framers of the Constitution thought it proper to make special provisions in arts.36, 37, 38, 39, 40, 41, 42 and 43. The difference between these articles and art.31 is that while art.31 mandates contemporaneous and reasonable laws for interference with liberty in general, the aforementioned articles mandate that laws dealing with the liberties covered by those articles can authorise interference only on specified grounds. Thus any law interfering with the freedoms protected by these articles must not only be reasonable and non-arbitrary as required by art.31, it must also conform to the limitations put by any of these articles which may be attracted in the facts of a given case.

2.15 The framers of the Constitution by incorporating art.44 made the right to move the Supreme Court for enforcement of fundamental rights itself a fundamental right. We shall later discuss the effect of art.44 and consider whether art.117 is in conflict with art.44 so that the sweep of art.44 can be said to have been curtailed in respect of matters covered by art.117.

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arose because of absence of any provision like our art.31 in the Indian Constitution. But our art.31 covering whole range of liberties, it is neither necessary, nor reasonable for us to give an extended meaning to the expression 'personal liberty'.

[1] *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (SC) 1

[2] See Para 2.115

2.16 Arts.45, 46 and 47 provide that laws of some specified categories can be made by Parliament free from the limitation put by art.26.

2.17 *Inter-relation between different rights* : Often the question arises whether the fundamental rights guaranteed by the Constitution are mutually exclusive. The question arose in the Indian jurisdiction when it was urged that preventive detention must not only pass the test of arts.21 and 22 (corresponding to arts.32 and 33 of the Constitution) but also the test of art.19(a) and (d) (corresponding to arts.39 and 36 of the Constitution) as such detention interferes with the freedom of speech and expression and movement. The purpose of raising the question was to import the concept of procedural due process as it is known in the American jurisdiction. In *Gopalan v. Madras*[1] the Indian Supreme Court rejected the contention holding that the rights guaranteed under art.19 and arts.21 and 22 are mutually exclusive and refused to import the concept of procedural due process. But subsequently, the court shifted from that position and held that the procedure mentioned in art.21 must not be arbitrary, unfair or unreasonable and that arts.14, 19 and 21 were not mutually exclusive.[2] Because of the provisions of art.31 of the Constitution, which prohibits arbitrariness in all fields, all laws must be tested for reasonableness. The Constitution boldly proclaims the establishment of rule of law as one of the prime objectives and incorporates art.31 as a fundamental right. As a result, the concept of reasonableness pervades the entire Constitution and the provisions of the Constitution cannot be interpreted in a manner which will in any way shelter arbitrariness in any degree or form.

2.17A The rights enumerated in Part III are not necessarily and in all circumstances mutually supportive, though taken together they weave a fabric of a free and egalitarian society. It is often found that the exercise of a particular right by one person affects a different right of another person. Right to reside and settle anywhere in Bangladesh may be thwarted by a local group freely expressing its views against the persons wanting to settle in the locality of the group. Proper exercise of rights may have implicit in them, certain restrictions. The rights must be harmoniously construed so that they are properly promoted with the minimum of such implied and necessary restrictions.[3] There may be

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[1] AIR 1950 SC 27

[2] *Maneka Gandhi v. India*, AIR 1978 SC 597

[3] *Devendrappa v. Karnataka SSID Corp.*, AIR 1998 SC 1064, 1069 (The court took

conflict between the fundamental rights claimed by the parties. The right of privacy of one which is a part of the right to life may come in conflict with the right to healthy life of another which is also a part of the right to life. In such a case, it has been held that only that right which advances public morality or public interest should be enforceable.[1]

2.18 Any restriction imposed by law may affect the exercise of more than one fundamental right. In such a case the test of direct and inevitable impact has to be applied. Any restriction imposed must be permissible in terms of the article which guarantees the right directly affected. If a law, while imposing a valid restriction upon a particular fundamental right, incidentally interferes with another fundamental right, it cannot be said to constitute a restriction on the latter right.[2] The right to go abroad cannot be said to be included in the freedom of expression or of profession, but an order denying the right to go abroad to a person by refusing him passport may contravene either art.39 or art.40 if such a person seeks to go abroad for academic pursuits or to carry on a profession.[3]

2.19 *Persons entitled to fundamental rights* : All the rights guaranteed in Part III of the Constitution are available to the citizens of Bangladesh. Only the rights guaranteed by arts.31, 32, 33, 34, 35 and 44 are available to non-citizens also. 'Citizen' means a person who is a citizen of Bangladesh according to the law relating to citizenship.[4] The concept of citizenship does not include in it legal persons like companies and societies as distinguished from natural persons. It has been so held in the Indian jurisdiction.[5] There is no reason why in our jurisdiction

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restrictive view of the freedom of speech of employees having regard to the interest of the employer in the discipline and efficiency of service)

[1] *Mr. "X" v. Hospital "Z"*, AIR 1999 SC 495 (The court considered the implication and importance of right of privacy and the doctor's moral duty to maintain confidentiality regarding the disease of the patient, but having regard to the serious communicable disease of the patient and the danger to the life and health of the person seeking to marry the patient, the court held that the right to privacy is not absolute and may be lawfully restricted for the prevention of crime, disorder or protection of health or moral or protection of rights and freedoms of others and disclosure of the disease by the doctor would not be violative of the rule of confidentiality or the patient's right of privacy.)

[2] *Express Newspapers v. India*, AIR 1958 SC 578

[3] *Maneka Gandhi v. India*, AIR 1978 SC 597

[4] See Para 175A – 1.75D

[5] *State Trading Corp. v. Comml. Tax Officer*, AIR 1963 SC 1811; *Tata Engineering*

'citizen' should include companies or societies even though they may be formed under the laws of Bangladesh. Though arts.31, 32, 33 and 35 use the expression 'person' in place of 'citizen', the rights guaranteed by these articles and art.34 are of such nature that those rights can be claimed only by natural persons and there is no scope for the legal persons to claim such rights. It may be argued that the legal persons are capable of holding property and protection of law being available in respect of property, the right guaranteed by art.31, so far as it relates to property, cannot be denied to the legal persons.[1] But it has to be noticed that the expression 'other person' in the first part of art.31 is preceded by the expression 'citizen' and in the context it means natural persons other than citizens. The second part of art.31 being illustrative of the first part, it cannot have application wider than the first part. It is submitted that a person other than a natural person may not be entitled to the protection under art.31. Freedom of the press is guaranteed under art.39(2)(b) without any express limitation. Whether this freedom can be claimed by non-citizens is debatable, but from the scheme of art.39 it is clear that the freedom can be claimed by both natural and legal persons. Even though other fundamental rights cannot be claimed by companies and societies, their members may claim the rights when any law affects the companies and societies on the ground that their fundamental right has been affected by the law.[2] A partnership firm has no legal entity apart from the partners and a petition filed by it for the enforcement of

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Ltd v. Bihar, AIR 1965 SC 40 (the shareholders argued that the corporate veil of the company should be pierced which would show the interest of its shareholders, but the court refused to do it holding that the company had a legal entity of its own which is entirely separate from that of its shareholders and to accept the plea of the shareholders would amount to enforcing indirectly what the company could not do directly); *Barium Chemicals v. C.L. Board*, AIR 1967 SC 295; *Amritsar Municipality v. Punjab*, AIR 1969 SC 1100 (a municipal committee is not a citizen); *Gujarat v. Ambica Mills*, AIR 1974 SC 1300

[1] 16A Am Juris 2d, Para 580 (There is an important distinction between liberty and property with respect to the protection included in the Fourteenth Amendment, as far as the persons who may invoke the constitutional guarantees of due process are concerned; for although corporations cannot invoke the 'liberty' concept for their own protection, since they are not natural persons, they are fully entitled to the protection of the due process clause in their property or their property rights.); *Pierce v. Society of Sisters*, 268 US 510

[2] *R.C. Cooper v. India*, AIR 1970 SC 564; *Bennett Coleman & Co, v. India*, AIR 1973 SC 106; *D.F.O. v. Biswanath Tea Co.*, AIR 1981 SC 1369; *D.C. & G.M. v. India*, AIR 1983 SC 937

fundamental right is virtually a petition by its partners and is maintainable.[1]

2.20 *Restriction and prohibition* : Many of the rights guaranteed by the provisions of Part III are subject to restrictions that may be imposed by law. Such restriction cannot be imposed by executive instruction.[2] A question arises whether in imposing restriction, a law can impose prohibition. The Indian Supreme Court has held that the expression 'restriction' includes 'prohibition'.[3] While dealing with the freedom of assembly guaranteed under art.37, the High Court Division held that the expression 'restriction' includes 'prohibition'.[4] In the Indian Constitution the expression 'restriction' is used in art.19 and this interpretation presents no difficulty as the expression is qualified by the expression 'reasonable'. But the 'restriction', which may be imposed under the Constitution in respect of the fundamental rights relating to trade or occupation and property, is not qualified by the expression 'reasonable'. Hence, if 'restriction' is taken to include 'prohibition', there will be virtually no fundamental right relating to trade and occupation and property. On the other hand, the language of art.47(1) shows that when prohibition is intended in respect of trade or occupation and property the expression 'extinction' has been used along with the expression 'restriction'. But if it is generally held that the expression 'restriction' does not include 'prohibition' it creates difficulty in respect of the freedoms of assembly, association and speech and it cannot be said that the framers did not intend to include 'prohibition' in arts.37, 38 and 39. Having regard to the context, it may be contended that in arts.37,38 and 39 the expression 'restriction' includes 'prohibition', but not in arts.36, 40 and 42. Alternatively, degrees of prohibition may be recognised and it be held that the expression 'restriction' includes 'prohibition' but not 'total prohibition'. However, it may not solve the problem as the question will remain as to what is meant by 'total prohibition' and the interest of morality or public order or security of State may require total prohibition of a particular type of assembly, association or speech in a given circumstance. An authoritative pronouncement is required in respect of the meaning of the expression 'restriction'.

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[1] *A.I. Works v. C.C. Exports*, AIR 1974 SC 1539
[2] *Krisnan Kakkanath v. Kerala*, AIR 1997 SC 128
[3] *Narendra Kumar v. India*, AIR 1960 SC 430
[4] *Oali Ahad v. Bangladesh*, 26 DLR 376

2.21 *Reasonable restriction* : In some of the articles the rights are guaranteed subject to reasonable restrictions imposed by law on specific grounds. The question is when a restriction can be said to be reasonable. What is the standard by which the reasonableness of a restriction can be judged? The courts opine that no fixed standard can be laid down for general application and it will vary depending on the varying circumstances of each case.[1] In *Madras v. V.G.Row*[2] Patanjali Sastri CJ of the Indian Supreme Court stated -

> ... no abstract standard, or general pattern of reasonableness can be laid as applicable to all cases. The nature of the right alleged to have been infringed, the underlying purpose of the restrictions imposed, the extent and urgency of the evil sought to be remedied thereby, the disproportion of the imposition, the prevailing conditions at the time, should all enter into the judicial verdict. In evaluating such elusive factors and forming their own conception of what is reasonable, in all the circumstances of a given case, it is inevitable that the social philosophy and the scale of values of the judges participating in the decision should play an important part, and the limit to their interference with legislative judgment in such cases can only be dictated by their sense of responsibility and self-restraint and the sobering reflection that the Constitution is meant not only for the people of their way of thinking but for all, and that the majority of the elected representatives of the people have, in authorising the imposition of the restrictions, considered them to be reasonable.[3]

Similar view was expressed by Hamoodur Rahman J in *Abul A'la Moudoodi v. West Pakistan*[4] in the following words -

> Reasonableness is itself a relative term. What is unreasonable in one given set of circumstances may well be reasonable in another different set of circumstances ... there can be no general standard of reasonableness applicable to all cases. It will certainly depend upon the nature and extent of the right sought to be restricted, the nature and extent of the restrictions sought to be imposed, the nature and circumstances in which restriction is to be imposed, the evil sought to be

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[1] Ibid

[2] AIR 1952 SC 196

[3] Ibid, p.200; *Laxmi Khandsari v. U.P.*, AIR 1981 SC 873; *Pathumma v. Kerala*, AIR 1978 SC 771; *Maharashtra v. H.N. Rao*, AIR 1970 SC 1157; *U.P. v. Kausaliya*, AIR 1964 SC 416

[4] 17 DLR (SC) 209; see also *Chitta Ranjan v. Secy. Judicial Department*, 17 DLR 451

> prevented or remedied, the necessity or urgency of the action proposed to be taken and the nature of the safeguards, if any, provided to prevent the possibilities of abuse of power. All these and there may well be other considerations, such as the objectives of the legislation and prevailing conditions at the time, in the light of which the reasonableness has to be considered.

The learned Judge then stated that a restriction will be treated as unreasonable "if the restriction is for an indefinite or an unlimited period or disproportionate to the mischief sought to be prevented or if the law imposing the restriction has not provided any safeguard at all against arbitrary exercise of power."

2.22 From the decided cases it appears that there are several factors which are to be taken into consideration in judging the reasonableness of a restriction. Presence of any one of the factors may not be decisive. The overall situation is to be considered and such consideration will vary with varying circumstances. The substance of the legislation and not merely its form has to be looked into in considering the validity of the restriction. It is the direct and real effect, and not the remote effect, which has to be taken into consideration.[1] Of course, it has to be kept in mind that the legislature cannot do indirectly what it cannot do directly and if a restriction is sought to be put indirectly when the legislature cannot directly put that restriction, the restriction will be void.[2] The restriction must be reasonable in both substantive and procedural aspects. Generally, where the restriction has no reasonable nexus with the evil sought to be removed[3], or the restriction imposed by law is in excess of the requirement or disproportionate to the mischief sought to be remedied[4] or when the restriction is for an indefinite period of time

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[1] *Express Newspapers v. India*, AIR 1958 SC 578

[2] *In re Kerala Education Bill*, AIR 1958 SC 956

[3] *Municipal Corp. v. Jan Mohammad*, AIR 1986 SC 1205; *Pathumma v. Kerala*, AIR 1978 SC 771; *Arunachala Nadar v. Madras*, AIR 1959 SC 300; *MRF Ltd. v. Inspector, Kerala Government*, (1998) 8 SCC 227

[4] *Chitta Ranjan v. Secy. Judicial Department*, 17 DLR 451; *Oali Ahad v. Bangladesh*, 26 DLR 376; *Chintaman Rao v. M.P.*, AIR 1951 SC 118 (A law prohibiting manufacture of bidis during the agricultural season enacted to ensure availability of agricultural labour arbitrarily interferes with private business. The law not only compels those who can be engaged in agricultural work from taking up any other avocation, but also prohibits persons who have no connection with or relation to agricultural operation from engaging in the business of bidi making. There are infirm and disabled people and old women who cannot be employed in agricultural work, but can be engaged in bidi

and not for a temporary period[1] or when the law confers a discretion upon the executive authority to impose restrictions without providing any guideline regulating the exercise of the discretion[2], the restriction imposed by law is treated to be substantively unreasonable. Conferment of unguided discretion on the executive in imposing restriction may not be unreasonable where the situation is such that power must be vested in some authority to take immediate action to prevent acts fraught with imminent danger.[3] However, in such a case the law should provide a check against arbitrary exercise of the discretion. One of the modes of providing the safeguard is to require the authority to record reasons before taking action and to supply copy of the statement of reasons to the person affected. Such a requirement not only compels the authority to apply its mind, but also facilitates judicial review of the action. In the absence of emergent or extraordinary circumstances, the exercise of fundamental rights cannot be made dependent upon the subjective satisfaction of the governmental authority.[4] A law imposing a restriction may be void if it is vague and uncertain.[5]

2.23 A restriction will be unreasonable in its procedural aspect if there is no provision for complying with the principles of natural justice.[6] There may be a situation where it may not be possible to give notice and hearing to the aggrieved party, but in all such cases there must be a way of hearing the aggrieved party after the action is taken so that he may have an opportunity of showing that the exercise of the power in his case was unwarranted or arbitrary.[7] If there is no safeguard

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making. The law arbitrarily travels beyond requirement.); *M.P. v. Baldeo Prasad*, AIR 1961 SC 293; *Municipal Corp. v. Jan Mohammad*, AIR 1986 SC 1205; *Pathumma v. Kerala*, AIR 1978 SC 771; *India v. Ganayutham*, AIR 1997 SC 3387; *MRF Ltd. v. Inspector, Kerala Government*, (1998) 8 SCC 227

[1] *Mustafa Ansari v. Dy. Commr.*, 17 DLR 553; *Khare v. Delhi Administration*, AIR 1950 SC 211; *Madras v. V.G.Row*, AIR 1952 SC 196

[2] *Municipal Corp. v. Jan Mohammad*, AIR 1986 SC 1205, 1210 *Maharashtra v. Kamal*, AIR 1985 SC 119; *Kaushal v. India*, AIR 1978 SC 1457; *Harichand v. Mizo Dist. Council*, AIR 1967 SC 829

[3] *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209; *Joseph v. Reserve Bank*, AIR 1962 SC 1371; *Pooran Mal v. Director of Enforcement*, AIR 1974 SC 348

[4] *Seshadri v. Dist. Magistrate*, AIR 1954 SC 747; *Ebrahim v. Bombay*, AIR 1954 SC 229; *Maneklal v. Makwana*, AIR 1967 SC 1373

[5] *Abbas v. India*, AIR 1971 SC 481

[6] *Mustafa Ansari v. Dy. Commr.*, 17 DLR 553, 561

[7] *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209; *Tofazzal Hossain v. East Pakistan*, 17 DLR 76

against arbitrary exercise of power, the restriction imposed by law will be treated as unreasonable.[1]

2.24 The reasonableness of restrictions has to be determined in an objective manner.[2] The legislative opinion is neither final nor conclusive.[3] The court has to decide the question of reasonableness of restriction. Reasonableness will not be dependent on the personal views or notions of the individual Judges; it must be an objective standard which, in a given circumstance, an average prudent man will employ.[4] As the fundamental principles of State Policy are fundamental in the governance of the State and are to serve as guide to interpretation of the Constitution and the laws, these fundamental principles are to be kept in view in determining the reasonableness of any restriction.[5] Any restriction imposed to effectuate any of the principles of State Policy will carry a presumption of reasonableness.[6] A just balance has to be struck between the restriction to be imposed and the social control envisaged by the provisions of the Constitution guaranteeing the fundamental rights.[7] In doing that the court must consider the values of life in the society, the circumstances obtaining at a particular point of time when the restriction is imposed and the degree and the urgency of the evil sought to be controlled.[8] What was reasonable at the time of enactment of a law may cease to be reasonable with the change of time and circumstances.[9] In judging the reasonableness of restrictions, the court is entitled to take into consideration matters of common report, history of the times and matters of common knowledge and the circumstances existing at the time of the legislation.[10]

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[1] *Mustafa Ansari v. Dy. Commr.*, 17 DLR 553, 561

[2] *Oali Ahad v. Bangladesh*, 26 DLR 376 *Municipal Corp. v. Jan Mohammad.*, AIR 1986 SC 1205

[3] *Chintaman Rao v. M.P.*, AIR 1951 SC 118; *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209

[4] *Oali Ahad v. Bangladesh*, 26 DLR 376

[5] *Pathumma v. Kerala*, AIR 1978 SC 771; *Kerala v. N.M. Thomas*, AIR 1976 SC 490; *Bombay v. Balsara*, AIR 1951 SC 318

[6] See *Bombay v. Balsara*, AIR 1951 SC 318,328

[7] *Pathumma v. Kerala*, AIR 1978 SC 771; *Narendra Kumar v. India*, AIR 1960 SC 430; *MRF Ltd v. Inspector, Kerala Government*, (1998) 8 SCC 227

[8] *Madras v. V.G.Row*, AIR 1952 SC 196; *Pathumma v. Kerala*, AIR 1978 SC 771

[9] *Motor General Traders v. A.P.*, AIR 1984 SC 121; *Malpe Viswanath v. Maharashtra*, (1998) 2 SCC 1

[10] *Pathumma v. Kerala*, AIR 1978 SC 771

RIGHT TO EQUALITY

2.25 Art.27 provides that all citizens are equal before the law and are entitled to the equal protection of law. It combines the English concept of equality before law and the American concept of equal protection of law. 'Equality before law' means that among equals law shall be equal and shall be equally administered. There shall not be any special privilege by reason of birth, creed, etc. 'Equal protection of law' means that all persons in like circumstances shall be treated alike and no discrimination shall be made in conferment of privileges or imposition of liabilities. The first part is negative while the second is positive in approach. Equality before law is involved in the enforcement of law, while equal protection of law involves the validity of a law. But these are not independent or severable concepts in their application and will often be found to overlap each other.[1] This article more than others firmly embodies the concept of rule of law the establishment of which is one of the prime objectives of the Constitution.

2.25A The guarantee of equality is a positive concept and cannot be enforced in court in a negative manner. If an illegality or irregularity has been committed in favour of an individual, no one can press in aid art.27 to claim that the same illegality or irregularity be committed in his favour, though he can challenge the validity of the illegal or irregular action. Otherwise, the article can be used for perpetuation of illegal or irregular acts which no constitutional dispensation seeking to establish rule of law can permit. Before a claim based on equality clause is upheld, it must be established by the petitioner that his claim, though just and legal, has been denied discriminating him from others.[2]

2.26 ***Doctrine of classification*** : We speak of equality of treatment. But every legislation involves classification between persons, things, occupations and so on for differential treatment. "In dealing with the paradox, the law has neither abandoned the command of equality nor denied the governmental power to classify. It has followed a middle course, reconciling the contradictory demands of specialised legislation

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[1] *Dr. Nurul Islam v. Bangladesh*, 33 DLR (AD) 201

[2] *Gursharan Singh v. New Delhi Municipal Corp.*, AIR 1996 SC 1175; *Bihar v. Kameswar Prasad*, AIR 2000 SC 2306; *Secy. Jaipur Dev. Authority v. Daulat*, (1997) 1 SCC 35; *Haryana v. Ram Kumar*, (1997) 2 SCC 321; see *Bangladesh NCTB v. Shamsuddin*, 48 DLR (AD) 184, 189 (... there cannot be any right, much less any fundamental right, which will inspire a violation of the law. See Para 2.177A for comments on this decision)

and generalised equality by the doctrine of reasonable classification."[1] Art.27 does not guarantee absolute equality requiring the law to treat all persons alike.[2] The principle of equality does not mean equality of operation of legislation upon all citizens of the State.[3] All persons are not alike and nothing can be a greater inequality than to treat unequals as equals.[4] The principle of equality does not require universal application of laws for all persons. By nature, attainment or circumstances all persons are not in the same position and the varying needs of different classes of persons often require different treatment.[5] The very purpose of legislation is to draw the line in such a way that different people are treated differently.[6] The right to equality stated in simple terms means that persons under like circumstances and conditions should be treated alike both in the conferment of privileges and in the imposition of liabilities.[7] The principle requires that no person or class of persons shall

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[1] *Quaker City Cab Co. v. Pennsylvania*, 277 US 389, 406

[2] *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30; *Tigner . Texas*, 310 US 141

[3] *Jibendra Kishore v. East Pakistan*, 9 DLR (SC) 21,41; *S.A. Sabur v. Returning Officer*,41 DLR (AD) 30

[4] *Dennis v. U.S.*, 339 US 162; *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30; *Direct Recruit Class II Engineering Officers Association v. Maharashtra*, AIR 1990 SC 1607; *All India Sainik School Association v. Sainik School Society*, AIR 1989 SC 88, Para 11

[5] *Bombay v. Balsara*, AIR 1951 SC 318

[6] *Trimble v. Gordon*, 430 US 762,779

[7] *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30 (disqualification in respect of elective office); *Bangladesh v. A.K. Al-Mamun*, 1997 BLD (AD) 77 (reinstatement of dismissed police personnel on recommendation of review Committee); *Secretary, Ministry of Establishment v. Md. Jahangir Hossain*, 51 DLR (AD) 148 (appointment of some and refusal to appoint others from out of the list of Mujibnagar employees prepared by the government is discriminatory); *Director General NSI v. Sultan Ahmed*, 1 BLC (AD) 71; *Jibendra Kishore v. East Pakistan*, 9 DLR (SC) 21 (acquisition of rent-receiving interest); *Harford Steam Boiler Inspection and Ins. co. v. Harrison*, 301 US 459; *Ramana Shetty v. International Airport Authority*, AIR 1979 SC 1628 (award of contract to a tenderer who did not fulfil tender qualification); *M.P. v. Nandalal*, AIR 1987 SC 251; *Kamala Gaind v. Punjab*, 1990 Supp SCC 800 (Under the scheme of providing job to one member of the families of public officers killed by terrorists, offering class I post to one and class II post to another, though similarly situated, is discriminatory); *Secy. Aircraft Engrs. of Bangladesh v. Registrar of Trade Union*, 45 DLR (AD) 122 (when two provisions of law operate in dissimilar situations, no question of violation of the equality clause can arise); *Bangladesh Retired Government Employees Welfare Association v. Bangladesh*, 51 DLR (AD) 121 (pensioners retiring on different dates do not form a homogenous class to claim equal treatment in the

or class of persons shall be denied the same protection of laws which is enjoyed by other persons or other class of persons in like circumstances in their lives, liberty and property and pursuit of happiness.[1] When a provision of law is made applicable to all persons forming a class, it does not violate equality clause.[2] In the application of the principle it has always been recognised that classification of persons or things is in no way repugnant to the equality doctrine, provided the classification is not arbitrary or capricious, but is reasonable and bears a fair and substantial relation to the object of the legislation.[3] The question then is when is a classification made by Parliament reasonable so as to pass the test of constitutionality.

2.27 *Reasonable classification* : Reasonableness of a classification has to be decided with reference to the realities of life and not in the abstract. It is the substance and not the form alone which must be seen.[4] A classification will be reasonable if it is based upon material and substantial difference having a reasonable relation between the objects or persons dealt with and the governmental objective sought to be achieved by the legislation in question.[5] In other words, the classification, to be valid, must rationally further the purpose for which the law is enacted.[6] To pass the test of constitutionality, the classification made in the legislation must satisfy two conditions - (i) the classification must be logically correct, i.e. must be founded upon some intelligible *differentia* which distinguish the persons or things grouped together from others left out of the group, and (ii) the *differentia* must have a rational relation or nexus to the object sought to be achieved by the statute in question.[7]

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matter of payment of pension); *United Bank Ltd. v. Meenakshi*, AIR 1998 SC 789

[1] *Jibendra Kishore v. East Pakistan*, 9 DLR (SC) 21; *Bangladesh Krishi Bank v. Meghna Enterprises*, 50 DLR (AD) 194 (all defaulting borrowers having been equally treated in respect of appeal, review and revision, there is no violation of equality clause); *Secretary, Ministry of Establishment v. Md. Jahangir Hossain*, 51 DLR (AD) 148

[2] *Bangladesh Krishi Bank v. Meghna Enterprises*, 50 DLR (AD) 196 (S.10A of PDR Act, held valid)

[3] Ibid; *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30; *Afsar Ali v. Bangladesh*, 43 DLR 593

[4] *Kerala Hotel & Restaurant Association v. Kerala*, AIR 1990 SC 913

[5] *Trimble v. Gordon*, 430 US 762; *Carington v. Rash*, 380 US 89

[6] *Massachusetts Board of Retirement v. Murgia*, 427 US 307

[7] *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30; *Retd. Govt. Employees Assn. v. Bangladesh*, 46 DLR 426 *Jibendra Kishore v. East Pakistan*, 9 DLR (SC) 21; *Ohio*

2.28 A classification will not be logically correct if the persons or things are grouped together in such a way that some of the persons or things grouped together may also fall within the group left out. To meet the test of constitutionality, it must include or embrace in a class all persons or things who or which naturally belong to the class.[1] The persons or things grouped together in one class must possess a common characteristic which distinguishes them from those excluded from the group.[2] But perfection in making the necessary classification is neither possible nor necessary[3] and equality clause does not insist on scientific perfection or mathematical exactitude.[4] "Classification is not to be condemned because there may be occasional instances in which it does not fit the situation; it is proper if the great mass of situations to which the law applies justifies the formation of a class and application of some special or different legislative provisions to that class."[5] "The legislature as well as the executive government, while dealing with diverse problems arising out of an infinite variety of human relations must of necessity, have the power of selection or classification of persons and things upon which such laws are to operate."[6] In a classification for governmental purposes one cannot ask for exact exclusion or inclusion of persons or things and it is often impossible for the legislature to foresee and provide for every imaginable and exceptional case and a law cannot be struck down for not providing for such imaginable and exceptional cases.[7]

2.29 It must then be seen whether the *differentia* by which the classification has been made have any reasonable relationship with the object for which the law is made, or, in other words, it has to be seen if the classification subserves the purpose of the legislation. Where a law

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Bureau of Employment service v. Hodory, 431 US 471; *County Board of Arlington v. Richards*, 434 US 5; *Ram Krisna Dalmia v. Justice Tendulker*, AIR 1958 SC 538; *Akramuzzaman v. Bangladesh*, 52 DLR 209

[1] *Mutual Loan co. v. Martell*, 222 US 225

[2] *Shashikant v. India*, (1990) 4 SCC 366; *Anwar Karim v. Bangladesh Bank*, 52 DLR 1 (defaulting borrowers themselves form a separate and distinct class and legislature can make stringent law against them)

[3] *Massachusetts Board of Retirement v. Murgia*, 427 US 307

[4] *Dandridge v. Williams*, 397 US 471; *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30, 35; *Kedar Nath v. W.B.*, AIR 1953 SC 404

[5] *Peterson v. Widule*, 157 Wis 641

[6] *Karnataka v. Suvana Malini*, AIR 2001 SC 606

[7] *Ozan Lumber Co. v. Union Country Nat Bank*, 207 US 251

made provisions for dissolution of several companies owning printing establishments and taking over their assets and undertakings leaving other similar printing establishments untouched and the classification was not shown to subserve any legitimate governmental objective, the classification was unreasonable and the law was held discriminatory.[1] In order to determine reasonableness of a classification it is necessary to discern the purpose or object of the impugned enactment. The validity of a classification depends on the existence of a rational nexus of the *differentia* of classification with the object sought to be achieved by the enactment.[2] Here the difference between the *differentia* and the object of the legislation must be kept in view and the object of the legislation cannot by itself be the basis of the classification.[3] Parliament passes a law to attain certain objectives and makes a selection of persons or things to whom or which to apply the law. The yardsticks used for the selection are the *differentia* which separate persons or things included within the purview of the law from the persons or things excluded from the operation of the law. In demonstrating the difference between reasonable and arbitrary classification it was observed -

> Upon what differences or resemblances it may be exercised depends necessarily upon the object in view, may be narrow or wide according to that object. Red things may be associated by reason of their redness, with disregard to all other resemblances or distinctions. Such classification would be logically appropriate. Apply it further: make a rule of conduct depend upon it and distinguish in legislation between red-haired men and black-haired men, and the classification would immediately be seen to be wrong; it would have only arbitrary relation to the purpose and province of legislation.[4]

Thus a statute prohibiting diabetics from acting as trade union officials will be a law based on arbitrary classification. Here the disease is the *differentium* on the basis of which persons are classified as diabetic and non-diabetic. Even though classification of diabetics is perfectly logical in the abstract and may be valid in health related legislation, the *differentium* has no rational connection with the purpose any trade union

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[1] *Hamidul Huq Chowdhury v. Bangladesh*, 34 DLR 190
[2] *Shashikant v. India*, (1990) 4 SCC 366
[3] *W.B. v. Anwar Ali Sarker*, AIR 1952 SC 75; *Ram Krisna Dalmia v. Justice Tendulker*, AIR 1958 SC 538
[4] *Tanner v. Little*, 240 US 369, 382

related law can be expected to serve.[1] Similarly, when of the two similarly situated surplus government servants, one is differently treated from the other in the matter of counting past services for fixation of seniority after absorption on the basis of a fortuitous fact that one got the nomination for absorption while in service and the other got it after the post was abolished, the equality clause is violated.[2] But in a prohibition law which relaxed the rule of prohibition in warships, troopships and military and naval messes and canteen, the classification treating the military personnel differently was found to be reasonable and not arbitrary having regard to the nature of the duty and the service condition of the military personnel and the requirement of keeping up their morale.[3] Barring a thrice-elected member of the managing committee of a co-operative society from standing in the election for the next two years does not violate the equality clause as it subserves the purpose of infusing new blood in the committee.[4] Restrictions put on the sponsors and directors of banks and financial institutions and the members of their families in becoming sponsors, directors or chief executive of any insurance company do not violate art.27 as it subserve the objective of preventing monopoly in the control of money market.[5] The classification of banks, insurance companies and other financial institutions for putting embargo on nomination of director on the Board of a financial institution has been found to be reasonable.[6] For the purpose of recovery of bank loans treating defaulting borrowers as a distinct class to apply stringent legal provisions against them is not violative of equality clause. Default in repayment of loans extended by banks and financial institutions being rampant, classification of the borrowers of banks and financial institutions from the rest is reasonable as it subserves the purpose of fighting the default culture in repayment of loans of banks and financial institution.[7] When pension rules were liberalised allowing pensioners retiring after a specified date an increased pension, the classification between pensioners retiring before the specified date and pensioners retiring after that date was held by the

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[1] *Air-way Electric Appliance Corp v. Day*, 266 US 71, 85
[2] *Director General, NSI v. Sultan Ahmed*, 1 BLC (AD) 71
[3] *Bombay v. Balsara*, AIR 1951 SC 318
[4] *Abdus Sattar v. Bangladesh*, 45 DLR (AD) 65
[5] *Nasreen Fatema v. Bangladesh*, 49 DLR 542 (affirmed in 3 BLC (AD) 190)
[6] *City Bank Ltd. v. Bangladesh Bank*, 51 DLR (AD) 262
[7] *Chandpur Jute Suppliers v. Artha Rin Adalat*, 2 BLC 49; *Anwar Karim v. Bangladesh Bank*, 52 DLR 1

High Court Division to be arbitrary and unreasonable as the purpose of the revision of pension rules was to enable the pensioners to cope with the increased cost of living with which the date of retirement has no rational connection and pensioners retiring before and after the specified date are equally hit by the rise in the cost of living.[1] On appeal, the Appellate Division did not differ with the High Court Division on the question of nexus between the object and the classification, but reversed the decision on the ground that the pensioners retiring on different dates and receiving different pensions did not form a homogenous class of similarly situated persons and as such they cannot claim the same treatment for all the pensioners irrespective of the date of retirement.[2] The Appellate Division further held that for the purpose of calculation of pension on the basis of last pay drawn is a real and rational classification. The Appellate Division observed that morally it is desirable to treat them at par at least for the purpose of calculation of pension on the basis of emoluments which they were receiving immediately before retirement, but for the court to say so would amount to legislation.

2.29A In this case[3] it has been observed by the Appellate Division that a legislative enactment or a government action cannot be knocked down as unconstitutional even if it results in inequity or is even shocking to the conscience unless such enactment or such action is violative of any provision of the Constitution or law and that inequity or unconscionable effect cannot be rectified by the court by applying art.27. It is submitted that the proposition is open to exception. If a differential treatment satisfies the twin test of logical classification and reasonableness, it cannot be shocking to conscience. If any legal provision or action is shocking to conscience, it will often, if not always, be arbitrary and it will fail to pass the test of reasonable classification. It is said that pensioners retiring on different dates do not form a homogenous class of similarly situated persons. There will always be difference between a man and another man or a pensioner and another pensioner, but the question is whether such difference has any relevance in search of nexus between the object of the legislation and the classification made.[4] The object of the pension rules is to save the retired

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[1] *Bangladesh Retd. Govt. Employees Welfare Assn. v. Bangladesh*, 46 DLR 426 relying on *D.S. Nakara v. India*, AIR 1983 SC 130;

[2] *Bangladesh Retd. Govt. Employees Welfare Assn v. Bangladesh*, 51 DLR (AD) 121

[3] Ibid

[4] See *Air-way Electric Appliance Corp v. Day*, 266 US 71

employees from penury and inflation affecting all pensioners equally, it must be said that the pensioners retiring on different dates are similarly situated in the matter of cost of living. Having regard to this, the Indian Supreme Court held, "If the person retiring is eligible for pension at the time of his retirement and if he survives till the time by subsequent amendment of the relevant pension scheme, he would become eligible to get enhanced pension or would become eligible to get more pension as per the new formula of computation of pension subsequently brought into force .... In such a situation the additional benefit available to the same class of pensioners cannot be denied to him on the ground that he retired prior to the date on which the aforesaid additional benefit was conferred on all the members of the same class of pensioners ...".[1]

2.30 *Completeness:* The equality clause does not require that a law should cover the entire field of proper legislation and it is not unconstitutional merely because it is not all-embracing and does not include all the evils within its reach.[2] The legislature is free to recognise the degrees of harm and may confine its restriction to those cases where the need is deemed to be the clearest.[3] It may even regulate only the aggravated form of a mischief.[4] The legislature may take one step at a time, addressing itself to the phase of the problem which seems most acute to the legislative mind. It may select one phase of one field and apply a remedy there neglecting the others.[5] It may choose to introduce a reform gradually by applying the law, in the first instance, to some institutions or objects or areas according to the exigency of the situation.[6] The equal protection clause does not require that the

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[1] *Kasturi v. M.D. State Bank of India*, AIR 1999 SC 81, 95-96; *Marwaha v. India*, (1987) 4 SCC 31

[2] *Zucht v. King*, 260 US 174; *Hughes v. Superior Court of California*, 339 US 460

[3] *Skinner v. Oklahoma*, 316 US 535; *Ram Krisna Dalmia v. Justice Tendulker*, AIR 1958 SC 538; *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30 (disqualifying a person defaulting in repayment of loan taken from bank from holding elective office in local government but not from being elected as member of Parliament); *Nasreen Fatema v. Bangladesh*, 49 DLR 542 (see para 2.29); *Reference on Kerala Education Bill*, AIR 1958 SC 956 (provision for earmarking certain areas as 'compulsion areas', in introducing compulsory education, is not discriminatory even though such classification may affect certain educational institutions in such compulsion areas without affecting similar institutions in non-compulsion areas)

[4] *Sakhwant v. Orissa*, AIR 1955 SC 166

[5] *Williamson v. Lee Optical Co.*, 348 US 483, 489; *Geduldig v. Aiello*, 417 US 484, 495

[6] *L.N. Mishra Institute v. Bihar*, AIR 1988 SC 1136

legislature must choose between attacking every aspect of the problem or not attacking at all.[1] A statute is not invalid merely because it might have gone further than it did.[2]

2.31 *Classification of single person* : Picking up a single person for differential treatment is not necessarily discriminatory and will be constitutional if it can be shown that such a single person forms a class by himself because of traits peculiar to him which distinguish him from the rest. A large cotton textile mill of a company employing a large number of labourers was closed down due to mismanagement. Parliament made a law authorising the government to appoint its own directors to take over the management and control of the company and its assets. A shareholder of the company challenged the law as discriminatory on the ground that the company had been singled out for discriminatory treatment. The mismanagement of the company's affairs prejudicially affected the production of an essential commodity and led to serious unemployment among a section of the community. The court held that the facts with regard to the company were of extraordinary character and Parliament was justified in treating the company as a class by itself.[3] A special law for a particular temple which held unique position amongst the Hindu temples was also found valid.[4] Special provisions can be made for each of the Universities of the country as each University forms a separate class by itself.[5] When special procedure in respect of the rights of the victims of the Bhopal gas disaster was provided by law, it was found to be non-discriminatory inasmuch as the enormity of the disaster and other factors rendered those victims a class by themselves.[6] But the equality clause was held violated where the petitioner's companies were singled out for adverse treatment leaving many others of the same class and standing on the same footing and no rationale can be found for the classification.[7] A law made to put an end to protracted litigation which arose on the death of a rich landowner allowing claims of some and rejecting the claims of others was found unconstitutional. Protracted litigation between rival claimants to the property of an individual is not an unusual or exceptional circumstance

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[1] *Dandridge v. Williams*, 397 US 471, 486-487
[2] *Roschen v. Ward*, 279 US 337, 339
[3] *Chiranjit Lal v. India*, AIR 1951 SC 41
[4] *Bira Kishore Deb v. Orissa*, AIR 1964 SC 1501
[5] *Azeez Basha v. India*, AIR 1968 SC 662
[6] *Charan Lal Sahu v. India*, AIR 1990 1480; *Mittal v. India*, AIR 1983 SC 1, 40.
[7] *Hamidul Huq Chowdhury v. Bangladesh*, 34 DLR 190

so as to render a particular case a class by itself justifying the legislature to differentiate it from the rest of the cases.[1]

2.32 ***Presumption of constitutionality*** : Classification is essentially a function of Parliament being inextricably connected with enactment of laws and from this stems the presumption of constitutionality of statutes.[2] There is always a presumption of constitutionality of a legislative classification and the burden is upon him who attacks it to show that there has been a clear transgression of the constitutional principles.[3] If an Act of Parliament would be validated only in the event certain circumstances exist, it will be presumed that all such circumstances do exist.[4] Where the classification embodied in a legislation is under challenge, if any state of facts can be reasonably conceived that would sustain it, the existence of such a state of facts must be assumed.[5] It must be presumed that the legislature understands and correctly appreciates the need of its people, that its laws are directed to problems made manifest by experience and that its discriminations are based on adequate grounds.[6] In order to sustain the presumption of constitutionality "the court may take into consideration matters of common knowledge, matters of common report, the history of the times and may assume every state of facts which can be conceived existing at the time of legislation".[7] No objection can be taken to the judges taking notice of the facts and circumstances prevailing in the society.[8] One who attacks a statute as being violative of the equality clause carries the burden of clearly establishing the invalidity of the statute and a claim of violation of the equality clause cannot be upheld on mere speculation or conjecture.[9] A person challenging the validity of a law must come out with a pleading clearly demonstrating that the differentia of the

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[1] *Ameerunnessa v. Mahboob Begum*, AIR 1953 SC 91; see also *Ram Prasad Sahi v. Bihar*, AIR 1953 SC 215

[2] *Kathi Raning Rawat v. Saurashtra*, AIR 1952 SC 123

[3] *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30; *Ram Krisna Dalmia v. Justice Tendulker*, AIR 1958 SC 538; *Prabhu Das v. India*, AIR 1966 SC 1044

[4] *Alabama State Federation of Labour v. McAdory*, 325 US 450

[5] *New York Rapid Transit Corporation v. New York*, 303 US 573; *Wampler v. Lecompte*, 282 US 172

[6] *Ward & Gow v. Krinsky*, 259 US 503; *Ram Krisna Dalmia v. Justice Tendulker*, AIR 1958 SC 538; *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30

[7] *Ram Krisna Dalmia v. Justice Tendulker*, AIR 1958 SC 538

[8] *Nasreen Fatema v. Bangladesh*, 49 DLR 542 (affirmed in 3 BLC (AD) 190)

[9] *Hodge Drive-It-Yourself Co. v. Cincinnati*, 284 US 335

classification contained in the law have no reasonable nexus with any legitimate governmental objective and must adduce evidence in support of the pleading.

2.33 Even though a law enacted by the legislature is entitled to great regard in respect of validity, a still greater deference has to be accorded to the constitutional mandate and the presumption of validity cannot prevail where no reason whatever is discoverable for an attempted discrimination.[1] If there is nothing on the face of the law or the surrounding circumstances brought to the notice of the court on which the classification may reasonably be regarded to be based, the presumption of constitutionality cannot be carried to the extent of always holding that there must be some undisclosed and unknown reasons for subjecting certain individuals or corporations to hostile and discriminatory legislation[2], for to carry the presumption to that extent is to make the protection of the equality clause a mere rope of sand.[3] Once a person challenging a law succeeds in showing discrimination by the law, it becomes obligatory for the persons vouching the validity to come out with facts showing that the classification is logically correct and is reasonable in the sense that it subserves a legitimate governmental objective. The presumption of constitutionality is of no avail when a law is discriminatory on the face of it and it is clear that the legislature made no attempt to make any classification at all[4] or that there is no reasonable nexus between the differentia of the classification and the governmental objective sought to be achieved. Besides, "there may conceivably be cases where having regard to the nature and character of legislation, the importance of the right affected and the gravity of the injury caused by it and the moral and social issues involved in the determination, the court may refuse to proceed on the basis of the presumption of constitutionality and demand from the State, justification of the legislation with a view to establishing that it is not arbitrary or discriminatory."[5]

2.34 In *Bangladesh v. Azizur Rahman*[6] the petitioners of several writ petitions challenged the Bangladesh Ad-hoc Appointees (Counting and

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[1] 16A Am Juris 2d, Const. Law, Para 749
[2] *Ram Krisna Dalmia v. Justice Tendulker*, AIR 1958 SC 538
[3] *Gulf Colorado Company v. Ellis*, 165 US 150
[4] *Garg v. India*, AIR 1981 SC 2138
[5] *Bachan Singh v. Punjab*, AIR 1982 SC 1325, 1352
[6] 46 DLR (AD) 19

Determination of Seniority) Rules, 1990 as being discriminatory. The general rule for counting seniority is that a person in the service of the Republic counts his seniority from the date of regular appointment on the recommendation of the Public Service Commission and in case of several appointments made on the same date, in order of merit assigned by the Public Service Commission. The impugned Rules made a change providing that persons getting ad-hoc appointment between 9.4.1972 and 12.5.1983 and thereafter obtaining regular appointment on the recommendation of the Public Service Commission would count their seniority from the date of their ad-hoc appointment. Clearly a different rule has been prescribed for that particular period and it is discriminatory unless the government can justify the classification between the appointees within that particular period and the appointees outside that period. The government came up with a justification stating that during the stipulated period large number of ad-hoc appointments had to be made, but as the Public Service Commission could not function properly, these ad-hoc appointees could not be regularised promptly for no fault of the appointees and injustice was being caused to them in excluding the period of their ad-hoc service. If this was factually correct, the impugned rules can be said to have made a reasonable classification to attain the objective of removing an injustice. But the writ petitioners contended that in their services except for one ad-hoc appointee, all other appointees had the chance to apply to the Public Service Commission for regular appointment within months of their ad-hoc appointment so that there was no question of any injustice done to them. Hardship of the ad-hoc appointees, if any, flowed not from want of opportunity to appear before the Public Service Commission, but from their failure to do well in the examination held by the Public Service Commission. The documents produced indeed showed the correctness of the contention. The governmental objective of doing justice for which the classification has been alleged to have been made was non-existent. The Appellate Division noted the object of the classification, but observed -

> Mr. Ahmed ... tried to show that the grounds on which the impugned classification was made may be present in the other Cadres but they are not present in the Cadres to which the writ petitioners belong. He has argued that the chance for appearing before the PSC was there for all the ad-hoc appointee-respondents but they did not avail of it. But want of chance for getting regularisation was not the only ground for making

> the impugned classification as has been elaborately discussed above. The main ground for the classification is to do justice to a large number of ad-hoc employees appointed during this period as a matter of policy as well as of necessity, by giving benefit of continuous ad-hoc service...[1]

It is submitted that the above does not answer the point raised. The reference to policy is not relevant as policy is not outside the purview of the equality clause. A discriminatory policy may be as void as a discriminatory law or action. The benefit of ad-hoc service is not given to any ad-hoc appointee outside the stipulated period and the ground for according this benefit to the appointees of the stipulated period is that for a long period of time they had no chance of appearing before the Public Service Commission. Hence if the appointees of the particular period had no "want of chance for getting regularisation" there cannot be any question of "doing justice to a large number of ad-hoc employees" which, according to the Appellate Division, is the main ground for the classification. The writ petitioners filed review applications[2] on various grounds, one of which was that the court did not examine whether the object of the classification at all existed. The court rejected the review applications.[3] It is submitted that the presumption of constitutionality of law cannot be carried to the extent of refraining from examining whether the object proffered by the government is at all real, otherwise the protection of art.27 will be a mere rope of sand as the government can always plead an object for a classification when it is not required to show that the object is real and in existence.

2.35 ***Bases of classification:*** Classification can be made on different bases, but it is not possible to fully describe the different bases of classification. Whatever be the base of classification, it must have a rational relationship with the object of the law which prescribes the differential treatment of persons, things, occupations, business or property. Some of the important bases of classification which were the subject of judicial scrutiny from the point of view of equal protection of law are described below.

2.36 *Size, amount, quantity or number:* Size, amount, quantity or number may be properly used as a basis for classification for different

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[1] Ibid, p.33
[2] C.R.P. No.26-32 of 1993
[3] See Para 5.210

treatment for the large or the small since the legislature is competent to determine that control of the smaller manifestations of a particular evil would not appreciably remove the evil whereas the regulation of large manifestations would.[1] Where size is an index to the evil at which the law is directed, discrimination between the large and the small is permissible.[2] For public benefit the legislature may grant some privilege to smaller undertakings which is denied to larger undertakings.[3] The legislature may prescribe different treatment on the basis of largeness or smallness in respect of immovable property[4], earnings[5], rental value[6] volume of sale or export[7], loans[8], population[1] or taxes[2]. Criminal

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[1] 16A Am Juris 2d, Const. Law, Para 761

[2] *Morey v. Doud*, 354 US 457 overruled in *New Orleans v. Dukes*, 427 US 297, on the ground that in invalidating the law *Morey* constituted a "needlessly intrusive judicial infringement on the State's legislative powers")

[3] *Harnam Singh v. R.T.A. Calcutta*, AIR 1954 SC 190 (statutory order prescribing cheaper tariff for small taxis is not discriminatory against owners of large taxies. Where "in the interests and for the benefit of a section of the public small taxis have been introduced and cheaper rates have been fixed having regard to the size, horsepower and expenses of running such cars, there is nothing unreasonable in this classification ...")

[4] *Summerville v. Pressley*, 33 SC 56 (a statute permitting the owner of a small parcel of ground to cultivate a larger proportion of his ground than the owner of larger tract where same maximum limit is fixed for all)

[5] *Hunter v. New York*, 396 NY 2d 186 (law requiring financial disclosure by city employees earning a salary of $25,000 or more)

[6] *Darshanlal v. India*, AIR 1992 SC 1848 (imposition of different rates of theatre tax on the basis of rental value of cinema houses)

[7] *Clerk v. Titusville*, 184 US 329 (law requiring payment of tax at different rates depending on the amount of sales); *P.V. Shivarajan v. India*, AIR 1959 SC 556 (different treatment between exporters who had exported a particular quantity of goods during a stated period and the exporters who had not, for the purpose of export registration and licence is not unconstitutional as the classification is reasonably related to the object of stopping malpractices in, and loss of reputation of, the export trade in coir); *India v. Hindustan Development Corp.*, AIR 1994 SC 988 (Railway's decision to enter into contracts for purchase of steel wagons paying higher price to small manufacturers and lower price to big manufacturers is not discriminatory as the railway pleaded that the cost of production of small manufacturers is higher and adoption of uniform low rate would render their business non-viable and dual pricing procedure was adopted to save small manufacturers from extinction and thereby to further the governmental policy of prevention of monopoly and concentration of wealth and economic power.)

[8] *Mutual Loan Co. v. Martell*, 200 Mass 482 (law forbidding assignment of wages to secure small loans unless accepted by the employer or consented to by the wife of the employee, but permitting such assignment without restriction to secure larger loans is

offences may also be classified into grades for different punishment according to the distinction of amount involved.[3] But the law cannot differentiate between the large and the small where size or quantity is not an index to the problem dealt with.[4] Although the mere factor of number cannot be a reasonable basis for classification and discrimination based solely upon numbers is invalid[5], a classification based on number is not necessarily unconstitutional and may be found valid if it has a rational relationship with the object of the legislation.[6] Classifications in various regulations of occupations on the basis of the number of persons employed are valid when such basis is not arbitrary or unreasonable.[7]

2.37 *Exemption of minima:* Classification made in a statute on the basis of value and amount for grant of exemptions is valid and constitutional. The courts have upheld statues exempting from execution and attachment the books and library of professional men, the surgical instruments of physicians or the household furniture and other articles of ordinary debtors.[8]

2.38 *Time:* Time may form a basis for valid classification and the equality clause is not violated simply by application of a law from a certain date and thereby discriminating between the right of an earlier

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not unconstitutional)

[1] *Ditty v. Hampton*, 490 SW 2d 772 (law requiring that in large cities, but not in small ones, police judges must be lawyer or trained in law is not violative of equality clause)

[2] *Commonwealth v. Hazel*, 155 Ky 30 (imposition of licence tax on persons who purchase at a tax sale to specific amount without taxing those who purchase at a less amount s not invalid); *Orient Weaving Mills v. India*, AIR 1963 SC 98 (exempting goods produced by small power-loom weavers from excise duty); *Indian Express Newspapers v. India*, AIR 1986 SC 515 (classification of newspapers into small, medium and big on the basis of circulation for levying customs duty on newsprint).

[3] *Allen v. Smith*, 84 Ohio St. 283

[4] *Engel v. O'Malley*, 219 US 128

[5] *Douglas v. South Georgia Grocery Co.*, 180 Ga 519

[6] *Fox v. Standard Oil Co.*, 294 US 79 (chain stores may be classified separately from individual establishments and may be subjected to tax or fees graduated according to the number of units contained therein)

[7] *Middleton v. Texas Power & Light Co.*, 249 US 152; *Goodman v. Kennedy*, 459 Pa 313 (a statute prohibiting Sunday sale of fresh meat, but exempting stores with less than 10 employees is valid)

[8] *Denny v. Bennett*, 128 US 489; *Lehnhausen v. Lake Shore Auto Parts Co.*, 410 US 356 (law exempting individuals from ad valorem property tax payable by companies is not unconstitutional)

time and later time.[1] Persons appointed before and after a particular date may be differently treated in respect of their appointment, dismissal etc. when they form a separable class in relation to the object of the law and there is a rational basis for the selection of the date.[2] The choice of a date as a basis for classification cannot always be dubbed as arbitrary even if no particular reason is forthcoming for the choice unless it is shown to be capricious or whimsical in the circumstances, while fixing a line, a point is necessary and there is no mathematical or logical way of fixing it.[3] Classification between *ad hoc* appointees who qualified in the first available examination for regularisation and other *ad hoc* appointees who did not has a reasonable basis for giving benefit of the service as *ad hoc* appointee in counting seniority.[4] But for the purpose of determining inter se seniority, classification of employees selected for appointment at the same time pursuant to the same advertisement on the basis of the time of completion of training in different batches was found invalid being arbitrary.[5] Classification of buildings for the purpose of fixation of standard rent on the basis of the date of construction is valid.[6] Statutes are often made effective from a particular date without applying it to previously established conditions and such statutes are found valid.[7] It is a matter exclusively for the legislature to decide from what date a civil law should be made operative and the law cannot be challenged as discriminatory for not affecting prior transactions or pending proceedings if it applies equally to all persons coming within its ambit from the date on which it becomes operative.[8] But in extinguishing or modifying the rights of a natural class of persons, the legislature cannot

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[1] *Califano v. Webster*, 430 US 313

[2] *Jagadish Pandey v. Chancellor, University of Bihar*, AIR 1968 SC 353; *Udayasankaran v. India*, AIR 1996 SC 1901

[3] *India v. Valliappan*, AIR 1999 SC 2526

[4] *Mohiuddin Ahmed v. Bangladesh*, 49 DLR 353

[5] *Aminul Haq v. Rafiqul Hassan*, 1996 BLD (AD) 174

[6] *Roshan Lal v. Ishwar Dass*, AIR 1962 SC 646 (the criteria for the fixation of standard rent of both new and old buildings are not substantially different; the minor differences that exist in the matter, can be justified on grounds of (a) difference in the cost of construction of old and new buildings, (b) difference in the rate of return on investments made in building houses before and after 1947, (c) the need to encourage the building of houses to meet the acute shortage of accommodation; *M/S Punjab Tin Supply Co. v. Central Government*, AIR 1984 SC 87

[7] *Williams v. Walsh*, 222 US 415; *Ramjilal v. I.T. Officer*, AIR 1951 SC 97

[8] *Inder Singh v. Rajasthan*, AIR 1957 SC 510; *Hathising Manufacturing Co. v. India*, AIR 1960 SC 923; *Jain Brothers v. India*, AIR 1970 SC 778

select an arbitrary date having no rational relation with the necessity for such extinction or modification so as to split the class into two having different rights and liabilities without any reasonable grounds for such differential treatment.[1] A classification attempting to give an economic advantage to those engaged in a business at an arbitrary date as against all those who enter the industry after that date is invalid as not being a regulation of business in the public interest unless it is shown to effect a public welfare in a manner which creates some reasonable basis for the classification.[2] Statutes which enact conditions and qualifications for professions without applying it to those persons previously engaged therein are not unconstitutional as such statutes proceed on the theory that those who have acceptably followed the profession in the community for a period of years may be assumed to have the qualifications which others are required to manifest on examination.[3] A law prohibiting sale of foodstuff on pushcarts in certain areas of a city, but exempting the vendors who have operated continually in the same locality for 8 years prior to the effective date of the law is not violative of the equality clause on the ground that it accorded discriminatory treatment to vendors who operated for less than 8 years.[4] Classification on the basis of number of years of service for compulsory retirement of public servants has been found valid.[5] But classification on the basis of time will be unconstitutional if it has no rational relationship with the object of the legislation.[6] When the object of pension rules is to permit

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[1] *Jalan Trading Co. v. Mill Mazdoor Sabha*, AIR 1967 SC 691

[2] *Mayflower Farms Inc. v. P.G. Ten Eyck*, 297 US 266; *Pabst Corporation v. Milwaukee*, 190 Wis 349 (a classification of public utilities, for the purpose of regulation, into those in existence before and those created after a specified date is purely arbitrary, without reason and invalid)

[3] *Watson v. Maryland*, 218 US 173

[4] *New Orleans v. Dukes*, 427 US 297; *M.B. Cotton Association Ltd. v. India*, AIR 1954 SC 634 ('hedging' in cotton trading, like insurance and banking, requires experience and a statutory order exempting an Association dealing in such trading for 20 years or more from the prohibition in respect of 'hedging' in cotton trading does not violate the equality clause)

[5] *Shivacharana v. Mysore*, AIR 1965 SC 280

[6] *Jaila Singh v. Rajasthan*, AIR 1975 SC 1436 (in allotting land to landless, the classification made between pre-1955 and post-1955 tenants for differential treatment in respect of the quantum of land and price to be paid is unconstitutional; plea that lesser quantum was allotted to post-1955 tenants because of pressure for the land is untenable as the difference in the period of occupation between pre-1955 and post-1955 tenants could not be of such an extent as to justify allotment of larger extent of land to

retired public servants live free from penury, different rates of pension for persons retiring on different dates is discriminatory as the time of retirement has no rational connection with the object of the pension rules, increase in the cost of living hitting all pensioners alike.[1]

2.39 *Personal traits, attributes and characteristics:* Classification is often made upon the traits, attributes or characteristics of persons sought to be dealt with by a particular legislation. When such traits, attributes or characteristics have rational relationship with the object of the law, such classification is held to be valid. A classification is unreasonable which is based on such mere physical characteristics as height, weight, complexion, mentality or other personal attributes which pertain solely to the particular person and not to any relation that person may bear to others in human conduct and activity.[2] Personal qualifications on which classification is sought to be made are many and include race, caste, religion, colour, sex, place of birth, age, marital or family status, fitness, literacy. alienage, military service, labour union membership, residence, property ownership and wealth and poverty. Classification has often been made on the basis of personal characteristics such as insanity[3] or

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the pre-1955 tenants than to the post-1955 tenants and the differentiation of price); *Probhakar v. A.P.*, AIR 1986 SC 210 (age of retirement was reduced from 58 to 55 years, but immediately thereafter it was realised that the reduction was a serious error and caused grave injustice and the old provision was restored. However, the benefit of restoration was not given to those who in the meanwhile retired on reaching the age of 55. The court found prospective operation of the amended provision arbitrary and discriminatory); *Ameerunnessa Begum v. Mahboob Begum*, AIR 1953 SC 91 (a law making a classification between disputes which have continued for a long time between rival claimants and disputes which have not so continued and thereby singling out two groups of persons and preventing them from establishing their rights in court under their personal law is arbitrary); *Ram Lubhaya Kapur v. India*, AIR 1973 P&H 297 (Government's decision to allocate imported shoddy wool only to industries established prior to 1959 is unconstitutional inasmuch as the selection of the date is most arbitrary and extraneous to the purpose of importing raw material for the industry as a whole)

[1] *D.S. Nakara v. India*, AIR 1983 SC 130; *Bangladesh Retd. Govt. Employees Assn. v. Bangladesh*, 46 DLR 426 (reversed on appeal on the ground that all pensioners did not form a homogenous class and were not as such similarly situated - see 51 DLR (AD) 121); see, however, *Kasturi v. M.D., State Bank of India*, AIR 1999 SC 81

[2] 16A Am Juris 2d, Const. Law, Para 767

[3] Statutes providing for sexual sterilization of feeble-minded persons have been held not to deny equal protection of law, see *Buck v. Bell*, 274 US 200. But in *Jackson v. Indiana*, 406 US 715, it was held that state deprives an accused of equal protection of laws by committing him to state department of health, until he is certified sane, because

illegitimacy[1]. Benefit given to widows in respect of eviction of tenants is permissible as the widows *per se* form a class different from others.[2] Individuals cannot be accorded discriminatory treatment because of their social or political attitudes.[3] In case of committed felons a law denying the right to vote has been upheld.[4] A law making a classification between offenders and habitual offenders in imposing restriction on the right of free movement was upheld as being reasonable because of the purpose behind such restriction.[5] But in *Deodat Rai v. State*[6] the court found a further classification between a habitual criminal having acquired a bad reputation and a habitual criminal having not acquired a bad reputation to be discriminatory as having no rational relationship with the object of the law.

2.40 *Race, caste, religion, sex and place of birth:* Classification on the basis of race, caste, religion, sex or place of birth is generally suspect and will be found invalid unless it can be shown that it subserves a legitimate governmental objective.[7] In view of the provisions of art.28 of the Constitution, no differential treatment can be made only on the ground of race, caste, religion, sex or place of birth[8] except that the State is not prevented from making special provisions in favour of women or children or for the advancement of any backward section of the citizens.[9]

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he lacked comprehension sufficient to make his defence, while civilly committing persons as mentally ill only on showing of mental illness and showing that individual is in need of care, treatment, training or detention, and civilly committing persons as feeble-minded only when they are unable properly to care for themselves, and permitting release of persons committed as mentally ill or feeble-minded where the individual no longer requires custodial care or treatment or detention which occasions commitment, or when the department of mental health believes that release would be in his best interest)

[1] *Jiminez v. Weinberger*, 417 US 628 (a law discriminating an illegitimate child is invalid where classification is justified by no legitimate state interest, compelling or otherwise)

[2] *Malhotra v. Prakash Mehra*, AIR 1991 SC 99

[3] *Cipriano v. Houma*, 395 US 701

[4] *Richardson v. Ramirez*, 418 US 24

[5] *P. Arumugham v. Madras*, AIR 1953 Mad 664

[6] AIR 1951 All 718

[7] *Chittaranjan v. Secy. Judicial Department*, 17 DLR 451

[8] *Rabia Bashri Irene v. Banglaesh Biman*, 52 DLR 308 (Fixing retirement age of flight stewardess below the age of retirement of flight steward constitutes gender discrimination); *Dalia Parveen v. Bangladesh*, 48 DLR 132

[9] See Para 2.72 and 2.73

However, in view of differences in the matter of faith and religious practices the equality clause is not violated by the legislature providing for the constitution of Boards for the superintendence of Hindu and Jain religious endowments differently.[1] In *Khodeja Begum v. Sadeq Sarker*[2] a Single Bench of the High Court Division held that the law relating to restitution of conjugal rights is a violation of liberty, freedom, equality and social justice and is therefore void. Apart from expressing his opinion, the learned Judge did not advance any reason relevant in a decision on equality clause and did not at all discuss the issues involved in the matter, and the decision, and more than that, the manner of arriving at the conclusion, is open to exception.

2.41 *Age:* Classification on the basis of age is permissible provided it is not arbitrary or unreasonable. Thus a minimum and maximum age may be fixed as a qualification for public as well as private employment as also for voting rights.[3] The protection of the equality clause applies both to young and old and yet minors, requiring the protection of law, constitute a class apart and the legislature may make special provisions for them for their safety, health, morals and general welfare.[4] The legislature may classify persons by age for the purpose of determining punishment for crimes and such a classification will not be unconstitutional if it has reasonable relationship with the object of the law. A provision in law debarring persons above the age of 45 years from being enrolled as advocate may be discriminatory.[5]

2.42 *Marital or family status:* The right to marry is an important part of the liberty guaranteed by art.31 of the Constitution and unless there is any compelling State interest in making a classification on the basis of marital or family status, a law providing for differential treatment on the basis of marital or family status will be unconstitutional. In respect of employment rights and benefits, differential treatment based on marital

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[1] *Moti Das v. S.P. Sahi*, AIR 1959 SC 942

[2] 50 DLR 181; *Sharmin Hossain v. Mizanur Rahman*, 2 BLC 509

[3] *Massachusetts Board of Retirement v. Murgia*, 427 US (law providing for retirement at the age of 50 found valid); *Radha Charan v. Orissa*, AIR 1969 Orissa 237 (Rules prescribing age group for recruitment of District Judge from the Bar is a valid classification as indicative of sufficient maturity for the appointment)

[4] *Gopeswar Prasad v. Bihar*, AIR 1951 Pat 570 (law providing for different age of majority in case of persons whose property was under the management of Court of Wards is not discriminatory)

[5] *Indian Council of Legal Aid v. Bar Council*, AIR 1995 SC 691

or family status and policies and practices directed against married women, pregnant women and women with small children are violative of art.27.[1] But school and university regulations distinguishing between married and single students have been generally held constitutional.[2]

2.43 *Fitness:* Classification of persons may be made according to their personal fitness to carry on a particular business or vocation. This is characteristic of all licence laws and so far as they provide that all persons desiring to engage in a particular occupation shall be examined as to fitness or otherwise show that they possess proper qualifications, such laws are usually held valid.[3] But a statute which permits the members of a partnership or a company to pursue a particular calling without a licence provided any member of the partnership or the company has procured a licence is unconstitutional as it does not operate equally upon all of a class pursuing the calling under like circumstances.[4] Qualifications set down by law, in order to be valid, must have a rational relationship with the fitness required for the specific job, business or occupation.

2.44 *Wealth and poverty:* Generally speaking, mere presence of wealth or lack of it in an individual citizen cannot be the basis of a valid classification. Denying an indigent prisoner access to the courts to defend a civil suit, while free persons and prisoners possessing the means to hire counsel retain such access, constitutes *prima facie* a violation of the equality clause.[5] Similarly, a person may not be denied, on the basis of wealth, the right to vote[6] or to become a candidate for a

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[1] *Air India v. Nergesh Meerza*, AIR 1981 SC 1829

[2] *Prostrollo v. University of South Dakota*, 507 F.2d 775

[3] *Linehan v. Waterfront Company* 347 US 439; *J & K v. T.N. Khosa*, AIR 1974 SC 1 (classification of Assistant Engineers between diploma-holders and degree-holders for the purpose of promotion to the post of Executive Engineer is valid as a classification founded on variant educational qualification is not unjust on the face of it); *Ramesh Prasad v. Bihar*, AIR 1978 SC 327 (classification between a person specially trained and having experience in tele-communication engineering and a person not so trained for appointment to the post of Executive Engineer (Tele-communication) is valid)

[4] *Henry v. Campbell*, 133 Ga 882

[5] *Payne v. Superior Court of Los Angeles*, 17 Cal 3d 908

[6] *Harper v. Virginia State Board of Elections*, 383 US 663 (a law is violative of the equality clause whenever it makes affluence of a voter or payment of fee an electoral standard, since voter qualifications have no relation to wealth, or to payment or non-payment of poll tax)

public office[1]. But it does not mean that legislation cannot be made on the basis of economic position where such a position has a rational relationship with the object of the legislation. It is always a legitimate governmental interest to ameliorate the condition of the poor, and when the removal of social and economic inequality is one of the fundamental principles of State policy Parliament may legislate on the basis of financial condition to grant some privilege to the poor which is denied to the rich. The government's decision to allow first class government servants who have been promoted from fourth class and third class to purchase the abandoned houses allotted to them earlier as third and fourth class government servants at a stipulated price is not unconstitutional discrimination against other first class and second class government servants in view of the fact that the government intended to confer the benefit on those who were not a in sound financial position and were not capable of purchasing otherwise an abandoned property.[2] The legislature may validly tax an economically stronger class leaving out economically weaker class from the tax net[3] or may impose a greater tax burden on the persons having greater means. Thus income tax imposed at progressive or graduated rates, increasing according to the amount of tax payer's income, is not violative of the equality clause.[4] A distinction made amongst the tax-payers, for an annuity deposit scheme, between those belonging to upper income groups and those belonging to lower income groups and requiring only the former to pay annuity deposits is a reasonable classification.[5] A school financing system authorizing *ad valorem* tax is not unconstitutional on the ground that the burdens or benefits of a State measure fall unevenly depending on the relative wealth of the political subdivision in which the citizens live.[6]

2.45 *Locality or territory:* The equal protection clause relates to equality between persons rather than between areas, and territorial uniformity in operation of laws is not constitutionally mandated.[7] The legislature is free to determine whether a law should extend to the whole of the territory or be limited to particular areas provided that the classification made has a rational relationship with the object of the

[1] *Lubin v. Panish*, 415 US 709
[2] *Afia Khatun v. Secretary, Ministry of Works*, 44 DLR 225
[3] *Kerala Hotel & Restaurant Assn. v. Kerala*, AIR 1990 SC 913
[4] 16A Am Juris 2d, Constitutional Law, Para 774
[5] *Hari Krisna v. India*, AIR 1966 SC 619
[6] *San Antonio Independent School District v. Rodriguez*, 411 US 1
[7] *McGowan v. Maryland*, 366 US 420

law.[1] The equality clause does not prevent the State from applying different laws to different parts of the country according to the local circumstances.[2] The legislature may empower the government to declare an area as a dangerously disturbed area and provide for a different procedure for the trial of offences[3] or a different forum[4] It may also prescribe different standards for different areas in a law directed against adulteration of food according to the differing conditions of different areas.[5] In the same way, different prices may be fixed for different areas in consideration of differences in cost of production in different areas.[6] Special treatment given to the industries in the backward areas on the basis of a rational policy does not violate the equality clause.[7] Local authorities may be authorised to levy taxes at different rates in different areas.[8] A geographical classification based on historical reasons subjecting persons of one locality of the State to a particular tax is not unconstitutional.[9] The zonal or territorial division of the State for the purpose of implementing a scheme of nationalised motor transport according to the circumstances prevailing in different localities is not unconstitutional.[10] But classification by districts or otherwise for the purpose of prescribing regulations that in effect impose different burdens upon some of the citizens of the State from those imposed upon other citizens under similar conditions, with conceivably no just basis for the classification, constitutes a denial of equal protection.[11] Where the object to be achieved is to get the best talent for admission to professional colleges, the allocation of seats districtwise has no

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[1] *Kishan Singh v. Rajasthan*, AIR 1955 SC 795; *Jia Lal v. Delhi Administration*, AIR 1962 SC 1781

[2] *Nagaland v. Ratan Singh*, AIR 1967 SC 212; *Gopal Narain v. U.P.*, AIR 1964 SC 370

[3] *Gopichand v. Delhi Administration*, AIR 1959 SC 609

[4] *Kangshari Haldar v. W.B.*, AIR 1960 SC 457

[5] *U.P. v. Kartar Singh*, AIR 1964 SC 1135

[6] *Anakapalle Co-operative v. India*, AIR 1973 SC 735

[7] *M.P. Oil Extraction v. M.P.*, AIR 1998 SC 145

[8] *Gopal Narain v. U.P.*, AIR 1964 SC 370

[9] *M.P. v. Bhopal Sugar Industries*, AIR 1964 SC 1179 (native state of Bhopal was merged in state of M.P. in 1956 and agricultural income tax imposed in 1953 continued to be levied and collected in the territory of former Bhopal state while this tax was not levied in other parts of state of M.P.)

[10] *Ram Chandra v. Orissa*, AIR 1956 SC 298

[11] 16A Am Juris 2d, Const. Law, Para 764; *Caldwell v. Mann*, 157 Fla 633

reasonable relation with the said object and is unconstitutional.[1]

2.46 *State and subjects:* The state is a definite class distinct from the subjects and the legislature has a wide power to legislate according differential treatment to the State and individuals, provided that the differentiation has a reasonable relationship with the object of the legislation. Existence of public interest will generally render sufficient justification for differential treatment between State and individuals. A law may be made granting a monopoly to the State in respect of certain trade or business affected with public interest excluding others from the said trade or business.[2] The government, even as a banker, can be put into a separate class and special facility for recovery of the dues of government banks can be accorded in view of the fact that the dues of the government are the dues of the entire people and quick recovery of the dues of the government is in the public interest.[3] Imposition of customs duty at a lower rate for imports by a statutory authority is not violative of art.27.[4] It is not impermissible to provide for a summary procedure for eviction of tenants or occupants from government premises.[5] The legislature may exclude the buildings belonging to the government or local authorities from the application of rent control law.[6] The longer period of limitation provided under art.149 of the Limitation Act is not unconstitutional in view of the fact that if the claim of the government is barred by limitation, the loss falls on the public and that governmental machinery does not move as quickly as in the case of individuals.[7] But where the object of the law was to ameliorate the condition of the Jagirdars (whose capacity to pay the debt had been reduced by the resumption of Jagirs under another law) by reduction of debts, there is no rationale for excluding the debts due to the

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[1] *P. Rajendra v. Madras*, AIR 1968 SC 1012

[2] *Saghir Ahmed v. U.P.*, AIR 1954 SC 728 (exclusive right of the state to operate in certain motor routes); *Khoday Distilleries Ltd v. Karnataka*; AIR 1996 SC 911

[3] *Manna Lal v. Collector of Jhalawar*, AIR 1961 SC 828; *Lachman Dass v. Punjab*, AIR 1963 SC 222; *Corporation of Trivandram v. Md. Haneefa*, AIR 1958 Ker 61 (recovery of municipal tax)

[4] *Bharat Surfactants (Pvt) Ltd v. India*, AIR 1989 SC 2054

[5] *Maganlal v. Greater Bombay Municipality*, AIR 1974 SC 2009; *Gujarat v. Bava*, AIR 1980 SC 1144; *Gujarat v. Dharamdas*, AIR 1982 SC 781

[6] *Baburao v. Bombay Housing Board*, AIR 1954 SC 153; *Venkatadri v. Tenali Municipality*, AIR 1956 AP 61

[7] *Afsar Ali Chowdhury v. Bangladesh*, 43 DLR 593 *Nav Rattanmal v. Rajsthan*, AIR 1961 SC 1704

government or the local authorities from the purview of the law and the law so far as it excludes debts due to the government or the local authority from the definition of 'debt' is unconstitutional.[1]

2.47 *Classification of occupations, business, pursuits:* The legislature has power to classify on the basis of differences in occupation, business and pursuits and such classification is valid so long as it has a reasonable basis and is not merely an arbitrary selection without any real difference between the subjects included in and omitted from purview of the law. Classification of sponsors and directors of private sector banks and financial institutions and the members of their families from the rest of the people for imposition of restriction on their becoming sponsors or directors of insurance companies to prevent monopoly in the money market is not unreasonable.[2] Every business forms a distinct class and it is not unreasonable for the legislature to place a particular business in a single class in order to attain the objective of the law.[3] The equality clause does not require all occupations or businesses to be treated in the same way.[4] It is for the legislature to select the kind of business which shall be the subject of regulation[5] and in this regard the legislature has a wide discretion. Any substantial difference between particular businesses may serve as a reasonable basis for classification.[6] The classification of businesses may be based upon such factors as location, time and number of persons employed.[7] A classification of borrowers

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[1] *Rajsthan v. Mukan Chand*, AIR 1964 SC 1633

[2] *Nasreen Fatema v. Bangladesh*, 49 DLR 542 (affirmed in 3 BLC (AD) 190); see also *City Bank Ltd v. Bangladesh Bank*, 51 DLR (AD) 262

[3] *Estrin v. Moss*, 221 Tenn 657

[4] *Dominion Hotel Inc. v. Arizona*, 249 US 265; *Bhikusha v. Kamgar Union*, AIR 1963 SC 806 (different minimum wages may be fixed for different industries); *C.B. Boarding & Lodging v. Mysore*, AIR 1970 SC 2042

[5] *New York ex rel. Lieberman v. Van de Carr*, 199 US 552

[6] *H.R. Banthia v. India*, AIR 1970 SC 1453 (distinction made in licensing provision under the Gold (Control) Act between licensed dealers and certified goldsmith); *P.T.I. v. India*, AIR 1974 SC 1044 (classification between newspaper and news agency for fixation of minimum wages of employees); *Joseph Kuruvilla v. Reserve Bank*, AIR 1962 SC 1371 (classification between banking companies and non-banking companies in respect of winding up); *Mathrumal v. Chief Inspector of Shops*, AIR 1952 All 773 (classification between trade employing outside labour and the trade with the assistance of family members); *Catholic Bank of India v. George Jacob*, AIR 1968 Ker 3 (classification between banking company and private money lender); *Bombay v. Balsara*, AIR 1951 SC 318 (classification between cargo boats and passenger boats).

[7] 16A Am Juris 2d, Const. Law, Para 775

based on the nature of the institution from which they borrow to fight the default culture in financial institutions is not discriminatory as the classification is logically permissible and subserves the objective of the legislation.[1] The wide power of classification is, however, subject to the limitation to the extent that it does not permit discrimination by which persons engaged in the same business are subjected to different restrictions or are held entitled to different privileges under the same conditions.[2] The constitutionality of a statute cannot be sustained which selects particular individuals from a class or locality and subjects them to peculiar rules or imposes upon them special obligations or burdens from which others in the same locality or class are exempt.[3] The equality clause requires that no impediment should be interposed in the pursuits of anyone except as applied to the same pursuits by others under similar circumstances and that no greater burdens in engaging in a calling should be laid upon one than are laid upon others in the same calling or condition.[4] It is a denial of the equal protection of law where the State regulates one who does much business without regulating another in the same enterprise doing less business.[5] The legislature may not, under the guise of classification, impose upon a particular industry or business discriminatory or burdensome measure which has no vital or reasonable relation to the object sought by a just and permissible classification.[6] There are dangerous or hazardous callings or businesses which may be classified for different treatment and such legislations are generally held to be constitutional unless the differential treatment *ex facie* appears to be arbitrary or unreasonable.[7]

2.48 *Classification among companies:* Companies are legal entities and the legislature may divide companies into different classes and confer upon them such rights, capacities and powers and impose such burdens as it may see fit.[8] No complaint about unequal treatment can be

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[1] *Chandpur Jute Suppliers v. Artha Rin Adalat*, 2 BLC 49

[2] *Minneapolis & S.L.R.Co. v. Beckwith*, 129 US 26

[3] *Truax v. Raich*, 239 US 33

[4] *Connolly v. Union Sewer Pipe Co.*, 184 US 540

[5] *McLeans v. Arkansas*, 211 US 539; *Stewart Dry Goods Co. v. Lewis*, 294 US 550 (the equal protection guarantee is violated by a gross sales tax which classifies vendors for the imposition of a varying rate of taxation solely by reference to the volume of their transaction)

[6] *Gulf C & S.F.R. Co. v. Ellis*, 165 US 150

[7] *R.E. Sheehan Co. v. Shuler*, 265 US 371

[8] *City Bank Ltd. v. Bangladesh Bank*, 51 DLR (AD) 262

made so long as the differential treatment has a rational relationship with the object of the law and so long as the legal provisions are applicable to all companies similarly situated. In order to justify the diversity of treatment, the classification must be based on differences such as are natural or intrinsic[1] and reasonable[2]

2.49 *Classification among companies and individuals:* In many situations distinction has been drawn between companies and individuals and different treatment has been prescribed by the legislature. The inherent difference between companies and natural persons is sufficient to sustain a classification between individuals and companies.[3] But a law which is directed solely to companies but eliminates individuals from its operation without any basis for such differential treatment is violative of the equality clause.[4]

2.50 *Classification among individuals and partnership:* The legislature may differentiate between individuals and partnerships, provided the differentiation has a rational relationship with the object of

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[1] *Consolidated Rendering Co. v. Vermont*, 207 US 541; *Joseph Kuruvilla v. Reserve Bank*, AIR 1962 SC 1371 (different provision for winding up of banking companies, not applicable to non-banking companies, made in Banking Companies Act was found constitutional having regard to the wide difference between the two types of companies and the need for special laws dealing with banking companies); *R.L. Arora v. U.P.*, AIR 1964 SC 1230 (distinction made between public companies and private companies to allow acquisition of land only in favour of public companies is reasonable as the profit of private companies goes to a few hands)

[2] *Lake Shore & M.S.R. Co. v. Smith*, 173 US 684; *Davidow v. Wadsworth Manufacturing Co.*, 211 Mich 90 (Statute imposing upon certain companies a confiscatory and unreasonable penalty for failure to pay the wages due to an employee leaving their employment, which is not made applicable to other companies of similar character is unconstitutional)

[3] *Crescent Cotton Oil Co. v. Mississippi*, 257 US 129; *Chicago R.I. & P.R. Co. v. Perry*, 259 US 548; *Raja Narayanlal v. Maneck P. Mistry*, AIR 1961 SC 29 (ss.239 and 240 of the Indian Companies Act, 1956 were not violative of equality clause on the ground that the ordinary protection afforded to witnesses under s.132 of the Evidence Act and s.161 of Cr.P.Code have been denied to the persons in charge of the management of companies as a citizen can and may protect his own interest, but where the financial interest of a large number of citizens is left in charge of persons who manage the affairs of the companies it would be legitimate to treat such companies and their managers as a class by themselves and to provide for necessary safeguards and checks against a possible abuse of power)

[4] *Luis K. Ligett Co. v. Lee*, 288 US 517

the law.[1] It is not an unconstitutional discrimination to require a licence for the sale of partnership securities when none is required for the sale of securities issued by individuals.[2]

2.51 *Classification of commodities and things:* The legislature may make classifications between commodities and things for differential treatment and may require licence to be obtained for trading in or manufacturing specified commodities and things without requiring such licence in respect of other commodities and things and such classifications are upheld when not arbitrary or unreasonable. In this field, the power of the legislature is so wide and the courts defer so much to the wisdom of the legislature that the very fact of classification justifies the classification.[3] Apart from the general classification usually made, classification is made of the commodities which are identified as essential[4] or hazardous, qualifying those commodities for different treatment. Classification of goods shipped and not shipped for the purpose of giving retrospective effect to a change in import policy and exempting the goods shipped before the change was made is found

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[1] *Abdul Wahab v. Securities & Exchange Commission*, W.P. 2053 of 2000 (Unreported) (Law requiring that financial statement of an issuer of listed securities has to be audited by a partnership firm of Chartered Accountants was held valid)

[2] *People v. Simonsen*, 64 Cal App. 97

[3] *Daruka & Co. v. India*, AIR 1973 SC 2711 (exclusion of mica powder from export canalisation scheme without excluding mica scrap or mica waste is valid having reasonable relationship with the object of development of mica powder industry); *Hanif Quareshi v. Bihar*, AIR 1958 SC 731 (prohibition regarding slaughter of cattle without including other animals like goat and sheep within the prohibition is not unconstitutional as the classification has close connection with the object sought to be achieved by the law, namely, the preservation, protection and improvement of livestock)

[4] *Chiranjit Lal v. India*, AIR 1951 SC 41 (a company, which is engaged in production of a commodity vitally essential to the community, has a social character of its own and one cannot say that the legislature has no authority to treat it as a class by itself and make special legislation applicable to it alone in the interest of the community at large); *M/S Bishamber Dayal v. U.P.*, AIR 1982 SC 33 (to obviate hoarding and black marketing the government fixed the maximum limit of wheat (an essential commodity) permitted to be stocked by a wholesale dealer and the court held that fixation of such stock limit, having regard to the object sought to be achieved, is neither arbitrary nor unreasonable and is not violative of the equality clause); *Suruj Mal v. India*, AIR 1982 SC 130 (fixation of stock limit of an essential commodity is not violative of equality clause simply because no distinction has been made between wholesale dealer and retailer)

reasonable.[1] Though classification of tenancies can be made to allow greater rights in respect of tenancies of commercial premises[2], such a classification between commercial and residential premises cannot be made in the matter of eviction of tenants[3].

2.52 *Manner of trading in commodities:* Trades and businesses are often sought to be regulated upon classification based on the kind and the technique of trading. It is generally held that legislation providing for classification based upon the type of trading done by persons sought to be regulated by it is constitutional if the particular mode of trading so classified is substantially different from other trading and forms a rational basis for the legislative distinction and if all persons so engaged and regulated are treated alike. The differences between manufacturers and dealers, regular dealers or merchants and transients like peddlers, hawkers and itinerant vendors, between retailers and wholesalers and between sellers for cash and sellers on credit are substantial and may form the basis of reasonable classification.[4]

2.53 ***Economic regulations, taxation and equal protection*** *:* The equality clause is applicable in respect of economic activities of the State. But the courts view the laws relating to economic activities with greater latitude than the laws touching civil rights such as freedom of speech, religion etc.[5] The courts feel more inclined to accord judicial deference to the legislative judgment in the field of economic regulation than in other areas where fundamental human rights are involved.[6] The American Supreme Court consistently deferred to the statutory

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[1] *Darshan Oils Pvt. Ltd v. India*, AIR 1995 SC 370

[2] *Gauri Shankar v. India*, AIR 1995 SC 55

[3] *Asoka Marketing Ltd v. Punjab National Bank*, AIR 1991 SC 855

[4] 16A Am Juris 2d, Const. Law, Para 780; *Southwestern Oil Co. v. Texas*, 217 US 114; *Narendra Kumer v. India*, AIR 1960 SC 430 (distinction between manufacturer and dealer in respect of non-ferrous metal); *Muhammadbhai v. Gujarat*, AIR 1962 SC 1517 (bye-law charging higher licence fee from wholesale trader as compared with retailer); *Gem Palace v. India*, AIR 1970 Raj 225 (distinction between dealers or refiners and non-dealers).

[5] *SIEL Ltd v. India*, AIR 1998 SC 3076, 3084; *Dalmia Cement (Bharat) Ltd. v. India*, (1996) 10 SCC 104

[6] *Garg v. India*, AIR 1981 SC 2138; *Elahi Cotton Mills v. Pakistan*, PLD 1997 SC 582, 675; *Nasreen Fatema v. Bangladesh*, 49 DLR 542 (legislative judgment relating to social and economic policy must not be interfered unless it is palpably arbitrary) (affirmed in 3 BLC (AD) 190)

classifications concerning the regulation of economic activities.[1] It is not the function of the court to sit in judgment over matters of economic policy and it must necessarily be left to the expert bodies[2] and the court will not interfere unless discrimination clearly emerges from the facts of a case.

2.54 *Taxation:* The same is the position with tax laws. A tax law is no exception to equal protection and it will be struck down as infringing art.27 if there is no reasonable classification.[3] To find out discrimination what is decisive is not the language of the statute, but the effect of the law. A law which on the face of it is non-discriminatory may be discriminatory if it, in effect, operates unevenly on persons or property similarly situated. A land tax at a flat rate of Rs.2 per acre was declared unconstitutional as it made no reference to the income derived or derivable from the land taxed. Lack of classification gave rise to inequality and this was evident from the fact that the petitioner was required to pay a tax of Rs.54,000 per year while the income from the land taxed came to about Rs.3000 and the law was virtually confiscatory.[4] Art.27 can be violated by ignoring the differences that exist between persons or things as also by finding a difference where there is none. Imposition of uniform tax on buildings on floor space basis without taking into account the location of the buildings, the purpose for which the buildings are used and the rent obtainable from such buildings may be violative of art.27.[5] In the matter of taxation, the legislature has, however, a wide discretion and in view of the complexity inherent in the fiscal adjustment of diverse elements, the courts allow a great latitude to the legislature in making the classification.[6] Taxation is not now a mere source of raising money for government expenditure, it

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[1] *New Orleans v. Dukes*, 427 US 297; *Idaho Dept. of Employment v. Smith*, 434 US 100

[2] *Peerless G.F. & I. Co. Ltd. v. Reserve Bank of India*, AIR 1992 SC 1033

[3] *Khandige v. Agricultural I.T.O.*, AIR 1963 SC 591; *Kunnahat v. Kerala*, AIR 1961 SC 552

[4] *K.T. Moopil Nair v. Kerala*, AIR 1961 SC 552; *A.P. v. Raja Reddy*, AIR 1967 SC 1458 (land revenue imposed at flat rate without taking into account the productivity of lands was unconstitutional)

[5] *Kerala v. Haji Kutty*, AIR 1969 SC 378

[6] *Karnataka v. D.P. Sharma*, AIR 1975 SC 594; *Kerala Hotel & Restaurant Association v. Kerala*, AIR 1990 SC 913; *Srinivasha Theatre v. T.N.*, AIR 1992 SC 999; *Elahi Cotton Mills v. Pakitan*, PLD 1997 SC 582, 675

is a recognised fiscal tool to achieve fiscal and social objectives.[1] The classification must not, however, be palpably arbitrary.[2] The legislature may select the persons or objects it will tax and a statute will not be open to attack on the ground that it taxes some persons or objects and not others. "The Legislature that is competent to levy a tax must inevitably be given full freedom to determine which articles should be taxed, in what manner and at what rate."[3] Thus the State is allowed to pick and choose districts, objects, persons, methods and even rates of taxation if it does so reasonably.[4] A tax on purchasers of hides and skins without taxing purchasers of other commodities, in the absence of materials on record to show that purchasers of other commodities are similarly situated with the purchasers of hides and skins, is not discriminatory.[5] A sales-tax on Virginia tobacco, but not on country tobacco has been found valid as the former has certain features which distinguish it from the latter.[6] The State may not consider it administratively worthwhile to tax sales by small traders who have no organisational facilities to collect tax from their buyers and turn it over to the government and the State may in imposing tax fix its own limits below which it does not consider imposition and collection of tax administratively feasible or worthwhile.[7] A higher amusement tax on cinema houses having large seating accommodation and situated in fashionable and rich localities than on other cinema houses having less accommodation and situated in poor localities is not unconstitutional.[8] Progressive gradation of income-tax with different rates applying to different income groups is not discriminatory. If the classification is made with the object of taxing only the economically stronger while leaving out the economically weaker sections of society, that would be a good reason to uphold the classification if it does not offend any other accepted norm of valid classification.[9]

2.55 The legislature has the freedom not only in the choice of persons

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[1] *Srinivasha Theatre v. T.N.*, AIR 1992 SC 999
[2] *Kerala Hotel & Restaurant Association v. Kerala*, AIR 1990 SC 913
[3] *Khyerbari Tea Company v. Assam*, AIR 1964 SC 925
[4] Ibid
[5] *V.M. Syed v. A.P.*, AIR 1954 SC 314
[6] *East India Tobacco Company v. A.P.*, AIR 1962 SC 1733
[7] *Bombay v. United Motors*, AIR 1953 SC 252, 263
[8] *Western India Theatres v. Cantonment Board*, AIR 1959 SC 582
[9] *Kerala Hotel & Restaurant Association v. Kerala*, AIR 1990 SC 913 (taxing only the sale of costlier food)

or articles to be taxed[1], but also in respect of the method, manner and rate of taxation. When more than one method is available, the court will not be justified in striking down the method adopted unless it is clear that the method is capricious, fanciful, arbitrary or patently unjust.[2] The legislature may prescribe different rates for different categories of persons, objects or transactions.[3] For the necessity of flexibility the legislature may empower the executive to exempt particular goods from duty[4] and may even delegate the power of determining the rate of tax in terms of the policy of the statute.[5] When the government classified match factories into mechanised and non-mechanised units to realise lower excise duty from non-mechanised units, the court rejected the contention that the taxation was bad for not making a classification between strong and weak units holding that classification on the basis of productive process having already been made, further sub-classification could not be insisted upon with reference to the equality clause.[6]

2.56 ***Conferment of discretionary powers:*** When a statute makes a classification for its application the question arises whether the classification is reasonable in relation to the object of the statute. But often a statute makes a provision and leaves it to the discretion of the government or the administrative authority to select and classify persons or things to whom its provisions should apply. Such a discretionary power is not necessarily discriminatory. In *Ram Krisna Dalmia v. Justice Tendulker*[7] the Indian Supreme Court held that the mere fact that no classification was made by the statute or that discretion was left to the government would not lead to the law being struck down, but the court would inquire whether the statute contained any principle or policy for guiding the exercise of discretion by the government in the matter of selection or classification and if it did not, the statute would be struck down on the ground that it conferred arbitrary and uncontrolled power

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[1] *Khyerbari Tea Company v. Assam*, AIR 1964 SC 925

[2] *Sham Bhat v. Agricultural I.T.O.*, AIR 1963 SC 591; *Shetty v. Karnataka*, AIR 1989 SC 100 (though the method adopted may not be the best arrangement in social and economic policies legislative preference for one of the available alternatives cannot be questioned on the ground of lack of legislative wisdom or that there are better methods of adjusting the competing interests and claims.)

[3] *Twyford Tea Co. v. Kerala*, AIR 1970 SC 1133

[4] *Orient Weaving Mills v. India*, AIR 1963 SC 98

[5] *Gopal v. U.P.*, AIR 1964 SC 370

[6] *M. Match Works v. Assistant Collector*, AIR 1974 SC 497

[7] AIR 1958 SC 538

on the government to discriminate between persons or things similarly situated, so that the discrimination is inherent in the statute itself. When a statute confers wide discretion on the executive authority without any policy guideline, it clothes the executive authority with naked and arbitrary power to select persons or things in the exercise of the discretion and the statute even though non-discriminatory on its face permits discrimination in the exercise of the discretion. But if the statute contains the policy or guidance for the exercise of the discretion, the discretion is no longer unfettered and cannot be exercised arbitrarily[1] and any exercise of discretion contrary to such policy or guideline can be struck down.[2] It is not essential that the rules of guidance should be laid down expressly in the statute or the rule. Such guidance may be had from the preamble read in the light of the surrounding circumstances which necessitated the legislation in conjunction with the facts of which the court can take judicial notice or of which it might be apprised by affidavits, or from the policy and purpose of the enactment or from other operative provisions applicable to analogous or comparable situations or generally from the object of the law.[3] In a number of cases the Indian Supreme Court struck down statutes for conferring wide discretionary power to the government or the administrative authority without providing any guideline or policy for the exercise of the discretion.[4] There is much conflict of opinion as to whether a statute conferring discretionary power contained any guideline or policy for the exercise of

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[1] *Secy. Aircraft Engrs. of Bangladesh v. Registrar of Trade Union*, 45 DLR (AD) 122

[2] *Dr. Abu Ahmed v. Bangladesh*, 1982 BLD 98 (order of compulsory retirement was struck down when no record was placed before the court to show that the order was passed in the public interest)

[3] *Jyoti Prasad v. Administrator of Delhi*, AIR 1961 SC 1602 (the observation that the policy of a law can be gathered from affidavits has been criticised because it renders the validity of a law dependent upon affidavits affirmed on behalf of the government long time after the enactment and because of the possibility of different officers of the government affirming conflicting affidavits. See H.M. Seervai's Constitutional Law of India, 3rd ed. p.351)

[4] *W.B. v. Anwar Ali Sarker*, AIR 1952 SC 75; *Dwaraka Prasad v. U.P.*, AIR 1954 SC 224; *Dhirendra Kumar Mondal v. Superintendent & Remebrancer, Legal Affiars*, AIR 1954 SC 424; *Punjab v. Khan Chand*, AIR 1974 SC 543 (law empowering the government and its authorised officers to requisition any movable property was held unconstitutional as no guidelines have been laid down regarding the object or the purpose for which it becomes necessary to requisition a movable property); *Maharashtra v. Kamal*, AIR 1985 SC 119

the discretion.[1] In a number of cases the court held the statutes valid on the ground that those contained guideline or policy for the exercise of the discretion.[2]

2.57 When there are two laws covering the same matter, one harsher than the other, and the administration is given the discretion to select the law to apply in a given case, there may be discrimination between two similarly situated persons resulting from the exercise of the discretion by the administration. To avoid discrimination, the courts insist that the harsher law should lay down some reasonable guideline or principle to regulate the administrative discretion.[3] A Punjab law provided a summary procedure for eviction of unauthorised occupants from public premises with the result that the Collector had the unfettered discretion to go for the ordinary remedy of civil suit or pass an order of eviction under the special law. The special law was declared void by the Supreme Court as the special law did not contain any policy to regulate the discretion of the Collector.[4] *Maganlal Chhaganlal v. Municipal Corporation of Greater Bombay*[5] presented a similar situation, but the Supreme Court reviewing *Northern India Caterers* modified the proposition stating that where a statute providing for a more drastic procedure different from the ordinary procedure covers the whole field occupied by the ordinary procedure, without any guidelines as to exercise of the discretion, the law will be violative of the equality clause, but even in such a case a provision of appeal may cure the defect. Where, however, the law covers only a class of cases, it will not be bad and the fact that in such cases the administration will have the choice to

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[1] See the conflicting opinions in *W.B. v. Anwar Ali Sarker*, AIR 1952 SC 75 and *Kathi Raning Rawat v. Saurashtra*, AIR 1952 SC 123

[2] *Kathi Raning Rawat v. Saurashtra*, AIR 1952 SC 123; *Kedar Nath Bajoria v. W.B.*, AIR 1953 SC 404 ; *Orissa v. Dhirendra*, AIR 1961 SC 1715; *P.J. Irani v. Madras*, AIR 1961 SC 1731 (power vested on the government to exempt any building or class of building from all or any of the provisions of rent control law); *Rayala Corporation v. Director of Enforcement*, AIR 1970 SC 494 (law providing for two alternative forums with different penalties for violation of foreign exchange regulations was challenged on the ground that Director of Enforcement was given unguided discretion to select the forum); *Kandaswamy v. T.N.*, AIR 1985 SC 257 (power vested on the Government to exempt any building or class of building from any or all of the provisions of rent control law)

[3] *Rayala Corporation v. Director of Enforcement*, AIR 1970 SC 494

[4] *Northern India Caterers v. Punjab*, AIR 1967 SC 1581

[5] AIR 1974 SC 2009; *Pandia Nadar v. T.N.*, AIR 1974 SC 2044

select cases for the special procedure will not affect the validity of the law. The court held that the object of speedy eviction of unauthorised occupants offers sufficient guidance to the authorities and it is unreal to hold that an officer would resort to the dilatory procedure of a civil suit and a law cannot be struck down "on a fanciful theory that power would be exercised in such an unrealistic fashion." Certain other observations in the case exemplify the tolerant view of the courts in the matter of unguided discretionary power.

2.58 When a law provides for different procedures for trial and leaves it to the discretion of the administration to apply different procedures to different persons without providing any guideline or policy, but the difference of procedure is minor and not substantial, the courts refuse to strike down the law.[1] In some cases, the Indian Supreme Court refused to strike down the laws conferring wide discretion without any guideline or policy when the discretion was left with high and responsible officials who, according to the court, were expected in the usual course of business to apply the law in a non-discriminatory manner free from arbitrariness.[2] The court observed that there might be cases where improper exercise of the power could result in injustice to parties, but the possibility of such discriminatory treatment cannot necessarily invalidate the legislation and where there is abuse of the power, the parties are not without ample remedies under the law.[3] Where the impugned provision of law confers uncontrolled power if read literally, but is capable of being read down[4], it should be so read in order to uphold the impugned provision.[5]

2.59 In *Jibendra Kishore v. East Pakistan*[6] the State Acquisition and Tenancy Act was challenged as discriminatory as it empowered the government to acquire the interests of such rent-receivers as may be

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[1] *W.B. v. Anwar Ali Sarker*, AIR 1952 SC 75; *Syed Qasim Razvi v. Hydrabad*, AIR 1953 SC 156

[2] *Gurbachan Singh v. Bombay*, AIR 1952 SC 221 (discretion conferred on Commissioner of Police); *Pannalal Binjraj v. India*, AIR 1957 SC 397 (discretion conferred on Income Tax Commissioner and Board of Revenue); *C.B. Boarding & Lodging Co. v. Mysore*, AIR 1970 SC 2042 (discretion conferred on the State Government); Contra *Delhi Transport Corp. v. D.T.C. Mazdoor Congress*, AIR 1991 SC 101, Para 223, 267

[3] *Pannalal Binjraj v. India*, AIR 1957 SC 397

[4] See Para 5.12 for the meaning of the principle of `reading down'.

[5] *Jagadish Pandey v. Chancellor, Bihar University*, AIR 1968 SC 353

[6] 9 DLR (SC) 21

specified in the notification in any district. In upholding the law the Pakistan Supreme Court referred to the following comments of Professor Willis:

> Is it proper classification to put in one class those who get the consent of a Board or of an official and into another class those who do not, where no standard is set up to control the action of the Board or official? Some cases answer it in the affirmative, while other cases answer it in the negative. Perhaps the best view on this subject is that due process and equality are not violated by the mere conference of unguided power, but only by its arbitrary exercise by those upon whom it is conferred. If this is the correct position, the only question that would then arise would be the delegation of legislative power. If a statute declares a definite policy, there is sufficiently definite standard for the rule against the delegation of legislative power, and also for equality if the standard is reasonable. *If no standard is set up to avoid the violation of equality, those exercising the power must act as though they were administering a valid standard.*[1] (Italics supplied)

The court observed, "in cases where a statute is not *ex facie* discriminatory, but is capable of being administered in a discriminatory manner, the party challenging the constitutionality of that statute must show that it has actually been administered to the detriment of a particular class and in a partial, unjust and oppressive manner". In *East and West Steamship Co. v. Pakistan*[2] s.3 of the Control of Shipping Act was challenged as discriminatory on the ground that it conferred unguided and uncontrolled power on the authority to grant or refuse licence for the business of carrying cargo and passengers. The Pakistan Supreme Court turned down the challenge making the same observation that where a statute is not *ex facie* discriminatory, the party challenging the constitutionality of the statute must show that it has been administered in a discriminatory manner. These two decision cannot, however, be taken to be authority on the question as to whether wide discretion conferred on the executive without providing any guideline or policy is violative of the equality clause. In *Jibendra Kishore* the law provided for wholesale acquisition of the rent-receiving interests and permitted the government to acquire it at a time or part by part so that ultimately all the rent-receiving interests would be acquired and as such the question of discrimination cannot arise. The government was to

[1] Constitutional Law, 1936 ed, p.586
[2] 10 DLR (SC) 52

select which interests to acquire first based on administrative convenience. In *East and West Steamship* the court found that the law contained a definite policy so that there was no question of conferment of wide discretionary power without policy guideline in that case. The proposition laid down in the two cases must be understood in the light of the facts of those cases. On the other hand, in *Warris Meah v. State*[1] an amendment of the Foreign Exchange Regulations Act, 1947 made in 1956 set up three tribunals for the trial of offences under the Act, namely, (a) the courts under the ordinary law with power to impose sentence of imprisonment and fine, (b) adjudication officers with power of imposing only fine and (c) tribunals with power to impose sentence of imprisonment and fine. The law gave no indication as to which class of cases was to go to the court and which class of cases was to go to the tribunal or adjudication officer and left it entirely on the discretion of the government to make the selection. The Pakistan Supreme Court struck down the law as being violative of the equality clause holding:

> It confers discretion of a very wide character upon stated authorities to act in relation to subjects falling within the same class in three different modes varying greatly in severity. By furnishing no guidance whatsoever in regard to the exercise of this discretion, the Act, on the one hand, leaves the subject, falling within its provisions, at the mercy of the arbitrary will of such authority, and, on the other, prevents him from invoking his fundamental right to equality of treatment under the Constitution.[2]

The court further observed -

> The scope of the unguided discretion so allowed is too great to permit application of the principle that equality is not infringed by the mere conferment of unguided power, but only by its arbitrary exercise. For, in the absence of any discernible principle guiding the choice of forum, among the three provided by the law, the choice must always be, in the judicial viewpoint, arbitrary to a greater or lesser degree. The Act, as it is framed, makes provision for discrimination between the persons falling, qua its terms, in the same class, and it does so in such manner as to render it impossible for the Courts to determine, in a particular case, whether it is being applied with strict regard to the requirements of art.5(1) of the Constitution.

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[1] 9 DLR (SC) 117; *Hasan Ali v. Collector of Customs*, 10 DLR (WP) 71

[2] Ibid, para 7

2.60 The question of conferment of wide discretionary power without any guideline for its exercise came up for consideration before the Appellate Division in *Dr. Nurul Islam v. Bangladesh*[1]. S.9(2) of the Public Servants Retirement Act, 1974 providing for compulsory retirement of public servants completing 25 years of service was challenged on the ground that the law, conferring discretion on the government to retire a public servant without providing any policy or guideline, was violative of arts.27 and 29 of the Constitution. Upon consideration of a large number of decisions including *Jibendra Kishore, East and West Steamship Co.* and *Warris Meah*, Munim J (with whom Ruhul Islam and B.H. Chowdhury JJ agreed) observed -

> The minimum principle or guideline as has been provided in service rules as appeared from the cases cited in this judgment is that of public interest or the interest of public service. If either the impugned Act or the rules made thereunder provided such principle, the minimum requirement of law as showing the existence of some guideline for the exercise of discretion in retiring a govern servant who has completed 25 years of service would, I think, be satisfied, thus making it immune from any challenge on the ground of discrimination violative of Articles 27 and 29 of the constitution. I am of opinion, therefore, that in the absence of such a guideline either in the Act or the rules framed thereunder, Section 9(2) ... suffers from unconstitutionality ..."[2]

The Appellate Division took note of the fact that in respect of compulsory retirement the previous service rules provided the guideline of 'public interest'. The relevant service rules were replaced by P.O. No.14 of 1972. The rules framed in 1973 under P.O. No.14 of 1972 specified the circumstances in which the power of compulsory retirement could be exercised by the government. When the Public Servants Retirement Act, 1974 was enacted the rules of 1973 were applicable by virtue of s.24 of the General Clauses Act. Subsequently the rules of 1973 were repealed leaving the exercise of the power under s.9(2) without any guideline. In this background it was possible for the government to urge the court to 'read down' and it was possible for the court to 'read down' the law as conferring on the government a power of compulsory retirement only in the 'public interest' and thereby save the

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[1] 33 DLR (AD) 201

[2] Ibid, para 75 (K.Hossain CJ and S. Ahmed J refrained from passing on the constitutionality of the statute as, in their lordships' view, the case could be disposed of on ground of malice in law alone)

law. The government could have urged that whenever a power is conferred on the government it may be implied that the power is to be exercised in the public interest or for the public good.[1] But the government instead claimed an absolute power to compulsorily retire a pubic servant without any limiting consideration of 'public interest' or 'public good'. The law omitting the guideline of 'public interest' and the government claiming absolute power of compulsory retirement, the court was left with no alternative but to declare the impugned provision of law violative of the equality clause.[2]

2.61 In dealing with the question relating to conferment of wide discretionary power, Munir CJ observed in *Jibendra Kishore* -

> In England, the doctrine of due process of law was intended to provide protection to the individual from arbitrary action on the part of the Crown, but, in the United States, the scope of the doctrine has been gradually extended to secure the citizens not only against the arbitrary exercise of governmental powers but against such exercise of legislative power. Many instances are, therefore, to be found in the States where statutes have been held unconstitutional on the ground that they vested in an administrative official or board an arbitrary power or discretion to interfere with an individual's rights relating to his life, liberty and property ...
>
> ... in determining the constitutionality or otherwise of statutes in Pakistan we cannot have that approach to the question because there is no provision in our Constitution which is capable of such a flexible and varying meaning as the 'due process of law' part of the Fifth and the Fourteenth Amendments.[3]

It will be a highly doubtful proposition to say that in the absence of a due process guarantee in the constitution conferment of uncontrolled and unfettered discretionary power on the executive can pass the test of the equality clause. *Warris Meah* answers the question in the negative. At any rate, the Constitution having incorporated the American 'due process' concept in art.31 there can be no doubt that conferment of unfettered and uncontrolled discretionary power will not only be hit by art.27, but will also be inconsistent with the provision of art.31.

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[1] *Province of Bombay v. Bombay Municipal Corporation*, AIR 1947 PC 34, 36 (Every statute must be supposed to be "for the public good" at least in intention)

[2] See *Senior Superintendent of Post Office v. Izhar Hossain*, AIR 1989 SC 2262

[3] 9 DLR (SC) 21, Para 26-27

2.62 In *Jibendra Kishore* and *East and West Steamship Co.* the Pakistan Supreme Court referred to the observation of Professor Willis that when the law does not provide any standard, the law need not be declared unconstitutional and those administering the law must act as though they were administering a valid standard. The application of this principle is beset with difficulty. In the situation of compulsory retirement the principle stated by Professor Willis arguably may be followed in that the government may, notwithstanding the omission of the guideline of 'public interest', use it as a guideline for the exercise of the discretion. But in a situation as was present in *Warris Meah* this principle cannot be applied inasmuch as the very selection of a case by whatever supposed standard for trial by court or tribunal would be discriminatory, the former being more onerous. Furthermore, application of this principle may render many discriminatory treatments immune from challenge as in the absence of any standard provided by the statute it may be very difficult to establish that the authority acted discriminatorily in administering the law even though it has so acted.[1] The argument that in case of conferment of unfettered discretionary power, if the authority clothed with the discretion made arbitrary or impermissible classification, the action rather than the law is to be struck down is untenable. The authority's action in such a case cannot be challenged as the authority would plead that the action was authorised by the relevant law.[2]

2.63 The principle enunciated by the Indian Supreme Court that a law will not be held discriminatory when unguided discretion is given to a high and responsible officer on the expectation that the discretion will be exercised reasonably is difficult to accept. The expression

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[1] American Supreme Court noted the difficulty in *Yick Wo v. Peter Hopkins*, 30 L.Ed. 220, stating "... and when we remember that this action or non action may proceed from enmity or prejudice, from partisan zeal or animosity, from favouritism and other improper influences and motives easy of concealment and difficult to be detected and exposed, it becomes unnecessary to suggest or comment upon the injustices capable of being wrought under cover of such a power, for that becomes apparent to every one who gives to the subject a moment's consideration. In fact, an Ordinance which clothes a single individual with such power hardly falls within the domain of law and we are constrained to pronounce it inoperative and void."

[2] *W.B. v. Anwar Ali Sarker*, AIR 1952 SC 75, Para 27 ("I think the fallacy of the argument lies in overlooking the fact that the "insidious discrimination complained of is incorporated in the Act itself, it being so drafted that whenever any discrimination is made such discrimination would be ultimately traceable to it." - per Fazl Ali J)

'reasonable' is vacuous unless used with reference to a specific standard and in the absence of a standard no exercise of discretion can be judged for reasonableness. Furthermore, in our society we have found high and responsible officers acting arbitrarily even though such arbitrariness is hard to prove in the absence of any standard of reasonableness, particularly in the face of the presumption of legality of official acts. In *Dr. Nurul Islam* the government urged this principle, but the Appellate Division rightly refused to accept it even though the discretion was conferred on the government itself.[1]

2.64 A statute conferring wide discretion on the executive authority without any policy guideline for the exercise of the discretion may be rendered valid by providing reasonable standards in the subordinate legislation. If the subordinate legislation specifies the circumstances in which the wide discretion has to be exercised so that the exercise of the discretion no longer depends on the arbitrary will of the authority exercising the discretion, the statute will no longer be liable to be struck down on the ground that it gave unfettered discretion to the executive.[2]

2.65 ***Equality clause and arbitrariness:*** The Indian Supreme Court gave a new dimension to the equality clause when it delivered the judgment in *E.P. Royappa v. T.N.*[3]. Bhagwati J observed -

> The basic principle which, therefore, informs both Arts.14 and 16 is equality and inhibition against discrimination. Now, what is the content and reach of this great equalising principle? It is the founding faith, to use the words of Bose J, 'a way of life', and it must not be subjected to a narrow pedantic or lexicographic approach. We cannot countenance any attempt to truncate its all embracing scope and meaning, for to do so would be to violate its activist magnitude. Equality is a dynamic concept with many aspects and dimensions and it cannot be 'cribbed, cabined and confined' within traditional and doctrinaire limits. From a positivistic point of view , equality is antithetic to arbitrariness. In fact

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[1] See *Delhi Transport Corp. v. D.T.C. Mazdoor Congress*, AIR 1991 SC 101, Para 223, 267 (There is only a complacent presumption that those who occupy high posts have a high sense of responsibility. The presumption is neither legal not rational. History does not support it and reality does not warrant it.); *Central Inland Water Transport Corp v. Brojo Nath*, AIR 1986 SC 1571

[2] *Tika Ramji v. U.P.*, AIR 1956 SC 676; certain observations made by Pakistan Supreme Court in *Warris Meah v. State*, 9 DLR (SC) 117, 123 lend support to this view.

[3] AIR 1974 SC 555

> equality and arbitrariness are sworn enemies; one belongs to the rule of law in a republic while the other, to the whim and caprice of an absolute monarch. Where an act is arbitrary, it is implicit in it that it is unequal both according to the political logic and constitutional law and is therefore violative of art.14 ...[1]

This principle of equating discrimination with arbitrariness has been affirmed by the Indian Supreme Court in a number of decisions.[2] It is not clear whether this principle is being applied as an addition to or a substitute for the old doctrine of classification. The principle was criticised and it was pointed out, "No doubt arbitrary actions ordinarily violate equality; but it is simply not true that whatever violates equality must be arbitrary. The large number of decided cases, before and after *Royappa*, make it obvious that many laws and executive actions have been struck down as violating equality without their being arbitrary."[3] In *Aftabuddin v. Bangladesh*[4] the High Court Division held, "If an executive or a legislative act is found to be arbitrary and if such arbitrary act adversely affects a person it must be held that such arbitrary act adversely affecting a person hits at the very root of the ... equality clause."

2.66 *Test of arbitrariness:* When it is held that an arbitrary action is discriminatory and violative of the equality clause, the question arises as regards the standard for testing the reasonableness of an action. In *Shrilekha Vidyarthi v. U.P.*[5] the Indian Supreme Court observed -

> The question, whether an impugned act is arbitrary or not, is ultimately to be answered on the facts and in the circumstances of a given case. An obvious test to apply is to see whether there is any discernible principle emerging from the impugned act and if so, does it satisfy the test of reasonableness. Where a mode is prescribed for doing an act and there is no impediment in following that procedure, performance of the act

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[1] Ibid, Para 85

[2] *Maneka Gandhi v. India*, AIR 1978 SC 597; *Ramana Shetty v. International Airport Authority*, AIR 1979 SC 1628, *Ajay Hashia v. Khalid Mujib*, AIR 1981 SC 487; *D.S. Nakara v. India*, AIR 1983 SC 130; *A.L. Kalra v. P & E Corp of India*, AIR 1984 SC 1361; *Express Newspapers v. India*, AIR 1986 SC 872, Para 71; *M/S Dwarakadas Marfatia v. Board of Trustees, Port of Bombay Authority*, AIR 1989 SC 1642; *Shrilekha Vidyarthi v. U.P.*, AIR 1991 SC 537

[3] H.M. Seervai - Constitutional Law of India, vol. 1, 4th ed., p.437

[4] 48 DLR 1

[5] AIR 1991 SC 537, 554

> otherwise and in a manner which does not disclose any discernible principle which is reasonable, may itself attract the vice of arbitrariness. Every State action must be informed by reason and it follows that an act uninformed by reason, is arbitrary.

And speaking about the burden of proof of arbitrariness, the court continued -

> No doubt, it is for the person alleging arbitrariness who has to prove it. This can be done by showing in the first instance that the impugned State action is uninformed by reason inasmuch as there is no discernible principle on which it is based or it is contrary to the prescribed mode of exercise of the power or is unreasonable. If this is shown, then the burden is shifted to the State to repel the attack by disclosing material and reasons which led to the action being taken in order to show that it was an informed decision which was reasonable.[1]

2.67 In the American jurisdiction, the Fifth Amendment is applicable in the District of Columbia, but it does not contain an equal protection clause as does the Fourteenth Amendment which applies only to the states. When the blacks complained against segregation in the public schools of the District of Columbia, the American Supreme Court held,,

> But the concept of equal protection and due process, both stemming from our American ideal of fairness, are not mutually exclusive. The 'equal protection of the laws' is a more explicit safeguard of prohibited unfairness than 'due process of law', and therefore, we do not imply that the two are always interchangeable phrases. But, as this Court has recognized, discrimination may be so unjustifiable as to be violative of due process.[2]

The Indian Supreme Court in a number of decisions held that the Indian Constitution has not incorporated the American 'due process' concept and it is debatable whether the 'due process' concept of non-arbitrariness can be invoked in the equality clause of art.14. It may be seen that in the American jurisdiction equal protection challenges to laws and actions are usually accompanied by 'due process' challenge. Even if there be any doubt about the correctness of the holding of the Indian Supreme Court in the context of art.14, that holding is fully

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[1] Ibid, p.555; see *Bangladesh Krishi Bank v. Meghna Enterprise*, 50 DLR (AD) 194 (Provision of s.10A of PDR Act having been made for recovery of dues from defaulting borrowers was not held to be arbitrary.)

[2] *Bolling v. Sharpe*, 347 US 497

applicable in respect of art.27 of the Constitution inasmuch as art.31 of the Constitution incorporates the 'due process' concept and arbitrariness, whether in law or in action, is totally impermissible and unconstitutional.[1] It may, however, be argued that we need not press in aid art.27 against an arbitrary law or action and instead can invoke art.31. In the American jurisdiction, the court relied on the due process concept to strike down discriminatory actions as in the District of Columbia the equality clause was not applicable. In our jurisdiction there is no such difficulty and we need not add to or substitute the doctrine of classification by the new doctrine enunciated by the Indian Supreme Court. But it cannot be overlooked that in most cases arbitrariness infringes both the equality clause and the due process clause and an arbitrary law or action can be violative of both art.27 and art.31. Though *Bolling v. Sharpe* spoke of the difference between the two, it is very difficult to say where equal protection ends and due process begins.

2.68 ***Discrimination by administrative acts:*** The prohibition of the equality clause is not only addressed to Parliament, but also to the government and the statutory authorities. In the administration of law, if the action of a public functionary is found to have been taken in disregard of the policy laid down by the law or it produces a discriminatory effect in violation of any provision of the law, the action may be struck down not only as an *ultra vires* act, but also as an act violative of art.27 of the Constitution.[2] Thus where a licensing authority creates a monopoly in favour of a person by excluding all others from the trade even though the law under which the licence is granted did not authorise such creation of a monopoly, the action will be violative of the equality clause.[3] In dealing with the nature of the functions of a modern government, the Indian Supreme Court observed -

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[1] *Abul Hossain v. Secretary of Ministry of Home*, 44 DLR 521 (Relying on the Indian decisions the court held an arbitrary action in cancelling a gun licence to be discriminatory)

[2] *Pannalal Binjraj v. India*, AIR 1957 SC 397, Para 30; *Kathi Raning Rawat v. Saurashtra*, AIR 1952 SC 123, Para 47; *Bidi Supply Co. v. India*, AIR 1956 SC 479, Para 9 (the income tax authorities have by an executive order, unsupported by law, picked out the petitioner and transferred all his cases by an omnibus order unlimited in point of time. The order is calculated to inflict considerable inconvenience and denies to the petitioner as compared with other Bidi merchants similarly situated equality before the law and the order is void)

[3] *Mannalal v. Assam*, AIR 1962 SC 386

> To-day the Government, in a welfare State is the regulator and dispenser of special services and provider of a large number of benefits, including jobs, contracts, licences, quotas, mineral rights etc. the Government puts forth wealth, money, benefits, services, contracts, quotas and licences ... Government owns and controls hundreds of acres of public land valuable for mining and other purposes. These resources are available for utilisation by private corporations and individuals by way of lease or licence ... Can they be regarded as gratuity furnished by the State so that the State may withhold, grant or revoke it at its pleasure? Is the position of the government in this respect the same as that of a private giver? We do not think so ... The Government cannot be permitted to say that it will give jobs or enter into contracts or issue quotas or licences only in favour of those having grey hair or belonging to a particular political party or professing a particular religious faith. The government is still the Government when it acts in the matter of granting largess and it cannot act arbitrarily.
>
> ... The power or discretion of the Government in the matter of grant of largess including award of jobs, contracts, quotas, licences etc., must be confined and structured by rational, relevant and non-discriminatory standard or norm and if the government departs from such standard or norm in any particular case or cases, the action of the Government would be liable to be struck down, unless it can be shown that the departure was not arbitrary, but was based on some valid principle which in itself was not irrational, unreasonable or discriminatory.[1]

The Appellate Division agreed with this view of the Indian Supreme Court in *Sharping Matshajibi Samity v. Bangladesh*[2]. Following *Ramana Shetty*, it has been held that every activity of the government contains a public element and it must therefore be informed with reason and guided by public interest. If the government awards a contract or leases out or otherwise deals with its property or grants any other largess, the act would be liable to be tested for its validity on the touchstone of reasonableness and public interest and if it fails to satisfy either test, it would be unconstitutional and invalid.[3] It is, however, to be

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[1] *Ramana Shetty v. International Airport Authority*, AIR 1979 SC 1628

[2] 39 DLR (AD) 85, 96

[3] *Kasturilal v. J & K*, AIR 1980 SC 1992; *Dwarakadas Marfatia v. Board of Trustee, Port of Bombay Authority*, AIR 1989 SC 1642 (the Court took note of and explained the observation of the Court in *L.I.C. v. Escorts Ltd*, AIR 1986 SC 1370, making a distinction between Governments's function in public law domain and in the private law

remembered that there is a presumption of constitutionality of governmental action and the onus is entirely on the person who challenges the action to establish that the action has not been taken in the public interest but for collateral purposes or is *mala fide* or that the government had acted in a manner contrary to art.27.[1]

2.69 In some cases the Indian Supreme Court held that when a law is itself non-discriminatory, but the administrative action taken under it is challenged as violative of the equality clause, it must be shown that the action is *mala fide* or is actuated by a hostile intention[2] and an action will not be struck down if the discrimination is not intentional but merely inadvertent.[3] Such a holding is rooted in the American Supreme Court decision of *Snowden v. Hughes*[4]. But this decision was given in the context of the federalism in the United States[5] and there is no rationale for the application of this principle in a unitary set-up like ours. An unintentional discriminatory action is nonetheless a discriminatory action and is to be struck down.

2.70 The court will not interfere with matters of administrative policy or changes made thereto[6] unless it can be shown that the policy is

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field and holding that when the State or any instrumentality of the State ventures into the corporate world and purchases the shares of a company it assumes to itself the ordinary role of a shareholder and dons the robes of a shareholder and there is no reason why the State as a shareholder should be expected to state its reasons when it seeks to change the management by a resolution of the company like any other shareholder)

[1] *Dwarakadas Marfatia v. Board of Trustees, Port of Bombay Authority*, AIR 1989 SC 1642

[2] *Budhan Chowdhury v. Bihar*, AIR 1955 SC 191, Para 9; *J & K v. Ghulam Rasool*, AIR 1961 SC 1301; *Narain Dass v. Improvement Trust, Amritsar*, AIR 1972 SC 865

[3] *Ramanath v. Rajasthan*, AIR 1967 SC 603 (in this case the respondent pleaded that the impugned action was taken through oversight and it would have been corrected but for the stay order obtained by the appellant from the Court)

[4] 321 US 1 ("The unlawful administration by state officers of a state statute fair on its face, resulting in its unequal application to those who are entitled to be treated alike, is not a denial of equal protection unless there is shown to be present in it an element of intentional or purposeful discrimination.")

[5] See the discussion about it in H.M. Seervai's Constitutional Law, 4th ed. p.448-452

[6] *Debaranjan v. Comptroller*, AIR 1985 SC 306, Para 6; *Maharashtra State Board v. Paritosh*, AIR 1984 SC 1543, Para 22 (It is not within the legitimate domain of the Court to determine whether the purpose of a statute can be better served by adopting any policy different from what has been laid down by the legislature or its delegate and to strike down a bye-law merely on the ground that the policy enunciated therein does

arbitrary or irrational or that the policy adopted has no rational relationship with the object sought to be achieved.[1] When the matter is not exclusively within the parameter of determination of policy in respect of which the government has a large freedom, the court will strike down an administrative action as violative of equality clause which is arbitrary or discriminatory.[2]

2.71 *Government contracts:* The government can enter into any

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not meet with the approval of the Court in regard to its efficacy for implementation of the object and purpose of the Act)

[1] *Nagaraj v. A.P.*, AIR 1985 SC 551; *Col. A.S. Sangwan v. India*, AIR 1981 SC 1545 (while the discretion to change policy in exercise of executive power, which is not trammelled by statute or rule, is wide, the equality clause requires that change of policy must be made fairly and should not give the impression that it was done arbitrarily or by any ulterior criteria); *Krishnan Kakkanath v. Kerala*, AIR 1997 SC 128; *Punjab v. Ram Lubhaya Bagga*, AIR 1998 SC 1703

[2] *A L Kalra v. P & E Corporation of India* , AIR 1984 SC 1361; *Om Prakash v. State of J & K*, AIR 1981 SC 1001; *Parashram Thakur v. Ram Chand*, AIR 1982 SC 872 (the applications of respondents for allotment of nazul lands were rejected on the ground of policy, but when the policy was reversed, it was incumbent on the Government to reconsider those applications or to notify that the land was available for allotment and invite fresh applications; it was not open to the Government to allot plots to the appellants in disregard of the claims of others who had also applied for allotment); *Bidi Supply Co. v. India*, AIR 1956 SC 479 (when the law permits transfer of a case of a particular year or years for assessment by the income tax officer at a different place, an omnibus wholesale order of transfer without reference to any particular case and without any limitation of time denies to the assessee, as compared with other merchants who are similarly situate, equality before law); *Devadashan v. India*, AIR 1964 SC 179; *Bishan Das v. Punjab*, AIR 1961 SC 1570 (R, on behalf of a joint family firm, with the permission of the Government, built a dharmasala on Government land and on his death, other members of the joint family were running the dharmasala, but were dispossessed by executive order of the S.D.O. and the dharmasala was placed in charge of a municipal committee without due process of law; the Court held that the executive singled out a particular individual from his fellow subjects and visited him with a disability which is not imposed upon others); *Satwant Singh v. Assistant Passport Officer*, AIR 1967 SC 1836, Para 33 (where the passport authority arbitrarily withdraws one passport of an individual, exercise of the discretion of the authority patently violates the doctrine of equality, for the difference in the treatment of persons rests solely on the arbitrary selection of the executive); *Shrilekha Vidyarthi v. U.P.*, AIR 1991 SC 537 (where the Legal Remembrancer's Manual provides ordinarily for renewal of the tenure of the appointees, the ground of streamlining the conduct of government cases and effective prosecution thereof cannot be a reasonable basis for the drastic and sweeping action of terminating the appointment of all District Government Counsels throughout the State and is violative of the equality clause)

contract with any body it chooses. No person has a fundamental right to insist that it must enter into a contract with him. But even in entering into a contract the government acts as the government and cannot act arbitrarily, thereby affecting the citizens prejudicially.[1] It cannot act arbitrarily to choose any person it likes for entering into such a relationship or to discriminate between persons similarly situated.[2] In disposing of a State property or in entering into a contract, the government must adopt such method as would afford reasonable opportunity to the public at large to participate.[3] The sale and purchase by the State or a State instrumentality should generally be through public auction or by inviting tenders[4] as it fetches reasonable price and avoids unfairness. However, negotiation may be permissible where the policy of the government may not be achieved by such auction or tender.[5] The government cannot "give a contract or sell or lease out its property for a consideration less than the highest that can be obtained for it, unless, of course, there are other considerations which render it reasonable and in the public interest to do so. Such considerations may be that some Directive Principle is sought to be advanced or implemented or that the contract or the property is given not with a view to earning revenue but for the purpose of carrying out a welfare scheme for the benefit of a particular group or section of people deserving it or that the person who has offered a higher consideration is not otherwise fit to be given the contract or the property."[6] Thus to effectuate the policy of prevention of

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[1] *Ramana Shetty v. International Airport Authority*, AIR 1979 SC 1628 (entering into contract with a person who does not fulfil the qualification stipulated in the tender notice is arbitrary and violative of the equality clause); *Kasturi Lal v. J & K*, AIR 1980 SC 1992;; *Brij Bhushan v. J & K*, AIR 1986 SC 1003; *India v. Hindustan Development Corp.*, AIR 1994 SC 988

[2] *Eurasian Equipments and Chemicals Ltd. v. W.B.*, AIR 1975 SC 266 (The State need not enter into any contract with anyone, but if it does so. it must do so fairly without discrimination and without unfair procedure.); *Rash Behari Panda v. Orissa*, AIR 1969 SC 1081 (government's decision to invite offers for advance purchase of Kendu leaves from persons who satisfactorily complete contracts in the previous year is discriminatory against new entrants in the business as the classification is not based on real and substantial distinction bearing a just and reasonable relationship to the object sought to be achieved, i.e., effective execution of the monopoly of the state in the public interest)

[3] *U.P. v. Shiv Charan*, AIR 1981 SC 1722

[4] *T.M. Hasan v. Kerala Financial Corp.*, AIR 1988 SC 157

[5] *M.P. Oil Extraction v. M.P.*, AIR 1998 SC 145

[6] *M/S Kasturi Lal v. J & K*, AIR 1980 SC 1992

monopoly and concentration of economic power, the government may adopt dual pricing for the purchase of steel wagons allowing higher price to small manufacturers and lower price to big manufacturers.[1] The State may negotiate with private entrepreneurs in the public interest.[2] But the State cannot arbitrarily and without giving any opportunity of being heard blacklist a citizen, thereby preventing him from participating in the tenders floated by the government.[3] Though the government is at liberty to reject the highest bid at a tender, the court may strike down the action as violative of art.27 if the rejection of the tender is arbitrary and unreasonable or contrary to the public interest.[4] Even though the State is not bound to accept the highest bid, acceptance of a negotiated offer without giving an opportunity to the highest bidder to improve upon his bid may be violative of art.27.[5] But where the authority reserved the right to reject all tenders and the amount quoted in the highest tender is found inadequate, negotiation with all the tenderers and acceptance of the offer significantly higher than the highest bid cannot be said to be arbitrary.[6] Unless any administrative policy is involved, the government choosing to invite tenders should abide by the result of the tender and cannot arbitrarily or capriciously accept the next lowest bid.[7] Alteration of the tender terms after submission of bid may sometimes result in discrimination[8], but it has been held by the High Court Division in the facts of the case that alteration of the tender terms allowing instalment to the highest bidder did not violate any legal or constitutional right.[9] Generally the operation of the equality clause will be limited to cases of entering into contract and once a contract is entered into, the rights of the contracting parties will be guided by the

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[1] *India v. Hindustan Development Corp*, AIR 1994 SC 988

[2] *M/S Kasturi Lal v. J & K*, AIR 1980 SC 1992 (Negotiation with private entrepreneur to induce him to set up an industry was found permissible); *Sachidananda v. W.B.*, AIR 1987 1109 (allotment of land by private negotiation with the object of promoting tourism found valid)

[3] *Lt. Col. (Retd) Abdul Mannan v. Bangladesh*. 1981 BLD 78; *Joseph Vilangandoa v. Executive Engineer*, AIR 1978 SC 930; *Raghpathi v. Bihar*, AIR 1989 SC 620

[4] *Ramana Shetty v. International Airport Authority*, AIR 1979 SC 1628; *M/S Kasturi Lal v. J & K*, AIR 1980 SC 1992; *Parashram v. Ram Chand*, AIR 1982 SC 872.

[5] *Ram & Sham Co. v. Haryana*, AIR 1985 SC 1147

[6] *Food Corp. v. Kamdhenu Cattle Feed Ind.*, AIR 1993 SC 1601

[7] *Harminder Singh v. India*, AIR 1986 SC 1527

[8] See *Ramana Shetty v. International Airport Authority*, AIR 1979 SC 1628; *Monarch Infrastructure (P) Ltd v. Commr. UMC*, AIR 2000 SC 2272

[9] *Kafiluddin v. Dhaka City Corp*, 1 BLC 268

terms of the contract and art.27 will not be attracted[1], but the question of discriminatory treatment in the contract administration by the government is not totally irrelevant. If, after entering into a contract, the government, in dealing with the contractors similarly situated, accords discriminatory treatment or acts arbitrarily, the action of the government will be violative of art.27.[2] When the government cannot act arbitrarily in the contract administration, it certainly cannot act *mala fide* or for collateral purposes. S. Ahmed J observed -

> ... in case of breach of any obligation under a contract between government and a private party, proper remedy lies in a civil suit and not in a writ petition under the extra-ordinary jurisdiction given by the Constitution. But this principle will not apply when the government violates the terms of the contract with a mala fide intention or acts arbitrarily or in a discriminatory manner.[3]

This observation of S. Ahmed J holds good even in the case of an ordinary commercial contract entered into by the government because *mala fide* or arbitrariness results in violation of arts.27 and 31 and the provision of art.102(1) is attracted.

2.72 *Discrimination on ground only of religion, race, caste, sex or birth place* : Art.27 enunciates the general principle of equality and forbids a classification on arbitrary or unreasonable grounds. Art.28(1) relates to a particular application of the principle of equality. Under art.28(1) classification of citizens on grounds of only religion, race, caste, sex or birth place is *per se* discriminatory and no question of reasonableness of the classification arises. Unless differential treatment is meted out only on one of those grounds, this article is not attracted. In one case the High Court Division found the failure of a nationalised company to give benefit of an agreement to some of its employees violative of art.28, the judgment does not show that discrimination has been made on one of those grounds.[4] Art.28(2) provides that women shall have equal rights with men in all spheres of the State and of public life, while art.28(3) provides that no citizen shall, on grounds only of

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[1] *C.K. Achuthan v. Kerala*, AIR 1959 SC 490 *Radhakrisna Agarwal v. Bihar*, AIR 1977 SC 1496; *Bareilly Dev. Authority v. Ajai Pal*, [1989] 2 SCC 117

[2] *Dwarakadas Marfatia v. Board of Trustees, Port of Bombay Authority*, AIR 1989 SC 1642; H.M. Seervai - Constitutional Law of India, 4th ed. pp.443-444

[3] *Sharping Matshajibi Samabaya Samity v. Bangladesh*, 39 DLR (AD) 85, 100; *Sumikin Bushan Corp v. C.P.A.*, 6 MLR 251

[4] *Carew and Company v. Labour Court*, 50 DLR 396

religion, race, caste. sex or place of birth be subjected to any disability, liability, restriction or condition with regard to access to any place of public entertainment or resort, or admission to any educational institution. The use of the word 'only' makes it clear that what is forbidden is discrimination purely and solely on account of any of the specified grounds.[1] A discrimination based on one or more of the specified grounds and also on other grounds is not violative of art.28[2], but it may be unconstitutional under art.27 if the differentiation is not based on a reasonable classification. The moot question is whether the operation of the challenged law results in a prohibition only on any of the specified grounds. It is the effect of the challenged law that is to be considered and if the effect is discrimination only on any of the specified grounds, the law will be unconstitutional. The offending ground must be the immediate and direct cause of the discrimination.[3] Thus fixation of 35 years as the age of retirement for a Flight Stewardess and 44 years for a Flight Steward is unconstitutional being differentiation on ground only of sex.[5] A law providing that a male proprietor could be declared incapable of managing his property only on one of the five stated grounds after giving him notice to show cause, but a female proprietor could be declared incapable of managing her property on any ground without giving her any notice to show cause is unconstitutional as it amounts to discrimination on the ground of sex.[6] Where women teachers and employees in the education department were being given lower salaries and lesser promotion avenues as compared with their male counterparts doing the same work, it was found discriminatory.[7] In *Vishaka v. Rajasthan*[8] the Indian Supreme Court held that women have the right to gender equality which includes protection from sexual harassment and right to work with dignity and each incident of sexual harassment is a violation of the right to gender equality and right to life and liberty. Acting on reports that the inhabitants of a definite area were harbouring dacoits, the government sanctioned the posting of additional

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[1] *Rajasthan v. Pratap Singh*, AIR 1960 SC 1208

[2] *Chitra v. India*, AIR 1970 SC 35

[3] *Bombay v. Bombay Education Society*, AIR 1954 SC 561

[5] *Dalia Parveen v. Bangladesh Biman*, 48 DLR 132; *Rabia Bashree Irene v. Bangladesh Biman*, 52 DLR 308

[6] *Rajeswari v. U.P.*, AIR 1954 All 608

[7] *Uttar Khand Mahila Parishad v. UP*, AIR 1992 SC 1695

[8] AIR 1997 SC 3011 (The court prescribed some guidelines and norms to be followed in work places); *Apparel Export Promotion Council v. Chopra*, AIR 1999 SC 625

police in the area, the expense of which is to be borne by the inhabitants of the area other than Harijans and Muslims. The action was discriminatory as it amounted to discrimination on the ground of caste or religion against the peace-loving inhabitants of the area other than Harijans and Muslims.[1] Under the City of Bombay Police Act a person born outside Greater Bombay could be externed if he was convicted of any of the specified offences, while a person born within Greater Bombay could not be so externed. The court found the law unconstitutional as the discrimination was only on ground of place of birth.[2] But when the residents of a State were exempted from payment of a capitation fee for admission to the State Medical College, but the non-residents were required to pay it, there was no unconstitutionality as the ground of exemption was residence and not place of birth.[3] However, a classification on the basis of residence may be tested on the touchstone of art.27 and a wholesale reservation on the basis of residence for admission in the educational institutions regardless of merit may be found violative of the equality clause.[4]

2.73 Art.14 stipulates that "it shall be a fundamental responsibility of the State to emancipate ... backward sections of the people from all forms of exploitation", while art.19(2) provides, "The State shall adopt effective measures to remove social and economic inequality between man and man ...". But art.28(1) may operate as an obstacle to the achievement of these State policies. In *Madras v. Champakam Darairajan*[5] to help the backward people a government order was passed fixing the proportion of students of each community that could be admitted into the State medical colleges. Even though the Directive Principles of State Policy lay down that the State should promote with special care the educational and economic interests of weaker sections of the people, the court struck down the order as being unconstitutional as it discriminated on the ground of caste. Such a case of reverse discrimination was alleged and found by a sharply divided American Supreme Court in *University of California Regents v. Bakke*[6]. The special admissions programme of the State medical school reserved for

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[1] *Rajasthan v. Pratap Singh*, AIR 1960 SC 1208
[2] In re *S.H.S. Mohammad*, AIR 1951 Bom 285
[3] *Joshi v. M.B.*, AIR 1955 SC 334
[4] *Pradeep Jain v. India*, AIR 1984 SC 1420
[5] AIR 1951 SC 226
[6] 438 US 265

blacks and members of other minority groups 16 out of 100 places. A white applicant who was denied admission challenged the programme alleging that he was excluded on the ground of his race in violation of the equal protection clause. In order to prevent such a position, the framers of the Constitution included clause (4) in art.28 which stipulates that nothing in art.28 shall prevent the State from making any special provision in favour of women or children or for the advancement of any backward section of the citizens. They recognised the fact that an equality clause without any qualification would promote *status quo* even though there is a necessity to ameliorate the position of women, children and backward sections of the people. Thus in view of the provision of art.28(4) Parliament may make laws providing to women, children or backward sections of the people such privileges as are not accorded to others.[1] Such a law will not be violative of art.28, though it may be struck down under art.27 on showing that it contains a classification which bears no reasonable nexus to the object of the legislation.

2.74 *Discrimination in the matter of admission to educational institutions* : We will find that the right to education flows from the liberty protected by art.31. Availability of education makes a whole lot of difference in a man's life and considering its importance, the framers of the Constitution treated it as a fundamental responsibility of the State to provide education to the citizens as a basic necessity of life.[2] To provide education to its citizens is thus one of the most important functions of the State. But because of limited resources the State cannot make provision for education for all. Hence the question of discrimination in the matter admission to educational institutions is fast coming up. The question comes up in two situations - (a) when wide discretion is allowed to an authority in selecting candidates for admission and (b) when reservation of seats are made. If the selection is made on the basis of interview only and no guideline for it is given, the process of selection by interview will be discriminatory. Again if the proportion of marks allotted to the *viva voce* test is so high that the selection is virtually dependent on the subjective satisfaction of the selectors, the process will also be discriminatory. When one-third of the total marks was allocated for interview and the time earmarked for each

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[1] *Yusuf v. Bombay*, AIR 1954 SC 321 (Provision of s.497 Penal code making adultery an offence for men only is not void); *Sowmitri v. India*, AIR 1985 SC 1618

[2] Art.15

candidate was four minutes, the Indian Supreme Court observed -

> It is difficult to see how it is possible within this short span of time to make a fair estimate of the candidate's suitability ... It is not clear how by merely looking at a candidate the selection committee could come to a conclusion about his or her physical fitness. The fact that the allotment of marks is in accordance with a policy decision may not conclude the matter in all circumstances if that decision is found to be arbitrary and infringing Art.14 of the Constitution.[1]

Later in *Ajay Hasia v. Khalid Mujib*[2] the court held, "under the existing circumstances allocation of more than 15% of the total marks for the oral interview would be arbitrary and unreasonable and would be liable to be struck down as constitutionally invalid." Admission to an institution must be on the basis of merit. Any other criteria is generally discriminatory. Departure from the merit criteria in particular cases must bear the burden of challenge on the ground of discrimination and must be justified by a permissible and legitimate governmental objective.

2.75 Even though a reservation of seats may not come within the mischief of art.28(1), it will be found violative of art.27 if it is found arbitrary and unreasonable, not having any rational nexus with any legitimate governmental objective. Reservation of seats is often discriminatory as such reservation operates against merit. Reservation only on the ground of race, religion, caste or place of birth will be discriminatory under art.28(1). But reservation of some seats for women or backward section of citizens will not be discriminatory in view of the provision of art.28(4).

2.76 Apart from the institutions run by the government, there are recognised or affiliated private institutions. Do these institutions have an absolutely free hand in the matter of admission of students? One may argue that these institutions do not fall within the definition of State and therefore the limitations of the provisions of Part III do not apply to them. In a recent decision the Indian Supreme Court held, "Clearly and indubitably, the recognised/affiliated private educational institutions, supplement the function performed by the institutions of the State. Theirs is not an independent activity but one closely allied to and supplemental to the activity of the State."[3] Referring to arts.14 and 21

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[1] *Nishi Maghu v. J & K*, AIR 1980 SC 1975, 1980

[2] AIR 1981 SC 487, 502

[3] *Unni Krisnan v. A.P.*, AIR 1993 SC 2178, 2246; *Mohini Jain v. Karnataka*, AIR

and the directive principles of State policy, the court held that even in the private institutions the admission process must be fair and must mete out equal treatment and the recognising or affiliating authority of the State must impose conditions upon the private institutions to ensure equal treatment in admission.[1] It cannot be said that the management of the private educational institution has a right to admit non-meritorious candidates by charging a capitation fee as a consideration. This practice strikes at the very root of the constitutional scheme.[2] The fundamental principles of State policy of the Constitution in respect of education are similar to the directive principles of State policy of the Indian Constitution. On the other hand, art.31 is wider in scope than art.21 of the Indian constitution. There is no reason why the decisions of the Indian Supreme Court in this regard shall not be applicable in our jurisdiction.

2.77 ***Discrimination in public employment*** : Art.27 is attracted in all cases of employment by the State[3] and any differentiation between the citizens in respect of all matters concerning public employment, to be valid, must be based on reasonable classification. Statutory corporations are public authorities and are public corporation of public character. The rule of master and servant is not applicable in respect of their employees[4] and being part of the State they cannot act arbitrarily or discriminatorily.[5] The framers of the Constitution, however, attached greater importance to the service of the Republic[6] and re-iterated the guarantee of equality in art.29 which is not attracted in the case of public employment other than in the service of the Republic.[7] Art.29(1) provides, "There shall be equality of opportunity for all citizens in

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1992 SC 1858

[1] Ibid; the reader may see the decision of the High Court Division in *Winifred Rubie v. Bangladesh*, 1981 BLD 30 (reversed in *Bangladesh v. Winifred Rubie*, 34 DLR (AD) 162

[2] *Unni Krisnan v. A.P.*,AIR 1993 SC 2178

[3] Art.152 defines "State" as including Parliament, the Government and statutory public authorities.

[4] *B.S.I.C. v. Mahbub Hossain*, 29 DLR (SC) 41

[5] *Chowdhury Md. Yusuf v. Bangladesh Biman*, 31 DLR 199

[6] Under Art.152 "service of the Republic" means any service, post or office whether in a civil or military capacity, in respect of the Government of Bangladesh, and any other service declared by law to be a service of the Republic.

[7] Corresponding article in the Indian Constitution, Art.16, is not confined to government servants and is applicable in case of all public employment.

respect of employment or office in the service of the Republic". In *Carew and Company v. Labour Court*[1] the High Court Division held the failure of the nationalised company in giving benefits of an agreement to some of its employees to be violative of art.29. It is not understood how the employees of a nationalised company can be treated to be in the service of the Republic to attract the mischief of art.29. In guaranteeing equality of opportunity to all members of the service of the Republic, art.29 really gives effect to the equality before the law and equal protection of law guaranteed by art.27.[2] Art.29(1) is an instance of the application of the general rule of equality prescribed by art.27 and it does not debar reasonable classification.[3] Even under art.27 there is a requirement of maintaining equality in the matter of public employment. Art.29(2) provides, "No citizen shall, on grounds only of religion, race, caste, sex or place of birth, be ineligible for, or discriminated against in respect of, any employment or office in the service of the Republic." The difference between art.27 and art.29(2) is that while under art.27 classification on grounds only of religion, race, caste, sex or place of birth is permissible provided the classification has reasonable or rational nexus with the object of the law, under art.29(2), subject to the exceptions made in art.29(3), a classification on the ground only of religion, race, caste, sex or place of birth, whether reasonable or not, is not permissible. Therefore, subject to the provisions of art.29(3), a classification on ground only of religion, race, caste, sex or place of birth is *per se* unconstitutional in respect of employment in the service of the Republic. We shall first examine the effect of art.27 and art.29(1) on public employment and then discuss the extent of the guarantee under art.29(2). Before we proceed, it must be remembered that equality of opportunity in the matter of employment does not mean equality only in respect of initial appointment. The words "in respect of employment" are wide enough to include all matters in relation to employment, both prior and subsequent to initial appointment; it includes the conditions of service pertaining to the office to which appointment is made, i.e., salary, periodical increments, revision of pay, promotion, terms of leave, gratuity, pension, age of superannuation etc.[4]

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[1] 50 DLR 396

[2] *General Manager v. Rangachari*, AIR 1962 SC 36

[3] *Mysore v. Narasinga Rao*, AIR 1968 SC 349

[4] *Md. Faizullah v. Bangladesh*, 1981 BLD 1; *Gazi Jashimuddin v. Bangladesh*, 50 DLR 31; *General Manager v. Rangachari*, AIR 1962 SC 36; *India v. Kashikar*, AIR 1986 SC 431; see also *Bangladesh v. Md. Azizur Rahman*, 1982 BLD (AD) 176 (plea

2.78 *Public employment - appointments* : The provisions of art.27 and art.29(1) do not exclude the laying down of selective tests, nor do they preclude the government and statutory public authorities from laying down qualifications for the posts in question. Such qualifications need not be only technical, but there can also be general qualifications relating to the suitability of the candidate for public service as such.[1] Art.27 and art.29(1) require that all these must be reasonable and not arbitrary and must have a rational relationship with the suitability of the candidates for the post or office. Educational criteria is acceptable for determining suitability for appointment to a particular post or cadre. Thus a requirement that the professor in orthopedics must have a post-graduate degree in the particular specialty is reasonable and constitutional.[2] In the matter of recruitment of district munsiffs in a State, knowledge of the local law and knowledge of the regional language may be prescribed in the rules as qualifications of a candidate.[3] For selection to an ex-cadre selection post, seniority is not relevant and the government can appoint to such post a person whom it considers most suitable and the court will not interfere except on the ground of *mala fide*.[4]

2.79 In India patwaris in the employment of a State resigned *en masse* to compel the government to accept their demands. The government instead accepted their resignations and created a new service by recruiting new personnel. The old Patwaris were also eligible for the new service, but not the old ones who had taken an active part in the agitation. These persons raised the plea of denial of equal opportunity of employment. The court rejected the plea and opined that the government was within its rights to lay down qualifications for the new recruits and exclude those who showed lack of proper sense of discipline.[5] Appointment falls within the executive sphere and can be made without any formal rules framed. But the posts and the conditions of service must be advertised before making the selection so that every one eligible for the posts may have an opportunity of being considered

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of discrimination in respect of pay rejected)

[1] *Mysore v. Narasinga Rao*, AIR 1968 SC 349

[2] *India v. Dr. Kohli*, AIR 1973 SC 811

[3] *Pandurangarao v. A.P.*, AIR 1963 SC 268 (the rule was declared unconstitutional as the classification made by the rule had no rational nexus with the objective sought to be achieved)

[4] *J.N. Mishra v. Bihar*, AIR 1971 SC 1318

[5] *Banarsi Das v. U.P.*, AIR 1956 SC 520

by the appointing authority.[1] A rule empowered the government to appoint any successful candidate at a competitive examination to any cadre. A candidate was appointed to a lower cadre while other candidates who fared below the former were appointed to the higher cadre. The rule was held discriminatory as it made no provision for testing the candidate's suitability for a particular cadre, did not give an opportunity to a candidate to join the cadre of his preference and vested arbitrary power of patronage in the government.[2] When in selecting candidates the interview committee did not take into account the service records of the candidates and candidates who secured even less than 30% marks at the interview were selected, the court held that selection made on such a poor basis is no real selection and set it aside.[3]

2.79A In order to maintain equality of opportunity in public employment, the method of selection should be such as to exclude the possibility of arbitrariness or pick and choose. Allocation of high marks to *viva voce* test which is subjective makes room for such arbitrariness and pick and choose and therefore the Appellate Division commented in favour of keeping marks for interview to as minimum as possible.[4]

2.80 Arts.27 and 29(1) do not forbid creation of different cadres or categories of posts carrying different emoluments, nor do they stipulate equal pay for equal work. There is no principle that every one appointed to the same post must be paid the same salary irrespective of the method of appointment and the source from which he was drawn for appointment to that post. Classification of tracers into two grades, matriculate tracers with higher pay and non-matriculate tracers with lower pay, is valid under arts.27 and 29(1).[5] Equality under these two articles means equality between the members of the same class of employees and not between the members of separate classes.[6] Giving a special pay to the members of one service, but not to pay it to the members of the other service is not necessarily discriminatory when methods of recruitment, qualifications etc. are not identical in the two services.[7] But when the government makes reference to the Pay

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[1] *Nagarajan v. Mysore*, AIR 1966 SC 1942
[2] *Mysore v. Jayaram*, AIR 1968 SC 346
[3] *Janaki Prasad v. J & K*, AIR 1973 SC 930
[4] *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27
[5] *Mysore v. P.N. Rao*, AIR 1968 SC 349
[6] *C.A. Rajendran v. India*, AIR 1968 SC 507; *Sham Sundar v. India*, AIR 1969 SC 212
[7] *Menon v. Rajasthan*, AIR 1968 SC 81

Commission in respect of all its employees and accepts the recommendation of the Commission, it should implement the recommendation in respect of all the employees and non-implementation of the recommended revised pay scale for certain categories of employees is discriminatory and violates arts.27 and 29(1).[1]

2.81 *Promotion* : No employee has any right to claim promotion. If the rule provides that promotion will be given only on the basis of seniority, promotion given to a junior bypassing the senior who has also the qualification required for the promotion post will be violative of arts.27 and 29(1). Where the promotion post is to be filled up on seniority-cum-suitability basis, the guarantee of arts.27 and 29(1) requires that an employee fulfilling the qualification of the promotion post should be considered for promotion.[2] Thus if a junior employee is promoted without considering the case of the senior employee who fulfills the qualification of the promotion post, the guarantee of equality of opportunity is violated.[3] The appointing authority being the judge of the suitability of a candidate for the promotion post, once the senior employee's case is considered and a junior is promoted, the promotion cannot be challenged as unconstitutional unless it can be shown that the action of the authority is *ex facie* arbitrary or *mala fide* or unreasonable in the *Wednesbury* sense[4]. In selecting candidates for promotion, the annual confidential reports show their performance and hence not more than 15% marks need be allocated for interview.[5]

2.82 In respect of promotion the question of equality of opportunity comes in only when the employees belong to the same grade or category. Persons holding posts in different grades or categories cannot claim equality of opportunity in matters of promotion.[6] Each class may be a separate entity having its own rules of promotion.[7] The railways provide the guards with a better channel of promotion to higher-grade station-masters than to the roadside station masters. This is not discriminatory as the guards and the station-masters belong to separate categories with separate avenues of promotion and equality of opportunity cannot be

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[1] *Purshottam v. India*, AIR 1973 SC 1088
[2] *Delhi Jal Board v. Mahindar*, AIR 2000 SC 2767
[3] *Md. Faizullah v. Bangladesh*, 34 DLR = 1981 BLD 1
[4] *Badrinath v. T.N.*, AIR 2000 SC 3243. For the meaning of reasonableness in the *Wednesbury* sense, see Para 5.72
[5] *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27
[6] *Nurul Islam v. Bangladesh*, 46 DLR (AD) 188
[7] *Sham Sundar v. India*, AIR 1969 SC 212

predicated between them.[1] Difficult questions have at times arisen in matters of promotion from lower to higher grade within the same category. How far distinctions are permissible within the same class for promotion purposes? The general rule is that inequality of opportunity of promotion among the members of a single class, which is based on no rational criteria, is invalid.[2] The court will not countenance 'mini-classification' based on 'micro-distinctions'.[3] However, conditions designed to promote efficiency and best service have been accepted as valid, i.e., the basis of seniority-cum-merit.[4] When employees were recruited from different sources, but were ultimately integrated in one cadre, it would not be valid to accord a favoured treatment to some of them on the basis of source of appointment.[5] But if the employees appointed to a cadre from different sources are not integrated into one class, different rules of promotion according to the original source of appointment may be valid.[6] To the cadre of assistant engineers, graduate engineers could be appointed directly, but diploma-holders could enter by promotion from the lower grade. A rule provided that only graduate assistant engineers would be eligible for promotion to the post of executive engineers. The question was whether such a distinction, based on educational qualification, could be made within the same cadre for purposes of promotion. The court held such a classification valid as it was made with a view to achieve administrative efficiency.[7] But in another case[8], the cadre of supervisors consisted of both graduate and diploma-holder engineers. A rule provided that three out of every four vacancies in the next higher cadre of assistant engineers would be reserved for promotion of graduate supervisors. The court held that the distinction made was unreasonable. Referring to *T.N. Khosa* the court pointed out that the State could say that keeping in view the needs of efficiency, only graduate engineers would be eligible for promotion. But when both are treated as eligible for promotion it is difficult to see how, consistently with the claim for equal opportunity, any differentiation can be made between them by laying down a quota of promotion for each

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[1] Ibid
[2] *Mysore v. Krisna Murthy*, AIR 1973 SC 1146
[3] *J & K v. T.N. Khosa*, AIR 1974 SC 1
[4] *India v. V.J. Karnik*, AIR 1970 SC 2092
[5] *S. M. Pandit v. Gujarat*, AIR 1972 SC 252
[6] *Ram Lal Wadhwa v. Haryana*, AIR 1972 SC 1982
[7] *J & K v. T.N. Khosa*, AIR 1974 SC 1
[8] *Shujat Ali v. India*, AIR 1974 SC 1631

and giving preferential treatment to the graduates. To permit discrimination based on educational qualification not necessitated by the nature of the duties of a higher post is to stifle the social thrust of the equality clause.

2.83 *Seniority* : Seniority is an important factor in the matter of promotion and therefore seniority of employees cannot be fixed or affected arbitrarily without violating the equality clause. As a general rule the *inter se* seniority of employees in a cadre should be fixed on the basis of the date of appointment. When an appointment is made on officiating basis without recommendation of the Public Service Commission and not approved by the President, the claim for seniority from the date of officiating appointment or from a date prior to the recommendation of the Public Service Commission is not tenable in law.[1] Where a cadre consists of both permanent and temporary employees, the date of confirmation, which depends upon various factors often beyond the control of the employees, cannot be a rational criteria for determining seniority as between the permanent and temporary employees. The period of temporary appointment should count for seniority.[2] The period of *ad hoc* appointment for fortuitous reasons or as a stop-gap arrangement cannot rank for the purpose of seniority.[3] In the ultimate analysis the question is whether the employee is a member of the service in which he is to count his seniority. An employee having temporary appointment is not outside the service cadre, but an *ad hoc* appointee is outside the service cadre so that the question of counting his period of service outside the cadre cannot arise. As between persons regularly appointed or promoted, seniority should count from the date of appointment in case of direct recruits and in case of promotion from the date from which the promotee has been officiating

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[1] *Abdul Mannan v. Hasan Mahmud Khandkar*, 1996 BLD (AD) 147

[2] *Patwabardhan v. Maharashtra*, AIR 1977 SC 2051

[3] *Singla v. India*, AIR 1984 SC 1595; *Asoke Gulati v. B.S. Jain*, AIR 1987 SC 424, Para 22 (It is well settled that an *ad hoc* or fortuitous appointment on a temporary or stop-gap basis cannot be taken into account for the purpose of seniority even if the appointee was qualified to hold the post on a regular basis as such temporary tenure hardly counts for seniority in any system of service jurisprudence); in *Bangladesh v. Azizur Rahman*, 46 DLR (AD) 19, the Appellate Division upon consideration of the relevant rules made a distinction between *ad hoc* appointment for limited period on lump sum salary and *ad hoc* appointment on scale of pay continued for indefinite period and held that the incidence of *ad hoc* appointment does not attach to latter type of *ad-hoc* appointment.

continuously either in temporary posts created or in substantive vacancies to which he was appointed.

2.84 Where the cadre consists of persons recruited or promoted from the same source, their seniority *inter se* should be governed by the period of continuous appointment in or promotion to the grade in respect of which seniority is to be fixed.[1] But where the cadre consists of persons recruited from different sources, i.e., direct recruits and promotees, it was not unconstitutional to fix the seniority on rotational basis as the recruits form two classes from the time of their recruitment.[2] But no differentiation is permissible after recruits from different sources have been integrated into one grade.[3] However, even after integration, a classification may be made for the purpose of promotion if the differentiation is for administrative efficiency, e.g., preference given to the degree-holders to the exclusion of the diploma-holders.[4] The moot question is whether the differential treatment is based on reasonable classification and where the differential treatment is founded on the fact that the recruits belong to two different groups or classes, but the differences between the two groups are not sufficient to warrant differential treatment, or in other words, there is no reasonable nexus between the differences and the recruitment, the classification will be unconstitutional.[5]

2.85 When seniority is fixed, an employee has a vested right to it.[6] Once determined, the question of seniority should not be re-opened after a lapse of reasonable period[7] unless necessitated by a new or amended rule which has been given retrospective effect[8]. A question, however, arises whether by giving retrospective effect to a new rule or by an amendment of an old rule the vested right to seniority under the old rule can be prejudicially affected? Assuming that the government has the power to make rules or amend the existing rules with retrospective effect

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[1] *Mervyn v. Collector of Customs*, AIR 1967 SC 52
[2] *Govinda v. Chief Controller*, AIR 1967 SC 839
[3] *T.N. Educational Services Association v. T.N.*, AIR 1980 SC 379
[4] *General Manager v. Shiddhanti*, AIR 1974 SC 1755; *Orissa v. Khageswar*, AIR 1975 SC 1906
[5] *Mervyn v. Collector of Customs*, AIR 1967 SC 52
[6] *Md. Faizullah v. Bangladesh*, 1981 BLD 1
[7] *Bajwa v. Punjab*, AIR 1999 SC 1510
[8] *Mohan Reddy v. Charles*, AIR 2001 SC 1240

under art.133[1], if the new rule or the amended rule purports to take away the vested right to seniority and is arbitrary and not reasonable, then such retrospective rule will be violative of arts.27 and 29(1).[2] Thus when a person joined as Assistant Engineer and was allowed under the rules to count the period of his military service, subsequent amendment of the rules excluding the period of the military service retrospectively for fixation of his seniority is unconstitutional.[3] In *Bangladesh v. Azizur Rahman*[4] a rule of 1990 was challenged as violative of arts.27, 29 and 31.[5] It was contended, *inter alia*, that the writ petitioners had vested right of seniority under the previous dispensation and as seniority is inextricably connected with employment, it cannot be affected without violating art.29. The Appellate Division rejected the contention stating-

> Though by seniority alone a person cannot earn promotion, he, by virtue of seniority, has a right to be considered for promotion. In the instant case, the impugned rules did not deprive the writ petitioners of their right to be considered for promotion. At best they may say that their chances for promotion has been reduced to a great extent thereby. Reduction of chance of promotion does not amount to deprivation of the right to equal opportunity for employment.

It is submitted that the Appellate Division has not properly appreciated the meaning of 'chance of promotion'. When a man's seniority is affected and is placed below the position he is entitled to, it is not called a reduction of the 'chance of promotion'. When as a result of change of rules or reorganisation the number of posts available for promotion is reduced it results in a reduction of the chance of promotion.[6] Seniority has no value whatsoever except that it gives an employee a right to be considered for promotion. If he is No.1 in the seniority list, no one junior to him can be promoted before his case is considered. But if he is down-graded to No.10 and one post is available for promotion, what is done generally is that the cases of the top 4 or 5 persons are sent to the

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[1] See Para 6.20

[2] *P.D. Agarwal v. U.P.*, AIR 1987 SC 1676, 1685. Under our constitutional dispensation, the retrospectivity will also have to be tested for reasonableness under art.31 - see Para 2.109

[3] *K.C. Arora v. Haryana*, AIR 1987 SC 1858

[4] 46 DLR (AD) 19

[5] For facts of the case see Para 2.34

[6] see *Deodhar v. Maharashtra*, AIR 1974 SC 259; *Sujat Ali v. India*, AIR 1974 SC 1631; *Reserve Bank of India v. Sahasranaman*, AIR 1986 SC 1830

selection committee and one of them is selected. The No.10 graded person cannot complain. Thus when the writ petitioners' seniority was affected, it affected their right to be considered for promotion. By terming it as a reduction of the chance of promotion seniority is rendered valueless. If it is only a question of reduction of the chance of promotion, there is no reason why an employee jealously guards it and why it will be considered as an important term of employment and there are so many varieties of rules to grapple with the problems relating to seniority.

2.86 In *Zainul Abedin v. Bangladesh*[1] grant of two-years ante-dated seniority in favour of the freedom fighters was challenged. S.M. Hussain J (with whom A.W. Chowdhury J agreed) found the rules violative of arts.27 and 29 as, in view of the learned Judge, arts.27 and 29 kept no scope for classification between freedom fighters and non-freedom fighters and art.29(3) has not protected such a classification. M.H. Rahman J dissented finding that in view of the attending circumstances including the history of liberation struggle, the classification cannot be said to be arbitrary or unreasonable. It is submitted that the dissenting view is correct. In view of the presumption of constitutionality of classification, the onus was upon the petitioner to show that the classification was arbitrary. The majority overlooked that neither art.27 nor art.29(1) prohibited differential treatment and all that these articles require is that there should be reasonable nexus between the classification and the legitimate governmental objective sought to be achieved. Reference to art.29(3), it is submitted, is not correct inasmuch as art.29(3) does not prohibit classification, but merely takes certain cases out of the purview of the equality clause. Any differentiation not covered by art.29(3) does not *per se* become unconstitutional and such differentiation is invalid only on showing that it proceeds upon arbitrary or unreasonable classification. S.M. Hussain J did not go into the question of reasonableness of the classification at all. In *M.M. Shahidur Rahman v. Bangladesh*[2] the respondents were appointed after the petitioner after liberation of Bangladesh, but they served under the Mujibnagar Government in different capacities and were out of employment after liberation. The impugned rules provided for counting the period of service under the Mujibnagar Government and for treating the period of unemployment as leave without pay in determining the

[1] 34 DLR 77; see also *Aminul Islam v. Bangladesh Biman*, 1982 BLD 1
[2] 46 DLR 187

seniority of the respondents. The court rejected the challenge under the equality clause holding, "The impugned Rules were made for limited purpose of treating the services rendered by them at Mujibnagar and treating the period for which the Government could not keep them employed as leave without pay."

2.87 *Termination of service* : There should be no discrimination in the matter of termination of service. If out of a large number of employees, one is reverted even though persons junior to him are allowed to officiate, the action will be discriminatory and unconstitutional.[1] The constitutional provisions make no distinction between temporary and permanent posts and are applicable to all posts equally. Retrenchment of employees in a department by applying a selective test is not unconstitutional provided that the test is not arbitrary or unreasonable. A selective test cannot be unreasonable or arbitrary if there is some proximate connection between the test and efficient performance of duties of the relevant office.

2.88 In the service rules of the statutory corporations, often a power is given to the corporation to terminate the services of permanent employees without assigning any reason, giving notice of a fixed period or paying salary for that period in lieu of notice. This is purely a grant of unfettered and uncanalised power to select employees for termination without any guideline whatsoever and on the principle enunciated in *Dr. Nurul Islam v. Bangladesh*[2] such a grant of power is violative of art.27 of the Constitution. In several cases, the Indian Supreme Court declared such a power of termination to be violative of the equality clause.[3] The High Court Division set aside an order of termination of service of several employees of the Parjatan Corporation under rule 41(2)(i)(a) of the corporation's service rules which permitted the corporation to terminate the services of employees without assigning any reason by giving notice of a fixed period or paying salary of the notice period. The Appellate Division set aside the order of the High Court Division in *Bangladesh Parjatan Corporation v. Shahid Hossain*[4]. It could very

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[1] *U.P. v. Sughar Singh*, AIR 1974 SC 423

[2] 33 DLR (AD) 201

[3] *West Bengal State Electricity Board v. Desh Bandhu*, AIR 1985 SC 722; *Central Inland Water Transport Corporation v. Brojo Nath*, AIR 1986 SC 1571; *O.P. Bhandari v. Indian Tourism Development Corporation*, AIR 1987 SC 111; *Delhi Transport Corp. v. D.T.C. Mazdoor Congress*, AIR 1991 SC 101

[4] 43 DLR (AD) 154

well be argued that the rule conferring unfettered discretion on the corporation was violative of art.27, but no such argument was advanced.[1]

2.88A *Conditions of service:* Discrimination in the matter of conditions of service of the same category of employees is a violation of arts.27 and 29. Thus disparity in the wages in the promoted post depending on the date of promotion[2], or payment of higher emolument to the staff of one unit as against the staff of other units[3] or making a distinction between a person marrying during service and a person marrying after retirement in the Pension Rules[4] constitutes discrimination. The equality clause is also applicable in respect of leave, allowances, superannuation and other service terms and benefits. Order of transfer often causes a lot of difficulties and dislocations in the family, but on such ground an order cannot be struck down as arbitrary and violation of arts.27 and 29. Unless such order is passed *mala fide* or in violation of the rules of service and guidelines for transfer without any proper justification, the court should not interfere with the order of transfer. In a transferable post, an order of transfer is a normal incident and personal difficulties are matters for consideration of the department.[5] Even if an order of transfer is made without following the guidelines issued by the government, that cannot be interfered with by the court unless it is vitiated by *mala fide* or is made in violation of any statutory provision or is made by an incompetent authority.[6]

2.89 We have seen the meaning and content of the principle of equality of opportunity of employment under art.27. Art.29(1) specifically incorporates that principle in respect of the service of the Republic.

2.90 Art.29(2) provides further guarantee in respect of the service of

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[1] The point was raised in the review application, but the Appellate Division though found that the rule was capable of being applied discriminatorily did not review the judgment as it was altogether a new ground which could not be considered in review. See *Bangladesh Bank v. Abdul Mannan*, 46 DLR (AD) 1, 7

[2] *Bhoomi Vikash Bank Ltd v. Its Workmen*, AIR 1990 SC 495

[3] *Gopika Ranjan v. India*, AIR 1990 SC 1212

[4] *Bhagwati v. India*, AIR 1989 SC 2088

[5] *Rajendra Roy v. India*, AIR 1993 SC 1236; see also *Gujrat Electricity Bd. v. Atmaram*, AIR 1989 SC 1433; *Bangladesh v. Md. Farouque*, 51 DLR (AD) 112

[6] *India v. S.L. Abbas*, 1993 Labour IC 1311; *State Bank of India v. Anjan Sanyal*, AIR 2001 SC 1748

the Republic in that no citizen shall be discriminated against on the ground only of religion, race, caste, sex and place of birth in the matter of employment. The effect of the word 'only' in art.29(2) is the same as in art.28(3).[1] Thus reservation of posts in favour of Hindus, Muslims and Christians is inconsistent with the provisions of art.29(2).[2] Art.29(2) makes place of birth, but not residence[3], a prohibited ground of differentiation. Hence introduction of quota system area-wise will not offend art.29(2). But preference given to some necessarily involves discrimination against others and introduction of quota system may offend the general principle of equality under art.27 and art.29(1) and must satisfy the requirement of reasonable classification. The State may have a legitimate interest in equal development of all areas and reservation of posts area-wise within reasonable limits may under certain circumstances be found to be valid in terms of arts.27 and 29(1). But it should be seen that such reservation should not be made in such manner as to destroy the guarantee under arts.27 and 29(1).

2.91 Art.29(3) incorporates some exceptions to the prohibition contained in art.29(1)&(2). It provides that nothing in art.29(1)&(2) shall prevent the State from (a) making special provision in favour of any backward section of citizens for the purpose of securing adequate representation in the service of the Republic; (b) giving effect to any law which makes provision for reserving appointments relating to any religious or denominational institution to persons of that religion or denomination; and (c) reserving for members of one sex any class of employment or office on the ground that it is considered by its nature to be unsuited to members of the opposite sex. The expression 'special provision in art.29(3)(a) includes reservation as also preference, concession and exceptions.[4] Such provision can be made not only by law, but also by executive orders.[5] From a reading of art.29(3) it is clear that the exception is only with regard to appointment and not with regard to conditions of service, increment, gratuity, pension and age of superannuation. As such any differentiation regarding conditions of service etc. must be based on reasonable classification even in respect of backward section of the citizens. The reservation in the service of the

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[1] See Para 2.72
[2] *Venkataraman v. Madras*, AIR 1951 SC 229
[3] See Para 2.72
[4] *Indra Sawhney v. India*, AIR 1993 SC 477
[5] Ibid.

Republic can be made not only at the initial stage of recruitment, but also in the matter of promotion. Selection posts may also be reserved for backward section. The words 'adequate representation' are sufficiently expressive to import consideration of 'size' as also 'values'.[1]

2.92 Art.29(3) does not, however, confer any right on any one, nor impose any constitutional duty on the State to make the reservation. In the face of art.29(1)&(2), it merely confers an enabling power. But as it is an exception to the guarantee of art.29(1)&(2) it should not be interpreted or given effect to in such a way as to nullify the guarantee under art.29(1)&(2). The Indian Supreme Court held that reservation in excess of 50% would be unconstitutional.[2] In the backdrop of the social condition prevailing in Bangladesh it will have to be considered up to what percentage reservation of posts for backward section of the citizens will not be unconstitutional.

2.93 We are to consider the meaning of 'backward section'. Art.29 is comparable with art.16 of the Indian Constitution which uses the expression 'backward class' whereas the expression used in art.29(3) is 'backward section'. The Indian Supreme Court has interpreted the expression 'backward class' in several decisions.[3] Those decisions may be helpful, but not decisive, in interpreting 'backward section. This expression has no reference to 'race' or 'caste' and there may be 'backward section' within a race or caste which as a whole may not be backward. But as identification of 'backward section' may coincide with a race or caste and reservation for a 'backward section' may be challenged as violative of art.29(1)&(2), reservation in favour of 'backward section' has been included within the exceptions to art.29(1)&(2). However, such a reservation must not be arbitrary or unreasonable so as to offend art.27 operation of which is not excluded by art.29(3).

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[1] *General Manager v. Rangachari*, AIR 1962 SC 36; *Punjab v. Hira Lal*, AIR 1971 SC 1777

[2] *Devadason v. India*, AIR 1964 SC 179; In *Indra Sawhney v. India*, AIR 1993 SC 477, it was held that a year should be taken as a unit or basis for applying the rule of 50% and not the entire cadre strength.

[3] The latest decision of *Indra Sawhney v. India*, AIR 1993 SC 477, reviews the earlier decisions in this matter.

PROTECTION OF LAW

2.94 Art.31 guarantees the protection of law. It has two parts - (i) the citizens and the residents of Bangladesh have the inalienable right to be treated in accordance with law and (ii) no action detrimental to the life, liberty, body, reputation or property of any citizen or resident of Bangladesh shall be taken except in accordance with law. The second part is illustrative of the first. Art.31 is wider in its scope and operation than the due process clause of the American jurisdiction inasmuch as it covers the entire range of human activities and is attracted when a person is adversely affected by any State action irrespective of the question whether it affects life, liberty or property. The American due process clause is attracted only when the detrimental action relates to life, liberty or property of a person. We shall discuss the meaning of life, liberty, body, reputation and property as the article has put special emphasis on these aspects, but it must be understood that the article is not confined to these aspects only.

2.95 ***Meaning of "in accordance with law"***: The key expression in this article is 'in accordance with law' and the content of this fundamental right depends on the meaning of this expression.

2.96 When the Pakistan Constitution of 1962 was promulgated no bill of rights was included in it. Instead, art.2 was included which in language is similar to that of the present art.31. Even before promulgation of the Constitution of 1962 the position in law so far as the executive power was concerned was that the executive could take any action without any specific statutory sanction, but an action which prejudicially affected the right or liberty of any person ought to have the authority of law to support it.[1] The government often claims its action to be an 'act of State' which is not subject to law. Whether or not a particular act can be treated as an 'act of State', the courts have taken the view that with respect to the citizens, there can be no 'act of State' and the government has only such powers as are granted to it by the law of

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[1] *Mohammad Hossain v. General Manager, E.B. Railway*, 14 DLR 874 (Any invasion upon the rights of citizens by any body, no matter whether by a private individual or by a public official or body, must be justified with reference to some law of the country, otherwise, such invasion would be illegal); *Ram Jawaya Kapur v. Punjab*, AIR 1955 SC 549; *Brahmanbaria Paurashava v. Bangladesh*, 51 DLR (AD) 64 (No action detrimental to vested right of an individual or a corporate body can be taken except in accordance with law); however, when a privilege given is not availed, it cannot be equated with a vested right – *Janapriya Rice Mills v. Bangladesh*, 1997 BLD 63

the country.[1] In *Jamal Shah v. Election Commissioner.*[2] kaikaus J of the Pakistan Supreme Court observed that art.2 did not effect any change of law but merely negatived any claim of any inherent power of the government to deal with the subjects without the backing of law.[3] Subsequently, a bill of rights was incorporated by amendment of the constitution, but art.2 was not included in the list of the fundamental rights.

2.97 A plain reading of art.2 of the Pakistan Constitution of 1962 showed that for any governmental interference with the right of any person, there must be a law which authorised such action at the time of taking the action. Murshed J took the view -

> It (art.2) furnishes a citizen with a constitutional guarantee that he will not be called upon to do something or to refrain from doing anything without a valid provision of law to that effect. This means that there is a constitutional protection in *praesenti*; or, in other words, whenever an order is made, which invades upon the rights of a citizen or requires him to do something, there must be, in existence, contemporaneously, a law which would authorise such a course.[4]

He further observed that such an order without authorisation of law "was a still-born order and no life can be imparted to it by a subsequent legislation without a constitutional amendment."[5] In other words, the legislature cannot retrospectively validate such an unlawful action. The Pakistan Supreme Court, however, upon consideration of the fact that art.2 did not guarantee a fundamental right held that art.2 could not be conceived to produce so wide an effect as to prevent the legislature from making retrospective legislation.[6]

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[1] *Mir Ahmed Nawaz Khan v. Superintendent, Lyallpur Jail*, PLD 1966 SC 357, 360

[2] 18 DLR (AD) 1, Para 55

[3] Kaikaus J, however, observed in *Jamal Shah* (ibid) "It ... debars the legislature from creating an authority whose actions are not subject to law. The legislature cannot, in the face of Art.2, enact that whatever action a particular person may take shall be immune from challenge." – Para 56

[5] *Ghulam Zamin v. A.B. Khondker*, 16 DLR 486, Para 101

[5] Ibid

[7] *Mohd. Yusuf v. Chief Settlement Commissioner*, 20 DLR (SC) 187 (on the question of contemporaneous law, the observation of the court at p.193 shows that the court did not finally decide the question and kept it for consideration in the appeal against the decision of the High Court in *Ghulam Zamin* and, in fact, at p.194 the court found that the parties in this case were dealt with in accordance with contemporaneous law and the

2.98 In the backdrop of these events, the framers of the Constitution included art.31 in Part III of the Constitution. If they intended to protect the individuals against unauthorised executive actions only, art.31 was totally unnecessary. The Constitution in art.26(2) mandates that the State (which includes Parliament) shall not make a law inconsistent with the provisions of Part III and includes the provision of art.31 in Part III. This entrenchment must be given a meaning. As such art.31 must be read as guaranteeing a fundamental right and as a limitation on the power of Parliament in the enactment of laws.[1] If the expression 'in accordance with law' is interpreted to mean any law passed by Parliament, art.31 will cease to be a fundamental right as such an interpretation takes away the entrenchment on the power of Parliament which is the quintessence of a fundamental right and such an interpretation will make a non-sense of the entrenchment by art.26.[2] Furthermore, it is a requirement of the concept of rule of law that the law must be reasonable and not arbitrary and the Constitution seeking to establish rule of law, the framers cannot but be taken to have used the expression 'law' in art.31 in a sense which comports with the concept of rule of law. Art.21 of the Indian Constitution provides that there shall not be any deprivation of life or personal liberty except according to 'procedure established by law'. In the beginning, the Indian Supreme Court refused to import the concept of reasonable and non-arbitrary 'procedure established by law'.[3] Subsequently, realising that such an interpretation is inconsistent with the provisions of art.21 as a fundamental right, the Indian Supreme Court held that 'procedure established by law' must mean reasonable and non-arbitrary procedure and not any procedure that may be prescribed by Parliament.[4] Thus in order to preserve the integrity of art.21 as a fundamental right, the Indian Supreme Court virtually imported the concept of due process as is known in the American jurisdiction. Even though art.2 was not incorporated as a fundamental right in the Pakistan Constitution of 1962, Hamoodur Rahman J observed,

> Law here is not confined to statute law alone but is used in its generic sense as connoting all that is treated as law in this country including

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question relating to restrospectivity was not moot.)

[1] see *Ong Ah Chuan v. Public Prosecutor*, [1981] AC 648, 671

[2] *Ong Ah Chuan v. Public Prosecutor*, [1981] AC 648, 671

[3] *Gopalan v. Madras*, AIR 1950 SC 27

[4] *Maneka Gandhi v. India*, AIR 1978 SC 597; *Sunil Batra v. Delhi Administration*, AIR 1978 SC 1675; *Jolly George v. Bank of Cochin*, AIR 1980 SC 470

> even the judicial principles laid down from time to time by the Superior Courts. It means according to the accepted forms of legal process and postulates a strict performance of all the functions and duties laid down by law. It may well be, as has been suggested in some quarters, that in this sense it is as comprehensive as the American `due process' clause in a new garb.[1]

Art.31 finding its place in Part III and not speaking about procedure only cannot but be taken to be an incorporation of both substantive and procedural 'due process' as is known in the American jurisdiction[2] and the expression 'law' must mean reasonable and non-arbitrary law in both substantive and procedural aspects.[3]

2.99 ***American 'due process':*** In order to understand the actual content of art.31, it will be helpful to know the content of the due process clause as contained in the Fifth and Fourteenth Amendment of the American Constitution. The Fifth Amendment relates to federal action while the Fourteenth Amendment deals with State action. Both these amendments prohibit deprivation of life, liberty or property 'without due process of law'. The American Supreme Court has never attempted to define with precision the expression 'due process of law' as it is not susceptible of more than a general statement of its intent and meaning.[4] The essence of the concept is fairness and avoidance of arbitrariness. The concept has two aspects - procedural and substantive. The procedural due process is the American counterpart of the English principles of natural justice with the difference that while the principles of natural justice can be excluded by statute, the due process requirement cannot be so excluded.

2.100 Procedural due process makes it necessary that one whom it is sought to deprive of any right or liberty must be given notice of the proceedings against him, must be given reasonable opportunity to defend himself and the problem of propriety of the deprivation, under the circumstances presented, must be resolved in a manner consistent

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[1] *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (SC) 1, 12; *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1, 21

[2] *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111; 122 (Art.31 is the analogue of the American due process concept)

[3] It may be seen that the definition of `law' given in Art.152 is not confined to law made by or under the authority of Act of Parliament.

[4] 16A Am Juris 2d, Const. Law, Para 807

with essential fairness.[1] Due process is flexible and calls for such procedural protections as the particular situation demands.[2] Consideration of what due process may require under any given circumstances must begin with a determination of the precise nature of the governmental function involved as well as the private interest that has been affected by the governmental action.[3] The contents of the notice and the nature of the hearing must be such that the individual may know the allegations against him and may have reasonable and meaningful opportunity of defending himself. Thus the accusation must not be vague and must include material facts and the individual is given such opportunity of defending himself as fairness may demand in the facts and circumstances of a given case. It is also required that the hearing takes place before an impartial tribunal.

2.101 Whatever be the form of the notice and hearing, an individual must be given an opportunity for hearing before action is taken against him.[4] "If the right to notice and a hearing is to serve its full purpose, then, it is clear that it must be granted at a time when the deprivation can still be prevented."[5] It is only in an extraordinary situation where some valid governmental interest is at stake that postponing the hearing until after the event may be justified.[6] Such an extraordinary situation was presented in the seizure of property to collect internal revenue of the government[7], to meet the needs of national war effort[8], to protect the people against the economic disaster of a bank failure[9] and to protect the public from misbranded drugs[10] and contaminated foods[11]. Postponement of notice and hearing until after taking action was found justified to stop transportation of a controlled substance like marijuana[12] or to prevent the immediate danger to public health or safety resulting

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[1] Ibid, Para 813
[2] *Morrisey v. Brewer*, 408 US 471, 481
[3] *Cafetaria & Restaurant Workers Union v. McElroy*, 367 US 886, 895
[4] *Boddie v. Connecticut*, 401 US 67, 81
[5] *Fuentes v. Shevrin*, 407 US 67, 81
[6] *Boddie v. Connecticut*, 401 US 371, 379
[7] *Phillips v. Commission*, 283 US 589
[8] *Central Union Trust Co. v. Garvan*, 254 US 554
[9] *Fahey v. Mallonee*, 332 US 245
[10] *Ewing v. Mytinger & Casselberry*, 332 US 245
[11] *North American food Co. v. Chicago*, 211 US 306
[12] *Calero-Toledo v. Pearson Yacht Leasing Co.*, 416 US 663

from a mining disaster.[1]

2.102 Even the application of the fairest procedure may destroy the enjoyment of life, liberty or property if the law is unreasonable or arbitrary. So substantive due process guarantees that no person shall be deprived of his life, liberty or property for arbitrary reasons, such a deprivation being constitutionally supportable only if the conduct from which the deprivation flows is proscribed by a reasonable legislation reasonably applied. It is a limitation on arbitrary power and a guarantee against arbitrary legislation demanding that "the law shall not be unreasonable, arbitrary or capricious and that the means selected shall have a real and substantial relation to the object sought to be attained."[2] A statute prohibiting any person from selling any publication from which the title page or cover or identification marks have been removed or obliterated is unconstitutional as it does not serve any legitimate governmental purpose and is thus violative of due process.[3]

2.103 *Test of reasonableness:* When it is said that substantive due process requires a law to be reasonable, the question arises: reasonable in relation to what? The American Supreme Court evolved the concept of 'police power', which is a short description of the inherent power of the State to promote the general welfare of the community, and judged reasonableness of laws in relation to the police power of the State.[4] But the question still remains as to whose conception of reasonableness is to control - that of the legislator or that of the court? In *Lochner v. New York*[5] a New York statute prescribed maximum hours of work for bakers. The court substituted its judgment for that of the legislators to hold the statute arbitrary. The court held -

> It is manifest to us that the limitation of the hours of labor as provided for in this section of the statute ... has no such direct relation to, and no such substantial effect upon, the health of the employee, as to justify us in regarding the section as really a health law. It seems to us that the real

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[1] *Hodel v. Virginia Surface Mining*, 452 US 264

[2] *Nebbia v. New York*, 291 US 502; *West Coast Hotel v. Parrish*, 300 US 379

[3] *People v. Bunis*, 9 NY 2d 1

[4] Schwartz - Constitutional Law, p.204

[5] 198 US 45; *Adams v. Tanner*, 244 US 590 (A law prohibiting taking of fees from persons seeking employment which virtually prohibited private employment-agency business, was struck down by the court upon a view that abuses in the business could have been dealt with by regulatory measures and prohibition of the business was unnecessary and arbitrary.)

> object and purpose were simply to regulate the hours of labor between the master and his employees (all being men, sui juris), in private business, not dangerous in any degree to morals, or in any real and substantial degree to the health of he employees. Under such circumstances the freedom of master and employee to contract with each other in relation to their employment, and in defining the same, cannot be prohibited or interfered with, without violating the Federal Constitution.

Holmes J dissented, saying, "This case is decided upon an economic theory which a large part of the country does not entertain." According to him, it is an awesome thing to strike down an act of the elected representatives of the people, and that the power to do so should not be exercised save where the occasion is clear beyond fair debate. The court soon, however, started shifting from the *Lochner* approach. The legislators are the elected representatives of the people on whom the constitution casts the responsibility of making laws for the welfare of the society and the court should not lightly interfere with their judgment. The court, upon reconsideration of the matter, began to defer to the wisdom of the legislature saying that they are principally the judge of the reasonableness of a law. Attack on legislation on the ground of substantive due process was of no avail unless it became clear that the legislators acting reasonably could not have passed the challenged law. In *West Coast Hotel v. Parrish*[1] the Supreme Court upheld a statute fixing minimum wages for women holding -

> What can be closer to the public interest than the health of women and their protection from unscrupulous and overreaching employers? And if the protection of women is a legitimate end of the exercise of State power, how can it be said that the requirement of the payment of a minimum wage fairly fixed in order to meet the very necessities of existence is not an admissible means to that end?

In applying the due process test the court has abandoned the *Lochner* approach and now the issue is whether the statute challenged is so clearly arbitrary that the legislators acting reasonably could not have believed it necessary or appropriate for the legitimate governmental objective sought to be achieved. The judiciary "may not sit as a super-legislature to judge the wisdom or desirability of legislative policy determinations ... in the local economic sphere, it is only the ... wholly

[1] 300 US 379

arbitrary act which cannot stand."[1] In *Williamson v. Lee Optical Co.*[2] a law prohibited eyeglass wearers from changing the frame or lens of eyeglass without first obtaining a prescription from an ophthalmologist or optometrist and this took away substantial and profitable business from the opticians. In many cases this requirement is needless and wasteful, as for example, in cases where the lens or the frame has been broken and there is no real necessity of eye examination. But the court took into consideration the fact that there were enough cases where prescriptions were necessary to justify the law and the legislature may reasonably conclude that eye examination is so critical for correction of vision and detection of latent eye diseases that every change of frame or lens should be accompanied by a prescription. The court thus found the required rational relationship between the legal provision and the public health and upheld the law even though its economic effect was to divert from the opticians a substantial part of their business. In *Euclid v. Amber Realty Co.*[3] the Supreme Court upheld the constitutionality of a zoning law which permitted zoning and town planning restricting the use of land by the land owners recognising the fact that the realities of modern city life require such a regulation which has a real and substantial relationship to public safety and welfare. A statute provided that any employee entitled to vote might absent himself from employment for specified time on the day of election and the employer was prohibited from deducting wages for such absence. Question arose whether it amounted to anunlawful deprivation of the property right of the employer. The legislative judgment that the time out for voting costs the employer nothing is debatable, but the court deferring to the legislative judgment observed, "Our recent decisions make plain that we do not sit as a super-legislature to weigh the wisdom of legislation nor to decide whether the policy which it expresses offends public welfare."[4] Thus

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[1] *New Orleans v. Dukes*, 427 US 297, 303; *Ferguson v. Skrupa*, 372 US 726 (a law made it a crime to engage in the business of debt adjusting except as an incident of the lawful practice of law. Following *Adams v. Tanner* (ibid) it was argued that the abuses of the business could be corrected by regulatory measures. The court overruled *Adams* holding the challenged law valid and observed that it was not for the judges to strike down a prohibitory law on the ground that less drastic measures would be adequate; it is for the legislature and not for the court to make the choice about proper remedy; the court cannot hold a law unconstitutional on a finding that the legislature had acted unwisely); *Whalen v. Roe*, 429 US 589

[2] 348 US 483

[3] 272 US 365

[4] *Day-Brite Lighting Inc v. Missouri*, 342 US 421, 423

when a statute involving matters other than personal rights is challenged as violative of the due process clause, the court inquires whether the legislators acting as reasonable men would have been satisfied that there was a rational relationship between the provisions of the statute and the legitimate governmental objective sought to be achieved. "If the required rational relation is present, it makes no difference that there exists differences of opinion on the efficacy of the particular measure. The very existence of differing views indicates that the matter was open to discussion and the legislative judgment was, at the minimum, reasonable."[1]

2.103A When, however, life or personal liberty is involved, the American Supreme Court goes for a stricter scrutiny of reasonableness. "The presumption of constitutionality gives way today more readily in cases where life and liberty are restrained. The legislative judgment is scrutinized with greater care to ensure that personal rights are not impaired."[2] In *Moore v. East Cleveland*[3] a zoning ordinance limited residence in a dwelling unit to the nuclear family. Mrs. Moore was living in a house together with her son and two grandsons who were cousins so that they did not form one family within the meaning of the ordinance and Mrs. Moore was convicted for the offence of violating the ordinance. The ordinance was held to be violative of the due process guarantee as the court found the law to be an unreasonably intrusive regulation of the family. Powell J deliberated -

> The city seeks to justify it as a means of preventing overcrowding, minimizing traffic and parking congestion, and avoiding an undue financial burden on East Cleveland's school system. Although these are legitimate goals, the ordinance before us serves them marginally, at best. For example, the ordinance permits any family consisting only of husband, wife and unmarried children to live together, even if the family contains half a dozen licensed drivers, each with his or her own car. At the same time it forbids an adult brother and sister to share a household, even if both faithfully use public transportation. The ordinance would permit a grandmother to live with a single dependent son and children, even if his school-age children number a dozen, yet it forces Mrs. Moore to find another dwelling house for her grandson, John, simply because of the presence of his uncle and cousin in the same household.

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[1] Schwartz - Constitutional Law, p.207
[2] Ibid, p.236
[3] 431 US 494

> We need not labor the point. Section 1341.08 has but a tenuous relation to alleviation of the conditions mentioned by the city.

2.104 Apart from the requirement of rational relationship between the provisions of a statute and legitimate governmental objectives, the due process concept requires that laws should not be vague or disproportionate to the mischief sought to be remedied. Penal laws which did not provide ascertainable standard of guilt[1] and other laws from the language of which it was not definitely ascertainable what was permissible and what was not[2] have been held unconstitutional. In *Giaccio v. Pennsylvania*[3] it was held, "... a law fails to meet the requirements of the Due Process Clause if it is so vague and standardless that it leaves the public uncertain as to the conduct it prohibits or leaves the judges or jurors free to decide, without any legally fixed standards, what is prohibited and what is not in each particular case." A law is also struck down if it is found to be in excess of the requirement to remove the evil sought to be remedied by the law.

2.105 ***Sweep of art.31:*** Art.31, it is submitted, envisages a concept similar to the due process concept of the American Constitution and demands reasonable and non-arbitrary laws and procedures. Art.31 prohibits Parliament from passing an unreasonable or arbitrary law, both from the substantive and procedural points of view. From the substantive point of view a law will be violative of art.31 if the court finds that it is so demonstrably unreasonable or arbitrary that the members of Parliament acting as reasonable men could not pass that law.[4] In other words, a law shall pass the test of art.31 if there is a rtional relationship between the provision of the law and the legitimate governmental objective sought to be achieved. A law cannot be struck down merely on the assertion that it is arbitrary, the unconstitutionality

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[1] *Musser v. Utah*, 338 US 95; *Herndon v. Lowry*, 301 US 241; *Ferguson v. Skrupa*, 372 US 726

[2] *Connaly v. General Construction co.*, 269 US 385 (law requiring a contractor to pay his employees "not less than the current rate of per diem wages in the locality"); *U.S. v. Cohen Grocery Co.*, 255 US 81 (law seeking to punish any person who wilfully makes "any unjust or unreasonable rate or charge in handling or dealing in or with any necessaries"); *Joseph v. Wilson*, 343 US 495 (a cinematograph licensing law prohibiting exhibition of sacrilegious films)

[3] 382 US 399, 402; *Kolender v. Lawson*, 451 US 352

[4] See para 2.103; *Shohan Ajmee v. Commr. of Customs*, W.P. 1882 of 2000, unreported (Whether law is reasonable is to be seen through the eyes of the legislators; if the legislators thought it to be so, it cannot be unreasonable)

must be plainly and clearly established.[1] A law when passed may be justified, but may later on become arbitrary or unreasonable with the lapse of time and change of circumstances.[2] A law will not pass the test of art.31 if it is found to be vague, uncertain or grossly in excess of the requirement as stated in the foregoing paragraph. If there is some legitimate reason for a provision of law, it cannot be arbitrary merely because it operates harshly.[3]

2.106 The article speaks of treatment to be accorded to persons who are citizens or who, though not citizens, are for the time being is present in Bangladesh[4]. A person may be detrimentally treated not only by action, but also by inaction and inaction may contravene the article when it is arbitrary or unreasonable. Arts.31 and 32, though couched in negative language, confer fundamental right to life, liberty, body, reputation and property and the State cannot by unreasonable or arbitrary action or inaction deny the right.[5] The governmental action must be based on law and the law must be reasonable and non-arbitrary with reference to some legitimate objectives to be achieved.

2.107 Art.31 like the American due process clause ensures fair procedure in any proceeding affecting rights and liberties of individuals and this fairness concept is embodied in the principles of natural justice.[6] Our courts have held that the principles of natural justice can be excluded by statute, but because of the guarantee of art.31 it may not now be possible for Parliament to exclude its application unless it can be shown that there is a compelling governmental interest to exclude its application in a particular case.[7] Even in case of exclusion of the requirement of notice and hearing in emergent cases, there should be provision for *post facto* hearing or other safeguards against arbitrary or unlawful application of law.

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[1] *Bihar v. Bihar Distillery Ltd.*, AIR 1997 SC 1511

[2] *Malpe Viswanath v. Maharashtra*, (1998) 2 SCC 1

[3] *Bangladesh Krishi Bank v. Meghna enterprises*, 50 DLR (AD) 194; *Chandpur Jute Mills v. Artha Rin Adalat*, 2 BLC 49

[4] *HFDM De Silva v. Bangladesh*, 2 BLC 179

[5] *Maneka Gandhi v. India*, AIR 1978 SC 597, 620

[6] For a discussion on natural justice see Para 5.51 - 5.70B

[7] The Indian Supreme Court held a rule permitting termination of service without compliance with the principles of natural justice to be arbitrary and unreasonable and therefore violative of the equality clause - *Central Inland Water Transport Corp v. Brojo Nath*, AIR 1986 SC 1571; see also *Maneka Gandhi v. India*, AIR 1978 SC 597; *India v. Tulsi Ram*, AIR 1985 SC 1456; *Basudev v. Sida Kanhu*, (1998) 8 SCC 194

2.108 In making an inquiry into the reasonableness of a law, the court will keep in mind the existing economic and social conditions and the current values of the society with reference to which reasonableness or fairness of a law or procedure will have to be judged. The American decisions may throw light in making the inquiry, but the standard set by the American courts cannot be applied without careful evaluation of our economic and social conditions and values. The right to privacy furnishes an example. Implicit in the concept of 'liberty' is the right to privacy of individual citizens and the American courts in the context of the American society have taken this right to a level where a New York legislation making it a crime to sell or distribute contraceptives to minors under the age of 16 was struck down for unconstitutional invasion on the right to privacy.[1] But acceptance of the right to privacy to that extent in our society is at present unthinkable and the court may not concede the right to privacy to such an extent even though right to privacy is protected under art.31 as a part of 'liberty'.

2.109 *Contemporaneous law and retrospectivity:* Art.31 guarantees that an individual shall be dealt with in accordance with law.[2] Thus an individual cannot be prejudicially affected unless there is contemporaneously in existence a legal provision to sustain the action.[3] A person shall not be prevented from or hindered in doing an act which is not prohibited by law.[4] A public functionary in discharge of his official function taking away a car of an individual without any authority of law, the action is not only illegal, but also violative of the fundamental right guaranteed under art.31. The question is whether Parliament can retrospectively validate an act which was unconstitutional because of the absence of any contemporaneous law to sustain the act. The Appellate Division in *Mofizur Rahman v. Bangladesh*[5] answered the question in the affirmative. The provision of s.9(2) of the Public Servants Retirement Act, 1974 conferring a discretion on the government to retire public servants on completion of

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[1] *Carey v. Population Services International*, 431 US 678

[2] *Faisal Mahtab v. Bangladesh*, 44 DLR 168; *Raghib Ali v. Bangladesh*, 34 DLR 185; *Md. Shoib v. Bangladesh*, 27 DLR 315; *Abdur Rashid v. Industrial Court*, 19 DLR (SC) 449

[3] *Ghulam Zamin v. A.B. Khondker*, 16 DLR 486; *Adamjee Jute Mills v. Controller of Imports*, 20 DLR 791

[4] *Golam Sabir v. Pan Allotment Committee*, 19 DLR 689

[5] 34 DLR (AD) 321 = 1982 BLD (AD) 120; contra *Ghulam Zamin v. A.B. Khondker*, 16 DLR 486

25 years of service was declared void by the Appellate Division[1] as being discriminatory for want of any guideline for the exercise of the discretion. As a result, all actions under the Act retiring public servants became unconstitutional. S.9(2) was later amended providing the guideline of 'public interest' and the amending Act validated the previous actions retiring public servants. The court referred to a number of decisions of the Indian Supreme Court, the British Indian Federal Court and the Australian High Court and took note of the difference in language between art.31 and art.35 to hold that the expression 'in accordance with law' does not mean 'in accordance with law in force' at the time of taking action and upheld the amending Act validating the unconstitutional actions of retirement of public servants. It is submitted that reference to the decisions of the Indian Supreme Court is inappropriate inasmuch as the Indian Constitution does not contain any provision similar to art.31. The same was the position under the Government of India Act, 1935 and in the Australian jurisdiction. A noted author criticised the Indian Supreme Court for not considering whether those validating laws were reasonable restrictions within the meaning of art.19 of the Indian Constitution and made a comparative study of the British, Canadian, Australian and Indian positions.[2] The absence of the expression 'in force at the time of commission of the act' may be important in determining the permissibility of retrospective laws. The difference in language is there because the framers of the Constitution did not intend to take away the power of Parliament to enact retrospective laws which do not offend the constitutional limitations, but from the said difference of language an interpretation cannot be given to permit Parliament to avoid the constitutional limitation of art.31 or render art.31 nugatory. In the American jurisdiction, the legislature has the power to pass retrospective laws if the retrospectivity does not offend any provision of the constitution including the 'due process' clause. When a law is passed, the retrospective aspect of the legislation, as well as the prospective aspects, must meet the test of due process and the justifications for the latter may not suffice for the former.[3] Even when the court finds the law (operating

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[1] *Dr. Nurul Islam v. Bangladesh*, 33 DLR (AD) 201

[2] D.D. Basu - Limited Government and Judicial Review, 1972, pp.257-264

[3] *Usery v. Turner Elkhorn Mining co.*, 428 US 1 (The due process clause poses no bar to requiring a coal mine operator to provide compensation for a former employee's death or disability due to pneumoconiosis arising out of employment in its mines , even if the former employee terminated his employment in the industry before the Act was

prospectively) valid under the due process clause, the court will have the further duty to inquire whether the retrospective operation given to the law is unreasonable or arbitrary, or in other words, the court will inquire whether there was a rational relationship between the retrospectivity and the legitimate governmental interest sought to be achieved by the retrospectivity.[1] When a retrospective law is one covered by art.35, no question of reasonableness will arise, and the very fact that the law is retrospective will be sufficient for the court to declare it void. The question of reasonableness will be moot when such law is not covered by art.35. Parliament has power to make retrospective laws; the only limitation is that like all other laws it must pass the test of constitutionality under art.31 and the retrospectivity must not be arbitrary or unreasonable. If the retrospectivity is found to be arbitrary or unreasonable, it will be violative of art.31 and therefore void.

2.110 Retrospective operation of a law and retrospective validation of an illegal act are, however, different things. In the American jurisdiction, a statute validating an illegal action is called a curative statute. "A curative statute is necessarily retrospective in character and may be enacted to cure or validate errors or irregularities in legal or administrative proceedings, except such as are jurisdictional."[2] A curative statute may validate all defects in a proceeding except those which have resulted in the violation of constitutional rights.[3] When a law requires an authority to take a particular action after publication of notice in the official Gazette and the action has been taken without such publication, the legislature may amend the law omitting the requirement of publication of notice and validate the prior action. But the position is different when a constitutional limitation is involved. The editors of American Jurisprudence stated the position in law as follows -

> The true rule seems to be that where a statute is invalid by reason of an

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passed.(p.19) While the Operators have clearly been aware of the danger of pneumoconiosis for at least 20 years ... we would nevertheless hesitate to approve the retroactive imposition of liability on any theory of deterrence or blameworthiness. We find, however, that the imposition of liability for the effects of disabilities bred in the past is justified as a rational measure to spread the costs of employees' disabilities to those who have profited from the fruits of their labor - the operators and the coal consumers.(p.17-18)

[1] Ibid; *Pension Benefit Guarantee Corp. v. R.A. Gray*, 467 US 717; *U.S. v. Sperry Corp.*, 493 US 52

[2] 16A Am Juris 2d, Const. Law, Para 678

[3] *Sauders v. Carr*, 268 Cal App 2d 10

> absence of power in the legislature in the first instance under the constitution to enact the law, it is not possible for that body to confirm or render the same valid by amendment; but where the obnoxious features of the statute may be removed or essential ones supplied by a proper amendment, so that had the law been primarily thus framed it would have been free from objections existing against it, then the statute may be rendered valid by amendment, so far as its future operation may extend[1]

The same must be the position under our constitutional dispensation. Thus an order of compulsory retirement, made without applying any yardstick as the law provided for none, cannot be validated by introducing a fiction in the law as if the order has been made applying the yardstick of 'public interest'. If such a validation is possible, the protection of law ensured by art.31 will cease to be a protection at all inasmuch as today's right and liberty of an individual will depend upon what Parliament will legislate tomorrow. Thus the act of taking away of the car of an individual in the absence of law to sustain the act is an act in contravention of the constitutional guarantee of art.31 at the time when the act was done and this act cannot be validated by Parliament by a subsequent law. It is submitted that the decision in *Mofizur Rahman v. Bangladesh* is open to doubt as regards its correctness on this point. This decision might have some justification if art.31 remained outside Part III of the Constitution so that an argument could possibly, if not convincingly, be made on the basis of the decision of the Pakistan Supreme Court in *Mohd Yusuf v. Chief Settlement Commissioner*[2] that art.31 would not be read as a limitation on the power of Parliament in making laws.[3] The decision in *Mofizur Rahman* renders the protection of art.31 dependent on the will of Parliament. But this is not what the framers of the Constitution intended. The rights guaranteed in Part III cannot be interpreted in a way which will enable Parliament to whittle down such rights by 'artful' legislative device.[4] If the reasoning of the Appellate Division in *Mofizur Rahman* is carried to its logical limit it will produce a result which the framers of the Constitution did not intend. Art.32 prohibits deprivation of life or personal liberty save in

[1] 16 Am Juris 2d, Const. Law, Para 258

[2] 20 DLR (SC) 187

[3] Any provision of the Constitution placed in any part of it, unless otherwise specified, is a mandate to be obeyed by all functionaries of the State including Parliament and the Pakistan Supreme Court's decision in *Mohd Yusuf* is debatable and broadly stated.

[4] *Ghulam Zamin v. A.B. Khondker*, 16 DLR 486

accordance with law. Like art.31 this article does not include the expression 'in force at the time' of taking the action. Following the reasoning of the Appellate Division in *Mofizur Rahman* it is possible for the State to deprive a person of his life or personal liberty without the backing of law and then to pass a law retrospectively validating the action. If contemporaneous existence of law is not required by art.31, it is possible for the government to demolish a building of a citizen without any authorisation of law and then to get Parliament to pass a law authorising such action and impart retrospective validity to the otherwise unconstitutional action. It is submitted that in incorporating the provisions of arts.31 and 32 the framers of the Constitution wanted to forestall such consequences. Speaking about art.2 of the Pakistan Constitution of 1962, Murshed J observed –

> The guarantee that has been given by the Constitution cannot be washed away by an ingenuous legislative device which can wipe out an illegal invasion of today by an artful enactment of tomorrow, pretending to act retrospectively, without any constitutional change to that effect.[1]

The observation of Murshed J may be debatable in the context of the Pakistan Constitution, but is fully justified in the context of art.31 of the Constitution. It is submitted that art.31 does not prohibit retrospective legislation in the same way the due process clause does not prohibit Congress or State legislatures from making retrospective legislation which do not affect fundamental rights or transgress other constitutional limitations; but the article prohibits retrospective validation of unconstitutional acts. This article also prohibits retrospective operation of a law when the retrospectivity is arbitrary or unreasonable. Any other interpretation will render art.31 without meaning and content as a fundamental right. The legislative power of making retrospective laws is not now as wide and unlimited as it was before adoption of the Constitution.

2.111 ***Life, liberty, body, reputation and property:*** 'Life' within the meaning of art.31 means something more than mere animal existence.[2] It includes the right to live consistently with human dignity and

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[1] Ibid, Para 101; (Rule of law being a basic feature of the Constitution and art.31 being one of the main device through which rule of law is sought to be enforced, it is debatable whether a constitutional amendment hinted by Murshed J will be legally valid)

[2] *Munn v. People of Illinois*, 94 US 113 (per Field J)

decency[1], right to the bare necessities of life such as adequate nutrition, clothing and shelter and the facilities for reading, writing and expressing oneself in diverse forms, freely moving about and mixing and commingling with fellow human beings[2] and all that which gives meaning and content to a man's life[3] including his tradition, culture and heritage[4]. Right to life includes right to livelihood because no person can live without a means of living. It includes a right to protection of health and normal longevity[5] and right to protection and improvement of environment[6]. Dealing with the right to pollution free environment and ecology, the Indian Supreme Court extended and applied the English common law doctrine of public trust[7] to quash a lease of forest land by the side of a river for interfering with natural flow of the river and ordering the lessee to pay compensation by way of restitution of the environment and ecology.[8] A victim girl abducted and taken out of the country and detained in custody in Calcutta is entitled to legal protection through the High Commission of Bangladesh.[9] A person cannot claim that the State should provide him with a livelihood, but the State cannot by arbitrary or unreasonable law or action cause detriment to the

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[1] *Vikram v. Bihar*, AIR 1988 SC 1782 (Minimum human condition in care homes for females)

[2] *Francis Coralie v. Union Territory*, AIR 1981 SC 746; *Shantistar Builders v. Narayana*, AIR 1990 SC 630; *Bandhua Mukti Morcha v. India*, AIR 1984 SC 802

[3] *H.P. v. Umed Ram*, AIR 1986 SC 847 (Access to road is access to life for residents in hilly areas); *Vincent v. India*, AIR 1987 SC 990 (Ban on injurious drugs); *Mehta v. India*, AIR 1987 SC 1086 (Relief against leakage of gas injurious to health).

[4] *Ramsharan v. India*, AIR 1989 SC 549, 552

[5] *Dr. Mohiuddin Farooque v. Bangladesh*, 48 DLR 438 (Health hazard); *Prof. Nurul Islam v. Bangladesh*, 52 DLR 413 (Hazard of tobacco consumption); *Mr. "X" v. Hospital "Z"*, AIR 1999 SC 495 (Disclosure of information regarding dangerous disease); *Mehta v. India*, (1997) 2 SCC 411 (Pollution of river water); *Mehta v. India*, (1997) 11 SCC 327 (Relocation of hazardous industries); see *Paschim Banga Khet Mazdoor Samity v. W.B.*, AIR 1996 SC 2426 (Court awarded compensation for denial of emergency medical aid by government hospital)

[6] *Mehta v. India*, (1998) 9 SCC 589; *World Saviours v. India*, (1998) 9 SCC 247; *Godavarman v. India*, AIR 1997 SC 1233 (Protection and conservation of forest)

[7] The doctrine provides that submerged and submersible lands are preserved for public use in navigation, fishing and recreation and State as a trustee for the people, bears the responsibility of preserving and protecting the right of the public to the use of the waters for those purposes – Black's Law Dictionary, 6th ed., p.1232.

[8] *Mehta v. Kamal Nath*, (1997) 1 SCC 388

[9] *Abdul Gafur v. Secy. Ministry of Foreign Affairs*, 1997 BLD 453

livelihood the individual already has.[1] When rootless people have taken shelter in slums and somehow eking a livelihood, their wholesale eviction without any scheme of their rehabilitation has been found to offend the provisions of arts.31 and 32.[2] The right to life does not, however, include any right to die.[3] The expression 'body' has been used to provide inhibition against detrimental action in respect of all those limbs and faculties by which life is enjoyed even though it would have been covered by 'life' without the expression 'body'.[4] Custodial violence, torture, rape or death in police custody or lock-up infringes the right guaranteed by arts.31 and 32.[5]

2.111A Implicit in arts.31 and 32 is the right to access to justice as a man cannot be said to have been dealt with in accordance with law unless he has a reasonable opportunity to approach the court in vindication of his right or grievance.[6] Even a fugitive is entitled to be defended when death penalty is involved. *In Nurun Nahar Zaman v. State*[7] an accused charged with an offence punishable with death was absconding. A senior Advocate was appointed as the State defence lawyer. During the pendency of the trial the appointment was cancelled and in his place another Assistant Public Prosecutor was appointed. The court found the change of the lawyer to be hasty and motivated and therefore violative of the right guaranteed by arts.31 and 32. A victim girl abducted and taken out of the country and remaining in custody in Calcutta is entitled to legal protection through the Deputy High Commission of Bangladesh in Calcutta.[8]

2.112 A man cannot be detained except in accordance with law. Thus a major girl who is not an accused or a witness in a case cannot be

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[1] *Olga Tellis v. Bombay Municipal Corporation*, AIR 1986 SC 180; *Ain O Salish Kendra v. Bangladesh*, 1999 BLD 488 (Basti clearance); but see *Giasuddin v. Dhaka Municipal Corp*, 49 DLR 199 (A trespasser can't claim protection of art.31 to resist eviction from a park.); *Ahmedabad Municipal Corp. v. Nawab Khan*, AIR 1997 SC 152

[2] *Ain O Salish Kendra v. Bangladesh*, 1999 BLD 488; *Kalam v. Bangladesh*, 2001 BLD 446; *Aleya Begum v. Bangladesh*, 53 DLR 63; *B.S.E.H.R. v. Bangladesh*, 53 DLR 1 (Wholesale eviction of sex-workers depriving their livelihood)

[3] *Gian Kaur v. Punjab*, AIR 1996 SC 946

Munn v. People of Illinois, 94 US 113

[5] *D.K. Basu* v. W.B., AIR 1997 SC 610

[6] *Liaquat Hossain v. Pakistan*, PLD 1999 SC 504, 652

[7] 1995 BLD 537

[8] *Abdul Gafur v. Secy. Ministry of Foreign Affairs*, 1997 BLD 453

detained even in judicial custody.[1] But 'liberty' is not limited to personal locomotion. It includes a wide range of things. It means the right of an individual to be free in the enjoyment of all his faculties; to be free to use them in all lawful ways; to live and work where he will; to earn his livelihood by any lawful calling; and to pursue any livelihood or avocation and for that purpose to enter into all contracts which may be proper, necessary or essential to his carrying out to a successful conclusion these purposes.[2] This denotes "the right of the individual to contract, to engage in any of the common occupations of life, to acquire useful knowledge, to marry, establish a home and bring up children, to worship God according to the dictates of his own conscience, and generally to enjoy those privileges long recognised ... as being essential to the orderly pursuit of happiness by free men."[3] For the women liberty includes the right to work with dignity free from sexual harassment.[4] Liberty under law extends to the full range of conduct which an individual is free to pursue and which cannot be restricted except for a proper governmental purpose.[5] Since their profession is not declared unlawful, the sex workers are entitled to be protected under art.32.[6] Conviction does not render a person a non-person and his rights cannot be at the whims of the prison authorities; his liberty within the jail precincts cannot be unreasonably or arbitrarily curtailed.[7] A person because of his detention or imprisonment does not forfeit all his fundamental rights and he can claim his right to life and liberty even in detention or imprisonment. Thus a detenu has the right to have

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[1] *Rehana Begum v. Bangladesh*, 50 DLR 557

[2] *Grosjean v. American Press Co.*, 297 US 233; *Pierce v. Society of Sisters*, 268 US 510

[3] *Meyer v. Nebraska*, 262 US 390, 399; *Board of Regents v. Roth*, 408 US 564; *Unni Krisnan v. A.P.*, AIR 1993 SC 2178 (Right to education); *Kharak Singh v. U.P.*, AIR 1963 SC 1295 (Right of privacy); *Maharashtra v. Madhukar*, AIR 1991 SC 207 (Even a woman of easy virtues is entitled to her privacy and no one can invade her privacy as and when he likes)

[4] *Vishaka v. Rajasthan*, AIR 1997 SC 3011; *Apparel Export Promotion Council v. Chopra*, AIR 1999 SC 625

[5] *Bolling v. Sharpe*, 347 US 497

[6] *Sultana Nahar v. Bangladesh*, 1998 BLD 363

[7] *Sunil Batra v. Delhi Administration*, AIR 1978 SC 1675; *Harbans Singh v. U.P.*, AIR 1991 SC 531 (Prisoner cannot be kept in fetters inside the jail); *Prem Sankar v. Delhi Administration*, AIR 1980 SC 1535 (Handcuffing on the basis of classification based on the nature of offence is arbitrary; the only valid basis is the need to prevent the prisoner from escaping)

interviews with the members of his family and his lawyer[1] and he can send books outside the jail for publication.[2]

2.112A *Privacy*: Implicit in the right to life and liberty is the right to privacy or the right to be let alone.[3] A citizen has a right to safeguard the privacy of his own, his family, marriage, procreation, motherhood, child bearing and education among other matters. None can violate this right by publication or otherwise.[4] Position will be otherwise if the person concerned consents to it or otherwise voluntarily thrusts himself into the controversy or voluntarily invites or raises a controversy, or the publication is based upon public records including court records.[5] Public officials cannot claim this right with respect to their acts and conduct relevant to the discharge of their official duties.[6]

2.113 Reputation is a great possession and asset of a man. But reputation alone, apart from some more tangible interest such as employment, is not a 'property' and by itself has not been found sufficient in the American jurisdiction to invoke the protection of the due process clause.[7] Art.31, however, specifically mentions reputation which, accordingly, is entitled to the due process protection in Bangladesh.

2.114 The word 'property' is an equivocal legal term. In the American jurisdiction this word as used in the due process clause of the Fifth and Fourteenth Amendment embraces all valuable interests which a man possesses outside of himself - outside of his life and liberty.[8] It relates not only to those tangible things of which one may be the owner, but to everything which he may have of an exchangeable value.[9] It definitely extends beyond actual ownership of real estate, chattels or money.[10] When art.31 declares it to be the inalienable right of citizens and residents of Bangladesh to be treated in accordance with law, and by

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[1] *Francis Coralie v. Union Territory*, AIR 1981 SC 746

[2] *Maharashtra v. Provakar*, AIR 1966 SC 424

[3] For privacy of home and correspondence see Para 2.217 – 2.221

[4] *Rajagopal v. T.N.*, AIR 1995 SC 264; see also *Mr. "X" v. Hospital "Z"*, AIR 1999 SC 495

[5] *Rajagopal v. T.N.*, AIR 1995 SC 264

[6] Ibid; for other limitations to this right, see Para 2.17A

[7] *Paul v. Davis*, 424 US 693

[8] *Campbell v. Holt*, 115 US 620

[9] 16A Am Juris 2d, Const. Law, Para 584

[10] *Board of Regents v. Roth*, 408 US 564

way of particularisation, mentions life, liberty, property, etc., there is no reason why the word 'property' should be given a narrow meaning. Property within the meaning of art.31 includes the rights which, by themselves and taken independently, are capable of being acquired, held or disposed of as property.[1] It includes not only real and personal property but also incorporeal rights[2] like patents, copyrights, leases, easements, chose in action and everything of exchangeable value which a person may have. It extends to concrete as well as abstract rights of property.[3] Money is property[4], so also the right to pension which is not a bounty of the State.[5] A right under a valid contract or a franchise is treated as a property for protection of the due process clause.[6] A profit-a-pendre or an interest of a tenant in the demised property is a property,[7] but not a statutory right to apply for purchase of land.[8]

2.115 ***Deprivation of life and personal liberty:*** Art.32 provides that no person shall be deprived of life or personal liberty[9] save in accordance with law. Because of the seriousness of the deprivation, the framers of the Constitution made this specific provision even though deprivation can be covered by art.31. No provision of the Constitution can be treated as surplusage and we must find something more in the

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[1] *Chiranjit Lal v. India*, AIR 1951 SC 41 (A share in a joint stock company is a property, but the right of voting of shareholders and their right to select directors are not property as by themselves and taken independently they cannot be reckoned as property capable of being acquired, held or disposed of)

[2] *Dwarkadas v. Sholapor S. & Co.*, AIR 1951 Bom 86, on appeal, AIR 1954 SC 119

[3] *Commissioner, HRE v. Swamiar*, AIR 1954 SC 282 (Right to the office of a mohanta of a math is a proprietory right). In *Zain Yar Jung v. Director of Endowments*, AIR 1963 SC 985, position of mutawalli was held different from a mohanta as a mutawalli has only right of management of waqf property and no right to the property as such. Similar is the position of a trustee administering trust property as held in *Bira Kishore v. Orissa*, AIR 1964 SC 1501

[4] *M.P. v. Ranojirao*, AIR 1968 SC 1053

[5] *Salabuddin v. A.P.*, AIR 1984 SC 1905

[6] *Lynch v. U.S.*, 292 US 571; *Frost v. Corporation Com. of Oklahoma*, 278 US 515 (right to operate a cotton gin and collect tolls therefor); *Atchison T & S.F.R. Co. v. Campbell*, 61 Kan 439 (right to charge and collect tolls for transportation); *Superior Water, Light & Power Co. v. Superior*, 263 US 125 (exclusive right to supply the municipality with water for a specified time); *Los Angeles v. Los Angeles Gas Corporation*, 251 US 32

[7] *Bombay Corporation v. Pancham*, AIR 1965 SC 1008

[8] *S.M. Transports v. S. Mutt*, AIR 1963 SC 864

[9] See Para 2.11 for the meaning of 'personal liberty'.

quality of the protection provided by art.32 than is provided in art.31. No right is so basic and fundamental as the right to life and personal liberty and exercise of all other rights is dependent on the existence of the right to life and personal liberty. We have seen that the due process concept of art.31 involves a relaxed scrutiny of reasonableness of a law passed by Parliament and the court defers to the wisdom of the legislators. If the framers of the Constitution intended to apply the same standard of reasonableness to a law involving deprivation of life or personal liberty, making a separate provision as in art.32 was unnecessary. In the American jurisdiction, statutes impairing life and personal liberty are subjected to stricter scrutiny by the court.[1] From the scheme of Part III it may be concluded that in making a separate provision in respect of deprivation of life and personal liberty, the framers of the Constitution intended application of a stricter scrutiny of reasonableness. A law providing for deprivation of life or personal liberty must be objectively reasonable and the court will inquire whether in the judgment of an ordinary prudent man the law is reasonable having regard to the compelling, and not merely legitimate, governmental interest. It must be shown that the security of the State or of the organised society necessitates the deprivation of life or personal liberty.

2.116 Art.33 provides some specific procedural safeguards and arts.34 and 35 provide some specific substantive and procedural safeguards in respect of deprivation of life and personal liberty. But art.32 ensures reasonableness of a law regarding deprivation of life or personal liberty both from the substantive and from the procedural point of view. Art.33 provides protection against unreasonable arrest and detention while art.35 ensures fair trial in criminal prosecutions. A man should not be punished prior to conviction. So the law makes provision for enlargement of an accused on bail. In making such a provision, two considerations arise. First is the freedom of the accused and the second is the safety and security of the victim of the crime and necessity of a fair trial.[2] Incidence of threat and injury to the victims and witnesses of the crime has become commonplace today and the legislators are inclined to make provision for no-bail at least at the stage of investigation and trial, the court having no power to grant bail. Is such a provision in conformity with the provision of art.32?

2.116A In the United States bail is an absolute right in non-capital

[1] See Para 2.103A

[2] See *Tayazuddin v. State*, 2001 BLD 503

cases. Bail Reform Act of 1984 made provision for no-bail even in non-capital cases where the government can demonstrate to the court by clear and convicing evidence that the detainee presents an identified and articulable threat to an individual or the community. Putting the law to due process test, the U.S. Supreme Court by a majority upheld the legislation holding that pre-trial detention is regulatory and not penal and the government's regulatory interest in community safety outweighed the liberty interest of a pre-trial detainee.[1] In our country offences are classified into bailable and non-bailable offences and even in non-bailable cases the court has the discretion to grant bail. No-bail provision has been made in s.497 of the Code of Criminal Procedure in cases of offences punishable with death or imprisonment for life. Even in such cases it is for the court to decide whether there is any reasonable ground to believe that the accused is guilty of the offence. So long the matter is left to the court to decide whether there is a prima facie case against the accused and whether he will pose a threat to the community, no exception can be taken to the provision of no-bail as there is always a question of balancing between the liberty interest of the accused and the liberty interest of the victim and witnesses of the crime. But the legislators complain that the court is often very liberal in granting bail resulting in serious set back in the administration of criminal justice. Due process test must take the social condition into consideration to determine whether a no-bail provision stricter than a provision like s.497 of the Code of Criminal Procedure is reasonably related to the compelling governmental interest in the safety and security of the State and the community and if the answer is in the affirmative, whether there should be further provision to prevent arbitrary action of the police in initiating prosecution.

2.117 Life is the most precious thing and nothing can be more fundamental than preservation of life. Hence, deprivation of life can follow only when it is needed for the security of the State or the security of the ordered society where individuals can freely enjoy life and liberty. Thus a death sentence will not be permissible unless it appears that there is a compelling State necessity to take the life. The taking of life will be justified when it is necessary to ensure the safety and security of life and personal liberty of the individuals in the society or for the safety and security of the State which can ensure safety and security of the life and personal liberty of individuals. S.367(5) of the Code of Criminal

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[1] *U.S. v. Salerno*, 481 US 739

Procedure, 1898 provided that if an accused convicted of an offence punishable with death is given a lesser sentence, the court should state the reason for awarding the lesser sentence. In India when the Code was re-enacted in 1974, s.354(3) provided, "When the conviction is for a sentence punishable with death or, in the alternative, with imprisonment for life or imprisonment for a terms of years, the judgment shall state the reasons for the sentence awarded and, in the case of sentence of death, special reasons for such sentence." The death sentence was challenged as being violative of arts.14, 21 and 19 of the Indian Constitution. In *Bachan Singh v. Punjab*[1] by a majority decision the Indian Supreme Court held the sentence of death to be constitutional, recognising the right of the State to deprive a person of his life in accordance with fair, just and reasonable procedure established by law. The court, however, emphasised that the death sentence ought to be imposed only in the rarest of the rare cases when the alternative option is unquestionably foreclosed. Bhagawati J dissented holding the death sentence to be arbitrary and unreasonable and violative of art.21.[2] In 1978 s.367(5) of the Code of Criminal Procedure was amended in Bangladesh requiring the court to assign reasons for passing the sentence, be it death sentence or life imprisonment. The law in this regard is now more in conformity with the requirement of art.32 than it was previously, but further change providing for the death penalty only when it is absolutely necessary should be effected to bring the law in full conformity with art.32.

2.118 A penal statute by providing punishment prescribes deprivation of life or personal liberty. Hence such a statute must pass the test of reasonableness and non-arbitrariness under art.32 in respect of the punishment prescribed, particularly where the discretion of the court in passing the sentence is curtailed either by providing a mandatory

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[1] AIR 1980 SC 898; see also *Jagmohan v. U.P.*, AIR 1973 SC 947; *Rajendra v. U.P.*, AIR 1979 SC 916

[2] *Bachan Singh v. Punjab*, AIR 1982 SC 1325 ("... death penalty as provided under s.302 of the Penal Code ... does not serve any legitimate end of punishment, since by killing the murderer it totally rejects the reformative purpose and it has no additional deterrent effect which life sentence does not possess and it is therefore not justified by the deterrence theory of punishment. Though retribution or denunciation is regarded by some as a proper end of punishment, I do not think, for reasons I have already discussed, that it can have any legitimate place in an enlightened philosophy of punishment. It must therefore be held that death penalty has no rational nexus with any legitimate penological goal or any rational penological purpose and it is arbitrary and irrational and hence violative of Arts.14 and 21 of the Constitution."

sentence or by providing a minimum sentence. The reasonableness of the punishment is to be tested having regard to the nature of the offensive conduct and the governmental need and if the court comes to a finding that the punishment prescribed is disproportionate, the law will be violative of art.32. The Indian Supreme Court held that s.303 of the Penal Code providing for mandatory death sentence is arbitrary and unreasonable and is violative of art.14 and 21 of the Indian Constitution. The same position should obtain in our jurisdiction. But a question may arise whether, in view of the provision of art.35(6), an inquiry into reasonableness of a punishment prescribed in an existing law is permissible. This is dealt with in Para 2.155.

2.119 A law providing for deprivation of personal liberty must subserve a compelling State interest and if the mischief sought to be remedied can be remedied by any other reasonable means, deprivation of personal liberty will be unreasonable or arbitrary and void in terms of art.32. Thus a law providing for preventive detention must show that there is a compelling State necessity for such detention and the necessity cannot be fulfilled by any other reasonable means keeping at large the person sought to be detained. In other words the grounds of detention must be substantively reasonable in relation to the demands of an ordered society and the security of the State.

2.120 As a criminal prosecution may result in deprivation of personal liberty, the Indian Supreme Court held that an accused, who due to poverty, indigence or an incommunicado situation, cannot afford legal service is entitled to free legal aid at the cost of the State as part of fair and reasonable procedure under art.21.[1] In the opinion of the court, the trial court should inform the accused of his right to legal aid[2] and if because of the failure to inform, the accused remains unrepresented, the trial will be vitiated.[3] The Sixth Amendment of the American Constitution specifically guarantees to an accused assistance of a lawyer in criminal cases. But the Sixth Amendment is applicable only in respect of trials by federal courts and has no application in the case of State prosecutions. In some cases it was held that the due process clause of the Fourteenth Amendment generally did not mandate legal aid to the

[1] *Hoscot v. Maharashtra*, AIR 1978 SC 1548; *Hossainara v. Bihar*, AIR 1979 SC 1369; *Sheela Barse v. Maharashtra*, AIR 1983 SC 378

[2] *Khairi v. Bihar*, AIR 1981 SC 928

[3] *Sukdas v. Union Territory*, AIR 1986 SC 991

indigent accused.[1] Without the help of Counsel, all other safeguards for a fair trial may be empty rituals,[2] and the American Supreme Court later held that the right of an indigent accused to have legal aid is incorporated in the due process clause of the Fourteenth Amendment[3] even in case of crimes punishable by imprisonment for less than six months.[4] As art.32 includes both substantive and procedural due process, the principle laid down by the American and Indian Courts is applicable in Bangladesh with full force. It is true that the application of this principle is connected with the question of the burden on the public exchequer, but a sincere effort should be made to implement the constitutional principle. Unless this can be done, for the vast majority of the people of the country the principles of rule of law and fundamental fairness grafted in the Constitution will have no meaning.

SAFEGUARDS AS TO ARREST AND DETENTION

2.121 We have seen that under art.32 any law depriving a person, citizen or non-citizen, of personal liberty, must not be arbitrary and must be reasonable and fair. Art.33 provides for specific procedural safeguards against arbitrary arrest and detention and together with arts.32 and 35 makes a total code in respect of arrest, detention and trial. Arrest or detention affects several other rights guaranteed by the Constitution, but only incidentally, resulting from arrest or detention and the provisions guaranteeing those rights will not be attracted. For application of the different provisions of the Constitution guaranteeing rights the test is what right is directly affected and as such any arrest or detention will have to be tested with reference to arts.32 and 33.

2.122 Art.33(1) & (2) provide that (i) a person arrested must be informed as soon as possible of the grounds of arrest, (ii) he must be allowed to consult and be defended by a lawyer of his choice, (iii) he must be produced before a magistrate within twenty-four hours of arrest, excluding the time necessary for the journey from the place of arrest to the court of the magistrate and (iv) he must not be detained for a period

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[1] *Betts v. Brady*, 86 L.Ed. 1595 (It requires the State under the 14th Amendment to provide a counsel only where the particular circumstances of a case indicate that the absence of counsel would result in a trial lacking fundamental fairness)

[2] *Powell v. Alabama*, 287 US 45

[3] *Gideon v. Wainwright*, 372 US 335

[4] *Argersinger v. Hamlin*, 407 US 25

longer than twenty-four hours plus the time of journey without the authority of the magistrate. These four rights are not available to an enemy alien and to a person arrested or detained under a law providing for preventive detention.[1] In case of preventive detention, art.33(3)&(4) provide two safeguards - (a) the detaining authority shall, as soon as may be, communicate to the detenu the grounds of the detention order and shall afford the detenu the earliest opportunity of making representation against the detention order, provided that the detaining authority may refuse to disclose facts which he considers to be against public interest to disclose, and (b) no law providing for detention should authorise detention for a period exceeding six months unless an Advisory Board, after hearing the detenu in person, approves the detention.

2.123 *Arrest or detention:* The arrest or detention dealt with under art.33 is one by a non-judicial authority upon accusation of some offence or prejudicial activity on the part of the arrested or detained person.[2] Thus art.33 will not be attracted in case of (a) arrest on warrant as it will be senseless to ask the magistrate to apply his judicial mind once again within 24 hours, (b) removal of a minor girl from brothel under an Act for suppression of immoral traffic[3] (c) taking into custody under s.100 or s.522 of the Criminal Procedure Code of a person wrongfully confined or an abducted female[4], (d) arrest under warrant issued by civil court[5] (e) arrest and imprisonment of a defaulter under a revenue recovery law[6]. The Indian Supreme Court held that this fundamental right is attracted in case of arrest under orders of the Speaker of a legislature for contempt.[7]

2.124 ***Arrest in cases other than preventive detention:*** Art.33(1)&(2) guarantee four rights to a person arrested. Any law or action not in conformity with those rights will be void and the arrest made will be unlawful.

2.125 *Communication of grounds of arrest:* The arrested person shall not be detained in custody unless he is informed, as soon as may be, of the grounds of arrest to enable him to prepare for his defence and to

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[1] Art.33(3)
[2] *Punjab v. Ajaib Singh*, AIR 1953 SC 10
[3] *Raj Bahadur v. Legal Remembrancer*, AIR 1953 Cal 522
[4] *Punjab v. Ajaib Singh*, AIR 1953 SC 10
[5] Ibid
[6] *Collector of Malabar v. Erimmal Ebrahim*, AIR 1957 SC 688
[7] *Gunapati v. Nafisul*, AIR 1954 SC 636; *Reference by President under Art.134*, AIR 1965 SC 745

move the court for bail or writ of *habeas corpus*. Failure to inform the reason of arrest would entitle the arrested person to be released.[1] 'Grounds' include all the basic facts on which the satisfaction of the arresting authority is based, but not the details of such basic facts.[2] It is not necessary to inform him of the full details of the offence; but the information should be sufficient to give him an idea of the offence he is alleged to have committed.[3] Where the arrested person does not know Bengali, the reasons should be communicated in a language he understands.[4] Sufficiency of the information is justiciable and insufficiency of information would render the arrest unlawful. Mere disclosure of the provision of law does not constitute sufficient information.[5] The expression 'as soon as may be' shows that the information should be given as early as is reasonably practicable in the circumstances of a particular case. "The words 'as soon as may be' would normally produce effect before the prisoner is taken to a Magistrate, that is to say, within twenty-four hours. For, a prisoner is not produced before a Magistrate merely to inform him that there are Magistrates in the land ... he is produced so as to enable him to complain to the Magistrate if there is ground for any complaint. And the first complaint which a prisoner will make will be: why have I been arrested? And if the Magistrate cannot tell him why, there is no charm in styling this production a fundamental right."[6]

2.126 *Right to consult and be defended by lawyer:* The person arrested has a right to consult a lawyer of his choice from the moment he is arrested and this right necessarily includes the right to effective interview with the lawyer out of the hearing of the police, though the police may be within sight and this right exists whether the person is arrested under a general or a special law. He has also the right to be defended by a lawyer of his choice and this right is not lost when he is released on bail.[7] Any provision of law denying this right will be

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[1] *Madhu Limaye v. State*, AIR 1969 Punj 506
[2] *Hansmukh v. Gujarat*, AIR 1981 SC 28
[3] *Rowshan Bijaya S. Ali Khan v. East Pakistan*, 17 DLR 1
[4] *Hari Kishan v. Maharashtra*, AIR 1962 SC 911 (This is a case of preventive detention, but the principle will be applicable)
[5] *Vimal v. U.P.*, AIR 1956 All 56; *Madhu Limaye v. Punjab*, AIR 1959 Punj 506
[6] *G.M. Loondhkhar v. State*, PLD 1957 Lah 497
[7] *M.P. v. Shobharam*, AIR 1966 SC 1910

inconsistent with the provisions of art.33 and will be void.[1] The right to be defended by a lawyer must be read to be a part of the law, irrespective of whether the law gives or denies the right.[2] The arrested person must be given a reasonable opportunity to engage a counsel, and the counsel must be given a reasonable opportunity to defend him.[3] Where railway porters offering *Satyagraha* were arrested, tried and convicted without informing them about the date of trial and without telling them that they have the right to consult and be defended by a lawyer of their choice, the trial and conviction were held to be unconstitutional.[4] But in *Ramsarup v. India*[5] the Indian Supreme Court held that there would be no breach of this fundamental right if no request to be represented by a lawyer was made by the arrested person and no such request was turned down.

2.127 The Indian Supreme Court earlier took the view that the arrested person did not have an absolute right to be provided with a lawyer by the State; he had to be given the opportunity to engage a lawyer.[6] But after amendment of the directive principles of State policy in 1976 enjoining the State to provide free legal aid by suitable legislation, the court held in *Hussainara v. Home Secretary*[7] that an indigent accused who is unable to engage a lawyer at his own cost has a constitutional right to assistance of a lawyer at State cost. The Constitution does not make it an obligation of the State to provide an indigent accused with the assistance of lawyer at its cost. The Legal Remembrancer's Manual, 1969 provides that an indigent person accused of an offence punishable with death sentence is to be provided with the assistance of a lawyer at the expense of the State.[8] In view of the provisions of art.32 an indigent accused is entitled to legal aid even in case of offences not punishable with death.[9]

2.128 *Production before magistrate:* A person arrested must be produced before a magistrate within 24 hours plus the time necessary for

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[1] *M.P. v. Shobharam*, AIR 1966 SC 1910
[2] *Rowshan Bijaya Shaukat Ali Khan v. East Pakistan*, 17 DLR 1
[3] *Moslemuddin Sikdar v. Chief Secretary*, 8 DLR 526
[4] *Hansraj v. State*, AIR 1956 All 641
[5] AIR 1965 SC 247; *M.P. v. Shobharam*, AIR 1966 SC 1910
[6] *Janardhan v. Hydrabad*, AIR 1951 SC
[7] AIR 1979 SC 1377; *Hossainara v. Bihar*, AIR 1979 SC 1360
[8] Paragraph 6, Chapter XII, quoted in *State v. Purna Chandra*, 22 DLR 289
[9] See Para 2.120

the journey from the place of arrest to the court of the magistrate[1]. Failure to comply with this requirement would render further detention of the arrested person illegal.[2] Thus the period of detention without a magisterial order cannot be longer than the period stated above. This rule is applicable to all arrests, whether under or without a warrant of arrest.[3] This rule ensures that a judicial mind is applied immediately as regards the legality of the arrest and detention. The requirement was not be fulfilled if a magistrate arrested a person without a warrant and the arrested person was remanded by the same magistrate as in that case the magistrate in directing the arrest did not act as a court and had no opportunity to apply his independent judgment.[4] The magistrate is not to act mechanically but must apply his judicial mind to see whether the arrest of the person produced before him is in accordance with law as otherwise the protection under art.33 will be meaningless.[5] In *Ram Manohar v. Superintendent, Central Jail*[6] a person was arrested by a Station Officer on his own authority, and immediately thereafter the City Magistrate in his executive capacity went there. The arrested person was produced before the City Magistrate who remanded the arrested person to custody. The Allahabad High Court held that there was sufficient compliance with the constitutional requirement. D. Basu in his Commentary on the Indian Constitution[7] questioned the correctness of the decision and pointed out that the City Magistrate visiting the spot in his executive capacity was not holding court and the arrested person was deprived of the opportunity to consult lawyer when he was not taken to a court. Every day we see the casual way in which the matter of arrest and remand is dealt with in court. The position of an arrested person produced on the spot must be far worse and would make a mockery of the constitutional protection. In this situation the criticism of D. Basu cannot be brushed aside. In a case where the magistrate is himself a witness, the constitutional requirement will not be fulfilled by

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[1] *Mehndz Sakib v. Bangladesh*, 52 DLR 526

[2] *U.P. v. Abdus Samad*, AIR 1962 SC 1506; *Bhim Singh v. J & K*, AIR 1986 SC 494 (where remand order was obtained from a magistrate without producing the arrested person before him, the detention was illegal)

[3] Ibid; contra *Sakhi Daler Khan v. Superintendent in-echarge*, PLD 1957 Lah 813

[4] *Hariharananda v. Jailor*, AIR 1954 All 601

[5] In re *Madhu Limaye*, AIR 1969 SC 1014

[6] AIR 1955 All 193

[7] Vol.D, 1978, p.146

production of the arrested person before him.[1] A person was arrested in Bombay on a warrant issued by the Speaker of U.P. Legislative Assembly and taken to Lucknow in custody to be produced before the Speaker to answer the charge of breach of privilege of the Legislative Assembly. He was not produced before a magistrate within the stipulated time. The Supreme Court held it to be a contravention of the constitutional requirement of production before a magistrate and ordered the release of the arrested person.[2]

2.129 ***Preventive detention:*** Art.33 as originally adopted did not leave any scope for preventive detention. Preventive detention, though an evil, is a necessity for State security and by the Constitution (Second Amendment) Act, 1973 the old art.33 was replaced by the present one providing that the above rights will not be available in the case of persons arrested or detained under any law providing for preventive detention. Preventive detention has three distinguishing features - (i) it is detention and not imprisonment, (ii) it curtails the liberty of a person by executive order without any preceding trial or inquiry and (iii) its object is preventive and not punitive. Under art.32 a law providing for preventive detention must both substantively and procedurally be free from arbitrariness and unreasonableness and must not be vague or disproportionate to the mischief sought to be remedied. In order to protect the individuals from arbitrary or high-handed arrest and detention by the executive, clauses (4) and (5) of art.33 provide two important safeguards - (i) approval by Advisory Board and (ii) communication of the grounds of detention. Both these safeguards are to be observed by the detaining authority. It is immaterial whether the constitutional safeguards are incorporated in the law as even if not so incorporated, it would be deemed to be incorporated in the law as superimposed by the Constitution.[3]

2.130 *Approval by Advisory Board:* Art.33(4) provides that no law shall authorise detention for a period of more than six months and the period of six months can be extended only if an Advisory Board, before the expiry of six months, opines that there is sufficient cause for detention.[4] If no such affirmative opinion is given by the Advisory

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[1] *Bir Bhadra Pratap v. D.M. Azamgarh*, AIR 1959 All 384

[2] *Ganapati v. Nafizul Hasan*, AIR 1954 SC 636

[3] *Vimal v. Prodhan*, AIR 1979 SC 1501; *Rowshan Bijaya Shaukat Ali Khan v. East Pakistan*, 17 DLR 1

[4] *Abdul Aziz v. West Pakistan*, PLD 1958 SC 499, 513

Board, the detenu has to be released on the expiry of six months.[1] In a writ of *habeas corpus* the court is not required to wait for the opinion of the Advisory Board and should dispose of the petition if it is otherwise ready for hearing.[2] The Advisory Board is to be constituted with three persons, two of whom must be persons who are, have been, or are qualified to be appointed as Judges of the Supreme Court and the other must be a senior officer in the service of the Republic. The Advisory Board shall consider the representation of the detenu against the detention order along with the materials produced by the detaining authority to show the basis of its satisfaction regarding the necessity of detention of the detenu and after hearing the detenu in person, the Advisory Board will have to form an opinion as to whether there are sufficient materials to sustain the satisfaction of the detaining authority as regards the necessity of detention. In *Gopalan v. Madras*[3] Sastri J held that the Advisory Board is only to consider whether there is sufficient cause for detention, while Kania CJ and Fazal Ali J took the view that the function of the Board is to consider whether there is sufficient cause for detention for a longer period. However, the Advisory Board cannot express an opinion as to how long the detention should continue.[4] It is for the detaining authority to decide on the period of detention. The approval by the Board is only a safeguard against the vagaries and arbitrariness of the detaining authority.[5] Not only does the opinion of the Advisory Board have to be rendered before the expiry of six months, the detaining authority must also extend the period of detention before the expiry of that period.[6] But once the order is made within time, delay in communicating the order to the detenu is a mere irregularity which does not vitiate the detention order.[7] Art.33(6) provides that Parliament may enact law prescribing the procedure of the Advisory Board which must, of course, pass the test of reasonableness under art.32.

2.131 *Communication of grounds of detention:* Art.33(5) requires that the grounds of detention must, as soon as may be, be communicated

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[1] *Monwara Begum v. Secy., Ministry of Home*, 41 DLR 35
[2] *Dr. Habibullah v. Secy., Ministry of Home*, 41 DLR 160
[3] AIR 1950 SC 27
[4] *Dattatraya v. Bombay, AIR 1952 SC 181*
[5] *Puranlal v. India*, AIR 1958 SC 163
[6] *Deb Sadhan Roy v. W.B.*, AIR 1972 SC 1924; *Satya Deo Prasad v. Bihar*, AIR 1975 SC 367
[7] *Deb Sadhan Roy v. W.B.*, AIR 1972 SC 1924

to the detenu and the detaining authority must afford him the earliest opportunity of making a representation against the order of detention.[1] It is very important because it not only enables the detenu to make the representation, but also enables him to file a proper application for a writ of *habeas corpus*, though, of course, the detenu may present an application for the writ even before the grounds of detention are served on him. 'Grounds' means the conclusions drawn by the authority from the facts or particulars.[2] The service of the grounds of detention is mandatory. The reasons and grounds stated in the initial order of detention cannot be a substitute for the service of separate grounds of detention and non-service of the grounds renders the detention without lawful authority.[3] Grounds served need not be the particulars in all details, but they must contain sufficient particulars so that an effective and meaningful representation may be made by the detenu.[4] The grounds served must be in a language the detenu understands.[5] The detaining authority has to inform the detenue that he has a right of opportunity to make representation and failure to inform may render the continued detention illegal.[6] There is a proviso to art.33(5) which permits the detaining authority to refuse to disclose facts which such authority considers to be against the public interest to disclose.

2.132 Art.33(5) requires that the grounds must be communicated 'as soon as may be' which means as early as is reasonable in the particular circumstances of a case. The Constitution left the time indeterminate to allow the detaining authority reasonable time to formulate the grounds. In construing the expression 'as soon as may be' Kayani CJ of the Lahore High Court observed -

> If these words 'as soon as may be' have the same meaning in clause (5) as they have in clause (1), or at least as near them as may be, then a delay of sixteen days clearly violates the constitutional safeguard. The grounds on which the detaining authority makes the order, must be

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[1] *Ghulam Azam v. Bangladesh*, 46 DLR 29

[2] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1; *Bombay v. Atma Ram*, AIR 1951 SC 157

[3] *Chunnu Chowdhury v. D.M.*, 41 DLR 156

[4] *Habiba Mahmud v. Bangladesh*, 45 DLR (AD) 89; *Rowshan Bijaya S. Ali Khan v. East Pakistan*, 17 DLR 1; *Sekendar Ali v. Bangladesh*, 42 DLR 346; *Bombay v. Atma Ram*, AIR 1951 SC 157; For discussion on legally valid grounds, see Para 5.106 - 5.109.

[5] *Hari Kishan v. Maharashtra*, AIR 1962 SC 911

[6] *Jayendra Thakur v. India*, AIR 1999 SC 3517

known to it on the day when the order is made, and can ordinarily be served on the detenu along with the order of detention. We were referred by the learned counsel for the State to a decision of the Indian Supreme Court in *Tarapada De v. W.B.*[1] in which a delay of sixteen days was not held to violate the Constitution 'under the circumstances of the case'. The circumstances were these. 'Under Bengal Criminal Law Amendment Act, 1930, a very large number of persons were detained. The validity of that Act was being challenged in the High Court and the judgment was expected to be delivered towards the end of February 1950. The Preventive Detention Act, 1950 was passed by Parliament in India, in the last week of February 1950 and these orders on all these detenus (1000 persons) were served on 26th February 1950. Having regard to the fact that the Provincial government had thus suddenly to deal with a large number of cases on one day, we are unable to accept this contention'. Their Lordships might have added that the detenus having already been under detention under another enactment the words as soon as may be were robbed of practical value. The delay in the present case resulted from ordinary dilatoriness in various offices and cannot be allowed to invade a Fundamental Right. *While examining the quality of these rights, we should place ourselves in the position of a detenu and assume that we are the innocent victims of a misunderstanding or intrigue. If then we are kept in the dark even for a single day as to the reason for our arrest, should we not feel that we are still in the dark ages?*[2] (Italic supplied)

The logic of the statement is undeniable. Exceptional cases apart, there is no reason why generally one or two days shall not be taken to be a reasonable time. By leaving the time indeterminate, the Constitution has not sanctioned dilatoriness. Reasonable time should be determined keeping in view the fact that we are dealing with the most cherished human right to be free from bondage.[3] We have lately seen appalling abuse of the preventive detention law. Hundreds have been detained, but on being challenged hardly one of these cases stands scrutiny of the court. If the detention order is based on existing materials, as it should

[1] AIR 1951 SC 174

[2] *G.M. Loondhkhar v. State*, PLD 1957 Lah 497

[3] *Dr. Habibullah v. Secy., Ministry of Home*, 41 DLR 160 (The extraordinary provision of s.8(2) of the Special Powers Act regarding service of grounds not later than fifteen days from the date of detention does not give a general licence to the authority to serve the grounds in a leisurely way within fifteen days in every case deliberately to deprive the detenu of his valuable legal right to make effective representation at the earliest possible opportunity)

be, there is no reason why with reasonable effort it should take more than one or two days to formulate and serve the grounds. Time is required when materials are to be gathered to concoct grounds of detention. One may say that it is a small matter. But it is not so and even if it is a small matter, deviations from constitutional requirements start with a small measure and unless immediately checked, gradually gains in proportion. Time and again the Supreme Court admonished against the infraction of this important fundamental right without any visible effect on the executive.[1] The executive has gone even to the extent of devising ways to avoid compliance of the order of release passed by the Supreme Court compelling the Supreme Court to initiate proceedings for contempt of court.[2] In one case, the court had to resort to the now forgotten procedure of having the detenu physically present in court and releasing the detenu from the court premises.[3]

PROHIBITION AGAINST FORCED LABOUR

2.133 Art.34(1) provides that all forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law. The corresponding provision of the Indian Constitution is art.23 which stipulates that traffic in human beings and begar and other similar forms of forced labour are prohibited. It is beyond the dignity of a person to be compelled to labour when he would not do so voluntarily. It includes every form of labour which is supplied under compulsion and not willingly and it is immaterial whether remuneration is paid or not.[4] In the same way, forced labour is involved when a man is obliged to work at wages below the minimum wages.[5] Traffic in women and children also involve forced labour.[6] Labour may be `forced' not only owing to physical force, but also on account of a legal provision such as imprisonment or fine in case an

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[1] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1

[2] *Tahera Nargis v. Shamsur Rahman*, 41 DLR 508

[3] *Alam Ara Haq v. Bangladesh*, 42 DLR 98

[4] *People's Union v. India*, AIR 1982 SC 1473; *Sanjit v. Rajasthan*, AIR 1983 SC 328

[5] *Sanjit v. Rajasthan*, AIR 1983 SC 328; *BIWTA v. BIWTA Ghat Sramik Union*, 1982 BLD (AD) 83 (appointment of stevedores and handling contractors by BIWTA for loading and unloading of goods in inland ports through coolies does not result in forced labour)

[6] *Raj Bahadur v. Legal Remembrancer*, AIR 1953 Cal 522; *Nihal v. Rambai*, AIR 1987 MP 126

employee fails to provide service, and also owing to hunger and poverty which compels a person to accept employment for a remuneration which is less than the statutory minimum wages.[1] Where a contract for personal service is enforceable under a penal law, the prohibition is attracted. Art.34 will be attracted where the penalty for default in rendering service is founded on custom or administrative fiat or in repayment of an alleged debt.[2] But compulsion to do overtime is not forced labour because when the rules make liability to work overtime a term of employment no question of forced labour is involved as the worker entered into the employment contract voluntarily.[3]

2.134 Art.34(2) provides the exception to art.34(1). Compulsory labour by a person undergoing lawful punishment for a criminal offence or compulsory labour required by any law for a public purpose shall not attract the prohibition of art.34(1). However, if the exaction of hard labour is without payment of wages or even with payment of nominal wages this will be a case of forced labour violating art.34(1).[4] The expression 'public purpose' is wide enough to include military and police service[5] as also social service[6]

PROTECTION IN RESPECT OF TRIAL AND PUNISHMENT

2.135 Art.35 guarantees a cluster of rights in respect of trial and punishment. Clause (1) provides protection against *ex post facto* laws, clause (2) provides guarantee against double jeopardy, clause (3) ensures speedy and fair trial, clause (4) grants privilege against self-incrimination and clause (5) prohibits torture and cruel, inhuman or degrading punishment. Clause (6) provides that nothing in clause (3) or clause (5) shall affect the operation of any existing law, which prescribes any punishment or procedure for trial. 'Existing law' means a law which was in existence at the commencement of the Constitution but

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[1] *People's Union v. India*, AIR 1982 SC 1473

[2] Ibid; *Bandhua Mukti Morcha v. India*, AIR 1984 SC 804; *Kahaosan v. Simirei*, AIR 1961 Manipur 1; *Chandra v. Rajasthan*, AIR 1956 Raj 188

[3] *Dalmia Cement Ltd v. Dalmia Cement Workers' Union*, PLD 1958 SC 153

[4] *Gujrat v. Hon'ble High Court of Gujrat*, (1998) 7 SCC 392

[5] *Dulal v. District Magistrate*, AIR 1958 Cal 365

[6] *Acharaj v. Bihar*, AIR 1967 Pat 114 (cultivator compelled to carry food grains without remuneration to government godown in a scheme of procurement of food grains as an essential commodity

does not include any amendment of the existing law made after the commencement of the Constitution.[1]

2.136 ***Protection against ex post facto laws:*** In the American jurisdiction an *ex post facto* law is one which, in its operation, (i) makes that criminal which was not so at the time the act was performed, or (ii) which increases the punishment, or, in short, which in relation to the offence or its consequence, alters the situation of a party to his detriment or disadvantage.[2] *Ex post facto* laws relate to crimes only, whereas retrospective laws relate to civil as well as criminal matters.[3] The basic principle is that a person has a right to fair warning of that conduct which will give rise to criminal penalties and, therefore, the criminal quality attributable to an act should not be altered, after the fact, to the detriment of the accused.[4] Art.35(1) of the Constitution prohibits the first two categories of *ex post facto* laws providing, "No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than, or different from, that which might have been inflicted under the law in force at the time of the commission of the offence." The expression 'law in force' must be understood in its natural sense as being the law in fact in existence at the time of commission of the offence as distinct from a law 'deemed' to have become operative.[5] Art.35(1) is not applicable in respect of a civil penalty which is not a punishment for an offence.[6] A law which comes in conflict with the provisions of art.35(1) becomes void only in so far as it is retrospective and the invalidity will not affect its prospective operation.[7]

2.137 Laws which retrospectively create offences and punish them

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[1] Where the Constitution intended to include an amendment of the existing law within the meaning of 'existing law', the Constitution specifically mentioned such amendment. See art.47.

[2] 16A Am Juris 2d, Const. Law, Para 635; *Dobbert v. Florida*, 432 US 282; *Lindsey v. Washington*, 301 US 397

[3] 16A Am Juris 2d, Const. Law, Para 636

[4] *Marks v. U.S.*, 430 US 188; *Beazell v. Ohio*, 269 US 167

[5] *Rao Shiv Bahadur v. V.P.*, AIR 1953 SC 394

[6] The observation of the majority in *Registrar, University of Dacca v. Sajjad Hussain*, 34 DLR (AD) 1, 19, that P.O. 67 of 1972 cannot be construed to have retrospective operation as it would offend art.35 is wrong inasmuch as the said law did not provide for punishment of criminal offence, but only civil penalties relating to service.

[7] *Jaehne v. New York*, 128 US 189

are bad as being highly inequitable and unjust.[1] Where an act at the time of commission is not an offence though a fine leviable by the Rent Controller is provided as a penalty, and subsequently that act is made an offence, the law making that act punishable as an offence is violative of art.35(1).[2] The prohibition is a limitation on the power of the legislature and does not apply to judicial decisions.[3] The immunity is, again, against criminal legislation only and not against retrospective imposition of civil liability.[4] However harsh its consequences, a law is not within the bar of art.35(1) unless it inflicts a criminal punishment.[5] But the form of the penalty is not conclusive and the prohibition cannot be evaded by giving a civil form to that which is essentially criminal.[6] An Act passed in June, 1957 imposed on the employers closing their undertaking the liability to pay compensation to their employees since November 28, 1956. This liability could be enforced by coercive process leading to imprisonment in case of failure to discharge the liability. The court held that this was a civil liability and as such the prohibition relating to *ex post facto* law would not be attracted.[7] In determining whether a law imposes punishment for past conduct in violation of the prohibition, the test is whether the legislative aim is to punish an individual for past activity or whether the restriction comes about as a relevant incident to a regulation of a present situation.[8] A law does not come within the prohibition of art.35(1) by providing punishment or penalty for the continued maintenance of certain conditions which, prior to enactment of the law, were lawful.[9] "A statute making unlawful the possession of intoxicating

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[1] *Rao Shiva Bahadur v. V.P.*, AIR 1953 SC 394

[2] *Kanaiyalal v. Indumati*, AIR 1958 SC 444

[3] *Frank v. Mangnum*, 237 US 309; see, however, *Bouie v. City of Columbia*, 378 US 347 (An unforeseeable judicial enlargement of a criminal statute, applied retroactively, operates precisely like an ex post facto law ... If a state legislature is barred by the Ex Post Facto Clause from passing such law, it must follow that a State Supreme Court is barred by the Due Process Clause from achieving the same result by judicial construction.); *Marks v. U.S.* 430 US 188.

[4] *Calder v. Bull*, 3 Dall. 386

[5] *Mahler v. Eby*, 264 US 32

[6] *Burges v. Salmon*, 97 US 381

[7] *Hathi Singh Manufacturing Company v. India*, AIR 1960 SC 923; *Jawala Ram v. Pepsu*, AIR 1962 SC 1246 (retrospective imposition of special rate for unauthorised use of canal water); *Shiv Dutt v. India*, AIR 1984 SC 1194 (penalty under a tax law imposed retrospectively for non-payment of tax)

[8] *Flemming v. Nestor*, 363 US 603

[9] *Samuels v. McCurdy*, 267 US 188

liquor, although it may have been lawfully obtained before the passage of the prohibitory act, is not *ex post facto* insofar as it affects continued possession in future."[1]

2.138 The second part of art.35(1) gives immunity to a person from a penalty greater than, or different from, that which he might have incurred at the time of commission of the offence. Today a person commits an offence which carries a maximum sentence of three years. Tomorrow the maximum sentence may be increased to five years to be operative prospectively, but not retrospectively to cover the offence committed today.[2] What is to be considered is whether the law retrospectively imposes a penalty greater than that which might be inflicted under the law in force at the time of the commission of the offence. According to s.420 of the Penal Code an unlimited fine can be imposed. Subsequent to the commission of the offence, an amendment of the law by an Ordinance of 1943 prescribed retrospectively a minimum fine which the court must inflict on a person found guilty under s.420. The court held that it did not violate the prohibition because the minimum penalty could not be said to be greater than what could be inflicted under the law in force at the time of commission of the offence.[3] A government servant misappropriated government money before August, 1944. In August, 1944 an Ordinance provided that upon conviction the misappropriated sum should be forfeited from the property of the accused. The court held the Ordinance valid as it did not impose a penalty, but merely provided a method of recovering the misappropriated amount.[4] No difficulty is faced to find out whether a punishment has been increased in violation of art.35(1). But the problem arises when it is alleged that the altered punishment is different from the punishment prescribed at the time of commission of the offence. The test is whether a reasonable person would regard the change as one increasing the punishment.[5] Where the punishment is altered from death to life imprisonment or where the death sentence is not changed but a human method of execution is introduced, the bar of art.35(1) is not violated.[6]

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[1] 16A Am Juris 2d, Const. Law, Para 641

[2] *Kedar Nath Bajoria v. W.B.*, AIR 1953 SC 404; *Tiwari Kanhaiyalal v. C.I.T.*, AIR 1975 SC 902

[3] *Satwant Singh v. Punjab*, AIR 1960 SC 266

[4] *W.B. v. S.K. Ghose*, AIR 1963 SC 255

[5] *Rooney v. North Dakota*, 196 US 319

[6] See Schwartz - Constitutional Law, p.306

2.139 ***Protection against double jeopardy:*** Art.35(2) incorporates the American concept of due process against 'double jeopardy' in clear terms stating, 'No person shall be prosecuted and punished for the same offence more than once.' The concept was firmly established in s.403 of the Code of Criminal Procedure. Incorporation of the concept in the Constitution makes it a fundamental right taking away the power of Parliament to provide to the contrary. The protection is available only when both the proceedings are criminal proceedings and both the prosecutions are for the same offence. Thus when a person is acquitted or convicted of an offence, disciplinary proceedings for the same facts on which the previous prosecution was based is not barred as the disciplinary proceedings cannot be treated as a prosecution for criminal offence.[1] Proceedings for confiscation of goods or for fine under s.167 of the Sea Customs Act or proceedings before an administrative or departmental tribunal are not criminal proceedings.[2]

2.140 To determine the application of art.35(2) three things are to be considered - (i) whether the accused was prosecuted and punished in a prior proceeding, (ii) whether the subsequent proceeding is a fresh proceeding or a continuation of a prior proceeding and (iii) whether the previous charge was substantially the same as the present one.

2.141 *Previous proceeding:* In order to apply art.35(2) there must have been a previous proceeding before a judicial tribunal of competent jurisdiction in which the accused was prosecuted.[3] The previous proceeding must not be a void proceeding.[4] The proceeding must be a criminal proceeding.[5] In the previous criminal proceedings the accused must have been convicted or acquitted and the conviction or acquittal must be in force at the time of the subsequent proceeding.[6] Art.35(2) will not be attracted where the previous proceeding was dismissed for default of the complainant.

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[1] *Sk. Harunur Rashid v. Secretary, Ministry of Jute*, 49 DLR 596; *Serajul Islam v. Director.General*, 42 DLR (AD) 199; *Venkataraman v. India*, AIR 1954 SC 375; *India v. Sunil Kumar*, AIR 2001 SC 1092

[2] *Venkataraman v. India*, AIR 1954 SC 375; *Thomas Dana v. Punjab*, AIR 1959 SC 375; *Narayanlal v. Mistry*, AIR 1961 SC 29

[3] *Muhamadullah v. Sessions Judge*, 52 DLR 374; *Maqbool v. Bombay*, AIR 1953 SC 325; *Thomas v. Punjab*, AIR 1959 SC 375; *Assistant Collector v. Melwani*, AIR 1970 SC 962

[4] *Baijnath v. Bhopal*, AIR 1957 SC 494 (for want of jurisdiction of court)

[5] *Narayanlal v. Mistry*, AIR 1961 SC 29; *Thomas Dana v. Punjab*, AIR 1959 SC 375.

[6] *Assistant Collector v. Melwani*, AIR 1970 SC 962

2.142 *Subsequent proceeding:* The subsequent proceeding must be a fresh proceeding where the accused is sought to be prosecuted for the same offence. Art.35(2) will not be attracted if the subsequent proceeding is merely a continuation of the previous proceeding by way of an appeal or retrial.[1]

2.143 *Same offence:* The prohibition will be attracted only when the subsequent proceeding is for the same offence for which the accused was once tried and punished.[2] The previous conviction for one offence does not bar subsequent prosecution for a separate and distinct offence even though the two offences arise out of the same facts or transaction and the allegations in the two complaints are identical.[3] If the same facts constitute two offences, conviction for one offence does not debar subsequent prosecution and punishment for the other offence.[4] Where one act, or a related set of acts, constitutes more than one offence, it does not contravene the prohibition of art.35(2) to have two prosecutions.[5] Where the ingredients of the two offences are different in scope and content, art.35(2) has no application. In *Abdur Rashid v. State*[6] the petitioner was charged and convicted under s.395/397 Penal Code. Subsequently, he was charged under s.19(a) and (f) of Arms Act for possession of arms while committing the offence in the first case. The High Court Division held that the second prosecution was barred under art.35(2). It is submitted that the decision of the High Court Division is not correct inasmuch as the offence under s.19 of the Arms Act is different from the offence under ss.395/397 of the Penal Code and art.35(2) is not attracted.[7] The principle of double jeopardy prohibits

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[1] *Ludwig v. Massachusetts*, 427 US 618; *Kalawati v. H.P.*, AIR 1953 SC 131; *M.P. v. Veereswar*, AIR 1957 SC 592.

[2] *H.M. Ershad v. State*, 45 DLR 533

[3] Schwartz - Constitutional Law, p.300; *Bombay v. Apte*, AIR 1961 SC 578

[4] *Bhagwan Swarup v. Maharashtra*, AIR 1965 SC 682; *Leo Roy Frey v. Superintendent, District Jail*, AIR 1958 SC 119 (a particular crime and a conspiracy to commit that crime are two distinct offences and punishment of one does not debar prosecution for the other); *M.P. v. Veereswar*, AIR 1957 SC 592; *Bihar v. Murad Ali Khan*, AIR 1989 SC 1 (offence under s.429 Penal Code and offence under s.9(1) of wild Life Protection Act are different offences)

[5] *Albrecht v. U.S.*, 273 US 1; *Gore v. U.S.* 357 US 386

[6] 1 BLC 180

[7] The High Court Division relied on *Abdul Majid v. State*, PLD 1963 Dac 661, and *Sultan Mahmudul Hossain v. State*, 1985 BLD (AD) 323 which are decisions on s.403 of the Code of Criminal Procedure. The facts of the first case were quite distinguishable and in the facts and circumstances of the second case s.403(2), which permitted the

trial of a person for a greater offence after he has been convicted of a lesser included offence.[1] The bar of art.35(2) will not be attracted in case of an offence which is a continuing offence, i.e., where continuation of the offence constitutes fresh offence from day to day.[2]

2.144 ***Speedy and fair trial:*** Sometimes delay in holding a trial amounts to an abuse of the process of the court and in such cases criminal proceedings may be quashed under s.561A of the Code of Criminal Procedure for wanton delay. But speedy trial is so important that the framers of the Constitution made it a fundamental right under art.35(3) which corresponds to the Sixth Amendment of the American Constitution. Though the right to speedy trial is not specifically provided in the Indian Constitution, the Indian Supreme Court has held that the right to speedy trial is implicit in the right to life and personal liberty protected by art.21.[3]

2.145 Expeditious trial and freedom from detention are a part of human rights and basic freedoms and a judicial system which allows incarceration of individuals for long periods of delay without trial must be held to be denying human rights to such under-trials prisoners.[4] Though an accused is guaranteed a speedy trial, it is difficult to set down the time limit for trial in all cases. It is not possible, in the very nature of things and because of various factors coming into play, to draw a limit beyond which a criminal proceeding will not be allowed to go. Any accused who is denied this right of speedy trial is entitled to approach the Supreme Court to enforce his right to speedy trial and the Supreme Court, in discharge of its constitutional obligation, has power to give the necessary direction to the government for securing this right.[5] Whenever a complaint of infringement of the right to speedy trial is made, the court has to consider all the circumstances of the case to arrive at a decision whether, in fact, the proceedings have been pending for an unjustifiably long time.[6] In dealing with the question of time required for trial, the

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subsequent trial, was applicable and not s.403(1). See *Mahindra v. Punjab*, AIR 1999 SC 211.

[1] *Brown v. Ohio*, 432 US 161

[2] *Ranendranath v. India*, AIR 1965 Cal 434 (Para 8)

[3] *Hussainara v. Bihar*, AIR 1979 SC 1369

[4] *A.R. Antulay v. R.S. Nayak*, AIR 1992 SC 1701, 1718

[5] *Kadra Pahadiya v. Bihar*, AIR 1982 SC 1167

[6] *A.R. Antulay v. R.S. Nayak*, AIR 1992 SC 1701

American Supreme Court in *Barker v. Wingo*[1] noted that deprivation of this right often works to the advantage of the accused and often the delay is not an uncommon defence tactic. It cannot be said definitely how long is too long in a system where justice is supposed to be swift but deliberate. The court laid down the following four factors which should be taken into consideration in deciding whether the right to speedy trial has been infringed:

> (1) Length of delay: "Until there is some delay which is presumptively prejudicial, there is no necessity for enquiry into the other factors that go into the balance. Nevertheless, because of the imprecision of the right to speedy trial, the length of delay that will provoke such an inquiry is necessarily dependent upon the peculiar circumstances of the case. To take but one example, the delay that can be tolerated for an ordinary street crime is considerably less than for a serious, complex conspiracy charge."
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> (2) Reasons given by prosecution to justify the delay: "A deliberate attempt to delay the trial in order to hamper the defense should be weighted heavily against the government. A more neutral reason such as negligence or overcrowded court should be weighted less heavily but nevertheless should be considered since the ultimate responsibility for such circumstances must rest with the government rather than with the defendant. Finally, a valid reason, such as a missing witness, should serve to justify appropriate delay."
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> (3) The responsibility of the accused for asserting his right: "Whether, and how, a defendant asserts his right is closely related to the other factors we have mentioned. The strength of his efforts will be affected by the length of the delay, to some extent by the reason for the delay, and most particularly by the personal prejudice, which is not always readily identifiable, that he experiences. The more serious the deprivation, the more likely a defendant is to complain."
>
> (4) Prejudice to the accused: "Prejudice, of course, should be assessed in the light of the interests of defendants which the speedy trial right was designed to protect. This Court has identified three such interests: (i) to prevent oppressive pretrial incarceration; (ii) to minimize anxiety and concern of the accused; and (iii) to limit the possibility that the defense will be impaired. Of course, the most serious is the last ... If witnesses die or disappear during a delay, the prejudice is obvious. There is also prejudice if defense witnesses are unable to recall accurately events of the distant past. Loss of memory however, is not

[1] 407 US 514

> always reflected in the record because what has been forgotten can rarely be shown."[1]

In this case, the Supreme Court denied relief to the convict noting that the prejudice to the convict was minimal, he was in custody only for 10 months and was thereafter free and he did not himself really want a speedy trial. In *Strunk v. U.S.*[2] the Supreme Court held that the aforesaid considerations are for the purpose of determining whether there has been a denial of the right to speedy trial and once it is found that the right to speedy trial has been denied, in the light of the policies which underlie the constitutional right to a speedy trial, dismissal of the charges is the only possible remedy.[3]

2.146 In *A.R. Antulay v. R.S. Nayak*[4] the Indian Supreme Court considered a large number of decisions including the above mentioned decisions and laid down the following propositions:

(a) Right to speedy trial is the right of the accused. The fact that speedy trial is also in the public interest does not make it any-the-less the right of the accused.

(b) The right encompasses all the stages, namely, the stage of investigation, inquiry, trial, appeal, revision and retrial.

(c) The accused should not be subjected to unnecessary or unduly long incarceration prior to his conviction. The worry, anxiety, expense and disturbance to his vocation and peace resulting from an unduly prolonged investigation, inquiry or trial should be minimal. Undue delay may well result in impairment of the ability of the accused to defend himself, whether on account of death, disappearance or non-availability of witnesses or otherwise.

(d) Often the accused is interested in delaying the proceedings. Therefore, when a complaint of violation of the right to speedy trial is made, the first thing to be asked is who is responsible for the delay.

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[1] Ibid, p.530-532; the relevance and importance of these four factors was acknowledged by the Privy Council in *Bell v. Director of Public Prosecutions of Jamaica*, [1985] 2 All E.R. 585

[2] 412 US 434

[3] Ibid, p.440

[4] AIR 1992 SC 1701; see also *Phoolan Devi v. M.P.*, (1996) 11 SCC 19; *Raj Deo Sharma v. Bihar*, (1998) 7 SCC 507

(e) While determining whether undue delay has occurred resulting in violation of the right to speedy trial regard must be had to all the attendant circumstances, including the nature of the offence, number of accused and witnesses, the work-load of the court concerned, prevailing local conditions and so on.

(f) Every delay does not necessarily prejudice the accused. Some delays may indeed work to his advantage. However, inordinate delay may be taken as a proof of prejudice. In this context the fact of incarceration of the accused will be a relevant fact.

(g) An accused's plea of denial of the right to speedy trial cannot be defeated by saying that he did not at any time demand a speedy trial. If in a given case, he did make such a demand and yet he was not tried speedily, it would be a plus point in his favour, but the mere non-asking for a speedy trial cannot be put against him.

(h) It is neither advisable nor practicable to fix any time-limit for trial of offences. In every case of complaint of denial of the right to speedy trial, it is primarily for the prosecution to justify and explain the delay and it is for the court to balance and weigh the several relevant factors to determine in each case whether the right to speedy trial has been denied.

(i) Once the right to speedy trial is found to have been infringed, generally the charges or the conviction shall be quashed. But this is not the only course open. The nature of the offence and other circumstances in a given case may be such that quashing of proceedings may not be in the interest of justice. In such a case, it is open to the court to make such other appropriate order - including an order to conclude the trial within a fixed time where the trial is not concluded or reducing the sentence where the trial has concluded - as may be deemed just and equitable in the circumstances of the case.

2.147 It can be seen that *Antulay* differs from *Strunk* in respect of the relief to be granted once the right to speedy trial is found to have been infringed. Having regard to the conditions obtaining in India, the Indian Supreme Court justifiably made this departure.

2.148 In Bangladesh by an amendment of the Code of Criminal Procedure provision was made for stopping the proceeding after expiry

of the time fixed for concluding the trial[1], but the provision did not work and by another amendment[2] the provision for stopping of the proceeding was repealed and a provision for release of the accused on bail was made. The provision of art.35(6) excluding the operation of art.35(3) in case of existing law does not present any difficulty in view of the provision of s.561A of the Code of Criminal Procedure and the Supreme Court can always enforce the provision of art.35(3) relating to speedy trial whenever justice demands it.

2.149 *Fair trial:* The gist of art.35(3) is fair trial which requires public trial by an independent and impartial court or tribunal. Though the Code of Criminal Procedure makes provision for transfer of cases in case of reasonable apprehension of bias of the trial judge or magistrate, to ensure trial by an independent court it is absolutely necessary to ensure the separation of the judiciary from the executive organ of the State. It may be stated that the fundamental principle of State policy as contained in art.22 requires separation of the judiciary from the executive.[3]

2.150 Every court of justice is to remain open to all citizens as publicity is the authentic hall-mark of judicial as distinct from administrative procedure.[4] Accordingly, art.35(3) requires public trial by an independent and impartial court or tribunal. The underlying object is to provide a fair trial. S.352 of the Code of Criminal Procedure provides for public trial. This does not mean that the court cannot restrict the admission into the court room of persons not connected with the trial where the necessity to do so arises. In fact, s.352 of the Code confers a discretion on the court to restrict admission or hold the trial in the jail premises if the necessity arises.[5] In the American jurisdiction, an accused has the right guaranteed by the Sixth Amendment to remain present at the trial.[6] Even then the court, if confronted with a disruptive accused, may order him out of the court until he promises to behave.[7]

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[1] Ordinance no.XXIV of 1982

[2] Code of Criminal Procedure (Amendment) Act, 1992

[3] See *Secy. Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104

[4] *McPherson v. McPherson*, AIR 1936 PC 246

[5] *Nadira v. State*, 2 DLR 80; *Abdur Rashid v. State*, 18 DLR (WP) 154; *Prasanta v. State*, AIR 1952 Cal 91

[6] *Faretta v. California*, 422 US 806

[7] *Illinois v. Allen*, 397 US 337 (in such case it is deemed that the accused by his conduct lost his Sixth Amendment right)

The requirement of public hearing in a court of law for a fair trial is, however, subject to the need of the proceeding being held in camera to the extent necessary in the public interest and to avoid prejudice to the accused.[1]

2.151 The guarantee of art.35 will be violated if the trial held is found to be not fair in substance. In spite of an impartial court, a public trial may not be fair as it happened in *Sheppard v. Maxwell*[2], an extreme case of trial by press. In this case from the time of the discovery of the murder massive and pervasive attention was given by the radio and local newspapers and the community was served with information and publicity hostile to the accused and the press constantly emphasised matters that tended to incriminate the accused. During trial the newsmen took over practically the entire courtroom, hounding most of the participants in the trial. The American Supreme Court found the trial inherently lacking in due process, set aside the conviction and released the convict. In our country similar situations arise because of press reporting of sensational crimes. At the core of the matter lies the conflicting claims of the right to fair trial and the freedom of the press.[3] The requirement of fair trial may also involve legal aid for the indigent accused.[4]

2.152 ***Protection against self-incrimination:*** It is a fundamental principle of common law criminal jurisprudence that the prosecution has to prove its case and the accused cannot be compelled to make any statement against his will. The principle emanates from the apprehension that without protection against self-incrimination, an accused would be exposed to coercion and torture. In the American jurisdiction the Fifth Amendment includes a prohibition against self-incrimination by an accused.[5] The American Supreme Court extended this privilege to witnesses[6] and also in civil cases.[7] In American jurisdiction the privilege

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[1] *Vineet Narain v. India*, AIR 1998 SC 889

[2] 384 US 333

[3] See Para 2.198

[4] See para 2.120

[5] Fifth Amendment provides, "No person ... shall be compelled in any criminal case to be a witness against himself."

[6] *Counselman v. Hitchcock*, 142 US 547. S.132 of our Evidence Act provides that an answer which a witness is compelled to give shall not subject him to any arrest or prosecution, or be proved against him in any criminal proceeding, except a prosecution for giving false evidence by such answer.

[7] *Malloy v. Hogan*, 378 US 1; *Lefkowitz v. Cunningham*, 431 US 801

is not confined to the courtroom and is available in all governmental proceedings.[1] Art.35(4) states, "No person accused of any offence shall be compelled to be a witness against himself." Art.20(3) of the Indian Constitution is in the same language. The Indian Supreme Court did not give such a liberal interpretation to the provision as has been given by the American Supreme Court. According to the Indian Supreme Court, the language 'accused of any offence' qualifies the person entitled to the protection. In order that the privilege can be claimed by a person there must be a formal accusation against him of commission of an offence which in the normal course may result in prosecution.[2] In *Naryanlal v. Mistry*[3] upon a report of the Registrar of Joint Stock Companies the government appointed an inspector to investigate into the affairs of a company and the inspector issued notice to the appellant (a director of the company) to attend his office for being examined. The appellant claimed the privilege, but the Supreme Court rejected the claim stating that the investigation carried on by the inspector is no more than the work of a fact-finding commission and at no stage of the inquiry is there any accused person, or accuser or accusation against any one that he has committed an offence. The commission of offences might be discovered as a result of the inquiry and the government may institute criminal proceedings against the offending persons, but the fact that prosecution may be launched will not retrospectively convert the complexion of the proceedings held by the inspector. The Registrar's report could hardly amount to an accusation against the appellant as it was only intended to enable the government to decide whether it should appoint an inspector,[4]

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[1] Schwartz - Constitutional Law, 1979, p.276

[2] *Dastagir v. Madras*, AIR 1960 SC 756; *Sharma v. Satish Chandra*, AIR 1954 SC 300 (It is not necessary that actual trial or enquiry has commenced; a person against whom first information report has been recorded and investigation has been ordered by a magistrate can claim the protection); but in *Nandini Sathpathy v. Dani*, AIR 1978 SC 1025, the court extended the protection holding that a person who was not an accused, but was suspect and was being interrogated in the police station was entitled to the protection against self-incrimination)

[3] AIR 1961 SC 29

[4] See also *K. Joseph v. Narayanan*, AIR 1964 SC 1552 (inquiry by liquidator into the affairs of a banking company under liquidation); *Popular Bank v. Madhav Nair*, AIR 1965 SC 654 (even where the liquidator accuses the directors of fraud in his report, privilege not available); *Ramesh Mehta v. W.B.*, AIR 1970 SC 940 (proceedings before customs authorities under s.171A of the Sea Customs Act for confiscation of goods and imposition of penalty); *Veera Ibrahim v. Maharashtra*, AIR 1976 SC 1167; *Poolpandi v. Supdt. Central Excise*, AIR 1992 SC 1795

The High Court Division held that notice issued by the Bureau of Anti-corruption for the purpose of an inquiry does not attract the provision of art.35(4) as the person notified is not an accused at that stage.[1]

2.153 The guarantee is against compulsion 'to be a witness' which includes making of oral or written statements in or out of court by an accused. Such statements are not confined to confessions but also to cover statements which have a reasonable tendency to point to the guilt of the accused. As to the extent of the protection against self-incrimination, the Indian Supreme Court in *Bombay v. Kathi Kalu*[2] stated -

> It is well established that clause (3) of Article 20 is directed against self-incrimination by the accused person. Self-incrimination must mean conveying information based upon the personal knowledge of the person giving the information and cannot include merely the mechanical process of producing documents in court which may throw a light on any of the points in the controversy, but which do not contain any statement of the accused based on his personal knowledge. For example, the accused person may be in possession of a document which is in his writing or which contains his signature or his thumb impression. The production of such a document, with a view to comparison of the writing or the signature or the impression, is not the statement of the accused person which can be said to be of the nature of personal testimony.

The protection being against any compulsion, art.35(4) is not attracted in the case of a confession which must be voluntary and without any inducement.[3] But the number of confessions has increased manifold in criminal prosecutions creating doubt as to whether those confessions are at all voluntary.

2.154 ***Protection against torture and degrading punishment:*** The Eighth Amendment of the American Constitution contains a prohibition against cruel and unusual punishments. In the same way art.35(5) provides, "No person shall be subjected to torture or to cruel, inhuman or degrading punishment or treatment". This provision ensures that the

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[1] *Mustafizur Rahman v. D.G. Anti-corruption*, 49 DLR 599; *Abdul Hafiz v. D.G. Anti-corruption*, 51 DLR 72; *Tarique Rahman v. D.G. Anti-corruption*, 52 DLR 518; *Begum Tahmina v. Bangladesh*, 52 DLR 503

[2] AIR 1961 SC 1808

[3] *Kalawati v. H.P.*, AIR 1953 SC 131

power to punish is exercised within the limits of civilised standards.[1] The sweep of this provision depends upon the current mores and values of the society in which it is to operate. There were many forms of punishment which were not found fault with two hundred years ago, but are now considered cruel and unusual in the American society[2] where it is now being debated whether the death penalty should be treated as unconstitutional under the Eighth Amendment.[3] Execution of death sentence in public is a degrading punishment and cannot pass the test of constitutionality.[4] Inordinate delay can render a decision to carry out the sentence of death an inhuman and degrading punishment.[5] What amounts to an inordinate delay is a question which has to be answered having regard to the existing social conditions, the time generally taken in conclusion of the trial, the nature of the crime and the brutality in the commission of the crime. Considering the fact that the accused was in the death row for more than three years, an Indian High Court did not confirm the death sentence, but the Indian Supreme Court restored the death sentence having regard to the brutality of the attack, number of persons murdered, age and infirmity of the victims, the diabolic motive and the act of perversion which made it a rarest of the rare cases.[6] In this country, the system of investigation of crimes has, in the circumstances, become inefficient, to say the least. The administration of criminal justice is failing in dealing with the problem. Delay in investigation and disposal of cases has been causing untold suffering with the attendant violation of the guarantee under art.32. On the other hand, perversity and ruthlessness in commission of the crime is regularly found. In this state of affairs whether and how far refinement of the punishment can be made is an open but serious question.

2.155 Art.32 requires that a punishment provided by a law must be

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[1] *Woodson v. North Carolina*, 428 US 280

[2] See Schwartz - Constitutional Law, p.303

[3] *Gregg v. Georgia*, 428 US 153 (constitutionality of death sentence upheld); for the decisions of the Indian Supreme Court, see Para 2.117

[4] *Attorney General v. Lachman Devi*, AIR 1986 SC 467

[5] *Pratt v. A.G. of Jamaica*, [1994] 2 AC 1; *Guera v. Baptiste*, [1995] AC 397; see also *Vatheeswaran v. Tamil Nadu*, AIR 1983 SC 361; see *Fisher v. Minister of Public Safety*, [1998] AC 673 (pre-trial period whether a relevant consideration for determining whether the delay is cruel and degrading); *Fisher v. Minister of Public Safety*, [1999] 2 WLR 349 (whether execution could proceed despite pendency of application before international human rights tribunal)

[6] *U.P. v. Dharmendra Singh*, AIR 1999 SC 3789

reasonable and non-arbitrary. Art.35(5) prohibits cruel, inhuman or degrading punishment, but art.35(6) provides that art.35(5) shall not affect the operation of any existing law, i.e., a law in existence at the commencement of the Constitution. The question arises whether art.35(6) takes a penal law out of the purview of art.32 as regards reasonableness of a prescribed punishment. S.303 of the Penal Code providing for mandatory death sentence has been declared by the Indian Supreme Court to be void being violative of art.14 and 21 of the Indian Constitution.[1] Can any such declaration be given in our jurisdiction? The principle of harmonious interpretation requires that in case of conflict between two provisions, a construction should be given which permits both the provisions to have effect. It may be reasonably argued that a punishment may be arbitrary or unreasonable even without being cruel, inhuman or degrading and the bar of art.35(6) will be attracted only if a punishment is challenged as cruel, inhuman or degrading and the bar is not applicable in respect of challenge under art.27 or 32. The punishment prescribed by s.303 of the Penal Code without being cruel, inhuman or degrading is arbitrary in that it takes away the discretion of the court even when there are extenuating circumstances.

FREEDOM OF MOVEMENT

2.156 Right of locomotion is an important part of liberty. The right of a person to move freely, to reside where he will, and to work where he will is connected with his livelihood and pursuit of happiness. Even though this right may be protected by the due process clause of art.31[2], as an important segment of liberty, the framers of the Constitution made special provision to protect the freedom of movement of citizens. Art.36 provides that subject to reasonable restrictions imposed by law in the public interest, every citizen has the right to move freely through out Bangladesh, to reside and settle in any place in Bangladesh and to leave and re-enter Bangladesh.[3] The corresponding provisions of the Indian and Pakistani Constitution do not include the expression 'to leave and re-enter' and as such there was considerable controversy as to whether the freedom of movement included the right to leave and re-enter the

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[1] *Mithu v. Punjab*, AIR 1983 SC 473

[2] In the American jurisdiction the right of free movement as a vital element of personal liberty is protected by the due process clause. See Schwartz - Constitutional Law, p.99

[3] see *Kazi Mukhlesur Rahman v. Bangladesh*, 26 DLR (AD) 44; *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR (AD) 1

country.[1] The framers of the Constitution did not leave it for interpretation by the court and made specific provision guaranteeing the right to leave and re-enter the country. The right to travel abroad must include the right to a passport as it is an essential pre-requisite to foreign travel.[2] The American Supreme Court made a distinction between travel abroad and travel inside the country. The conduct of the citizens abroad may have a direct impact on foreign policy and hence the court is of the view that Congress may have more latitude in regulating international travel.[3]

2.157 Proper exercise of this right is possible only in an organised society and, as unbridled exercise of this right may prejudicially affect or even destroy that organised society, there is a legitimate governmental interest in restricting the right in the public interest. Thus the article permits imposition of restrictions. Such restrictions must be by a law and must be reasonably needed in the public interest.[4] Without the backing of law imposition of restriction on the freedom of movement by an executive order will be unconstitutional. By law a reasonable restriction may be put on the movement of a citizen or he may even be externed from one place of the country to another, but he cannot be externed from the country.[5] Art.36 guarantees only the right of physical movement and as such watch by police over movements of a suspect and domiciliary visits at night causing disturbance to his sleep will not be a violation of art.36[6], but may be a violation of art.31 or 43 of the Constitution.

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[1] *Maneka Gandhi v. India*, AIR 1978 SC 597; *Abul A'la Moudoodi v. State Bank*, PLD 1969 Lah 908

[2] *Syed Makbool Hossain v. Bangladesh*, 44 DLR 39; *Kent v. Dulles*, 357 US 116 (refusal to issue passport, held violative of the freedom of movement); *Ekram Ibrahim v. Bangladesh*, 47 DLR 256 (Revocation of passport without giving reasonable opportunity to show cause is unfair and unjust); *Bangladesh v. Ghulam Azam*, 2001 BLD (AD) 62 (Renewal of passport); *H.M. Ershad v. Bangladesh*, 2001 BLD (AD) 69 (Impounding of passport without giving the holder opportunity of being heard and without reasonable grounds); *Dilruba Rana v. Secy. Ministry of Home*, 6 MLR 50 (Seizure of passport); *Nasrin Hossain v. Bangladesh*, 1 MLR 344

[3] Schwartz - Constitutional Law, p.100

[4] *Shapiro v. Thompson*, 394 US 610 (Residence requirement as qualification for receiving welfare benefits imposed to effect economy in the state's expenditure was found unconstitutional as it impinged on the right of movement from one State to another State)

[5] *Abdur Rahim v. Bombay*, AIR 1959 SC 1315; *Ebrahim Vazir v. Bombay*, AIR 1954 SC 229

[6] *Kharak Singh v. U.P.*, AIR 1963 SC 1295 (Subba Rao J dissenting observed that

Eviction of a person from the precincts of a market for violation of the rules of the market, but not from his house, does not violate the freedom of movement.[1]

2.158 'Public interest' is an expression of wide amplitude and it is impossible to precisely define 'public interest'. In the matter of freedom of movement, 'public interest' may embrace many things including public security, public order and public morality.[2] It may even include public health in that the freedom of movement of a person suffering from an infectious disease has to be curtailed and he has to be quarantined.[3] The interest of public morality may require restriction of movement of a prostitute. The restriction will not be unconstitutional if it is found that the activities of a prostitute in an area is subversive of public morals and public health.[4] The requirement of wearing crash helmet while riding a motor cycle facilitates movement and is not violative of the freedom of movement.[5] The interest of public security may require denial of access to public places like forts, arsenals and other protected areas.[6] The interest of public order may require the arrest and detention of a person[7], or externment or internment of habitual criminals or dangerous persons, e.g., goondas.[8] In all such cases, the restrictions imposed by law will be valid if the restrictions are found reasonable.[9] The inquiry as regards reasonableness of the restriction has two aspects - substantive and procedural.[10] It must be remembered that

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freedom of movement is not mere freedom to move without physical obstruction and movement under the scrutinising gaze police cannot be free movement); see also *Govinda v. M.P.*, AIR 1975 SC 1378

[1] *Jan Mohammad v. Gujarat*, AIR 1966 SC 385

[2] *Ram Narayan v. U.P.*, AIR 1984 SC 1213 (Law providing for arrest and detention of defaulter of public dues who has fraudulently secreted his assets has been found reasonable); *Jeshingbai v. Emperor*, AIR 1950 Bom 363; *Sodhi v. India*, AIR 1983 SC 65

[3] *Gopalan v. Madras*, AIR 1950 SC 27.

[4] *Mehtab Jan v. Municipal Committee*, PLD 1958 Lah 929; *U.P. v. Kaushilya*, AIR 1964 SC 416

[5] *Ajay Canu v. India*, AIR 1988 SC 2027

[6] *Gopalan v. Madras*, AIR 1950 SC 27

[7] *W.B. v. Asoke Dey*, AIR 1972 SC 1660

[8] *Hari Khemu v. Deputy Commissioner*, AIR 1956 SC 559; *Gurbachan v. Bombay*, AIR 1952 SC 221; *Korematsu v. U.S.*, 323 US 214

[9] For general discussion on reasonable restriction see Para 2.21 – 2.24

[10] *Khare v. Delhi*, AIR 1950 SC 211; *Bazal Ahmed v. West Pakistan*, PLD 1957 Lah 388; *Rao Mahroz Akhtar v. District Magistrate*, PLD 1957 Lah 676

no hidebound definition of reasonableness can be given. The reasonableness of a restriction will depend upon the nature of the right affected, the nature and object of the law providing the restriction and the possibility of arbitrariness in applying the law in particular cases and also the existence of any mechanism to remedy a wrong or arbitrariness.

2.159 *Substantive reasonableness:* A restriction imposed by law will not be substantively reasonable if it is so vague that it cannot be said what is the extent of the restriction[1], or if the restriction is in excess of the requirement, that is, in excess of the requirement having regard to the object of the law.[2] A restriction will also be unreasonable if it is indefinite in duration[3] or if the legislature confers wide discretion on the executive to impose the restriction[4] without providing a meaningful guideline so that the freedom of movement depends on the *ipse dixit* of the executive.

2.160 *Procedural reasonableness:* A law imposing a restriction will be procedurally unreasonable if it permits the executive to impose the restriction without giving a meaningful hearing to the citizen affected[5] or, in an extreme case of emergency where delay would defeat the purpose of the law, does not provide for giving a notice and hearing to

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[1] *M.P. v. Baldeo Prasad*, AIR 1961 SC 293 (A law authorised district magistrates to direct a 'goonda' not to remain within a specified part of the district. The Supreme Court declared the law invalid on the ground that the definition of a 'goonda' afforded no assistance to decide as to who fell in that category and it was left to the unguided discretion of the district magistrate to treat any citizen as a goonda)

[2] Ibid; *Mustafa Ansari v. Deputy Commissioner*, 17 DLR 553; *Govinda v. M.P.*, AIR 1975 SC 1378 (a law permitting surveillance will be reasonable only against persons against whom reasonable materials exist to induce the opinion that they show a determination to lead a life of crime); *Prem Chand v. India*, AIR 1981 SC 613 (The law must be strictly construed and in passing externment order there must be sufficient reason to believe that the person externed is so desperate and dangerous in character that his mere presence in the place from which he is externed is hazardous to the community and its safety)

[3] *Mustafa Ansari v. Deputy Commissioner*, 17 DLR 553; *Khare v. Delhi*, AIR 1950 SC 211 (where an externment order is for an indefinite period it may be unreasonable, but if the law under which the order is passed is itself temporary, the order may not be unreasonable as it cannot extend beyond the expiry of the law)

[4] *M.P. v. Baldeo Prasad*, AIR 1961 SC 293; *Kent v. Dulles*, 357 US 116

[5] *Gurbachan v. Bombay*, AIR 1952 SC 221; *Nawabkhan v. Gujarat*, AIR 1974 SC 1471 (externment order passed without giving hearing to the affected party is violative of the right of movement and the affected party cannot be convicted for violation of the externment order)

the affected citizen after the order is passed.[1] Withholding or cancellation of a passport affects a citizen's right of travel abroad and hence the seizure and cancellation of a passport without following a reasonable procedure and giving the holder of the passport an opportunity of being heard is illegal as being a violation of the freedom of movement.[2]

2.161 In *Mustafa Ansari v. Deputy Commissioner*[3] the Deputy Commissioner of the Chittagong Hill Tracts externed the petitioner from the Kassalong Rehabilitation Area of the Chittagong Hill Tracts under rule 51 of the Chittagong Hill Tracts Regulation Rules which provided as follows:

> *Expulsion of Undesirables.* - If the Deputy Commissioner is satisfied that the presence in the district of any person who is not a native of the district, is or may be injurious to the peace or good administration of the district, he may, for reasons to be recorded in writing, order such person if he is within the district to leave the district within a given time or if he is outside the district forbid him to enter it.

The petitioner challenged the externment order complaining violation of the freedom of movement. The High Court found the rule void holding-

> The power given to the Deputy Commissioner under the rule is indeed of a sweeping and drastic nature and the mere satisfaction of the Deputy Commissioner ... is enough to order such person to leave the district ... there is no provision for giving to the aggrieved person any opportunity to show cause why he should not be ordered to leave the district nor is there any provision for the person to be present before the Deputy Commissioner and challenge the source or the veracity of any adverse report against the person, on the basis of which the Deputy commissioner may pass such an order. The rule does not put any limitation on the period during which an order passed thereunder will remain in force. The result is that the Deputy Commissioner can, on the *ipse dixit* of any person, turn a person out of the district for ever. It is therefore evident that such unlimited power with such far-reaching consequences and without any check and without any remedy of a judicial character provided to the aggrieved person to obtain redress of his grievance do not satisfy the test of 'any reasonable restriction

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[1] *Rao Mahroz Akhtar v. District Magistrate*, PLD 1957 Lah 676
[2] *Syed Makbool Hussain v. Bangladesh*, 44 DLR 39; *Kent v. Dulles*, 357 US 116
[3] 17 DLR 553

> imposed by law in the public interest'. The restriction under the rule is for an indefinite or an unlimited period. It is disproportionate to the mischief sought to be prevented, viz., 'is or may be injurious to the peace or good administration of the district'. ... the rule provides no check or safeguard against arbitrary exercise of the power. The aggrieved person has no remedy as of right to protest against an arbitrary exercise of such power ... It is true that ... the Local government ... may revise any order made under the Regulation. But as has been rightly observed by Kaikaus J in the aforesaid case[1] that discretionary remedies are no substitute for remedies to which a person has a right even though the discretion is a judicial one.

In *M.P. v. Bharat Singh*[2] a law authorised the district magistrate to require a person to live at a particular place in the interest of security of the State or public order. The law provided procedural safeguards against arbitrary exercise of the power. But the Supreme Court held the law unreasonable as it required a person to reside at a place ordered by the district magistrate without giving him a hearing before selecting the place for him; a place could be selected where he might not have any residential accommodation or means of livelihood and there was no provision for providing him with a residence or livelihood in the place selected for him.

FREEDOM OF ASSEMBLY

2.162 Art.37 provides that every citizen shall have the right to assemble and participate in public meetings and processions peacefully and without arms. This right can be restricted only by a law imposed in the interest of public order or public health. The restriction must, however, be reasonable and not arbitrary. The right of assembly is intertwined with the freedom of speech. But the freedom of speech is governed by art.39[3] and, as we will find, restrictions which may be imposed on the freedom of speech are of a somewhat wider range.

2.163 The freedom of assembly is not an absolute right and it cannot be construed as a licence for illegality or incitement to violence and crime. The right is subject to two limitations - (i) the assembly is

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[1] *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209
[2] AIR 1967 SC 1170
[3] see *Nasarullah Khan v. West Pakistan*, PLD 1965 Lah 642

peaceful and (ii) the members of the assembly must not bear arms. Therefore, laws to punish unlawful assembly (within the meaning of s.141 of Penal Code) or authorising the use of force to disperse an unlawful assembly is not inconsistent with the provisions of art.37. A peaceful use of the highway for a political protest unless it substantially obstructs the traffic is protected under art.37 of the Constitution.[1] The right to assemble peacefully involves the right to security against assault for exercising the right. Hence people cannot be prohibited from assembling in a public place for a peaceful purpose merely because some others are threatening to forcibly prevent them from peacefully assembling.[2] It is the plainest duty of the government to prevent the obstruction and not to prevent the peaceful assembly. But the position may be different in case of an emergency which may necessitate prohibition of the assembly.[3]

2.164 A law may impose restrictions on the exercise of this right in the interest of public order or public health. The expression 'public order' includes absence of all acts which are a danger to the security of the State and absence of insurrection, riot, turbulence or crimes of violence, but not acts which merely disturb the serenity of others.[4] A distinction must be made between 'law and order' and 'public order. Mere disturbance of peace will not disturb public order; only when an act has the potential of disturbing the even tempo of community life it can be said that the interest public order is involved.[5] It is also to be noticed that there is a difference between 'maintenance of public order' and 'in the interest of public order' and the latter expression is of wider import. If certain activities have a tendency to cause public disorder a law penalising such activities may not be an unreasonable restriction in the interest of public order though in some cases those activities may not

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[1] See *Director of Public Prosecution v. Jones*, [1999] 2 All E.R. 257; *Kh. Modarresh Elahi v. Bangladesh*, 2001 BLD 352

[2] *Beatty v. Gillbanks*, (1882) 9 QBD 308 (mere knowledge that an adverse party may cause disorder does not turn a lawful assembly into an unlawful one)

[3] *Babulal Parate v. Maharashtra*, AIR 1961 SC 884, 891 (public order has to be maintained in advance in order to ensure it, and, therefore, it is competent to a legislature to pass a law permitting an appropriate authority to take anticipatory action or place anticipatory restrictions upon particular kinds of acts in an emergency for the purpose of maintaining public order); *Duncan v. Jones*, [1935] All E.R. Rep. 710

[4] *Madhu Limaye v. S.D.M., Monghyr*, AIR 1971 SC 2486, 2495

[5] *U.P. v. Kamal Kishore*, AIR 1988 SC 208; *Asoke Kumar v. Delhi Administration*, AIR 1982 SC 1143

lead to a breach of the peace.[1] Thus restrictions may be imposed to avert danger to property, human life and safety and public tranquillity. However, a restriction can be said to be in the interest of public order only if the connection between the restriction and public order is proximate and direct. A restriction which does not directly relate to public order cannot be said to be reasonable on the basis of its remote and far fetched connection with public order.[2] A law which bans every type of demonstration and does not confine itself to those forms of demonstration which are likely to lead to breach of the peace will be void.[3] Though there is no fundamental right to strike[4], call for hartal without any threat to use force and not using force to observe hartal may attract the protection of art.37[5]. The provisions of s.144(1) Code of Criminal Procedure authorising issuance of temporary orders to prohibit meetings and processions in order to avoid breach of the peace do not constitute an unconstitutional restriction.[6] But s.144(6) has been found to be unconstitutional as an order made under this provision may not be of temporary duration and there are no procedural safeguards against an arbitrary use of the power.[7] The right to assemble includes the right to hold public meetings and processions.[8] Such rights can be regulated by law in the interest of public order and may be subject to regulations for controlling traffic.[9]

2.165 The right is to be exercised in public places and there is no fundamental right to hold meetings on private property or on government property which is not a public place even where the government is the employer of the persons seeking to hold the meeting.[10]

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[1] *Ramjilal Modi v. U.P.*, AIR 1957 SC 620

[2] *Ghosh v. Josheph*, AIR 1963 SC 812

[3] *Kameswar v. Bihar*, AIR 1962 SC 1166; *Ghosh v. Joseph*, AIR 1963 SC 812

[4] *Radhey Sham v. P.M.G.*, AIR 1965 SC 311

[5] *Kh. Modarresh Elahi v. Bangladesh*, 2001 BLD 352

[6] *Madhu Limaye v. S.D.M. Mongyr*, AIR 1971 SC 2486; see, however, the footnote to para 2.8A citing *Beatty v. Gillbanks*.

[7] *Bihar v. Misra*, AIR 1971 SC 1667; *Babulal Parate v. Maharashtra*, AIR 1961 SC 884

[8] *Manzur Hassan v. S.M. Zaman*, AIR 1925 PC 36 (there is always a right to lead a religious procession, but it should be conducted in a way not to obstruct the general public user and subject to lawful restrictions imposed a magistrate)

[9] *Himmatlal v. Police Commissioner*, AIR 1973 SC 87; *Pilu Bux v. Kalandi*, AIR 1970 SC 1885

[10] *Himatlal v. Police Comissioner*, AIR 1973 SC 87; *Railway Board v. Niranjan*, AIR

Without abridging the right of assembly, the government may reasonably and without discrimination regulate the use of the premises within its control by requiring permits for public assemblies in streets and parks. But the requirement of a permit would be violative of art.37 if the executive authority has an absolute discretion to refuse a permit.[1] A district magistrate may prohibit a public meeting if he considers it necessary in the circumstances in the interest of public order.[2] But where the prohibitive order under s.144 of the Code of Criminal Procedure banning public meeting did not state the material facts showing some kind of nexus between the prohibited act and the apprehended danger to public order, nor such nexus was established in the affidavit of the government, the order was held violative of the freedom of assembly.[3]

2.166 *Reasonable restriction:* The restrictions imposed by law, even if these be in the interest of public order or public health, must be reasonable. To determine the reasonableness of the law, the conditions prevailing at the time, the nature, extent and duration of the restrictions and all the surrounding circumstances are to be taken into consideration. The right can be restricted to a greater extent in times of national emergency than in more normal times. A restriction will be invalid if it be found to be one not in the interest of public order or public health, or if the law is vague or in excess of the requirement, or if unguided or absolute discretion is given to the executive in the exercise of the power.[4] Such a law will also be invalid on procedural grounds if it does not permit the aggrieved party an opportunity of being heard against the exercise of the power or does not make any provision for redress against an arbitrary or unreasonable use of the power.

FREEDOM OF ASSOCIATION

2.167 The very existence of democracy is dependent on the right to

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1969 SC 966

[1] *Himmatlal v. Police Commissioner*, AIR 1973 SC 87

[2] *Qari Abdul Hameed v. District Magistrate*, Lahore, PLD 1957 Lah 213

[3] *Oali Ahad v. Bangladesh*, 26 DLR 376

[4] *Shuttlesworth v. Birmingham*, 394 US 147; *Southeastern Promotions Ltd v. Conrad*, 420 US 546; *Himmatlal v. Police Commissioner*, AIR 1973 SC 87; *Nasarullah Khan v. District Magistrate*, PLD 1965 Lah 642 (where a law vests absolute discretion in the district magistrate to depute any person to attend any public meeting for the purpose of causing a report to be made of the proceedings and there is no provision to control or regulate the exercise of the power, it is violative of the right of assembly)

form associations. Without that right, there cannot be any political party which is an essential institution of democracy. The right of free association is closely allied with the freedom of speech and is a right which, like free speech, lies at the foundation of a free society.[1] Art.38 guarantees the freedom of association of the citizens. It provides, "Every citizen shall have the right to form associations or unions, subject to any reasonable restrictions imposed by law in the interests of morality or public order." Originally it contained a proviso to the effect that, "no person shall have the right to form , or be a member or otherwise take part in the activities of, any communal or other association or union which in the name or on the basis of any religion has for its object, or pursues, a political purpose". This proviso was deleted by the Second Proclamation Order No.III of 1976 which was in turn sought to be protected by the Constitution (Fifth Amendment) Act, 1979. In view of the doctrine of basic structure upheld in *Anwar Hossain Chowdhury v. Bangladesh*[2] it is an open question whether the Constitution (Fifth Amendment) Act, 1979 in so far as it sought to validate *ex facie* unconstitutional actions and for that matter whether the Second Proclamation Order no.III of 1976 can be held to be valid and enforceable.

2.168 Before we proceed to discuss the meaning and content of art.38, it may be seen that freedom of association as a fundamental right is a right conferred by the Constitution and the question may arise whether such a right can be claimed dehors the Constitution. Art.7(2) states that this Constitution is, as the solemn expression of the will of the people, the supreme law of the Republic. As such no right, fundamental or otherwise, can be claimed if it is inconsistent with the Constitution. Art.21 states that it is the duty of every citizen to observe the Constitution. Can the Constitution be observed by denying any of the fundamental concepts and precepts of the Constitution? Can any citizen claim any right under the Constitution inconsistent with the fundamental features of the Constitution? There can be no doubt that sovereignty of the people, supremacy of the Constitution, the republican character of the Constitution and rule of law are the fundamentals on which the foundation of the Constitution rests. It is debatable if the right of association can be claimed to form an association whose objectives run counter to the fundamental concepts of the Constitution. One may argue

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[1] *Shelton v. Tucker*, 364 US 479; *Buckley v. Valeo*, 424 US 1

[2] 1989 BLD (Spl) 1

that an association may have an objective of amending the Constitution and such an objective may not be inconsistent with the Constitution since the Constitution itself provides for its amendment. But when the basic features of the Constitution are unamendable, it isdebatable if the right to form association with the objective of making amendments to the basic features of the Constitution can be claimed under the Constitution.

2.169 The freedom of association is not limited to associations for any particular purpose. It includes the right to engage in group advocacy of various kinds of political or governmental beliefs and ideas and not certainly confined to the advocacy of views which are non-controversial or popular. It extends to the protection of associations which advocate unpopular, controversial, dissident or unorthodox views.[1] The freedom to associate includes the right to organise and join in any association for the advancement of beliefs and ideas pertaining to religious, economic, civic, political, cultural or other matters.[2] It may take the form of a political party, company[3], firm, society, club or any other association. The right is available to all citizens including the public servants. A law which requires a public servant to obtain previous permission to form or join an association is invalid as an unreasonable restriction.[4] But this right cannot be claimed in case of an association the formation and composition of which is determined by and under a statute.[5] The right to

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[1] *Communist Party of Indiana v. Whitcomb*, 414 US 441

[2] *National Assocn. for the Advancement of Colored People v. Alabama*, 357 US 449

[3] *Progress of Pakistan Co. Ltd. v. Registrar, Joint Stock Companies*, PLD 1958 Lah 887

[4] *Romesh Thappar v. Madras*, AIR 1950 SC 124

[5] *Asaduzzaman v. Bangladesh*, 42 DLR (AD) 144 (The Bangladesh Red Crescent Society (Amendment) Act, 1989 making changes in the composition of the Society was challenged on the ground of violation of the freedom of association. Upon consideration of the history of the Red Cross Movement and the history of the legislation in this sub-continent, the court rejected the claim of violation of the freedom of association observing "... though the Society is an association of persons it is an association *sui generis*. Though membership of the Society is open to all citizens of Bangladesh who comply with the terms and conditions laid down in the rules framed under the Order, no one has the right to form a similar society. As the appellant's right does not flow from his right to form an association he cannot claim any right or protection under Article 38. Whatever right he has as a member of the Society has been given under the Order and he can legitimately claim protection under Article 102 of the Constitution for enforcement of his statutory right but he cannot claim that his right under the statute cannot be modified, altered or affected by an amendment of P.O. 26 of

form an association includes the right to continue it.[1] Otherwise that right can be rendered nugatory by a law passed after the association has been formed.[2] Thus a government order closing down a private medical institute was held illegal as it had interfered with the right of the citizens to form an association.[3] It necessarily gives the citizens a right to choose who shall be and who shall not be the members of the association and the composition of an association cannot be altered by law so as to introduce as members other than those who voluntarily joined to form the association.[4] Taking over of a research institute established by a society without interfering with the constitution and power of the society does not constitute interference with the freedom of association.[5] Though a law cannot alter the composition of a voluntary association, it can regulate the affairs of the association.[6] Hence, a law requiring the compulsory affiliation of an educational institution with a University does not interfere with the right of association and an association cannot insist that its activity of imparting education should be allowed to go on unrestricted.[7] The freedom of association includes the right to refuse to be a member of an association and hence the government cannot make it obligatory for every employee to become a member of an association sponsored by the government.[8] Where a rule made it compulsory on the part of every teacher of a school to become a member of a government

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1973, validly passed by the legislature."); see *U.P. v. COD Chheoki Employees' Coop Society Ltd.*, AIR 1997 SC 1413; See also *Phoenix Leasing Ltd. v. Bangladesh Bank*, 51 DLR (AD) 258

[1] *Asaduzzaman v. Bangladesh*, 42 DLR (AD) 144; *Secy. Aircraft Engrs. of Bangladesh v. Registrar Trade Union*, 45 DLR (AD) 122

[2] *Damyanti v. India*, AIR 1971 SC 966

[3] *Dacca National Medical Institute v. East Pakistan*, 10 DLR 343

[4] *Damyanti v. India*, AIR 1971 SC 966 Ibid (Any law by which members are introduced in the Voluntary Association without any option being given to the members to keep them out, or any law which takes away the membership of those who have voluntarily founded it, will be a law violative of freedom of association); *Asom Rashtrabhasha Pracher Samity v. Assam*, AIR 1989 SC 2126

[5] *L.N. Misra Institute v. Bihar*, AIR 1988 SC 1136

[6] In *Secy. Aircraft Engrs of Bangladesh v. Registrar of Trade Union*, 45 DLR (AD) 122, the court held that the legislature can prescribe a particular organisational structure of a trade union. The decision has to be understood in the light of the fact that the legislature was exercising its power in relation to an association whose operation is dependent upon recognition governed by law and no association has any right of recognition.

[7] *D.A.V. College v. Punjab*, AIR 1971 SC 1737

[8] *Sitharamachary v. Senior Deputy Inspector*, AIR 1958 AP 78

sponsored association, the court held the rule to be an infringement of the right and it cannot be contended that the rule was a reasonable restriction imposed in the public interest to increase the efficiency of the teachers, since that object can be achieved in many other ways without curtailing the freedom of association.[1] On the other hand, citizens cannot claim the right of recognition of their association as a part of the right of association and the right of association cannot be invoked for support, sustenance or fulfilment of every object of an association.[2] Freedom of association gives right to the citizens to form an insurance company, but it does not extend to a right to select persons of their choice as directors of the company and the law can prohibit election of certain class of persons as directors.[3] Similarly, from the right to form a trade union neither the right to strike nor the right of collective bargaining necessarily follows.[4] Where an employee's service was terminated because of his membership of the Communist Party, the Indian Supreme Court held that the freedom of association has not been infringed as the aggrieved person is not prevented from being a member of the Communist Party; his real complaint is against termination of service, but he has no fundamental right to continue in employment.[5] The decision does not appear to be a sound one as the "right of free association also means that no individual may be subjected to adverse consequences for exercising the right to join any lawful association."[6] By applying the *Balakotiah* reasoning the freedom of association may be totally denied to a person employed in the service of the Republic.

2.170 The Industrial Relations (Amendment) Act, 1990 put an end to the concept of 'as many trade unions as establishments' and introduced the concept of 'one establishment one trade union'. In *Secy. Aircraft*

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[1] Ibid

[2] *Assaduzzaman v. Bangladesh*, 42 DLR (AD) 144; *Secy. Aircraft Engrs. of Bangladesh v. Registrar, Trade Unions*, 45 DLR (AD) 122; *All India Bank Employees Association v. National Industrial Tribunal*, AIR 1962 SC 171.

[3] *Nasreen Fatema v. Bangladesh*, 49 DLR 542

[4] *All-India Bank Employees' Association v. National Industrial Tribunal*, AIR 1962 SC 171 (Art.19(1)(c) extends to the formation of an association and in so far as the activities of the association are concerned or as regards the steps which the union might take to achieve the purpose of its creation, they are subject to such laws as might be framed and that the validity of such laws are not to be tested by reference to the criteria to be found in art.19(4)); *Abu Hossain v. Registrar, Trade Unions*, 45 DLR 192

[5] *Balakotiah v. India*, AIR 1958 SC 232

[6] Schwartz - Constitutional Law, p.335

Engineers of Bangladesh v. Registrar, Trade Unions[1] the registrations of the appellant unions of the workers of Bangladesh Biman formed vocation-wise were liable to be cancelled and the appellants challenged the amendment as violative of the fundamental right of association. The Appellate Division took the view that though the workers have a right to form associations, there is no fundamental right to obtain recognition of the association and for such recognition Parliament may prescribe the organisational structure of the trade union and "no worker has a fundamental right to a particular form of organisational set-up". When it was pointed out that in view of the provision of s.11A of the Industrial Relations Ordinance, 1969 no trade union which is unregistered or whose registration is cancelled shall function as a trade union and it was contended that the right to form trade union except in the manner prescribed by law has been prohibited and thus the right has been curtailed, the court pointed out -

> If the appellant trade unions had organised themselves along the lines indicated in the amended legislation and has (sic) wanted to survive as a trade union *simpliciter*, without being registered, then perhaps the validity of section 11-A of the Ordinance, 1969 could be considered. But that is not their case. Nor is section 11-A under challenge in these appeals.

This observation indicates that the law cannot prohibit the formation of a trade union otherwise than in the manner prescribed. A trade union may be formed in any manner and it may claim the right to exist and operate. S.11-A cannot operate to prevent the functioning of such a trade union. But from this no right to be recognised or to function as a collective bargaining agent can be claimed as an adjunct to the fundamental right of association. The law can very well say that only a trade union formed in the prescribed manner may be registered and may function as a bargaining agent.

2.171 The right of association is not an absolute right. In the American jurisdiction although a governmental action having the effect of curtailing the right of association is subject of the closest scrutiny, neither the right to associate nor the right to participate in political activities is absolute and even a significant invasion of that right may be sustained if the government can show a sufficient interest and employs

[1] 45 DLR (AD) 122

means closely drawn to avoid unnecessary abridgement of the right.[1] Under art.38, in the formation and continuance of an association reasonable restriction may be imposed by law in the interest of morality or public order.[2] There cannot be any fundamental right to immorality, obscenity, commission of crime or violence or illegal acts. An association the object of which is to carry on an immoral purpose[3] or illegal activity or to overthrow a government by unlawful means[4] may be prohibited by law. In *NAACP v. Alabama*[5] the American Supreme Court struck down a law which required the association to produce a list of all its Alabama members. Secrecy of membership was essential to its members' freedom of association and the court held that the law constituted an unwarranted invasion on the freedom. But a similar law applied to the Ku Klux Klan was upheld by the court in *New York ex rel. Bryant v. Zimmerman*[6]. The difference in the holdings is because in the former case the association was a lawful organisation carrying on its activities lawfully, while in the latter case the organisation was engaged in activities which involved criminal intimidation and violence. The government servants have as much right as other citizens have to form an association and a rule which requires a government servant to retire from an association if the government cancels its recognition of that association is violative of the freedom of association.[7] An association of government servants formed to ventilate their grievances is not unlawful.[8] But restriction on the government servants in the matter of membership of a political party may not be unconstitutional for the protection of the community against the evil of political partisanship of the government servants.[9] A law authorising the government to declare an association unlawful if in its opinion it has as its object interference with the maintenance of law and order, is violative of the freedom of association in conferring arbitrary and unqualified power exercisable on the government's subjective satisfaction.[10]

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[1] *Buckely v. Valeo*, 424 US 1

[2] For the meaning of 'public' order, see Para 2.164 supra

[3] *Progress of Pakistan Co. Ltd v. Registrar, Joint Stock companies*, PLD 1958 Lah 887

[4] *American Communications Association v. Doud*, 339 US 382

[5] 357 US 449

[6] 278 US 63

[7] *Ghosh v. Joseph*, AIR 1963 SC 812

[8] *Ghosh v. Joseph*, AIR 1963 SC 812

[9] *Civil Servants Commission v. National Association of Letter Carriers*, 413 US 548

[32] *Madras v. V.G. Row*, AIR 1952 SC 196; *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209

2.172 *Reasonable restrictions* : Restriction on the freedom of association in the interest of morality or public order may be imposed by law and not by an administrative order without the backing of law. Thus when an administrative order was issued by the government directing a medical institute to stop admitting students, the court struck down the order holding it to be violative of the freedom of association.[1] A restriction imposed by law in the interest of morality or public order must be a reasonable one. When challenged an inquiry has to be made as to whether the restriction has any rational connection with morality or public order.[2] Administrative pre-censorship of the activities of an association will be an unreasonable restriction. A law authorising the district magistrate to depute a person to attend a meeting for the purpose of reporting the proceedings of the meeting and requiring the persons convening the meeting to admit the deputed person is an unjustified invasion on the right of assembly and association.[3] A restriction will be unreasonable if it is to remain in force for an indefinite period at the pleasure of the executive.[4] A law imposing restrictions will be unreasonable if it is disproportionate to the mischief sought to be remedied[5], or confers unguided power on the executive to interfere with the right of association.[6] Such a law has also to be examined for its procedural reasonableness. If it does not permit issuance of notice and opportunity of being heard to the aggrieved persons either before passing the order or after passing of the order or does not make any provision to challenge an arbitrary exercise of the power, the law will be found unreasonable and violative of art.38.[7] In *Madras v. V.G. Row*[1] the

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[1] *Dacca National Medical Institute v. East Pakistan*, 10 DLR 343 (If the Government think that the existence of an unrecognised medical school is not in the interest of the country, it can pass the necessary legislation authorising the appropriate authority to close down such institution.)

[2] *Ghosh v. Joseph*, AIR 1963 SC 812; *Damayanti v. India*, AIR 1971 SC 966

[3] *Nasarullah Khan v. West Pakistan*, PLD 1965 Lah 642

[4] *Madras v. V.G. Row*, AIR 1952 SC 196

[5] *Louisiana ex rel. Gremillon* v. NAACP, 366 US 293 (where freedom of association is at stake, any regulation must be highly selective in order to survive challenge, for even though the governmental purpose may be legitimate and substantial, that purpose cannot be pursued by means that broadly stifle fundamental personal liberties when the end can be more narrowly achieved.); *Keyishian v. Board of Regents*, 385 US 589 (the breadth of legislative abridgement of freedom of association must be viewed in the light of less drastic means of achieving the same basic purpose.)

[6] *Nasarullah Khan v. West Pakistan*, PLD 1965 Lah 642

[7] *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC 209; *Bihar v. Misra*, AIR 1971

Indian Supreme Court emphasised that curtailment of the right to form association is fraught with such potential reactions in the religious, political or economic fields, that the vesting of authority in the executive government to impose restrictions on this right without allowing the grounds of such imposition to be duly tested in a judicial inquiry is a strong element which must be taken into account in judging the reasonableness of the restrictions. A political party was banned in exercise of a power conferred by the Criminal Law Amendment Act, 1908. The *vires* of the law was challenged on the ground that the law conferred unguided discretion on the government to declare an association unlawful on an opinion formed subjectively without regard to the objective facts and which opinion was not open to judicial review and there was no provision for hearing the aggrieved party either before or after the order was passed. The West Pakistan High Court discharged the rule[2], but the East Pakistan High Court found the law *ultra vires*[3]. On appeal, the Supreme Court held the law to be violative of the freedom of association for want of both substantive and procedural reasonableness. The Supreme Court held that the law conferred a naked arbitrary power on the government to put an end to all activities of a political party and thus to virtually kill it, on an *ex parte* and one-sided view of its activities. This unguided discretion is subject to no check, judicial or otherwise, and has the potential to become an engine of suppression and oppression of an opposition political party at the hands of an unscrupulous party in power. No period for the duration of the order is laid down in the Act. The association against whom the order is made has no right to be heard in its defence, nor is there any obligation on the authority to hear the association. It does not contain even limited substituted procedural safeguards which have been given to one held in preventive detention. It in effect destroys the right of association for an indefinite period on the subjective satisfaction of the executive.[4] In this case it was pointed out that in an emergent situation it may not be possible to give notice to the aggrieved party before passing the order and in such case it is necessary to give *post facto* hearing.

SC 1667

[1] AIR 1952 SC 196

[2] *Abul A'la Moudoodi v. West Pakistan*, PLD 1964 Kar 478

[3] *Tamizuddin Khan v. East Pakistan*, PLD 1964 Dac 795

[4] *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209

FREEDOM OF THOUGHT, CONSCIENCE, SPEECH AND PRESS

2.173 Freedom of thought and conscience is essential to the development of human personality and every person should be free in his thought and conscience. On the other hand, freedom of speech is essential for the development and functioning of democracy.[1] Without freedom of speech there cannot be any democracy[2] and the first thing an autocrat does is to curb the freedom of speech. Art.39(1) guarantees the freedom of thought and conscience. This right is given in absolute form and it is not possible to pass any law curbing this right on any ground whatsoever. Thus no action can be taken against an individual for whatever he has written in his diary. The open ballot system for presidential election was challenged as violative of the freedom of thought and conscience, but the High Court Division rejected the contention.[3] When a man wants to express his thinking to others, the freedom of speech comes into play.

2.174 ***Freedom of speech and expression***: Art.39(2) guarantees the freedom of speech and expression but subject to the limitation that restrictions on the exercise of this right can be imposed by law in the interest of the security of the State, friendly relations with foreign states, public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence. The freedom consists of the right to express freely one's conviction and opinion on any matter orally or by writing, printing or any other mode addressed to the eyes and ears of other persons. It includes not only the freedom to express one's ideas through any visible or audible representations made to others, but also the right to acquire and import from others ideas, thoughts and information about matters of common interest[4] and thus the right to read

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[1] *Romesh Thappar v. Madras*, AIR 1950 SC 124 (Freedom of speech and of the press lay at the foundation of all democratic organisations, for, without free political discussion no public education, so essential for the proper functioning of the processes of popular Government is possible. A freedom of such amplitude might involve risks of abuse. But the framers of the Constitution may well have reflected, with Madison who was the leading spirit of the First Amendment of the Federal Constitution, that `it is better to leave a few of its noxious branches to their luxuriant growth than, by pruning them away, to injure the vigour of those yielding the proper fruits.)

[2] *Farid Ahmad v. West Pakistan*, PLD 1965 Lah 135

[3] *Abdus Samad Azad v. Bangladesh*, 44 DLR 354

[4] *Hamdard Dawakhana v. India*, AIR 1960 SC 554

and be informed.[1] The right to paint, sing, dance or to write poetry or literature is covered by this article as at the core of these activities lies the freedom of speech and expression.[2] The freedom includes the right to educate, to inform and to entertain and also the right to be educated, informed and entertained. This involves communication and the right to communicate includes the right to communicate through any media that is available whether print, electronic or audio-visual.[3] It includes the right to exhibit and see cinematographic films and dramatic performances as being very important media of expression.[4] The freedom includes the right to communicate and the right to communicate includes right to communicate through any media that is available whether print or electronic or audio visual.[5] In India the right of a citizen to exhibit films on the *Doordarshan*, the State-owned television, subject to the terms and conditions imposed by *Doordarshan* has been held to be a fundamental right guaranteed by art.19(1)(a) of the Indian constitution.[6] When the conditions laid down by *Doordarshan* are fulfilled, denial of access by it amounts to denial of the freedom of expression.[7] In *Life Insurance Corp. v. Manubhai*[8] the respondent published a study paper 'A fraud on policy holders'. A member of the Corporation published a counter to the study paper in the Corporation's magazine 'Yogakshema'. But the Corporation refused to publish the rejoinder of the respondent in the magazine. The Supreme Court held that the Corporation being a State instrumentality, its refusal to publish the rejoinder was a denial of the freedom of expression. The community is entitled to be informed whether or not the requirement of law is being satisfied in the functioning of the Corporation. The freedom extends to the original ideas as also to explanations, commentaries or annotations of the original idea expressed by another.[9]

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[1] *Bennett & Coleman v. India*, AIR 1973 SC 106, 143

[2] *Maneka Gandhi v. India*, AIR 1978 SC 597, 640

[3] *Secy., Ministry of I & B v. Cricket Assoc. of Bengal*, AIR 1995 SC 1236 (The court held that freedom of speech and expression is involved in telecasting sports events and the court made important observation regarding use of air waves and frequencies which are public properties)

[4] *Abbas v. India*, AIR 1971 SC 481; *Southeastern Promotions v. Conrad*, 420 US 346

[5] *Secretary, Ministry of I & B v. Cricket Association of Bengal*, AIR 1995 SC 1236

[6] *Odyssey Communications Pvt. Ltd. v. Lok-udayan Sangathna*, AIR 1988 SC 1642

[7] *Life Insurance Corporation v. Manubhai*, AIR 1993 SC 171

[8] AIR 1993 SC 171

[9] *Dewan Abdul Kader v. Bangladesh*, 46 DLR 596; see para 2.174A

2.175 The freedom is not limited to mere expression of words. It extends to symbolic speech like the display of a red flag as a symbol of opposition to organised government[1] or the display of the national flag upside down with a peace symbol affixed as a protest against a government action[2] or the wearing of black armbands by students as a symbolic protest against war[3]. Freedom of speech and expression preserves "an uninhibited market place of ideas in which truth will ultimately prevail ... It is the right of the public to receive suitable access to social, political, aesthetic, moral and other ideas and experiences".[4] It includes the freedom of discussion and dissemination of knowledge and ideas. The right cannot be denied simply because the idea is not a popular one or that it is a hateful or foolish idea.[5] The freedom includes the right of peaceful demonstrations[6] and the right of the labour to publicise facts of a labour dispute by peaceful picketing[7]. The right to strike was not held to be a fundamental right.[8] The High Court Division recognised hartal as a means of protest by the people for communicating thoughts, discussing public question and ventilating grievances. In the Indian jurisdiction 'bandh' which is accompanied by threat and use of force has not been treated as a part of the freedom of expression.[9] Referring to those decisions, the High Court Division held that calling for hartal not accompanied by threat to use force is only an expression guaranteed as a fundamental right under the Constitution. But any attempt to enforce the hartal interfering with individuals' right would render the call illegal and not protected under the Constitution.[10]

2.176 Freedom of speech and expression is not confined to any particular field of human interest[11], but guarantees the broadest exercise of the right for religious, political, economic, scientific or informational

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[1] *Stromborg v. California*, 283 US 359
[2] *Spence v. Washington*, 418 US 405
[3] *Tinker v. Des Monies School District*, 393 US 503
[4] *Kleindiest v. Mandel*, 408 US 753, 763
[5] *Roth v. U.S.*, 354 US 476
[6] *Kameswar v. Bihar*, AIR 1962 SC 1166
[7] *N.L.R.B. v. Drivers*, 362 US 274
[8] *All India Bank Employees Association v. National Industrial Tribunal*, AIR 1962 SC 171; *Radhey Sham v. P.M.G.*, AIR 1965 SC 311
[9] *Bharat Kumar v. Kerala*, AIR 1997 Kerala 291, affirmed in *Communist Party v. Bharat Kumar*, AIR 1998 SC 184
[10] *Kh. Modarresh Elahi v. Bangladesh*, 2001 BLD 352
[11] *Thomas v. Collins*, 323 US 516

ends.[1] The right to discuss public affairs includes the right to criticise the government including its defence policy and the conduct of the Armed Forces.[2] "In a free democratic society ... those who are responsible for public administration must always be open to criticism. Any attempt to stifle or fetter such criticism amounts to political censorship of the most insidious and objectionable kind."[3] The freedom includes the right not to speak and an individual cannot be compelled to speak unless there is an overriding public interest involved.[4] Thus in the absence of overriding public interest, an individual cannot be penalised for his refusal to take the loyalty oath[5], or to salute the national flag[6]. But the freedom to remain silent will not exempt a person from the obligation to give evidence in a judicial proceeding, except when the question of self-incrimination is involved.[7] Compulsion on exhibitor of cinema to show scientific, educational or documentary films has not been held to infringe the freedom of speech.[8] When a person is talking on telephone, he is exercising his freedom of speech and telephone-tapping unless it comes within the grounds of restrictions, is violative of the freedom of speech.[9]

2.177 Freedom of speech and expression includes the freedom of circulation and distribution of printed matters like pamphlets and leaflets. Any prior restraint or requirement of licence or permit for the distribution of any literature would, in general, be unconstitutional.[10] A municipality may punish a person for littering the street or any public place, but distribution of any printed matter cannot be forbidden.[11] Though the distribution of any printed matter in public places cannot generally be restricted, sending it to an individual at his home may be restricted at the instance of the individual for the protection of his right

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[1] *Douglas v. Jeanette*, 319 US 157
[2] *Schacht v. U.S.*, 398 US 58
[3] *Hector v. A.G. of Antigua and Barbuda*, [1990] 2 All E.R. 103, 106.
[4] *Wooley v. Maynard*, 430 US 705
[5] *Speiser v. Randall*, 357 US 513
[6] *West Virginia Board of Education v. Walter Barnette*, 319 US 624
[7] *Branzburg v. Hayes*, 408 US 665 (Court refused to recognise the First Amendment right of newsmen to refuse to testify before the grand juries in respect of confidential sources of information)
[8] *India v. Motion Picture Assocn.*, AIR 1999 SC 2334
[9] *People's Union for Civil Liberties v. India*, AIR 1997 SC 568
[10] *Lovell v. Griffin*, 303 US 313
[11] *Schneider v. Irvington*, 308 US 147

to privacy.[1]

2.177A In *Bangladesh NCTB v. Bangladesh*[2] the Appellate Division by a majority decision rejected the contention that Note-Books (Prohibition) Act, 1980 prohibiting publication of note-books on text-books is violative of art.39. The majority took into consideration that the Act does not completely debar publication of note-books which may be published either by the Board or under the authority of the Board in the same way as text-books are approved or prepared and published by it and reasoned that the basic assumption for the exercise of the said right is and must be that it may not offend any law or any right of other person under the law and to give a free hand to the publishers to publish any kind of note-book on text-book without any control from the Board is to defeat the purpose for which the Text Book Board has been vested with authority to prepare and publish or approve text-books for schools. The proposition that the freedom of expression cannot be exercised offending any law has to be understood in the light of the facts of the case. If a law impinges on the freedom of expression, the inquiry will be whether the law can be justified as a permissible restriction and not whether the right can be exercised in the face of the legal prohibition; if the law cannot be brought within the permissible restrictions under art.39(2), the law will be void and it cannot stand on the way of freedom of expression. However, the constitutional provisions cannot be interpreted ignoring the social environment and conditions in which the rights are sought to be exercised. In order to improve the standard of text-books and thereby to improve the standard of education, the impugned law has been made. It is our common experience that getting the easy way out majority of the students do not read the text-books and they rely on the note-books which frustrate the very purpose of education. In writing a note-book, as we see in this country, the author does not really express his views or opinion, but merely reproduces the text-book in a different manner and the motive is nothing but making profit only; 'the immediate object is not to impart any idea or information but to make money at the cost of the Board'. Further, the note-books, as seen in the market, violate the copyright of the Board and freedom of expression cannot be exercised in derogation of another person's intellectual property.

2.178 *Advertisement*: A distinction, however, is to be made in respect

[1] *Rowan v. Post Office*, 397 US 728
[2] 48 DLR (AD) 184

of any printed matter which is commercial in nature and its distribution may be restricted in terms of the provision of art.40[1], but when expression and commercial activity are mixed up as in the case of newspapers, only such restrictions may be imposed as would not curtail the freedom of speech and expression ensured by art.39.[2] An advertisement may have two aspects - it may be used as a medium of propagation of ideas and/or it may be for the purpose of canvassing goods or services. What will be a reasonable restriction on such advertisements will depend upon the purpose for which it is imposed. When such advertisement is purely for commercial purpose, it does not come within the protection given to the freedom of speech and expression[3] and may be controlled by the provisions relating to the freedom of trade and occupation under art.40. But apart from its commercial object, if it seeks to communicate information, recite grievances, seek financial help in respect of a movement the objectives of which are of public interest or concern, the advertisement will enjoy the protection of art.39.[4]

2.179 *Exercise of the right in public places*: It is generally accepted that a man cannot exercise his fundamental right on another man's property and thus cannot exercise the right on the property owned by the State. An exception is made in respect of public properties which are regarded as public fora. Public places like streets and parks are generally regarded as public fora for gathering and discussion of public questions founded on the 'immemorial claim of the free people to use the streets as a forum'.[5] At the same time the State has a legitimate interest in preserving the property for which it is dedicated and there is always a

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[1] *Hamdard Dawakhana v. India*, AIR 1960 SC 554 (The true character of an advertisement is to be determined by the object which it seeks to promote. It may amount to an expression of ideas and propagation of human thought and in such case the question of freedom of speech and expression would arise, but a commercial advertisement having an element of trade and commerce and promoting business cannot claim the freedom of speech and expression. Advertisement of prohibited drugs cannot be in the public interest and as such cannot be treated as propagating any idea to invoke the freedom of speech and expression); *Ohralik v. Ohio Bar*, 436 US 447.; see *Tata Press Ltd v. MTN Ltd.*, AIR 1995 SC 2438 (Commercial speech held to be a part of the freedom of speech)

[2] *Bennett & Coleman v. India*, AIR 1973 SC 106

[3] *Valentine v. Chrestensen*, 316 US 52

[4] *Virginia Pharmacy v. Virginia Citizens*, 425 US 748 *New York Times v. Sullivan*, 376 US 254; *Indian Express v. India*, AIR 1986 SC 515

[5] *Shuttlesworth v. Birmingham*, 394 US 147; *Schneider v. State*, 308 US 147

question of striking a balance between the people's freedom of speech and expression and the governmental interest in the preservation of such property[1], but no authority can be given an unfettered discretion to determine who will be permitted to use the public places for speech or expression of ideas[2].

2.180 *Freedom of government servants*: A person taking up a government employment does not forfeit his freedom of speech and expression and he will enjoy the same freedom as enjoyed by other citizens. However, for the integrity and discipline of the service, a government servant may be prohibited from expressing his views in respect of or discussing in public any matter connected with his employment. Discipline amongst the government employees and their efficiency may be said to be related to public order.[3] He may be prohibited from criticising any policy pursued or action taken by the government or participating in a strike[4] or disclosing any information obtained by him in the course of his official duties or making any political speech to advance the cause of a particular political party[5]. The question whether a restriction put on a government servant will be an unreasonable restriction on his freedom of speech and expression will depend on whether the restriction is employment-related and whether such restriction is reasonably necessary for the integrity and discipline of the service. The U.S. Supreme Court made a distinction between speech on matters of public concern and employment-related speech and held unconstitutional a dismissal of a school teacher for criticising School Board in a letter to the editor. The letter criticised the division of funds between education and athletics and according to the court it was a matter of public concern.[6] In *Connick v. Meyers*[7] Meyers was dismissed from her position as an Assistant District Attorney on ground of insubordination when after her transfer to a different division she circulated an intra-office questionaire soliciting views of her colleagues

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[1] *Cornelius v. NAACP*, 473 US 788

[2] *Lovell v. Griffin*, 303 US 444; *Southeastern Promotions Ltd. v. Conrad*, 420 US 546

[3] *Ghosh v. Joseph*, AIR 1963 SC 812; *Devendrappa v. Karnataka S.S.I.D. Corp*, AIR 1998 SC 1064 (Plea of freedom of speech not available when an employee was dismissed for writing letter to the Governor making allegations about mismanagement against head of his organisation and making press statement of political nature)

[4] *Ghosh v. Joseph*, AIR 1963 SC 812

[5] *United Public Works v. Mitchell*, 330 US 75

[6] *Pickering v. Board of Education*, 391 US 563

[7] 461 US 138

on matters of office policy and morale and their level of confidence in their superiors. In rejecting the plea of unconstitutionality, the court held that the speech was employment-related and not a matter of public concern. The court further held that even in matters of public concern the speech will not be protected if it substantially interferes with official responsibilities. In another case the court reinstated an employee who remarked after President Regan was shot: "If they go for him again, I hope they get him." After finding the speech a matter of public concern, the court further held that the employee did not discredit or interfere with efficient functioning of the office.[1]

2.181 ***Permissible restrictions***: Under art.39 the freedom of speech and expression is not absolute and is subject to restrictions which may be imposed by law on specified grounds. Restrictions cannot be imposed on this freedom on grounds other than those specified in art.39.[2]

2.182 *Security of the State*: Free expression of opinion and ideas is possible in an organised society and to preserve the right it is necessary to prohibit utterances which threaten to overthrow an organised government by unlawful or forceful means.[3] But peaceful and orderly opposition to the government with the object of changing the government cannot be suppressed.[4] The security of the State is a matter of concern when there is a serious and aggravated form of public disorder as distinguished from ordinary breach of public order or public safety which does not involve any danger to the State. The security of the State is endangered by crimes of violence intended to overthrow the government[5], by waging war or rebellion against the government, or by external aggression or war, but the security of the State is not endangered by minor breaches of public order or tranquillity, such as unlawful assembly, riot, affray, rash driving and the like. However, incitement to violent crimes like murder which is an offence against public order may endanger the security of the State.[6] Advocacy of revolutionary socialism cannot be restricted on the ground of security of State unless it is accompanied by the use, or threat, of violence.[7] Any

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[1] *Rankin v. McPherson*, 483 US 378
[2] *Secy., Ministry of I & B v. Cricket Assoc. of Bengal*, AIR 1995 SC 1236
[3] *Stromborg v. California*, 283 US 359
[4] *Herndon v. Lowry*, 301 US 242
[5] *Santokh Singh v. Delhi Administration*, AIR 1973 SC 1091
[6] *Bihar v. Sailabala*, AIR 1952 SC 329
[7] Ibid; *Brandenburg v. Ohio*, 395 US 444

effort to incite the members of the Police Force to withhold their services may be suppressed in the interest of the security of the State or of public order.[1] In times of external aggression, the State has the power to prohibit or punish utterances which obstruct war measures.[2]

2.183 *Public order*: A reasonable restriction may be imposed by law in the interest of public order.[3] The expression 'in the interest of' enables Parliament to make laws to curb the tendency to break the peace, even though no breach of the peace has actually taken place.[4] However, for the restriction to be valid, the exercise of the right must have a rational nexus with the possible breach of public order. Whether in a particular case an utterance would have a tendency to create a breach of public order is to be determined objectively from the circumstances in which the utterance is made, the nature of the audience and the like.[5] In the interest of public order, the State may prohibit creating loud and raucous noises in streets and public places[6], regulate the hours and the place of public discussion[7]and the use of the public streets for the purpose of exercising the freedom of speech[8].

2.184 The right to free speech includes the right to reach as many people as possible and today a public speech cannot be thought of without the aid of loud speakers. Loudspeakers must, however, be distinguished from pamphlets and leaflets. One to whom a pamphlet or leaflet is given has the liberty not to read it. But in the case of loudspeakers, an individual becomes the recipient of the speech whether he wants to hear it or not. Furthermore, the use of loudspeaker causes some degree of interference with the business and social activities as also the comfort and solitude of the neighbouring people. Can the use of loudspeakers be regulated or restricted? The Privy council justified restrictions on the use of loudspeakers at public meetings giving wide meaning to the expression 'public order' for the avoidance of excessive noise materially affecting the convenience and comfort of the

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[1] *Dalbir Singh v. Punjab*, AIR 1962 SC 1106

[2] *Schaefer v. U.S.*, 251 US 466; *Gora v. U.S.*, 340 US 857; *U.S. v. Mackintosh*, 283 U.S. 605

[3] For the meaning of public order, see Para 2.164 supra.

[4] *Virendra v. Punjab*, AIR 1958 SC 896

[5] *Bihar v. Shailabala*, AIR 1952 SC

[6] *Kovacs v. Cooper*, 336 US 77

[7] *Saia v. New York*, 334 US 558

[8] *Schneider v. New Hampshire*, 315 US 568

neighbouring people.[1] For the purpose of maintaining public order and for prevention of public nuisance, reasonable regulations can be made for the use of loudspeakers and other noisy instruments interfering with the comfort of the people around[2], but use of loudspeaker cannot be prohibited as it is an indispensable means of effective public speech.[3] It is submitted that the context in which the expression 'public order' has been used in art.39 may not support the wide interpretation given by the Privy Council and a restriction put on the use of loudspeaker may not be related to 'public order' unless the disturbance is serious enough to provoke breach of the peace leading to public disorder. It may, however, be considered that even though there is a fundamental right to freedom of speech, there is no fundamental right to use any particular instrument for the exercise of the freedom. An individual may have the liberty to use a loudspeaker and under art.31 such liberty can be curtailed only by a reasonable law. Loudspeakers interfering with the comfort, convenience and privacy of individuals, a law reasonably regulating the time, manner and place of use of loudspeaker cannot be said to be violative of art.31 of the Constitution.

2.185 In the interest of public order a law may be made imposing restrictions on inciting public employees or persons engaged in any employment which is essential for securing the public safety or for maintaining services essential for the life of the community or the members of the police force to withhold their services[4] or inciting breach of discipline amongst the employees engaged in the maintenance of law and order and essential services, or feelings of enmity or hatred between different sections of the community or insulting their religious feelings.[5] The Government employees can be subjected to rules which are intended to maintain discipline amongst them and their efficiency as it is related to public order.[6] Advocacy of non-payment of the government dues without resorting to violence cannot be restricted as it does not raise an issue of public order.[7]

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[1] *Francis v. Chief of Police*, [1973] 2 All E. R. 251
[2] *Rajasthan v. Chawla*, AIR 1959 SC 544
[3] *Saia v. New York*, 334 US 558
[4] *Dalbir v. Punjab*, AIR 1962 SC 1106
[5] *Virendra v. Punjab*, AIR 1957 SC 896
[6] *Ghosh v. Josheph*, AIR 1963 SC 812; *Devendrappa v. Karnataka S.S.I.D. Corp*, AIR 1998 SC 1064
[7] *Superintendent v. Ram Manohar*, AIR 1960 SC 633, 640

2.186 The freedom of speech allows the citizens to criticise the government. The question is whether the provision of s.124A of the Penal Code is a reasonable restriction in the interest of the security of the State and public order. The United States Congress passed the Sedition Act, 1798, a temporary Act, which was declared unconstitutional as an infringement of the First Amendment rights.[1] In the American jurisdiction, mere advocacy to change the form of government, short of the abolition of the republican institutions, without the use of force is not prohibited.[2] In England the offence of sedition covers any attempt to bring into hatred or contempt the Crown, the Houses of Parliament, the constitution, to raise discontent among the people or promote hostility between the various classes of the people.[3] In recent times, prosecution for sedition has become rare unless it is accompanied by an incitement to violence. S.124A of our Penal Code is in wide terms. Though Explanation 3 says that comments expressing disapprobation of the administrative or other actions of the government without inciting or attempting to incite hatred, contempt or disaffection, do not constitute an offence, Explanation 1 defines 'disaffection' in wide terms to include disloyalty and all feelings of enmity. The Privy Council interpreted the term 'disaffection' to mean absence of affection' or 'bad feeling' towards the government whether or not it has any connection with violence or not. In *Niharendu v. Emperor*[4] the Federal Court shifted from the position by holding that mere criticism or ridicule of the government is not an offence unless it is calculated to undermine respect for the government in such a way as to make the people cease to obey it and the law so that only anarchy can follow. But the Privy council overruled the decision holding that the utterances which excite or attempt to excite bad feeling towards the government was punishable irrespective of the intention of the speaker or the effect of the speech on

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[1] *New York Times v. Sullivan*, 376 US 254

[2] *Stromborg v. California*, 283 US 359; *De Jonge v. Oregon*, 299 US 353 ("The greater the importance of safeguarding the community from incitements to the overthrow of our institutions by force and violence, the more imperative is the need to preserve inviolate the constitutional rights of free speech, free press and free assembly in order to maintain the opportunity for free political discussion, to the end that government may be responsive to the will of the people and that changes, if desired, may be obtained by peaceful means. Therein lies the security of the Republic, the very foundation of constitutional government.")

[3] see Halsbury's Laws of England, 4th ed., vol.11, Para 827

[4] 46 CWN (FR) 9

the audience.[1] Such an interpretation brings s.124A in conflict with art.39 of the Constitution as it impinges on the freedom of speech. Even though the expression 'in the interest of' enlarges the scope of the restriction which will be constitutionally permissible, the restriction imposed must have a proximate and rational relationship with the security of the State or public order[2] and mere expression of disaffection or hatred towards the government in power without any definite incitement to violence cannot be said to have any proximate tendency to a breach of the security of the State or public order. Thus in order to pass the test of constitutionality s.124A must be interpreted to include within its mischief an utterance when it is intended or has a reasonable tendency to create disorder or disturbance of public order by resort to violence.[3]

2.187 *Friendly relations with foreign states*: Foreign relations is always a touchy matter and the State cannot be embarrassed by irresponsible statements inside the country touching sensitive issues of international affairs. The object of this restriction on the freedom of speech is the prevention of slander and libel against foreign States in the interest of friendly relations with them.

2.188 *Decency or morality*: A law may impose reasonable restrictions on speech which tend to undermine public morality.[4] Whether any speech is likely to undermine decency or morality is to be determined with reference to the probable effect it may have on the people to whom it is addressed.[5] Age, culture and the like of the audience thus become material. Use of mere abusive language without any suggestion of obscenity to the person in whose presence it is uttered will not be a speech offending decency or morality.[6]

2.189 A law against obscenity would be protected under art.39. An obscene publication is outside the realm of constitutionally protected freedom of expression.[7] Obscenity means offensive to modesty, or

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[1] *Sadasiv v. Emperor*, 74 I.A. 89
[2] *Superintendent v. Ram Manohar*, AIR 1960 SC 633
[3] *Kedarnath v. Bihar*, AIR 1962 SC 955
[4] *Ranjit v. Maharashtra*, AIR 1965 SC 881
[5] Ibid; *R. v. Secker & Warburg*, [1954] 1 WLR 1138
[6] *Kartar Singh v. Punjab*, AIR 1956 SC 541
[7] *Paris Adult Theatre v. Slaton*, 413 US 49; *Ranjit v. Maharashtra*, A IR 1965 SC 881 (obscenity by itself has extremely poor value in propagation of ideas and information of public interest or profit)

decency; lewd, filthy, repulsive.[1] But even an immodest representation may not be reasonably restricted in the interest of decency or morality if it conduces to the propagation of ideas and information of public interest, e.g., books on medical science.[2] Ideas having social importance will *prima facie* be protected unless the obscenity is so gross that the interest of the public dictates otherwise. The test of obscenity is thus a question of degree and varies with the moral concepts of the people. The test generally is whether upon reading the publication as a whole it can be said that it has a tendency to deprave or corrupt those whose minds are open to such immoral influences and into whose hands the publication may fall.[3] Each work must be considered by itself and comparison with other works may not improve the quality of a book which is indecent or obscene.[4] "Where obscenity and art are mixed up, art must be so preponderating as to throw obscenity into shadow or render the obscenity so trivial and insignificant that it can have no effect and it can be overlooked."[5] A balance must be struck between freedom of speech and expression and public decency and morality, but when morality or decency is substantially transgressed, freedom of speech must give way.[6] The test to adopt in our country (regard being had to our community *mores*) is that obscenity without a preponderating social purpose or profit cannot have constitutional protection; and obscenity is dealing with sex in a manner appealing to the carnal side of human nature.[7]

2.190 *Contempt of court*: In the exercise of his freedom of speech and expression, nobody can be allowed to interfere with the administration of justice[8] or to lower the prestige or authority of the

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[1] *Ranjit Singh v. Maharashtra*, AIR 1960 SC 881

[2] Ibid

[3] *R. v. Hicklin*, [1868] 3 Q.B. 360

[4] Ibid; *Miller v. California*, 413 US 15 (the court laid down the guideline for determining obscenity - (a) whether the average person applying contemporary community standards may find the work taken as a whole appeals to prurient interest, (b) whether the work depicts or describes, in a patently offensive manner, sexual conduct specifically defined by the relevant law, and (c) whether work, taken as a whole, lacks literary, artistic, political or scientific value)

[5] *Abbas v. India*, AIR 1971 SC 481, 498

[6] *Ranjit v. Maharashtra*, AIR 1965 SC 881

[7] Ibid; *Abbas v. India*, AIR 1971 SC 481

[8] *Namboodripad v. Nambiar*, AIR 1970 SC 2015; *Saxena v. Chief Justice*, AIR 1996 SC 2481; *Narmoda Bachao Andolon v. India*, AIR 1999 SC 3345 (No one can be

court even in the garb of criticising judgments of the court.[1] Freedom of speech and expression is important, but more important is the effectiveness of the administration of justice without which the rights guaranteed by the Constitution will merely be embellishments. It is for this reason that the Constitution specifically provided for the Supreme Court's power to commit for contempt of court. However, the law relating to contempt of court must be reasonable and must not be such as stifles the freedom of speech and expression. As because the contempt power constitutes a restriction on the freedom of speech and expression, this power should be cautiously and sparingly used.[2] People's confidence in the effectiveness of the administration of justice cannot be allowed to be eroded and any attempt to undermine the authority of the court should be adequately dealt with. As regards comments on the proceedings and criticisms of the judgments of the court it has, however, been held that the power of committal for contempt of court should not be readily exercised. Lord Atkin observed-

> Where the authority and position of an individual judge, or the due administration of justice, is concerned, no wrong is committed by any member of the public who exercises the ordinary right of criticizing, in good faith, in private or public, the public act done in the seat of justice. *The path of criticism is a public way: the wrong headed are permitted to err therein: provided that members of the public abstain from imputing improper motives to those taking part in the administration of justice, and are genuinely exercising a right of criticism, and not acting in malice or attempting to impair the administration of justice, they are immune.* Justice is not a cloistered virtue: she must be allowed to suffer the scrutiny and respectful, even though outspoken, comments of ordinary men.[3](Italics provided)

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permitted to distort orders of the court and deliberately slant to its proceedings)

[1] *Daphtary v. Gupta*, AIR 1971 SC 1132

[2] *Rama Dayal v. M.P.*, AIR 1978 SC 921

[3] *Andre P.R. Ambard v. Attorney General of Trininad and Tobago*, [1936] AC 322, 335; see *R v. Metropolitan Police Commissioner, ex p. Blackburn (NO.2)*, [1968] 2 QB 150 (Member of Parliament severely criticising the Court of Appeal in an article on incorrect premises); *P.N. Duda v. P. Shiv Shanker*, AIR 1988 SC 1208 (A Law Minister criticising the Supreme Court as having sympathies with the propertied class and being the haven for anti-social elements and reactionaries); *Viswanath v. Venkatramaih*, 1990 (2) Cr.L.J. 2179 (A former Chief Justice speaking about falling standard of judges for wining and dining in parties) – in these cases the court did not find the scathing criticism to constitute contempt of court. For further discussion on contempt of court

In applying the law of contempt of court a balance should be made between the freedom of expression and the need to maintain the authority of the court[1], otherwise the law will have serious chilling effect on the freedom of expression and speech and cannot pass the test of reasonable restriction. The criticism, to be immune, must not, however, be made in bad faith and must not attribute motives to the judges. The Appellate Division observed in *Saleemullah v. State* -

> Freedom of press being recognised in our Constitution, a Court is to suffer criticism made against it, and, only in exceptional cases of bad faith or ill motive, it will resort to law of contempt.[2]

2.191 *Defamation*: Reputation is a valuable asset or property of a man. Nobody should be allowed to injure the reputation of a man in the name of freedom of speech and expression.[3] The freedom is available so long as it is not malicious or libelous and if the speech or expression is untrue and reckless, the speaker or the author does not get protection of the constitutional right.[4] The American Supreme Court held that libelous utterances are outside the area of constitutionally protected speech.[5] But the court made a distinction between defamation of public officials and private citizens and held that the First Amendment shields criticisms of official conduct and a public official may not sue for defamation growing out of statements concerning the performance of his public duties unless malice is shown.[6] This rule has been applied in the United

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see Para 5.221 – 5.231

[1] *Moinul Hosein v. Sheikh Hasina Wazed*, 53 DLR 138, 147 (Prime Minister referring to bail granted by the court and commenting "as if the court has become the haven of the criminals" – Abdur Rashid J held, no contempt committed)

[2] 44 DLR (AD) 309 (the court, however, rejected the appeal of the contemner noting that in a country where the rate of literacy is low and the words in print are generally revered the court is to consider the impact of written criticism of court in the mind of the public and also that the duty of journalist who is a practising lawyer is more onerous)

[3] *Rama Dayal v. M.P.*, AIR 1978 SC 921; *Gertz v. Robert Welch, Inc*, 418 US 323

[4] *Saxena v. Chief Justice*, AIR 1996 SC 2481

[5] *Beauharnais v. Illinois*, 343 US 520

[6] *New York Times Co. v. Sullivan*, 376 US 254 (The rule is applicable irrespective of whether the public official is elected or appointed); *Rosenblatt v. Baer*, 383 US 75 (In the absence of clear evidence of general fame in the society and pervasive involvement in the affairs of the society, an individual is not to be deemed a public figure for the application of this rule unless he voluntarily throws himself into a particular public controversy); *Gertz v. Robert Welch, Inc.*, 418 US 323; *Time, Inc. v. Firestone*, 424 US

States even though there is better facility to find out the truth about public affairs. In our country it is difficult to find out the correct state of affairs and the possibility of any criticism being found to be untrue is much great. But in view of the propensity to make irresponsible statements without trying to check the truth, it is an open question whether the Supreme Court will be willing to apply the American rule in this regard. However, for democracy to function, it is necessary to maintain some distinction between defamation of public officials and private persons though not as great a distinction as enunciated in the American rule.[1]

2.192 *Incitement to an offence* : This ground will permit legislation not only to punish or prevent incitement to commit serious offences like murder which lead to breach of public order, but also to commit any 'offence', which according to the General Clauses Act means 'any act or omission made punishable by any law for the time being in force'. Hence it is not permissible to instigate another to do any act which is prohibited and penalised by any law.[2]

2.193 *Reasonableness of restrictions:* When a petitioner shows that he has a fundamental right under art.39 which is being denied, the onus lies on the respondent to show that the denial is authorised by a law imposing reasonable restrictions.[3] In determining the reasonableness of a restriction upon the freedom of speech and expression, a reasonable balance must be struck between the need for the freedom in a democratic system of government provided for by the Constitution and the social interest in the prevention of disorder and anarchy.[4] Thus even when a person is under an order of detention, he continues to possess his

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448; in *Derbyshire CC v. Times Newspapers*, [1993] 1 All E.R. 1011, refusing standing of the central or local government (other than its officials) in defamation suit, Lord Keith observed that "it is of the highest importance that a democratically elected government body ... shall be open to uninhibited public criticism" (p.1019). The proposition is too broadly stated taking no account of actual malice in making a report which was excepted in *Sullivan.* see the criticism of *Derbyshire CC* in Ian Loveland's Constitutional Law, 1996, p.600. The Indian supreme Court followed *Derbyshire CC* in *Rajagopal v. T.N.*, AIR 1999 SC 264. See also *Garrison v. Lousiana*, 379 US 64

[1] See *R. v. Sir R. Carden*, (1879) 5 QBD 1 (Whoever fills a public position renders himself open thereto. He must accept an attack as a necessary, though unpleasant, appendage to his office.); *Kartar Singh v. Punjab*, AIR 1956 SC 541

[2] *Daphtary v. Gupta*, AIR 1971 SC 1132

[3] *Life Insurance Corp. v. Manubhai*, AIR 1993 SC 171

[4] *Santokh Singh v. Delhi Administration*, AIR 1973 SC 1091

fundamental right to read[1], but he may be prevented from reading a literature which is prejudicial to the security of the State or any other social interest mentioned in art.39.[2] The restriction is to be imposed by law and when a discretion is conferred on any authority, the law should provide sufficient guidelines for the exercise of the discretion.[3] If the law is vague or arbitrary, or is disproportionate to the mischief sought to be remedied or the restriction has no rational connection with the permissible grounds of restriction, or there is no procedural safeguard against an arbitrary exercise of the power under the law, the restriction imposed will be unconstitutional.[4] Generally, a restriction imposed will be unconstitutional if it is indefinite in duration unless it can be shown that a permanent restriction is necessary in the facts and circumstances of a given case.

2.194 ***Freedom of the press:*** Even though freedom of the press is implicit in the freedom of speech and expression, considering its importance, the Constitution has specifically mentioned it. There is another reason to mention it separately. Art.39(2) guarantees freedom of expression only to 'citizen' which expression excludes legal persons as distinguished from natural persons. But in many cases the press is owned by legal persons and exclusion of legal persons from the purview of the guarantee may seriously hamper freedom of the press. Hence the guarantee is made available without any limitation as to who can claim it. The freedom of the press consists of the right to publish views not only of the newspaper, but also of its correspondents and others.[5] Subject to reasonable restrictions on specified grounds, the press has the freedom to print or not to print any matter it chooses and the government cannot interfere.[6] The freedom extends to the news, editorial comments, discussion of the governmental affairs, conduct of the public authorities,

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[1] *Maharashtra v. Probhakar*, AIR 1966 SC 424

[2] *Narayana v. Kerala*, AIR 1973 Ker 97

[3] *Saia v. New York*, 334 US 558 (A Municipal Ordinance was violative of freedom of speech as it prohibited use of loudspeaker or amplifier without a permit from the Chief of Police, but did not provide a standard for the exercise of the discretion by the chief of Police.); *Lovell v. Griffin*, 303 US 444; *Shuttlesworth v. Birmingham*, 394 US 147

[4] See Para 2.21 for the meaning of reasonable restriction

[5] *Virendra v. Punjab*, AIR 1958 SC 986

[6] *C.B.S. v. Democratic National Committee*, 412 US 94; *Branzburg v. Hayes*, 408 US 665; *Begum Zebunnisa v. Pakistan*, 10 DLR (SC) 44 (a law which permits the government to prohibit publication for whatever reason it considers necessary or expedient is unenforceable)

the form of government and the manner in which the government is to operate.[1] An Antiguan law making it a punishable offence to publish in a newspaper a false statement which is likely to undermine public confidence in the conduct of public affairs was found invalid by the Privy Council which observed that "it would on any view be a grave impediment to the freedom of the press if those who print, or a fortiori those who distribute, matter reflecting critically on the public authorities could only do so with impunity if they could first verify the accuracy of all statements of fact on which criticism was based."[2] The right includes the right to disseminate information and to circulate its publications.[3] The right to circulate has reference not only to the subject matter of the publication, but also to the volume of circulation and any action which would directly affect the volume of circulation would abridge the freedom of the press.[4] "The constitutional guarantee of the freedom of speech and press are not for the benefit of the press so much as for the benefit of all the people."[5]

2.195 The freedom of the press, however, is no higher than the freedom of speech and expression of the individual citizens.[6] The press is not immune from the application of the general laws that reach equally to all businessmen.[7] The protective cover of press freedom cannot be thrown open for wrong doings. Art.39 will not be attracted if a newspaper publishes what is mischievously false or illegal or abuses its liberty.[8] It is not exempt from the ordinary forms of taxation.[9] It may be

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[1] *New York Times v. U.S.*, 403 US 713; *Mills v. Alabama*, 384 US 214

[2] *Hector v. A.G. of Antigua and Barbuda*, [1990] 2 All E.R. 103, 106

[3] *Sakal Papers v. India*, AIR 1962 SC 305

[4] Ibid

[5] *Time v. Hill*, 385 US 374

[6] *Virendra v. Punjab*, AIR 1958 SC 986; *Branzburg v. Hayes*, 408 US 665; *Arnold v. King Emperor*, 41 I.A. 149 (The freedom of a journalist is an ordinary part of the freedom of the subject, and to whatever lengths the subject in general may go, so also may the journalist, but, apart from statute law, his privilege is no other and no higher. The responsibilities which attach to his power in the dissemination of printed matter may, and in the case of a conscientious journalist do, make him more careful; but the range of his assertions, his criticism or his comments, is as wide as, and no wider than, that of any other subject.)

[7] *Associated Press v. NLRB*, 301 US 103

[8] *Re Harijai Singh*, (1996) 6 SCC 466

[9] *Express Newspapers v. India*, AIR 1958 SC 578; *Grosjean v. American Press Co.*, 297 US 233

subjected to the laws relating to industrial and labour relations[1], conditions of service of employees[2], contempt of court[3], defamation[4] and the regulation of commercial activities.[5] A newspaper cannot be held exempt from a search warrant authorising search for evidence of a crime which could be issued to an individual.[6] Freedom of the press will be violated only if the challenged act impinges on the operation of the press in an unequal manner.[7] Where notices of re-entry upon forfeiture of lease and of the threatened demolition of the building of the newspaper are intended and meant to silence the voice of the newspaper, it must logically follow that those notices constitute direct and immediate threat to the freedom of the press and are therefore void.[8] The press has no fundamental right to get governmental advertisement and the government is not under any obligation to publish its advertisements in any newspaper at all. But if the government publishes any advertisement in newspaper, it cannot select any newspaper arbitrarily and must do in terms of a definite non-discriminatory policy. If the government acts arbitrarily or discriminates between newspapers its actions will be void not only under art.27 but also under art.39.[9]

2.196 Freedom of the press is subject to the same restrictions as is the freedom of speech and expression. It would, however, be not legitimate for the government to subject the press to laws which take away or abridge the freedom of expression[10] or which would curtail and thereby narrow the scope of dissemination of information or fetter its freedom to choose its means of exercising the right or would undermine its independence by driving it to seek government aid.[11] It would be

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[1] *Associated Press v. NLRB*, 301 US 103; *Express Newspapers v. India*, AIR 1958 SC 578

[2] *Oklahoma Press Publication Co. v. Walling*, 327 US 186; *Express Newspapers v. India*, AIR 1958 SC 578

[3] *Sharma v. Srikrisna*, AIR 1959 SC 395

[4] *Sewakram v. Karajiya*, AIR 1981 SC 1514

[5] *Bennet & Coleman v. India*, AIR 1973 SC 213

[6] *Zurcher v. Standford Daily*, 98 Sup. Ct. 1970

[7] Schwartz - Constitutional Law, p.343

[8] *Express Newspapers v. India*, AIR 1986 SC 872

[9] *Ghulam v. State*, AIR 1990 J & K 1

[10] *Hamidul Huq Chowdhury v. Bangladesh*, 34 DLR 190 (Freedom of the pres is violated by a law which singles out the companies of the petitioner for take over of the printing establishments of the companies

[11] *Express Newspapers v. India*, AIR 1958 SC 578; *Bennet & Coleman v. India*, AIR 1973 SC 106

unreasonable for the State to single out the press for laying upon it excessive and prohibitive burdens which would restrict the circulation, impose a penalty on its right to choose the instruments for its exercise or to seek an alternative medium.[1] The State has wide power of taxation, but it would be an unreasonable restriction to impose a specific tax upon the press deliberately calculated to limit the circulation of information.[2] If the tax sought to be imposed is likely to affect the freedom of the press, there is a need to strike a balance between the social need for freedom of speech and expression and the governmental need for revenue. An imposition of excessive import duty may lead to a high rise in the price of newspaper materially affecting its circulation and such an imposition may be an unreasonable restriction of the freedom of speech and expression.[3] The provisions of art.39 will be violated if the government cancels a declaration under the Press law without giving an opportunity of being heard to the persons affected[4] or the statutory authority refuses to authenticate a declaration of a newspaper because of the opinion of the police about the political background of the person making the declaration[5] The right will be violated if the government subjects the press to a statutory wage structure which has no regard to its paying capacity and is beyond its financial capacity.[6] Recognising that a newspaper has both commercial and dissemination of news aspects, the Indian Supreme Court held that the freedom of speech cannot be curtailed with the object of placing restrictions on the business activities of a citizen.[7] In order to overcome the difficulty arising out of newsprint shortage, the Indian Government introduced a system of newsprint quota for the newspapers and imposed a few more restrictions on the use of the newsprint within the quota allowed. The policy was found to curtail the growth of big newspapers which could not increase the number of pages, page-area or periodicity by reducing circulation to meet their requirements even within their admissible quota. The Supreme Court

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[1] *Express Newspapers v. India*, AIR 1958 SC 578; *Bennett & Coleman v. India*, AIR 1973 SC 106; *Indian Express Newspapers v. India*, AIR 1986 SC 515; *Grossjean v. American Press Co.*, 297 US 233

[2] *Grosjean v. American Press co.*, 297 US 233

[3] *Indian Express Newspapers v. India*, AIR 1986 SC 515

[4] *Express Newspapers v. India*, AIR 1958 SC 578; *Bennet & Coleman v. India*, AIR 1973 SC 106

[5] *Fazlul Karim Selim v. Bangladesh*, 1981 BLD 344

[6] *P.T.I. v. India*, AIR 1974 SC 1044

[7] *Sakal Papers v. India*, AIR 1962 SC 305

held that the government could not in the garb of regulating the distribution of newsprint control the growth and circulation of newspapers; the newsprint policy cannot be allowed to become a newspaper control policy; while newsprint quota can be fixed on a reasonable basis, post-quota restrictions could not be imposed and the newspapers should be left free in determining the number of pages, circulation and editions within their fixed quota.[1]

2.197 *Pre-publication censorship* : Pre-publication censorship under normal circumstances will be violative of the freedom of speech and expression and freedom of the press. But in an emergent situation where there is danger to the breach of the peace[2] or danger to the security of State, an anticipatory action may not be an unreasonable restriction of the right guaranteed by art.39. Whether such a restriction will be unreasonable will depend upon the circumstances prevailing, the nature of the urgency, the duration of the restriction and the nature of the publication sought to be restricted.[3] Thus temporary restriction by way of pre-publication censorship of a certain class of publications to prevent breach of the peace during an emergency will be reasonable provided the affected party is afforded an opportunity of being heard. In such a situation it would not also be unreasonable to demand security from the press.[4] A permanent restriction in the form of pre-publication censorship may not be held reasonable unless reasonable safeguards against

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[1] *Bennett & Coleman v. India*, AIR 1973 SC 106

[2] *Babulal Parate v. Maharashtra*, AIR 1961 SC 884; *Madhu Limaye v. S.D.M. Monghyr*, AIR 1971 SC 2486

[3] *Virendra v. Punjab*, AIR 1958 SC 896 (S.2 of Punjab Special Powers Act permitted the government to prohibit publication of any particular matter in a newspaper for a maximum period of two months if it was satisfied that such action was necessary to prevent any activity prejudicial to the maintenance of communal harmony likely to affect public order. The law provided for representation by the aggrieved party to the government which upon consideration of the objection could modify or rescind the order. The law was challenged on the ground that it gave arbitrary and uncontrolled discretion to the government to curtail the freedom. The Supreme Court held that it was necessary to give the power to the government in the interest of public order and in view of the temporariness of the restriction and the provision for representation found the restriction to be reasonable. But the court found void the provision of s.3 which authorised the government to prohibit bringing into the State newspapers containing reports or articles on those matters as the said provision does not prescribe any limitation of time and does not provide for representation against the action.)

[4] Ibid

arbitrary action is provided.[1] In *Tofazzal Hossain v. East Pakistan*[2] s.9 of the East Pakistan Public Safety Ordinance, 1958 was challenged as being violative of the freedom of speech and expression. It conferred power on the government to pass an order for the purpose of securing the public safety or maintenance of public order requiring printers, publishers or editor to submit to the specified authority for scrutiny before publication all matters, or any matter relating to a particular subject or class of subjects[3] or prohibiting or regulating the making or publishing of any document or class of documents or any matter relating to a particular subject or class of subjects[4]. In this case an order was passed prohibiting publication of news relating to students' strike, agitation, unrest etc. Following the decision of *Virendra v. Punjab*[5] the High Court found the provision valid on the ground that of necessity the government must be given the discretion to act and the law providing the time limit for which the order may remain valid and representation against the order, the restriction was not unreasonable. The court was considering the *vires* of sub-clause (b) of s.9(1) which permitted restriction in respect of any particular subject or class of subjects. S.9(1)(a) of the law, however, permitted passing of an order in respect of all matters. All matters published in a newspaper cannot carry the possibility of affecting public safety or public order and the provision allowing pre-censorship in respect of all matters was unnecessarily overdrawn and could hardly pass the test of reasonableness.

2.198 Freedom of the press includes the right to publish information about cases pending in courts. In publication of information about pending cases the freedom of the press sometimes comes in conflict with the right to fair trial which is itself a fundamental right.[6] In order to ensure the right of an accused to a trial by an impartial jury, a judge in the American jurisdiction passed an order in a murder case prohibiting the press from publishing confessions or admissions and facts strongly implicative of the accused. The order of the judge came up for consideration in *Nebraska Press Association v. Stuart*[7]. The Supreme Court opined that the prior restraint came to the court with a heavy

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[1] *Bihar v. Misra*, AIR 1970 SC 1667
[2] PLD 1965 Dac 68
[3] S.9(1)(a)
[4] S.9(1)(b)
[5] AIR 1958 SC 896
[6] See *Sheppard v. Maxwell*, 384 US 333
[7] 427 US 539

presumption against its validity, which the order in issue failed to overcome as there was no finding that measures short of prior restraint would not have protected the accused's right. Having regard to the tone of the opinion, it was observed, "When the time comes for the Court to announce a general rule, it will be that prior restraint on the press is a constitutionally impermissible method for enforcing the right to a fair trial."[1] Our press often does not restrain itself in reporting crimes and the trial of offences, much to the anguish of the persons suspected. But the problem is not as acute in our country as it is in the American jurisdiction because we do not have a jury system and the problem in the American jurisdiction is mainly of finding an impartial jury. Even then the press should restrain itself as it cannot be said that the judge who is ultimately entrusted with the case has not already been influenced by the reports published in the newspapers. But more than that we have seen that pressure groups create a situation in which even a trained judge may find it difficult to remain impartial. Creation of such pressure amounts to interference with the administration of justice and should not be overlooked simply because the pressure has come through press reports.

2.199 *Pre-censorship of cinema films* : Though initially the exhibition of cinema films was treated purely as a commercial activity in the American jurisdiction, it is now settled that the freedom to exhibit movie pictures is included in the freedom of speech and expression[2] The same must be the position in our country as it may "affect public attitudes and behaviour in a variety of ways, ranging from direct espousal of a political or social doctrine to the subtle shaping of thought which characterises all artistic expression."[3] But as cinema films possess greater capacity of doing harm, specially to young people, it has been found desirable to have pre-censorship of cinema films and such pre-censorship will not be unconstitutional[4] provided a definite standard is laid down by law for the guidance of the censors.[5] If the standard laid down by law is vague or indefinite, it will be violative of the freedom of speech and expression.[6] The authority censoring films must balance the

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[1] Schwartz - Constitutional Law, p.340

[2] *U.S. v. Paramount Pictures*, 334 US 131

[3] *Kingsley Pictures Corporation v. Regents*, 360 US 684, 690

[4] *Times Film Corporation v. Chicago*, 365 US 436; *Paris Adult Theatre v. Slatons*, 413 US 49; *Abbas v. India*, AIR 1971 SC 481

[5] *Interstate Circuit v. Dallas*, 387 US 903

[6] *Times Film Corporation v. Chicago*, 365 US 436 (Censor Board authorised to deny licence if in its opinion the film in question is prejudicial to the best interest of the

literary, artistic, sociological and ethical merit of a film with its tendency to deprave and corrupt and must be responsive to social change and must go with the current climate.[1] Even though a law may lay down a definite standard for censorship, it may be violative of the freedom of speech and expression if it lacks procedural safeguards against arbitrary exercise of the power.[2]

FREEDOM OF OCCUPATION, RELIGION AND PROPERTY

2.200 Arts.40, 41 and 42 guarantee freedom of occupation, religion and property. They are dealt with together because of one common feature. Art.40 guarantees freedom of occupation subject to any restriction imposed by law. Art.41 guarantees freedom of religion subject to law and art.42 guarantees right to property subject to restrictions imposed by law. In all these three articles, there is no requirement of reasonable restriction or reasonable law and the restriction by law need not be on specific grounds. On the face of it Parliament may pass any law restricting, curtailing and even prohibiting exercise of these rights; the prohibition is on the executive which cannot invade these rights without the backing of law. It may, however, be kept in view that these three articles have been included in Part III as entrenched provisions limiting the plenary legislative power of Parliament and these provisions are to be construed accordingly. Art.18 of the Pakistan Constitution of 1956 provided, "Subject to law ... every religious denomination ... has the right to establish ... its religious institution." Literally interpreted, the Legislature could by law abolish such institutions and such an argument was advanced in *Jibendra Kishore v. East Pakistan*[3], but the Pakistan Supreme Court rejected the contention stating -

> In the High Court, Mr. Brohi's bold and categorical assertion that the rights, referred to in Article 18 are 'subject to law' and may, therefore, be taken away by law, succeeded. That assertion has been repeated

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people); *Joseph v. Wilson*, 343 US 495 (Censor Board authorised to deny licence if in its opinion the film is 'sacrilegious'); *U.S. v. Paramount Pictures*, 334 US 131 (Censor Board authorised to approve only the films which in its opinion would be of a moral, educational, or amusing and harmless character)

[1] *Raj Kapoor v. Laxman*, AIR 1980 SC 605, 608

[2] *Freedman v. Maryland*, 380 US 51; *Vance v. Universal Amusement Company*, 445 US 308

[3] 9 DLR (SC) 21

> before us, but I have not the slightest hesitation in rejecting it. The very conception of a fundamental right is that it being a right guaranteed by the Constitution cannot be taken away by the law, and it is not only technically inartistic but a fraud on the citizens for the makers of a Constitution to say that a right is fundamental but that it may be taken away by the law. I am unable to attribute any such intent to the makers of the Constitution ...[1]

The court further observed –

> ... constitutional rights should not be permitted to be nullified or evaded by astute verbal criticism, without regard to the fundamental aim and object of the instrument and the principles on which it is based. If the language is not explicit, or admits of doubt, it should be presumed that the provision was intended to be in accordance with the acknowledged principles of justice and liberty.[2]

Thus it will not be proper to give a literal interpretation to the language of arts.40, 41 and 42 as it cannot be said that the framers of the Constitution intended to take away by the left hand what they conferred by the right hand. There is, however, a further reason for not giving a literal interpretation. Occupation and religion are important segments of 'liberty' sought to be protected by art.31 and, of course, 'property' comes within the ambit of that article. Hence, any law dealing with occupation, religion or property must be reasonable so as not to fall afoul of art.31. Art.31 ingrains and grafts reasonableness which operates like a free flowing stream running through the entire body of the Constitution and there is no place for unreasonableness or arbitrariness under our constitutional dispensation. Whatever law may be passed and whatever restriction may be imposed touching the guarantees of Arts.40, 41 and 42 must be reasonable to stand constitutional scrutiny. However, the inquiry as to the reasonableness of the restriction imposed by law will be a relaxed one; the test will be the one which is applied for ascertaining reasonableness under art.31.[3] We shall deal with these three rights separately with the assumption that any law touching on these rights must be reasonable and must not be arbitrary.

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[1] Ibid, para 38

[2] Ibid

[3] See para 2.103 and 2.105

FREEDOM OF TRADE, BUSINESS AND OCCUPATIONS

2.201 Art.40 provides that subject to any restriction imposed by law, every citizen possessing such qualification, if any, as may be prescribed by law in relation to his profession, occupation, trade or business shall have the right to enter upon any lawful profession or occupation, and to conduct any lawful trade or business. Dr.F.K.M.A.Munim observed, "The acceptance of socialism as one of the fundamental principles of State policy under the Constitution of Bangladesh has justifiably led to the omission of the qualifying phrase 'reasonable' before the term 'restriction'."[1] The observation does not seem to be correct. Neither in the Pakistan Constitution of 1956 nor in the Pakistan Constitution of 1962 restriction as regards this freedom was qualified by the expression 'reasonable' so that the question of omitting the expression 'reasonable' in art.40 does not arise. Art.12 of the Pakistan Constitution, 1956 provided as follows -

> Every citizen, possessing such qualifications, if any, as may be prescribed by law in relation to his profession or occupation, shall have the right to enter upon any lawful profession or occupation, and to conduct any lawful trade or business:
>
> Provided that nothing in this Article shall prevent -
>
> (a) the regulation of any trade or profession by a licensing system, or
>
> (b) the carrying on, by the Federal or a Provincial Government or by a corporation controlled by any such Government, of any trade, business, industry or service, to the exclusion, complete or partial, of other persons.

The constitution of 1962 in fundamental right no.8 reproduced the language of art.12. It can be seen on comparison that the meaning and content of the present art.40 is substantially the same as that of art.12 of the 1956 Constitution. Art.40 has omitted the proviso and instead added the expression 'subject to restriction imposed by law' to allow a licensing system and to widen the scope of restriction to protect any legitimate governmental interest. There are three important aspects in art.40 - (i) the right guaranteed is in respect of a trade, business or occupation which is lawful, (ii) qualifications can be prescribed by law for entry in such trade, business or occupation and (ii) Parliament may by law put restrictions on the exercise of the right. Dr. Munim observed,

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[1] The Rights of the Citizen under the Constitution and Law, p.287

"The use of the word 'lawful' before 'profession' etc. and of the word 'any' before 'restrictions' in this Article may arguably be viewed as indicating that this right is not actually intended to be a fundamental right."[1] It is submitted that Dr. Munim has taken a very rigid literal view and in doing that he neither considered Part III in its proper perspective, nor considered the real effect of arts.26 and 31 on the over-all enumeration of the rights in Part III. Munir CJ simply brushed aside such a contention in *Jibendra Kishore*[2] as did Kaikaus J in *Pakistan v. Syed Akhlaque Hussain*[3]

2.202 *Lawful trade or occupation* : Under art.40 in order to claim a fundamental right to carry on a trade or occupation, it must be a lawful trade or occupation.[4] It does not mean that Parliament can without any limitation make any trade or occupation unlawful. In *Progress of Pakistan Co, Ltd. v. Registrar, Joint Stock Companies*[5] Kaikaus J elaborately dealt with the meaning 'lawful' in art.12 of the Pakistan Constitution of 1956. He observed -

> I have not the slightest hesitation in rejecting the suggestion that the Legislature can declare the carrying on of any business or profession unlawful. A fundamental right is a limitation on the power of the Legislature and is a guarantee to a person or citizen, that such rights shall not be taken away by legislation. To say that the Legislature can pronounce a business to be unlawful would mean that there is no fundamental right in Pakistan with respect to trade, business etc. then why enact Article 12 at all? ... For my part, I have never had any doubt as regards the effect of the word `lawful' in Article 12 and the extent of the guarantee granted by this Article. The Article entitled the citizens of Pakistan to carry on any business, trade or profession with this condition only that the individual acts involved in it are not unlawful. If an act involved in a business, trade, profession or occupation, is such that if performed otherwise than as a part of a business, trade, profession or occupation, it is unlawful, then it cannot become lawful just because it is performed as a part of a business, trade or profession, that is, as a part of

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[1] The Rights of Citizen under the Constitution and Law, p.288

[2] 9 DLR (SC) 21, Para 38

[3] PLD 1965 SC 527, 580-581

[4] *Sultana Nahar v. Bangladesh*, 1998 BLD 363 (Since the profession of sex workers has not been declared unlawful by the Consitution or any law, the sex workers are entitled to claim protection under art.40)

[5] PLD 1958 Lah 887

> activity indulged in for the purpose of profit or income. That is the only limitation placed on the right to carry on a business, etc. The object of the Article was to grant the citizen the fullest right to carry on any business etc., but the word `lawful' had to be put in because if it did not exist the citizens may have claimed to make a business of an act that is an offence or is prohibited ... I would hold that Article 12 guarantees to the citizen the right to carry on any business, occupation, trade or profession (subject to a licensing system and a monopoly of the State) with this limitation only that the citizen is not entitled by virtue of the Article to do an act which, when done otherwise than as part of a business, etc., was unlawful. There is no other limitation of this fundamental right.

What Kaikaus J said about art.12 of the Pakistan Constitution of 1956 is true about art.40 of the Constitution with the exception that Parliament has power to impose a wider range of restrictions on trade and occupation under art.40.

2.203 The expression 'restriction' in art.40 must mean restriction as distinguished from 'prohibition'. Otherwise, art.40 will cease to be a fundamental right inasmuch as there will be no limitation on the power of Parliament in legislating in respect of trades and callings. To prevent the executive from infringing the right of the citizens no fundamental right is necessary because in the absence of any law the executive cannot interfere with the liberty of the citizens which includes their right to choose and carry on a trade or calling. Furthermore, there is no compulsion to treat 'restriction' as including 'prohibition' because if the act involved in any trade or calling appears to be pernicious, Parliament can pass a law prohibiting such trade or calling. When Parliament makes a law prohibiting a trade or calling, it can be challenged under art.40 read with art.31 as being unreasonable. Unless any legitimate governmental interest demands it, Parliament cannot make any individual act unlawful and *a fortiori* cannot make any profession, trade, business or occupation involving such act unlawful without infringing the guarantee of arts.31 and 40 of the Constitution. When a trade, business or calling is lawful, Parliament can impose reasonable restrictions in respect of such trade, business or calling in the public interest. If a restriction imposed by law is found to be unreasonable or arbitrary, it will be void under art.40 read with art.31.[1] In *Nasreen*

[1] *Chairman, REB v. Abdul Jalil*, 3 BLC (AD) 79 (The decision taken by Rural Electrification Board barring all ex-employees of the Board from participating in any

Fatema v. Bangladesh[1] a law was challenged on the ground that it restricted the right of a sponsor or director of any financial institution from becoming a director of an insurance company in violation of art.40. The High Court Division found that the restriction was put to prevent monopoly in the control of the money market and held the restriction to be reasonable. In *Dalmia Cement (Bharat) Ltd. v. India*[2] the Indian Supreme Court held that in the clash of competing rights of socio-economic justice of the producers of agricultural commodities and the individual right of a citizen to carry on trade or business, the latter has to yield place to the paramount social right. A balanced view of the development of the national economy requires to be taken into consideration to protect the interests of the farmers who produce jute or any other agricultural produce and in the interest of agro-based industry of the country and workers who deliver finished products.

2.204 Art.40 guarantees that every citizen, subject to the restriction that may be put by law and acquiring the requisite qualification prescribed, can choose and carry on any profession, occupation, trade or business[3] which is not unlawful. Though a citizen has a fundamental right to carry on any business of his choice, he has no right to carry on a business inherently dangerous to the community which may be prohibited or may be allowed only under licence[4]. The right to carry on business includes the right not to carry it on and no one can be compelled to do a business against his will.[5] But there is a difference between not doing a business and closing a business. Once a business is started, the right to close it down is not as wide or as large as the right to choose a business. Once a business is started, its closure involves many questions with which public interest may be intimately connected. There may be a question of adverse effect on the national economy, of interruption of supply of essential commodities or of unemployment of a large number of workers. The right of closure may be exercised *mala*

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tender is unreasonable)

[1] 49 DLR 542

[2] (1996) 10 SCC 104

[3] *Saghir Ahmed v. U.P.*, AIR 1954 SC 728; *Abdul Jalil v. Chairman, REB*, 45 DLR 24 (right under art.40 is violated when without any backing of any law REB imposed restriction on ex-employees in entering into contract with REB and refused enlistment of an ex-employee as a contractor)

[4] *Cooverjee v. Excise Commissioner*, AIR 1954 SC 220; *Nasirwar v. M.P.*, AIR 1975 SC 360; *Khoday Distilleries v. Karnataka*, (1995) 1 SCC 574

[5] *Hathisingh Manufacturing Co. v. India*, AIR 1960 SC 923

fide to avoid the legitimate demands of the workers.

2.205 This article, however, does not confer any monopoly right to carry on any trade, business or profession and no one can complain against a governmental action which affects any monopoly situation he was enjoying.[1] A citizen cannot claim a fundamental right to carry on a business wherever he chooses, e.g., on the streets, or at any time and his right may be regulated in the public interest.[2] A citizen cannot object to the lawful actions of an authority on the ground that those actions are causing loss in his business.[3]

2.206 As restrictions may be imposed to meet the demands of legitimate governmental interest, Parliament may pass laws in the interest of public health and morals[4] or for the prevention of fraud[5], legislate to prescribe minimum wage rates[6] or hours of employment or opening or closing hours[7], or pass laws in the interest of health and welfare of the workers[8]. Parliament may also pass laws imposing safety and health standards on the employers[9], marketing laws to enable the producers to get a fair price[10], laws regulating the supply and distribution of essential goods[11], laws fixing the price of essential commodities[12], taxing laws[13], laws restraining the formation and

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[1] *Harnam Singh v. Regional Transport Authority*, AIR 1954 SC 190; *Nagar Rice Mills v. N.T.G. Brothers*, AIR 1971 SC 246

[2] *Pyare Lal v. Delhi Administration*, AIR 1968 SC 133; *Ibrahim v. Regional Transport Authority*, AIR 1953 SC 79

[3] *Abdul Momen v. Dhaka City Corp.*, 50 DLR 300

[4] *Maharashtra v. Himmatbhai*, AIR 1970 SC 1157; *Assam v. Sristikar*, AIR 1957 SC 414

[5] *Fedco v. Bilgrami*, AIR 1960 SC 415

[6] *Bijoy Cotton Mills v. Ajmeer*, AIR 1955 SC 33; *U. Unichovi v. Kerala*, AIR 1962 SC 12

[7] *Ramdhan Das v. Punjab*, AIR 1961 SC 1559; *Lincoln Union v. Northwestern Co.*, 335 US 525

[8] *Manohar Lal v. Punjab*, AIR 1961 SC 418

[9] *Atlas Roofing Co. v. Occupational Safety and Health Review Commission*, 430 US 442

[10] *Arunachala Nadar v. Madras*, AIR 1959 SC 300; *Jan Md. v. Gujarat*, AIR 1966 SC 385; *Porwal v. Maharashtra*, AIR 1981 SC 1127

[11] *India v. Bhana Mal Gulzari Mal*, AIR 1960 SC 475; *Ajit Singh v. Punjab*, AIR 1967 SC 856; *P.P. Enterprise v. India*, AIR 1982 SC 1016

[12] *Prag Ice Mills v. India*, AIR 1978 SC 1296; *Saraswati Syndicate v. India*, AIR 1975 SC 460

[13] *Balaji v. Income-tax Officer*, AIR 1962 SC 123; *M.A. Rahman v. A.P.*, AIR 1961 SC

operation of companies[1], laws providing for the settlement of industrial disputes[2] or laws regulating exports and imports[3].

2.207 *Prescription of qualifications*: Art.40 empowers Parliament to prescribe qualifications for particular professions and occupations. Though no restriction is put on the power of prescribing qualifications, all State institutions are required to act essentially in the interest of the public and prescription of qualifications for a particular profession or occupation must be in the public interest. Thus such a prescription must have a reasonable nexus with efficiency in such profession or occupation and other public interests. Otherwise such a prescription will be arbitrary and will amount to impermissible infringement of the freedom of occupation and business. If the legislature, on the pretext of prescribing qualifications, imposes conditions which have no relation to the fitness or suitability of the person seeking to enter a profession it will be void.[4] Requiring a person to take oath of loyalty to the government which has no connection with his fitness for a profession cannot be treated as a valid prescription of qualification.[5] The legislature may prescribe the qualifications to be required of a person in order that he may be authorised to engage in the practice of a certain profession or occupation requiring special knowledge or skill intimately connected with public welfare. Thus, the passing of an examination or compliance with other reasonable requirements may be prescribed as condition precedent to the exercise of the right to practise the professions of law, medicine, pharmacy, optometry, engineering etc and proper regulations may be made for the regular conduct of such professions. The Lahore Bench of the West Pakistan High Court held that qualifications can only be laid down for prospective entrants into a profession and cannot be retrospectively imposed to disqualify persons who have already entered upon that profession by virtue of their possessing the qualification required at the relevant time, but the Supreme Court reversed the decision stating that a person may be deprived by law of the right to

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[1] *Joseph Kuruvilla v. Reserve Bank*, AIR 1962 SC 1371

[2] *Basti Sugar Mills Ltd. v. Ram Ujagar*, AIR 1964 SC 355; *Godavari Sugar Mills Ltd. v. Kopargaon Taluka Sakhar Kamghar Sabha*, AIR 1961 SC 1016; *Moghal Tobacco Co. Ltd. v. Pakistan*, PLD 1959 SC 31

[3] *Daya v. Joint C.C.I.E.*, AIR 1962 SC 1796; *Glass Chatons Importers and Users Association v. India*, AIR 1961 SC 1514

[4] *Jones v. Portland*, 245 US 217

[5] *Cummings v. Missouri*, 18 L. Ed. 356

practice a profession.[1]

2.208 *Licence and permit* : The State has the right, in the public interest, to lay down reasonable conditions subject to which any trade or business can be carried on. If Parliament confers on the executive authority the power to grant or refuse a licence in a quasi-judicial manner[2] having regard to the conditions stipulated by Parliament and in accordance with the principles of natural justice[3] the restriction will not be unreasonable. Except in exceptional circumstances[4], the freedom of trade or business cannot be made dependent upon the absolute discretion of an administrative authority.[5] Thus if a law confers power on the administrative authority to grant or withhold or revoke a permit or licence in its absolute discretion, the law will be unreasonable.[6] If the statute conferring discretion does not lay down the guiding principles for the exercise of the discretion in the matter of granting, cancelling or refusing licence, it would be a case of unreasonable restriction on the freedom of business.[7] The standard laid down by the statute must be objective and the expressions like 'suitability of the applicant' or 'public interest' are vague and do not provide any guidance to the licensing authority.[8] The conditions imposed by the licence must not be onerous or arbitrary so as to virtually lead to the extinction of the business of the licencee.[9]

FREEDOM OF RELIGION

2.209 Art.41 guarantees the freedom of religion. The language of art.41(1) is exactly the same as used in art.18 of the Pakistan

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[1] *Pakistan v. Syed Akhlaque Hossain*, PLD 1965 SC 527

[2] *Chaturbhai v. India*, AIR 1960 SC 424

[3] *Mineral Development Co. v. Bihar*, AIR 1960 SC 468

[4] *Md. Faruk v. M.P.*, AIR 1970 SC 93 (a trade or business which is inherently dangerous to the community); *Harishankar Bagla v. M.P.*, AIR 1954 SC 465 (production, supply and distribution of essential commodities at the time of emergency); *Glass Chatons v. India*, AIR 1961 SC 1514 (trade or business affecting national economy, such as imports and exports)

[5] *Faruk v. M.P.*, AIR 1970 SC 93

[6] *Gunapati v. Ajmeer*, AIR 1955 SC 188; *Harisankar Bagla v. M.P.*, AIR 1954 SC 465

[7] *Dwaraka Prasad v. U.P.*, AIR 1954 SC 224; *Mineral Development Co. v. Bihar*, AIR 1960 SC 468

[8] *Banthia v. India*, AIR 1970 SC 1453

[9] *Seshadri v. District Magistrate*, AIR 1954 SC 747

Constitution of 1956 and in fundamental right no.10 of Pakistan Constitution of 1962. On the other hand, the language of art.41(2) is exactly similar to the language of clause (1) of fundamental right no.12 of the Pakistan Constitution of 1962. The guarantee provided by art.41(1) is not absolute. It provides that subject to law, public order and morality, (i) every citizen has the right to profess, practice or propagate any religion and (ii) every religious community or denomination has the right to establish, maintain and manage its religious institutions. As the guarantee under art.41(1) is stated to be 'subject to law' one may argue that Parliament has full plenary power even to take away this right. But such an argument was rightly rejected by the Pakistan Supreme Court in respect of art.18 of the Pakistan Constitution of 1956.[1] The expression 'subject to law' does not mean that the right to profess, practise and propagate can be taken away by law; it merely means that Parliament may by law regulate the manner of professing, practising and propagating religious beliefs and the working of religious institutions like waqf and debuttar.[2] Regulation of the manner of professing, practising and propagating religious belief, however, does not mean that there may be a law which would regulate the actual performance of religious rites; it means that if in the performance of the religious duties or rites certain secular steps have to be taken, then these steps may be regulated by law.[3] The right is not confined to religious belief, but extends to religious acts and observances and the propagation of religion.[4] In order to constitute a violation of the right there must be some tangible interference with religious acts and observances. Where a micro-wave relay station on the government land established near a temple does not interfere with the pilgrims' visit to the temple, the freedom of religion is not infringed.[5] No religion prescribes that prayers or religious act shall be performed by disturbing the peace of others, nor does it preach that these shall be performed through voice amplifiers and hence a law to curb noise pollution by the use of voice amplifiers or

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[1] See Para 2.200

[2] *Jibendra Kishore v. East Pakistan*, 9 DLR (SC) 21; *Durgah Committee v. Syed Hussain Ali*, AIR 1961 SC 1402

[3] *Abdul Ghani v. Pakistan*, PLD 1958 Lah 584 (the Court rejected the challenge regarding the system of drawing lots by which candidates for Haj were selected out of the total number of applicants.)

[4] *Commissioner H.R.E. v. Lakshmindra*, AIR 1954 SC 282; *Ratilal v. Bombay*, AIR 1954 SC 388; *Saifuddin Shaheb v. Bombay*, AIR 1962 SC 853

[5] *Sashankalal v. Pakistan*, 21 DLR 108

loudspeakers can be violative of the right under art.41.[1]

2.210 The term 'religion' has a reference to one's views of his relation with his Creator and to the obligation they impose of reverence of his being and character and of obedience to his will.[2] The freedom of religion embraces the concepts of freedom to believe and freedom to act.[3] Religious practices or performance of acts in pursuance of religious beliefs are as much part of a religion as faith and belief in particular doctrines.[4] The freedom also includes the right to hold no religious belief at all.[5]

2.211 The right to propagate one's religion means the right to communicate his belief to another person or to expose the tenets of that faith, but would not include the right to 'convert' another person to his faith.[6] But the latter person has the right to adopt another religion in the free exercise of his conscience. The right to propagate religion has to be exercised subject to the requirements of public order and safety. This article does not protect any wrong practised in the name of religion.[7] It does not extend to the doing, in the name of religion, acts which are offences under the law.[8] While the legislature may not interfere with mere profession or belief, law may step in when profession breaks out into open practices inviting breach of the peace or when belief, whether in publicly practising a religion or running a religious institution, leads to overt acts against public order.[9] The right under art.41(1) is subject to law, but the State may not regulate religious practices unless those run counter to public health, public order or morality or are economic, commercial or political activities associated with religious practices.[10] Hence it is necessary to consider whether the practices are essentially of

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[1] *Church of God v. KKRMC Welfare Assocn.*, AIR 2000 SC 2773

[2] 16A Am Juris 2d, Const., Para 465

[3] Ibid

[4] *Commissioner, H.R.E. v. Lakshmindra*, AIR 1954 SC 282

[5] *McGowan v. Maryland*, 366 US 420 (The constitutional guarantee of freedom of religion includes freedom from religion, with the right to believe, speak, write, publish, and advocate antireligious programmes)

[6] *Digyadarson v. A.P.*, AIR 1970 SC 181; *Stainislaus v. M.P.*, AIR 1977 SC 908

[7] *Bangladesh Anjuman-E-Ahmadiya v. Bangladesh*, 45 DLR 185 (forfeiture of a book outraging the religious belief of bulk of Muslims upheld)

[8] *Alver v. U.S.*, 245 US 366; *Davis v. Beason*, 133 US 333

[9] *Jibendra Kishore v. East Pakistan*, 9 DLR (SC) 21, Para 39

[10] *Ratilal v. Bombay*, AIR 1954 SC 388

a religious character or not.[1] Whether a particular religious practice is really an essential or integral part of a religion is to be decided by the court and the opinion of the leaders of the religious denomination is not final.[2] Without violating the constitutional guarantee, the State may enact laws to promote general welfare, public convenience and comfort. The State may regulate religious parades and processions in public places and streets. It has been held in the United States that a regulation requiring children to salute the American flag for being allowed to continue to attend the public schools denies the freedom of worship.[3]

2.212 Art.41(2) provides an absolute guarantee which can neither be restricted nor taken away. It provides that no student in an educational institution shall be required to receive religious instruction or to take part in or attend any religious ceremony or worship other than those of his own religion.

RIGHT TO PROPERTY

2.213 Art.42(1) provides that subject to any restriction imposed by law, every citizen shall have the right to acquire, hold, transfer or otherwise dispose of property.[4] The right cannot be affected by administrative order.[5] The article further provides that no property shall be compulsorily acquired, nationalised or requisitioned save by authority of law. The first part deals with the right in respect of property subject only to restrictions imposed by law.[6] The expression 'restriction' has to be understood as not including 'prohibition' or 'extinction' as otherwise the second part relating to acquisition or nationalisation will be surplusage. Furthermore, in such a case there was no necessity to include the State Acquisition and Tenancy Act in the First Schedule to the Constitution to grant it immunity from challenge on the ground of

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[1] *Saifuddin v. Bombay*, AIR 1962 SC 853

[2] *Durgah Committee v. Hussain*, AIR 1961 SC 1402; *Hanif Quraishi v. Bihar*, AIR 1958 SC 731 (sacrifice of cow has been held to be not an obligatory religious act enjoined by Islam)

[3] *West Virginia City Board of Education v. Barnette*, 319 US 624

[4] For meaning of 'property' see Para 2.114

[5] *Raj Kumar Behani v. Bangladesh*, 1995 BLD 633

[6] *Abdul Khaleque v. Court of Settlement*, 44 DLR 273 (enlistment of property of a citizen, who merely gave an option to migrate to Pakistan, as abandoned property is violative of the right to property)

violation of the provisions of the Constitution.[1] In placing a restriction on the right to property, Parliament cannot prohibit the exercise of the right or extinguish the right. If any restriction imposed by law has the effect of confiscating a property without acquisition or nationalisation under the authority of law, the restriction will be violative of art.42. S.95 of the State Acquisition and Tenancy Act provides that a usufructuary mortgage will be deemed redeemed on the expiry of seven years. By P.O. 88 of 1972 s.95A was inserted in the Act whereby a sale of an agricultural land with an agreement for reconveyance is deemed to be a usufructuary mortgage so that a property sold with an agreement for reconveyance revests in the seller on the expiry of seven years. In *Ali Ekabbar Farazi v. Bangladesh*[2] the High Court Division held s.95A to be violative of art.42 as it rendered the purchaser's right to property extinct, a result not permissible under art.42. The court held that a vested right to property cannot be extinguished except in the manner as provided in art.42(1) or art.47(1). An unreasonable restriction put on the right to transfer property may be violative of art.42.[3]

2.214 The expression 'restriction' is not qualified by the word 'reasonable'. But that does not mean that Parliament has unfettered power to impose any restriction it chooses. The right to property is protected by art.31 which mandates reasonable law to interfere with the right. The inclusion of the word 'reasonable' in this article would have subjected any restriction imposed by law to a stricter scrutiny. In the absence of this qualifying word, the scrutiny of the reasonableness of any restriction imposed by law under art.31 is a relaxed one.

2.215 The second part of art.42(1) provides for extinction of the right to property only by way of compulsory acquisition or nationalisation under the authority of law and an acquisition of property under any law cannot be called in question.[4] The article does not say that an acquisition, requisition or nationalisation of property must be for a public purpose. The question is whether Parliament can authorise acquisition, requisition or nationalisation for any purpose other than a

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[1] *Ali Ekabbar Farazi v. Bangladesh*, 26 DLR 394

[2] 26 DLR 395 (reversed in *Bangladesh v. Haji Abdul Gani*, 32 DLR (AD) 233 on the ground that P.O. 88 of 1972 is a protected law under art.47(2))

[3] *Chittaranjan v. Secy. Judicial Department*,17 DLR 451 (in this case the right to property was subject to 'reasonable restriction', but this may not be very material in respect of a challenge under art.40 of the Constitution)

[4] *M.A. Salam v. Bangladesh*, 47 DLR 280

public purpose. Art.42 cannot be interpreted in a way which will render the protection of art.31 nugatory. A law interfering with the right to property will not be reasonable under art.31 if it does not subserve any legitimate governmental interest and the combined effect of arts.31 and 42 is that any acquisition, requisition or nationalisation of property to be valid must be for a public purpose.

2.216 Art.42(2) as originally adopted permitted acquisition, nationalisation or requisition with or without compensation and provided that when a law provides for compensation, it should either fix the compensation or specify the principle of assessment of compensation and that such a law cannot be challenged on the ground that it provides for inadequate compensation. By a subsequent amendment[1] of this provision, the option to provide for acquisition, nationalisation or requisition without compensation has been taken away and after the amendment Parliament cannot pass a law authorising acquisition, nationalisation or requisition without payment of compensation. Adequacy of compensation, however, remains non-justiciable as before.[2]

2.216A If a man's property does not *ex facie* answer the description of abandoned property, inclusion of the property in the list of abandoned properties violates the right to property[3] and he can enforce his right under art.102(1) and the question of exhaustion of efficacious remedies cannot arise[4], and the High Court Division can exercise jurisdiction under art.102 even though the Court of Settlement rejected the application for the release of the property on the ground of limitation.[5]

PROTECTION OF HOME AND CORRESPONDENCE

2.217 "The right of sanctuary in one's house is the most ancient conception of individual liberty, and perhaps the most profound. A rifle butt against the door at midnight is not only tyrannical, it is tyranny itself."[6] The Fourth Amendment of the American Constitution provides, "The right of the people to be secure in their persons, houses, papers,

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[1] Validity of the amendment by Martial Law Proclamation Order is open to question.
[2] *Shahjahan Ali Khan v. Bangladesh*, 52 DLR 99
[3] *Nurun Nahar v. Bangladesh*, 49 DLR 432
[4] *Rahimuddin Bharsha v. Bangladesh*, 46 DLR 130; *Syeda Chand Sultana v. Bangladesh*, 48 DLR 547
[5] *Rehana Kamal v. Chairman, Court of Settlement*, 3 BLC 213
[6] Alfred H. Knight - The Life of the Law, p.124

and effects, against unreasonable searches and seizures, shall not be violated ...". The amendment recognises "the right of a man to retreat into his own home and there be free from unreasonable governmental intrusion."[1] In the American jurisdiction, a man's house can be searched by police only under a warrant issued by an impartial magistrate on being satisfied of a probable cause. An exception to the requirements of both a warrant and probable cause is a search which is conducted pursuant to consent. Such a consent should not, however, be coerced, by explicit or implicit means, by implied threat or covert force.[2] A warrantless entry does not violate the constitutional guarantee where such entry is based on the consent of a person whom the police at the time of entry reasonably believed to possess common authority over the premises searched.[3] A search warrant must contain a description of the place to be searched and the thing to be seized.[4] The court found valid a search warrant listing items and adding 'other fruits, instrumentalities and evidence at this time unknown'.[5] In the English jurisdiction a man's home is his castle. In the famous case of *Entick v. Carrington*[6] Lord Camden observed, "By the laws of England, every invasion of private property, be it ever so minute, is a trespass. No man can set foot upon my ground without my licence, but he is liable to an action though the damage be nothing." In *Robson v. Hallett*[7] it was, however, held that a police officer coming to a house on lawful business has implied licence from the owner of the house and should be given a reasonable time to leave the house before he can be treated a trespasser.

2.218 Art.43 of the Bangladesh Constitution guarantees the privacy of home and correspondence and communications. It provides that every citizen shall have the right to be secure in his home against entry, search

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[1] *Silverman v. U.S.*, 365 US 505, 511
[2] *Schneckloth v. Bustamote*, 412 US 212
[3] *Illinois v. Rodriguez*, 497 US 177
[4] *Andresen v. Maryland*, 427 US 463
[5] Ibid
[6] [1765] 19 St. Tr. 1030; in *Malone v. Metropolitan Police Commissioner*, [1979] Ch. 344, the practice of telephone-tapping by the executive without any clear lawful authority was upheld on the ground that Malone could not point to any legal right of his which the government was under duty not to infringe. Malone, however, approached European Commission on Human Rights which found in his favour holding that the telephone-tapping violated art.8 of the European Convention on Human Rights relating to right to privacy, *Malone v. United Kingdom*, [1984] 7 EHRR 14
[7] [1967] 2 QB 939

and seizure and to the privacy of his correspondence and other means of communications. Only reasonable restrictions on this right can be imposed by law in the interest of the security of the State, public order[1], public morality or public health. Thus no police officer, nor any other public functionary can enter into the house of any citizen and conduct any search or seize any thing unless he is duly authorised under any law.[2] Any law which permits such entry, search and seizure must be a law made in the interest of the security of the State, public order, public morality or public health and must be a reasonable restriction on the right. If the restriction imposed has no nexus with the specified matters or is in excess of the requirement for which it is imposed, or if the object can be achieved by any less rigorous means, or if the law does not provide a way of checking arbitrary or illegal exercise of the power of search or seizure, it will be found invalid. In *Kharak Singh v. M.P.*[3] domiciliary visit at night by police to the house of a suspected person under the Police Regulation was found to be invalid in view of the fundamental right guaranteed by art.21 of the Indian Constitution which is similar to art.32 of the Constitution. Indian supreme Court found telephone-tapping to be a serious invasion of an individual's privacy.[4] Such actions will be illegal in Bangladesh under the specific provision of art.43. S.47 of the Code of Criminal Procedure permits a person acting under a warrant of arrest or any police officer authorised to arrest to enter any premises to effect arrest if he has reason to believe that the person sought to be arrested has entered in that premises. The government has a legitimate interest in apprehending a person suspected of crime and the provision is reasonable. S.97 of the Code authorises the court to issue a search warrant under certain specified conditions. Though the court cannot issue such a search warrant on the mere asking of the police and must apply its mind to the facts and circumstances of the case to be satisfied about the necessity of the search[5], it is debatable whether the provision permitting the court to issue a general search warrant without specifying the place or locality is a reasonable restriction.

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[1] For the meaning of 'public order' see Para 2.164 supra

[2] *Bangladesh v. H.M. Ershad*, 52 DLR (AD) 162

[3] AIR 1963 SC 1295

[4] *People's Union for Civil Liberties v. India*, AIR 1997 SC 568

[5] *Hoshide v. Crown*, 44 CWN 82; *Pagla Baba v. State*, AIR 1957 Or 130

2.218A In *Amanullah v. Bangladesh*[1] the validity of s.117 of the Income Tax Ordinance, 1984 was challenged. The provision authorised specified income tax officer to issue order for search and seizure by a subordinate officer, if on information received, he has reason to believe that a person notified to produce documents would not produce it or any person has undisclosed valuable articles which represent wholly or partly his income. The corresponding provision in the previous Act made the provision of s.165 of the Code of Criminal Procedure applicable, which meant that the officer passing the order was not only to be satisfied, but was also required to record the reasons for his satisfaction. But there is no such requirement in the Ordinance of 1984. Two grounds were urged - (1) the restriction imposed on the right of privacy has no nexus with security of State, public order, public morality or public health and (2) the restriction imposed is unreasonable in that there is no safeguard against arbitrary search and seizure. The High Court Division held that the restriction imposed has nexus with security of State and public order. It is submitted that evasion of tax has generally no nexus with security of State or with public order and on those grounds the law cannot be sustained. On the other hand, evasion of tax may reasonably be treated as a matter of public morality. The court further decided that s.117 of the Income Tax Ordinance does not contain arbitrary power as the expression 'has reason to believe' implicitly requires the officer concerned to record his reasons which offers protection against arbitrary exercise of the power.[2]

2.219 In the American jurisdiction the expression `house' has been given extended meaning to include the business premises within the protection of the Fourth Amendment.[3] The language of the Amendment permits such an extended meaning. But art.43 is specific about the security of the home and in view of the language the protection of art.43 cannot be extended to business premises. Yet, because of the provisions of art.31, the business premises of a citizen cannot be subjected to search and seizure without authorisation of law and that law must be a reasonable one. The only difference is that a law relating to the business premises will not be subject to the stricter scrutiny of art.43.

2.220 The same principle applies in respect of correspondence and

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[1] W.P. no.2930 of 1992 (Unreported)

[2] See the decision of *Pooran Mal v. Director of Inspection*, AIR 1974 SC 348

[3] *Marshall v. Barlow's Inc.*, 98 Sup. Ct. 1816 (1978); *Michigan v. Tyler*, 98 Sup Ct. 1942 (1978)

communications. No law can be made impinging on the privacy of correspondence and communications of citizens unless there is a legitimate governmental concern in the interest of matters specified in art.43. S.95 of the Code of Criminal Procedure makes provision for dealing with documents, parcels and other things in the custody of postal or telegraph authorities for the purpose of any investigation, inquiry, trial or other proceeding under the Code. In *Malone v. Metropolitan Police Commissioner*[1] Megarry VC turned down a complaint against telephone-tapping on the ground of absence of any common law right of privacy, but in Bangladesh such telephone-tapping will be unconstitutional for violation of the privacy of communication unless a law permits it on any of the grounds of restriction mentioned in art.43. The Indian Supreme Court found telephone-tapping to be a serious invasion of an individual's privacy.[2]

2.221 Now the question is whether the fruits of an illegal search and seizure can be used in evidence in any trial or inquiry. The American Supreme Court held that the Fourth Amendment barred the introduction of evidence procured through unlawful search and seizure.[3] Though the Fourth Amendment has not specifically created the bar, the reason for the holding is that the exclusionary rule is necessary to deter intentional illegality on the part of the police and the rule is extended where its benefit as a deterrent outweighs the social cost of its use.[4] Where the police made an illegal search and passed over the fruits of illegal search to the federal tax authority, the American Supreme Court refused to apply the exclusionary rule in the tax proceedings as in its view the tax authority having not made the search, there was no question of producing a deterrent effect in tax proceedings.[5]

2.221A In England, the courts took the contrary view that if justice is to be done at a trial relevant evidence should not be excluded. The test of admissibility is whether the evidence is relevant in the matter in issue and there is no other test. If the evidence is relevant, it is admissible and

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[1] [1979] Ch 344

[2] *People's Union for Civil Liberties v. India*, AIR 1997 SC 568

[3] *Weeks v. U.S.*, 232 US 383; *Silverthorne Lumber Co. v. U.S.*, 251 US 385; *Mapp v. Ohio*, 367 US 643

[4] *U.S. v. Ceccolini*, 98 Sup. Ct. 1054 (1978); *Franks v. Delaware*, 98 Sup. Ct. 2674 (1978)

[5] *U.S. v. Janis*, 428 US 433

the court is not concerned with how the evidence was procured.[1] In *Malkani v. Maharashtra*[2] the Indian Supreme Court relied on *Kuruma*, but from this it cannot be said that the court decided against the American exclusionary rule in respect of evidence procured in violation of art.21 inasmuch as the court, in fact, held that the tape recording obtained by the police officer did not violate art.21 as it was obtained with the consent of the party who talked on telephone. In *Pooran Mal v. Director of Inspection*[3] the court gave a clear finding in favour of rejecting the exclusionary rule. The High court Division followed the English principle without giving much thought to the considerations which weighed with the American Supreme Court in applying the exclusionary Rule.[4] It is, however, submitted that the non-application of the exclusionary rule has the effect of undermining the guarantee of treatment in accordance with law under art.31. The present performance of the police in Bangladesh demands the application of the exclusionary rule and no legitimate governmental interest can suffer by the application of the rule as the police can always obtain a search warrant from the court.

RIGHT TO ENFORCE FUNDAMENTAL RIGHTS

2.222 Art.44(1) provides that the right to move the Supreme Court for enforcement of any of the fundamental rights is itself a fundamental right. Art.44(2) enables Parliament to confer the jurisdiction to enforce

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[1] *Kuruma v. R.*, [1955] AC 197; *Herman King v. R.* [1969] AC 304; *R. v. Sang*, [1980] AC 402. S.78 of the Police and Criminal Evidence Act, 1984 provides that the court may refuse to allow evidence for the prosecution which would have an adverse effect on the fairness of the proceeding. In *R v. Khan*, [1996] 3 All E.R. 289, the police obtained certain evidence by placing surveillance device on Khan's property in violation of the right to privacy of home and correspondence as protected by art.8 of the European Convention on Human Rights and the question arose as to the admissibility of the evidence. Though, in the facts of the case, the House of Lords held the evidence admissible, it accepted that if evidence had been obtained in circumstances which involved an apparent breach of the Convention, then it is a matter which may be relevant to the exercise of the power under s.8 of the Police and Criminal Evidence Act. After Human Rights Act, 1998 has been passed, it is to be seen how the English courts treat a piece of evidence procured in violation of the right to privacy of home and correspondence.

[2] AIR 1973 SC 157

[3] AIR 1974 SC 348

[4] *Amanullah v. Bangladesh*, W.P. No.2930 of 1992 (Unreported)

fundamental rights on any other court, but such conferment cai derogation of the power of the Supreme Court under art.102(1), which means that such other court may be given concurrent, but not exclusive, power of enforcement of fundamental rights. The Supreme Court must always have the power of enforcement of fundamental rights.[1]

SAVING OF CERTAIN LAWS

2.223 Art.45 provides that no challenge on the ground of violation of fundamental rights guaranteed by Part III will be available in respect of any provision of a disciplinary law relating to the members of a disciplined force, which is a provision limited to the purpose of ensuring the proper discharge of duties by members of the disciplined force or the maintenance of discipline in that force. Art.45 saves only a law of the specified kind and not any action. Thus where a fundamental right is violated by an action, that action shall not be immune from attack.[2] But if the violation is authorised by a law of the kind mentioned in art.45 no challenge can be maintained.[3] Art.152 defines 'disciplined force' as meaning the army, navy or air force, the police force and any other force declared by law to be a disciplined force. Applying the principle of *ejusdem generis* 'any other force' must mean a force similar to those which have been specifically mentioned and for the application of art.45 Parliament may declare any force engaged in the defence of the country or maintenance of law and order within the country as a disciplined force. Art.152 further defines 'disciplinary law' as being a law regulating the discipline of any disciplined force. In order to attract the provision of art.45 the law must be one which seeks to regulate the discipline of the disciplined force and only those provisions of such disciplinary law will be immune from challenge as are limited to the purpose of ensuring the proper discharge of duties of the members of the disciplined force and the maintenance of discipline in that force.

2.224 In view of the provisions of art.46 violation of fundamental rights cannot be urged in respect of any law that may be passed by Parliament making provisions to indemnify any person in the service of the Republic or any other person in respect of any act done by him in

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[1] For further discussion see Para 5.18 - 5.27

[2] *Major Gen. Moinul Hossain Chowdhury v. Bangladesh*, 50 DLR 370; see *Col. Md. Hasmat Ali v.Bangladesh*, 47 DLR (AD) 1

[3] *New Ideal Engineering Works v. Bangladesh Shilpa Bank*, 42 DLR (AD) 221

connection with the national liberation struggle or the maintenance or restoration of order in any area in Bangladesh or to validate any sentence passed, punishment inflicted, forfeiture ordered, or other act done in such area.

2.225 Art.47(1) creates further immunity from challenge on the ground of violation of fundamental rights in respect of any law making provisions regarding matters specified in art.47(1) if Parliament expressly declares in the law that the provisions are made to give effect to any of the fundamental principles of State policy set out in Part II. Any law in existence before the commencement of the Constitution may also be made immune from challenge if Parliament by amendment makes such a declaration in the existing law. The framers of the Constitution made this provision with the intent to protect welfare measures in furtherance of the fundamental principles of State policy and provided that the declaration of Parliament in the law will create the immunity. As these principles of State policy are a guide to interpretation of the Constitution, they are to be kept in view while interpreting the provisions relating to the fundamental rights.[1] In case of any conflict between these principles and the fundamental rights, the court will try for a harmonious interpretation so as to give effect to both, but if that is not possible, these principles cannot override the fundamental rights[2] except where a law comes within the purview of art.47(1).

2.226 Now the question arises whether the immunity from challenge on the ground of violation of fundamental rights will be available from the parliamentary declaration if *ex facie* there is no nexus between the law and any of the fundamental principles of State policy or, in other words, whether the court can go behind the parliamentary declaration. The court in not giving effect to the declaration will be interfering in a matter which has been left to Parliament to decide, but at the same time ignoring the want of nexus will permit violation of the terms of the Constitution. It can be seen that the corresponding article in the Indian Constitution[3] provided that such a parliamentary declaration shall not be called in question in any court on the ground that the law does not give effect to State policies. The Indian Supreme Court found this provision

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[1] *ABSK Sangh v. India*, AIR 1981 SC 298
[2] *Hanif Qureshi v. of Bihar*, AIR 1958 SC 731
[3] Art.31A

invalid.[1] But art.47(1) does not contain any such provision. Having regard to the fact that there is no express ouster of the jurisdiction of the court and that the Supreme Court has the duty to see that the mandate of art.7 is not violated, the better view will be that the court will be loath to interfere, and will refuse to give effect to the declaration only if, after taking a liberal view in favour of the parliamentary declaration, the law is found to have no nexus with any of the fundamental principles of State policy.

2.227 Art.47(2) provides that the laws mentioned in the First Schedule and the amendments of such laws shall be immune from challenge on the ground of inconsistency with any provision of the Constitution. As such, no provision of any law specified in the First Schedule including the amended provisions of such laws can be declared void by the court because of inconsistency with any provision of Part III of the Constitution.[2] The proviso to art.47(2) originally provided that nothing in art.47(2) will prevent modification or repeal of those laws, but any Bill for modification or repeal which had the effect of divesting the State of any property or of enhancing any compensation should not be presented to the President for assent unless the Bill had been passed by the votes of not less than two-thirds of the total number of members of Parliament. But this proviso has been substituted by a proviso reading 'Provided that nothing in this article shall prevent any amendment, modification or repeal of any such law'.[3]

EFFECT OF VIOLATION OF FUNDAMENTAL RIGHTS

2.228 Art.26(1) provides that all existing law inconsistent with the provisions of Part III shall, to the extent of inconsistency, become void on the commencement of the Constitution, while art.26(2) provides that the State shall not make any law inconsistent with any provisions of Part III, and any law so made shall, to the extent of inconsistency, be void. Questions arise as to whether a law inconsistent with the provisions of

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[1] *Kesavananda Bharati v. Kerala*, AIR 1973 SC 1461; *Minerva Mills v. India*, AIR 1981 SC 1789

[2] see *Bangladesh v. Haji Abdul Gani*, 32 DLR (AD) 233; *New Ideal Engineering v. BSB*, 42 DLR (AD) 221; *Bangladesh Bank v. Abdul Mannan*, 46 DLR (AD) 1; *Mokarram Hossain v. Secretary, Ministry of Cabinet Affairs*, 31 DLR (AD) 64 (requirement of art.135(2) need not be fulfilled for dismissal under P.O. 67 of 1972)

[3] Validity of the amendment is open to question

Part III becomes void *ab initio* or simply unenforceable and whether the effect of inconsistency is the same in respect of the pre-constitution and post-constitution laws.

2.229 The American Constitution does not contain any provision similar to art.7 or art.26 of the Constitution. Applying the general principles of constitutional law[1] the American Supreme Court held early that an unconstitutional law is in reality no law and is wholly void; it imposes no duties and creates no rights and it confers no power or authority and justifies no act performed under it[2]. But an all-inclusive statement of a principle of absolute retroactive invalidity was later found to be not justified.[3] It was held that an unconstitutional statute is not necessarily a nullity; it may have consequences binding upon people.[4] Proceeding on the principle that a statute declared unconstitutional is void in the sense that it is inoperative or unenforceable and remains in a dormant state or hibernation, it was held by the federal Court of Appeal that a statute once declared unconstitutional and later held to be constitutional does not require re-enactment to restore its operative force.[5]

2.230 The Indian Constitution contains art.13 which is similar to art.26 of the Constitution. So far as the pre-constitutional laws are concerned, the Indian Supreme Court held that the provisions relating to fundamental rights are not retrospective in operation on the commencement of the Constitution[6], and any pre-constitution law, to the extent of inconsistency with fundamental rights, is void in the sense that it is unenforceable; when it was passed it was valid and with the commencement of the constitution its operation is eclipsed by the provisions of the constitution[7]. If the constitution is so amended as to remove the inconsistency, the law becomes operative without re-enactment.[8] But the law remains valid all the time as against those who

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[1] *Marbury v. Madison*, 2 L. Ed. 60

[2] *Ex parte Royall*, 117 US 241; *Norton v. Shelby County*, 118 US 425; *Chicago I & L.R. Co. v. Hackett*, 228 US 559; *Osborne v. President, Director & Co. of Bank*, 22 US 738

[3] *Chicot County Drainage District v. Baxter State Bank*, 308 US 371

[4] *Poulos v. New Hampshire*, 345 US 395

[5] *Jamish v. Morlet*, 86 A 2d. 96

[6] *Keshavan v. Bombay*, AIR 1951 SC 128; *Pannalal v. India*, AIR 1957 SC 397

[7] *Keshavan v. Bombay*, AIR 1951 SC 128; *Behram v. Bombay*, AIR 1955 SC 123

[8] *Deepchand v. U.P.*, AIR 1959 SC 648; *Mahendra v. U.P.*, AIR 1963 SC 1019

are not entitled to fundamental rights.[1] So far as post-constitutional law, the Indian Supreme Court held the view that such a law is void *ab initio*[2] and anything done under the unconstitutional law, whether closed, completed or inchoate, will be wholly illegal[3]; such a law is not revived by any subsequent event[4]. The court seems to have shifted from this position in *Gujarat v. Shri Ambica Mills*[5] wherein it took the view that where fundamental rights have been conferred only on some persons, natural or juristic, a pre-constitution or post-constitution law contravening those rights is void qua those persons on whom the rights have been conferred, but is valid qua other persons on whom those rights have not been conferred and it cannot be said that such a law is still-born or *non est*; the doctrine of eclipse equally applies to pre-constitution and post-constitution laws which violate rights conferred only on some persons.

2.231 The Pakistan Constitution of 1956 contained provisions similar to art.26 of the Constitution. In *East Pakistan v. Mehdi Ali Khan*[6] the Pakistan Supreme Court was dealing with a pre-constitution law and following the line adopted by the American Supreme Court made a distinction between the legislature's inherent lack of power to enact a law in which case the law is void *ab initio* and a limitation put on the power of a competent legislature which renders the law void only to the extent of inconsistency in the sense that it cannot be applied to a particular case. Art.6 of the Pakistan Constitution of 1962 contained a similar provision. In *Abul A'la Moudoodi v. West Pakistan*[7] an observation was made making a distinction between pre-constitution and post-constitution laws stating that contravention of fundamental rights would render a post-constitutional law void *ab initio*. In *Ful Chand Das*

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[1] *Keshavan v. Bombay*, AIR 1951 SC 128; *Behram v. Bombay*, AIR 1955 SC 123

[2] *Deepchand v. U.P.*, AIR 1959 SC 648; *Mahendra v. U.P.*, AIR 1963 SC 1019

[3] *Keshavan v. Bombay*, AIR 1951 SC 128

[4] *M.P. v. Bharat Singh*, AIR 1967 SC 1170

[5] AIR 1974 SC 1300

[6] 11 DLR (SC) 319

[7] 17 DLR (SC) 209, per Hamoodur Rahman J, "In case of a law made after the declaration of fundamental rights the Constitution has placed a complete bar on the power of the Legislature to make any law which takes away or abridges any right conferred by the constitution itself. Such law, if made in contravention of clause (2) of Article 6, is to be void ab initio but in case of an existing law, clause (1) of the said Article, it appears, makes a distinction."(Para 185)

v. Md. Hammad[1] the Appellate Division took the view that a post-constitution law coming within the mischief of art.6(2) of the Pakistan Constitution of 1962 was void *ab initio*.

2.232 Under art.26(1) a pre-constitution law inconsistent with any provision of Part III will be inoperative and unenforceable and it may be operative again if the particular provision of the Constitution with which it is inconsistent is amended so as to remove the inconsistency. But under art.26(2) a post-constitution law will be void *ab initio* for lack of competence of Parliament to the extent of inconsistency with any provision of Part III. Thus if any law is violative of any fundamental right which is available for the citizens only, the law will be invalid qua the citizens, but not qua the non-citizens. On the other hand, if any law is found inconsistent with any provision of the Constitution other than Part III, the law will be void *ab initio* whether it be pre-constitution or post-constitution law.

2.233 Like other laws, the provisions of the Constitution cannot be interpreted to give them retrospective effect unless those are expressly or by necessary implication made retrospective in operation. The provisions of Part III have not been given any retrospectivity. The effect of inconsistency stated in art.26 does not automatically attach unless the court declares a law to be inconsistent with the provisions of Part III. But once the declaration is given, the law to the extent of inconsistency becomes inoperative and unenforceable from the commencement of the Constitution in case of pre-constitution laws and from the date of enactment in case of post-constitution laws. A post-constitution law enacted during an emergency when enforcement of fundamental rights remain suspended, remains enforceable till fundamental rights are restored or the emergency lifted.

2.234 As the provisions of Part III are not retrospective in operation[2], art.26 does not affect the transactions past and closed or enforcement of liabilities and rights incurred or accrued under the inconsistent law before the commencement of the Constitution[3]. Any action taken under any law prior to the commencement of the Constitution cannot be challenged after the commencement of the Constitution on the ground of

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[1] 34 DLR (AD) 361 (per R. Islam J)

[2] *Rajendraswami v. HRE, Commission of HRCE*, AIR 1965 SC 502; *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209

[3] *Keshavan v. Bombay*, AIR 1951 SC 128; *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209

violation of fundamental rights.[1] But an unconstitutional procedure prescribed by a pre-constitution law cannot be followed in respect of any proceeding pending at the commencement of the Constitution or in respect of a new proceeding instituted with regard to a pre-constitution right or liability as there is no vested right or liability in respect of procedure in the absence of any provision to the contrary.[2] However, if the proceedings had been completed or become final before the commencement of the Constitution, nothing in Part III can operate retrospectively to affect those proceedings.[3] The validity of that part of the proceeding which had taken place under the inconsistent law prior to the commencement of the constitution cannot be questioned.[4] Yet where an executive action is sought to be taken under a pre-constitution law after the commencement of the Constitution, it can be challenged without involving a challenge to the validity of the law.[5] Where though the deprivation of the right was made by a pre-constitution order and the deprivation is continued day by day, the order becomes void because of the violation of fundamental right.[6]

2.235 *Doctrine of severability* : As a law inconsistent with the fundamental rights is void to the extent of inconsistency, the doctrine of severability comes into play. When a part of a law is found invalid and the invalid part is separable from the valid part, that is, the nature or object or the structure of the law would not be changed by the omission of the invalid part, only the invalid part of the law is to be declared void leaving the rest to be operative.[7] The intention of Parliament is the determining factor in ascertaining whether the invalid part is separable from the valid part and the question is whether Parliament would have enacted the valid part without the invalid part.[8] When a valid part of the law is inextricably bound up with the part found invalid so that the valid part cannot independently survive, or upon a whole review of the matter

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[1] *Deep Chand v. U.P.*, AIR 1959 SC 648; *Mahendra v. U.P.*, AIR 1963 SC 1019
[2] *Lachman Das v. Bombay*, AIR 1952 SC 235
[3] *Abdul Khader v. Mysore*, AIR 1953 SC 355
[4] *Syed Qasim Razvi v. Hydrabad*, AIR 1953 SC 156
[5] *Zilla Parishad v. K.S. Mills*, AIR 1968 SC 98
[6] *Santi Swarup v. India*, AIR 1955 SC 624
[7] *Hinds v. The Queen*, [1976] 1 All E.R. 353; *R.M.D. Chamabaugwalla v. India*, AIR 1957 SC 628; *Laxmi Khandsari v. U.P.*, AIR 1981 SC 873
[8] *A.G. for Alberta v. A.G. for Canada*, 1947 AC 503, 518; *Chamarbaugwalla v. India*, AIR 1957 SC 628; *Harakchand v. India*, AIR 1970 SC 1453; *Kihota Hollohon v. Zachilhu*, AIR 1993 SC 412

it is seen that Parliament would not have enacted at all that which survives without enacting the part found *ultra vires*, the whole legislation is to be struck down.[1] Even when the valid parts are distinct and separate, but the valid and invalid parts form part of a single scheme intended to operate as a whole or even though the invalid part is separate and not part of a single scheme if what is left after omitting the invalid part is so thin or truncated as to be in substance different from what emerged after enactment by Parliament or if after omitting the invalid part, the valid part cannot be enforced without making alterations or modifications, the entire law must be declared void.[2] The separability of the valid and invalid provisions of a statute does not depend on whether the law is enacted in the same section or different sections; it is not the form, but the substance of the matter that is material and that has to be ascertained on an examination of the Act as a whole and of the setting of the relevant provisions therein.[3]

2.236 There may be another situation in which the doctrine of severability may come into play. A law may be found to be violative of a fundamental right and void as to its application only to a part of its subject matter or with respect to some class of persons or state of facts. The law will be held void in respect of that part of the subject matter, class of persons or the state of facts leaving the law enforceable in respect of the rest if the two parts are found severable.[4] Otherwise, the entire law is to be declared void.

2.237 *Waiver of fundamental rights* : The question arises as to whether a fundamental right can be waived. It has been held in the Indian jurisdiction that there cannot be estoppel against the Constitution and a person cannot waive any of the fundamental rights guaranteed by the Constitution as fundamental rights have been incorporated in the Constitution on grounds of public policy and pursuant to the objectives

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[1] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1, 113; *Bihar v. Kameshwar*, AIR 1952 SC 252

[2] *Chamarbaugwalla v. India*, AIR 1957 SC 628; *Sewpujanrai v. Collector of Customs*, AIR 1958 SC 845

[3] *Chamarbaugwalla v. India*, AIR 1957 SC 628

[4] Cooley - Constitutional Limitations, vol.1, p. ; 16 Am Juris 2d, Const. Law, Para 273; *Bombay v. Balsara*, AIR 1951 SC 318 (a law prohibited manufacture, marketing and sale of liquor; liquor was defined to include spirit of alcohol, wine, beer and other liquids consisting of or containing alcoholic spirit; the Court found the law invalid in respect of liquid medicinal and toilet preparations and declared the law void so far as it related to liquid medicinal and toilet preparations).

declared in the preamble.[1] The American Supreme Court holds the contrary view. A person may, however, be precluded from challenging the validity of a law under which he has received a benefit. But a fundamental right cannot be lost merely on the ground of non-exercise of it.

[1] *Basheshar Nath v. CIT*, AIR 1959 SC 149

CHAPTER THREE

THE EXECUTIVE

3.1 In the traditional tripartite model, the Constitution provides for three organs of government, the executive, the legislature and the judiciary. Though the Constitution makes a broad distribution of powers, it does not envisage separation of powers in its rigid form. The executive is responsible to Parliament and remains at the helm of affairs so long as it enjoys the confidence of the majority in Parliament. It exercises some legislative power and performs certain adjudicative functions.

3.2 The executive is composed of the President, the P rime Minister and a Council of Ministers. The executive determines the policies of the government and supervises the execution of the policies and enforcement of the laws. The actual work of execution of the policies and enforcement of the laws is done by the members of the services of the Republic.

PRESIDENT

3.3 The President is the Head of the State and of the executive government.[1] He is elected by the members of Parliament in accordance with law for a term of five years and he cannot be elected for more than two terms, whether or not the terms are consecutive.[2] Notwithstanding the expiration of his term, the President shall continue in his office until his successor enters upon office. During the term of office, the President shall not be qualified for election as a member of Parliament and if a member of Parliament is elected as President, he shall vacate his seat in Parliament on the day he enters upon office as President.[3] Before entering the office, the President has to take oath in terms of art.148.[4]

3.4 *Qualification:* To be qualified for election as President, a person must be at least 35 years of age and qualified for election as a member of

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[1] Art. 48
[2] Art. 50
[3] Art.50(4)
[4] For remuneration, privileges and other terms and conditions of the office, see Para 6.59B

Parliament and must not have been removed from the office of President by impeachment[1]. By Act no.XXVII of 1991 provisions have been made for election of the President by the members of Parliament by open ballot. The open ballot system was challenged as being undemocratic, violative of art.39 and contrary to the principles of State policy under art.11. But the contention has been rejected by the High Court Division.[2]

3.5 *Resignation and vacancy:* The President may resign his office by writing under his hand addressed to the Speaker.[3] If a vacancy occurs in the office of President or if the President is unable to discharge his functions on account of absence, illness or any other cause, the Speaker shall discharge those functions until a President is elected or until the President resumes the functions of his office.[4]

3.6 *Immunity from process of the court:* The President is not answerable in any court including the Supreme Court for anything done or omitted to be done in the exercise or purported exercise of the functions of his office. This does not mean that a citizen affected by his action cannot have any remedy; he can sue the government for appropriate relief. No civil proceeding can be initiated against the President of India for his personal acts unless a prior notice of two months is served on him. But there is no such limitation in the Constitution. During the term of his office, no criminal proceedings can be instituted against the President[5] and no process for his arrest or imprisonment can issue from any court. If there be any criminal proceeding pending against him when he entered upon the office of President, it shall be stayed.[6]

3.7 *Impeachment and removal:* Before the expiry of the term of office, the President can be removed only by impeachment in Parliament on a charge of violation of the Constitution or of grave misconduct. The notice of motion of impeachment containing the particulars of the charge signed by at least a majority of the total number of members of Parliament has to be delivered to the Speaker. If Parliament is not in session, the Speaker shall summon Parliament and the motion shall be debated between the 14th and 30th day after delivery of the notice to the

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[1] Art.48(4)
[2] *Abdus Samad Azad v. Bangladesh*, 44 DLR 354
[3] Art.50(3)
[4] Art. 54
[5] *H.M. Ershad v. State*, 43 DLR (AD) 50 (Immunity is available while in office)
[6] Art.51

Speaker. The President shall vacate his office if a resolution is passed in Parliament by votes of not less than two-thirds of the total number of members declaring that the charge has been substantiated.[1] The President has the right to appear and to be represented during the consideration of the motion. In the same process, the President may be removed from the office on the ground of physical or mental incapacity. In such a case, Parliament shall by resolution constitute a medical board for examination of the President and if the President submits to medical examination by that board, the motion shall not be put to vote until the medical board has been given an opportunity of reporting its opinion to Parliament.[2]

PRIME MINISTER, CABINET AND OTHER MINISTERS

3.8 A constitution generally provides for a Council of Ministers which is a large body consisting of the Prime Minister and all Ministers including the State Ministers and the Deputy Ministers. All important decisions are taken by a small body called Cabinet headed by the Prime Minister.[3]

3.9 The President appoints as Prime Minister the member of Parliament who appears to him to command the support of the majority of the members of Parliament[4] and he appoints such other Ministers, Ministers of State and Deputy Ministers as may be determined by the Prime Minister[5], on the advice of the Prime Minister. No one can be appointed as Minister, State Minister or Deputy Minister unless he is qualified to be elected as a member of Parliament and at least nine-tenths of their number shall have to be appointed from among the members of Parliament.[6] Before entering the office, the Prime Minister and other Ministers are to take oath in terms of art.148.[7]

3.10 The office of the Prime Minister becomes vacant if he resigns from office or ceases to be a member of Parliament, but he can continue

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[1] Art. 52
[2] Art. 53
[3] Art.55(1)
[4] Art.56(3)
[5] Art.56
[6] Art.56(2)
[7] For remuneration, privileges and other terms and conditions of the office, see Para 6.59B

until his successor enters upon office.[1] Other Ministers hold their office during the pleasure of the Prime Minister who can ask any Minister to resign and can ask the President to terminate his appointment if he fails to resign.[2] Their office shall become vacant if they resign, or, becoming Ministers as members of Parliament, cease to be members of Parliament[3], or if the Prime Minister resigns or ceases to hold the office[4]; but these events previously did not disqualify them for holding office during any period in which Parliament stood dissolved.[5] After the Thirteenth Amendment of the Constitution, once Parliament is dissolved or stands dissolved, the Prime Minister and other Ministers continue in their office till the appointment of the Chief Adviser by the President in terms of art.58C(2).[6]

POWERS AND FUNCTIONS OF THE EXECUTIVE

3.11 *The President:* The President is the constitutional head of the State and of the executive government. The office of the President is a ceremonial one like the British Sovereign.[7] The government has been structured in the British model and guidance may be had from the British constitutional conventions so far as those are not inconsistent with the Constitution and can be applied.[8]

3.12 In the form of government that we have, the President is normally vested with the executive power of the State which, in fact, is to be exercised by the Council of Ministers and the President is to act on the advice of the Ministers. But having regard to the past performance of the constitutional heads in this country, the framers of the Constitution thought it necessary to specifically provide that the executive power of

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[1] Art.57
[2] Art.58(2)
[3] Art.58(1)
[4] Art.58(4)
[5] Art.58(3)(4)
[6] See Para 3.49B
[7] This question was dealt with in several decisions of the Indian Supreme Court. See the decision of *Shamser Singh v. Punjab*, AIR 1974 SC 2192 in which the Court reaffirmed that the President is the constitutional head. The question does not arise in our country as the relation between the President and the Ministers has not been left to be determined by conventions and has been specifically spelt out in Art.48(3); see *Bangladesh v. Md. Habibur Rahman*, 31 DLR (AD) 152
[8] *U.N.R. Rao v. Indira Gandhi*, AIR 1971 SC 1002

the Republic shall be exercised by and under the authority of the Prime Minister.[1] Art.55(4) requires that all executive actions of the government shall be taken in the name of the President. The President shall by rules specify the manner in which the orders and other instruments made in his name shall be attested or authenticated and the validity of any order or instrument so attested or authenticated shall not be called in question in any court on the ground that it was not duly made or executed.[2] This, however, does not oust the jurisdiction of the court to examine the validity of such an order or instrument on any other ground. Under art.55(6) the President is to make rules for allocation and transaction of business of the government which are called the Rules of Business. These rules determine which authority is to perform what function of the government.[3] Rule 33 of the Rules of Business, 1996 provides that the Prime Minister may in any case or class of cases permit or condone a departure from these rules to the extent he deems necessary.

3.13 The term 'executive action' is wide enough to include statutory functions even if it may be of a quasi-judicial nature.[4] In *Khair Ahmed v. Ministry of Home*[5] an order extending the period of preventive detention was issued in the name of the government and the High Court Division observed, "If making and signing of a Government order do not conform with the provisions of the Constitution and the Rules of Business, then it suffers from inherent defect and cuts at the root of an executive action". It is submitted that the observation is open to question. Considering the principles evolved for determining the mandatory or directory nature of a provision[6], the mode of making and signing of a government order is to be treated as directory. The Indian Supreme Court has held that the requirement of taking action in the name of the President is directory and a substantial compliance is enough.[7] It is submitted that in *Khair*

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[1] Art.55(2); *Bangladesh v. Md. Habibur Rahman*, 31 DLR (AD) 152

[2] Art.55(5)

[3] *Bangladesh v. Hon'ble Judge*, 34 DLR (AD) 212 (Ministry of Law filed application before the Prize Court for direction to allocate and transfer Prize Fund to the Public Account of the Republic. Under the Rules of Business the Ministry of Law was not authorised and hence had no *locus standi*.)

[4] *Nageswara Rao v. APSRTC*, AIR 1959 SC 308, 326; *Dattatraya v. Bombay*, AIR 1952 SC 181

[5] 40 DLR 353 (this decision has been distinguished in *Sekendar Ali v. Bangladesh*, 42 DLR 346. The observation of the court in *Sekendar Ali* that an order of extension of the period of detention is not an executive action is questionable)

[6] see Para 1.66

[7] *Dattatraya v. Bombay*, AIR 1952 SC 181; *E.C. Barsay v. Bombay*, AIR 1961 SC

Ahmed the order stating 'By order of the Government' was a substantial compliance of the provision of the Constitution.[1] In *Saleh Ahmed Khan v. Additional Secretary*[2] another Division Bench of the High Court Division agreed with the observation in *Khair Ahmed*, but a careful reading of the decision shows that their lordships were more concerned with the competence of the person signing the order than with the form of authentication and the discussion indicates that their lordships would have upheld the order, notwithstanding the defect in the form of authentication, if it was passed by a competent person and this has been so held by the Appellate Division[3]. When an order is not authenticated in terms of art.55(4) the immunity from challenge under art.55(5) does not attach and the validity of the execution can be challenged, but evidence can be led to show that it was the decision of the government.[4] When an order is not duly authenticated and not shown to have been passed by a competent authority, the order will be bad. The ultimate question is whether the person who has signed is competent to sign under the Constitution or the Rules of Business.[5] An order of the Minister which is not expressed in the name of the President and was not communicated to the individual concerned, does not create a right in favour of the individual and may be rescinded.[6] Internal exercises of the government by way of noting in the file which have not been communicated to an individual cannot create a legal right for him.[7] Inter-ministerial communications are merely policy guidelines which do not create any legal right for enforcement by the court.[8] A letter from a Secretary of the government is not a legal instrument.[9]

3.14 In the exercise of all functions assigned to him by the Constitution or any law, the President is required to act on the advice of

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1762; *Rajsthan v. Sripal Jain*, AIR 1963 SC 1323; *Chitralekha v. Mysore*, AIR 1964 SC 1823; *U.P. v. Om Prakash Gupta*, AIR 1970 SC 679

[1] see *U.P. v. Om Prakash Gupta*, AIR 1970 SC 679

[2] 41 DLR 210

[3] See *Shahinur Alam v. Bangladesh*, 50 DLR (AD) 211

[4] *L.G. Chaudhari v. Secy., L.S.G. Deptt.*, AIR 1980 SC 383.

[5] *Bangladesh v. Md. Habibur Rahman*, 31 DLR (AD) 152; *Saleh Ahmed Khan v. Additional Secretary*, 41 DLR 210

[6] *Kedar Nath v. Punjab*, AIR 1979 SC 220; *Bachittar v. Punjab*, AIR 1963 SC 395

[7] *Bangladesh v. Dhaka Steel Works*, 45 DLR (AD) 69; *Secretary, IRD v. Nasrin Banu*, 48 DLR (AD) 171

[8] *Abul Bashar v. Bangladesh*, 50 DLR (AD) 11; *Nur Hossain v. Secy. Ministry of Land*, 52 DLR 275

[9] *Kazi Aftabuddin v. Bangladesh*, 49 DLR 42

the Prime Minister except that he shall act in his own discretion in the matter of appointment of the Prime Minister under art.56(3) and of the Chief Justice under art.95(1).[1] When a member of Parliament commands the support of the majority in Parliament, he is required to appoint such member of Parliament as the Prime Minister and call upon him to form the government and his discretion is only nominal. His discretion comes into play when no political party has a clear majority in Parliament. He is then to be satisfied as to which combination of parties can form a government and which of the persons vying for the leadership is acceptable to such parties as the Prime Minister. In the case of appointment of the Chief Justice he is expected to appoint the senior-most Judge of the Appellate Division. Only in the most exceptional circumstances he may choose to appoint any other Judge of the Appellate Division as the Chief Justice, but it is unlikely that he will exercise his discretion without consulting the Prime Minister. Art.48(3) provides that the question whether any, and if so what, advice has been tendered by the Prime Minister to the President shall not be inquired into by any court as it is politically undesirable to have a disclosure of the advice tendered. Because of this provision there can be no remedy in court if a President chooses to act without or against the advice of the Prime Minister. It is true that the possibility of impeachment for violating the Constitution will act as a deterrent, but "this fear in the world of political intrigues that are incidental to the game of power-politics, is not, after-all such an effective brake upon the designs of an irresponsible President."[2] If the government produces the papers showing the advice tendered, the court may look into such papers and can come to its findings on the basis of such papers.[3]

3.15 The President has been given the power of pardon and reprieves under art.49.[4] The supreme command of the defence services is vested in the President and its exercise is to be regulated by law.[5] He has the power of summoning, prorogation and dissolution of Parliament on the written advice of the Prime Minister. Art.57(2) provides that if the Prime Minister ceases to retain the support of the majority of the members of Parliament, he shall either resign his office or advise the President in

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[1] Art.48(3)
[2] A.K. Brohi - Fundamental Law of Pakistan, 1958, p.109
[3] *India v. Jyoti Prakash*, AIR 1971 SC 1093
[4] See Para 3.45-3.49
[5] Art.61

writing to dissolve Parliament, and if he is so advised the President shall, if he is satisfied that no other member of Parliament commands the support of the majority of the members of Parliament, dissolve Parliament. The Prime Minister can only resign or advise dissolution of Parliament. He cannot do both at the same time. In view of the fact that art.48(3) makes only two exceptions when the President can exercise his own discretion, it may be urged that in exercise of the power of dissolution of Parliament on the advice of the Prime Minister who ceases to retain support of the majority in Parliament, the President is bound by the advice of the Prime Minister. But such a contention, if accepted, would render the expression "if he is satisfied that no other member of Parliament commands the support of the majority of the members of Parliament" in art.57(2) totally nugatory and surplusage. The President has a discretion when the Prime Minister ceases to retain the support of the majority members of Parliament and instead of resigning, advises the President to dissolve Parliament. The President will act on the advice of the Prime Minister only if he is satisfied that no other member of Parliament can command the support of the majority members of Parliament, but if he is satisfied that some other member of Parliament can command the necessary support, he will appoint that member as the Prime Minister instead of dissolving Parliament. It may be a very embarrassing situation if, after the decision of the President not to dissolve Parliament, no one is able to form the government. The President is not expected to ignore the advice of the Prime Minister for dissolution of Parliament unless the situation clearly demonstrates that some other member of Parliament is capable of forming the government with the support of the majority members of Parliament.[1]

3.16 In the matter of summoning and prorogation of Parliament, it is mandatory that not more than sixty days should pass between the last day of a session and the first day of the next session. The President may address Parliament and may send message thereto. At the commencement of the first session after a general election and at the commencement of the first session of each year he shall address Parliament and Parliament shall discuss the matters referred to in the address.[2] No Money Bill nor any Bill involving expenditure from public

[1] An interesting discussion on the convention relating to dissolution of legislature by the constitutional head can be found in Brohi's Fundamental Law of Pakistan, 1958, at pp.123-136.

[2] Art.73

fund can be introduced in Parliament without the recommendation of the President. When Parliament stands dissolved or when it is not in session, the President may promulgate Ordinance if he is satisfied that immediate action is necessary.[1] The President may proclaim emergency in the whole or part of Bangladesh with prior counter signature of the Prime Minister in the Proclamation of Emergency[2] which will have the effect of suspending some fundamental rights.[3] And with the written advice of the Prime Minister he can suspend enforcement of other fundamental rights.[4] The President has the power of appointing the Judges of the Supreme Court, Attorney General, Chief Election Commissioner and other Election Commissioners, Comptroller and Auditor General, Chairman and members of the Public Service Commission and judicial officers and magistrates exercising judicial functions. All these functions are to be discharged with the advice of the Prime Minister.

3.17 The President is entitled to be informed by the Prime Minister on matters of domestic and foreign policy. He may request the Prime Minister to submit any matter for consideration of the Cabinet.[5] On paper this may not appear to be a power at all, but it has considerable importance. A man of high stature, integrity and experience holding the office of the President can exert great influence on the executive government by way of advice and counselling and play a great role in building a bridge between the government and the opposition.[6]

3.17A A question arises whether in case of extreme necessity the President has any power beyond what is apparent from the provisions of the Constitution. In 1996 the non-cooperation movement of the opposition parties brought the society to a standstill to the immense suffering of the people. As the political parties could not come to terms, the question arose whether the President has any discretionary or residuary power to save the situation. Reference was made to the discretionary or residuary power of the Indian President. In the Indian Constitution the areas of discretion have not been spelt out and having regard to the British convention and the oath taken by the Indian President to preserve, protect and defend the constitution, the Indian

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[1] Art.93
[2] Art.141A
[3] Art.141B
[4] Art.141C
[5] Art.48(5)
[6] Seervai - Constitutional Law of India, 3rd ed., p.1732

Supreme Court implied certain discretionary powers of the President of India.[1] But the areas of discretion have been specified in art.48(3) of the Constitution. From the language of art.57(2) another area of discretion can be found out. At the same time the President has taken mandatory oath in terms of art.148 to preserve, protect and defend the Constitution which is not just a matter of formality or rituals. The oath creates an obligation or duty for the President to act to preserve, protect and defend the Constitution. In spelling out the nature of the duty involved in the oath it must be kept in mind that in view of the past performance of the titular Heads in this country, the framers of the Constitution made a departure from the usual constitutional provisions and conventions in providing in art.55(2) that all executive power of the Republic shall be exercised by or under the authority of the Prime Minister and it can be argued that the framers did not intend to give any further discretionary powers to the President other than those which are expressed and those which may be apparent from the express language of the Constitution. At the same time it cannot be said that the framers did not intend to concede any discretionary power which in a given situation must be exercised by the President to save the country or the Constitution from destruction. The President having the duty to preserve, protect and defend the Constitution, it is difficult to deny him the necessary authority in discharging the duty of preserving, protecting and defending the Constitution. In the context of history and the provisions of the Constitution, the area of implied discretionary power of the President is narrower than such power of the Indian President. The oath taken by the President in terms of art.148 obliges him to see that the Constitution is preserved and protected. Thus he will not be bound to act on an advice of the Prime Minister if such advice is *ex facie* unconstitutional. For example, if the Prime Minister loses the confidence of the majority in Parliament, but to perpetuate in the office refuses to advise the President to summon Parliament even after expiry of sixty days from the date of prorogation of Parliament, the President has the discretionary power, nay the constitutional duty, to ask the Prime Minister to give the written advice for summoning Parliament as required by art.72 and if the Prime Minister refuses so to advise the President, to summon Parliament without the advice of the Prime Minister. It is the very necessity of continuity of the Constitution and the democracy that the President should be conceded the authority to summon Parliament without the

[1] *Shamser Singh v. Punjab*, AIR 1974 SC 2192

advice of the Prime Minister.[1] The President cannot promulgate any Ordinance without being advised in this behalf by the Prime Minister. But situation may arise where promulgation of an Ordinance becomes a necessity for the preservation of the Constitution or the continuity of the constitutional process. The President may promulgate such Ordinance without being so advised by the Prime Minister and the doctrine of necessity will render such Ordinance valid.[2]

3.18 *The Prime Minister:* In the parliamentary form of government adopted by the Constitution, the Prime Minister occupies the central position. He is the leader of the majority party in Parliament as well as the leader in the Cabinet and the Council of Ministers. He is the mouthpiece and the real chief executive of the government. He co-ordinates the government policies. He is the channel of communication between the President and the Ministers. The Ministers hold office during the pleasure of the Prime Minister who can ask any Minister to resign so long as it does not affect his support and leadership in the party. But this power may not be so extensive as it appears on paper. The policies adopted by the Prime Minister, particularly with respect to appointment and termination of appointment of influential Ministers may destroy his support in the party and as such he is to act adroitly so as not to wither away the confidence of the party members in him. The Prime Minister is the principal spokesman of the Cabinet and its defender in Parliament. His resignation automatically terminates the appointment of other Ministers. He may also advise dissolution of Parliament and in most cases dissolution will follow. The entire constitutional machinery revolves round him and he wields great power, influence and prestige.

3.19 The Prime Minister, though the repository of all executive power of the Republic, cannot afford to be an autocrat. There are inherent limitations on his power. He cannot act without the aid of his colleagues in the Cabinet and Council of Ministers and to a great extent he has to depend on them and he has to take responsibility for their acts. If he disregards the views of his colleagues without demonstrably valid reasons, discontent is bound to follow not only affecting the efficiency of the government, but also eroding the confidence and support of the party and he may be dislodged from the party leadership which will

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[1] see *Reference by Governor General*, 7 DLR (FC) 295 (The Federal Court of Pakistan held that the Governor General could dissolve the Constituent Assembly in 1955 as it failed to give a constitution and turned it into a perpetual legislature)

[2] See Para 1.96

compel him to tender resignation. Even though the Constitution places the Prime Minister in a position of great power and influence, there will always be a question as to how far his colleagues in the Cabinet will be dependent on him and how far he will have to lean on his colleagues. An answer to the question will to a great extent depend on his personality and his position in the party. So long as he can manage a majority in the parliamentary party and thus ensure his party leadership, he remains the undisputed master of the situation. "Given a solid party backing and confidence among party leaders, a Prime Minister wields an authority that a Roman Emperor might envy as a modern dictator strive in vain to emulate".[1]

3.20 *The Cabinet:* The Cabinet is the ultimate policy and decision making organ of the executive government of which the Prime Minster is the head. All members of the Council of Ministers are not members of the Cabinet. Generally full-fledged Ministers are included in the Cabinet. A Minister of State or a Deputy Minister may attend the Cabinet meeting when matters pertaining to his department are going to be discussed. The Cabinet decides the major questions of policy and its decisions are binding on all Ministers. The various departments carry out the Cabinet decisions by administering the law and devising measures for enactment of laws in Parliament. A Minister may himself dispose of routine matters without reference to the Cabinet, but in all matters of major policy or of great political importance, he is to seek the guidance from the Cabinet. The Cabinet is thus in full control over the direction of public affairs in the country and is instrumental in formulating the policy of the administration, piloting legislation in Parliament and co-ordinating and supervising all administrative actions. As the Cabinet is composed of the leading members of the majority party in Parliament, the Cabinet virtually controls Parliament and the Cabinet really runs the show in the executive and legislative branches provided it enjoys the support and confidence of the majority party in Parliament.

COLLECTIVE AND INDIVIDUAL RESPONSIBILITY OF MINISTERS

3.21 The principle of collective responsibility of the Cabinet is the essence of responsible government and is fundamental to the working

[1] Sir Ivor Jennings - Cabinet Government, 1951, p.183

of a parliamentary form of government. The principle developed in England as a constitutional convention. But art.55(3) specifically lays down that the Cabinet shall be collectively responsible to Parliament. It means that the Cabinet as a body is responsible to Parliament for the general conduct of the affairs of the government. All Ministers shall stand or fall together and the government is carried on as a unity. The Ministers work as a team, the decision of the Cabinet is the joint decision of all Ministers and the Cabinet commands confidence of Parliament as a body. Inside the Cabinet, the Ministers may express their individual views freely, but once the decision is taken, all the Ministers are to support it and it is absurd for a Minister to oppose it or give an impression that he did not agree to it. It is his duty to stand by it and support it both within and outside Parliament. He cannot disown responsibility for any cabinet decision so long as he remains a Minister. If a Minister is morally convinced that a decision taken is absolutely wrong and he cannot support it, he has only the option of tendering resignation. If Parliament passes a vote of no-confidence, the Prime Minister has to resign and with him the entire Council of Minsters falls.

3.22 The collective responsibility of the Cabinet does not mean that every Minister must take part in the formulation of policies or that he should be present in the Cabinet meeting where the decision is taken. It ensures that the Cabinet presents a united front in Parliament. In addition to the oath of office to faithfully discharge the duties of the office and to preserve, protect and defend the Constitution[1] every Minister including the Prime Minister is to take oath of secrecy swearing that he will not directly or indirectly communicate or reveal to any person any matter which shall be brought under his consideration or shall become known to him as Minister except as may be required for the due discharge of his duties as Minister[2]. As a result, the deliberations in the Cabinet meeting are kept secret and confidential. The consequence of this secrecy is far-reaching. It enables the Cabinet to preserve the united front and at the same time it enables the Ministers to express their views freely during the deliberations.

3.23 Together with the collective responsibility of the Cabinet goes the individual responsibility of each Minister to Parliament. An individual Minister is responsible to Parliament for every action taken or omitted to be taken in his Ministry, but this again is a political

[1] Art.148 and the Third Schedule
[2] Ibid

responsibility and not his personal responsibility.[1] This individual responsibility of a Minister is exemplified in the resignation tendered by Lal Bahadur Shastri as the Minister of Railways in India following a serious railway accident. When an individual Minister is criticised in Parliament, the principle of collective responsibility requires that the Cabinet comes to his rescue and defend his action. But this is not an absolute rule. A Minister does take approval of the Cabinet on important matters, but in many cases he acts on his own. When the act criticised has been done with the approval of the Cabinet, the principle of collective responsibility is attracted and he can claim to be defended by the Cabinet. In other cases, it depends upon the exigencies of the situation. On occasions, the Cabinet may feel bound to defend him, but sometimes the Cabinet decides to withdraw support, in which case the Minister has to resign as happened with Krisna Menon, the Defence Minister of India, after the debacle of the Indian Military Forces in Sino-Indian War of 1962.

3.24 There is an important convention in England that a Minister is responsible for the acts of the civil servants of his Ministry even though the Minister cannot attend to every business in his Ministry and has to leave the execution of the policies and programmes with the civil servants after laying down the principles and programmes himself. This convention is applicable in our country as without such responsibility of the Minister Parliament cannot effectively perform its role as the critic of the executive government. "The principle of vicarious liability is in the highest traditions of parliamentary government, but in modern administration it is becoming more and more difficult to observe it in practice. Because of the vast expansion of administrative responsibilities of each Minister, chances of error of his subordinates have very much increased and it cannot, therefore, be asserted that the Minister must resign for every lapse of his subordinates. The limits of this responsibility are hard to define."[2]

RELATIONSHIP BETWEEN EXECUTIVE AND PARLIAMENT

3.25 In a presidential form of government the executive and the legislature are independent and distinct organs of the government and rigid separation of powers is the theme of that form of government. In

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[1] *A. Sanjeevi v. Madras*, AIR 1970 SC 1102

[2] M.P. Jain - Indian Constitutional Law, 4th ed., p.106

the absence of necessary political culture, the system operated in the U.S.A. cannot be smoothly run in any other country. Even in the U.S.A. serious confrontation takes place when the President is elected from one party and another party holds the majority in Congress. But in a parliamentary form of government no such confrontation can be envisaged.

3.26 The Constitution requires that at least nine-tenths of the number of members of the Council of Ministers must be from among the members of Parliament. And of course the Prime Minister and other Ministers are the leaders of the majority party in Parliament. This helps co-operation between the executive and Parliament. The Prime Minister and other Ministers can stay in office for so long as they enjoy the support of the majority members of Parliament. Parliament may call on the Ministers to account for the executive actions, keep watch on the executive actions, elicit important information on matters of public importance and through debate may influence the policy-making process. Defeat of the Ministry in Parliament on a major question of policy is counted as an expression of want of confidence which leads to the resignation of the Ministry. The Rules of Procedure of Parliament provide for moving a motion of no-confidence which, if passed, results in the fall of the government. The opportunities of Parliament to oversee the executive actions are many. Though the executive has the power of summoning, prorogation and dissolution of Parliament, a period exceeding sixty days cannot pass between the end of a session and the first sitting of the next session of Parliament.[1] Bills for legislation must be presented before Parliament. Taxation and appropriations are not authorised without an Act of Parliament. Annual budgets are to be placed before and demands for grants must be made to Parliament. All these offer innumerable opportunities to Parliament to discuss, question, criticise and debate the governmental policies, the conduct of the administration and the execution of laws. No money can be spent without an Appropriation Act and Parliament is empowered to fix the emoluments, allowances and privileges of the President, Prime Minister and other Ministers. This gives Parliament an opportunity to control the executive. The members of Parliament are the direct representatives of the people and by making the executive responsible to Parliament responsibility of the executive to the people is maintained.

3.27 The above discussion may lead the reader to believe that the

[1] Art.72(2)

executive is subservient to Parliament. But this is not the complete picture. The Prime Minister is not only the head of the Cabinet, he is also the leader of the House. On his hand lies the power of dissolution of Parliament and unless the situation is very serious the members of Parliament will not elect to push the Prime Minister to a position where he may be willing to advise dissolution of Parliament. Election is now a costly affair and the members of Parliament do not usually want to face it before the expiry of the normal term. The help of the party is necessary to contest in the election and the members must have good relationship with the leaders of the party who are often the members of the Cabinet. The executive may require reconsideration of a legislation passed by Parliament. Practically all legislations are sponsored by the executive. No Money Bill or Bill for expenditure from public accounts can be presented before Parliament without the recommendation of the executive. The power of dissolution not only brings about cohesion and discipline within the party in power, but also instills responsibility in the political opponents who cannot create a crisis on every issue by defeating the Ministry as they know that the Ministry may appeal to the electorate and seek a verdict. The political opponents will have less favourable response from the electorate if they cause a fall of the government on issues with which the electorate has no sympathy. The result is that while Parliament is supreme in the sense that it can make and unmake a Ministry, a Ministry once in power tends to lead and control Parliament provided it continues in the process to enjoy the support of the majority members in Parliament. Art.70 of the Constitution, which prohibits floor crossing and compels the members of the majority party on pains of losing membership of Parliament to vote according to the direction given by the leader of the party, further strengthens the position of the Ministry of the majority party in Parliament. Mutual controls and checks between the executive and Parliament generate mutual interdependence and co-operation with the prospect of smooth running of the affairs of the government

EXECUTIVE POWER

3.28 Art.55(2) declares that the executive power of the Republic shall, in accordance with the Constitution, be exercised by or under the authority of the Prime Minister. The Constitution does not define or enumerate the executive power or function. "Executive functions are incapable of comprehensive definition, for they are merely the residue

of functions of government after legislative and judicial functions have been taken away. They may, however, be said to entail the formulation or application of general policy in relation to particular situation or cases, or the making or execution of individual discretionary decisions."[1] They include the execution of law and policy, the maintenance of public order, the management of State property and nationalised industries and services, the direction of foreign policy, the conduct of military operations, and the provision or supervision of such services as education, public health, transport and national insurance[2] and other welfare measures.

3.29 In the exercise of its functions, the executive cannot ignore the provisions of the Constitution and its actions must not contravene the constitutional provisions.[3] It cannot spend money from the Consolidated Fund without an Appropriation Act passed by Parliament[4] nor can it encroach upon any sphere assigned to other instrumentalities like Parliament or judiciary. If there is a law in respect of any particular matter, the executive must conform to the law and cannot act against the statute or exceed its statutory powers. But the question arises whether the executive can do all that is not prohibited by the Constitution and law or the executive can do only what is permitted by the Constitution and the law. Stated in another way, the question is whether the executive has inherent power to act without the backing of a law passed by the legislature.

3.30 In the American jurisdiction, one Terry, a dissatisfied litigant, threatened to kill Field J. The Attorney General assigned Neagle, a federal marshal, to act as Field's bodyguard. When Terry attacked Filed J in a rail station, he was shot dead by Neagle. Neagle was prosecuted for murder. The case came up before the Supreme Court on Neagle's application for *habeas corpus*. Neagle claimed to have acted on the order of a superior. But it was contended that the order of the Attorney General itself had no legal backing since it was not based on any federal law. The Supreme Court held that though there was no specific law

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[1] Halsbury's Laws of England, 4th ed., vol.8, Para 814; *Jayantilal Amritlal v. F.N. Rana*, AIR 1964 SC 648; see also *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27, 38

[2] Halsbury's Laws of England, 4th ed., vol.8, Para 814; *Jayantilal Amritlal v. F.N. Rana*, AIR 1964 SC 648

[3] *Wazir Chand v. H.P.*, AIR 1954 SC 415

[4] Art.90(3)

authorising the protection given to Field J, this did not mean that no such protection can be given and there is power inherent in the government to protect its own officials.[1] In 1894 there was a strike in Pullman Company in Chicago which led not only to stoppage of work, but also serious violence. It paralysed the railway traffic operating out of Chicago. Injunction obtained against the union leaders ordering them not to obstruct the mails and interstate commerce was of no avail and the situation went out of hand. The federal marshal then notified the federal government that an emergency had arisen and he could not cope with it. The President ordered troops into Chicago to re-establish order and restore railway operation. The Supreme Court upheld the President's power to act. If the emergency arises, the President may employ the power of the nation to enforce the rights of the public and preserve the peace.[2] The executive's inherent power to act became subject of detailed consideration by the American Supreme Court in *Youngstown Sheet & Tube co. v. Sawyer.*[3] President Truman, to head off a strike, directed seizure of the nation's steel industry. He declared that the action was necessary to ensure continued availability of steel and to avoid the adverse effects upon national defence and the economy that the steel strike would entail. His action was without any authorisation of law. The opinion of the Court was delivered by Black J and he held that the President cannot act without Congressional authority in an area where Congress can clothe him with an authority to act. Four other majority Justices held the view that the Presidential seizure was incompatible with the expressed will of Congress in that Taft-Hartley Act of 1947 contains provisions to deal with nation-wide strikes and it was open to the executive to seek the relief of injunction in accordance with the provisions of that Act. Thus in two cases, it was held that the executive has inherent power to deal with situations and in the third case the majority of the Judges can be said to have agreed at least that inherent power cannot be exercised in a field which has been covered by law and the remedy prescribed by law should be pursued.

3.31 In the Indian jurisdiction, in *Ram Jawaya Kapur v. Punjab*[4] the petitioner contended that the executive power of the State did not extend to carrying on the trade of printing, publishing and selling text books for

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[1] *In re Neagle*, 135 US 1
[2] *In re Debs*, 158 US 564
[3] 343 US 579
[4] AIR 1955 SC 549

schools, unless such trade was authorised by law. The Supreme Court rejected the contention and observed that the functions of a modern State are not confined to collection of taxes or maintenance of laws and protection of the realm from external or internal enemies; a modern State is expected to engage in all activities necessary for the promotion of social and economic welfare of the community; the executive government cannot go against the provisions of the constitution or of any law, but it does not follow from this that in order to enable the executive to function, there must be a law already in existence and that the powers of the executive are limited merely to the carrying out of these laws; specific legislation may indeed be necessary if the government requires certain powers in addition to what they possess under ordinary law in order to carry on a particular trade or business and when it is necessary to encroach upon private rights in order to enable the government to carry on their business, a specific legislation sanctioning such course would have to be passed. But by entering into competition with the citizens, the government does not infringe their rights and the government could prescribe textbooks in exercise of its executive power so long as it did not infringe the right of anyone.[1] In some other decisions also, the Indian Supreme Court held relying on *Ram Jawaya Kapur* that executive action prejudicially affecting rights of any citizen must be authorised by law.[2] When executive power was pleaded to justify an encroachment on a citizen's right, the High Court of East Pakistan emphatically stated, "Any invasion upon the right of citizens by anybody, no matter whether by a private individual or by a public official or body, must be justified with reference to some law of the country, otherwise, such invasion would be illegal."[3] Under the Constitution the same legal position emerges. The executive can take action without any authority of law provided it does not thereby encroach upon the right or liberty of an individual. To affect any citizen or any resident of Bangladesh, the executive will need a legal backing and this position has been put beyond any doubt by art.31.[4]

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[1] *Naraindas v. M.P.*, AIR 1974 SC 1232. This question cannot arise in Bangladesh as art.144 stipulates that the executive authority of the Republic shall extend to the carrying on of any trade or business.

[2] *M.P. v. Bharat Singh*, AIR 1967 SC 1170

[3] *Md. Hossain v. General Manager, E.B. Railway*, 14 DLR 874; *Ghulam Zamin v. A.B. Khandoker*, 16 DLR 486.

[4] *Md. Shoib v. Bangladesh*, 27 DLR 315; *Ragib Ali v. Bangladesh*, 34 DLR 185

ORDINANCE MAKING POWER

3.32 In order to meet emergent situations, the executive has been given power to make law for short duration by promulgating Ordinance under art.93.[1] If Parliament stands dissolved or is not in session and the President is satisfied that circumstance exists which renders immediate action necessary, he may make and promulgate an Ordinance to meet the emergent situation.[2] Two conditions must be fulfilled before an Ordinance can be promulgated - (i) Parliament stands dissolved or is not in session and (ii) the President is satisfied that an emergent situation requires making of the law. The first does not present any difficulty as it is for every body to see if Parliament stands dissolved or is not in session. The question is whether the satisfaction of the President regarding the existence of the emergent situation is justiciable. In *Bhagat Singh v. Emperor*[3] the petitioners challenged the existence of the emergent situation for validity of an Ordinance promulgated by the Governor General under s.72 of the Government of India Act, 1919. The Privy Council, in holding that the satisfaction regarding existence of emergent situation is not justiciable, observed -

> A state of emergency is something that does not permit of any exact definition. It connotes a state of matters calling for drastic action which is to be judged as such by someone. It is more than obvious that someone must be the Governor-General and he alone. Any other view would render utterly inept the whole provision. Emergency demands immediate action, and that action is prescribed to be taken by the Governor-General. It is he alone who can promulgate the Ordinance.

3.33 In *A.K. Roy v. India*[4] the question was again raised. The government raised the plea that the satisfaction of the President regarding the existence of emergency is a political question which, according to the government, is outside the pale of judicial consideration. The doctrine of political question originated in the American jurisdiction. The Indian Supreme Court considered the American system of government and the treatment given to the doctrine

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[1] Neither the British Crown nor the American President has any power to promulgate Ordinance. The President of India and Pakistan have the power.

[2] See Para 4.49E in respect of power of the President while care-taker government is operating.

[3] AIR 1931 PC 111. Same view was taken in *Emperor v. Benoarilal*, AIR 1945 PC 48, and *Lakhi Narayan Das v. Province of Bihar*, AIR 1950 FC 59.

[4] AIR 1982 SC 710

in the American jurisdiction[1] and observed-

> We see the force of the contention that the question whether the pre-conditions of the exercise of the power conferred by Art.123 are satisfied cannot be regarded as a purely political question.[2]

The reasons given by the Indian Supreme Court in rejecting the doctrine of political question are all available in our constitutional dispensation. The doctrine cannot be accepted in our jurisdiction for still another reason. Art.7 mandates that all powers in the Republic shall be exercised under and by the authority of the Constitution and thus no authority within the Republic can transgress the limits and conditions set by the Constitution. If the executive promulgates an Ordinance where on the face of it there was no necessity of taking immediate action, the Supreme Court has the power, nay the duty, to prevent the executive from overstepping the limits set by the Constitution. The American doctrine of political question cannot be imported to dissuade the court from performing its duty.[3]

3.34 After negativing the doctrine of political question, the Indian Supreme Court held-

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[1] Ibid, p.724 (The doctrine of political question was evolved in the United States of America on the basis of its Constitution which has adopted the system of rigid separation of powers, unlike ours. In fact, that is one of the principal reasons why the U.S. Supreme Court had refused to give advisory opinions ... Brennan J said that the doctrine of political question was 'essentially a function of the separation of powers'. There is also a sharp difference in the position and powers of the American President on the one hand and the President of India on the other. The President of the United States exercises executive power in his own right and is responsible not to the Congress but to the people who elect him, In India, the executive power of the Union is vested in the President of India, but he is obliged to exercise it on the aid and advice of his Council of Ministers. The President's "satisfaction" is therefore nothing but the satisfaction of his Council of Ministers in whom the real executive power resides. It must also be mentioned that in the United States itself, the doctrine of the political question has come under a cloud and has been the subject matter of adverse criticism. It is said that all that the doctrine really means is that in the exercise of the power of judicial review, the Courts must adopt a 'prudential' attitude, which requires that they should be wary of deciding upon the merit of any issue in which claims of principle as to the issue and claims of expediency as to the power and prestige of Courts are in sharp conflict. The result, more or less, is that in America the phrase "political question" has become a little more than a play of words.); see also Seervai's Constitutional Law of India, 3rd ed., 2205-2213.

[2] Ibid, p.724

[3] For further discussion on political question, see Para 5.16-5.17

> It is arguable that the 44th Constitution Amendment Act leaves no doubt that judicial review is not totally excluded in regard to the question relating to the President's satisfaction.[1]

The court, however, refused to go further into the question of justiciability of the Presidential satisfaction as the Ordinance in question was replaced by an Act of Parliament[2] and sufficient materials were not placed on record to determine whether the conditions for promulgation of the Ordinance were not fulfilled. In two subsequent decisions, the Indian Supreme Court treating the power of making Ordinance as a legislative power held that an Ordinance cannot be struck down on the ground of *mala fide* or want of application of mind in promulgating the Ordinance.[3] In *Ahsanullah v. Bangladesh*[4] the High Court Division held that the satisfaction of the President regarding the existence of the circumstance requiring immediate action cannot be questioned in court.

3.35 The satisfaction of the Governor General or Governor under the Government of India Act, 1919 or 1935 was that of the Governor-General or Governor and of no body else. But under our constitutional dispensation, the requisite satisfaction is really that of the executive government on whose advice the President has to act and there is no reason why this satisfaction like all other satisfaction of the executive should not be justiciable and why an Ordinance shall not be declared void if it becomes absolutely clear that there was no emergency or that it was promulgated *mala fide*. Unlike the President of India and the President of Pakistan, the President of Bangladesh is not a part of

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[1] Ibid (By 38th Amendment of the constitution the satisfaction was made final and conclusive, but the said provision was omitted by 44th Amendment.)

[2] Appellate Division also refrained from deciding the issue when an Ordinance in the meanwhile was replaced by an Act of Parliament. See *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319. Seervai rightly criticised the refusal of the court to decide the question of justiciability of satisfaction on the ground that the Ordinance was replaced by an Act of Parliament. He strongly argued, "The Constitution puts limitations on the President's powers ... and if the powers are transgressed, as for example, by the promulgation of an Ordinance *mala fide*, the rights of the people are affected illegally ... and it would be an abdication of judicial power to give to the Council of Ministers, in substance, immunity from illegality if it takes the form of an Ordinance." He pointed out that on many occasions the court departed from the rule of not deciding a constitutional point unless absolutely necessary. - Constitutional Law of India, 3rd ed., p.828.

[3] *Venkata Reddy v. A.P.*, AIR 1985 SC 724; *Nagaraj v. A.P.*, AIR 1985 SC 551

[4] 44 DLR 179

Parliament.[1] Parliament's power of legislation is not subject to any condition precedent, but the power of the President to promulgate Ordinance is subject to two conditions precedent and the fulfilment of a condition precedent is ordinarily justiciable.[2] It is true that a law enacted by Parliament cannot be set aside on the ground of *mala fide*; it is also true that any action taken by the executive government can be challenged on the said ground. *Mala fide* or collateral purpose cannot be urged against Parliament because Parliament having plenary power of legislation, it is only a question of competence and the issue of motive is totally irrelevant. But the power of legislation by the executive being conditional the issue of *mala fide* or collateral purpose cannot be excluded. Under our constitutional dispensation there is no reason to hold the satisfaction of the President in the matter of promulgating Ordinance non-justiciable. Every functionary under the Constitution has power limited and circumscribed and the Constitution professing rule of law cannot be construed as having conferred an absolute discretion on any functionary irrespective of the nature of the power exercised. When the framers of the Constitution wanted to impart finality to any act, they used the proper language and ousted the jurisdiction of the court[3], but no such language has been used in respect of the satisfaction of the President regarding emergency. Ordinance-making is an exercise of the legislative power. But that does not make an Ordinance an Act of Parliament. It will have the force and effect of an Act of Parliament only when it is validly made and it is the power, nay the duty, of the court, when challenged, to see that the conditions imposed by the Constitution are fulfilled. Of course, when an Ordinance is challenged on the ground of absence of emergency, the court will start with a presumption of the existence of an emergency and the person who challenges the Ordinance will have a great burden of showing the absence of emergency which is not easily discharged as the executive's assertion of the existence of emergency will be given due and proper weight. Every casual and passing challenge to the existence of the necessary circumstances cannot be entertained.[4] It is to be noted that quite a number of times allegations of abuse of the power of promulgating Ordinance have been made and in one case one Ordinance was alleged to have been ante-dated to find justification for an alleged illegal executive action of closure of the

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[1] See Para 4.2

[2] Seervai - Constitutional Law of India, 3rd ed., p.826

[3] Arts.48(3), 66(4), 78(1), 81(3)

[4] *A.K. Roy v. India*, AIR 1982 SC 710, 725

University of Dhaka.[1]

3.36 An Ordinance once made and promulgated has the force of law as an Act of Parliament. The expression 'promulgate' connotes two ideas - (i) making known of an order and (ii) the means by which it is made known must be something done openly and in public; private information will not be a promulgation.[2] Promulgation of an Ordinance means publication for the information of the public. When for the commencement of an Act of Parliament there is a requirement of publication in the official Gazette in the absence of any commencement date given in the Act[3], promulgation of an Ordinance should normally mean publication in the official Gazette as no other mode of publication is known to have been adopted in our country. Thus without such publication an Ordinance cannot have the force of law.[4]

3.37 The proviso to art.93(1) provides that an Ordinance cannot make any provision which cannot be made by an Act of Parliament or, in other words, an Ordinance cannot make a provision which Parliament is not competent to enact.[5] By logical conversion it means that an Ordinance can make any provision which Parliament can make under its plenary legislative power and thus, subject to the fulfilment of the conditions mentioned in art.93, the power of making Ordinance is co-extensive with the power of Parliament to make laws.[6] As an Ordinance once made has the like force of law as an Act of Parliament, tax can be levied and collected by or under the authority of an Ordinance even though art.83 of the Constitution permits levy or collection of tax only by or under the authority of an Act of Parliament.[7] An Ordinance cannot also be made altering or repealing any provision of the Constitution or for continuing in force any provision of an Ordinance earlier made.[8] An Ordinance can be challenged on any ground an Act of Parliament can be challenged.

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[1] Writ Petition no. 2273 of 1990, *Dr. Anwar Hossain v. Bangladesh*. The High Court Division issued Rule, but the Rule became infructuous as with the fall of Ershad Government the Ordinance lapsed with the efflux of time.

[2] *State v. Tugla*, AIR 1955 All 423; *Nandalal v. State*, AIR 1968 Cal 523.

[3] S.5 of the General Clauses Act, 1897

[4] See *Harla v. Rajasthan*, AIR 1951 SC 467

[5] *Garg v. India*, AIR 1981 SC 2138

[6] Ibid; *Sat Pal & Co. v. Lt. Governor*, AIR 1979 SC 1950

[7] *Sat Pal & Co. v. Lt. Governor*, AIR 1979 SC 1950; *Garg v. India*, AIR 1981 SC 2138

[8] Art.93(1) Proviso

3.38 An Ordinance authorising expenditure from the Consolidated Fund can be made only when Parliament stands dissolved. Such an Ordinance shall have to be placed before Parliament as soon as may be and the provisions of arts. 87, 89 and 90 shall, with necessary adaptation, have to be complied with within 30 days of the reconstitution of Parliament.[1] All Ordinances other than the one authorising expenditure from Consolidated Fund shall have to be laid before Parliament at its first meeting following the promulgation of the Ordinances and, unless earlier repealed, shall cease to have effect at the expiration of 30 days after it is so laid, or if a resolution disapproving the Ordinance is passed by Parliament before such expiration, upon passing of such resolution.[2] The constitutional scheme of art.93 shows that if an Ordinance is intended to be continued it must be placed before Parliament for approval. Hence in such a case the executive government cannot resort to a device of not placing the Ordinance before Parliament and re-promulgating it when Parliament is prorogued. This will simply be a case of fraud on the Constitution.[3] But re-promulgation of the Ordinance may not be open to attack where due to shortage of time or because of too much legislative business in the particular session a Bill containing the same provisions as in the Ordinance could not be introduced and pushed through in Parliament.[4] Instead of placing the Ordinance before Parliament, the President may repeal an Ordinance. The expression 'cease to have effect' does not mean that the Ordinance on expiration of the period or on disapproval by Parliament shall become void *ab initio*.[5] Like any other temporary laws, an Ordinance on expiry or disapproval shall be deemed never to have existed except for the past and closed transactions.[6] A mere disapproval by Parliament cannot revive a closed and completed transaction. Thus if certain post was abolished by an Ordinance, the post is not revived because that Ordinance lapsed, unless Parliament passes an Act to that effect or creates a new post of like nature.[7]

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[1] Art.93(3)(4)
[2] Art.93(2)
[3] *Wadhwa v. Bihar*, AIR 1987 SC 579
[4] Ibid
[5] *Venkata v. A.P.*, AIR 1985 SC 724
[6] *Orissa v. Bhupendra*, AIR 1962 SC 945
[7] *Venkata v. A.P.*, AIR 1985 SC 724

RULE MAKING POWER

3.39 The Constitution has conferred power on the President to make rules on specified subjects. These rules are of two categories. In the first category falls the rules specifying the manner in which orders and instruments made in the name of the President are to be attested or authenticated[1] and the rules of business allocating different departments of the government to different Ministries and laying down the procedure to be followed by the different Ministries in the exercise of the executive functions[2]. In this category also falls the rules to govern the appointments of judicial officers and magistrates exercising judicial functions.[3]

3.40 In the second category falls the rules which may be made by the President until Parliament makes provisions in respect of the matters dealt with by these rules. Thus the President has power to frame rules to regulate the procedure of Parliament until such time Parliament makes its own rules of procedure and once Parliament has made the rules, the rules made by the President will cease to have any effect.[4] The President can also in consultation with the Speaker make rules regulating the recruitment and conditions of service of persons appointed to the Secretariat of Parliament and these rules would hold the field until Parliament makes provisions in this regard.[5] The custody of public money and their payment into and withdrawal from the Consolidated Fund and Public Account of the Republic shall be regulated by rules framed by the President until an Act of Parliament is passed.[6] Art.133 provides that the service of the Republic shall be regulated by rules made by the President until Parliament makes laws to regulate the appointment and conditions of service of persons in the service of the Republic. The President may also make regulations in respect of consultation with the Public Service Commission and such regulations must not only conform to the provisions of the Constitution, but must also be consistent with the laws made by Parliament.[7]

3.41 Apart from the power of making rules conferred by the

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[1] Art.55(5)
[2] Art.55(6)
[3] Art.115; see Para 6.19
[4] Art.75(1)
[5] Art.79(3)
[6] Art.85
[7] Art.140(2)

Constitution, the executive is entrusted with rule making function by Acts of Parliament. Because of intricacies and technical complications in various fields and because of vast expansion of the functions of a welfare State, Parliament today does neither have the expertise nor the time to go for extensive legislation on all subjects. More often than not Parliament makes a skeleton law providing guideline and leaving the details of the rules to be framed by the executive. This is a necessity of modern time and cannot be avoided and it is not practicable to do away with this delegation of legislative power which has been specifically sanctioned by the Constitution.[1] This enables the government to obtain the help of persons who are experts in the field and this also saves the time of Parliament. But the usual check which we find in the British constitutional system, that is, the requirement of parliamentary approval, is lacking in our country. The rules are usually drafted by the civil servants who may have their own interest to secure. Behind the curtain lobbies of vested interests often influence the rule-making exercise. The law conferring rule-making power to the executive should provide for publication of the draft rules and public hearing and parliamentary approval of the rules made.[2]

EMERGENCY POWER

3.42 The President may with the prior counter signature of the Prime Minister issue proclamation of emergency if he is satisfied that a grave emergency exists in which either the security or the economic life of Bangladesh or any part thereof is threatened by (a) war or external aggression or (b) internal disturbance.[3] Counter signature is not necessary when the care-taker government operates.[4] The proclamation of emergency may be revoked by the President by a subsequent proclamation. The proclamation of emergency must be laid before Parliament and it shall cease to be operative at the expiration of 120 days unless before the expiration Parliament approves it by a resolution. If the proclamation is issued at a time when Parliament stands dissolved or the dissolution of Parliament takes place during the period of 120 days after issuance of the proclamation, it shall cease to be operative at

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[1] see art.65

[2] For discussion on delegated legislation see Para 4.30-4.40

[3] Art.141A. In view of art.58E no counter signature is necessary when care-taker government is operating.

[4] Art.58E

the expiration of 30 days from the date of the first meeting of the re-constituted Parliament unless before expiry of that period of 30 days Parliament approves it by a resolution. For issuance of the proclamation actual occurrence of armed conflict is not necessary for war situation may exist even before actual armed hostility and may continue even after armed hostility has stopped, but in case of proclamation of emergency for internal disturbance, there must be actual disturbance which threatens the security or economic life of Bangladesh. It may be noted that art.352 of the Indian Constitution provides an explanation that emergency may be proclaimed even before actual occurrence of war, external aggression or internal disturbance if there is imminent danger of such war, aggression or disturbance. But in the Constitution there is no such explanation provided.

3.43 The issuance of the proclamation shall automatically suspend the operation of the fundamental rights guaranteed by arts.36, 37, 38, 39, 40 and 42 and a law made during the continuance of the emergency shall not be void because of inconsistency with the provisions of these articles[1] for so long as the proclamation remains operative. Apart from this, the President, with the written advice of the Prime Minister, may by order suspend the enforcement of any or all of the other fundamental rights guaranteed in Part III of the Constitution and such a suspension shall remain in force for so long as the proclamation remains in force.[2] Every order suspending the fundamental rights must be placed before Parliament.

3.44 The validity of a proclamation of emergency depends upon the satisfaction of the executive about the existence of two things - (1) there is war, external aggression or internal disturbance and (2) security or economic life of Bangladesh or any part thereof is threatened by such war, external aggression or internal disturbance. The question is whether the satisfaction of the executive as to the existence of the two things is justiciable. The case of non-justiciability of the Presidential satisfaction for promulgation of an Ordinance is based on two grounds - (1) Ordinance-making is an exercise of legislative power which cannot be challenged on the grounds on which exercise of executive power can be challenged and (2) satisfaction regarding existence of emergent situation is a political question which is not amenable to judicial determination. The first ground is not available as proclamation of emergency is purely

[1] Art.141B
[2] Art.141C

an executive act. The second ground is also not available as in our constitutional system the doctrine of political question has no application.[1] The Pakistan Supreme Court delivered two judgments[2] wherein the court accepted the doctrine of political question while dealing with revocation of the proclamation of emergency under art.30 of the Pakistan Constitution of 1962.[3] That constitution introduced a sort of a presidential form of government comparable with the American system and those two decisions cannot have any application in respect of interpretation of art.141A of the Constitution. It is submitted that satisfaction of the President which in reality is the satisfaction of the Prime Minister and the Cabinet is not outside the purview of judicial scrutiny. In *Teh Cheng Poh v. Public Prosecutor*[4] the power of the Ruler under the Malaysian Constitution to make certain proclamation came up for consideration. Lord Diplock observed -

> The power to proclaim an area as security area ... is discretionary one. It is for (the Ruler) (again, in effect, the cabinet) to form an opinion whether public security in any area of Malaysia is seriously disturbed or threatened by the causes referred to in the section, and to consider whether in his opinion it is necessary for the purpose of suppressing organised violence of the kind described. But, as with all discretion conferred upon the executive by Act of Parliament, this does not exclude the jurisdiction of the court to inquire whether the purported exercise of the discretion was nevertheless ultra vires either because it was done in bad faith (which is not in question in the instant appeal) or because as a result of misconstruing the provision of the Act by which the discretion was conferred upon him (the Ruler) has purported to exercise the discretion when the conditions precedent to its exercise were not fulfilled or, in exercising it, he has taken into consideration some matter which the Act forbids him to take into consideration or has failed to take into consideration some matter which the Act requires him to take into consideration.

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[1] See Para 3.33 & 5.16-5.17

[2] *Abdul Baqui Baluch v. Pakistan*, 20 DLR (SC) 249; *Mansur Ali v. Ardhendu*, PLD 1969 SC 37

[3] See the change in the attitude of Pakistan Supreme Court on the doctrine of political question in *M.K. Achakzai v. Pakistan*, PLD 1997 SC 426, while dealing with the provisions of the Pakistan Constitution, 1973 which introduced a parliamentary system of government.

[4] [1980] AC 458

The satisfaction of the President as regards proclamation of emergency is justiciable for the same reason the satisfaction of the President in respect of emergent need for promulgating an Ordinance is justiciable. However, it should be kept in mind that the Constitution has committed the matter to the discretion of the executive and Parliament has been given the authority to approve or disapprove it. In such a situation it is not for the court to question the adequacy or sufficiency of the grounds of satisfaction or the correctness of the facts upon which the satisfaction is based. But the satisfaction as to emergency being a condition precedent to the exercise of the power, the validity of the proclamation of emergency can be challenged on the ground that there was no satisfaction at all or that it was wholly *mala fide* or based on totally irrelevant or extraneous grounds.[1] The Pakistan Supreme Court held that once a proclamation had been validly issued and Parliament approved it, the question whether the emergency had ceased to exist and therefore the proclamation had to be withdrawn was outside the competence of the court to decide.[2] In our constitutional dispensation this may not be the correct statement of the law. The court will not lightly deal with the decision of the executive in this regard and will be very cautious in upsetting the decision of the executive in respect of revocation of the proclamation of emergency, but the court's jurisdiction to issue *mandamus* cannot be questioned where it is plainly clear that the emergency has ceased to exist. While dealing with the question whether the court is powerless when the Ruler fails to revoke the proclamation Lord Diplock observed -

> If (the Ruler) fails to act the court has no power itself to revoke the proclamation in his stead. This, however, does not leave the courts

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[1] *Teh Cheng Poh v. Public Prosecutor*, [1980] AC 458; *Minerva Mills Ltd. v. India*, AIR 1980 SC 1789, 1838 (Per Bhagwati J); while dealing with emergency power under art.232 of the Constitution of Pakistan, 1973, the Pakistan Supreme Court observed in *Farooq A. K. Leghari v. Pakistan*, PLD 1999 SC 57, 76, "notwithstanding the ouster of jurisdiction of the Court and that the formation of opinion in terms of the relevant provision of the Constitution or of a statute is to be based on the satisfaction of a State functionary mentioned therein, the Court has jurisdiction to examine whether the prerequisites provided for in the relevant provision of the Constitution/statute for the exercise of the power thereunder existed, when the impugned order was passed. If the answer of the above question is in the negative, the exercise of power will be without jurisdiction calling for interference by the Court."

[2] *Abdul Baqui Baluch v. Pakistan*, 20 DLR (SC) 249; *Mansur Ali v. Ardhendu*, PLD 1969 SC 37

powerless to grant to the citizen a remedy in cases in which it can be established that a failure to exercise his power of revocation would be an abuse of his discretion. Article 32(1) of the Constitution makes (the Ruler) immune from any proceedings whatsoever in any court. So mandamus to require him to revoke the proclamation would not lie against him; but since he is required in all executive functions to act in accordance with the advice of the cabinet, mandamus could, in their Lordships' view, be sought against the members of the cabinet requiring them to advise (the Ruler) to revoke the proclamation.[1]

3.44A The executive has the power to declare war or to participate in any war, but art.63 mandates that the power must be exercised with the assent of Parliament. If at the relevant time Parliament stands dissolved, the President has to summon the dissolved Parliament for the purpose of obtaining the assent required under art.63.[2]

POWER OF PARDON AND REPRIEVES

3.45 For the peace and good government it is sometimes necessary to pardon a convicted person. Furthermore, even though finality has come from judicial pronouncement, the fallibility of human judgment being undeniable even in the most trained mind, it is considered appropriate that in the matter of life and personal liberty, the protection should be extended by entrusting power further to some high authority to scrutinise the validity of the threatened deprivation of life or personal liberty.[3] The British sovereign as also the American and Indian Presidents have such a power. Art.49 of the Constitution provides that the President shall have power to grant pardons, reprieves and respites

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[1] *Teh Cheng Poh v. Public Prosecutor*, [1980] AC 458, 473

[2] Art.72(4)

[3] *Kehar Singh v. India*, AIR 1989 SC 653, 657; Exparte *Grossman*, 267 US 87 (Executive clemency exists to afford relief from undue harshness or evident mistake in the operation or enforcement of the criminal law. The administration of justice by the courts is not necessarily always wise or certainly considerate of circumstances which may properly mitigate guilt. To afford a remedy, it has always been thought essential in popular governments, as well as in monarchies, to vest in some other authority than the courts power to ameliorate or avoid particular criminal judgments. It is a check entrusted to the executive for special cases. To exercise it to the extent of destroying the deterrent effect of judicial punishment would be to pervert it; but whoever is to make it useful must have full discretion to exercise it.)

and to remit, suspend or commute any sentence passed by any court, tribunal or other authority.[1] The power so entrusted is a power belonging to the people and is reposed in the highest dignitary of the State. Since the power flows from the Constitution, it cannot be modified, abridged or diminished by Parliament.[2] Like other powers, the President has to exercise this power on the advice of the Prime Minister.[3]

3.46 The power of pardon includes the power of granting general amnesty.[4] Marshall CJ of the American Supreme Court held that a pardon is a private act of the grantor analogous to transfer of property or commercial transaction and acceptance by the grantee is essential to its validity.[5] This holding gave rise to an interesting situation. In *Burdick v. US*[6] the defendant refused to answer questions before a federal grand jury on the ground of self-incrimination. The President offered him a full and unconditional pardon, but the defendant refused to accept the pardon. He was proceeded in contempt on the ground that there was no possibility of his being prosecuted. The American Supreme Court reversed the conviction for contempt holding on the basis of Marshall reasoning that the pardon offered had no validity for non-acceptance by the defendant. In *Biddle v. Perovich*[7] the defendant was convicted of murder and sentenced to death. The President commuted the sentence to life imprisonment. The defendant challenged the legality of the order pleading that he did not accept the commutation. The Supreme Court did not overrule *Burdick* but rejected the contention of the defendant holding that *Burdick* reasoning was not applicable in case of commutation. This decision given by a celebrated judge, Holmes J, was criticised as not being correct.[8] The question may not arise in our country as apart from art.49 s.402A read with s.402 of the Code of Criminal Procedure specifically confers power on the President to

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[1] The power under art.49 is independent of the power given by ss.401, 402 and 402A of the Code of Criminal Procedure in respect of suspension and remission of sentences and commutation of punishment. See *State v. Eliadah McCord*, 2 BLC (AD) 1 (where the law prescribes a minimum sentence, the court cannot reduce it; only the President or the government can do it)

[2] *Schick v. Reed*, 419 US 256; *Punjab v. Jogindar Singh*, AIR 1990 SC 1396

[3] *Kehar Singh v. India*, AIR 1989 SC 653, 657, 659.

[4] Schwartz - Constitutional Law, 1979, p.198

[5] *US v. Wilson*, 7 Pet. 150

[6] 236 US 79

[7] 274 US 480

[8] Brett, 20 Modern Law Review 131

commute sentence of death without the consent of the person sentenced. In English law pardon is an executive act of the State and should not be treated as being analogous to a contract and is not dependant upon acceptance of the subject of the pardon.[1]

3.47 The President may exercise the power either before or after conviction and need not wait for the verdict of the court.[2] In granting pardon, the President may scrutinize the evidence on record of the criminal case and can come to a different conclusion from that recorded by the court. In doing so he does not amend, modify or supersede the judicial record. The judicial record remains wholly in tact and undisturbed.[3] In invoking the power under art.49, the accused or convict has no right to claim oral hearing. The manner of disposal of the matter is entirely in the discretion of the President and it is for him to decide how best he can acquaint himself with all the necessary information.[4]

3.48 A pardon may be conditional or unconditional. An unconditional pardon wipes out both the conviction and sentence and restores all the civil rights of the individual concerned as if he had never been convicted of the offence.[5] But it does not restore offices forfeited or property or interest vested in others in consequence of the conviction.[6] While a pardon can expunge past offences, a power of pardon cannot be used to dispense with the criminal responsibility for an offence which has not been committed at the time of granting pardon.[7] A pardon can be subject to lawful conditions.[8] The President may grant pardon on condition that a fine first be paid[9], or that the

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[1] *A.G. of Trinidad and Tobago v. Phillip*, [1994] 1 AC 396

[2] *Ex p. Garland*, 18 L. Ed. 366

[3] *Kehar Singh v. India*, AIR 1989 SC 653, 658

[4] Ibid, p.661

[5] *Ex p. Garland*, 18 L. Ed. 366; but see *R v. Foster*, [1985] QB 115 (Unconditional pardon removes the pains, penalties and punishments which flow from the conviction, but does not eliminate the conviction itself); *Phillip v. Director of Public Prosecution*, [1992] 1 AC 545 (The effect of pardon is to blot out, so far as the subject of the pardon is concerned, any responsibility which he has for any offences which are covered by the pardon)

[6] *Ex p. Garland*, 18 L. Ed. 366

[7] *A.G. of Trinidad and Tobago v. Phillip*, [1994] 1 AC 396

[8] Ibid; *Schick v. Reed*, 419 US 256

[9] *In re Ruhl*, 20 Fed. Cas. 1335

grantee be deported and not return to this country[1] or that the grantee should not claim certain property[2]. When the grant of pardon is conditional, the protection provided by the pardon is not available until the condition is complied with and the pardon becomes valueless due to non-compliance with a condition to which it is subject[3] and the grantee may be made to suffer the punishment he was originally sentenced. The question is whether the power of pardon can reach a sentence for criminal contempt of court. One Grossman was sentenced for contempt of court to imprisonment and fine. The President granted pardon on condition that he paid the fine. Grossman accepted the condition and paid the fine. But the court committed him to serve out the sentence of imprisonment holding that contempt of court was not an offence against the United States and extending the power of pardon to contempt of court was an invasion on the judicial power. The Supreme Court rejected both the contentions and held that the power of pardoning extended to contempt of court as well.[4] In case of remission of sentence, nothing is wiped out. The court's order of conviction and sentence remains undisturbed as it was passed; only the convict is not required to undergo the sentence remaining to be served. When a law disqualifies a person convicted and sentenced to imprisonment of two years from being a candidate for an elective office, the disqualification does not cease when, because of the remission granted, he served the sentence for less than two years.[5]

3.49 The question is whether at all and how far the exercise of power under art.49 is justiciable. The court may examine the nature, extent and scope of the power and inquire whether the exercise of the power falls within the ambit of art.49.[6] The court may inquire whether fraud has been committed in procuring the pardon.[7] On the question whether a pardon can be challenged on the ground of duress, the Privy Council observed that where the head of the State has made a formal decision which in normal circumstances would constitute a pardon, it is important that the state should not be able to resile from the terms of that pardon

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[1] *Kavalin v. White*, 44 F.2d 49

[2] *Semmes v. US*, 91 US 21

[3] *A.G. of Trinidad and Tobago v. Phillip*, [1994] 1 AC 396

[4] *Ex p. Grossman*, 267 US 87

[5] *Sarat Chandra v. Khagendra Nath*, AIR 1961 SC 334, 337

[6] *Kehar Singh v. India*, AIR 1989 SC 653, 659; see *A.G. of Trinidad and Tobago v. Phillip*, [1994] 1 AC 396

[7] *Phillip v. Director of Public Prosecution*, [1992] 1 AC 545

except in the most limited of circumstances and to challenge the validity of a pardon at least an action in the nature of direct physical violence, or pressure, or actual imprisonment of the grantor of pardon would be required to establish duress.[1] Beyond this, the exercise of this constitutional power on its merits is not subject to judicial inquiry. But where rule of law is a constitutional mandate, no exercise of power can be arbitrary or discriminatory. Arbitrariness or capricious criteria will void the exercise of the power. In *Maru Ram v. India*[2] Krisna Iyer J gave the example of a Chief Minister releasing every one in the prison in his State on his birth day and stated that it will be an outrage on the Constitution to let such madness survive. On the other hand, if a brutal murderer has been sentenced by a court with strong observations about his bestiality, it may be arrogant and irrelevant abuse of power to remit his entire life sentence the very next day after the conviction merely because he has joined the party in power or is a close relation of a high up. The court recommended framing of rules for guidance in the exercise of the power and observed -

> Consideration for exercise of power under Article 72/161 may be myriad and their occasions protean, and are left to the appropriate Government, but no consideration nor occasion can be wholly irrelevant, irrational, discriminatory or mala fide. Only in these rare cases will the court examine the exercise.[3]

In *Kehar Singh v. India*[4] the Indian Supreme Court, however, observed that there is sufficient indication in the terms of art.72 and in the history of the power enshrined in that provision as well as existing case law, and specific guidelines need not be spelt out and held that the exercise of the power under art.72 cannot be subjected to judicial review on its merits except within the strict limitations defined in *Maru Ram*. In *Harbans Singh v. U.P.*[5] the petitioner, Jeeta and Kashmira were convicted of multiple murder and sentenced to death. Jeeta's petition for leave to

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[1] *A.G. of Trinidad and Tobago v. Phillip*, [1994] 1 AC 396

[2] AIR 1980 SC 2147

[3] Ibid, p.2175; *Swaran Singh v. U.P.*, AIR 1998 SC 2026, 2028 (If such power was exercised arbitrarily, mala fide or in absolute disregard of the finer canons of constitutionalism, the by-product order cannot get the approval of law and in such case, the judicial hand must be stretched to it.); *Satpal v. Haryana*, AIR 2000 SC 1702 (The court can quash the order of pardon when the governor had not applied his mind to the material on record and mechanically passed the order.)

[4] AIR 1989 SC 653

[5] AIR 1982 SC 849

appeal was rejected and he was executed. Kashmira's leave petition was admitted and ultimately his sentence was commuted to imprisonment for life. The petitioner's leave petition was rejected and the President rejected his mercy petition. The petitioner filed a writ petition under art.32 and obtained a stay of execution. In the hearing it appeared that no distinction at all can be made between the part played by Kashmira and the part played by the petitioner and it would be discriminatory to maintain the death sentence of the petitioner. The court has enough power to commute the death sentence, but as in the meanwhile the President considered the mercy petition and rejected it, the court in the interest of comity between the powers of the court and the powers of the President recommended that the President may be so good as to exercise the power of pardon to commute the death sentence of the petitioner into imprisonment for life.

NON-PARTY CARE-TAKER GOVERNMENT

3.49A For filling up a vacancy in the Fifth Parliament a by-election was held in Magura. The opposition parties alleged massive rigging in the election and started movement for holding election under a non-party care-taker government. They refrained from contesting in the election of the Sixth Parliament and claimed the constitution of the Sixth Parliament to be illegal. In the face of the movement, the Sixth Parliament passed the Constitution (Thirteenth Amendment) Act, 1996 providing for a non-party care-taker government consisting of one Chief Adviser at its head and not more than ten Advisers for a limited period during which parliamentary election is to be held.

3.49B Art.58B provides that when Parliament is dissolved or stands dissolved there shall be a non-party care-taker government headed by the Chief Adviser from the date the Chief Adviser is appointed by the President till the date a Prime Minister enters upon his office after the constitution of Parliament. The President is to appoint the Chief Adviser from among the retired Chief Justices and the Judges of the Appellate Division in order of priority mentioned in art.58C. If none of the specified persons are available for appointment, the President shall, after consultation with the major political parties, appoint a qualified citizen of Bangladesh as the Chief Adviser and if this is also not possible, the President shall assume the functions of the Chief Adviser. Ten Advisers shall be appointed by the President on the advice of the Chief Adviser. The President shall appoint Advisers from among the persons who are

(a) qualified for election as members of Parliament, (b) not members of any political party or of any organisation associated with or affiliated to any political party, (c) not, and have agreed in writing not to be, candidates for the ensuing election of members of Parliament, and (d) not over seventy-two years of age.[1] The Chief Adviser shall have and shall be entitled to the remuneration and privileges of a Prime Minister and an Adviser shall have the status of and shall be entitled to the remuneration and privileges of a Minister.[2] The Chief Adviser is to be appointed within fifteen days after Parliament is dissolved or stands dissolved and during the period between the date Parliament is dissolved or stands dissolved and the date on which the Chief Adviser is appointed the Prime Minister and his Cabinet who were in office immediately before Parliament is dissolved or stood dissolved shall continue to hold office as such.[3]

3.49C *Functions of non-party care-taker government :* The idea of care-taker government is that during the period parliamentary election is held, the affairs of the government should be run by neutral persons so that no political party can utilise the governmental machinery and resources, monetary or otherwise, to influence the parliamentary election. The care-taker government is to hold the balance between the political parties and ensure that the Election Commission is able to hold a free and fair parliamentary election. The care-taker government is not supposed to take any policy decision which will have to be taken by the elected representatives of the people. Hence art.58D provides that the care-taker government shall function as an interim government and shall discharge the routine functions; it shall not take any policy decision unless it becomes necessary to take it for the purpose of carrying out the routine functions. The Amendment has not made it clear which functions can be said to be routine functions. The term 'routine function' has to be interpreted and its expanse determined having regard to the fact that the care-taker government is an interim government and consists of non-elected persons. The embargo on taking policy decision is not absolute and policy decision may be taken in respect of a routine function if it becomes necessary for the performance of such function. Before the dissolution of the Seventh Parliament, the Appellate Division gave certain directions in *Secretary, Ministry of Finance v. Masdar*

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[1] Art.58C(7)
[2] Art.58(11)
[3] Art.58C(2)

Hossain[1] relating to recruitment, control and supervision of the members of the subordinate judiciary and the magistrates exercising judicial functions and fixed the time limit for compliance. Compliance of the directions of the Appellate Division necessitated taking a policy decision and the care-taker government took the policy decision. However, the principal objective of the care-taker government is to assist the Election Commission in holding a free and fair election and even though art.126 stipulates the duty of all executive authorities to assist the Election Commission in the discharge of its functions, to emphasise this role of the care-taker government, art.58D(2) specifically provides, "The Non-Party Care-taker Government shall give to the Election Commission all possible aid and assistance that may be required for holding election of members of Parliament peacefully, fairly and impartially." Thus the care-taker government is required to take all measures to assist the Election Commission in holding free, fair and peaceful election and in taking such measures the care-taker government does not have the limitation relating to policy decision provided in art.58D(1). The provision of art.58D(2) is not in any way controlled by the provision of art.58D(1).

3.49D Transfer of the members of the services of the Republic is a routine function of the government performed in the public interest and on consideration of administrative exigencies. The government pursues certain policies and issues instructions in this regard. The care-taker government cannot change the policy and the instructions unless such change is necessary for the performance of the routine functions or to assist the Election Commission to hold a free and fair parliamentary election. The care-taker government constituted on dissolution of the Seventh Parliament undertook a policy of large scale transfer of the civil servants including those who were not in any way involved in the parliamentary election process. It was contended that the care-taker government transgressed its constitutional limit. No straight answer can be given in this regard without going into the nature of the transfers ordered and without coming to a conclusion as to whether the public interest and administrative exigency or holding of free and fair election necessitated such large scale transfers, but, at the same time, the criticism against the care-taker government in this regard cannot readily be dismissed as untenable.

3.49E Question has also arisen as to whether the President can during

[1] 2000 BLD (AD) 104

this interregnum period promulgate an Ordinance under art.93 amending the law relating to parliamentary election. In a writ petition[1] filed before the High Court Division, the petitioner contended that art.124 provided that subject to the provisions of the Constitution, Parliament may by law make provisions as to elections, the power under art.93 does not extend to making any provision regarding parliamentary election. Furthermore, though art.93 authorises the President to promulgate an Ordinance, the President exercises the power on the advice of the Prime Minister, an elected representative of the people and he cannot exercise the power when there is no Prime Minister to advise him. The contention is untenable inasmuch as art.93 not only stipulates under what circumstances the President can promulgate an Ordinance, but also clearly specifies the provisions which cannot be made by an Ordinance. If Parliament is or stands dissolved and the President is satisfied that immediate action is necessary, he can make and promulgate an Ordinance and that an Ordinance shall have the like force of law as an Act of Parliament. Thus the power of the President to make law by an Ordinance is co-extensive with the power of Parliament in making law except as otherwise provided in the Proviso to art.93. Secondly, Parliament being conscious about the advice of the Prime Minister required for of making an Ordinance, specifically provided in art.58E that during the period the care-taker government functions, the provision of the Constitution requiring the President to act on the advice of the Prime Minister shall be ineffective. Though promulgation of an Ordinance involves taking of a policy decision, the limitation, in view of the provision of art.58D(2), cannot apply in case of promulgation of an Ordinance to ensure free and fair election.

3.49F It is mentioned in art.58B(2) that the care-taker government shall be collectively responsible to the President. Does it mean that the Chief Adviser and the Advisers are collectively answerable to the President and they are to discharge their duties as desired by the President? Generally, the political executive is responsible to the people through Parliament. It may be argued that the Constitution contemplates governance of the country through the representatives of the people and during the interregnum period the President being the only elected representative of the people, though elected by an indirect election, the care-taker government, constituted with persons not elected by the

[1] *Syed Badruddin Hossain v. Bangladesh*, W.P. No.3963 of 2001 (The petition, after some hearing, was rejected as not pressed.)

people, has been made accountable to the President and the collective responsibility of the care-taker government is not affected by the provision of art.58B(3) that the executive power of the Republic during this interregnum period shall be exercised by and on the authority of the Chief Adviser and shall be exercised by the Chief Adviser in accordance with the advice of the care-taker government. On the other hand, it may also be argued that the Constitution contemplates a parliamentary form of government in which the President is a titular head and a presidential form of government during the interregnum period is not contemplated. The Chief Adviser and the Advisers have been respectively given the status of Prime Minister and Ministers and thus the Chief Adviser shall be in the position of the Prime Minister in performance of the governmental functions and the care-taker government has been made responsible to the President in the sense that the President may ask for information about their activities. Art.58E provides that while the care-taker government is functioning, the provisions of arts.48(3), 141A(1) and 141C(1) requiring the President to act on the advice of the Prime Minister shall remain ineffective. It does not, however, say that the President shall have to act on the advice of the Chief Adviser during this period. The view that the care-taker government is accountable to the President seems to be more weighty, but an authoritative interpretation in this regard is necessary.

3.49G The Thirteenth Amendment has modified the provision of art.61 by adding the expression 'and such law, during the period in which there is a Non-Party Care-Taker Government under art.58B, be administered by the President' at the end of that article. Article 61 deals with military service. The provision of art.58B(3) to the effect that all executive authority of the Republic shall be exercised by the Care-taker government is a general provision, while art.61 is a special provision relating to the military service. If it was intended that art.58B(3) would be applicable in respect of the military service, the amendment of art.61 was unnecessary. Hence, it has to be taken that the administration of the laws relating to the military service has been taken out of the purview of art.58B(3) and has been placed in the hands of the President.

3.49H It has been contented in a writ petition that the Thirteenth Amendment seeking to amend art.56 of the Constitution, a referendum under art.142(1A) was necessary before it could be assented to by the President and this having not been done, the Amendment is void. The government, filing an affidavit-in-opposition, contended that the Amendment did not seek to amend art.56 and at any rate the Fifth

Amendment being void art.142(1A) inserted by Martial Law Proclamation and validated by the Fifth Amendment is also void. The writ petition is pending final adjudication.

LOCAL GOVERNMENT

3.50 It is a unique feature of the Constitution that specific provisions for local government have been made.[1] In the earlier constitutional dispensations the administration outside the capital was left with the civil servants and the people had practically no participation in the administration. The scheme of local government was a matter to be decided by the legislature. Local government bodies had little part to play in the administration of the country. In their anxiety to have a truly democratic set up involving the people including those at the grass-root level, the framers incorporated arts.9 and 11 as two important fundamental principles of State policy. Art.9 provides that the State shall encourage local government institutions composed of representatives of the areas concerned, while art.11 provides that the Republic shall be a democracy in which effective participation by the people through their elected representatives in administration at all levels shall be ensured. To give effect to these fundamental principles of State policy art.59 has provided that local government in every administrative unit of the Republic shall be entrusted to bodies composed of persons elected in accordance with law and Act of Parliament shall prescribe the functions of the local government bodies which may include functions relating to administration and the work of public officers, the maintenance of public order and the preparation and implementation of plans relating to public services and economic development. Art.60 provides that for the purpose of giving effect to the provisions of art.59, Parliament shall, by law, confer powers on the local government bodies including the power to impose taxes for local purposes, to prepare their budgets and to maintain funds. The idea is that the central government should deal with matters which concern the nation as a whole and other matters including the administration in the district and lower levels should be controlled to a good measure by the local government bodies composed of the representatives of the people. The change cannot be brought in overnight. Therefore, the framers indicated the direction of the change and reform and left it with Parliament to decide upon the time and the

[1] *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319, 341

manner of doing it. Otherwise Parliament having been conceded the plenary power of legislation there was no necessity of enumerating the functions which may be prescribed for the local government bodies. Arts.59 and 60 remained repealed for a good period of 16 years from 1975 and were restored in 1991 by the Twelfth Amendment.

3.51 The expression 'administrative unit' in art.59 has been defined in art.152(1) to mean a district or other areas designated by law for the purpose of art.59. No designation by law is necessary in case of a district as art.152(1) itself designates districts as administrative units, but designation by law is necessary in case of areas other than district to qualify as 'administrative unit' within the meaning of art.59.[1] The intention of the framers of the Constitution was the establishment of local government bodies composed of elected representative of the people. Hence local government bodies cannot be set up in any area without designating it as administrative unit so as to circumvent the requirement of art.59 that such bodies in an administrative area be composed of representatives of the people of the locality.[2] The Constitution simply does not contemplate local government bodies in any area outside the ambit of arts.59 and 60.[3] Arts. 59 and 60 are limitations on the plenary legislative power in the field of local government.[4] Parliament may or may not set up a local government body in an administrative unit, but if a local government body is set up two conditions must be fulfilled - (1) it is constituted in an administrative unit and (2) it is composed of elected persons.[5] Accordingly, the Appellate Division gave direction to bring the existing local government bodies in conformity with the provision of art.59.

3.52 Apart from providing representative local government bodies, the Constitution does not delineate the structure of the local government bodies, its different tiers and its functions and left it to be determined by Parliament. Different local government bodies pre-existed the Constitution and some were created afterwards. When Parliament abolished Upazila Parishads, it was contended in *Kudrat-E-Elahi v. Bangladesh*[6] that having regard to the provisions of art.59 read with

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[1] *Kudrat-E-Elahi Panir v. Bangladesh*, 44 DLR (AD) 319
[2] Ibid
[3] Ibid, p.342
[4] Ibid, pp.338 & 342
[5] Ibid, p.336
[6] Ibid

arts.9 and 11 of the Constitution, Parliament cannot abolish an existing tier of local government. The Appellate Division rejected the contention holding that the Upazila Parishads were not local government bodies in conformity with the provisions of art.59 and no provision of the Constitution has been violated by the abolition. The court further held that local government is an integral part of the democratic polity of the country and the local government institutions may be altered, re-organised or re-structured and their powers and functions may be enlarged or curtailed by Act of Parliament[1], but the system as a whole cannot be abolished.[2] Dealing with the abolition of a tier of local government, M. Kamal J held that the abolition of the tier must be a total abolition, that is, it must not be a subterfuge to vest the powers and functions of the abolished tier with non-representative person or body. The learned Judge observed, "... the Government or for that matter, any person or body, not elected in the area according to law, cannot upon abolition of a local government institution of that tier, take over the authority, powers, functions and privileges of a local government institution of that tier even for a temporary period or as a stop-gap arrangement."[3] In the facts of that case, that is, in case of abolition of a tier of local government, the observation of the learned Judge is correct. But where no such abolition of tier is involved, and the government is satisfied that the elected representatives of the people of a local government institution misconducted themselves necessitating supersession of the elected body and appointment of administrator pending fresh election, will the provision of law permitting supersession of the elected body and appointment of an administrator be inconsistent with the provisions of arts.59 and 60? Art.59 speaks of the composition of a local government body and does not deal with such a situation, yet

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[1] See *City of Worcester v. Worcester Consolidated Street Rly C0*, 196 US 539, 550 (in the absence of any constitutional restriction the legislature may at any time repeal the charter of a municipal corporation or otherwise terminate its existence and provide other and different means for the government of the territory lying within the limits of the former municipality); *W.W. Atkins v. Kansas*, 191 US 207, 221 (As legislature may create a municipality, so it may abridge and control); *U.S. v. Baltimore & Ohio R.R. Co.*, 21 L. Ed. 597.

[2] *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319, 329 (These bodies made great contribution to the country's democracy, which is now a basic structure of the Constitution. with the revival of the constitutional backing for `Local Government' these old institutions cannot be abolished without damaging the democratic fabric of the country. - per S. Ahmed CJ)

[3] Ibid, at p.346

if we consider the tenor of art.59 read with arts.9 and 11 it may be contended that a non-representative person or body cannot be appointed as an administrator; only a person or body having representative character like a member of Parliament or another local government body of the area concerned may be appointed as an administrator to function till persons elected to the local government body enter their office. However, it has been held that the provision for interim council to be appointed by the government for the Chittagong Hill Districts is not unconstitutional as such a council will, in fact, come in aid of and facilitate the implementation of arts.59 and 60 of the Constitution.[1]

3.53 Art.83 authorises imposition and collection of taxes and duties by or under the authority of an Act of Parliament and this article does not put any limitation on the power of Parliament to make the law. But art.60 creates a limitation in that Parliament cannot make any law authorising imposition and collection of taxes for local purposes by anybody except the local government bodies referred to in art.59.

ATTORNEY GENERAL

3.54 The highest law officer of the Republic is the Attorney General who is appointed by the President under art.64. To be appointed as the Attorney General one must be qualified to be appointed as a Judge of the Supreme Court. A person reaching the age of sixty five years cannot act as a Judge of the Supreme Court and therefore cannot be appointed as such Judge. Hence a person beyond the age of sixty five cannot be appointed as the Attorney General. This limitation is only with regard to the appointment to this office. Once appointed a person can continue to act as the Attorney General even after reaching the age of sixty five years.[2] Neither the Constitution, nor any law, prescribes any age of retirement from the office of the Attorney General. The Attorney General has to perform such duties as may be assigned to him by the President. He shall hold office during the pleasure of the President which virtually means the pleasure of the Prime Minister. However, he has a right to resign from the office. The office of the Attorney General is not an office of profit and holding this office a person is not debarred

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[1] *Ziaur Rahman Khan v. Bangladesh*, 49 DLR 491; see also *Abul Kalam Azad v. Bangladesh*, 3 BLC 139 (For a newly constituted Paurashava, appointment of Administrator as an interim arrangement is not violative of art.59)

[2] See *Binay Tripathi v. India*, AIR 1994 SC 502

from being elected as a member of Parliament.

3.55 A question is often asked whether the office of the Attorney General is a political office. Upon consideration of the duties of the office, it cannot be said that the office is a political one. Though the Attorney General is a link between the executive and the judiciary, he has no specific role to play in the formation of the policies of the government. Apart from appearing on behalf of the Republic in important cases in the Supreme Court, he is required to render opinion, whenever asked, on important constitutional and legal issues. Art.64 confers on him a right of audience in all courts which means he can appear in any case in any court for which he is not required to produce any authority from any of the parties in the case. The Attorney General is appointed from among the senior advocates practising in the Supreme Court and because of the constitutional position of the office, the Appellate Division and the High Court Division sometimes want to hear the Attorney General on important constitutional and legal issues. Though there is nothing in the Constitution requiring the Attorney General to appear on being asked by the court, it has become an invariable convention that the Attorney General either personally appears or sends one of the senior law officers of the Republic to represent him in the court which desires his appearance.

3.56 The Attorney General acts as the *ex officio* Chairman of the Bangladesh Bar Council and is the leader of the entire Bar of Bangladesh.

CHAPTER FOUR

THE LEGISLATURE

4.1 Art.65 provides for a unicameral legislature called Parliament (Jatiya Sangshad) in which is vested the legislative power of the Republic. The dominant characteristic of the British Constitution is the supremacy of the parliament which means the power of the British Parliament in enacting laws is without any fetter or restraint. It can legally pass any law. The British courts cannot hold any Act of Parliament invalid or refuse to enforce it.[1] But they have the power to interpret the law and in the exercise of this power they remove any unjust or unreasonable element in an Act of Parliament stating that the parliament cannot be ascribed an intention of prescribing something unreasonable or arbitrary. Under our constitutional dispensation, it is the Constitution, and not Parliament, which is supreme. Parliament's legislative power is subject to the provisions of the Constitution and any law to the extent of inconsistency with the provisions of the Constitution is void.[2] The Supreme Court has been given the power of judicial review to see that Parliament does not overstep the limits set by the Constitution.

COMPOSITION AND DURATION OF PARLIAMENT

4.2 Art.79 of the Indian Constitution provides that the parliament shall consist of the President and the two Houses. The Pakistan Constitution of 1956 and 1962 in the same way provided for the central legislature with the President and a single House. But art.65 provides that Parliament shall consist of a number of members and does not include the President. Thus in India the President is, and under the Constitution of Pakistan of 1956 and 1962 the President was, a part of the central legislature, but the President of Bangladesh is not. Parliament for Bangladesh is to consist of three hundred members to be directly

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1 See *R. v. Transport Secretary. ex p. Factortame Ltd.*, [1990] 2 AC 85, and Bradley & Ewing's Constitutional and Administrative Law, 12th ed., pp 75-77, as regards primacy of European Community law in case of inconsistency with national law.

2 Arts. 7 and 26; see Para 4.24

elected on the basis of adult franchise[1] from three hundred constituencies in accordance with law[2]. The Constitution as originally adopted reserved, in addition to the three hundred seats, fifteen seats for women for ten years. By amendment the number of the reserved seats was increased to thirty and the period was extended. The Constitution (Tenth Amendment) Act, 1990 extended the period for ten years from the date of commencement of the next Parliament. The members in the reserved seats were to be elected by the aforesaid three hundred members of Parliament in accordance with law[3]. It was contended that the Tenth Amendment extending the period of reservation is void. But the contention was rejected by the Appellate Division.[4] The law did not provide for proportional representation. Each member of Parliament was to cast vote for a candidate in each of the thirty seats and the candidates securing majority votes in each seat were elected. Thus these thirty seats were practically bonus for the party or parties which could muster support of the majority of the three hundred members of Parliament. The reserved seats did not preclude any woman from contesting the election in the general seats[5]. The period for which the reservation of seats was to continue expired on the dissolution of the Seventh Parliament.

4.3 The normal tenure of Parliament is five years from the date of its first meeting unless it is earlier dissolved by the President[6]. After a general election, Parliament has to be summoned within thirty days after declaration of the result of the polling. While the the provision for reservation of seats was operative, Parliament could not sit unless the election for the reserved seats was held. The election of the reserved seats could not wait on the ground that some persons elected to the general seats had not made and subscribed the oath[7] as otherwise even a single member of Parliament could delay the sitting of Parliament by not making and subscribing the oath.[8] When the Republic is at war, the

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[1] Art.122(1)

[2] Representation of the People Order, 1972

[3] Representation of the People (Seats for Women Members) Order, 1973

[4] *Dr. Ahmed Hossain v. Bangladesh*, 44 DLR (AD) 109; *Fazle Rabbi v. Election Commission*, 44 DLR 14

[5] Art. 65(3) Proviso

[6] Art.72. For a discussion on the power of the President to dissolve Parliament, see Para 3.14 and 3.27

[7] Members of Parliament must take oath in terms of art.148 before participating in the proceedings of Parliament.

[8] *Fazle Rabbi v. Election Commission*, 44 DLR 14

tenure of Parliament may be extended by an Act of Parliament by not more than one year at a time and is not be extended in any case beyond six months after the termination of war[1]. Art.72(4) provides, "If after a dissolution and before holding of the next general election of members of Parliament the President is satisfied that owing to the existence of a state of war in which the Republic is engaged it is necessary to recall Parliament, the President shall summon the Parliament that has been dissolved". Because of the expression 'engaged in war' in the proviso to art.72(3) the tenure of Parliament in terms of that proviso cannot be extended by an Act of Parliament unless there is existence of actual hostilities. For summoning a dissolved Parliament under art.72(4) the Republic need not be 'engaged in war', but there must exist a 'state of war'. A state of war may, however, exist without the existence of actual hostilities.[2]

MEMBERSHIP OF PARLIAMENT: QUALIFICATION, DISQUALIFICATION AND REMUNERATION

4.4 To be qualified for parliamentary election a person must fulfil two conditions - (1) he must be a citizen of Bangladesh and (2) he must have attained the age of 25 years[3], and he must not be otherwise disqualified for election as, or for being, a member of Parliament. A person is disqualified for election as, or for being, a member of Parliament if (1) he is declared by a competent court to be of unsound mind, (2) he is an undischarged insolvent, (3) he acquires the citizenship of, or affirms or acknowledges allegiance to, a foreign State, (4) he has been convicted for a criminal offence involving moral turpitude and sentenced to suffer imprisonment of two years or more unless a period of five years has elapsed since his release, (5) he holds an office of profit in the service of the Republic other than an office which is declared by the Constitution or any other law not to disqualify its holders, or (6) he is disqualified for such election by or under any law[4]. The expression 'undischarged insolvent' cannot be given a wide general meaning; to be disqualified a person has to be an undischarged insolvent within the meaning of the Bankruptcy Act.[5]

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[1] Art.72(3)

[2] For discussion on the justiciability of the existence of state of war, see Para 3.44

[3] Art.66(1)

[4] Art.66(2)

[5] *Thampanoor v. Charupara*, AIR 1999 SC 3309

4.5 *Acquisition of citizenship of another State:* When the Constitution was originally adopted, a citizen of Bangladesh could not acquire citizenship of another State without losing the citizenship of Bangladesh. After the amendment of the citizenship law in 1978 a Bangladeshi can acquire citizenship of a specified State without losing his citizenship of Bangladesh. Even then a Bangladeshi acquiring citizenship of such a specified State shall be disqualified to be or to continue as a member of Parliament because the disqualification is not predicated upon loss of citizenship, but on acquisition of citizenship and as such a person acquiring the citizenship of a foreign State shall, whether or not he loses the citizenship of Bangladesh thereby, incur the disqualification. Furthermore, acquisition of citizenship of a foreign State involves affirmation or acknowledgement of allegiance to a foreign State and a person affirming or acknowledging allegiance to a foreign State cannot become or continue as a member of Parliament. The reason is clear. A person who is to discharge the high duty of a member of Parliament must have allegiance only to Bangladesh and the disqualification has been stated in wide terms to ensure it. A person affirming or acknowledging allegiance to a foreign State, whether by acquisition of citizenship of that State[1] or by taking employment of that State or in any other way, shall be disqualified to be, or to continue as, a member of Parliament.

4.6 *Conviction involving moral turpitude:* All criminal convictions do not attract the disqualification. It must be a conviction for offence involving moral turpitude. In the widest sense all convictions involve moral turpitude. But the expression 'moral turpitude' has been used in a narrow sense, otherwise the use of this expression would be meaningless. At the same time the expression should not be narrowly construed to mean sexual offences only. In order to constitute moral turpitude, there must be an element of baseness and depravity in the act leading to the conviction. The act must be vile and harmful to the society in general or contrary to the accepted rules of morality[2]. The test of determining moral turpitude will be - (1) whether the act leading to a conviction was such as could shock the moral conscience of the society

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[1] *Abdul Halim v. Abul Hasan Chowdhury*, 2001 BLD 391

[2] *Chandgi Ram v. Election Tribunal*, AIR 1965 Punj 433; *Durga Singh v. Punjab*, AIR 1957 Punj 97; *Baleswar v. District Magistrate*, AIR 1959 All 71; *In Re P, An Advocate*, AIR 1963 SC 1313 (Whenever a conduct ... is contrary to honesty, or opposed to good morals, or is unethical, it may safely be held that it involves moral turpitude.)

in general; (2) whether the motive which led to the act was a base one; and (3) whether on account of the act having been committed the perpetrator could be considered to be a man of depraved character or a person who was to be looked down upon by the society.[1] If the answer is in the affirmative, the act involves moral turpitude. H.M. Ershad was convicted for committing criminal misconduct under the provision of the Prevention of Corruption Act, 1947. The Appellate Division found it to be an offence involving moral turpitude stating –

> ... when a person of such a position has been convicted and sentenced for such offence it shook the moral conscience of the society in general. None can think of an act of such nature committed by a person who was at the relevant time the President of the country which was being run under the Presidential form of Government.[2]

In order to attract the disqualification, the conviction must be by a regular criminal court as distinguished from a Martial Law Court[3].

4.6A A question arises as to the interpretation of the expression 'conviction' in art.66(2)(d) – whether it means conviction by the trial court or it means conviction which has become final and conclusive on appeal to the highest court. When H.M. Ershad became a candidate for the parliamentary election in 1996 while he was serving his sentence during the pendency of the appeal before the High Court Division, the question arose as to whether he was disqualified because of his conviction. The Returning Officer found his nomination paper valid and the matter came up before the Appellate Division in *Mayeedul Islam v. Bangladesh Election Commission*[4], but the court did not answer the question and merely observed that it was for the Election Commission to decide as an election dispute. The conviction was upheld in appeal on 24 August 2000 and on 30 August the Parliament Secretariat published the Gazette Notification of the vacation of the seat of H.M. Ershad. H.M. Ershad challenged the validity of the notification in writ jurisdiction and one of the grounds taken was that the disqualification could not start until the conviction became final and conclusive. The leave petition filed after the notification was pending before the Appellate Division. Though the two learned Judges of the High Court Division hearing the matter

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[1] *Risal Sing v. Chandgi Ram*, AIR 1966 Punj 393.

[2] *H.M. Ershad v. Zahedul Islam Khan*, 2001 BLD (AD) 142, affirming *Zahedul Islam Khan v. H.M. Ershad*, 6 BLC 301

[3] *Monoranjan Mukherjee v. Election commission*, 41 DLR 484

[4] 48 DLR (AD) 208

agreed to declare the notification to be without lawful authority, they differed on this issue.[1] Md. Joynul Abedin J citing some Indian decisions and *Serajul Huq Chowdhury v. Nur Ahmed Company*[2] held that the disqualification starts when the conviction becomes final and conclusive. The Indian decisions do not support the view of his Lordship. The Indian decisions have taken the view that the disqualification starts on conviction by the trial court in case of a candidate for the election, but in terms of the specific provision of s.8(3) of the Representation of the People Act, the disqualification would start on conclusion of the appeal in case of conviction of a sitting member. Art.66 having not made any such distinction, there is no question of final and conclusive conviction even in the case of a sitting member. It can be seen that besides conferring power to grant bail on appeal, the Code of Criminal Procedure has made provision for suspension of conviction and sentence because grant of bail does not take away the effect of conviction and civil consequences like disqualification for election or termination of service may ensue in spite of the convict being enlarged on bail.[3] If a person wants to avoid the civil consequences of conviction he has to apply for and obtain suspension of the order of conviction under s.426 read with s.561A of the Code of Criminal Procedure. The East Pakistan High Court in *Serajul Haq Chowdhury* did not notice the provisions in the Code of Criminal Procedure while taking the view that the disqualification cannot operate when an appeal is preferred. The decision is *per incuriam*. In rendering the opinion, Md. Joynul Abedin J reasoned that if 'conviction' is interpreted to mean conviction by trial court in case of a sitting member, it may create an anomaly in that there may be two members in one seat if the conviction is set aside . It is submitted that there is no question of any anomaly because if the conviction of a sitting member is set aside, the acquittal dates back from the date of conviction by the trial court[4] and thus there being no vacancy in the seat, the by-election held prior to acquittal will be void by operation of law. His Lordship could not agree with the decision in *Mahboobuddin Ahmed v. Election Commission*[5], stating –

> One reason being that the notification for by-election was not and indeed

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[1] *H.M. Ershad v. Abdul Muqtadir Chowdhury*, 53 DLR 569

[2] 19 DLR 766

[3] See *Rama Narang v. Ramesh Narang*, (1995) 2 SCC 513; *T.N. v. Jaganathan*, AIR 1996 SC 2449

[4] *Vidya Charan Shukla v. Purshattam Lal*, AIR 1981 SC 547

[5] 50 DLR 517 (see Para 6.4A for the fact of the case)

> could not be issued by the Election Commission with the condition that the candidates for the by-election were to contest the election subject to the result of the election dispute case pending in respect of the same seat which fell vacant because of the death of the returned candidate Dr. Nasim. Any notification under Article 123(4) by the Election Commission for holding by-election with condition would be unconstitutional being inconsistent with the provisions and spirit of the said Article.[1]

The reasoning, it is submitted, is not valid. The Election Commission is not required to publish the notification with the condition that the candidates for the by-election were to contest the election subject to the result in the election petition; the by-election would be void by operation of law. His Lordship did not notice the compelling situation in *Mahboobuddin*. If the by-election was deferred till the result in the election petition, there would be violation of the mandatory provision of art.123(4) which requires holding of the by-election within ninety days of the occurrence of vacancy.

4.6B The Rules of Procedure[2] require that a court convicting a member of Parliament should inform the Speaker about the conviction and the Speaker is to intimate the fact of conviction to the House. If the member raises any dispute on the question of vacation of seat, the Speaker is to refer the dispute to the Election Commission for decision. In *H.M. Ershad v. Abdul Muktadir Chowdhury*[3], the High Court Division held the notification declaring vacation of seat of H.M. Ershad to be without lawful authority as there was no communication from the court and the Speaker did not inform the House. In *Zahedul Islam Khan v. H.M. Ershad*[4], the court issued the Rule calling upon H.M. Ershad to show cause as to under what authority he was claiming to hold the office of Member of Parliament and as to why he should not be refrained from acting as member of Parliament. H.M. Ershad was convicted on 7.6.1993, that is, before he was elected as a member of Parliament in 1996. Hence, when the High Court Division held that the offence of which he was convicted involved moral turpitude, the disqualification started from the date of conviction and the court ought to have declared his election as a member of Parliament void and the question of vacation

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[1] 53 DLR 569, 574-575
[2] Rule 172, 173, 176 and 178
[3] Ibid
[4] 6 BLC 301

of seat could not arise. The question of vacation of seat upon compliance of the Rules of Procedure arises only in case of a sitting member.

4.7 *Holding office of profit:* The embargo on the holders of office of profit in the service of the Republic has been put to ensure that Parliament does not have as its members persons who are obligated to the government and may be amenable to its influence. An office of profit means an office capable of yielding profit. If a person does not hold an office, he is not disqualified even if he is making a profit[1]. Again a mere holding of office will not attract the disqualification if the office does not carry any profit. An office will be an office of profit if it entails a pecuniary gain for the holder of the office. A member of a government appointed Committee who draws a fee to meet his out-of-pocket expenses to attend the Committee meeting, does not hold an office of profit.[2] A member of a certain Board was entitled to a sitting fee per day for the days he attended the meeting, but he could not draw the sitting fee as well as the daily allowance and he had to draw one of the two. The court held the sitting fee to be a compensatory allowance, and not a pecuniary gain.[3] In *Karbhari Bhimaji v. Shankar Rao*, the respondent as a member of Wage Board was entitled to an honorarium of Rs.25/-for each day of meeting attended by him. The court held, "The question has to be looked at in a realistic way. Merely because a part of the payment made to the 1st respondent is called honorarium and part of the payment daily allowance, we cannot come to the conclusion that the daily allowance is sufficient to meet his daily expenses and the honorarium is a source of profit." The court observed, "The law regarding the question whether a person holds an office of profit should be interpreted reasonably having regard to the circumstances of the case and the times with which one is concerned, as also the class of person whose case we are dealing with and not divorced from reality. We are thus satisfied that the 1st respondent did not hold an office of profit."[4] But when an honorarium of Rs.1750/- per month was being paid for an office along with certain other allowances and perquisites, the court held that the honorarium was a pecuniary gain for the holder of the office and

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[1] *Kanta Katuria v. Manak chand*, AIR 1970 SC 694 (a lawyer engaged by the government to appear in a case on its behalf and received fees from the government)

[2] *Ravanna v. Kageerappa*, AIR 1954 SC 653; *Shahid Nabi v. Chief Election Commr*, PLD 1997 SC 32

[3] *Shivamurthy v. Sanganna*, (1971) 3 SCC 870

[4] *Karbhari Bhimaji v. Shankar Rao*, AIR 1975 SC 575

treated the office as an office of profit.[1] All the holders of office of profit are not disqualified. The office of profit must be in the service of the Republic. The service of the Republic is defined as any service, post or office whether in a civil or military capacity in respect of the Government of Bangladesh and any other service declared by law to be service of the Republic[2]. Art.12 of the Representation of the People Order, 1972 as amended up to August, 2001 extends the disqualification to the holders of office of profit in the service of all statutory public authorities and thus employees of all statutory authorities are disqualified to be members of Parliament. Art.66(2A) specifically provides that the office of the President, Prime Minister, Minister, Minister of State or Deputy Minister shall not be deemed to be office of profit for the purpose of art.66(2) and the holders of these offices shall not be disqualified to be members of Parliament. But art.50(4) provides that the President during his term of office shall not be qualified for election as member of Parliament. There is thus a conflict between art.50(4) and art.66(2A). Art.50(4) being a specific provision relating to the President shall prevail over the general provision of art.66(2A) in respect of office of profit.

4.8 *Contracts with government:* Art.12(1)(b) of the Representation of the People Order, 1972 further extends the disqualification to a person who, whether by himself or by any person or body of persons in trust for him or for his benefit or on his account or as member of a Hindu undivided family, has any share or interest in a contract for the supply of goods to, or for the execution of any contract or the performance of any services undertaken by, the government.[3] A contract between a co-operative society and the government is excepted from this provision. The disqualification will not be attracted where (i) the share or interest in the contract devolves on the person by inheritance or succession or as a legatee, executor or administrator until the expiration of six months after the devolution or such longer period as the President may in a particular case allow; (ii) where the contract has been entered into by or on behalf of a public limited company of which the person is a shareholder, but not a managing agent or director holding an office of profit; or (iii) where the person is a member of a Hindu undivided family

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[1] *Shibu Soren v. Dayananda*, AIR 2001 SC 2583

[2] Art.152(1)

[3] *Sewaram v. Sobaran Singh*, AIR 1993 SC 212 (A candidate continuing contract work through the proxy of his brother is disqualified)

and the contract has been entered into by any other member of that family in course of his separate business in which the person has no share or interest. The question arises whether a contract which did not comply with the formality of art.145 will attract the disqualification.[1] In *Chatturbhuj v. Moreswar*[2] the Indian Supreme Court held that a candidate would be disqualified if the contract was authorised but not in form. Subsequently, the court held that a contract not in form would not disqualify a candidate where the government refused to ratify the contract[3], but the position would be otherwise where the government ratified the contract[4]. In applying the bar two considerations arise - one that the right to stand in the election is a valuable right which should not be readily defeated, and the other that a candidate for an elective office must be free to perform his duties without any personal motive or interest.[5] It may be argued that when an agreement has been made by an authorised officer, the protection of the public interest does not require strict compliance of the formality of art.145 and if the parties act as if the contract is an enforceable one even though not in proper form, there is no reason why the bar shall not be applied.[6] The bar is applicable when on the date of submission of the nomination paper the contract subsists and the question arises as to when a contract can be said to subsist. A contract for supply of goods or for the execution of works or the performance of any service undertaken does not cease to subsist until payment is made and the contract is fully discharged by performance on both sides.[7] In a contract for construction of roads the contract does not cease to subsist merely because the contract work has been finished and payment made when the contractor is under a contractual obligation to maintain the road for certain period and some minor works are to be finished.[8] However, when the payment has been made after completion of the work, but the contractor has no yet withdrawn the security money, the contract should be taken to have come to an end though technically

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[1] For discussion on enforceability of such a contract, see Para 6.56-6.59

[2] AIR 1954 SC 236

[3] *Laliteswar v. Bateswar*, AIR 1966 SC 580

[4] *Abdul Rahman v. Sadashiv*, AIR 1969 SC 302

[5] *Konappa v. Viswanath*, AIR 1969 SC 447; see also *Mostafa Hossain v. S.M. Faruque*, 40 DLR (AD) 10

[6] *Abdur Rahman v. Sadasiv*, AIR 1969 SC 302

[7] *Mostafa Hossain v. S.M. Faruque*, 40 DLR (AD) 10; *Laliteswar v. Bateswar*, AIR 1966 SC 580

[8] *Konappa v. Viswanath*, AIR 1969 SC 447

the accounts have not been closed.[1] The question is whether the respective rights and obligations have been settled. A candidate may be disqualified if there is a subsisting contract between the government and a partnership firm of which he was a partner but retired from it before submission of the nomination paper if the retirement has not become effective by public notice given under s.72 of the Partnership Act.[2]

4.8A *Default in payment of bank loans:* By an amendment of art.12 of the Representation of the People Order made in 1996 further disqualification has been added and it has been provided that a loanee, other than a loanee who has taken loan for construction of a house for residential purpose, has defaulted in repaying any loan or instalment thereof on the date of submission of nomination paper or a person who is a director of a company or a partner of a partnership firm which has defaulted in repaying any loan or installment thereof on the day of submission of nomination paper or a person being a director of a financial institution as defined in Artha Rin Adalat Act, 1990 has defaulted in payment of any loan or installment thereof on the date of submission of nomination paper will be disqualified. By amendment of the Order in August, 2001 Explanation V has been added stating that a person or a company or a firm shall be deemed to have defaulted in repaying a loan or an installment thereof if he or it is a defaulter within the meaning of Bank Companies Act, 1991. The exclusion of the loanees who took loan for building houses for residential purposes without any limit with respect to the amount of loan may be found unreasonable and discriminatory when we take into consideration the recent business of developers who take loan from the banks in crores for building houses for residential purposes.[3]

4.8B *Other disqualifications under the Representation of People Order:* Under art.12 of the Representation of the People Order as amended in August, 2001 the following persons are disqualified for parliamentary election –

(i) a person who is convicted of an offence punishable under arts.73, 74, 78, 79, 80, 81, 82, 84 and 86 of the Order and sentenced to imprisonment for a term of not less than two years, unless a period of five years has elapsed since the date of his release;

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[1] *Mostafa Hossain v. S.M. Faruque*, 40 DLR (AD) 10; See *Munishamappa v. Venkatarayappa*, AIR 1981 SC 1177

[2] *Mahmudun Nabi v. Mafizur Rahman*, 42 DLR (AD) 120

[3] See para 4.9B

(ii) a person whose election to a seat is declared void on any of the grounds mentioned in art.63(1)(c)(d)(e) of the Order, unless a period of five years has elapsed since the ate of such declaration; and

(iii) a person who has been dismissed or removed or compulsorily retired from the service of the Republic or of any statutory public authority on the ground of corruption, unless a period of five years has elapsed since his dismissal, removal or compulsory retirement.

4.9 ***Vacation of seat:*** Art.67(1)(a) provides that a member of Parliament shall vacate his seat if he fails, within the period of ninety days from the date of the first meeting of Parliament after his election, to make and subscribe the oath or affirmation prescribed for a member of Parliament in the Third Schedule unless the Speaker, before the expiration of that period, extends the period for good cause. Art.71(2) permits a person to contest an election from more than one constituency. However, a person having been elected as a member of Parliament from more than one constituency shall cease to be a member from all of those constituencies if he fails to intimate the Chief Election Commissioner within the stipulated period of thirty days the constituency which he wishes to represent as in terms of art.71(1) he cannot remain a member of Parliament in respect of two or more constituencies. He cannot also make or subscribe the oath or affirmation of a member of Parliament until he gives the aforementioned intimation to the Chief Election Commissioner.

4.9A A member of Parliament shall vacate his seat if he absents from Parliament, without the leave of Parliament, for ninety consecutive sitting days.[1] In *Special Reference No.1 of 1995*[2] a question arose whether walk-out from Parliament and thereafter boycotting the sessions of Parliament by all the opposition members of Parliament would constitute absence from Parliament without leave of Parliament within the meaning of art.67(1)(b). The Appellate Division opined that the word 'absent' cannot receive different interpretations in different circumstances, and walk-out and boycott, by whatever name it is called, means 'not present'. Hence, walk-out and boycott constitute 'absence' and when continued for ninety consecutive sitting days results in vacation of seat of the members concerned. The Appellate Division further held that in computing ninety consecutive sitting days, the period

[1] Art.67(1)(b)
[2] 47 DLR (AD) 111

between two sessions and even adjournments in a particular session should be excluded as otherwise the provision of art.67(1)(b) would be nugatory. The Rules of Procedure is silent about computation and determination of the period of absence, but as the Speaker is vested with the function of bringing the fact of absence to the notice of the House, if in session, or informing the House, if not in session, immediately after the House reassembles, it is reasonable to hold that the Speaker has the responsibility to get the computation done with the help of his Secretariat.[1]

4.9B Members of Parliament shall vacate their seats upon dissolution of Parliament. A member of Parliament shall vacate his seat if he has incurred a disqualification for election as member of Parliament stipulated in art.66(2).[2] In terms of art.66(2) the disqualification applies not only for contesting in the election, but also for continuing as member of Parliament. Thus a member of Parliament will vacate his seat if he incurs the disqualification after the election. However, the disqualification of a defaulter in payment of bank dues had been framed in such a way that a member of Parliament would not be disqualified if he became a defaulter after his election because the relevant law made default in payment of bank loan a disqualification for being elected, and not a disqualification for continuing, as a member of Parliament. The law was amended in 1996 to preclude defaulters from holding the office of member of Parliament. But the deficiency in the drafting permitted a defaulter to obtain rescheduling of his loan by making certain payment before the election and thereafter be free for the entire term of Parliament. The deficiency has been cured by Ordinance No.I of 2001 and now a person cannot continue as a member of Parliament, if he defaults in payment of bank loan after being elected.

4.9C Art.70 provides that a member of Parliament shall vacate his seat if he resigns from the party which nominated him as the candidate in the election or votes in Parliament against that party. The term 'resign' may have an extended meaning. Joining the Ministry formed by one party after being elected on the nomination of another party may sometimes constitute resignation from the latter party within the meaning of art.70.[3] A member of Parliament shall be deemed to have voted against the party which nominated him if he being present in

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[1] Ibid, p.130

[2] See para 4.4 supra

[3] See Para 5.10B

Parliament abstains from voting or absents himself from any sitting of Parliament ignoring the direction of that party.[1] Violation of any direction of the party will not lead to vacation of seat. The direction must be one relating to the two specified matters. Violation of a direction of the party to refrain from attending the sittings of Parliament will not attract the mischief of art.70. As the Constitution contemplates the duty of the members to attend the sittings of Parliament and provides for vacation of seat for absence from Parliament for a specified number of sitting days[2], there cannot be any constitutionally valid direction to refrain from attending the sittings of Parliament. The direction of the party means the direction given by the leader of that party. If any dispute arises as to who is the leader of a party, the Speaker is to settle the dispute in the manner prescribed by art.70(2). If a member of Parliament was elected as an independent candidate and then joined any party, he shall be deemed to have been elected as a nominee of that party.

4.10 If any dispute arises as to whether a member of Parliament has, after his election, become subject to any disqualification mentioned in art.66(2) or as to whether he should vacate his seat in terms of art.70, the dispute shall be referred to the Election Commission to hear and determine it and the decision of the Commission shall be final[3] This finality, however, cannot altogether exclude judicial review by the Supreme Court, but finality having been attached by the Constitution itself, the judicial review will be confined to jurisdictional errors only, viz., infirmities based on violation of constitutional mandate, *mala fide* or non-compliance with the principles of natural justice.[4] Parliament may by law make provisions empowering the Election Commission to give full effect to the provision of art.66(4)[5]. The disqualification may arise before or after the election. The Election Commission has power to decide the question of disqualification only if the disqualification has

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[1] Explanation to Art.70(1)

[2] Art.67(1)(b)

[3] Art.66(4)

[4] *Kihota Hollohon v. Zachilhu*, AIR 1993 SC 412 (Tenth Schedule of the Indian Constitution imparts finality to the decision of the Speaker in respect of dispute relating to floor crossing and the Indian Supreme Court held that the Speaker's decision is subject to judicial review on limited grounds); *Jamal Shah v. Election Tribunal*, 18 DLR SC 1 (Judicial review is available on limited grounds in spite of constitutional finality of the decision of Election Tribunal under art.171 of the Pakistan Constitution of 1962)

[5] Art.66(5)

arisen after the election. The language 'has, after the election, become subject to the disqualification' in art.66(4) makes it clear that the Election Commission has no power to decide if the disqualification arose before the election[1]. If no election petition has been filed challenging the candidature of a person who was disqualified for the election, the remedy lies by way of a writ of *quo warranto*[2].

4.10A Article 66(4) is silent as to the authority who is to refer the dispute to the Chief Election Commissioner. However, rule 178 of the Rules of Procedure provides that the Speaker shall make the reference to the Chief Election Commissioner. Art.66(5) provides that Parliament may make law empowering the Election Commission to give full effect to art.66(4). In terms of art.66(5), the Members of Parliament (Determination of Dispute) Act, 1980 has been enacted and it requires the Speaker to prepare a statement regarding such a dispute and refer it to the Election Commission for determination and decision of the dispute. It *prima facie* appears that any member of Parliament can raise the dispute on the floor of Parliament for the Speaker to take notice of the disqualification. But from that it does not follow that the question can be raised only by a motion on the floor of the House or for that matter by a member only. The Speaker can act *suo moto* and in a proper case he may be directed by the Supreme Court to make a reference where he had refused to do so and a petition for that relief has been brought.[3]

4.10B In the seventh Parliament two persons were elected on the nomination of Bangladesh Nationalist Party and they were appointed as Ministers by the ruling party. They did not resign from Bangladesh Nationalist Party, but Bangladesh Nationalist Party wrote letters requesting the Speaker to publish notification under rule 178 stating that they vacated their seats as members of Parliament as their conduct amounts to resignation from Bangladesh Nationalist Party. The Speaker refused to publish the notification or to refer the matter to the Election Commission. The Speaker took the stand that there was no allegation of

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[1] *Election Commission v. Saka Venkata*, AIR 1953 SC 210; *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203

[2] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203; *Zahedul Islam Khan v. H.M. Ershad*, 6 BLC 301, affirmed in *H.M. Ershad v. Zahedul Islam Khan*, 2001 BLD (AD) 142

[3] *Mustafa Khar v. Chief Election Commissioner*, PLD 1969 Lah 602; *Secy. Parliament v. Khandker Delwar Hossain*, 1999 BLD (AD) 276

resignation or voting against Bangladesh Nationalist Party and as such there was no dispute to be referred to the Election Commission. The Appellate Division, affirming the judgment of the High Court Division[1], held that the facts and circumstances of the case disclosed a dispute regarding the alleged resignation of the two members and the Election Commission is the authority designated by the Constitution to determine the question as to what is meant by resignation and whether the two members resigned, and accordingly directed the Speaker to refer the matter to the Election Commission. The Appellate Division further held that in dealing with the matter the Speaker was not acting as the constitutional head of the legislature, but as a statutory authority and the Supreme Court can give the necessary direction to the Speaker.[2] The Speaker then referred the matter to the Election Commission which held that joining the Ministry of the ruling party constituted resignation from Bangladesh Nationalist Party attracting the mischief of art.70. But another member elected on the nomination of Jatiyo Party did not fall within the mischief of art.70 by joining the Ministry of the ruling party as the said member joined the consensus government of the ruling party with the consent of Jatiyo Party and its leader and the reference of the matter by the Speaker to the Election Commission was found to be without lawful authority.[3]

4.10C *Remuneration and privileges:* Art.68 provides that the members of Parliament shall be entitled to such remuneration, allowances and privileges as may be determined by an Act of Parliament, or until so determined, by order made by the President. Accordingly, the Members of Parliament (Remuneration and Allowances) Order, 1973 was made. By the Members of Parliament (Salaries and Allowances)(Second amendment) Act, 1987 art.3C was inserted whereby provision was made allowing the members of Parliament are allowed to import car or jeep free of duty and taxes. This amendment was challenged, but the court rejected the contention of the appellant stating –

> A Member of Parliament is entitled to such privileges as the Parliament may determine and the determination is an act of discretion, propriety and sense of decency on the part of Parliament. The import of a car or

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[1] *Khandokar Delawar Hossain v. The Speaker*, 1998 BLD 45

[2] *Secretary, Parliament v. Khondker Delwar Hossain*, 1999 BLD (AD) 276; see also Para 4.9C

[3] *Anwar Hossain v. Election Commission*, 53 DLR 546

jeep free from duty etc. may offend the sense of decency and dignity of a section of the people outside of the Parliament but if the Parliament thinks that it is commensurate with the quality and quantity of work of the Member of Parliament in the discharge of his/her duties as a Member of Parliament, the outsider may bemoan the lack of sense of decency on the part of Parliament to enact such a legislation, but it is certainly cannot be said to be unconstitutional. What looks indecent to others may in fact be constitutionally permissible.[1]

RESIGNATION BY MEMBERS OF PARLIAMENT

4.10D Art.67(2) confers a right to a member of Parliament to resign and provides that a member of Parliament may resign his seat by writing under his hand addressed to the Speaker and the seat shall become vacant when the writing is received by the Speaker or, if the office of the Speaker is vacant or the Speaker is unable to perform his function, by the Deputy Speaker. Thus the members of Parliament, like the holders of other constitutional posts and offices, have the unilateral right of resignation, effectiveness of which is not dependent on the acceptance of the resignation by any authority.[2] If the resignation letter contains a future date of effectiveness, the resignation takes effect on the stipulated date and the resignation may be withdrawn before that date.[3] The entire resignation letter need not be in the hand of the member concerned; it is sufficient if it is signed by him.[4] To be effective the formalities must be complied with, that is, the resignation must be signed by the member of Parliament concerned, addressed to and reach the Speaker, and the resignation must be genuine and voluntary[5]. The Pakistan Constitution of 1962 required the resignation letter to be addressed to the Speaker and when a member of National Assembly of Pakistan addressed his resignation letter to the President without any request to transmit it to the Speaker and sent a letter to the Speaker withdrawing the resignation letter before it reached the Speaker, the Pakistan Supreme Court held

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[1] *Dr. Ahmed Hossain v. Bangladesh*, 51 DLR (AD) 75

[2] see *India v. Gopal Chandra*, AIR 1978 SC 694; *Fazlul Quader Chowdhury v. Shah Nawaz*, 18 DLR (SC) 62

[3] Ibid; *Kunja Krisna v. Speaker*, AIR 1964 Kerala 194

[4] *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361

[5] *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361; *Thankamma v. Hon'ble Speaker*, AIR 1952 TC 166; *Tahir Beg v. Kausar Ali*, PLD 1976 SC 504

that the resignation was not effective.[1] Arts.101 and 190 of the Indian Constitution provided that a member of a legislature might resign by writing under his hand addressed to the Speaker. A question arose whether the resignation letter would be effective only when the Speaker is satisfied as to the genuineness of the resignation letter. The Indian Constitution did not designate any authority for determination of any dispute as to the genuineness of a resignation letter. The Indian High Courts held that a resignation letter would be effective when the Speaker is satisfied about its genuineness.[2] Subsequently, arts.101 and 190 were amended in 1974 to provide that the resignation would be effective on acceptance of it by the Speaker. But no such provision for acceptance of resignation by the Speaker is there in the Constitution. Hence a resignation letter of a member of Bangladesh Parliament will be effective when it properly reaches the Speaker without any requirement of acceptance by the Speaker.[3] However, if any dispute arises or there appears any doubt as to the genuineness or validity of the resignation, the Constitution having not designated any authority to decide the dispute, the Speaker will have to be conceded the power to make the enquiry and the resignation shall take effect from the date it reaches the Speaker, once the Speaker finds the resignation letter to be valid and genuine.[4] The resignation letter should not contain any reason for resignation, but if any member gives any reason or introduces any extraneous matter, the Speaker may, in his discretion, omit such words, phrases or matter and the same shall not be read out in the House.[5] The Speaker has to bring the resignation to the notice of the House, if it is in session, or when Parliament is not in session, to inform Parliament

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[1] *Fazlul Quader Chowdhury v. Shah Newaz*, 18 DLR (SC) 62

[2] *Thankamma v. Hon'ble Speaker*, AIR 1952 TC 166; *Surat Singh v. Sudama Prasad*, AIR 1965 All 536

[3] Rule 177(2) of the Rules of Procedure

[4] *Tahir Beg v. Kausar Ali*, PLD 1976 SC 504 (Where the genuineness or validity of resignation is challenged or *ex facie* is doubtful, the Speaker shall be under a duty to enquire into the matter, before he allows the resignation to take effect. This is notwithstanding that the resignation takes effect automatically once it reaches the Speaker for it is implicit in the provision that the resignation is genuine and voluntary and was intended to reach the Speaker.... What will be the magnitude of the enquiry or whether, in a particular case, any such enquiry will at all be necessary, will depend on the facts of each case and it is not possible, nor even desirable to lay down a criterion for general application.); see *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361

[5] Rule 177(1) of the Rules of Procedure

immediately after the House reassembles[1] and thereafter the Secretary to Parliament has to cause notification published in the Gazette and forward a copy of the notification to the member concerned and the Election Commission.[2] Information given to the House and publication of notification are merely consequential steps. When there is nothing to find the resignation to be not genuine or not voluntary the resignation takes effect irrespective of whether those consequential steps are taken or not. On getting information the House is not required to debate or take decision on the resignation and hence resignation and its effectiveness has nothing to do with the proceedings of Parliament. Furthermore, a dispute relating to resignation involves the question of title of a member of Parliament. As such art.78(1) of the Constitution does not stand as a bar to determination of any dispute relating to resignation of a member of Parliament by the Supreme Court.[3]

4.10E In 1995 two writ petitions were filed before the High Court Division, one challenging the validity of resignation of 147 members of Parliament and the other seeking a *mandamus* upon the Speaker for giving decision on the validity of those resignations. Both the petitions were dismissed as being premature as the Speaker had not yet taken the decision as regards genuineness and voluntariness of the resignations.[4] The resignations were tendered on 28.12.1994 and the Rules were issued by the court on 18.1.1995. Art.67(2) read with rule 177(2) of the Rules of Procedure clearly show that a resignation letter shall take effect when it reaches the Speaker. There is no provision for acceptance of the resignations by the Speaker and effectiveness of resignation is not dependent on its acceptance by anybody. On interpretation it is found that no resignation can be effective unless it is genuine and voluntary and as such some body must determine the genuineness and voluntariness if such a question arises or is apparent. Hence, the Speaker is conceded the power for the smooth working of the relevant provision of the Constitution. In this context it cannot be held that the Speaker can sit over the resignations tendered. In view of the provision that a resignation shall take effect when it reaches the Speaker, it cannot but be held that the Speaker must decide the question, if any arises or is apparent, immediately and if he has not taken a decision for a

[1] Rule 178(3) of the Rules of Procedure

[2] Rule 178(4) of the Rules of Procedure

[3] *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361; *Special Reference Case no.1 of 1995*, 47 DLR (AD) 111

[4] *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361

considerable number of days, it may be taken that the Speaker has refused to treat the resignation valid and the Supreme Court will have jurisdiction to entertain a petition and decide the dispute. It is submitted that the finding of prematurity of the writ petitions is open to exception.

4.10F Following the allegation of massive rigging in Magura by-election, the members of the opposition parties in the Fifth Parliament resigned *en masse* on the ground of "the failure of the ruling party to introduce a bill to Parliament for amending the Constitution to provide for holding general elections to Parliament under neutral, non-partisan government comprising nominated persons."[1] The Speaker informed the House that in his view *en masse* resignations on such ground is not contemplated by art.67(2). It is submitted that when the members of Parliament have individually the right to resign, that right cannot be denied when it is exercised together with others. As the word 'absent' cannot have different meaning because of walk-out and boycott[2], resignation cannot have different meaning only because the right has been exercised *en masse*. It may be argued that resignation *en masse* by the members of a political party may be a legitimate exercise of their right to force the party in power to hold general election or by-election to seek the mandate of the people, the ultimate sovereign, on a particular issue. The Speaker cannot go beyond the question of genuineness and voluntariness of the resignation and cannot raise any further question.[3] As regards the reasons given in the resignation letters, rule 177(1) permits the Speaker to omit the words he finds objectionable, but for that reason he cannot refuse to treat the resignation letters as valid resignations unless he has materials before him to decide that the resignations were not genuine and voluntary.[4]

OFFICERS Of PARLIAMENT

4.11 The Speaker is the chief officer of Parliament. Parliament at the first session after a general election has to elect from among its members a Speaker and a Deputy Speaker. If either office becomes vacant, Parliament at its first meeting after the occurrence of the vacancy has to

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[1] *Special Reference No.1 of 1995*, 47 DLR (AD) 111, 115

[2] see *Special Reference No.1 of 1995*, 47 DLR (AD) 111

[3] *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361 (*per K.E. Hoque J*)

[4] see *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361 (K.E. Hoque J held the formality of rule 177 to be directory)

elect one of its members to fill the vacancy[1]. The Speaker or the Deputy Speaker shall vacate his office - (1) if he ceases to be a member of Parliament; (2) if he becomes a Minister; (3) if Parliament passes a resolution (after not less than 14 days' notice has been given of the intention to move the resolution) supported by the votes of a majority of all the members of Parliament, requiring his removal; (4) if he resigns his office by delivering a letter of resignation to the President; (5) if after a general election another member enters upon that office; or (6) in the case of the Deputy Speaker, if he enters upon the office of the Speaker[2]. But notwithstanding the occurrence of the incidents mentioned in art.74(2), the Speaker or, as the case may be, the Deputy Speaker, shall be deemed to continue to hold office until his successor enters upon office[3]. The Speaker and the Deputy Speaker are to take oath in terms of art.148 before entering upon office.[4]

4.12 If the office of the Speaker is vacant or if the Speaker is acting as the President or if it is determined by Parliament that the Speaker is otherwise unable to perform his function, those functions shall be performed by the Deputy Speaker or if the Deputy Speaker's office is also vacant, the function of the Speaker shall be performed by such member of Parliament as may be determined by or under the Rules of Procedure of Parliament. During the absence of the Speaker from any sitting of Parliament the Deputy Speaker or, if he is also absent, such person as may be determined by or under the Rules of Procedure, shall act as the Speaker[5]. The Speaker or the Deputy Speaker shall not preside over any sitting of Parliament in which a resolution for his removal from office is under consideration and such a sitting shall be presided over in accordance with the provision of art.74(3) as if he is absent[6]; but he shall have the right to speak in, and otherwise to take part in the proceeding and shall be entitled to vote only as a member of Parliament[7].

4.13 The office of the Speaker enjoys great prestige, position and authority within Parliament. He has extensive powers to regulate the proceedings of Parliament under the Rules of Procedure. The ordinary

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[1] Art.74(1)
[2] Art.74(2)
[3] Art.74(6)
[4] For remuneration, privileges and other terms and conditions of the office, see Para 6.59B
[5] Art.74(3)
[6] Art.74(4)
[7] Art.74(5)

interpretation of the procedural laws, rules and customs of Parliament is his function and he allows no debate or criticism of his rulings except on formal resolution. He is responsible for the orderly conduct of Parliament's proceedings and maintains discipline and order in Parliament. Following the British practice, the Constitution has provided that the certificate given by the Speaker that a Bill is a Money Bill is conclusive for all purposes and shall not be called in question in any court[1] "The Speaker is the representative and spokesman of Parliament in its collective capacity, he presides at the meeting of the House, and declares and interprets the law. He does not claim power to make or alter the law, merely to be its exponent. But where the precedents, rulings, and the orders of the House are insufficient or uncertain guides, he has to consider what course would be most consistent with the usage, traditions and dignity of the House, and the rights and interests of its members, and on these points his advice is usually followed, and his decisions are very rarely questioned."[2] If any vacancy occurs in the office of the President or if the President is unable to discharge his functions on account of absence, illness or any other cause the Speaker functions as the acting President until a President is elected or until the President resumes his functions[3].

4.14 To ensure independence and impartiality of the office of the Speaker and the Deputy Speaker, it has been provided that their remuneration, privileges and other terms and conditions of service shall be determined by an Act of Parliament and once determined shall not be varied to their disadvantage during the term of their office[4]. Their remuneration shall be charged upon the Consolidated Fund which may be discussed but shall not be submitted to the vote of Parliament[5].

4.15 Parliament has its own secretarial staff. The terms of recruitment and conditions of service of persons appointed to the secretarial staff of Parliament are to be regulated by an Act of Parliament and until such law is made, the President may in consultation with the Speaker make rules regulating the recruitment and conditions of service of persons appointed to the secretariat of Parliament and those rules shall have effect subject to the provisions of law[6].

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[1] Art.81(3)
[2] Ilbert - Parliament, 1953, p.125
[3] Art.54
[4] Art.147
[5] Arts. 88 and 89
[6] Art.79

MEETING OF PARLIAMENT

4.16 The power to summon Parliament to meet has been vested in the President[1] who shall act in accordance with the written advice of the Prime Minister. After a general election Parliament must be summoned to meet within thirty days after declaration of the results of the election[2]. Thereafter between two sessions a period exceeding sixty days must not intervene between the end of one session and the first meeting of the next session. The President is to summon Parliament by public notification specifying the time and place of the first meeting.

4.17 The President may address Parliament and may send message to Parliament. But at the commencement of the first session after a general election and at the commencement of the first session of every year the President shall have to address Parliament and Parliament shall thereafter discuss the matters referred to in such address or message of the President[3]. The requirement of the President's address at the beginning of the first session is mandatory and Parliament cannot be said to have met and it cannot transact its business unless this preliminary has been done[4]. But the position will be different if he failed to address due to disturbance and left the House laying the address on the table of the House and he will be deemed to have addressed Parliament.[5] The President has to act on the advice of the Prime Minster and the address of the President is in reality the government's address to Parliament delivered through the President. The President's address fulfills two functions, namely, it provides a ceremony with which Parliament begins its session and it underscores the government's responsibility to Parliament as the President's address contains a general statement about the government's foreign and domestic policies and outlines the government's plans for the principal business of the session. In the discussion that follows, the members of Parliament may raise any question of general policy, public administration and political situation.

4.18 *Rules of procedure:* Subject to the provisions of the Constitution, the procedure of Parliament shall be regulated by the rules of procedure made by Parliament and until such rules are made, by the

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[1] Art.72(1)
[2] Art.72(2)
[3] Art.73
[4] *Syed Abul Mansur v. West Bengal Legislative Assembly*, AIR 1966 Cal 363
[5] Ibid

rules of procedure made by the President[1]. In making the rules of procedure Parliament cannot alter the quorum which has been fixed at sixty members by art.75(2) which incorporated the British practice of not taking notice of the lack of quorum until some member draws attention of the lack of quorum to the person presiding over the meeting. On such attention being drawn the person presiding over the meeting shall either suspend the meeting until at least sixty members are present or adjourn the meeting. This gives the advantage of transacting formal business even without quorum. The decision in Parliament are taken by majority of votes of the members present. The person presiding can cast his vote only when there is equality of votes[2]. In such a situation of equality of votes, voting is not optional with him; he must cast vote to arrive at a decision. Every Minister shall have the right to speak and take part in the proceeding, but he shall not be entitled to vote or to speak on any matter not related to his Ministry if he is not a member of Parliament[3].

4.19 No proceeding in Parliament shall be invalid only because there is vacancy in the membership thereof or a person who was not entitled to be present was present at, or voted or otherwise participated in the proceeding[4]. But this provision will not save a proceeding of Parliament in which total strangers or intruders without any colour of right had participated in the proceeding and the decision taken will be struck down by the court.[5] In such a case art.78(1) which precludes the court from questioning the proceedings of Parliament cannot be pressed in aid to avoid interference of the court as it is a question affecting the constitution of Parliament and is not a matter which pertains either to the regulation of the proceedings of Parliament or the conduct of its business or maintenance of order of Parliament or any matter affecting any of its privileges.[6]

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[1] Art.75(1)
[2] Art.75(1)(b)
[3] Art.73A
[4] Art.75(1)(c)
[5] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203; see also *Pakistan v. Ali Ahmed*, PLD 1955 FC 522
[6] Ibid

TERMINATION OF PARLIAMENT

4.20 The power of prorogation of Parliament vests in the President who acts in this matter on the advice of the Prime Minister. Prorogation brings an end to the session of Parliament. It does not put an end to the existence of Parliament. Parliament meets again after prorogation. In England prorogation terminates all business pending in Parliament, but not in Bangladesh. Any Bill or any other business pending in Parliament or pending assent of the President does not lapse by the prorogation[1]. Contempt of Parliament committed in one session can be dealt with and punished in another session[2].

4.21 An adjournment terminates a sitting of Parliament. While the power of dissolution and prorogation lies with the President, the power of adjournment lies with Parliament itself and, in practice, is exercised by the Speaker or the Speaker *pro tempore*. Parliament may adjourn its sitting for such time as it pleases; it may adjourn for less than a day, for a day or from day to day and sometimes over the holidays intervening in the course of the session. Parliament may adjourn *sine die* without naming a day for re-assembly. An adjournment does not affect the unfinished work before Parliament which may be taken up on resumption of the sitting after the adjournment[3].

4.22 Dissolution, however, puts an end to a Parliament and leads to a general election for composition of a new Parliament. The power of dissolution of Parliament is vested with the President to be exercised in accordance with the written advice of the Prime Minister[4]. On dissolution, all business pending before Parliament at the time of dissolution comes to an end, but a Bill already passed by Parliament and awaiting assent of the President does not lapse[5].

FUNCTIONS OF PARLIAMENT

4.23 Parliament is a legislative and deliberative body. Its functions are - (a) legislation, (b) control of public finance, and (c) deliberation and discussion. Further art.142 of the Constitution confers power of amendment of the Constitution on Parliament.

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[1] *Purushattaman v. Kerala*, AIR 1962 SC 694
[2] *Sharma v. S.K. Sinha*, AIR 1960 SC 1186
[3] *Siddaveerappa v. Mysore*, AIR 1971 Mys 200
[4] See Para 3.14 and 3.27
[5] *Purshottaman v. Kerala*, AIR 1962 SC 694

4.24 ***Legislation:*** Subject to the provisions of the Constitution, art.65 vests the legislative power of the Republic in Parliament . Parliament has the plenary power of legislation over all subjects except those in respect of which the power of legislation has been entrusted by the Constitution to some other functionary. Thus Parliament cannot pass any law relating to appointment of the staff of the Supreme Court and appointment of judicial officers and magistrates exercising judicial functions.[1] Parliament cannot make any law inconsistent with the provisions of Part III of the Constitution relating to the fundamental rights and any law inconsistent with those provisions shall, to the extent of inconsistency, be void.[2] Parliament cannot also make laws contrary to the other provisions of the Constitution.[3] For example, it cannot make a law providing for any local government institution composed of persons not elected by the people[4], or curtailing the doctrine of pleasure relating to the services of the Republic[5], or making a law which may permit removal of a holder of a civil post in the service of the Republic by an authority subordinate to him or without service of notice as provided by art.135, or changing the terms and conditions of service of the holders of offices mentioned in art.147 to the disadvantage of the holders of those offices during the term of their office. In exercise of the power, Parliament may legislate prospectively or retrospectively, provided it does not thereby violate any of the fundamental rights[6]. Parliament may grant or withdraw an exemption from a law[7]. It may make permanent or temporary Act. It may also delegate the function of making subordinate legislation to another authority, provided such a delegation does not amount to delegation of essential legislative function.[8] The power of legislation includes the power of repeal, modification or alteration of the existing laws without contravening the provisions of the Constitution[9]. A legislature cannot by legislation bind its successor and thus Parliament

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[1] Art.113 and 115; *Secy. Ministry of Finanace v. Masdar Hossain*, 2000 BLD (AD) 104

[2] Art.26

[3] Art.7

[4] Art.59; *Kudrat-e-Elahi v. Bangladesh*, 44 DLR (AD) 319

[5] Art.134

[6] For detailed discussion see Para 2.109 and 2.110

[7] *MDC Bank v. ITO*, AIR 1975 SC 2016

[8] Art.65; see Para 4.33 – 4.36

[9] *Sajjan Singh v. Rajasthan*, AIR 1965 SC 845

cannot pass any unamendable or irrepealable law.[1]

4.25 Making of laws is the major function of Parliament. But the modern complex society requires very complicated and extensive laws for which Parliament has not the time. Parliament often legislates in skeleton leaving the details to be filled up by the executive departments and other authorities. The proposed law originates in Bill form and its passage is regulated by the rules of procedure framed by Parliament[2]. Before a Bill is presented before Parliament considerable time is spent in the executive department. After the Cabinet decides to go for the legislative proposal, the Bill is drafted by the government draftsman and the draft is considered by the Cabinet or a committee of the Cabinet. Expert opinion is often obtained and in the light of the opinion the Bill in final form is prepared. The Bill passes through three stages before being passed. The first is the introduction stage[3] and by convention no discussion takes place at this stage unless the Bill is very controversial. Notice of motion for leave to introduce the Bill is given and if the motion that 'the Bill be taken into consideration' is passed the second stage is reached. At this stage a general discussion of the principles and provisions of the Bill follows and the general discussion takes place on a motion either that the Bill be taken up for consideration or that it may be referred to a Standing Committee or that it may be referred to a Select Committee or that it be circulated to elicit public opinion[4]. An important or complex Bill is generally referred to a Standing or Select Committee. When referred the Committee is required to examine the Bill in the light of the discussion that took place in Parliament and report to Parliament. After the Committee sends its report to Parliament, the Bill is discussed clause by clause. Amendments to clauses may be moved at this stage[5]. At the final stage, after a brief general discussion, the Bill is finally passed[6] and the Bill is sent to the President for his assent[7]. The President has no power to veto a Bill passed by Parliament. The President may within fifteen days of the presentation of the Bill either assent to the Bill or return it to Parliament with a message requesting that the Bill or any particular provision thereof be reconsidered and that any amendment

[1] *Shahriar Rashid Khan v. Bangladesh*, 1998 BLD (AD) 155, Para 54
[2] Rules of Procedure of Parliament were framed on 22 July 1974
[3] Rule 75 of the Rules of Procedure
[4] Rule 77 of the Rules of Procedure
[5] Rules 81-89 of the Rules of Procedure
[6] Rules 90-94 of the Rules of Procedure
[7] Rule 96 of the Rules of Procedure

specified by him be considered. If the President fails to do either of the two, the Bill is deemed to have been assented to by him on the expiry of the period of fifteen days after presentation of the Bill to him. If the President returns the Bill, Parliament is to reconsider it and if it passes the Bill with or without amendment, the President has to assent to the Bill within seven days of presentation of the Bill to him and if he fails to do so, the Bill is deemed to have been assented to by him.[1] On the actual or constructive assent of the President, the Bill passed by Parliament becomes an Act of Parliament.

4.26 An important characteristic of the parliamentary system is the predominance of the Cabinet which virtually monopolizes the business in Parliament. So long as the party in power commands the majority support in Parliament, the Cabinet is in full control of Parliament and it is the Cabinet that decides what shall be discussed in Parliament, when it shall be discussed, how long the discussion shall take place and what the decision shall be. Practically all the Bills that ultimately pass through Parliament are sponsored by the Ministers who are under the constant pressure of organised groups and interests seeking redress through legislation. A member of Parliament who is not a Minister may sponsor a Bill[2]. But the private member's Bill has little chance of being passed without the government's support. The power of the private members is extremely limited and not much scope is left for their individual enterprise and initiative. Most of the parliamentary time is consumed by the government's business and only one day in a week is reserved as private members' day. The problem before a modern government is one of time and there are always a number of government Bills waiting in the line for passage by Parliament. Consequently, the private member's Bill is more often sidetracked to accommodate the government's business.

4.27 *Colourable legislation:* Where the power of the legislature is limited by the Constitution or the legislature is prohibited from passing certain laws, the legislature sometimes makes a law which in form appears to be within the limits prescribed by the Constitution, but which in substance transgresses the constitutional limitation and achieves an object which is prohibited by the Constitution. It is then called a colourable legislation and is void on the principle that what cannot be done directly cannot also be done indirectly. The underlying idea is that

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[1] Art.80

[2] Rule 72 of the Rules of Procedure

although a legislature in making a law purports to act within the limit of its powers, the law is void if in substance it has transgressed the limit resorting to pretence and disguise. The essence of the matter is that a legislature cannot overstep the field of its competence by adopting an indirect means. Adoption of such an indirect means to overcome the constitutional limitation is often characterised as a fraud on the Constitution. This happens more frequently in a federal system than in a unitary system as the legislature tries to overcome the limitation of the distribution of powers between the centre and the provinces.[1] In *A.G. for Ontario v. Reciprocal Insurers*[2] the Dominion legislature of Canada tried to control contracts of insurance by the Insurance Act, 1910 which was declared *ultra vires*. The Dominion legislature then passed a law making it an offence for any person to solicit or accept any insurance risk except on behalf of a company licensed under the Insurance Act, 1917. The Dominion contended that the law was made in its unfettered power of legislating on criminal law. The Privy Council rejected the contention observing -

> ... In accordance with the principle inherent in these decisions their Lordships think that it is no longer open to dispute that the Parliament of Canada cannot, by purporting to create penal sanctions under s.91, head 27, appropriate to itself exclusively a field of jurisdiction in which, apart from such a procedure, it could exert no legal authority, and that if, when examined as a whole, legislation in form criminal is found, in respects and for purposes exclusively within the Provincial sphere, to deal with the matters committed to the Provinces, it cannot be upheld as valid ...

4.28 The doctrine of colourable legislation does not, however, involve any question of *bona fide* or *mala fide* on the part of the legislature. It is not permissible for a court to impute malice to the legislature in making laws which is its plenary power.[3] The entire question is one of competence of the legislature to enact a law. A law will be colourable legislation if it is one which in substance is beyond the competence of the legislature. If a legislature is competent to do a

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[1] *Union Colliery Company of British Columbia v. Bryden*, [1899] AC 580; *W.R. Moran Pty Ltd v. Deputy Commissioner of Taxation*, [1940] AC 838

[2] [1924] AC 328; *Wadhwa v. Bihar*, AIR 1987 SC 579 (An Ordinance was re-promulgated without being placed before the State legislature was struck down as fraud on the Constitution)

[3] *Shahriar Rashid Khan v. Bangladesh*, 1998 BLD (AD) 155, Para 37

thing directly, then the mere fact that it attempted to it in an indirect manner will not render the law invalid.[1]

4.29 In *Kudrat-E-Elahi v. Bangladesh*[2] the Bangladesh Local Government (Upazila Parishad and Upazila Administration Re-organisation) (Repeal) Ordinance, 1991 was challenged. By this Ordinance Upazila Parishads were abolished and the rights, powers, authorities and privileges of the abolished Parishads were vested in the government. Art.59 of the Constitution provides that local government in any administrative unit of the Republic shall be entrusted to bodies composed of persons elected in accordance with law. It was urged on behalf of the appellants that the Ordinance was a colourable legislation inasmuch as by vesting the rights, powers, authorities and privileges of the abolished Parishads in the government indirectly local government functions of the Upazila Parishad were sought to be entrusted to persons who are not elected by the people. The court seems to have accepted the principle of colourable legislation. On the facts of the case M. Kamal J came to the finding that though any person or body, not elected in the area according to law cannot upon abolition of a local government tier take over those rights, powers, authorities and privileges of a local government institution, those powers, functions etc. which the government ceded to the Upazila Parishads will eventually go back to the government upon its abolition and the government will exercise those powers, functions etc. as governmental powers and not as powers, functions etc. belonging to the erstwhile Parishads and hence Parliament cannot be accused of colourable legislation. A.T.M. Afzal J rejected the challenge upon a similar view. S. Ahmed CJ, however, observed -

> It appears to us that the legislative drafting of section 2(2)(Kha), particularly the words in Bengali, "rights, powers, authorities and privileges of the abolished Parishad" has apparently created an impression that those attributes of the Parishads have remained to be enjoyed by the Government. If these words are deleted then no confusion is left.

It is submitted that when a legislature uses certain words in the law, the question of deletion of those words is a matter for consideration of the legislature and not of the court. If those words create unconstitutionality,

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[1] *Gajapati Narayan Deo v. Orissa*, AIR 1953 SC 375; *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319; See also *Bihar v. Kameswar Singh*, AIR 1952 SC 252; *Maharana Jaybhantsinghji v. Gujrat*, AIR 1962 SC 821.

[2] 44 DLR (AD) 319

the words should be declared *ultra vires*, provided those words are severable, otherwise the whole law is to be declared *ultra vires*. In Para 41 the learned Chief Justice held that the Ordinance is valid and not *ultra vires* except the words "rights, powers, authorities and privileges". Conversely, it means that the words "rights, powers, authorities and privileges" are *ultra vires;* but the learned Chief Justice did not pass any consequential order and it is not understood what is his definite conclusion in this regard.

4.30 ***Delegated legislation:*** The doctrine of separation of powers requires that the work of legislation should be exclusively done by the legislature and no other organ of the State should have the power of legislation. But it will be seen that measured in volume, more legislations are produced by the executive government than by the legislature in modern States. Emergence of welfare States together with vast technological developments has enormously increased the function of the State requiring huge amount of legislation. Legislature has no time to make all these laws in detail. Often the laws require dealing in complicated technical matters which can only be done by professionals and experts and legislators in general cannot have the necessary expertise. For example, an aviation law will run into so much technical details that it is not possible for the legislators to provide it. Welfare oriented legislations often give rise to manifold administrative difficulties which it is not possible to foresee and it is not possible to have frequent recourse to the legislature to amend the laws. Again, in times of emergency, the administration needs to move quickly and it is not possible for the legislature to act that quickly. Thus the practical necessity has given rise to a mode adopted by the legislature in legislating a framework of a law leaving it to the administration to fill up the details. Professor Wade comments -

> If we look at the practical side, it is at once plain that administration must involve a great deal of general law-making, and that no theory which demands segregation of these functions can be sound. Parliament can lay down that cars must carry suitable lights, or that the price of eggs shall be fixed, or that there shall be free health service, or that national insurance benefit shall be payable in certain cases. But where, as happens so frequently, such legislation can be properly administered only by constantly adjusting it to the needs of the situation, discretion has to be allowed. This is the work of the administration, in the clearest sense of the term, and the fact that it may also be said to be legislation is of no relevance. Flexibility is essential, and it is one of the advantages

of rules and regulations that they can be altered much more quickly and easily than can Acts of Parliament.[1]

4.31 *England and U.S.A.:* The question is whether there is any limitation on the power of delegation. In England there is no question of such a limitation inasmuch as the British Parliament is supreme and there is no constitutional limitation on its power. "The constitutional problem presented by delegated legislation is not that it exists, but that its enormous growth has made it difficult for Parliament to watch over it."[2] Because of the written constitution and particularly because of the doctrine of separation of powers the question of limitation arises in the American jurisdiction. The needs and realities of the situation compelled the American Supreme Court to concede to Congress extensive power of delegation of legislative function to administrative bodies stating that Congress can delegate its legislative power to administration prescribing standard for delegated legislation.[3] If there is no standard in the statute to limit delegations of power, it is the delegatee, rather than Congress, that is the primary legislator. S.9(c) of the National Industrial Recovery Act empowered the President to prohibit the transportation in interstate commerce of oil in excess of the amount permitted by State law. In *Panama Refining Co. v. Ryan*[4] the Supreme Court held the delegation invalid because Congress had not stated whether or in what circumstances or under what conditions the President was to exercise his prohibitory authority. Cardozo J dissented stating that the law provided the standard as s.1 declared the policy of Congress of removing obstruction to commerce, promoting industrial organisation, and eliminating unfair competition. Shortly thereafter, the Supreme Court again struck down a congressional delegation in *Schechter Poultry Corporation v. U.S.*[5]. S.3 of the National Industrial Recovery Act authorised the President to approve codes of fair competition for the governance of trades and industries. The President's power was as wide as the field of industrial regulation and he could impose any regulatory requirement he chose on the business concerned. *Schechter* involved the broadest delegation Congress had ever made and it involved abdication of commerce power by Congress. Since *Panama* and *Schechter*, the

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[1] Administrative Law, 6th ed., p.848
[2] Ibid, p.849
[3] *U.S. v. Chicago, M, St.*, 282 U.S. 311
[4] 293 U.S. 388
[5] 295 U.S. 495

American courts have moved in the direction of Cardozo dissent. Except in cases of personal rights of citizens, the Supreme Court permitted wide delegation even when there was no legislative standard set out in the statute[1] and as a result the executive has been vested with virtual blank cheque unrestrained by legislative controls.[2] But when it came to personal rights the Supreme Court asked for adequate standard. In *Kent v. Dulles*[3] the court dealt with the power of the Secretary of State to grant passport. That power impinged on the right to travel abroad. It was held, "If that `liberty' is to be regulated, it must be pursuant to the law-making functions of the Congress ... And if that power is delegated, the standards must be adequate to pass scrutiny by the accepted tests." The same was held when the First Amendment freedom was involved[4].

4.32 *British India:* In 1869 an Act was passed to remove Garo Hills from the system of law courts prevailing therein and to vest the administration of justice there in such officers as the Lt. Governor of Bengal might appoint. The law also authorised the Lt. Governor to extend to Garo Hills any law which might then be in force in other territories under him. The law was challenged on the ground of impermissible delegation of legislative power. The Privy Council upheld the Act stating -

> The proper Legislature has exercised its judgment as to place, persons, laws, powers; and the result of that judgment has been to legislate conditionally as to all these things. The condition having been fulfilled the legislation is now absolute. Where the plenary powers of legislation exists as to particular subjects, whether in an imperial or in a Provincial Legislature they may be well exercised, either absolutely or conditionally. Legislation conditional on the use of particular powers, or on the exercise of a limited discretion, entrusted by the Legislature to a person in whom it places confidence is no uncommon thing; and, in many circumstances, it may be highly convenient. The British Statute Book abounds with examples of it; and it cannot be supposed that the Imperial Parliament did not when constituting the Indian Legislature, contemplate this kind of conditional

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[1] *Fahey v. Mallonee*, 332 U.S. 245; *Yakus v. U.S.*, 321 U.S. 414; *Amalgamated Meat Cutters v. Connally*, 337 F. Supp. 737

[2] Schwartz - Administrative Law, p.57

[3] 357 U.S. 116

[4] *Shuttlesworth v. Birmingham*, 394 U.S. 147

> legislation as within the scope of the legislative powers which it from time to time conferred.[1]

Such a legislation is generally called 'conditional legislation' as distinguished from delegated legislation.[2] Power to apply a law to a particular area or power to extend the duration of a law is as much a legislative power as the making a law in respect of particular persons or subjects and there is practically no difference in principle between a conditional legislation and delegated legislation, the difference in the two legislations being only in respect of the extent of delegation. In *Hodge v. Queen*[3], the Privy Council upheld a delegation of legislative power observing-

> It is obvious that such an authority is ancillary to legislation, and without it an attempt to provide for varying details and machinery to carry them out might be oppressive, or absolutely fail. The very full and very elaborate judgment of the Court of Appeal contains abundance of precedents for this legislation, entrusting a limited discretionary authority to others, and has many illustrations of its necessity and convenience.

As per decision of the Privy Council there was no difference in power between the Indian legislature and the British Parliament in this regard. It may be stated here that the Privy Council consistently upheld delegated legislation as 'conditional legislation' and did not authorise delegation of legislative power in the strict sense of divestiture by legislature of its powers and conferring them on another body.[4]

4.33 *India and Pakistan:* After independence, the Indian Supreme Court had to deal with the question of delegation of legislative power in *Re Delhi Laws Act*[5]. The Judges differed in their views. One of the views was that Parliament was free to delegate its legislative power to any extent subject to the limitation that it did not thereby efface itself or abdicate its powers which meant that Parliament should never give up its

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[1] *R. v. Burah*, 4 Cal 172; *Shohan Ajmee v. Commr. of Customs*, W.P. No.1882 of 2000 (Unreported)

[2] *Dacca Picture Palace Ltd. v. Pakistan*, 18 DLR 442. *King Emperor v. Banwarilal*, 72 I.A. 57, *Inder Singh v. Rajsthan*, AIR 1957 SC 510, and *Basanta Kumar v. Eagle Rolling Mills*, AIR 1964 SC 1260, offer examples of such conditional legislation.

[3] LR 9 A.C. 117

[4] Seervai - Constitutional Law of India, 3rd ed., p.1848

[5] AIR 1951 SC 332

ultimate control over the delegatee.[1] The other view was that Parliament could not delegate essential legislative function to another agency which meant that Parliament should itself formulate the policy before leaving it to the delegatee to fill up the details.[2] Subsequent decisions upheld the second view that Parliament cannot delegate its essential legislative function.[3] The same view has been taken by the Pakistan Supreme Court. In *East Pakistan v. Sirajul Huq* H. Rahman J observed -

> ... the Legislature cannot abdicate altogether from its legislative functions or totally efface itself but where the Legislature sufficiently expressed its will and exercised its judgment as to the territorial extent, scope and subject-matter of the legislation, the provision of details, particularly when such details are by their very nature incapable of being laid down by the Legislature itself, can well be left to be done by another agency in whom the Legislature place confidence.[4]

Dealing with the extent of permissible delegation of legislative power, Murshed CJ deduced the following principles:-

> (1) Legislation being the exclusive function of the Legislature, it cannot abdicate such function.
>
> (2) The Legislature, after having enunciated the essential legislative principles and standards, is, however, entitled to delegate to outside agencies such functions which are essential to an effective exercise of the legislative power with which it has been endowed by the Constitution.
>
> (3) The legislature, however, cannot efface itself and delegate all its functions to an extraneous agency.[5]

4.34 In India and Pakistan the point thus boiled down to one question - what is essential legislative function. Essential legislative function is stated to be the determination of the legislative policy and its formulation as a rule of conduct.[6] Parliament cannot delegate to another

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[1] Per Fazal Ali, Sastri and Das JJ

[2] Per Kania CJ and Mahajan and Mukherjee JJ

[3] *Vasantalal v. Bombay*, AIR 1961 SC 4; *Corp. of Calcutta v. Liberty Cinema*, AIR 1965 SC 1107; *Devi Das v. Punjab*, AIR 1967 SC 1895

[4] 19 DLR (SC) 281, Para 122; *East & West Steamship Co. v. Pakistan*, 10 DLR (SC) 52

[5] *Ghulam Zamin v. A.B. Khandker*, 16 DLR 486, 495

[6] *Vasantalal v. Bombay*, AIR 1961 SC 4; *Makhan Singh v. Punjab*, AIR 1964 SC 381; *Khambalia Municipality v. Gujarat*, AIR 1967 SC 1048; *East and West Steamship Co. v. Pakistan*, 10 DLR (SC) 52.

agency the exercise of its judgment as to what the law should be. If Parliament makes a delegation of legislative power without indicating the policy behind the statute, the delegation shall be unconstitutional.[1] To be immune from challenge, the policy declared must be clear[2]. In order to see whether a statute contains a clear legislative policy, the court will have to consider the provisions of the statute as well as its preamble.[3] Where the impugned Act replaces another Act, the court may even look into the provisions of the replaced Act to determine whether Parliament has conferred an unguided and uncanalised power.[4] Once the essential legislative function is performed by Parliament by declaring the policy, the extent of delegation is a matter for Parliament to decide and the court cannot go into the question whether Parliament should have provided a different standard.[5] The Indian Supreme Court held that the power to modify an Act in its essential particulars so as to involve a change of the policy declared by Parliament involves delegation of essential legislative function and thus conferment of power on the executive to modify an Act without any limitation on the power to modify is an impermissible delegation of essential legislative function.[6] But if the delegation of the power to modify does not involve the change of policy stated by Parliament, but only matters of details which are not considered to be essential legislative function, the delegation is constitutional.[7] The Pakistan Federal Court, however, held that a legislature cannot delegate its power of making, modifying or repealing any law or to extend the operation of a law to an external authority as it would thereby create a parallel legislature.[8] The Indian Supreme Court held that Parliament can delegate to the administration the power to bring individuals, bodies or commodities within, or to exempt them

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[1] Ibid; see also *Pir Mohammad & Brothers v. Khulna Municipal Committee*, 19 DLR 55

[2] *Makhan Singh v. Punjab*, AIR 1964 SC 381; *Devi Das v. Punjab*, AIR 1967 SC 1895.

[3] *Harishankar Bagla v. M.P.*, AIR 1954 SC 465; *Vasantalal v. Bombay*, AIR 1961 SC 4; *India v. Bhanmal*, AIR 1960 SC 475; *Dacca Picture Palace Ltd. v. Pakistan*, 18 DLR 442.

[4] *Bhatnagar v. India*, AIR 1957 SC 478

[5] *India v. Bhanmal*, AIR 1960 SC 475

[6] *Rajnarian v. Chairman, Patna Admn.*, AIR 1954 SC 569

[7] Ibid

[8] *Sobho Gyanchandani v. Crown*, PLD 1952 FC 29

from, the purview of a statute[1] or to amend the Schedule of a statute[2] or to expand or restrict the operation of a statute[3] by providing guideline or policy for the exercise of the power. The court held the same view in respect of 'power to remove difficulties' in giving effect to an Act.[4] There is no uncanalised delegation where Parliament permits the administration at it discretion to adopt the existing statutes to apply them to new area provided thereby the policies of the statutes are not changed.[5]

4.35 The power to impose and assess a tax is an essential legislative function. Parliament must therefore either prescribe the rate of taxation itself or formulate a policy for fixation of the rate by the delegatee[6]. But no unconstitutional delegation is involved where Parliament fixes a maximum rate of imposition and authorises the administration to determine the rate not exceeding the maximum fixed by Parliament according to the exigencies of public revenue[7], or where Parliament delegated the power to fix the rate of taxation giving guidance to the delegatee as to how the power is to be exercised[8] or laying down the legislative policy[9] or requiring the delegatee to obtain approval of the government or to consult the wishes of local inhabitants before fixing the rate[10] or when Parliament fixes the item and rate of taxation and authorises the government to enforce the rate by issuing notification.[11]

4.36 *Bangladesh:* Whether the Indian and Pakistani position obtains in Bangladesh in respect of delegated legislation is an open question. Art.65 declares that vesting of the legislative power of the Republic in

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[1] *Edward Mills v. Ajmeer*, AIR 1955 SC 25; *Jalan Trading v. Mill Mazdoor*, AIR 1967 SC 691

[2] *Banarsi Das v. M.P.*, AIR 1958 SC 909

[3] *Mohemmadalli v. India*, AIR 1964 SC 980

[4] *Jalan Trading Co. v. Mill Mazdoor*, AIR 1967 SC 691

[5] *Rajnarayan v. Chairman, Patna Administration*, AIR 1954 SC 569

[6] *Corp. of Calcutta v. Liberty Cinema*, AIR 1965 SC 1107; *Devi Das v. Punjab*, AIR 1967 SC 1895

[7] *Sita Ram v. U.P.*, AIR 1972 SC 1168

[8] *J.R.G. Manufacturing Association v. India*, AIR 1970 SC 1589; *Devi Das v. Punjab*, AIR 1967 SC 1895; *Delhi Municipality v. B.G.S. & W Mills*, AIR 1968 SC 1232

[9] *Sita Ram v. U.P.*, AIR 1972 SC 1168

[10] *Delhi Municipality v. B.G.S. & W Mills*, AIR 1968 SC 1232; *Western India Theatre v. Mun. Corp.*, AIR 1959 SC 586; *Pir Mohd. & Brothers v. Khulna Mun. Comm.*, 19 DLR 55

[11] *Shohan Ajmee v. Commr. of Customs*, W.P. No.1882 of 2000 (Unreported)

Parliament shall not prevent it from delegating to any person or authority power to make orders, rules, regulations, bye laws or other instruments having legislative effect. In view of the settled position in the sub-continent that a legislature can delegate its power of legislation by declaring the policy of legislation, there was no necessity of making the declaration. In making this declaration the Constitution does not in any way restrict the power of delegation. It may be argued that the framers of the Constitution wanted to make a departure from the settled position and wanted to put Parliament for Bangladesh in the position somewhat similar to that of the British Parliament in the matter of delegation of legislative power. But it is difficult to accept such an argument as the entrenched provisions of the Constitution limit the plenary legislative power of Parliament for Bangladesh. It may be contended that because of the provisions of art.7 and the vesting of legislative power with Parliament a doubt may arise whether Parliament can at all delegate its legislative power to some other agency and the declaration was made to remove any such doubt as a restatement of the settled position and not to make a departure therefrom. Whatever view may be taken, it cannot be doubted that Parliament cannot delegate its legislative power in a manner which will amount to divestiture of its legislative power.[1]

4.37 Whether or not Parliament can delegate its legislative power without declaring the policy of legislation, there are some subjects in respect of which Parliament cannot delegate its legislative power. It may be noticed that the Constitution requires certain things to be done in 'accordance with law' ; certain things shall be done by 'Parliament by law' and certain other things shall be done by 'Act of Parliament'. When different expressions have been used different meanings are to be given unless any valid reason can be found for doing otherwise. The first expression includes not only an Act of Parliament but all that falls within the definition of law given in art.152. Parliament means Parliament for Bangladesh established under art.65. The second expression shall include an Act of Parliament as also a subordinate legislation made under the authority of an Act of Parliament. 'Act of Parliament' shall mean only the laws passed by Parliament for Bangladesh and nothing else, otherwise there will be no distinction between the second and third expression. Thus where the Constitution

[1] See *Shohan Ajmee v. Commr. of Customs*, W.P. No.1882 of 2000 (Unreported), where the High Court Division went by the settled position in India and Pakistan.

requires anything to be prescribed by an Act of Parliament[1], Parliament cannot delegate the function of making the law to any other authority. It is for this reason that after incorporating art.83, the framers included paragraph 13 in the Fourth Schedule to permit levy and collection of taxes under the pre-constitutional laws.

4.37A *Publication of delegated legislation:* Publication of a delegated legislation is required under the Statutory Instruments Act, 1946 in England and the Federal Register Act, 1935 in the United States. In Bangladesh there is no general provision for publication of delegated legislation. But the rule of law, a basic feature of the Constitution, requires that a law governing the conduct of the individuals must be stated and known to the individuals. An Act of Parliament needs no publication as it is known when the Bill is tabled, discussed and passed in Parliament. Promulgation of an Ordinance involves its publication. The rule of law requires publication of delegated legislation.[2] The delegated legislation may be published in various ways by broadcast, telecast or publication in the newspaper. In our country publication in the official Gazette is the usual mode. Where the delegating statute prescribes the mode, the delegated legislation must be published in that mode. When the delegated legislation is required to be published in the official Gazette, it takes effect from the date of such publication. It is not necessary that it be made known by other modes of publication.[3]

4.38 *Control of delegated legislation:* Delegated legislation, though necessary in modern States, is open to serious objection. It involves an abandonment of the legislative function by Parliament. Parliament often delegates powers without clearly mentioning the policy or standard and sometimes the policy or standard is vague so that the delegatee has almost uncontrolled and unguided powers. Very often the policy or standard is stated in broad and general terms and it is impossible for the court to grant any relief against harsh and unreasonable exercise of power. The system of delegated legislation adds to the powers of the executive correspondingly weakening the status of Parliament. What is more important, the delegated legislation does not get the publicity, consideration and discussion which the passage of a Bill in Parliament gets. It is therefore very important to have some control over the

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[1] Arts.72(3), 78(5), 85, 88(f), 142 and Paragraph 17(3) of Fourth Schedule

[2] *Harla v. Rajasthan*, AIR 1951 SC 467

[3] *Pankaj Jain v. India*, AIR 1995 SC 360; *India v. Ganesh Das*, AIR 2000 SC 1102

delegatee by the delegating Parliament. The rules of procedure of Parliament should provide for a standing committee to examine subordinate legislation and the delegating statute should provide for approval of the delegated legislation by such standing committee.

4.39 Delegated legislation is subject to judicial control. A delegated legislation may be challenged in court on any of the four grounds - (1) it is void because the delegating statute is not constitutionally valid, (2) it is not constitutionally valid, (3) it is *ultra vires* the delegating statute, (4) it is arbitrary or unreasonable. A delegating statute will be void if it is contrary to any provision of the Constitution. The courts hold that a delegating statute will be void if it effects an impermissible delegation involving delegation of legislative function without laying down a clear policy or standard. The courts have repeatedly iterated this principle, but in applying it in specific cases, have taken a very liberal view about the requirement of 'policy' statement. S.2(1) of Inter-Provincial Trade Ordinance, 1964 provided, "Notwithstanding anything contained in the Essential Commodities Act, 1957 (III of 1957), or in any other law for the time being in force, the Central Government, if it so deems necessary or expedient may, by general or special order, regulate the movement and transport of any commodity or class or description of commodities, including imported commodities, between the Provinces." The delegation was held unconstitutional. It was found that the legislature merely made a choice of the subject, that is, regulation of the movement of commodities between the provinces, but has not stated any policy or standard or any limitation on the exercise of the power. It did not indicate any principle for regulation of the movement of the goods. It simply gave unrestricted, undefined and unlimited power to regulate the movement of goods[1]. But this is one of the relatively rare occasions when the court made a real inquiry as to the presence of any legislative policy in the statute. In *Dacca Picture Palace Ltd. v. Pakistan*[2] s.6 of the Censorship of Films Act, 1963 was challenged on the ground of impermissible delegation of legislative power. S.6 provided, "(1) Notwithstanding anything in the Cinematograph Act, 1918 (II of 1918), or in any other law for the time in force, the Central Government shall prescribe the places or class of places licensed for the exhibition of cinematograph films where, and the periods for which, any certified film

[1] *Ghulam Zamin v. A.B. Khandoker*, 16 DLR 486; see also *Devi Das v. Punjab*, AIR 1967 SC 1895

[2] 18 DLR 442

or class of certified film may be exhibited." It was contended that no policy has been laid down by the legislature and if there has been any policy that is in respect of censorship and decertification only as indicated in the preamble, but s.6 has given power to prescribe the places or class of places licensed for the exhibition of cinematograph films where, and the period or periods for which, any certified film may be exhibited and this is beyond the policy as laid down in the Act. Upon consideration of the provisions of the Act including its preamble, the majority held the opinion that the legislature has formulated the policy, i.e., to safeguard or develop the interest of the local film industry and for carrying out that policy guidance has been given, namely, the Central Government was to effectuate the policy by, amongst others, prescribing places or class of places and period or periods.[1] In *Pir Mohd. & Bros. v. Khulna Mun. Committee*[2] the court in spite of absence of any policy statement upheld the delegation of legislative power regarding levy of taxes by the municipality because of the requirement of governmental sanction and publication. The Pakistan Supreme Court rejected the plea of impermissible delegation by s.17 of the Arms Act empowering the government to make any rule laying down the terms on which licence for possessing fire-arms can be given stating that the nature of the subject required conferment of a wide discretion.[3] The Indian Supreme Court upheld the delegation of legislative power of fixing the rate of municipal tax without providing any guideline saying that the need of the municipal body to realise the tax itself provided the guidance.[4] Lack of guideline did not matter in respect of fixation of rate of tax when the law prescribed the maximum limit which the court considered reasonable.[5] Even when the delegating statute did not provide any guidance, the court upheld it finding that the previous law[6] or the previous practices[7] or the existing rules[8] indicated the guideline or the policy behind the statute. It is submitted that though there is necessity of permitting delegation of legislative power, the court should insist on some sort of meaningful guideline or policy statement which will

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[1] Ibid, Para 15
[2] 19 DLR 55
[3] *D.M. v. Raza Kazim*, 13 DLR (SC) 66
[4] *Corp. of Calcutta v. Liberty Cinema*, AIR 1965 SC 1107
[5] *Devi Das v. Punjab*, AIR 1967 SC 1895; *Sitaram v. U.P.*, AIR 1972 SC 1168
[6] *Bhatnagars & Co. v. India*, AIR 1957 SC 478
[7] *East Pakistan v. Sirajul Haq*, 19 DLR (SC) 281
[8] *Makhan Singh v. Punjab*, AIR 1964 SC 381

compel the executive to act in furtherance of the policy of the statute as also allow a meaningful judicial review of delegated legislation in case of challenge.

4.40 The delegated legislation, like the delegating statute, will be void if it is contrary to any provision of the Constitution.[1] It will be *ultra vires* if it travels beyond the scope of the authority conferred by the delegating statute or is in any way in conflict with the delegating statute.[2] In order to determine whether the subordinate legislation exceeded the power granted by the delegating statute the court has to examine both the statute and the subordinate legislation, but will not construe the subordinate legislation in a manner as to include a separate or independent power.[3] The power expressly granted includes the powers which are incidental or consequential and necessary to give effect to the statute[4]. The delegate while making the subordinate legislation neither can restrict or widen the scope of the delegating statute or its policy[5], nor can go beyond the policy laid down by the delegating statute so as to alter or amend the law[6]. The purpose of subordinate legislation is to carry into effect the existing law and not to change it.[7] Power conferred by a statute cannot be used for a different purpose outside the scope of the statute.[8] Apart from the general scope and purpose of the statute, the substantive provisions of the statute also operate as a limitation on the rule-making authority.[9] Unless the

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[1] *Air India v. Nergesh Meerza*, AIR 1981 SC 1829; *Narendra Kumar v. India*, AIR 1960 SC 430; *Md. Yasin v. Town Area Committee*, AIR 1952 SC 115; *Rashid Ahmed v. Municipal Bd.*, AIR 1950 SC 163

[2] *Bar Council v. Surjeet Singh*, AIR 1980 SC 1612; *Sales Tax Officer v. Abraham*, AIR 1967 SC 1823; *Narendra Kumar v. India*, AIR 1960 SC 430; *Commissioners of Customs & Excise v. Cure & Deeley*, [1961] 3 All E.R. 641; *Aminul Islam v. Bangladesh Biman*, 1982 BLD 1 (Power given in the statute to alter the terms and conditions of service cannot imply the power to make fresh classification of employees as freedom fighters and non-freedom fighters which was not contemplated in the statute. It is submitted that the majority judgment has very narrowly construed the power)

[3] *Durga Prasad v. Superintendent*, AIR 1966 SC 1209

[4] *Khargram P.S. v. W.B.*, (1987) 2 SCC 82; *Khanzode v. R.B.I.*, AIR 1982 SC 917

[5] *Agricultural Market Committee v. Shalimar Chemical Works Ltd*, AIR 1997 SC 2502

[6] *U.S. v. Grimand*, 220 US 506

[7] *Venkateswara v. A.P.*, AIR 1966 SC 629

[8] *Abdur Rahim v. Municipal Commissioners.*, 45 I.A. 125

[9] *Venkateswara v. A.P.*, AIR 1966 SC 828; *I.T. Commissioner v. Chenniappa*, AIR

delegating statute expressly authorises, the subordinate legislation cannot create an offence[1] or bar access to court[2] or give retrospective effect to the subordinate legislation[3] or impose any tax[4] or prescribe a limitation[5] or impart finality to a matter[6]. A subordinate legislation, unless permitted by the delegating statute, cannot override or affect the operation of the provisions of other statutes or general law.[7] In one case the Indian Supreme Court had, however, held that a subordinate legislation will not be invalid even though it is in conflict with the provisions of some general law, if it is within the scope of the delegating statute[8]. The Pakistan Supreme Court held that if the delegating statute has not excluded the principle of natural justice, the delegated legislation providing for exclusion of the principle will be void.[9] It should be noted that in view of the provisions of art.31, the delegating statute cannot exclude or permit delegatee to exclude the requirement of notice and hearing except in case of emergency. A delegated legislation may be invalid for non-compliance of some mandatory procedure prescribed in the delegating statute.[10] If the delegating statute mandatorily required hearing of objections before levy of tax by the municipal body the levy of tax without such a hearing will be void.[11] But if the procedure is not mandatory and failure to comply with the

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1969 SC 1068

[1] *U.S. v. Eaton*, 144 US 677; *Kharak Sing v. U.P.*, AIR 1963 SC 1295

[2] *Pyx Granite Co. v. Ministry of Housing*, [1959] 3 All E.R. 1; *Raymond v. Honey*, [1982] 1 All E.R. 756; *R v. Home Secretary ex p Leech*, [1993] 4 All E.R. 539

[3] *Abdul Hannan v. Collector of Customs*, 40 DLR 273 (Para 18); *Hukum Chand v. India*, AIR 1972 SC 2427; *Alleppy v. Ponnoose*, AIR 1979 SC 385; *India v. Krisnamurthy*, (1989) 4 SCC 689

[4] *Bimal Chandra v. M.P.*, AIR 1971 SC 517

[5] *S.T.O. v. Abraham*, AIR 1967 SC 1823

[6] *Dattatraya v. Probhakar*, AIR 1975 Bom 232

[7] *U.P. v. Hindusthan Aluminium*, AIR 1979 SC 1459; Craies on Statute Law, 7th ed., p.327; *Bangladesh Biman v. Lt. Col (Retd) Zainul Abedin*, 2000 BLD (AD) 230

[8] *T.B. Ibrahim v. Regional Transport Authority*, AIR 1953 SC 79

[9] *Abdur Rahman v. Collector & Deputy Commissioner*, 16 DLR (SC) 470; *East Pakistan v. Nur Ahmed*, 16 DLR (SC) 375

[10] *Eastern Beverage Ind. v. Bangladesh*, 47 DLR 32 (S.3 of the Central Excise and Salt Act authorised the National Board of Revenue to levy capacity tax in lieu of excise duty by notification specifying the guiding principles for determination of production capacity. Notification levying capacity tax was held void because of failure to specify the guiding principles.)

[11] *Rajnarayan v. Chairman, Patna Administration*, AIR 1954 SC 569

procedure has caused no prejudice the delegated legislation cannot be declared void.[1] A delegated legislation may be struck down if it is found to have been made *mala fide* or with an ulterior purpose.[2] But it is extremely difficult to establish a case of *mala fide* or ulterior motive. Coming to arbitrariness or unreasonableness of delegated legislation, the English courts struck down bye laws on the ground of arbitrariness or unreasonableness. In *Kruse v. Johnson*[3] Lord Russell observed -

> If for instance byelaws were found to be partial and unequal in their operation as between different classes; if they disclosed bad faith; if they involved such oppressive or gratuitous interference with the rights of those subject of them as could find no justification in the minds of reasonable men, the Court might as well say, 'Parliament never intended to give authority to make such rules; they are unreasonable and ultra vires'.

A byelaw which forbade playing music, singing or preaching in any street, except under express licence from the mayor, was held to be void as being plainly arbitrary and unreasonable.[4] Similarly, bye laws prohibiting sale of cockles on the beach without the consent of the Corporation[5] or restricting sales by auction in public market[6] were struck down as being unreasonable. Where a byelaw required landlord of lodging houses to clean them annually without having right to access against their lodgers[7] or where a building byelaw required an open space to be left at the rear of every new building so that in many cases it became impossible to build new extensions to existing buildings[8], the court struck down the byelaw as being unreasonable. The question is whether the ground of unreasonableness is available in cases of rules and regulations.[9] In England it was held that the principle of reasonableness would not apply to rules and regulations.[10] But if the

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[1] *Sitapur Municipality v. Prayag Narain*, AIR 1970 SC 58
[2] *McEldowney v. Forde*, [1969] 2 All E.R. 1039
[3] [1898] 2 QB 91
[4] *Munro v. Watson* (1887) 57 LT 366
[5] *Parker v. Bournemouth Corporation*, (1902) 66 JP 440
[6] *Nicholls v. Tavistock* UDC, [1923] 2 Ch 18
[7] *Arlidge v. Mayor of Islington*, [1909] 2 KB 127
[8] *Repton School Governors v. Repton* RDC [1918] 2 KB 133. See also *A.G. v. Denby*, [1925] 1 Ch 596; *London Passenger Transport Board v. Sumner*, (1935) 154 LT 108
[9] *Bangladesh v. Kundeswari Aushadhalaya*, 29 DLR (AD) 128, 134
[10] *Sparks v. Edward Ash Ltd*, [1943] 1 K.B. 223; *Taylor v. Brighton Borough Council*, [1947] 1 K.B. 736

reasoning in *Kruse v. Johnson* is carefully considered there can be no reason to limit that ground to byelaws only. When Parliament delegates legislative function to the administrative agency to make rules or regulations, Parliament cannot be said to have permitted the delegatee to make arbitrary or unreasonable rules or regulations. In *McEldowney v. Forde*[1] a regulation came up for consideration by the House of Lords. Lord Hodson posed the question, "The question may be put in this way - Is the whole regulation too vague and so arbitrary as to be wholly unreasonable as if, to take an example from one of the cases, a person were to be proscribed because he had red hair; or is the regulation, as the majority of the Court held, a legitimate and valid exercise the Minister's power conferred on him by statute?"[2] All the Law Lords considered the reasonableness of the regulation without saying that the principle of reasonableness is not applicable in case of regulations. It has been stated in the text book of Wade and Bradley, "In reviewing the contents of delegated legislation, the Courts do not lightly strike down a statutory instrument but they are now prepared to apply a test of unreasonableness where a regulation is so unreasonable that Parliament cannot be taken as having authorised it to be made under the Act in question."[3] Professor H.W.R. Wade commented, "The same doctrine applies to rules and regulations as well as to byelaws"[4] and cited, among others, the case of *R. Immigration Appeal Tribunal ex p. Begum Mansoora (1986)* where one of the Home Secretary's immigration rules was found invalid being manifestly unjust and unreasonable and partial and unequal in operation as between different classes.[5] Under art.31 of the Constitution a statute must be reasonable and not arbitrary and *a fortiori* a delegated legislation must pass the test of reasonableness.[6]

4.41 ***Control of public finance:*** The control of public finance is an important function of Parliament. It includes imposition of taxes, granting of money to the administration for expenses on public service and authorisation of loans. Through it, Parliament exercises control over

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[1] [1969] 2 All E.R. 1039

[2] Ibid p.1056

[3] Constitutional and Administrative Law, 12th ed., p.623;

[4] Administrative Law, 6th ed., p.869

[5] Ibid, p.870; see also *R. v. Customs and Excise ex p. Hedge and Butler Ltd*, [1986] 2 All E.R. 164

[6] In India the test of reasonableness is applicable to delegated legislation by reason of arts.14 and 19 of the Constitution. See *Air India v. Nergesh Meerza*, AIR 1981 SC 1829 and *Mysore v. Malick Hashim*, (1973) 31 STC 358.

the executive. The executive in Bangladesh can neither levy tax nor spend money all by itself without any authorisation of Parliament. Only Parliament can impose a tax and grant funds to the executive to defray public expenditures. Government's policies and their implementation are invariably brought into focus whenever Parliament discusses financial matters.

4.42 From the point of view of parliamentary procedure, the Constitution makes a distinction between Money Bills and Bills other than Money Bills. Money Bill means a Bill containing only provisions dealing with (a) the imposition, regulation, alteration, remission or repeal of any tax, (b) the borrowing of money or the giving of any guarantee by the government, or the amendment of any law relating to the financial obligations of the government, (c) the custody of the Consolidated Fund, the payment of money into, or the issue or appropriation of moneys from, that Fund, (d) the imposition of a charge upon the Consolidated Fund, or the alteration or abolition of any such charge, (e) the receipt of moneys on account of the Consolidated Fund or the Public Account of the Republic, or the custody of issue of such moneys, or the audit of the accounts of the government, or (f) any subordinate matter incidental to any of the aforesaid matters[1]. A Bill, however, shall not be deemed to be a Money Bill by reason only that it provides for the imposition or alteration of any fine or other pecuniary penalty, or for the levy or payment of a licence fee or a fee or charge for any service rendered, or by reason only that it provides for the imposition, regulation, alteration, remission or repeal of any tax by a local authority or body for local purposes[2]. No Money Bill nor any Bill involving expenditure from public moneys can be introduced in Parliament without the recommendation of the President[3]. But such a recommendation will not be necessary in the case of amendment of the Bill reducing or abolishing any tax.

4.42A Every Money Bill passed by Parliament shall have to be presented to the President for his assent together with a certificate of the Speaker that it is a Money Bill. Art.81(3) stipulates that this certificate is conclusive for all purposes and cannot be questioned in any court[4]. When certified as a Money Bill, the President cannot send the bill back

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[1] Art.81
[2] Art.81(2)
[3] Art.82
[4] Art.81(3)

to Parliament for reconsideration and if the President does not assent to the Bill, it shall be deemed to have been assented to by the President on the expiry of fifteen days from the date of presentation.

4.42B From 1980 onwards several Bills were certified as Money Bill by the Speaker though apparently those Bills were not covered by the definition of Money Bill given in art.81(1). The Bill of Public Safety Ain, 2000 was certified as a Money Bill. Several writ petitions[1] were filed challenging the validity of the statute on the ground of fraud on the Constitution and it was contended that the Bill *ex facie* not coming within the definition of Money Bill, the conclusiveness of the certificate of the Speaker will not take away the power of the court to inquire into the correctness of the certificate and to declare the statute void, particularly when fraud on the Constitution is alleged. The respondent government has taken the stand that the Speaker certified the Bill in question acting as the Speaker and his act of certification forms part of the proceedings of Parliament and in view of the provision of art.78(1) it cannot be challenged in court even if fraud is shown to have been practised on Parliament in making a law.[2] Furthermore, when the Constitution stipulates that such a certificate shall be conclusive for all purposes, all judicial inquiry is foreclosed and any holding otherwise would render the relevant clause redundant and surplusage and the court cannot by interpretation of the provision of the Constitution produce such a result.[3] The writ petitions came up before a Division Bench of the Supreme Court and the two Judges differed in their opinion and the matter is awaiting decision by a third Judge.

4.43 The government cannot make any expenditure without the sanction of Parliament. The mechanism of parliamentary control over appropriation is the Consolidated Fund out of which all governmental expenditure is met. Originally the British Parliament voted taxes to the King who was free to collect it and spend for purposes he liked and often the money was spent for purposes other than the purposes for which he asked it. Parliament then started to levy taxes and appropriate it for specific purposes as a result of which no money would be left for general purposes when it came to passing Budget. To avoid this situation, a single fund was created into which all revenues were

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[1] *Mujibur Rahman v. Bangladesh*, W.P. No.897 of 2001 & other writ petitions.

[2] *British Railways Board v. Pickin*, [1974] AC 765

[3] See *R. v. Registrar of Companies, ex p Central Bank of India*, [1986] 1 QB 1114) for the effect of "conclusive evidence" on judicial review.

deposited and from which all expenditure was met according to the Budget passed by Parliament. In Bangladesh the Consolidated Fund is formed with all revenue receipts, all loans raised by the government and all moneys received by the government in repayment of its loans.[1] No money can be withdrawn from the Consolidated Fund without an Appropriation Act passed by Parliament.[2] Besides the Consolidated Fund, there is the Public Account in which are credited all moneys other than those which are to be put in the Consolidated Fund.[3] Payment of money into and its withdrawal from the Consolidated Fund or the Public Account is to be regulated by an Act of Parliament and if no such Act has been passed, by the rules made by the President.[4] But no Appropriation Act is needed to withdraw money from the Public Account.

4.44 Public expenditures are classified into two categories, namely, expenditure charged on the Consolidated Fund and the charges granted by Parliament on an annual basis. The former category consists of the charges of a permanent nature or charges which it is desirable to keep above controversial party politics. Parliamentary control over these items is very limited as these can be discussed, but cannot be submitted to vote of Parliament[5]. These items are - (a) remuneration of the President and expenditures relating to his office, (b) the remuneration of the Speaker, Deputy Speaker, the Judges of the Supreme Court, the Comptroller and Auditor-General, the Election commissioners and the members of Public Service Commissions, (c) the administrative expenses of, including remuneration payable to, officers and servants of Parliament, the Supreme Court, the Comptroller and Auditor-General, the Election Commission and the Public Service Commissions, (d) all debt charges for which the government is liable, including interest, sinking fund charges, the repayment or amortisation of capital, and other expenditure in connection with the raising of loans and the service and redemption of debt, (e) any sums required to satisfy a judgment, decree or award against the Republic by any court or tribunal, and (f) any other

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[1] Art.84(1)
[2] Art.90(3)
[3] Art.84(2)
[4] Art.85; *Bangladesh v. Hon'ble Judge*, 34 DLR (AD) 212 (Prize Court Fund consists of money payable into the Public Account of the Republic, but in the absence of any Act of Parliament or rules made by the President, the government cannot withdraw the money or deal with it.
[5] Art.89(1)

expenditure charged upon the Consolidated Fund by the Constitution or by an Act of Parliament[1].

4.45 Most of the appropriations made by Parliament are on annual basis. Hence every year the executive has to come before Parliament asking for grants for the ensuing year and Parliament gets the opportunity of criticising and reviewing the activities and the policies pursued by the administration during the preceding year. Annual appropriations go through several stages. It starts with the presentation of an annual financial statement before Parliament, popularly known as Budget, which is presented by the Finance Minster. It is the statement of the estimated receipts and expenditures of the government for the ensuing year (July 1 to June 30). It shows separately the expenditures charged on the Consolidated Fund and other expenditures proposed to be made from the Consolidated Fund.[2] The expenditures charged on the Consolidated Fund are discussed, but not voted upon. Other expenditures which are proposed in the form of demands are discussed and put to vote of Parliament.[3] Parliament may assent to, reject or reduce, but cannot increase, the amount of any demand. No demand for any grant can be made except with the recommendation of the President.[4] A private member cannot suggest any new expenditure, nor propose any increase in the demand. He can only move cut motions to reduce the amount of a demand and through it he can criticise the government and administration, discuss the conduct of the executive and suggest economy of the government expenditure. Cut motions though freely moved by members when demands for grants are being discussed, are seldom pressed for voting as it would not succeed as the government would use its majority to defeat them as the acceptance of a cut motion inevitably involves the fall of the government. It is used only to initiate discussion on the conduct and the policies of the executive. The demands made by the government are invariably accepted by Parliament after a discussion.

4.46 No money can be withdrawn from the Consolidated Fund without an Appropriation Act being passed by Parliament. The sanction given by Parliament to the demands for grants does not authorise the expenditure. Therefore, as soon as the grants under art.89 have been

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[1] Art.88
[2] Art.87
[3] Art.89(2)
[4] Art.89(3)

made a Bill to provide for appropriation out of the Consolidated Fund is to be introduced.[1] No amendment can be proposed to vary the amount or alter the destination of any grant previously agreed or to vary the expenditure charged on the Consolidated Fund[2], the reason being that the grants already voted upon should not be disturbed later.

4.47 The last rite in the annual parliamentary financial procedure is the enactment of the Finance Act to approve the government's taxation proposals for the ensuing year. In order to maintain control over the executive, some of the taxes are imposed on yearly basis and renewed every year. The Finance Act renews the annual taxes, imposes new taxes and makes adjustments in the permanent taxes to raise revenue necessary to meet the appropriations made out of the Consolidated Fund. The taxes sought to be collected can be levied and collected after passing of the Finance Act. The delay in passing the Finance Act may cause loss of revenue and therefore the government is authorised under the Provisional Collection of Taxes Act, 1931 to start collection of duty of customs and other specified taxes at the proposed new rates immediately from the date of presentation of the Finance Bill in Parliament.

4.48 It sometimes happen that the amount authorised to be spent for a particular service for the current year is insufficient or expenditure for some new services not included in the Budget of the year has to be made or the money spent on a service during the year is in excess of the amount granted. In such a case the President has power to authorise expenditure from the Consolidated Fund and to lay before Parliament a supplementary Budget for the assent of Parliament in the manner the Budget is assented to.[3]

4.49 As no expenditure can be made from the Consolidated Fund without parliamentary authorisation by an Appropriation Act, it may create immense difficulty if the Appropriation Act cannot be passed before the commencement of the new financial year. Hence, art.92 permits Parliament to (1) make any grant in advance in respect of the estimated expenditure for a part of any financial year pending the voting of such grant and passing of the Appropriation Act or (2) make a grant for an unexpected demand upon the resources of the Republic when on

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[1] Art.90(1)
[2] Art.90(2)
[3] Art.91

account of the magnitude or indefinite character of the service the service cannot be specified with detail in the Budget or (3) make an exceptional grant which forms no part of the current services of any financial year. Once Parliament assents to these grants, it has to enact a law authorising withdrawal of money from the Consolidated Fund. The procedure prescribed for making annual appropriations has to be followed in making the grant and passing the law under art.92.

4.50 In the event Parliament fails to assent to the demand for grant and pass the Appropriation Act in respect of any financial year without making any grant in advance and passing the law authorising withdrawal of money from the Consolidated Fund before the commencement of the financial year or having made the advance grant with law to withdraw money from Consolidated Fund fails to assent to the demand for grant and pass the Appropriation Act before the expiry of the period for which the advance grant was made, under art.92(3) the President may, on the advice of the Prime Minister, authorise withdrawal of money from the Consolidated Fund to meet the necessary expenditure for a period not exceeding sixty days. The provision is made to meet a contingency. But it may operate as a pressure on Parliament. If Parliament is unwilling to assent to the demand for grant made by the executive, the executive can have Parliament dissolved and this provision permits the executive to overcome the difficulty arising out of the absence of parliamentary sanction.

4.51 It often happens that all the money required for the public expenditure cannot be raised by taxation and the government has to resort to borrowing. Art.144 gives authority to the executive to enter into contract and the government can borrow money for which sanction of Parliament is not necessary. All borrowings in a financial year are shown in the Budget and in approving the Budget Parliament approves the borrowings. In another way Parliament has control over borrowings. All borrowings do form part of the Consolidated Fund[1] and Parliament's authorisation is necessary for expenditure from the Consolidated Fund.

4.52 *Levy and collection of tax:* Art.83 provides that no tax shall be levied or collected except by or under the authority of an Act of Parliament. The article provides a protection against arbitrary or illegal exactions which can be enforced through proper court proceedings. If a tax-payer is made to pay an unconstitutional tax, he can recover the

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[1] Art.84(1)

amount paid by filing civil suit or writ petition if the tax is sought to be levied without following the mandatory provisions of the law[1].

4.53 The word 'tax' has been defined in art.152(1) as follows -

> 'taxation' includes the imposition of any tax, rate, duty or impost, whether general, local or special, and 'tax' shall be construed accordingly

Thus the word 'tax' has been used in a comprehensive sense to include all money raised by taxation and includes those known as 'rates' or other charges levied by local authorities under statutory powers.[2] A tax cannot be levied or collected merely by an executive fiat or action without there being a law to support the same[3]. In the Indian jurisdiction there is a conflict of judicial opinion as to whether levy or collection of tax by usage is ruled out[4]. But there is no scope of any such conflict of opinion in Bangladesh as art.83 contains the expression 'by or under the authority of an Act of Parliament'. Under art.83 not only the levy but also the collection of tax must be sanctioned by or under the authority of an Act of Parliament. The expression 'levy' includes creation of liability and fixation of its quantum and the expression collect refers to physical realisation of tax[5]. It was held by the High Court Division that fixation of rate of duty is a function which has to be performed by Parliament and this function cannot be delegated and this constitutional power cannot be shared with any body.[6] It is submitted that the language by or under the authority of an Act of Parliament in art.83 shows that a tax can be levied by an Act of Parliament or by somebody else under the authority of an Act of Parliament.[7] A law for levying tax may be made with retrospective effect[8]. The imposition cannot exceed what the statute

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[1] *Poona City Municipal Corp. v. Dattatraya*, AIR 1965 SC 555; *Bharat Kala Bhander v. Dhamangaon Municipality*, AIR 1966 SC 249

[2] *Gouse v. Kerala*, AIR 1980 SC 271, 275 (The definition of `tax' in the Indian Constitution is the same)

[3] *Kerala v. Joseph*, AIR 1958 SC 296

[4] *Wadhwani v. Rajsthan*, AIR 1958 Raj 138 and *Guruswami Nadar v. Ezhumalai Panchayet*, AIR 1968 Mad 271

[5] *Somaiya Organics (Pvt) Ltd. v. UP*, AIR 2001 SC 1723

[6] *A. Hannan v. Collector of Customs*, 40 DLR 273 (This decision was upheld by the Appellate Division in *Collector of Customs v. A. Hannan*, 42 DLR (AD) 167, on the ground of promissory estoppel and nothing was said about the non-delegability of power of levying tax or duty.)

[7] See Para 4.35

[8] *Chhotabhai v. India*, AIR 1962 SC 1006; *Muhammadbhai v. Gujarat*, AIR 1962 SC

authorises and the tax must fall within the four corners of the statute.[1] Therefore where the statute authorises levy of education tax on the basis of income derived from trade, business or profession, assessment of the tax on the total income of the assessee is illegal.[2] A law imposing a tax should not be contrary to the provisions of the Constitution including those relating to fundamental rights.[3]

4.54 Not only a tax must be validly levied, its collection must also be in accordance with the Act of Parliament. Thus, when an Act of Parliament provides that a tax shall be collected in such manner as may be prescribed by rules, the tax cannot be collected until the rules are made[4]. This article gives protection against arbitrary collection of tax. When an assessment is made in an arbitrary fashion, there is no collection of tax in accordance with an Act of Parliament[5]. In *Zaminur Rahman v. Bangladesh*[6] the question arose whether a private person can be authorised to collect octroi and appropriate it wholly or in part. The Municipal Administration Ordinance, 1960 authorised levy and collection of octroi by the municipalities. The Municipal Committee (Assessment and Collection of Octroi) Rules was amended in 1976 permitting alternative method of collecting octroi by leasing out octroi posts in public auction to private persons who would collect and appropriate octroi. The alternative mode was challenged as violative of art.83. The Appellate Division rejected the contention of the petitioner holding that octroi is not a tax as octroi when collected does not go to the Consolidated Fund and that it is in the nature of a toll or fee. Art.60 provides that Parliament shall by law confer on the local government bodies power to impose tax for local purposes. There is no reason to hold that the word 'tax' in art.83 and art.60 has been used in different senses.[7] It is thus abundantly clear that 'tax' can be levied and collected

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1517; *Prithvi Cotton Mills v. Broach Borough Municipality*, AIR 1970 SC 192 (The Court held that by proper legislation illegal imposition of tax can be validated. See the discussion on validating legislation in Para 2.109-2.110)

[1] *N.K.K. Samaj v. Corporation of Nagpur*, AIR 1956 Nag 152

[2] *Phani Bhushan v. Province of Bengal*, 54 CWN 176

[3] *Chhotabhai v. India*, AIR 1962 SC 1006

[4] *Khurai Municipality v. Kamal Kumar*, AIR 1965 SC 1321

[5] *Appukutty v. STO*, AIR 1966 Ker 55

[6] 31 DLR (AD) 171

[7] Art.83 has not undergone any change by amendment and hence no objection can be taken to interpretation of art.83 with reference to art.60 on the ground that in 1976 art.60 stood repealed.

by the government and local government bodies. Tax levied and collected by the local government bodies for local purposes will go to the fund of the local government bodies and the fact that tax collected by the local government bodies does not go to the Consolidated Fund does not take it out of the definition of tax within the meaning of art.83. It can be seen that art.84 requires all revenues of the government, and not all taxes, to be put into the Consolidated Fund. Again, s.3(42) of the Ordinance defines tax as follows-

> 'tax' includes any toll, rate, fee, or other impost leviable under this Ordinance.

The definition is an inclusive one and it does not necessarily follow from there that octroi is 'nothing but a toll or fee'. Indeed in the Third Schedule of the Ordinance octroi is mentioned in item no.4 as tax on the import of goods for consumption, use or sale in a municipality, while toll is treated differently as taxes in the nature of toll. Fees are separately described there. Presence of *quid pro quo* distinguishes tolls and fees from tax.[1] But in octroi there is no *quid pro quo*. The Constitution has used the expression 'tax' in a wide sense as can be seen from the definition given art.152(1) and, it is submitted, octroi is a tax for local purposes which cannot be allowed to be collected and appropriated even in small quantity by any private person.

4.55 ***Deliberation and discussion:*** Deliberation and discussion is an important function of Parliament. Through it Parliament debates public issues and shapes and influences the government policy and ventilates public grievances. Not only in legislation, but also in making appropriations Parliament has the opportunity of reviewing the government policy and its administration. Debate on the President's address also offers the members opportunity to criticise the government policy and actions. In addition, the rules of procedure provide many other technic for initiating discussion on public issues in Parliament. The members put questions to the Ministers to elicit information on matters of public importance. The parliamentary questions provide a check on day to day administration and help securing redress of individual grievances. This function was aptly described by Mr. Herbert Ashquith, a former British Premier, as the Grand Inquest of the Nation. Speaking about the deliberative function Courtney Ilbert stated -

> There is no more valuable safeguard against maladministration, no more

[1] *Commissioner, H.R. Endowment v. Swamiar*, AIR 1954 SC 282

> effective method of bringing the searchlight of criticism to bear on the action or inaction of responsible Ministers and their subordinates. A Minister has to be constantly asking himself not merely whether his proceedings and the proceedings of those for whom he is responsible are legally defensible, but what kind of answer he can give if questioned about them in the House and how that answer will be received.[1]

4.55A Art.73A provides that a Minister shall not be entitled to vote or speak on any matter not related to his Ministry unless he is a member of Parliament. The Prime Minister may allocate as many portfolios to a non-member Minister, but without such allocation of portfolio a non-member Minister is totally debarred from speaking in Parliament in any matter not connected with his portfolio.[2]

AMENDMENT OF THE CONSTITUTION

4.56 Art.142 of the Constitution confers power on Parliament to amend the Constitution. For such amendment there are some procedural requirements. A Bill for amendment of the Constitution must contain a long title expressly stating that it will amend a provision of the Constitution. It was contended that the long title must specifically mention which provision is sought to be amended, otherwise the amendment passed will be void. The majority decision of the Appellate Division is that the specific provision need not be mentioned in the Bill and the requirement will be fulfilled if the long title states that certain provision or provisions is or are sought to be amended[3]. No such Bill shall be presented to the President for his assent unless it is passed by the votes of not less than two-thirds of the total number of members of Parliament. The President shall within seven days of the presentation of the Bill after being passed in Parliament with the requisite majority assent to the Bill and if he fails to assent within that time he shall be deemed to have assented to the Bill. But if the Bill seeks to amend the Preamble or any of the provisions of arts.8, 48, 56 or 142 the President shall within seven days of presentation of the Bill for his assent cause it to be referred to a referendum and if the majority votes in the referendum are in favour of the amendment the President shall be

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[1] Parliament, 1953, p.98

[2] *Nazmul Huda v. Secretary, Cabinet Affairs*, 2 BLC 414

[3] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1, Para 411, 415, 608 and 615

deemed to have assented to the Bill, otherwise the President shall be deemed to have withheld his assent from the Bill. The procedural requirements are mandatory and non-compliance of the requirements will render the amendment void.

4.57 Art.142 gives power to Parliament to amend any provision of the Constitution by way of addition, alteration, substitution or repeal. Addition, alteration, substitution or repeal are merely modes of amendment and if the act done does not come within the meaning of 'amendment', it will not be valid, notwithstanding that all the procedural requirements have been fulfilled. Amendment means a change in some of the existing provisions of a statute[1] and a law is amended when it is in whole or in part permitted to remain and something is added to, or taken from it, or it is in some way changed or altered in order to make it more complete, or perfect, or effective[2]. An amendment is not the same thing as a repeal, although it may operate as a repeal to a certain degree[3]. When a constitution is enacted it is the result of political consensus of the people who agree on certain basic fundamentals about their political organisation and the details are formulated to give body and content to such political organisation. A constitution is meant to be permanent, but as all changing situations cannot be envisaged and amendment of the constitution may be necessary to adopt to the future developments, provision is made in the constitution itself to effect changes required by the changing situations. When a legislature, which is a creature of the constitution, is given the power of amendment, it is a power given not to subvert the constitution, but to make it suitable to the changing situations. The question, therefore, arises whether the legislature, in exercise of the power of amendment granted by a constitution, can alter any basic structure or feature of the constitution. This question arose in the Indian jurisdiction and the Indian Supreme Court held that Parliament in exercise of the power of amendment cannot alter the basic structure or feature of the constitution[4]. The same question arose in our

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[1] *Sheridan v. Salem*, 14 Ore 328

[2] *U.S. v. Lapp*, 244 Fed 377; Crawford - The Construction of Statutes, 1940, p.170

[3] *State v. Hubbard*, 148 Ala 391

[4] *Keshavananda v. Kerala*, AIR 1973 SC 1461; *Indira Gandhi v. Raj Narayan*, AIR 1975 SC 2299; *Minerva Mills Limited v. India*, AIR 1980 SC 1789; *Waman Rao v. India*, AIR 1981 SC 271; *Sampath Kumar v. India*, AIR 1987 SC 386; *Sambamurthy v. A.P.*, AIR 1987 SC 663; initially the Pakistan Supreme Court rejected the theory of basic structure, but later trend showed a leaning towards acceptance of the theory – see *Wukula Mahaz v. Pakistan*, PLD 1998 SC 1263, 1310 and the decisions referred to in

jurisdiction in *Anwar Hossain Chowdhury v. Bangladesh*[1]. By Martial Law Proclamations six permanent Benches of the High Court Division outside the capital were created. The lawyers started movement against the measure. When the Constitution was revived in 1986 those permanent Benches outside the capital were treated as sessions of the High Court Division. They contended that this was unconstitutional. On 9.8.1988 Parliament amended art.100 of the Constitution setting up six permanent Benches outside the capital and authorised the President to fix the territorial jurisdiction of the permanent Benches by notification and thereby to curtail the territorial jurisdiction of the High Court Division in the permanent seat. Writ petitions were filed challenging the amendment on the principal ground that the basic structure of the Constitution cannot be changed by way of amendment and the amendment of art.100 altered the basic structure of the Constitution as it rendered the High Court Division with plenary judicial power over the entire Republic non-existent. The writ petitions were summarily rejected and the matter came up before the Appellate Division. The court was confronted with two main questions - whether in exercise of power under art.142 Parliament can alter the basic structure or basic features of the Constitution and whether by amendment of art.100 any basic structure or feature of the Constitution had been altered or destroyed. The court answered the first question in the negative and the second in the affirmative. B.H. Chowdhury J found-

> The term 'amendment' implies such an addition or change within the lines of the original instrument as will effect an improvement or better carry out the purpose for which it was framed.[2]
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> * * * *
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> Now, some of the features are basic features of the Constitution and they are not amendable by the amending power of the Parliament. In the scheme of Article 7 and therefore of the Constitution the structural pillars of Parliament and Judiciary are basic and fundamental. It is inconceivable that by its amending power the Parliament can deprive itself wholly or partly of the plenary legislative power over the entire Republic.[3]

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this decision. Recently, Pakistan Supreme Court, while conceding to the Martial Law Administrator power to amend the constitution, imposed the limitation that such amendment cannot alter the basic features of the constitution, saying that he cannot have that power which the Parliament does not have – see *Zafar Ali Shah v. General Pervez Mosharraf*, PLD 2000 SC 869; *Wasim Sajjad v. Pakistan*, PLD 2001 SC 233

[1] 1989 BLD (Spl) 1 = 41 DLR (AD) 165

[2] Ibid, Para 192

[3] Ibid, Para 255

> To illustrate further, the President must be elected by direct election (Article 48). He must have a council of ministers (Article 58). He must appoint as Prime Minister the member of Parliament who appears to him to command the support of the majority of members of Parliament (Article 58(3)). Both these Articles 48 and 58 are protected and so is Article 80 which says every proposal in Parliament for making a law shall be made in the form of a Bill. Now if any law is inconsistent with the Constitution (Article 7) it is obviously only the judiciary can make such declaration. Hence the constitutional scheme if followed carefully reveals that these basic features are unamendable and unalterable. Unlike some other Constitution, this Constitution does not contain any provision 'to repeal and replace' the Constitution and therefore cannot make such exercise under the guise of amending power.[1]

While coming to this finding the learned Judge referred to the Martial Law amendment of art.142 rendering the preamble and some other articles unamendable without a favourable result in a referendum. Reference to the unamendability of these provisions, it is submitted, is misleading. Apart from the question of validity of such Martial Law amendment, the question of unamendability of basic structure is essentially one connected with the intention of the framers of the Constitution and is therefore a question relating to the original dispensation[2] and it cannot depend on the interpretation of an amended provision. If an amended provision constitutes a basic feature, it certainly has effected a basic change in the original Constitution and must be held void on the very finding of the learned Judge.

4.58 Shahabuddin Ahmed J noted the difference between the constituent power of adopting a constitution and the derivative power of amending the constitution and having regard to the connotation of the term 'amendment' took the view that amendment of the Constitution does not mean its abrogation or destruction or a change resulting in the loss of its identity and character. The learned Judge concluded -

> There is no dispute that the constitution stands on certain fundamental principles which are its structural pillars and if these pillars are demolished or damaged the whole constitutional edifice will fall down.[3] ... As to implied limitation on the amending power, it is inherent in the word 'amendment' in Art.142 and is also deducible from the entire

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[1] Ibid, Para 256

[2] see *Fazle Rabbi v. Election Commission*, 44 DLR 14

[3] 1989 BLD (Spl) 1, Para 376

> scheme of the Constitution. Amendment of the Constitution means change or alteration for improvement or to make it effective or meaningful and not its elimination or abrogation. (Amendment is subject to the retention of the basic structure.) The Court therefore has power to undo an amendment if it transgresses its limit and alters a basic structure of the Constitution.[1]

4.59 M.H. Rahman J did not reject the contention of the appellants. Rather he was inclined to accept the doctrine. But, according to him, the doctrine of basic structure is in a nascent stage and it may take some time before it gets acceptance from the superior courts of the countries where constitutionalism is prevailing. In other words, time has no yet come to accord full recognition to the doctrine. He, however, held that when Parliament by itself cannot amend the preamble, it cannot indirectly impair or destroy the fundamental aims of our society mentioned in the preamble. He observed –

> ... The people of Bangladesh adopted, enacted and gave to themselves the Constitution pledging in clear terms in the Preamble `that it shall be a fundamental aim of the State to realise through the democratic process a socialist society, free from exploitation - a society in which the rule of law, fundamental human rights and freedom, equality and justice, political, economic and social, will be secured for all citizens' ... the Proclamation Order No.IV of 1978 made the Preamble along with Articles 8, 48, 56, 58, 80, 92A an entrenched provision in the Constitution ... (The Preamble has become the touchstone for assaying the worth or the validity of an amendment that may be passed in accordance with clause (1) of Art.142. When the Parliament cannot by itself amend the Preamble it cannot indirectly by amending a provision of the constitution impair or destroy the fundamental aim of our society.[2])
>
> The provisions contained in Part VI for the Supreme Court are not entrenched provisions and they can be amended by the legislature under Art.142. but if any amendment causes any serious impairment of the powers and the functions of the Supreme Court the makers of the Constitution devised as the kingpin for securing the rule of law to all citizens, then the validity of such an amendment will be examined on the touchstone of the Preamble.[3]

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[1] Ibid Para 378
[2] Ibid Para 388
[3] Ibid Para 391

The approach of M.H. Rahman J was different. He did not rely on the doctrine of basic structure. He based his decision on the fact that there is an express limitation in the matter of amendment of the preamble and hence by an indirect means the preamble cannot be amended by impairing or destroying any fundamental aim of the State mentioned in the preamble.

4.60 A.T.M. Afzal J though apparently rejected the doctrine of basic structure, it can be seen that having regard to the meaning of the words 'amend' and 'amendment' he accepted the limitation on the amending power of Parliament in a restricted way. He observed -

> The power to amend any provision of the Constitution by way of addition, alteration, substitution or repeal is found to be unlimited except as provided in Art.142 itself. *But there is a limitation inherent in the word 'amend' or 'amendment' which may be said to be a built-in limitation ... Whatever meaning those words may bear, this, in my opinion, cannot be disputed that they can never mean, to 'destroy', 'abrogate', and 'destruction' or 'abrogation'*. It is significant that under Art.142 any provision of the Constitution may be repealed but there is no conferment of power to repeal the Constitution itself as are to be found in the then Constitution of Pakistan of 1956 and the Constitution of Ceylon ... *Therefore in exercise of the power under Art.142 the Constitution cannot be destroyed or abrogated. The destruction of the Constitution will be the result if any of its 'structural pillars', that is, the three organs of the Government, Executive, Legislature and Judiciary is destroyed. The result will also be the same if any of these organs is emasculated and castrated in such manner as would make the Constitution unworkable*[1](Italics supplied).

It can be seen that B.H. Chowdhury, S. Ahmed and A.T.M. Afzal JJ agreed that the expression 'amendment' is a word of limited import and at any rate it does not cover repeal or destruction of the essential pillars of the Constitution. If we carefully consider the observation of Afzal J (quoted in Para 4.62) it will be seen that the difference in the opinion of Afzal J with the opinion of B.H. Chowdhury J and S. Ahmed J is minimal.

4.61 Coming to the question whether the amendment of art.100 affected the basic structure of the Constitution, three learned Judges found that the High Court Division with plenary judicial power over the

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[1] Ibid, Para 562

entire Republic is a basic structure of the Constitution and the amendment having destroyed the plenary judicial power of the High Court Division altered the basic structure of the Constitution and is, therefore, void. B.H. Chowdhury J held-

> The amended sub-Article (5) has disrupted structural balance that was carefully erected in Part VI of the Constitution ... If sub-article (5) attempted to create two new sets of Courts by a device terming them as 'permanent Benches' and the 'Bench at the permanent seat' then ... the least that can be said is that it is hit by Article 114 which enables the legislature for setting up subordinate courts of law but such must not be of co-ordinate jurisdiction or compete with Article 44 ... Sub-article (5) has clearly destroyed the structural pillar of the Constitution as given in Article 94 and thus has violated the mandate of the Constitution and further brought itself within the mischief of the provisions of Article 7(2).[1]

Shahabuddin Ahmed J observed -

> The High Court Division as an integral part of the Supreme Court has lost its original character as well as most of its territorial jurisdiction. Seven judicial bodies, by whatever name they are called, Benches or Courts, are, to all intents and purposes, independent courts having no relation with each other except a thin link through the Chief Justice ... The 'High Court Division' sitting in the permanent seat is not the original High Court Division with jurisdiction over the whole of the Republic, it is a court with limited territorial jurisdiction - that is, the jurisdiction over what is called the `residuary area' in clause (5) of the impugned Article ... High Court Division, as contemplated in the unamended Article is no longer in existence and as such the Supreme Court, one of the basic structures of the constitution, has been badly damaged, if not destroyed altogether.[2]

According to M.H. Rahman J -

> One of the fundamental aims of our society is to secure the rule of law for all citizens and in furtherance of that aim Part VI and other provisions were incorporated in the Constitution. Now by the impugned amendment that structure of rule of law has been badly impaired, and as a result the High Court Division has fallen into sixes and sevens - six at

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[1] Ibid, Para 139-141
[2] Ibid, Para 378

the seats of the permanent Benches and seven at the permanent seat of the Supreme Court.[1]

The learned dissenting Judge, A.T.M. Afzal J held -

> It is clear that in matters of exercise of judicial power, the High Court Division has been treated separately in the Constitution and the impugned amendment is but only an extension of such treatment. What is important to remember is that no other Article of Chapter I has been amended (except 107(3) which is consequential) it must be presumed that the integrity of the Supreme Court/High Court Division with its unlimited territorial jurisdiction has not been impaired and the High Court Division has remained one as before and therefore the impugned amendment has to be construed in harmony with all other provisions of Chapter I.[2]

4.62 Before coming to the conclusion that the amendment did not impair the integrity of the High Court Division with its unlimited territorial jurisdiction, the learned dissenting Judge commented –

> ... the entire argument on behalf of the appellants rests on an assumption ... that by assigning the areas to the permanent Benches and leaving the residue to the High Court Division sitting at the permanent seat, the jurisdiction of the Judges on those Benches have been limited to the areas thus assigned (territorially limited) and as such they have ceased to be Judges of the High Court Division exercising plenary power through out the Republic as envisaged under the Constitution. If this assumption or interpretation is correct, I shall have no hesitation to accept the argument elaborated for days together that the High Court Division, a structural pillar of the constitution, has ceased to exist ...

The learned Judge drew a distinction between jurisdiction in relation to an area and jurisdiction within an area. It is submitted that the distinction is really not material. Sub-art.(5) provided that the President would assign the area in relation to which each permanent Bench would have jurisdiction and the area not assigned would be the area in relation to which the High Court Division at the permanent seat would have jurisdiction. This made it clear that the jurisdiction of the High Court Division at the permanent seat would be limited to the unassigned area, while the jurisdiction of a permanent Bench would not extend to the area not assigned to it. The rules framed made the position further clear

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[1] Ibid, Para 456
[2] Ibid, Para 580

highlighting the exclusivity of the jurisdiction. It may also be seen that there was no provision in the amended art.100 for transfer of cases from one permanent Bench to another or to the High Court Division in the permanent seat and *vice versa*. This was crucial and the learned Judge also agreed when he said that the absence of any authority to transfer cases would amount to creation of seven High Court Divisions with mutually exclusive jurisdiction which is entirely outside the contemplation of the Constitution.[1] The learned Judge was of the view that though authority to transfer cases has not been given to any body, the Chief Justice could always make rules providing for transfer of cases in his discretion when sub-art.(6) conferred power on him to make rules providing for all incidental, supplemental or consequential matters relating to permanent Benches. Transfer of cases, it is submitted, cannot be treated as an incidental, supplemental or consequential matter. When the place of suing is determined by law, transfer of a case from its legal forum is inconsistent with the law, unless the law itself provides for such a transfer. Therefore, power to transfer is always expressly given. In this case, an express provision for transfer of cases was necessary because exercise of such a power would conflict with the exclusivity created by sub-art.(5).[2] Any rule providing for transfer of cases would be inconsistent with the assignment of area under sub-art.(5) and would be *ultra vires,* unless the Constitution itself expressly permitted making of such a rule. In order to overcome the difficulty, the learned Judge placed reliance on *Shamsuddin v. Gauhar Ayub*[3], but this decision had no application in this case. In *Shamsuddin* the Chief Justice of the West Pakistan High Court was empowered to make provision for assigning areas to Benches at Karachi and Peshawar. Power to assign area included the power to modify the assignment. Transfer of a case is nothing but modification of such assignment in a particular case. Thus the Pakistan Supreme Court had no difficulty in finding the power of transfer in favour of the Chief Justice even though there was no express grant of such power. But in the instant case, sub-art.(5) conferred the power of assignment of area on the President and as such in the absence of any specific provision in the Constitution, the question of the Chief Justice modifying the assignment in particular cases could not arise and

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[1] Ibid, Para 596

[2] In *Sk. A.K.M. Abdul Mannan v. Raj Textile Mills*, 42 DLR (AD) 11, the Appellate Division held that it could not transfer a civil case from one permanent Bench to another in exercise of power under Art.104 in the absence of any statutory provision.

[3] 17 DLR (SC) 384

any such exercise of the power of transfer, whether by making rules or otherwise, would be *ultra vires* amended art.100.

4.63 It was one of the contentions of the appellants that the amendment setting up permanent Benches with territorial limits destroyed the plenary jurisdiction of the High Court Division throughout the entire Republic and particular reference was made to the Admiralty jurisdiction of the High Court Division. It is to be noted that in many matters the Admiralty jurisdiction does not admit of territorial limitation. In case of collision, the High Court Division had jurisdiction in the Admiralty side even when the ships were foreign ships and the collision took place in foreign waters.[1] The amendment having imported the limitation areawise, the High Court Division at the permanent seat or any permanent Bench could not assume jurisdiction in respect of the offending ship inasmuch as the collision was not one which could be said to be a matter in relation to an area assigned. Again, the concept of area was invariably linked with territory. The High Court Division at the permanent seat or any permanent Bench could not have any jurisdiction in respect of a ship anchored outside Bangladesh territorial waters or waiting in the economic zone of Bangladesh. The learned Judge met the point stating -

> The jurisdiction of the High Court Division under the Courts of Admiralty Act, 1891 was considered by this Division in the case of *Al-Sayer Navigation v. Delta Int. Traders*[2], and it has been held that the jurisdiction conferred by this Act on the High Court of Admiralty may be exercised by proceedings in rem or by proceedings in personam. In keeping with the Admiralty practices as described in the British Shipping Laws Vol.I 1964 Ed.p.28, wherever the cause of action may arise, the res must be within the jurisdiction of the High Court Division (within the assigned area of any Bench) in order that an order for arrest may be effective in an Admiralty action in rem.

To fully understand the issue it is necessary to quote the relevant portion from the cited volume of the British Shipping Laws which is as follows-

> As stated, most Admiralty actions are either in rem or in personam. Usually it is for the plaintiff's solicitor to decide which to choose. In certain circumstances, the procedure in personam may be used in preference to the issue of a writ in rem, for example where a

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[1] Halsbury's Laws of England, 3rd ed., vol.1, Para 124

[2] 34 DLR (AD) 110

> nationalised industry is to be defendant, or where there is no res to be served, or security is not required and the writ can be served on the defendant without difficulty.
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> A consideration which may lead a plaintiff to sue in personam is that service of a writ in rem can only be effected within the jurisdiction. This means that although a writ in rem and a warrant of arrest may be issued even if the res is not within the jurisdiction, in order for either to be effective the res to be proceeded against must be, or come, within the jurisdiction unless service is accepted by a solicitor, whereas the service of a writ in personam can often be effected abroad provided that the conditions laid down in the Rules of the Supreme Court are satisfied.

The above passages do not establish that the mere presence of a vessel within the territorial jurisdiction of a Bench can give it jurisdiction. Such a presence makes arrest possible where the Bench has jurisdiction. It can also be seen that for taking cognizance of an action *in rem* it is not necessary that the *res* should be within the jurisdiction of the court. An action could be started when the offending vessel was in the high seas and the arrest might be made when it came within the territorial water or even economic zone of Bangladesh. The concept of jurisdiction having been tied to the concept of area, none of the permanent Benches, nor the High Court Division at the permanent seat could take cognizance of an action *in rem* while the offending vessel waited in the economic zone of Bangladesh or in the high seas. Furthermore, prior to the amendment of art.100 the Admiralty jurisdiction was not tied to the concept of area and the High Court Division's warrant of arrest could be executed in the economic zone. We can take up another case of a vessel carrying cargo for both Chittagong port and Mongla port. The cargo delivered at Chittagong port was found damaged, but before the Chittagong Bench could take cognisance and arrest the vessel, the vessel reached Mongla port. The cargo delivered at Mongla port was undamaged. Neither the Chittagong Bench could arrest the vessel at Mongla which was within the territorial jurisdiction of the Jessore Bench, nor the Jessore Bench could arrest the vessel as it could not take cognisance of a matter which was undoubtedly a matter in relation to the area assigned to the Chittagong Bench.

4.64 For better understanding of the power of amendment we may keep certain facts in view. Having regard to the history of the

constitutional development in our country, the framers of the Constitution declared the supremacy of the Constitution in the preamble and in art.7 without relying on the general principle of constitutional law that in a written constitution with entrenched provisions the constitution is the supreme law. Art.7 clearly mandated that all functionaries in the Republic will have power limited and circumscribed by the Constitution. In the light of these facts, the framers cannot be thought to have given such power of amendment to Parliament which in an opportune moment could be exercised to substitute the supremacy of the Constitution by the supremacy of Parliament or to do something more drastic. If the power of amendment be taken to be unlimited and unqualified, it was possible for a Parliament having the requisite majority support (before the Marital Law amendment of art.142[1]) to amend art.142 itself so as to enable Parliament to amend the provisions of the Constitution by simple majority[2] and thus making Parliament supreme in place of the Constitution. The framers seeking to adopt a permanent document for our political organisation and specifically providing for a limited government, cannot be ascribed an intention to confer such a power to an authority which they wanted to have only limited power. In the face of this manifest intention of the framers, there was no scope of construing the power of amendment in the manner advocated by the respondent.

4.65 In dealing with the doctrine of basic structure, the Indian Supreme Court had gone to the question of implied limitation on the power of amendment. That there are implied limitations on the power conferred on different organs of the government cannot be denied. Parliament has implied limitation in providing for local government bodies and in delegating the power of legislation. Parliament cannot pass a legislative judgment or confer on the executive a power which partakes judicial character. The relevant question is what is the nature of an act which can qualify as an amendment, or, in other words, what is the connotation of the expression 'amendment'. The Appellate Division went for the meaning of the word 'amendment' and concentrated on the extent of the power that may be exercised by Parliament in the name of amendment of the Constitution. Because of this approach the learned

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[1] To ascertain the intention of the framers we are to consider the provisions of the Constitution as originally adopted.

[2] After amendment of art.142 by Martial Law Proclamation, it will require an affirmative voting in a referendum.

dissenting Judge, even after rejecting the theory of implied limitation, was impelled to hold that the power of amendment did not include the power to abrogate, destroy or emasculate any structural pillar of the Constitution. The government placed strong reliance on the observation of the Privy Council in *R. v. Burah*[1] deprecating implied limitation. But this statement was made in the context of legislative power, as had been rightly pointed out by the learned dissenting Judge. Even in that case the Privy Council found implied limitation on the creation of new legislative authority. If the Constitution is read as a whole and its scheme carefully considered, it must be said that the Appellate Division rightly struck down the amendment of art.100.

4.66 What is the nature of an Act of Parliament which amends a provision of the Constitution? It was contended in *Anwar Hossain Chowdhury* that such an Act of Parliament is 'any other law' within the meaning of art.7 and will therefore be void if it is inconsistent with the essential scheme of the Constitution. The majority of the learned Judges refused to treat an amendment of the Constitution as 'any other law' within the meaning of art.7 pointing out that it is passed in exercise of constituent or derivative constituent power conferred by the Constitution.[2] By the Constitution (Third Amendment) Act, clauses were inserted in art.26 and in art.142 stating that art.26 will not apply to any amendment of the Constitution. But no such amendment was made to say that art.7 will not apply to an amendment of the Constitution. Their Lordships, however, did not place any importance to this omission. Having treated an amendment of the Constitution to be an exercise of the constituent power different from ordinary legislative power, their Lordships rejected an important contention that the constituent power cannot be delegated by Parliament to any other authority. The High Court Division at the permanent seat had the plenary judicial power over the entire Republic. The amended art.100 authorised the President to determine the territorial jurisdiction of the permanent Benches by notification and thereby to curtail and redefine

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[1] 4 Cal 172 (If what has been done is legislation, within the general scope of the affirmative words which give the power, and if it violates no express condition or restriction by which that power is limited ... it is not for any court of justice to inquire further, or to enlarge constructively those conditions or restrictions.)

[2] Subsequently, in *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319, 346, Mustafa Kamal J held to the contrary saying, "this Constitution taken as a whole is a law, albiet the supreme law and by 'any other law' and 'that other law' the Constitution refers to the definition of 'law' in Article 152(1), including a constitutional amendment".

the territorial jurisdiction of the High Court Division at the permanent seat. It was contended that defining or redefining the territorial jurisdiction of the High Court Division at the permanent seat already conferred by the Constitution amounts to an exercise of constituent power and by allowing the President to do it by notification Parliament delegated the constituent power to the President which is unconstitutional. There can be no doubt that the act of defining or redefining the territorial jurisdiction of the High Court Division at the permanent seat amounted to an amendment of arts.101 and 102 of the Constitution. Their Lordships were of the view that by the amended art.100(5) Parliament did not delegate an essential legislative function and therefore the amendment was not unconstitutional. Their Lordships thereby meant that this was a permissible delegation of legislative function not amounting to abdication of the power of legislation. Delegation of legislative function is permissible so long as it does not amount to abdication of the power of legislation[1]. This is recognised in art.65 which enables Parliament to delegate the function of making subordinate legislation to some other authority. The imperatives which compel the legislature to delegate legislative function to the administrative bodies and persuade the court to uphold such delegation are not there when it comes to the exercise of the constituent power in amending the Constitution. There is no principle of constitutional law to permit delegation of the constituent power, essential or unessential, and art.65 does not permit any such delegation. In fact, the power of amendment is not dealt with in the Part which deals with the composition, powers and functions of Parliament and art.65 is not applicable in case of amendment of the Constitution under art.142. Constituent power is exclusively given to Parliament to be exercised in a different manner and it is by its very nature such that it cannot be delegated at all.[2]

4.67 The Appellate Division having held that the power of

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[1] For discussion on delegated legislation, see Para 4.32-4.37

[2] *A.K. Roy v. India*, AIR 1982 SC 710, Para 50 (In this case the Court upheld the delegation of power to issue a notification for bringing into force the provisions of a constitutional amendment saying that this power is not a constituent power because it does not carry with it the power to amend the constitution. The issue whether power to bring into force a constitutional amendment is a constituent power or not is open to question or is at least debatable, but the point is that to justify the delegation the court had to find that this power is not a constituent power which, according to the court, is non-delegable.)

amendment does not extend to the alteration or change in the basic structure or features of the Constitution, the question is which are the basic structures or features of the Constitution. Having regard to the scheme and objects of the Indian Constitution, the learned Judges of the Indian Supreme Court held different features as basic. Most important of these are - the supremacy of the Constitution[1], rule of law[2], separation of powers[3], judicial review[4], objectives of the Preamble[5], sovereign, democratic and republican structure[6], principle of equality[7], scheme of fundamental rights[8], free and fair election[9], independence of judiciary[10], and effective access to justice[11]. The Preamble of our Constitution is quite explicit in stating the objects of the Constitution and it is comparatively easy to find out the features which constitute the basic structure of our Constitution. The basic theme of our political organisation, as can be found from a reading of the Constitution, is the rule of law and limited government ensured by judicial review by an independent judiciary. Having regard to the scheme and objectives of the Constitution, Shahabuddin Ahmed J included the sovereignty of the people, supremacy of the Constitution, democracy, republican government, unitary State, separation of powers, independence of judiciary and fundamental rights in the list of basic features of our

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[1] *Keshavananda Bharati v. Kerala*, AIR 1873 SC 1461, per Sikri CJ; *Rajsthan v. India*, AIR 1977 SC 1361, per Beg CJ

[2] *Indira Gandhi v. Raj Narayan*; AIR 1975 SC 2299, per Roy CJ, Khanna and Chandrachud JJ; *Sambamurthy v. A.P.*, AIR 1987 SC 663, per Bhagawati CJ.

[3] *Keshavananda v. Kerala*, AIR 1973 SC 1461, per Sikri CJ; *Indira Gandhi v. Raj Narayan*, AIR 1975 SC 2299, per Roy CJ and Chandrachud and Beg JJ

[4] *Minerva Mills Ltd. v. India*, AIR 1980 SC 1789, per Chandrachud CJ and Bhagwati J; *Sampath v. India*, AIR 1987 SC 386, per Bhagwati CJ; *Sambamurthy v. A.P.*, AIR 1987 SC 663, per Bhagwati CJ.

[5] *Keshavananda v. Kerala*, AIR 1973 SC 1461, per Sikri CJ and Shelat, Grover, Hegde, Mukherjee, Reddy and Khanna JJ

[6] *Keshavananda v. Kerala*, AIR 1973 SC 1461, per Sikri CJ and Khanna, Mathews and Chandrachud JJ, *Rajsthan v. India*, AIR 1977 SC 1361, per Beg CJ; *Indira Gandhi v. Raj Narayan*, AIR 1975 SC 2299, per Khanna, Mathews and Chandrachud JJ

[7] *Indira Gandhi v. Raj Narayan*, AIR 1975 SC 2299, per Chandrachud J; *Minerva Mills Ltd. v. India*, AIR 1980 SC 1789, per Chandrachud CJ.

[8] *Waman Rao v. India*, AIR 1981 SC 271, per Chandrachud CJ.

[9] *Indira Gandhi v. Raj Narayan*, AIR 1975 SC 2299, per Khanna and Mathew JJ

[10] *Secretry, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104; *S.P. Gupta v. India*, AIR 1982 SC 149; *Sampath v. India*, AIR 1987 SC 386

[11] *Central Coal Fields Ltd. v. Jaiswal Coal Co.*, AIR 1980 SC 2125

Constitution[1]. M.H. Rahman J rightly added rule of law to the list[2].

4.68 The Appellate Division having held in *Anwar Hossain Chowdhury* that the power of amendment does not extend to alteration or destruction of the basic structure or features of the Constitution, the question arises whether the amendments made in the Constitution are valid. The first three amendments do not appear to have altered the basic structure of the Constitution. But the Fourth Amendment of the Constitution clearly altered the basic structure of the Constitution and in one case the amendment was found to have so altered the basic structure, but the court did not declare the amendment invalid as, in the opinion of the court, the constitutional process in the country had followed a different course in view of the change of the political system, the people have not resisted it and it has been recognised by the judicial authorities[3]. It is submitted that refusal to declare the invalidity of the amendment was wrong. A change of the political system by unconstitutional method cannot immunise an unconstitutional amendment. There is no judicial decision accepting the amendment as valid and as such the question of judicial recognition cannot arise. A constitutional amendment cannot be avoided by a collateral attack and in the same way validity of a constitutional amendment cannot be established in any collateral proceeding in which the question of the validity of the amendment was not mooted. There cannot be any plea of acquiescence in respect of unconstitutionality[4]. Passage of time cannot impart validity to an otherwise unconstitutional act.[5] "Time does not run in favour of legislation. If it is *ultra vires*, it cannot gain legal strength from long failure on the part of lawyers to perceive and set up its

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[1] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1, Para 377

[2] Ibid, Para 443

[3] *Hamidul Huq Chowdhury v. Bangladesh*, 33 DLR 381

[4] 16 Am Juris 2d Const. Law, Para 124

[5] *Toronto Electric Commissioners v. Snider*, [1925] AC 396 (statute declared invalid after 18 years); *Proprietary Article Trade Association v. A.G. of Canada*, [1931] All E.R. Rep. 277, 280 (Their Lordships entertain no doubt that time alone will not validate an Act which, when challenged, is found to be *ultra vires*); *Myers v. U.S.*, 272 U.S. 52 (statute held unconstitutional after 58 years); *Walz v. Tax Commission of New York*, 397 US 664, 678 (no one acquires a vested or protected right in violation of the Constitution by long use, even when the span of time covers our entire national existence and indeed predates it.); *Motor General Traders v. A.P.*, AIR 1984 SC 121 (impugned provision of law held unconstitutional after 23 years of operation and in the meanwhile in another case the provision was held valid by a High Court)

invalidity. Albiet, lateness in an attack upon the constitutionality of a statute is but a reason for exercising special caution in examining arguments by which the attack is supported."[1]

4.69 Most of the changes effected by the Fourth Amendment have been undone by the Constitution (Twelfth Amendment) Act, 1991, but importantly the change in respect of subordinate judiciary still continues. During the first Martial Law period, the Constitution was amended on several occasions by Martial Law Proclamations. Those amendments *per se* would have been unconstitutional as the Constitution cannot be amended by any process other than that prescribed under art.142. But by the Constitution (Fifth Amendment) Act, 1979 Paragraph 18 was inserted in the Fourth Schedule (Transitional Provisions) of the Constitution. Paragraph 18 ratified all Martial Law Proclamations amending the Constitution and all actions of the Martial Law authorities, declared all such amendments and acts to have been validly made and precluded all challenges to those amendments and acts in court on any ground. All those amendments and acts were made and done in direct contravention of the provisions of the Constitution and defying the supremacy of the Constitution. Paragraph 18 displaces the Constitution in its operation so far as regards those amendments and acts and it may be said that insertion of Paragraph 18 by amendment is destructive of the supremacy of the Constitution, the most important basic feature of the Constitution. The amendment also alters another basic feature of the Constitution in precluding judicial review. It can also be forcefully contended that this amendment is a fraud on the Constitution inasmuch as no amendment can be made undermining the supremacy of the Constitution and Parliament had resorted to the subterfuge of inserting a provision in the Constitution declaring patently unconstitutional acts as constitutional and precluding judicial review of those acts. Above all, an amendment declaring actions of mutilating the Constitution and whatever it stands for as constitutional is simply beyond the power of Parliament under art.142. This is so even on the reasoning of A.T.M. Afzal J as it will not be an overstatement to say that the amendment has emasculated the Constitution. It may be noted that the amendment was made by Parliament before withdrawal of the Martial Law and the Constitution became operational by its own force.[2] The Constitution

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[1] *Grace Bros. Pty Ltd. v. The Commonwealth*, 72 C.L.R. 269, 289

[2] The amendment was made and published in the official Gazette on 6 April 1979 and thereafter the Proclamation of Withdrawal of Martial Law was issued on the same day

(Seventh Amendment), Act, 1986 followed the pattern of the Fifth Amendment to ratify the actions of Martial Law authorities and to preclude judicial review and it is open to the same objection of destroying the basic structure of the Constitution and fraud on the Constitution.[1]

4.70 The Constitution (Tenth Amendment) Act extending the period of reservation of seats for women in Parliament was challenged as violative of the basic structure of the Constitution, but the High Court Division repelled the contention pointing out that the reservation had been there in the original Constitution and the question cannot arise at all.[2]

4.70A The Thirteenth Amendment of the Constitution providing for non-party care-taker government during the period Parliament stands dissolved was challenged in *Mashiur Rahman v. Bangladesh*[3] on the ground, inter alia, that no referendum was held in terms of art.142(1A). The court rejected the challenge stating that the provisions of the amending Act do not appear to come within the definition of alteration, substitution or repeal of any provision of the Constitution.

PARLIAMENTARY COMMITTEE

4.71 Sir Erskine May spoke about the long prevalent practice of the British Parliament "of delegating to small bodies of Members, regarded as representing the House itself, the consideration of questions, which, as involving points of detail or questions of technical nature, are unsuited to the House as a whole."[4] He narrated, "Each House accordingly now possesses an organized system of committees which comprises committees of the whole House; select committees and committees on private bills; in the House of Lords, Public Bill committees; and, in the House of Commons, standing committees on public bills and other matters. The functions of these committees include the consideration and amendment of public and private bills, inquiries

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and was published in the official Gazette on 7 April 1979.

[1] In *A.Y.B.I Siddiqui v. Bangladesh*, 2000 BLD 75, Paragraph 19 incorporated by the Seventh Amendment was discussed, but the question of validity of the amendment was not raised.

[2] *Fazle Rabbi v. Election Commission*, 44 DLR 14

[3] 1997 BLD 55

[4] Parliamentary Practice, 19th ed., p.604

(sometimes of a quasi-judicial character) into matters which the House refers to them for investigation, and (for domestic purposes) functions of an administrative character."[1] This committee system helps in conserving the time of the legislature, increasing expertise and enabling the legislature to exert control over the government. The legislature discusses policy, but it is in the committees that details can be discussed, administrators made to give evidence and matters examined thoroughly and with the help of technical experts, when necessary. The greatest advantage of the committee system is that in a committee the atmosphere is informal and business-like, almost free of party politics.

4.71A Art.76(1) of the Constitution provides that Parliament shall appoint from among its members the following standing committees:-

(a) a public accounts committee;
(b) a committee of privileges; and
(c) such other standing committees as the rules of procedure of Parliament require.

Art.76(2) further provides that in addition to the committees referred to in art.76(1), Parliament shall appoint other standing committees, and the committees so appointed may, subject to the constitution and any other law, (a) examine draft Bills and other legislative proposals; (b) review the enforcement of laws and propose measures for such enforcement; (c) in relation to any matter referred to it by Parliament as a matter of public importance, investigate or inquire into the activities or administration of a Ministry and may require it to furnish, through an authorised representative, relevant information and to answer questions, orally or in writing; and (d) perform any other function assigned to it by Parliament. Parliament may by law confer on the committees powers for enforcing attendance of witnesses and examining them on oath or affirmation and compelling the production of documents.[2] The rules of procedure of Parliament have made provisions for the appointment of committees, the procedure of their work, the place of their work, the quorum, the formation of sub-committees, the time and manner of making report to Parliament, manner of taking evidence and other relevant matters[3]. Unless the House fixes any time and unless the House extends the time, a committee is required to present its report to the House within one

[1] Ibid
[2] Art.76(3)
[3] Chapter 27 of the Rules of Procedure of Parliament

month from the date on which reference is made.[1] A committee may, if it thinks fit, make available to the government any part of its report before presentation to the House and such report shall be treated as confidential until presented to the House.[2]

4.71B Under its rules of procedure Parliament has instituted an elaborate committee system with a view to better organise its works and discharge its functions effectively. The rules of procedure provide for (A) Business Advisory Committee, (B) Committee on Private Members" Bills and Resolutions, (C) Select Committees on Bills, (D) Committee on Petitions, (D) Standing Committee on Public Accounts, ((F) Committee on Estimates, (G) Committee on Public Undertakings, (H) Standing Committee of Privileges, (I) Committee on Government Assurances, (J) Standing Committees on each Ministry, (K) House Committee, (L) Library Committee, (M) Standing Committee on Rules of Procedure and (N) Special Committee.[3]

4.71C People may present petition to the House with the consent of the Speaker on (i) a Bill which has been published under rule 76 or which has been introduced in the House, (ii) any important matter connected with the business pending before the House, and (iii) any other matter of public importance. But no such matter will be acceptable if (a) it is *sub judice* before any court or any authority discharging judicial or quasi-judicial functions or before any inquiry commission or inquiry court, (b) it can be raised in the House on a substantive motion or resolution, or (c) in respect of which a remedy is available under any law.[4] Such petition on presentation by a member of Parliament or report by the Secretary of Parliament to the House[5] shall stand transferred to the Committee on Petitions[6] unless the House otherwise decides.

4.71D Rule 246 provides for appointment and jurisdiction of the standing committees on each Ministry as follows -

> Parliament shall, as soon as may be, after the inauguration of each new Parliament, appoint the Standing Committees on each Ministries which may, subject to the Constitution and any other law, -

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[1] Rule 209
[2] Rule 210
[3] Chapter XXVII of the Rules of Procedure
[4] Rule 100
[5] Rule 108
[6] Rule 110

(a) examine draft Bills and other legislative proposals;
(b) review the enforcement of laws and propose measures for such enforcement; and
(c) examine any other matter referred to them by Parliament under Article 76 of the Constitution.

These standing committees play important role in the matter of examination of draft Bills and legislative proposals and review of the enforcement of laws by the concerned Ministries. However, a question has recently cropped up whether these standing committees can directly entertain complaints by the people against the actions of the Ministries and other public functionaries. Art.76(2)(C)stipulates that a standing committee may investigate any matter referred to it by Parliament. It is contended that Standing Committees on the Ministries have been provided under the rules of procedure and are covered by art.76(1); these committees not being covered by art.76(2), the authority of these committees to investigate into complaints is not conditional upon reference by Parliament as stipulated in clause (C) of art.76(2). Properly construed, art.76(2)(C) is applicable to standing committees referred to in art.76(1). Even if it is doubted, it can be seen that rule 246 of the rules of procedure, while providing for standing committees on each Ministry, stipulates in clause (C) that such standing committees may "examine any other matter referred to them by Parliament under Article 76 of the Constitution". Thus rule 246 read with art.76(2)(C) makes it clear that a standing committee on a Ministry can investigate a complaint regarding the activities of the Ministry or public functionaries only when it is referred to it by Parliament as a matter of public importance and the standing committee cannot, without a reference from Parliament, entertain any complaint from any person relating to the functions of the Ministry or a public functionary.[1]

OMBUDSMAN

4.72 The evil effect of deficient laws can be mitigated by good officials, but the evil effect of bad administration cannot be surmounted by good laws. It is, therefore, necessary to have a good and efficient

[1] *Major (Retd) Akhtaruzzaman v. Bangladesh*, W.P. no.3774 of 1999 (Unreported)(In this case the High Court Division permitted the proceedings before the standing committee to continue as the government for the sake of transparency had already submitted papers to the Chairman of the standing committee)

administration. Technological development and complex living of today has led to vast expansion of administrative functions and with it has increased administrative abuse of power. Experience shows that normal judicial system is not effective in preventing such abuse of power. Somehow a system must be evolved which will enable proper investigation of the citizens' complaints against abuse of power by the administrative officials and redress made. In many countries the problem has been sought to be solved by establishing the office of Ombudsman.

4.73 Art.77 of the Constitution provides that Parliament may by law establish the office of Ombudsman. Once established the Ombudsman shall have the power to investigate any action taken by a Ministry, a public officer or a statutory public authority and such other powers and functions as may be prescribed by Parliament. The Ombudsman shall prepare an annual report concerning the discharge of his functions and such report shall be laid before Parliament.

4.74 Parliament passed the Ombudsman Act, 1980 and empowered the government to bring it into force by notification in the official Gazette. The Act provides for establishment of the office of Ombudsman and stipulates the terms in conformity with art.77. S.3(2) provides that the Ombudsman shall not be removed from his office except by an order of the President passed pursuant to a resolution of Parliament supported by a majority of not less than two thirds of the total number of members of Parliament on the ground of proved misconduct or physical incapacity. The Ombudsman may investigate any action taken by a Ministry, a statutory public authority or a public officer in any case where a complaint in respect of such action has been made to him. If he finds that injustice has been caused, he shall recommend to the competent authority that the injustice should be remedied. The authority concerned is to report back intimating the Ombudsman the action taken or proposed to be taken. If the Ombudsman is not satisfied with the report of the concerned authority he may make a special report to the President.

4.75 After examining the functioning of the office in several European countries Walter Gelhorn observed, "The mere existence of their offices means little. The men in the office are what counts. Whoever holds responsibility for dealing with citizens' complaints must measure up to a very big job because most assuredly the job of attacking administrative imperfections will not execute itself."[1] As regards the

[1] Ombudsman and Others, 438

performance of the Parliamentary Commissioner (British Ombudsman) Professor Wade commented, "The Commissioner's reports show that he has been able to remedy a great many cases of injustice where, almost certainly, no remedy would otherwise have been obtained. In general he has found that the government departments are willing to pay compensation or otherwise make reasonable amends when he has exposed mal-administration, though in some cases he has had to press hard for it."[1] We have not made the beginning and in our case the question of evaluation does not arise. The Act has not been brought into force and the office of Ombudsman has not been established though more than two decades have elapsed since the passing of the Act. There has been frequent allegation of rampant abuse of power by the public authorities which cannot be investigated for want of legal mechanism. Often, persons feeling aggrieved approach the Supreme Court in writ jurisdiction. Many of their grievances are not amenable to writ jurisdiction and the Supreme Court declines to exercise jurisdiction. In the process there is much waste of time of the Supreme Court which could have been utilised in appropriate cases.

PARLIAMENTARY PRIVILEGES

4.76 For the discharge of the high functions and responsibilities effectively free of any interference or obstruction from any quarter certain privileges and immunities are accorded to the legislature and its members. These privileges are conferred to the legislature collectively so that it may vindicate its authority, prestige and power and protect its members from obstruction in the performance of their parliamentary functions and the members of the legislature are given wider personal liberty and freedom of speech than enjoyed by the ordinary citizens.

4.77 Art.78 of the Constitution provides for privileges and immunities of Parliament and its members. Sub-art.(1) provides that the validity of the proceedings of Parliament shall not be questioned in any court. Sub-art.(2) provides that the members and officers of Parliament shall not in the exercise of their powers relating to regulation of procedure, conduct of the business or the maintenance of order in Parliament be subject to the jurisdiction of any court. Sub-art.(3) protects the members of Parliament against any liability in respect of anything said or vote given by them in Parliament or in a committee of

[1] Administrative Law, 6th ed., p.88

Parliament. In view of sub-art.(4) no person shall incur any liability in respect of any publication by or under the authority of Parliament of any report, paper, vote or proceeding. Sub-art.(5) provides that subject to art.78 the privileges of Parliament, its committees and members may be determined by an Act of Parliament.

4.78 In 1955 the Constituent Assembly (Proceedings and Privileges) Act was passed. This Act provided that the members of the Constituent Assembly would enjoy the same privileges as enjoyed by the members of the British House of Commons. The Constitution of Pakistan, 1956 gave continuity to the existing laws and accordingly this Act was applicable as the constitution provided that subject to the constitution, the privileges of the members of National Assembly may be determined by an Act of Parliament.[1] Art.111 of the Pakistan Constitution, 1962 specified the parliamentary privileges and sub-art.(5) thereof provided, "Subject to this Article, the privileges of an Assembly, of the committees and the members of an Assembly and of the persons entitled to speak in an Assembly may be determined by law". Art.225 gave continuity to the existing laws which included the Constituent Assembly (Proceedings and Privileges) Act, 1955 and on the principle laid down by the Pakistan Supreme Court in *Badrul Huq Khan v. Election Tribunal*[2], the National Assembly of Pakistan and its committees and members were entitled to the privileges enjoyed by the members of the British House of Commons.[3]

4.79 In *Suranjit Sengupta v. Election Tribunal*[4] the question arose whether the Members of the National Assembly (Exemption from Preventive Detention and Personal Appearance) Ordinance, 1963 was applicable in respect of privileges of the members of Parliament. The High Court Division held that in view of the Laws Continuance Enforcement Order, 1971 and art.149 of the Constitution, the Ordinance of 1963 was applicable on the principle laid down in *Badrul Huq Khan*. It is necessary to analyse *Badrul Huq Khan* and *Suranjit Sengupta* in detail as these decisions have far reaching effect on the question of parliamentary privilege inasmuch as on the principle laid down in these decisions all pre-Bangladesh laws relating to parliamentary privileges will be applicable to Parliament, its committees and members.

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[1] A.K. Brohi - Fundamental Law of Pakistan, p.153-154
[2] 15 DLR (SC) 389
[3] M. Munir - Constitution of Pakistan, 1965, p.418
[4] 1981 BLD 132

4.80 The Pakistan National Assembly passed Representation of People Act, 1957 providing for the method and manner of election of the National Assembly and the Provincial Assemblies under the Pakistan Constitution, 1956. On 7 October 1958 the President abrogated the Constitution of 1956 and dissolved the Assemblies. On 10 October 1958 he proclaimed Laws (Continuance in Force) Order, 1958 giving continuity to the laws in existence prior to the abrogation of the constitution. In 1962 the new constitution introducing presidential system of government was proclaimed. In *Badrul Huq Khan* the question arose whether the Representation of Peoples Act, 1957 was a continuing law applicable to the election of the National Assembly under the new constitution. It was contended that the legislatures as set up under the old constitution were abolished by the President and it could not be said that Laws (Continuance in Force) Order, 1958 continued the Act of 1957 relating to those abolished legislatures. The majority decision delivered by Cornelius CJ went for the intention of the President in proclaiming the Laws (Continuance in Force) Order and negatived the contention stating -

> If during the period of Martial Law, it has pleased the President to consider in view of changed and improved circumstances, the possibility of restoring representative Government as provided under Constitution of 1956, which in its other aspects was actively in operation, although from a depressed status, we entertain no doubt that the wish could have been carried to fulfillment with the aid of the laws and the machinery of election already in existence, despite the abrogation of the Constitution. The carrying over all laws as effective instruments from the period prior to the Revolution into the period of Martial Law was effected by Article 3 of the Laws (Continuance in Force) Order, 1958, and it is clear that within the terms of that Article, the Representation of the People Act is one of the laws which continued to be existing law after the 7th October, 1958. We do not see that this can be thought to have been deprived of its force by anything appearing in the Proclamation of the 7th October, 1958.[1]

Kaikaus J pointed out that for the decision in the case what had to be ascertained was the state of mind of the President on 10 October 1958. "If on that date he was not contemplating the holding of fresh elections and, therefore, did not revive the provisions relating to the Assemblies whatever he might have thought afterwards is irrelevant for whether the

[1] 15 DLR (SC) 389, 403

Representation of People Act did or did not become existing law on the 10th October 1958, depends on whether the provisions relating to the Assemblies were or were not revived on the 10th October, 1958".[1] He reasoned that "the Representation of the People Act was intended to apply only to the Assemblies created by the Constitution of 1956 and to no other Assembly. At the same time the Legislature which enacted the Representation of the People Act had jurisdiction to enact such a law only with respect to the Assemblies which were created by the Constitution of 1956." Kaikaus J was of the opinion that the President in abrogating the Constitution did not merely dissolve the legislatures constituted under the Constitution but, in effect, abolished it.

4.81 The common ground in both the judgments was that continuity of the Act of 1957 depended on the intention of the President in proclaiming the Laws (Continuance in force) Order, 1958 and the two differed in finding that intention. The view of Kaikaus J appears to be more reasonable and logical, but there is no need to discuss which view is correct as it will be seen that even the majority view cannot support *Suranjit Sengupta.*

4.82 Even though the old legal order was destroyed in 1958, there was no disintegration of the State of Pakistan, and, arguably, as had been held by the majority in *Badrul Huq Khan*, there was a possibility of revival of the old legal order. So far as East Pakistan was concerned in 1971, not only the old legal order was destroyed, a new State emerged. The Constitution of 1962 was abrogated in March, 1969 and the Provisional Constitutional Order proclaimed on 4 April 1969 provided for a new legal order following the scheme of the Laws (Continuance in Force) Order, 1958. Thereafter, the Legal Framework Order proclaimed in May, 1970 confirmed the destruction of the old legal order by providing for the composition of a new National Assembly to enact a new constitution. Then came the Proclamation of Independence on 10 April 1971 which stated -

> We, the elected representatives of the people of Bangladesh ...
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> * * * * * * *
>
> do hereby affirm and resolve that till such time as a Constitution is framed, Banga Bandhu Sheikh Mujibur Rahman shall be President of the Republic ... and that the President ...

[1] Ibid, p.412

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shall have power to summon and adjourn the Constituent Assembly, and do all other things that may be necessary to give to the people of Bangladesh an orderly and just Government.

The Proclamation of Independence is the definitive statement of the establishment of the new State of Bangladesh and of a new legal order. Hence there could not be any further question of revival of the old legal order or the defunct legislatures on the date the Laws Continuance Enforcement Order, 1971 was proclaimed. There can be no two views that continuation of the pre-Bangladesh laws relating to the defunct legislatures of Pakistan was inconsistent with the Proclamation of Independence. Consequently, in making the Laws Continuance Enforcement Order, 1971 in conformity with the Proclamation of Independence, the Acting President cannot be imputed with an intention to continue the pre-Bangladesh laws relating to the defunct legislatures of Pakistan. The legal and political situation in 1971 was so radically different from the situation in 1958 that the rationale of the majority decision in *Badrul Huq Khan* cannot be applied in determining the continuity of the pre-Bangladesh laws relating to the defunct legislatures of Pakistan. It is submitted that reliance on *Badrul Huq Khan* in *Suranjit Sengupta* was inappropriate and the High Court Division was not correct in holding that till the promulgation of Ordinance III of 1980[1] the Ordinance IX of 1963 continued in force. As it cannot be said that the Laws Continuance Enforcement Order, 1971 intended to continue the pre-Bangladesh laws relating to defunct legislatures of Pakistan, promulgation and lapse of Ordinance III of 1980 were of no legal relevance.

4.83 The scheme of art.78 has to be noticed. Sub-arts.(1) to (4) specify the privileges of Parliament and its committees and members. Thereafter, sub-art.(5) provides that subject to this article the privileges of Parliament, its committees and members may be determined by Act of Parliament. It clearly means that in addition to the privileges specified,

[1] This Ordinance sought to repeal Ordinance IX of 1963. Subsequently a Bill dealing with the privileges of members of Parliament and seeking repeal of the Ordinance of 1963 was placed before Parliament, but it was not passed and Ordinance III of 1980 lapsed. Statement of objects and reasons of the Bill stated that Ordinance IX of 1963 and East Pakistan Act no.IX of 1965 were not operative in Bangladesh as 'existing law' inasmuch as any interpretation of their continued operation would not be consistent with the facts of emergence of Bangladesh as independent sovereign state.

further privileges may be granted by an Act of Parliament which by definition[1] means an Act of Bangladesh Parliament constituted under art.65. Read in the proper context, it is doubtful if any extended meaning can be given to the expression 'Act of Parliament' so as to include any pre-Bangladesh law as 'Act of Parliament'.

4.84 ***Validity of proceedings:*** Parliament has the exclusive right to regulate its own internal proceedings and to adjudicate upon matters arising there. The validity of the proceedings within Parliament cannot be challenged in court even when Parliament does not strictly follow its rules of procedure as Parliament reserves the right to suspend any rule of procedure in respect of a particular business.[2] The court will not interfere with the legislative process of Parliament in the formative stages of law-making or with the presentation of the Bill to the President for assent.[3] A member cannot be restrained from presenting a Bill or moving a resolution in Parliament.[4] It is only when a Bill is assented to by the President that the court can pass on its validity. When the election of the Speaker in the Provincial Assembly was challenged in court on the allegation that some members of the Assembly were prevented by force from casting their vote, the Pakistan Supreme Court held that the election of the Speaker was part of the proceedings of the Assembly and the court's jurisdiction was ousted.[5], Parliament has power to enforce discipline in Parliament and to suspend or expel any member who conducts himself in a manner unbecoming of a member of Parliament and the court will not interfere with the resolution of Parliament suspending or expelling a member of Parliament.[6] Parliament has the exclusive power of interpreting a law so far as the regulation of its own proceedings within its four walls is concerned and the court has no jurisdiction to interfere with it.[7] So wide is the immunity that in one case the English court refused to convict the members of the Kitchen Committee of the House of Commons for breach of the licensing law for selling liquor without a licence in the precincts of the House of Commons.[8] It is, however, unlikely that our Supreme Court will take the

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[1] Art.152
[2] *M.S. Sharma v. Sinha*, AIR 1960 SC 1186
[3] *Bihar v. Kameswar*, AIR 1952 SC 252; see Para 4.42
[4] *Hem Chandra v. Speaker*, AIR 1956 Cal 378
[5] *Pakistan v. Ahmed Saeed Kirmani*, PLD 1958 SC 397
[6] *Bradlough v. Gossett*, 12 QBD 271
[7] Ibid; see Para 4.43B
[8] *R. v. Graham Campbell*, [1935] 1 KB 594

immunity to such an extent as ordinary crimes committed within the precincts of Parliament should not be treated as part of the internal proceedings of Parliament. The immunity available to Parliament from judicial scrutiny is also available to its committees as those committees are agencies or instruments through which Parliament functions.[1] The court will not issue a writ of prohibition to restrain the Committee of Privileges from considering a privilege matter.[2]

4.85 Under the Indian Constitution the proceedings of the Indian Parliament cannot be challenged in any court on the ground of any irregularity in such proceedings. But if the proceeding is illegal and not merely irregular, the proceeding will be open to attack. Absence of the words "on the ground of irregularity" in art.78 of the Constitution does not, however, enlarge the immunity.[3] In order to oust the jurisdiction of the court, it must be a matter which can fairly be described as internal proceedings relating to the proper business of Parliament or its committees.[4] Referring to English cases H. Rahman CJ observed -

> The test indicated by Sir Erskine May in his book on Parliamentary Practice is whether what is said or done "forms part of a proceeding of the House in its technical sense, i.e. the formal transaction of business with the Speaker in the chair or in a properly constituted committee." It be neither possible nor desirable to attempt any exhaustive classification of the matters that may be comprised within the term "internal proceedings" but will be sufficient for my purpose to indicate that whatever is not related to any "formal transaction of business" in the House cannot be said to be a part of its "internal proceedings".[5]

If the proceedings are outside the purview of the Constitution, or if any act is done which is contrary to any provision of the Constitution, it cannot qualify as a proceeding of Parliament and the court's jurisdiction is not ousted. Thus if a law is passed in a sitting when there was no quorum and the lack of quorum was pointed out to the Speaker by any member, the immunity will not be available as under the Constitution the sitting cannot pass as a proceeding of Parliament and the law can be declared to be invalid because of the lack of quorum. A decision given

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[1] *Ramchandra v. A.P. Regional Committee*, AIR 1965 AP 306

[2] *C. Subramaniam v. Speaker*, AIR 1969 Mad 10

[3] *Farzand ali v. West Pakistan*, 22 DLR (SC) 203

[4] *Pakistan v. Ahmed Saeed Kirmani*, PLD 1958 SC 397

[5] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203, 218; see also *Special Reference no.1 of 1995*, 47 DLR (AD) 111; *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361

by the Speaker as to the right of a Minister to address Parliament is immune from interference of the court.[1] But a decision given by the Speaker on a point of order on the question whether a member of Parliament has vacated his seat due to resignation from the party which nominated him is not immune from challenge in court as the Constitution has committed the matter to the judgment of the Election Commission and the Speaker in discharge of his statutory function has to refer the matter to the Election Commission.[2] Neither submission of resignation to the Speaker by a member of Parliament, nor the action or inaction of the Speaker in this regard, is a part of the proceeding of Parliament.[3] A question relating to the title of a person to be a member of Parliament or to continue to sit therein is a question affecting the constitution of Parliament which is not barred from inquiry by the court under art.78(1).[4] Interpretation of some expression in the Constitution, even though the expression has been used in relation to Parliament, is not the exclusive business of Parliament to disentitle the exercise of jurisdiction by the Appellate Division under art.106.[5] If total strangers or intruders, without any colour of title, had participated in Parliament, that proceeding will not be valid and the court is entitled to question the validity of such a proceeding.[6] The authority of Parliament is conferred and circumscribed by the Constitution and Parliament overstepping the limitation cannot set up the plea of privilege to avoid judicial review of its unconstitutional act.

4.86 ***Privileges of members and officers:*** The members and officers of Parliament are not amenable to the jurisdiction of the court in respect of acts done by them in exercise of powers granted to them by the Constitution or by law including the rules of procedure of Parliament to regulate the procedure in Parliament or to conduct the business of Parliament or to maintain order in Parliament. The court will not interfere with the functioning of the Speaker inside Parliament in the matter of regulation of the conduct of business of Parliament.[7] The

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[1] *Nazmul Huda v. Secretary, Cabinet Division*, 2 BLC 414

[2] *Secretary, Parliament v. Khondakar Delwar Hossain*, 1999 BLD (AD) 276

[3] *Rafique (Md.) Hossain v. The Speaker*, 49 DLR 361

[4] Ibid; *Special Reference Case no.1 of 1995*, 47 DLR (AD) 111, Para 32

Ibid

[5] *Special Reference no.1 of 1995*, 47 DLR (AD) 111

[6] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203

Ibid

[7] *Surendra v. Nabakrisna*, AIR 1958 Orissa 168

Speaker cannot be sued for damages for wrongful arrest of a person under warrant issued by him on a charge of contempt of the legislature as the Speaker in issuing the warrant was acting in performance of his duties connected with the internal affairs of the legislature.[1] In *Bradlough v. Gossett*[2] the plaintiff's action against a Sergeant-at-Arms, who ejected the plaintiff, a member of the House of Commons, from the House of Commons was dismissed on the ground that the Sergeant-at-Arms was acting under a resolution of the House of Commons and was protected.

4.87 ***Freedom of speech of members:*** The Pakistan Constitution of 1962 provided the privilege of absolute freedom of speech in the legislature not only to members of the legislature but also to any person entitled to speak in the legislature. But the Constitution grants this privilege only to the members of Parliament. Hence a Minister who is not a member of Parliament does not enjoy this privilege and he can be sued for a defamatory statement made in Parliament.

4.88 A member of Parliament has unqualified and absolute immunity in respect of any speech made by him in Parliament and in any committee thereof.[3] The immunity is not lost merely because the speech is telecast or published in newspaper.[4] The court has no jurisdiction to proceed against him for what he said in Parliament or in any committee of Parliament, whether the statement is true or false and whether the statement is made in good faith or maliciously.[5] If the members of Parliament were granted only that much of freedom of speech inside Parliament as is enjoyed by the ordinary citizens, then art.78(3) would be unnecessary.[6] A person aggrieved by a speech of a member of Parliament is without any remedy in court.[7] If a member exceeds the limit imposed on this freedom by the Constitution or the rules of procedure of Parliament, he can be dealt with by the Speaker, but not by the court. In view of the provision of art.94(4) a member of Parliament cannot criticise a Judge of the Supreme Court in respect of his judicial functions in Parliament, but if he transgresses this limit he cannot be

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[1] *Homi D. Mistry v. Nafisul Hassan*, ILR 1957 Bom 218
[2] 12 Q.B.D. 271
[3] *Ataur Rahman v. Md. Nasim*, 52 DLR 16
[4] Ibid
[5] *Powell v. McCormack*, 395 US 486; *Cyril Sikdar v. Nazmul Huda*, 46 DLR 555
[6] *In Re Art.143*, AIR 1965 SC 745
[7] *Tej Kiran Jain v. Sanjiva Reddy*, AIR 1970 SC 1573

dealt with by the court for contempt[1]; it is for the Speaker to stop the member. Unfortunately, the Speaker of Parliament did not perform his job when the members of Parliament criticised the Judges of the Appellate Division for the judgment in the Eighth Amendment case in improper language. A Minister, who was not a member of Parliament and was not therefore immune, went so far as to allege personal interest of the Judges of the Appellate Division[2] though the allegation was clearly false inasmuch as the Judges of the Appellate Division were not in any way affected by the Eighth Amendment of the Constitution. The Appellate Division showed great patience and thus averted a grave constitutional crisis.

4.89 A member of Parliament is protected for what he says in Parliament, but not for anything said outside Parliament except when the utterances are in essential performance of his duty as a member of Parliament, for example, a conversation on parliamentary business in a Minister's house. Though a slanderous speech inside Parliament is protected, publication of that speech by the member outside Parliament is not protected.[3] It does not mean that a member cannot publish his speech made in Parliament, but for such publication he cannot claim immunity.[4] But a member of Parliament will not be liable for what he said in a proceeding of Parliament which was telecast and published in newspapers under the authority of Parliament.[5]

4.90 ***Publication in relation to proceedings of Parliament:*** A publication of reports, papers, votes or other proceedings is protected only when it is done by or under the authority of Parliament. In *Stockdale v. Hansard*[6] publication of libel under the authority of the House of Commons was not held protected. As a result, Parliamentary Papers Act, 1940 was passed making publication of reports, papers, votes or other proceedings completely privileged. But a publication will not be privileged if it is not by or under the authority of Parliament. In *Wason v. Walter*[7] the court dismissed an action in libel in respect of a

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[1] *Ataur Rahman v. Md. Nasim*, 52 DLR 16; *A.K. Subbiah v. Karnataka Legislative Council*, AIR 1979 Kant 24

[2] Report of proceedings of Parliament in Daily Ittefaq of 25 January 1990

[3] *Doe v. McMillan*, 412 US 306; *Jatish Chandra v. Hari Sadhan*, AIR 1961 SC 613

[4] *Suresh v. Punit*, AIR 1951 Cal 176

[5] *Ataur Rahman v. Md. Nasim*, 52 DLR 16

[6] [1839] 8 LJQB 294

[7] LR 4 QB 73

publication of debate in the House of Lords containing disparaging allegations against the plaintiff holding that the advantage to the community from publication of the proceedings of a House is so great that the occasional inconvenience to individuals arising from it must yield to the general good. But art.78(4) does not protect any such publication without the authority of Parliament. A newspaper not being a publication authorised by Parliament is not protected if it published a report of debate of Parliament which contained matters disparaging to the character of any individual or amounting to contempt of court.[1]

4.91 ***Breach of privilege and contempt of Parliament:*** There was a long conflict between the House of Commons and the English courts on the question of privilege. The House of Commons claimed exclusive right to determine the limits of its privileges and also exclusive jurisdiction to deal with the breach of privileges, while the courts denied such rights. Ultimately, a balance has been struck and the position that emerged is that while the courts deny to the House of Commons the right to determine the limits of its privileges, they allow it exclusive jurisdiction to deal with the breach of privileges and contempt of Parliament within the established limits. If the House mentions specific grounds for holding a person guilty of its contempt or breach of privilege, the court can go into the validity of the committal, but if the warrant is in general terms without specifying the grounds, the court cannot question the validity of the committal.

4.92 In view of the provisions of arts.105(3) and 194(3) the Indian Parliament and State legislatures were entitled to the privileges enjoyed by the House of Commons at the commencement of the Indian Constitution. The tussle between the House of Commons and the courts was re-enacted when the Allahabad Legislative Assembly passed resolution requiring two Judges of the Allahabad High Court to be brought before the Assembly as, according to the Assembly, they committed contempt of the Assembly by entertaining *habeas corpus* application and ordering release on bail of one Keshav Singh who was

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[1] *Jatish Chandra v. Hari Sadhan*, AIR 1956 Cal 433 (a member of State legislature submitted certain question which were disallowed by the legislature; subsequently he got those questions published in a periodical; the questions were defamatory and proceedings of criminal defamation was initiated; the High Court rejected the claim of privilege first because the questions having not been allowed did not form part of the proceedings of the legislature and secondly the publication was not by or under the authority of the legislature)

imprisoned under a warrant of the Assembly for committing contempt of the Assembly. The Judges of the High Court filed a petition before the High Court contending that the resolution of the Assembly amounted to contempt of court. The Full Bench of the High Court ordered by a notice restraining the Speaker from issuing the warrant in pursuance of the resolution of the Assembly. At that stage, the President of India referred the matter for advisory opinion of the Supreme Court.[1] In the opinion rendered, the Supreme Court denied the right of the legislature to commit the judges of the superior courts for its contempt and opined that in the matter of privilege the legislature is not free from all fundamental rights. According to the Supreme Court, the legislature cannot be the final judge of the limit of its privilege; the House of Commons enjoys the privilege to commit a person for contempt by a non-justiciable general warrant as a superior court of record and not as a legislature, but the Indian Parliament and State legislatures cannot claim such privilege. A legislative order punishing a person for its contempt is not conclusive, but having regard to the status of the Indian Parliament and State legislatures the court would interfere with the legislative order only in a very extreme situation and only on the narrow ground that the legislative order is *mala fide*, capricious or perverse.[2]

4.93 Parliament for Bangladesh is not entitled to the privileges enjoyed by the House of Commons. Its privileges are specified in art.78 and further privileges may be granted by an Act of Parliament. Art.78 is silent about the breach of privileges and contempt. But the absence of any provision is not conclusive. Privileges will have no meaning at all unless Parliament is conceded the power to take action against the breach of privilege. Thus the question is not one of existence but of the extent of the power. It may be noted here that the British Parliament is not only treated as a court of record, but is actually the supreme governmental authority having no constitutional fetter on its power of legislation. But in Bangladesh no organ of the government is supreme. The supremacy is that of the Constitution. Bangladesh Parliament is not a court of record and its power of legislation is limited by the entrenched provisions of the Constitution. In this regard Bangladesh Parliament is comparable with the American Congress and it may be worthwhile to consider the power of Congress in respect of breach of privilege and contempt of legislature.

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[1] *In Re Art.143*, AIR 1965 SC 745

[2] Ibid; *Keshav Singh v. Speaker, Legislative Assembly*, AIR 1965 All 349

4.94 Art.1 sec.5 of the American Constitution confers power on each house of Congress to punish its members for disorderly behaviour. But from it cannot be implied that Congress has no power to punish nonmembers for contempt.[1] As an inherent adjunct of its legislative power, Congress has the power to punish nonmembers for contempt if the conduct occurred in a proceeding strictly of a legislative character or in the course of an inquiry within the legitimate scope of the legislative functions where such conduct has the effect of obstructing such proceedings or inquiry.[2] But Congress does not have the power to punish for contempt any act which does not directly obstruct its legislative process or the performance of its duties as a legislature[3]. Thus a person cannot be punished for slanderous attack on the members of Congress which presents no immediate obstruction to legislative processes.[4]

4.95 The Supreme Court is vested with the power and duty to oversee that no public functionary oversteps the limit set by the Constitution. The limit of privileges depends upon interpretation of art.78 which is in the exclusive domain of the Supreme Court. As such Parliament cannot claim to be the final arbiter of its privileges. In the absence of any constitutional bar, the Supreme Court has the jurisdiction under art.102 to examine the validity of any action of any public functionary on the application of an aggrieved person. Thus the Supreme Court shall have jurisdiction to examine the validity of any action of Parliament relating to the privileges unless barred by art.78 or any other provision of the Constitution though having regard to the high constitutional status of Parliament an action of Parliament will carry strong presumption of validity and the court will not interfere unless a very clear case of illegality is made out.

4.96 Rule 16 of the Rules of Procedure of Parliament permits Parliament to expel any of its members for the current session of Parliament if he defies the authority of the Speaker and repeatedly and deliberately obstructs the functioning of Parliament. Under art.78(1) the court has no jurisdiction to interfere with such an action, it being a part

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[1] *Anderson v. Dunn*, 5 L Ed 242

[2] 17 Am Juris 2d, Contempt Para 125; *Jurney v. MacCracken*, 294 US 125 (ignoring the process); *McGrain v. Dougherty*, 273 US 135 (refusing to appear before a committee); *Anderson v. Dunn*, 5 L. Ed. 242 (attempting to bribe a Congressman)

[3] *Jurney v. MacCracken*, 294 US 125

[4] *Marshall v. Gordon*, 243 US 521

of the proceedings of Parliament. Under rule 15 the Speaker may expel a member of Parliament for the day of a session for serious disorderly conduct and under art.78(2) such exercise of power by the Speaker is not subject to the jurisdiction of the court. Under rule 313 the Speaker may direct any nonmember to leave the precincts of Parliament and in such matter the jurisdiction of the court is ousted by art.78(2). Parliament has not been given any power to punish any nonmember for contempt for any act done outside the precincts of Parliament which has not the effect of obstructing the performance of duties of Parliament and the court will have jurisdiction to determine whether the questioned act outside the precincts of Parliament had the effect of obstructing the performance of the duties of Parliament.

4.97 Like the American Congress, the Bangladesh Parliament, it is submitted, may not punish a person for publishing contumacious statement about Parliament or its members unless it has the effect of obstructing the performance of the duties of Parliament. In the case of a court, the position is different for obvious reason that the court, a totally non-political institution, cannot publicly defend itself and there is a social necessity in preserving the confidence of the people in the administration of justice. On the other hand, Parliament, being a political body, can meet the situation politically. In a democratic society there is always a social and political imperative for freedom of speech and expression and Parliament should not be oversensitive to public criticism.

4.98 ***Fundamental rights and privileges:*** Often a question arises as to whether the fundamental rights guaranteed by Part III in any way control the privileges of Parliament and its committees and members. There have been a number of decisions in the Indian jurisdiction.[1] But those decisions lack consistency and the position seems rather anomalous. One author summarised the position stating, "Thus, the position appears to be that it is wrong to suppose that no Fundamental right applies to the area of legislative privileges. Some Fundamental Rights, like art.19(1)(a), do not apply. Perhaps, arts.19(1)(b) to 19(1)(g) would also not apply. On the other hand, some Fundamental Rights, e.g., art.21 do apply, while the position with regard to others, e.g. arts.22(1) and 22(2), is not clear. There is, however, no doubt that if

[1] *Gunupati v. Nafisul Hassan*, AIR 1954 SC 636; *M.S.M. Sharma v. Sinha*, AIR 1959 SC 395; *In Re Art.143*, AIR 1965 SC 745; *Kesav Singh v. Speaker Legislative Assembly*, AIR 1965 All 349

Parliament were to enact a law defining its privileges, as is envisaged by art.105(3), then such a law would not be free from the controlling effect of the Fundamental Rights."[1]

4.99 In the American jurisdiction Congressional privileges are subject to the fundamental rights to the extent guaranteed by the Constitution.[2] There is no reason why the same position shall not obtain in Bangladesh. Citizens, having been guaranteed certain fundamental rights, may claim enforcement of it unless the Constitution expressly or by necessary implication creates a bar. The inquiry will be to what extent art.78 bars enforcement of specific fundamental rights. The rules of procedure made by Parliament under art.75 is a law within the meaning of art.26 and must conform to the provisions of Part III. Similar will be the position of a law, if made, in terms of art.78(5).[3] No fundamental right can be claimed in respect of anything which is part of the internal proceedings of Parliament as in such case art.78(1) ousts the jurisdiction of the court. Art.78(2) grants immunity to the members and officers of Parliament in respect of exercise of the power vested for regulation of procedure, the conduct of business or maintenance of order without laying down any procedure for the exercise of the power. If the power is exercised without giving the affected person any opportunity of being heard, the affected person can complain of violation of art.31. Violation of fundamental right may be urged by a citizen regarding any action taken in respect of anything happening outside the precincts of Parliament which is not a part of the proceedings of Parliament. If a person is punished for contempt for an act done outside Parliament's precincts without an opportunity of being heard, the person may complain violation of art.31. A citizen may claim his freedom of speech and expression regarding publication in respect of the proceedings of Parliament and Parliament cannot prohibit such publication unless the proceeding is of a secret session under rule 181 of the Rules of Procedure.

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[1] Jain - Indian Constitutional Law, 4th ed., p.66

[2] Schwartz - Constitutional Law, 1979, pp.84-86; *Eastland v. U.S. Servicemen's Fund*, 421 US 491; *Quinn v. U.S.*, 349 US 155; *Watkins v. U.S.*, 354 US 178; *Dombrowski v. Eastland*, 387 US 82.

[3] *In Re Art.143*, AIR 1965 SC 745

CHAPTER FIVE

THE JUDICIARY

5.1 Part VI of the Constitution deals with the judiciary. Art.7 provides that all powers in the Republic shall be effected only under and by the authority of the Constitution. The responsibility of seeing that no functionary of the State oversteps the limit of his power is, of necessity, on the judiciary. This does not render the judiciary a superior organ of the State; it remains as a co-ordinate and co-equal organ with the other two organs of the State, though it has to perform the delicate task of ensuring compliance with the provisions of the Constitution by all the organs of the State.

5.2 The Constitution vests the executive power of the Republic in the Prime Minister and the legislative power of the Republic in Parliament. But it is silent about the vesting of the judicial power of the Republic. Even then the judicial power is exercisable by the judiciary.[1] There cannot be any doubt that the judicial power of the Republic is vested in the courts with the Supreme Court at the apex.[2] The question arose whether the administrative tribunal set up under the provisions of art.117 has been invested with any judicial power. The majority in *Bangladesh v. A.K.M. Zahangir*[3] held that any tribunal which is not invested with some part of the judicial power of the Republic is outside the ambit of art.102(5). Art.102(5) refers to the administrative tribunal constituted under art.117 and it logically follows that the administrative tribunal exercises the judicial power of the Republic. In *Mujibur Rahman v. Bangladesh* M.H. Rahman J took the same view[4], but M. Kamal J took the contrary view that the administrative tribunal is not a wielder of the judicial power of the State.[5]

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[1] *Hinds v. The Queen*, [1976] 1 All E.R. 353

[2] *Mujibur Rahman v. Bangladesh*, 44 DLR (AD) 111; M. Kamal J - Bangladesh Constitution: Trends and Issues, p.16

[3] 34 DLR (AD) 173, 205

[4] 44 DLR (AD) 111, 120 (The Constitution made provisions in Article 117 for conferring State's judicial powers on some tribunals and integrating them in the judiciary ...)

[5] Ibid, p.128; for discussion on judicial power, see Para 5.239-5.241

5.3 Art.94 provides for the Supreme Court of Bangladesh comprising two divisions - the Appellate Division and the High Court Division. Because of the previous constitutional dispensation of having two superior courts, the High Court and the Supreme Court, one is always prompted to think that the two divisions are two courts under one compendious name. But this is not correct. The Supreme Court is, in fact, one court with two divisions. If the scheme of Part VI is closely examined, it will be found that in hearing cases the two divisions sit separately, one acting as the appellate side of the other in the same way the Division Benches of the High Court used to hear appeals from the decisions of the Single Benches of the High Court under Letters Patent, which did not render the Single Benches and the Division Benches of the same court different courts. In other matters, the two divisions function as one court and this peculiar feature of the Supreme Court has been noted in *Anwar Hossain Chowdhury v. Bangladesh*[1].

CHIEF JUSTICE AND OTHER JUDGES OF SUPREME COURT

5.4 *Appointment of Judges:* The Chief Justice and other Judges of the Supreme Court of both the divisions are appointed by the President. In the matter of appointment of the Chief Justice the President is not required to act on the advice of the Prime Minister or the Cabinet, but the President is to act on the advice of the Prime Minister in the matter of appointment of the puisne Judges.[2] The Constitution, as originally framed, contained a provision requiring the President to consult the Chief Justice in the matter of appointment of the puisne Judges, but this provision was omitted by the Fourth Amendment. In the early part of 1994, the government appointed some additional Judges to the High Court Division without consultation with the Chief Justice. The Chief Justice objected to such a method of appointment. The executive government denied any constitutional requirement of consultation. It was pointed out from the Bar that the process of consultation has been followed consistently from the time of the British Rule even though there was no constitutional or legal requirement of consultation. Such consultation is absolutely necessary for the independence of the judiciary which is one of the basic features of the Constitution. As such the convention of consultation is a part of the constitutional law of the

[1] 1989 BLD (Spl) 1

[2] Art.48(3)

country.[1] The government ultimately had to accept the contention of the Chief Justice and the Bar.[2] Such a consultation is not a formal matter. It must be an effective consultation and the recommendation of the Chief Justice should not be by-passed unless there be very cogent reasons for it.[3] The Chief Justice and other Judges of the Supreme Court are to take oath in terms of art.148 before entering upon office.

5.5 If the office of Chief Justice becomes vacant or if the President is satisfied that on account of illness, absence or any other cause the Chief Justice is unable to perform his functions, the functions of the Chief Justice shall be performed by the next senior most Judge until some other person enters that office or , as the case may be, the Chief Justice resumes his duties.[4] If at any time the President is satisfied that the number of Judges in any of the divisions should be increased, he may appoint additional Judges for a period not exceeding two years or require any of the Judges of the High Court Division to sit in the Appellate Division as an *ad hoc* Judge.[5] Such additional Judges may be appointed as permanent Judges or as additional Judges for a further period.

5.6 A person shall not be qualified to be appointed as a Judge of the Supreme Court unless he is a citizen of Bangladesh, and he (a) has been an advocate of the Supreme Court for at least ten years, (b) has held judicial office in the territory of Bangladesh for at least ten years, or (c) has such other qualifications as may be prescribed by law for appointment as a Judge.[6] Holding of the office of Chief Election Commissioner is not a bar to the appointment of a person as Judge of the Appellate Division.[7]

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[1] see Para 1.5. The fact that the provision of consultation was omitted by the Fourth Amendment is not of great significance as notwithstanding the amendment the process of consultation was continued and what is more important is that the Fourth Amendment in this regard affecting the independence of judiciary is of doubtful validity.

[2] The decision of the Indian Supreme Court in *S.C. Advocates-on-Record v. India*, AIR 1994 SC 268, in this regard is instructive. The Indian Constitution contains specific provisions for consultation.

[3] Ibid; see *Secretary, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104, for the meaning and content of consultation.

[4] Art.97

[5] Art.98

[6] Art.95(2)

[7] *Shamsul Huq Chowdhury v. Justice Abdur Rouf*, 1996 BLD 126

5.7 *Tenure of the Judges and Supreme Judicial Council:* The Judges of the Supreme Court other than the additional Judges shall hold office until they attain the age of sixty five years and shall not be removable except upon a report of the Supreme Judicial Council.[1] The Supreme Judicial Council shall consist of the Chief Justice and two next senior Judges. The Council shall prescribe a Code of Conduct to be observed by the Judges, and shall inquire into the capacity or conduct of the Judges. If upon information received from the Council or from any other source, the President has reason to apprehend that a Judge is incapable of performing his functions because of physical or mental incapacity or has been guilty of gross misconduct, the President may direct the Council to inquire into the apprehended incapacity or misconduct. If the Council upon inquiry makes a report that in its opinion the Judge is so incapacitated or has been guilty of gross misconduct, the President shall remove the Judge from office. If the Judge in respect of whom an inquiry is to be made is a member of the Council or a member of the Council is absent or is unable to act due to illness or any other cause, the Judge who is next in seniority shall act as such member.[2] A Judge may resign his office by writing under his hand to the President.[3] A Judge of the Supreme Court other than an additional Judges after his retirement, resignation or removal cannot plead or act before any court or authority or hold any office of profit in the service of the Republic not being a judicial or quasi-judicial office except that a Judge of the High Court Division can plead and act only before the Appellate Division.[4]

5.8 *Independence of the Judges:* Art.121 of the Indian Constitution provides that no discussion shall take place in Parliament with respect to the conduct of any Judge of the Supreme Court or High Court in discharge of his duties except in a proceeding of his impeachment in Parliament. The Indian Supreme Court observed, "The Constitution-makers attached so much importance to the independence of the Judicature in this country that they thought necessary to place them beyond any controversy, except in the manner provided in Art.121".[5] In order to maintain independence of the Judges of the Supreme Court, the framers of the Constitution not only provided under art.147[6] that the

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[1] Art.96(2)
[2] Art.96(3), (4) & (5)
[3] Art.96(2)
[4] Art.99
[5] In Re Under Art.143, AIR 1965 SC 745, Para 63
[6] See Para 6.59B

remuneration, privileges and other terms and conditions of their service shall be not varied to their disadvantage during their term of office[1], but also expressly declared in art.94(4) that the Chief Justice and the other Judges of the Supreme Court shall be independent in the exercise of their judicial functions. It, therefore, naturally follows that the conduct of the Judges of the Supreme Court cannot be discussed by the executive government or by the members of Parliament. The Rules of Procedure provide that no question, motion or resolution which contain reflection on the conduct of any judge of the Supreme Court shall be admissible.[2] The immunity under art.78 of the members of Parliament in respect of what they say in Parliament cannot be construed as allowing them to make any statement or comment which may directly or indirectly undermine the independence of the Judges of the Supreme Court. Art.94(4) is an implied limitation on the freedom of speech of the members of Parliament. But enforcement of this limitation is in the hands of the Speaker[3] as in terms of art.78 the validity of the proceedings of Parliament cannot be questioned in any court, nor a proceeding can be initiated against a member of Parliament for what he said in Parliament.[4] Apart from the conduct of a judge, the work of the courts is not outside the scope of political discussion in Parliament[5] and referring to the comments made in the House of Commons, it was commented –

> Instant political reaction to events such as these may sometimes be ill-informed or exaggerated, but a corrective is needed when judges are seriously insensitive to changing social opinion.[6]

5.9 *Disabilities of the Judges:* Art.99 originally provided that a person who has held office as a Judge (otherwise than as an additional Judge pursuant to the provisions of art.98) shall not after his retirement or removal plead or act before any court or authority or be eligible for any appointment in the service of the Republic. The President does not hold an office in the service of the Republic and as such there is no bar

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[1] *Commissioner of Taxes v. Justice S. Ahmed*, 42 DLR (AD) 163 (Salary of the Supreme Court Judge is exempted from income tax and this position cannot be affected by notification issued under the Income Tax Act)

[2] Rules 53, 63 and 133 of the Rules of Procedure

[3] *Tej Kiran v. Sanjiva*, AIR 1970 SC 1573

[4] See *Ataur Rahman Khan v. Md. Nasim*, 52 DLR 16

[5] Bradley & Ewing – Constitutional and Asdministrative Law, 12th ed., p.423

[6] Ibid, p.424

to the election of a retired Judge of the Supreme Court to the office of the President.[1] "The purpose behind this prohibition was that the high position and dignity of a Judge of the Supreme Court should be preserved and respected even after his retirement and, further that if any provision was made for holding of office, after retirement, then a Judge, while in the service of the Supreme Court might be tempted to be influenced in his decisions in favour of the authorities keeping an eye upon a future appointment."[2] Subsequently this article was amended permitting appointment of the Judges in a judicial or quasi-judicial office and permitting a Judge of the High Court Division to practise in the Appellate Division. One retired Judge of the High Court Division was appointed Chairman of the Court of Settlement on contract under the Public Servants Retirement Act, 1974. But the government terminated his service with one month's notice in terms of the contract and he challenged the order of termination in the writ jurisdiction. The Appellate Division opined that the provisions of the Act of 1974 were not applicable, but held, "The petitioner's contract of service has been terminated in terms of the contract to which he was a party and since his appointment has been cancelled we do not think that writ jurisdiction under article 102 of the Constitution is attracted to his case."[3] The court made an important observation -

> The concept of judicial independence suggests that his appointment along with terms and conditions of service be governed under Article 96 of the Constitution, as in the case of a sitting Judge. But in the absence of any specific provision to this effect we find it difficult to hold that the petitioner's service as Chairman of the Court of Settlement is governed by Article 96. But when Article 99 has provided for appointment of a retired Judge in a judicial or quasi-judicial office, some statutory provision should also be made for giving minimum security of his service ... If it is not thought to be expedient to make any statutory provision in the case of such appointment, it is better that the original Article 99 be restored putting total ban on appointment of a retired Judge to any public office whatever.[4]

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[1] *Abu Bakr Siddique v. Mr. Justice Shahabuddin Ahmed*, 49 BLD 1

[2] *Abdul Bari Sarker v. Bangladesh*, 46 DLR (AD) 37, 38

[3] Ibid p.39

[4] Ibid.

SEAT OF THE SUPREME COURT

5.10 Art.100 originally provided that the permanent seat of the Supreme Court shall be in the capital, but sessions of the High Court Division may be held at such other place or places as the Chief Justice may, with the approval of the President, from time to time appoint. The scheme of the Constitution in providing for 'session' outside the capital is that Benches of the High Court Division may sit temporarily in any place outside the capital if it is found necessary or convenient by the Chief Justice in the interest of the administration of justice without thereby affecting the jurisdiction of the court conferred by the Constitution. Art.100 never contemplated holding of permanent sessions at fixed places.[1] After proclamation of Martial Law in 1982 permanent Benches of the High Court Division with exclusive territorial jurisdiction were set up at different places and in order to confer validity on such fragmentation of the High Court Division amendment of art.100 was made in June 1988 setting up six permanent Benches and authorising the President to determine the territorial jurisdiction of these Benches by notification in the official Gazette. The amendment was challenged in *Anwar Hossain Chowdhury v. Bangladesh*[2]. The Appellate Division by a majority of 3:1 held that the amendment was void as the High Court Division as an integral part of the Supreme Court with plenary judicial power of the Republic had been rendered non-existent and thereby the basic structure of the Constitution had been altered.[3] As a result, the old position stands restored. The Chief Justice has to decide if in the interest of the administration of justice it is necessary to arrange the holding of sessions of the High Court Division at any place outside the capital. The approval of the President is necessary because such a holding of sessions involves extra expenditure and other logistic problems which cannot be solved without the assistance of the executive government. The discretion, however, is that of the Chief Justice as to whether such session is to be held outside the capital and the holding of sessions can in no case affect the jurisdiction of the High Court Division at its permanent seat.

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[1] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1

[2] Ibid

[3] For detailed discussion, see Para 4.57-4.63

JURISDICTION OF HIGH COURT DIVISION

5.11 Art.101 provides that the High Court Division shall have such jurisdiction as are conferred on it by the Constitution and by other laws. The main sources of legal jurisdiction of the High Court Division are the Codes of Civil and Criminal Procedure which provide appellate and revisional jurisdictions. There are a number of other laws which confer on the High Court Division jurisdiction to adjudicate disputes.[1] Previously the constitutional jurisdiction used to be defined by reference to writs as those are known in English law. The jurisdiction used to be invoked by application of the aggrieved parties and those applications were known as writ petitions and the constitutional jurisdiction was popularly called the writ jurisdiction. Now after codification of the power and jurisdiction of the High Court Division by art.102, the jurisdiction is still called writ jurisdiction and the applications under art.102 are called writ petitions.

POWER OF JUDICIAL REVIEW

5.12 The remedy of judicial review is different from the remedy of appeal. In appeal, the appellate authority goes into the merit of the case either on a point of law or on points both of law and fact, re-assess the evidence and can substitute its own decision for that of that of the body appealed from. Thus, if the appellate authority thinks that the victim of a motor accident has been given too small an amount of damages for injuries inflicted by the negligence of the defendant, it can increase the amount. In judicial review the court is concerned with the question whether the action under review is lawful or unlawful and the basic power of the court in relation to an illegal decision is to quash it. If the matter has to be decided again, it must be done by the original deciding authority. Courts exercise the power of judicial review on the basis that powers can be validly exercised only within their true limits and a public functionary is not to be allowed to transgress the limits of his authority conferred by the constitution or the laws. For example, if an election tribunal sets aside an election holding, upon consideration of the evidence adduced, that the successful candidate has been guilty of corrupt practices, the appellate authority upon re-assessment of the

[1] Among those laws the important ones are the Companies Act, 1913, the Court of Admiralty Act, 1891, the Income Tax Ordinance, 1984, the Trade Marks Act, 1940, the Patent and Designs Act, 1911, and the Contempt of Courts Act, 1926.

evidence can set aside the finding of the election tribunal. If no appeal is provided for, the court on judicial review cannot re-assess the evidence. But if the election dispute has been decided upon an application made by a voter (though the election law permits trial of election disputes upon application only by a candidate) or the election tribunal has proceeded on erroneous view of the law or ignoring a material fact, the court exercising the power of judicial review can quash the decision of the election tribunal because of want of authority or illegality. In the same way, the court can exercise the power of judicial review if the decision is *mala fide* or in violation of the principles of natural justice. The role of the court in judicial review is essentially supervisory and the principle here at work is basically that of *ultra vires*, which is synonymous with 'outside jurisdiction' or 'in excess of powers'.[1] The duty of the review court is to confine itself to the question whether the authority (i) has exceeded its powers; (ii) committed an error of law; (iii) failed to consider all relevant factors or taken into consideration irrelevant factors, (iv) failed to observe the statutory procedural requirements and the common law principles of natural justice or procedural fairness; (v) reached a decision which no reasonable authority would have reached, or (vi) abused its powers.[2] Other grounds like the doctrine of legitimate expectation are in the process of emerging.

5.13 Appeal is a creation of statute and no appeal will lie unless it is provided by a statute. Judicial review is a common law remedy in England. "The courts of law have inherent jurisdiction, as a matter of common law, to prevent administrative authorities from exceeding their powers or neglecting their duties."[3] In our country s.9 of the Code of Civil Procedure permits the civil court to try all suits of civil nature

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[1] H.W.R. Wade - Administrative Law, 6th ed., p.280; *Shamsul Huda v. BTMC*, 32 DLR 114

[2] See *Tata Cellular v. India*, AIR 1996 SC 11, para 93 (The court quoted the observation of Lord Brightman in *Chief Constable of the North Wales Police v. Evans*, [1982] 3 All E.R. 141, 154, "Judicial Review is concerned, not with the decision, but with the decision making process. Unless that restriction on the power of the Court is observed, the Court will, in my view, under the guise of preventing the abuse of power, be itself guilty of usurping power.")Lord Diplock summarised the grounds of review as illegality, irrationality and procedural impropriety in *CCSU v. Minister for the Civil Service*, [1985] AC 374. It is a question whether all the grounds of judicial review are covered by these three categories.

[3] H.W.R. Wade - Administrative Law, p.280

unless expressly or by necessary implication[1] barred by law and the relief to be given is principally governed by the provisions of the Specific Relief Act, 1877. By virtue of these provisions the civil courts can exercise the power of judicial review. But this power can be taken away by legislation.[2] The power of judicial review of the superior courts has been a matter of constitutional conferment in our country and it cannot be taken away or abridged by ordinary legislation.[3] The power of judicial review conferred by art.102 is a basic feature of the Constitution and in view of the decision in *Anwar Hossain Chowdhury*[4] it cannot be taken away or curtailed even by amendment of the Constitution. Even where the Constitution originally made provision ousting the jurisdiction of the Supreme Court in certain matters, it is for the Supreme Court to interpret the ouster clause and, notwithstanding the ouster clause, the Supreme Court has the power to declare an action to be without lawful authority if it is totally without jurisdiction (*coram non judice*) or is vitiated by *mala fide* or bad faith.[5] Art.102(1) of the Constitution confers

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[1] The power of judicial review of a civil court is not subject to the pre-condition of exhaustion of efficacious remedy, but where a statute provides for a right or liability and also provides for a remedy, the remedy created by the statute is exclusive and the jurisdiction of the civil court to exercise the power of judicial review is impliedly barred because of the special remedy provided by the statute. See *Jogesh Chandra v. Bangladesh*, 30 DLR 219; *Dost Textile Mills v. S.B. Nath*, 40 DLR (AD) 45; *Woolverhampton New Water Works v. Hawkes*, (1859) 6 CB (NS) 336; *Novel v. London Express Newspapers*, [1919] AC 368. In *Younus Chokder v. Election Commn*, 46 DLR 395, the High Court Division sought to apply the principle to bar a remedy under art.102, but the principle cannot be so applied as the writ jurisdiction can only be ousted by a specific provision of the Constitution and the proper principle to apply in this case is the bar created by the existence of efficacious remedy provided by the relevant provisions of the law.

[2] With respect to *mala fide*, the jurisdiction of civil court can never be taken away for a *mala fide* act is in its very nature an illegal and void act. No legislature while granting power to take action contemplate a mala fide exercise of power. *Abdur Rouf v. Abdul Hamid*, 17 DLR (SC) 515; *Secretary of State v. Mask*, 44 CWN 709.

[3] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203; *Fazal Din v. Custodian of Evacuee Property*, PLD 1971 SC 779

[4] 1989 BLD (Spl) I

[5] *Jamil Huq v. Bangladesh*, 34 DLR (AD) 125; *Khandker Mostaque Ahmed v. Bangladesh*, 34 DLR (AD) 222; *Khandker Ehteshamuddin*, 33 DLR (AD) 154; *Saheda Khatun v. Administrative App. Tribunal*, 3 BLC (AD) 155; *Jamal Shah v. Election Tribunal*, 18 DLR (SC) 1; *Shahriar Rashid Khan v. Bangladesh*, 49 DLR 133; *Mohammadullah v. Secretary, Home Affairs*, 1996 BLD 18; *Wukula Mahaz v. Pakistan*, PLD 1998 SC 1263

power on the High Court Division to enforce fundamental rights, while art.102(2) confers power of judicial review in non-fundamental right matters.

5.13A Art.102 is inextricably linked with the genesis of the Constitution and cannot be construed independently of the scheme and objectives of the Constitution, particularly those explicated in the preamble and fundamental principles of State policy.[1]

5.14 Art.102 does not specifically grant any power of judicial review of legislation on the ground of contravention of the provisions of the Constitution other than the provisions of Part III of the Constitution. However, judicial review of laws is implicit in any written Constitution providing for a limited government, that is, a government in which powers of all functionaries are limited and circumscribed by the Constitution, and absence of express power of judicial review is of no consequence.[2] When art.102 is read with art.7 there is no difficulty in finding the power of the Supreme Court to declare void any provision of law on the ground of inconsistency with any provision of the Constitution and the Supreme Court has been exercising that power in applications filed under art.102.[3]

PRINCIPLES FOLLOWED BY COURT IN JUDICIAL REVIEW

5.15 Ours is a controlled constitution with entrenched provisions which has circumscribed the power of Parliament in making laws and has reposed on the Supreme Court the constitutional responsibility to adjudicate upon the validity of the laws.[4] In deference to the co-equal status of the legislature, the court, in deciding the constitutionality of any law passed by the legislature, follows certain principles in keeping with the necessity of harmonious working of the different organs of the State. These principles are stated below:-

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[1] *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR.(AD) 1

[2] *Marbury v. Madison*, 1 Cranch 137; *Fazlul Quader Chowdhury v. Abdul Haq*, 18 DLR (SC) 69 (per Cornelius CJ, "... on a more general ground, namely, the ground that a written constitution necessarily connotes the existence of Courts which will ... examine and fully decide the questions which are certain to arise in great number, of whether ... a law passed by a law-making authority under the Constitution is, or is not, in contravention of the Constitution" (Para 8)

[3] *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319

[4] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1

(1) When the constitutionality of a law is challenged, the court is to begin with a presumption of constitutionality of the law[1] and the person challenging the validity of the law must show that the law is clearly unconstitutional.[2] If an Act of Parliament would be valid only in the event certain circumstances exist, it will be presumed that all such circumstances do exist.[3] Thus all circumstances which may lead to the finding of the validity of the law must be presumed by the court and must be shown not to exist by the person challenging the validity of the law.[4] In case of reasonable doubt as to whether the law is unconstitutional, the court will resolve the doubt in favour of constitutionality of the law[5], or in other words, in no doubtful case will the court pronounce a legislation to be unconstitutional.[6] But doubt as to constitutionality must not be pressed to the point of disingenuous evasion when the legislative intention is clearly revealed.[7]

(2) Where the constitutionality of a law is assailed and there are two possible interpretations, one of which would render the law constitutional, while the other unconstitutional, the former interpretation is to be preferred and the constitutionality of the law upheld.[8] In *Re Hindu Women's Right to Property Act*[9] the validity of that Act was in question. In that Act Hindu women were given the right of succession to property. It was a central Act which could not deal with agricultural property, a provincial subject under the Government of India Act, 1935. Hence, if the law was interpreted to cover both agricultural and urban property, the law would be void for want of competence of the central legislature, but the law would be valid if it was held that the central legislature intended to deal with urban property only. The second interpretation was accepted to hold the law valid.[10] The principle of

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[1] *Davis Warehouse Co. v. Bowles*, 321 US 144; *East Pakistan v. Sirajul Haq*, 19 DLR (SC) 281, 343; *Keramat Ali v. Bangladesh*, 50 DLR 372

[2] *Home Tel & Tel Co. v. Los Angels*, 211 US 265; *V.M. Syed Mohammad & Co. v. A.P.*, AIR 1954 SC 314; *Madhubhai Gandhi v. India*, AIR 1961 SC 21; *Chiranjitlal v. India*, AIR 1951 SC 41

[3] *Alabama State Federation of Labour v. McAdory*, 325 US 450

[4] *Rameshlal v. Union of India*, AIR 1970 Cal 520

[5] Cooley - Constitutional Limitations, 1927, p.372

[6] *Toombs v. Citizens Board of Wynesboro*. 281 US 643

[7] *Hopkins Federal Saving & Loan Association v. Cleary*, 296 US 315

[8] *U.S. v. Harriss*, 347 US 612; *U.S. v. C.I.O.*, 335 US 106

[9] AIR 1942 FC 72

[10] See the decisions in *Macleod v. Attorney General for N.S.W*, (1891) A.C. 455; *Joti*

narrowing down the scope of a provision of law is sometimes called the doctrine of reading down. This doctrine cannot, however, be applied where the provision in question is cast in definite and unambiguous language and its intention is clear or where reading down of the statute involves extensive additions or deletions. Not only is it no part of the court's duty to undertake such an exercise, it is beyond its jurisdiction to do so.[1]

(3) The court gives its opinion in concrete cases and does not answer academic questions.[2] The court will not pass on constitutional question and pronounce a statute invalid unless a decision on that very point becomes necessary to the determination of the cause.[3] Hence, if the case may be decided on either one of the two grounds and one of those grounds does not involve the constitutionality of the law, the court will decide on the latter ground.[4] This principle was enunciated by the American Supreme Court which also made exceptions for important reasons.[5] The principle cannot be universally applied, and the application of the principle will depend on the nature of the unconstitutionality and the nature and extent of its impact on the rights of the citizens. One of the reasons assigned for departing from this principle is that the constitutional rights of the citizens should be

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Timber Mart v. Calicut Municipality, AIR 1970 SC 264; *Jagadish Pandey v. Chancellor, Bihar University*, AIR 1968 SC 353.

[1] *Delhi Transport Corporation v. D.T.C. Mazdoor Congress*, AIR 1991 SC 101; see *Chintaman Rao v. State of M.P.*, AIR 1951 SC 118 (if the language employed in the statute is wide enough to cover restriction both within and outside the limits of constitutionally permissible legislation affecting fundamental right and so long as the possibility of the statute being applied for purposes not sanctioned by the Constitution cannot be ruled out, the statute must be struck down as *ultra vires*)

[2] *Kudrat-e-Elahi v. Bangladesh*, 44 DLR (AD) 319, 340

[3] Cooley - Constitutional Limitations, 1927, p.338; *Kudrat-e-Elahi v. Bangladesh*, 44 DLR (AD) 319, 340

[4] Cooley - Constitutional Limitations, 1927, p.339; *Shahriar Rashid Khan v. Bangladesh*, 1998 BLD (AD) 155, 173; *Viterelli v. Seaton*, 359 US 535; *Basheshar Nath v. C.I.T., Delhi*, AIR 1959 SC 149

[5] *Silver v. Louisville*, 213 US 175; see 16 Am Juris 2d, Const. Law, Para 172 (Notwithstanding repeated statements to the effect that the first principle of constitutional adjudication is to avoid constitutional adjudication, there have certainly been occasions where the court has not hesitated to speedily decide certain constitutional issues.); *New York ex rel Bryant v. Zimmerman*, 278 US 63; *U.S. v. Raines*, 362 US 17; see also the comments of Seervai on this rule in Constitutional Law of India, 3rd ed., p.827-829.

adjudicated as quickly as possible and delay often results in a denial of rights.[1] The principle was applied by K. Hussain CJ and reiterated by S.Ahmed J in *Dr. Nurul Islam v. Bangladesh*[2], but the majority of the Judges did not adhere to this principle and declared the law in question to be unconstitutional even though they also found the impugned action of the government compulsorily retiring the appellant to be *mala fide* and a decision on constitutionality could have been avoided. Having regard to the nature of invasion on the right of service holders and the fact that the question of constitutionality of the law relating to compulsory retirement frequently arises, the majority Judges thought it right not to apply the principle of avoiding adjudication on constitutional issues, though, of course, they did not assign any reason for departing from this principle.[3]

(4) The court will not decide a larger constitutional question than is required by the case which means that the court will decide a constitutional question only when, and to the extent, necessary for the disposal of a case.[4] The court will not formulate a rule of constitutional law broader than is required by the precise facts presented on record.[5] But in *Kazi Mukhlesur Rahman v. Bangladesh*[6] the Appellate Division went into the question of the extent of executive power under arts.55(2) and 143(2) even after holding that the writ petition was premature.

(5) The court will not hear an objection regarding the

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[1] *Jeffers v. Whitley* (MD NC) 197 F Supp 84

[2] 33 DLR (AD) 201; see also *Bangladesh v. Dr. Nilima Ibrahim*, 1982 BCR (AD) 177 (High Court Division found the order of Government dissolving Bangladesh Mahila Samity under P.O. 117 of 1972 to be illegal and also declared the law ultra vires Art.38 of the Constitution. On appeal, the Appellate Division also found the order to be without lawful authority and observed, "On consideration of the facts and the applicability of the law to them we do not consider it necessary to enter into a discussion relating to the constitutionality of President's Order no.117 of 1972".

[3] See *Idrisur Rahman v. Shahiduddin*, 1999 BLD 291 (Court went into the question whether the respondent could be posted as Chief Metropolitan Magistrate by the executive without consultation with the Supremen Court even though he was transferred)

[4] *U.S. v. Raines*, 362 US 17; *Basheshar Nath v. C.I.T., Delhi*, AIR 1959 SC 149; *Suruj Mall Mehta v. A.V. Visvanatha Sastri*, AIR 1954 SC 545; *M.M. Pathak v. India*, AIR 1978 SC 803

[5] *Garner v. Louisiana*, 368 US 157

[6] 26 DLR (AD) 44

constitutionality of a law by a person who has not been affected by it.[1] This principle has undergone considerable modification and is now directed against challenge by a person who has no sufficient interest in the matter and is just a busybody.[2]

(6) A law cannot be held unconstitutional on the ground that it violates one or more of the principles of liberty, or the spirit of the constitution unless such principles or the spirit are found in terms of the constitution.[3] In the same way a law cannot be declared void on the ground that it is harsh.[4]

(7) In deciding the constitutional validity of a law, the court is not concerned with the wisdom and justice of the law and the law, even though harsh, will be held valid if it is not prohibited by the provisions of the constitution.[5] But if a law is unnecessarily harsh or unreasonable in the context of the legitimate governmental objective sought to be achieved a question may arise whether the law is *ultra vires* art.31 or 32 of the Constitution.[6]

(8) The constitutionality of a statute will not be determined by the court as a hypothetical question as constitutional questions are not to be decided in the abstract or as an academic discussion.[7] Hence, ordinarily, the court will not pass on the validity of a law or part of a law which has not yet been brought into operation as it will be a mere academic question.[8]

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[1] Cooley - Constitutional Limitations, 1927, p.339; *Hans Muller Nurenberg v. Superintendent, Presidency Jail, Calcutta*, AIR 1955 SC 367

[2] See Para 5.155-5.164

[3] Cooley - Constitutional Limitations, 1927, p.351; *Gopalan v. Madras*, AIR 1950 SC 27; *Keshavan v. Bombay*, AIR 1951 SC 128

[4] *Bangladesh Krishi Bank v. Meghna Enterprise*, 50 DLR (AD) 194 (The proposition has been too broadly stated when the Appellate Division also held that a law cannot be declared void on the ground of it being arbitrary or not in consonance with the principles of natural justice. It is submitted that on these two ground a law may be held violative of art.31 of the Constitution. See Para 2.105 and 2.07)

[5] Cooley - Constitutional Limitations, 1927, p.341; *Bombay v. Balsara*, AIR 1951 SC 318

[6] See Para 2.105-2.108

[7] *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319, 340 & 354; *U.S. v. Raines*, 362 US 17; *Government and Civil Employees Organising Committee v. Windsor*, 353 US 364

[8] *Chandra Sekhar v. Orissa*, AIR 1972 SC 486

(9) If a law is found bad in part and the bad part can be severed from the good part, the court will declare void the bad part only.[1]

5.15A In judicial review of administrative actions, the court has to start with the presumption of regularity of the official act and the burden of proof is on the person who alleges the contrary.[2] Whenever a power is given by a statute to an authority, whatever may be fairly regarded as incidental to or consequential upon things authorised by the legislature should not be declared *ultra vires*.[3]

5.16 *Doctrine of political question:* In *Dulichand v. Bangladesh*[4] the Appellate Division observed, "As regards the argument of Constitutional legitimacy of Yahya Khan all that need be said is that, this is a political question which the court should refrain from answering, if the validity or legality of the law could otherwise be decided." Many constitutional issues have political overtones, but that cannot take them out of the purview of the judicial scrutiny. Nor was the constitutional legitimacy of Yahya Khan a political question. The Pakistan Supreme Court found him to be a usurper.[5] So also the Privy Council found the government of Ian Smith unconstitutional.[6] The doctrine of political question has its origin in the American jurisdiction where because of the rigid practice of separation of powers the American Supreme Court evolved it to stay its hands off in matters which, according to the Supreme Court, were committed to the judgment of the other branches of the government by the constitution.[7] Questions relating to foreign relations, existence of state of war or belligerency, employment of armed forces, organisation and procedure of the legislative department etc are treated as political questions. The doctrine has been criticised. The American Supreme Court refused to treat the legislative membership[8] and legislative

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[1] See Para 2.235-2.236

[2] *Mustafa Kamal v. Commissioner of Customs*, 51 DLR (AD) 1; *IRC v. Rossminster Ltd*, [1980] 1 All E.R. 80

[3] *A.G. v. Great Eastern Rly Co.*, [1880] 5 App Cas 473

[4] 1981 BLD (AD) 1

[5] *Asma Jilani v. Punjab*, PLD 1972 SC 139

[6] *Madzimbamuto v. Lardner-Burke*, [1968] 3 All E.R. 561

[7] *Baker v. Carr*, 369 US 186, 217; *Elrod v. Burns*, 427 US 347, 351; *Luther v. Borden*, 12 L.Ed 581 (the Court can never with propriety be called on officially to be the umpire in questions merely political')

[8] *Powell v. McCormack*, 395 US 486

apportionment[1] as political questions. Speaking about the doctrine Schwartz commented-

> The political-question doctrine is itself an anomaly in a system in which governmental acts may ordinarily be weighed in the judicial balance and, if necessary, found constitutionally wanting. A good case can be made for restricting the doctrine to the field of foreign affairs. It is one thing to hold that there must be judicial self-limitation in cases bearing directly on the transaction of external relations. It is quite another to use the political question doctrine as a formula to avoid decision in cases involving only internal affairs. *If there is one principle that is fundamental in the constitutional system, it is that of having the judiciary as the ultimate arbiter on all domestic constitutional questions*. That, indeed, is what Americans normally mean by the rule of law.[2] (italics supplied)

In India the doctrine was sought to be applied to a domestic constitutional question.[3] The Indian Supreme Court refused to apply the doctrine in respect of the question of justiciability of the satisfaction of the President regarding the existence of emergency.[4] In an earlier case, Shah J rightly observed, "Constitutional mechanism in a democratic polity does not contemplate existence of any function which may qua the citizens be designated as political and orders made in the exercise whereof are not liable to be tested for their validity before the lawfully constituted Courts."[5]

5.17 Ours is a parliamentary form of government and we do not have rigid separation of powers so that the question of deference to the other branches of the government cannot get the primacy. The question whether a particular government is legitimate is essentially a constitutional question to be decided with reference to the constitution and such a question like other constitutional questions should not be decided unless the controversy between the parties requires resolution of the question. In *Abdul Baqui Baluch v. Pakistan*[6] the Pakistan Supreme

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[1] *Baker v. Carr*, 369 US 186

[2] Constitutional Law, 2d ed., p.44 (Quoted with approval in *Special Reference no. 1 of 1995*, 47 DLR (AD) 111)

[3] *Rajasthan v. India*, AIR 1977 SC 1361

[4] *A.K. Roy v. India*, AIR 1982 SC 710, Para 26; see Para 3.33-3.34

[5] *Madhav Rao Scindia v. India*, AIR 1971 SC 530

[6] 20 DLR (AD) 249, 262.

Court held that the question whether an emergency has ceased to exist is a political question which is outside the competence of the courts to decide. At that time the country had a presidential form of government, but while dealing with the provisions of the Constitution of 1973, which introduced a parliamentary system of government, the Pakistan Supreme Court observed, "This 'political question doctrine' is based on the respect for the Constitutional provisions relating to separation of power among the organs of the State. But where in a case the Court has jurisdiction to exercise power of judicial review, the fact that it involves political question, cannot compel the Court to refuse its determination".[1] In our constitutional system there is no justification for the application of the doctrine of political question. In cases like proclamation of emergency, the court will attach great weight to the views of the executive government, but that is something different from saying that the court has no competence to decide because of the doctrine. The President acts on the advice of the Prime Minister and there may be occasions when the executive government may not revoke the proclamation of emergency even though clearly there is no emergency. Recently in a Malaysian case, the Privy Council observed that the executive government may be directed to advise the President to revoke the emergency.[2] There is no need to adopt and apply the doctrine of political question. Instead we can follow the hint of Schwartz and stress the principle of "judicial self-limitation in cases bearing directly on the transactions of external affairs." Taking into consideration the American cases and the comments of some authors, the Appellate Division pronounced -

> ... there is no magic in the phrase `political question'. While maintaining judicial restraint the Court is the ultimate arbiter in deciding whether it is appropriate in a particular case to take upon itself the task of undertaking a pronouncement on an issue which may be dubbed as a political question.[3]

Whenever the right of a citizen is affected, the Constitution has mandated adjudication of the right by the court. Of course, it has to be recognised that there may be issues even in domestic affairs which are by nature not suitable for judicial determination. It should be left to the

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[1] *M.K. Achakzai v. Pakistan*, PLD 1997 SC 426, 518; see also *Farooq A.K. Leghari v. Pakistan*, PLD 1999 SC 57

[2] *Teh Cheng Poh v. Public Prosecutor*, [1980] AC 458

[3] *Special Reference no.1 of 1995*, 47 DLR (AD) 111

court to identify such issues as and when presented and no question should escape judicial scrutiny when there are judicially manageable standards for such determination.[1] For deciding an issue, lack of judicially manageable standards strengthens the conclusion that there is a textually demonstrable commitment of the issue to another co-ordinate branch of the government.[2]

WRIT JURISDICTION : ENFORCEMENT OF FUNDAMENTAL RIGHTS

5.18 ***Nature of the remedy:*** Like art.32 of the Indian Constitution, art.22 of the Pakistan Constitution of 1956 conferred power on the Supreme Court to enforce fundamental rights and made the right to apply to the Supreme Court for enforcement of fundamental rights itself a fundamental right. The High Courts of the provinces had also power to enforce fundamental rights, but this power was discretionary, while the power of the Supreme Court was not discretionary and once a law or an administrative action was found to be violative of a fundamental right, it was obligatory for the Supreme Court to grant relief to the aggrieved person. In the Constitution of Pakistan of 1962, the original jurisdiction of the Supreme Court was omitted and the aggrieved persons were to move the provincial High Courts for redress and the Supreme Court had jurisdiction to hear appeals from the judgments of the High Courts. The power of the High Courts to enforce fundamental rights remained a discretionary power as the right to move for enforcement of fundamental right was no longer a fundamental right. Under the Constitution, the High Court Division has power under art.102(1) to pass necessary orders to enforce fundamental rights and under art.44(1) the right to move the High Court Division under art.102(1) is itself a fundamental right. The position of the High Court Division in respect of enforcement of

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[1] Powell v. McCormack, 395 US 486.

[2] *Nixon v. US*, 506 US 224 (In the impeachment of Judge Nixon, under the Rules a committee of Senators was to hear the evidence, but the rule was challenged as the constitution provided that the "Senate shall have the sole Power to try all Impeachment". The Supreme Court held that the expression 'try' in the Impeachment Trial Clause lacks sufficient precision to afford any judicially manageable standard of review which strengthens the conclusion that there is textually demonstrable commitment of the issue to a coordinate branch.)

fundamental rights is the same as that of the Indian Supreme Court with the difference that its decision is not final and is subject to appeal under art.103. Thus it is not discretionary with the High Court Division to grant relief under art.102(1). Once it finds that a fundamental right has been violated, it is under constitutional obligation to grant the necessary relief.[1] Under art.32 the Indian Supreme Court entertains only disputes involving breach of the fundamental rights. If a person wants to challenge any State action on various grounds including breach of the fundamental rights he shall have to seek the remedy under art.226 which is discretionary. Under our constitutional dispensation, a petitioner does not have this problem; he can by one petition enforce his right under art.44 and at the same time press other grounds of *ultra vires* in respect of a State action.

5.18A A question arises as to the extent of application of art.102(1) in relation to the enforcement of the right under art.31. Art.31 makes it a fundamental right for the citizens and residents of Bangladesh to be treated in accordance with law. This article is attracted whenever an illegality is committed. It may be contended that whenever an authority acts illegally or commits an error of law a person's fundamental right to be treated in accordance with law is violated and the remedy under art.102(1) can be availed. If this contention is accepted, the provisions of art.102(2)(a) virtually become redundant as all cases covered by art.102(2)(a) may be dealt with under art.102(1). None of the provisions of the Constitution can be interpreted in a way which renders some other provision redundant and in such a situation it is necessary to give a harmonious interpretation which will not create any redundancy. It has to be seen that when an authority acts illegally or commits an error of law, the person aggrieved has a remedy under art.102(2)(a) and in such a situation enforcement of fundamental right is not necessary. Enforcement of fundamental right is necessary only when an action is legally valid and operative, but constitutes violation of a fundamental right and art.102(1) is attracted in all such cases.[2] In relation to art.31, the question of enforcement of fundamental right under art.102(1) will arise when a law is found to be unreasonable and thus violative of art.31.

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[1] *Kochuni v. Madras*, AIR 1959 SC 725; *Romesh Thapar v. Madras*, AIR 1950 SC 124

[2] See *Bangladesh v. Mohammad Faruque*, 51 DLR (AD) 112, 116 (Violation of all kinds of laws are not violative of fundamental right

5.19 *Disputed questions of fact:* In view of the provision of art.44, the High Court Division cannot refuse to entertain an application under art.102(1) on the ground that the petition involves resolution of disputed question of fact[1]; if necessary, in appropriate cases, the court will have to take evidence, either itself or by issuing commission, to resolve any disputed question of fact to determine whether a fundamental right has at all been violated.[2] It may be noted that the Rules of the High Court of East Pakistan was amended in 1956 after the commencement of the Constitution of Pakistan, 1956 making provision for taking evidence in the writ jurisdiction and the said Rules are applicable in respect of the proceedings before the High Court Division.[3]

5.20 *Nature of the relief to be granted:* The Constitution does not stipulate the nature of the relief which may be granted. It has been left to the High Court Division to fashion the relief according to the circumstances of a particular case[4] It need not be confined to the injunctive relief of preventing the infringement of a fundamental right and in an appropriate case it may be a remedial one providing relief against a breach already committed.[5] Speaking about the power of the court under art.32 of the Indian Constitution (which corresponds to our art.44), the Supreme Court said that in granting relief in case of a violation of fundamental rights the court is not helpless and it should be prepared to forge new tools and devise new remedies and, if necessary, to develop new principles of liability for the purpose of vindicating those precious fundamental rights.[6] In fact, the Indian Supreme Court did not rest merely giving declarations or direction; where the situation demanded, it granted exemplary costs[7] and even damages[8] for violation of fundamental rights relating to life and personal liberty. In *Nilabati*

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[1] *Kochuni v. Madras*, AIR 1959 SC 725.

[2] Ibid ; *Nilabati Behera v. Orissa*, AIR 1993 SC 1960 (Supreme Court caused an inquiry to be held by a District Judge to settle the disputed questions of fact and on the basis of inquiry report granted damages for violation of the fundamental right to life).

[3] See Para 5.140 & 5.142

[4] *Bangladesh v. Ahmed Nazir*, 27 DLR (AD) 41

[5] *Mehta v. India*, AIR 1987 SC 1086, 1091

[6] *Khatri v. Bihar*, AIR 1981 SC 928; *Union Carbide Corp. v. India*, AIR 1992 SC 248; *Nilabati Bahera v. Orissa*, AIR 1993 SC 1960

[7] *Sebastian Hongray v. India*, AIR 1984 SC 1026 (Rs.1 lac to each of the petitioners)

[8] *Rudul Shah v. Bihar*, AIR 1983 SC 1086; *Bhim Singh v. J & K*, AIR 1986 SC 494; *Rural Litigation and Entitlement Kendra v. U.P.*, AIR 1991 SC 2216

Behera v. Orissa[1] a suspect was beaten to death while in police custody and on the application of the mother of the suspect, the court had an inquiry made by a district judge and granted damages to the mother. The court referred to its earlier decisions[2] and the decision of the Privy Council in *Maharaj v. A.G. of Trininad*[3] and observed -

> The contrary view would not merely render the court powerless and the constitutional guarantee a mirage, but may, in certain circumstances, be an incentive to extinguish life, if for the extreme contravention the court is powerless to grant any relief against the State, except by punishment of the wrongdoer for the resulting offence, and recovery of damages under private law, by ordinary process. If the guarantee that deprivation of life and personal liberty cannot be made except in accordance with law is to be real the contravention of the right in case of every contravention must also be possible in the constitutional scheme, the mode of redress being that which is appropriate in the facts of each case. This remedy in public law has to be more readily available when invoked by the have-nots, who are not possessed of the wherewithal for enforcement of their rights in private law, even though its exercise is to be tempered by judicial restraint to avoid circumvention of private law remedies where more appropriate.[4]

It may be seen that in India the government can be sued in tort only for non-sovereign acts[5]. Even then the Indian Supreme Court granted the relief of compensation by making a distinction between public law remedy and private law remedy. The provisions of art.146 of the Constitution do not make any distinction between the sovereign and non-sovereign acts nor makes any reference to the extent of liability of

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[1] AIR 1993 SC 1960

[2] *Rudul Shah v. Bihar*, AIR 1983 SC 1086; *Sebastian v. India*, AIR 1984 SC 571, 1026; *Bhim Singh v. J & K*, AIR 1986 SC 494; *Saheli v. Commr. of Police*, AIR 1990 SC 513; *Maharashtra v. Ravikant*, [1991] 2 SCC 373; *Chairman Rly. Board v. Chandrima Das*, AIR 2001 SC 988; *Ahluwalia v. India*, AIR 2001 SC 1309

[3] [1978] 2 All E.R. 670 (The Privy Council directed the High Court to assess compensation to be paid by the State for incarceration of a lawyer by judicial order for contempt of court in violation of the right to life and liberty guaranteed by the constitution of Trinidad and Tobago holding that the jurisdiction to hear and determine any application and make orders and directions for the purpose of enforcing the right may include payment of compensation.)

[4] AIR 1993 SC 1960, para 19

[5] See Para 6.61

the government in British India. In coming to the decision in *Nilabati Behera*, the Indian Supreme Court relied on its power to do complete justice. The High Court Division does not have that power. But it should not make any difference as the power to grant compensation is not barred by any provision of the Constitution or any law and the enforcement of fundamental right includes payment of compensation as held by the Privy Council in *Maharaj*. In every case of violation of fundamental rights, damages may not be given by the High Court Division. But there is no reason why the relief should be denied in a case of clear and blatant violation of fundamental rights involving life or liberty of the citizens. The High Court Division awarded compensation where it found the detention of citizens to be completely without any basis on record or the result of utter negligence.[1]

5.21 ***Procedure and practice:*** The Constitution has not stipulated any procedure for the remedy and it is for the court to adopt its own procedure. The High Court Division follows certain rules of procedure and practice in respect of all writ petitions, whether one involves enforcement of fundamental rights or not and those rules have been discussed in Para 5.140 - 5.152. Here we discuss some rules of procedure which are particularly applicable in respect of writ petitions for the enforcement of fundamental rights.

5.22 In matters of enforcement of fundamental right the person aggrieved[2] has to apply and it is the obligation of the High Court Division to adjudicate upon and enforce fundamental rights. The only limitation placed by the Constitution is that the High Court Division cannot *suo motu* declare any law or action violative of fundamental right. Though it is the obligation of the court to enforce fundamental rights, it will not, in exercise of the jurisdiction, ignore the laws of procedure, evidence, limitation, *res judicata*, and the like.[3] The Indian Supreme Court held that the doctrine of waiver is not applicable in respect of fundamental rights.[4] The court will not allow any person to agitate stale claims[5] and may refuse to entertain an application filed after

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[1] *Bilkis Akhtar Hossain v. Secy. Ministry of Home*, 2 BLC 257 (under appeal); *Shahnewaz v. Bangladesh*, 50 DLR 633

[2] See Para 5.155-5.164

[3] *Tilokchand v. H.B. Munshi*, AIR 1970 SC 898; *Amalgamated Coal Fields v. Janapad Sabha*, AIR 1964 SC 1013

[4] *Basheshar Nath v. CIT*, AIR 1959 SC 149; *Olga Tellis v. Bombay*, AIT 1986 SC 180

[5] *Deodhar v. Maharashtra*, AIR 1974 SC 259

an inordinate delay.[1]

5.23 *When application for enforcement of fundamental right can be maintained:* A person may apply for enforcement of a fundamental right when there is a threat to infringe it[2] and need not wait till the threat is carried out.[3] The threat must be real and mere apprehension that the petitioner may be deprived of his fundamental right is not sufficient to invoke the jurisdiction of the court.[4] A distinction is made between a statute which immediately on enactment affects the right and a statute which does not so affect, but requires some steps to be taken by the executive under the statute to affect the right. In the former case the affected person may immediately apply to the court[5], but in the latter case the court will not entertain a petition unless the executive has taken some step to enforce the statute. The court generally does not pass on the constitutionality if in the meantime the threat to the right is over or the petition becomes infructuous in any other way, but this is merely a rule of the court and the court has often decided the question of constitutionality having regard to the nature of the right, the frequency of the violation or the possibility of repetition of the violation.[6]

5.24 *Pleadings and burden of proof:* In view of the presumption of constitutionality of laws and State actions, the burden of proof of showing that a provision of law or a State action is violative of a fundamental right is on the person who alleges it. In discharging the burden, the allegation of the person aggrieved in the writ petition must be specific, clear and unambiguous, disclosing how a right has been infringed[7] and he must adduce evidence in support of the allegations

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[1] *Rabindra v. India*, AIR 1970 SC 470; See Para 5.122 for discussion as to when delay is fatal.

[2] *Kochuni v. Madras*, AIR 1959 SC 725

[3] *D.A.V. College v. Punjab*, AIR 1971 SC 1731

[4] *Maganbhai v. India*, AIR 1969 SC 783

[5] *Kochuni v. Madras*, AIR 1959 SC 725 (the statute had the effect of divesting the petitioner of a right)

[6] *Himatlal v. Police Commr.*, AIR 1973 SC 87; *Madhu Limaye v. Ved Murti*, AIR 1971 SC 2481

[7] *Bank of Baroda v. Nagachaya Debi*, AIR 1989 SC 2105; *Amritlal v. Collector*, AIR 1975 SC 538; see also *Secretary of Aircraft Engineers v. Registrar, Trade Union*, 45 DLR (AD) 122, 128 (The court observed that the validity of the impugned law could be considered if the trade union wanted to survive as trade union *simpliciter*, but the court did not consider this aspect of the law as no such case was made out in the petition)

Alternative dispute resolution
A D R

made. Once the petitioner succeeds in showing that the impugned law or action constitutes a denial or restriction of his fundamental right, he has no further onus of showing negatively that the legal provision putting the restriction on the exercise of the right is not reasonable.[1] Then the burden of showing that there has been no denial of the fundamental right or that the restriction is on a permissible ground, within permissible limits and is reasonable is on the respondent.[2] The harsher the restriction, the heavier is the burden of proving that the restriction is reasonable.[3]

5.25 *Exhaustion of efficacious remedy:* Previously, the superior courts used to refuse to entertain a writ application if the petitioner did not avail of an alternative remedy. This was a self-imposed rule of the court. Now it is a constitutional requirement of art.102(2) that a writ petition for judicial review of any action shall not be entertained if the petitioner does not, before coming to the High Court Division, exhaust any efficacious remedy available to him under any law. But there is no requirement of exhaustion of efficacious remedy for enforcement of fundamental right under art.102(1) and a petition under art.102(1) cannot be turned down on the ground of non-exhaustion of efficacious remedy.[4]

5.26 ***Alternative forum for enforcement of fundamental rights:*** Art.44(1) provides that the right to move the High Court Division under art.102(1) is itself a fundamental right and provides that without prejudice to the powers of the High Court Division under art.102, Parliament may provide for any other court to exercise any or all of those powers. As per art.152 'court' means 'court of law' and it does not

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[1] *Saghir Ahmed v. U.P.*, AIR 1954 SC 728, 738; *Bachan Singh v. Punjab*, AIR 1980 SC 898, 916

[2] *Municipal Corp. v. Jan Md.*, AIR 1986 SC 1205; *Deena v. India*, AIR 1983 SC 1155; *Sukhanandan v. India*, AIR 1982 SC 902; *Md. Faruk v. M.P.*, AIR 1970 SC 93; *Khyerbari Tea Co. v. Assam*, AIR 1964 SC 925

[3] *Nawabkhan v. Gujarat*, AIR 1974 SC 1471 (Para 6)

[4] *Bangladesh v. Syed Chand Sultana*, 51 DLR (AD) 24; *Sarwari Begum v. Bangladesh*, 45 DLR 571; *Rahimuddin Bharsha v. Bangladesh*, 46 DLR 130; *Rafique-ul Huq v. Bangladesh*, 44 DLR 398; *Jobon Nahar v. Bangladesh*, 49 DLR 108; *Saleha Begum v. Court of Settlement*, 49 DLR 243; *Sazedur Rahman v. Secy. Ministry of Establishment*, 50 DLR 407 affirmed in 3 BLC (AD) 188; contra - *Serajul Islam v. Director General of Food*, 43 DLR 237, and *Abdul Hannan v. Ministry of Home Affairs*, 43 DLR 131, not correctly decided.

include a tribunal[1]. Hence, in addition to the High Court Division, Parliament is authorised by the Constitution to set up any other court, not tribunal, for the enforcement of fundamental rights. The expression "without prejudice to the powers of the High Court Division" shows that any such court cannot be granted exclusive jurisdiction, nor can finality be attached to the decision of such court.

5.27 The Administrative Tribunal Act, 1981 has been passed providing for administrative tribunals to deal with disputes regarding service matters. Parliament does not call it a court, nor has conferred on it the power of enforcement of fundamental rights. In *Mujibur Rahman v. Bangladesh*[2] the Appellate Division found the administrative tribunal to be a tribunal and not a court. Even then it has been held in that decision, "A person in the service of the Republic who intends to invoke fundamental right for challenging the *vires* of a law will seek remedy under article 102(1), but in all other cases he will be required to seek remedy under article 117(2)".[3] In other words, in the matter of infringement of fundamental rights by administrative action (and not by law), the jurisdiction of the High Court Division is ousted and the administrative tribunal has the exclusive jurisdiction. It is submitted that the decision is open to question. First, the administrative tribunal not being a court cannot be construed to have the power of enforcement of fundamental rights, whether administrative action or law is impugned and, in fact, Parliament has not conferred that power. In view of the provisions of art.44(2) there should be explicit conferment of such power. Secondly, conferment of such jurisdiction cannot be in derogation of the power of the High Court Division. Thirdly, the jurisdiction of an ordinary court, not to speak of a superior court, is not taken away except by express provision or by necessary implication. The Constitution has nowhere taken away the jurisdiction of the High Court Division to enforce fundamental rights in respect of service matters by express provision and such jurisdiction having not been conferred on the administrative tribunal by express language, the question of ouster of the

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[1] *Jamal Shah v. Election Tribunal*, 18 DLR (SC) 1, Para 57

[2] 44 DLR (AD) 111

[3] Ibid, p.123; *Bangaldesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27; *Delwar Hossain v. Bangladesh*, 52 DLR (AD) 120; *M.M. Shahidur Rahman v. Bangladesh*, 41 DLR 187; *Abul Bashar v. Bangladesh*, 50 DLR(AD) 11; *Ali Hossain Fakir v. Bangladesh*, 50 DLR 231; contra *Aftabuddin v. Bangladesh*, 48 DLR 1 (Writ petition held maintainable when the petitioner challenged the action of the government in promoting some members of judicial service in contravention of art.116)

High Court Division's jurisdiction by necessary implication does not arise. It may be argued that jurisdiction to deal with matters relating to the terms and conditions of service includes the jurisdiction to adjudicate upon infringement of fundamental right in relation to service. But such an interpretation will create a conflict between art.44 and art.117 which, on accepted principles of interpretation, should be avoided and harmonious interpretation given. Art.117 may prevail in case of an irreconcilable conflict in view of the *non-obstante* clause in art.117. But the court held that the *non-obstante* clause freed art.117 from the other provisions of Part VI and art.44 falls outside Part VI. Furthermore, before finding an irreconcilable conflict effort must be made for harmonious construction. In the matter of fundamental rights art.44 is a specific provision which operates in its proper field. There will be no conflict if art.117(1)(a) is interpreted to cover all service disputes except those relating to fundamental rights and such an interpretation is in conformity with the historical context in which the constitutional scheme was adopted. Previously, the Supreme Court was the final court in respect of service disputes, whether originating in the civil or writ jurisdiction. Now art.117 imparting finality to the decision of the administrative tribunal and ousting the jurisdiction of the High Court Division under art.102(5), it is difficult to conceive that the framers intended to entrust the administrative tribunal with the duty of interpreting and applying the provisions of the Constitution relating to fundamental rights to the exclusion of the High Court Division, particularly in view of the language used in art.44. The Appellate Division also felt the same way as otherwise it would not exclude infringement of fundamental rights by law from the purview of the tribunal. No rationale can be found for such a division; if disputes relating to the 'terms and conditions' in art.117(1)(a) include disputes relating to fundamental rights, any infringement of fundamental right, whether by law or by administrative action, should be within the jurisdiction of the tribunal. It is submitted that the administrative tribunal cannot be accorded the jurisdiction to enforce fundamental rights and, at any rate, there is no scope for the dichotomy of violation of fundamental right by law and by administrative action under the provisions of the Constitution, far less any exclusivity of jurisdiction of the administrative tribunal in respect of infringement of fundamental rights by administrative action.

WRIT JURISDICTION : MATTERS OTHER THAN FUNDAMENTAL RIGHTS

5.28 Art.170 of the Pakistan Constitution of 1956 conferred power of judicial review on the provincial High Courts by way of issuing writs in the nature of *mandamus, certiorari*, prohibition, *habeas corpus* and *quo warranto*. The Indian Constitution also confers power of judicial review on the High Court of every state in the same language.[1] The Indian and Pakistani courts in exercise of the power of judicial review keep in view the principles applied by the English courts in issuing writs. The Pakistan Constitution of 1962 did not mention these English prerogative writs in art.98 and instead codified the jurisdiction incorporating the essence of the English writ jurisdiction of High Court of England. Subsequently the Pakistan Constitution of 1973 in art.199 retained the formulation of art.98 of the former constitution.

5.29 Art.102(2) of the Constitution confers power of judicial review on the High Court Division in the same language as used in art.98 of the Pakistan Constitution of 1962. Art.102(2)(a)(i) empowers the High Court to issue orders in the nature of prohibition and *mandamus*, art.102(2)(a)(ii) empowers the High Court Division to issue orders in the nature of *certiorari*, art.102(2)(b)(i) vests the power to issue orders in the nature of *habeas corpus* and art.102(2)(b)(ii) invests the High Court Division with the power to issue orders in the nature of *quo warranto*. The codification of the remedies has effected considerable change, enlarging in some respects and narrowing in some other respects the scope of the remedies. For facility of reference the names of *certiorari*, prohibition, *mandamus, quo warranto* and *habeas corpus* will be used.

5.30 Writs of *certiorari* and prohibition are intended to prevent public functionaries from exceeding their power, the difference between the two being that prohibition is issued when the act or proceeding is not completed, while *certiorari* is issued when the act or proceeding has been completed. *Mandamus* is issued to compel a public functionary to do what he is under a legal duty to do when he is refusing to do it. *Habeas corpus* is intended to ensure that no person is detained or confined illegally or in an unlawful manner. *Quo warranto* is directed to ensure that no one occupies a public office without any lawful authority. In discussing the power of judicial review of the High Court Division we shall look at the principles applied by the English courts in this

[1] Art.226

regard. Courts in the Indian and Pakistani jurisdictions have to a large extent applied the English principles. But in considering the English decisions it must be kept in mind that in order to remove the technical difficulties and limitations of the prerogative writs, reform has been made in England by the Supreme Court Act, 1981 which now provides for the relief of declaration and injunction in addition to the orders of *mandamus, certiorari* and prohibition. In order to understand the scope of judicial review under art.102(2) we must be guided essentially by the language of art.102(2) and even though the English and Indian decisions may be considered, the language of art.102(2) will have primacy. Again, art.102(2) cannot be interpreted in isolation and the aims and objectives and other provisions of the Constitution will have to be considered. As we proceed we shall find that many of the English decisions are inapplicable in view of the provisions of Part III in general and art.31 in particular.

5.31 ***Writ of Certiorari:*** *Certiorari* at common law in England used to be issued either from the King's Bench or the Chancery, for the purpose of exercising superintending control over inferior courts.[1] Gradually, the jurisdiction was enlarged to include within its fold all authorities performing judicial or quasi-judicial functions. Yet later the distinction between judicial and quasi-judicial functions and administrative functions has been abandoned and writ of *certiorari* is issued against administrative authorities also. In India this distinction is gradually withering away and writs have been issued against administrative authorities for violation of the principles of natural justice.[2] Art.98 of the Pakistan Constitution of 1962 did away with this distinction, so has done art.199 of the Pakistan Constitution of 1973. Art.102(2) does not also recognise this distinction and an order under art.102(2)(a)(ii) can be passed against any authority, irrespective of the nature of the function, if he is performing the function in connection with the affairs of the Republic or any local authority.[3] The term 'local

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[1] Ferries - The Law of Extra-ordinary Remedies, Para 156 & 157; *Shahida Mohiuddin v. Bangladesh*, W.P. No.530 of 2001 (Unreported). In criminal conviction habeas corpus proceeding is taken, but in certiorari the Court can declare a conviction to be without lawful authority in an appropriate case - see *State v. Zahir*, 45 DLR (AD) 163; *Rajab Ali v. East Pakistan*, 10 DLR 385 (Certiorari is available against an order of conviction from which no appeal or revision is available)

[2] *Kraipak v. India*, AIR 1970 SC 150; *Eurasian Equipments v. West Bengal*, AIR 1975 SC 266

[3] 'Local authority' is not defined in the Constitution, Art.152 having made General

authority' implies a public duty authorised by law or by the government to carry on some administrative functions. A public corporation is entrusted with some portion of the sovereign function of the government which is to be performed by the corporation for the benefit of the public and such a corporation is undoubtedly a person performing functions in relation to the affairs of the Republic.[1] The National Bank of Pakistan which was established by an Ordinance was held not to be a local authority as it bore no resemblance to the recognised concept of a local authority; a local authority is ordinarily charged with functions of self-government and has power to impose tax and maintain and administer local funds.[2] But in *A.Z. Rafique v. Bangladesh Council of Scientific and Industrial Research*[3] the resolution of the government constituting the Council was treated as a legal instrument having the force of law and the Council so established was held to be a local authority.[4]

5.32 In England as also in India a writ of *certiorari* is issued when an

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Clauses Act, 1897 applicable in respect of interpretation of the Constitution, we shall have to refer to the definition of 'local authority' given in that Act and that definition runs thus: "'local authority' shall mean and include a Paurashava, Zilla Parishad, Union Panchayet, Board of Trustees of a port or other authority legally entitled to, or entrusted by the Government with, the control or management of a municipal or local fund, or any corporation or other body or authority constituted or established by the Government under any law" - s.3(28)

[1] *B.S.I. Corporation v. Mahbub Hossain*, 29 DLR (SC) 41

[2] *Deputy Managing Director of National Bank of Pakistan v. Ataul Haq*, 17 DLR (SC) 74

[3] 32 DLR (AD) 83

[4] The point does not seem to have been correctly decided. The petitioner, an employee of the Council, filed the writ petition in 1977 challenging his removal from service. In February, 1978 Ordinance no.V of 1978 was passed establishing Bangladesh Council of Scientific and Industrial Research and the undertaking of the earlier Council established by the government resolution dated 16.11.1973 was transferred to the statutory Council. The Ordinance revoked the resolution. From the fact of revocation of the resolution by the Ordinance the Court came to the conclusion that the resolution had statutory force. As the undertaking of the earlier Council was transferred to the statutory Council, it was necessary to revoke the resolution and this mere fact of revocation cannot lead to the conclusion that the resolution was an instrument having statutory force. Any notification, order or resolution of the government to have force of law must be issued or made pursuant to a statute, but the resolution in question was passed as an administrative act and not in exercise of any power under any statute. It is submitted that the resolution cannot be treated as having the force of law and as such at the time of passing the order of removal of the petitioner, the Council was not a statutory body and could not be treated as a local authority.

authority acts without jurisdiction, in excess of jurisdiction or commits an error of law apparent on the face of the record. But art.98 of the Pakistan Constitution of 1962 codified the jurisdiction of the High Courts in issuing orders in the nature of *certiorari* in the same language as used in art.102(2) of the Constitution. Art.98(2)(a)(ii) conferred jurisdiction on the High Courts to declare that "any act done or proceeding taken ... has been done or taken without lawful authority and is of no legal effect". Interpreting the two expressions 'without lawful authority' and 'of no legal effect', Kaikaus J of the Pakistan Supreme Court observed that an order in the nature of *certiorari* can be issued only when a public functionary has committed jurisdictional error rendering his action or decision a nullity.[1] There are subsequent decisions of the same court expressing substantially the same view.[2] But there are a number of decisions of the Pakistan Supreme Court in which the remedy has not been confined to jurisdictional errors. Sometimes relief has been given without saying anything as to whether the error which impelled the court to give relief was at all a jurisdictional error and sometimes relief has been given by extending the traditional meaning of jurisdiction and jurisdictional error. From these decisions it is difficult to discern how the court is drawing the line between jurisdictional and non-jurisdictional error. Where the court saw injustice, the court interfered without bothering very much about the existence of jurisdictional error. In *Jamal Shah* the court refused to accept the question of rejection of certain ballot papers as going to the root of the jurisdiction, but in *Akbar Ali v. Raziur Rahman*[3] the court interfered, treating the question of wanton rejection of certain ballot papers as one going to the root of the jurisdiction. The same thing happened in our Supreme Court and as we proceed we will find a lack of consistency in the decisions on the question of jurisdictional errors. It is good a sign to

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[1] *Jamal Shah v. Election Tribunal*, 18 DLR (SC) 1 (Had this paragraph only used the words 'without lawful authority' the matter would have been easy. But the paragraph also says 'and is of no legal effect'. A simple finding that an act is without lawful authority is insufficient. It must further be found that the act or proceeding 'is of no legal effect'. When we say that something is of no legal effect, we mean it is nullity ... If an order is passed in the illegal or irregular exercise of jurisdiction can it be said that it is 'without legal effect'? It is only acts without jurisdiction as have no legal effect - Para 45 & 46)

[2] *Raunaq Ali v. Chief Settlement Commissioner*, PLD 1973 SC 236; *Md. Hossain Munir v. Sikander*, PLD 1974 SC 139

[3] 18 DLR (SC) 426

see the courts reacting to manifest injustice and trying to remedy it. But then there should be consistency in principle, otherwise there will be disconcerting unpredictability in litigations which the Indian Supreme Court deprecated as being an element usually associated with gambling.[1]

5.33 Art.102(2)(a)(ii) empowers the High Court Division to issue an order declaring an act done or proceeding taken to be without lawful authority and of no legal effect. In other words, the High Court Division can interfere only when the person proceeded against has committed an error going to jurisdiction, that is, when the act done or proceeding taken is vitiated by lack of jurisdiction or by being in excess of jurisdiction.[2] This provision does not permit the High Court Division to interfere on the ground of error of law on the face of the record. In *Ayesha Salahuddin v. Chairman, Second Labour Court*[3] the Appellate Division observed that the High Court Division can issue a writ in the nature of *certiorari* "where there is an error apparent on the face of record". It is submitted that the observation is not correct. However, this is inconsequential since, as we will find, for the purpose of art.102(2) there is no distinction between jurisdictional and non-jurisdictional error of law and all errors of law affect jurisdiction.

5.34 *Want of jurisdiction:* No authority can exceed the power given to it. Any action taken by an authority outside the power conferred is invalid and *ultra vires*.[4] However, in going to determine whether an

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[1] *Ramappa v. Bojjappa*, AIR 1963 SC 1633, 1637 (The Supreme Court made the comment in connection with the High Court's failure to adhere to the limitations of s.100 of the Code of Civil Procedure in second appeals.)

[2] *Hosne Ara Begum v. Court of Settlement*, 46 DLR (AD) 9

[3] 32 DLR (AD) 68, 71 (this is a case of 'no evidence' which is treated as an error of law)

[4] *Bangladesh v. Dr. Nilima Ibrahim*, 1981 BCR (AD) 175 (the government dissolving an institution set up after 1.1.1972 in exercise of power under a statute permitting dissolution of any institution set up before 1.1.1972 acts without lawful authority); *Abdul Khaleque v. Court of Settlement*, 44 DLR 273 (law authorising inclusion in the list of abandoned properties only the properties in respect of which notice had been issued, inclusion of non-notified property is without lawful authority); *Amela Khatun v. Court of Settlement*, 46 DLR 18; *Hamidul Huq Chowdhury v. Bangladesh*, 33 DLR 381 (When Bangladesh Press Administration Order, 1972 permitted taking over of printing establishment on the failure of the directors and managers of such establishment to publish the newspaper, taking over of the printing establishment when the newspaper was being regularly published was without lawful authority); *Nazmul Hossain v. State*, 48 DLR 417 (Conviction under MLR though the allegation does not disclose any

authority exceeded the power, it is held that conferment of power by a statute must be construed reasonably and whatever may reasonably be regarded as incidental to, or consequential upon, the things which the law authorised must be held to be within the power conferred.[1] Lack of jurisdiction may occur when an authority acting has no power over a party. Thus when an authority having power to deport an illegal entrant deports a person who has a valid entry permit, the act is without jurisdiction.[2] An action will be found *ultra vires* if the authority taking the action has no jurisdiction over a territory.[3] No legislature in granting power to take action contemplates a *mala fide* exercise of power and a *mala fide* action is by its nature an act without jurisdiction.[4] Again, if a tribunal or authority is improperly constituted, its action will be without lawful authority. Thus where the Chairman of a Union Council was removed by a resolution of a Committee in a meeting in which three members not entitled to vote participated, the resolution was invalid.[5]

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offence under MLR); *London County Council v. Att.-Gen.*, [1905] AC 165 (the Council having statutory power to purchase and work tramway ran omnibus, the House of Lords held it *ultra vires); White and Collins v. Minister of Health*, [1939] 2 KB 838 (local authority having power to compulsorily acquire land other than park land acted in excess of power in acquiring park land); *R. v. Hackney (etc) Rent Tribunal ex p. Keats*, [1951] 2 KB 15 (a rent tribunal having power to reduce rent of a dwelling house acts *ultra vires* by reducing rent of a house let for business); *Newspaper Ltd. v. State Industrial Tribunal*, AIR 1957 SC 532 (he government having referred a dispute (not being an industrial dispute) to industrial tribunal, the reference was invalid and the tribunal lacked power to make a valid award); *Chetker v. Viswanath*, AIR 1970 SC 1832 (Chancellor of a University upon misconstruction of the law and the University statutes annulling a resolution of the Syndicate acts without jurisdiction); *J.K. Chowdhury v. R.K.Dutta*, AIR 1958 SC 722 (Governing Body of the college dismissed the Principal; University acted without jurisdiction in directing reinstatement of the Principal when it could interfere with the decision of the college only in case of a teacher)

[1] *Att. Gen. v. Great Eastern Railway*, [1880] 5 AC 473; *Grindlays Bank v. Central Government, Industrial Tribunal*, AIR 1981 SC 606

[2] *R. v. Home Secretary ex p. Khawaja*, [1984] AC 74

[3] *Grameen Bank Karmachari Union v. Labour Appellate Tribunal*, 51 DLR 179

[4] *Abdur Rouf v. Abdul Hamid Khan*, 17 DLR (SC) 515; *Khondker Mostaque Ahmed v. Bangladesh*, 34 DLR (AD) 222; *Jamil Huq v. Bangladesh*, 33 DLR (AD) 125; *Khandker Ehtashamuddin v. Bangladesh*, 33 DLR (AD) 154

[5] *Abdur Rahman v. Collector and Deputy Commissioner*, 16 DLR (SC) 470; *Md. Nurul Huda Mia v. WASA*, 44 DLR 527 (inquiry in the disciplinary proceeding being conducted by an officer junior in rank to the accused officer where the rule requires inquiry by an officer senior in rank to the accused officer, the disciplinary action taken

Where the law requires that a labour court will be constituted with one Chairman and two members, total absence of the members renders the labour court improperly constituted and its decision is without lawful authority.[1] Lack of jurisdiction may also be found if the authority passes a kind of order which he has no authority to pass.[2] An authority having once exercised a statutory power may lack jurisdiction to exercise it again. Thus a transport authority having once issued permit with conditions stated is not competent to impose a new condition of fitting auto-rickshaw with taxi meter of approved make.[3]

5.35 *Waiver and acquiescence:* What happens if an authority acts in a matter over which it has no jurisdiction and the person fails to raise any objection? "It is a fundamental principle that no consent can confer on a court or tribunal with limited statutory jurisdiction any power to act beyond that jurisdiction, or can estop the consenting party from subsequently maintaining that such court or tribunal has acted without jurisdiction."[4] Thus in a planning case concerning a caravan site, the English Court of Appeal held that the site-owner could apply for declaration that the planning authority's enforcement notice was bad in law, even though previously he pleaded guilty to contravention of the notice in the criminal proceedings.[5] By mere submission before an

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is without lawful authority); *Ram Bharosey v. Har Swarup*, AIR 1976 SC 1739 (where disciplinary committee of the Bar Council under the Advocates Act consisted of three members, but only two were present, the tribunal was not properly constituted); *United Commercial Bank v. Workman*, AIR 1951 SC 230

[1] *General Manager, Jamuna Oil Company v. Golap Rahman*, 34 DLR (AD) 166 (absence of any member from any sitting after the Court is properly constituted will not vitiate the proceeding as the law provides for such absence); *National Bank of Pakistan v. Golam Mostafa*, 27 DLR 158; *Project in charge, Paruma (Eastern) Ltd. v. Mr. Aminur Rahman Khan*, 31 DLR 124; *Secretary. Ministry of Works v. Court of Settlement*, 51 DLR 396 (Judgment delivered by Chairman and one of the two members)

[2] *Muzibur Rahman Talukdar v. AKM Musa*, 47 DLR 21 (Public servant evicting a person from tenanted house let out to him by private landlord); *Hotel Metropole Ltd. v. Employees Union*, PLD 1964 SC 633 (where conciliation officer instead of issuing failure certificate as required by law refers a labour dispute to his superior, the reference is without lawful authority);

[3] *M.Y. Baig v. Regional Transport Authority*, PLD 1965 Dac 33

[4] *Essex Incorporated Congregational Church Union v. Essex C.C.*, [1963] AC 808; *Legard v. Bull*, [1886] 11 AC 648; *Mahmudul Haque v. Shamsul Alam*, 36 DLR(AD)179; *Aswini Kumar v. Hari Mohan*, 36 DLR (AD) 1

[5] *Munnich v, Godstone RDC*, [1966] 1 WLR 427; see Para 5.120

authority as respondent, a litigant cannot be taken to have conferred jurisdiction on the authority which it did not have.[1] But this rule is subject to various qualifications. Want of jurisdiction has been classified into two categories - (1) patent want of jurisdiction, that is want of jurisdiction which is apparent on the face of the proceeding and (2) latent want of jurisdiction, that is, want of jurisdiction which is not so apparent from the face of the proceeding, but becomes manifest in the course of the proceeding. In the former case, no amount of consent, waiver or acquiescence can cure the defect, but in the latter case it can so cure.[2] Where the jurisdiction is contingent, that is, dependent on fulfillment of certain conditions, a litigant cannot raise the plea of want of jurisdiction if he failed to raise the objection at the proper time.[3] The court will refuse to interfere where the alleged jurisdictional defect depends on some facts in the knowledge of the applicant.[4] Even if the party has no such knowledge but has materially benefited from the proceeding in question, he may be precluded from raising the plea of want of jurisdiction while he is still enjoying the benefit.[5]

5.36 *Excess of Jurisdiction - Error of Law:* We have so far dealt with cases where there is lack of jurisdiction. These are rather straight forward cases which present no difficulty in finding the jurisdictional error. But difficulty arises when the authority has initial jurisdiction to do the act or start the proceeding and is alleged to have stepped out of jurisdiction thereafter by doing certain things.[6] In order to have an understanding about excess of jurisdiction we must first understand what is meant by 'jurisdiction' and much will depend upon the meaning in which we use the expression.

5.37 'Jurisdiction' is an expression used in a variety of senses and takes its colour from its context.[7] In the broad sense it simply means

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[1] *Md. Afzal v. Board of Revenue*, 19 DLR (SC) 266

[2] *Farquharson v. Morgan*, [1894] 1 QB 552; R v. *Comptroller-General of Patents*, [1953] 1 All E.R. 862; *Ghulam Mohiuddin v. Ch. Settlement Commr*, 16 DLR (SC) 654; *Altaf Hossain v. Ch. Settlement Commr*, 18 DLR (SC) 164

[3] *Jones v. James*, (1850) 19 LJQB 257; *Moore v. Gamgee*, (1890) 25 QBD 244; *Ghulam Mohiuddin v. Ch. Settlement Commr*, 16 DLR (SC) 654; *Altaf Hossain v. Ch. Setlement Commr*, 18 DLR (SC) 164

[4] *R. v. Comproller-General of Patents*, [1953] 1 All E.R. 862

[5] *Evans v. Bartlane*, [1937] AC 473

[6] *Mir Md. Kashem Ali v. Administrator of Waqfs*, 3 BLC 519; *Abdur Rahman v. Bangladesh*, 49 DLR 344

[7] *Anisminic Ltd v. Foreign Compensation Tribunal*, [1968] 2 QB 862, 889

'power'. In the context of judicial and quasi-judicial functions it has the narrow meaning of 'power to decide' or 'power to determine'.[1] In the narrower sense it is stated in Halsbury's Laws of England -

> Where the proceedings are regular on their face and the inferior tribunal had jurisdiction, the superior court will not grant the order of certiorari on the ground that the inferior tribunal had misconceived a point of law. When the inferior tribunal has jurisdiction to decide a matter, it cannot (merely because it incidentally misconstrues a statute, or admits illegal evidence, or rejects legal evidence, or misdirects itself as to the weight of the evidence, or convicts without evidence) be deemed to exceed or abuse its jurisdiction.[2]

Thus when a rent tribunal had power to reduce a rent where it appeared that premium had been paid and the payment made to the landlord in respect of the work done is not in law a premium, the error of law in holding the payment as premium was jurisdictional and the decision was quashed.[3] But if the payment is disputed and the tribunal decided on inadmissible evidence in respect of payment to the landlord, the error committed will be a non-jurisdictional error of law and no certiorari will lie. Lord Reid sitting in the House of Lords stated,

> If a magistrate or any other tribunal has jurisdiction to enter on an inquiry and to decide a particular issue, and there is no irregularity in the procedure, he does not destroy his jurisdiction by reaching a wrong decision. If he has jurisdiction to go right he has jurisdiction to go wrong. Neither error in fact nor error in law will destroy his jurisdiction.[4]

In the same way Sir Barnes Peacock stated in the Privy Council,

> If it appears that [i.e. the Judges] had perfect jurisdiction to decide the question which was before them, and they did decide it, whether they decided it rightly or wrongly, they had jurisdiction to decide the case; even if they decided wrongly they did not exercise their jurisdiction illegally or with material irregularity.[5]

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[1] H.W.R. Wade - Administrative Law, 6th ed, p.280

[2] 4th ed. Vol.1, Para 57

[3] *R. v. Fullham (etc) Rent Tribunal ex p. Philippe*, [1950] 2 All E.R. 211

[4] *R. v. Governor of Brixton Prison ex p. Armah*, [1968] AC 192, 234

[5] *Raja Amir Khan v. Sheo Baksh Singh*, 11 I.A. 237; *Malkarjun v. Narahari*, 27 I.A. 216; *R. v. Nat Bell Liquors*, [1922] 2 AC 128 ("To say that there is no jurisdiction to convict without evidence is the same thing as saying that there is jurisdiction if the

The same opinion was expressed in the Indian and Pakistani jurisdictions.[1] Referring to Lord Sumner's observation in *Nat Bell Liquors* and Lord Reid's observation in *Governor of Brixton Prison*, Professor Wade commented, "In their own time and context these statements were unexceptionable: they expressed the traditional doctrine that so long as jurisdiction existed, mere error as such would not destroy it. But it does not in the least follow that no sort of error made in course of the proceedings can affect jurisdiction. Some questions may arise which the tribunal is incompetent to determine, or some point may be decided in bad faith or in breach of natural justice or on irrelevant grounds or unreasonably, all of which faults go to jurisdiction and render the proceedings a nullity."[2] In another place he commented, "It is the word 'jurisdiction' which is the stumbling-block here: if 'power" were substituted, there would be less difficulty. Judges sometimes think of 'jurisdiction' as meaning merely the authority to inquire into and determine a case, as opposed to what is done in the course of the proceeding."[3] The difficulty was, in fact, felt by the House of Lords when a 'no certiorari' clause in the statute precluded judicial review on the ground of error of law on the face of the record. The majority of the Law Lords apparently adopted the broader meaning of jurisdiction to grant certiorari. Lord Pearce observed,

> Lack of jurisdiction may arise in many ways. There may be an absence of those formalities or things which are conditions precedent to the tribunal having any jurisdiction to embark on an inquiry. Or the tribunal may at the end make an order that it has no jurisdiction to make. Or in the intervening stage, while engaged on a proper inquiry, the tribunal may depart from the rules of natural justice; or it may ask itself the wrong questions; or it may take into account matters which it was not directed to take into account. *Thereby it would step outside its jurisdiction*. It would turn its inquiry into something not directed by Parliament and fail to make the inquiry which Parliament did direct. Any of these things would cause its purported decision to be a

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decision is right, and none if the decision is wrong.")

[1] *Ujjam Bai v. U.P.*, AIR 1962 SC 1621; *Santosh Kumar Saha v. D.M. Faridpur*, PLD 1959 Dac 738 (a court which had jurisdiction over a subject-matter had jurisdiction to decide wrongly as well as rightly); *Badrul Haq Khan v. Election Tribunal*, 15 DLR (SC) 389, Para 59

[2] H.W.R. Wade - Administrative Law, 6th ed., p.294

[3] Ibid, p.44

> nullity.[1](emphasis supplied)

Anisminic was both applauded and criticised.

5.38 Prior to *Anisminic*, a difference was made between jurisdictional error of law and non-jurisdictional error of law, the latter being not reviewable. In its application considerable difficulty was found in clearly defining the distinction between the two types of error of law. In *Pearlman v. Keepers and Governors of Harrow School*[2] Lord Denning said that the distinction was very fine and was being eroded and suggested that the distinction should be abandoned and the new rule should be that no court or tribunal has jurisdiction to make an error of law on which the decision of the case depends. Lord Diplock in *Re Racal Communications Ltd*[3] stated, "The breakthrough made by *Anisminic* was that, as respects administrative tribunals and authorities, the old distinction between errors of law that went to jurisdiction and errors of law that did not was for practical purposes abolished." But three other Law Lords did not accept this position and on the contrary, Lord Edmund-Davis quoted with approval the observation of the dissenting judge, Geoffrey Lane LJ, in *Pearlman* which runs thus -

> The judge is considering the words ... which he ought to consider. He is not embarking on some unauthorised or extraneous or irrelevant exercise. All he has done is to come to what appears to this court to be a wrong conclusion on a difficult question. It seems to me that, if the judge is acting outside his jurisdiction, so then is every judge who comes to a wrong decision on a point of law. Accordingly, I take the view that no form of certiorari is available to the tenant.[4]

The Privy Council also rejected the observation of Lord Denning regarding the abandonment of the distinction between jurisdictional and non-jurisdictional error of law.[5] In a subsequent decision Lord Diplock stated that the distinction between jurisdictional and non-jurisdictional error of law would no longer apply to inferior courts also.[6] Later a Divisional Court followed this analysis holding that the court could

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[1] *Anisminic Ltd. v. Foreign Compensation Tribunal*, [1969] 2 AC 147, 195

[2] [1979] 1 All E.R. 365

[3] [1980] 2 All E.R. 634

[4] [1979] 1 All E.R. 365, 376

[5] *S.E. Asia Fire Bricks v. Non-Metalic Union*, [1980] 2 All E.R. 689

[6] *O'Reilly v. Mackman*, [1982] 3 All E.R. 1124, 1129 (the whole House concurring in general terms)

review the finding of a coroner's inquest on the basis that any significant mistake of law would destroy jurisdiction.[1] Before *Anisminic* was decided Lord Denning held that a minister's decision could be quashed "if he has given a wrong interpretation of the words of a statute or has otherwise gone wrong in law"[2]; the court would quash the decision if a minister "plainly misdirects himself in fact or in law".[3] This statement was approved by Lord Wilberforce in *Secretary of State for Education and Science v. Tameside MBC*[4]. Lord Diplock in *Council of Civil Service Union v. Minister of the Civil Service*[5] observed that "the decision-maker must understand correctly the law that regulates his decision-making power and must give effect to it". Again in *R. v. Inland Revenue Commissioners ex p. Preston*[6] Lord Templeman said that judicial review is available where decision-making authority commits error of law. Finally, the House of Lords in *R. v. Hull University Visitors, ex p. Page*[7] came out with a clear statement that the distinction between the jurisdictional and non-jurisdictional error of law is no longer tenable.

5.39 The term 'jurisdiction' is generally used with reference to judicial and quasi judicial bodies and not with reference to administrative bodies. When *certiorari* was limited to judicial and quasi-judicial bodies, 'jurisdiction' could be used in the narrow sense of power to decide or power to determine. But when it has been extended to administrative acts also, there is no reason to adhere to the narrow connotation of 'jurisdiction'. In our constitution, the power of judicial review has been codified and we are to interpret the language of art.102 keeping view the other relevant provisions in the Constitution. Whatever be the position in other jurisdictions, in the context of our constitution, 'jurisdiction' should mean 'power'. It is to be seen that art.102(2)(a)(ii) uses the expression 'lawful authority' which has reference to 'power'

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[1] *R. v. Greater Manchester Coroner ex p. Tal*, [1985] QB 67

[2] *Ashbridge Investments Ltd. v. Minister of Housing and Local Government*, [1965] 1 WLR 1320

[3] *Secretary of State for Employment v. ASLEF* (No.2), [1972] 2 QB 455; *Smith v. Inner London Education Authority*, [1978] 1 All E.R. 411

[4] [1977] AC 1014; see also *R. v. Chief Immigration Officer ex p. Kharazi*, [1980] 3 All E.R. 373 (determination by immigration officer was quashed because he had interpreted the law very narrowly)

[5] [1985] AC 374, 410

[6] [1985] AC 835, 862

[7] [1993] AC 682, 701

rather than 'jurisdiction' and *Anisminic* fits in with our constitutional language. There is another compelling reason to read 'lawful authority' as 'power'. It is the fundamental right of every citizen and every other person staying in Bangladesh for the time being to be treated in accordance with law. That means it will be a violation of fundamental right if a person is treated differently (by misinterpretation of law) from what the law prescribes. One may argue that Parliament in conferring power to decide has permitted a tribunal to conclusively decide and treat a person in a way not contemplated by that law. To produce such an effect, the language of the statute must be very clear leaving nothing for implication.[1] But what is more important is that such a provision in a statute may be struck down as unconstitutional as Parliament has no power to curtail the constitutional power of judicial review of the High Court Division. Furthermore, such a provision will be violative of art.31 of the Constitution as being unreasonable and rendering the protection of art.31 illusory.[2] Under our constitutional dispensation, an authority committing error of law in exercise of power will be taken to have stepped outside jurisdiction and his action will be without lawful authority. An authority by misinterpreting the law, whether it goes to the root of jurisdiction or not in the strict sense of the term, acts without lawful authority. Whether the error of law is apparent on the face of the record or not is of no consequence and the Indian and earlier Pakistani decisions are not relevant. The position in our jurisdiction is thus similar to that in the American jurisdiction.[3] In a recent Pakistani decision it was held, "When the Tribunal goes wrong in law, it goes outside jurisdiction that was conferred on it because the Tribunal has the jurisdiction to decide rightly and not the jurisdiction to decide wrongly. Accordingly ... a determination of the Tribunal which is shown to be erroneous on a point of law can be quashed under the writ jurisdiction on the ground

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[1] *Md. Jamil Asghar v. Improvement Trust, Rawalpindi*, 17 DLR (SC) 520

[2] The decision of the Privy Council in *S.E. Asia Fire Bricks* need not bother us. That decision is from Malaysian jurisdiction where Parliament has power to oust the jurisdiction to issue writ of certiorari and the relevant law in clear language made the decision of the Industrial court final and conclusive and was thus immune from challenge on the ground of error of law on the face of the record. Under our constitutional dispensation no such ouster of power of judicial review of the Supreme Court is permissible.

[3] B. Schwartz - Administrative Law ("Where a question of law is at issue, the court determines the *rightness* of agency answer on its own independent judgment. If the agency answer does not square with that which the court considers the right one, its finding of law should not be upheld.) (p.596)

that it is in excess of jurisdiction."[1] In *Fazlur Rahman Chowdhury v. Bangladesh*[2] the High Court Division held that there can be no interference in the writ jurisdiction on the ground of erroneous interpretation of certain laws, rules and orders unless the authority acted without jurisdiction or the order was passed *mala fide*. It is submitted that the statement seems to be too broad and is to be understood in the light of the fact that the petitioner challenged the decision of the administrative appellate tribunal and the bar of art.102(5) was attracted. In *Md. Mustakin Ali v. Abdul Mutaleb* the High Court Division made a distinction between error of law within jurisdiction and error of law affecting jurisdiction.[3] It does not appear that the recent decisions of the English jurisdiction were placed before the court or any argument as to the effect of art.31 was made. It should be kept in mind that any and every error of law will not call for interference. It must be a mistake which has influenced the ultimate decision and but for the mistake the decision of the administrative authority could have been otherwise.[4]

5.40 *Errors of law and fact:* Making a clear-cut distinction between error of law and error of fact is a difficult task and the opinion of the judges often vary. A decision-making process entails three stages: (a) fact-finding which involves ascertainment of primary facts, (b) rule-stating and (c) application of the rule for disposal of cases. The meaning of a statutory term or a statutory provision is unquestionably an issue of law. The question whether a sale of machineries as an isolated transaction amounted to 'trade' for tax purposes was treated as an issue of law by the House of Lords.[5] Though the meaning of a word or phrase

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[1] *Utility Stores Corporation v. Punjab*, PLD 1987 SC 447, 452

[2] 39 DLR 314

[3] 45 DLR 733 (The court would be empowered to prevent a Tribunal from going wrong in law, but that is not the same thing as correcting a decision or an order merely because it is erroneous. A Tribunal may decide a point of law or pass an order in deciding issues before it keeping within jurisdiction though deciding it erroneous. That error would not be an error for interference under certiorari though it can be examined in appeal.)

[4] *R. v. Hull University Visitor*, ex p Page, [1993] AC 682, 702

[5] *Edwards v. Bairstaw*, [1955] 3 All E.R. 48; *Singer Sewing Machine Co. v. C.I.T.*, 17 DLR (SC) 332 (income tax authority refused exemption from tax upon erroneous view of law that an assembly business is not a manufacturing process and was not an 'industrial undertaking' within the meaning of s.15-B of Income Tax Act). But see *Custodian of Evacuee Property v. Abdul Shakur*, AIR 1961 SC 1087 (where Indian Supreme Court refused to treat the question whether a person is an evacuee within the meaning of a statutory provision as an issue of law)

in a statute is a question of law; it is a question of fact whether the given circumstances fall within such meaning.[1] But Lord Parker said in *Farmer v. Cotton Trustees*[2], "where all the material facts are fully found and the only question whether the facts are such as to bring the case within the provisions properly construed of some statutory enactment, the question is one of law only." Lord Denning also said in the same way, "In many of these cases the primary facts are not in dispute. The question is what is the correct conclusion to be drawn from them. This involves the interpretation of statute and is therefore a question of law."[3] But insufficiency of evidence, appreciation of documentary evidence, errors or omission in drawing inferences are issues of fact rather than of law.[4]

5.41 Appreciation or weight of evidence is an issue of fact and a finding of fact is generally not reviewable[5], nor shall the reviewing court interfere when disputed questions of fact are involved.[6] In exercising the power of judicial review the court does not assume the function of an appellate authority.[7] No interference is called for when the authority

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[1] *Ransom v. Higgs*, [1974] 3 All E.R. 949; *O'Kelly v. Trusthouse Forte*, [1983] 3 All E.R. 456;

[2] [1915] AC 922; see also *Great Western Railway v. Bater*, [1923] AC 22

[3] *Woodhouse v. Brotherwood Ltd.*, [1972] 2 All E.R. 92, 95; *Carl Still m.b.h. v. Bihar*, AIR 1961 SC 1615 (Sales Tax authority sought to tax materials supplied in execution of a contract contending that the supply amounted to sale. The Supreme Court held that on a true construction of the agreement in question, it was a contract entire and indivisible for the construction of specified works for a lump sum and not a contract for sale of materials)

[4] *Nagendranath Bora v. Commissioner of Hills Division*, AIR 1958 SC 398; *Kaushalya Debi v. Bachitar Singh*, AIR 1960 SC 1168; *Madras v. G. Sundaram*, AIR 1965 SC 1103; *A.P. v. Sree Rama Rao*, AIR 1963 SC 1723; *Imtiaz Ahmed v. Ghulam Ali*, 15 DLR (SC) 283

[5] *M.D., BMTF v. Chairman, Labour Court*, 44 DLR (AD) 272; *Yusuf Sk. v. Appellte Tribunal*, 29 DLR (SC) 211; *Shahidun Nabi v. University of Dhaka*, 45 DLR 20; *Abdul Latif Howladar v. ADC (Revenue)*, 50 DLR 638; *Abdul Hashim v. Election Commn.*, 48 DLR 490

[6] *Tofazzal Hossain v. East Pakistan*, 15 DLR (SC) 139; *Imtiaz Ahmed v. Ghulam Ali*, 15 DLR (SC) 283; *East Pakistan v. Kshiti Dhar* Roy, 16 DLR (SC) 457; *Kaushalya Devi v. Bachitar*, AIR 1960 SC 1168; *Orissa v. Muralidhar*, AIR 1963 SC 404.

[7] *Bangladesh v. Md. Jalil*, 48 DLR (AD) 10 (In writ jurisdiction the High Court Division can interfere with finding of fact only if it can be shown that the tribunal had acted without jurisdiction or made any finding on no evidence or without considering any material evidence/facts causing prejudice to the complaining party or it had acted

arrives at a finding upon proper appreciation of facts.[1] In academic matters, particularly in matters of study and holding of examinations, the University is the sole judge and the court will not generally interfere with the decision of the University unless there has been any manifest illegality in arriving at the decision.[2] But a finding of fact based on no evidence is treated as an error of law.[3] "'No evidence' does not mean only a total dearth of evidence. It extends to any case where the evidence, taken as whole, is not reasonably capable of supporting the finding; or where, in other words, no tribunal could reasonably reach that conclusion on that evidence. This 'no evidence' principle clearly has something in common with the principle that perverse or unreasonable action is unauthorised and ultra vires."[4] In *P.T. Services v. State Industrial Court*[5], the Labour Commissioner dealing with a dismissal case found from the absence of signature of the Inquiry Officer on the paper that no inquiry had been held by the employer. The Indian Supreme Court held that no reasonable judge of facts could have come to this conclusion. Where the facts found are wholly insufficient to sustain a finding of fact, it will be a case of no evidence and it will not be a finding for which protection against judicial examination can be claimed.[6] A finding of fact is liable to be interfered with if it is not based

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mala fide or in violation of any principle of natural justice) ; *Bangladesh v. Ashraf Ali*, 49 DLR (AD) 161; *Mostafa Kamal v. First Court of Settlement*, 48 DLR (AD) 61; *Manager, Jute Plastic Plant v. Labour Court*, 47 DLR 182; *Managing Director, Contiforms Ltd. v. Labour Appellate Tribunal*, 50 DLR 476; *Asma Begum v. Bangladesh*, 3 BLC 238; *High Court, Bombay v. Shashikanta*, AIR 2000 SC 22 (If there is some legal evidence on which the findings can be based, then adequacy or even reliability of that evidence is not a matter to be canvassed)

[1] *Bangladesh v. Court of Settlement*, 2 MLR (AD) 378; *Sirajul Islam v. Bangladesh*, 53 DLR 127

[2] *Badrunnessa v. Vice Chancellor*, 30 DLR 268; *Enamul Huq v. Dhaka University*, 43 DLR 507 (evaluation of academic attainment of a student being the sole function of the University, the court will be very much slow to interfere)

[3] *Bangladesh v. Md. Jalil*, 48 DLR (AD) 10; *R. v. Agricultural Land Tribunal ex p. Bracey*, [1960] 1 WLR 911; *Subal Chandra v. M.S. Huq*, Magistrate, 12 DLR 220; *Kaushalya Devi v. Bachitar*, AIR 1960 SC 1168; *Syed Yakoob v. Radhakrisnan*, AIR 1964 SC 477; *Basappa v. Nachappa*, AIR 1954 SC 440; *Rahim Shah v. Chief Election Commissioner*, PLD 1973 SC 24

[4] H.W.R. Wade - Administrative Law, 6th ed., p.320

[5] AIR 1963 SC 114

[6] *East Pakistan v. Amir Hossain*, 15 DLR (SC) 110

on material evidence[1] or the trier of the facts failed to properly consider the legal effect of material pieces of evidence.[2] On questions of fact the court adopts the test of reasonableness and the court inquires whether on consideration of the facts a reasonable man would have come to the finding arrived at by the authority.[3] If on the facts brought on record two conclusions are equally possible, the court will not interfere with the finding of fact of the administrative authority even though the court would have come to the other finding had it acted as the trier of the facts. A conclusion of fact is, however, reviewable when some relevant and material evidence has been excluded from consideration[4] or some irrelevant or inadmissible evidence has affected the decision.[5] In the words of Lord Wilberforce -

> If a judgment requires, before it can be made, the existence of some facts, then although the evaluation of those facts is for the Secretary of State alone, the court must inquire whether those facts exist, and have been taken into account, whether the judgment has been upon a proper self-direction as to those facts, whether the judgment has not been made on other facts which ought not to have been taken into account. If those requirements are not met, then the exercise of judgment, however bona fide it may be, becomes capable of challenge.[6]

In the ultimate analysis, on the question of fact, our position approximates the American position that "where a question of fact is at issue, the court determines only the *reasonableness* of the agency answer. If the agency answer is reasonable, even though it is not necessarily the one which the court would have given had it sat as the

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[1] *Minarul Islam v. Bangladesh*, 49 DLR 615

[2] *Lalima Begum v. Court of Settlement*, 49 DLR 325

[3] *East Pakistan v. Abdus Sobhan Sowdagar*, 16 DLR (SC) 38, Para 9; *Abdul Baqui Balooch v. Pakistan*, 20 DLR (SC) 249 ("It is not the purpose of judicial authority reviewing executive actions to sit on appeal over the executive or to substitute the discretion of the Court for that of the administrative agency. What the Court is concerned with is to see that the executive or the administrative authority had before it sufficient materials upon which a reasonable person would have come to the conclusion that the requirements of the law were satisfied." (Para 20)

[4] *Chittagong Chemical Complex v. Labour Court*, 46 DLR (AD) 182; *Bangladesh v. Md. Jalil*, 48 DLR (AD) 10; *Akhtari Begum v. Court of Settlement*, 2 BLC 341

[5] *East Pakistan v. Abdus Sobhan Sowdagar*, 16 DLR (SC) 38; *Syed Yakoob v. Radhakrisnan*, AIR 1964 SC 477; see the observation of Lord Pearce in Para 5.36.

[6] *Secretary of State for Education and Science v. Tameside MBC*, [1977] AC 1014, 1047

trier of fact, the agency finding of fact should be upheld."[1]

5.42 *Jurisdictional fact:* Though review of facts is limited as stated above, full review is allowed in respect of facts which are called 'jurisdictional' or 'collateral' facts.[2] These are facts the existence of which is the pre-condition to the exercise of jurisdiction by public functionaries.[3] It is a general rule that "no court of limited jurisdiction can give itself jurisdiction by a wrong decision on a point collateral to the merits of the case upon which the limits of its jurisdiction depends."[4] When the licensing justices are empowered to grant extension of hours of work on 'special occasions' exercise of that power is conditional upon the existence of special occasion and the court will review whether there was really special occasions within the meaning of the law.[5] In *R. v. Fulham (etc) Rent Tribunal ex p. Zerek*[6] Lord Goddard observed –

> ... if a certain state of things has to exist before an inferior tribunal have jurisdiction, they can inquire into the facts in order to decide whether or not they have jurisdiction, but cannot give themselves jurisdiction by a wrong decision upon them; and this Court may, by means of proceeding for certiorari, inquire into the correctness of the decision. The decision as to these facts is regarded as collateral because, though the existence of jurisdiction depends on it, it is not the main question which the

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[1] B. Schwartz - Administrative Law, p.596

[2] *A.P. v. Merit Enterprises*, (1998) 8 SCC 749

[3] *Anisul Islam Mahmood v. Bangladesh*, 44 DLR 1 (the court treated the materials on the basis of which detention order was passed as jurisdictional fact. This does not seem to be correct. Had the existence of those materials been jurisdictional facts, the court would have allowed full review of such facts, but as we will see, the Supreme Court does not go into the question of adequacy of such materials on the basis of which detention order is passed. See Para 5.95. The decision, however, is correct inasmuch as the detention order having been declared without lawful authority, no prosecution can be maintained for disobedience of the order.)

[4] *Bunbury v. Fuller*, [1853] 9 Ex 111; *Khizar Hayat v. Zainab*, 19 DLR (SC) 372; *Mehr Dad v. Settlement & Rehabilitation Commr.*, PLD 1974 SC 193; *Raza Textiles v. I.T. Officer*, AIR 1973 SC 1362

[5] *R. v. Sussex JJ*, [1933] 2 KB 707; see also *R. v. Metropolitan Police Commissioner ex p. Rexton*, [1972] 1 WLR 232; *R. v. Liverpool City Council ex p. Liverpool Taxi Fleet Operations Association*, [1975] 1 WLR 701; *R. v. Home Secretary ex p. Mehta*, [1975] 1 WLR 1087

[6] [1951] 2 KB 1, 6

tribunal have to decide.[1]

Kaikaus J in *Md. Jamil Asghar v. Improvement Trust, Rawalpinidi*[2] explained the position stating -

> A purely administrative officer who is empowered to pass an order of certain circumstances exist has no jurisdiction to determine those circumstances and the objective existence of those circumstances is an essential condition of the validity of his order.[3] In respect of every order passed by him the Court can make an enquiry and if it finds that all the circumstances needed for passing the order were not present it will declare the order to be void. Of course, although the officer has been granted no jurisdiction to determine any facts he will have to ascertain whether the requisite circumstances exist for otherwise he cannot pass the order but his conclusion as to the existence of those circumstances binds no body and it is open to any person affected to challenge his act on the ground that those circumstances do not in fact exist. An administrative officer or authority may be given jurisdiction to determine some facts on proof of which he can pass an order and in that case he will act in a quasi-judicial manner for the determination of those facts and his determination validly reached will support his order in relation to those facts. For instance the government may be empowered to acquire property if it is 'satisfied' of the existence of a public purpose for such acquisition. If the government validly reaches a conclusion as to the existence of a public purpose its order will be legal provided of course that the circumstances which it has found to exist do in law constitute a public purpose. The government still will have no jurisdiction to determine the connotation of 'public purpose' and it will not be able to validate an acquisition by a

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[1] see also *R. v. Lincolnshire Justices ex p. Brett*, [1926] 2 KB 192; *R. v. Pugh (Judge) ex p. Graham*, [1951] 2 KB 623; *Re Purkins Application*, [1962] 1 WLR 902; *Anisminic Ltd v. Foreign compensation Tribunal*, [1969] 2 AC 147; *R. v. Croydon etc Rent Tribunal ex p. Ryzewska*, [1977] QB 876; *R. v, Camden LB Rent Officer ex p. Ebiri*, [1981] 1 WLR 881; *Calcutta Discount Co. v. I.T. Officer*, AIR 1961 SC 372; *Amina Begum v. Md. Nazir*, PLD 1985 SC 260.

[2] 17 DLR (SC) 520

[3] Kaikaus J observed in *Jamal Shah v. Election Commission*, 18 DLR (SC) 1, Para 48, "It is a distinction attaching only to judicial tribunals that their acts within jurisdiction though illegal are not null and void. So far as administrative officer and authorities are concerned there is no distinction between illegality and want of jurisdiction. When an administrative officer acts illegally he acts without jurisdiction. An administrative officer has authority to pass order or to take action if certain facts exist. If those essential facts do not exist his order or action is void."

> misinterpretation of 'public purpose'. It is the Court which will determine what is meant by 'public purpose'.

In the same way Professor Wade observed, "In administrative cases the prescribed statutory ingredients will more readily be found to be collateral. This is probably because, in contrast to judicial cases ... the central question committed to the administrative authority will commonly be whether to exercise some discretionary power, and the prescribed statutory ingredients will more naturally be regarded as preliminary or collateral questions."[1]

5.43 In many cases, it is not easy to identify such jurisdictional facts. Speaking about the English position Professor Wade commented, "there are borderline cases where the question may, on a true view, be part of the matter which the administrative authority is empowered to decide conclusively, so that it is squarely within its jurisdiction."[2] Dealing with such a case Lord Esher laid down his famous dictum of `enabling power'-

> It [Parliament] may in effect say that, if a certain state of facts exists and is shown to such tribunal or body before it proceeds to do certain things, it shall have jurisdiction to do such things, but not otherwise. There it is not for them conclusively to decide whether that state of affairs exists, and, if they exercise the jurisdiction without its existence, what they do may be questioned, and it will be held that they have acted without jurisdiction. But there is another state of things which may exist. The legislature may intrust the tribunal or body with a jurisdiction, which includes the jurisdiction to determine whether the preliminary state of facts exists as well as the jurisdiction, on finding that it does exist, to proceed further or do something.[3]

This may happen when the collateral question is inextricably connected with the central question which the authority is assigned to determine.[4]

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[1] H.W.R. Wade - Administrative Law, 6th ed, p.288

[2] Ibid, p.286

[3] *R. v. Special Commissioner of Income Tax*, [1888] 21 QBD 313

[4] *R. Lincolnshire Justices ex p. Brett*, [1926] 2 KB 192; *Livingstone v. Westminister Corporation*, [1940] 2 KB 109; *R. v. Woodhouse*, [1906] 2 KB 501; *Ashbridge Investments Ltd. v. Minister of Housing*, [1965] 1 WLR 1320; *Lake v. Bennett*, [1070] 1 QB 663; *Lilavati v. Bombay*, AIR 1957 SC 521; *R & R Ltd. v. Madras*, AIR 1956 SC 463; *Ebrahim v. Custodian General*, AIR 1952 SC 319; *Raunaq Ali v. Chief Settlement Commr.*, PLD 1973 SC 236

5.44 The distinction drawn by Lord Esher is not workable in practice as the parliamentary intent in this regard is rarely, if ever, clearly manifested[1] and it is not clear on what basis certain facts are classed apart as jurisdictional fact. It is difficult to see why the doctrine should be applied to rent tribunal cases[2] and shall not be applied in cases of reinstatement tribunal[3]. It may be argued that in one case Parliament had conferred the power to decide conclusively the jurisdictional fact and in others it had not done so. But Parliament had not conferred such power expressly and one has to search in vain for an implied legislative intent which may be said to be present in reinstatement case, but not in rent tribunal cases. Because of this difficulty the Pakistan Supreme Court observed, "It is possible, of course, that special tribunal may be made the judge of its own jurisdiction, but this would be a very exceptional provision and one should be made by altogether clear words."[4] One such method adopted by legislature is by way of providing for conclusive presumption as in the case of *Lilavati v. Bombay*[5] where a law empowered the government to requisition premises which remained vacant for a specified period and made a provision to the effect that a declaration of such vacancy after such inquiry as the government deemed fit shall be conclusive evidence of such vacancy. The court held that the finding of the government on the question of vacancy is not reviewable as the legislature has conferred final power of determining the question on the government. Another method of making the administrative authority the final judge of the jurisdictional fact is to leave the finding of the jurisdictional fact to the subjective satisfaction of the administrative authority.[6] But this doctrine of 'enabling power', whether implied or express, endows a public functionary with uncontrolled powers and renders him a law unto himself and it definitely

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[1] Dr. Fazal - Judicial Control of Administrative Action in India, Pakistan and Bangladesh, 2nd ed., p.101

[2] *R. v. Hackney (etc) Rent Tribunal ex p. Keats*, [1915] KB 15 (Rent Tribunal having jurisdiction to reduce rent of a dwelling house, its order reducing rent is *ultra vires* as it wrongly found a house let for business purpose as a dwelling house.)

[3] *R. v. Ludlow, ex p. Barnsley corporation*, [1947] 1 KB 634 (where the corporation having been ordered by Umpire to reinstate a former employee, applied for certiorari on the ground that it was made without jurisdiction as the person ordered to be reinstated was not its employee, the court held that Parliament had given the tribunal power to decide the jurisdictional fact also)

[4] *Md. Jamil Asghar v. Improvement Trust, Rawalpindi*, 17 DLR (SC) 520, Para 7

[5] AIR 1957 SC 521

[6] *Hubli Electricity Company v. State of Bombay*, AIR 1949 PC 136

undermines the doctrine of *ultra vires* on which the power of judicial review is firmly established. It is open to doubt whether under our constitutional dispensation the doctrine of enabling power is acceptable. It may be argued that in terms of art.7 no public functionary can exercise power unless the condition for such exercise is truly fulfilled and the functionary cannot be allowed to exercise the power by wrongly assuming that the requisite condition does exist. It is both the power and the duty of the High Court Division to examine and ensure that a public functionary has power to take certain action or proceeding. Application of the doctrine will mean that even though in the facts of a given case a public functionary cannot affect the right of a citizen, a public functionary may by wrong assumption of facts assume jurisdiction and affect the right of that citizen and thus the citizen will be treated otherwise than in accordance with law in violation of the guarantee provided by art.31. Furthermore, a provision for conclusive presumption as found in *Lilavati* will in most cases be unreasonable and therefore violative of the provision of art.31.

5.45 There is often difficulty in separating jurisdictional from non-jurisdictional fact. But the solution does not lie in allowing the administrative agency the power to determine conclusively the facts on which its jurisdiction depends and thereby make an inroad in the doctrine of *ultra vires*. In *Crowell v. Benson*[1] while dealing with an award made by the Compensation Commission, the American Supreme Court in permitting full review of the jurisdictional fact observed, "if the agency determination on this question were final, it would sap the judicial power as it exists under the Federal Constitution and ... establish Government of bureaucratic character alien to our system ...". However, the difficulties inherent in the jurisdictional fact doctrine evoked vigorous dissent by Brandeis J who asserted that under the relevant statute the agency's power to act was dependent on the finding that the claimant was an employee and the existence of an employment relationship was but one of many facts on which the administrative power to award compensation depended. According to him, application of the doctrine of jurisdictional fact would leave the agency powerless to hear and determine any issue of asserted non-liability under the statute in question. *Crowell* has not been subsequently followed, nor has been overruled and "it lingers in the limbo of apparently discredited but not

[1] 285 US 22

wholly deceased decisions."[1] This, however, has not freed the agency finding of jurisdictional fact from judicial review because of the substantial evidence rule[2] followed in the American jurisdiction. To avoid the difficulty inherent in the application of the jurisdictional fact rule our courts may adopt the American substantial evidence rule which will not be inconsistent with the scheme and objectives of our Constitution as the High Court Division will retain control over the jurisdictional fact though in a lesser degree.

5.46 *Failure to exercise jurisdiction:* Failure to exercise jurisdiction is an error going to the root of jurisdiction. The principle is well established that if a statutory tribunal fails to exercise jurisdiction vested in it by law, such a failure will be open to correction in exercise of the power of judicial review.[3] If in the exercise of jurisdiction a tribunal fails to decide a material issue which may affect the ultimate decision, it will be an error going to jurisdiction. The reviewing court may either remit the case to the tribunal or determine the matter itself if the relevant material is already there.[4]

5.47 *Other ways of stepping out of jurisdiction*: Apart from committing jurisdictional error by committing error of law or error of jurisdictional fact or by failing to exercise jurisdiction vested in it, an authority may step out of jurisdiction in various ways by not complying with the statutory procedures, or by violating the principles of natural justice or by acting in bad faith, dishonestly or for improper motive or purpose or by exercising the power on wrong grounds or by acting unreasonably, arbitrarily or capriciously. The authority may also act without lawful authority by taking into consideration extraneous or irrelevant circumstances or acting in disregard of public policy. All these cannot be conveniently grouped under one head, nor can they be in a clear-cut way treated as separate grounds. What is unreasonable may be said to have been done in bad faith or when relevant circumstances are left out of consideration, the action may be said to be unreasonable.

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[1] B.Schwartz - Administrative Law, p.635

[2] "The reviewing court may not weigh the evidence, substituting its judgment for that of the agency on the facts; but neither is it to rubber-stamp fact-findings simply because they are supported by a scintilla of evidence. Substantial evidence means something between the weight of the evidence and a mere scintilla." - Ibid, p.593

[3] *Khizar Hayat v. Zainab*, 19 DLR (SC) 372; *Hasina Begum v. East Pakistan*, 24 DLR 6

[4] *Abdul Jabbar v. Abdul Wahed*, PLD 1974 SC 331, 339

When an action is taken for a purpose not authorised by law the court treats the vitiating factor sometimes as a wrong ground, sometimes as an improper purpose and sometimes as a colourable exercise of power. Dealing with the validity of a condition of licence under the Cinematograph Act, 1909 banning children from cinema house on Sundays, Lord Greene made the following observation about overlapping grounds which has now become a classic statement -

> When discretion of this kind is granted the law recognises certain principles on which that discretion must be exercised, but within the four corners of those principles the discretion, in my opinion, is an absolute one, and cannot be questioned in any court of law. What then are those principles?
>
> Bad faith, dishonesty - those of course stand by themselves - unreasonableness, attention given to extraneous circumstances, disregard of public policy and things like that have all been referred to, according to the facts of individual cases, as being matters which are relevant to the question. If they cannot all be confined under one head, they at any rate overlap to a very great extent. For instance we have heard in this case a great deal about the meaning of the word 'unreasonable'.
>
> It is true that discretion must be exercised reasonably.[1] Now what does that mean? Lawyers familiar with the phraseology commonly used in relation to exercise of statutory discretion often use the word 'unreasonable' in a rather comprehensive sense. It has frequently been used and is frequently used as a general description of the things that must not be done. For instance, a person entrusted with a discretion must, so to speak, direct himself properly in law. He must call his attention to the matters which he is bound to consider. He must exclude from his consideration matters which are irrelevant to what he has to consider. If he does not obey those rules, he may truly be said , and often is said, to be acting 'unreasonably'. Similarly, there may be something so absurd that no sensible person could ever dream that it lay within the powers of the authority. Warrington L.J. in *Short v. Poole Corporation*[2] gave the example of the red-haired teacher, dismissed because she had red hair. That is unreasonable in one sense. In another it is taking into consideration extraneous matters. It is so unreasonable

[1] Lord Macnaghten's statement in *Westminster Corporation v. London & North Western Rly Co.*, [1905] AC 426, 430

[2] [1926] Ch. 26

that it might almost be described as being done in bad faith; and, in fact, all these things run into one another.[1]

5.48 *Procedural ultra vires:* An authority may go wrong in law for non-compliance of statutory procedures, breach of the principles of natural justice or acting contrary legitimate expectation. Statutes conferring power on public functionaries often impose conditions relating to procedure for exercise of the power, e.g. notice, hearing, time-limit etc, but rarely stipulate the consequence of non-compliance with such conditions. The question then arises whether non-fulfilment of the conditions renders the exercise of power a nullity. Answer to it depends on whether compliance with such conditions is mandatory or directory. Non-compliance of mandatory conditions is fatal to the validity of the action taken by a public functionary, while non-observance of directory conditions does not affect the validity of the action.

5.49 It is, however, difficult to make a clear-cut distinction between the two types of conditions. Where a condition is imposed as a procedural safeguard for the benefit of the person sought to be affected by the exercise of the power, such a condition is normally held to be mandatory.[2] Thus where there is a statutory duty to consult persons to be affected, this must be generally done and reasonable opportunity for comments has to be given.[3] A demand for a payment is void if it is signed by a borough treasurer where the law requires it to be signed by the town clerk.[4] In *Howard v. Bodington*[5] a Bishop received a complaint

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[1] *Associated Provincial Picture House Ltd. v. Wednesbury Corporation*, [1948] 1 KB 223; see also Para 5.12

[2] *State v. Zahir*, 45 DLR (AD) 163 (non-supply of statement of witnesses recorded under s.161 of the Code of Criminal Procedure to the accused); *Abdul Quddus v. M.S. Khan*, 13 DLR 213 (misjoinder of charges); *Emdadul Haque v. Bangladesh*, 42 DLR 110 (suspension of chairman of Upazila Parishad without holding enquiry mandated by law set aside; *Virendra Kumar v. India*, AIR 1981 SC 947 (order of termination of service on ground of health was set aside for failure of non-compliance with procedural rules); *Eastern Beverage Ind. Ltd. v. Bangladesh*, 47 DLR 32 (Notification levying capacity tax held void for failure to specify "guiding principles".

[3] *Grunwick Processing Lab. v. ACAS*, [1978] AC 227; *Agricultural Training Bd. v. Aylesbury Mushroom*, [1972] 1 WLR 190; *Re Union of Benefices of Whippingham*, [1954] AC 245; *Port Luis Corp. v. A.G. of Mauritius*, [1965] AC 1111; *Banwarilal v. Bihar*, AIR 1961 SC 849; *Kalipada v. India*, AIR 1963 SC 134

[4] *Graddage v. Harringey London Borough Council*, [1975] 1 WLR 241

[5] [1877] 2 PD 203

against a clergyman but failed to send him a copy of it within the statutory time and as such the subsequent proceeding was held void.[1] Where exercise of power affects private rights entailing penal consequences, strict compliance with the statutory requirement is normally demanded.[2]

5.50 In the same statute or in the same set of provisions some provisions may be mandatory while others may be directory. The Education Act, 1944 in England provided for notice by the local authority with the object of giving an opportunity of objections to be made by the people of the locality to the Minister before he confirms a scheme of the local authority and the Minister cannot confirm the scheme until the statutory procedure is complied with. The court observed -

> ... it is imperative that the procedure laid down in the relevant statutes should be properly observed. The provisions of the statutes in this respect are supposed to provide safeguards for Her Majesty's subjects. Public Bodies and Ministers must be compelled to observe the law; and it is essential that bureaucracy should be kept in its place.[3]

This Act also required the specifications of schools to be approved by the Minister. The local authority proceeded with the scheme without the approval of the Minister, but in the absence of objection by the Minister, the court held the requirement to be directory. The Co-operative Societies Ordinance, 1984 requires that the election of the Managing Committee shall be held before the expiry of two years' term in the manner as may be prescribed by the rules. Rules were not framed, but as the term was going to expire election was held by a co-operative society. The Registrar issued a memorandum treating the election void as no rules were framed till then. The court held the requirement of holding the election within stipulated time mandatory as the object of

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[1] *Shrinivasa Reddy v. Mysore*, AIR 1960 SC 350 (statute requiring that application for stage carriage permit shall be made not less than six months before the date on which it was desired that the permit shall take effect, it would be wrong to grant a permit on application made during a period shorter than the prescribed time); but see *Belayet Hossain v. Bangladesh*, 6 BLC (AD) 60 (Where short notice was not fatal as it caused no prejudice)

[2] *Agricultural Ind. Training Bd. v. Kent*, [1970] 2 QB 19; *London & Clydeside Estates Ltd. v. Aberdeen DC*, [1980] 1 WLR 182; *Bangadesh v. Amela Khatun*, 53 DLR (AD) 55

[3] *Bradbury v. Enfield LBC*, [1967] 1 WLR 1311

the statute would otherwise be defeated and treated the requirement of holding the election in the manner prescribed by rules directory.[1] Where the requirements are less substantial and more like matters of mere formality, these are treated as directory.[2]

5.51 *Principles of natural justice:* Procedural safeguards are essential elements of rule of law. According to Jackson J of the American Supreme Court, even severe substantive laws can be endured if they are fairly and impartially applied; it may be preferable to live under Russian law applied by common law procedures than under the common law enforced by Russian procedures.[3] The principles of natural justice are applied to administrative process to ensure procedural fairness and to free it from arbitrariness. Violation of these principles results in jurisdictional error. Thus in a sense violation of these principles constitutes procedural *ultra vires*. It is, however, impossible to give an exact connotation of these principles as its contents are flexible and variable depending on the circumstances of each case, i.e., the nature of the function of the public functionary, the rules under which he has to act and the subject-matter he has to deal with.[4] These principles are classified into two categories - (i) a man cannot be condemned unheard (*audi alteram partem*) and (ii) a man cannot be the judge in his own cause (*nemo debet esse judex in propria causa*). The contents of these principles vary with the varying circumstances and it "cannot be petrified or fitted into rigid moulds. They are flexible and turn on the facts and circumstances of each case".[5] It must depend on the circumstances of the case, the nature of the inquiry, the rules under which the authority is acting and the subject matter that is being dealt with.[6] In applying these principles, there is a need to balance the competing interests of administrative justice and the exigencies of

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[1] *Abdul Jabbar Fakir v. Registrar of Co-operative societies*, 1986 BLD 145

[2] *R. v. Board of visitors of Dartmoor Prison ex p. Smith*, [1987] QB 106 (requirement of prison rules that a charge against a prisoner should be laid 'as soon as possible'); *James v. Minister of Housing and Local Government*, [1966] 1 WLR 135 (requirement of local planning authority giving notice of its decision within two months); *U.P. v. Srivastava*, AIR 1957 SC 912

[3] *Shaughnessy v. U.S.*, 345 US 206

[4] *Russell v. Duke of Norfolk*, [1949] 1 All E.R.109; *India v. P.K. Roy*, AIR 1968 SC 850, 858

[5] *Shrikrisna Tikara v. M.P.*, AIR 1977 SC 1691, Para 8;

[6] *Russel v. Duke of Norfolk*, [1949] 1 All E.R. 109, 118

efficient administration.[1] These principles were applied originally to courts of justice and now extend to any person or body deciding issues affecting the rights or interests of individuals where a reasonable citizen would have legitimate expectation that the decision-making process would be subject to some rules of fair procedure.[2] These rules apply even though there may be no positive words in the statute requiring application of these rules.[3] Lord Atkin in *R. v. Electricity Commissioners*[4] observed that the rules of natural justice applied to 'any body of persons having legal authority to determine questions affecting the rights of subjects, and having the duty to act judicially'. The expression 'having duty to act judicially' was used in England to limit the application of the rules to decision-making bodies similar in nature to a court of law. Lord Reid, however, freed these rules from the bondage in the land-mark case of *Ridge v. Baldwin*[5]. But even before

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[1] *Helaluddin v. Bangladesh*, 45 DLR (AD) 1 (where the decision of a proceeding is subject to review and the aggrieved party was given hearing in the main proceeding, fresh hearing at the time of review need not be given); *The Chairman, Board of Mining Examination v. Ramjee*, AIR 1977 SC 965 (An accident in coal-mine resulted in an injury. In the inquiry held by the Regional Inspector in which the shot firer admitted that he allowed an unauthorised person to do the risky job. On the recommendation of the Regional Inspector the Board cancelled the certificate of the shot firer. As the Board did not give notice and hearing to the shot firer, plea of violation of natural justice was accepted by the High Court. In reversing the decision of the High Court, the Supreme Court observed, "Natural justice is no unruly horse, no lurking land mine, nor a judicial cure-all. If fairness is shown by the decision-maker to the man proceeded against, the form, features and the fundamentals of such essential processual propriety being conditioned by the facts and circumstances of each situation, no breach of natural justice can be complained of."); see also *Board of Intermediate & Secondary Edn. v. Rumana Ahmed*, 1992 BLD (AD) 160 (Having regard to the relationship of student and education authority, absence of allegation of malice and the nature of misconduct in the examination, the court did not insist on full-fledged opportunity of hearing)

[2] S.A. de Smith - Constitutional and Administrative Law, 4th ed. p.569; Wade & Bradley - Constitutional and Administrative Law, 10th ed., p.644; *Ridge v. Baldwin*, [1964] AC 40; *University of Dacca v. Zakir Ahmed*, 16 DLR (SC) 722 *Faridsons Ltd. v. Pakistan*, 13 DLR (SC) 233; *East Pakistan v. Nur Ahmed*, 16 DLR (SC) 375; *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209; *Kraipak v. India*, AIR 1970 SC 150.

[3] *C.I.T. v. Fazlur Rahman*, 16 DLR (SC) 506; *Abdur Rahman v. Collector and Deputy Commissioner*, 16 DLR (SC) 470; *H.M. Ershad v. Bangladesh*, 2001 BLD (AD) 69; *Regard Chemical Works v. NBR*, 2001 BLD 342;

[4] [1924] 1 KB 171, 205

[5] [1964] AC 40

this decision the rules of natural justice were being applied in our country to administrative proceedings which might affect the person, property or other rights of the parties concerned in the dispute.[1] In all proceedings by whomsoever held, whether judicial or administrative, the principles of natural justice have to be observed if the proceedings might result in consequences affecting the person or property or other right of the parties concerned.[2] These principles have no application in the case of legislative functions.[3] But because of proliferation of delegated legislation the distinction between legislative and administrative functions is fast eroding. Even then the distinction has to be kept in mind for application of the principles of natural justice and the Indian Supreme Court laid down the following test -

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[1] *Faridsons Ltd. v. Pakistan*, 13 DLR (SC) 233 ("Even if therefore the proceedings before the Chief Controller were neither strictly judicial, nor even *quasi*-judicial in character the principle of natural justice ... could be called in aid by the appellants." - p.248

[2] *University of Dacca v. Zakir Ahmed*, 16 DLR (SC) 722 (student's discipline); *Sk. Ali Ahmed v. Secretary, Ministry of Home Affairs*, 40 DLR (AD) 170 (cancellation of gun licence); *Habibullah Khan v. S. Azharuddin*, 35 DLR (AD) 72 (awarding of cost against a stranger to the proceeding); *Hamidul Haq Chowdhury v. Bangladesh*, 33 DLR 381 (taking over of printing establishment); *Farzana Haque v. Dhaka University*, 42 DLR 262; *Basharatullah v. Comptroller and Auditor General*, 21 DLR 526 (unfairness in departmental examination); *Manish Dixit v. Rajasthan*, AIR 2001 SC 93 (Castigating remarks made in judgment against police witness ensuing serious consequence on his future career); *Raghupati v. Bihar*, AIR 1989 SC 620; *Southern Painters v. F & CT Ltd*, AIR 1994 SC 1277 (black-listing of contractor). But see *State v. Joynal Abedin*, 32 DLR (AD) 110, where even though the exercise of the power of transfer of a case deprived the accused of the right of appeal, R. Islam J speaking for the majority held, "Since the power of the Government to transfer a case is neither judicial nor quasi-judicial, the question of contravention of the principle of natural justice does not arise." The observation does not square with the consistent view of the courts of this sub-continent.

[3] Fixation of price under statutory provision is legislative function, *India v. Cynamide India Ltd*, AIR 1987 SC 1802; *U.P. v. Renusagar Power Co.*, AIR 1988 SC 1737; *Bi-Metallic Co. v. Colorado*, 239 US 441 (State Board of Equalization increased the value of all taxable property in Denver without giving opportunity of hearing to tax-payers. The court rejected the due process challenge holding the action to be a legislative act). Contrast the case with *Londoner v. Denver*, 210 US 373 (Tax authorities in Denver ordered paving of a street and assessed the cost upon the abutting landowners. The court required due process hearing.); *Vishakhapatnam Port Trust v. Ram Bahadur*, AIR 1997 SC 1057 (Modification or cancellation of rates in public interest may in certain circumstances require the authority to consider representations of the parties to be affected.)

> Legislation is the process of formulating general rule of conduct without reference to particular cases and usually operating in future; administration is the process of performing particular acts of issuing particular orders or of making decision which apply general rules to particular cases.[1]

5.52 In England, the application of the principles of natural justice have been expanded by introducing the concept of 'fairness'. In *Re Infant H(K)*[2] it was held that whether the function discharged is quasi-judicial or administrative, the authority must act fairly. It is sometimes thought that the concept of 'acting fairly' and 'natural justice' are different things, but this is wrong as Lord Scarman correctly observed that the courts have extended the requirement of natural justice, namely, the duty to act fairly, so that it is required of a purely administrative act.[3] Speaking about the concept, Professor Wade commented, "The 'acting fairly' doctrine has at least proved useful as a device for evading some of the previous confusion. The courts now have two strings to their bow. An administrative act may be held to be subject to the requirements of natural justice either because it affects rights or interests and therefore involves a duty to act judicially, in accordance with the classic authorities and *Ridge v. Baldwin*; or it may simply be held that, 'in our modern approach', it automatically involves a duty to act fairly and in accordance with natural justice, without any of the analysis which has been made into such an unnecessary obstacle."[4] The Indian Supreme

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[1] *India v. Cynamide India Ltd.*, AIR 1987 SC 1802

[2] [1967] 1 All E.R. 226; *R. v. Hull Prison Board of Visitors*, [1979] 1 All E.R. 701 (The Board of Visitors is required to act fairly while enforcing discipline in prison); *R. v. Commission for Racial Equality ex p. Hillingdon LBC*, [1982] AC 779 ("Where an Act of Parliament confers upon an administrative body functions which involve its making decisions which affect to their detriment the rights of other persons or curtail their liberty to do so as they please, there is a presumption that Parliament intended that the administrative body should act fairly towards those persons who will be affected by their decisions." - per Lord Diplock)

[3] *Council of Civil Service Union v. Minister for the Civil Service*, [1984] 3 All E.R. 935, 948; see also Wade - Administrative Law, 7th ed. p.515 (But it is now clearly settled, as is indeed self-evident, that there is no difference between natural justice and 'acting fairly', but that they are alternative names for a single but flexible doctrine whose content may vary according to the nature of the power and the circumstances of the case.)

[4] Administrative Law, 6th ed., p.525; P.P. Craig correctly perceived the judicial attitude when he commented, "The term natural justice is used for that part of the spectrum which requires a relatively wide range of procedural checks, while fairness is

Court adopted this principle holding "... this rule of fair play must not be jettisoned save in very exceptional circumstances where compulsive necessity so demands."[1] The English courts further expanded the horizon of natural justice by importing the concept of 'legitimate expectation' and holding that from promise or from established practice a duty to act fairly and thus to comply with natural justice may arise.[2] Thus the concepts of 'fairness' and 'legitimate expectation' have expanded the applicability of natural justice beyond the sphere of right. Not only in the case of cancellation of licence which involves denial of a right[3], but also in the case of first time grant of licence and renewal of licence the principle of natural justice is attracted in a limited way in consideration of legitimate expectation.[4] An applicant for registration as a citizen, though devoid of any legal right, is entitled to a fair hearing and an opportunity to controvert any allegation against him.[5] An alien seeking a visa has no entitlement to one, but "once he has the necessary documents, he does have the type of entitlement that should now be protected by due process, and the government should not have the power to exclude him summarily."[6] In *Chingleput Bottlers v. Majestic Bottlers*[7] the Indian Supreme Court made certain observations which create an impression that the rules of natural justice is not applicable where it is a matter of privilege and no right or legitimate expectation is involved. But the application of the rules of natural justice is no longer tied to the

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used in those areas either where the nature of the decision-maker renders the term natural justice inappropriate or the set of safeguards tends towards the lower end of the spectrum." - Administrative Law, 3rd ed., p.209; Foulkes, however comments, "A caveat against the use of fairness as a substitute for natural justice must be entered; first fairness can be achieved other than through (the equivalent of) the rules of natural justice (for example through estoppel or the rule against retrospectivity); and second, 'fairness' may suggest that the courts are concerned with the fairness of the *merits* of a decision rather than with the *procedure* by which it is arrived at." – Administrative Law, 8th ed., p.287

[1] *Swadeshi Cotton Mills v. India*, AIR 1981 SC 818, 832

[2] See para 5.63A - 5.63C

[3] *Sk. Ali Ahmed v. Secretary, Ministry of Home Affairs*, 40 DLR (AD) 170; *Bangladesh Telecom Ltd v. BTTB*, 48 DLR (AD) 20

[4] H.W.R. Wade - Administrative Law, 6th ed, p.521, 559; *Fazlul Karim Selim v. Bangladesh*, 33 DLR 406 (A District Magistrate before refusing to authenticate the declaration of a newspaper should give a hearing to the person making the declaration)

[5] *A.G. v. Ryan*, [1980] AC 718

[6] Schwartz - Administrative Law, 1976, p.230

[7] AIR 1984 SC 1030; see also *Nurul Islam v. Bangladesh*, 46 DLR 46

dichotomy of right-privilege. "For the purpose of natural justice the question which matters is not whether the claimant has some legal right, but whether the legal power is being exercised over him to his disadvantage. It is not a matter of property or of vested interests, but simply of the exercise of governmental power in a manner which is fair ..."[1] In the American jurisdiction the right-privilege dichotomy was used to deny due process hearing where no right was involved. But starting with *Gonzalez v. Freeman*[2] the courts gradually shifted in favour of the privilege cases and in the words of Professor Schwartz, "The privilege-right dichotomy is in the process of being completely eroded".[3] Art.31 incorporating the concept of procedural due process, the English decisions expanding the frontier of natural justice are fully applicable in Bangladesh.

5.53 In English law the rules of natural justice perform a function, within a limited field, similar to the concept of procedural due process as it exists in the American jurisdiction.[4] Following the English decisions, the courts of this sub-continent held that the principles of natural justice should be deemed incorporated in every statute unless it is excluded expressly or by necessary implication by any statute.[5] The 'due process' clause of the American Constitution in its procedural aspect requires an impartial tribunal[6] and notice and opportunity to be heard[7] and thus the rules of natural justice enjoy the constitutional sanctity and the legislature does not possess the authority to relieve the administration from the demands of natural justice in the American jurisdiction. Art.31 of the Constitution provides for due process in the sense it is used in the American jurisdiction and thus a law passed by

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[1] H.W.R. Wade - Administrative Law, 5th ed., p.465. In the 6th edition Professor Wade cited some decisions and commented "In none of these cases is there either legal right or interest or promise or established practice. 'Legitimate expectation', which means reasonable expectation, can equally well be invoked in any of the many situations where fairness and good administration justify the right to be heard" - p.522

[2] 334 F.2d 570; *Goldberg v. Kelly*, 397 US 254

[3] Administrative Law, 1976, p.230; *Shapiro v. Thomspon*, 394 US 618, 627 (The constitutional issue is not really answered by the argument that the benefit is only a "privilege" and not a "right")

[4] S.A. de Smith - Judicial Review of Administrative Action, 4th ed., p.156

[5] *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209; *Faridsons Ltd v. Pakistan*, 13 DLR (SC) 233; *Swadeshi Cotton Mills v. India*, AIR 1981 SC 818

[6] *Jordan v. Massachusetts*, 225 US 167, 176; *Withrow v. Larkin*, 421 US 35, 46

[7] *Joint Anti-Fascist Refugee Committee v. McGrath*, 341 US 123, 178

Parliament must be reasonable and must shun arbitrariness. It is doubtful if in the absence of a clear and emergent governmental interest arising out of its subject-matter, a law excluding the operation of these principles can pass the due process test of art.31. In case of an emergency, the principles of natural justice can be complied with in certain circumstances after the action is taken.[1] Hence there will rarely be a case of extreme necessity where the application of these principles can be totally excluded.[2] Such a case may arise where a man has to be detained immediately to ensure the security of the State and the facts may be such that the grounds of detention cannot be disclosed without jeopardising the security of the State.[3] The proviso to art.33(5) makes such a provision stating, "the authority making any such order may refuse to disclose facts which such authority considers to be against the public interest."

5.54 *Fair procedure:* The basic principle of fair procedure is that before taking any action against a man the authority should give him notice of the case and afford him fair opportunity to answer the case against him and to put his own case.[4] The person sought to be affected must know the allegation and the materials to be used against him and

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[1] *Bangladesh v. Ghulam Azam*, 46 DLR (AD) 192; *Abul A'la Mouddodi v. West Pakistan*, 17 DLR (SC) 209; *Manneka Gandhi v. India*, AIR 1978 SC 597

[2] *Karnataka P.S.C. v. Vijaya Shanker*, AIR 1992 SC 952 (PSC refused to evaluate a paper of a candidate for writing his roll number inside the answer paper in violation of instruction. The Supreme Court observed that competitive examinations are required to be held in strict secrecy and public interest requires no compromise and absence of expectation coupled with the necessity of avoiding delay in declaring list of successful candidates creates an exception to the rules of natural justice.)

[3] *R. v. Home Secretary ex p. Hosenball*, [1977] 1 WLR 766 (in a case of deportation hearing was not totally denied, but some of the facts on which decision was taken were not disclosed on ground of national security)

[4] S.A. de Smith - Constitutional and Administrative Law, 4th ed. p.572; *Sk. Ali Ahmed v. Secretary, Ministry of Home Affairs*, 40 DLR (AD) 170; *Bangladesh Telecom Ltd. v. BTTB*, 48 DLR (AD) 20 (Facts which constitute the valid basis of cancellation have to be alleged in the show cause notice and cannot be supplemented in affidavit filed in the proceeding challenging the action.); *Tariq Transport v. Sargoda Bus Service*, 11 DLR (SC) 140; *Chief Commr. Karachi v. Dina Sohrab*, 11 DLR (SC) 113; *Faridsons Ltd. v. Pakistan*, 13 DLR (SC) 223; *Abdul Latif v. West Pakistan*, 14 DLR (SC) 300; *Abdur Rahman v. Collector*, 16 DLR (SC) 470; *C.I.T. v. Fazlur Rahman*, 16 DLR (SC) 506; *University of Dacca v. Zakir Ahmed*, 16 DLR (SC) 722; *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209; *Abdus Sabur Khan v. Karachi University*, 18 DLR (SC) 422

he must be given a fair opportunity to correct or contradict them.[1] The right to a fair hearing is now of universal application whenever a decision affecting the rights or interest of a man is made. But such a notice is not required where the action does not affect the complaining party.[2]

5.55 Hence a notice is considered to be the minimum obligatory condition.[3] Where a statute requires notice to be given before taking any action, service of notice to the party concerned is mandatory and failure to comply with the requirement renders the action *ultra vires*. Even when a statute is silent, notice has to be given if any person is sought to be affected in his right, interest, property or character.[4] When the statute requires service of notice the authority cannot absolve itself of this duty[5] even if the person going to be affected has *suo motu* filed a representation to the authority.[6] But where the statute does not require service of notice and the person sought to be affected has already filed a representation, the question would arise whether that man has really been prejudiced by the non-service of notice as the essence of the principle is fairness.[7] Failure to issue notice may not be fatal where the person complaining was aware of the proceeding and did not take step to

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[1] *Kanda v. Government of Malaya*, [1962] AC 322; *Chief Constable of the North Wales Police v. Evans*, [1982] 3 All E.R. 141 (The police authority required a police probationer to resign on account of allegation about his private life, but the authority neither informed the police probationer the allegations on which he based his decision, nor did he offer him an opportunity to give explanation and the court found violation of the rules of natural justice)

[2] *Bangladesh Anjuman-E-Ahmedia v. Bangladesh*, 45 DLR 185; *Shamsunnahar Begum v. Bd. of Intermediate and Secondary Edn.*, 1988 BLD 8

[3] *Sk. Ali Ahmed v. Secy. Ministry of Home*, 40 DLR (AD) 170; *Syed Ali v. Nishan Singh*, 19 DLR (SC) 278; *East India Commercial Co. v. Collector of Customs*, AIR 1962 SC 1893; *Municipal Board v. State Transport Authority*, AIR 1965 SC 458

[4] *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209; *Maneka Gandhi v. India*. AIR 1978 SC 597; *Abdur Rouf v. Ministry of LGRD*, 43 DLR 33 (Chief Election Commissioner's order for recounting without giving opportunity to the candidate securing highest number of votes an opportunity of hearing is void); *Rahima Food Corp v. Deputy Collector of Customs*, 49 DLR 510 (Demand for the amount short-levied without giving notice to show cause is illegal); *HFDM De Silva v. Bangladesh*, 2 BLC 179 (Black-listing the petitioner and passing order for his deportation, ought to have been given opportunity of hearing)

[5] *Jobon Nahar v. Bangladesh*, 49 DLR 108

[6] *CATA Sales Society v. A.P.*, AIR 1977 SC 2313

[7] *Fazal Bhai v. Custodian General*, AIR 1961 SC 1397

file his objection.[1] There may also be exceptional situations when the court may ignore the non-service of notice, as happened in *U.P. Singh v. Board of Governors*[2] where some students were guilty of gross violence against other students which called for immediate action as it created tension in the area, but notice could not be served in spite of the best efforts of the authority as they had absconded. No notice need be given for termination of the appointment of a Government Pleader who held office at the pleasure of the government and no misconduct is alleged in terminating the appointment.[3]

5.55A Sometimes it is argued that the case against a man is of such incontrovertible nature that it would have made no difference and the same conclusion would have to be reached even if notice and hearing would be given. But the contention is not correct. It is important that the procedure and the merits are kept strictly apart. "If the principles of natural justice are violated in respect of any decision it is, indeed, immaterial whether the same decision would have been arrived at in the absence of the departure from the essential principles of justice. The decision must be declared to be no decision."[4]

5.56 Notice is not a technical requirement or an idle formality.[5] In order to be a valid notice it must be properly served on the person concerned giving him reasonable time[6] to show cause against the proposed action. The notice must not be vague or in bare language merely repeating the language of the statute[7]; it must be a meaningful

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[1] *Abdur Rahman v. Sultan*, 35 DLR (AD) 51 (Where the person complaining knew of holding of local investigation by Advocate Commissioner, but did not take step to file any objection against the report)

[2] AIR 1982 M.P. 59; *Prof. Dr. Md. Yusuf Ali v. Chancellor, Rajshahi University*, 1998 BLD 1 (show cause notice not considered essential); but see *Chittagong Medical College v. Shahryar Murshed*, 48 DLR (AD) 33 (where authority could wait for some time for normalcy to return, failure to give notice was held fatal)

[3] *Kazi Mukhlesur Rahman v. Secretary, Ministry of Law*, 49 DLR 129; *Kazi Abdul Wahab v. Bangladesh*, 31 DLR 332

[4] *General Medical Council v. Spackman*, [1943] AC 627, 644; *R. v. Secretary of State ex p. Brent*, [1982] 2 WLR 693; *John v. Rees*, [1970] Ch 345; *Union Carbide Corp. v. India*, AIR 1992 SC 248, 299 (in the peculiar facts of the case the court refused to set aside the court-assisted settlement without a hearing).

[5] *Bangladesh Telecom Ltd. V. BTTB*, 48 DLR (AD) 20; *Bangladesh v. Tajul Islam*, 49 DLR (AD) 177

[6] *R. v. Thames Magistrates' court ex p. Polemis*, [1974] 2 All E.R. 1219

[7] *Amaresh Chandra v. Bangladesh*, 31 DLR (AD) 240 *Nasir Ahmed v. Assistant*

one[1] and of such detail as would give the person concerned a fair idea of the case or allegation against him so that he has an opportunity of giving a meaningful reply.[2] Where fraud is alleged, the particulars of fraud are to be stated in the notice.[3] There is no fixed standard as to the adequacy of the notice and it will vary from case to case. The test is whether in a given case the person concerned has been prejudiced in presenting his case and the court will inquire whether the person had a fair chance of controverting the allegations against him.[4] Thus, if the notice does not mention the date, time and location of the incident[5], or mentions the charge without mentioning the proposed action[6], or does not mention the grounds or part of the real grounds of the proposed action[7], or mentions one ground but action is taken on some other ground[8] or additional grounds[9], or if the notice mentions several grounds without specifying the particular ground on which action is sought to be taken[10], the notice suffers from vagueness. Again, if one action is proposed in the notice and a different action is taken, the principle of natural justice is violated.[11] *In N.S. Transport v. Punjab*[12] a company

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Custodian, AIR 1980 SC 1157; *Bangladesh v. Tajul Islam*, 49 DLR (AD) 177

[1] *Bangladesh Telecom Ltd. v. BTTB*, 48 DLR (AD) 20 (Alleged show cause notice contained allegations which could not be the basis of cancellation of licence); *U.P. v. Maharaja Dharmendra*, AIR 1989 SC 997, 1010 (Show cause notice was held invalid where it "is an impalpable congeries of suspicions and fears, of relevant or irrelevant matter and has included some trivia.")

[2] *Charan Das v. Asstt. Collector of Customs*, AIR 1968 Cal 28 (the grounds given in the notice should be clear, specific and unambiguous);

[3] *U.P. v. Salig Ram Sharma*, AIR 1960 All 543

[4] *State Bank of Patiala v. Sharma*, AIR 1996 SC 1669 (A distinction has to be made between "no opportunity" and "no adequate opportunity" and in the latter case a decision will not be vitiated if no prejudice is caused)

[5] *U.P. v. Mohd. Sharif*, AIR 1982 SC 937

[6] *Abdul Latif v. Commissioner*, AIR 1968 All 44

[7] *North Bihar Agency v. Bihar*, AIR 1981 SC 1758; *Maradona Mosque (Board of Trustees) v. B. Mahmud*, [1966] 1 All E.R. 545

[8] *Joseph Vilanagandan v. Executive Engineer (PWD)*, AIR 1978 SC 930; *Sabey (H) & Co. v. Secretary of State* , [1978] 1 All E.R. 586 (in a public inquiry a ground which had important bearing on Secretary's decision was not brought to the notice of the party which had no opportunity of controverting it)

[9] *Nasir Ahmed v. Assistant Custodian*, AIR 1980 SC 1157

[10] *Sinha Gavindji v. Deputy Chief Controller of Imports*, (1962) 1 SCJ 93

[11] *Bangladesh Telecom Ltd. v. BTTB*, 48 DLR (AD) 20

[12] AIR 1976 SC 57

had several stage carriage permits for various routes. The authority on receipt of complaint issued a notice to show cause why action to cancel or suspend the permits should not be taken. The court found the notice to be bad as the proposed action had to be particularised with reference to each of the permits detailing particular conditions for breach of which action was sought to be taken in connection with each of the permits. A bald notice covering all the permits could not be issued.

5.57 The statutory provisions may prescribe the form in which the notice is to be issued and ordinarily this form has to be complied with by the authority. But minor deficiencies and technical irregularities will be ignored by the court.[1] In one case, the statute required the issuance of notice mentioning the date, time and place of hearing, but the notice did not mention the place of hearing. The court held that this did not invalidate the proceeding as the party concerned was not a stranger to the place of office of the tribunal.[2]

5.58 The rule requires giving of an opportunity of hearing and it will normally mean an oral hearing[3], but sometimes the requirement is satisfied if the person concerned is given the opportunity of making a written representation and the representation is considered. It is not always necessary that oral hearing has to be given, and a hearing can fairly be concluded by written representation.[4] Where, however, complicated or technical question or controversial issues of fact are involved oral hearing may be necessary and the court will insist on such oral hearing.[5]

5.59 A hearing to be fair must fulfil some conditions: the authority should (i) receive all relevant material which the person concerned produces, (ii) disclose all information, evidence or materials which the authority wants to use against the person in arriving at his decision and (iii) afford opportunity to the man to controvert the information or

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[1] *Orissa v. Chakobhai*, AIR 1961 SC 284

[2] *Ikram Khan v. S.T.A. Tribunal*, AIR 1976 SC 2333

[3] *R. v. Immigration Tribunal ex p. Mehmet*, [1977] 2 All E.R. 602 (tribunal's decision quashed for failure to give oral hearing)

[4] *Local Government Board v. Arlidge*, [1915] AC 120; *Jeff v. New Zealand Dairy Production and Marketing Board*, [1966] 3 All E.R. 863, 870; *Lloyd v. McMohan*, [1987] 1 All E.R. 1118; *Kapur Singh v. India*, AIR 1960 SC 493; *F.N. Roy v. Collector of Customs*, AIR 1957 SC 648

[5] *Travancore Rayons v. India*, AIR 1971 SC 862 (whether a particular goods fall within the list of excisable items); *Dewan Singh v. Haryana*, AIR 1976 SC 1921

material sought to be used against him. The adjudicating authority must give the person concerned the opportunity to produce all relevant evidence in support of his case.[1] When an employee is sought to be punished on a charge of misconduct examination of witnesses in support of the charge should be in the presence of the employee and the employee should be given the opportunity of cross examining the witnesses.[2] However, having regard to the relationship between a student and the education authority, the court did not require examination of witness in presence of the student charged with misconduct in examination when notice to show cause was given and no malice was alleged against the authority.[3] The authority is entitled to proceed exparte if the person concerned fails to appear after getting the notice,[4] but the authority would violate the principle of natural justice if he refuses to hear a person who could not appear in the first hearing, but appeared subsequently during the course of hearing.[5] Natural justice will also be violated if adjournment is not allowed where the party affected is unable to appear for unavoidable reason or where it is necessary in the interest of justice.[6]

5.60 An adjudicatory body has to decide a matter on the basis of materials placed before it in the course of the proceedings. It is a fundamental principle of natural justice that no material should be relied on against a party without giving him an opportunity to controvert or explain that material. Accordingly, non-disclosure of such material to

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[1] *Abdur Rahman v. Collector & Dy. Commr.*, 16 DLR (SC) 470 (refusal to examine witness sought to be produced by the Chairman of Union Committee in a proceeding for his removal on the ground of misconduct); *Dhakeswari Cotton Mills Ltd. v. C.I.T.*, AIR 1955 SC 65 (the income tax authority violated the principle of natural justice by refusing to look into account books which the assessee did not have opportunity of producing earlier due to reasons beyond his control)

[2] *M.A. Hai v. T.C.B.*, 32 DLR (AD) 46

[3] *Masum Iqbal v. BUET*, 1997 BLD 7; *Board of Intermediate & Secondary Edn v. Rumana Ahmed*, 1992 BLD (AD) 160

[4] *Roshan Lal v. Ishwar Das*, AIR 1962 SC 646; *Shahdoodul Haque v. Registrar, Co-operative Societies, Bihar*, AIR 1974 SC 1896

[5] *Sangram Singh v. Election Tribunal*, AIR 1955 SC 425

[6] *Priddle v. Fisher & Sons*, [1968] 3 All E.R. 506; *Rose v. Humble*, [1972] 1 All E.R. 314; *Hanson v. Church Commissioners for England*, [1977] 3 All E.R. 403; *Md. Farooq Imam v. Claims Commissioner*, 16 DLR (SC) 648 (where a party remained absent on account of misapprehension about date of hearing and exparte order was passed, the court quashed the order and remanded the case)

the party to be affected is fatal to the validity of the proceedings[1] except when full disclosure may injure the individual affected[2] or the public interest[3]. The Indian Supreme Court considered it to be an infringement of natural justice when the Income Tax Tribunal decided on the confidential report of a departmental representative unknown to the assessee.[4] But if the gist of the documents against the party affected has been brought to his notice, non-supply of copy of it may not violate natural justice.[5]

5.61 Hearing is to be given by the authority taking the decision.A hearing during on-the-spot inquiry by another authority will not be a sufficient compliance with the principle of natural justice.[6] Where before initiating an action, a preliminary inquiry is made the question arises as to the disclosure of the preliminary inquiry report. Generally, the inquiry report has to be supplied to the party proceeded against.[7] The requirement of natural justice may, however, be satisfied if the substance of the report is supplied.[8] Non-supply of such report will not be material if the inquiry officer in the formal inquiry does not rely on it.[9] The whole question has been aptly dealt with by Lord Loreburne -

> ... they must act in good faith and fairly listen to both sides, for that is a

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[1] *Kanda v. Government of Malaya*, [1962] AC 322 (the adjudicating officer in possession of a report of the board of inquiry not making it available to the accused police officer); *Shareef v. Commissioner for Registration of Indian and Pakistani Residents*, [1966] AC 47; *M.P. v. Chintamon*, AIR 1961 SC 1623; *Orissa v. Binapani*, AIR 1967 SC 1269; *North Bihar Agency v. Bihar*, AIR 1981 SC 1758; *Bishambhar Nath v. U.P.*, AIR 1966 SC 573

[2] *R. v. Kent Police Authority ex p. Godden*, [1971] 2 QB 662 (distressing medical report withheld from the individual, but disclosed to his medical adviser); *Re WLW*, [1972] 1 Ch. 456 (psychiatric reports held back in a case where an infant would suffer, if disclosed)

[3] *R. v. Home Secretary ex p. Hosenball*, [1977] 1 WLR 766

[4] *Dhakeswari Cotton Mills Ltd v. C.I.T.* AIR 1955 SC 65; *Brajlal Manilal v. India*, AIR 1964 SC 1643; *Krishna Chandra v. India*, AIR 1974 SC 1589 (in a disciplinary proceeding the inquiry officer made a private inquiry about property of the accused officer)

[5] *City Corner v. P.A. to Collector*, AIR 1976 SC 143

[6] *Bangladesh v. Commercial Trust of Bangladesh Ltd*, 46 DLR (AD) 89. See, however, *Helaluddin v. Bangladesh*, 45 DLR (AD) 1

[7] *Borhanuzzaman v. Ataur Rahman*, 46 DLR (AD) 94; *Mostafa Mia v. Labour Court*, 46 DLR 373; *Torab Ali v. BTMC*, 41 DLR 138

[8] *Radhakrishnan v. Tamil Nadu*, AIR 1974 SC 1862

[9] *Krishna Chandra v. India*, AIR 1974 SC 1589

> duty lying upon every one who decides anything. But I do not think they are bound to treat such question as though it were a trial ... They can obtain information in any way they think best, always giving a fair opportunity to those who are parties in the controversy for correcting or contradicting any relevant statement prejudicial to their view.[1]

5.62 Notice and hearing are to be given before the decision is taken. There may be several stages before the decision is taken. In preliminary or initiating proceedings the person concerned generally has no right to be heard, particularly when he is entitled to be heard at a later stage.[2] But this is not an absolute rule. Fairness demands an opportunity of hearing where the preliminary steps produce immediate legal consequences to the disadvantage of the person proceeded against.[3] A hearing subsequent to the decision may satisfy the requirement if the subsequent hearing is adequate and the individual affected suffers no substantial injury[4] or in a case of emergency where in the facts and circumstances of a given case it is not possible to hear the affected party before taking the action.[5] The concept of substantial injury or emergency which will permit postponement of notice and hearing will vary depending on the existing values of the society. At one stage, realisation of revenue was considered to be an emergency in the American jurisdiction.[6] In other cases, a post-decisional hearing cannot satisfy the requirement of natural justice.[7] The question, however, arises whether the defect of not giving a hearing may be cured by giving a hearing at the appellate or revisional stage. In *Leary v. National Union of Vehicle*

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[1] *Board of Education v. Rice*, [1911] AC 179, 182

[2] *Rees v. Crane*, [1994] 2 AC 173; *Wiseman v. Borneman*, [1971] AC 297; *Furnell v. Whangarei High School Board*, [1973] AC 660; *Herring v. Templeman*, [1973] 3 All E.R. 569

[3] *Rees v. Crane*, [1994] 2 AC 173; *Re Perfamon Press Ltd.*, [1971] Ch. 388

[4] Schwartz - Administrative Law, 1976, pp.207-209

[5] *Bangladesh v. Ghulam Azam*, 46 DLR (AD) 192; *Abul A'la Moudoodi v. West Pakistan*, 17 DLR (SC) 209; *North American Cold Storage Co. v. Chicago*, 211 US 306 (summary seizure and destruction of putrefied poultry in cold storage); *Adams v. Milwaukee*, 228 US 572; *Ewing v. Mytinger & Caselberry*, 339 US 594; *Goss v. Lopez*, 419 US 565 (suspension of public school student whose presence in school posed continuing danger to persons or property)

[6] *Phillips v. Commissioner*, 283 US 589

[7] *Shephard v. India*, AIR 1988 SC 686, 695 (It is a common experience that once a decision has been taken, there is a tendency to uphold it and a representation may not really yield a fruitful purpose.); *Trehan v. India*, AIR 1989 SC 568

Builders[1] Megarry J held that as a general rule a failure of natural justice in the trial body cannot be cured by sufficiency of natural justice in the appellate body as instead of a fair trial followed by appeal, the procedure is reduced to unfair trial followed by fair trial. But the Privy Council held the 'general rule' to have been broadly stated[2] and the House of Lords in *Lloyd v. McMahon*[3] took the view that a fair hearing at the appellate stage would cure the defect if it is a full appeal (where all the evidence may be examined) as distinct from a limited appeal.[4] The Indian Supreme Court in recent decisions seems to agree with the House of Lords.[5]

5.63 What is the effect of failure to give a fair hearing? Will a decision in breach of *audi alteram partem* be void or voidable? In *Ridge v. Baldwin*[6] the majority held that the failure of fair hearing rendered the dismissal of the Chief Constable void. Though the Privy Council's decision in *Durayappah v. Fernando*[7] created confusion in this regard, later decisions removed any persisting doubt by following *Ridge v. Baldwin*[8]. However Professor Wade observed, "In natural justice cases ... it is essential to remember that `void' is not an absolute but a relative term: a decision or act may be void against one person and valid against another."[9] He referred to the statement of Megarry J in *Hounslow L.B.C. v. Twickenham Garden Development Ltd.*[10]

> A decision reached by a tribunal wholly outside its jurisdiction and in complete defiance of natural justice is about as void as anything can be;

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[1] [1971] Ch. 34; see also *Institute of Chartered Accountants v. Ratna*, AIR 1987 SC 71

[2] *Calvin v. Carr*, [1980] AC 574 (a case of domestic disputes which have to be settled by agreed procedure under contractual rules)

[3] [1987] 1 All E.R. 1118 (a case in which action of a public body was involved)

[4] see *Jordan v. American Eagle Fire Ins.* Co., 169 F.2d 281, 290 (If the court proceeding includes the full right to present evidence, to meet issues, and to explore the evidence and conclusions ..., a federal court cannot invalidate the final ... order because no hearing was afforded in the administrative ... part of the proceeding.)

[5] *Charan Lal Sahu v. India*, AIR 1990 SC 1480; *Union Carbide Corp. v. India*, AIR 1992 SC 248

[6] [1964] AC 40

[7] [1967] 2 AC 337

[8] *Anisminic Ltd. v. Foreign Compensation Commission*, [1969] 2 AC 147; *Hoffman-La Roche v. Secretary of State*, [1975] AC 295; *A.G. v. Ryan*, [1980] AC 143

[9] Administrative Law, 6th ed., p.529

[10] [1971] Ch.233, 259

> but if nobody who is entitled to challenge or question it chooses to do so, it remains in being.

In *Hari Bishnu Kamath v. Ahmed Ishaque*[1] the Indian Supreme Court treated the breach of *audi alteram partem* as an illegality in the exercise of undoubted jurisdiction. In *Nawabkhan v. Gujrat*[2] the court held that such a breach restricting the fundamental right of a citizen will render a decision void *ab initio*, while in other cases 'not all violations of natural justice knock down the order with nullity'. But generally the court held a decision in violation of *audi alteram partem* to be void and a nullity.[3] In a recent decision, the Indian Supreme Court made a distinction between 'no notice/no hearing' and 'no fair hearing' in disciplinary proceedings and held that in case of no fair hearing an order will be struck down only when the employee is prejudiced.[4] It may be argued that *audi alteram partem* is a part of the procedural due process guaranteed by art.31 and in all cases violation of it renders the decision void under art.26 and in view of the procedural due process mandated by art.31, no other conclusion can be reached in our jurisdiction.

5.63A *Legitimate expectation:* The right to a hearing or to be consulted, or generally to put in one's case may arise out of the action of the authority. Thus a promise made in the shape of a statement of policy or a procedure regularly adopted by the authority may give rise to what is called legitimate expectation, that is, expectation of a kind which the court now enforces. Legitimate expectation gives the applicant sufficient *locus standi* for judicial review and in most cases the legitimate expectation is confined to the right of a fair hearing before a decision which results in negativing a promise or withdrawing an undertaking is taken.[5] The doctrine operates in the domain of public law and in an appropriate case constitutes a substantive as well as procedural rights.[6]

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[1] AIR 1955 SC 233

[2] AIR 1974 SC 1471

[3] *Orissa v. Binapani*, AIR 1967 SC 1269; *Shreeram Durga Prasad v. Settlement Commission*, (1989) 1 SCC 628

[4] *State Bank of Patiala v. Sharma*, AIR 1996 SC 1668

[5] *India v. Hindusthan Development Corp*, AIR 1994 SC 988, 1019

[6] *M.P. Oil Extraction v. M.P.*, AIR 1998 SC 145, 158; *National Buildings Construction Corp. v. Raghunathan*, AIR 1998 SC 2779; *Punjab Communications Ltd. V. India*, AIR 1999 SC 1801; *M.D. WASA v. Superior Builders & Engrs Ltd.*, 51 DLR (AD) 56 (see Para 5.134A for comments on the decision); see Wade & Forsythe – Administrative Law, 7th ed. 419

The doctrine can be invoked if the impugned decision affected a person either (a) by altering rights or obligations of that person which are enforceable by or against him in private law; or (b) by depriving of some benefit or advantage which either (i) he had in the past been permitted by the decision-maker to enjoy and which he can legitimately expect to continue to do until there has been communicated to him some rational grounds for withdrawing it on which he has been given an opportunity to comment; or (ii) he has received some assurance from the decision-maker that it will not be withdrawn without giving him first an opportunity of advancing reasons for contending that it should not be withdrawn.[1] In *A.G. of Hong Kong v. Ng Yuen*[2] the government announced a policy of repatriation of illegal immigrants and stated that such persons would be interviewed and each case would be considered on its merit. Ng Yuen was interviewed and asked a few questions, but was not allowed to explain the humanitarian grounds on which he might have been allowed to stay. The Privy Council quashed the order of repatriation on the ground that the government's promise was not redeemed in that Ng Yuen's case was not considered on its merit. On the other hand, in *Council of Civil Service Union v. Minister for the Civil Service*[3] the House of Lords found fault with an instruction of the government that civil servants engaged in certain work would no longer be permitted to be members of trade unions as the instruction was issued ignoring the legitimate expectation of consultation which arose out of the regular practice of consultation with the Union in case of change in the terms and conditions of service.[4] But where unlicensed cab-drivers had frequently been convicted for breaching regulations of Heathrow airport, it was held that they could not have had a legitimate expectation of being heard before bye-laws were made excluding them from the airport.[5]

5.63B Certain principles emerge from the decided cases which are stated below[6]:

(i) The statement or practice giving rise to the legitimate

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[1] *National Buildings Construction Corp. v. Raghunathan*, AIR 1998 SC 2779, Para 20; *Rabia Bashri Irene v. Bangladesh Biman*, 52 DLR 308

[2] [1983] 2 AC 629

[3] [1984] 3 All E.R. 935

[4] *R v. Devon County Council, ex p Baker*, [1995] 1 All E.R. 73

[5] *Cinnamond v. British Airport Authority*, [1980] 2 All E.R. 368

[6] see David Foulkes – Administrative Law, 8th ed., pp.290-291

expectation must be sufficiently clear and unambiguous, and expressed or carried out in such a way as to show that it was intended to be binding.[1] A statement will not be binding if it is tentative[2], or if there is uncertainty as to what was said[3]. Where it was said that a recommendation from X was `almost invariably' accepted there was no legitimate expectation that it would be accepted.[4]

(ii) The statement or practice must be shown to be applicable and relevant to the case in hand. Thus where an offer of an interview had been made in 1986, but action was taken in 1988 without an interview, there was no legitimate expectation of an interview in 1988 as the circumstances then were quite different.[5]

(iii) Legitimate expectations are enforced in order to achieve fairness. Thus where it was argued that a previous practice of giving an oral hearing gave rise to a legitimate expectation of a hearing, the court said that the question was whether the official in question had acted unfairly and in the circumstances the decision on the papers was held fair.[6] Even if a case of legitimate expectation is made out, the decision or action of the authority will not be interfered with unless it is shown to have resulted in failure of justice.[7]

(iv) If the statement said to be binding was given in response to information from the citizen, it will not be binding if that information is less than frank, and if it is not indicated that a binding statement is being sought.[8]

(v) He who seeks to enforce must be a person to whom (or a member of the class to which) the statement was made or the practice

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[1] The foundation for legitimate expectation must be laid in the pleadings and cannot be allowed to be raised at the stage of argument – *National Buildings Construction Corp v. Raghunathan*, AIR 1998 SC 2779

[2] *R v. Board of Inland Revenue ex p MFK Underwriting Agencies Ltd*, [1990] 1 All E.R. 91; *R v. Jockey Club, ex p RAM Racecourses*, [1993] 2 All E.R. 225

[3] *R v. Shropshire Health Authority ex p Duffus*, (1989) Times, 16 August; *North South Property Development Ltd. v. Ministry of Land*, 52 DLR 7 (affirmed by Appellate Division in C.P. no.552 of 1999)

[4] *R v. Home Secretary ex p Sakala*, (1994) Times, 26 January

[5] *R v. Home Secretary ex p Malhi*, [1990] 2 All E.R. 357

[6] *Lloyd v. McMahon*, [1987] 1 All E.R. 1118

[7] *India v. Hindusthan Development Corp*, AIR 1994 SC 988; *North South Property Development Ltd. v. Ministry of Land*, 52 DLR 7

[8] *R v. Board of Inland Revenue, ex p MFK Underwriting Agencies Ltd*, [1990] 1 All E.R. 91

applied.[1]

(vi) Even though a case is made out, a legitimate expectation shall not be enforced if there is overriding public interest which requires otherwise.[2]

5.63C In considering the doctrine of legitimate expectation it must be understood that there is no question of the authority not being able to change its policy.[3] In *Findlay v. Secy. of State for Home Dept*[4] a change of policy had the effect that certain prisoners would have to stay in prison longer than under the previous policy and the court held that the only expectation that Findlay had was that his case would be individually examined and he had no right not to have the policy changed to his detriment. After surveying the Indian and English decisions and referring to *R v. Home Secretary ex p. Hargreaves*[5] the Indian Supreme Court held, "The result is that change in policy can defeat a substantive legitimate expectation if it can be justified on *Wednesbury* reasonableness ... It is, therefore, clear that the choice of the policy is for the decision maker and not for the Court. The legitimate substantive expectation merely permits the Court to find out if the change in policy which is the cause for defeating the legitimate expectation is irrational or perverse or one which no reasonable person could have made."[6] Where a policy has been published it must be applied to cases falling within it[7] and where it has been the practice to publish a policy change, there may be a legitimate expectation that

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[1] *R v. Shropshire Health Authority, ex p Duffus, (1989) Times, 16 August*; *R v. Inland Revenue Commrs*, [1990] 1 All E.R. 173

[2] *India v. Hindusthan Development Corp*, AIR 1994 SC 988 (The protection of such legitimate expectation does not require the fulfillment of the expectation where an overriding public interest requires otherwise. In other words where a person's legitimate expectation is not fulfilled by taking a particular decision then the decision-maker should justify the denial of such expectation by showing some overriding public interest); *Food Corp of India v. Kamdhenu Cattle Feed Industries*, AIR 1993 SC 1601 (The court recognised the legitimate expectation of the highest bidder, but refused relief because of the overriding public interest in getting further higher price obtained through subsequent negotiation with all the bidders.); *North South Property Development Ltd. v. Ministry of Land*, 52 DLR 7

[3] *PTR Exports (Madras) (P) Ltd. v. India*, (1996) 5 SCC 268

[4] [1985] AC 318

[5] [1997] 1 WLR 906

[6] *Punjab Communications Ltd v. India*, AIR 1999 SC 1801, 1814

[7] *R v. Home Secretary ex p Asif Mahmood Khan*, [1984] 1 WLR 1337

changes to it will be published[1]; it may be unfair to make a change in the policy unless the authority announces in advance its intention to do so allowing an affected person to make representations before any change is made.[2]

5.63D In *Bangladesh Soya-Protein Project Ltd v. Secretary, Ministry of MDMR*[3], the government initiated 'School Feeding Programme' and entered into contract with the petitioner for supply of soya-protein biscuits to schools for a fixed period. On the expiry of the contract period, the government discontinued the programme. The High Court Division held that such discontinuance of the programme, violating its own policy, was in gross violation of the legitimate expectation not only of the petitioner but also of the millions of under-nourished children warranting interference of the court and directed the government to implement its policy decision. It is submitted that the decision is open to exception. The judgment does not show that there was any promise in the shape of statement of policy to continue the programme and there could not be any legitimate expectation of anybody of the continuity of the programme. Even if the programme would have been continued, the petitioner could not have any legitimate expectation of having a renewed or fresh contract for the supply of soya-protein biscuits. Furthermore, the government can always defeat a legitimate expectation by change of policy which can be justified on *Wednesbury* reasonableness.

5.63E *Requirement of giving reasons:* General principle of law is that in the absence of statutory requirement, an administrative order need not be a reasoned one[4] except where there is a provision for an administrative appeal[5]. However, the requirement of reasoned decision not only ensures application of mind of the authority, eschews arbitrariness and improves the quality of administrative adjudication, but also ensures fairness and transparency and enables the review court to properly examine the impugned decision.[6] Hence the courts are

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[1] *R v. Home Secretary ex p Ruddock*, [1987] 2 All E.R. 518

[2] *R v. Transport Secretary ex p Richmond on Thames LBC*, [1994] 1 All E.R. 577

[3] 6 BLC 681

[4] *Mahabir Jute Mills v. Saxena*, AIR 1975 SC 2057

[5] *Moti Miyan v. Commissioner*, AIR 1960 MP 157

[6] *S.N. Mukherjee v. India*, AIR 1990 SC 1984; *Breen v. Amalgamated Engineering Union*, [1971] 2 QB 175 (The giving of reasons is one of the fundamentals of good administration - per Lord Denning); see also *Modi Industries Ltd v. UP*, AIR 1994 SC 536

gradually leaning in favour of reasoned decision even when it is not statutorily required. Wade and Forsyth observed:

> Although the lack of a general duty to give reasons is recognised as an outstanding deficiency of administrative law, the judges have gone far towards finding a remedy by holding that reasons must be given where fairness so demands; and the decisions show that may now be the case more often than not. It has been held at first instance that English law has now arrived at the point where the duty to act fairly imparts at least a general duty to give reasons, subject to necessary exceptions, and this conclusion seems well justified.[1]

In *R v. Trade Secretary ex p. Lonrho plc*[2] Lord Keith observed, "if all other known facts and circumstances appear to point overwhelmingly in favour of a different decision, the decision maker who has given no reasons cannot complain if the court draws the inference that he has no rational reason for his decision." In the absence of statutory requirement, the court may imply the requirement of giving reasons where there is a right of appeal[3], or where a failure to give reasons will prejudice the affected person's chances of successfully applying for judicial review[4], or where in the circumstances an inference of misuse of power can be made from the absence of reasons[5], or where legitimate expectations have been created which demand that any departure from that expectation need be explained, or fairness requires reason to be given[6] or where the function is quasi-judicial or fundamental right is affected.[7] But the court will not insist on giving reasons where the function of the State is political or sovereign in character, or where the matter is academic[8] or involves intricacies of trade or commerce.

5.63F *Failure to give any, or adequate, reasons:* Where a statute requires reason to be given, failure to give reason will render the

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[1] Administrative Law, 7th ed., pp.544-45

[2] [1989] 2 All E.R. 609, 620

[3] *R v. Crown Court at Harrow, ex p Dave*, [1994] 1 All E.R. 315

[4] *R v. Home Secretary ex p. Doody*, [1993] 3 All E.R. 92, 111

[5] *Padfield v. Minister of Agriculture*, [1968] AC 997; *Bangladesh v. A.K. Al-Mamun*, 1997 BLD (AD) 77

[6] *R v. Civil Service Appeal Board, ex p Cunningham*, [1991] 4 All E.R. 310

[7] *S.N. Mukherjee v. India*, AIR 1990 SC 1984; *Jafor v. UOI*, (1994) Supp. (2) SCC 1; *Vasant v. Bar Council*, (1999) 1 SCC 45

[8] *R v. Universities Funding Council ex p. IDS*, [1994] 1 All E.R. 651

decision liable to be set aside[1] or the court may order them to be given[2]. A decision may be struck down if the reasons given are improper or do not adequately deal with the principal issues or are unintelligible or obscure. Where the adequacy of the reasons themselves is not attacked, a failure to give them may not invalidate the decision to which they relate. Where a decision is arrived at for a reason which is wrong, but the same decision must as a matter of law have been arrived at if the right reason had been relied on, the decision will not be quashed. Where of the number of reason given some are good and some bad, the decision will be bad if the reasons are impossible to disentangle. But if it is possible to disentangle them and one is bad, the decision will not be upset if the court is satisfied that the decision-maker would have reached the same decision on the valid reasons.[3]

5.64 *Nemo debet esse judex in propria causa*: Lord Coke in *Dr. Bonham*[4] laid down the principle that no man should be judge in his own cause. With a view to strengthening public confidence, it was developed into a jurisdictional principle that no one having any interest or bias in respect of any matter is competent to take part in the decision-making relating to that matter. It was said that it "is of fundamental importance that justice should not only be done, but should manifestly and undoubtedly be seen to be done."[5] Thus whether a judge gave an actually biased judgment is not material, the judgment is vitiated if there is a real likelihood of the judge being biased. We come across three types of bias - pecuniary, personal and official and we shall deal with them.

5.65 Where the decision-maker has a pecuniary or proprietary interest in the subject-matter of adjudication, he is disqualified. In *Dimes v. Proprietors of the Grand Junction Canal*[6] a decree confirmed by Lord Cottenham L.C. on appeal was set aside as he was a shareholder of the

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[1] *Gautam v. UOI*, (1993) 1 SCC 78

[2] *Inveagh v. Minister of Housing and Local Government*, [1961] 3 All E.R. 98

[3] *R v. Broadcasting Complaints Commission*, ex p Owen, [1985] 2 All E.R. 522; see also Foulkes - Administrative Law, 8th ed. p.335

[4] 8 Co. Rep. 113b

[5] Per Lord Hewart CJ in *R. v. Sussex JJ ex p. McCarthy*, [1924] 1 KB 256, 259

[6] [1852] 3 HLC 759; *Shamdasani v. Central Bank of India*, AIR 1938 Bom 431 (court set aside the taxation by the Taxing Master of the bill of costs of the bank as he borrowed money from that bank and did not disclose his interest at the time of taxing the bill)

company in whose favour the decree was passed. It was said:

> No one can suppose that Lord Cottenham could be, in the remotest degree, influenced by the interest that he had in the concern; but, my Lords, it is of the last importance that the maxim that no man is to be a judge of his own cause, should be held sacred. ... And it will have a most salutary influence on [inferior] tribunals when it is known that this high court of last resort, in a case in which the Lord Chancellor of England had an interest, considered that this decree was on that account a decree not according to law, and was set aside. This will be a lesson to all inferior tribunals to take care not only that in their decrees they are not influenced by their personal interest, but to avoid the appearance of labouring under such an influence.

The disqualification attaches however small or insignificant the pecuniary interest may be. Where "a pecuniary interest exists, the law does not allow any further inquiry as to whether the mind was actually biased by the pecuniary interest. The fact is established from which the inference is drawn that he is interested in the decision, and cannot act as a judge."[1] The court also does not inquire into reasonable likelihood of bias. In the case of pecuniary or proprietary interest the law raises a conclusive presumption of bias.[2] The pecuniary interest must be a direct one. But in one case the interest of the father sufficed as a pecuniary interest of the son even though it might not have given rise to a reasonable likelihood of bias.[3] The disqualification will also attach in the same way if the decision-maker is himself involved in the dispute. Thus when the manager of a factory himself conducts an inquiry against a workman on the allegation of assaulting him[4] or when a person sits on the selection board to select persons for a post for which he is a candidate, even though he may not participate in its deliberations when his name is considered[5] the decision is invalid. Recently the House of Lords set aside its judgment as it was found that one of the Law Lords was closely associated in the promotion of human right with an organisation which joined as intervener in the extradition proceedings. The House of Lords held that the principle that a judge was

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[1] *Leeson v. General Council of Medical Education and Registration*, [1890] 43 Ch. 366, 384; *R. v. Cambrone Justices ex p. Pearce*, [1951] 1 QB 41

[2] *R. v. Sunderland JJ*, [1901] 2 KB 357, 371

[3] *Metropolitan Properties Ltd. v. Lanon*, [1969] 1 QB 577

[4] *Meenglass Tea Estate v. Workmen*, AIR 1963 SC 1719

[5] *Kraipak v. India*, AIR 1970 SC 150

automatically disqualified from hearing a matter in his own cause is not restricted to a case in which he has a pecuniary interest in the outcome, but also applies to a case where the decision of the judge would lead to the promotion of a cause in which the judge is involved together with one of the parties.[1]

5.66 Apart from pecuniary or proprietary interest, bias may arise because of decision-maker's attitude of hostility or favouritism towards a party for one reason or another. The person complaining need not show that bias has, in fact, affected the decision. But the English courts were divided in their opinion as to whether a reasonable suspicion of bias or a real likelihood of bias would invalidate a decision. The preponderant view was that the disqualification would be attracted on showing of a real likelihood of the judge being biased.[2] The other view was that invalidity would be attracted if there be only a reasonable suspicion of bias.[3] "In practice the test of 'reasonable suspicion' and 'real likelihood' of bias will generally lead to the same result. Seldom indeed will one find a situation in which reasonable persons adequately apprised of the facts will reasonably suspect bias, but a court reviewing the facts will hold that there was no real likelihood of bias."[4] The House of Lords has now ruled in favour of real likelihood test.[5]

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[1] *R v. BSMS Magistrate ex p Pinochet (No.2)*, [1999] 1 All E.R. 577

[2] *R. v. Cambrone Justices ex p. Pearce*, [1955] 1 QB 41 ("the right test is that prescribed by Blackburn J, namely, that to disqualify a person from acting in a judicial or quasi-judicial capacity upon the ground of interest (other than pecuniary or proprietary) in the subject-matter of the proceeding, a real likelihood of bias must be shown." *Frome United Breweries Co. v. Bath Justices*, [1926] AC 586; *Hannam v. Bradford Corporation*, [1970] 1 WLR 937; *Metropolitan Properties Ltd v. Lannon*, [1968] 3 All E.R. 304 (per Lord Denning); *R. v. Colchester Magistrate, ex p. Beck*, [1979] 2 All E.R. 1035; *U.K. Association of Professional engineers v. Advisory, Conciliation and Arbitration Services*, [1979] 2 All E.R. 478

[3] *Metropolitan Properties Ltd. v. Lannon*, [1968] 3 All E.R. 304 (per Edmund-Davis and Danckwerts LJJ); *R. v. Liverpool City J.J. ex p. Topping*, [1983] 1 All E.R. 570. But *Steeples v. Derbyshire C.C.*, [1984] 3 All E.R. 468 and *R. v. Sevenoaks D.C. ex p. Terry* [1985] 3 All E.R. 226 held real likelihood test applicable to administrative bodies and reasonable suspicion test applicable to judicial and quasi-judicial bodies.

[4] S.A. de Smith - Constitutional and Administrative Law, 4th ed., p.571; see also *R. v. St. Edmundsbury B.C. ex p. Investors in Industry Commercial Properties*, [1985] 3 All E.R. 234

[5] *R. v. Gough*, [1993] AC 646; see Wade & Fortsythe – Administrative Law, 7th ed. 482

5.67 In this sub-continent, however, the real likelihood test is applied.[1] Speaking about bias of a public functionary, the Indian Supreme Court observed -

> The real question is not whether he was biased. It is difficult to prove the state of mind of a person. Therefore, what one has to see is whether there is reasonable ground for believing that he was likely to have been biased. A mere suspicion of bias is not sufficient. There must be a reasonable likelihood of bias.[2]

5.68 Bias is a state of mind in which an adjudicator cannot decide impartially. It may arise in various ways and in a variety of circumstances and it is not possible to exhaust the possibilities. The real likelihood of bias will normally be inferred from close personal relationship[3], professional, business or vocational relationship[4], the relation of employer and employee[5], personal animosity[6] or close

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[1] *Khandker Mostaque Ahmed v. Bangladesh*, 34 DLR (AD) 222; *Akhlaq Hussain v. Pakistan*, PLD 1968 SC 201; *Shahjahan Ali v. D.I.G., Khulna*, 17 DLR 141; *President v. Mr. Justice Shaukat Ali*, PLD 1971 SC 585; *Pakistan v. Abdul Wali Khan*, PLD 1976 SC 57; *Mineral Development Ltd v. Bihar*, AIR 1960 SC 468; *A.P.S.R.T. Corporation v. Satyanarayana Transport (Private) Ltd.* AIR 1965 SC 1303; *U.P. v. Mohd Nooh*, AIR 1958 SC 86; *Manak Lal v. Dr. Prem Chand*, AIR 1957 SC 425; *Kraipak v. India*, AIR 1970 SC 150

[2] *Kraipak v. India*, AIR 1970 SC 150; see also the observation of Sattar J in *Shahjahan Ali v. DIG*, 17 DLR 141, 144; *Punjab v. Khanna*, AIR 2001 SC 343

[3] *D.K. Khanna v. India*, AIR 1973 H.P. 30 (the selection committee to select persons for civil posts included the son-in-law of a selected candidate as member of the committee)

[4] *Manak Lal v. Dr. Prem Chand*, AIR 1957 SC 425 (appellant, an advocate, was charged with misconduct in relation to a proceeding in which the Chairman of the Bar Council Tribunal pleaded for the other side and the court found infirmity in the constitution of the Tribunal); *Gibson v. Berryhill*, 411 US 564 (The Board of Optometry charged licensed optometrists with unprofessional conduct as they were employed by a corporation. By statute, only members of the Optometric Association could be members of the board, and the association barred from its membership optometrists employed by others. The court held that the board was disqualified by personal interest as the action of the board would go to the benefit of the board members since they competed with the optometrists employed by corporations.)

[5] *Kumaon Mondol v. Girija Shankar*, AIR 2001 SC 24 (Managing Director ordering dismissal of General Manager getting the inquiry done in hot haste without supplying documents and passing the order few hours after personal hearing – bias found)

[6] *Parthasarathi v. A.P.*, AIR 1973 SC 2701 (the inquiry officer in a disciplinary

personal friendship. Again, no man can be a judge and witness or prosecutor at the same time.[1] According to Seervai, "Membership of a public authority or a voluntary association does not make an adjudicator a party to the proceeding and so disqualify him as an adjudicator, but he would be disqualified if he had taken an active part in instituting the proceedings, or had voted for the institution of such proceedings, or had shown partisanship in a corporate or private capacity."[2]

5.69 Bias may arise because of the decision-maker's general interest in the subject-matter as a member of the administration in his official capacity. In many adjudicatory proceedings before the bureaucratic authorities, the administration itself is one of the parties. The adjudicator may have sincere convictions on the issues of law or policy and his predisposition in respect of such issues of law and policy may raise the question of bias. The Donoughmore Committee on Ministers' Powers (1932) observed -

> Bias from strong and sincere conviction as to the public policy may operate as a more serious disqualification than pecuniary interest. The mind of the judge ought to be free to decide on purely judicial grounds and should not directly or indirectly be influenced by, or exposed to the influences of, either motives of self-interest or opinion about policy or any other considerations not relevant to the issue.[3]

But the House of Lords refused to accept the plea of bias when the objector sought to impugn the Minister's action for bias because the project in question was initiated by the Minister himself and held that the court would not interfere unless the Minister had acted in bad faith

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proceeding having strong personal animosity against the civil servant proceeded against); *Mineral Development v. Bihar*, AIR 1960 SC 468(the Minister with whom the petitioner's proprietor had political rivalry and the Minister also filed criminal case against the petitioner's proprietor, cancelling the licence of the petitioner).

[1] *Mohsin Siddique v. West Pakistan*, 16 DLR (SC) 151; *Shahjahan ali v. DIG, Khulna*, 17 DLR 141; *U.P. v. Mohd Nooh*, AIR 1958 SC 86; *Andhra Scientific Co. v. Seshagiri Rao*, AIR 1967 SC 408; *Murari Mohan Das v. Bangladesh*, 29 DLR 53

[2] H.M.Seervai - Constitutional Law of India, 3rd ed., p.1253; but see *R. v. Altrincham Justices ex p. Pennington*, [1975] QB 549 ((where a prosecution for selling vegetables underweight to a local authority school was heard by a magistrate who was a member of the local authority's education committee, the conviction was quashed on the ground of bias); *R. v. BSMS Magistrate ex p Pinochet (No.2)*, [1999] 1 ALL E. R. 577 (see Para 5.65)

[3] p.78

or for an improper purpose.[1] In this regard Professor Robson observed, "In all civilised countries the judge must, in fact, possess certain conceptions of what is socially desirable, or at least acceptable, and his decisions, when occasions arise, must be guided by these conceptions. In this sense judges are and must be biased ... It is a simple fact that a man who had not a standard of moral values which approximated broadly to the accepted opinions of the day, who had no beliefs as to what is harmful to society and what beneficial ... would not be tolerated as a judge on the bench of any Western country."[2] Decisions of the American Supreme Court and Indian Supreme Court in this regard agree with the view of the House of Lords.[3] In order to remove the difficulty of policy bias, in the U.S.A. a system of having a separate cadre of hearing officers has been introduced. Apart from other problems, for sheer financial reasons we cannot even think of introducing such a system at the present moment though the problem of official or departmental bias is there in our system.

5.70 The Indian Supreme Court dealt with the problem in *Nageswara Rao v. A.P.S.R.T. Corp.*[4] where the scheme to nationalise motor transport in a state was initiated and approved after hearing of the objections by the Secretary of the Transport Department and the decision was challenged on the ground that the person who heard the objections was the person who had initiated the scheme. The court held that the hearing given by the Secretary clearly offended the principles of natural justice. Later the relevant law was amended requiring the Minister to decide upon the scheme. In *Nageswara Rao v. A.P.*[5] again the objection of bias was raised, but the court making a distinction between the Minister and the Secretary, held that the Minister was

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[1] *Franklin v. Minister of Town and County Planning*, [1948] AC 87; *R. v. Amber Valley D.C. ex p. Jackson*, [1984] 3 All E.R. 501 (as a matter of policy majority of a local planning authority were politically predisposed in favour of a development plan, but it did not disqualify them or the authority from taking decision); *R. v. Sevenoakes D.C. ex p. Terry*, [1985] 3 All E.R. 226; *R. v. St. Edmundsbury B.C. ex p. Investors Commercial Properties*, [1985] 3 All E.R. 234. Contra, *Steeples v. Derbyshire C.C.*, [1984] 3 All E.R. 468 (but this decision has not been followed subsequently)

[2] Justice and Administrative Law (1951), p.413

[3] *Federal Trade Commission v. Cement Institute*, 333 US 683; *N.L.R.B. v. Donnelly Garment Co.*, 330 US 219; *W.B. v. Shivananda*, AIR 1998 SC 2050

[4] AIR 1959 SC 308

[5] AIR 1959 SC 1376

competent to give the decision.[1] In a subsequent case the Supreme Court held that the scheme approved by the Minister cannot be challenged on the ground of official bias unless the Minister is shown to have been actually biased.[2] The distinction between the function of the Secretary and the Minister does not appear to be relevant, and in a subsequent case the court refused to hold the Secretary disqualified for hearing even though he was a member of the committee which prepared the scheme.[3] In *Asma Jilani v. Punjab*[4] the Supreme Court of Pakistan, dealing with the question whether Munir CJ after suggesting amendments in the draft of the Law (Continuance in Force) Order, 1958 issued by the Martial Law authority was competent to sit in judgment on the validity of the said Order, held that mere association with the drafting of a law did not disqualify a judge from interpreting it. Hamoodur Rahman CJ observed-

> ... having regard to the long experience of the learned Chief Justice as a member of the various Benches of superior courts in this country and his vast judicial experience I am certain that he was notwithstanding his association in the drafting of the Order, quite capable of keeping an open mind and expressing his independent judgment. Mere association with the drafting of a law does not necessarily disqualify a judge from interpreting that law in the light of the arguments advanced before him.

This was not a case of official bias because Munir CJ had no duty to be associated with drafting a law so that the aforesaid principles in respect of official bias were not applicable and the question was whether there was a reasonable likelihood of bias. A man suggesting modifications (which suggestion was accepted) in the draft will in the usual course be inclined to hold the law valid and it may be contended that the Supreme Court was not right in rejecting the plea of bias without taking into consideration the fact that the Chief Justice was, beyond the call of duty, associated in the drafting of a law prepared at the instance of a usurper who only a day or two before had abrogated the constitution which the Chief Justice was under oath to defend and protect.

5.70A The rule against bias may be applied when the disqualified

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[1] The distinction relied on by the court was that while the Secretary was a part of the Department, the Minister was not part of it and only primarily responsible for the disposal of the business of the Department.

[2] *Narayanappa v. Mysore*, AIR 1960 SC 1073

[3] *Mudaliar v. Tamil Nadu*, AIR 1973 SC 974

[4] PLD 1972 SC 139

adjudicator can be replaced by some one against whom there is no objection. But there may be cases where no such substitution is possible as in the case where the adjudication is entrusted by law to a designated person. In such a case the rule has to give way to necessity.[1] In *Election Commission of India v. Dr. Subramanium*, it was contended that the Chief Election Commissioner was biased in favour of Dr. Subramanium and should not take part in the adjudication of dispute relating to the disqualification of Jaylalita. The Indian Supreme Court held that the dispute should be adjudicated by the other two Election Commissioners and the Chief Election Commissioner can decide only if the two Election Commissioners disagree. The court observed –

> We should have a clear conception of the doctrine, It is well settled that the law permits certain things to be done as a matter of necessity which it would otherwise not countenance on the touchstone of judicial propriety. Stated differently, the doctrine of necessity makes it imperative for the authority to decide and considerations of judicial propriety must yield. It is often invoked in cases of bias where there is no other authority or Judge to decide the issue.[2]

5.70B Bias of the decision-maker is treated as one belonging to the category of latent want of jurisdiction[3] as it does not often appear on the face of the proceeding. In most cases it depends on personal knowledge of the parties and if the parties having knowledge of the facts constituting bias participate in the proceeding without raising objection, the court presumes that the party complaining has waived his right to object.[4] A person cannot be taken to have waived his right to challenge the authority of the adjudicator on the ground of bias by the mere submission to jurisdiction if he was not aware of the facts constituting bias[5]. There is no presumption of waiver if a party is not in a position to object to the jurisdiction on account of fear of antagonising his superiors[6], or "if the disqualified adjudicator failed to make a complete disclosure of his interest, or if the party affected was prevented by surprise from taking the objection at the appropriate time or if he was

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[1] Wade & Forsythe – Administrative Law, 7th ed., p.476

[2] AIR 1996 SC 1810, 1817

[3] See Para 5.35

[4] Wade - Administrative Law, 6th ed., p.266; *Manaklal v. Prem Chand*, AIR 1957 SC 425; *G. Sarana v. Lucknow University*, AIR 1976 SC 2428

[5] *Mahapatra v. Orissa*, AIR 1984 SC 1572

[6] *P. Sreeramulu v. A.P*, AIR 1970 AP 114

not represented by counsel and did not know of his right to object at the time."[1]

5.71 *Improper purpose*: Legislature grants power to the administrative authorities for exercise of it for the purpose sought to be achieved and the administrative authority must exercise the power honestly to further the purpose of the statute. The statute may expressly state what that purpose is, and if it does not, it will have to be inferred from an examination of the statutory scheme. If the authority's action is found to have been directed to achieve some other purpose or for some ulterior motive the authority is taken to have stepped out of jurisdiction and the action is without lawful authority.[2] The government passing an order of compulsory retirement to circumvent the judgment earlier passed in favour of a public servant, the order is without lawful authority.[3] The court can examine whether in a given case the authority has acted bona fide and for legitimate purpose. But when the authority exercises the power to achieve the purpose of the law and incidentally achieves something more, the action is held to be bona fide and reasonable.[4]

5.72 Un*reasonableness*: Russell CJ stated in *Kruse v. Johnson*[5] that if an action taken by an administrative authority is so unreasonable that no reasonable authority could do it, "the court might well say,

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[1] S.A. de Smith - Judicial Review of Administrative Action, 1980, p.275

[2] *Sydney Municipal Council v. Campbell*, [1925] AC 338 (Authority having power to acquire land to carry out improvements, acquired land for the purpose of benefiting from an anticipated increase in the value of the land)

[3] *Dr. Nurul Islam v. Bangladesh*, 33 DLR (AD) 201; *Sajeda Parvin v. Bangladesh*, 40 DLR (AD) 178 (A member of Parliament was detained to prevent him from doing prejudicial activities under the Special Powers Act. The Home Minister declared in Parliament that he was detained to prevent him from escaping from the clutches of law. M.H. Rahman J observed that the detention order was passed for collateral purpose for which it has no sanction in law); *Fawcett Properties Ltd v. Bucks CC*, [1961] AC 636 (local authority having power to compulsorily acquire land for coast protection cannot acquire land for a promenade); *Webb v. Minister of Housing and Local Government*, [1965] 2 All E.R. 193 (power to acquire land to effect civil extension and improvement cannot be exercised to reap the benefit of enhanced value); *Hanson v. Radcliffe U.D.C.*, [1922] 2 Ch. 490 (education authority cannot dismiss a teacher to effect economy).

[4] *Westminster Corporation v. London and N.W. Rly*, [1905] AC 426 (authority having power to construct underground conveniences, provided a subway in addition to the conveniences, the action is upheld).

[5] [1898] 2 QB 91, 99

'Parliament never intended to give authority to make such rules; they are unreasonable and ultra vires'". This was a case where the validity of a byelaw was challenged. But the principle of reasonableness is used in testing the validity of all administrative actions and an unreasonable action is taken to have never been authorised by the legislature and is treated as *ultra vires.*[1] According to Lord Greene an action of an authority is unreasonable when it is so unreasonable that no man acting reasonably could have taken it.[2] This has now come to be known as *Wednesbury* unreasonableness.[3] Where the authority is to grant planning permission 'subject to such conditions as they think fit' and granted permission subject to the condition of constructing an ancillary road over the entire frontage permitting right of passage over it, the court held the condition to be so unreasonable that it was *ultra vires.*[4] Again when the authority authorised to issue site licence 'subject to such conditions as it may think it necessary' issued licence to owners of a caravan site imposing conditions designed to regulate rent, premiums, security of tenure etc, the House of Lords held that the conditions were *ultra vires* as those were unreasonable because of oppressive and gratuitous interference with the rights of the occupiers subject to them.[5] According to Professor Wade, "The principle of reasonableness has become one of the most active and conspicuous among the doctrines which have vitalised administrative law in recent years ... Its contribution to administrative law on the substantive side is equal to that of the principles of natural justice on the procedural side."[6] At the same time he pointed out that the doctrine "has to be reconciled with the no less important doctrine that the court must not usurp the discretion of the public authority which Parliament appointed to take the decision." Lord Diplock expounded -

> The very concept of administrative discretion involves a right to choose between more than one possible course of action on which there is room for reasonable people to hold differing opinions as to which is to be

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[1] *Altaf Hussain v. Shabbir Hussain*, PLD 1961 Lah 449 (order of the settlement authority was quashed as the conclusion arrived at by the authority was so unreasonable that no reasonable person could have ever come to it); *Shafiq Ahmed v. BCIC*, 45 DLR 95; *Agragami Engineers v. Bangladesh Bank*, 45 DLR 134

[2] See Para 5.47

[3] *Associated Provincial Picture v. Wednesbury Corp*, [1948] 1 KB 223

[4] *Hall & company Ltd v. Shoreham -by-Sea U.D.C.*, [1964] 1 WLR 240.

[5] *Chertsey U.D.C. v. Mixnam's Properties Ltd.*, [1964] 2 All E.R. 627

[6] H.W.R. Wade - Administrative Law, 6th ed., p. 398

> preferred.[1]

The action will not be unreasonable when one out of several possible courses of action is adopted. In the same case Lord Denning observed that an exercise of discretion will be unreasonable if it is so wrong that no reasonable person could take that action.[2]

5.73 *Mala fide or bad faith*: It is often said that *mala fide* or bad faith vitiates everything and a *mala fide* act is a nullity.[3] What is *mala fide*? Relying on some observations of the Supreme Court in some decisions, Durgadas Basu J held, "It is commonplace to state that mala fide does not necessarily involve a malicious intention. It is enough if the aggrieved party establishes : (i) that the authority making the impugned order did not apply its mind at all to the matter in question; or (ii) that the impugned order was made for a purpose or upon a ground other than what is mentioned in the order".[4] Later the Indian Supreme Court observed,

> ... mala fide exercise of power does not necessarily imply any moral turpitude as a matter of law. It only means that the statutory power is exercised for purposes foreign to those for which it is in law intended.[5]

In the English jurisdiction also sometimes bad faith (*mala fide*) is used in this wide or rather loose sense[6] and this really creates confusion about the grounds of review. In the above sense, *mala fide* is equated with *ultra vires* exercise of administrative power and is not really an independent ground of review.[7] As an independent ground of attack,

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[1] *Secretary of State for Education v. Tameside MBC*, [1977] AC 1014

[2] Ibid, p.671; see also *Council of Civil Service Unions v. Minster for Civil Service*, [1984] 3 All E.R. 935; *Nottinghamshire CC v. Secretary of Environment*, [1986] 1 All E.R. 199

[3] *Abdur Rouf v. Abdul Hamid*, 17 DLR (SC) 515; *Lazarus Estates Ltd. v. Beasley*, [1956] 1 QB 702 (per Lord Denning, "No judgment of a court, no order of a Minister, can be allowed to stand if it has been obtained by fraud. Fraud unravels everything"); *Khandker Mostaque Ahmed v. Bangladesh*, 34 DLR (AD) 222; *Khandker Ehteshamuddin v. Bangladesh*, 33 DLR (AD) 154; *Jamil Haq v. Bangladesh*, 34 DLR (AD) 125

[4] *Ram Chandra v. Secretary to Government of W.B.*, AIR 1964 Cal 265, 272

[5] *Jaichand v. W.B.*, AIR 1967 SC 483, 485; but see *Regional Manager v. Pawan Kumar*, AIR 1976 SC 1766

[6] *Westminster Corporation v. London and N.W. Rly*,[1904] 1 Ch.759, 767; *Webb v. Minister of Housing and Local Government*, [1965] 1 WLR 755, 784

[7] See H.W.R. Wade - Administrative Law, 6th ed., p.442-443 (These add very little to

mala fide (malice in fact) should be distinguished from *mala fide* (malice in law). The distinction has been best brought out by Viscount Haldane L.C. -

> Between malice in fact and malice in law there is a broad distinction which is not peculiar to any particular system of jurisprudence. A person who inflicts an injury upon another person in contravention of the law is not allowed to say that he did so with an innocent mind; he is taken to know the law, and he must act within the law. He may, therefore, be guilty of malice in law, although so far as the state of his mind is concerned , he acts ignorantly, and in that sense innocently. Malice of fact is quite a different thing; it means an actual malicious intention on the part of the person who has done the wrongful act, and it may be, in proceedings based on wrongs independent of contract, a very material ingredient in the question whether a valid cause of action can be stated.[1]

"The concept of bad faith eludes precise definition, but in relation to the exercise of statutory power it may be said to comprise dishonesty (fraud) or malice. A power is exercised fraudulently if its repository intends to achieve an object other than that for which he believes the power to have been conferred. For example, a local authority committee would exercise in bad faith its power to exclude interested members of the public if it deliberately chose to hold the meeting in a small room. The intention may be to promote another public interest or private interests. A power is exercised maliciously if its repository is motivated by personal animosity towards those who are directly affected by its exercise."[2] To

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the true sense, and are hardly ever used to mean more than that some action is found to have a lawful or unlawful purpose. It is extremely rare for public authorities to be found guilty of intentional dishonesty: normally they are found to have erred, if at all, by ignorance or misunderstanding. Yet the courts constantly accuse them of bad faith merely because they have acted unreasonably or on improper grounds.)

[1] *Shearer v. Shield*, [1914] AC 808; *Dr. Nurul Islam v. Bangladesh*, 1981 BLD (AD) 140, Para 1, 63, 64, 122, 123, 125 & 127; *Regional Manager v. Pawan Kumar*, AIR 1976 SC 1766 (acting on a legally extraneous or obviously misconceived ground of action would be a case of malice in law); *Humayun Kabir v. State*, 28 DLR 259 ("In a case where 'mala fide' is alleged it does not mean that improper motive is attributed to the detaining authority. A detention order is made mala fide when there is malice in law although there is no malice in fact; and the malice in law is to be inferred when an order is made contrary to the object and purposes of the Act or when the detaining authority permits himself to be influenced by conditions which he ought not to permit."); *Serajul Islam v. D.G. Food*, 43 DLR 237

[2] S.A. de Smith - Judicial Review of Administrative Action, 4th ed. p.335-336; see also

render an action *mala fide*, "there must be existing definite evidence of bias and action which cannot be attributed to be otherwise bona fide; actions not otherwise bona fide, however, by themselves would not amount to be mala fide unless the same is in accompaniment with some other factors which would depict a bad motive or intent on the part of the doer of the act".[1] In *Dr. Nurul Islam v. Bangladesh*[2] before the emergence of Bangladesh the East Pakistan Government wanted to make the post of Director of the Institute of Post Graduate Medicine a non-practising post and offered the post to the appellant, but the appellant declined the offer. In 1972 the appellant was appointed as Director and Professor of the Institute. The right to continue as Professor of Medicine carried with it the right to private practice. In 1978 the government issued a notification relieving the appellant of his duties and designation of Professor of Medicine and the said notification also made the post of Director a non-practising post. The appellant challenged the notification and the notification was declared to be without lawful authority by the High Court Division.[3] The government thereafter in 1980 compulsorily retired the appellant under the Public Servants Retirement Act, 1974. The appellant challenged the order of retirement. Though from the facts malice in fact can be suspected, because of the difficulty of proving it, the appellant urged malice in law stating that the order was passed to circumvent the earlier decision of the High Court Division in his favour. The Appellate Division found the allegation to be correct and held the order of compulsory retirement vitiated by malice in law. On the other hand, in *Md. Nurul Huda Mia v. Dhaka WASA*[4] the petitioner alleged that he as Commercial Manager of WASA took steps for disciplinary action against an employee of WASA who influenced his relation, the Minister-in-charge of WASA, who got proceedings initiated against the petitioner and the petitioner was ultimately compulsorily retired. The court on the evidence produced found lack of *bona fide* in the entire proceeding and quashed the order of compulsory retirement as being vitiated by *mala fide*. A civil surgeon was granted leave preparatory to retirement, but it was subsequently revoked and he was placed under suspension and a disciplinary proceeding was started against him on the allegation that he had

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Express Newspapers Ltd. v. India, AIR 1986 SC 872, Para 118, 125 and 135.

[1] *Punjab v. Khanna*, AIR 2001 SC 343

[2] 33 DLR (AD) 201

[3] *Dr. Nurul Islam v. Bangladesh*, 1981 BLD 12

[4] 44 DLR 527

accepted bribe from a patient prior to going on leave. The civil surgeon alleged that the proceeding had been started against him at the instance of the Chief Minister to wreak personal vengeance on him as he refused to yield to the illegal demands of the Chief Minister and his family members. From the evidence produced and the absence of any affidavit from the Chief Minister denying the allegation, the court found the allegation made by the civil surgeon to be proved and the action of the government was quashed.[1] Where the government forfeited the lease of land held by a newspaper which was very critical about imposition of emergency in 1975 to prevent the publication of the newspaper, the court held the action *mala fide*.[2] Keeping alive a suspension order for eleven years and departmental proceeding for twenty years followed by an order of premature retirement was found *mala fide*.[3]

5.74 *Abuse of discretion:* "Parliament constantly confers upon public authorities powers which on their face might seem to be absolute and arbitrary. But arbitrary power and unfettered discretion are what the courts refuse to countenance."[4] Douglas J of the American Supreme Court observed in *U.S. v. Wunderlich*[5] , "Law has reached its finest moment when it has freed man from the unlimited discretion of some ruler ... where discretion is absolute, man has always suffered." When Parliament granted discretionary power without any limitation, the House of Lords refused to accept the conferment of the power as unfettered. Refuting the claim of unfettered discretion of the Minister, Lord Upjohn observed -

> My Lords, I believe that the introduction of the adjective `unfettered' and its reliance thereon as an answer to the appellants' claim in one of the fundamental matters confounding the Minister's attitude, bona fide though it be ... But the use of that adjective, even in an Act of Parliament, can do nothing to unfetter the control which the Judiciary have over the executive, namely, that in exercising their powers the latter must act lawfully, and that is a matter to be determined by looking at the Act and its scope and object in conferring a discretion on the

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[1] *Pratap Singh v. Punjab*, AIR 1964 SC 72; see also *Rowjee v. A.P.*, AIR 1964 SC 962; *Punjab v. Gurdial Singh*, AIR 1980 SC 319

[2] *Express Newspapers Ltd. v. India*, AIR 1986 SC 872

[3] *O.P. Gupta v. India*, AIR 1987 SC 2257

[4] H.W.R. Wade - Administrative Law, 6th ed. p.388

[5] 342 US 98

Minister rather than by the use of adjectives.[1]

Under our constitutional dispensation unfettered discretion granted by a statute is violative of art.27 of the Constitution[2] and it may also in certain circumstances be found to be violative of art.31 as being unreasonable.[3]

5.75 An exercise of discretion cannot be sustained if it is found to be arbitrary or capricious[4] or without application of mind.[5] Inconsistency of policy may amount to an abuse of discretion, particularly when undertakings or statements of intent are disregarded unfairly or contrary to a citizen's legitimate expectation.[6] Unfairness in the exercise of power may amount to an abuse of discretion.[7] A public authority must use the discretion in good faith and reasonably.[8] The discretion is to be exercised to promote the purpose of the statute. If the statutory purpose has not been spelt out, the court may read implied limitation into the apparent unfettered grant of power.[9] Exercise of discretion dishonestly will be invalid on the ground of bad faith, but a *bona fide* exercise of it will also be invalid if it is for a purpose not contemplated by the statute.[10] After the Appellate Division declared the original provision of

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[1] *Padfield v. Minister of Agriculture*, [1968] 1 All E.R. 694,718

[2] *Dr. Nurul Islam v. Bangladesh*, 33 DLR (AD) 201 (Government's claim to absolute discretion in compulsorily retiring a public servant was emphatically rejected);

[3] See para 5.80A

[4] *Presiding Officer v. Sadaruddin*, 19 DLR (SC) 516; *Ramana Shetty v. Airport authority*, AIR 1979 SC 1628; *Maneka Gandhi v. India*, AIR 1978 SC 597

[5] *Lutfu Mia v. Bangladesh*, 1981 BLD (AD) 105

[6] Wade & Forsythe - Administratively Law, 7th Ed. p.418 (referring to the decisions of *R. v. Inland Revenue Commr ex p. Preston*, [1985] AC 835, *A.G. of Hong Kong v. Ng Yuen Shiu*, [1983] 2 AC 629 and *R. v. Home Secretary ex p. Ruddock*, [1987] 2 All E.R. 518; see Para 5.63A-63C.

[7] *R. v. I.R.C. ex p. Preston*, [1985] AC 835, 882

[8] *Presiding Officer v. Sadaruddin*, 19 DLR (SC) 516; *C.I.T. v. Manindra & Manindra*, AIR 1984 SC 1182 (Indisputably, it is settled position that if the action or decision is perverse or is such that no reasonable body of persons, properly informed could come to ... the Court would be justified in interfering with the same.); *Barium Chemicals v. C.L. Board*, AIR 1967 SC 295; see also Para 5.47 and 5.72

[9] *R. v. Barnet & Camden Rent Tribunal ex p. Frey Investments*, [1972] 2 QB 372

[10] *Congreve v. Home Office*, [1976] QB 629 (When the Home Office threatened certain television licence holders with revocation of their licence unless they each pay extra five pounds, the court held it to be improper use of the Home Secretary's discretionary power of revocation of the licence inasmuch as the power has not been given to be

s.9 of the Public Servants Retirement Act, 1974 relating to compulsory retirement void for want of any guideline, the provision was amended whereby the discretion conferred on the government is made exercisable in the public interest and the amending law declared that all orders of compulsory retirement made before the amendment should be deemed to have been made in the public interest. Notwithstanding such a declaration, the Appellate Division held that in case of challenge, it would examine whether the order of compulsory retirement had in fact been made in the public interest.[1] If discretion is used for both authorised and unauthorised purposes, the question will be what was the dominant purpose[2] and if the authority used the power for the purpose for which it has been granted, it is immaterial if in the process a subsidiary object has been achieved.[3]

5.76 It is essential that a discretion conferred by a statute should be exercised by the authority upon whom it is conferred and by nobody else.[4] When the licensing authority required films to be certified by the British Board of Films, an unofficial body established by the film industry, it was held to be a surrender of the discretion by the licensing authority.[5] Discretion vested in a particular body or authority cannot be

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exercised as a means of extracting money which Parliament has given no mandate to demand.)

[1] *Mofizur Rahman v. Bangladesh*, 1982 BLD (AD) 120; *Venkataraman v. India*, AIR 1979 SC 49 (court struck down an order of compulsory retirement when government record produced before the court showed nothing to justify retirement in public interest)

[2] *Westminster Corporation v. L & N W. Rly co.*, [1905] AC 426 (The Corporation was authorised to construct public conveniences, but not pedestrian subways. Underground conveniences were designed in such a way that the subway leading to them provided a means of crossing busy street. When challenged the court observed, "It is not enough to show that the corporation contemplated that the public might use the subway as a means of crossing the street. In order to make out a case of bad faith, it must be shown that the corporation constructed the subway as a means of crossing the street under colour and pretense of providing public conveniences not really wanted.")

[3] *R. v. Brighton Corporation ex p. Shoosmith*, [1907] 96 LT 762 (The authority empowered to alter or repair streets, re-surfaced a street, which needed repair, with the hope that it would attract an automobile club to hold racing trials upon it)

[4] *Barnard v. National Dock Labour Board*, [1953] 2 QB 18 (Disciplinary powers of the local Dock Board delegated to the port manager); *Simms Motor Units Ltd. v. Minister of Labour*, [1946] 2 All E.R. 201 (Discretion vested on a subordinate officer cannot be taken away by order of a superior officer)

[5] *Ellis v. Dubowski*, [1921] 2 KB 621; *R. v. Police Complaint Board ex p. Madden*, [1983] 2 All E.R. 353; *Lavender & Sons v. Minister of Housing*, [1970] 2 All E.R. 871

sub-delegated to some other authority unless the statute permits such sub-delegation.[1] In certain cases, of course, such a power of sub-delegation is implied when the nature of the act and the authority entrusted are such that it will be required to be done through a person other than the person on whom the discretion is vested.[2] Where a statute confers powers on a Minister, for exigencies of departmental administration, it may be exercised by officials for whom the Minister is responsible to Parliament[3], but the Minister cannot adopt a policy whereby the decision is effectively made by another Minister.[4] Sub-delegation without statutory authorisation may, however, be immune from attack if the specified authority while delegating the exercise of the discretion retains the ultimate control, say, by making the effectiveness of the exercise conditional upon its approval.[5]

5.77 Exercise of discretion will be invalid even without sub-delegation if the authority exercises it at the dictation of some other person unless that person is empowered by law to give instructions[6], or permits its decision to be influenced by the dictation of others[7] as this would amount to abdication or surrender of its discretion and the discretion exercised would not be that of the authority but of somebody

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[1] *Barium Chemicals v. C. L. Board*, AIR 1967 SC 295

[2] *Carltona Ltd. v. Commissioners of Works*, [1943] 2 All E.R. 560; *R v. Home Secretary, ex p Oladehinde*, [1991] 1 AC 254; *R v. Home Secretary, ex p Doody*, [1994] 1 AC 531

[3] *Local Government Board v. Arlidge*, [1915] AC 120

[4] *Lavender & Sons Ltd. v. Minister of Housing*, [1970] 3 All E.R. 871

[5] *Mills v. London C. C.*, [1925] 1 KB 213

[6] *Authorised Officer v. A.W. Mullick*, 20 DLR (SC) 229 (Planning permission refused at the instance of the Government); *Purtabpur Co. v. Cane Commissioner*, AIR 1970 SC 1896 (Cane Commissioner exercised discretion by merely carrying out the order of the Chief Minister. The Court observed, "The executive officers entrusted with statutory discretion may in some cases be obliged to take into account considerations of public policy and in some context the policy of a Minister or the Government as a whole where it is a relevant factor in weighing the policy, but this will not absolve them from their duty to exercise their personal judgment in individual cases unless explicit statutory provision has been made for them to be given binding instructions by a superior."); *Chandrika Jha v. Bihar*, AIR 1984 SC 322 (Registrar of Cooperatives exercising discretion at the behest of the Minister); *Nagaraj Shivarao v. Syndicate Bank*, AIR 1991 SC 1507 (Discretion of the disciplinary authority of nationalised bank regarding punishment being fettered by the direction of the Ministry of Finance)

[7] *U.P. v. Maharaja Dharmendra*, AIR 1989 SC 997, 1009

else.[1] It may also be illegal if the authority abdicates its discretion by adopting an over rigid policy, because it is given to be exercised in the facts of each case.[2] However, it is permissible for an authority to adopt a general line of policy and adhere to it provided it leaves open consideration of any special case on its merits.[3] Equally an authority cannot fetter its discretion by entering into a contract.[4] But this rule cannot be applied with any rigidity as more often than not public authorities are required to enter into contracts in the ordinary course of business in fulfillment of its policies.[5]

5.78 The doctrine of estoppel cannot be applied to prevent exercise of discretion.[6] But where once discretion has been exercised, the doctrine can be applied to prevent detriment suffered by a party relying on the representation of the authority. Similarly a statutory authority cannot obtain power which does not belong to it merely because the parties agree to it.

5.79 Exercise of discretion will be invalid if the authority in exercise of it has either taken into consideration matters which are not relevant or has left out of consideration matters which are relevant.[7] Where the authority cancelled the purchase of a newspaper because it did not approve the publishers' action in an industrial dispute between the publishers and their employees[8] or where a council decided to award a council house to a councillor influenced by the view of the chairman of

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[1] *Fazlul Karim Selim v. Bangladesh*, 33 DLR 406

[2] *Bromley LBC v. Greater London Council*, [1983] 1 AC 768; *Sagnata Investments v. Norwitch Corp.*, [1971] 1 QB 614

[3] *British Oxygen Co v. Board of Trade*, [1971] AC 610; *Cummings v. Birkenhead Corp.*, [1972] Ch 12; *R v. Windsor Licensing Justices, ex p. Hodes*, [1983] 1 WLR 685

[4] *Ayr Harbour Trustees v. Oswald*, [1883] 8 App. Cas. 623

[5] *Birkdale District Electric Supply Co. v. Southport Corp.*, [1926] AC 355

[6] *Maritime Electric Co. v. General Dairies*, A 1937 PC 114; *Southend-on-Sea Corp. v. Hodgson*, [1961] 2 All E.R. 46

[7] *Padfield v. Minister of Agriculture*, [1968] AC 997; *R. v. Vestry of St. Pancras*, 24 QBD 375; *Saddler v. Sheffield Corp.*, [1924] 1 Ch 483; *Breen v. Amalgamated Engineers*, [1971] 2 QB 175, 190; *Color Photo Services v. NBR*, 3 BLC 78; *Shafiqul Islam v. Administrator of Waqfs*, 2 BLC 57; *Rahima Food Corp v. Deputy Collector of customs*, 49 DLR 510; *Deputy Director v. Deena Bandhu*, AIR 1965 SC 484; *Ram Avatar Sharma v. Haryana*, AIR 1985 SC 915; *Veerarajam v. T.N.*, AIR 1987 SC 695; *U.P. v. Raja Ram Jaiswal*, AIR 1985 SC 1108

[8] *R v. Easling council, ex p Times Newspaper Ltd.*, (1986) 85 LGR 316

the housing committee that it would help the councillor to be re-elected[1], the exercise of the discretion was found illegal. When an employee was compulsorily retired taking into consideration a very old adverse confidential report, but not taking into account recent favourable confidential report, the exercise of the discretion was held vitiated.[2] Where the authorised officer of Dhaka Improvement Trust refused to approve the plan of construction of a cinema house following a government directive without considering whether the plan was in conformity with the rules, the refusal was declared to be without lawful authority.[3] In *U.P. v. Raja Ram Jaiswal*[4] the Cinematograph Act provided that the authority would refuse licence if a cinema building is situated within a stipulated distance or if the authority considers the location of the cinema building to be such that it would not be in the public interest to grant the licence. The authority refused to grant a licence as the Hindi Sammelan Samity which had its head quarter nearby objected that the noise created would disturb their activities. The Indian Supreme Court held that the rejection was vitiated by consideration of extraneous and irrelevant matters pointing out that the cinema building was air-conditioned and sound-proof and any one living in a developed urban area must put up with some noise; the licence could be refused only in the public interest, but the dislike of a body howsoever prestigious it may be, is not an adequate substitute for public interest. Discretion must be exercised taking into account matters mentioned in the statute, or if not mentioned, the matters relevant to the purpose for which the discretion has been conferred.[5] "However, to invalidate a decision it is not enough that considerations have been ignored which *could* have been taken into account: it is only when the statute 'expresly or impliedly identifies considerations *required to be taken into account* by the authority as a matter of legal obligation' that a decision will be invalid because relevant considerations were

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[1] *R v. Port Talbot Council, ex p Jones*, [1988] 2 All E.R. 207

[2] *Baldev Raj v. India*, AIR 1981 SC 70; *Brij Mohan v. Punjab*, AIR 1987 SC 948

[3] *Authorised Officer v. A.W. Mallick*, 20 DLR (SC) 229; *R. v. Birmingham License Planing Committee, ex p. Kennedy*, [1972] 2 QB 140 (The planning committee was held to have taken extraneous considerations into account when it required a hotel company to make payments to brewery companies as a condition for a new hotel); *Shafiul Azam v. Director of Labour*, 44 DLR 582; *C.I.T. v. Manindra & Manindra*, AIR 1984 SC 1182.

[4] AIR 1985 SC 1108

[5] *R v. Somerset County Council, ex p. Fewings*, [1995] 3 All E.R. 20

ignored."[1] Once an authority takes into consideration relevant matters, it is for the auhority to decide what weight is to be given to such matters.[2]

5.80 When an authority, at the dictation of the government, issued notice of revocation of a building plan earlier approved, the Indian Supreme Court quashed the notice in *U.P. v. Maharaja Dharmendra*[3] and quoted with approval the following statement of S.A. de Smith which aptly summarised the principles formulated by the courts in respect of exercise of discretionary power -

> The authority in which a discretion is vested can be compelled to exercise that discretion, but not to exercise it in any particular manner. In general, a discretion must be exercised only by the authority to which it is committed. The authority must genuinely address itself to the matter before it: it must not act under the dictation of another body or disable itself from exercising a discretion in each individual case. In the purported exercise of its discretion it must not do what it has been forbidden to do, nor must it do what it has not been authorised to do. It must act in good faith, must have regard to all relevant considerations and must not be swayed by irrelevant considerations, must not seek to promote purposes alien to the letter or to the spirit of the legislation that gives it power to act, and must not act arbitrarily or capriciously. Nor where a judgment must be made that certain facts exist can a discretion be validly exercised on the basis of an erroneous assumption about those facts. These several principles can conveniently be grouped in two main categories: failure to exercise a discretion, and excess or abuse of discretionary power. The two classes are not , however, mutually exclusive.[4]

In the absence of any vitiating element, an exercise of discretion is not

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[1] Bradley & Ewing - Constitutional and Administrative Law, 12th ed., p 775 citing *CREEDNZ Inc v. Governor General*, [1981] NZLR 172, 183 and *Re Findlay*, [1985] AC 318, 333

[2] *Tesco Stores v. Environment Secretary*, [1995] 2 All E.R. 636, 642 (It is for the courts, if the matter is brought before them, to decide what is relevant consideration.... But it is entirely for the decision-maker to attribute to the relevant considerations such weight as he thinks fit, and the courts will not interfere unless he has acted unreasonably in the *Wednesbury* sense); *R v. Cambridge Health Authority ex p. B*, [1995] 2 All E.R. 129

[3] AIR 1989 SC 997, 1009

[4] Judicial Review of Administrative Action, 4th ed., pp.285-286.

reviewable by the court on merits.[1]

5.80A *Proportionality:* A question often arises whether an exercise of discretionary power may be interfered with for its harshness on application of the doctrine of proportionality. The doctrine confines the limits of exercise of power to means which are proportionate to the objective to be pursued. The doctrine has taken its root in the jurisprudence of the U.S.A. and some European countries. Though this doctrine deals with unreasonableness, it is different from unreasonableness in the *Wednesbury* sense[2]. The doctrine of proportionality requires a stricter scrutiny of the reasonableness of an administrative action in which the court plays a primary role of finding out whether the action taken is disproportionate in relation to the purpose for which the power is conferred, while in applying the principle of unreasonableness in the *Wednesbury* sense the court defers to the exercise of discretion by the administrative authority and interferes only when an action is so out of proportion to the mischief sought to be curbed that no reasonable man can reasonably take it. Even though the English courts have interfered with harsh decisions treating it to be disproportionate and unreasonable[3], and Lord Diplock in *Council of Civil Service Union v. Minister for the Civil Service*[4] had mooted the possibility of adoption of the doctrine of proportionality in common law, the House of Lords refused to treat proportionality as a distinct means for assessing the merits of of an executive decision.[5] In England Human Rights Act, 1998 has been passed and the decisions of the English courts suggest that they will apply the doctrine of proportionality when the administrative action involves human rights.[6] In *Ranjit Thakur v. India*[7] the Indian Supreme Court observed, "The doctrine of proportionality, as part of the concept of judicial review,

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[1] *Raghupathy v. A.P.*, AIR 1988 SC 1681

[2] See Para 5.72

[3] *R v. Barnsley MBC ex p. Hook*, [1976] 1 WLR 1052 (a market trader had his licence revoked for urinating in public, Lord Denning quashed the decision partly on the basis that the penalty was disproportionate to the offence); *R v. Transport Secretary ex p. Pegasus Holdings (London) Ltd.*, [1988] 1 WLR 990, 1001

[4] [1984] 3 All E.R. 935

[5] *R v. Secretary of State for the Home Department ex p Brind*, [1991] 1 AC 696 (even though Lord Ackner pithily asked whether the Secretary of State had used a sledgehammer to crack a nut)

[6] *R. v. Ministry of Defence ex p Smith*, [1996] QB 517

[7] AIR 1987 SC 2386, 2392

would ensure that even on an aspect which is, otherwise, within the exclusive province of the Court-Martial, if the decision of the Court even as to sentence is an outrageous defiance of logic, then the sentence would not be immune from correction. Irrationality and perversity are recognised grounds of judicial review."[1] Though the Indian Supreme Court spoke of the doctrine of proportionality, the use of the expression 'outrageous defiance of logic' suggests that the court was applying the principle of unreasonableness in the *Wednesbury* sense. Subsequently, in *India v. Ganayutham*[2] the Indian Supreme Court observed that to judge the validity of an administrative order or statutory discretion where no fundamental freedom is involved, normally the *Wednesbury test* is to be applied to find out if the decision was illegal or suffered from procedural improprieties or was one which no sensible decision-maker could, on the materials before him, reasonably have arrived at. The court would not, however, go into the correctness of the choice made by the administrator amongst various alternatives open to him, nor could the court substitute its decision to that of the administrator.[3] Recently the Indian Supreme Court clarified the position further by stating that it will apply the doctrine of proportionality when an administrative action is challenged as discriminatory and in other cases it shall go for the relaxed scrutiny of reasonableness in the *Wednesbury* sense.[4] We have seen that the concept of reasonableness under art.31 is really reasonableness in the *Wednesbury* sense and only when deprivation of life or personal liberty is involved in an administrative action, a stricter scrutiny of reasonableness is called for under art.32.[5]

5.81 ***Writ of Prohibition***: Clause (2)(a)(i) of art.102 confers a jurisdiction roughly corresponding to the jurisdiction of issuing writs of prohibition. The jurisdiction is "primarily supervisory, having for its objects the confinement of courts of peculiar, limited or inferior jurisdiction within their bounds; to prevent them from encroaching upon the jurisdiction of other tribunals; to refrain them from exercising jurisdiction where they do not properly possess jurisdiction at all, or else to prevent them from exceeding their limits in matters in which they

[1] See also the decisions of *Mineral Development Ltd. v. Bihar*, AIR 1960 SC 468; *Bhagat Ram v. H.P.*, AIR 1983 SC 454, 460; *India v. Giriraj Sharma*, AIR 1994 SC 215, 216

[2] AIR 1997 SC 3387

[3] See *A.P. v. McDowell & Co.*, AIR 1996 SC 1627

[4] *Om Prakash v. India*, AIR 2000 SC 3689

[5] See Para 2.105 and 2.115

have their cognizance."[1] The writ in the nature of prohibition lies where a tribunal proceeds to act (a) without or in excess of jurisdiction[2], (b) in contravention of some statute or the principles of common law[3], (c) in violation of the principles of natural justice[4], (d) under a law which itself is *ultra vires* or unconstitutional[5], or (e) in contravention of fundamental rights[6]. Writ of prohibition lies against judicial and *quasi*-judicial bodies. But because of the formulation of the jurisdiction in art.102(2) a writ in the nature of prohibition under our constitutional dispensation lies against any person (other than those mentioned in clause (5)) "performing any function in connection with the affairs of the Republic or of a local authority", whether or not he performs a judicial or *quasi*-judicial function. When a public officer of the kind mentioned in art.102(2)(a)(i) is doing an act without or in excess of jurisdiction given by law, a writ may issue without any inquiry as to whether he is acting judicially or *quasi*-judicially.[7] If want or excess of jurisdiction is found no valid objection can be taken that the officer is acting in executive or administrative capacity.[8] No such writ will be available where the officer has jurisdiction, but exercises it irregularly or erroneously as distinguished from illegally.[9] Under our Constitution if the error is one of law it goes to jurisdiction and the writ will issue. The jurisdiction to issue a writ in the nature of prohibition is different from the jurisdiction to issue an injunction. Injunction is issued against any party in a proceeding, but a writ in the nature of prohibition is addressed to the tribunal or public officer whose jurisdiction is challenged.[10]

5.82 This writ lies both for excess of jurisdiction and absence of

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[1] Ferris - The Law of Extra-ordinary Legal Remedies, published by Law Publishing Co., Karachi, Para 305)

[2] *East India Commercial Co. v. Collector of Customs*, AIR 1962 SC 1893; *Sewpujanrai v. Collector of Customs*, AIR 1958 SC 845

[3] *Muhammad Tofail v. Abdul Ghafoor*, PLD 1958 SC 201

[4] *Commissioner, H.R.E. v. Swamiar*, AIR 1954 SC 282; *Carl Still GmbH v. Bihar*, AIR 1961 SC 1615.

[5] *Ibid; Bidi Supply Co. v. India*, AIR 1956 SC 479; *A.G. of Australia v. The Queen*, PLD 1957 PC 115

[6] *Bidi Supply Co. v. India*, AIR 1956 SC 479

[7] *Muhammad Khan v. Additional Commissioner*, PLD 1964 Lah 401

[8] *Inayetullah v. M.A.Khan*, PLD 1964 SC 126

[9] *Narayan v. I.T.O.*, AIR 1959 SC 213

[10] *Hong Kong & Shanghai Banking v. Bhaidas*, AIR 1951 Bom 158

jurisdiction.[1] In *R. v. County of London Quarter Sessions*[2] one Arthur was bound over by the magistrate and was directed to execute personal recognisance bond for good behaviour. Arthur gave notice of appeal to the Quarter Sessions against the order. An application was moved to prohibit the Quarter Sessions from hearing the appeal and as the law did not provide for the appeal, a writ of prohibition was issued.[3] Where the petitioner was being prosecuted under s.7 of the Special Powers Act for the offence of absconding and failing to surrender pursuant to a detention order passed against him, the High Court Division issued a writ of prohibition as the detention order having been found to be without lawful authority, the Special Tribunal had no jurisdiction to proceed with the trial.[4] A writ in the nature of prohibition issues on the same grounds on which a writ in the nature of certiorari is issued; the only difference between the two is in the stage of the proceeding. A writ of certiorari will be issued when the proceeding is closed, while an order of prohibition can be issued only so long as the proceeding remains pending. It cannot be issued after the authority has ceased to exist or becomes *functus officio*.[5] But if a tribunal after becoming *functus officio* assumes jurisdiction to do something further the writ will lie.[6] Where a proceeding is partly within and partly without jurisdiction, the prohibition will lie against doing what is in excess of jurisdiction. Thus when a Collector of Customs imposed an invalid condition for the release of gold on payment of fine in lieu of confiscation, a writ was issued prohibiting the customs authorities from enforcing the invalid condition.[7] An application for an order of prohibition is never too late so long as there is something left for it to operate upon.[8] As regards the use of the remedy Lord Goddard observed –

> It would not be at all desirable to lay down a definite rule when a person should go to the tribunal or when he should come here for prohibition where the objection is that the tribunal has no jurisdiction ... For myself I should say that where there is a clear question of law not depending

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[1] *Govinda Menon v. India*, AIR 1967 SC 1274; *Assistant Collector v. National Tobacco*, AIR 1972 SC 2563

[2] [1948] 1 All E.R. 72

[3] see also *R v. West Kent*, [1951] 2 All E.R. 726

[4] *Anisul Islam Mahmud v. Bangladesh*, 44 DLR 1

[5] *Hari Vishnu Kamath v. Ahmed Ishaque*, AIR 1955 SC 233

[6] *R v. Campbell*, [1953] 1 All E.R. 684

[7] *Sewpujanrai v. Collector of Customs*, AIR 1958 SC 845

[8] *Estate Trust v. Singapore I.T.*, 1937 A.C. 898

> upon particular facts ... there is no reason why the applicant should not come direct to this court for prohibition rather than wait to see if the decision goes against him, in which case he has to move for a *certiorari*.[1]

5.83 ***Writ of Mandamus*** : The second part of clause (2)(a)(i) of art.102 confers power on the High Court Division to issue writs in the nature of *mandamus* to compel a person performing functions in connection with the affairs of the Republic or a local authority to do something that he is required by law to do. According to Ferris, "Generally speaking, it may be said that mandamus is a summary writ, issuing from the proper court, commanding the official or board to which it is addressed to perform some specific legal duty to which the party applying for the writ is entitled of legal right to have performed."[2] The difference between *mandamus* and prohibition is that *mandamus* commands a public functionary to do what he is under legal duty to do, while prohibition is issued to prevent him from doing what he is not permitted by law to do.

5.84 In the English and Indian jurisdictions there was a definite emphasis on the existence of a specific legal right of the applicant to insist upon performance by a public official of a definite legal duty.[3] In *M.S. Jain v. Haryana*[4] the Indian Supreme Court applied the *Lewisham Union* principle and observed, "no one can ask for a mandamus without a legal right. There must be a judicially enforceable right as a legally protected right before one suffering legal grievance can ask for a mandamus." It may be seen that in England the requirement of `specific legal right' of the applicant has been given up and the courts may issue *mandamus* even though the applicant has no specific legal right.[5] In *I.R.C. v. Federation of Self-employed*[6] the House of Lords discarded the *Lewisham Union* principle. Lord Scarman observed –

> The decision of the Divisional Court in *R v. Guardians of Lewisham*

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[1] *R v. Tottenham District Tribunal*, [1956] 2 All E.R. 863, 864-865

[2] The Law of Extra-ordinary Legal Remedies, para 187

[3] *R. v. Guardians of Lewisham Union*, [1897] 1 QB 498; *Hochtief Gammon v. Orissa*, AIR 1975 SC 2226

[4] AIR 1977 SC 276; *Ramesh Prasad v. Bihar*, AIR 1978 SC 327

[5] *R. v. Metropolitan Police Commissioner ex p. Blackburn*, [1968] 1 All E.R. 763; *R. v. Greater London Council ex p. Blackburn*, [1976] 3 All E.R. 184; *R. v. Devon and Cornwall Chief Constable ex p. Central Electricity Generating Board*, [1982] QB 458;

[6] [1981] 2 All E.R. 93

> *Union* ... was accepted as establishing that an applicant must establish ` a legal specific right to ask for the interference of the court' by order of mandamus ... I agree with Lord Denning MR in thinking this was a deplorable decision. It was at total variance with the view of Lord Mansfield CJ. Yet its influence has lingered on, and is evident even in the decision of the Divisional Court in this case. But the tide of developing law has now swept beyond it ...

In *Lakhi Ram v. Haryana*[1] the appellant prayed for *mandamus* challenging the action of the government expunging adverse remarks made in the annual confidential report of an officer claiming that the expungement would prejudice his chance of promotion. The High Court dismissed the application on the ground that the appellant had no *locus standi*. The Indian Supreme Court reversed the decision and remanded the case for disposal on merits. In *Fertilizer Corp. Kamgar Union v. India*[2] some observations have been made which further eroded the application of *Lewisham Union* principle. But the Indian Supreme Court has not clearly discarded that principle. In the Pakistan jurisdiction emphasis on the existence of a legal right of the petitioner to demand performance can be found.[3] In *Masudul Hasan v. Khadim Hussain*[4] the appellant who was a member of a Town Committee applied for *mandamus* for removal of the respondent as member of Town Committee because if the respondent remained a member of the committee it would materially affect the forthcoming election of the Chairman and thereby wrongfully injure the appellant's right. The Pakistan Supreme Court dismissed the appeal saying, "the interest of the petitioner was at best of an indirect nature. Merely as a member of the Town Committee, there did not reside in him a legal right to demand that the Collector should remove another member of the same Committee." But in a later case, the court did not demand of the applicant for *mandamus* a specific legal right and instead held –

> ... the right considered sufficient for maintaining a proceeding of this nature is not necessarily a right in the strict juristic sense but it is enough

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[1] AIR 1981 SC 1655

[2] AIR 1981 SC 344 ("If public property is dissipated, it will require a strong argument to convince the court that representative segments of the public or at least a section of the public which is directly interested and affected would have no right to complain of the infraction of public duties and obligations" - per Chandrachud CJ at p.350)

[3] *Pakistan v. Md. Sayeed*, 13 DLR (SC) 94

[4] PLD 1963 SC 203

> if the applicant discloses that he had a personal interest in the performance of the legal duty which if not performed or performed in a manner not permitted by law would result in the loss of some personal benefit or advantage or the curtailment of a privilege or liberty or franchise.[1]

5.85 In *Talekhal Progressive Fishermen v. Bangladesh*[2] the petitioner challenged the settlement of two fisheries contrary to the government policy on settlement and claimed that it was entitled to the settlement in terms of a certain government memorandum. The government policy had no statutory force and as such there was no question of requiring the public functionary to perform a legal duty. In rejecting the petition, the Appellate Division, however, referred to *Lewisham Union* and observed–

> the petitioner could not point out to any such specific legal right which inheres in him for which he claims the performance of the statutory duties conferred upon the public functionaries.[3]

5.86 In England the *Lewisham Union* principle was given up as it would have the effect of allowing the public functionaries a free hand in ignoring their public duties. In countries like ours it will have a far more serious effect as many instances of non-performance of legal duty by government and public functionaries will remain without remedy, thereby eroding the concept of rule of law and constitutionalism. This principle originated in England and when it has been discarded there, there is no rationale for insisting on the application of this principle in our country. It is submitted that the language of art.102(2) leaves no scope for application of the *Lewisham Union* principle in our jurisdiction. Art.102(2) does not require that the applicant for *mandamus* must have a 'specific legal right'; the only requirement is that he must be an 'aggrieved party'. It is important to note that art.31 provides a guarantee that no person in Bangladesh can be adversely affected except in accordance with law. Thus if a person is going to be affected by the failure of a public functionary to do what he is required by law to do, he can claim performance of the legal duty of the public functionary whether or not he has a specific legal right to claim

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[1] *Fazal Din v. Lahore I.T.*, 21 DLR (SC) 225

[2] 1981 BLD (AD) 103

[3] at p.104; *National Engineers v. Ministry of Defence*, 44 DLR (AD) 179; *Nurul Islam v. Secy. Ministry of Law*, 46 DLR 46

performance of the duty.

5.87 *Mandamus* may issue on any person performing functions in connection with the affairs of the Republic or of a local authority. Such a person must hold office of a public nature[1], that is, an office under the Constitution or a law relating to the affairs of the Republic or of a local authority. It will issue only when that public functionary has a public duty under a law and he refused to perform his legal duty; the duty may be judicial, *quasi*-judicial or purely administrative. The duty sought to be enforced must be a duty of a public nature, i.e., a duty created by the provisions of the Constitution or a statute or some other rule of common law or some rules or orders or notifications having the force of law.[2] The public duty need not, however, be always a statutory duty.[3] No *mandamus* can issue to compel the government to implement its policy[4] nor it can be issued merely on consideration of equity.[5] Inter-ministerial communications are mere policy guidelines which do not create legal right and cannot be enforced.[6]

5.88 Thus mandamus may issue on the government[7] to implement its own decision under certain circumstances[8], to pay leave salary[9], or allowance[10], or future salary[11], to restore seniority of a government servant[12] or to forward to the President a competent appeal of a government servant[13], to issue necessary clearance for delivery of

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[1] *Zainul Abedin v. Co-operative Bank*, 18 DLR (SC) 482

[2] See the definition of 'law' in art.152; *Bihar E.G.F. Co-operative Society v. Sipahi*, AIR 1977 SC 2149; *Chevron Lines v. Chairman*, BOGMC, 43 DLR 218 (Purchase Manual not framed under the authority of law has no statutory force and no mandamus can issue to compel compliance with the requirements of Purchase Manual)

[3] *Anadi Mukta Sadguru Trust v. Rudani*, AIR 1989 SC 1607

[4] *Yunus Mia v. Secy. Ministry of Public Works*, 45 DLR 498

[5] *Abed Ali v. Bangladesh*, 1 BLC 39

[6] *Abul Bashar v. Bangladesh*, 50 DLR (AD) 11; see also *Syeda Rafiqua Chowdhury v. Secy. Ministry of Comerce*, 3 MLD 160; *Kazi Mukhlesur Rahman v. Secy. Ministry of Law*, 2 BLC 286

[7] *Pakistan v. M.A. Hayat*, PLD 1962 SC 28

[8] *Bangladesh v. Amir Hossain*, 48 DLR (AD) 75; *Abdul Gafur v. Secy. Ministry of Establishment*, 1997 BLD 453; *Matiur Rahman v. Bangladesh*, 50 DLR 357

[9] *Mahboob Rabbani v. West Pakistan*, PLD 1963 Lah 53

[10] *Quazi Khan v. The State*, PLD 1965 Pesh 41

[11] *Wasi Haider v. West Pakistan*, PLD 1963 Kar 458

[12] *Pakistan v. Abdul Hamid*, 13 DLR (SC) 100

[13] *West Pakistan v. Mehboob*, PLD 1962 SC 433; *Abdur Razzaque v. Bangladesh*, 2

imported goods[1], on the Deputy Commissioner to implement an order rightly passed by his predecessor in giving effect to an order of the court[2] or to restore possession of property illegally taken over[3], to comply with the direction of the government to complete acquisition process and pay compensation upon settlement with the landowner[4], on Rajdhani Unnayan Kartripakya to mutate the name of a purchaser of land in its records[5], on a statutory Corporation to deliver possession of a firm and its assets to the applicant pursuant to the decision of the government[6], on the Port Authority to refund the rates collected without legal sanction[7], to direct police to prosecute an offender against law[8], on the University authority to comply with the principles of natural justice in disciplinary proceeding against a student[9], on an income tax officer to comply with the direction of the Income Tax Tribunal[10], on the licensing authority to determine an application for licence[11] or to reconsider an application for licence on proper grounds[12], on the Education Department of the government to decide a dispute between local education authorities[13], on an authority to supply certified copy of the order sheet of a proceeding before him[14], on the Presiding officer in an election to corporate, elective or municipal office to declare the candidate obtaining the highest vote as successful without praying for declaration of voidness of the impugned election result[15], on a municipal authority, on the Registrar of Joint Stock Companies[16], on the Registrar

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BLC 369

[1] *Green Pharmacy v. Bangladesh*, 42 DLR 307

[2] *Radha Kanta Banik v. D.C. Rangpur*, 31 DLR 352

[3] *Shahadat Ali v. Deputy Commr.*, 45 DLR 237

[4] *Birendra Kumar Dey v. D.C. Jessore*, Writ Petition No.272 of 1986 (unreported)

[5] *Qazi Kamal v. RAJUK*, 44 DLR (AD) 392; *Imam Dockyard & Engr. Ind.Ltd. v. RAJUK*, 2 BLC 202

[6] *Chairman, Steel Mill Corp. v. Masood Raza*, 30 DLR (AD) 169

[7] *QC Shipping Ltd. v. Chittagong Port Authority*, 51 DLR 64

[8] *Adams v. Metropolitan Police Commissioner*, [1980] RTR 289, cited in Wade's Administrative Law, 6th ed. p.699

[9] *University of Dacca v. Zakir Ahmed*, 16 DLR (SC) 722

[10] *Bhopal Sugar Ind. Ltd v. I.T.O. Bhopal*, AIR 1961 SC 182

[11] *R. v. Tower Hamlets London B.C. ex p. Kayene-Lavenson*, [1975] QB 431

[12] *R. v. London C.C. ex p. Corrie*, [1918] 1 KB 68

[13] *Board of Education v. Rice*, [1911] AC 179

[14] *Naimul Haq v. Deputy Commr.*, 45 DLR 520

[15] *Presiding Officer v. Sadaruddin*, 19 DLR (SC) 516

[16] *R. v. Registrar of Companies*, [1914] 3 KB 1161; *Abdur Rab v. Registrar. J.S.*

of Co-operative Societies[1], on the Registrar of the High Court acting as Taxing Officer[2], on the Port authority to allow exemption from river rates to which the applicants were entitled by virtue of an exemption notification[3] on a court or tribunal, but no writ can issue on a Judge of a superior court even if he is acting in another capacity as a *persona designata*[4] The writ can be issued on a college management constituted under the Trust Act.[5] A *mandamus* will lie to compel the restoration of a person to an office or franchise of a public character of which he has been wrongfully dispossessed.[6] No *mandamus* can issue to enforce an order which has been passed without lawful authority.[7]

5.89 The Constitution envisages separation of powers. Art.65 vests the legislative power of the Republic in Parliament. No other organ of the government can exercise the legislative power except as otherwise provided in the Constitution. Parliament has not been enjoined to act in aid of the Supreme Court in art.112. Consequently, a writ of *mandamus* cannot issue on Parliament to prevent it from considering a Bill which is alleged to be in violation of the Constitution[8], nor can the court issue a mandate to Parliament to enact a particular law.[9] In the same way, a court cannot direct a subordinate legislative authority to make or not to make a rule which it is competent to make.[10] In *Secy. Ministry of Finance v. Masdar Hossain*[11] it has been held that when Parliament or a subordinate legislative authority has made a constitutional deviation, the court can give the necessary direction to bring it back from the constitutional derailment. It is submitted that this holding is open to question. If Parliament has made a constitutional deviation, the court may declare the action to be without lawful authority or make

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Companies, PLD 1960 Dac 541

[1] *Damodor v. Co-op. Seeds Store*, 8 DLR 342

[2] *Mumtaz Mullick v. Taxing Officer*, PLD 1966 SC 753

[3] *Burmah Oil Company v. Trustees, Port of Chittagong*, PLD 1962 SC 113

[4] *Jamal Shah v. Election Commission*, 18 DLR (SC) 1

[5] *Anadi Mukta Sadguru Trust v. Rudani*, AIR 1989 SC 1607

[6] *B.S.I.C. v. Mahbub Hossain*, 29 DLR (SC) 41; *Faiz Ahmed v. Registrar of Co-op. Societies*, 14 DLR (SC) 183; *Zainul v. Multan Co-operative*, 18 DLR (SC) 482; *Zeaul Haq V. E.P. Co-op Society Ltd.*, 19 DLR 498

[7] *K.A. Rouf v. Bangladesh*, 1996 BLD 607

[8] *Chotey Lal v. U.P.*, AIR 1951 All 228

[9] *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27

[10] Ibid; *J & K v. Zakki*, AIR 1992 SC 1546

[11] 2000 BLD (AD) 104

recommendation for appropriate legislation and good governance requires Parliament to retrace its steps or rectify. But Parliament cannot be dictated and the court has no way of compelling Parliament to comply with the direction. Position with respect to subordinate legislative authority is, however, different. The rule making power of the President is, in fact exercised by the executive which has the constitutional obligation to act in aid of the Supreme Court and can be compelled to comply with the direction of the court. As a writ of *mandamus* is issued to compel performance legal duty, no court can give a direction to the executive government to refrain from enforcing a provision of law.[1]

5.89A The court does not issue writ of *mandamus* where it would be futile. But there may be situation in which refusal to grant the relief may pose serious threat to the polity. Where inertia of the investigating agency in investigating an offence was found because of the alleged involvement of persons holding high offices in the executive, the Indian Supreme Court adopted a method which it called 'continuing mandamus'. The court felt that one-time direction may not cure the inertia and decided to issue directions from time to time keeping the matter pending requiring the investigating agency to report the progress of investigation so that the court could ensure continuance of the investigation.[2] It is not feasible for the court to adopt such a measure generally, but dire situation needs drastic measures and there is no constitutional or legal bar to our Supreme Court adopting the method in appropriate cases.

5.90 *Discretionary power* : If a statute has given a discretion to a public functionary to exercise some power, no *mandamus* can issue to compel him to exercise the power since the existence of an obligatory duty is a precondition to the issuance of *mandamus*.[3] However, a duty to exercise discretion may be implicit in the grant of power. In *Julius v. Lord Bishop of Oxford*[4] Lord Cairns observed –

> ... there may be something in the nature of the thing empowered to be done, something in the object for which it is done, something in the title of the person or persons for whose benefit the power is to be exercised,

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[1] *Narinder v. Lt. Governor*, AIR 1971 SC 2399

[2] *Vineet Narain v. India*, AIR 1998 SC 889

[3] *A.K. Roy v. Union of India*, AIR 1982 SC 710; *Mysore v. Syed Mohammad*, AIR 1968 SC 1113; *Mysore v. Sheshadri*, AIR 1974 SC 460

[4] [1880] 5 App. Cas. 214, 223

> which may couple the power with a duty, and make it the duty of the person in whom the power is reposed, to exercise that power when called upon to do so.

Thus if the discretion granted is of such nature that it can be said to be a discretion coupled with a duty, the court may compel the authority clothed with the discretion to exercise the discretion.[1] S.10 of the Industrial Relations Ordinance, 1969 provides that the Registrar of Trade Unions may cancel the registration of a trade union if it has obtained registration by fraud or by misrepresentation. The Registrar registered a second trade union in one establishment. The first trade union applied to the Registrar for cancellation of registration of the second trade union complaining that the second trade union did not have 30% of the workers of the establishment as its members and had obtained registration by misrepresentation. The Registrar without making an inquiry into the allegation ordered for election for determination of the collective bargaining agent. On the application of the first trade union the High Court Division found that the Registrar had a discretion coupled with duty to take action and directed the Registrar to hold the inquiry.[2] The court cannot, however, dictate how or in which manner the authority is to exercise the discretion.[3] But where the authority having the discretion exercised it on irrelevant or wrong grounds or in exercising the discretion has left any relevant fact or circumstance out of consideration vitiating the exercise of the discretion or otherwise abused the discretion[4], the court may treat it as a failure to exercise discretion and direct the authority to exercise the discretion on consideration of the proper grounds.[5] When the discretion has been exercised properly in good faith, the court will not issue *mandamus* to control the exercise of discretion.[6]

5.91 *Notice demanding justice* : An application for *mandamus* has to be preceded by a demand made to the public functionary concerned for

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[1] *Commr. of Police, Bombay v. Gordhandas*, AIR 1952 SC 16

[2] *Titas Gas Karmachari Union v. Registrar, Trade Unions*, W.P. No.621 of 1990 (Unreported)

[3] *Quabil Ahmed v. Secretary, Ministry of Health*, 44 DLR 385; *Orissa v. Chandrasekhara*, AIR 1965 SC 532

[4] For discussion on abuse of discretion, see Para 5.75-5.80A

[5] *Authorised Officer v. A.W. Mallick*, 20 DLR (SC) 229; *Presiding Officer v. Sadaruddin*, 19 DLR (SC) 516; *Ghulam Mostafa v. Pakistan*, PLD 1966 SC 268

[6] *Vice Chancellor v. S.K. Ghose*, AIR 1954 SC 217

performance of the public duty sought to be enforced. It is only when the public functionary refused to perform or the refusal to perform may be inferred from the conduct of the public functionary, the application will be maintainable.[1] It has, however, been held in some cases that though it is the normal requirement to make a demand before filing an application, such a demand will not be necessary to maintain an application when in the facts and circumstances of a case it appears that making a demand and waiting for reply may seriously affect the interest of the applicant or that such a demand will serve no useful purpose and will be a mere idle ceremony.[2]

5.92 *Enforcement of the writ of mandamus*: Art.112 mandates that all authorities, executive and judicial, in the Republic shall act in aid of the Supreme Court. Thus it is the obligation of the executive government to comply with the direction given by the High Court Division. If it does not comply with the direction given by the High Court Division, the usual method of enforcing the judgment granting a writ of *mandamus* is by committing the concerned authority for contempt. But in order to commit for contempt, the direction must be of an absolute nature and not one allowing any discretion or option on the part of the concerned authority.[3]

5.93 ***Writ of Habeas Corpus***: Art.102(2)(b)(i) invests the High Court Division with power and obligation to issue a writ in the nature of *habeas corpus* when a case of unlawful detention is made out. It provides that on the application of any person the court may direct the person having custody of another to bring the latter before it so that it can satisfy itself that the detenu is not being held in custody without lawful authority or in an unlawful manner. The expression 'custody' is not confined to executive custody[4] and includes custody of private person also.[5] The High Court Division has power to issue the order of release of a person in custody under s.491 of the Code of Criminal

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[1] *Queen v. Mayor & Justices of Bodin*, [1892] 2 QB 21; *D.M. Lahore v. Raza Kazim*, 13 DLR (SC) 66

[2] *Zamiruddin Ahmed v. Bangladesh*, 1981 BLD 304; *Jhari Sohani v. East Pakistan*, 15 DLR 65; *Abdul Karim v. Deputy Commr.*, 15 DLR 483

[3] *Pakistan v. Mehrajuddin*, 11 DLR (SC) 260; *Pakistan v. Md. Sayeed*, 13 DLR (SC) 94; *Masood Raza v. M.A. Faiz and anr.*, Contempt Petition no. 4 of 1977 (unreported).

[4] *Bangladesh v. Ahmed Nazir*, 27 DLR (AD) 41

[5] *Ayesha v. Shabbir*, 1993 BLD 186; *Abdul Jalil v. Sharon Laily*, 50 DLR (AD) 55

Procedure and this power can be exercised *suo motu*.[1] But this power is hedged with limitation[2] and can be taken away or curtailed by ordinary legislation. In codifying the writ of *habeas corpus*, the framers of the Constitution have freed the jurisdiction from any limitation and have conferred wide power of judicial review[3] which can in no way be curtailed by any legislative device[4]. All illegal detentions by public functionaries involve infringement of fundamental rights guaranteed by arts. 31, 32 or 33 and as such the jurisdiction to issue the writ of *habeas corpus* shall have to be understood with particular reference to these articles of the Constitution. Speaking about this constitutional power, D.C. Bhattacharya J observed –

> The Constitution having highlighted the rule of law and the fundamental human rights and freedom in the preamble of the Constitution, and personal liberty being the subject of more than one fundamental right as guaranteed under the Constitution, a heavy onus is cast by the Constitution itself upon the authority, seeking to take away the said liberty on the avowed basis of legal sanction, to justify such action strictly according to law and the Constitution.[5]

The formulation of this power under art.102(2)(b)(i) is the same as that of art.98 of the Pakistan Constitution of 1962 and the decisions of the Pakistan Supreme Court are apposite in interpreting the provision of art.102(2)(b)(i).

5.94 Prior to the adoption of the Pakistan Constitution of 1962 the power of the High Courts depended on the language used in the statute on the basis of which a person was detained.[6] The question was how far

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[1] *State v. D.C. Satkhira*, 45 DLR 643 (High Court Division took action of the basis of news published in a newspaper)

[2] Sub-section (3) of s.491 provides that s.491 shall not apply to a person detained under any law providing for preventive detention. The High Court Division held that this sub-section will not bar the remedy under s.491 when a detention order is patently illegal or passed in colourable exercise of the detention law - *Panajit Barua v. State*, 50 DLR 399; *Pearu Md. Ferdous Alam v. State*, 44 DLR 603; *Sultanara Begum v. Secy. Ministry of Home*, 38 DLR 93

[3] *Aruna Sen v. Bangladesh*, 27 DLR 122, 142; *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1; *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (SC) 1

[4] *West Pakistan v. Shorish Kashmiri*, 21 DLR (SC) 1

[5] *Aruna Sen v. Bangladesh*, 27 DLR 122

[6] For a discussion of the position prior to 1962, see *Aruna Sen v. Bangladesh*, 27 DLR 122

the court could inquire into the legality of detention when an authority was authorised to detain any person on his subjective satisfaction that it was necessary to detain the person to prevent him from doing acts specified in the statute. Dealing with the power of the court under art.98(2)(b)(i) the Pakistan Supreme Court observed –

> Under the Constitution of Pakistan a wholly different state of affairs prevails. Power is expressly given under Article 98 to the superior Courts to probe into the exercise of public power of executive authorities, how high-so-ever, to determine whether they have acted with lawful authority. The judicial power is reduced to a nullity if laws are so interpreted that the executive authorities may make what statutory rules they please thereunder, and may use this freedom to make themselves the final judges of their own `satisfaction' for imposing restraints on the enjoyment of the fundamental rights of citizens. Art.2 of the Constitution[1] could be deprived of all its contents through this process, and the Courts would cease to be guardians of the nation's liberties.[2]

In *Abdul Baqui Balooch v. Pakistan*[3] the Pakistan Supreme Court reiterated this position in law and referring to the expressions 'without lawful authority' and 'in an unlawful manner' observed in *West Pakistan v. Begum Shorish Kashmiri*[4], "The Constitution, it appears, cast a heavy responsibility upon the court to satisfy itself with regard to both these two matters." The Appellate Division affirmed this position in law, while interpreting the nature and extent of the power of the High Court Division under art.102(2)(b)(i) and held that though a statute may give power to the executive authority to detain a person if in the opinion of the authority the condition for the exercise of the power under the statute is fulfilled, the authority must have such materials before it as would satisfy a reasonable person to come to the conclusion which has been reached by the authority and the authority must disclose the materials upon which it has so acted in order to satisfy the court that the authority has not acted in an unlawful manner.[5] The authority may

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[1] The provisions of art.2 of Pakistan Constitution of 1962 (which was not a fundamental right and was only directed against executive actions) have been incorporated in art.31 of our constitution as a fundamental right.

[2] *Ghulam Jilani v. West Pakistan*, 19 DLR (SC) 403, Para 23

[3] 20 DLR (SC) 249, Para 16

[4] 21 DLR (SC) 1, Para 19-20

[5] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1, Para 7

refuse to disclose the facts on the basis of which the detention order has been passed asserting privilege under s.132 of the Evidence Act[1], but s.162 of that Act gives the court ample power to inspect the documents in order to determine the validity of the claim of privilege. The privilege is a narrow one and it is lawful for the court to inspect the documents for the purpose of deciding that the privilege is not being claimed inadvisedly, lightly or as a matter of course.[2]

5.95 In examining whether the authority has acted without lawful authority or in an unlawful manner, the court does not act as a court of appeal and hence the court will not be concerned with the adequacy or sufficiency of the materials or grounds of detention and will not interfere to substitute its own opinion in place of the opinion of the detaining authority even if the court views the materials to be insufficient. The court, in exercise of the power of judicial review, will apply the test of reasonableness and inquire whether on the materials produced a reasonable man could have been satisfied or formed the opinion that it was necessary to detain a person.[3] If the answer is in the negative, the court will find the action unlawful. If on the materials produced two views are possible, the court will not interfere, for in that case it cannot be said that no reasonable man would have arrived at the conclusion reached by the detaining authority.

5.96 Now the question is what is meant by the expressions 'without lawful authority' and 'in an unlawful manner'. According to Hamoodur Rahman J, "It is agreed that within lawful authority will be comprised all questions of vires of the statute itself and of the person or persons acting under the statute, i.e. there must be a competent law authorising the detention and the officer issuing such an order must have been lawfully vested with the power"[4], while "in determining as to how and in what circumstances a detention would be detention in an unlawful manner one would inevitably have first to see whether the action is in accordance with law."[5] The same view has been expressed by the Appellate Division in *Abdul Latif Mirza v. Bangladesh*[6]. What has been

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[1] Proviso to art.33(4) permits such a course

[2] *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (SC) 1

[3] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1; *Abdul Baqui Balooch v. Pakistan*, 20 DLR (SC) 249

[4] *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (SC) 1, Para 20

[5] Ibid, Para 21

[6] 31 DLR (AD) 1, Para 6

stated by Hamoodur Rahman J is correct with reference to the Pakistan Constitution which did not make any provision for judicial review of law and the Pakistan Supreme Court took the view that the power is inherent in the constitution, it being a written one.[1] But art.102(1) makes a specific provision for judicial review of legislation[2] so that the question of *vires* of a statute need not always be covered in an inquiry as to 'lawful authority' which will cover the question whether the authority is competent under a statute to detain a person and the authority having such competence all other questions relating to the exercise of the power will be covered in an inquiry as to 'unlawful manner'. This distinction, however, is insignificant as it does not make any difference in the power of the High Court Division.

5.97 In stating what will be an unlawful action, Hamoodur Rahman J stated,

> Law here is not confined to statute law alone but is used in generic sense as connoting all that is treated as law in this country including even the judicial principles laid down from time to time by the Superior courts. It means according to the accepted forms of legal process and postulates a strict performance of all the functions and duties laid down by law. It may well be, as has been suggested in some quarters, that in this sense it is as comprehensive as the American 'due process' clause in a new garb. It is in this sense that an action which is *mala fide* or colourable is not regarded as action in accordance with law. Similarly, action taken upon no ground at all or without proper application of mind of the detaining authority would also not qualify as action in accordance with law and would, therefore, have to be struck down as being taken in an unlawful manner."[3]

The view of Hamoodur Rahman J has been fully endorsed by our Supreme Court.[4]

5.98 When a detention is challenged the question is whether the

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[1] *Fazlul Quader Chowdhury v. Abdul Haq*, 18 DLR (SC) 69, Para 8

[2] Art.102(1) relates to fundamental rights and all questions of unconstitutionality of a law for contravention of the provisions of the Constitution other than those of Part III can be said to be covered by the general principle of law relating to written constitutions.

[3] *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (SC) 1, Para 21

[4] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1; *Aruna Sen v. Bangladesh*, 27 DLR 122

detention is authorised by any law. According to the Indian Supreme Court, the court is to have regard to the legality of the detention at the time of return and not with reference to the date of the filing of the application[1] and hence if a fresh and valid order is passed by the time of the return of the *rule nisi* the court cannot release the detenu whatever might have been the defect if the order pursuant to which he was initially detained.[2] In another case the Indian Supreme Court observed that the court has to consider the legality of the detention on the date of hearing and if on the date of hearing it cannot be said that the detenu is wrongfully deprived of his personal liberty the writ cannot issue.[3] But the Pakistan Supreme Court held that the court will have to consider the legality of the detention as on the date of commencement of the detention.[4] In *Ghulam Jilani v. West Pakistan*[5] it was held that if the initial detention is illegal, the illegal detention cannot be continued by a subsequent valid and legal detention order. Having regard to the provision of art.2 of the Pakistan Constitution of 1962 (which is now incorporated as a fundamental right in art.31 of the Constitution) the Pakistan Supreme Court was correct in taking this view and the Appellate Division has taken the same view.[6]

5.99 It has been noticed that to avoid the difficulty, the detaining authority often cancelled the initial detention order and passed another legal order claiming that the subsequent order of detention was an independent detention order and the question turned on whether the subsequent order was at all an independent order or not. In *Abdul Latif Mirza v. Bangladesh* the period of detention ordered by the Deputy Commissioner expired and two days thereafter a fresh order by the government was served. The detention for the intervening two days was illegal. The government claimed that the subsequent detention order was

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[1] *Dr. B. Ramchandra v. Orissa*, AIR 1971 SC 2197; *Naranjan Singh v. Punjab*, AIR 1952 SC 106

[2] *Naranjan Singh v. Punjab*, AIR 1952 SC 106; *Gopalan v. India*, AIR 1966 SC 816 ("It is well settled that in dealing with a petition for habeas corpus the Court has to see whether the detention on the date on which the application is made to the Court is legal if nothing more has intervened between the date of the application and the date of hearing" - Para 5)

[3] *Talib Hussain v. J & K*, AIR 1971 SC 62

[4] *Abdul Baqui Balooch v. Pakistan*, 20 DLR (SC) 249, Para 30

[5] 19 DLR (SC) 403; see also *Arbab Md. Hashem Khan v. Crown*, 6 DLR (FC) 1; *East Pakistan v. Rowshan Bijoya Shaukat Ali Khan*, 18 DLR (SC) 214

[6] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (SC) 1

an independent one. But the court rejected the plea, stating -

> We cannot take a too technical and legalistic view on one of the most cherished fundamental human right, that of liberty of an individual ... We, therefore find that an illegal order of detention cannot be continued by a subsequent order of detention even though the latter is otherwise valid. An illegal detention equally cannot be continued by an alleged independent valid order of detention, if it, in effect, continues an illegal detention ... The order of the Government is no doubt an independent order, but it purported to continue the earlier detention. The detenu was not released on the expiry of thirty days of the order of the Deputy Commissioner. He continued in detention without any order whatsoever, and so his detention became an illegal detention, after the expiry of the thirtieth day. The Government continued this illegal detention by its order of 24.5.74. The order is independent but detention is not. There is no correlation between an independent order and the fact of independent detention. The order of detention purporting to continue an illegal detention cannot be sustained.[1]

D.C.Bhattacharya J disagreed with the majority on this point and observed, "... if the subsequent order of detention is completely an independent order and does not purport to continue the previous detention such an order, if otherwise unexceptionable, shall not be bad only because the previous detention was in fact illegal."[2] It is submitted that the majority view is correct and rightly points out that a technical and legalistic view cannot be taken in respect of one of the most cherished fundamental rights. In a *habeas corpus* proceeding, the court is concerned with the detention and looks at the detention order only to determine the validity of the detention as has been very clearly found by the court in *Sajeda Parvin v. Bangladesh*[3]. Unless the detenu is released actually and not merely on paper, a subsequent order of detention howsoever independent in fact continues the detention which is found

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[1] Ibid, para 23 & 24; (the decision in *Khair Ahmed v. Ministry of Home*, 40 DLR 353, apparently seems to be in conflict with *Abdul Latif Mirza*, but the two cases are distinguishable in that in *Khair Ahmed* there was no gap between the earlier and latter orders of detention to render the detention unlawful); *Monwara Begum v. Secy. Ministry of Home*, 41 DLR 35

[2] Ibid, para 67

[3] 40 DLR (AD) 178 ("The fact of detention and not the date of order of detention is the material point. In case of continued detention the aggrieved party has got a running grievance" - per M.H. Rahman J)

illegal. The minority view, it is submitted, is not in consonance with the provisions of art.31. If the minority view is adopted a citizen can be treated otherwise than in accordance with law and the illegal detention can be continued in fact by terming the latter order to be an order independent of the illegal order and the rule of law will be undermined.

5.100 In *Abdul Baqui Balooch v. Pakistan*, the Pakistan Supreme Court, while dealing with the contention of the government that the validity of a detention today has to be judged on the basis of the altered law, observed, "... a law is not to be given retrospective effect unless it is expressly or by necessary intendment made retrospective. This is not the case here ... The validity of that order, has , of necessity, therefore, to be judged on the basis of the law prevailing on that day (the date of detention order)"[1] This observation may create an impression that an illegal detention may be validated by a subsequent legislation with express retrospective effect. But such a legislation, it is submitted, may be violative of arts.31 and 32 of the Constitution.

5.101 An application for *habeas corpus* can be made by any person, who need not be a 'person aggrieved'. We may note here that for enforcement of all fundamental rights the application has to be filed by an aggrieved person and apparently when the detention of a person is challenged as violative of fundamental right guaranteed by art.32 or 33, the application has to be filed by an aggrieved person, but the application can be filed by any person if violation of fundamental right is not alleged or involved. It is very difficult to accept a contention that the condition for enforcement of the fundamental right relating to personal liberty is more onerous than the condition for issuance of an ordinary writ of *habeas corpus*. A reasonable and harmonious interpretation should be given and it should be taken that the requirement of a 'person aggrieved' to apply for the enforcement of fundamental rights is not applicable in respect of a petition involving detention of any person. In fact, the courts have not insisted on an application by an aggrieved person even though the petition for *habeas corpus* alleged violation of fundamental rights.

5.102 Although any person may file an application, the court insists that it should be filed by a person who is acquainted with the facts and circumstances of the detention. If a stranger is allowed to make a petition on behalf of a detenu it may amount to an abuse of the process

[1] 20 DLR (SC) 249, 259

of the court and complications may also arise in that once an order adverse to the detenu is passed, another application may be filed by the detenu or his relations on the ground that the earlier applicant had no authority to make the application. In *Azizul Haq v. East Pakistan*[1] it was held that a petition should normally be made by a relation of the detenu who is sufficiently close to him and/or by a friend who can satisfy the court that there is no one available among the relations of the detenu to challenge the detention and that the petitioner (if he is a friend) is very close to the detenu and knows all the facts and circumstances of the detention. Where a person was detained under a wholly illegal order of conviction, his son was allowed to file the application.[2] In the case of a minor, the application should be filed by a person who is entitled to the custody of the minor and in the absence of such a person by one who is interested in the welfare of the minor.[3]

5.103 As a general rule when a *rule nisi* is returned accompanied by a warrant of arrest or detention and the warrant is valid and proper in that it is relatable to the person arrested or detained and the authority issuing the warrant is authorised by the law under which the arrest is made, the return is a sufficient answer to the allegation of unlawful arrest or detention.[4] When a civil or revenue law provides for arrest or detention for any civil debt or revenue dues, an application for *habeas corpus* will lie on the ground that the requirements of the law have not been complied with[5] or on the ground that the detenu was not liable to be arrested under that law[6]. When a person is committed for contempt of a legislature, he may make an application on the ground of violation of his fundamental right.[7] The writ will lie for the release of a member of Parliament arrested in breach of the privilege against arrest.[8] But the writ cannot be granted in favour of a person committed to jail custody by a

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[1] PLD 1968 Dac 728; see *Kamaladevi Chattopadhya v. Punjab*, AIR 1984 SC 1895 (a social worker was allowed to challenge detention of several persons including children)

[2] *East Pakistan v. Hiralal*, PLD 1970 SC 399 (the son filed a writ of *certiorari* and the question of his locus standi became an issue. While holding in favour of the petitioner, the court further observed that this petition may also be treated as one of *habeas corpus*)

[3] *Raj Bahadur v. Legal Remembrancer*, 47 C.W.N. 507;

[4] *Janardhan v. Hydrabad*, AIR 1951 SC 217

[5] *Collector of Malabar v. Erimmal Ebrahim*, AIR 1957 SC 688;

[6] *Kapurchand v. Tax Recovery Officer*, AIR 1969 SC 662

[7] In Reference Under Art.143, AIR 1965 SC 845

[8] *Ansumali v. West Bengal*, AIR 1952 Cal 632

competent court by an order which *prima facie* does not appear to be without jurisdiction or wholly illegal.[1] It will be a sufficient answer to the *rule nisi* that the detenu is detained in execution of a sentence passed by a criminal court.[2] But if the order of conviction is not placed before the court and the warrant of commitment has been issued by an authority not authorised to issue it, the return showing that the detenu has been convicted is of no avail.[3] If there is any illegality in convicting a person, the remedy is by way of appeal or revision provided by the statute and not by way of writ of *habeas corpus*. The order of the court itself is the lawful authority of the detention. If, however, no appeal or revision is provided by law and the conviction is illegal, the detenu may apply to the High Court Division for a writ of *certiorari*.[4] Where the order of conviction is wholly without jurisdiction, a writ of *habeas corpus* may issue.[5] When a person is serving out a sentence passed by a court or tribunal, the jurisdictional validity of the order of conviction can be looked at.[6] But when the challenge is from an order of a Court Martial set up under the Army Act to enforce Military law, the jurisdiction to interfere is narrower than in the case of other courts or tribunals because of the provision of art.102(5). The High Court Division can interfere with the order of a Court Martial only if a case of *mala fide* or *coram non judice* is made out.[7] Where the detenu was convicted by a magistrate not being a special magistrate as required by the statute creating the offence, the conviction was without jurisdiction and the court observed that the application for *certiorari* by the son may be treated as one for *habeas corpus* and the relief may be given.[8] In the same way an application for *habeas corpus* will be competent when the conviction is void for denial of the constitutional right of the detenu.[9] The writ will lie to give effect to remission of sentence where the

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[1] *Dr. B. Ramchandran v. Orissa*, AIR 1971 SC 2197

[2] Ibid

[3] *Nasrin Kader Siddiqui v. Bangladesh*, 44 DLR (AD) 16

[4] *Rajab Ali v. East Pakistan*, 10 DLR 385; see also *State v. Zakir*, 45 DLR (AD) 163

[5] *Sentu v. Bangladesh*, 50 DLR 220 (where the fcts alleged and proved do not constitute the offence for which the petitioner is convicted)

[6] *Jamil Huq v. Bangladesh*, 34 DLR (AD) 125

[7] Ibid

[8] *East Pakistan v. Hiralal*, PLD 1970 SC 399

[9] *Moslemuddin Sikdar v. Chief Secretary, East Pakistan*, 8 DLR 526 (the detenu was denied the right to assistance of a lawyer)

convict has earned it.[1] The writ is available against any wrongful detention whether by a public functionary or by a private person.[2] Where a mother's lawful custody of minor children is denied, she can avail the remedy under art.102.[3] Detention of a major girl who is neither accused not witness in a case even in judicial custody is illegal.[4]

5.104 When a person is detained under a law providing for detention without trial, a writ of *habeas corpus* will issue if the law is unconstitutional or the law being valid, the detention order is *ultra vires* the law. The law relating to preventive detention may be found unconstitutional for infringement of fundamental rights. When the law is not alleged or found to be violative of any provision of the Constitution, the inquiry regarding legality of the detention is limited to the following

(1) whether the detention order is on the face of it invalid;
(2) whether the authority acting under the law is a competent authority in terms of that law;
(3) whether the authority acted within the limits and fulfilling the conditions prescribed by the law; and
(4) whether the authority in acting violated any provision of the Constitution.

In making the inquiry it is to be remembered that every detention without trial and conviction is *prima facie* unlawful and the onus is upon the detaining the authority to justify the detention by establishing the legality of its action according to the principles of law.[5] Where the liberty of a citizen is concerned, the court will construe the government orders and actions very strictly and always beneficially in favour of the subject, but the court may not set aside the order on a mere technicality which may be the handiwork of a foolhardy official.[6]

5.105 The first inquiry is whether on the face of it the detention order is valid and the detention order has been served on the detenu. If the

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[1] *Lt. Col. Bhattacharya v. State*, 16 DLR (SC) 442; *In Re Madhu Limaye*, AIR 1969 SC 1014

[2] *Ayesha Khatun v. Major Shabbir*, 1993 BLD 186 (writ petition against the father of a child who illegally took away the child from the mother and detained the child)

[3] *Abdul Jalil v. Sharon Laily*, 50 DLR (AD) 55

[4] *Rehana Begum v. Bangladesh*, 50 DLR 557

[5] Per Lord Atkin in *Liversidge v. Anderson*, [1942] AC 206; *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (SC) 1, 15; *Aruna Sen v. Bangladesh*, 27 DLR 122, 134

[6] *Bangladesh v. Dr. Dhiman Chowdhury*, 47 DLR (AD) 52

detention order has not been served, the detention will be illegal.[1] The detention order will be invalid if it does not refer to the law under which it has been made or if the law referred to does not authorise the detention or if there is no statement in the order about compliance of certain matters which the law requires to be stated in the detention order.[2] The second inquiry is whether the authority which made the detention order is authorised under the relevant law to make the order. In rare cases it will be found that the detention order has been made by a person not competent to pass it. When the detenu alleges that his detention was not ordered by the appropriate person, the government is required to disclose the necessary facts to satisfy the court that the order was passed by the proper person in accordance with the Rules of Business.[3] The detention will also be invalid if the matter has not been referred to the Advisory Board or the Advisory Board has not approved the detention within the time stipulated in the law and at any rate within six months as prescribed by art.33 of the Constitution.[4]

5.106 The next inquiry is whether the detaining authority acted within the limits and fulfilling the conditions of the law. A preventive detention law authorises public functionaries to order detention of a person on being satisfied or on having formed an opinion that the detention is necessary to prevent the person from doing certain acts specified in the law. This satisfaction or opinion must be based on materials. If it is found that the detaining authority has acted mechanically without applying its mind to the question, the detention will be found invalid.[5] When the detention order did not mention that the detention of the detenu was necessary to prevent him from doing any prejudicial act, the detention was held to be without any legal authority.[6] The facts and materials must co-exist with the order of detention and the

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[1] *M.A. Hashem v. Bangladesh*, 1 BLC 5; see also *Mohammad Ali v. Bangladesh*, 47 DLR 350 (A writ of habeas corpus will not be maintainable where the detention order has been passed but the person concerned has not been detained)

[2] *Anwar v. Bangladesh*, 28 DLR 428 (the Court found the detention unlawful as the detention order did not indicate the nature of the prejudicial activity)

[3] *Bangladesh v. Dr. Dhiman Chowdhury*, 47 DLR (AD) 52

[4] *Mansur Ali v. Secy. Ministry of Home*, 42 DLR 272

[5] *Rama Rani v. Bangladesh*, 40 DLR 364 (the detention order was in cyclostyled form (in which the name of the detenu was put) mentioning five different kind of prejudicial activities, the detaining authority not being sure about the exact kind of prejudicial activity for which the detenu was sought to detained)

[6] *Tahera Islam v. Secretary, Home*, 40 DLR 193

satisfaction or the opinion of the detaining authority must be based on such facts and materials. Thus absence of nexus between some of the reasons shown in the detention order and the facts and reasons disclosed in the grounds supplied may lead to the conclusion of non-application of mind by the detaining authority.[1] Where the grounds of detention merely repeat the language of the law and nothing else, it betrays non-application of mind by the detaining authority.[2] In the same way, if the detention order mentions particular provisions of the detention law and the grounds relate to some other provisions of that law, the detention is held illegal.[3] Art.33(4) requires that the detenu will have to be supplied with the grounds of detention and when no grounds are supplied to the detenu the detention shall be unlawful. Where the detention order mentioned five different kind of prejudicial acts and the grounds supplied did not cover one of such prejudicial acts, the detention was held to be unlawful.[4] If the law prescribes that the grounds are to be supplied within a certain period, supply of the grounds within the specified time is mandatory and failure to supply the grounds within the specified period renders the detention unlawful.[5] If the detention law does not prescribe any time for serving the grounds, the requirement of art.33(4) will be fulfilled if the grounds are supplied within a reasonable time. What time will be reasonable will depend on the facts and circumstances of each case, but as the facts and materials must co-exist with the order of detention and as one detention law prescribes 15 days' time, the court may not be inclined to hold more than 15 days' time to be reasonable under any circumstance.[6] It may be argued that even 15 days is too long having regard to the fact that the grounds must co-exist.

5.107 The requirement of supply of the grounds mandated by the Constitution is not a mere formality and is intended as a *post facto* compliance of the principles of natural justice so that the detenu may

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[1] *Khair Ahmed v. Ministry of Home*, 40 DLR 353

[2] *Amaresh Chandra v. Bangladesh*, 31 DLR (AD) 240

[3] *Ranabir Das v. Ministry of Home*, 28 DLR 48; *Tahera Islam v. Secretary, Home*, 40 DLR 193

[4] *Rama Rani v. Bangladesh*, 40 DLR 364

[5] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1,14; *Farida Rahman v. Bangladesh*, 33 DLR 130; *Shyam Sunder Rajgharia v. M.A. Salam*, 1988 BLD 127; *Khair Ahmed v. Ministry of Home*, 40 DLR 353; *Sayedur Rahman v. Secretary, Home Affairs*, 1986 BLD 272

[6] see the observation of the Court in *Dr. Habibullah v. Secretary, Ministry of Home Affairs*, 41 DLR 160

have an opportunity of controverting the grounds of detention and disabuse the authority about any misapprehension about any fact. In that view of the matter, the reasons stated in the initial detention order cannot be a substitute of the grounds required to be communicated[1] and the grounds must not be vague or indefinite and must be of such specificity as would enable the detenu to make a meaningful representation to the detaining authority.[2] Thus if the grounds supplied are vague or indefinite and the court is of the opinion that it was not possible for the detenu to make a proper representation, the detention will be unlawful.[3] When the grounds mentioned that the detenu was an active member of a party which had the programme of overthrowing the government and he organised and participated in the prejudicial activities of the party in the district of Pabna and addressed large number of public meetings at different places within Serajganj sub-division and vehemently criticised the fundamental principles of the Government of Bangladesh established by law, but did not give material particulars as to time, place and the nature of the acts, the court found the grounds too vague to sustain the detention order.[4]

5.108 The grounds having been supplied, the inquiry of the court will be whether the grounds are relatable to the provisions of the detention law and whether the grounds are vague and indefinite. A detention for non-payment of loan money was held illegal as it was not a prejudicial act within the meaning of the Special Powers Act.[5] The grounds which form the basis of satisfaction when formulated are bound to contain certain facts, but mostly they are themselves deductions of facts from

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[1] *Chunnu Chowdhury v. D.M.*, 41 DLR 156

[2] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1; *Ahmed Nazir v. Bangladesh*, 27 DLR 199 (in this case the Court found that the grounds were not vague); *Mansur Ali v. Secy. Ministry of Home*, 42 DLR 273; *Habiba Mahmud v. Bangladesh*, 45 DLR (AD) 89; *Maksuda Begum v. Secy. Ministry of Home Affairs*, 52 DLR 174

[3] *Ranabir Das v. Ministry of Home*, 28 DLR 48; *Rama Rani v. Bangladesh*, 40 DLR 364; *Shyam Sunder Rajgharia v. M.A. Salam*, 1988 BLD 127 (the grounds stating generally that the detenu was a black-marketeer and indulged in Hundi business and his activities were prejudicial to economic interest of the state and maintenance of law and order without giving any particulars, the grounds were held vague and indefinite); *Khair Ahmed v. Ministry of Home*, 40 DLR 353; *Sekendar Ali v. Bangladesh*, 42 DLR 346; *Azizul Haq v. Bangladesh*, 42 DLR 189; *Mansur Ali v. Secy. Ministry of Home*, 42 DLR 273; *Farzana Haq v. Bangladesh*, 1991 BLD 533

[4] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1,12.

[5] *Bangladesh v. Mirza Ali*, 2 MLR (AD) 300

facts. But it is not every detail in the possession of the government in respect of a detenu that must be cited in the grounds furnished. It is not the intention of the Constitution that the grounds to be furnished should be set out with particularity and exactness of a charge of a criminal trial.[1] The document containing grounds must be construed as a whole. It is a fundamental mistake to make a dissection of the grounds which is a composite piece and then to analyse them in isolation finding fault with each dissected part.[2] For failure to procure sufficient quantity of paddy from the Union, its Chairman was detained under the Special Powers Act, but the court held that any activity which may prejudice the supply and services essential to the community did not include the failure to procure paddy and declared the detention to be unlawful.[3] Criticism of an ideology, namely, Mujibbad, cannot be a prejudicial act within the meaning of the Special Powers Act and detention on that ground and on the grounds that the detenu was a critic of the then ruling party was held unlawful.[4] The court will inquire whether the satisfaction of the detaining authority was based on materials[5] and for that matter shall examine the grounds of detention. If necessary, the court may require the detaining authority to produce the materials in support of the grounds before the court.[6] The court shall examine whether the materials are such that a reasonable man could have come to the conclusion reached by the detaining authority.[7] Where the detenu was detained for making prejudicial speech on a particular day as the District General Secretary of J.S.D., but no supporting materials were placed before the court by furnishing the extract of the speech, the court declared the detention to be unlawful.[8] In some cases it has been held that when specific case has

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[1] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1

[2] *Bangladesh v. Dr. Dhiman Chowdhury*, 47 DLR (AD) 52

[3] *Naderuzzaman v. Bangladesh*, 27 DLR 304

[4] *Md. Anwar v. State*, 29 DLR 15; *Shamsuddin v. Bangladesh*, 28 DLR 117 (collection of money for construction of Ananda Bazar may under certain circumstances make the detenu liable for breach of trust or fraud, but cannot constitute a ground for preventive detention under special Powers Act)

[5] *Asmatullah v. Bangladesh*, 28 DLR 22; *Faisal Mahtab v. Bangladesh*, 44 DLR 168

[6] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1; *Ahmed Nazir v. Bangladesh*, 27 DLR 199; *Faisal Mahtab v. Bangladesh*, 44 DLR 168

[7] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1; *Aruna Sen v. Bangladesh*, 27 DLR 122; *Khair Ahmed v. Ministry of Home*, 40 DLR 353; *Habiba Mahmud v. Bangladesh*, 45 DLR (AD) 89; *Farzana Haq v. Bangladesh*, 1991 BLD 533

[8] *Selina Begum v. Bangladesh*, 27 DLR 291; *Md. Asmatullah v. Bangladesh*, 28 DLR 22 (though the Court was speaking about 'sufficient materials', the discussion shows

been started on certain facts, those facts cannot be the basis of preventive detention.[1] The principle is too broadly stated. This may be a correct proposition when it involves minor offences. But where the specific case involves a serious offence and the nature of the act is such that the detaining authority acting reasonably may form an opinion that it is necessary to detain the person to prevent him from doing prejudicial acts, the detention may not be unlawful.[2] Thus if a man is involved in a number of cases of rioting with deadly weapon, it may be the basis of a valid detention order even though a specific case has been started.

5.109 Though the court will not go into the question of adequacy or sufficiency of the materials, the court will interfere if it finds that the order of detention has been passed upon consideration of the grounds which are irrelevant for the purpose of the law or has left out of consideration relevant materials. Where the detenu is detained on the ground that he was an active member of a party whose programme was to overthrow the government and started lawless activities in furtherance of the programme and in the meanwhile that government had been overthrown, the ground is irrelevant for the continued detention of the detenu.[3] The ground that the detenu had committed a crime one year before the order of detention without any further statement that the detenu has since repeated the criminal act or that there is likelihood of his repeating such act is irrelevant as for an individual isolated act of crime preventive detention law cannot be resorted to unless the authority has materials to apprehend recurrence of the crime.[4] If the detaining authority has acted on several grounds some of which are irrelevant, vague or non-existent, the court will hold the detention to be unlawful as it is not possible for the court to determine how far the detaining authority has been influenced by the irrelevant, vague or non-existent grounds and whether the authority would have passed the detention order had it not taken the irrelevant, vague or non-existent grounds into consideration.[5] But if there are materials to hold that the ground which is

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that the Court was applying the reasonableness test)

[1] *Sayedur Rahman v. Secy. Ministry of Home*, 1986 BLD 272; *Shamsuddin v. Bangladesh*, 28 DLR 117; *Shahidul Haq v. East Pakistan*, 20 DLR 1005; *Mansur Ali v. Secy. Ministry of Home*, 42 DLR 273; *Azizul Haq v. Bangladesh*, 42 DLR 189

[2] *Habiba Mahmud v. Bangladesh*, 45 DLR (AD) 89; see *Mominul Haq v. Bangladesh*, 1993 BLD 91

[3] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1,11

[4] Ibid; *Habiba Mahmud v. Bangladesh*, 45 DLR (AD) 89

[5] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1 (per D.C. Bhattacharya J); *Krisna*

is bad or irrelevant is of inconsequential nature, and that may be in rare cases, then the court may sustain the order of detention, but that will depend upon the facts of a particular case.[1]

5.110 The court will also hold a detention unlawful if the court on materials produced before it comes to a finding that the detention order is vitiated by malice in law or malice in fact. If the court finds that the detention order has been passed for purposes not authorised by law[2] or for mixed purposes, some authorised and others not authorised, the detention will be held unlawful.

5.110A When an order of detention is challenged, the burden of proof that the detention is valid is on the State which has to be discharged by an affidavit and producing the materials. If no affidavit is filed controverting the allegations made in the writ petition, the State will be taken to have failed in discharging the burden.[3] But if it is manifest from the writ petition itself that the cause or the manner of detention stands adequately explained and justified on the face of it, the State may not file an affidavit and may support the detention orally relying on the writ petition.[4]

5.111 In exercising the power under art.102(2)(b)(i) the court is concerned with the detention of the detenu and the court will examine the detention order to find out whether the detention is valid. Thus the writ will lie when the detention continues even after the period mentioned in the detention order has expired. Where the detention order under challenge becomes stale with the lapse of time or is withdrawn and the detention is continued by a fresh order, it is not necessary to file a fresh application challenging the subsequent detention order as the

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Gopal v. Bangladesh, 31 DLR (AD) 145; *Aruna Sen v. Bangladesh*, 27 DLR 122; *Humayun Kabir v. State*, 28 DLR 259; *Hasina Karim v. Bangladesh*, 44 DLR 366; *Jahanara Begum v. State*, 46 DLR 107; *Mahboob Anam v. East Pakistan*, PLD 1959 Dac 774; *Rameswar Lal Patwari v. Bihar*, AIR 1968 SC 1303; *Motilal Jain v. Bihar*, AIR 1968 SC 1509.

[1] *Krisna Gopal v. Bangladesh*, 31 DLR (AD) 145

[2] *Sajeda Parvin v. Bangladesh*, 40 DLR (AD) 178 (Where detention was ordered to prevent the detenu from indulging in prejudicial activities, but the Home Minister stated in Parliament that he has been detained to prevent him from escaping from the clutches of law, the court held that the detention order was passed for collateral purposes and was illegal.)

[3] *Shameem v. Bangladesh*, 47 DLR (AD) 109

[4] *Nasima Begum v. Bangladesh*, 49 DLR (AD) 102

writ petition is maintainable so long as the detention continues whether under the impugned order or under any subsequent order.[1] A *habeas corpus* proceeding is not maintainable if the person concerned has been released. But a *certiorari* proceeding is maintainable after release from detention for declaration that the order of detention was without lawful authority.[2]

5.112 ***Writ of Quo Warranto***: Art.102(2)(b)(ii) provides that on the application of any person the High Court Division may inquire whether a person holding or purporting to hold any public office is holding it under a legal authority. This is a jurisdiction to issue writ in the nature of *quo warranto*. This writ is used to ensure that no one can hold any public office without having a valid claim to that office.[3] The writ lies "against a person who claimed or usurped an office, franchise or liberty, to inquire by what authority he supported his claim, in order that the right to the office or franchise might be determined. It also lay in cases of non-user, abuse, or long neglect of a franchise."[4] "Broadly stated, the quo warranto proceeding affords a judicial inquiry in which any person holding an independent substantive public office, or franchise, or liberty, is called upon to show by what right he holds the said office, franchise or liberty; if the inquiry leads to the finding that the holder of the office has no valid title to it, the issue of the writ of quo warranto ousts him from that office. In other words, the procedure of quo warranto confers jurisdiction and authority on the judiciary to control executive action in the matters of making appointments to public offices against the relevant statutory provisions; it also protects a citizen from being deprived of a public office to which he may have a right."[5]

5.113 In order that this writ may issue, the office must be a public office of a substantive character[6] created by the Constitution, statute or

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[1] *Sajeda Parvin v. Bangladesh*, 40 DLR (AD) 178; *Ahmed Nazir v. Bangladesh*, 27 DLR 199; *Alam Ara Huq v. Bangladesh*, 42 DLR 98 (when brought to the notice of the court each and every order passed while the detention continues will come under scrutiny for satisfaction of the Court that the detenu is not being held in custody without lawful authority or in an unlawful manner)

[2] *Mirza Ali v. State*, 43 DLR 144 affirmed in *Bangladesh v. Mirza Ali*, 2 MLR (AD) 300

[3] *University of Mysore v. Govindrao*, AIR 1965 SC 491

[4] Halsbury - Laws of England, 4th ed., vol.1, para 169

[5] *University of Mysore v. Govinda Rao*, AIR 1965 SC 491

[6] *R. v. Speyer*, [1916] 1 KB 595

statutory power.[1] "A public office is a right , authority and duty, created and conferred by law, by which an individual is vested with some portion of the sovereign functions of the government to be exercised by him for the benefit of the public, for the term and by the tenure prescribed by law"[2] and thus it is an office in which the public have interest. By the expression 'substantive character' is meant that the holder of the office must be an independent official and not merely one discharging the function as a deputy or servant at the will and pleasure of others.[3] But the writ will lie in respect of an office held at pleasure, provided that the office is one of a public and substantive character.[4] It has been held that the office of Speaker of a legislature is a public office and writ can issue to him to inquire by what authority he supported his claim to the office.[5] In *G.D. Karkare v. T.L. Shevde*[6] the petitioner prayed for the writ on the allegation that the respondent was not qualified to be the Advocate-General as he exceeded the age limit and the court held that the office of the Advocate-General is a public office. The membership of Privy Council was held to be a public office though held at the pleasure of the Crown.[7] The office the of Chief Justice or a Judge of the High Court is a public office and a writ may lie against him.[8] The writ will lie against Ministers,[9] members of Parliament[10], Chairman of municipality[11], members of Municipal Board[12], Administrator of Municipal Corporation appointed by the government[13],

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[1] *R. v. Saint Martin's Guardians*, [1851] 7 QB 149

[2] Ferris - Extra-ordinary Legal Remedies, Para 145; *Abdur Rahman v. Group Captain (Retd) Shamim Hossain*, 49 DLR 628 (Member (Administration) of Civil Aviation Authority is not a public office as the tenure is not prescribed by any law and is not invested with any portion of the sovereign functions of the government)

[3] *R. v. Speyer*, [1916] 1 KB 595; *Darley v. R.*, [1846] 12 Cl and Fin 520 = 8 ER 1513

[4] Halsbury's Laws of England, 4th ed. vol.1, para 172

[5] *Anand Behari v. Ram Sahay*, AIR 1952 MB 31

[6] AIR 1952 Nag 330; see *Dr. Kamal Hossain v. Serajul Islam*, 21 DLR (SC) 23

[7] *R. v. Speyer*, [1916] 1 KB 595

[8] *Parameshwaran v. State Prosecutor*, AIR 1951 T.C. 45; *Queen Empress v. Ganga Ram*, ILR 16 All 136

[9] *Fazlul Quader Chowdhury v. Abdul Haq*, 18 DLR (SC) 69

[10] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203; *Zahedul Islam Khan v. H.M. Ershad*, 6 BLC 301

[11] *Venkataraya v. Shivarama*, AIR 1961 AP 250

[12] *Bindra Ban v. Sham Sunder*, AIR 1959 Punj 83

[13] *Awas Samasya v. M.P.*, AIR 1983 M.P. 12

Chief Engineer of Municipal Board[1] member of Bar Council[2], Chairman or member of Union Parishad[3], member of Senate or Syndicate of a University[4], Dean of a Faculty in a University[5], Chief Metropolitan Magistrate[6], government pleader[7] or against members of civil service[8]. If there was any complaint about the appointment or promotion of an officer who was not eligible under the rules to be appointed or promoted, the proper remedy was to make an application for *quo warranto*.[9] The writ will not issue to question the claim to any office of a private association, institution or college or school or a private corporation.[10] Professors and Readers of Mysore University were not held to be holding any public office and no writ would lie against them.[11] Appointment made as stop-gap arrangement such as an appointment of a Chief Minister pending his election within six months was held not liable to be questioned.[12]

5.114 The person asked to show cause as to his entitlement to the office must be in actual possession of the office.[13] Thus a writ petition in the nature of *quo warranto* questioning the election of the President of the Republic was not maintainable when the President elect had not yet taken oath of office.[14] Similarly, where the election of a Chairman of a local council was challenged after declaration of the result of the election, but before the respondent took oath and entered the office the

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[1] *Asghar Ali v. Dhirendra Nath*, 49 C.W.N. 658

[2] *Dr. Kamal Hussain v. Serajul Islam*, 21 DLR (SC) 23

[3] *Mostafa Hossain v. S.M. Faruque, 40 DLR (AD) 10; Farid Mia v. Amjad Ali*, 42 DLR (AD) 13; *Mohammad Sadeque v. Rafique Ali*, PLD 1965 Dac 330

[4] *Satish Chandra v. University of Rajsthan*, AIR 1970 Raj 18; *Ajoy Kumar v. Saila Behari*, AIR 1957 Orissa 159

[5] *Rameswaram v. University of Jodhpur*, AIR 1974 Raj 255

[6] *Idrisur Rahman v. Shahiduddin*, 1999 BLD 291

[7] *Ram Chandran v. Alagiriswami*, AIR 1961 Mad 450

[8] *Ghulam Hussan v. India*, AIR 1973 SC 1138

[9] Ibid

[10] *Azizur Rahman v. Nasiruddin*, PLD 1965 SC 236; *Jamalpur Arya Samaj v. Daulat Ram*, AIR 1954 Pat 294; *Amarendra v. Narendra*, AIR 1953 Cal 114

[11] *Venkateshwami v. Univ. of Mysore*, AIR 1964 Mys 159; *S.B. Roy v. P.N. Banerjee*, 72 CWN 50

[12] *Har Saran Varma v. Chandra Bhan Gupta*, AIR 1962 All 301

[13] Ferris - Extra-ordinary Legal Remedies, para 146

[14] *Abu Bakr Siddiqui v. Mr. Justice Shahabuddin*, 49 DLR 1 (It was, however, held that the petition could be treated as one of *certiorari*)

application for writ was held non-maintainable.[1] Where a member of a legislature has tendered resignation, but the Speaker has not determined its genuineness, it was held that the writ petition filed before the decision of the Speaker was premature.[2]

5.115 The writ will issue where there is a clear violation of any constitutional provision[3] or any provision having the force of law[4] as distinguished from an administrative instruction[5] in entering or holding the public office. A person will be found to hold the public office without lawful authority if he is not qualified to hold the office[6] or some mandatory provision of law which cannot be cured as an 'irregularity' has been violated in making the appointment or in entering the office[7] or when the appointment has been made by a person who had no authority to appoint.[8] The court will issue the writ in respect of an elective office if the holder of the office is disqualified at the time of election or thereafter[9] or where the election has been held without any authority of law[10], or there was an irregularity resulting in people being unable to express their views properly[11] or the election was held on the basis of an electoral roll prepared in contravention of the mandatory provision of law[12].

5.116 Art.102(2) does not require that the applicant for a writ of *quo warranto* must be an aggrieved party.[13] Any person may apply as the

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[1] *Farid Mia v. Amjad Ali*, 42 DLR (AD) 13; *Warris Miah v. Secy. Ministry of LGRD*, 41 DLR 51; *Parmatma Ram v. Shri Chand*, AIR 1962 H.P. 19

[2] *Surat Singh v. Sudama Prasad*, AIR 1965 All 536

[3] *Fazlul Quader Chowdhury v. Abdul Haq*, 18 DLR (SC) 69; *Baijnath v. U.P.*, AIR 1965 All 151

[4] *Statesman v. Deb*, AIR 1968 SC 1495

[5] *Alex v. Urmese*, AIR 1970 Ker 312

[6] *Mostafa Hussain v. S.M. Faruque*, 40 DLR (AD) 10; *Shamsul Huq Chowdhury v. Justice Abdur Rouf*, 49 DLR 176; *Pentiah v. Muddala*, (1961) 2 SCR 295

[7] *Shamsul Huq Chowdhury v. Justice Abdur Rouf*, 49 DLR 176; *University of Mysore v. Govind Rao*, AIR 1965 SC 491

[8] *Joseph v. Sukumaran*, AIR 1987 Ker 140

[9] *Mostafa Hussain v. S.M. Faruque*, 40 DLR (AD) 10; *Md. Yousuf v. West Pakistan*, 22 DLR (SC) 367; *Zahedul Islam Khan v. H.M, Ershad*, 6 BLC 301

[10] *Kasinath v. Bombay*, AIR 1954 Bom 41

[11] *Bhairulal v. Bombay*, AIR 1954 Bom 116

[12] *Nityananda v. Khalil*, AIR 1961 Punj 105; *Hafiz v. State*, AIR 1967 M.P. 257

[13] *Dr. Kamal Hussain v. Serajul Islam*, 21 DLR (SC) 23; *Mohammad Sadeque v. Rafique Ali*, PLD 1965 Dac 330; *Abu Taher Mia v. Farazuddin*, 41 DLR 543

inquiry relates to a matter in which the public are interested.[1] Any member of the public acting in good faith whose conduct does not disentitle him to an equitable relief may apply for the writ without showing any violation of his legal right.[2] A member of the legislature will have *locus standi* to apply for the writ if he *bona fide* believed that the Speaker of the legislature held his office without lawful authority.[3] The relief is discretionary and hence in an application for *quo warranto* it is legitimate for the court to examine the *bona fide* of the applicant and where the applicant is found to have an ulterior motive[4], or is not playing his own game and filed the writ petition not for vindication of any public right or for redress of public wrong but to redeem the discomfiture of the defeated candidates[5] no relief will be granted. The court will not listen to a relator, as a mere stranger, to disturb a corporation with which he has no concern, nor even to a corporator who has acquiesced or perhaps concurred in the very act which he afterwards comes to complain of when it suits his purpose.[6] It is not a writ of course on sheer technicalities on a doctrinaire approach.[7] Where the title to a corporate office is in question, the court will not grant leave to a relator to file a *quo warranto* information as a matter of course simply because a reasonable doubt as to the legal validity of the title is shown; but the court will take into consideration the consequences, which will be likely to follow if the writ is issued and also all the circumstances of the application[8] unless the illegalities are grave and manifest as distinguished from breach of technical rules.[9] The writ will not be issued where it would be a futile exercise. In *P.L. Lakhanpal v. A.N. Roy*[10] the relator sought the writ of *quo warranto* against the Chief Justice of India who was appointed superseding three senior Judges, but as in the meanwhile all the three judges resigned, the court held that the writ must be refused as the alleged defect in the original appointment could be

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[1] *R. v. Speyer*, [1916] 1 KB 595; *S.M. Wali Ahmed v. Mahfuzul Haq*, PLD 1957 Dac 209

[2] *Sivaramakrishnan v. Arumugha Mudaliar*, AIR 1957 Mad 17

[3] *Nesamony v. Varghese*, AIR 1952 Tr.C. 66

[4] *Farid Mia v. Amjad Ali*, 42 DLR (AD) 13; *R. v. Speyer*, [1916] 1 KB 595

[5] *Dr. Kamal Hussain v. Sirajul Islam*, 21 DLR (SC) 23

[6] *The King v. Clerke*, [1800] 1 East 38; *Cama v. Banwarilal*, AIR 1953 Nag 81

[7] Ibid

[8] *Mohichandra v. Secretary, Local Self-government*, AIR 1953 Assam 12

[9] *Bhairulal v. Bombay*, AIR 1954 Bom 116

[10] AIR 1975 Del 66

cured by re-appointment. The court may also refuse the relief where it would be vexatious.[1]

5.117 A person may hold an office validly or may be an intruder or a *de facto* holder of the office. An intruder is one who has no semblance of title to the office and all acts done by him will be absolutely void. The position of a *de facto* holder of office is in between an intruder and *de jure* holder of office. A holder of office may become a *de facto* holder because of any defect in his election or appointment or because of disqualification or want of qualification. As a matter of public policy, on application of the doctrine of necessity, acts done by a *de facto* holder of office are treated as valid.[2] Speaking about the acts of a *de facto* holder of office, Lord Chancellor St. Leonards observed –

> You will at once see to what it would lead if the validity of these acts, when in such office, depended upon the propriety of their election. It might tend, if doubts were cast upon them, to consequences of the most destructive kind. It would create uncertainty with respect to the obedience to the public officers and it might also lead to persons, instead of resorting to the ordinary legal remedies to set right anything done by these officers, taking the law in their own hands.[3]

A judge *de facto* is one who is not a mere intruder but holds office under a colour of title. Notwithstanding the defect in title to his office all judgments pronounced and orders made by him before his appointment if found invalid will have the same effectiveness as those of a judge *de jure*.[4] When a holder of office having a colour of title is declared to be holding the office without lawful authority, it takes effect from the date of the judgment without affecting the validity of the acts done by him prior to that date.[5]

5.118 The title of a holder of a public office cannot be challenged except by a direct proceeding in which he is a party.[6] Thus his title can be attacked in a proceeding for *quo warranto*, but not in a collateral

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[1] *Mohichandra v. Secretary, Local Self-government*, AIR 1953 Assam 12; *G.D. Karkare v. T.L. Shevde*, AIR 1952 Nag 330

[2] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203

[3] *Edwin Ward Scadding v. Louis Lorant*, 10 E.R. 164

[4] *Gokaraju v. A.P.*, AIR 1981 SC 1473

[5] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203

[6] Ibid; *Haryana v. Haryana Transport*, AIR 1977 SC 237; *Gokaraju v. A.P.*, AIR 1981 SC 1473

proceeding ,i.e., *mandamus* or *certiorari*[1] or in a proceeding to declare invalid an amendment of the constitution on the ground that some of the members of Parliament who participated in voting were disqualified[2] or in a proceeding to quash conviction ordered by a *de facto* judicial officer[3] or by way of defence in a criminal proceeding[4] or to question the title of the appellate court in an appeal before him[5]. The Indian Supreme Court, however, held that the title of a holder of office can be challenged in a collateral proceeding if in that proceeding the holder of the office is impleaded as a party inasmuch as the proceeding in such case becomes a combined proceeding of *quo warranto* and *mandamus* or *certiorari*.[6] As there is no difficulty under art.102 to combine reliefs, writ of *quo warranto* may issue with a writ of *certiorari* or *mandamus*.

5.119 ***Nature of the proceedings:*** As we have seen, a writ of *habeas corpus* is not discretionary. It is obligatory on the part of the High Court Division to be satisfied that a person is not being held in custody illegally or in an unlawful manner. All other writs are generally discretionary. The avowed purpose of the exercise of writ jurisdiction is to further justice. If in a case it appears to the court that the issuance of the writ prayed for would work injustice or perpetuate illegality[7] or subvert the public interest, the court may refuse to grant the relief. The High Court Division will exercise its discretion in accordance with judicial consideration and well established principles[8] and will interfere where any improper exercise of power or non-exercise of jurisdiction has caused manifest injustice.[9] Where a settlement of dispute between the management and one of the two rival groups of officers of a registered trade union is found to be beneficial to the substantial body of workmen of the factory and the office bearer of the other rival group

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[1] *Parameswaran v. State Prosecutor*, AIR 1951 T.C. 45; *Menon v. State*, AIR 1970 Ker 165

[2] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203

[3] *Pulin v. E.K.*, (1912) 15 C.L.J. 517

[4] Ibid

[5] *Parameswaran v. State Prosecutor*, AIR 1951 T.C. 45.

[6] *Haryana v. Haryana Transport*, AIR 1977 SC 237; *Gokaraju v. A.P.*, AIR 1981 SC 1473

[7] *Tufail Md. v. Dawoodi*, 17 DLR (SC) 325; *Raunaq Ali v. Chief Settlement Commr.*; PLD 1973 SC 236; *Md. Baran v. Member (S. & R.)*, PLD 1991 SC 691; *M.D. of Rupali Bank v. Lab. Court*,45 DLR 397; *Abdul Hamid v. East Pakistan*, 24 DLR 142

[8] *Janardhan Reddy v. Hydrabad*, AIR 1951 SC 217

[9] *Kallolimath v. Mysore*, AIR 1977 SC 1980

was present when the settlement was filed and evidence was recorded there, but took no part in the proceeding before the tribunal, the court would not interfere with the award.[1] However, the court will not withhold the relief except where it becomes demonstrably clear that injustice will ensue or the public interest will be jeopardised. Where the public interest was going to be seriously prejudiced, the Appellate Division upheld the order of the High Court Division setting aside an *exparte* judgment even though the respondent was in default in filing affidavit-in-opposition.[2] In a writ of prohibition the relief can be claimed as of right where the defect of jurisdiction is clearly demonstrated and is apparent.

5.120 *Conduct of the applicant:* As the remedy given in writ jurisdiction is equitable, the applicant must come with clean hands and his application may be rejected for his improper conduct. His conduct in three stages may be a disentitling factor, conduct before presenting the application, conduct at the time of presenting the application and conduct after presenting the application. Acquiescence of a party is a fact to be taken into consideration in giving relief in writ jurisdiction. Where before challenging a certificate proceeding, the petitioner submitted to the jurisdiction of the certificate officer and prayed for payment of the certificate dues in instalments[3], or the petitioners did not raise objection to the transfer of their cases and submitted to the jurisdiction of the officer to whom the cases were transferred, the relief was denied.[4] Waiver and election may debar a party from making a certain claim.[5] Thus a public servant who had earlier been dismissed from service and contested in the election to Parliament was held to have accepted his dismissal from service as otherwise he could not contest in

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[1] *Workmen of Government Silk Factory v. Presiding Officer, Industrial Tribunal*, AIR 1973 SC 1423; *Jagan Singh v. State Tribunal, Appellate Tribunal*, AIR 1980 Raj 1 (even if any error of law was committed by the tribunal against whose decision writ is filed, that would not be a ground for invoking the jurisdiction when it is not in furtherance of justice, but would restore an illegal order); *Dahyabhai v. Ramji*, AIR 1971 Guj 232 (an order directing restoration of land to the respondent passed without jurisdiction but not unjust will not be set aside at the instance of the petitioner who has deprived the respondent of the possession of land without due course of law)

[2] *Moni Begum v. RAJUK*, 46 DLR (AD) 154

[3] *Shafiqur Rahman v. Certificate Officer*, 29 DLR (AD) 232

[4] *Pannalal Binjraj v. India*, AIR 1957 SC 397

[5] See 5.35

the parliamentary election.[1] A person having taken benefit under an order cannot turn round and term it as illegal.[2] In *Prasan Roy v. CMDA*[3] the petitioner participated in an arbitration proceeding without any objection and challenged the arbitration proceeding as without jurisdiction on the ground of known disability, no relief was granted. In the matter of acquiescence, however, it should be kept in mind that if there is a patent lack of jurisdiction, failure of a party to raise objection will not be fatal[4] as inherent lack of jurisdiction goes to the very root of the matter and neither consent nor acquiescence can confer jurisdiction.[5] The Pakistan Supreme Court pointed out that if relief is denied on the ground of acquiescence in a case of patent want of jurisdiction, "actions in excess or perversion of public powers would gain enormous access of immunity".[6] But where the want of jurisdiction is latent, failure to raise objection will be fatal.[7] If the applicant is guilty of bad faith, fraud or improper conduct with respect to the matter in controversy, the court may refuse the relief. Thus where the applicant fraudulently obtained a permit which he complains has been illegally cancelled[8] or the applicant is a trespasser in the land and complaining that he is being evicted by an authority which has no authority to evict[9] or the applicant is claiming a property to be his own while previously he admitted that it was a waqf property[10], the application may be rejected by the court. The court found

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[1] *Bangladesh v. Mahbubuddin Ahmed*, 50 DLR (AD) 154; *Akhtar Hossain v. Secy. Ministry of Health*, 1 BLC 549

[2] *Nurul Huq v. Bangladesh*, 51 DLR (AD) 140

[3] AIR 1988 SC 205

[4] *Farquharson v. Morgan*, [1894] 1 QB 552

[5] *U.C. Bank v. Their Workmen*, AIR 1951 SC 230

[6] *Md. Afzal v. Board of Revenue*, 19 DLR (SC) 266

[7] *Prasan Roy v. CMDA*, AIR 1988 SC 205; *Ghulam Mohiuddin v. Ch. Settlement Commr*, 16 DLR (SC) 654,662 (The principle upon which the writ is refused in such cases is not that jurisdiction has been conferred on the Tribunal concerned by waiver and acquiescence but that even though the impugned order is without jurisdiction the person seeking to have it quashed should not be granted that discretionary relief as he had stood by and allowed the Tribunal to usurp a jurisdiction which it did not possess knowing that the Tribunal concerned was committing such an illegality in consequence of something done by the person himself.); *Altaf Hossain v. Ch. Settlement Commr.*, 18 DLR (SC) 164

[8] *Mangilal v. App. Tribunal*, AIR 1957 Raj 167

[9] *Mohiuddin v. State*, AIR 1960 M.P. 265; *Meridian Int'l (Pvt) Ltd. v. RAJUK*, 53 DLR 35

[10] *Hafiz Md. v. U.P.S.C. Board of Waqf*, AIR 1965 All 333

a petitioner precluded from challenging an order which she accepted at the first instance and on the basis of that made application to reap some advantage.[1]

5.121 An applicant will be guilty of improper conduct in presenting an application for writ if he suppresses material facts[2] or if he does not candidly or fairly state the facts, but stated them in such a way as to mislead or deceive the court[3] and the court may refuse to grant the relief. But omission to mention a particular fact does not necessarily disentitle the petitioner to get the relief unless that fact is material to the relief claimed.[4] In the same way, the court may refuse to grant relief to an applicant who after presentation of the application filed an affidavit-in-reply or supplementary affidavit suppressing facts or making statements to mislead the court or has been guilty of any unconscionable conduct in respect of the parties to, or the subject matter of, the proceeding.

5.122 *Delay or laches*: In order to avail the remedy in writ jurisdiction the petitioner is required to come to the court without any delay.[5] Delay in approaching the court is a circumstance disentitling the petitioner in getting the equitable relief in this jurisdiction.[6] The rule that

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[1] *Abdul Majid v. Noor Jahan*, PLD 1967 SC 221; *Poornanandarao v. A.P.*, AIR 1982 A.P. 141

[2] *Awlad Hossain v. Haji Moniruddin*, 40 DLR 427 (petitioner did not disclose in the petition the fact of filing a suit for the same relief and obtained stay order from the vacation Bench); *Abdul Khaliq v. Election Commn.*, 1989 BLD 415; *Ghulam Mohiuddin v. Chief Settlement Commissioner*, 16 DLR (SC) 654; *Haryana v. Karnal Distillery*, AIR 1977 SC 781 (petitioner filed writ petition for renewal of liquor licence suppressing material facts in respect of earlier proceeding before the Supreme Court); *Asiatic Engineering v. Achhru Ram*, AIR 1951 All 746 (obtained interim order supressing facts); *India v. Muneesh Suneja*, AIR 2001 SC 854

[3] *R. v. Kensington I.T.C.*, [1917] 1 KB 486; *Tilokchand v. H.B. Munshi*, AIR 1970 SC 898, Para 36; *Haryana v. Karnal Distillery*, AIR 1977 SC 781; *Ratan Chandra v. Adhar Biswas*, AIR 1952 Cal 72; *Harbans Lal v. Divisional Supdt., Central Rly*, AIR 1960 All 164

[4] *Raghubir Singh v. Municipal Board*, AIR 1956 All 324; *Kalika Prasad v. Addl. Commissioner*, AIR 1956 All 103

[5] *Bangladesh v. Ghulam Azam*, 46 DLR (AD) 192 *Tilokchand v. H.B. Munshi*, AIR 1970 SC 898

[6] *Shafiqur Rahman v. Certificate Officer*, 29 DLR(AD) 232 (even in *certiorari* proceeding the aggrieved party must approach the court promptly where positive steps have been taken to his prejudice); *Abdul Hakim v. Bangladesh*, 49 DLR 438; *Sadekullah v. Bangladesh*, 3 BLC 90 *Mahmudur Rahman v. State*, 48 DLR 94; *Bangladesh v. Court of Settlement*, 48 DLR 502; *Mizan Howladar v. Bangladesh*, 1996

the court may not inquire into belated or stale claims is not a rule of law, but a rule of practice[1] based on sound and proper exercise of discretion. There is no inviolable rule that whenever there is a delay the court must necessarily refuse to entertain the petition. The question is one of discretion to be exercised on the facts of each case.[2] The court is to balance the interest of the party affected by a decision, and the public interests.[3] The principle on which the court proceeds in refusing relief on the ground of delay or laches is that the rights which have accrued to others by reason of the delay in filing the application should not be allowed to be disturbed.[4] The question whether a party is guilty of laches depends upon facts of each case.[5] The petitioner may explain the delay in filing the petition in which case it will not be a disentitling factor.[6] The test is not one of physical running of time. Where the circumstances justifying the conduct exists, the illegality which is manifest cannot be sustained on the sole ground of laches.[7] The exercise of discretion by the court even where the application is delayed is to be governed by the objective of promoting the public interest and good administration; and on that basis it cannot be said that a discretion would not be exercised in favour of interference where it is necessary to prevent continuance of the usurpation of an office or perpetuation of illegality.[8] Often submission of representations to the government or public functionary for redress is taken as sufficient satisfactory explanation of the delay.[9] But the fact that in respect of matters in issue representations were being

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BLD 5; *Yunus Mia v. Secy. Ministry of Public Works*, 45 DLR 498; *Sadequddin v. RAJUK*, 46 DLR 205; *Sarwarjan Bhuiyan v. Bangladesh*, 1993 BLD 209; *Md. Athar v. Pakistan*, 14 DLR (SC) 166; *Oxford Knitting Mills v. Sukkur Municipality*, 1970 SCMR 537; *Suleman v. Board of Revenue*, 1970 SCMR 574; *Sk. Pir Mohd. v. Khulna Mun. Committee*, 19 DLR 55

[1] *Dehri Rohtas Light Rly v. Dist. Board*, AIR 1993 SC 802

[2] *Ramchandra v. Maharashtra*, AIR 1974 SC 259

[3] *Bangladesh v. Golam Azam*, 46 DLR (AD) 192

[4] Ibid

[5] *Tilokchand v. H.B. Munshi*, AIR 1970 SC 898

[6] *Dehri Rohtas Light Rly v. Dist. Board*, AIR 1993 SC 802; *U.P. v. Bahadur Singh*, AIR 1983 SC 845; *Golam Azam v. Bangladesh*, 45 DLR 423

[7] *Dehri Rohtas Light Rly v. Dist. Board*, AIR 1993 SC 802

[8] *Kashinath G. Jalmi v. The Speaker*, AIR 1993 SC 1873

[9] *Bangladesh v. Golam Azam*, 46 DLR (AD) 192; *Pakistan v. A.P. Hasumani*, 14 DLR (SC) 220; *Pakistan v. Abdul Hamid*, 13 DLR (SC) 100, 105; *Sushil Kumar v. India*, AIR 1986 SC 1636

received by the government all the time may not be sufficient to explain the delay. An aggrieved person cannot wait for an indefinite period for the result of his representation.[1] There is a limit to the time which can be considered reasonable for making representations. If the government has turned down a representation, the making of another representation on similar lines will not explain the delay.[2] When the delay is calculated to put the other party to the proceedings to a great loss or prejudice, the relief asked for will ordinarily be refused.[3] The provisions of the Limitation Act is not applicable in respect of writ petitions. In *M.P. v. Bhailal Bhai*[4] the Indian Supreme Court observed that the court may consider the delay unreasonable even if it is less than the period of limitation for civil action for the remedy, but where the delay is more than that period, it will almost always be proper for the court to hold that it is unreasonable.

5.123 ***Efficacious remedy:*** In England prerogative writs particularly writs of *mandamus* were not issued by the court when alternative remedy under the statute was available. This was a self-imposed rule of the court on the ground of public policy. Issuance of writs when alternative remedies were not availed would undermine the subordinate courts and tribunals. Under the Pakistan Constitution of 1956 the Supreme Court and the High Courts in issuing writs in the nature of the prerogative writs used to follow the rule of the English court. It was, however, pointed out that this rule of exhaustion of alternative remedies was a rule of the court and did not affect the jurisdiction of the court to entertain writ petitions.[5] But the Pakistan Constitution of 1962 provided that the High Courts would interfere only when there was no other adequate remedy available to the petitioner. The same position has been maintained in the Constitution which stipulates non-availability of efficacious remedy as a condition for interference by the High Court Division. In *Shafiqur Rahman v. Certificate Officer*[6] the Appellate Division noted the change and observed –

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[1] *Fazlur Rahman Akond v. Bangladesh*, 52 DLR (AD) 116

[2] *Rabindra Nath v. India*, AIR 1970 SC 470

[3] *Hari Singh v. U.P.*, AIR 1984 SC 1020 (the Court refused to condone the delay as it was likely to cause serious public prejudice); *Kadregula Srinivasha v. A.P.*, AIR 1960 A.P. 343

[4] AIR 1964 SC 1006

[5] *Md. Amir Khan v. Controller, Estate Duty*, 13 DLR (SC) 105

[6] 29 DLR (SC) 232

> ... if the alternative remedy is adequate and equally efficacious, in that case such an alternative remedy is a positive bar to the exercise of the writ jurisdiction even though the writ concerned is in the nature of certiorari.[1]

Art.102(2) having incorporated the rule of exhaustion of statutory remedies, existence of efficacious remedy will preclude relief under art.102(2).[2] The bar of efficacious remedy is not attracted when an infringement of fundamental right is alleged.[3] Where the petitioner had no means of knowing that her property was being treated as abandoned property, her failure to approach the Court of Settlement cannot preclude her from filing a writ petition.[4] In *Abdul Mukit Chowdhury v. Chief Election Commissioner*[5] it was stated that where a special forum is created by a statute for enforcement of a special right, the High Court Division should normally decline to exercise the constitutional power. It is submitted that in view of the constitutional mandate in this regard, it was not necessary to resort to this principle of special remedy provided by special law. It is also doubtful if in the absence of any constitutional mandate or practice such a principle can be invoked to prevent the exercise of the constitutional jurisdiction.

5.124 It may be seen that no distinction has been made between the different types of remedies for application of the rule which now applies to all the five types of remedies. Speaking about the rule, the Appellate Division in a later decision observed –

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[1] The observation of the High Court Division in *Tasmina Chowdhury v. Deputy Commr.*, 49 DLR 29, to the effect that the rule of efficacious remedy is not a rule of law, but a rule by which the court regulates its proceeding, it is submitted, is wrong.

[2] *Mahmudul Haque v. Md. Hedayetullah*, 48 DLR (AD) 128; *Controller of Examinations v. Mohiuddin*, 44 DLR (AD) 305; *Prof. Nurul Amin v. Vice Chancellor*, 50 DLR 405; *Dr. M.A. Hadi v. Bangladesh*, 50 DLR 218; *Delicia Dairy Food v. Collector of Customs*, 51 DLR 381; *Abdul Haque Sikder v. Divisional Manager*, 48 DLR 574 *Square Pharmaceuticals v. Bangladesh*, 3 BLC 22 *Trade Channel v. Collector of Customs*, 44 DLR 127; *Badrunnessa v. Vice-Chancellor*, 30 DLR 268; *M.B. Rahman v. D.C.T.*, 39 DLR 33; *Farid Mia v. Amjad ali*, 42 DLR (AD) 13; *Zaker Hossain v. Abdur Rahim*, 42 DLR (AD) 153

[3] *Jobon Nahar v. Bangladesh*, 49 DLR 108; *Saleha Begum v. Court of Settlement*, 49 DLR 243 (Fundamental right being infringed, writ petition filed after statutory remedy becomes barred by limitation is maintainable.); *Sazedur Rahman v. Secy. Ministry of Establishment*, 50 DLR 407

[4] *Secy. Ministry of Works v. Hasner Jahan*, 6 BLC (AD) 111

[5] 41 DLR 57

> In principle, where an alternative statutory remedy is available an application under Article 102 may not be entertained to circumvent a statutory procedure. There are, however, exceptions to the rule. Without attempting an exhaustive enumeration of all possible extraordinary situations we may note a few of them. In spite of an alternative statutory remedy an aggrieved person may take recourse to Article 102 of the Constitution where the vires of a statute or a statutory provision is challenged; where the alternative remedy is not efficacious or adequate; and where the wrong complained of is so inextricably mixed up that the High Court Division may, for the prevention of public injury and the vindication of public justice, examine that complain. It is needless to say that the High Court Division is to see that the aggrieved person must have good reason for by-passing an alternative remedy.[1]

Thus apart from the question as to when a remedy is efficacious, alternative remedy provided by a statute will be no bar to a writ petition if a statute or a provision of a statute under which the impugned action has been taken is itself challenged as unconstitutional or if private and public wrongs are so inextricably mixed up and the prevention of public injury and the vindication of public justice require it that recourse may be had to art.102(2).[2] In the same way, if the impugned action is wholly without jurisdiction in the sense of not being authorised by the statute or is in violation of a constitutional provision a writ petition will be maintainable without exhaustion of the statutory remedy.[3] Where the appeal provided by law was not filed due to misconception as to availability of appeal and the misconception was not unfounded, the High Court found the petition maintainable.[4] The High Court Division

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[1] *Dhaka Warehouse v. Asst. Collector, Customs*, 1991 BLD (AD) 327, Para 12

[2] *Asst. Collector v. Dunlop India*, AIR 1985 SC 330, 332; *Dhaka Warehouse v. Asst. Collector of Customs*, 1991 BLD (AD) 327; *Ahmed Hossain v. Collector of Customs*, 48 DLR 347

[3] *Assessing Officer v. Burmah Eastern*, 1981 BLD (AD) 451; *Amjad Hossain v. Bangladesh*, 50 DLR 458; *Wahidullah Majumdar v. Bangladesh*, 49 DLR 400; *Agrani Bank v. Sultana Jute Mills*`, 47 DLR 37; *Fazlul Haq Chowdhury v. Bangladesh*, 30 DLR 144; *Angana Ranjan v. Director, Tech. Education*, 31 DLR 184; *National Bank of Pak v. Golam Mostafa*, 27 DLR 159; *M.B. Rahman v. DCT*, 39 DLR 33 (the petition was found not maintainable as the impugned order was not without jurisdiction); *Golam Mowla v. East Pakistan*, 15 DLR 125; *Mritunjoy Paul v. East Pakistan*, 14 DLR 568; *Chittagong Engineering v. Certificate Officer*, 17 DLR 404; *Jubilee Syndicate v. Collector of Customs*, 20 DLR 300; *Nagina Silk Mills v. I.T.O.*, 15 DLR (SC) 181

[4] *Inland Navigation v. ITO*, 19 DLR 871

rejected the plea of the bar as the respondent could not show that the demand for payment of short-levied customs duty had been made on substantial compliance of the provision of the law.[1] *Mala fide* vitiates everything and it goes to the root of jurisdiction and if the impugned action is *mala fide* the alternative remedy provided by the statute need not be availed.[2] Another exception has been made in *M.A. Hai v. T.C.B.*[3] where the Appellate Division held that availability of alternative remedy by way of appeal or revision will not stand on the way of invoking writ jurisdiction raising purely a question of law or interpretation of statute.[4] In *Farzana Haque v. Dhaka University*[5] the High Court Division held a writ petition maintainable in spite of non-exhaustion of the remedy of appeal as the University did not supply necessary papers which were necessary for filing the appeal. In *Lutfunnessa v. Bangladesh*[6] the appellant moved the High Court Division challenging the government's action treating a property as abandoned property, but the High Court Division refused to interfere on the ground that she had efficacious remedy before the Court of Settlement. The Appellate Division agreed with the finding of the High Court Division, but granted the relief to the appellant stating, "The High Court Division would have been justified in taking the view that the Government was expected to be upright and fair in dealing with a citizen's property and the very fact that the Ministry of Home Affairs did not care to file an affidavit could be held to be sufficient for the purpose of the present case disentitling the government from claiming possession and making a list including the appellant's

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[1] *Rahima Food Corporation v. Deputy Collector of Customs*, 49 DLR 510

[2] *Shah Alam v. Mujibul Haq*, 41 DLR (AD) 68; *Zaker Hussain v. Abdur Rahim*, 42 DLR (AD) 153; *Manzur Kader v. Bangladesh*, 49 DLR 237

[3] 40 DLR (AD) 206 (The administrative authorities in enforcing the law have often to interpret the law as a matter of course and, it is submitted, that no exception can be made when question of law or interpretation of state is involved, keeping view that exhaustion of alternative remedy is no longer a rule of the court, but a constitutional requirement.)

[4] *Wahidullah Majumdar v. Bangladesh*, 49 DLR 400; *Chittagong Engg. & Electric Supply v. I.T.O.*, 22 DLR (SC) 443 (when an order suffers from patent illegality apparent on the face of record, writ of *certiorari* can issue even though statutory appeal has not been availed of); *Usmania Glass Sheet v. S.T.O.*, 22 DLR (SC) 437 (where the dispute arises between the parties in respect of a fiscal right based upon a statutory instrument and the same can be easily determined in writ jurisdiction, non-exhaustion of statutory remedy will not bar writ petition)

[5] 42 DLR 262

[6] 42 DLR (AD) 86

property under the Ordinance." It is submitted that availability of efficacious remedy is a constitutional bar to entertainment of a writ petition and once the court is satisfied that the remedy under the statute is efficacious, there is no question of going into the merit of the case or asking the question whether the respondent was fair or upright. However, the court may find a governmental action so unreasonable and arbitrary as to attract the mischief of art.31 and grant the relief.

5.125 The question of availability of alternative remedy came up for serious consideration in election disputes. In *Imtiaz Ahmed v. Ghulam Ali*[1] the Pakistan Supreme Court pointed out that where a right or liability is created by a statute which provides a special remedy for it, the remedy provided by the statute is to be availed. Ordinarily the court will decline to interfere in election matter in the writ jurisdiction as it is desirable that the decision of a matter of disputed election should become final as soon as possible. The court, however, said that in certain situations, such as, where actions are characterised as being done in bad faith, the court will interfere. Election is a lengthy process commencing from notification of the election programme and ending with the notification of result. The remedy of election petition comes into play when the result of the election is notified. Dealing with the question of maintainability of writ petition regarding matters at the intermediary stage, the Appellate Division emphatically ruled that the writ jurisdiction cannot be invoked to challenge any step in the process of election except on the very limited ground of total absence of jurisdiction (*coram non judice*) or malice in law. The court observed that the real and larger issue of completion of free and fair election with rigorous promptitude for timely emergence and functioning of the elective bodies must take precedence over settlement of private disputes and all election disputes must wait pending completion of the election and be taken to the special forum created by the election law.[2] The position will be the same after the election result is published and the aggrieved person must pursue the alternative remedy of election petition except in case of total lack of jurisdiction or malice in law or fact. In *Amjad Hossain v. Chief Election Commr.*[3], the High Court Division found a writ petition maintainable

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[1] 15 DLR (SC) 283 (the appeal arose out of a writ petition under art.170 of the Pakistan Constitution of 1956)

[2] *Shah Alam v. Mujibul Haq*, 41 DLR (AD) 73; *Zaker Hossain v. Abdur Rahim*, 42 DLR (AD) 153

[3] 27 DLR 373

even though no election petition was filed when the petitioner alleged and proved on documents serious infraction of law and procedure by the Presiding Officer. The High Court Division refereed to the decision of *Md. Amir Khan v. Controller, Estate Duty*[1] and *Jamal Shah v. Member, Election Commission*[2]. The first decision which held that alternative remedy did not affect the jurisdiction of the court was not applicable as it was a case of 1961 and the second case came up in writ jurisdiction after election petition was filed and disposed of. The High Court Division relied on a Full Bench decision of High Court of West Pakistan at Lahore[3] which held that where the authority declined or neglected to perform its functions properly writ jurisdiction would be attracted to determine the legality of the act done or proceeding taken. It is submitted that all these questions can be appropriately dealt with by the election tribunal and in view of the decisions of the Pakistan Supreme Court and the Appellate Division, it cannot preclude application of the rule of exhaustion of statutory remedy.[4] The facts of the case, however, clearly evinced the bad faith of the Presiding Officer and it may have worked in the mind of the court to find the maintainability of the writ petition, though not expressed in the judgment.

5.126 *When a statutory remedy is not efficacious*: In the Pakistan Constitution of 1962 the expression used was 'adequate remedy' and this expression was interpreted by the courts. Having regard to those decisions, the framers of the Constitution used the expression 'efficacious remedy' which is more apposite. In *Mehboob Ali v. West Pakistan*[5], it was pointed out that the adequacy of the statutory remedy must be judged in relation to three separate considerations - (1) the nature and extent of the relief; (2) the point of time when that relief would be available; and (3) the conditions on which that relief would be available - particularly the conditions relating to the expense and inconvenience involved in obtaining it. Dealing with these considerations Manzur Qadir CJ stated –

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[1] 13 DLR (SC) 105

[2] 18 DLR (SC) 1

[3] *Dost Mohammad v. Returning Officer*, 17 DLR (WP) 126

[4] see *Shahiduddin Iskander v. Election Commision*, 27 DLR 476 (The court held that writ petition will be maintainable even without availing alternative remedy if on mere examination of papers the question can be answered. In view of decision of the Appellate Division, the decision is of doubtful authority)

[5] 15 DLR (WP) 129

(i) If the relief available through the alternative remedy, in its nature or extent is not what is necessary to give the requisite relief, the alternative remedy is not an `an adequate remedy' within the meaning of Article 98

(ii) If the relief available through the alternative remedy, in its nature and extent, is what is necessary to give the requisite relief, the `adequacy' of the alternative remedy must further be judged with reference to a comparison of the speed, expense or convenience of obtaining that relief through the alternative remedy, with the speed, expense or convenience of obtaining it under Article 98. But in making this comparison those factors must not be taken into account which would themselves alter if the remedy under Article 98 were used as a substitute for the other remedy.

(iii) In practice the following steps may be taken :-

(a) Formulate the grievance in the given case, as a generalised category;

(b) Formulate the relief that is necessary to redress that category of grievance;

(c) See if the law has prescribed any remedy that can redress that category of grievance in that way and to the required extent;

(d) If such a remedy is prescribed, the law contemplates that resort must be had to that remedy;

(e) If it appears that the machinery established for the purposes of that remedy is not functioning properly, the correct step to take will be a step that is calculated to ensure, as far lies in the power of the Court, that machinery begins to function as it should. It would not be correct to take over the function of that machinery. If the function of another organ is taken over, that other organ will atrophy, and the organ that takes over, will break down under the strain;

(f) If there is no other remedy that can redress that category of grievance in that way and to the required extent, or if there is such a remedy but conditions attached to it which for a particular category of cases would neutralise or defeat it so as to deprive it of its substance, the Court should give the requisite relief under Article 98;

(g) If there is such other remedy, but there is something so special in the circumstances of a given case that the other remedy while generally adequate, to the relief required for that category of grievance, is not adequate to the relief that is essential in the very special category to which that case belongs, the Courts should give the required relief under Article 98.[1]

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[1] The test laid down in this decision was approved by the Supreme Court in *Anjuman-E*

5.127 Art.102(2) uses the expression 'efficacious remedy is provided by law'. The bar is attracted when a remedy is provided by the statute in invocation of which the impugned order is passed.[1] Unless barred by any law, a suit lies in all disputes of civil nature. If the remedy sought for is in substance a remedy usually available under the general law, the remedy provided by the general law and not the extraordinary remedy by way of writ petition is the appropriate remedy.[2] Thus for a private law dispute regarding property or contract against the government or public functionaries a suit is the proper remedy. Writ jurisdiction is not available for recovery of money and the court cannot give direction for payment of a particular amout of money unless the amount claimed is both an admitted amount as well as a statutory payment.[3] The court in writ jurisdiction will not decide any question of title.[4] Where complicated questions of law and fact were raised the court observed, "If indeed the Managing Committee or the members of the Shia community were serious in their contention that the acquired properties were wakf properties they should have more appropriately moved in the matter by a suit under section 92 of the Code of Civil Procedure in which all the questions could have been thrashed out and finally decided".[5] Except for those in the nature of private law disputes, the expression `efficacious remedy' has reference to the remedies provided by the particular statute which has created the rights and obligations[6] and not a general remedy at law and the remedy by way of suit, which is by no means as inexpensive or speedy or beneficial a remedy as the remedy provided by art.102(2), cannot be considered to be an efficacious remedy.[7] However, the court will not decide a question in writ jurisdiction where the same question is already pending decision in a civil court[8].

Ahmadia v. D.C. Sargoda, 18 DLR (SC) 517, 523

[1] *Bangladesh Telecom Ltd. v. BTTB*, 48 DLR (AD) 20, 24

[2] *Anjuman-E Ahmadia v. D.C. Sargoda*, 18 DLR (SC) 517, 523

[3] *Bangladesh Water Dev. Board v. M/S Shamsul Huq*, 2000 BLD (AD) 41

[4] *New India Tea Co. v. Bangladesh*, 31 DLR (AD) 303; *East Pakistan v. Kshiti Dhar Roy*, 16 DLR (SC) 457.

[5] *East Pakistan v. Azim Rahim*, 20 DLR (SC) 71

[6] *Anjuman-E.Ahmadia v. D.C. Sargoda*, 18 DLR (SC) 517; *Bangladesh Telecom Ltd. V. B.T.T.B.*, 48 DLR (AD) 20

[7] *Anjuman-E-Ahmadia v. D.C. Sagoda*, 18 DLR (SC) 517, 523; *Abdul Karim v. Commissioner, Khulna*, 16 DLR (SC) 624

[8] *Dr. M.O. Ghani v. Dr. A.N.M. Mahmud*, 18 DLR (SC) 463; *Md. Idris v. E.P. Timber Merchants*, 20 DLR (AD) 355

5.128 Now the question is whether the remedy provided by the statute under which the impugned action has been taken is efficacious. Applying the aforementioned test, the remedy provided by a statute will not be efficacious in the following cases:-

(1) If the resort to the remedy will not secure the relief which the impugned actions demand, as for example, where interim relief will not be available. Thus where the government purporting to forfeit the lease threatened eviction within a week and the civil court was in vacation so that no suit could be filed and an interim injunction obtained, petitioner's writ petition was held maintainable though a suit was the proper remedy.[1] When the petitioner's licence as customs agent was revoked without any proceeding being initiated, the court held the petition maintainable even though the statutory appeal was not availed, stating, "The result of the impugned order has been that the petitioner's business was immediately put a stop to, and it was, therefore, urgently necessary for him to get the order set aside. The appeal provided under the Rules is not an adequate remedy as it could not provide the petitioner with the relief he is urgently in need of."[2] Where the property of the petitioner was requisitioned and structure thereon was being dismantled, in spite of non-exhaustion of the statutory appeal, the court found the petitioner's writ petition maintainable as the Divisional Commissioner, the appellate authority, had no power of issuing an interim injunction preventing the dismantling of the structure.[3]

(2) When in the facts and circumstances of the case, it would be futile to require the petitioner to avail the statutory remedy[4], for example, when the appellate authority has prejudged the issue or when the authority acted under the dictation or general or special instruction of the appellate authority.[5]

(3) Where the alternative remedy is not a matter of right, for example, in case of revision where it is discretionary with the authority

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[1] *Azharuddin v. A.D.C.(Rev)*, 19 DLR 489

[2] *Jubilee Syndicate v. Collector, Customs*, 20 DLR 300

[3] *Kumudini Welfare Trust v. East Pakistan*, PLD 1963 Dac 136

[4] *Controller of Examination v. Mahimuddin*. 44 DLR (AD) 305 (The High Court Division held that the appeal provided by art.52 of the P.O. No.11 of 1973 was not efficacious as the opinion of the Chancellor, the appellate authority, was dependent on the opinion of the University authority. But the Appellate Division held that the High Court Division's view was based on misconception of law.)

[5] *Authorised Officer v. A.W. Mullick*, 20 DLR (SC) 229

concerned to interfere.[1] In *Fazlul Huq Chowdhury v. Bangladesh*[2] the High Court Division held that review by the President of the Republic provided under the Government Servant (Discipline and appeal) Rules, 1976 was an efficacious remedy. It may be noted that the said Rules conferred absolutely discretionary power on the President who might reject the petition even though he found the impugned action to be illegal. Furthermore, the scope of review is narrower than that of an appeal. As such review may not be held to be an efficacious remedy. It may be that the court did not give sufficient thought to this question as the court found the writ petition maintainable on the ground that the impugned action was *ex facie* void for want of jurisdiction. Remedy under s.561A of the Code of Criminal Procedure has not been held to be an efficacious remedy.[3]

(4) Where the alternative remedy is onerous or burdensome. Thus where a mutawalli before preferring an appeal is required to hand over charge of the waqf[4] or an assessee has to deposit considerably huge sum of money as tax or duty before or at the time of filing the appeal[5], the remedy of appeal is not an efficacious remedy. But when the appellate authority has power to exempt deposit of the duty or fine to maintain the appeal[6], or where the statute only requires deposit of the undisputed

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[1] *Mansur Rahman v. East Pakistan*, 14 DLR 604 (the Court held that generally revision being discretionary remedy would not be treated as an adequate remedy, but where the statutory appeal was dismissed as time-barred and no revision was filed thereafter, the discretionary relief in writ jurisdiction would not be granted.); *Nurul Haq v. Secy. REB*, 45 DLR 666; *Managing Member, Nirmal Industries v. Naseemunddin*, AIR 1967 A.P. 370

[2] 30 DLR 144

[3] *Anisul Islam Mahmud v. Bangladesh*, 44 DLR 1

[4] *Tafijul Haq v. Bangaldesh*, 1998 BLD (AD) 269; *Hasmat Ara v. Administrtor of Waqfs*, 3 BLC 447 *Nuruzzaman v. Secy. Education Dept.*, 17 DLR 46

[5] *Collector of Customs v. Abdul Hannan*, 42 DLR (AD) 167 (It may be noticed that the appellate authority's statutory discretion to exempt the deposit was not pointed out to the court); *Usmania Glass v. Asst. Collector, Customs*, 19 DLR 592; *Himmatlal v. M.P.*, AIR 1954 SC 403; *Customs Collector v. Shantilal*, AIR 1966 SC 197; but in *Zahirul Islam v. National Bank Ltd.*, 46 DLR (AD) 191, the court held the appeal provided by Artha Rin Adalat Act to be efficacious even though 50% of the decretal amount has to be deposited to maintain the appeal. This decision can be explained in terms of the court's reaction to the prevalent default culture in the financial sector.

[6] *Mohammad Brothers v. Collector of Customs*, 48 DLR (AD) 48 (This decision was cited in *Collector of Customs v. Ahmed Hossain*, 48 DLR (AD) 199, where the court

amount of tax or duty to maintain the statutory appeal[1], the requirement will not be considered onerous or burdensome. If the statute requires, for filing of an appeal, deposit of the tax or duty and at the same time empowers the appellate authority to exempt the deposit in its discretion, the refusal to exempt the deposit (where a large sum is involved) may be held arbitrary in which case non-exhaustion of the statutory remedy will not bar the writ petition.[2] A petitioner pursuing the alternative remedy by filing suit, appeal or revision cannot be allowed to continue two parallel proceedings, and the writ petition is to be dismissed.[3] But where the petitioner cannot get an effective remedy in the suit, he is entitled to invoke the writ jurisdiction.[4] Where a person had filed petition before the Court of Settlement, the writ petition ought not to have been entertained during the pendency of the proceeding pending before the Court of Settlement.[5] But a writ petition filed during the pendency of a statutory appeal will be maintainable if the appellate authority has not disposed it of within a reasonable time.[6] A petitioner failing to get relief in revisional jurisdiction under s.115 of the Code of Civil Procedure cannot invoke the writ jurisdiction.[7]

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preferred to rely on *Abdul Hannan* upon a view that the fact pattern of *Ahmed Hossain* is similar to that of *Abdul Hannan*. The judgment does not show that the existence of statutory discretion of the appellate authority to exempt the deposit was pointed out in this case. In *Bangladesh v. Mizanur Rahman*, 2000 BLD (AD) 212, *Mohammad Brothers* has been re-affirmed.) See, however, *Russel Vegetables Oil Ltd. v. Collector of Customs*, 52 DLR 382, where the High Court Division observed that the appeal provided in the Customs Act is not an efficacious remedy as there is no provision for interim relief. The High Court Division failed to note that even in the writ jurisdiction interim relief impeding collection of public revenue, except in special circumstances mentoned in *Commissioner of Customs v. Giasuddin chowdhury*, 50 DLR (AD) 129;cannot be obtained and when such special circumstances are present existence of efficacious remedy is no bar to an application under art.102.

[1] *Athimoolam v. Dy. Com. Tax Officer*, AIR 1953 Mad 10

[2] *Dhaka Warehouse v. Asst. Collector, Customs*, 1991 BLD (AD) 327; *Bangladesh v. Mizanur Rahman*, 2000 BLD (AD) 212; *Collector of Customs v. A.S. Bava*, AIR 1968 SC 13

[3] *Friends Corp. v. Commr. of Customs*, 3 MLR 281; *Rashid & Sons v. I.T. Invest. Commission*, AIR 1954 SC 207; *Sheonath v. Asst. I.T.C.*, AIR 1967 Cal 382

[4] *Anil Kumar v. East Pakistan*, 23 DLR 108

[5] *Bangladesh v. Anwar Ahmed*, 51 DLR (AD) 42

[6] *Salehuddin v. D.C. Food*, 20 DLR 165

[7] *Khawaja Golam Akbar v. Madarbari Conciliation Court*, 20 DLR 160

(5) Where in the facts of the case the petitioner had no reasonable opportunity to avail the statutory remedy.[1]

Where the High Court Division is satisfied by exercising its discretion judicially that the remedy provided by law is not efficacious, the Appellant Division will not interfere with such exercise of discretion.[2]

5.129 ***Disputed questions of fact:*** The proceeding under art.102(2) is a summary one and it is decided on the statements made on affidavits filed by the parties and the documents annexed to the application and the affidavit-in-opposition. Hence it is often held that the court will decline to exercise jurisdiction when the application involves resolution of disputed questions of fact.[3] In this summary proceeding examination of disputed question of fact of a complicated nature is not as a general rule undertaken[4], nor investigation of title to property made[5] and it is neither desirable nor advisable to enter into the merit and record a finding as to disputed question of fact.[6] The court will neither decide the complicated question of title nor disputed questions of fact relating to damages or compensation.[7] The Appellate Division set aside a decision where, in the

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[1] *Nesar Ahmed v. Bangladesh*, 49 DLR (AD) 111; *Mobarak Ali v. Bangladesh*, 50 DLR 10

[2] *Unverity of Dhaka v. Prof. Monwaruddin*, 52 DLR (AD) 17

[3] *New India Tea Co. v. Bangladesh*, 31 DLR (AD) 303; *Abdul Hamid v. Nurul Islam*, 42 DLR (AD) 49; *Farid Mia v. Amjad Ali*, 42 DLR (AD) 13, 15; *Khalilur Rahman v. Bangladesh*, 2000 BLD (AD) 152; *Abdul Mukit Chowdhury v. Chief Election Commn*, 41 DLR 57; *Abdullah-Ar-Rabbani v. T.C.B.*, 42 DLR 258; *Abdul Mannan v. Secy. Ministry of LGRD*, 52 DLR 471; *Nawaza v. Addl. S. & R. Commr.*, 22 DLR (SC) 13; *Abdur Rouf v. Ministry of LGRD*, 43 DLR 29; *Conforce Ltd. V. Titas Gas Co.*, 42 DLR 33; *Nawab Ali v. Amiruddin*, 41 DLR 254; *Abdul Khaliq v. Election Commn*, 1989 BLD 415

[4] *Bangladesh v. Habib Zamil*, 52 DLR (AD) 174

[5] *East Pakistan v. Kshiti Dhar*, 16 DLR (SC) 457; *East Pakistan v. Azim Rahim*, 20 DLR (SC) 71; *Fatema Khatun v. DC Dinajpur*, 3 MLR (AD) 71; *Tasmina Chowdhury v. Deputy Commr.*, 49 DLR 29

[6] *Shamsun Nahar v. Wahidur Rahman*, 51 DLR (AD) 232; *Nafco (Pvt) Ltd. v. BSFI Corp.*, 2 MLR (AD) 402; *Ancient Steamship co. v. Member (Appeal and Revision)*, 2 MLR (AD) 302; *Nuruddin v. Titas Gas Transmission*, 1998 BLD (AD) 273; *Stadmax Ltd. v. General Manager, CIB, Bangladesh Bank*, 50 DLR 594; *Asian Tobacco Co. v. Asstt. Commr. Customs*, 1997 BLD 413; *Abdul Latif Howladar v. ADC (Revenue)*, 50 DLR 638; *Rup Charan Das v. Bangladesh*, 48 DLR 94; *Sultana Nahar v. Bangladesh*, 1998 BLD 363; *Nawab Ali v. Md. Amiruddin*, 41 DLR 254; *Shahiduddin Iskander v. Election Commission*, 27 DLR 476

[7] *Hamidul Huq Chowdhury v. Bangladesh*, 34 DLR 190

absence of a necessary party, a disputed question of fact was attempted to be determined by the High Court Division on inconclusive materials.[1] Where, however, serious allegations are made which the court feels necessary in the interest of justice to investigate, the court may take oral evidence.[2]

5.130 Any fact stated in the petition and denied by the respondent becomes a disputed fact and any respondent by simply denying the facts may preclude the disposal of the petition on merits. But this is not what is meant when the court says that it will not go into the disputed questions of fact. The rule is that the court will decline to exercise the jurisdiction only when the dispute as regards facts is such that the dispute cannot be reasonably resolved on the facts pleaded and documents produced before the court.[3] A mere denial by the respondent of a fact in issue raised by the petitioner does not render that fact a disputed fact unless there are materials to support the denial, but if the assertion made by the petitioner is not supported by materials to the satisfaction of the court, the court may refuse to act on such assertion alone. Where the respondent denies a fact without adducing convincing material in support of such denial, but the court finds it difficult to draw a definite inference or conclusion from the assertion of the petitioner, the court may refuse the relief not because the fact is disputed, but because the petitioner failed to discharge his initial onus of proving his case.[4]

5.131 ***Enforcement of contractual right:*** The government and the public functionaries, in discharging their functions, are often required to enter into various types of contracts. In entering as also in performing the contracts various disputes arise for the resolution of which provisions have been made in the Code of Civil Procedure and the Specific Relief Act. Hence it is generally held that for such disputes private law remedies provided by the Code of Civil Procedure and the Specific Relief Act are appropriate and the writ jurisdiction cannot be

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[1] *Golam Kibria v. Abdul Wadud*, 1979 BSCR 313

[2] See Para 5.142

[3] *North Bengal Sugar Mills v. Dist. Magistrate*, 19 DLR (SC) 228; *Abul Hossain v. Bangladesh*, 34 DLR 255, 260 (though ordinarily an application for restoration of property is not an appropriate remedy where question of title is involved, yet on the basis of patently acceptable documents, writ may issue in appropriate cases); *Moinuddin v. Delimitation Officer*, 17 DLR 181

[4] *Syed Matiur Rob v. Bangladesh*, 42 DLR (AD) 126, 130

invoked for the enforcement of contractual rights.[1] This rule is subject to some exceptions. One is in the field of contract of employment. Though an employment in the service of the Republic initiates in contract, the relationship of the government with the servant is more of a status than contract and is controlled by the provisions of the Constitution and the laws and rules. Because of the provisions of art.117 read with art.102(5) writ jurisdiction cannot be invoked in the matter of terms and conditions of service except when infringement of fundamental right is alleged. There was a question whether employment under the local authorities are controlled by the private law rule of master and servant so that the writ jurisdiction would not be attracted. The question has been finally settled by the Appellate Division in *B.S.I.C. v. Mahbub Hossain*[2] and the court came to the following conclusions:-

(a) If an employee is dismissed or his service is terminated in contravention of a mandatory statutory provision, the employee has a right of action either in a Superior Court in its writ jurisdiction or in a civil court.

(b) If the service of its employee is terminated in violation of the principle of natural justice, the employee has a similar right of action as in (a).

(c) If the office is a statutory one, the holder of the office has similar right of action as in (a) in case of termination of the said office not in accordance with law, under which the said office has been created.

(d) In spite of the office being a statutory one or of public character, terms and conditions of the office may be regulated by contract, and termination of service in contravention of such contract, but otherwise than in the manner mentioned in (a) and (b) is not actionable for the purpose of reinstatement in office.

(e) Terms and conditions of service prescribed by rules, regulations or any other form of delegated legislation made by a body under statutory powers are not contractual, but have a statutory force and the dismissal or termination of service in substantial disregard of them will entitle the employee to a right of action as in (a).

5.132 Coming to contracts other than the contracts of service, we see

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[1] *Momin Motors Co. v. R.T.A. Dacca*, 14 DLR (SC) 102; *Chandpur Mills Ltd. v. D.M.*, 11 DLR (SC) 53; *M. Muzaffaruddin v. Chief S. & R. Commr.*, 1968 SCMR 1136; *Har Shanker v. Dy. Excise & Taxation Commr.*, AIR 1975 SC 1121; *Radhakrisna Agarwal v. Bihar*, AIR 1977 SC 1496; *Punjab v. Balbir*, AIR 1977 SC 1717

[2] 29 DLR (SC) 41; *Rabia Bashri Irene v. Bangladesh Biman*, 52 DLR 308

that a modern government has multifarious activities and in performance of those activities the government has to enter into contracts of various types. But some of these contracts are different in character from others. When the government and public functionaries enter into contracts in performance of their statutory duties, these are acts of a public nature. Having regard to the nature of these contracts, the Indian Supreme Court observed in *D.F.O. South Kheri v. Ram Sanehi*[1] -

> We are unable to hold that merely because the source of the right which the respondent claims was initially in a contract, for obtaining relief against any arbitrary and unlawful action on the part of the public authority he must resort to a suit and not to a petition by way of writ. In view of the judgment of this Court in *K.N. Guruswamy*'s case[2] there can be no doubt that the petition was maintainable, even if the right to relief arose out of an alleged breach of contract where the action challenged was of a public authority invested with statutory authority.

In *Lutfu Mia v. Bangladesh*[3] the government leased out a fishery to the appellant for three years, but later approved the lease for one year. The appellant unsuccessfully moved the High Court Division in the writ jurisdiction. The Appellate Division found the action of the government to be arbitrary and without lawful authority. But the question of maintainability was not raised or answered in this case. The question was, however, raised in *Sharping M.S. Samity v. Bangladesh*[4] and the High Court Division found in favour of the petitioner as it was pointed out that the contract of lease of the fishery was entered into by a public authority invested with statutory power. Later the lease of the fishery having been cancelled, the lessee challenged the cancellation order in writ jurisdiction and the High Court Division this time discharged the Rule holding that contractual rights cannot be enforced in writ jurisdiction.[5] On appeal the Appellate Division reversed the decision stating –

> Review of all these decisions point out that judicial thinking has crystallised on this subject in two clear-cut ways, namely, (i) if it is a pure and simple contract which is entered into by the Government in its

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[1] AIR 1973 SC 205
[2] AIR 1954 SC 592
[3] 1981 BLD (AD) 105
[4] 1981 BLD 189
[5] *Sharping M.S. Samity v. Bangladesh*, 39 DLR 78

> trading capacity for any breach of such contract writ will not be available as remedial measure, (ii) on the other hand, if the contract is entered into by the government in the capacity as sovereign then writ jurisdiction can be invoked for breach of such contract, inasmuch as, Constitution gives the power directing a person performing any function in connection with the affairs of the republic or making an order that any acts done or proceeding taken by a person performing function in connection with the affairs of the republic then he can invoke the jurisdiction.[1]

The Appellate Division mentioned 'sovereign function' and by this expression the court meant functions performed in pursuance of statutory power as can be seen from the following statement –

> Such function can best be appreciated if matters of settlement of hat, bazar, fisheries, khas lands, etc. are kept in view. The Government acts in these affairs in pursuance of some statutory power and any such contract when rooted in statute the Government discharges its sovereign function.

The use of the expression 'sovereign function' may leave one to grope for the dividing line separating the sovereign functions from other functions of the State. But a careful reading of the judgment shows that the writ jurisdiction is held available in respect of contracts rooted in statutes in contra-distinction to other contracts.[2] Because of the presence of the public law element, a contract rooted in a statute is to be distinguished from pure and simple contracts which have been described as trading contracts for facility of reference. Unless the contract has been entered into by a statutory authority pursuant to a statutory provision or no violation of a statutory provision is established, no remedy is available in the writ jurisdiction. A contract would not become statutory simply because it is for construction of public utility and it has been awarded by a statutory body.[3] A statute may expressly or impliedly confer power on a statutory body to enable it to discharge its functions

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[1] *Sharping M.S. Samity v. Bangladesh*, 39 DLR (AD) 85, Para 31; *Nikli AKMS Samity v. Secy. Ministry of Land*, 45 DLR 1; See *Nuruddin v. Titas G.T.D. Co. Ltd*, 1998 BLD (AD) 273 (For any alleged breach of contract which involves determination of questions of fact, the remedy lies in civil court); *Chairman, BRTC v. Nasiruddin*, 3 BLC (AD) 225 (Failure to pay a part of the agreed voluntary retirement benefit is at best a violation of contract for which proper remedy is in civil court)

[2] See *U.P. v. Bridge & Roof Co.*, (1996) 6 SCC 22

[3] *Kerala State Electricity Bd. v. Kurien*, AIR 2000 SC 2573

and in discharge of its functions the statutory body may enter into contracts. Diputes arising out of the terms of such contracts are to be settled by the ordinary principles of law of contract.[1] Private law may involve a State, a statutory authority or a public body in contractual or tort actions. But they cannot be siphoned off into the writ jurisdiction.[2] In *Bangladesh Telecom Ltd. v. BTTB* the appellant challenged an order of the respondent (a statutory authority) canceling an agreement which permitted the appellant to instal cellular telephone in Bangladesh. The Appellate Division held the writ petition maintainable observing –

> Had there been no licence in favour of BTL then the agreement, standing alone, would have been a purely commercial contract, the cancellation of which could not have attracted the writ jurisdiction of the High Court Division but as the agreement merged into the licence (granted under a statutory provision) its terms and conditions no longer remained the terms and conditions of a commercial contract. It became the terms and conditions of the licence itself.[3]

In a recent decision the Indian Supreme Court observed, "If entering into a contract containing prescribed terms and conditions is a must under the statute then that contract becomes a statutory contract. If a contract incorporate certain terms and conditions in it which are statutory then the said contract to that extent is statutory."[4] It has to be seen whether the Appellate Division will go for this restricted meaning of statutory contract. It must be noted that *Ramana Shetty v. Airport Authority*[5] referred to in *Sharping* is a case where the equality clause was invoked. When discrimination is alleged and enforcement of

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[1] Ibid; *ARK Associates Ltd. v. WASA*, 1999 BLD 349; contra decisions in *Conforce Limited v. Titas Gas Transmission & Distribution Co. Ltd*, 42 DLR 33, and *Zaharuddin v. Bangladesh*, 6 BLC 712, do not seem to lay down correct proposition as the authorities therein were not discharging sovereign functions and the contracts involved were not shown to have been authorised by any statute.

[2] *Kulchindar Sing v. Hardayal Sing*, AIR 1976 SC 2216; *Meghna Vegetable Oil v. BOGMC*, 50 DLR 474; *ARK Associates Ltd. v. WASA*, 1999 BLD 349; *Fazlur Rahman v. Agrani Bank*, 51 DLR 350 (Government bank doing banking business); but bank acting as agent of the government in selling saving certificate is under legal obligation to pay and writ petition is maintainable – *Abdus Salam v. Agrani Bank*, 47 DLR 175; *Abu Mohammad v. Bangladesh*, 52 DLR 352 (Writ petition for rectification of mistake in a sale contract entered into by the government is not maintainable)

[3] 48 DLR (AD) 20, 24

[4] *India Thermal Power Ltd. v. M.P.* AIR 2000 SC 1005

[5] AIR 1979 SC 1628

fundamental right is sought, the distinction between contracts having root in statutes and trading contracts is of no consequence as art.102(1) will be available even in case of an ordinary trading contract.[1]

5.133 In a separate judgment S. Ahmed J observed in *Sharping*,

> ... in case of breach of any obligation under a contract between government and a private party, proper remedy lies in a civil suit and not in a writ petition under the extra-ordinary jurisdiction given by the Constitution. But this principle will not apply when the government violates the terms of the contract with a mala fide intention or acts arbitrarily or in a discriminatory manner.

Mala fide as a concept is applicable when an exercise of statutory power is in question and not in respect of contract performance generally, but the observation of S. Ahmed J is right inasmuch as when the government acts *mala fide* the action in respect of a contract, whether entered in the exercise of statutory power or not, is, at the minimum, arbitrary and is, therefore, violative of art.27.[2] Appellate Division held a writ petition maintainable when the impugned cancellation of contract was arbitrary.[3]

5.134 In *Sekendar Ali v. Chairman B.I.W.T.A.*[4] the Appellate Division held that a contractual right based on licence is not amenable to the writ jurisdiction. In this case a licence granted to operate launch ghats for a limited period was cancelled to grant it to Muktijoddha Sangsad. In terms of the licence no notice or compensation for cancellation was given to the licensees. There is a contractual element in the grant of the licence, but the authority granted the licence in terms of authority conferred under s.15(1)(iv) of the Inland Water Transport Authority Ordinance, 1958 and as such the case has similarity with *Sharping* and it cannot be said to be an ordinary commercial contract. Even though no statutory or contractual provision was violated, the question remains whether a State authority under obligation to act

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[1] *Harmindar Singh v. India*, AIR 1986 SC 1527

[2] *Shahadat Hussain v. Executive Engineer*, 44 DLR 420 (the court equated lease of cafetaria with lease of fishery even though lease of cafetaria is merely a commercial contract, but the decision is correct in view of the finding of *mala fide*); *Shafique Ahmed v. BCIC*, 45 DLR 95; *Sonali Fishermen v. Bangladesh*, 46 DLR 402; *Sumikin Bushan Corp. v. C.P.A.*, 6 MLR 251

[3] *M.D. WASA v. Superior Builders & Engrs*, 51 DLR (AD) 56; see Para 5.134A

[4] 40 DLR (AD) 262

reasonably and not arbitrarily as mandated by art.31 in dealing with a monopoly can secure by contract a power to cancel the contract without notice and without compensation (after receiving money from the licensee on the basis highest bid in auction) when Parliament cannot in view of the protection of art.31 exclude the requirement of notice and hearing. Furthermore, there is also the question of arbitrariness when a licence for a very limited period is sought to be cancelled for no other reason than to grant it to another, may be more deserving, body and that too without paying any compensation. Has not the power been exercised for improper purpose? Is not the right to operate the launch ghats, being a franchise or a right under a contract, a property within the meaning of art.31 or 42? However, these questions do not appear to have been raised before the court. In an unreported case the High Court Division issued writ in respect of award of a commercial contract for construction of a Bailey bridge over a river and the Appellate Division refused to grant leave to appeal.[1] A reading of the judgment and order of the two divisions does not show that any objection relating to the maintainability of the writ petition in respect of commercial contract was raised. But the question came up for consideration in another case where the High Court Division issued writ in respect of a tender for sale of self-propelled barges by the government.[2] Though the High Court Division took the view that *Sharping* was not applicable, the writ was issued upon a view that a right having been created in favour of the petitioner, to enforce the right so created by the persons performing the functions in the affairs of the Republic the writ can be issued. The leave petitions of the government and B.I.W.T.C. were dismissed.[3] The Appellate Division did not agree with the above reason of the High Court Division, but found the writ petition maintainable as the action was being taken in compliance with an international obligation of the government and the contract cannot be termed as a mere trading contract. An international obligation is a matter between a State and another State or an international agency with which the individual seeking the award of the contract has no concern. It is submitted that there is no public law element present in the instant case and the contract may not be put

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[1] *Purbachal Drillers Ltd. v. Mesbahuddin Ahmed*, W.P. No.111 of 1993 and C.P.L.A. No.230 of 1993 (Unreported)

[2] *Birds Bangladesh Agencies Ltd. and three others v. Secy. Ministry of Food*, W.P. Nos.198, 277, 278 and 537 of 1994 (Unreported)

[3] *B.I.W.T.C. v. Birds Bangladesh Agencies Ltd* and other petitions, C.P.L.A. Nos.405-408 and 431 of 1994 (Unreported)

outside the category of pure and simple contract. The court further observed-

> When there is a concluded contract in exercise of an international obligation of the Government and the contract is partly performed, the principle of fairness in Government action comes into play and the government cannot be allowed to play the role of a private litigant driving the aggrieved party to sue for compensation.

If the principle of fairness is the determining factor then every ordinary commercial transaction with the governmental authority evincing unfairness would attract the writ jurisdiction.[1] The Appellate Division has extended the boundary of contracts amenable to the writ jurisdiction by adding contracts to fulfil international obligation to the former category.

5.134A In *M.D. WASA v. Superior Builders & Engrs LTd*[2] a commercial contract was involved. WASA illegally terminated the contract. The High Court Division held the writ petition maintainable to give relief. The Appellate Division rejecting the plea of non-maintainability of the writ petition observed, "Basically, the principle is that, a writ petition cannot be founded merely on a contract, but when a contract is concluded the contractor has a legitimate expectation that he will be dealt with fairly." The doctrine of fairness was introduced to give aggrieved persons a right to a hearing. The doctrine of legitimate expectation is a further extension of the fairness doctrine to give a right to hearing. The doctrine is now being pressed in aid to deal with arbitrary change of policy.[3] The doctrine is not meant to confer additional remedy where the law provides a remedy. For a breach of contract the remedy in law is an action for damages. If legitimate expectation can give a person a right to maintain a writ petition, the distinction between commercial contract and statutory contract made in *Sharping* will be obliterated inasmuch as in every case of breach of contract the contractor can press in aid the doctrine of legitimate expectation to maintain his petition under art.102 of the Constitution. The observation of the Appellate Division is open to exception.

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[1] *Ataur Rahman v. Secretary, Ministry of Communications*, 49 DLR 331 (... There is hardly any scope to apply the principle of equity when terms and conditions of the tender documents are there to provide the legal and proper dispensation)

[2] 51 DLR (AD) 56

[3] See Para 63A – 63C

5.135 For the purpose of application of art.102(2), the contracts between individuals and public authorities can be placed in three groups - (i) contracts which are pure and simple contracts having no basis in a statute nor regulated by any statute and violation of the terms of the contract is alleged, (ii) contracts which are regulated by statutes and there is a breach of the statutory provision and (iii) contracts which are entered into in exercise of statutory power and there is violation of some of the terms of the contract. In the case of contracts of the first group, no writ will lie for enforcement of the contractual right unless the case falls within the exception stated by S.Ahmed J. However, in view of the decision in *Birds Bangladesh Agencies Ltd* the writ jurisdiction will be available in respect of contracts of this group if the action of the government is taken in fulfilment of an international obligation. In the case of contracts of the second group, there being a breach of statutory provision, writ will obviously lie.[1] In *Hasna Mansur* the Appellate Division stated that where the lease deed does not authorise extra-judicial method of resumption of possession, forcible dispossession of the lessee by a public functionary can be challenged in writ jurisdiction by the lessee as resumption of possession is not in due course of law. Possibly the correct view has been expressed by the Indian Supreme Court when it stated –

> A lessor, with best of title , has no right to resume possession extrajudicially by use of force, from a lessee even after the expiry or earlier termination of the lease by forfeiture or otherwise. The use of the expression 're-entry' in the lease deed does not authorise extrajudicial methods to resume possession ... a lessee cannot be dispossessed otherwise than in due course of law. In the present case, the fact that the lessor is the State does not place it in any higher or better position. On the contrary, it is under an additional inhibition stemming from the requirement that all actions of Government and Governmental authorities should have a legal pedigree.[2]

There are some laws which provide for the method of recovery of possession of properties of State and local authorities. In all cases not

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[1] *Hasna Mansur v. Secy. Mininstry of Public Works*, 32 DLR (AD) 34; *Bangladesh Telecom (Pvt) Ltd. v. BTTB*, 48 DLR (AD) 20 (Objection was raised on the ground that cancellation of a commercial contract cannot be challenged in writ jurisdiction. the contract, which merged in the licence granted under the Telegraph Act, having been cancelled in exercise of statutory power, the objection was overruled.)

[2] *U.P. v. Maharaj Dharmendra*, AIR 1989 SC 997, 1004

covered by those laws, State or local authorities cannot use force, but must approach the civil court for recovery of possession. In case of contracts of the third group also writ will lie as stated by the Appellate Division in *Sharping*.[1]

5.136 ***Estoppel:*** Estoppel is a doctrine which prevents a party from denying the existence of a fact which he represented as existing and upon such representation another party has been induced to act to his detriment. It is often described as a rule of evidence, but the whole concept has to be viewed as a substantive rule of law because it absolutely precludes a person from asserting what otherwise is his right.[2] Estoppel is generally treated as of three types of which equitable estoppel is relevant for the present discussion.[3] Pomeroy defines equitable estoppel as follows -

> Equitable estoppel is the effect of the voluntary conduct of a party whereby he is absolutely precluded both at law and in equity, from asserting rights which might perhaps have otherwise existed, either of property, of contract, or of remedy, as against another person, who has in good faith relied upon such conduct, and has been led thereby to change his position for the worse, and who on his part acquired some corresponding right, either of property, of contract, or of remedy.[4]

5.137 In running the governmental functions, the public authorities often make representations in the shape of information, instruction and assurance and people invariably rely on those information, instruction or assurance in shaping their conduct. In many cases the public authorities adhere to their representation. But due to various reasons, the public authorities are found to repudiate their representation leaving the people to suffer for their good faith reliance. Doctrine of equitable estoppel is based on notions of morality and justice and it can be argued that a governmental action should exhibit even higher standard of morality and justice. But the government and public authorities invariably claim immunity against estoppel. The reason for claiming immunity is that the government derives the power to govern from the

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[1] *Bangladesh Telecom (Pvt) Ltd. v. BTTB*, 48 DLR (AD) 20;; *T. Islam v. Dhaka Municipal Corp.*, W.P. No.341 of 1990, unreported (Cancellation of allotment of shops made in exercise of statutory power); *Ram Chandra v. M.P.*, AIR 1971 SC 128

[2] Halsbury's Laws of England, 4th ed., vol.16, Para 1501; *Canada Dominion Sugar Co. Ltd. v. Canadian National (West Indies) Steamship Ltd*, [1947] AC 46, 56

[3] Equitable estoppel is also described as promissory estoppel.

[4] Equity Jurisprudence, 4th ed., vol.2, Para 802; see also s.115 of the Evidence Act.

people and this power must be exercised in the public interest and for public good. Through its legislative and executive branch, the government frames policies, enacts laws, promulgates rules and regulations and administer them in the same public interest and for public good. The entire society has a vital concern in the proper exercise of such power and discretion, and the application of the doctrine of estoppel for the mistake, negligence or wrong-doing of the public officials preventing proper exercise of the power and discretion may subvert the public interest and public good. The power and authority of the government and public authorities are circumscribed by the constitution and the laws and none can be allowed to exercise extra-constitutional or extra-legal authority. If the officials can bind the government by their acts, even though such acts are not clearly within the scope of their authority, there is a danger that the officials will exercise power and discretion not conferred on them, knowing that the government will not be able to disavow their acts. The doctrine of estoppel would be used to validate *ultra vires* and illegal acts. In the words of Lord Greene -

> The power given to an authority under a statute is limited to the four corners of the power given. It would entirely destroy the doctrine of ultra vires if it were possible for the donee of a statutory power to extend his power by creating an estoppel.[1]

Secondary justification offered for the governmental immunity against estoppel is that the government with its myriad field of activities cannot feasibly keep track of the activities of its officials and the general application of the law of principal and agent in its relation with its officials will have a harmful effect on the public interest. Because of these considerations there was initial reluctance of the courts in the English and American jurisdictions to apply the doctrine of equitable estoppel against the government and public authorities.[2] Though sticking to the basic objection of want of authority, the courts have now been more inclined to apply the doctrine where the want of authority is not clear or when the public official misrepresented within the scope of his authority.[3] In *M.P. Sugar Mills v. U.P.*[1] the government notified under

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[1] *Ministry of Agriculture and Fisheries v. Hulkin* (unreported) - quoted in *Ministry of Agriculture and Fisheries v. Mathews*, [1949] 2 All E.R. 724

[2] *Howell v. Falmouth Boat construction Co.*, [1951] 2 All E.R. 278; *Southend-on Sea corporation v. Hodgson*, [1961] 2 All E.R. 46; *FCIC v. Merril*, 332 US 380

[3] *Lever Finance Ltd. v. Westminster L.B.C.*, [1970] 3 All E.R. 496 (A builder had

s.4A of Sales Tax Act that new industrial units would be allowed exemption for three years. The appellant company wanted to establish a vegetable oil mill and was assured by the Chief Secretary about the exemption and the appellant company established the mill. Subsequently, the government rescinded its decision to grant exemption. The Supreme Court, upon consideration of a long line of cases in the English, Indian and American jurisdiction, held that the government was bound by the promise if it had been made by an agent having authority to make such promise and if such promise was not contrary to law even though it might relate to its sovereign function. Later in *Jit Ram v. Haryana*[2] the Supreme Court disagreed with the decision in *M.P.Sugar Mills* to hold that estoppel was not available against the executive functions of the State. But the Supreme Court re-affirmed *M.P.Sugar Mills* in *India v. Godfrey Philips*[3].

5.138 The Appellate Division applied the doctrine of promissory estoppel in *Collector of Customs v. Abdul Hannan*[4] where to avoid the

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obtained approval for building a house at a particular location, but wanting to deviate from the approved plan submitted a revised plan for approval. The borough engineer of the planning authority informed the builder that the deviation was not material and required no approval. When the house was near completion according to the revised plan, the planing authority declared that the deviation was material and issued notice for demolition of the house. The court applied the doctrine of estoppel.); *Robertson v. Minister of Pensions*, [1948] 2 All E.R. 767 (the decision was not approved by the House of Lords in *Howell*); *U.S. v. Wharton*, 514 F.2d 406 (U.S. brought an action for ejectment of the defendants from 40 acres of public land. Predecessor of the defendants who originally entered into those lands approached the officials of the Bureau of Land Management to determine what his family could do to gain title to the lands and the government officials misrepresented that there was no way at a time when it was still possible to gain title by filing a new desert-entry application. The court found the misadvice to be affirmative misconduct and estopped the government.)

[1] AIR 1979 SC 621; *Gujrat State Financial Corp. v. Lotus Hotels*, AIR 1983 SC 848 (Corporation entering into agreement in performance of statutory function to advance loan to a company cannot resile after the company relying on the promise undertook to execute its project at a huge cost); *Pournami Oil Mills v. Kerala*, AIR 1987 SC 590 (Government granting package of concessions to new small scale industries in order to boost industrialisation cannot curtail the concessions subsequently after the industry was set up); *Asst. Commr. Commercial Tax v. Dharmendra Trading*, AIR 1988 SC 1247; *India v. Anglo-Afgan Agencies*, AIR 1968 SC 718; *Century Spinning v. Ulhasnagar Municipal Committee*, AIR 1971 SC 1021.

[2] AIR 1980 SC 1285

[3] AIR 1986 SC 806

[4] 42 DLR (AD) 167

crisis of sugar the government issued notification exempting customs duty and sales tax on the import of sugar for a limited period on fulfilment of certain conditions and the respondent relying on the notification imported the sugar within the stipulated period fulfilling the conditions, but before the arrival of the cargo and submission of the bill of entry the government withdrew the notification of exemption. In another case, the government decided to disinvest a specialised textile mill and at its instance the statutory corporation issued a public notice requiring the original shareholders to take certain steps which they took. But the government refused to disinvest the mill. The Appellate Division held that the government was estopped from denying the right of the shareholders to get back the mill.[1] An employee of a corporation applied for retirement before completing the required period of service and he was allowed to retire. The court held that the employee was estopped from raising the plea that the law did not permit the corporation to release the employee.[2] When a corporation holds out to its employees that they would be dealt with in accordance with the government's disciplinary rules, the corporation is estopped from refusing to apply the said rules.[3] Once the government holds out a promise and a citizen acts on it, the government will be debarred from resiling from the promise.[4] In *Grihayan Limited v. Bangladesh*[5] the Appellate Division by a majority judgment refused to apply the doctrine of promissory estoppel on the ground that the promise was conditional and the promisee did not fulfil the condition to bind the promisor to its promise. The majority judgment did not consider the condition attached to the promise in its proper perspective which the minority judgment did and it is submitted that the minority judgment is correct.

5.139 The position as it now stands is that the government may be estopped from resiling from a representation made by any public functionary if the latter in making the representation acted within the scope of his authority. But there can be no application of estoppel to prevent performance of duty enjoined by law or the Constitution,[6] nor

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[1] *Secretary, Industries v. Saleh Ahmed*, 1981 BLD (AD) 91; *Abdur Rahim v. Bangladesh*, 48 DLR 538; see also *Dr. Nurul Islam v. Bangladesh*, 1981 BLD 12, 22

[2] *Bangladesh Parjatan Corp. v. Mofizur Rahman*, 46 DLR (AD) 46

[3] *M.A. Hai v. T.C.B.*, 40 DLR 206

[4] *Abdur Rahim v. Bangladesh*, 48 DLR 538

[5] 47 DLR (AD) 12

[6] *Pillai v. Kerala*, AIR 1973 SC 2641; *Maritime Electric Co. v. General Dairies Ltd*, A

estoppel may operate against the legislature.[1] Promissory estoppel cannot be invoked to enforce a promise contrary to law.[2] The doctrine of promissory estoppel is an equitable doctrine and it must yield when the equity so requires. So the Indian Supreme Court observed in *M.P. Sugar Mills v. U.P.*[3] -

> If it can be shown by the Government that having regard to the facts as they have subsequently transpired, it would be inequitable to hold the Government to the promise made by it, the Court would not raise an equity in favour of the promise against the Government ... the burden would be upon the Government to show that the public interest in the Government acting otherwise than in accordance with the promise is so overwhelming that it would be inequitable to hold the Government bound by the promise and the court would insist on a highly rigorous standard of proof in the discharge of this burden.[4]

Even in the absence of overwhelming public interest, the government or its instrumentalities may resile from the promise if no one is adversely affected thereby or if it provides a reasonsable opportunity to the promisee to resume his position and restoration of *status quo ante* is possible.[5] It being an equitable principle, a person who plays fraud in obtaining a benefit cannot plead estoppel against the withdrawal of the benefit.[6] The courts are still reluctant to invoke the doctrine of ostensible authority for the application of the doctrine of estoppel.[7]

1937 PC 114

[1] *Kerala v. Gwalior Silk Mfg. (Wvg) Co. Ltd.*, AIR 1973 SC 2734

[2] *Asoke Kumar v. UP*, (1998) 2 SCC 502; *Union Terrritory, Chandigarh v. Managing Society, Goswami, GDSDC*, AIR 1996 SC 1759; *Bhadrachalam Paperboards v. Mandal Revenue Officer*, (1996) 6 SCC 634

[3] AIR 1979 SC 621, 644

[4] See *Grihayan Limited v. Bangladesh*, 47 DLR (AD) 12, for a discussion on the equities involved in the application of the doctrine.

[5] *Shriji Sales Corp. v. India*, (1997) 3 SCC 398; *Pawan Alloys & Casting v. UP SEB*, (1997) 7 SCC 251

[6] *Tamil Nadu v. Gurusamy*, AIR 1997 SC 1199

[7] For a detailed discussion on the subject see R. Berger - Estoppel against Government, 21 U.Chi.L.Rev. 680; A.W. Bradley – Estoppel - Statutory Discretion - Informal Delegation, 1971 C.L.J. 3; F.C. Newman - Should Official Advice be Reliable? - Proposals as to Estoppel and Related Doctrines in Administrative Law, 53 Col.L.Rev. 374; McIntire - Authority of Government Contracting Officers: Estoppel and Apparent Authority, 25 Geo.Wash.L.Rev. 162; Spencer Bower & Turner-Estoppel by Representation, 3rd ed; M. Islam-Estoppel against Government, 1981 BLD (Jnl) 12

5.140 ***Procedure and practice:*** A proceeding under art.102 is either a civil or a criminal proceeding depending on the nature of the case. The proceedings in *certiorari*, prohibition, *mandamus* and *quo warranto* are civil proceedings while *habeas corpus* is treated as a criminal proceeding. Under art.107, subject to any law made by Parliament, the Supreme Court may, with the approval of the President, make rules for regulating the practice and procedure of each division of the Supreme Court. No rule regarding the procedure in the writ jurisdiction has been made under art.107. In exercise of the power under the High Courts (Bengal) Order, 1947, certain rules were made and published on 23 December 1958 regarding writ petitions under art.170 of the Pakistan Constitution of 1956. By virtue of s.24 of the General Clauses Act, 1897 those rules are applicable in respect of the writ petitions under art.102 of the Constitution.[1] For writ petitions other than *habeas corpus* the provisions of the Code of Civil Procedure may apply in respect of matters not covered by the High Court Rules of 1960 by virtue of s.117 of the Code of Civil Procedure.[2] In *Moni Begum v. RAJUK*[3] the Appellate Division found the proceedings in the writ jurisdiction to be civil proceedings, but having regard to the summary nature of the proceedings held that s.141 of the Code would not in terms apply. The court observed -

> ... the Court in its discretion can apply the principles as distinguished from the technical provision of the Code of Civil Procedure to meet the exigencies of the situation in appropriate cases on the ground of justice, equity and good conscience. In what situations the principles will be applied and to what extent may perhaps be left to the wise discretion of the Court itself. In other words, barring what is specifically provided for in the Rules themselves, the Court is the master of its own procedure and it will exercise both its procedural and substantive discretion only on the ground of justice, equity and good conscience.

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[1] see Appendix IV of the Rules of the High Court of Judicature for East Pakistan, 1960, vol.1, Chapter XI, pp.253-255. Rules 1-16 of Part I of Appendix IV(A) are applicable in respect applications for writ other than *habeas corpus*. Rule 1 of Part II of Appendix IV(A) provides that the rules prescribed in Chapter XI at pp.156-157 for application under s.491 of the Code of Criminal Procedure shall be applicable in respect of application for writ of *habeas corpus*.

[2] See *Hussain Baksh v. Settlement Commr.*, 21 DLR (SC) 456; *Babubhai v. Nandalal*, AIR 1974 SC 2105

[3] 46 DLR (AD) 154

The court, however, cautioned against steps which would destroy the summary nature of the proceeding and turn it into a proceeding like a suit by lavish use of the provisions of the Code.

5.141 The High Court Rules provide that an application for a writ other than a writ of *habeas corpus* shall be made in the form of a petition setting out in numbered paragraphs the statement of facts and the grounds on which the writ is prayed for and shall be affirmed on oath by the petitioner himself. The rules relating to an application for writ of *habeas corpus* also require that the application shall be verified by affidavit, but are silent as to who has to affirm the affidavit. As a matter of practice, affidavit by the petitioner is required and the petitioner has to be a person who is close in relationship with the detenu to know the circumstances in which the detenu has been detained.

5.142 The rules further provide that "all questions arising for determination of such petitions shall be decided ordinarily upon affidavits. But the Court may direct that such questions as it may consider necessary be decided on such other evidence and in such manner as it may deem fit and in that case it may follow such procedure and make such orders as may appear to it to be just."[1] Thus the rules contemplate a situation where the court may in the interest of justice feel the necessity of taking oral evidence. In *I.T.O. v. M/S Seth Brothers*[2] where serious allegations were made, the Indian Supreme Court held that the High Court has power to take or call for appropriate evidence at any stage of the proceeding when such a course appears to it to be essential for a just decision of the case and the exercise of such power is certainly called for where it seems necessary for the protection of the court against any fraud or deception attempted to be practised upon it. We have come across cases in which a public authority detained persons without serving the order of detention and the court had been reluctant to issue a rule a without proof of detention. Personal liberty is a precious thing and it cannot be jeopardised by the simple device of not serving the detention order. Where a person sufficiently close to the detenu comes and alleges illegal detention by affirming an affidavit, the court may ask the respondent to admit or deny the fact of detention and, if necessary, take oral evidence to ascertain whether the detenu has at all been arrested and detained. In one case, the detaining authority claimed that the detenu escaped from custody and the court required the

[1] Rule 11 at p.254
[2] AIR 1970 SC 292

deponent of the affidavit-in-opposition to take the dock for cross examination.[1]

5.143 *Pleadings and proof:* As regards pleadings, the principles of Order VI of the Code of Civil Procedure will be applicable and all necessary facts are to be pleaded. As the dispute is to be decided mainly on affidavit, it is necessary to state the essential facts to make out a case for interference and except for mentioning the grounds, the statements need not be argumentative. The pleading must be straight and clear.[2] The same rule applies in respect of affidavit-in-opposition. Though a writ petition is expected to be precise, mere wrong mention of the law in the cause title or a mistake in framing the relief sought will not render the writ petition liable to be thrown out.[3] While in suits the plaint and the written statement should contain only facts and not evidence, in the writ petition and the affidavit-in-opposition not only facts but also the evidence in proof of the facts need be pleaded and annexed.[4] If fraud or *mala fide* is pleaded, the burden of proving it is on the person pleading it.[5] All necessary particulars constituting such fraud or *mala fide* must be given[6] and once one kind of *mala fide* is alleged, the petitioner cannot be allowed to prove another kind of *mala fide*.[7] The person against whom an allegation of fraud or *mala fide* is made must be impleaded as a respondent.[8] Where a specific allegation of fraud or *mala fide* is made against a public functionary, and the allegation is of such nature that it can be controverted only by that public functionary, he must himself controvert the allegation, otherwise the court will be entitled to act on the allegation of fraud or *mala fide*.[9] Specific particulars must also be given in support of an allegation of arbitrary exercise of discretion[10] or

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[1] *Mohsin Sharif v. Bangladesh*, 27 DLR 186

[2] *Mostafa Jaglul v. Authorised Officer*, 33 DLR 42

[3] *Abu Bakr Siddique v. Justice Shahabuddin*, 49 DLR 1

[4] *Bharat Singh v. Haryana*, AIR 1988 SC 2181

[5] *Barium Chemicals Ltd. v. C.L. Board*, AIR 1967 SC 295

[6] *Khandkar Mostaque Ahmed v. Bangladesh*, 34 DLR (AD) 222; *Dr. Md. Yusuf Ali v. Chancellor, Rajshahi Univ.*, 1998 BLD 1

[7] *West Pakistan v. Begum Shorish Kashmiri*, 21 DLR (SC) 1; *Jobed Ali Sarker v. Dr. Sultan Ahmed*, 27 DLR (AD) 78; *Pratap Singh v. Punjab*, AIR 1964 SC 72; *Sharma v. Shri Krishna*, AIR 1959 SC 395

[8] *Mozibur Rahman v. Chairman, D.I.T.*, 41 DLR (AD) 131

[9] *Md. Nurul Huda Mia v. Dhaka WASA*, 44 DLR 527; *Pratap Singh v. Punjab*, AIR 1964 SC 72; *Rowjee v. A.P.*, AIR 1964 SC 962

[10] *I.T.O. v. Damodar*, AIR 1969 SC 408, 414

invidious discrimination[1]. Statement of facts made in the petition should be controverted in the affidavit-in-opposition. If any averment is not controverted in the affidavit-in-opposition, the court is to proceed as if such averments have been admitted by the respondent.[2] Fact asserted in the affidavit-in-opposition, if not controverted by an affidavit-in-reply, shall be deemed to have been admitted.[3] As in a suit, pleadings in the writ jurisdiction may be amended within the limits permitted by Or.6 r.17 of the Code of Civil Procedure and in allowing the amendment the court will see that the other party is not prejudiced. A petition cannot be allowed to be amended so as to give it a new and altogether different complexion.[4] The court should ordinarily insist on the parties being confined to their specific written pleadings and the parties should not be permitted to deviate from them by way of modification or supplementation except through the well known process of formally applying for amendment.[5]

5.143A The burden of proof is primarily on the petitioner who is required to bring sufficient materials on record in support of his case. Like the presumption of constitutionality of law, there is a presumption that official business has been regularly performed and the burden to prove the contrary is on the petitioner.[6] Where both the sides have led evidence in support of their respective cases, the question of onus of proof fades into insignificance and the court is to take decision on the preponderance of evidence.[7] In the absence of relevant and reliable materials on both sides, the court may, in certain circumstances, come to a finding as to whether the impugned action is arbitrary or not.[8]

5.144 *Affidavit*: As the petition is to be disposed of on affidavit, it is necessary to comply with the provisions of Or.XIX of the Code of Civil Procedure, particularly those relating to verification. Any affidavit not

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[1] *Katra Education Society v. U.P.*, AIR 1966 SC 1307, 1313

[2] *Naseem Bano v. U.P.*, AIR 1993 SC 2592

[3] *Square Pharmaceuticals v. Bangladesh*, 3 BLC 22; *Bangladesh v. Anwar Ahmed*, 51 DLR (AD) 42

[4] *A.R. Niazi v. Pakistan*, 20 DLR (SC) 196, Para 14

[5] *Sharma v. India*, AIR 1981 SC 588, 591; *Municipal Corp, Jabalpur v. M.P.*, AIR 1966 SC 837; see *Mehta v. India*, AIR 1987 SC 1086 (in a public interest litigation, in exceptional circumstances, the court did not insist on amendment of the pleading)

[6] *Mustafa Kamal v. Commr. Of Customs*, 52 DLR (AD) 1

[7] Ibid

[8] Ibid

complying with those provisions are not acceptable.[1] If necessary, the court may require the deponent to present himself for cross examination by the other side.[2] The affidavit is to be sworn by the person who has knowledge of the facts or who is acquainted with the facts on information received from reliable source. If the averment is not based on personal knowledge, the source of information must be disclosed.[3] However, a person other than the writ petitioner can affirm affidavit only with the leave of the court producing either letter of authority or power of attorney from the writ petitioner.[4]

5.145 *New plea* : A petitioner will not ordinarily be allowed to raise a new plea before the High Court Division which was not raised before the inferior tribunal, particularly when it is a question of fact or a mixed question of fact and law[5] except in special circumstances. Further, a petitioner will not be permitted to travel beyond his pleadings.[6] But a plea though not taken in the petition may be allowed to be urged if it is specifically taken in the affidavit-in-reply giving the respondent sufficient notice of it.[7] A new plea is also allowed to be taken when it had gone to the root of the matter or was otherwise of considerable importance or had something to do with interpretation of statute.[8] This limitation does not apply in the case of a point of law which does not require ascertainment of facts.[9]

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[1] *Vice-chairman v. Shah Ghulam Nabi*, 27 DLR (AD) 156; *Barium Chemicals v. C.L. Board*, AIR 1967 SC 295

[2] Ibid; *A.P.S.R.T. Corp. v. Satyanarayan*, AIR 1965 SC 1303

[3] *Vice-chairman v. Shah Golam Nabi*, 27 DLR (AD) 156; *Barium Chemical Ltd. C.L. Board*, AIR 1967 SC 295

[4] *Bangladesh v. Anwar Ahmed*, 51 DLR (AD) 42

[5] *Abdul Hai v. Chief Election Commr.*, 15 DLR 678; *Sk. Nasim Anwar v. I.T.O.*, 19 DLR 421; *Kochuni v. Madras*, AIR 1960 SC 1080; *Sharma v. Shri Krishna*, AIR 1959 SC 395 (It would not be right to permit the petitioner to raise questions which depend on facts and which were not mentioned in the petition but were put forward in a rejoinder to which the respondents had no opportunity to reply)

[6] *Municipal Corporation v. M.P.*, AIR 1966 SC 837; *T.R. Tewari v. District Board*, AIR 1964 SC 1680

[7] *Pandarasannidi v. Madras*, AIR 1965 SC 1578

[8] *Arunachalam v. Southern Roadways*, AIR 1960 SC 1191; *Bharat Kala Bhandar v. Damangao Municipality*, AIR 1966 SC 249; *Gandumogula v. Jagapathiraju*, AIR 1967 SC 647

[9] *M. Noman v. D.I.T.*, 16 DLR 537 (in this case statement contrary to the point of law was made, but the court held that the point of law could be considered as there cannot be any estoppel against the stature.)

5.146 *Parties in the proceeding*: A writ petition must be filed by the person aggrieved[1] and he must affirm the affidavit unless for special reasons the court allows any other person to affirm it. An aggrieved person may, however, have the petition filed or the affidavit affirmed by his constituted attorney.[2] Ordinarily, two or more persons cannot join in a single petition to enforce separate claims or challenge separate orders.[3] But where the right to relief arises from the same act or transaction and there is a common question of law or fact, or where, though the right to relief claimed does not arise from the same act or transaction, the petitioners are jointly interested in the causes of action, one petition is maintainable at their instance.[4] Where the claims of the petitioners are separate and independent, they may be required to pay separate court-fees.[5] All persons, who may be directly affected in the event of the writ being issued, are necessary parties and they must be impleaded as issuance of writ in the absence of such persons will be a violation of the principle of natural justice.[6] A writ petition will not fail for a mere misdescription of a necessary party.[7] Rule 9 of the High Court Rules provides that if at the hearing of the petition the court is of the opinion that a person who ought to have been served with the notice of the petition has not been so served, the court may order that notice be served on such person and adjourn the hearing upon such terms as it thinks proper. In one case in which an order of compulsory retirement was challenged, the High Court Division while making the Rule absolute made a finding of *mala fide* against the Minister-in-charge who was not a party to the proceedings and then issued a *suo motu* Rule upon the Minister to show cause why he should not pay a cost of Tk.10,000/- to the petitioner. After hearing, the court made the Rule absolute. The Appellate Division held that if the High Court Division wanted to proceed against the Minister, r.9 of the High Court Rules ought to have been followed.[8] *Mala fide* cannot be found against a person without

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[1] *Standard Vacuum Oil Co. v. Trustees of Chittagong Port*, PLD 1961 Dac 278; see Para 5.155-5.164 for discussion on 'aggrieved party'

[2] *Zamiruddin Ahmed v. Bangladesh*, 1981 BLD 304

[3] *Dhanyalakshmi Rice Mills v. Commr. of Civil Supplies*, AIR 1976 SC 2243

[4] *Anam Adhinarayan v. A.P.*, AIR 1958 AP 16

[5] *Mota Singh v. Haryana*, AIR 1981 SC 484

[6] *Jamir Ali v. Secy. Ministry of Land*, 52 DLR 125; *Udit Narayan v. Addl. Member, Bd. of Revenue*, AIR 1963 SC 786; see Para 6.60A

[7] *Rashiduzzaman v. Bangladesh*, 49 DLR 43

[8] *Habiullah Khan v. S. Azharuddin*, 35 DLR (AD) 72

impleading him in the petition and the Appellate Division quashed the observation relating to *mala fide*. The Appellate Division further held that upon disposal of the petition the High Court Division became *functus officio* and had no legal authority to issue the *suo motu* Rule which was issued as a "belated attempt to regularise the irregular procedure followed in disposing of the writ petition." When a petitioner does not implead a necessary party the writ petition is liable to be dismissed for defect of parties.[1] Where, however, the number of affected parties is too large to be impleaded as respondents individually, it would be permissible to have at least some of them impleaded as respondents in representative capacity.[2] A question arose whether the provisions of Order 1 rule 8 of the Code of Civil Procedure relating to representative suit could be availed of in the writ jurisdiction. Upon a view that the Code is not applicable in respect of writ petitions the High Court of East Pakistan answered the question in the negative.[3] But in *Hussain Baksh v. Settlement Commissioner*[4] it was held that the provisions of the Code are applicable in writ petitions as these are civil proceedings. In *General Manager, South Central Rly v. Siddhanti*[5] the Indian Supreme Court held that non-impleading of affected parties was not fatal when the validity of the policy decision of the Railway Board regulating seniority of staff was challenged on the ground of violation of fundamental right and relief was claimed against the Railway. If a party impleaded is not a necessary or proper party, the court may strike out his name and in a proper case the court may in its discretion add or implead proper parties to decide all questions that may be involved in the controversy either *suo motu* or on the application of any party.[6] On the question of addition of party on an application, the Appellate Division observed, "The scope and purpose of a writ petition are manifestly different from a civil suit

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[1] *Nurul Islam v. Bangladesh*, 46 DLR 46

[2] *Prabodh Verma v. U.P.*, AIR 1985 SC 167; *Nurul Islam v. Bangladesh*, 46 DLR 46

[3] *Razab Ali v. East Pakistan*, 10 DLR 489

[4] 21 DLR (SC) 456; see *Moni Begum v. RAJUK*, 46 DLR (AD) 154

[5] AIR 1974 SC 1755

[6] *Udit Narayan v. Addl. Member,Board of Revenue*, AIR 1963 SC 786; *Abdul Khaliq v. Bangladesh*, 1987 BLD (AD) 121 (a tenant inducted by the government treating the property as abandoned is neither a necessary nor a proper party in a proceeding for release of the property); *Mohsin Kabir v. Bangladesh*, 45 DLR 302; *Mobarak Hossain v. Azad Rahman*, 2 BLC (AD) 180 (where a person's claim to a post depends upon the success of his employer who is already impleaded as a respondent, he is neither a necessary party nor a proper party.)

and the principles relating to addition of party in a civil suit are not protanto applicable to a writ petition. Ordinarily the aggrieved person seeking relief under Article 102 has the right and duty to choose his adversaries and a respondent cannot thrust another into that category whom the writ petitioner does not want, may be to his peril."[1]

5.146A *Award of cost:* The court in disposing of a writ petition can award cost in appropriate cases. In awarding cost, the court must give some reason, otherwise it may appear to be arbitrary.[2] Imposition of a huge cost against the petitioner is not justified when the petition is dismissed in limine and no reason for awarding the cost is given.[3] When respondent auction purchaser suffers loss for not being able to take delivery of goods auction sold due to the action of the petitioner, the High Court Division awarded substantial cost to the auction purchaser.[4]

5.147 *Dismissal of the petition*: If a petition has been dismissed for default of the petitioner or has been allowed exparte, the principles of Or.IX of the Code of Civil Procedure may be applicable and in an appropriate case the court may restore the petition or, as the case may be, re-hear the petition.[5]

5.148 Where the application *prima facie* discloses a case for interference the court should not summarily dismiss the application.[6] In dismissing an application whether summarily or upon hearing all the parties, the court should give reasons for the order.[7] If the respondent has not controverted the averments of the petition and has not even resisted the same, dismissal of the petition is not proper.[8] Where the petitioner has withdrawn his petition without taking leave of the court to file a fresh petition, he cannot file a fresh petition.[9]

5.149 *Commission*: In appropriate circumstances, the court may issue a commission for ascertaining facts as provided by Or.XXVI of the

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[1] *Moudud Ahmed v. Anwar Hossain Khan*, 1995 BLD (AD) 12

[2] *Bangladesh v. Court of Settlement*, 51 DLR (AD) 87

[3] *Al-Helal Rice Mills v. BSRS*, 51 DLR (AD) 51

[4] *Mia Ahmed Kibria v. Bangladesh*, 50 DLR 496

[5] *Moni Begum v. RAJUK*, 46 DLR (AD) 154

[6] *Century Spin. & Mfg. Mills v. Ulhasnagar Municipality*, AIR 1971 SC 1021

[7] *Gram Panchayet v. Collector*, AIR 1991 SC 1082

[8] *Radheshyam v. District Inspector of Schools*, AIR 1987 SC 1628

[9] *Sarguja Transport v. S.T.A.T.*, AIR 1987 SC 88 (the court, however, excepted a petition for *habeas corpus* from this rule)

Code of Civil Procedure.[1] The Indian Supreme Court issued commission for report when there was serious allegation of violation of fundamental right to life and personal liberty of citizens.[2]

5.150 *Res judicata*: A decision given in a writ petition or suit between the same parties on an issue, operates as *res judicata* and no fresh petition or suit can be brought to re-agitate the issue.[3] When the plaint of a suit in respect of an election dispute has been rejected holding that the election tribunal has the exclusive jurisdiction, a writ petition cannot be maintained for deciding that election dispute.[4] In the same way the principle of constructive *res judicata* will be applicable. When a decision has been given on merits, a second petition will not lie on a plea which was available at the hearing of the first petition but was not taken.[5] On the same principle a relief which was prayed for but not granted will be deemed to have been denied.[6] When a proceeding stands terminated by a final decision in a writ petition, the court cannot re-open the proceeding by means of a miscellaneous application in respect of a matter which provides a fresh cause of action.[7] But the principle of *res judicata* will not be applicable if the petition is dismissed as being withdrawn or has not been dismissed on merits[8], or if the petition is rejected on the ground of lack of standing[9], or on the ground of availability of efficacious remedy[10] or where the statutory provision on

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[1] *Kochuni v. Madras*, AIR 1959 SC 725; see rule 11 of the High Court Rules.

[2] *Nilabati Behera v. Orissa*, AIR 1993 SC 1960

[3] *Md. Yakub v. Chief Settlement Commr.*, PLD 1965 SC 254; *Daryao v. U.P.*, AIR 1961 SC 1457; *India v. Nanak*, AIR 1968 SC 1370; *Virudhanagar S.R. Mills v. Madras*, AIR 1968 SC 1196; *Dudani v. S.D. Sharma*, AIR 1986 SC 1455; *Asoke Kumar v. National Insurance*, AIR 1998 SC 2046

[4] *Habibullah v. Election Commn.*, 1989 BLD 496

[5] *Devilal v. S.T.O.*, AIR 1965 SC 1150; *Gulabchand v. Gujrat*, AIR 1965 SC 1153; *Forward Construction v. Probhat*, AIR 1986 SC 391. In *Kirit Kumar v. India*, AIR 1981 SC 1621, it was held that constructive res judicata in matters of fundamental rights would not be applicable where a point was raised in subsequent application under art.32 which was not raised in an aplication under art.226. The same view was re-iterated in *Asoke Kumar v. India* (*supra*). This view cannot hold good in our jurisdiction as the High Court Division has the power and duty to enforce fundamental rights under art.102(1).

[6] *MSRTC v. Babajan*, AIR 1977 SC 1112

[7] *U.P. v. Shri Brahm Dutta*, AIR 1987 SC 943

[8] *Daryao v. U.P.*, AIR 1961 SC 1457; *Tilokchand v. H.B. Munshi*, AIR 1970 SC 898

[9] *Joseph v. Kerala*, AIR 1965 SC 1514; *India v. Nanak*, AIR 1968 SC 1370

[10] *Daryao v. U.P.*, AIR 1961 SC 1457

the basis of which the previous decision was given has been materially altered[1]. The previous decision will not also be a *res judicata* when the second petition is brought on a different cause of action.[2]

5.151 *Futile and premature writs:* The court will not issue a writ where it will be futile.[3] Thus though the cancellation of a contract was found illegal, the Indian Supreme Court in *Guruswamy v. Mysore*[4] instead of issuing the writ awarded cost to the petitioner as in the meantime the period of the contract expired.[5] An Act will not be declared void if during the pendency of the proceeding the Act has been repealed.[6] When the validity of an Ordinance was challenged on the ground that there was no emergent situation necessitating promulgation of the Ordinance, the Appellate Division declined to go into the question as in the meanwhile it was replaced by an Act of Parliament.[7] The Pakistan Supreme Court held that the court would not grant a writ when the law gives power to one of the parties affected by the writ to nullify the court's writ unilaterally.[8] The same proposition was reiterated in *R. Sim & Co. v. D.M. Tippera*[9], but the court took the view that the question of the writ being futile did not arise as even if the authority

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[1] *Amritsar Municipality v. Punjab*, AIR 1969 SC 1100

[2] *Aditya Kumar v. Principal, Rajendra Medical College*, AIR 1971 SC 1005

[3] *Nazmul Huda v. Secretary, Cabinet Division*, 2 BLC 414; See *Idrisur Rahman v. Shahiduddin*, 1999 BLD 291 (Court answered the question as the violation was a continuing one)

[4] AIR 1954 SC 592

[5] *Rashbehari v. Orissa*, AIR 1969 SC 1081; *Mohit Chandra v. District Magistrate*, AIR 1974 SC 2287 (petitioner released pending hearing of *habeas corpus* petition); *Ghyas Siddique v. Bangladesh*, 43 DLR 179 (impugned order having been withdrawn, the court will not go into the legality of the order); *Haryana v. Krishna Rice Mills*, AIR 1982 SC 1106 (petitioner Y challenged levy of sales tax; State lawyer assured withdrawal of the instruction in respect of the levy and the petition was held infructuous); *Suresh v. Vasant*, AIR 1972 SC 1680 (writ petition against a student who was admitted to certain course and was about to complete it successfully was not allowed when the petitioner himself was not eligible); see *Mirza Ali v. State*, 43 DLR 144 (the court decided the issue of legality of the order of detention even after release of the detenu when it appeared in the facts of the case that the detenu would suffer detriment if the order would not be declared illegal).

[6] *Kartar Singh v. Piara Ram*, AIR 1976 SC 957

[7] *Kudrat-E-Elahi v. Bangladesh*, 44 DLR (AD) 319; *A.K. Roy v. India*, AIR 1982 SC 710

[8] *Rahmatualth v. Dy Settlement Commr.*, 15 DLR (SC) 373

[9] 18 DLR (SC) 543

issued a fresh order of requisition it would give the appellant a valuable right to get compensation at an enhanced rate. It is submitted that the court was not right in laying down the proposition that it would be futile to issue a writ when it could be nullified by the party against whom it is issued. The court is to see to the legality of the action and not to speculate the action to follow and it is only in *Guruswamy* situation that a writ may be futile. The Pakistan Supreme Court, however, stated the correct position in *East Pakistan v. Daulatpur Jute Mills* observing -

> ... the High Court merely pronounces upon the legality or constitutionality of an act of the executive ... no question of rendering the order of the High Court futile or ineffective can arise in these circumstances. The Courts are merely interested in seeing that the executive authority acts in accordance with law and does not take away rights by arbitrary or illegal exercise of power. They are not interested in seeing as to what kind of action will or will not be taken.[1]

5.152 The court will not entertain a writ petition on premature grievances. Thus where an international treaty provided that it would be effective only on exchange of the instruments of ratification, a writ petition challenging the treaty was not maintainable until the instruments of ratification were exchanged.[2] The court will not take cognisance of an action re-opening a dropped disciplinary proceeding until punitive action is taken.[3] A writ petition challenging the recommendation of a candidate by the Public Service Commission on the ground of lack of necessary qualification was rejected as it was open to the appointing authority not to accept the recommendation.[4] But an application can be presented not only after the applicant's legal right has been invaded but also when they have been threatened with an immediate peril.[5]

5.153 ***Power of Review:*** The Constitution has not specifically conferred power on the High Court Division to review its own judgment. The question is whether such a power is available to the High

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[1] 20 DLR (SC) 61, Para 31; *Ghulam Mohiuddin v. Ch. Settlement Commr.*,16 DLR (SC) 654

[2] *Kazi Mukhlesur Rahman v. Bangladesh*, 26 DLR (AD) 44

[3] *Chanan Singh v. Registrar, Co-operative*, AIR 1976 SC 1821

[4] *Kunda Kadam v. Soman*, AIR 1980 SC 881; *Balmadies Plantation v. T.N.*, AIR 1972 SC 2240 (when an Act has not come into force, the question of validity of issuing notice under that Act cannot be gone into by the court).

[5] *Usmania Glass Sheet v. S.T.O.*, 22 DLR (SC) 437; *Bengal Immunity v. Bihar*, AIR 1955 SC 661; *Kochuni v. Madras*, AIR 1959 SC 725

Court Division under the provisions of s.114 of the Code of Civil Procedure. The Pakistan Supreme Court answered the question in the affirmative[1] In *Azra Zaman v. Bangladesh*[2] the High Court Division held that it cannot review its judgment in writ jurisdiction. The view of the court that a proceeding in the writ jurisdiction cannot be safely and exclusively called a civil proceeding really avoided the real issue. The Pakistan Supreme Court pointed out -

> Whether a proceeding is civil or not depends on the nature of the subject-matter of the proceeding and its object, and not on the mode adopted or the forum provided for the enforcement of the right. A proceeding which deals with a right of a civil nature does not cease to be so merely because the right is sought is to be enforced by having recourse to the writ jurisdiction.[3]

The High Court Division found inconsistency in *Hussain Baksh* as the Pakistan Supreme Court found the power of review in writ jurisdiction even after holding that the right of review is a substantive right which is a creature of statute. It is submitted that there is no inconsistency in *Hussain Baksh* inasmuch as the Pakistan Supreme Court found the power by reference to ss. 114 and 117 of the Code only after finding that when matters of civil nature are dealt with in the writ jurisdiction, it is a civil proceeding.

5.154 *Court-fees and costs*: The High Court Rules have provided for court-fees for the petition and for annexing documents and have left the matter of awarding cost to the discretion of the court. But the rules are not detailed. For matters not covered by these rules resort must be had to the provisions of the Code of Civil Procedure. The court in disposing of a petition may award cost. Rule 15 describes the expenses which may be included in the cost. The court has the discretion in awarding cost. But such discretion must be exercised judicially and in accordance with law and practice of the court.[4] The court does not award cost against a person who is not a party to the proceeding, but in view of the language

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[1] *Hussain Baksh v. Settlement Commr.*, 22 DLR (SC) 456; *Shivdeo Singh v. Punjab*, AIR 1963 SC 1909, Para 8 (There is nothing in Art.226 of the Constitution to preclude a High Court from exercising the power of review which inheres in every court of plenary jurisdiction to prevent miscarriage of justice to correct grave and palpable errors committed by it.)

[2] 34 DLR 247; *Omar Faruk v. Bangladesh*, 51 DLR 118

[3] *Hussain Baksh v. Settlement Commr.*, 21 DLR (SC) 456, 459

[4] *Habibullah Khan v, S. Azharuddin*, 35 DLR (AD) 72

of s.35 of the Code of Civil Procedure, the court may award cost even against a stranger to the proceeding provided he is given an opportunity of being heard. Such a hearing must be given in the proceeding itself and not by starting a separate proceeding after disposal of the writ proceeding.[1]

WRIT JURISDICTION : AGGRIEVED PARTY

5.155 Under art.102 except for an application for *habeas corpus* or *quo warranto* a writ petition can be filed only by a 'person aggrieved'. Thus in order to have *locus standi* to invoke the jurisdiction an applicant has to show that he is an aggrieved party in an application for *certiorari, manadamus* or prohibition.[2]

5.156 The leading English case on *locus standi* is *Exparte Sidebotham*[3] where the court held that a person aggrieved is a man "who has suffered a legal grievance, a man against whom a decision has been pronounced which has wrongly deprived him of something, or wrongfully refused him something, or wrongfully affected his title to something." The same view was taken in subsequent cases.[4] The Pakistani and Indian courts were greatly influenced by these English decisions. In *Tariq Transport v. Sargodha-Vera Bus Service*[5] (a petition under art.170 the of Pakistan Constitution, 1956) the Supreme Court observed, "... a person seeking judicial review ... must show that he has a direct personal interest in the act which he challenges before his prayer for review is entertained." The same view was taken in respect of *locus standi* under art.98 of the Constitution of Pakistan, 1962.[6] Therefore, an association, though registered, did not have *locus standi* to vindicate the personal or individual grievance of its members.[7] In *Fazal Din v. Lahore I.T.*[8] the Pakistan Supreme Court took somewhat liberal view stating, "...

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[1] Ibid

[2] *KARIKA v. Secy. LGRD*, 45 DLR 324 (when an order affecting the management of a society is an aggrieved person)

[3] [1880] 14 Ch. D. 458

[4] *Exparte Official Receiver In Re Reed Bowen & Co.*, [1897] 19 QBD 174

[5] 11 DLR (SC) 140, 150

[6] *Abdus Salam v. Chairman, Election Authority*, 17 DLR 191

[7] *Pakistan Steel Re-Rolling Mills Assn. v. West Pakistan*, PLD 1964 Lah 138; the same view was taken in *Bangladesh Electrical Assn. v. Bangladesh*, 46 DLR 221

[8] 21 DLR (SC) 225

the right considered sufficient for maintaining a proceeding of this nature is not necessarily a right in the strict juristic sense but it is enough if the applicant discloses that he had a personal interest in the performance of the legal duty which if not performed or performed in a manner not permitted by law would result in the loss of some personal benefit or advantage or the curtailment of a privilege or liberty or franchise."[1] The Indian Supreme Court also followed the English decisions in the matter of standing both for the enforcement of fundamental rights and for other constitutional remedies.[2]

5.157 In *Kazi Mukhlesur Rahman v. Bangladesh*[3], an advocate challenged the legality of the Delhi Treaty of 1974 regarding demarcation of the land boundary between India and Bangladesh and the Appellate Division took a liberal view of the standing of the appellant stating -

> The fact that the appellant is not a resident of South Berubari Union No.12 or of the adjacent enclaves involved in the Delhi Treaty need not stand in the way of his claim to be heard in this case. We heard him in view of the constitutional issue of grave importance raised in the instant case involving an international treaty affecting the territory of Bangladesh and his complaint as to an impending threat to his certain fundamental rights guaranteed by the constitution, namely, to move freely throughout the territory of Bangladesh, to reside and settle in any place therein as well as his right of franchise. Evidently, these rights attached to citizen are not local. They pervade and extend to every inch of the territory of Bangladesh stretching up to the continental shelf.

But the court continued to stick to the traditional view of *locus standi*. Referring to *Fazal Din*, the High Court Division observed,

> We also are of the opinion that any person who is affected by any order can maintain a petition under article 102 ... In order to show that they have been affected, it is necessary to establish that they have some right in the subject-matter of the dispute and that they are affected by the

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[1] *Mizanur Rahman v. Chittagong Mun. Corp.*, 45 DLR 331

[2] *Chiranjitlal v. India*, AIR 1951 SC 41 (no one except those whose rights are directly affected by a law can raise the question of constitutionality of that law); *Calcutta Gas Co. v. West Bengal*, AIR 1962 SC 1044; *Orissa v. Ram Chandra*, AIR 1964 SC 685; *Venkateswara v. A.P.*, AIR 1966 SC 828; *J.M. Desai v. Roshan Kumar*, AIR 1976 SC 578

[3] 26 DLR (AD) 44

impugned orders ...[1]

5.158 This rule of *locus standi* has an adverse effect on the rule of law. Schwartz and Wade commented -

> Restrictive rules about standing are in general inimical to a healthy system of administrative law. If a plaintiff with a good case is turned away, merely because he is not sufficiently affected personally, that means that some government agency is left free to violate the law, and that is contrary to public interest.[2]

Speaking about this traditional view of *locus standi,* Prof. Theo in his book "Locus Standi and Judicial Review" observed -

> Is the judicial function primarily aimed at preserving legal order by confining the legislative and executive organs of government within their powers in the interest of public (Jurisction de droit objectif) or is it mainly directed towards the protection of private individuals by preventing ilegal encroachments on their individual rights (jurisdiction de droit subjectif)? The first contention rests on the theory that courts are the final arbiters of what is legal and illegal ... Requirements of locus standi are therefore unnecessary in this case since they merely impede the purpose of the function as conceived here.[3]

Before we proceed further in quest of the meaning of 'person aggrieved' in art.102, it will be worthwhile to note the development in other jurisdictions in this regard.

5.159 With the increase of governmental functions, the English courts found the necessity of liberalising the standing rule to preserve the integrity of the rule of law. When a public-spirited citizen challenged the policy of the police department not to prosecute the gaming clubs violating the gaming law, the court heard him though no definite answer to the standing question was given.[4] The court heard Mr. Blackburn challenging the action of the government in joining the European Common Market.[5] Again, Mr. Blackburn was accorded standing in

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[1] *Eastern Hosiery M.S.B.S. Samity v. Bangladesh*, 29 DLR 694, 679; *Dacca Match Workers v. Bangladesh*, 29 DLR 188; *K.S. Employees Union v. G.M. Khulna Shipyard*, 30 DLR 368 (for violation of right of individual worker, the trade union and the collective bargaining agent will have no *locus standi* to invoke writ jurisdiction.)

[2] Legal Control of Government (1972), p.291

[3] Quoted in S.P. Gupta v. India, AIR 1982 SC 149, 190

[4] *R. v. Metropolitan Police Commr. ex p. Blackburn*, [1968] 1 All E.R. 763

[5] *Blackburn v. Att. Gen.*, [1971] 2 All E.R. 1380

enforcing the public duty owed by the police and Greater London Council in respect of exhibition of pornographic films.[1] Lord Denning observed –

> I regard it as a matter of high constitutional principle that, if there is a good ground for supposing that a government department or a public authority is transgressing the law, or is about to transgress it, in a way which offends or injures thousands of Her Majesty's subjects, then any one of those offended or injured can draw it to the attention of the courts of law and seek to have the law enforced, and the courts in their discretion can grant whatever remedy is appropriate.

In all the cases the duty owed by the public authorities was to the general public and not to an individual or to a determinate class of persons and the applicants were found to have *locus standi* as they had 'sufficient interest' in the performance of the public duty. By the time the House of Lords was deciding the case of *I.R.C. v. Federation of Self-Employed*[2], the court was asking whether the applicant had sufficient interest and not whether he was an aggrieved person. Referring to the above quotation, Lord Diplock observed, "The reference here is to flagrant and serious breaches of the law by persons and authorities exercising governmental functions which are continuing unchecked. To revert to the technical restrictions on locus standi to prevent this that were current thirty years ago or more would be to reverse that progress towards a comprehensive system of administrative law that I regard as having been the greatest achievement of the English courts in my judicial lifetime."[3] In concluding his opinion Lord Diplock stated -

> It would, in my view, be a grave lacuna in our system of public law if a pressure group, like the federation, or even a single public spirited taxpayer, were prevented by outdated technical rules of locus standi from bringing the matter to the attention of the court to vindicate the rule of law and get the unlawful conduct stopped ... It is not sufficient, in my view, a sufficient answer to say that judicial review of the actions of officers or departments of central government is unnecessary because they are accountable to Parliament for the way in which they carry out

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[1] *R. v. Metropolitan Police Commr. ex p. Blackburn*, [1973] 1 All E.R. 324; *R. v. Greater London Council ex p. Blackburn*, [1976] 3 All E.R. 184. See also *A.G. v. Independent Broadcasting Authority*, [1973] 1 All E.R. 696

[2] [1981] 2 All E.R. 93

[3] Ibid, p.104

> their functions. *They are accountable to Parliament for what they do so far as regards efficiency and policy, and of that Parliament is the only judge; they are responsible to a court of justice for the lawfulness of what they do, and of that the court is the only judge.*[1](Italics supplied)

In the meanwhile the new Order 53 of the Rules of the Supreme Court was introduced and then came the Supreme Court Act, 1981 recognising the liberalised rule of standing.[2]

5.160 In India the concept of public interest litigation (public spirited citizens bringing matters of great public importance) was initiated by Krishna Iyer J in *Mumbai Kamgar Sabha v. Abdulbhai*[3] stating, "Test litigation, representative actions, *pro bono publico* and like broadened forms of legal proceedings are in keeping with the current accent on justice to common man and a necessary disincentive to those who wish to bypass the real issues on merits by suspect reliance on peripheral, procedural shortcomings ... Public interest is promoted by a spacious construction of *locus standi* in our socio-economic circumstances and conceptual latitudinarianism permits taking liberties with individualisation of the right to invoke the higher courts where the remedy is shared by a considerable number, particularly when they are weaker."[4] In *Fertilizer Corp. Kamgar Union v. India*[5] the Supreme Court allowed the workers' union and two individual workers of a factory to challenge the action of the government in selling the factory. A definite jurisprudential basis was laid down in *S.P. Gupta v. President of India*[6] where several advocates of different Bars challenged the action of the government in transferring some judges of the High Courts. In according standing to the petitioners, Bhagwati J observed -

> Where a legal wrong or a legal injury is caused to a person or to a determinate class of persons by reason of violation of any constitutional or legal right or any burden is imposed in contravention of any constitutional or legal provision or without authority of law or any such legal wrong or legal injury or illegal burden is threatened and such

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[1] Ibid, p. 107

[2] See *R. v. Secy. of State ex p World Development Movement*, [1995] 1 All E.R. 611

[3] AIR 1976 SC 1455

[4] Similar view was expressed by Iyer J in *Sunil Batra v. Delhi Administration*, AIR 1980 SC 1579, *Municipal Council, Ratlam v. Vardichand*, AIR 1980 SC 1622, *Azad Rickshaw Pullers v. Punjab*, AIR 1981 SC 14

[5] AIR 1981 SC 344

[6] AIR 1982 SC 149

> person or determinate class of persons is by reason of poverty, helplessness or disability or socially or economically disadvantaged position, unable to approach the court for relief any member of the public can maintain an application ... seeking judicial redress for the legal wrong or injury caused to such person or determinate class of persons.[1]

In subsequent cases the Supreme Court found in favour of the standing of public-spirited individuals and organisations in bringing matters of grave public importance where there were no particularly affected persons, or where there were, the affected persons were disabled from approaching the court for various reasons.[2]

5.161 The wave of the development also reached Pakistan. In *Benazir Bhutto v. Pakistan*[3] the Supreme Court held that as the provision of art.184(3) (which corresponds to Indian art.32) is open-ended, the proceedings could be maintained by an individual whose fundamental rights are infracted or by a person *bona fide* alleging infraction of the fundamental rights of a class or a group of persons, as there is no rigid incorporation of the notion of aggrieved party in art.184(3). Later the Supreme Court took cognisance of a case on the basis of a telegram for the enforcement of fundamental rights of the bonded labour.[4] It appears that the Supreme Court took advantage of the absence of the expression 'person aggrieved' in art.184(3) to take a liberal view on the question of standing. But the presence or absence of that expression neither concludes, nor forecloses the issue. The question is what meaning is to be given to that expression having regard to the Constitution as a whole.

5.162 In *Bangladesh Sangbadpatra Parishad v. Bangladesh*[5] the association of newspaper-owners challenged an award given by the Wage Board and the High Court Division dismissed the petition holding that the association had no *locus standi*. The Appellate Division upheld the finding of the High Court Division. Dealing with the Indian

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[1] Ibid, Para 17

[2] *Peoples Union for Democratic Rights v. India*, AIR 1982 SC 1473; *D.S. Nakara v. India*, AIR 1983 SC 130; *Bandhua Mukti Morcha v. India*, AIR 1984 SC 802; *H.P. v. Student's Parent, Medical College*, AIR 1985 SC 910 *Bihar Legal Support Society v. Chief Justice of India*, AIR 1987 SC 38; *M.C. Mehta v. India*, AIR 1987 SC 965

[3] PLD 1988 SC 416

[4] *Darshan Masih v. State*, PLD 1990 SC 513

[5] 43 DLR (AD) 126

decisions regarding public interest litigation the Appellate Division observed -

> In our Constitution the petitioner seeking enforcement of a fundamental right or constitutional remedies must be a `person aggrieved'. Our constitution is not at *pari materia* with the Indian Constitution on this point. The Indian Constitution, either in Article 32 or in Article 226, has not mentioned who can apply for enforcement of fundamental rights and constitutional remedies. The Indian courts only honoured a tradition in requiring that the petitioner must be an `aggrieved person'. The emergence in India of *pro bono publico* litigation, that is litigation at the instance of a public-spirited citizen espousing causes of others, has been facilitated by the absence of any constitutional provision as to who can apply for a writ. In England, various tests were applied. Sometimes it was said that a person must be 'aggrieved' or he must have a specific legal right or he must have a 'sufficient interest'. Now after the introduction of the new Rules of the Supreme Court, Order 53 Rule 3, any person can apply for 'judicial review' in England under the Supreme Court Act, 1981 if he has a 'sufficient interest'.
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> Therefore the decisions of the Indian jurisdiction on public interest litigation are hardly apt in our situation. We must confine ourselves to asking whether the petitioner is an 'aggrieved person', a phrase which has received a meaning and a dimension over the years.

In this case public interest litigation was not involved. There was no difficulty on the part of the newspaper-owners to challenge the award themselves. The Appellate Division was certainly right in denying standing to the association of newspaper-owners. The observation quoted above must be understood in the light of the facts of that case. In *Bangladesh Retired Government Employees Welfare Assn. v. Bangladesh*[1] the High Court Division accepted the standing of the association holding, "Since the association has an interest in ventilating the common grievance of all its members who are retired government employees, to our view, this association is a 'person aggrieved' ..."

5.163 Art.102 speaks about 'person aggrieved'. What is the meaning of this expression? The Constitution has not defined the expression, nor has it mentioned 'personally aggrieved person'. An expression occurring

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[1] 46 DLR 426 (Reversed in *Bangladesh Retired Government Employees Welfare Association*, 51 DLR (AD) 121, on the issue of violation of the equality clause of the Constitution)

in the Constitution cannot be interpreted out of context or only by reference to the decisions of foreign jurisdictions where the constitutional dispensation is different from ours. In interpreting the expression it cannot be overlooked that the English courts which introduced the restrictive rule of standing vastly shifted from their traditional view which was ultimately changed by legislation. The expression has to be given a meaning in the context of the scheme and objectives of the Constitution and in the light of the purpose behind the grant of the right to the individuals and the power to the court. Any interpretation which undermines the scheme or objectives of the Constitution, or defeats the purpose for which the jurisdiction is created is to be discarded. It has to be noted that the framers of the Constitution envisioned a society in which the rule of law, fundamental human rights and freedom, equality and justice, political, economic and social, will be secured for all citizens. They spoke about their vision in the preamble in no uncertain terms. To give full effect to the rule of law, substantive provision has been made in art.7 which states that all powers in the Republic shall be exercised only under and by the authority of the Constitution. The vision of the society was restated in art.8 and elaborated in other articles of Part II. Art.8(2) specifically states that the principles of State policy set down in Part II will be fundamental to the governance of Bangladesh. To ensure the fundamental human rights and freedom, equality and justice the Constitution guaranteed a host of rights in Part III as fundamental rights. And to ensure that the mandate of the Constitution is obeyed, the Supreme Court is given wide power of judicial review. In this background, can the expression 'person aggrieved' be given a meaning consonant with the traditional view of *locus standi* and thereby producing a result deprecated by Schwartz and Wade as inimical to a healthy system of administrative law and contrary to the public interest? The Appellate Division answered in the negative.[1] One may argue that the framers of the Constitution used the expression knowing the judicial interpretation given to it, but by that time the English courts started shifting from the traditional view of standing. In view of the pronounced scheme and objectives of the Constitution it is difficult to accept that the framers of the Constitution intended to allow any public wrong to go without any remedy and used the expression to adhere to the traditional view of standing.[2] Distinguishing *Bangladesh*

[1] *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR (AD) 1
[2] Ibid

Sangbadpatra Parishad the Appellate Division held,

> ... when a public injury or public wrong or infraction of a fundamental right affecting an indeterminate number of people is involved it is not necessary, in the scheme of our constitution, that the multitude of individuals who has been collectively wronged or injured or whose collective fundamental rights have been invaded are to invoke the jurisdiction under Article 102 in a multitude of individual writ petitions, each representing his own portion of concern. Insofar as it concerns public wrong or public injury or invasion of fundamental rights of an indeterminate number of people, any member of the public, being a citizen, suffering the common injury or common invasion in common with others or any citizen or an indigenous association, as distinguished from a local component of a foreign organisation, espousing that particular cause is a person aggrieved and has the right to invoke the jurisdiction under Article 102.[1]

5.164 The expression 'person aggrieved' means a person who even without being personally affected has sufficient interest in the matter in dispute.[2] When a public functionary has a public duty owed to the public in general every citizen has sufficient interest in the performance of that public duty.[3] The real question is whether the applicant can show some default or abuse, and not whether his personal rights or interests are involved.[4] It is often argued that such an interpretation will allow a person to espouse the cause of another person and the court will be required to decide the issues without the presence of the proper party. If the affected party is not coming forward for no visible reason, the court may refuse to entertain the application. It has been clearly pointed out that the liberalised rule of standing will be of no avail to busybodies or

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[1] Ibid, para 48 (There are four separate opinions all of which should be read; *Prof. Nurul Islam v. Bangladesh*, 52 DLR 413 (An eminent physician suing in respect of health hazard caused by tobacco consumption)

[2] *Nasiruddin v. Secretary, LGRD*, 51 DLR (AD) 213

[3] Standing accepted in *Parvin Akhtar v. RAJUK*, 1998 BLD 117 (Environment); *Dr. Mohiuddin Farooque v. Bangladesh*, 50 DLR 84 (Flood control); *Sultana Nahar v. Bangladesh*, 1998 BLD 363 (Right to life), while standing denied in *Mostafa Kamal v. Banglaesh*, 2 BLC 207 (Location and sitting of a hat); *Dr. Mohiuddin Farooque v. Bangladesh*, 48 DLR 433 (Appointment of Judge), *Rafique (Md.) Hossain v. Speaker*, 47 DLR 361 (Voter raising issue relating to resignation of members of Parliament); *Rokeya Kabir v. Bangladesh*, 52 DLR 234 (Detention of particular girl who was neither an accused nor a witness)); *Mia Ahmed Kibria v. Bangladesh*, 1998 BLD 459

[4] H.W.R. Wade – Administrative Law, 7th ed., p.712

persons seeking intervention of the court with oblique motive.[1] In a *quo warranto* proceeding there is no requirement of an application by a 'person aggrieved'. Even then the court inquires whether an applicant has an interest in the matter and whether he is approaching the court *bona fide* or with an oblique motive. When an application for *mandamus, certiorari* or prohibition is required to be filed by a 'person aggrieved', the court will have all the more reason to ask why the affected party is not coming forward and what is the motive of the applicant.[2] In *Chairman, Civil Aviation Authority v. K.A. Rouf*[3] the Appellate Division denied standing to a head master of a school challenging the order of the Education Board regarding formation of the managing committee of the school stating -

> The High Court Division should have asked itself as to what interest the writ petitioner had in establishing the character of the school. How is he affected? He did not say in the writ petition that he was filing the petition *pro bono publico* and how being a paid official he can act in the interest of the public?

WRIT JURISDICTION: INTERIM AND FINAL ORDERS

5.165 ***Interim order:*** If a petitioner succeeds in establishing *prima facie* that his fundamental right or any other right has been infringed or is in imminent threat of being infringed, the court may grant an appropriate interim relief by way of stay or injunction order pending final hearing of the petition. Sub-art.(3) of art.102 prohibits issuance of any interim order in relation to any law to which art.47 applies. However, such a prohibition may not be attracted in a case where it

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[1] *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR (AD) 1, para 50 (The High Court Division will exercise some rules of caution in each case. It will see that the applicant is, in fact, espousing a public cause, that his interest in the subject matter is real and not in the interest of generating some publicity for himself or to create mere public sensation, that he is acting *bona fide*, that he is not a busybody or an interloper, that it is in the public interest to grant him standing and that he is not acting for a collateral purpose to achieve a dubious goal, including serving a foreign interest.)

[2] *Dr. Mohiuddin Farooque v. Bangladesh*, 49 DLR (AD) 1 ("The Court in considering the question of standing in a particular case, if the affected party is not before it, will enquire as to why the affected party is not coming before it and if it finds no satisfactory reason for non-appearance of the affected party, it may refuse to entertain the application". Para 9)

[3] 46 DLR (AD) 145

becomes clear that refusal to grant interim order would render the final order that may be passed vain and totally ineffective.[1] In cases not covered by sub-art.(3), sub-art.(4) of art.102 mandates issuance of notice on the Attorney General where an interim order prayed for is likely to prejudice or interfere with any measure designed to implement any development programme or work or be harmful to the public interest. In *Commissioner of Customs v. Giasuddin Chowdhury*[2] the Appellate Division held such a notice to be mandatory. The court further held that the notice must be of such reasonable length as to make possible and feasible for the Attorney General to obtain instructions from relevant quarters and appear before the court, and whether or not the Attorney General or any advocate authorised by him appears in court, the court is to satisfy itself before issuing an interim order that such an order is not likely to prejudice or interfere with any measure designed to implement any development programme or work or be harmful to the public interest. The satisfaction need not be recorded and it will be presumed that the satisfaction is latent in the interim order. The High Court Division will not consider whether an interim order will actually prejudice or interfere with the implementation of any development programme or work or will actually be otherwise harmful to the public interest, but will only consider whether such an interim order is likely to have the said effect. To obtain an interim order a writ petitioner must not only make out a *prima facie* case, but a strong *prima facie* case and the balance of inconvenience in his favour shall have to be so strong that it will outweigh the consideration of prejudice to the development work or the public interest.[3] Where the High Court Division has passed an interim order, the Appellate Division will not ordinarily interfere with such order[4] unless it is shown that the conditions precedent for the exercise of the power by the High Court Division are not fulfilled[5] or that the order is arbitrary or perverse[6].

5.166 An interim relief is given in aid of or ancillary to the main

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[1] *Lutfur Rahman v. Election Commn.*, 27 DLR 278

[2] 50 DLR (AD) 129

[3] Ibid; *Frank Shipping Ltd. v. Bangladesh*, 2 MLR (AD) 353

[4] *Amirul Islam v. Golam Mostafa*, 1995 BLD (AD) 21; *Bangladesh v. Khandkar Tajuddin*, 51 DLR (AD) 64

[5] *Commissioner of Customs v. Ghiasuddin Chowdhury*, 50 DLR (AD) 129

[6] *Dr. Waliur Rahman v. Bangladesh*, 50 DLR (AD) 26; *Md. Mohsin v. Bangladesh*, 2 MLR (AD) 109

relief which may be available to the petitioner on final determination of his petition[1], but not as a means to enable the petitioner to initiate an appropriate legal proceeding.[2] The petitioner should not be granted the interim relief in such a way that he practically gets the principal relief which he seeks to obtain on final hearing of the petition.[3] Where the cancellation of dealership licence is challenged, the court should not direct delivery of the required quota of fertilizer to the writ petitioner till the disposal of the Rule.[4] On a mere showing of a *prima facie* case a petitioner cannot get an interim relief as a matter of course.[5] The grant of the interim relief is discretionary with the court and the court will have to take into consideration the questions of balance of inconvenience, irreparable loss and the effect of the relief on the public interest.[6] The court has to strike a balance between the petitioner's injury and the detriment to the public interest.[7] "Where gross violations of the law and injustices are perpetrated or are about to be perpetrated, it is the bounden duty of the Court to intervene and give appropriate interim relief. In cases where denial of interim relief may lead to public mischief, grave irreparable private injury or shake a citizen's faith in the impartiality of public administration, a Court may well be justified in granting interim relief against public authority. But since the law presumes that public authorities function properly and bonafide with due regard to the public interest, a court must be circumspect in granting interim orders of far reaching dimensions or orders causing administrative, burdensome inconveniences or orders preventing collection of public revenue for no better reason than that the parties have come to the Court alleging prejudice, inconvenience or harm and that a prima facie case has been shown."[8] In view of the presumption of

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[1] *Orissa v. Madan Gopal*, AIR 1952 SC 12

[2] Ibid

[3] *India v. Oswald Woollen Mills.*, AIR 1984 SC 1264; *Bank of Maharashtra v. Race Shipping & Transport*, AIR 1995 SC 1368

[4] *BCCI v. Abdul Sattar Shah*, 2 MLR (AD) 313

[5] *Asst. Collector v. Dunlop India*, AIR 1985 SC 330

[6] Ibid; *Morgan Stanley Mutual Fund v. Kartick*, (1994) 4 SCC 225; *India v. Era Educationl Trust*, AIR 2000 SC 1573 (In granting an interim relief the various principles laid down in Or.XXXIX of the Code of Civil Procedure are required to be taken into consideration)

[7] *Siliguri Municipality v. Amalendu Das*, AIR 1984 SC 653

[8] *Asst. Collector v. Dunlop India.*, AIR 1985 SC 330, 334; *Commissioner of Customs v. Giasuddin Chowdhury*, 50 DLR (AD) 129

constitutionality of a statute, the court should not stay the operation of a legislation, particularly a legislation pertaining to economic reform or change unless the provision of the law is manifestly unjust or glaringly unconstitutional.[1]

5.167 Coming to the issue of interim orders impeding the assessment or collection of public revenue, the Appellate Division held that such interim orders are generally harmful to the public interest. In cases where no jurisdictional issues are involved and when the manufacturers, traders or importers usually pass on the burden of new, additional or increased indirect taxation to the consumers, there is absolutely no justification to protect their temporary private interest by an interim order impeding the collection of public revenue. However, interim orders ought to be given (a) to protect private interest when private interest is face to face with extinction or irretrievable damage, (b) when the order under challenge is shown to suffer from an absolute lack of jurisdiction, or clear or patent excess of jurisdiction or patent *mala fide* without requirement of further proof, (c) when gross violation of law is apparent on the face of the application, (d) where grave injustice has been perpetrated or is about to be perpetrated, or (e) where denial of interim relief will lead to public mischief, grave irretrievable private injury or shake the citizen's faith in the impartiality of public administration.[2] Even then an interim order will have to be issued on condition of furnishing bank guarantee to protect the interest of public revenue.[3] The Appellate Division deprecated the issuance of interim order on condition of furnishing personal guarantee as it is a weak and uncertain security.[4]

5.167A In contractual matters, the court should not interfere at the instance of an unsuccessful tenderer unless the public interest is involved or the award of the contract is *mala fide*. In passing an interim order, the court must be very cautious and must make provision for restitution. In *Raunaq International Ltd. v. IVR Construction Ltd.*[5] the Indian Supreme Court rightly held, "The party at whose instance interim orders are obtained has to be made accountable for the consequences of the interim order. The interim order could delay the project, jettison

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[1] *Bhabesh D. Parish v. India*, AIR 2000 SC 2047

[2] *Commissioner of Customs v. Giasuddin Chowdhury*, 50 DLR (AD) 129

[3] Ibid

[4] *Commissioner of Customs v. SARC Enterprise*, 51 DLR (AD) 165

[5] AIR 1999 SC 393

finely worked financial arrangements and escalate costs. Hence the petitioner asking for interim orders, in appropriate cases should be asked to provide security for any increase in cost as a result of such delay, or any damage suffered by the opposite party in consequence of an interim order. Otherwise public detriment may outweigh public benefit in granting such interim orders. Stay order or injunction order, if issued, must be moulded to provide for restitution."

5.168 Not only an interim order may be passed in a proceeding of *certiorari, mandamus* or prohibition, an interim order of bail may also be passed by the court in an appropriate case in a proceeding of *habeas corpus*, though, of course, such an order will be passed in an exceptional situation. In one case the High Court Division granted bail for a limited period in a proceeding of *habeas corpus*. The government went on appeal and urged before the Appellate Division that enlarging the detenu on bail affects the jurisdiction of the court to hear the petition as the detenu is no longer in custody. The Appellate Division negatived the contention and upheld the power of the High Court Division to grant bail.[1]

5.169 ***Final order:*** Art.102(2) states the form of relief that may be given by the High Court Division. But this jurisdiction being essentially an equitable jurisdiction, the court is not debarred from making consequential order to do justice. It will be simply a negative attitude if the court sits back after striking down a scheme of the government leaving it to the concerned persons to find out a solution.[2] The court has to take both private and public interest into consideration and has to grant consequential relief to do justice. Dealing with consequential relief, the Appellate Division observed -

> Any declaration or direction or order to be given must be ancillary to the main relief, but in doing so the superior courts had always placed self-imposed limitation for not raising any new issue which requires adjudication on proper facts for which no foundation was laid by the parties ...[3]

In some cases the court gave direction in respect of promotion and

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[1] *Bangladesh v. Ahmed Nazir*, 27 DLR (AD) 41

[2] *Kerala v. Roshana*, AIR 1979 SC 765; *Azad Reckshaw Pullers' Union v. Punjab*, AIR 1981 SC 14

[3] *Hasan Imam Chowdhury v. Bangladesh*, 1981 BLD (AD) 283

seniority of employees.[1] In *certiorari* proceeding, the court after quashing certain assessment of tax may order fresh assessment.[2] The court cannot order payment of compensation for actionable wrongs.[3] Writ jurisdiction cannot be used for recovery of money and a direction for payment of money cannot be given unless the amount claimed is undisputed and is a stautory payment.[4] The court cannot grant a relief different from the relief prayed for, which does not flow from the right alleged, but from a right which has not been pleaded.[5] The court can grant relief under art. 102 only on an application made and cannot give a declaration in favour of respondents.[6]

5.170 *Refund of tax illegally collected:* The question of consequential order comes in respect of refund of money illegally collected. Such a relief is not ordinarily given in the writ jurisdiction as it can be claimed in a suit against an authority where it is open to the authority to raise all possible defences which cannot, in most cases, be appropriately raised in the writ jurisdiction.[7] But in a number of cases such refund was ordered.[8] Refund of tax money was allowed in the writ jurisdiction where the assessment was found to be illegal because the concerned statute was void or the tax was not realisable or the proceeding was for some reasons invalid.[9] Where refund of the tax realised require ascertainment of the amount of tax realised which can be done only in suit, the relief should remain confined to declaration of invalidity of the realisation.[10] In the case of indirect tax, the Indian

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[1] *District Registrar v. Koyyakutti*, AIR 1979 SC 1060; *India v. Jagannathan*, AIR 1987 SC 537

[2] *Grindlays Bank v. ITO*, AIR 1980 SC 656

[3] *Khan Bahadur v. Shujauddin*, 13 DLR (SC) 18; see Para 5.20 in respect of violation of fundamental rights.

[4] *Chairman, Bangladesh Water Development Bd. v. Shamsul Haq & Co.*, 51 DLR (AD) 169

[5] *Pakistan v. Khandker Ali Afzal*, 12 DLR (SC) 38

[6] *Shahriar Rashid Khan v. Bangladesh*, 1998 BLD (AD) 155, 172

[7] *Suganmal v. M.P.*, AIR 1965 SC 1740

[8] *Cawaji & Co. v. Mysore*, AIR 1975 SC 813; *Newabganj Sugar Mills v. India*, AIR 1976 SC 1152; *Shiv Shankar Dal Mills v. Haryana*, AIR 1980 SC 1037 (refund was allowed as the Court felt that it would be unjust to leave small agriculturists to file suits for recovery of small sums)

[9] *Burma Construction v. Orissa*, AIR 1962 SC 1320; *M.P. v. Bhailal Bhai*, AIR 1964 SC 1006

[10] *Collector, Central Excise v. Azizuddin Industries*, PLD 1970 SC 439

Supreme Court held that refund will be refused, on the ground of unjust enrichment, where the tax or the duty has been passed on to third parties.[1] The court observed that the doctrine of unjust enrichment is a just and salutary doctrine. No person can seek to collect the duty from both ends. In other words, he cannot collect the duty from his purchaser and also collect the same duty from the State simply because it has been collected from him contrary to law. The power of the court is not meant to be exercised for unjustly enriching a person.[2] The court further held that in claiming refund of indirect tax illegally levied and collected, the burden of showing that the burden of the tax has not been shifted to a third person is on the person claiming refund.[3] It has to be seen if in our jurisdiction the doctrine of unjust enrichment will be applied to preclude refund of tax or duty illegally collected, but the burden has already been passed on to the third parties.

WRIT JURISDICTION : AGAINST WHOM AVAILABLE

5.171 Writ of *certiorari, mandamus* and prohibition lie against 'any person' performing functions in connection with the affairs of the Republic or of a local authority and not against a private individual or body[4]. Thus the 'person' must be a public functionary.[5] A writ petition will not lie even against a public functionary in respect of functions performed not in connection with the affairs of the Republic or a local authority, but in his private capacity.[6] Writ of *habeas corpus* lies against

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[1] *M.P. v. Vyankatlal,* AIR 1985 SC 901 (Referring to some earlier decisions, the court observed that the principles of unjust enrichment laid down in those decisions were based on specific statutory provisions, but the same principles can be safely applied to the cases where no such statutory provision is involved.); *Roplas (India) Ltd v. India,* AIR 1989 Bom 183

[2] *Mafatlal Industries Ltd v. India,* (1997) 5 SCC 536; *Deputy Commr, Andaman v. Consumer Co-op. Stores,* AIR 1999 SC 696

[3] *Mafatlal Industries Ltd. v. India,* (1997) 5 SCC 536

[4] *Sultana Nahar v. Bangladesh,* 1998 BLD 363; *Khorshed Alam v. Ministry of Commerce,* 47 DLR 209

[5] *Manjurul Haq v. Bangladesh,* 44 DLR 239 (Diabetic Association does not fall within the description of public functionary); *Shahabuddin v. Secy. Ministry of Youth & Sports,* 45 DLR 360 (Bangladesh Football Federation or its appointee is not a public functionary); *Abdur Rahman v. Secy. Ministry of Industries,* 48 DLR 431; *Jiban Kumar v. Abdul Hye,* 48 DLR 569; *Abdul Huq Sikdar v. Div. Manager, BADC,* 48 DLR 574 (writ petition found maintainable)

[6] *Abdul Ahad Chowdhury v. Habibur Rahman,* 1995 BLD 124

any person, be he a public functionary or private person, while *quo warranto* lies against a person holding or purporting to hold a public office.

5.172 Art.102(5) stipulates that the expression 'person' in art.102 includes a statutory authority and any court or tribunal except (i) a court or tribunal established under a law relating to the defence services or any disciplined force and (ii) a tribunal to which art.117 is applicable. The definition of 'person' is both inclusionary and exclusionary. 'Person' thus includes all statutory authorities and courts and tribunals except the ones excluded. Statutory public authorities are defined in art.152 as the authorities whose activities are authorised by statutes or instruments having statutory force. It must also include all authorities whose activities are authorised by the Constitution, otherwise the concept of limited government will be seriously undermined.

5.173 In view of the provisions of art.105(5) a writ will lie against all those who come within the meaning of 'person' except those who have been excluded from the definition for the purpose of exercise of the writ jurisdiction. The definition of 'person' given in art.102(5) is inclusive and not exhaustive. By virtue of art.152 the definition of 'person' and 'local authority' given in the General Clauses Act will be attracted.[1] As such a writ petition will lie not only against a statutory corporation, but also against a company which is a subsidiary of a statutory corporation performing functions assigned by law to the statutory corporation.[2]

5.174 Because of the exclusionary clause no writ will lie against (i) a court or tribunal established under a law relating to the defence services or any disciplined force[3] or (ii) a tribunal to which art.117 applies[4]. Writ petition will, however, lie against the military authorities other than a court or tribunal of the specified kind.[5] The question arose whether a Screening Board constituted under P.O. No.67 of 1972 could be treated as a tribunal established under a law relating to any disciplined force

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[1] *B.S.I.C. v. Mahbub Hossain*, 29 DLR (SC) 41

[2] *Conforce Limited v. Titas Gas Co. Ltd*, 42 DLR 33

[3] *Jamil Huq v. Bangladesh*, 34 DLR (AD) 125

[4] *Serajul Islam v. Director General*, 42 DLR (AD) 199; *Dr. Abdul Lahel Based v. Secy., Health*, 38 DLR 409; *Fazlur Rahman Chowdhury v. Bangladesh*, 39 DLR 314; *Ayub Ali v. Bangladesh*, 46 DLR 191

[5] *Major Hafizur Rahman v. Bangladesh*, 29 DLR 34; *Fazlur Rahman v. Ministry of Home*, 41 DLR 459 (writ petition by a member of a disciplined force maintainable when his service is terminated by an individual officer)

when it dealt with a police inspector.[1] The respondent contended that in order to fall within the exclusionary provision the law setting up the tribunal must be one relating to the disciplined force and not one which relates to the government servants in general. By a majority decision the Appellate Division rejected the contention. Munim J speaking for the majority stated, "Though apparently plausible, his contention as it issues from a very narrow and literal construction of the words 'a court or tribunal established under a law relating to ... any disciplined force' would seem to have no sound basis ... The acceptance of his argument would not only be contrary to what has been intended by the makers of the Constitution, but would tantamount to denying the authority of the Screening Board to try the respondent." It is submitted that on the established principles of interpretation of the Constitution the majority view cannot be supported. When a right is given and then exception is provided restricting the right, the exception has to be strictly construed.[2] But the majority did the other way interpreting the exception liberally and not even literally. The majority decision found that the literal construction was apparently plausible, but ran counter to the intention of the makers of the Constitution. Unless there is ambiguity, inconsistency or absurdity, the language expresses the intention.[3] It has not been shown that there is any ambiguity, inconsistency or any absurdity. As such there was no imperative to give the words a meaning different from that the language bears. It is submitted that both the English and the Bengali text of the provision in question support the contention of the respondent and does not support the view taken by the majority. Though claimed, Munim J has not shown how the language of the English and the Bengali text read together support the majority view. 'Law relating to disciplined forces' means a law which deals with the disciplined forces and not a general law relating to all government servants under which a member of disciplined force may also be dealt with. In fact, P.O.No.67 of 1972 does not speak of the 'disciplined force' and has not used the expression 'police' or 'disciplined force'. By a strained construction, the restriction of art.102(5) has been enlarged when the principles of interpretation required a narrow and strict construction of

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[1] *Bangladesh v. Abdur Rob*, 33 DLR (AD) 143

[2] Halsbury's Laws of England, 4th ed., vol.44, Para 882; 73 Am Juris 2d, Statute, Para 313; Crawford - The construction of Statutes (1940), p.610; *Madho Singh v. James Skinner*, AIR 1942 Lal 243

[3] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1; *Punjab v. Ajaib Singh*, AIR 1953 SC 10

the said restriction. The last objection to the contention of the respondent was that it tantamounted to denying the authority of the Screening Board. But the respondent was not denying the authority of the Screening Board. All that was contended was that the decision of the Screening Board was not immune from judicial review.

5.175 In *Bangladesh v. A.K.M. Zahangir*[1] a question arose as to the meaning of 'tribunal' within the meaning of art.102(5). Applying the principle of *ejusdem generis* the Appellate Division by a majority judgment held that the expression 'tribunal' having been used along with the expression 'court' must be understood in the narrow sense of a tribunal performing *quasi*-judicial functions and opined that the authorities empowered to take disciplinary action against police officers of certain ranks under the Police Officers (Special Provisions) Ordinance, 1976 do not perform *quasi*-judicial functions and cannot be treated as tribunal within the meaning of art.102(5). The majority further held that a tribunal to which art.117 applies is a tribunal which exercises some part of the judicial power of the Republic.[2]

5.176 However, the ouster clause of art.102(5) will not be attracted if the action taken is *mala fide* or *coram non judice* (which means not properly constituted).[3] In *Jamil Huq v. Bangladesh*[4] the decision of a Court Martial was challenged. Notwithstanding the bar the petitioners sought interference of the Supreme Court on the ground of fundamental unfairness in holding the trial and cited the American decision of *Burns v. Wilson*[5] where the prisoners (condemned to death by a Court Martial) urged that they were subjected to illegal detention, coerced confessions had been obtained from them, they were denied counsel of their choice and effective representation, the military authorities had suppressed evidence favourable to them and procured perjured testimony against them and the trial was conducted in a state of hysteria. The conviction by the Court Martial was examined on appeal by the appellate military tribunal. Upon examination of the record the American Supreme Court held,

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[1] 34 DLR (AD) 173

[2] See footnote of para 5.241

[3] *Khandker Ehtashamuddin v. State*, 33 DLR (AD) 154; *Jamil Huq v. Bangladesh*, 34 DLR (AD) 125; *Khandoker Mostaque Ahmed v. Bangladesh*, 34 DLR (AD) 222; *Fazlur Rahman Chowdhury v. Bangladesh*, 39 DLR 314

[4] Ibid

[5] 344 US 137

> The records make it plain that the military courts have heard the petitioners out on every significant allegation which they now urge. Accordingly, it is not the duty of the civil courts simply to repeat that process - to re-examine and re-weigh each item of evidence of the occurrence of events which tend to prove or disprove one of the allegations in the application for *habeas corpus*. It is the limited function of the civil courts to determine whether the military have given a fair consideration to each of these claims.

The decision clearly shows that the court considered the ground of fundamental unfairness as one like *mala fide* or *coram non judice* and the court would have examined the ground had these grounds not been examined and found untenable by the appellate authority. It is submitted that notwithstanding the bar, the Supreme Court may interfere if it is found that there has been fundamental unfairness in a trial on the same reasoning that Parliament in giving power to try to the Court Martial did not contemplate a trial where fundamental fairness is lacking. Whenever such an allegation is made, it is submitted, it is obligatory to examine the record of the trial which cannot be avoided by saying that it is a disputed question of fact. In *Jamil Huq* there was emergency and as such fundamental rights could not be urged. But when there is no emergency, protection of fundamental right can be claimed and the plea of disputed question of fact is not available in case of enforcement of fundamental right. Art.45 confers immunity to the laws relating to the disciplined forces, but not to the actions under those laws.

SUPERVISORY POWER OF HIGH COURT DIVISION

5.177 Art.109 confers an additional constitutional power to the High Court Division stating that this division shall have the superintendence and control over all the courts and tribunals subordinate to it. This constitutional supervisory power has a long history starting from the High Courts Act, 1861.[1] This power is comparable with the revisional power under s.115 of the Code of Civil Procedure and s.439 of the Code of Criminal Procedure. Statutory supervisory power extends to judicial, but not to administrative matters, while the constitutional supervisory power extends to both judicial and administrative matters.[2] The statutory

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[1] *A.T. Mridha v. State*, 25 DLR 335

[2] *A.T. Mridha v. State*, 25 DLR 335 (reversed on different ground); *Waryam v. Amarnath*, AIR 1954 SC 215; *Baldeo Singh v. Bihar*, AIR 1957 SC 612

supervisory power covers only courts, but art.109 covers courts as well as tribunals subordinate to the High Court Division. The statutory power can be taken away by ordinary legislation, but the constitutional power under art.109 cannot be so taken away.[1] In *Hosne Ara Begum v. Islami Bank Bangladesh*[2] the Appellate Division observed, "in a case where a statute bars entertainment of a revision the exercise of supervisory power under Article 109 of the Constitution is not available". It is submitted that the proposition is wrong. The Appellate Division failed to notice that a constitutional provision can be amended only by the exercise of constituent power, that is, by a special procedure prescribed by art.142 and when by ordinary legislative process supervisory power under art.109 of the Constitution cannot be directly taken away or curtailed, the legislature cannot take away or curtail that power indirectly by making a statutory provision barring revisional power of the High Court Division under a statute. Availability of the constitutional supervisory power is not dependent on the existence of any statutory revisional power.

5.178 The power under art.109 differs from the power under art.102; the latter can be exercised only on application by a party, while the former power can be exercised *suo motu* by the High Court Division without any application by any party.[3] Furthermore, the latter power can be exercised irrespective of the question whether the court or tribunal is subordinate to the High Court Division, but the former can be exercised only in respect of courts and tribunals subordinate to it, that is, the courts and tribunals against whose decision either appeal or revision lies before the High Court Division. In view of art.114 any court established by Parliament must be subordinate to the Supreme Court, but there is no such requirement in respect of tribunals and Parliament may create tribunals not subordinate to the High Court Division. The High Court Division will have power under art.102 in respect of tribunals, whether subordinate or not, unless such tribunals come within the exception provided by art.102(5). The word 'tribunal' in art.109 does not include any domestic tribunal. A distinction has to be made between a tribunal deriving authority from the State and vested with judicial power[4] and a

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[1] *Iftekhar Afzal v. Pubali Bank*, 50 DLR 623; *United Commercial Bank v. Freshner Bucket*, 3 BLC 430

[2] 53 DLR (AD) 9

[3] *Fazl-E-Haq v. State*, 12 DLR (SC) 254

[4] See Para 5.240

tribunal set up to decide controversies not objectively, but in conformity with the administrative policy; art.109 will be applicable only in respect of the former kind.[1] Once a tribunal of the former kind is subordinate to it, the High Court Division can exercise the supervisory power irrespective of the question whether an appeal or revision lies in the matter in respect of which supervisory power is exercised.

5.179 The power of superintendence is purely discretionary with the High Court Division and no litigant can invoke the jurisdiction as of right.[2] This power should not ordinarily be exercised if any other remedy is available to the aggrieved party even though pursuing that remedy may be inconvenient.[3] It will not be used as a matter of course to set aside the findings of the court or tribunal properly recorded on the ground of mere error[4] and is not intended to convert the High Court Division into a court of appeal or revision regardless of the limitations of law on those powers. The power is to be exercised most sparingly[5] and only in appropriate cases in order to keep the subordinate court or tribunal within the bounds of their authority and not to correct mere errors.[6] The High Court Division will use the power to see that the court or the tribunal functions within the limits of its authority[7], and thus the High Court Division will interfere only on the ground of want or excess of jurisdiction[8], failure to exercise jurisdiction[9], violation of any mandatory procedure or the principles of natural justice[10], findings based

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[1] *Engineering Mazdoor Sabha v. Hind Cycle*, AIR 1963 SC 874, Para 23; *Associated Cement Companies v. Sharma*, AIR 1965 SC 1595 (Para 45)

[300] *Iftekhar Afzal v. Pubali Bank*, 50 DLR 623; *A.B. Sarin v. B.C. Patel*, AIR 1951 Bom 423

[3] *Iftekhar Afzal v. Pubali Bank*, 50 DLR 623; *Ram Rup v. Biswanath*, AIR 1958 All 456

[4] *D.N. Banerjee v. P.R. Mukherjee*, AIR 1953 SC 58

[5] *Iftekhar Afzal v. Pubali Bank*, 50 DLR 623

[6] *United Commercial Bank v. Freshner Bucket*, 3 BLC 430; *Waryam v. Amarnath*, AIR 1954 SC 215; *Satyanarayan v. Mallikarjun*, AIR 1960 SC 137, 142; *Yunus v. Mustaquim*, AIR 1984 SC 38; *Jijabai v. Pathan Khan*, AIR 1971 SC 315; *B. Misra v. B. Dixit*, AIR 1972 SC 2466

[7] *Nagendra Nath v. Commr. Hill Division*, AIR 1958 SC 398; *Dalmia Airways v. Sukumar*, AIR 1951 Cal 193.

[8] *Gulab Singh v. Collector, Furukkabad*, AIR 1953 All 585

[9] *Waryam v. Amarnath*, AIR 1954 SC 215

[10] *Narayandeju v. Labour App. Tribunal*, AIR 1957 Bom 142

on no materials[1], or an order resulting in manifest injustice[2] The High Court Division will interfere with the findings of fact in exercise of this jurisdiction only when it is perverse or based on no evidence to justify or resulted in manifest injustice.[3]

5.180 ***Power of transfer of cases*** : Art.110 provides that if the High Court Division is satisfied that a substantial question of law as to interpretation of the Constitution or a point of general public importance is involved in a case in a subordinate court, it may withdraw that case and either dispose it of itself or send the case back to that subordinate court or any other court after determining the question of law. The High Court Division has been given the power of transfer of civil suits and criminal cases by the Codes of Civil Procedure and Criminal Procedure under certain circumstances. In addition to this power art.110 confers power of transfer on the High Court Division in respect of constitutional questions and questions of general public importance in order to avoid conflict of decisions and for uniformity. Thus if the High Court Division is satisfied that in a case a substantial question of law as to the interpretation of the Constitution or a point of general public importance is involved and determination of such a question or point is necessary for disposal of the case, it becomes mandatory for the High Court Division to exercise power under this article. The High Court Division must be satisfied as regards the condition for the exercise of the power.[4] If along with a constitutional question or a question of great public importance, there are other questions which are in themselves sufficient to dispose of the case, the power may not be exercised.[5] The High Court Division may decline to withdraw a case until the other questions are determined when it becomes clear whether there is necessity of deciding the constitutional question or the question of great public importance.[6] In the Indian jurisdiction it has been held that where a person has been prosecuted for a statutory offence, no question of validity of the statute may arise until the question whether he has violated the statute is determined and the High Court may wait till the determination of the

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[1] *Orissa v. Muralidhar*, AIR 1963 SC 404
[2] *Trimbak Gangadhar v. Ramchandra*, AIR 1977 SC 1222
[3] *Chandravarker v. Ashalata*, AIR 1987 SC 117
[4] *Mirpur Mazar Co-op Society v. Secy. Ministry of Works*, 1 BLC 79
[5] *Fakir Chand v. Bhagwati*, AIR 1958 Punj 287
[6] Ibid

latter question.[1] But the problem is that such a determination is immediately followed by an order of conviction.

5.181 Once a case is withdrawn, the court has the option either to dispose of the case itself or to determine the question itself and send the case back to the court from where it was withdrawn or to any other court subordinate to it. The power can be exercised *suo motu* by the High Court Division. The subordinate court before whom the case is pending may also refer the case to the High Court Division.[2] Where a scheduled bank sued for recovery of money and the appellant contested the suit on the ground that a particular provision of law allowing relief in respect of debts other than debts due to the scheduled bank is discriminatory, the High Court dismissed the application for transfer on the ground that no constitutional question was involved but a question of statutory construction, that is, whether the offending portion of the definition of 'debt' was severable and if it is not severable the entire definition of 'debt' would fail leaving the appellant without the protection of the law. The Supreme Court reversed the decision holding that the question of severability would arise only when the provision is found unconstitutional and the High Court ought to have exercised the power.[3]

APPELLATE DIVISION : POWER AND JURISDICTION

5.182 The Appellate Division is the appellate side of the Supreme Court of Bangladesh like the Court of Appeal is the appellate side of the High Court of England. But its position is comparable with the House of Lords or the Supreme Court of India and Pakistan.

5.183 Under art.103 an appeal to the Appellate Division from the judgment, decree, order or sentence of the High Court Division lies as of right in three cases - (1) where the High Court Division certifies that the case involves a substantial question of law as to interpretation of the Constitution, (2) where the High Court Division sentences a person to death or to imprisonment for life, and (3) where the High Court Division punishes a person for its contempt. Parliament may by law add to the list other cases in which appeal as of right may be filed[4], but Parliament

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[1] *Narahari Gir v. State*, AIR 1955 Pat 177

[2] see s.113 of the Code of Civil Procedure

[3] *Ganga Pratab v. Allahabad Bank*, AIR 1958 SC 293

[4] S.162 of the Income Tax Ordinance; *Commr. of I.T. v. Gulistan Cinema Co.*, 28 DLR (AD) 14; *Ganesh Oil Mills v. C.I.T.*, 31 DLR (AD) 56.

cannot curtail any. In all other cases appeal shall lie from the judgment, decree, order or sentence of the High Court Division only if the Appellate Division grants leave to appeal.[1] Leave may also be granted in cases where certificate of the High Court Division could have been sought but was not sought or when the prayer for certificate was refused.[2] As the position now stands, there is no scope of seeking leave to appeal to the Appellate Division from the decision of the Sessions Judge.[3] Art.103(4) provides that Parliament may by law declare that the provisions of art.103 shall apply in relation to any other court or tribunal as they apply in relation to the High Court Division. The Administrative Tribunal Act, 1981 as amended makes art.103 applicable in respect of the decision of the administrative appellate tribunal and an appeal from the decision of the administrative appellate tribunal lies in the Appellate Division on leave of the Appellate Division.

5.184 ***Grant of certificate:*** In granting a certificate in terms of art.103(2)(a) the High Court Division should specify the constitutional question involved in the case.[4] When no constitutional question is found to be involved, the appeal is to be dismissed, notwithstanding that a certificate has been given.[5] In *Kazi Mukhlesur Rahman v. Bangladesh* the High Court Division dismissed the writ petition *in limine* and then granted the certificate without specifying the constitutional question which needed determination. If there is a constitutional question which needs consideration, the writ petition is not liable to be dismissed *in limine*.[6] If the writ petition is dismissed *in limine*, the question of granting certificate does not arise. The Appellate Division deprecated this procedure of dismissing a writ petition *in limine* and granting

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[1] See *Maqbul Ahmed v. Ahmed Impex*, 1996 BLD (AD) 133

[2] *Ganesh Oil Mills v. C.I.T.*, 31 DLR (AD) 56

[3] *Sher Ali v. State*, 46 DLR (AD) 67

[4] *Kazi Mukhlesur Rahman v. Bangladesh*, 26 DLR (AD) 44; *Qazi Kamal v. RAJUK*, 44 DLR (AD) 291; *Member, Board of Revenue v. Akhtar Khan*, PLD 1968 SC 270; *Sashi Bhusan v. Asgar Ali*, 20 DLR (SC) 217

[5] *Sashi Bhushan v. Asgar Ali*, 20 DLR (SC) 217 (If a fitness certificate does not disclose a valid basis and is found to have been granted in disregard of the constitutional condition which regulates it, namely, that the case must involve a substantial question of law as to the interpretation of the constitution, this court in the exercise of its powers will strike it down in termination of the proceeding which has been allowed to commence without any foundation and on a wrong lead)

[6] *Rear Admiral Mustafa v. Bangladesh*, 46 DLR (AD) 43

certificate at the same time.[1] In a certificated appeal only a constitutional question can be decided and no other. If the case does not involve any constitutional question or if the appellant wants to raise any question other than a constitutional question, the proper course is to file a leave petition stating the grounds.[2]

5.185 ***Right of appeal in case of particular sentence:*** Originally art.103(2)(b) allowed a right of appeal in case the High Court Division sentenced a person to death or transportation for life or confirmed a death sentence. It was later amended to exclude confirmation of death sentence. The position as it now stands is the same as it was under the Pakistan Constitution of 1962. The Pakistan Supreme Court held that the expression 'sentenced' referred to a new sentence passed by the High Court and it did not cover a case where the High Court maintained the sentence passed by the Sessions Judge.[3] It held that an appeal as of right would not lie where the High Court reduced the sentence from death to transportation for life as the High Court did not pass a new sentence, but reduced the sentence passed by the Sessions Judge. The Appellate Division in *Moyna Mia v. State*[4] took the same view that `sentenced' means a new sentence passed by the High Court Division; the expression `sentenced a person to death or transportation for life' covers those cases where the High Court Division in exercise of powers under s.439 of the Code of Criminal Procedure enhances the sentence to death or transportation for life. The Constitution (Eighth Amendment) Act, 1988 replaced the word 'transportation' by the word 'imprisonment' in art.103(2)(b).

5.186 ***Grant of leave:*** Art.103(3) invests the Appellate Division with a plenary jurisdiction to hear appeals. The Constitution has not put any limitation on the power of the Appellate Division to grant leave. The matter lies in the discretion of the Appellate Division and the only limitation on the power is the wisdom and good sense of the Judges of the court.[5] It is difficult to state precisely in what circumstances the court will exercise the jurisdiction and the court has not attempted to define its ambit finally and exhaustively. The grant of leave is not, however,

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[1] *Kazi Mukhlesur Rahman v. Bangladesh*, 26 DLR (AD) 44; *Quazi Kamal v. RAJUK*, 44 DLR (AD) 291; *Rear Admiral Mustafa v. Bangladesh*, 46 DLR (AD) 43

[2] See *Qazi Kamal v. Rajdhani Unnayan Kartripakya*, 44 DLR (AD) 291

[3] *Rashid Ahmed v. State*, 21 DLR (SC) 297

[4] 27 DLR (AD) 120

[5] *Bala Krisna Ayer v. Ramaswami Ayer*, AIR 1965 SC 195

hedged about any consideration of technical nature.[1] In *Bangladesh Bank v. Administrative Appellate Tribunal*[2] the Appellate Division observed -

> This Court's power under clause (3) of Article 103 to interfere in suitable cases where miscarriage of justice has occasioned is very wide. It is neither possible, nor would it be expedient to lay down any general rule, but where there is some substantial question of law of public importance which deserves to be decided by this Court, where grave miscarriage of justice has resulted from illegality or from misreading of evidence or from excluding or illegally admitting material evidence or when a person has been dealt with arbitrarily or that a court or tribunal has not given a fair deal to a litigant this Court will not be deterred by any technical hurdles, even by its own rule of limitation under Order XIII rule 1, because it is the duty of this Court to see that an injustice is not perpetrated.[3]

5.187 Leave will not be granted where the grounds suggested cannot sustain the appeal itself and, conversely, appeal will not be allowed on grounds that will not have sufficed for the grant of leave.[4] The court may grant leave not only against final order, but also against interlocutory order in exceptional cases.[5] The article does not impose any restriction as regards the persons who can apply for leave and a person who is not a party to the proceedings may also apply if he is aggrieved by the order of the High Court Division.[6] Once the State filed a leave petition which was dismissed after hearing, there is no scope for hearing a second leave

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[1] *Dhakeswari Cotton Mills v. C.I.T.*, AIR 1955 SC 65; *Hamidullah v. Khurshid Ahmed*, PLD 1958 SC 516

[2] 44 DLR (AD) 239; *Abu Taher Chowdhury v. State*, 42 DLR (AD) 253, Para 23

[3] see *Dhakeswari Cotton Mills v. C.I.T.*, AIR 1955 SC 65; *Murtaza and Sons v. Nazir Mohd.*, AIR 1970 SC 668 (the Supreme Court does not generally grant special leave, unless it is shown that exceptional and special circumstances exist, that substantial and grave injustice has been done and that the case in question presents features of sufficient gravity to warrant a review of the decision appealed against.)

[4] *Ibrahim v. Emperor*; AIR 1914 PC 155

[5] *Commr. Of Customs v. Ghiasuddin Chowdhury*, 50 DLR (AD) 129; *Aminul Islam v. Golam Mostafa*, 1995 BLD (AD) 21; *Bangladesh v. Khandker Tajuddin*, 51 DLR (AD) 65; see Para 5.165

[6] *Syed Ali Bepari v. Nabaran Molla*, PLD 1962 SC 502; *Afsar Khan v. State*, PLD 1964 SC 205; *Siraj Din v. Kala*, 16 DLR (SC) 94; *Abdul Mannan Chowdhury v. Lalmohan*, C.A. 19 of 1978 (unreported)

petition at the instance of the informant.[1] In making an application for leave to appeal and prosecuting the appeal a person must be fair and respectful. If he makes any misleading statement in respect of, or suppresses, any material fact[2] or misconducts himself[3] the court may revoke the leave granted. The court does not hear an appeal on a point on which leave has not been granted, but in exceptional circumstances the court may allow the petitioner to raise such a point.[4] An appellant is free to give up any point which may have been raised at the hearing of the leave petition and in that case the court may not also decide a point even though of law on which leave was granted.[5] When a point was abandoned at the hearing of the leave petition and leave was given on another point, the appeal cannot be heard on the point abandoned.[6]

5.188 *Grant of leave in civil cases* : Even though the scope of interference is not delineated, it can be said from a study of the decided cases that the Appellate Division generally grants leave to decide questions of law. In seeking interference, it has to be shown that there is a question of law on which the decision depends and the High Court Division has wrongly decided the question of law, or the question is not a settled question, or, if settled, in the facts and circumstances needs review. Thus leave will be granted to decide a question of law on which there is no definite judicial precedent[7] or there is conflict of judicial opinion[8], or in an appropriate case to review a judicial precedent[9] or to set aright any substantial error of law committed by the High Court Division[10] or the administrative appellate tribunal[1]. A question of law

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[1] *Mostashir v. Arman Ali*, 42 DLR (AD) 12

[2] *Udaichand v. Shankarlal*, AIR 1978 SC 765; *Punjab National Bank v. India*, AIR 1974 SC 950

[3] *New India Steel Industries v. V.D. Steel Industries*, AIR 1980 SC 1706 (appellant misconducted himself by publishing a public notice under caption "Court Notice", thereby creating an impression that the notice had been given under order of the court)

[4] *Wajear Rahman v. State*, 43 DLR (AD) 25 (death sentence was involved); *Sanaullah Khan v. Safura Khatun*, 52 DLR (AD) 39

[5] *Sonali Bank v. U.C.B.L.*, 44 DLR (AD) 316, 317

[6] *Zahura Khatun v. Rokeya Khatun*, 43 DLR (AD) 98

[7] *Shah Alam v. Mujibul Haq*, 41 DLR (AD) 68

[8] *Pubali Bank v. Chairman, Labour Court*, 44 DLR (AD) 40; *Hanover Fire Insurance v. Muralidhar*, 10 DLR (SC) 136

[9] *Rahima Akhtar v. Asim Kumar*, 40 DLR (AD) 23 *Pradip Das v. Kazal Das*, 44 DLR (AD) 1

[10] *Nasrin Kader Siddiqui v. Bangladesh*, 44 DLR (AD) 16; *Nishat Jute Mills v.*

may arise in many ways, as for example, when there is wrong application or non-application of the provisions of the Constitution[2] or the law[3], or where there is a failure of the principles of natural justice[4], or there is necessity of interpretation of any provision of the Constitution[5] or the law[6], or there is necessity of interpretation of any material document[7], or there is a question of jurisdiction or power of the court or authority to act in any particular manner[8], or where there has been violation or disregard of some rule of procedure which is an essential constituent of a fair trial[9], or where there has been violation or disregard of the rules of evidence materially affecting the ultimate decision.[10]

5.189 The Appellate Division is not inclined to grant leave on a question of fact and does not grant leave particularly when a matter is

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Sanaullah, 40 DLR (AD) 298; *Bangladesh v. Md. Afzal*, 40 DLR (AD) 154; *Abdul Mannan v. Kulada Ranjan*, 31 DLR (AD) 195; *Buxley Paints v. Bangladesh*, 31 DLR (AD) 266; *James Finlay v. Chairman, Labour Court*, 33 DLR (AD) 58; *Bangladesh Biman v. Syed Aftab Ali*, 39 DLR (AD) 151

[1] *Abu Taleb v. Bangladesh*, 45 DLR (AD) 45

[2] *Bangladesh v. A.K.M. Zahangir*, 34 DLR (AD) 173; *Dr. Nurul Islam v. Bangladesh*, 33 DLR (AD) 201; *Sharping M.S. Samity v. Bangladesh*, 39 DLR (AD) 85; *Jamuna Oil Mill Co. v. S.K. Dey*, 44 DLR (AD) 104

[3] *Alauddin Sardar v. Surendra*, 40 DLR (AD) 257

[4] *Bashir Ahmed v. BJMC*, 44 DLR (AD) 267; *Abdul Wahab v. Ali Ahmed*, 44 DLR (AD) 55; *Sk. Ali Ahmed v. Secy. Ministry of Home*, 40 DLR (AD) 170; *Bangladesh Steamer Assn. v. Bangladesh*, 31 DLR (AD) 272

[5] *Anwar Hossain Chowdhury v. Bangladesh*, 1989 BLD (Spl) 1; *Altaf Hossain v. Abul Kashem*, 45 DLR (AD) 53; *Secretary, Aircraft Engineers v. Registrar, Trade Union*, 45 DLR (AD) 122; *S.A. Sabur v. Returning Officer*, 41 DLR (AD) 30; *Mofizur Rahman v. Bangladesh*, 34 DLR (AD) 321

[6] *Bangladesh v. Shakhipur Islamia High School*, 45 DLR (AD) 23; *Bangladesh v. Dhaka Steel Works*, 45 DLR (AD) 69; *Chand Mia Sowdagar v. S.M.A. Rahman*, 43 DLR (AD) 225; *East Pakistan v. S.A. Khan*, 40 DLR (AD) 202; *Mostafa Hossain v. S.M. Faruque*, 40 DLR (AD) 10

[7] *Somedullah v. Mahmud Ali*, 44 DLR (AD) 83; Abdur Rashid v. Momtaz Ali, 44 DLR (AD) 270

[8] *Insan Ali v. Mir Abdus Salam*, 40 DLR (AD) 193; *Habibullah Khan v. S. Azharuddin*, 35 DLR (AD) 72

[9] *Sharifa Khatun v. Md. Yusuf*, 44 DLR (AD) 285; *Anwara Begum v. Shah Newaz*, 43 DLR (AD) 156; *Sona Mia v. Jamila Khatun*, 41 DLR (AD) 113; *Mobarak Hossain v. Mostafa Hossain*, 40 DLR(AD) 20

[10] *Hazi Waziullah v. A.D.C. Revenue*, 41 DLR (AD) 97

concluded by concurrent findings of fact. The court, however, grants leave to consider whether the finding of fact is arbitrary or perverse in the sense that the conclusion reached does not emerge from the facts proved[1] or the finding of fact has been arrived at ignoring important piece of evidence consideration of which was likely to influence and affect the assessment of evidence[2]. The Appellate Division also granted leave where it was shown that the High Court Division in second appeal or revision interfered with a finding of fact in the absence of any acceptable ground for such interference.[3]

5.190 The Appellate Division generally does not entertain a new plea which was not raised earlier.[4] But if a point of fact plainly arises on the record, or a point of law is material for the decision and can be decided on the basis of the materials already on record, or if the point was urged before the trial court and was rejected but was not urged before the High Court Division, or if the question is of considerable importance and is likely to arise in similar cases or if it goes to the jurisdiction of the lower court, the Appellate Division may permit such new plea to be raised.

5.191 Where the grant of any particular relief is in the discretion of the High Court Division or the subordinate court, or where a particular order has been passed by exercising the discretion judicially, the Appellate Division does not interfere[5] even though the Appellate Division in the facts and circumstances of the case would have exercised it in a different manner. But the position will be otherwise if it can be shown that the exercise of the discretion is plainly arbitrary or unreasonable, or is not in accord with the accepted principles governing its exercise.[6]

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[1] *Erfan Ali v. Joynal Abedin*, 35 DLR (AD) 216

[2] *Joynal Abedin v. Mafizur Rahman*, 44 DLR (AD) 162

[3] *Shamser Ali v. Kafizan*, 44 DLR (AD) 231; *Nurul Alam v. Abdus Sobhan*, 45 DLR (AD) 168; *Korban ali v. Abdul Jalil*, 44 DLR (AD) 80; *Naimuddin Sardar v. Abdul Kalam Biswas*, 41 DLR (AD) 3; *Mir Abdul Ali v. Rafiqul Islam*, 40 DLR (AD) 75; *Sudhir Das v. Harimohan Das*, 39 DLR (AD) 218; *Abul Kashem v. Khodeja Akhtar*, 31 DLR (AD) 316

[4] *Nasrin Kader Siddiqui v. Bangladesh*, 44 DLR (AD) 16; *Bangladesh Telecom Ltd v. BTTB*, 48 DLR (AD) 20; *Abdur Rouf v. Golam Rasul*, 1997 BLD (AD) 141; *Abdul Kaiyum v. Krishnanandan*, 49 DLR (AD) 140; *Narayan Chandra v. Abdul Jabbar Dewan*, 52 DLR (AD) 35

[5] *University of Dhaka v. Prof. Monwaruddin*, 52 DLR (AD) 17

[6] *Controller of Examinations v. Mahimuddin*, 44 DLR (AD) 305 (Appellate Division set aside the judgment of the High Court Division as discretion was exercised upon

5.192 *Grant of leave in criminal cases* : In criminal matters the Appellate Division grants leave in exceptional or special circumstances where substantial and grave injustice has been done, and the case presents special features requiring review of the decision of the High Court Division[1], or where there has been non-compliance of legal procedure such as vitiates the whole trial or in substance amounts to a denial of fair trial[2], or there is serious error in the reasoning and conclusion of the High Court Division[3]. Normally the Appellate Division does not re-appraise the evidence[4] unless the findings are perverse or vitiated by an error of law or there is grave miscarriage of justice[5] or there has been substantial defect in the appraisal of the evidence which has led to the failure of justice[6] or there has been wrong allocation of the burden of proof leading to wrong assessment of the evidence, or where an accused has been convicted on no evidence[7] or on clearly insufficient evidence[8] or where the finding of fact has been vitiated by consideration of totally inadmissible evidence or by non-consideration of material evidence on record[9] or when the findings of fact are based on evidence on which no reasonable court would have arrived at such findings, or where the findings of fact are such as are

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misconception of law relating to availability of efficacious remedy); *Bangladesh Sericulture Board v. Fazlur Rahman*, 41 DLR (AD) 25; *Nazrul Islam Chowdhury v. Abdul Hamid*, 1983 BLD (AD) 136; *Mozaher Sowdagar v. Zahirul Alam*, 40 DLR (AD) 62; *Lutfur Rahman v. Golam Ahmed*, 39 DLR (AD) 243; *Uttara Bank v. Macneil & Kilburn*, 33 DLR (AD) 298

[1] *Ramniklal v. Gujrat*, AIR 1975 SC 1752

[2] *Nannu Gazi v. Awalad Hossain*, 43 DLR (AD) 63 *Harshad Singh v. Gujrat*, AIR 1977 SC 710

[3] *Anand Rao v. Maharashtra*, AIR 1972 SC 1232

[4] *Fazal Khan v. State*, 16 DLR (SC) 117

[5] *Md. Hossain Umar v. K.S. Dalipsingh*, AIR 1970 SC 45; *Fazalan v. Crown*, 8 DLR (FC) 1, *Abdul Kamil v. State*, PLD 1958 SC 12; *Jahan Khan v. State*, PLD 1959 SC 488; *State v. Tayeb Ali*, 40 DLR (AD) 6.

[6] *Nawabul Alam v. State*, 45 DLR (AD) 140; *Babar Ali v. State*, 44 DLR (AD) 10; *Nurul Islam v. State*, 43 DLR (AD) 6; *Abdul Mannan v. State*, 44 DLR (AD) 60; *Mizazul Islam v. State*, 41 DLR (AD) 157; *Ramesh v. U.P.*, AIR 1985 SC 766

[7] *Mofazzal Hossain v. State*, 45 DLR (AD) 175; *Mohinder Singh v. State*, AIR 1953 SC 415

[8] *Abdul Hamid Mollah v. Ali Mollah*, 44 DLR (AD) 223

[9] *Samiruddin v. State*, 41 DLR (AD) 129; *Md. Akram v. State*, 16 DLR (SC) 695 (where conviction was given without considering that the case depended on the evidence of two bad characters)

shocking to the judicial conscience of the court. Where on the facts proved, two reasonable views can be taken, the Appellate Division will not interfere[1] even though it is inclined to take the view discarded by the High Court Division.[2] Where there had been serious defect in the finding of fact arrived at by the High Court Division in manifest disregard of the accepted principles of appreciation of evidence, the Appellate Division will grant leave and re-examine the evidence.[3] Where the appellant is convicted for murder without comprehensive and detailed analysis of the evidence and manifest error in the case is overlooked, the court will interfere.[4] Leave is granted when a substantial question of law is raised[5]. Violation of constitutional right or interpretation of the provisions of the Constitution or law involved in the case[6], applicability of a penal provision on the proved or alleged facts[7], the effect of violation or non-compliance of a legal procedure[8], failure of the principles of natural justice and want of jurisdiction of the court[9] are questions of law. Leave is not granted to raise a technical point when no prejudice is caused to the accused.[10] No new plea is allowed to be raised unless it is jurisdictional or a point of law going to the root of the case. The Appellate Division has granted leave to consider whether the High Court Division properly construed its judgment.[11]

5.193 The Appellate Division does not interfere with the finding of

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[1] *Abdul Hamid Mollah v. Ali Mollah*, 44 DLR (AD) 223

[2] *Chuhar Singh v. Haryana*, AIR 1977 SC 386 (but the court will interfere when it finds it impossible on any fair view to accept the conclusion)

[3] *State v. Abdus Sattar*, 43 DLR (AD) 44; *State v. Khasru*, 43 DLR (AD) 182; *Saidur Rahman v. State*, 45 DLR (AD) 66; *Abu Taher Chowdhury v. State*, 42 DLR (AD) 253

[4] *Mahesh v. State*, AIR 1991 SC 1108

[5] *Sompong v. State*, 45 DLR (AD) 110; *State v. Divisional Special Judge*, 44 DLR (AD) 215; *Samirannessa v. Kamaluddin*, 43 DLR (AD) 175; *Nazir Ahmed v. State*, AIR 1936 PC 253; *Ali Newaz Gardezi v. Md. Yussuf*, 15 DLR (SC) 9

[6] *Abdul Latif Mirza v. Bangladesh*, 31 DLR (AD) 1; *Bangladesh v. Ahmed Nazir*, 27 DLR (AD) 41; *Sajeda Parvin v. Bangladesh*, 40 DLR (AD) 178; *Aminul Islam v. Mujibur Rahman*, 44 DLR (AD) 56

[7] *Islam ali Mia v. Amal Chandra*, 45 DLR (AD) 27; *Rafiqul Islam v. State*, 44 DLR (AD) 264; *Lal Mia v. State*, 41 DLR (AD) 1; *Sadhu Singh v. State*, AIR 1954 SC 271; *Shihab Din v. State*, PLD 1964 SC 177

[8] *Siraj Din v. Kala*, 16 DLR (SC) 94; *Sultan Ahmed v. Haji S. Alam*, 34 DLR (AD) 352

[9] *Abdul Hai Khan v. State*, 40 DLR (AD) 226

[10] *H.M. Ershad v. State*, 6 BLC (AD) 18

[11] *Helaluddin Ahmed v. Bangladesh*, 45 DLR (AD) 1

acquittal, but will grant leave to consider whether it is clearly unreasonable[1] or perverse, or manifestly illegal or unjust[2], or vitiated by glaring infirmity in the assessment of the evidence[3]. The court will not interfere merely because it would take a different view on the evidence.[4] Where the High Court Division appears to have set aside an order of acquittal without justification[5] or upon erroneous view of the law of procedure[6] the court will grant leave to appeal. When the petitioner delays in having the leave petition heard, the Appellate Division is reluctant to grant leave against an order of acquittal.[7]

5.194 The court does not interfere with the legal sentence passed by the lower court or the High Court Division unless it is shown that there is an illegality in it, or it is unduly harsh[8] or unjust in the facts of the case or is unduly lenient and the discretion in passing the sentence has not been judicially exercised.

5.195 Bail is a matter of discretion and the Appellate Division does not generally grant leave in respect of such an exercise of the discretion. But the court grants leave to consider whether the High Court Division in refusing bail has taken an erroneous view of the law[9], or refused bail when there is no *prima facie* case[10] or exercised the discretion improperly or arbitrarily[11] or in granting bail imposed unreasonable condition[12] or where the High Court Division has arbitrarily cancelled the bail[1]

[1] *Maharashtra v. Champalal*, AIR 1981 SC 1675

[2] *State v. Rafiqul Hyder*, 45 DLR (AD) 13; *State v. Mantu*, 44 DLR (AD) 287; *U.P. v. Jasoda Nandan*, AIR 1974 SC 753

[3] *State v. Abdus Sattar*, 43 DLR (AD) 44; *State v. Ashraf Ali*, 43 DLR (AD) 83; *U.P. v. Chet Ram*, AIR 1989 SC 1543 (though there is need for care and restraint in the matter of setting aside a judgment of acquittal, the court will not refuse to interfere if the ends of justice require exercise of the power)

[4] *Punjab v. Balraj*, AIR 1978 SC 1136

[5] *Bhubaneswar v. Bihar*, AIR 1973 SC 399

[6] *State v. Constable Lal Mia*, 44 DLR (AD) 277

[7] *State v. Abu Musa*, 53 DLR (AD) 87

[8] *Fateh Khan v. State*, 15 DLR (SC) 51 (death sentence); *Mathri v. Punjab*, AIR 1964 SC 986

[9] *Madar Chandra v. State*, 44 DLR (SC) 151; *Mosharraf Hossain v. State*, 44 DLR (AD) 246

[10] *Abdul Matin v. State*, 44 DLR (AD) 8

[11] *Sk Shahidul Islam v. State*, 44 DLR (AD) 192; *Dhanu Mia v. State*, 43 DLR (AD) 119

[12] *Iqbal v. State*, 41 DLR (AD) 111

5.196 ***Power to do complete justice*** : Art.104 provides that the Appellate Division shall have the power to issue such orders or directions as may be necessary for doing complete justice in any cause or matter pending before it. This article does not confer a new jurisdiction, but gives a power to the court where it has jurisdiction.[2] This power is not circumscribed by any limiting words. This is an extra-ordinary power conferred by the Constitution only to the Appellate Division[3] and no attempt has been made to define or describe 'complete justice'. Any such attempt would possibly defeat the very purpose of the conferment of such power. "Cases may vary, situations may vary and the scale and parameter of complete jusatice also vary. Sometimes it may be justice accoroding to law, sometimes it may be justice according to fairness, equity and good conscience, sometimes it may be justice tempered with mercy, sometimes it may be pure commonsense, sometimes it may be the inference of an ordinary reasonable man and so on."[4] Speaking about this power the Appellate Division observed -

> Considering the vagaries of legal proceedings and the technicalities involved in adjudication, art.104 of the Constitution has invested as a measure of abundant caution, the last court of the country with wide power, so that it may forestall a failure of justice and to do complete justice in an appropriate case. It is an extraordinary procedure for doing justice for completion of or putting an end to a cause or matter pending before this court. If a substantial justice under law and on undisputed facts can be made so that parties may not be pushed to further litigation then a recourse to the provision of art.104 may be justified. Complete justice may not be perfect justice, and any endeavour to attain the latter will be an act of vanity.[5]

It being an extraordinary power, the Appellate Division cautioned -

> In the name of complete justice if a frequent recourse is made to art.104 then this court will be exposed to the opprobrium of purveyor of 'palm tree justice'. Where social conditions and proprietory relations change, but the laws fail to change, they do change very slowly, the court will even then be required to settle disputes and administer justice, and it

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[1] *Bakul Howladar v. State*, 43 DLR (AD) 14
[2] *K.L. Gauba v. Chief Justice*, AIR 1942 FC 1
[3] *Shahana Hossain v. Asaduzzaman*, 47 DLR (AD) 155
[4] *National Boad of Revenue v. Nasrin Banu*, 48 DLR (AD) 171, 178
[5] *Naziruddin v. Hameeda Banu*, 45 DLR (AD) 38, 44

> will not ask the parties seeking justice before it to wait on Parliament for an appropriate law. In the process a 'Chancellor's Foot' syndrome may occur.[1]

5.197 In *Gannysons Ltd v. Sonali Bank*[2] Sonali Bank obtained a decree in a suit for foreclosure of mortgage of the property of Gannysons (which was being treated as an abandoned property) and levied execution of the decree. Gannysons filed objection against the decree under s.47 of the Code of Civil Procedure and the matter came up before the Appellate Division which decided the dispute in favour of Gannysons. But Gannysons filed a review petition on the ground that the order of the court was not fully in conformity with the decision. In allowing the review, the court in exercise of the power under art.104 gave relief to Gannysons declaring that the property of Gannysons was not an abandoned property. The question arises whether such a relief could be given when Gannysons was not a plaintiff in the suit out of which the proceeding before the Appellate Division arose. The Appellate Division in *Naziruddin v. Hameeda Banu* pointed out –

> In the name of complete justice this court may not grant relief which the court of first instance will not be able under the law to grant, otherwise no litigant, in search of complete justice, will rest till he reaches the end of the long tunnel of litigation in this court.[3]

In this case the appellant during the subsistence of marriage with the defendant built at his own cost a house on the land belonging to the defendant. Subsequently, the relationship became strained and ended in dissolution of the marriage. The appellant's suit for declaration that he is the irrevocable licensee of his wife and the real owner of the suithouse was decreed by the trial court, but was dismissed by the High Court Division. While maintaining the decision of the High Court Division, the Appellate Division held -

> In this case the husband can, by no means, be termed as a trespasser or a stranger. He has built the house with consent, and, in the facts, it is not very difficult to hold, encouragement of the wife ... Though the appellant smartly deposed that he built the house for himself and his children, there can be no gainsaying that the house was built for the

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[1] Ibid, p.44
[2] 37 DLR (AD) 42
[3] 45 DLR (AD) 38, 44

> family - of the wife, the children and the husband as well. Though the appellant's claim on the basis of irrevocable licence has failed, we hold that he had reasonable belief, in the circumstances he was building the house, that he would be entitled to the building in such a way that he will not be disturbed. He has an expectation to reside in that house for the construction of which he expended about taka six lacs, and he is residing there since its construction ... the respondent ... is out of possession since 1980 and she may face a protracted litigation for eviction of the appellant. If liberty is given to the appellant to remove the three storied building and restore the property to its original condition then it may entail serious difficulties. In view of all these, we have decided to make a rough and ready adjustment of the claims of the parties ... Accordingly it is ordered that the appellant will retain his possession of that floor of the suit building where he is now residing, with no right to transfer his possession. The respondent may recover possession thereof any time within one year from date on payment of Taka six lacs in default of which the appellant will have only the right to live in that floor of the suit building where he is now residing during his life time.[1]

When there is a gap in the legislation, the Appellate Division, in exercise of its constitutional obligation, may step in to find a solution till such time the legislature acts.[2]

5.198 The important question is whether the court in exercise of this power can pass an order inconsistent with law. In *Prem Chand Garg v. Excise Commr.* the Indian Supreme Court held that "An order which this court can make in order to do complete justice between the parties, must not only be consistent with the fundamental rights guaranteed by the Constitution, but it cannot even be inconsistent with the substantive provisions of the relevant statutory laws"[3] and that the power to do complete justice does not enable the court to pass an order "inconsistent with the statutory provisions of substantive law, much less, inconsistent with any constitutional provisions". This decision was followed in *A.R. Antulay v. R.S. Nayak*[4]. In the subsequent case of *Union Carbide Corp. v. India*[5] the Indian Supreme Court distinguished *Garg* and *Antulay*

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[1] Ibid, p.45

[2] *Vineet Narain v. India*, AIR 1998 SC 889, 916

[3] AIR 1963 SC 996(Para 12)

[4] AIR 1988 SC 1531

[5] AIR 1992 SC 248

saying that in these two cases the point was one of violation of the constitutional provisions and the observation as to inconsistency with statutory provision was unnecessary. The court observed that in order to preclude the exercise of the constitutional power the prohibition of the statutory law must be "shown to be based on some underlying fundamental and general issues of public policy and not merely incidental to a particular statutory scheme or pattern. It will again be wholly incorrect to say that powers under article 142 are subject to such express statutory prohibitions. That would convey the idea that statutory prohibitions override a constitutional provision. Perhaps, the proper way of expressing the idea is that in exercising powers under Article 142 and in assessing the needs of 'complete justice' of a cause or matter, the apex court will take note of the express provisions in any substantive statutory provision based on some fundamental principles of public policy and regulate the exercise of its power and discretion accordingly."[1] In a subsequent case, the Indian Supreme Court re-affirmed *Garg* stating that the power to do complete justice cannot be construed as authorising the court to ignore the substantive rights of the litigants while dealing with a cause pending before it.[2]

5.199 Whatever be the position in the Indian jurisdiction, in Bangladesh this power has to be understood keeping in view the fundamental right guaranteed by art.31 which requires every person to be treated in accordance with law. And 'law' is not confined to statutory provisions only. Even in India the power to do complete justice cannot derogate from the constitutional provisions guaranteeing fundamental rights. One may say that the Appellate Division exercising the power it becomes a law and the bar of art.31 is not attracted. But it must be noted that any order passed enunciating a principle (so as to make it a declaration of law)[3] contrary to law may amount to judicial legislation. But more importantly, the order of the court before becoming law comes in conflict with art.31 because of repugnancy with the existing law and may not qualify as a law. The Appellate Division observed that it would not be proper to invoke art.104 when it comes in conflict with the express provision of law.[4] In *Nazirudin* the Appellate Division sought

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[1] Ibid, Para 43

[2] *Supreme Court Bar Assoc. v. India*, AIR 1998 SC 1895; *Mehta v. Kamal Nath*, AIR 2000 SC 1997

[3] *Municipal Corp. of Delhi v. Gurnam Kaur*, AIR 1989 SC 38

[4] *H.M. Ershad v. State*, 6 BLC (AD) 30

to remove an injustice caused in the peculiar facts of the case and the existing law did not cover the situation. The court observed that in doing complete justice the Appellate Division may not grant a relief which the court of first instance will not be able under the law to grant. Read in proper context it means that the court will not generally grant a relief which the trial court cannot grant. The power under art.104 is to be sparingly used in exceptional circumstances and to grant a relief which a trial court cannot grant far more exceptional circumstances will be required. It is difficult to reconcile the exercise of the power in *Gannysons* with the exposition of the power in *Naziruddin*. Gannysons not being a plaintiff, the court of the first instance could not have given the declaration in favour of Gannysons and the declaration by the Appellate Division is in conflict with the fundamental principle of our legal system of granting relief only to the person approaching the court seeking it.[1] The court exercised the power in *Gannysons* saying that the Gannysons had already suffered and to compel it to further litigation in the form of a suit for declaration that the properties in question were not abandoned property would result not only in further harassment but also long delay and deprivation of the enjoyment of the property. But this is nothing exceptional; so many of the litigants in this country are facing this predicament. It can be seen that the court in passing the order in the appeal (in respect of which review was sought) protected the interest of Gannysons by allowing stay of the proceedings in the execution case for six months to enable Gannysons to take steps. In *Bangladesh Telecom Ltd v. BTTB*[2] the Appellate Division allowed the writ petition declaring cancellation of agreement by respondent 1 in respect of cellular radio telephone system to be without lawful authority subject to the condition that the appellant would transfer within the stipulated period the relevant licence to respondent 3 with whom it entered into a joint venture agreement to work the licence. Though the order was beneficial to respondent 3, this was a relief given not to respondent 3 but to the appellant with a condition imposed in the exercise of the power to do complete justice to serve the public interest involved in the commercial venture

5.200 Power to do complete justice is an extraordinary power given to the highest tribunal of the land and the power is to be exercised sparingly and in exceptional circumstances to remove manifest and

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[1] *Pakistan v. Khandker Ali Afzal*, 12 DLR (SC) 38

[2] 48 DLR (AD) 20

undoubted injustice. Facts may be of such varied pattern, that it is difficult to lay down any fixed principles for doing complete justice. All that can be said is that 'complete justice' should be done not according to the personal views of the Judges, but in exceptional circumstances on clear showing of injustice for the removal of which the existing laws have not made any provision.

5.201 In exercise of this power the court may clarify its own order[1], expunge passages from the judgment of the High Court Division[2], remand a suit to the trial court[3], ignore technical grounds[4], resort to prospective overruling in granting relief[5], grant relief under one law when application is made under another law[6], mould the relief according to the changed circumstances or events subsequent to the institution of the suit[7] or grant relief when huge cost is awarded in exparte proceeding[8]. At a time when there was no rule permitting review of its own order *suo motu*, the Appellate Division invoked art.104 to hold that it had power to review its decision *suo motu*.[9] As a general rule, the Appellate Division does not interfere with a concurrent finding of fact, but where the situation demands, it will interfere to do complete justice.[10] When gross injustice has been done for no fault of the party who is left with no remedy, the court invoked the power to interfere.[11] Where the High Court committed error in acquitting certain persons even though the criteria laid down in its judgment warranted conviction, the Supreme Court *suo motu* issued notice upon the acquitted persons to show cause why they should not be convicted.[12] In exercise of this power the court can extend to the non-appealing party the benefit of the

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[1] *Keshav Talpade v. Emperor*, AIR 1943 PC 72
[2] *Ali Newaz Gardezi v. Col. Yussuf*, 15 DLR (SC) 9
[3] *Bangladesh v. Dhaka Lodge*, 40 DLR (AD) 86
[4] *Bangladesh v. Court of Settlement*, 53 DLR (AD) 26
[5] *Somaiya Organics (India) Ltd. v. U.P.*, AIR 2001 SC 1723; see *H.P. v. Nurpur Private Bus Operators*, AIR 1999 SC 3880 (the doctrine of prospective overruling is not available to the High Court)
[6] *BWDB v. Labour Court*, 2001 BLD (AD) 117
[7] *Md. Aslam v. Wazir Mohammad*, PLD 1985 SC 46
[8] *Al-Helal Rice Mills Ltd. v. BSRS*, 51 DLR (AD) 51
[9] *Mahbubur Rahman Sikder v. Mujibur Rahman Sikder*, 37 DLR (AD) 145
[10] *Bangladesh v. Mashiur Rahman*, 50 DLR (AD) 205
[11] *Raziul Hasan v. Badiuzzaman*, 1996 BLD (AD) 253
[12] *State v. Md. Nawaz*, 18 DLR (SC) 503

relief given to the party who appealed.[1] In *Manganese Ore (India) Ltd v. Chandi Lal*[2] two groups of workers in Nagpur and Madhya Pradesh claimed relief in respect of two items against the same employer. The labour court in Nagpur gave the full relief, while the labour court in Madhya Pradesh gave relief in respect of one item. The employer went to the Supreme Court in respect of both the decisions, but the workers of Madhya Pradesh did not challenge the decision in respect of the item disallowed. The Supreme Court found that the workers were entitled to both the items and ordered, "It would be a travesty of justice if we do not extend the benefit of this judgment to the workmen employed with the appellants in the State of Madhya Pradesh. Notwithstanding the order of the labour court which has become final, we invoke our powers under art.142 of the Constitution of India and direct that the benefit of this judgment be extended to the workmen of the appellant in the State of Madhya Pradesh." In *Delhi Judicial Service Association v. Gujarat*[3] in a contempt proceeding against some police officials for assaulting, handcuffing and maliciously prosecuting a Chief Judicial Magistrate, the Indian Supreme Court not only convicted and sentenced the police officials but also quashed the criminal proceeding against the magistrate in exercise of the power of doing complete justice. According to the Indian Supreme Court, when there is a vacuum in legislation, it is the duty of the executive to fill the vacuum as its field is co-terminus with that of the legislature and where there is inaction even by the executive, the judiciary must step in, in exercise of its constitutional obligation, to provide a solution till such time the legislature acts.[4]

5.202 ***Power of Review*** : Art.105 provides that subject to the provisions of an Act of Parliament and any rules made by it, the Appellate Division may review its own judgment or order. The power of review is exercised in two ways - (i) changing the decision of a case by reviewing the judgment originally delivered in that case and (ii) overruling a principle of law enunciated in a previous case. The power has been granted in the same terms as was granted to the Supreme Court under the Pakistan Constitution of 1956 and 1962. In a leading case Kaikaus J observed -

> On a proper consideration it will be found that the principles underlying

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[1] *Nagarajan v. Mysore*, AIR 1966 SC 1942, 1950

[2] AIR 1991 SC 520

[3] AIR 1991 SC 2176

[4] *Vineet Narain v. India*, AIR 1998 SC 889, 916

> the limitations mentioned in Order XLVII, rule 1, Civil Procedure Code, are implicit in the nature of review jurisdiction. While I would prefer not to accept those limitations as if they placed any technical obstruction in the exercise of the review jurisdiction of this Court I would accept that they would embody the principles on which this Court would act in the exercise of such jurisdiction. It is not because a conclusion is wrong but because something obvious has been overlooked, some important aspect of the matter has not been considered, that a review petition will lie. It is a remedy to be used only in exceptional circumstances.[1]

5.203 The Supreme Court of Bangladesh (Appellate Division) Rules, 1988 provide that subject to the law and practice of the court, the Appellate Division may either of its own motion or on the application of a party to a proceeding, review its judgment or order in a civil proceeding on grounds similar to those mentioned in Order XLVII, Rule 1 of the Code of Civil Procedure and in a criminal proceeding on the ground of error apparent on the face of the record.[2] Before the making of these Rules, a question arose as to whether the Appellate Division could *suo motu* review its judgment or order and the Appellate Division answered in the affirmative.[3]

5.204 As the review jurisdiction has been made subject to the practice of the court and the court was reluctant to exercise the jurisdiction except in case of substantial injustice, in seeking review, it is not sufficient to bring the case within the fold of rule 1 of Order XLVII of the Code; it has to be shown that unless the judgment is reviewed a substantial injustice would be done. Cornelius CJ observed-

> If there be found material irregularity, and yet there be no substantial injury consequent thereon, the exercise of the power of review to alter the judgment would not necessarily be required. The irregularity must be of such a nature as converts the process from being one in aid of justice to a process that brings about injustice.[4]

The jurisdiction cannot be utilised for re-hearing of the matter[5] and a

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[1] *Md.Amir Khan v. Controller, Estate Duty*, 14 DLR (SC) 276

[2] Rule 1 of Order XXVI

[3] *Mahbubur Rahman Sikdar v. Mujibur Rahman Sikder*, 37 DLR (AD) 145

[4] *Md. Amir Khan v. Controller, Estate Duty*, 14 DLR (SC) 276

[5] Ibid; *Zobaida Nahar v. Khairunnessa*, 3 BLC (AD) 170 *Idris Ali v. Enamul Huq*, 43 DLR (AD) 12; *Nurul Hossain v. Bangladesh*, 1 BLC (AD) 219; *Manzoor Hasan v. Zohra Bibi*, PLD 1990 SC 924.

decision of the court should be re-opened with the very greatest hesitation and only in a very exceptional circumstance.[1] A wrong decision on interpretation of certain provisions of law or principle laid down in a decision relied upon by the court is no ground for review.[2] Review will not be allowed on a new ground which was not urged in the appeal.[3] A review proceeding cannot be equated with the original hearing of the case, and the finality of the judgment delivered by the court will not be disturbed except where glaring omission or patent mistake or grave error apparent on the face of the record has crept in the earlier decision by judicial fallibility.[4] Where a conscious and deliberate decision is given in the peculiar facts of a case, no review can be allowed merely because the decision does not square up with some provision of law.[5] It is no ground of review that the decision given by the court is at variance with the decision given in some foreign jurisdictions.[6]

5.205 *Review in civil cases* : Rule 1 of Order XLVII of the Code being attracted a review of the judgment or order of the Appellate Division lies on the following grounds :-

(a) Discovery of new and important matter or evidence which, after due exercise of diligence, a party could not produce before the court at the hearing. The new and important matter must be such as might possibly have altered the decision of the court.[7] Where the new materials were placed and the case presented some unusual

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[1] *Akbar Ali v. Iftekhar Ali*, PLD 1956 FC 50; *Lily Thomas v. India*, AIR 2000 SC 1650 (Power of review is not to be exercised to substitute a view)

[2] *Zenith Packages v. Labour Appellate Tribunal*, 52 DLR (AD)160

[3] *Bangladesh Bank v. Abdul Mannan*, 46 DLR (AD) 1, 7; *Zobaida Nahar v. Khairunnessa*, 3 BLC (AD) 170; *Md. Safiullah v. Pakistan*, PLD 1990 SC 79

[4] *Northern India Caterers v. Governor*, AIR 1980 SC 674, 678; *G.M.Jamuna Oil Co. Ltd v. Chairman, Labour Court*, 2000 BLD (AD) 240; *Chandra Kanta v. Sk. Habib*, AIR 1975 SC 1500; *Dayananda Sagar v. Vatal Nagraj*, AIR 1976 SC 2183; *Zobaida Nahar v. Khairunnessa*, 3 BLC (AD) 170; *Srinivasiah v. Balaji Krisna*, AIR 1999 SC 462 (Review is allowed when the judgment reviewed was delivered on mistaken assumption of material fact)

[5] *B.S.R.S. v. M/S Haque Brothers*, 46 DLR (AD) 39; *Md. Safiullah Khan v. Pakistan*, PLD 1990 SC 79

[6] *Manipur Administration v. Tochom Bira*, AIR 1965 SC 87

[7] *In Re Appa Rao*, 13 IA 155; *Azizur Rahman v. Bangladesh*, CRP No.26-32 of 1993 (new materials were produced, but the court was of the view that those materials would not have affected the decision and rejected the review petition)

circumstances the Indian Supreme Court reviewed its earlier judgment.[1] But though the court can take notice of the change of law at the time of hearing an appeal, no review can be sought on the ground of subsequent change of law.

(b) Error apparent on the face of the record. An error apparent on the face of the record exists if of the two or more views canvassed on the point it is possible to hold that the controversy can be said to admit only one of them; if the view adopted by the court in the original judgment is a possible view having regard to what the record states, it is difficult to hold that there is an error apparent on the face of the record.[2] Reversal of conclusions reached by the court after full consideration of the question is not possible in the exercise of review jurisdiction except where the decision was given *per incuriam* (i.e. through oversight) without considering some statute or the like.[3] As the Judges are under oath to preserve, protect and defend the Constitution and the laws of Bangladesh, they are to review a judgment which is in conflict with the Constitution or the laws of Bangladesh.[4] In order that an error may be a ground for review it must be one which is manifest and so clear that no court can permit such an error to remain on record; it may be an error of fact or law, but it must be an error which is self-evident and floating on the surface, and does not require any elaborate discussion or process of ratiocination.[5] The indulgence by way of review may be granted to prevent irremediable injustice being done where by some inadvertence an important statutory provision has escaped notice which, if it had been noticed, might materially affect the judgment.[6] Review can be had also on the ground of error about a material fact which is apparent on the face of the record such as dismissal of a suit where a part of the claim had been admitted by the defendant.[7]

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[1] *Mohindroo v. District Judge*, Delhi, AIR 1971 SC 107

[2] *Northern India Caterers v. Governor*, AIR 1980 SC 674, 678

[3] *Punjab v. Board of Foreign Missions*, PLD 1988 SC 382

[4] *Md. Amir Khan v. Controller, Estate Duty*, PLD 1962 SC 335, 340; *Idris Ali v. Enamul Huq*, 43 DLR (AD) 12, 14 (Review of judgment can be made where there is error apparent on the face of the record or the court's attention was not drawn to any particular statutory provision of law for which an error has crept in the judgment.)

[5] *Z.A. Bhutto v. State*, PLD 1979 SC 741, 768; *Zenith Packages v. Labour Appellate Tribunal*, 52 DLR (AD) 150

[6] Ibid, p.261

[7] *Probhas v. Nithar*, AIR 1924 Cal 1054

(c) Any other sufficient reason which is analogous to discovery of new facts and error apparent on the face of the record.[1]

5.206 *Review in criminal cases* : Review can be had only in case of error apparent on the face of the record. Thus review may granted if the attention of the court was not drawn to a material statutory provision.[2] But it is not a ground of review that some alternative situations were not presented before the court when the case was decided on factual foundation.[3]

5.207 Even though none of the above grounds may be attracted, as the court has power to do complete justice, the court may review its judgment to rectify mistakes introduced in the judgment through inadvertence[4] or accidental slips[5]

5.208 In *Commissioner of Taxes v. Mullick Brothers*[6] the Appellate Division reviewed and set aside its original judgment. The respondent was assessed to income tax under M.L.R. 32 of 1969 and he paid part of the assessed tax. For the balance demand notice was issued. The respondent unsuccessfully challenged the notice of demand in the writ jurisdiction. The Appellate Division after taking note of the President's Order No.147 of 1972 found the notice to be without lawful authority holding that the Martial Law Regulation was not a law which was saved and continued by the Constitution and as such the imposition of the impugned tax was totally unauthorised and lacked legal foundation and no question of debt did arise.[7] The foundation of the judgment was that the Martial Law Regulation had no constitutional basis to become a law in Pakistan which could be saved and continued under the Constitution and the laws of Bangladesh and as such the assessment pursuant to M.L.R.32 could not create any debt. In reviewing the judgment the Appellate Division did not consider whether the legal finding regarding the validity of the Martial Law Regulation in the original judgment was correct. The court proceeded on the assumption that M.L.R.32 was a valid piece of legislation and created a debt within the meaning of the

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[1] *Chajju Ram v. Neki*, AIR 1922 PC 112

[2] *Hebbert v. Purchas*, (1871) 3 PC 664

[3] *Northern India Caterers v. Governor*, AIR 1980 SC 674

[4] *Rajunder v. Bajai*, (1836) 1 MIA 117

[5] *Mysore v. Mysore Spinning & Mfg. Co.*, AIR 1958 SC 1002

[6] 33 DLR (AD) 274

[7] *Mullick Brothers v. Income Tax Officer*, 31 DLR (AD) 165

President's Order no.147 of 1972 which was realisable and reviewed the judgment on the ground that in the original judgment the legislative amendment in the General Clauses Act by President's Order no.147 of 1972 was not considered in "its perspective". It is submitted that the original judgment could not be reviewed without coming to a definite finding that M.L.R.32 was a valid piece of legislation. The Appellate Division stated, "It is irrelevant to consider how this debt was created. The validity of MLR 32 is not an issue nor can it be made an issue, because the tax assessed by operation of law already became a debt to the Government of Pakistan by 15.1.71 ...". It has not been stated in the judgment and it is not understood why the consideration of how the debt was created was irrelevant and why validity of MLR 32 cannot be made an issue and how it can be said that it was not in issue when it was the foundation of the original judgment. The Appellate Division spoke of the creation of debt by operation of law. It is not understood how a debt is created unless something is due and how something may become due unless there is some valid law to make it due. It is also not understood how a debt was created when MLR 32 was held to be invalid. It cannot be said that no possible view can be taken that M.L.R.32 was not a valid piece of legislation and as such the finding in this regard in the original judgment cannot be said to be an error on the face of the record. On the contrary, a Martial Law Regulation is *per se* without legal validity and cannot create any right or liability unless it is imparted legal validity by some sort of constitutional device and there was none in the case of Martial Law Regulations of 1969. The Pakistan Supreme Court found Yahya Khan to be an usurper. So the Martial Law Regulation in question could be saved only if the doctrine of necessity would be applicable. The Appellate Division did not go into that question. It is submitted that the Appellate Division having taken notice of the President's Order no.147 of 1972 in its original judgment, it cannot be treated as *per incuriam* simply because it was "not considered in its perspective".

5.209 In *Gannysons Ltd. v. Sonali Bank*[1], review was sought on the ground that the order of the court in the original judgment was not in conformity with the reasonings given. The review judgment does not indicate any error apparent on the face of the record. The order in the original judgment shows that the court stayed the execution proceeding for six months to enable Gannysons to seek proper remedy and that was

[1] 37 DLR (AD) 42 (facts of the case may be seen in Para 5.197)

complete justice and there may not be any further question of doing a better justice.

5.210 In *Bangladesh v. Azizur Rahman*[1] the decision of the High Court Division declaring some provisions of the Bangladesh Ad-hoc Appointees (Counting and Determination of Seniority) Rules, 1990 *ultra vires* on the ground of violation of art.27 was challenged and the Appellate Division set aside the decision of the High Court Division. In the review petitions[2] it was urged that the court failed to consider that the governmental objective (as disclosed in the affidavit of the government) for the differential treatment was non-existent. The court dismissed the review petitions and stated about the above objection -

> Learned Counsel finds error in our finding that the classification in the case of all Ad-hoc appointees including the petitioners is reasonable and has got nexus with the objectives which it sought to achieve. We have followed, among others, our decision in the case of Abdus Sabur 41 DLR-AD p.30 and found the classification fully justified. Decisions from different jurisdictions were placed before us by both the parties and we accepted those which we found appropriate in the instant case. This is not an error on the face of the record.

It is submitted that *Sk. Abdus Sabur v. Bangladesh* has no bearing in this case inasmuch as the governmental objective in making the classification was very much in existence in *Sk. Abdus Sabur* and the question raised in the instant case was not at all in issue in *Sk. Abdus Sabur*. The court spoke of other decisions, but those decisions did not lay down any proposition that a classification to subserve a disclosed but non-existent governmental objective is valid and, indeed, there cannot be any decision upholding a classification which is not supported by a legitimate governmental objective. Presence of a legitimate objective for making a classification is the very essence of the equality clause under art.27. The court in rejecting the review petitions did not really answer the all important question raised. It is submitted that when there is differential treatment of citizens, a law can escape the challenge only by a showing of legitimate governmental objective to be subserved by the classification and if the court fails to examine this vital question of existence of such governmental objective with reference to the materials produced, not merely the court fails to consider the constitutional issue

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[1] 46 DLR (AD) 19 (fact of the case may be seen in Para 2.34)

[2] *Azizur Rahman v. Bangladesh*, 3 BLC (AD) 205

in "its perspective", but commits an error apparent on the face of the record.

5.210A In *Secy. Ministry of Finance v. Masder Hossain*[1] the Appellate Division gave direction to make law for constitution of a separate Judicial Service Commission and Judicial Pay commission with further observation that the pay etc. of the judicial officers shall follow the recommendation of the Pay Commission. The governement filed a review application raising objection relating to the competence of the court to direct making of a law by Parliament or the President and to the observation of the court that pay etc. of the judicial officers shall follow the recommendation of the Judicial Pay Commission. The appeal[2] arising out of the review petition was dismissed by the court observing–

> A review is by no means an appeal in disguise whereby an erroneous decision is reheard and corrected. A review lies where an error apparent on the face of the record exists. It is not a rehearing of the main appeal. Review is not intended to empower the Court to correct a mistaken view of law, if any, taken in the main judgment.

It is submitted that the question of rehearing the appeal in the disguise of review was not there in this case. The court failed to notice that there was no prayer in the writ petition for a separate Judicial Service Commission or for making any recommendation of Pay Commission binding on the government and neither the High Court Division went into these questions, nor any argument in this regard was advanced in the appeal from the decision of the High Court Division. The Appellate Division, while delivering the judgment, gave the direction and observation in question. The objections raised in review having not been mooted in the main appeal, the question of rehearing of the appeal was totally irrelevant. The objections raised related to some fundamental constitutional questions relating to the competence of the court under the scheme and framework of the Constitution and those were questions of great public importance. It is submitted that the court was in error in avoiding the issues in a situation where a review was in order.

5.211 *Procedure:* A review application has to be filed within 30 days of the judgment or order[3] and for computing the period of

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[1] 2000 BLD (AD) 104 (see Para 5.234A – 5.234F for comments on this this case)

[2] *Secy. Ministry of Finance v. Masder Hossain*, 2001 BLD (AD) 126

[3] The Supreme Court of Bangladesh (Appellate Division) Rules, 1988, Order XXVI, rule 2

limitation the time taken for obtaining the certified copy of the judgment or order shall be excluded. The application on the ground of discovery of new facts must accompany an affidavit setting forth the circumstances under which the discovery has been made.[1] The application must be signed by a Senior Advocate who shall specify the points upon which the prayer for review is based and shall certify that consistent with the law and practice of the court, a review would be justifiable.[2] Except with the special leave of the court, no application for review shall be drawn up by an advocate other than the advocate who appeared at the hearing and unless his presence is dispensed with by the court, he shall be present at the hearing of the review application.[3] A review application must accompany a cash security of Tk.2000/-.[4]

APPELLATE DIVISION : ADVISORY OPINION

5.212 Art.106 provides that the President may seek the opinion of the Appellate Division on a question of law which has arisen or is likely to arise and which is of such nature and of such public importance that it is expedient to obtain the opinion. It is entirely in the discretion of the President to decide whether the question of law is of the specified kind and whether to ask for the opinion. Once asked by the President, it was an obligation of the Supreme Court to render the opinion under art.59 of the Pakistan Constitution, but under art.106 the Appellate Division may decline to render the opinion.[5] The option has been given to enable the Appellate Division to decline to express opinion if purely socio-economic or political question having no constitutional significance is referred to it. But though it is not obligatory upon the court to give an opinion, it will be unwilling to decline a reference except for good reasons.[6] Having regard to the jurisdictional dimension added to the advisory role in the Constitution, returning the reference without answering the questions must not only be for good reasons, but also for such weighty reasons that the court has no option but to return the

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[1] Ibid, rule 3

[2] Ibid, rules 4 & 5

[3] Ibid, rule 6

[4] Ibid, rule 9

[5] *Special Reference Case no.1 of 1995*, 47 DLR (AD) 111; *In Re Art.143*, AIR 1965 SC 745

[6] *Special Referfence no.1 of 1995*, 47 DLR (AD) 111, 118

reference.[1] The Appellate Division laid down the principles governing the court's discretion in declining to answer a reference stating -

1. When the manner in which the question is framed e.g. broad and general and vague terms, or when it is beyond the power of the court to decide it, it is not possible to answer;

2. Speculative opinion on hypothetical question cannot be asked;

3. Court should decline to answer abstract question;

4. Reference as to validity of an entire Act wholesale should be avoided; and

5. The court may refuse to express its advisory opinion if it is satisfied that it should not express its opinion having regard to the nature of the questions forwarded to it and having regard to the other relevant facts and circumstances, if it finds for valid reason the question is incapable of being answered.[2]

The Appellate Division also stated some broad principles relating to the advisory jurisdiction as follow:-

1. The expediency, bonafides, and motive for making a reference is not justiciable;

2. The court is bound by the recitals in the order of reference and must accept the statement of facts in the Reference as they are. The truth or otherwise of the facts cannot be gone into. The court or the parties appearing in the reference cannot go behind the reference.

3. The President is not bound by the opinion on the Refer but the advisory opinion is entitled to due weight and the opinion may have great pursuasive force;

4. The opinion is not binding on the court rendering the opinion in the Reference; and

5. The advisory opinion is not 'law declared' and is therefore not binding on the High Court Division or subordinate court, yet it is entitled to due weight and respect and normally to be followed.[3]

The Indian Constitution permits the President to seek opinion on questions both of law and fact, but under art.106 only a question of law may be referred to the Appellate Division. If the question of law proceeds on assumption of some facts, the court will proceed to consider

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[1] Ibid p.132

[2] *Special Reference Case no.1 of 1995*, 47 DLR (AD) 111, 119

[3] Ibid, p.118

the question assuming the facts to be correct.[1] The question of law referred should be concrete and not abstract question of law.[2]

5.213 The opinion rendered is essentially in the nature of an advice and is not binding as a judicial pronouncement and is not binding on the referring authority.[3] It is not also binding on any party.[4] The opinion will not prevent the Appellate Division from giving a contrary decision. Even though lacking the binding force, such an opinion proceeding from the highest tribunal of the land will have great persuasive value and have been relied on in subsequent litigation.

BINDING EFFECT OF SUPREME COURT JUDGMENTS

5.214 Art.111 provides that the law declared by the Appellate Division shall be binding on the High Court Division and the law declared by either division shall be binding on all subordinate courts. A judgment of a court binds no body except the parties to the proceeding, but by virtue of this article the judgment of the Supreme Court so far as it settles a point of law is a declaration for the nation as to what the law is.[5] The article recognises that under modern conditions legislative modification of laws is bound to be confined to major changes and gradual and orderly development can only be accomplished by judicial interpretation.[6] What is binding as a law is the *ratio* of a decision and not the finding of fact or the conclusion reached by the court.[7] "The *ratio decidendi* is the underlying principle, namely, the general reasons or the general grounds upon which the decision is based on the test or abstract from the specific peculiarities of the particular case which gives rise to the decision. The *ratio decidendi* has to be ascertained by an analysis of the facts of the case and the process of the reasoning involving the major premise consisting of a pre-existing rule of law, either statutory or judge-made, and a minor premise consisting of the

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[1] *Reference by Governor General*, 7 DLR (FC) 395

[2] *A.G. British Columbia v. A.G. Canada*, [1914] AC 153; *In Re Regulation and Control of Aeronautics*, [1932] AC 54

[3] *In Re Estate Duty*, AIR 1944 FC 73

[4] *In Re Kerala Education Bill*, AIR 1958 SC 956

[5] *Ganga Sugar Corporation v. U.P.*, AIR 1980 SC 286

[6] *Dhanwatey v. C.I.T.*, AIR 1968 SC 683, 696

[7] *Dalbir Singh v. India*, AIR 1979 SC 1384, Para 22; *Krisna Kumar v. India*, AIR 1990 SC 1782

material facts of the case under immediate consideration."[1] In order to be binding, the opinion on the law must be a considered one and therefore a decision given on concession of the parties cannot operate as a law laid down by the Supreme Court.[2] Mere casual expressions carry no weight at all and not every passing expression of a judge, however eminent, can be treated as an *ex cathedra* statement, having the weight of authority.[3] Unless a principle is laid down, a decision given in exercise of the power of doing complete justice under art.104 cannot operate as a binding precedent.[4] But if the statement of the law is a considered opinion, it qualifies as a law binding on the subordinate courts even if it has been given *ex parte*.[5] A decision which is *per incuriam*, that is, a decision given in ignorance of the terms of the Constitution or of a law or of a rule having the force of law, does not constitute a binding precedent.[6] Decisions *sub silentio* which are given on a point of law not perceived by the court or present to its mind are not also binding precedents.[7] Opinions of the Appellate Division rendered under its advisory jurisdiction, though not binding as precedents are entitled to great weight and are normally to be followed by the courts.[8]

5.214A *Overruling by implication:* Where the Appellate Division has applied its mind to the facts of the case before it and the law as declared by it in a previous case, the previous case shall be deemed to have been impliedly overruled if the law declared in the previous case contradicts what has been stated in the latter case even though the previous case has not been expressly overruled.[9]

5.215 Every judgment must be read as applicable to the particular

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[1] *Krishna Kumar v. India*, AIR 1990 SC 1782, 1793; *India v. Dhanwanti*, (1996) 6 SCC 44

[2] *Laksmi Shankar v. State*, AIR 1979 SC 451; *Municipal Corp of Delhi v. Gurnam Kaur*, AIR 1989 SC 38; *Kulwant v. Gurdial Singh Mama*, AIR 2001 SC 1273

[3] *Municipal Corp. of Delhi v. Gurnam Kaur*, AIR 1989 SC 38

[4] Ibid

[5] *Pradyut v. Suryakant*, AIR 1979 Bom 166

[6] *Municipal Corp. of Delhi v. Gurnam Kaur*, AIR 1989 SC 38; *A.R. Antulay v. R.S. Nayak*, AIR 1988 SC 1531; *Fuerst Day Lawson Ltd. v. Jindal Exports*, AIR 2001 SC 2293

[7] *Municipal Corp of Delhi v. Gurnam Kaur*, AIR 1989 SC 38; *U.P. v. Synthetics and Chemicals Ltd*, (1991) 4 SCC 139

[8] In Re *Cauvery Water Disputes Tribunal*, AIR 1992 SC 522

[9] *Rudramurthy v. Barkathulla*, (1998) 8 SCC 275

facts proved or assumed to be proved, since the generality of expressions which may be found there are not intended to be expositions of the whole law, but governed and qualified by the particular facts of the case in which such expressions are to be found.[1] But once the Supreme Court settles a question of law, it is not open to the subordinate courts to question the principle enunciated by the Supreme Court, even though they have a right to see whether and how far the principle on which stress is laid applies to the facts of a particular case.[2] While the decision in a judgment of the Supreme Court cannot be assailed on the ground that certain aspects have not been considered or that the relevant provisions were not brought to the notice of the Supreme Court,[3] the subordinate court is free to hold that the facts of the case before it are different from those in the case before the Supreme Court and as such the principle laid down by the Supreme Court is not applicable to the case before it.[4]

5.216 *Obiter dicta* : Statements made by a court in a decision arising out the circumstances of the case, but not necessary for the determination of the dispute is *obiter dictum*[5] and such a statement of law cannot operate as a binding precedent as it was unnecessary for the decision in the case.[6] But if the statement of law has been made in a decision after due consideration, even though unnecessary, it need not fall outside the pale of art.111 and according to the Indian Supreme Court its *obiter dicta* should be treated as binding precedent.[7] Even if a considered *obiter dicta* of the Appellate Division be not held binding as a precedent, it is entitled to full weight being the opinion of the highest tribunal of the land.[8]

5.217 The decisions of the Appellate Division are institutional decisions and the decision of the majority is binding as a law. In case of plurality judgment where each Judge gives his own opinion differing on reasons but agreeing on the result, it becomes difficult to draw the

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[1] *Quinn v. Leathem*, [1901] AC 495

[2] *Mata Prasad v. Nageswar*, AIR 1925 PC 272

[3] *Lalkhani v. Malkapur Municipality*, AIR 1970 SC 1002

[4] *India v. Subramaniam*, AIR 1976 SC 2433

[5] *Krisna v. Mathura*, AIR 1982 SC 686

[6] *A.D.M. v. Shukla*, AIR 1976 SC 1207; *Madhav Rao v. India*, AIR 1971 SC 530

[7] *I.T. commissioner v. Vazir Sultan*, AIR 1959 SC 814; see also *Saiyada Mossarrat v. Hindustan Steel Ltd.*, AIR 1989 SC 406

[8] *Income Tax Officer v. Devinath*, AIR 1968 SC 623

common *ratio decidendi* and to point out the 'law' declared. The law declared by the Appellate Division is not binding on the Appellate Division which is empowered by the Constitution to review its own judgments and orders. But it has been found that the power of review under art.105 is an extra-ordinary power to be used sparingly only in the interest of justice.[1] As compared to other decisions, the Appellate Division would more readily review decisions on constitutional issues if it is satisfied that the previous decision is clearly wrong.[2]

5.218 Now the question is whether the laws declared by the Privy Council, Federal Court and the Supreme Court of Pakistan before the liberation of Bangladesh are binding precedents. Because of the then existing constitutional dispensation the statements of law by these courts formed part of the *corpus juris* of this country and were continued as existing laws by virtue of the Laws Continuance Enforcement Order, 1971 and art.149 of the Constitution and are as such binding on the High Court Division and the subordinate courts until the Appellate Division renders any contrary decision.[3] The Indian Supreme Court made a distinction between principles of substantive law and the principles relating to interpretation of statutes and opined that the former were continued by the Constitution but not the latter.[4] The Indian Supreme Court seems to have rightly made the distinction and it is submitted that art.149 of the Constitution should be deemed to have continued the principles of substantive law laid down by earlier Supreme Courts and Privy Council as part of the 'existing law'.

5.219 *Doctrine of Stare Decisis* : The doctrine of *stare decisis* requires that a long-standing decision of the court which has been consistently followed should not be upturned. When a decision has been followed in several cases up to recently, its binding effect should not be disturbed merely on the ground that any particular aspect had not been expressly considered therein.[5] The rationale behind the doctrine is that

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[1] For discussion on stare decisis, see Para 5.219

[2] *Sajjan Singh v. Rajasthan*, AIR 1965 SC 845; *W.B. v. Corp. of Calcutta*, AIR 1967 SC 997

[3] *Ahmed Nazir v. Bangladesh*, 27 DLR 199, 224; *Pritam Singh v. State*, AIR 1950 SC 169; *Bihar v. Abdul Majid*, AIR 1954 SC 245; *Delhi Judicial Service Assn. v. Gujarat*, AIR 1994 SC 2176, 2202

[4] *Superintendent and Legal Remembrancer v. Corporation of Calcutta*, AIR 1967 SC 997

[5] *Mahesh Kumar v. Nagaland*, (1997) 8 SCC 176

many people have shaped their conduct in faith and reliance on such decision. Once construction of a statute of doubtful meaning has been given and that construction has been accepted for a long time, that construction should not be altered unless the court can say positively that it is wrong and productive of inconvenience.[1] As regards the stand of the House of Lords, Halsbury's Laws of England states as follows –

> In general the House of Lords will not overrule a long established course of decisions except in plain cases where serious inconvenience or injustice would follow from perpetuating an erroneous construction or ruling of law. The same considerations do not apply where the decision, although followed, has been frequently questioned and doubted. In such a case it may be overruled by any court of superior jurisdiction. When old authorities are plainly wrong, and especially where the subsequent course of judicial decisions has disclosed weakness in the reasoning on which they were based and practical injustice in the consequences that must flow from them, it is the duty of the House of Lords to overrule them.
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> When, however, some words of doubtful meaning in a statute have received a clear judicial interpretation and the same words are repeated in a subsequent statute, the legislature must be taken to have read them on the second occasion according to the meaning given to them by that interpretation, and it is not then open to a higher court to reverse that interpretation. This is merely a rule of construction for the guidance of the courts; it is not a presumption which the courts are bound to make.[2]

The doctrine, however, cannot control questions involving the construction and interpretation of the constitution or at least the doctrine does not apply with the same force to the decisions on constitutional questions as to other decisions, even though the previous decisions will not be entirely disregarded and may, in case of doubt, control the views of the court.[3] Douglas J of the US Supreme Court explained, "A judge looking at a constitutional decision may have compulsions to revere past history and accept what was once written. But he remembers above all also that it is the Constitution which he swore to support and defend, not

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[1] *Bourne v. Keane*, [1919] AC 815; *Saurashtra Cement v. India*, AIR 2001 SC 8

[2] Fourth Edition, vol 26, Para 581

[3] Corpus Juris Secundum, vol.21, Para 215; *Asma Jilani v. Punjab*, PLD 1972 SC 139; *Sajjan Singh v. Rajasthan*, AIR 1965 SC 845; *S.C. Advocates-on-Record Assn. v. India*, AIR 1994 SC 268

the gloss which his predecessor may have put on it."[1] This doctrine cannot create any obstacle for the Appellate Division which has been given the specific power under art.105 to review its own judgments and orders and the Appellate Division will not hesitate to alter its decision where manifest error or injustice is shown to have been caused by the earlier decision.[2]

5.220 Art.112 provides that all executive and judicial authorities shall act in aid of the Supreme Court. Those authorities must comply and act in accordance with the orders and directions given by either division of the Supreme Court. Thus "no instrument, circular, direction, notification, advice or other instrument of any kind issued by any Ministry or any department of the Government which has the effect of staying, postponing, delaying, thwarting or superseding an order of the Supreme Court is binding on the functionaries of the country."[3]

CONTEMPT OF THE SUPREME COURT

5.221 As in the earlier constitutions, art.108 of the Constitution declares the Supreme Court to be a court of record. Blackstone defined court of record thus -

> A court of Record is that where the acts of judicial proceedings are enrolled in parchment for a perpetual memorial and testimony which rolls are called the Records of Courts and are of such high and super eminent authority that their truth is not to be called in question.

According to him the power to punish for contempt is an inseparable attendant upon every superior tribunal which are all courts of record.[4] The British Parliament's wide power to punish for contempt is supported on the ground of it being treated as a court of record.[5]

5.222 As a court of record both divisions of the Supreme Court have three main characteristics - (1) their proceedings are preserved permanently as records, (2) these records are conclusive evidence of

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[1] Quoted from Henry J. Abraham's The Judicial Process, 1993, p.326

[2] *Sajjan Singh v. Rajasthan*, AIR 1965 SC 845, 855; *S.C. Advocates-on-Record Assn. v. India*, AIR 1994 SC 268, 303,397; see *Bangladesh v. Mizanur Rahman*, 2000 BLD (AD) 212

[3] *Tahera Nargis v. Shamsur Rahman*, 41 DLR 508, 512

[4] see *Moazzem Hossain v. State*, 35 DLR (AD) 290

[5] see *In Re Art.143*, AIR 1965 SC 745

what is recorded in it and (3) they have inherent summary power to punish for contempt of themselves.[1] However, like art.129 of Indian Constitution this article specifically mentioned the power of each division of the Supreme Court to punish for contempt of itself[2] to remove any doubt. The use of the word 'itself' in art.108 makes it clear that each division may deal with contempt of itself and thus the High Court Division has no jurisdiction to deal with contempt for disobedience of the order of the Appellate Division.[3]

5.223 The Pakistan Constitution of 1962 specifically mentioned what would constitute contempt of court, but art.108 omitted it as the law of contempt of court is a *sui generis* highly developed by judicial precedents and needs no codification. Oswald defined contempt of court as follows -

> To speak generally, Contempt of Court may be said to be constituted by any conduct that tends to bring the authority and administration of law into disrespect or disregard, or to interfere with or prejudice parties litigant or their witnesses during the litigation.[4]

This power has been granted not for the protection of the individual Judges from imputations, but for the protection of the public themselves from the mischief they will incur if the authority of the Supreme Court is impaired.[5] "The dignity and authority of the Courts has a link with the supremacy and majesty of law. Any conduct which is calculated to diminish that dignity or authority is a criminal contempt which the Court is under duty to punish."[6] The power of the Supreme Court to punish for its contempt may be regulated by law.[7]

5.224 ***What constitutes contempt of court*** : In the famous case of *St. James's Evening Post* Lord Hardwicke said, "There are three different sorts of contempt. One kind of contempt is scandalising the Court itself.

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[1] *Vinayak Shamrao v. Moreswar Ganesh*, AIR 1944 Nag 44

[2] Contempt of Courts Act, 1926 confers poser on the High Court Division to deal with contempt of subordinate courts.

[3] *M. Hossain v. K.F. Industries*, 36 DLR (AD) 102 (Anxiety to do justice cannot have free play so as to enable the court to overcome the barrier of jurisdiction)

[4] Contempt of Court, 1910, p.6

[5] *Moazzem Hossain v. State*, 35 DLR (AD) 290; *Brahma Prakash v. U.P.*, AIR 1954 SC 10

[6] *Sir Edward Snelson v. Judges, High Court*, 16 DLR (SC) 535, 552

[7] *Dr. Md. Mahiuddin v. Dr. Hasanuzzaman*, 44 DLR 535

There may be likewise a contempt of this Court, in abusing parties who are concerned in causes here. There may be also a contempt of this Court, in prejudicing mankind against persons before the cause is heard. There cannot be anything of greater consequence than to keep the streams of justice clear and pure, that parties may proceed with safety both to themselves and their characters."[1] Since the days of Lord Hardwicke numerous decisions have been given in respect of contempt of court and following all those decisions, contempt of court can be classified into three broad categories - (1) Scandalisation of the court, (2) disobedience to the orders of the court and breach of undertakings given to the court and (3) interference with the due course of justice.

5.225 *Scandalisation of the court:* Insinuations and comments derogatory to the dignity of the court which are calculated to undermine the confidence of the people in the integrity of the Judges constitute contempt. Here a distinction must be made between derogatory comments about a Judge and derogatory comments about the court. As has been said earlier, this power has been granted not for the protection of the individual Judges from imputations, but for the protection of the public themselves. Thus when a vilification of a Judge is made in his individual capacity, it is not contempt, it is actionable as libel or slander. But when the vilification is against a Judge as a Judge it constitutes contempt[2] as in such case the integrity of the court comes into question. For the protection of organised society and maintenance of the rule of law there is necessity of independent and fearless judiciary in which the public will have full confidence as dispenser of justice. A publication which scandalises the court attributing unfitness or inefficiency to the Judges in discharge of their duty is contempt of court.[3] Scandalising and attacking the court in unbecoming language in open court is a gross contempt.[4] Criticism of the decisions or proceedings of the court does not *ipso facto* constitute contempt of court if it is done honestly and fairly without imputing any motive or inefficiency to the Judges.[5] In this

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[1] (1742) 2 Atk. 469, 471

[2] *B. Mishra v. Registrar, Orissa High Court*, (1974) 1 SCC 314; see *State v. Nazrul Islam*, 37 DLR 200 (where scathing language was used about the performance of a judge in discharge of his judicial function)

[3] *Sir Edward Snelson v. Judges of High Court*, 16 DLR (SC) 535; *Dr. Ahmed Hossain v. Shamsul Huq Chowdhury*, 1 BLC 321 (constructive criticism to protect the neutrality and independence of judiciary, no contempt)

[4] *State v. Nazrul Islam*, 37 DLR 200; *In Re Bholanath*, AIR 1961 Pat 1

[5] *Sir Edward Snelson v. Judges, High Court*, 16 DLR (SC) 535

regard the Privy Council observed -

> ... whether the authority and position of an individual Judge or the due administration of justice is concerned, no wrong is committed by any member of the public who exercises the ordinary right of criticising in good faith in private or public the public act done in the seat of justice. The path of criticism is a public way : the wrong-headed are permitted to err therein : provided that members of the public abstain from imputing improper motive to those taking part in the administration of justice, and are genuinely exercising a right of criticism and not acting in malice or attempting to impair the administration of justice, they are immune. Justice is not a cloistered virtue : she must be allowed to suffer the scrutiny and respectful even though outspoken comments of ordinary men.[1]

The observation of the Privy Council is applicable with greater force in Bangladesh in view of the provisions of art.39 guaranteeing freedom of speech and expression.[2] Fair criticism of a judicial work is permissible and fair criticism is that which while criticising the act of a Judge does not impute any ulterior motive to him.[3] In the absence of any imputation of motive or bias, a severe criticism even on incorrect premises was held not to constitute contempt of court.[4] When no improper motive or bad faith was alleged a very harsh comment about the Supreme Court[5] or a comment that the standard of High Court Judges haven fallen due to wining and dining in the parties of lawyers[6] did not constitute contempt of court.

5.226 In 1998 in two days the High Court Division issued Rule and granted interim bail in large number of cases. Some newspapers mentioned this figure to be 1200 which was wrong and actually Rule and bail were given in 155 cases. In a Press conference the Prime Minister quoting the figure of 1200 questioned how it can be given. She

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[1] *Andre Paul Terence Ambard v. A.G. of Trininad & Tobago*, AIR 1936 PC 141 (145)

[2] See the observation of Abdur Rashid J in *Moinul Hosein v. Sheikh Hasina Wazed*, 53 DLR 138, Para 40. It is to be noted that the impugned speech which was held to be contumacious in *Sir Edward Snelson*, 16 DLR (SC) 535, was delivered at a time when there was no fundamental right in Pakistan.

[3] *Padmahashini v. Srinivas*, AIR 2000 SC 68, 70

[4] *R v. Metroplitan Police Commr. Ex p. Blackburn (No.2)*, [1968] 2 QB 150

[5] *P.N. Duda v. P. Shiv Shanker*, AIR 1988 SC 1208; *Moinul Hosein v. Sheikh Hasina Wazed*, 53 DLR 138, per Abdur Rashid J

[6] *Viswanath v. Venkatramaih*, 1990 (2) Cr.L.J. 2179

further said that this was brought to the notice of the Chief Justice and he only changed the Bench; had he investigated the matter and took further steps judiciary would have been relieved of "অনেক দায়দায়িত্ব". Application was made for drawing up contempt proceedings against the Prime Minister. At the instance of the Appellate Division the Attorney General appeared and he was asked to produce a statement from the Prime Minister which he did produce. No argument was heard. The court by an order admonished the Prime Minister.[1] The court was of the view that the Prime Minister ought to have checked the correctness of the figure 1200 and then observed –

> If upon obtaining correct figures, she had felt even then that bail was being granted in too many cases and expressed her opinion accordingly we would have nothing to say because as the Chief Executive she was entitled to have her own views in the matter having regard to the law and order situation which is the concern of the Executive.

In saying this the court did not consider whether the actual figure of 155 was also too many. Grant of bail in criminal cases was again a subject of comment by the Prime Minister in a Press interview where she commented that the accused persons were granted bail as if the courts are haven for the corrupt and criminal offenders. In the application that followed[2], the High Court Division in line with the decision in re *Habibul Islam*, disposed of the matter expressing the wish that the Prime Minister shall be more careful and respectful in making any statement or comment with regard to the Judiciary or the judges. M.M. Hoque J did not go into the question whether the statement of the Prime Minister constituted contempt of court, but Abdur Rashid J found that the Prime Minister making the statement without any ill motive or intention to scandalise the judiciary, her statement did not constitute contempt of court.[3] A Central Law Minister of India in his speech was very critical of the Supreme Court and stated, among other things, that the Supreme Court composed of the element from the elite class had their unconcealed sympathy for the haves and that the anti-social elements, i.e. FERA violators, bride burners and a whole horde of reactionaries have found their haven in the Supreme Court. The Indian Supreme Court considering the speech in proper context found the speech not to constitute contempt of court as there was no imminent danger of

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[1] In re *Habibul Islam Bhuiyan*, 51 DLR (AD) 57

[2] *Moinul Hosein v. Sheikh Hasina Wazed*, 53 DLR 138

[3] Ibid, p.150

interference with the administration of justice, nor of bringing administration of justice into disrepute. The Chief Justice, however, commented, "The Minister perhaps could have achieved his purpose by making his language mild but his facts deadly."[1]

5.227 *Disobedience to the order of court:* Disobedience to the order of the court or breach of the undertaking given to the court is contempt of court.[2] But failure to obey the process of the court does not constitute contempt unless there is a contumacious disregard of the court's order.[3] In order to constitute contempt the disobedience must be deliberate and intentional.[4] Thus when a party to the proceeding was found to have disregarded the order of the court by a series of acts for several months, it was held that the party was guilty of contempt.[5] Participation in a meeting and in the election held in that meeting in violation of the order of injunction was held to be contempt of court.[6]

5.228 *Interference with the due course of justice:* Where interference with the administration of justice is alleged, the court does not proceed unless there is a real prejudice which can be regarded as substantial interference.[7] The test in such cases is whether the publication complained of tended or was calculated to interfere with the course of justice in any substantial or real manner, either by prejudicing a fair trial or by prejudicing the minds of the public against persons concerned as parties in the cause before the cause is finally heard. In determining the effect neither the intention of the printers or authors nor the truth or falsity of the allegations contained in the publication complained of, is of any consequence, for what a court of law is concerned is that it should not permit any one to poison the fountain of justice before it begins to

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[1] *P.N. Duda v. Shiv Shanker*, AIR 1988 SC 1208, 1222

[2] *Kushtia Co-operative v. Mujibur Rahman*, 44 DLR (AD) 219; *Mahbubar Rahman Sikder v. Mujibur Rahman Sikder*, 35 DLR (AD) 203; *Surendra Mohan Saha v. Bangladesh*, 34 DLR 110; *M.A. Faiz v. Bangladesh*, 1978 BSCR 359; *Tahera Nargis v. Shamsur Rahman*, 41 DLR 508; *Badsha Mia v. Abdul Latif*, 43 DLR (AD) 10; *Momtazuddin Ahmed v. Abdur Rashid*, 34 DLR 113; *Southern Fisheries Ranong Corp. v. Kingfisheries Industries Ltd.*,34 DLR 23.

[3] *S.A.M. Iqbal v. State*, 3 BLC (AD) 125

[4] *Bahawal v. State*, 14 DLR (SC) 273; *Sohel Ahmed Chowdhury v. Salahuddin Ayubi*, Cr.A. No.41 of 2000 (Unreported)

[5] *Mahbubur Rahman Sikder v. Mujibur Rahman Sikder*, 35 DLR (AD) 203; *State v. Md. Abdur Rouf*, 37 DLR 188

[6] *M.A. Zahed v. Moinuddin*, 28 DLR (AD) 165.

[7] *Rizan-ul Hasan v. U.P.*, AIR 1953 SC 185

flow.[1] Lawyers and litigants terrorising or intimating Judges to secure favourable orders commit contempt of court.[2] Publication of a petition containing scandalous allegations against the Judges of the High Court filed before the Supreme Court during the pendency of the proceeding before the Supreme Court[3], publication stirring up public feelings against a party to the proceeding on a question pending for decision before the court[4], or any publication having the tendency of prejudicing mankind against one or the other of the parties involved in a proceeding before a court[5], communication with a Judge for the purpose of influencing him on the subject-matter of a case pending before the Judge[6], any attempt by any of the parties to prejudice the court against the other party in the cause, publication expressing opinion on a question of law which is *sub judice*[7], or any action whereby pressure is put on a party to abandon his case pending or about to be initiated[8] amount to contempt of court. In *Vijavai Pratap Singh v. Ajit Prasad*[9] the plaintiff filed a suit for declaration that the elections to the Congress organisational bodies were void due to irregularities and *mala fide* of the Congress election tribunals. The party stalwarts being annoyed got the plaintiff expelled from the party membership and the defendants filed an application for vacating the stay order on the plea that the plaintiff ceased to be a member of the Congress and the stay order was vacated.

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[1] *A.G. of Pakistan v. Abdul Hamid*, 15 DLR (SC) 96

[2] *Chetak Construction Ltd. v. Om Prakash*, (1998) 4 SCC 577 (The court deprecated forum-shopping stating, "A litigant cannot be permitted choice of forum and every attempt at forum-shopping must be crushed with heavy hand".)

[3] *A.G. of Pakistan v. Abdul Hamid*, 15 DLR (SC) 96

[4] Ibid; *M.A. Awal v. Ehtesham Hydar*, 28 DLR 285

[5] *Saadat Khialy v. State*, 15 DLR (SC) 81; *Advocate General v. Shabir Ahmad*, 15 DLR (SC) 355

[6] *Jawand Singh v. Om Prakash*, AIR 1959 Punj 632

[7] *Advocate General v. Shabir Ahmad*, 15 DLR (SC) 355

[8] *M.H. Khandker v. A.W. Qazilbash*, 20 DLR 945 (Petitioner filed a writ petition to compel DIT to take action in respect of his complaint regarding some unauthorised construction by a neighbour and during the pendency of the Rule issued the neighbour caused notice to be issued by DIT for removal of alleged unauthorised construction on the plot of the petitioner. The court observed that the authorities ought to have stayed their hands even after receiving the complaint from the neighbour of the petitioner and found that the action of the authorities and the neighbour constituted contempt of court being a pressure deliberately put on the petitioner to withdraw from the case or to compromise the matter.)

[9] AIR 1966 All 305

The High Court found it to be a direct and clear interference with the judicial proceedings. Sending threatening letters to the opposite party and demanding withdrawal of certain allegations in the pleadings[1], interference with witnesses attending the court by assault or threat[2] or by any other method[3], misrepresentation of the proceedings in the newspaper[4], or anticipation of the judgment of the court that has been reserved[5] or withholding of a petition to the High Court by the jail authority[6] may constitute contempt of court. When one Upazila Nirbahi Officer sat by the side of a munsif-magistrate in the courtroom and told the munsif in presence of advocates and litigants how to conduct criminal cases, the Supreme Court held it to be an unprecedented and unwarranted interference with the administration of justice and punished the contemner with imprisonment.[7] A person publishing information while a proceeding in respect of confidentiality of the information was pending and an interim injunction was issued restraining publication of the information is guilty of contempt of court even though he was not a party to the pending proceeding and there was no order against him, but knew about the order, as the consequence of the publication before the trial was to nullify the purpose of the trial.[8]

5.229 This power of the superior court to play the role of prosecutor and judge is an extraordinary power which is to be sparingly used and only in the interest of the administration of justice[9], but where the public

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[1] *Rajendra Singh v. Uma Prasad*, AIR 1935 All 117

[2] *Roland v. Samuel*, [1847] 9 LJOS 280

[3] *U.P. v. Sheo Bachan Rao*, AIR 1956 Pat 321 (approaching a witness summoned by the court or by the opposite party for the purpose of discussing the evidence which he should give)

[4] *State v. Editor, Pakistan Observer*, 10 DLR 255

[5] *Abdus Salam v. State*, 10 DLR (SC) 176

[6] *Jyotirmoy Bhattacharjee v. Secy. to Govt. of W.B.*, AIR 1952 Cal 562

[7] *State v. Abdul Karim Sarker*, 37 DLR 26 affirmed in *Abdul Karim Sarker v. State*, 38 DLR (AD) 188

[8] *A.G. v. Times Newspaper Ltd*, [1991] 2 All E.R. 398; *Bangladesh Bank v. Zafar Ahmed Chowdhury*, 2001 BLD (AD) 63 (A person who is aware of an order of the court is bound to obey the same even though he was not a party to that when it affects the result of the earlier order)

[9] *In Re S. Mulgaokar*, AIR 1978 SC 727 ("Action for contempt of Court which is discretionary should not be frequently or lightly used ... It may be better in many cases for the Judiciary to adopt magnanimously charitable attitude even when utterly uncharitable and unfair criticism of its operations is made out of *bona fide* concern for improvement.")

interest demands the court will not shrink from punishing the contemner even by way of imprisonment where imposition of fine would be inadequate.[1] This power is necessary not only for the purpose of retaining the confidence of the public in the administration of justice, it is necessary for enforcement of the orders and directions of the Supreme Court because the orders and directions given by the Supreme Court cannot be executed except by way of moving for contempt of court in case of refusal of the executive authorities to comply with the directions given by the Supreme Court.[2]

5.230 The power under this article is a summary power and the court can *suo motu* initiate a contempt proceeding.[3] Normally contempt proceedings are disposed of on affidavits and evidence is taken only when it is absolutely necessary.[4] The burden of proof is on the person who alleges commission of contempt of court and a proceeding under this extraordinary jurisdiction being quasi-judicial the standard of proof required is that of a criminal proceeding.[5]

5.231 Unless the contempt is of a very gross nature, the court is inclined to accept apology from the contemner. Such an apology to be acceptable must be tendered at the earliest opportunity and should be unqualified. However, on some occasions the court accepted the apology even though tendered at the belated stage.[6] In *M.A. Faiz & another v. Bangladesh*[7] the Appellate Division observed -

> Insofar as the expression of apology or tendering of regrets by the appellants are concerned, had they offered such apology before the High Court Division and also tendered regrets for the contempt they had committed, even at a late stage, (though we are not unmindful of the law requiring such apology to be made at the earliest opportunity) there might have been some scope for considering the merit of the submissions of the learned Counsel ... It is true this Court will neither be vindictive and proceed to punish the contemners whom unconditional apology will be offered in the manner permissible under law nor can it afford to be so

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[1] *Roy v. Orissa, AIR 1960 SC 190*

[2] see *M.A. Faiz v. Bangladesh*, 1978 BSCR 359; *Tahera Nargis v. Shamsur Rahman*, 41 DLR 508

[3] *Sir Edward Snelson v. Judges, High Court*, 16 DLR (SC) 535

[4] *Badsha Mia v. Abdul Latif*, 43 DLR (AD) 10

[5] *Mrityunjoy v. Syed Hashibur Rahman*, AIR 2001 SC 1293

[6] *State v. Nazrul Islam*, 37 DLR 200

[7] 1978 BSCR 359, 376 - 377

> generous as to condone the guilt committed by the contemners who instead of offering apology at the earliest opportunity and still persisting in disobeying the orders of the Court, wait till the end and then, finding no way of escape from the punishment, offer such apology.

The Appellate Division laid down certain principles in the matter of acceptance of apology. According to the court, an apology will be acceptable if (1) the contemner appreciated that his act was within the mischief of contempt, (2) he regretted it, (3) his regret was sincere, (4) the apology was accompanied by expression of the resolution never to repeat again and (5) the contemner made humble submission to the authority of the court.[1] It was pointed out -

> Apology is an act of contrition. If tendered it may not be necessarily accepted and the contemner purged of his contempt. When a contemner tenders apology as an act of contrition the Court must weigh that apology tendered by the contemner. If the apology is found to be a real act of contrition, no action need be taken and a word of warning may be enough but if the apology is qualified, hesitant and sought to be used as a device to escape the consequences of the contemner's action it must be rejected.[2]

RULE MAKING POWER OF SUPREME COURT

5.232 Subject to any law made by Parliament, the Supreme Court may with the approval of the President make rules for regulating the practice and procedure of the High Court Division and the Appellate Division and also of the subordinate courts.[3] Being a power conferred by the Constitution, the rules so framed cannot be contrary to any provisions of the Constitution[4] nor be inconsistent with any law made by Parliament.[5] In terms of art.107(2) the Supreme Court may delegate the function of rule making under art.107(1) or art.113 to a division of the court or to any one or more Judges of the court. The Supreme Court in art.107(2) means all the Judges of both the divisions and the delegation to be valid must not be by the Chief Justice or any division of the

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[1] *Abdul Karim v. State*, 38 DLR (AD) 188, 194

[2] *Shamsur Rahman v. Tahera Nargis*, 44 DLR (AD) 237

[3] Art.107

[4] *Prem Chand v. Excise Commissioner*, AIR 1963 SC 996

[5] *Partha Sarathi v. A.P.*, AIR 1966 SC 38

Supreme Court, but by the full Supreme Court. Art.107(3) provides that subject to the rules framed under art.107(1) the Chief Justice shall determine which Judges are to constitute any Bench of a division and which Judges are to sit for any purpose. The Chief Justice may authorise the next most senior Judge of either division to exercise in that division any of the powers conferred by sub-art.(3) or by rules made under art.107.[1]

SUBORDINATE COURTS

5.233 Chapter II of Part VI makes special provisions relating to the subordinate courts. Reading this chapter with the provision of paragraph 6(6) of the Fourth Schedule, the Appellate Division held that the members of the judicial service and the magistrates exercising judicial functions form a class distinct from the members of other services of the Republic and in making rules relating to their appointment and the terms and conditions of service, this distinct entity of the subordinate judiciary has to be borne in mind and the members of judicial service and the magistrates exercising judicial functions cannot be equated or amalgamated with other services of the Republic.[2] The Appellate Division found the naming of the judicial service as B.C.S.(Judicial) and the inclusion of the judicial service under Bangladesh Civil Service (Re-organisation) Order, 1980 as Bangladesh Civil Service (Judicial) *ultra vires* the Constitution. The court held that when the Constitution has given the name 'judicial service', the nomenclature cannot be changed by a subordinate legislation.[3]

5.233A Art.114 provides that there shall be, in addition to the Supreme Court, such courts subordinate to the Supreme Court as may be

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[1] Art.107(4)

[2] *Secretary, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104 (The members of judicial service were given certain benefits which were not given to the members of other services of the Republic and on the representation of the members of the other services certain conditions were tagged with the benefits given to the members of judicial service to bring them at par with the members of other services of the Republic. Imposition of the conditions was found to be without lawful authority. It was held that arts.133 and 136 are applicable to the judicial officers and magistrates exercising judicial functions, but they are to be treated as a class apart from other services of the Republic as a distinct entity, never to be treated alike or merged or amalgamated with any other services, except with a service of allied nature.)

[3] Ibid

established by law. The Civil Courts Act, 1887 provides for subordinate civil courts while the Code of Criminal Procedure makes provision for the courts of magistrates and session judges. Parliament may by law establish additional courts, but art.114 operates as a limitation on the plenary legislative power of Parliament in respect of establishment of new courts. Because of this article Parliament cannot create a court which is not subordinate to the High Court Division, nor can amend the existing laws so as to make the existing courts independent of the Supreme Court.[1] When the High Court Division had no appellate or revisional jurisdiction in respect of matters covered by the Special Powers Act, 1974, the Appellate Division, treating the special tribunal constituted under the Act as a criminal court, upheld the jurisdiction of the High Court Division under s.561A of the Code of Criminal Procedure in respect of the proceedings of the special tribunal referring to the provision of art.114.[2] It is to be seen that the supervisory jurisdiction of the High Court Division is attracted in case of a court or tribunal subordinate to the High Court Division. Art.114 is not attracted in the case of other tribunals. The question is whether Parliament can create a special court giving it the name of a tribunal to avoid the application of arts.114 and 109. It is submitted that such a measure will be treated as a fraud on the Constitution and such a measure has been deprecated and it was found that the High Court Division would have the supervisory jurisdiction under art.109.[3]

5.234 The Constitution as originally adopted provided that the district judges would be appointed by the President on the recommendation of the Supreme Court and all other civil judges and magistrates exercising judicial functions would be appointed by the President in accordance with the rules made by him after consulting the Public Service Commission and the Supreme Court.[4] The control (including the power of posting, promotion and grant of leave) and discipline of the persons employed in the judicial service and magistrates exercising judicial functions vested in the Supreme Court.[5]

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[1] *Shahar Ali v. A.R. Chowdhury*, 32 DLR 142

[2] *Bangladesh v. Shahjahan Siraj*, 32 DLR (AD) 1 (It is submitted that if art.114 was applicable in respect of the Special Tribunal, *a fortiori* art.109 providing for supervisory jurisdiction would be attracted.); see *Shahar Ali v. A.R. Chowdhury*, 32 DLR 142

[3] *Shahar Ali v. A.R. Chowdhury*, 32 DLR 142

[4] Art.115

[5] Art.116

These provisions were in conformity with art.22 which incorporated the fundamental principle of State policy of separation of the judiciary from the executive. Art.22 simply provides that there shall be separate judicial service free from the executive control.[1] But the Fourth Amendment of the Constitution in 1975 pushed the matter in the opposite direction by providing for the control of the subordinate judiciary by the executive. Amended art.115 provides, "Appointment of persons to offices in the judicial service or as magistrates exercising judicial functions shall be made by the President in accordance with rules made by him in this behalf". As a result, the President does not require a recommendation of the Supreme Court for appointment of a district judge, nor is he required to consult the Supreme Court and the Public Service Commission in framing rules in exercise of power under art.115. In *Secretary, Ministry of Finance v. Masdar Hossain*[2] the Appellate Division held that the power of making rules relating to appointment includes the power to make rules relating to suspension and dismissal and this power is distinct from the power of the President under art.133 in that this power is not dependent on the contingency of absence of any law made by Parliament. This being a special provision, it shall prevail over the general provision of art.133 and, in fact, Parliament has no power to make laws relating to appointment, suspension and dismissal of judicial officers and magistrates exercising judicial functions.[3] Even though the judiciary cannot direct Parliament to make laws or the President to make rules[4], the Appellate Division held that it can give direction to Parliament or President to follow the mandate of the Constitution in case of deviation from such mandate. The Appellate Division took note of the provision of paragraph 6(6) of the Fourth Schedule[5] and the actions taken for re-organisation of the services of the Republic and directed the executive to make separate rules under art.115 immediately in respect of appointment, suspension and dismissal of the judicial officers and magistrates exercising judicial functions with a further note that the rules should not be so framed as to affect the President's power of control in consultation with the Supreme Court under art.116.

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[1] *Chandra Mohan v. U.P.*, AIR 1966 SC 1987, 1993

[2] 2000 BLD (AD) 104

[3] Ibid

[4] *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27

[5] Paragraph 6(6) reads, "The provisions of Chapter II of Part VI (which relate to subordinate courts) shall be implemented as soon as practicable ...."

5.234A By the Fourth Amendment, art.116 was amended to vest the control of the subordinate judicial officers and magistrates with the President in place of the Supreme Court and after placing the subordinate judiciary under much greater control of the executive, the Fourth Amendment added a new art.116A declaring, "Subject to the provisions of the Constitution, all persons employed in the judicial service and all magistrates shall be independent in the exercise of their judicial functions." By the Second Proclamation Order No.IV of 1978 art.116 was amended to provide that the President shall exercise control over the subordinate judicial officers and magistrates exercising judicial functions in consultation with the Supreme Court. The consultation with the Supreme Court is mandatory. Therefore, any posting and promotion of, and disciplinary action against, the judicial officers including the district judges and magistrates exercising judicial functions without consultation with the Supreme Court will be void.[1] This consultation is necessary not only when a judicial officer is promoted or transferred to another post in the judicial service, but also when he is promoted or transferred to a post outside the judicial service.[2] A comparison between art.107 and art.116 shows that the Supreme Court as referred to in art.116 means all the Judges of both divisions of the Supreme Court. The consultation under art.116 does not relate to regulation of the practice and procedure of the Supreme Court and as such the function of consultation cannot be delegated to a smaller body of the Judges of the Supreme Court by making rule under art.107 or otherwise. The consultation with the Supreme Court must be a real and effective one[3] and the opinion of the Supreme Court must be given full weight.[4] It is not sufficient that the Supreme Court has given its views in the matter and the government is posted with all the facts. Consultation is not complete or effective before the parties thereto make their respective views known to the other and discuss and examine the relative merits of their views. If one party makes a proposal to the other who has a counter proposal in his mind which is not communicated to the proposer, the direction to give effect to the proposal without anything more, cannot be

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[98] Ibid; *Aftabudin v. Bangladesh*, 48 DLR 1; *Idrisur Rahman v. Bangladesh*, 1999 BLD 291 affirmed in *Bangladesh v. Idrisur Rahman*, 1999 BLD(AD) 291

[2] *Md. Aftabuddin v. Bangladesh*, 48 DLR 1

[3] *Gupta v. J & K*, AIR 1982 SC 1579.

[4] *Hari Dutt v. H.P.*, AIR 1980 SC 1426, 1430

said to have been done after consultation.[1] In the process of consultation, "the end-result shall be the primacy of the views and opinion of the Supreme Court which the Executive shall not disregard, for it is the Supreme Court, not the political executive, which is the best judge of judicial matters and judicial officers."[2]

5.234B Art.116A says that subject to the provisions of the Constitution, all persons employed in the judicial service and all magistrates exercising judicial functions shall be independent in the exercise of their judicial functions. The Appellate Division observed -

> The independence of the judiciary, as affirmed and declared by Articles 94(4) and 116A, is one of the basic pillars of the Constitution and cannot be demolished, whittled down, curtailed or diminished in any manner whatsoever, except under the existing provisions of the constitution. It is true that this independence ... is subject to the provisions of the Constitution, but we find no provision in the constitution which curtails, diminishes or otherwise abridges this independence. Article 115, Article 133 or Article 136 does not give either the Parliament or the President the authority to curtail or diminish the independence of the subordinate judiciary by recourse to subordinate legislation or rules. What cannot be done directly cannot be done indirectly.[3]

What this 'independence' denotes? According to the Appellate Division, the first essential condition of judicial independence is the security of tenure which is ensured by art.135. The second essential condition of judicial independence is the security of salary or other remuneration and, where appropriate, the security of pension. It is desirable that the right to salary and pension of the subordinate judiciary be established by law and there should be no way in which the executive could interfere with that right in a manner to affect the independence of the subordinate court judges.[4] The third essential condition of judicial independence is the institutional independence of the subordinate judiciary especially from Parliament and the executive; it must be free to decide on its own matters of administration bearing directly on the exercise of its judicial

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[1] *Chandramouleswar v. Patna High Court*, AIR 1970 SC 370, 375; *Gupta v. J & K*, AIR 1982 SC 1579

[2] *Secretary, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104

[3] *Secretary, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104

[4] Note may be taken of the provision of art.133 which permits executive to provide for the terms and conditions of service in the absence of any law made by Parliament

functions. The judiciary must be free from actual or apparent interference or dependence upon especially the executive arm of the government. It must be free from powerful non-governmental interference like pressure from corporate giants, business or corporate bodies, pressure groups, media, political pressure etc. The Appellate Division further held that for ensuring independence recruitment to the judicial service should be by a separate judicial service commission with a majority of members from the senior judiciary and with the objective of achieving equality between men and women; judicial vacancies should be advertised and recommendation for appointment on merit should come from the commission. The next essential condition of judicial independence in the special context of Bangladesh is administrative and financial independence. As the High court Division has a controlling and supervisory role and the Supreme court has a consultative role connected with subordinate judiciary, independence of subordinate judiciary requires financial independence of the Supreme court which can be secured if the funds allocated to the Supreme Court in the annual budget are allowed to be disbursed within the limits of sanctioned budget by the Chief Justice without any interference by the executive.[1]

5.234C After examining the provisions of Chapter II of Part VI along with the provisions of Part IX and other provisions of the Constitution in *Secretary, Ministry of Finance v. Masdar Hossain*[2], the Appellate Division summarised its conclusions with directions as follows -

> 1. The judicial service is a service of the Republic within the meaning of art. 152(1), but it is fundamentally and structurally distinct and separate from the civil executive and administrative services of the Republic with which the judicial service cannot be placed on par on any account and it cannot be amalgamated, abolished, replaced, mixed up and tied together with the civil executive and administrative services.
>
> 2. The word "appointments" in art.115 means that it is the President who under art.115 can create and establish a judicial service and also a magistracy exercising judicial functions, make recruitment rules and all pre-appointment rules in that behalf, make rules regulating their suspension and dismissal, but art.115 does not contain any rule-making authority with regard to other terms and conditions of serviced and arts.133 and 136 and the Service (Re-organisation and conditions) Act,

[1] *Secretary, Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104
[2] 2000 BLD (AD) 104

1975 have no application to the above matters in respect of judicial service and magistrates exercising judicial functions.

3. The creation of B.C.S. (Judicial) cadre along with other B.C.S. executive and administrative cadres by Bangladesh Civil Service (Re-organisation) Order, 1980 with the amendment of 1986 is *ultra vires* the Constitution and Bangladesh Civil Service Recruitment Rules, 1981 are inapplicable to the judicial service.

4. The government is directed to take necessary steps forthwith for the President to make rules under art.115 to implement its provisions which is a constitutional mandate and not a mere enabling power. The nomenclature of the judicial service shall follow the constitutional language and shall be designated as the Judicial Service of Bangladesh or Bangladesh Judicial Service. Either by legislation or by executive order having the force of rules a Judicial Services Commission be established forthwith with majority of members from the Senior Judiciary of the Supreme court and the subordinate courts for recruitment to the judicial service on merit with the objective of achieving equality between men and women in the recruitment.

5. Under art.133 law or rules or executive orders having the force of rules relating to posting, promotion, grant of leave, discipline (except suspension and removal), pay, allowances, pension (as a matter of right, not favour) and other terms and conditions of service, consistent with arts.116 and 116A, as interpreted by the appellate Division, be enacted or framed or made separately for the judicial service and magistrates exercising judicial functions keeping in view the constitutional status of such service.

6. The orders impugned in the writ petition imposing conditions are declared to be *ultra vires* the Constitution and the government is directed to establish a separate Judicial Pay Commission forthwith as a part of the rules to be framed under art.115 (*sic*) to review the pay, allowances and other privileges of the judicial service which shall convene at stated intervals to keep the process of review a continued one. The pay etc. of the judicial service shall follow the recommendations of the Commission.

7. In exercising control and discipline of persons employed in the judicial service and magistrates exercising judicial functions under art.116 the views and opinion of the Supreme court shall have primacy over those of the executive.

8. The essential condition of judicial independence in art.116A, elaborated in the judgment, namely, (1) security of tenure, (2) security of salary and other benefits and pension and (3) institutional independence

from Parliament and the executive shall be secured in the law or rules made under art.133 or in the executive orders having the force of rules.

9. The executive government shall not require the Supreme Court of Bangladesh to seek their approval to incur any expenditure on any item from the funds allocated to the Supreme court in the annual budgets, provided the expenditure incurred falls within the limit of the sanctioned budgets, as more fully explained in the body of the judgment. Necessary administrative instructions and financial delegations to ensure compliance with this direction shall be issued by the government to all concerned by 31.5.2000.

10. The members of judicial service are within the jurisdiction of the administrative tribunal.

11. The declaration by the High Court Division that for separation of the subordinate judiciary from the executive no further constitutional amendment is necessary is set aside. If Parliament so wishes, it can amend the Constitution to make the separation more meaningful, pronounced, effective and complete.

12. Until the Judicial Pay Commission gives its first recommendation the salary of judges in the judicial service will continue to be governed by *status quo ante* as on 8.1.1994 vide paragraph 3 of the Order of the same date and also by further directions of the High Court Division in respect of Assistant Judges and Senior Assistant Judges. If pay increases are effected in respect of other services of the Republic before the Judicial Pay Commission gives its first recommendation the members of the judicial service will get increase in pay etc. commensurate with their special status in the constitution and in conformity with the pay etc. that they are presently receiving.

5.234D In *Masdar Hossain* the Appellate Division held that suspension and dismissal of judicial officers and magistrates exercising judicial function should be dealt with in rules framed under art.115 and it logically follows that all other matters relating to discipline would come under the purview of art.133. It seems that the Appellate Division included suspension and dismissal applying the provision of s.16 of the General Clauses Act which provides that the power of appointment includes the power to suspend or dismiss. It is submitted that s.16 of the General Clauses Act deals with the expanse of the executive power conferred in a law and it has no application with regard to any legislative power. If arts. 115 and 116 are read together, it can be seen that the matter of discipline has been dealt with separately from appointment. It is not understood how in the matter of discipline, a composite subject,

suspension and dismissal can be separated from removal and reduction in rank to be dealt with under a different kind of power. Art.135 mentioning dismissal and removal separately, there is no reason to assume that dismissal includes removal. Except for the provision of s.16 of the General Clauses Act, no rationale is apparent from the judgment of the court for the distinction made between dismissal and reduction in rank. If suspension and dismissal are taken to be linked with appointment (the expression used in art.115), why not removal and reduction in rank? Suspension may be necessary in case of removal and reduction in rank as well. In the directions given, the Appellate Division mentioned removal in place of dismissal and even if we assume that the court treated dismissal to include removal, the anomaly stated above is not removed.

5.234E The Appellate Division held that art.140 is not applicable in the case of judicial officers and magistrates exercising judicial functions and has given direction to make law providing for separate Judicial Service Commission. The court having once held that the judicial officers and magistrates exercising judicial function are in the service of the Republic and art.133 is applicable to them in all matters except appointment including suspension and dismissal, it is submitted that the finding that art.140 is not applicable in their case is not correct.

5.234F The Appellate Division directed formation of Judicial Service Commission by legislation or executive order having the force of rules. There is a difference between making of recruitment rules (which is a legislative act) and making selection of candidates applying the recruitment rules (which is an administrative act). Art.137 leaves it to the discretion of Parliament to create by law one or more service commissions and it being a special provision relating to formation of service commissions, art.115 will not be attracted for the very reason art.133 is not attracted in case of recruitment rules for appointment of the judicial officers and magistrates exercising judicial functions. The only way in which a Judicial Service Commission can be created is by law made by Parliament. Irrespective of the question whether separate service commission for subordinate judiciary is to be created by Act of Parliament or rules framed by the President, there is no mandate in the Constitution to create such a separate service commission and hence there is no question of any constitutional deviation necessitating such a direction. In such situation, the Appellate Division, it is submitted, exceeded its powers and violated the principle of separation of powers in directing the creation of separate service commission for the subordinate

judiciary.[1] The government applied for review of this direction, but the prayer for review was rejected by the court stating that the direction to establish another public service commission for judicial and magisterial services in not contrary to any provision of the Constitution and that there is no impediment in the Constitution as to formation of Judicial Public Service Commission.[2] It is submitted that though there is no impediment in the Constitution as to formation of a "Judicial Public Service Commission", it is in the exclusive domain of Parliament to decide whether there should be a provision for a separate Judicial Service Commission. The objection raised related to the competence of the court to give a direction to Parliament or the President to make a law and the Constitution having specifically conferred the power in this regard to Parliament, the direction is contrary to the provision of art.7 and the principles of separation of powers.

5.234G In this case the Appellate Division gave further direction for constitution of Judicial Pay Commission and observed that Pay etc of the members of the Judicial Service shall follow the recommendation of the Pay Commission. True it is that in determining the terms and conditions, Parliament or the President cannot minimise the independence of subordinate judiciary, but such determination is in the exclusive domain of Parliament and the President. Once such determination is made, the court can quash it, if found to be inconsistent with the constitutional mandate. Pay and allowances of the judicial officers and magistrates exercising judicial functions are matters relating to the terms and conditions of their service and are to be governed by art.133 as held by the court. The direction, it is submitted, is open to the same objection relating to the competence of the court to give such a direction. Furthermore, a recommendation is always a recommendation and cannot be made binding on the government. The government sought review of the direction without success.[3]

ADMINISTRATIVE TRIBUNALS

5.235 Art.117(1) empowers Parliament to establish one or more administrative tribunals against whose decisions no writ will lie in view of the provision of art.102(5). Such tribunals may be established to deal

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[1] See Para 1.87A

[2] *Secretary, Ministry of Finance v. Masdar Hossain*, 2001 BLD (AD) 126

[3] Ibid

with matters relating to (a) the terms and conditions of persons in the service of the Republic including matters provided for in Part IX and award of penalties or punishments, (b) the acquisition, administration, management and disposal of any property vested in or managed by the government by or under any law, including the operation and management of, and service in any nationalised enterprise or statutory public authority; and (c) any law mentioned in the First Schedule. Art.117(2) makes the jurisdiction of such a tribunal exclusive[1] and further enacts that Parliament may, by law, provide for appeals from, or review of, the decisions of such tribunals. Pursuant to the provisions of art.117, Parliament passed the Administrative Tribunal Act, 1980 providing for administrative tribunals constituted with district judges to adjudicate upon disputes relating to the terms and conditions of service of persons in the service of the Republic and of some specified bodies. The Act also provides for administrative appellate tribunal constituted with a Chairman and two members. The Chairman must be a person who is or has been or is qualified to be appointed as a Judge of the Supreme Court and of the two members one must be a person who is or has been a member of the service of the Republic not below the rank of joint secretary and the other who is or has been a District Judge.

5.235A Art.117(3) of the Constitution provides that no court shall entertain any proceedings or make any order in respect of any matter falling within the jurisdiction of an administrative tribunal. 'Court' is defined in art.152 to include the Supreme Court and hence the High Court Division cannot entertain any writ petition in respect of any matter falling within the jurisdiction of an administrative tribunal, but the High Court Division sometimes entertain writ petitions in such matters upon a view that the remedy before the administrative tribunal is not efficacious or that in the peculiar facts and circumstances of the cases the writ petitions can be entertained, notwithstanding the availability of

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[1] *Abdul Mannan Talukdar v. HBFC*, 42 DLR (AD) 104; *Junnur Rahman v. BSRS*, 51 DLR (AD) 166; *Bangladesh v. Mohammad Faruque*, 51 DLR (AD) 112 (validity of transfer); *Bangladesh v. Mahbubuddin Ahmed*, 50 DLR (AD) 154 (whether a particular order has become effective is a question which can be decided by the Tribunal); *Mansur Ali v. Janata Bank*, 1991 BLD 23; *Dr. Abdul Lahel Based v. Ministry of Health*, 38 DLR 409; *Ayub Ali v. Bangladesh*, 46 DLR 191; *Serajul Islam Thakur v. Bangladesh*, 46 DLR 318; *Abdul Latif v. Bangladesh*, 43 DLR 446; *Mriganka Prasad v. Ministry of Communication*, 5 BLC 112 (When what is challenged is not the service rule, but administrative interpretation of a service rule, writ petition is not maintainable); *Nurul Islam v. Bangladesh*, 2001 BLD (AD) 562 (Promotion)

efficacious remedy.[1] It is submitted that when the High Court Division has jurisdiction, it refuses to exercise it for non-exhaustion of efficacious remedy provided by law, but in matters in respect of which the jurisdiction is ousted by the Constitution, the question of availability of efficacious remedy is totally irrelevant and as the law now stands, the High court Division cannot entertain any writ petition in respect of any matter relating to the terms and conditions of service of the government servants unless a law is challenged on the ground of violation of the fundamental rights.

5.236 The combined effect of art.102(5) and art.117(2) is that no writ petition is maintainable against the decision of an administrative tribunal and if Parliament would choose not to provide for an appeal, the decision of the administrative tribunal would be final. The Constitution is silent about the administrative appellate tribunal. The question arose in *Mujibur Rahman v. Bangladesh*[2] as to whether a writ petition would be maintainable against the decision of the appellate tribunal. It was urged that the provisions of ss.3 and 5 relating to the composition of the tribunal and the appellate tribunal are *ultra vires* the Constitution. It was contended that the jurisdiction exercisable by the tribunal was being exercised by the High Court Division and from the scheme of the Constitution it was clear that the framers of the Constitution intended that such a tribunal would be equal in status and position with the High Court Division. If any provision is made providing for appeal, it will lie in either division of the Supreme Court. For this reason nothing was said about the appellate forum. During hearing, the Act was amended providing for appeal from the decision of the appellate tribunal to the Appellate Division on leave in terms of art.103(4). The Appellate Division rejected the contention of the appellants. Two concurring judgments were delivered by M.H. Rahman J and M. Kamal J. M.H. Rahman J referred to the majority view in *Hinds v. The Queen*[3] about the necessary implications which are to be made from the subject-matter and structure of the constitution and the circumstances in which it had been made, as also the minority view that though inference may be drawn from the express provisions of the constitution it must not be construed as if it was partly written and partly not. After noting the famous observation of Lord Shankey in *Shell Company of Australia v.*

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[1] *Abdul Awal Munshi v. B.W.D. Board*, 6 BLC 463
[2] 44 DLR (AD) 111
[3] [1976] 1 All E.R. 353

Federal Commr.[1] the learned Judge held that the administrative tribunal exercises the judicial power of the State.[2] He observed that the *non-obstante* clause in art.117 has emancipated the power of Parliament to make the law from any restrictive provisions in Chapter I and II of Part VI and a constitutional enactment conferring legislative powers must be construed in a sense beneficial to the widest possible amplitude. He found –

> There is no command nor any necessary intendment in the Constitution that the Tribunal or the Appellate Tribunal is to be construed as a forum substitute, alternate or co-equal to the High Court Division. The terms and tenure of service of the Judges of the Supreme Court have been expressly provided in chapter I and (sic) Part VI, but no similar provisions are made in the Constitution with regard to the terms and tenure of the persons who will man the tribunals. It is left to the legislature, after establishing the tribunal, to make necessary provisions in this regard for the carrying out of the functions of the tribunals.[3]

As the administrative tribunal is to exercise the judicial power of the Republic and is placed in the Judiciary Part, the learned Judge was impelled to accept the necessary implication that the person presiding over the tribunal must have knowledge of law and skill in adjudication and that there should be an appeal, and he observed -

> There could have been an arguable case of necessary intendment, before the insertion of section 6A by amendment of 1990, that as Chapter III is in Part VI dealing with the exercise of judicial powers of the State the apex court of the country must have the last say in laying down the laws[4]

It has to be noted that the Constitution gave option to Parliament to set up administrative tribunal or not and in the event an administrative tribunal is set up, gave further option to Parliament to provide for appeal or not. In both cases, there is no imperative to construe the word 'may' as 'shall'. It would be perfectly constitutional for Parliament to set up an administrative tribunal without providing for an appeal. Thus the Constitution permitted a situation where the decision of the administrative tribunal could be final.

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[1] [1931] AC 275
[2] 44 DLR (AD) 111, Para 33
[3] 44 DLR (AD) 111, Para 38
[4] Ibid, Para 42

5.237 The learned Judge held that the administrative tribunal can deal with violation of fundamental rights by administrative actions. Even if this power is not taken into consideration, the administrative tribunal in deciding service disputes has to interpret and apply the provisions of the Constitution, particularly, arts.133, 134 and 135. It logically follows that the Constitution permitted the administrative tribunal to finally interpret and apply the provisions of the Constitution. Introduction of s.6A in the Administrative Tribunal Act, 1980 is not a relevant fact in determining the intention of the framers in 1972. Can the framers be ascribed an intention to permit the important task of finally interpreting and applying some of the provisions of the Constitution to be performed by an authority inferior in status and position to the normal authority entrusted to perform the task? If the administrative tribunal cannot be inferior in status and position to the High Court Division, can the framers intend that the appeal shall lie to any authority other than the Appellate Division?

5.238 M. Kamal J concurred with M.H. Rahman J. Referring to the *non-obstante* clause in art.117(1), which, according to him, "applies to all that preceded before in Part VI", the learned Judge observed, "Parliament has been absolved from the duty of setting up a court proper in Chapter III". He relied on the observation of Lord Diplock in *Hinds v. The Queen* to hold that the administrative tribunal does not wield the judicial power of the State as it is a new creation without any express conferment of judicial power on it by the Constitution and consequently, "Parliament has free hand in the selection of persons for manning the Tribunals". Lord Diplock observed -

> As respects the judicature, particularly if it is intended that the previously existing courts shall continue to function, the Constitution itself may even omit any express provision conferring judicial power on the judicature. Nevertheless ... the absence of express words to that effect does not prevent the legislative, executive and the judicial powers of the new state being exercisable by the legislature, by the executive and by the judicature respectively.

Paraphrasing the first sentence of the observation, it comes to this that the Constitution may omit any express provision conferring judicial power on the judicature, particularly if it is intended that the previously existing courts shall continue to function. From this it does not follow that express conferment of judicial power is necessary in the case of a new adjudicative machinery. It is submitted that the question whether

the administrative tribunal has been invested with the judicial power of the Republic has to be answered by examining the nature of judicial power and the power exercisable by the administrative tribunal.

5.239 *Judicial power*: Griffith CJ of the Australian High Court defined 'judicial power' as used in s.71 of the Australian Constitutional Act as "the power which every sovereign must of necessity have to decide controversies between its subjects or between itself and its subjects, whether the rights relate to life, liberty or property."[1] The Privy Council approved this definition as one of the best given.[2] The American Supreme Court defined 'judicial power' as follows -

> Speaking generally, it may be observed that the judicial power of a nation extends to all controversies justiciable in nature, and the parties to which or the property involved in which may be reached by judicial process ...[3]

5.240 The two definitions emphasise the nature of the power and not the nature of the body exercising the power. Whether a power exercised by a body is judicial power or not does not necessarily depend on the nature of the body exercising the power, but on the nature of the power itself.[4] A power exercised by a normal court may not be a judicial power, while a power exercised by a tribunal as distinguished from a court may be a judicial power. As per terms of ss.71 and 72 of the Australian Constitution judicial power cannot be vested in any authority other than a court, the members of which have, in the case of Federal Courts, been appointed in accordance with s.72. Hence the question arose as to the nature of judicial power. We have already noted the definition of judicial power given by Griffith CJ. In *Rola Co. (Australia) Pty. Ltd. v. The Commonwealth* Rich J (dissenting) observed -

> If a person is invested with power, not to create new legal rights or to impose new legal duties or liabilities, but to determine, as between disputants, whether one of them possesses, as against the other, some

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[1] *Huddart Parker Pty Ltd. v. Moorehead*, 8 CLR 330

[2] *Shell Co. v. Federal Commr. of Taxation*, [1930] All E.R. Rep 671, 679

[3] *Kansas v. Colorado*, 206 US 46; *Handlon v. Town of Belleville*, 71 A.2d 624 (Where the administrative tribunal's function partakes of the judicial, its exercise is styled *quasi*-judicial, but it is the exercise of judicial power nonetheless.)

[4] Schwartz - Administrative Law, 1976, p.59 (The power to hear and decide cases is judicial power, whether it be exercised by a court or an administrative agency, such as the Federal Trade Commission.)

> already existing legal right to which he claims to be entitled, or is subject to some already existing liability to the other which the other is claiming against him, then, not only when exercising the power, is he required, amongst other things, to act judicially, but the power itself is judicial power ... On the other hand, if he has no authority to determine the already existing legal rights or liabilities of persons, but is empowered to impose on them new legal duties or liabilities from which they were previously free, or to alter or abrogate legal right to which they were previously entitled, his power is not judicial, although in exercising it he may be, and commonly is, subject to a legal duty to act judicially (that is, to observe the principles of natural justice).[1]

Dr. Wynes started with a definition of judicial power saying, "'Judicial power' may be broadly defined as the power to examine questions submitted for determination with a view to the pronouncement of an authoritative decision as to rights and liabilities of one or more parties."[2] After discussing a number of cases including *Rola (Australia) Pty. Ltd.* he concluded -

> While no inclusive and exclusive definition of "judicial power" can be laid down, generally speaking, the ascertainment of existing rights or liabilities by the judicial determination of issues of fact or law (or both) - i.e., by the application of pre-existing legal standard - is judicial in nature.[3]

In the Indian jurisdiction a question arose whether the State Government deciding an appeal under r.6(6) of the Punjab Welfare Officers Recruitment and Conditions of Service Rules, 1952 (in respect of disciplinary measures) was a tribunal within the meaning of art.136 of the Indian Constitution. Bachawat J (agreeing with Gajendragadkar CJ) observed that "the basic test of a tribunal within the meaning of Art.136 is that it is an adjudicating authority (other than a Court) vested with the judicial power of the State." After considering several decisions of the Indian and Australian jurisdictions, he concluded, "the State Government deciding an appeal under R.6(6) of the Service Rules is vested with the judicial powers of the State, and satisfies the test of a tribunal as contemplated by Art.136 of the Constitution."[4]

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[1] 69 C.L.R. 185, 203-204

[2] Legislative, Executive and Judicial Powers in Australia, 5th ed., p.419

[3] Ibid, p.431

[4] *Associated Cement companies v. Sharma*, AIR 1965 SC 1595, 1610

5.241 Judged in the light of the above definitions and decisions, it is difficult to say that an administrative tribunal set up pursuant to the provisions of art.117 does not exercise the judicial power of the Republic. The administrative tribunal does not create any new right or liability. It adjudicates the rights and liabilities relating to services applying the pre-existing rules laid down by the Constitution, the laws and the rules. Even if these definitions are considered wide in the context of the Bangladesh Constitution, though it is not, it is difficult to say that adjudication of disputes relating to violation of fundamental right by administrative action will not be an exercise of the judicial power. When such adjudicative function is conceded to the administrative tribunal, it is submitted, it cannot be said that it ceases to be a judicial power simply because it is not a pre-existing adjudicative machinery. Apart from the case of violation of fundamental rights, adjudication of disputes relating to terms and conditions of service or penalties or punishments of the members of the service of the Republic will often involve interpretation and application of the provisions of the Constitution, particularly, arts.133, 134 and 135. However narrowly construed, interpretation and application of the provisions of the Constitution will come in the forefront of any enumeration of judicial power. In fact, adjudication of disputes relating to, or arising out of, any of the three items stipulated in art.117(1) will in many, if not all, cases involve exercise of judicial power.[1] The fact that the administrative tribunal exercises judicial power accounts for its placement in the Judiciary Part of the Constitution. It is true that placement of a provision in a particular part of the statute is generally not of much significance in the matter of interpretation.[2] Yet the headings prefixed to a set of sections are regarded as preambles to those sections and though they cannot control the plain words of a statute they can resolve any doubt as

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[1] *Bangladesh v. A.K.M. Zahangir*, 34 DLR (AD) 173, 205 (After holding rightly that the tribunals which are not invested with any part of judicial power of the State, but discharge purely administrative or executive duties, would be outside the ambit of sub-article (5) of Article 102, the court, it is submitted, was wrong in holding that the authority empowered to take disciplinary action under the Police Officers (Special Provisions) Ordinance, 1976 did not perform quasi-judicial function inasmuch as the authority was empowered to determine legal liabilities applying some pre-existing legal rules and thus exercised judicial power. Compare *Associated Companies v. Sharma*, AIR 1965 SC 1595)

[2] See Para 1.64

to any ambiguous words.[1] Even though the different provisions of the Constitution are to be harmoniously interpreted, by treating the administrative tribunal as not part of the Judiciary and at the same time conceding to it the exclusive jurisdiction to decide service disputes involving violation of fundamental rights by administrative action an irreconcilable conflict between art.44 and art.117 has been allowed to surface inasmuch as art.44 permits Parliament to set up any other 'court" (not tribunal) for enforcement of fundamental rights and that too without prejudice to the power of the High Court Division under art.102.

5.242 Conferment of the power of judicial review (which includes interpretation and application of the provisions of the Constitution) on the Supreme Court is a basic feature of the Bangladesh Constitution. Having regard to the scheme of the Constitution in this regard, it is submitted, it is difficult to conceive that the framers of the Constitution intended a body, not co-equal in status and position with at least the High Court Division, to finally interpret and apply the provisions of the Constitution. The very fact that a body has been entrusted with the power of interpreting and applying the provisions of the Constitution with finality leads to the inference that the framers intended that body to be equal in status and position with the body which has undoubtedly been entrusted with the guardianship of the Constitution. Once this conclusion is reached, an appeal from such body can only be to the Appellate Division as it is difficult to conceive that the framers contemplated interpretation and application of some of the constitutional provisions finally by any other body. The provision of art.103(4) lends support to this conclusion and explains why the framers remained silent about the appellate forum. In concluding that Parliament has a relatively free hand in selecting person manning administrative tribunal, M. Kamal J relied on the famous dictum in *R. v. Burah*[2] -

> If what has been done is legislation, within the general scope of the affirmative words which give the power and if it violates no express condition or restriction by which that power is limited ... it is not for any Court of Justice to inquire further or to enlarge constructively those conditions and restrictions.

The learned Judge observed that the soundness of this dictum has not been doubted by the Privy Council in subsequent decisions. H.M.

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[1] Maxwell - The Interpretation of Statutes, 12th Ed., p.11

[2] 4 Cal 172

Seervai, who has also noted that the dictum was not doubted in subsequent decisions[1], commented about it elsewhere in his book -

> First, the word "express" does not exclude what is *necessarily* implied. Secondly, as we have said earlier, though it is not for a court to enlarge constructively the conditions and restrictions contained in the Constitution, the nature of the Constitution may be important on a question of construction. To the illustrations given in para 2.6 may be added the interpretation put by the Privy Council on the constitution of Ceylone in *Liyanage v. R.*[2] That Constitution did not *expressly* vest the judicial power *exclusively* in the judiciary; but, said the Privy Council, that fact was not decisive. The scheme of the constitution, particularly the provisions relating to the judiciary, viewed in the light of the fact that judicial power had always been vested in courts, led the Privy council to hold that the Constitution vested the judicial power *exclusively* in the judiciary.[3]

[1] Constitutional Law of India, 3rd ed., p.69

[2] [1967] AC 259; See also *A.G. for Ontario v. A.G. for Canada*, [1896] AC 348 (the Privy Council refused to go for literal construction having regard to the scheme of the constitution in respect of provincial autonomy)

[3] Constitutional Law of India, 3rd ed., p.2669-70

CHAPTER SIX

ELECTION, SERVICE AND OTHER TOPICS

FRANCHISE AND ELECTION

6.1 Free and fair election is a basic requirement for the success of democracy. Part VII of the Constitution endeavours to provide for such free and fair election. In terms of art.122 elections to Parliament shall be on the basis of adult franchise. For the purpose of election to Parliament any citizen of Bangladesh of not less than eighteen years of age shall be entitled to be enrolled on the electoral roll for a constituency if he is or is deemed by law to be a resident of that constituency and does not stand declared by a competent court to be of unsound mind.[1] To accord equality in the matter of franchise, it is provided that there shall be one single electoral roll for each constituency and no special electoral roll shall be prepared so as to classify the electors according to religion, race, caste or sex.[2]

6.2 *Election of the President:* Art.123(1) provides that in the case of a vacancy in the office of the President by the expiration of his term of office an election shall be held within the period of 90 to 60 days prior to the date of expiration of the term, but if the term expires before the dissolution of the Parliament by the members of which he was elected, the election shall be held within 30 days of the first sitting of Parliament after the next general election. After the Thirteenth Amendment, often the term of the President may expire during the period a care-taker government is functioning. Though this situation is not dealt with in the Constitution, the proviso to art.123(1) has to be applied as there is no Parliament at the time of such expiration of the presidential term to hold the election. In the case of a vacancy in the office of President by reason of the death, resignation or removal of the President, an election to fill the vacancy shall be held within 90 days of the occurrence of the vacancy.[3]

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[1] *Ali Reza Khan v. Election Commission*, 50 DLR 58 (Permanent resident of Bangladesh reaching the age of 18 years, though temporarily residing in U.K. is entitled to be registered as voter)

[2] Art.121

[3] Art.123(2)

6.3 *Election of members of Parliament:* Originally art.123(3) provided that the general election in case of dissolution of Parliament on the expiration of the term should be held within the period of 90 days preceding such dissolution and in case of earlier dissolution, within 90 days after such dissolution and in the former case the members of Parliament elected would not assume office until the expiration of the term of the old Parliament. After the Constitution (Thirteenth Amendment) Act, 1996 was passed, the amended art.123(3) provides that a general election of members of Parliament shall be held within 90 days after Parliament is dissolved or stands dissolved on expiration of its term. In case of vacancy in the seat of a member of Parliament occurring not as a result of the dissolution of Parliament an election to fill the vacancy shall be held within 90 days of the occurrence of the vacancy. But if the Chief Election Commissioner is of the opinion that because of an act of God it is not possible to hold the election within the stipulated period of 90 days it shall be held within the next 90 days. Placement of the Proviso to art.123(4) clearly indicates that this discretion of the Chief Election Commissioner to defer the election because of act of God is available only in the case of a bye-election when the seat of a member of Parliament falls vacant otherwise than by dissolution of Parliament. The framers of the Constitution having act of God in their contemplation and consciously not making any provision to meet such contingency in case of the general election, it must be held that the holding of the general election cannot be deferred beyond the period stipulated in art.123(3).

6.4 Art.124 provides that subject to the provisions of the Constitution, Parliament may by law provide for all matters relating to or in connection with elections to Parliament including the delimitation of constituencies, the preparation of the electoral rolls and the holding of elections. Art.125(a) bars any action in any court challenging the validity of any law relating to the delimitation of constituencies, or the allotment of seats to such constituencies, made or purporting to be made under art.124, and art.125(b) bars any action in any court questioning the election to the office of President or to Parliament except by an election petition as may be provided by law by Parliament. Thus except in case of *coram non judice* (in case the law is passed without the requisite quorum which was pointed out) or violation of any provision of the Constitution, a law made under art.124 cannot be challenged in any court. The election process starts from the notification issued by the Election Commission declaring the election schedule and culminates in

the declaration of the result by gazette notification[1] and no step in the electoral process of the presidential or parliamentary election can be challenged in a suit or in the writ jurisdiction except on a very limited ground of *coram non judice* or malice in law and when an election is completed, that election can only be challenged by filing an election petition and not by filing a suit or a writ petition; but once the election tribunal decides an election petition, its decision can be challenged before the High Court Division in the writ jurisdiction.[2] The Appellate Division observed that the High Court Division should not entertain any writ petition against an interlocutory order passed by the election tribunal.[3] Indirect election for the reserved seats for women in Parliament was challenged as undemocratic and violative of art.121 and art.28 of the Constitution, but the Appellate Division rejected the contention.[4]

6.4A In *Mahboobuddin Ahmed v. Bangladesh*[5] Dr. Ehtesham was the successful candidate in the parliamentary election from a constituency and the petitioner filed election petition. During the pendency of the election petition, Dr. Ehtesham died and the Election Commission published the election schedule for holding bye-election in terms of art.123(4) which requires holding of the election within 90 days from the date the seat falls vacant. The petitioner contended that until the election petition is disposed of there is no vacancy necessitating bye-election and that holding of the bye-election would prejudice his election petition. It was argued that art.125 starting with a *non-obstante* clause and providing for election petition for settlement of an election dispute, art. 123, which requires holding of bye-election within 90 days of the seat becoming vacant, cannot prejudice the election petition provided in art.125. The court rejected the contention that there is no vacancy in the seat as long as the election dispute is pending. The court held that the provision of art.123 is mandatory and the bye-election was to be held within the time stipulated. The provisions of art.123 and 125 operate in

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[1] *Mahmudul Haque v. Md. Hedayetullah*, 48 DLR (AD) 128; *Mayeedul Islam v. Election Commission*, 1996 BLD (AD) 204

[2] *Pannuswami v. Returning Officer*, AIR 1952 SC 64; *Durga Shankar v. Raghuraj*, AIR 1954 SC 520; *Hari Vishnu Kamath v. Ahmad Ishaque*, AIR 1955 SC 233; *Indrajit Barua v. Election Commission*, AIR 1986 SC 103; *Election Commission v. Shivaji*, AIR 1988 SC 61; *Krisna Ballabh v. S.D.O.*, AIR 1985 SC 1746; see para 6.8

[3] *Nazemuddin v. Election Tribunal*, 53 DLR (AD) 17

[4] *Dr. Ahmed Hossain v. Bangladesh*, 44 DLR (AD) 109

[5] 50 DLR 417

different fields and *non-obstante* clause is not operative unless there is a conflict. The bye-election has to be held. There may be conflict between the two provisions only if the election petition is allowed and the petitioner is declared elected and in that event the declaration in the election petition will prevail over the result of the bye-election because of the *non-obstante* clause.

ELECTION COMMISSION

6.5 Art.118 provides for an Election Commission consisting of a Chief Election Commissioner and such number of Election Commissioners as the President may direct. When the Election Commission consists of more than one person, the Chief Election Commissioner shall act as the Chairman of the Commission. The Chief Election Commissioner and other Election Commissioners shall, subject to the provisions of any law made in this regard, be appointed by the President for a term of five years from the date of entering the office. They are to take oath as prescribed in the Third Schedule before entering upon their office to preserve, protect and defend the Constitution.

6.6 To ensure free, fair and impartial elections, the Constitution declares that the Election Commission shall be independent in the exercise of its functions and be subject only to the Constitution and any other law. Though the conditions of service of the Election Commissioners are to be determined by the President, in order to maintain their independence and freedom from political and executive influence, it is provided that they can be removed only on the grounds and in the manner a Judge of the Supreme Court may be removed.[1] Their remuneration, privileges and other terms and conditions of service shall not be varied to their disadvantage during their term of office.[2] They are to take oath of office in terms of art.148. To ensure their independence and neutrality it has been further provided that a person holding the office of Chief Election Commissioner shall not be eligible for appointment in the service of the Republic and a person holding the office of Election Commissioner can be appointed as the Chief Election Commissioner, but shall not be eligible for appointment in the service of the Republic.[3]

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[1] Art.118(5)
[2] Art.147(2); see Para 6.59B
[3] Art.118(3)

6.7 *Functions of Election Commission:* The Constitution vests the superintendence, direction and control of the preparation of the electoral rolls for the presidential and parliamentary elections and conduct of such elections in the Election Commission. The Commission is required to hold the presidential and parliamentary elections, delimit the constituencies of parliamentary elections and to prepare electoral rolls for the presidential and parliamentary elections in accordance with the Constitution and any law passed by Parliament in this regard.[1] Election is a long, elaborate and complicated process which starts with the notification for holding the elections and ends with the declaration of the result of polling in the manner prescribed by law.[2] The Commission has to supervise, control and direct each and every step of the process to ensure free and fair election and the Commission must be deemed to have all the power and discretion to ensure free and fair election as that is the manifest intendment of the Constitution in providing for the Commission.[3] Parliament may by law regulate the exercise of the power by the Commission, but such a law has to be in conformity with the Constitution and it cannot in any way curtail or diminish the effectiveness of the Commission in holding free and fair elections. In exercise of the power the Commission has two limitations - it must act in conformity with the Constitution and the laws validly made by Parliament and like all other functionaries of the Republic it must not act arbitrarily.

6.7A The Election Commission is a composite body and perform its functions as such. The Chief Election Commissioner, on his own, has only the discretion to postpone the holding of any bye-election under the proviso to art.123(4) of the Constitution if he is of the opinion that it is not possible to hold the election within the specified period of ninety days for reasons of an act of God. Art.4 of the Representation of the People Order, 1972 provides that the Commission may authorise its Chairman or any of its members or any of its officers to exercise and perform all or any of its powers and functions under the Order. Thus the Chief Election Commissioner or any Election Commissioner or any officer of the Election Commission cannot perform any of the functions of the Commission unless he is so authorised by the Commission. The

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[1] Art.119(1)

[2] *Shah Alam v. Mujibul Haq*, 41 DLR (AD) 68; *Mohinder Singh v. Chief Election Commissioner*, AIR 1978 SC 851

[3] *Afzal Hossain v. Chief Election Commr.*, 45 DLR 255

Chief Election Commissioner, being ill and going abroad, authorised an Election Commissioner to act as the Acting Chief Election Commissioner and the Election Commissioner decided a dispute relating to the allocation of election symbol. The Appellate Division held the decision to be *corum non judice* as in the absence of authorisation by the Commission, the Election Commissioner was not competent to decide the dispute.[1] There is no provision for an Acting Chief Election Commissioner either in the Constitution or in the Representation of the People Order, 1972. Question arises as to whether the decision of the Commission in any matter has to be unanimous. The Indian Supreme Court answered in the negative stating that unless otherwise required by law, the decision of a multi-member body may be a decision of the majority members.[2]

6.8 The language of art.324 of the Indian Constitution is substantially the same as the language of art.119(1) of the Constitution. In a parliamentary election because of disturbance in some polling stations towards the end of the counting the Commission ordered re-poll, and the candidate who was on a definite winning trail challenged the power of the Commission to order re-poll. The Indian Supreme Court upon consideration of art.324 of the constitution together with ss.58 and 64A of the Representation of the People Act found that the Commission had the responsibility of ensuring free and fair election and had the discretion to order re-poll.[3] The same question arose in the Union Parishad elections and the High Court Division denied that power to the Commission. Those cases came up before the Appellate Division which heard them analogously.[4] Rule 70 of the Union Parishad Election Rules was the same as art.91 of Representation of the People Order, 1972 (except where the context otherwise required) and it ran as follows -

> 70. Powers of the Election Commission to issue orders. - Save as otherwise provided, the election Commission may issue such instructions and exercise such powers, including the power to review an order passed by any officer under these rules and make such consequential orders as may, in its opinion, be necessary for ensuring

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[1] *Jatiya Party v. Election Commission*, 2001 BLD (AD) 10; *Anwar Hossain v. Election Commission*, 2001 BLD 546

[2] *T.N. Seshan v. India*, (1995) 4 SCC 611; *Election Commission v. Dr. Subramanian*, AIR 1996 SC 1810

[3] *Mohinder Singh v. Chief Election Commissioner*, AIR 1978 SC 851

[4] *Shah Alam v. Mujibul Haq*, 41 DLR (AD) 68

> that an election is conducted honestly, justly and fairly and in accordance with the provisions of the Ordinance and these rules.

The respondents contended that the Commission could not order re-poll where the Presiding Officer or the Returning Officer performing functions under the rules reported peaceful holding of the election. The Appellate Division reached the same conclusion as reached by the Indian Supreme Court holding that the Commission had the power to order re-poll. The jurisdiction under art.102 to challenge any step in the process of the election including any order of the Commission under rule 70 can be exercised only on the limited ground of *coram non judice* or malice in law.[1] By the parity of reasoning what has been decided in respect of the Union Parishad election is fully applicable in respect of the parliamentary election.[2]

6.9 The provisions of art.119(1) are confined to the election of the President and the members of Parliament. However, the Commission may be entrusted with the power and duty of conducting other elections by law made by Parliament in the exercise of power given under art.119(2). Even though art.119(2) does not speak of the supervisory power of the Commission, the Constitution does not envisage anything else than free and fair election and any law which stifles the hand of the Commission in ensuring free and fair election will not pass the test of constitutionality. It is for this reason that the Appellate Division conceded the inherent power of the Commission to ensure free and fair election in the local government bodies even when r.68 of the Upazila Parishad (Election Rules) (same as r.70 quoted above) was omitted.[3] Later in *Altaf Hossain v. Abul Kashem*[4] the Appellate Division took the view that the inherent power is to be exercised to supplement the statutory rules (and, of course, the Constitution and the law made by

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[1] Ibid; *Zaker Hossain v. Abdur Rahim*, 42 DLR (AD) 153 *Abdul Matin v. Election Commr.*, 45 DLR 220 (the Court will not interfere in interlocutory proceeding unless there is flagrant violation of the law or the Constitution); *Alhaj Jamshed Ali v. Abdullah*, 2000 BLD (AD) 189 (when the election process is still on the High Court Division ought not to have interfered with the matter on a disputed and controversial fact and resolved them on mere affidavits); *Mozibur Rahman Manzu v. Abdul Halim*, 2001 BLD (AD) 109

[2] *Mayeedul Islam v. Election Commission*, 1996 BLD (AD) 204; *Mahmudul Haque v. Md. Hedayetullah*, 48 DLR (AD) 128; *Jatiya Party v. Mutassim Billa*, 2000 BLD (AD) 69

[3] *Abdur Rouf v. Fazlur Rahman*, 43 DLR (AD) 23

[4] 45 DLR (AD) 53

Parliament) with the sole purpose of ensuring free and fair elections. The court observed -

> This power is to be exercised with utmost restraint, for frequent use of it is likely to render other statutory functionaries ineffective. It is rather difficult to draw a line of demarcation of the field where this should be exercised and where should not. But from the experience it is found that sometimes statutory functionaries on the spot do not make timely report as to any disturbance during poll or large-scale rigging at the time of counting of ballot papers either through coercion or from dishonest motive. So, the general rule that when the election has been held peacefully and no report has been made about any disturbance or rigging by the Presiding Officer or the Returning Officer, then the Election Commission has no power to interfere, cannot be taken for universal application.[1]

The Appellate Division rightly enunciated the principle, but can it be said that the principle has been correctly applied in the specific cases in *Altaf Hossain*? According to the decision in *Shah Alam* the High Court Division can interfere with the decision of the Commission when it is *coram non judice* or vitiated by malice in law. In judging whether a decision is vitiated by malice in law, the court does not consider the adequacy of the materials but examines whether it is arbitrary. In the first case the Commission acted on consideration of the allegation received, the inquiry report of the Nirbahi Officer and the fact that a high number of votes was cast in favour of only one candidate. It cannot be said to be a case of no materials. In the second case the Commission acted on several facts - 30 votes were cast in the name of dead persons, 58 votes were cast in the name of absentee voters, 98% votes were cast and 99% of the votes cast went in favour of one candidate. Any one of these facts considered in isolation may not raise any presumption of unfairness or rigging. But if the Commission acted on all these facts taken together, the Commission may not be held to have acted arbitrarily. It is submitted that the treatment of the specific cases in *Altaf Hossain* has watered down the principle laid down in *Shah Alam*. In *Abul Bashar v. Kamrul Hasan*[2], the Appellate Division upheld the interference of the Election Commission on the basis of the report of disturbance by the Deputy Election Commissioner even though the Returning Officer and the District Election Officer in separate inquiries

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[1] *Followed in Abdul Quader Farazi v. Chief Election Commr.*, 50 DLR 636

[2] 3 BLC (AD) 229

reported that the election was peaceful. Finally, the Appellate Division came out with a clear statement about the inherent power of the Election Commission in *Noor Hossain v. Nazrul Islam*[1] -

> Time and again this Division held that it is the responsibility of the election Commission to see that the election is conducted justly, honestly and fairly and not to encourage demonstration of muscle power in the election. This Division also observed that post-election allegations are to be decided by the Election Tribunal and not by the Election Commission. We cannot but reiterate that if there was contemporaneous report of allegations about disturbance, rigging of ballot papers or election not being held justly, honestly and fairly then after being satisfied about the correctness of the report or allegations Election commission would be justified to cancel the result of the election and direct repoll. But it would not be justified to cancel the result of the election held peacefully on the basis of post-election allegations.

6.10 Under art.66(4) the Commission is to hear and decide a dispute as to whether a member of Parliament has, after his election, become subject to any of the disqualification mentioned in art.66(2), or as to whether a member should vacate his seat because he resigned from the party which nominated him as a candidate or he voted in Parliament against that party.

6.11 Art.126 requires all executive authorities to assist the Election Commission in the discharge of its functions.

COMPTROLLER AND AUDITOR-GENERAL

6.12 The office of Comptroller and Auditor-General is a constitutional office of considerable importance. On him is cast the duty of maintaining, compiling and checking the accounts of the Republic and also of such public statutory bodies as may be prescribed by an Act of Parliament.[2] With the approval of the President he has to prescribe the form and the manner in which the public accounts shall be kept.[3]

6.13 Every year Parliament appropriates specific sums for specific works and services. It is the duty of the Comptroller and Auditor-

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[1] 2000 BLD (AD) 174, 180
[2] Art.128
[3] Art.131

General to examine and ensure that the administration does not exceed the approved sum and has spent the money for the works and services for which it was approved by Parliament. He is responsible for having all the receipts and expenditures audited and he is to examine whether the money spent were legally available for and applicable to the works and services for which it has been spent. He has to see that the expenditures have been made by the authorities competent under the law to make it and that all the legal rules and formalities governing such expenditures have been complied with. In the absence of all these checks parliamentary authorisation will lose its meaning and it will be impossible for Parliament to have effective control over the finance. The Comptroller and Auditor-General has to satisfy himself on behalf of Parliament as to the wisdom, faithfulness and economy of the expenditures. He thus performs the useful job of preventing waste of public fund. He can disallow any expenditure which is in violation of the Constitution and the laws and thereby he upholds the Constitution and the laws in the financial sector of the administration.

6.14 The nature of the job demands independence of the office and integrity of the holder of the office. Accordingly, he is appointed by the President and subject to the provisions of the Constitution and any law made by Parliament, the conditions of his service is determined by the President.[1] He has to take the prescribed oath before assuming his office.[2] In order to maintain his independence and immunity from interference of the executive, art.1473 provides that his remuneration, privileges and other terms and conditions of service cannot, during his term of office, be varied to his disadvantage. He cannot be removed from his office except in the manner a Judge of the Supreme Court may be removed. He may resign from his office. He is to retire on attaining the age of sixty years and on retirement he shall not be eligible for further office in the service of the Republic.[4] The administrative expenses of his office including all remuneration payable to him and to the persons serving in his office, are charged on the Consolidated Fund of the Republic.[5] He has to prepare annual report relating to public account which shall have to be submitted to the President and the

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[1] Art.127
[2] Art.148 read with Third Schedule
[3] See Para 6.59B
[4] Art.129
[5] Art.88

President shall cause such report to be laid before Parliament.[1] If at any time the office of the Auditor-general is vacant or the President is satisfied that the Auditor-General is unable to perform his functions due to absence, illness or any other cause, the President may appoint another person to act as the Auditor-General until another Auditor-General is appointed or, as the case may be, the Auditor-General resumes his office.[2]

SERVICES OF THE REPUBLIC

6.15 The political executives formulate the policies of the government and supervise the enforcement of the laws and the policies. They hold the constitutional posts. The actual work of enforcing the laws and the policies of the government is done by persons who are the members of the services of the Republic and give continuity to the executive government. Part IX of the Constitution deals with the services of the Republic. Art.152 defines "service of the Republic" to mean "any service, post or office whether in a civil or military capacity in respect of the Government of Bangladesh, and any other service declared by law to be a service of the Republic." The expression 'Government' does not refer to the executive government only. It has been used in the generic sense to cover all departments of the Government of Bangladesh and the judicial officers and magistrates exercising judicial functions fall within the definition of the service of the Republic.[3] However, judicial officers and magistrates exercising judicial functions have been given a distinct status under Chapter II of Part VI of the Constitution.[4]

6.16 In order to understand the nature of different services one has to understand the different tenures of service which can generally be classified into four types - (1) tenure during good behaviour, (2) tenure during pleasure, (3) tenure under contract and (4) tenure under statute. Holders of tenure during good behaviour cannot be removed from office during good behaviour and their dismissal can only be for cause and hence notice is to be given on a definite charge which has to be proved. The Constitution has provided such a tenure for the Judges of the

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[1] Art.132

[2] Art.130

[3] *Secy. Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104

[4] See the discussion on Subordinate Courts in para 5.233 to 5.234C

Supreme Court, the Comptroller and Auditor-General, the Chief Election Commissioner and the Election Commissioners, the Chairman and members of the Public Service Commission and their terms of office have been determined by the Constitution. The holders of tenure during pleasure are subject to dismissal at any time without any cause being assigned. Under the English common law all Crown servants hold their office during the pleasure of the Crown. "Except where statute provides otherwise, all civil servants hold office in law at the pleasure of the Crown. This means that a civil servant may in law be dismissed at pleasure and has no common law remedy for wrongful dismissal, even when he has been promised employment for a stated period of years."[1] The incidents of tenure of the holder of tenure under contract are as provided in the contract subject to the provisions of the Constitution and other legal limitations, if any, such as appointment by specific agreement as provided by art.135(4). The incidents of tenure of the holders of tenure under statutes such as the employees of Universities and statutory corporations are as provided in the statutes.

6.16A The services of the Republic do not include the constitutional posts[2], nor any service under any statutory corporation[3] and the provisions of Part IX are not applicable in respect of such posts and services. The most significant feature of the services of the Republic is that the members of those services hold office during the pleasure of the President and the members who hold civil posts enjoy the protection of art.135. An administrator of abandoned property appointed under P.O. 16 of 1972 is not a person in the service of the Republic.[4] The fact that certain service benefits enjoyed by the government servants have been made available to the bank employees does not confer upon them the status of government servants.[5]

6.17 The posts and offices in the services of the Republic may be

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[1] Wade & Bradley - Constitutional and Administrative Law, 10th Ed., p.275

[2] *Abu Bakr Siddiqui v. Mr. Justice Shahabuddin*, 49 DLR 1

[3] *B.S.I.C. v. Mahbub Hossain*, 29 DLR (SC) 41; *Jamuna Oil Co. v. S.K. Dey*, 44 DLR (AD) 104; *Bangladesh Bank v. Abdul Mannan*, 46 DLR (AD) 1; *Md. Lutful Kabir v. Senior Asstt. Secy*, 29 DLR 45; *Chowdhury Md. Yusuf v. Bangladesh Biman*, 31 DLR 199; *Hamidur Rahman v. E. Pakistan*, 21
DLR 866; *East Pakistan v. Md. Atiqullah*, 21 DLR 764 (School Board's employees do not become government servants because of supersession of the Board by the government)

[4] *Sheikh Abdur Rashid v. Bangladesh*, 29 DLR 362

[5] *Bangladesh v. Md. Alauddin*, 38 DLR (AD) 81

broadly classified as civil posts and military posts. Parliament shall by law provide for regulating, raising and maintaining the defence services and their reserves, the grant of commissions therein, the appointment of chiefs of staff and their salaries and allowances and the discipline and other matters relating those services and reserves.[1] The President may, however, by framing rules make provisions in Prespect of these matters if no provision has been made by law.[2] The appointments and conditions of service of persons holding military posts are principally regulated by law[3]. The terms and conditions of service of the holders of the civil posts, except those for which specific provisions have been made in the Constitution, are to be regulated by the provisions of art.133.

6.18 ***Doctrine of pleasure:*** Art.134 provides that every person in the services of the Republic shall hold office during the pleasure of the President and thus recognises the English common law rule which means that the tenure of office of a servant of the Republic can be terminated at any time without assigning any reason and any clause or condition in a contract of employment which purports to take away or fetter the doctrine of pleasure would be void. In England Parliament may by law curtail the pleasure of the Crown. Art.133 enables Parliament to make laws providing the terms and conditions of the services of the Republic and the President to make rules therefor in the absence of a law made by Parliament. But this power being subject to the provisions of the Constitution and the doctrine of pleasure having been incorporated by art.134, no law or rule under art.133 can be made curtailing or fettering the pleasure of the President.[4] Yet art.134 starts with the qualifying expression "Except as otherwise provided by this Constitution". So far as the holders of civil posts are concerned art.135 limits the operation of the doctrine of pleasure. Hence the English doctrine has been enlarged in one direction and restricted in another; while Parliament has no power to deprive the President of his pleasure, the said pleasure is made subject to two limitations embodied in art.135.[5] The pleasure of the President is still there, but it has to be exercised in accordance with the requirement of art.135[6] and subject to

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[1] Art.62 Art.62

[2] Art.62(2)

[3] Army Act, 1952, Navy Ordinance, 1962 and Air Force Act, 1953.

[4] *India v. Tulsiram*, AIR 1985 SC 1416; *Satyavir v. India*, AIR 1986 SC 555

[5] *Moti Ram v. N.E.F. Railways*, AIR 1964 SC 600,

[6] *Bangladesh v. A.K.M. Zahangir*, 34 DLR (AD) 173; *Dr. Nurul Islam v. Bangladesh*, 33 DLR (AD) 201; *Serajul Islam Thakur v. Bangladesh*, 46 DLR 318

fundamental rights.[1] Art.135 is not applicable in respect of the holders of military posts[2] who have restricted fundamental rights[3] and the doctrine of pleasure is applicable in their case with greater force. Unlike the civil servants, the military servant's tenure (continuance in service) depends on the pleasure of the President and he does not have any legal remedy against removal from service.[4] However, the writ jurisdiction may be attracted if the exercise of pleasure by the President is found to be *mala fide.*[5]

6.18A The language 'hold office' as also the marginal note "tenure of office" in art.134 leave no doubt that the doctrine of pleasure is applicable only in respect of tenure of service and does not relate to everything connected with the service.[6] The doctrine of pleasure has no application in respect of those terms and conditions of service which do not relate to tenure of, or continuance in, service. In *Major (Retd) Hafizur Rahman v. Bangladesh*[7] the writ petitioner challenged an order which denied his vested right to the status and financial benefits of an officiating Judge Advocate General. The High Court Division dismissed the writ petition upon a view that the writ petitioner being a military servant was within the mischief of the doctrine of pleasure and had no right in respect of his service which could be enforced by a court. It is submitted that the High Court Division was wrong in applying the doctrine in respect of the terms and conditions which had nothing to do with the tenure of service. A military servant cannot complain about the curtailment of the tenure of service, but so long he is in the service of the Republic he can enforce the terms and conditions of service which do not relate to his tenure of service. While remaining in service, the terms and conditions of service of a military servant are governed by the laws enacted pursuant to art.62 of the Constitution. The view taken in *Hafizur Rahman* has been upheld by the Appellate Division in *S.M. Reza v.*

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[1] *Dinesh Chandra v. Assam*, AIR 1978 SC 17;

[2] *Rear Admiral Mustafa v. Bangladesh*, 45 DLR 395 (affirmed by the Appellate Division in 46 DLR (AD) 43); *Major Hafizur Rahman v. Bangladesh*, 29 DLR 34

[3] Art.45

[4] *Rear Admiral Mustafa v. Bangladesh*, 46 DLR (AD) 43 affirming High Court Division's decision reported in 46 DLR 395; *Abu Saleh Md. Nasim v. Bangladesh*, 1998 BLD (AD) 251; *Maj. Gen. Moinul Hossain v. Bangladesh*, 3 BLC 136

[5] *Rear Admiral A A Mustafa v. Bangladesh*, 51 DLR (AD) 146

[6] *Malleshappa Hanamappa v. Mysore*, AIR 1961 Mys 88

[7] 29 DLR 34; *Serajul Islam Thakur v. Bangladesh*, 46 DLR 318

Secy. Mistry of Defence[1]. It is submitted that the Appellate Division endorsed the view in *Hafizur Rahman* without properly examining the expanse of art.134.

6.18B The relationship of the civil servants with the government is one more of status than of contract and the hall-mark of status is the attachment to a legal relationship of rights and duties imposed by public law.[2] The government may unilaterally alter the terms and conditions of service by making rules and the power of making rules cannot be affected by any agreement.[3]

6.19 ***Law or rule to regulate conditions of service:*** Art.133 provides that Parliament may by law regulate the appointment and conditions of service of the persons in the service of the Republic and until provisions are made by such law, the President may make rules in this regard and such rules shall have effect subject to any such law. Under art.136 provisions may be made by law for reorganisation of the services of the Republic by creation, amalgamation or unification of the services and such a law may vary or revoke any condition of service of any person in the service of the Republic.[4] In exercising the power under art.136, however, neither Parliament nor the government can amalgamate the subordinate judiciary with other services of the Republic.[5] Art.133 starts with the expression 'Subject to the provisions of the Constitution' which, when properly construed, means that art.133 will have application subject to any specific provision made in the Constitution. Arts.62, 79, 113, and 115 incorporate those specific provisions. Cases covered by these articles fall outside the purview of art.133. Art.62 relates to defence services.[6] Under art.79 Parliament may by law and, in the absence of any such law, the President, in consultation with the Speaker, may by rules regulate the terms and conditions of service of persons appointed to the secretariat of Parliament. Under art.113 appointments to the staff of the Supreme Court shall be made by the

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[1] 3 BLC (AD) 80

[2] *Dr. Nurul Islam v. Bangladesh*, 1981 BLD (AD) 140; *Roshan Lal v. India*, AIR 1967 SC 1889

[3] *Sankaranarayana v. Kerala*, AIR 1971 SC 1997

[4] *Bangladesh v. Md. Azizur Rahman*, 1982 BLD (AD) 176 (Notification introducing New National Grade cannot be questioned on the ground of variation or revocation of the terms of service as it was made under an Act passed pursuant to art.136)

[5] See Para 5.233

[6] See para 6.17

Chief Justice, or any Judge or officer of that court as the Chief Justice may direct, in accordance with rules made by the Supreme Court with the prior approval of the President, and subject to the provisions of any Act of Parliament the conditions of their service shall be such as prescribed by the rules made by the Supreme Court. Art.115 provides that the President shall by rules regulate the appoint of the members of judicial service and magistrates exercising judicial functions. This power of the President is plenary and is not conditional upon the absence of any Act of Parliament and Parliament cannot legislate on the subjects covered by art.115.[1] The Appellate Division ruled that art.115 covers not only pre-appointment matters but also suspension and dismissal of the judicial officers and magistrates exercising judicial functions. Thus the matters relating to recruitment of the members of the judicial service and magistrates exercising judicial functions and their suspension and dismissal are outside the purview of art.133. However, once the members of judicial service and the magistrates exercising judicial functions are appointed, other terms and conditions of their service are to be governed by law or rules made pursuant to art.133, but any law or rules made by Parliament or the President under art.133 must be consistent with the provisions of arts.116 and 116A of the Constitution.[2]

6.19A Paragraph 10(1) of the Fourth Schedule provides that any person who immediately before the commencement of the Constitution was in the service of the Republic shall continue in that service on the same terms and conditions as were applicable to him before such commencement and paragraph 10(2) provides that the provisions of paragraph 10(1) shall not prevent the making of any law varying or revoking the conditions of service of persons continuing in the service of the Republic under paragraph 10(1). In *Zainul Abedin v. Bangladesh*[3] it was observed in the majority judgment that any law made under paragraph 10(2) may be prospective and retrospective. It is submitted that the observation is not correct in that paragraph 10(2) does not confer any separate power to make law. As the provisions of the Fourth Schedule are to take effect notwithstanding any of the provisions of the Constitution[4] and as paragraph 10(1) continued the service of persons who were in the service of the Republic prior to the commencement of

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[1] *Secy. Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104

[2] Ibid; see para 5.233 to 5.234C

[3] 1981 BLD 453 = 34 DLR 77

[4] See art.150

the Constitution on the same terms and conditions, it could have been contended that the terms and conditions of service of those persons were not subject to variation or revocation. The provision of paragraph 10(2)(b) has been made not to confer any power of making law but to forestall any such contention. In *Dr. Nurul Islam v. Bangladesh*[1] Munim J made certain observations from which it may appear that paragraph 10(2)(b) of the Fourth Schedule conferred a power to make law in respect of persons whose services were continued under paragraph 10(1), but it can be found on a close reading that his lordship was not considering the source of power, but was repelling the argument of the government that because of the provisions of art.150 variation of terms and conditions of service of persons covered by paragraph 10 of the Fourth Schedule were not subject to the provisions of Part III relating to fundamental rights.

6.20 The question arises whether the law or rules made under art.133 can retrospectively operate to vary the terms and conditions of the service. Art.309 of the Indian Constitution is substantially the same as art.133. The Indian Supreme Court held that any rule made under art.309 can be both prospective and retrospective[2], but the rules must not be inconsistent with the fundamental rights guaranteed by the Constitution and if a rule with retrospective operation purports to take away the vested rights and are arbitrary and not reasonable, it will be subject to scrutiny under art.14 and 16.[3] Art.136 provides that law for the re-organisation of the services of the Republic may vary or revoke any condition of service of a person employed in the service of the Republic. But no such provision has been made in art.133. The above provision of art.136 would be unnecessary if the law or rules made under art.133 could operate retrospectively to vary or revoke the conditions of service of employees already employed. Properly construed, variation or revocation of the conditions of service of the existing employees is permissible only by a law made under art.136.

6.21 Art.133 is an enabling provision and it does not make it obligatory for Parliament to make laws or for the President to make rules[4] and it cannot be said that no person can be appointed to a post so

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[1] 33 DLR (AD) 201

[2] *B.S. Bhadera v. India*, AIR 1969 SC 118; *J & K v. T.N. Khosa*, AIR 1974 SC 1; *Mustain Billah v. Bangladesh*, 2000 BLD (AD) 1

[3] *P.D. Aggarwal v. U.P.*, AIR 1987 SC 1676

[4] *Bangladesh v.. Shafiuddin Ahmed*, 50 DLR (AD) 27

long rules in that behalf are not made.[1] Art.133 conferring legislative power, the court cannot direct Parliament or the President to make any law or rules under art.133.[2] However, if in making law or rules, Parliament or the executive makes any constitutional deviation, the higher judiciary is within its jurisdiction to give directions to bring back Parliament or the executive from constitutional derailment.[3] Once laws or rules are made they cannot be changed by administrative order made in exercise of the executive power and an administrative order contrary to the rules shall be void.[4] It may, however, be seen that administrative instructions issued by an authority competent to make or amend rules are sometimes treated as rules.[5] Administrative instructions which have the precision of rules and are general in nature in their application to any particular service or services may have the force of law.[6] But executive orders even though issued by a Secretary to the government cannot have the effect of rules.[7] There is, however, nothing to prevent the government to issue administrative orders or instructions in matters in respect of which the rules are silent.[8] In the absence of any statutory rules regulating promotion to selection posts the government is competent to issue administrative instruction.[9] In the same way, appointment and seniority may be regulated by executive instructions in the absence of any rule.[10] But by administrative instruction, the

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[1] Ibid; *Ramesh v. Bihar*, AIR 1978 SC 327

[2] *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27

[3] *Secy. Ministry of Finance v. Masdar Hossain*, 2000 BLD (AD) 104; see Para 1.87A

[4] *Nagarajan v. Karnataka*, AIR 1979 SC 1676

[5] *West Pakistan v. Din Mohammad*, PLD 1964 SC 21

[6] *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27; *Pakistan v. Abdul Hamid*, 13 DLR (SC) 100; *Md. Naseem v. Azra Feroze Bakth*, PLD 1968 SC 37

[7] *West Pakistan v. Nasir Khan*, PLD 1965 SC 106

[8] *Nagarajan v. Mysore*, AIR 1966 SC 1942

[9] *Lalit Mohan v. India*, AIR 1972 SC 995; *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27 (The court observed, "We see no reason why in our country as well the void created by the absence of law and rules under Article 133 cannot be filled up by executive power under Article 55(2) expressed to be taken in the name of the President." (p.38) The court, however, found fault with a notification delegating to the Ministry of Establishment the functions of formulating policies and principles in respect of promotion/appointment to specified posts. The court observed, "The said Ministry may be the proper Ministry to assist the President in the formulation of principles under the Rules of Business, but cannot itself be the final authority in these fields." P.37)

[10] *Mathur v. India*, AIR 1999 SC 129

government cannot add to the qualifications prescribed by rules.[1] There were a number of rules existing at the time of commencement of the Constitution. By virtue of the provision of art.149 read with the definition of 'law' in art.152 (1) those rules are applicable.[2] A rule made under art.133 cannot be given retrospective effect to affect a vested right. When at the time of making promotion the basis of promotion was seniority-cum-merit and the petitioner complained of denial of his right to be considered for promotion, his asserted right cannot be defeated by a subsequent change of rule making the promotion post a selection post.[3] All rules framed under art.133 are not enforceable. There may be certain rules which are directory in nature and those rules may not be enforceable in legal proceedings.[4] There are certain rules which confer a discretion on the administration as distinguished from a duty and those rules will not be enforceable.[5]

6.22 *Protection against arbitrary dismissal etc.:* Art.135 provides for certain protections to the holders of civil posts in the service of the Republic in respect of dismissal, removal or reduction in rank. Here the expression "civil post" has to be understood as post in contra-distinction to military post. The protection of art.135 is not available to the holders of military posts[6] or to any one who is not in the service of the Republic.[7] Thus the protection is not available to the employees of statutory corporations.[8] Merely because an institution decides to apply the rules applicable to the government servants, the provisions of this article will not be applicable to its employees who are not members of the service of the Republic.[9] The holders of civil post are not disentitled

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[1] *Haryana v. Shamser Jang*, AIR 1972 SC 1546

[2] see also s.24 of the General Clauses Act, 1897 which is applicable by virtue of art.152(2)

[3] *India v. Balakrisnan*, AIR 1975 SC 1498

[4] *UP v. Babu Ram*, AIR 1961 SC 751

[5] *M.P. v. Mandawar*, AIR 1954 SC 493

[6] *Major Hafizur Rahman v. Bangladesh*, 29 DLR 34; *Pakistan v. Md. Ayub Khan*, 17 DLR (SC) 504; *Ghaira Hayet v. Pakistan*, 12 DLR (SC) 271 (employee of Ordnance Depot is not a holder of civil post); *Serajul Islam Thakur v. Bangladesh*, 46 DLR 318 (civilian employees in the defence services, not being members of defence services, are holders of civil post); see also *Ishaquddin v. Commandant, Bogra Cantt.*, 51 DLR (AD) 144; *Abdul Latif v. Bangladesh*, 43 DLR 446

[7] *Faiz Ahmed v. Registrar Co-operative Societies*, 14 DLR (SC) 183 (employee of Co-operative Bank); *Bangladesh Bank v. Abdul Mannan*, 46 DLR (AD) 1

[8] *B.S.I.C. v. Mahbub Hossain*, 29 DLR (AD) 41

[9] *Bangladesh v. Md. Alauddin*, 38 DLR (AD) 81

to the protection simply because the functions of the post are connected with the defence.[1] Though the police service falls within the category of disciplined force, its members do not hold post in the service of the Republic in military capacity and they are entitled to the protection of this article.[2]

6.23 Under art.135(1), a holder of a civil post shall not be dismissed, removed or reduced in rank by an authority subordinate to that by which he was appointed. Art.135(2) provides that no such action shall be taken against him until he has been given a reasonable opportunity of showing cause against the proposed action unless -

(i) the action is being taken on the ground of conduct which has led to his conviction of a criminal offence;

(ii) the authority empowered to take action is satisfied that, for reasons to be recorded in writing, it is not reasonably practicable to give that opportunity; or

(iii) the President is satisfied that in the interest of the security of the State it is not expedient to give him such opportunity.

6.24 In order to understand the applicability of art.135 it is necessary to go back to the history. When reforms were introduced in 1919 the British Government took steps to incorporate rules for safeguarding the security of service to its servants in India. By s.45 of the Government of India Act, 1919 read with Part I of the Second Schedule to that Act, several sections, including s.96B were introduced in the Government of India Act, 1915. S.96B for the first time gave statutory recognition to the English common law doctrine of pleasure and at the same time imposed an important qualification in the exercise of the Crown's pleasure, namely, that a servant might not be dismissed by an authority subordinate to that by which he was appointed. Again under that section the power of the Crown to dismiss the government servants at pleasure was made "subject to the provisions of the Act, and the Rules made thereunder". Sub-sec.(4) of s.96B validated and continued the then existing rules and sub-sec.(2) gave power to the Secretary of State for India in Council to make rules for regulating the classification of the civil service in India, and the method of their recruitment, conditions of service, pay, allowances, discipline and conduct. In exercise of the power under s.96B(2) the first batch of rules were framed in 1920 which with subsequent modifications were known as the Civil Service

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[1] *Pakistan v. S.A.H. Bokhari*, 13 DLR (SC) 349

[2] *Bangladesh v. A.K.M. Zahangir Hossain*, 34 DLR (AD) 173

(Classification, Control and Appeal) Rules, 1930. These rules provided several punishments which could be inflicted for good and sufficient reasons on a civil servant. R.49 provided for seven types of punishment including dismissal, removal from service and reduction in rank and added an explanation stating, "The discharge - (a) of a person appointed on probation, during the period of probation, (b) of a person appointed otherwise than under contract to hold a temporary appointment, on the expiration of the period of the appointment, (c) of a person engaged under contract, in accordance with the terms of his contract, does not amount to dismissal or removal within the meaning of this rule." R.55 provided detailed provisions for initiating disciplinary actions against the servants of the Crown and thus s.96B and the rules made thereunder made careful provisions against arbitrary termination of service. However, great deal of controversy arose as regards justiciability and binding nature of the protection contained in s.96B and the rules made thereunder. The Privy Council in *Venkata Rao v. Secretary of State*[1] decided that the rules made under s.96B should no doubt be treated as a solemn assurance that the right of the Crown to terminate the services of the servants at pleasure could not be exercised arbitrarily, but this assurance could not give rise to a contract between the Crown and the civil servant with scope for relief in a court of law in the event of breach thereof. The rules had no statutory force as they could be changed from time to time and hence did not limit the powers of the Crown or the State to dismiss their servants at pleasure. In case of breach of the rules, the remedy of the civil servant "was not by a law suit but by an appeal of an official or of a political kind". However, the Privy Council took a different view regarding the restriction inserted in the Act itself, i.e., the protection against dismissal by an authority subordinate to one who appointed the civil servant. S.96(c) provided, "no person in that service (civil service of the Crown) may be dismissed by an authority subordinate to that by which he was appointed". The Privy Council held that this statutory safeguard had legal effect and could be legally enforced.[2]

6.25 In 1935 the British Parliament passed the Government of India Act, 1935. S.240(1) of the Act incorporated the doctrine of pleasure. S.240(2) provided that a civil servant could not be dismissed or reduced in rank by an authority subordinate to the authority which gave the

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[1] AIR 1937 PC 31

[2] *Rangachari v. Secretary of State*, AIR 1937 PC 27

appointment and s.240(3) provided that no civil servant would be dismissed or reduced in rank without reasonable notice and proof of the charge of misconduct. S.240(4) made provision for contract employment. Having regard to the provisions of s.240 of the Act, the Federal Court decided that a servant of the Crown wrongfully dismissed could sue for arrears of salary.[1] One I.M. Lall brought a suit challenging the validity of an order of the Secretary of State removing him from service. The Privy Council held that the provisions of s.240(3), no longer resting on a rule alterable from time to time, are mandatory. The civil servant must be given sufficient opportunity to show cause at two stages of the inquiry, the first when the charges were enquired into and the second when after the inquiry the authority had come to its conclusion on the charges and the question arose as to the proper punishment to be awarded. If the statutory provision is not complied with, the dismissal of the civil servant would be wrongful for which he can get a declaration in court that the purported dismissal was inoperative.[2] But without noticing the Federal Court decision in *Tara Chand*[3] and relying on a Scottish case, *Mulvena v. The Admiralty*[4], the Privy Council held that a civil servant cannot maintain a suit against the Crown for the recovery of arrears of salary. On the basis of *I.M. Lall* the courts were treating the salary of a civil servant as a bounty of the State as a corollary of the doctrine of pleasure, but in a well-reasoned judgment in *Pakistan v. A.V. Isaacs*[5] the Pakistan Supreme Court held, "a civil servant has and always had the right to recover from the Crown salary already accrued due to him, in spite of the fact that he held service during the pleasure of the Crown. The theory of the bounty of the State never applied either in England or in pre-independence India as regards arrears of pay."

6.26 *Meaning of dismissal, removal:* Where the termination of service is stated to be by way of penalty for misconduct, negligence etc., there is no doubt that art.135 will be attracted and such a termination not complying with the terms of art.135 will be void irrespective of the question whether the appointment is permanent, temporary, officiating or probationary.[6] But where the termination of service does not indicate

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[1] *Province of Punjab v. Tara Chand*, AIR 1947 FC 23
[2] *High Commissioner for India v. I.M. Lall*, AIR 1948 PC 121
[3] AIR 1947 FC 23
[4] 1926 SC 842
[5] 22 DLR (SC) 371, Para 61; *Executive Engr. v. Mohammad Ali*, 41 DLR (AD) 64
[6] *Pakistan v. Mrs. A.V. Isaacs*, 9 DLR (SC) 16, Para 11; *Noorul Hassan v. Pakistan*, 9

that it is a disciplinary action or where the termination order has been passed in terms of a clause in the service agreement or in the service rules providing that the employee's services can be terminated after giving notice of a stipulated period and without assigning any reason, the question arises whether the termination amounts to dismissal or removal from service within the meaning of art.135.

6.27 In *Noorul Hassan v. Pakistan*[1] several police officers of subordinate rank were holding temporary employment of indefinite duration and one of the terms of their service was that their service could be terminated at any time by serving one month's notice. Their services were terminated by giving the stipulated notice. The question arose whether they were entitled to the protection of s.240(3) of the Government of India Act, 1935. It was contended on behalf of the government that termination of employment of a temporary employee in terms of his employment did not amount to dismissal or removal from service within the meaning of s.240(3). The Pakistan Supreme Court negativing the contention held that the Act did not make any distinction between temporary and permanent appointment and termination of service of a temporary employee of indefinite duration constituted removal from service and was void for not complying with the provisions of s.240(3) of the Act. A reading of the opinion of Munir CJ shows that his Lordship was treating all termination or discharge except in the situations mentioned in the explanation to rule 49 of the Civil Service (Classification, Control and Appeal) Rules, 1930 to be dismissal within the meaning of s.240(3) read with s.277.[2]

6.28 In 1950 the Indian Constitution came into operation. The provisions of ss.240(1), 240(2) and 240(3) were substantially incorporated as arts.310(1), 311(1) and 311(2) of the Indian Constitution. One P.L. Dhingra, a permanent railway employee in a lower grade, was appointed to officiate in a higher grade. His confidential report being adverse, he was reverted to his lower substantive grade. The question arose whether the action amounted to reduction in rank within the meaning of art.311(2). In going to answer the question, the Indian Supreme Court dealt with the meaning of `dismissal', `removal' and `reduction in rank' in art.311(2). The majority

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DLR (SC) 47, Para 25; *Dhirendra Nath Sarker v. Bangladesh*, 31 DLR 151; *Syed Abul Mansoor v. East Pakistan*, 28 DLR 337 (probationer)

[1] 9 DLR (SC) 47

[2] Ibid, Para 25 and 29

of the Judges held that these expressions had acquired technical meaning when the Government of India Act, 1935 was passed by the British Parliament which used these expressions in s.240 of the Act in the technical sense these were used in the then existing service rules. It was held that these expressions in art.311(2) represented three major penalties contemplated by the relevant service rules and so it was only when the challenged action partook the character of one or the other of these punishments that art.311(2) could be invoked; in order to attract the provision of art.311(2), the dismissal, removal or reduction in rank must be by way of punishment. The court held that it was only in those cases where the government intended to inflict any of the three forms of punishment, that the government servant must be given a reasonable opportunity of showing cause against the proposed action. Thus "any and every termination of service is not a dismissal, removal or reduction in rank. A termination of service brought about by the exercise of a contractual right is not *per se* dismissal, removal or reduction in rank ... In short, if the termination of service is founded on the right flowing from contract or the service rules then *prima facie* the termination is not a punishment and carries with it no evil consequence and so art.311 is not attracted."[1] It, therefore, follows that art.311(2) will not be attracted if a permanent employee is discharged by issuing notice in terms of a contract or the rules.[2] According to the court, the form of the order is not conclusive. The provisions of art.311(2) will be attracted even in a case of simple discharge, if any of the two tests is satisfied, namely, (1) whether the government servant had, but for the order of termination, the right to hold the post and (2) whether he has been visited with evil consequences. Bose J in his dissenting judgment observed -

> I do not think that the gist of the matter is either the form of the action or the procedure followed; nor do I think it is relevant to determine what operated in the mind of a particular officer. The real hurt does not lie in any of those things but in the consequences that follow and, in my judgment, the protection of Art.311 are not against harsh words but against hard blows. It is the effect of the order alone that matters; and in my judgment, Art.311 applies whenever any substantial evil follows over and above a purely "contractual one". I do not think that the Article can be evaded by saying in a set of rules that a particular consequence is

[1] *P.L. Dhingra v. India*, AIR 1958 SC 36.

[2] In *Motiram Deka v. N.E.F. Railway*, AIR 1964 SC 600, a larger Bench of the Court held to the contrary, but did not overrule *Dhigra* on this point.

not a punishment or that a particular kind of action is not intended to operate as a penalty.

6.29 In *Ghulam Sarwar v. Pakistan*[1] the appellant, a permanent employee of the Pakistan Western Railway for long years, challenged the termination of his service by a notice purportedly given under a clause of his service agreement on the ground of violation of section 240(3) of the Government of India Act, 1935. The respondent placed strong reliance on *Dhingra* and contended that the termination was effected in terms of the service agreement and as such it did not amount to dismissal within the meaning of s.240(3). In view of the importance of the case, a larger Bench with seven Judges was constituted. The Pakistan Supreme Court failed to agree with the majority view in *Dhingra* and found the termination violative s.240(3) of the Government of India Act, 1935. The court noted that s.240(3) did not make a distinction between permanent or temporary employees, nor gave an indication that it would be attracted only if the challenged action is by way of punishment. The section intended to give security of tenure to the civil servants against arbitrary termination of service and any termination of service whether by way of punishment or in exercise of a right under a contract amounted to dismissal from service within the meaning of that section. The majority of the Judges held that the expression 'dismissal' which included 'removal' by virtue of s.277 had not been used in any special or technical sense, but in the general sense of meaning separation from office and was not confined to cover only the three types of punishment mentioned in r.49 of the Civil Service (Classification, control and Appeal) Rules, 1930. Kaikaus J observed that the three cases mentioned in the explanation to rule 49 did not include any case of removal even in the ordinary sense and the discharge as envisaged in the explanation to r.49 did not affect the security of tenure of an employee. The Government of India Act, 1935 being a constitutional Act, any provision of any rule or contract providing for discharge of an employee by giving notice of a stipulated period so as to avoid compliance with the provisions of s.240 was void. The court felt that to hold otherwise would mean that s.240(3) was applicable only to cases where the termination was in consequence of a charge of misconduct or inefficiency and thus while a misbehaving or inefficient employee could demand proof of misconduct or inefficiency, innocent employees would be liable to removal at will without any inquiry.

[1] PLD 1962 SC 142

Hamoodur Rahman J, though held that the expressions 'dismissal' and 'removal' had not been used in the Act in any general sense, arrived at the same conclusion that a provision in any rule or contract providing for termination of service of a permanent employee simply by serving 14 days' notice would be void being in conflict with s.240. He held a temporary employment for indefinite duration to be a non-temporary employment and found support for this proposition from r.9(30) of the Fundamental Rules which defined temporary post as "a post carrying a definite rate of pay sanctioned for a limited time". According to him, a provision in the rules or contract which purport to put an end to the service of a non-temporary employee without giving him the protection guaranteed to him under the provisions of s.240 must to that extent be held to be void and inoperative. He then concluded -

> Thus after excluding these void provisions the position, to my mind, would be that under the rules of service governing a non-temporary servant, his service cannot be put to an end except by way of dismissal or removal or discharge in cases where the post is abolished or he being a person appointed on probation is discharged during the period of probation, or being a temporary employee has either completed the term of his employment or has been given a notice of the period stipulated for in the contract, if any, entered into by him or prescribed under the rules, or the establishment is reduced, or he has failed to conform to the requisite standards of physical fitness or has failed to qualify in certain duties or subjects under the conditions of his service.[1]

Subsequently, in *Abdul Majid Sheikh v. Mushaffe Ahmed*[2] the Pakistan Supreme Court held the termination of a temporary employment of indefinite duration under a clause of service agreement providing for termination with notice of 14 days void for not complying with the requirement of notice and hearing. Cornelius CJ overruled the objection that the employee being a temporary employee was not entitled to the protection under art.177 in view of the provisions of art.179 of the Pakistan Constitution, 1962 on the ground that the employee continued in the service on the same terms he held the office at the commencement

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[1] Ibid, p.201-202

[2] 17 DLR (SC) 63 (This decision seems to run counter to the decision in *Pakistan v. Abdul Ghani*, PLD 1964 SC 68, but it should be noted that in *Ghani*, the employee did not plead protection of s.240(3) of the Government of India Act and was not allowed to press it before the Supreme Court); see also *Naseem Jahan Naim v. General Manager*, PLD 1968 SC 112

of the Constitution of 1962 and one such term was the protection of art.181 of the Constitution of 1956 which like, the Government of India Act, 1935, did not make any distinction between temporary and permanent employee.

6.30 It is submitted that the majority in *Ghulam Sarwar* was not right in giving the expressions 'dismissal' and 'removal' the ordinary and general meaning. It cannot be said that the meaning of these expressions is unequivocal so that there was no necessity to consider the context in which these expressions were used. These expressions were used in a restricted sense in the service rules which were in operation for quite some time and in the absence of any contra indication, it is reasonable to hold that the British Parliament used the expressions in the sense used in the service rules. It is true that the rules cannot control the meaning of the constitutional language. But they can provide the context. Hamoodur Rahman J rightly pointed out that if the expression 'dismissal' was used in the ordinary sense, there was no necessity to enlarge its meaning to include 'removal' by s.277. But the difference is not material as even if the context, that is, the then existing rules, is taken into consideration it will be found that the explanation to r.49 of the Civil Service (Classification, Control and Appeal) Rules, 1930 declared that discharge of an employee would not amount to removal in the three specified cases from which it logically followed that discharge of employees in other cases would amount to removal. Thus discharge of a temporary employee before the expiry of his fixed period of employment would amount to removal. The last case mentioned in the explanation meant special contract (reference to which was made in s.240(4) of the Government of India Act, 1935) between the government and the employee, otherwise there was no necessity of mentioning the second case as every employment involves a contract between the government and the employee.

6.31 S.240 of the Government of India Act, 1935 did not mention anything about temporary or permanent employment. S.241(2), which made provision for framing of rules of service, included a proviso to the effect that rules regulating the conditions of service of persons employed temporarily on condition that their employment may be terminated on one month's notice or less need not be made. From this it can be said that an employment with such a condition was permissible under that Act and was not inconsistent with s.240(3). The protections of s.240(2) and (3) of the Government of India Act, 1935 were incorporated in art.181 of the Pakistan Constitution of 1956 and art.182, making

provision for law and rules regarding recruitment and conditions of service, contained a proviso similar to the proviso to s.241(2) of the Act of 1935. The Pakistan Constitution of 1962 substantially incorporated the provisions of art.181 of the earlier constitution in art.177 and specifically by art.179 excluded the temporary employees from the protection of art.177. But the Constitution has not maintained any difference between permanent and temporary employment either in the matter of making rules under art.133 or in the matter of protection under art.135. Having regard to the history of this provision and the trend of the decisions in Pakistan and Bangladesh, it can be said that the protection will not be available only in the three cases mentioned in the explanation to rule 49 of the Civil Service (Classification, Control and Appeal) Rules, 1930.[1] As such the protection of art.135 is available to a permanent employment[2] or a temporary employment of indefinite duration irrespective of the question of punishment[3] or when the service of a temporary employee appointed on fixed term is terminated before the expiry of the term[4]. Termination of service of an employee, who was appointed subject to verification of character and antecedents, on failure of the condition does not amount to dismissal or removal within the meaning of art.135.[5] A probationer has no tenure at all and as such the question of the security of his tenure does not arise. Again art.135 is not attracted when a temporary employment is terminated at the end of the period for which employment was given as the tenure came to an end and the question of security of the tenure cannot arise. But if it appears that the employment of a probationer or of a temporary employee for fixed term is, in fact, sought to be terminated for misconduct or inefficiency, though not expressed in the order of termination, notice and hearing under art.135 will have to be given as he is being visited with a punishment or stigma.[6] Generally speaking, a case of termination

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[1] see Para 6.24

[2] *Ghulam Sarwar v. Pakistan*, PLD 1962 SC 142; *Md. Ismail Khan v. Pakistan*, 25 DLR 382

[3] *Noorul Hassan v. Pakistan*, 9 DLR (SC) 47; *Abdul Majid Shiekh v. Mushaffe Ahmed*, 17 DLR (SC) 63; *Naseem Jahan Naim v. General Manager*, PLD 1968 SC 112; *Pakistan v. G. Moinul Ahmed*, 17 DLR 377; *Md. Seraj v. Pakistan*, 19 DLR 771; contra *Pakistan v. Serajul Islam*, 9 DLR (SC) 114 (the decision does not disclose the reason for departing from the earlier decision in *Noorul Hassan* and this decision has not been followed in subsequent decisions)

[4] *Noorul Hassan v. Pakistan*, 9 DLR (SC) 47, per Munir CJ

[5] *Pakistan v. Afzal Khan*, 11 DLR (SC) 45

[6] *Syed Abul Mansoor v. E. Pakistan*, 28 DLR 337 (probationer); *Capt. Md. Azhar v.*

of service on abolition of posts will not attract the provisions of art.135[1] because the government has the executive power to create or abolish posts. But where the termination of service upon abolition of the post is *mala fide* or for collateral purposes, art.135 may be attracted.[2] Thus if it is seen that the strength of a cadre is reduced from ten to eight and the services of two senior most employees are terminated, a case of *mala fide* or collateral purposes may be upheld if the authority cannot adequately explain the action.

6.32 Art.135(4) provides that the provisions of this article will not be applicable in case of termination of contract between an employee and the government in terms of the contract. Per force this contract must be a special contract in special circumstances, otherwise the government may, if so minded, render the protection of art.135 nugatory by entering into contract with all of its employees.[3] But if the termination is not in terms of the contract or is ordered for misconduct or inefficiency, the protection of art.135 will be available as art.135(4) does not cover these cases.

6.33 *Compulsory retirement:* The service rules generally provide for the age of superannuation. These rules sometimes provide for compulsory retirement before the age of superannuation after an employee has completed a minimum period of service if the government is satisfied that public interest requires it. The provision for compulsory retirement was there in the service rules in British India which were continued in force in Bangladesh. The President's Order no.14 of 1972 was promulgated providing for compulsory retirement and this law was replaced by the Public Service Retirement Act, 1975 fixing the age of superannuation at 57 and providing for compulsory retirement after an employee has put in a minimum period of 25 years of service. The question arises whether compulsory retirement attracts the provisions of art.135. In India and Pakistan such a contention has been negatived.[4]

Commissioner, Karachi Division, 17 DLR (SC) 439 (temporary)

[1] *Noorul Hassan v. Pakistan*, 9 DLR (SC) 47; *Ghulam Sarwar v. Pakistan*, PLD 1962 SC 142; *S.M. Faruque v. E. Pakistan*, 10 DLR 562; *Ramanatha v. Kerala*, AIR 1973 SC 2264; *Haryana v. Sangar*, AIR 1976 SC 1199

[2] *Ramanatha v. Kerala*, AIR 1973 SC 2641; *Haryana v. Sangar*, AIR 1976 SC 1199

[3] *Ghulam Sarwar v. Pakistan*, PLD 1962 SC 142

[4] *Pakistan v. Liaquat Ali*, 11 DLR (SC) 73; *Sheikh Shamsul Haq v. East Pakistan*, 10 DLR 417; *India v. S.A. Razzak*, AIR 1981 SC 360; *Dinesh Chandra v. Assam*, AIR 1978 SC 17

The High Court Division held that compulsory retirement under the Public Servants Retirement Act, 1974 would not attract art.135.[1] In *Dr. Nurul Islam v. Bangladesh*[2] it was contended that an order of compulsory retirement is a punishment and, therefore, must comply with the requirements of notice and hearing under art.135. The leading judgment of Munim J did not answer this question. R. Islam J accepted the contention, but S. Ahmed J differed. The preponderant view in this sub-continent is that compulsory retirement does not involve punishment and does not require notice and hearing. However, a rule providing for compulsory retirement must fix the minimum period of completed service which should be reasonably long to be valid.[3] Where the minimum period of completed service is not reasonably long, the order of compulsory retirement will attract art.135.[4] When an order of compulsory retirement is passed as a punishment[5], or it contains words from which stigma may be inferred, or if the employee loses his benefit already earned[6] the order of compulsory retirement will attract art.135. Judicial scrutiny of any order imposing compulsory retirement is permissible if the order is either arbitrary or *mala fide* or if it is based on no evidence.[7] The order of compulsory retirement must be made *bona fide* in the public interest and would be bad if it is arbitrary or based on collateral grounds.[8] When it is alleged that the order was not made in the public interest the court will examine the service record to see if the order has been made in the public interest.[9] The government is

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[1] *Abdur Rashid v. Bangladesh*, 31 DLR 233 (in this case leave preparatory to retirement was refused which the Court found not legal, but refused to treat this refusal as punishment to attract art.135)

[2] 33 DLR (AD) 201

[3] *Takhetray Shivadattray v. Gujarat*, AIR 1970 SC 143; *Bombay v. Shaubhagchand Doshi*, AIR 1957 SC 892

[4] *Gurdev v. Punjab*, AIR 1964 SC 1585

[5] *Bangladesh v. Abdul Motaleb*, 45 DLR (AD) 108; *Fazlul Haq Chowdhury v. Bangladesh*, 30 DLR 144; *Abdul Quadir v. West Pakistan*, 19 DLR (SC) 398; *U.P. v. Shyamlal Sharma*, AIR 1971 SC 2151; *India v. Tulsiram*, AIR 1985 SC 1416

[6] *U.P. v. Shyam Lal*, AIR 1971 SC 2151

[7] *Bindra v. India*, AIR 1998 SC 3058

[8] *Mofizur Rahman v. Bangladesh*, 34 DLR (AD) 321; *Baldev Raj v. India*, AIR 1981 SC 70 (order of compulsory retirement found invalid when it was passed taking a very old adverse report into consideration without taking into account recent favourable confidential report); *Brij Mohan v. Punjab*, AIR 1987 SC 948; *Baikuntha v. Chief District Medical Officer*, AIR 1992 SC 1020

[9] *Mofizur Rahman v. Bangladesh*, 34 DLR (AD) 321

principally the judge of 'public interest'. There may be variety of reasons which may lead the government to be satisfied that the compulsory retirement is necessary in the public interest. The court may interfere if the materials disclosed show that the action was taken in collateral exercise of or in abuse of power.[1] Where charges were framed against an employee, but was dropped and he was promoted to a higher post and thereafter he was compulsorily retired, the court found the order invalid.[2] The court also held an order of compulsory retirement invalid when the authority did not produce the service record of the employee to show the public interest and it was passed to circumvent the order of the court or when the service record did not disclose any deterioration in the efficiency or integrity of the employee.[3] In *Gujrat v. Umed Bhai*[4], the Indian Supreme Court summarised the principles laid down by it in different decisions as follows:

(i) Whenever the service of a public servant are no longer useful to the general administration, the officer can be compulsorily retired for the sake of public interest.

(ii) Ordinarily, the order of compulsory retirement is not to be treated as a punishment.

(iii) For better administration, it is necessary to chop off dead wood, but the order of compulsory retirement can be passed after having due regard to the entire service record of the officer.

(iv) Any adverse entries made in the confidential record shall be taken note of and be given due weightage in passing such order.

(v) Even uncommunicated entries in the confidential record can also be taken into consideration.

(vi) The order of compulsory retirement shall not be passed as a short cut to avoid departmental inquiry when such course is more desirable.

(vii) If the officer was given a promotion despite adverse entries made in the confidential record, that is a fact in favour of the officer.

(viii) Compulsory retirement shall not be imposed as a punitive measure.

6.34 *Reduction in rank:* Reduction in rank means reversion of an employee from a higher to lower rank. When a person is appointed to a

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[1] *Farzand Ali v. West Pakistan*, 22 DLR (SC) 203

[2] *D. Ramaswami v. T.N.*, AIR 1982 SC 793

[3] *Dr. Nurul Islam v. Bangladesh*, 33 DLR (AD) 201; *Baldev Raj v. Punjab*, AIR 1984 SC 986; see also *Swami Saran v. U.P.*, AIR 1980 SC 269

[4] AIR 2001 SC 1109, 1112

particular post, whether substantively or temporarily, his reversion to a lower post which he did not at any point of time hold is a reduction in rank attracting the provision of art.135(2). But when an employee is reverted from a promoted post, the question arises whether such a reversion amounts to reduction in rank within the meaning of art.135(2). If an employee has a right to a particular rank, his reversion from that rank without complying with the requirements of art.135(2) will be void. Where, however, the employee has been temporarily holding the higher rank on probation or on *ad hoc* or officiating basis and has thus no right to hold the higher rank, his reversion from the higher rank to his substantive rank does not entail reduction in rank within the meaning of art.135.[1] The same will be the case when a promotion is made temporarily for a limited period of time as in such case the promotee will have no right to hold the promoted post.[2] When a promotion is made subject to approval of the higher authority, reversion resulting from disapproval by the higher authority does not constitute reduction in rank.[3] Reversion of a person to his substantive post from a higher rank which he was holding on deputation was not held to be a reduction in rank.[4] Appointment to class II gazetted post (stating clearly in the appointment letter that the post was sanctioned for a limited period) and shortly thereafter making that post class II non-gazetted post does not amount to reduction in rank.[5] Placing of some persons above the petitioner does not entail reduction in rank of the petitioner.[6] In *Noorul Hassan*[7] and *Ghulam Sarwar*[8] the concept of non-temporary employment in case of persons having temporary appointment of indefinite duration has been brought in. Those were cases of termination

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[1] *Pakistan v. Syed Hikmat Khan*, 11 DLR (SC) 188; *West Pakistan v. Bashir Ahmed*, 11 DLR (SC) 232 (reversion is not reduction in rank even though an employee is reverted from the higher post without reverting his juniors having the same status); *East Pakistan v. Sajjad Ali Mazumder*, 14 DLR (SC) 13 *Dr. M. Amin Durrani v. West Pakistan*, PLD 1966 SC 99; *Md. Akram Khan v. Additional I.G.*, PLD 1958 SC 256; *P.L. Dhigra v. India*, AIR 1958 SC 36 *Hartwell Prescott Singh v. U.P.*, AIR 1957 SC 886

[2] *Pakistan v. Moazzem Hossain Khan*, 11 DLR (SC) 64 (tenure post); *Pakistan v. F.R. Khundkar*, 11 DLR (SC) 253 (tenure post)

[3] *East Pakistan v. Md. Abdu Mia*, 11 DLR (SC) 377

[4] *Pakistan v. F.R. Khundkar*, 11 DLR (SC) 253

[5] *Syed Md. Hasan v. Pakistan*, 12 DLR (SC) 6

[6] *Sukuruddin v. East Pakistan*, 18 DLR 406

[7] 9 DLR (SC) 47

[8] PLD 1962 SC 142

of service. Can this concept be applied in the case of reversion to a lower post?

6.35 In *Chairman, Railway Board v. Abdul Majid*[1] the Pakistan Supreme Court refused to apply art.181 of the Pakistan Constitution of 1956 in a case of reversion as the employee was holding the promoted post temporarily even though the temporary promotion was of indefinite duration. Here the employee served in the promoted post for about three years before reversion. The court noted that in the service book of the employee it was noted "promoted to T.C. (temporarily) subject to replacement by approved hand". In a later case the court made certain observations from which it follows that in case of temporary appointment of indefinite period within the dictum of *Abdul Majid Sheikh v. Mushaffe Ahmed*[2] a reversion from the superior post may amount to reduction in rank.[3] The High Court Division in *Anwarul Haq v. Bangladesh*[4] declared a reduction in rank void for non-compliance of the provisions of art.135(2) stating, "It is a settled law that the constitutional protection in Article 135 is also available to a person who holds a temporary appointment of indefinite duration for a considerably long period".

6.36 In *Bangladesh v. Md. Ismail Hossain*[5] the respondent was a District Kanungo and he was temporarily appointed as a Circle Officer (Revenue) in 1966. The cadre itself was temporary and was being sanctioned from year to year. In 1973 the respondent was reverted to his original post. The Appellate Division upheld the decision of the High Court Division that it amounted to reduction in rank upon a reasoning that the respondent was appointed for the life of the cadre which was temporary and the word 'temporary' "cannot be attributed for classifying the respondent as temporary appointee". In this decision the Appellate Division did not bring in the concept of non-temporary appointment. But in *Saleh Ahmed v. Bangladesh*[6] by a majority decision the Appellate Division non-suited Saleh Ahmed who stood in the same position as was

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[1] 18 DLR (SC) 532

[2] 17 DLR (SC) 63

[3] *Md. Ibrahim v. Pakistan*, PLD 1972 SC 332, 336

[4] 31 DLR 21 (The Court found that the employee was holding the superior post substantively, but even if his appointment to that post was not substantive it would not help the Government); see also *M.A. Rashid v. Bangladesh*, 33 DLR 366

[5] 31 DLR (AD) 127

[6] 36 DLR (AD) 26

Md. Ismail Hossain with the difference that he was reverted in 1967 and at the time when the Appellate Division heard the case, the cadre stood abolished. The majority judgment mentioned about temporary appointments continuing for years which in the Indian jurisdiction is called 'quasi-permanent' appointment. The difference between the two concepts is that while non-temporary appointment occurs when a temporary appointment of indefinite duration is made, a temporary appointment becomes quasi-permanent when continued for a number of years fixed by the rules. But the majority departed from *Ismail Hossain* because the cadre stood abolished at the time of hearing and Saleh Ahmed did not join the post he was reverted to. S. Ahmed J dissented on the ground that these two facts were irrelevant in determining the issue involved and there was no reason to depart from the earlier decision. It is submitted that the learned dissenting Judge was right in making no distinction between the two cases as the cadre was in existence when Saleh Ahmed was reverted and his failure to join the lower post cannot alter the nature of his appointment to the higher post. But it is to be noticed that when Saleh Ahmed was reverted in 1967 art.179 of the Pakistan Constitution of 1962 precluded application of art.177 in case of a temporary employee which prompted the Pakistan Supreme Court to refuse the remedy in *Kudrutualla*.[1] Art.135 does not make any distinction between temporary and permanent employee, but its operation is prospective only. In any view, *Saleh Ahmed* diluted the holding in *Ismail Hossain*.

6.37 Then came the case of *Bangladesh v. Md. Fazlul Haque*[2] where an employee after serving for five years in the higher post purely on temporary basis was reverted to his substantive post. The Appellate Division referred to the earlier decisions of *Ismail Hossain* and *Saleh Ahmed* and distinguished it saying that *Fazlul Haque* was not a case of abolition of post. The court observed -

> The uninterrupted service rendered by the respondent for about five years, if considered as "one non-temporary or quasi-permanent", as

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[1] An unreported decision referred to in both majority and minority judgments. *Abdul Majid Sheikh v. Mushaffe Ahmed*, 17 DLR (SC) 63, was distinguishable in that in this case the employee was appointed before coming into operation of the Pakistan Constitution, 1962 and in terms of art.225, the employee continued to hold the office on the same terms and conditions he had and as such art.179 would make no difference.)

[2] 43 DLR (AD) 144

> suggested by the learned counsel for the respondent, even then the impugned order of reversion cannot be termed as an instance of reduction in rank for attracting the protection under art.135 of the Constitution. The language of the impugned order indicates in unmistaken manner that it was never meant to be an order of promotion.

The first sentence of the quotation suggests that their lordships do not agree to apply the concepts of non-temporary and quasi-permanent employment in the matter of reduction in rank. But the second sentence creates a doubt as the case of the respondent was being rejected on the ground that the initial order on the basis of which he claimed his right was never meant to be an order of promotion. The court legitimately held the initial order to be not an order of promotion as it did not use the word 'appointed' or 'promoted' and merely showed a stop-gap arrangement which incidentally continued for five years. But it is something different from saying that those concepts will not be applicable. It is submitted, the position remains unsettled and requires an authoritative pronouncement of the court on the question whether and in what circumstances a temporary promotion will create a right to the promoted post.

6.38 Even though an employee is temporarily appointed in the promoted post, but the reversion is made for misconduct[1] or is accompanied with forfeiture of his pay or allowances or loss of seniority in his substantive rank, or stoppage or postponement of his future chance of promotion, or if a stigma is attached to him, or when a formal inquiry was held before his reversion, art.135 will be attracted.[2] It is not necessary that the impugned order contains words of stigma. The order may apparently be innocuous, but if the entirety of the circumstances preceding or attendant on the impugned order disclosed that misconduct is the motive or foundation of the order, art.135 will be attracted.[3] When as a result of reversion, the employee loses his seniority in his substantive rank, it amounts to reduction in rank.[4] When charges were framed against an employee holding a post on probation or on officiating basis in a higher rank, but was reverted without any inquiry, it is not a

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[1] *Md. Siraj Mia v. Director General*, 12 DLR 638

[2] *R.S. Sial v. U.P.*, AIR 1974 SC 1317; *G.S. Gill v. Punjab*, AIR 1974 SC 1898; *Debesh Chandra Das v. India*, AIR 1970 SC 77

[3] *Bihar v. S.B. Mishra*, AIR 1971 SC 1011

[4] *P.C. Wadhwa v. India*, AIR 1964 SC 423; *Madhav v. Mysore*, AIR 1962 SC 8

reduction in rank within the meaning of art.135.[1] But when a reversion appears to be *mala fide* and was, in fact, made for misconduct, art.135 will be attracted.[2]

6.39 *Dismissing authority:* Art.135(1) stipulates that the order of dismissal, removal from service or reduction in rank cannot be passed by an authority subordinate to the appointing authority.[3] It is not necessary that the order has to be made by the authority who made the appointment. He may be an authority other than the authority who made the order of appointment so long as he is not subordinate to the appointing authority, otherwise the action will be void.[4] A rule permitting a subordinate authority to take the action will be void.[5] The constitutional guarantee given under art.135 cannot be whittled down by designating as appointing authority an officer lower in rank than the one who was the appointing authority at the time of making the appointment. Thus compulsory retirement order passed by the Conservator of Forests was held invalid when the petitioner was appointed to the post by the Chief Conservator of Forests even though before the order was passed the Conservator of Forests was empowered to make appointment to that post.[6] If a civil servant is reverted to his substantive post he may be dismissed by the appointing authority of the substantive post, but the dismissal will be invalid if the reversion is found to be illegal.[7] On the other hand, it has been held that when an official is placed on charge for taking disciplinary action while he is officiating in a higher post, it is from the substantive post which he holds that he is so dismissed in proper form and his dismissal by the appointing authority of the substantive post is valid.[8] Where a person is confirmed in a higher post in which he was officiating, it is the officer who issues the order of confirmation who becomes his appointing authority and not the higher officer who may have selected him for such confirmation.[9] In *Abdul*

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[1] *Punjab v. Sukh Raj*, AIR 1968 SC 1089
[2] *Sukhbans Singh v. Punjab*, AIR 1962 SC 1711
[3] *Bihar v. S.B. Mishra*, AIR 1971 SC 1011
[4] *Mahesh Prasad v. U.P.*, AIR 1955 SC 70
[5] *N.W.F.P. v. Suruj Narain*, AIR 1949 PC 112
[6] *Bangladesh v. Abdul Motaleb*, 45 DLR (AD) 108
[7] *Bihar v. S.B. Mishra*, AIR 1971 SC 1011
[8] *Collector of Central Excise v. Waliullah Chowdhury*, PLD 1966 SC 788
[9] *Assam v. M.K. Das*, AIR 1970 SC 1255; *Assam v. Kripanath*, AIR 1967 SC 459; *Pakistan v. Nazir Ahmed*, 18 DLR (SC) 333

Quadir v. West Pakistan[1] the employee was appointed as Head Constable by the I.G. of Police, but he was compulsorily retired from his substantive promoted post of Assistant S.I. of Police by the D.I.G. of Police who was the appointing authority of the promoted post. It was contended that none below the rank of I.G. of Police could pass the order. The court rejected the contention holding that when he was appointed to the higher post in substantive capacity his condition of service became those which attached to the post when he was appointed. The expression "subordinate" refers to subordination in rank on the date of appointment of the civil servant proceeded against so that the subsequent delegation by the appointing authority does not cure the invalidity of dismissal by a person who was subordinate to the appointing authority at the time of appointment of the civil servant dealt with.[2] The appointing authority cannot delegate his power of dismissal or removal to a subordinate authority.[3] This does not mean that government cannot empower an officer other than the appointing authority to take action against a civil servant, but the officer so empowered must not be subordinate to the appointing authority.[4] The power to enquire into the charges and report may be delegated to an authority subordinate to the appointing authority provided the ultimate responsibility for the exercise of the power to take action remains with the person who is not subordinate to the appointing authority.[5] The notice to show cause and the order taking the action must be issued by a person not subordinate to the appointing authority.[6]

6.40 *Reasonable opportunity to show cause:* Art.135(2) mandates that an employee proceeded against must be given a reasonable opportunity of showing cause why he shall not be dismissed, removed or reduced in rank. Before coming to the decision about the punishment to be inflicted, the authority must come to the finding of guilt of the employee for which inquiry is necessary and principles of natural justice (which requirement is also mandated by the procedural due process of art.31) require that the employee be given a reasonable opportunity to

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[1] 19 DLR (SC) 398

[2] *Krisna v. Divisional Assistant Engineer*, AIR 1979 SC 1912

[3] *Pradyat Kumar v. Chief Justice*, AIR 1956 SC 285

[4] *M.P. v. Ram Naresh*, (1970) 3 SCC 173

[5] *Pradyat v. Chief Justice*, AIR 1956 SC 285

[6] *Capt. Md. Azhar v. Commissioner, Karachi Division*, 17 DLR (SC) 439; *Garewal v. Punjab*, AIR 1959 SC 512

defend himself.[1] Stating it broadly and without intending it to be exhaustive it may be observed that rules of natural justice require that a party should have the opportunity of adducing all relevant evidence on which he relies, that the evidence of the opponent should be taken in his presence, and that he should be given the opportunity of cross examining the witnesses examined by that party, and that no material should be relied on against him without his being given an opportunity of explaining them.[2] Where the authority reaches the conclusion after inquiry about the misconduct or negligence of the employee, the second stage is reached when art.135 mandates that the employee be given an opportunity to show cause why the employee shall not be dismissed, removed or reduced in rank.[3] This notice under art.135(2) is different from and in addition to the notice and hearing required by the service rules or the principles of natural justice.[4] This opportunity under art.135(2) is not limited to explanation regarding the punishment to be awarded, it enables the employee to cover the whole ground relating to the inquiry proceeding and to plead that no case has been made out against him for taking the disciplinary action.[5] If the authority decides to

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[1] The relevant service rules contain elaborate procedure of inquiry embodying the principles of natural justice. For the content of natural justice and procedural due process, see Para 5.49-5.59. See also *Jamuna Oil Company v. S.K. Dey*, 44 DLR (AD) 104

[2] *India v. T.R. Varma*, AIR 1957 SC 882, 885; *M.P. v. Chintamon*, AIR 1961 SC 1623

[3] *High Commissioner of India v. I.M. Lall*, AIR 1948 PC 121 (A question arose as to whether s.240(3) required reasonable opportunity to be given at the stage of inquiry into the allegations of misconduct or at the stage when the authority reached the conclusion about the employee's guilt and wanted to penalise. The Privy Council observed, "... no action is proposed within the meaning of the sub-section until a definite conclusion has been come to on the charges, and the actual punishment to follow is provisionally determined on. Prior to that stage, the charges are unproved and the suggested punishments are merely hypothetical. It is on that stage being reached that the statute gives the civil servant the opportunity for which sub-s.(3) makes provision. Their Lordships would only add that they can see no difficulty in the statutory opportunity being reasonably afforded at more than one stage. If the civil servant has been through an enquiry under r.55, it would not be reasonable that he should ask for a repetition of that stage, if duly carried out, but that would not exhaust his statutory right, and he would still be entitled to represent against the punishment proposed as a result of the findings of the enquiry."); *D.G. Prison v. Md. Nasimuddin*, 53 DLR (AD) 30

[4] *Jamuna Oil Company v. S.K. Dey*, 44 DLR (AD) 104; *Fazlul Haq Chowdhury v. Bangladesh*, 30 DLR 144

[5] *Assam v. Bimal*, AIR 1963 SC 1612 (Para 6)

award a punishment which is lesser than the mentioned three, art.135 will not be attracted and the second notice contemplated by art.135(2) need not be given. The question when an opportunity will be deemed reasonable does not admit of any uniform answer, for what is reasonable will depend on the facts and circumstances of each case. But generally it can be said that the constitutional requirement will be satisfied if the particulars of the charge and the substance of the evidence in support of the charge, a summary of the findings in the inquiry and the punishment that will follow are communicated to the employee and he is given a reasonable time to explain.[1] But the requirement will not be satisfied if the employee is not furnished with a copy of the report of the inquiry officer.[2] The opportunity to show cause does not necessarily include a personal hearing at that stage.[3] In *Abdul Latif Niazi v. West Pakistan* charges were levelled and inquiry was held where the employee was heard in person. Thereafter a notice was issued to show cause why he should not be dismissed. No hearing was asked for and none given at that stage. The Pakistan Supreme Court held that the constitution required reasonable opportunity to be given and when reasonable opportunity was given at the inquiry stage "it seems to be an excessive requirement that personal hearing should also in every case be given in relation to the show cause notice. There are ... occasions when a personal hearing may properly be asked for, but in this case none was asked for, and nothing appears in the entire facts, which were fully exposed during the enquiry, which could provide any reason why the dismissing authority should have taken this course on its own initiative."[4] There cannot be any reasonable opportunity under art.135(2) if the employee has not been given a reasonable opportunity to defend at the inquiry stage[5] or if the inquiry has been held by an officer who by

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[1] Munir - Constitution of Pakistan, 1965, p.507

[2] *Mojibur Rahman v. Manjur Morshed*, 3 MLR (AD) 27; *Torab Ali v. BTMC*, 41 DLR 138 (this is a case of corporation employee, but the corporation service rules providing for second show cause notice the principle was applied; *Punjab v. Amar Singh*, AIR 1966 SC 1313; *Maharashtra v. Joshi*, AIR 1969 SC 1302

[3] *Kapur Singh v. India*, AIR 1960 SC 493

[4] PLD 1967 SC 52, 67

[5] *Ghulam Sarwar v. Pakistan*, PLD 1962 SC 142; *M.P. v. Chintamon*, AIR 1961 SC 1623; *Paul Anthony v. Bharat Gold Mines Ltd*, AIR 1999 SC 1416 (Where subsistence allowance admissible under the rules was withheld which prevented the accused employee from attending the inquiry, it was held that the employee had no reasonable opportunity)

reason of any bias was disqualified to hold the inquiry.[1] The dismissing authority is not bound to accept the finding of the inquiry officer and may differ, but when the dismissing authority differs from the inquiry officer and decides to issue a second show cause notice, the principles of natural justice requires that the notice should disclose the reasons for taking a different view from the inquiry officer.[2] The dismissing authority need not, however, discuss the materials in details and establish that the findings of the inquiry officer are improbable.[3]

6.41 *Exceptions:* Proviso to art.135(2) enumerates three situations in which the delinquent employee need not be given opportunity to show cause. It does not mean that the authority need not make any enquiry at all and need not apply its mind as to whether the fact situation calls for the disciplinary action mentioned in art.135(2) and as to what punishment should be awarded in the facts of the case. The proviso does not open the door for arbitrary action. Though in situations covered by the proviso the power is to be exercised *exparte*, it must be exercised fairly, justly and reasonably.

6.42 Clause (i) of the proviso provides that a civil servant need not be given notice and hearing when the action is sought to be taken for misconduct which has led to his conviction of a criminal offence. Here it will be superfluous to give the civil servant the opportunity when he had one before the court. The conviction is a sufficient proof of misconduct. In order to attract this clause, it must not be only be a conviction of an offence, it must be a conviction of a criminal offence. All crimes are offence, but all offences are not crimes. Thus where there was conviction for petty offence against breach of discipline or for lending and borrowing money in violation of the regulations by the members of E.P. Riffles, the court held that the clause was not attracted.[4]

6.43 Though no opportunity has to be given to a delinquent employee in case of conviction of criminal offence, the authority has to come to a decision as to whether action is to be taken and what penalty is to be imposed. For this it has to take into consideration the judgment of the

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[1] *Mohsin Siddiky v. West Pakistan*, 16 DLR (SC) 151; *U.P. v. Mohd. Nooh*, AIR 1958 SC 86

[2] *M.A. Hai v. T.C.B.*, 32 DLR (AD) 46; *Torab Ali v. BTMC*, 41 DLR 138; *State Bank of India v. Arvind Shukla*, AIR 2001 SC 2398

[3] *High Court, Bombay v. Shashikant*, AIR 2000 SC 22

[4] *Haji Ahmed v. E. Pakistan*, 15 DLR 423; *Shafi Chowdhury v. East Pakistan*, 17 DLR 25

criminal court, the entire conduct of the employee, the gravity of the offence and its impact on the administration, whether the offence was of a technical or trivial nature and the extenuating circumstances.[1] The order imposing penalty may be struck down if it is found that the penalty imposed is arbitrary, grossly excessive or out of all proportions to the offence committed. Thus where the penalty of dismissal was imposed on conviction under s.409 of Penal Code in spite of the magistrate's observation that the employee could not deposit the money in time under compelling circumstances and expressed the opinion that he should be dealt with under the Probation of Offenders Act, the court set aside the order of dismissal. The court observed -

> Surely, the Constitution does not contemplate that a Government servant who is convicted of parking his scooter in a non-parking area should be dismissed from service. He may perhaps not be entitled to be heard on the question of penalty ... But the right to impose a penalty carries with it the duty to act justly.[2]

Once a civil servant is convicted, it is not necessary for the authority to wait till the disposal of appeal or revision challenging the conviction. But if the conviction is set aside the penalty imposed on the basis of the conviction will cease to have effect and the civil servant will be entitled to be reinstated forthwith until he is punished complying with the provision of art.135(2).[3]

6.44 Clause (ii) of the proviso provides that the opportunity need not be given where the authority empowered to impose the penalty of dismissal, removal or reduction in rank is satisfied that it is not reasonably practicable to give that opportunity. To attract this clause total or absolute impracticability is not required. "What is requisite is that the holding of the inquiry is not practicable in the opinion of a reasonable man taking a reasonable view of the prevailing situation."[4] For denying the opportunity of being heard, the authority must not only

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[1] *D.P.O. v. Challappan*, AIR 1975 SC 2216

[2] *Shanker Das v. India*, AIR 1985 SC 772

[3] *India v. Akbar*, AIR 1961 Mad 486; *R.S. Das v. Divisional Superintendent*, AIR 1960 All 538

[4] *India v. Tulsiram*, AIR 1985 SC 1416, 1479 (There was wilful and deliberate disobedience of orders of superiors, hunger strike, shouting of rebellious slogans and threats of violence and bodily harm to supervisory officers and army had to be called. The Court observed, "No person with any reason or sense of responsibility can say that in such a situation the holding of an inquiry was reasonably possible.")

be fairly and reasonably satisfied, but must also record the reasons for being so satisfied. If no reason is recorded, or the reason is vague or just repetition of the language of the proviso, the deprivation of the opportunity will be unconstitutional.[1] Art.135(3) states that the decision of the authority in this regard shall be final. But the finality cannot foreclose judicial review if the condition of the proviso is not fulfilled. The finality restricts the scope of judicial review and the adequacy or sufficiency of the reason will not be gone into. Once the reasons are assigned, it will be subject to judicial review limited to the question whether the reasons are germane to the issue or a mere cloak. The authority is not to dispense with the opportunity of being heard lightly or arbitrarily or out of ulterior motives or merely to avoid the notice and hearing because the department's case against the employee is weak.[2] The Indian Supreme Court observed -

> ... when the decision of the employer to dispense with the enquiry is questioned, the employer must be in a position to satisfy the Court that holding of the enquiry will be counter-productive or may cause such irreparable and irreversible damage which in the facts and circumstances of the case need not be suffered. This minimum requirement cannot and should not be dispensed with to control the wide discretionary power and to guard against the drastic power to inflict such a heavy punishment as denial of livelihood and casting a stigma without giving the slightest opportunity to the employee to controvert the allegation and even without letting him know what is his misconduct.[3]

6.45 Clause (iii) of the proviso provides that no opportunity of showing cause need be given to an employee proceeded against if the President is satisfied that in the interest of the security of the State it is not expedient to give the opportunity. This satisfaction is not the personal satisfaction of the President. It is a satisfaction in the constitutional sense in exercise of the executive power and as such can be of a person authorised by the Rules of Business.[4] The President need not be satisfied that by giving the notice the interest of the security of the State will be affected, he must be satisfied that it is expedient in the interest of the security of the State not to give such notice.[5] "Expediency

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[1] Ibid, p.1480

[2] Ibid, p.1479.

[3] *Workmen, Hindusthan Steel v. Hindusthan Steel Ltd*, AIR 1985 SC 251, 255

[4] *Shamser v. Punjab*, AIR 1974 SC 2192

[5] *India v. Tulsiram*, AIR 1985 SC 1416

involves matters of policy. Satisfaction may be arrived at as a result of secret information received by the Government about the brewing danger to the security of the State and like matters ... The reasons for the satisfaction reached by the President ... cannot, therefore, be required to be recorded in the order of dismissal, removal or reduction in rank nor can they be made public."[1]. 'Security of the State' has to be distinguished from 'public order' and 'law and order'. While situations which affect 'public order' are graver than those which affect 'law and order', situations which affect 'security of the State' are the gravest.[2]

6.46 Now that the Administrative Tribunal Act, 1981 has been passed and the administrative tribunal has been set up no court shall entertain any complaint as regards violation of the provisions of art.135 and under art.117 the administrative tribunal has the exclusive jurisdiction. But the dispute may go to the Appellate Division by leave of the Appellate Division because of the provision of the Administrative Tribunal Act in this regard read with the provision of art.103(4). When an action is taken by the authority concerned, it can be challenged in the administrative tribunal, but its role will be limited to the adjudication of only four things - (a) whether the employee is entitled to the protection of art.135; (b) whether the principles of natural justice and/or the rules, if any, framed regarding the inquiry have been complied with, (c) whether the inquiry officer conducted the inquiry in accordance with the principles of administrative law and (d) whether the employee had the opportunity to show cause as contemplated under art.135.

PUBLIC SERVICE COMMISSION

6.47 In a democratic system appointments in the service of the State cannot be a matter of patronage and the members of the civil service should be appointed on the basis of merit. It is essential to have an independent service commission free from the control and influence of party government. The Constitution, therefore, makes provisions for establishment of Public Service Commission by law with a Chairman and such number of members as may be prescribed by law.[3] More than one such Commission may be established. The Chairman and the members of the Commission are to be appointed by the President, but at

[1] Ibid, p.1483
[2] Ibid, p.1482
[3] Art.137

least half of the members must be persons who have held office for at least twenty years under any government which functioned within the territory of Bangladesh.[1] Subject to any law made by Parliament[2], the conditions of service of the Chairman and the members of the Commission are to be determined by the President.[3] The Chairman and the members of the Commission before entering their office are required to take oath to preserve, protect and defend the Constitution.[4] The office of the Chairman and the members of the Commission shall be for a term of five years. The Chairman is eligible for re-appointment for a further term of five years and the members are eligible for re-appointment for one more term or for appointment as the Chairman. The limitation on re-appointment is placed as a safeguard against corruption, partiality and patronage resulting from assurance of continuation in office for an indefinite period of time.[5] In order to maintain the independence of the Chairman and members of the Commission it has been provided that they cannot be removed from office except in the like manner and on the like grounds as a Judge of the Supreme Court may be removed[6] and their remuneration, privileges and other terms and conditions of service cannot be varied to their disadvantage during the term of their office[7]. In order to keep them free from allurement, it has also been provided that on ceasing to hold office, the Chairman and the members of the Commission shall not be eligible for any other employment in the service of the Republic. But this bar is not applicable to an appointment to any constitutional office for such an appointment is not an employment in the service of the Republic.[8]

6.48 *Functions of the Commission:* The primary function of the Commission is to select the best men who are capable of faithfully and efficiently carrying out the policy of the government. The Commission is to conduct tests and examinations for selection of suitable persons for appointment to the service of the Republic.[9] It is not specified whether it would be a competitive or selective examination or whether the

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[1] Art.138(1)
[2] see art.147; see Para 6.59B
[3] Art.138(2)
[4] Art.148 read with the Third Schedule
[5] *Mysore v. Bidap*, AIR 1973 SC 2555
[6] Art.139(2)
[7] Art.147(2)
[8] *India v. Seth*, AIR 1977 SC 2378; *Hargovind v. Raghukul*, AIR 1979 SC 1109
[9] Art.140(1)(a)

examination will be written or oral or both written and oral. While written examination is necessary to adjudge academic excellence, *viva voce* is necessary to evaluate the initiative, alertness, ability to make decisions and personal qualities. In case of recruitment to some services, personality is more important than academic excellence and, therefore, what weightage is to be given to written examination and *viva voce* should be left to the determination by the government and the rules. The court may only interfere where exaggerated weightage is given to *viva voce* with oblique motive to favour particular candidates.[1] Where the rules require, the Commission has to send the names of successful candidates in order of merit and it cannot withhold the names of some of the successful candidates on the ground that there are not so many vacancies to fill up.[2] But assignment of merit by the Commission does not confer any right upon the candidate who secured the highest position in the examination.[3] Once the Commission determines the norms for an examination and recommends the list of successful candidates to the government, it cannot re-open the selection and lower down the norms at the instance of the government.[4] The Commission is to advise the President on any matter specified in art.140(2) or on any matter connected with its function which is referred to it by the President. It shall also perform such other functions as may be prescribed by law.

6.49 Art.140(2) provides that subject to the provisions of any law made by Parliament or any regulation consistent with the law made by the President in consultation with the Commission, the President shall consult with the Commission with respect to (a) matters relating to qualifications for, and methods of recruitment to, the service of the Republic, (b) the principles to be followed in making appointments to the service of the Republic and promotions and transfers from one branch of the service to another, and the suitability of candidates for such appointments, promotions and transfers, and (c) the discipline of the service. In *Bangladesh v. Shafiuddin Ahmed*, the validity of Bangladesh Public Service Commission (Consultation) Regulations, 1979 was challenged on the ground that there should first be a law made by Parliament and then the President can make regulations consistent with such law, but the regulations have been made by the President

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[1] *Haryana v. Subash*, AIR 1973 SC 2216
[2] *Neelima v. Haryana*, AIR 1987 SC 169
[3] *Haryana v. Subash*, AIR 1973 SC 2216
[4] *U.P. v. Rafiquddin*, AIR 1988 SC 162

before any law has been enacted by Parliament. The court rejected the challenge observing, "If the Parliament makes any law earlier then it will be a case of occupied field. The regulations made by the President will only supplement the law and will not be inconsistent with it. But if the President makes the regulations earlier then that will occupy the field until a law is made by Parliament. If the law made by Parliament and the regulations already made by the President can co-exist without being in conflict with one another, well and good, but if there is a conflict between the law made by the Parliament and the regulations made by the President, the law will prevail".[1]

6.50 The Commission shall have to make report to the President on or before first March on the performance of its functions during the period ending on thirty first December of the previous year together with a memorandum setting out the cases in which its advice was not accepted and the reason for it and the cases where the Commission ought to have been consulted but was not consulted and the reason therefor. The President shall cause the report and the memorandum to be laid before Parliament at its first meeting after submission of the report.[2] This has been prescribed as a safeguard against arbitrary action of the executive in disregard of the advice of the Commission.

6.51 Though normally the government is expected to accept the advice of the Commission except in exceptional cases warranting special consideration, the advice given by the Commission is not binding on the government.[3] On the other hand, the government cannot act mechanically on the advice of the Commission and must apply its mind.[4] A question often arises whether the provision of consultation is mandatory. The Indian Supreme Court holds the opinion that though the word 'shall' is used, the consultation is not mandatory in the sense that in default of consultation the action of the government will be void particularly when the advice of the Commission is not binding on the government.[5] This court held that a punishment given cannot be challenged on the ground of non-consultation. But in *Capt. Azhar*

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[1] 50 DLR (AD) 27, 34

[2] Art.141

[3] *Bangladesh v. Md. Matiur Rahman*, 1982 BLD (AD) 109; *Bangladesh v. Salekuzzaman*, 52 DLR (AD) 166; *East Pakistan v. Dr. K.A. Mansur*, 14 DLR 1; *D'Silva v. India*, AIR 1962 SC 1130

[4] *Ram Choudhury v. Secretary, W.B.*, AIR 1964 Cal 265

[5] *U.P. v. Srivastava*, AIR 1957 SC 912; *Ram Gopal v. M.P.*, AIR 1970 SC 158

Hussain v. Pakistan[1] the Pakistan Supreme Court declared the punishment awarded to a temporary employee void for non-consultation with the Commission. Art.141(2)(b) provides for preparation of a memorandum stating the cases where the Commission ought to have been consulted but was not consulted and the reasons for non-consultation. Thus the framers of the Constitution contemplated that for some reasons the government may not consult the Commission in some cases and this indicates that they did not intend the requirement of consultation to be mandatory. Had they intended otherwise, they would not have made this provision or, having made it, would have made further provision to make it mandatory. On a reading of art.140 together with art.141, the Appellate Division held that consultation with the Public Service Commission is not mandatory, but consultation provided for on sound principles of public administration and good governance may be avoided only as an exception and not as a rule.[2]

TERRITORY AND PROPERTY OF THE REPUBLIC

6.52 All lands and water bodies being part of the territory of the Republic belong to the Republic. This ownership is concomitant of the sovereignty of the Republic. Because of leasing out, the Republic is not the absolute owner of most of the lands and in those leasehold lands the Republic has the incorporeal right of a lessor. The lands which are in absolute ownership of the Republic can be leased out, but cannot be sold outright as an outright sale would have the effect of divesting the Republic of the ownership of the land sold affecting the sovereignty of the Republic. All water bodies which are not man-made now vests absolutely in the Republic.

6.53 In addition to the lands and water bodies vested in the Republic, all minerals and other things of value underlying any land of Bangladesh vests in the Republic even though the Republic has only the incorporeal right of a lessor in that land.[3] The Republic is also the owner of all lands, minerals and other things of value underlying the ocean within the territorial waters or the ocean over the continental shelf of Bangladesh.[4]

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[1] 17 DLR (SC) 439

[2] *Bangladesh v. Shafiuddin Ahmed*, 50 DLR (AD) 27, 34-35; *M.A. Rashid v. Bangladesh*, 33 DLR 366, 373

[3] Art.143(1)(a)

[4] Art.143(1)(b)

Art.143(1)(c) provides that any property in Bangladesh without a rightful owner shall vest in the Republic. This is an incident of sovereignty and rests on the ultimate ownership of the sovereign of all properties within its jurisdiction. When an accused disclaiming possession of the gold recovered was acquitted on the finding that it was not recovered from his possession, the gold escheated to the Republic as ownerless property.[1] If a person dies intestate without leaving any legal heir, his property escheats to the Republic.[2] When a pre-emptor, whose application has been allowed, dies during the pendency of appeal without leaving any heir, the pre-emption does not fail on that account as the interest of the pre-emptor vests in the government.[3] But before the government can succeed on a claim on escheat, it has to discharge the onus of proving that there is no legal heir of the deceased property holder any where in the world.[4]

6.54 Under art.143(2) Parliament may by law provide for determination of the boundaries of the territory, territorial waters and continental shelf of Bangladesh.[5] Without the backing of such a law the executive authority of the Republic does not extend to such determination of boundary. But the making of law for determination of boundary does not include a power to provide for cession of any part of the territory for which a constitutional amendment is necessary.[6]

CONTRACTS, DEEDS AND TREATIES

6.55 *Contracts and deeds:* Art.145(1) mandates that all contracts and deeds made in exercise of the executive authority of the Republic shall be expressed to be made by the President and shall be executed on behalf of the President by such person and in such manner as he may direct or authorise. This article corresponds to art.299(1) of the Indian Constitution and s.173(3) of the Government of India Act, 1935. This provision is attracted only when a contract or deed is executed in exercise of the executive authority of the Republic and not in exercise of power conferred by a statute.[7]

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[1] *Gopinath Ghose v. State*, 32 DLR (AD) 177
[2] *Bihar v. Radha Krisna*, AIR 1983 SC 684
[3] *Hossain Ali v. Rezia Khatun*, 2 BLC (AD) 94
[4] Ibid.
[5] Bangladesh Territorial Waters and Maritime Zones Act, 1974
[6] *Kazi Mukhlesur Rahman v. Bangladesh*, 26 DLR (AD) 44
[7] *Haryana v. Lal Chand*, AIR 1984 SC 1326

6.56 The Indian Supreme Court viewed that art.299(1) has been incorporated on the ground of public policy to protect the state from the liability of unauthorised contracts and, therefore, its provisions are mandatory and non-compliance with the requirement of art.299(1) renders a contract invalid and unenforceable.[1]

6.57 The question is whether the expressions 'execute' and 'expressed to be made' require a formal document executed in the manner stipulated. One opinion in interpreting s.175(3) of the Government of India Act, 1935 was that a formal document was necessary.[2] The other opinion was that if correspondence was made on behalf of the Secretary of State and the final correspondence was signed by a person authorised in that behalf, a binding contract would emerge.[3] In *India v. Rallia Ram*[4] the Indian Supreme Court upheld the latter view holding that a contract by tender or correspondence would be valid if the tender is accepted or correspondence is signed on behalf of the President by a person duly authorised by the President. *Rallia Ram* did not expressly require the authorised person to accept the tender in the name of the President. But in *Punjab v. M/S Om Prakash*[5] the court refused to hold a contract valid because the executive engineer (who was authorised) did not state in the letter of intent that he was accepting the tender on behalf of the Governor.

6.58 Art.145(1) being in the same terms as art.299(1) of the Indian Constitution, the decisions of the Indian Supreme Court have relevance in the interpretation of art.145(1). But it has to be seen that numerous contracts are being made by authorised public servants through correspondence and in many of them a formal document is not signed and hardly in any of the letters of intent or acceptance of tender the authorised officer expresses acceptance on behalf of the President. The other party has no hand in the language used by the public official and no inconvenience or detriment would be suffered by the government if such acceptance of tender is accepted to be valid. On the other hand great inconvenience or injury may be caused to the party who has no control in the matter of language of acceptance of the tender. On the

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[1] *W.B. v. B.K. Mandol*, AIR 1962 SC 779; *Bhikraj v. India*, AIR 1962 SC 113; *K.P. Chowdhury v. M.P.*, AIR 1967 SC 203; *U.P. v. Murari*, AIR 1971 SC 2210

[2] *Province of Bengal v. Puri*, 51 CWN 753; *Nalini Kanta v. East Pakistan*, 13 DLR 11

[3] *S.C. Mitra & Co. v. Governor-General*, (1950) 2 Cal 431

[4] AIR 1963 SC 1685

[5] AIR 1988 SC 2149

principle laid down by the Privy Council in *Montreal Street Railway v. Normandin*[1] strict compliance with the provision of art.145(1) should not be held mandatory and the court should insist on substantial compliance of the provisions of art.145(1). If the person accepting the tender has, in fact, the authority to accept the tender, it is a mere formality to express the acceptance to be on behalf of the President. The public interest which impelled the Indian Supreme Court to take a very strict view will not be thwarted if the expression of acceptance on behalf of the President is not insisted in a case where it is proved beyond doubt that the tender has been accepted on the authority, and on behalf, of the President.

6.59 The Privy Council held that on the principle applicable between principal and agent, an agreement made by a public servant in excess of his authority may be binding upon the government if the government ratified it.[2] But the Indian Supreme Court held that non-compliance of the requirements of art.299(1) renders an agreement invalid and the question of ratifying such a contract by the government does not arise.[3] The view taken by the Indian Supreme Court is too rigid and goes beyond the necessity of protecting the public interest. However, the court held that even though a contract may be invalid for non-compliance with the provisions of art.299, any of the parties to the contract may get relief under s.70 of the Contract Act wherever the requisite conditions of s.70 are fulfilled.[4]

6.59A *Treaties:* Art.145A requires that all treaties with foreign countries shall be submitted to the President, who shall cause them to be laid before Parliament.[5] The Vienna Convention on the Law of Treaties defines a treaty as an international agreement concluded between States in written form and governed by international law. All agreements entered into by Bangladesh with foreign countries are not treaties. Only those agreements, whether called treaty, convention, covenant, protocol, charter or exchange of notes, concluded with foreign countries in written

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[1] AIR 1917 PC 142

[2] *Collector of Masulipatam v. Venkata*, 8 MIA 529

[3] *Mulumchand v. M.P.*, AIR 1968 SC 1218; *Bihar EGF Co-op. Society v. Sipahi*, AIR 1977 SC 2149; *Punjab v. M/S Om Prakash*, AIR 1988 SC 2149

[4] *W.B. v. B.K. Mondol*, AIR 11962 SC 779; *New Marine Coal Co. v. India*, AIR 1964 SC 152

[5] This article was inserted by Second Proclamation Order no.IV of 1978 and its validity is open to question. See Para 6.70

form and governed by international law are treaties within the meaning of art.145A. All other agreements with foreign countries may be treated as executive agreements.[1] In a treaty, there has to be an intention to create a legal obligation[2] and the obligation must be governed by international law and not municipal law. Thus a military and technical co-operation agreement between Bangladesh and Russia to be governed by Bangladesh and Russian law and not by international law, was held to be an executive agreement.[3] In the U.S.A. the power of making treaty is vested in the President, but the treaty does not become effective until the Senate by two-third votes ratifies it. Once ratified by the Senate, the treaty becomes part of the law of the land. But in Bangladesh, like in the U.K., making of a treaty is an executive act and for its validity approval of Parliament is not necessary. Though there is an obligation to lay a treaty before Parliament, the High Court Division held that failure to lay a treaty before Parliament will not affect its validity.[4] If the performance of the obligations of a treaty requires alteration of any existing law, an Act has to be passed by Parliament. Except to the extent that a treaty becomes incorporated into the laws of Bangladesh by an Act of Parliament, the courts have no power to enforce the treaty rights and obligations at the behest of a sovereign government or at the behest of a private individual.[5]

SPECIAL PROVISIONS RELATING TO SOME CONSTITUTIONAL OFFICES

6.59B Art.147 makes some provisions in respect of the offices of the President, Prime Minister, Speaker, Deputy Speaker, Minister, Minister of State, Deputy Minister, Judge of the Supreme Court, Comptroller and Auditor General, Election Commissioner and Member of Public Service Commission. The remuneration, privileges and other terms and conditions of service of the persons holding these offices are to be determined by Acts of Parliament and the remuneration, privileges and terms and conditions of the holders of these offices cannot be varied to

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[1] Redlich, Schwartz and Attanasio - Understanding Constitutional Law, 1995, p.140

[2] *Major (Retd) Akhtaruzzaman v. Bangladesh*, W.P. No.3774 of 1999 (Unreported)

[3] Ibid

[4] Ibid

[5] *Rayner (Mincing Lane) Ltd. v. Department of Trade*, [1990] 2 AC 326, 347; *Littrell v. USA (No.2)* [1994] 2 All E.R. 203

the disadvantage of the holders of these offices during their respective term of office. So that the holders of these offices may perform their duties free of any consideration except that of the public interest, art.147(3) provides that no person appointed to or acting in any such office shall hold any office, post or position of profit or emolument[1] or take part in the management or conduct of any company, association or body having profit or gain as its object. This may prevent the holder of any such office from receiving the salary or remuneration of the office as payment of salary or remuneration renders such an office an office of profit. To remove any such contention, a proviso has been included which states that for the purpose of clause (3) holders of these offices shall not be deemed to hold any office of profit even though they will receive the salary and other benefits of the office prescribed by Acts of Parliament in terms of art.147(1).

SUITS BY AND AGAINST BANGLADESH

6.60 Art.146 provides that the Government of Bangladesh may sue and be sued by the name of Bangladesh. In view of the provisions of art.145 neither the President, nor any person executing any contract or deed in exercise of the executive authority of the Republic shall be personally liable in respect thereof. Further provision of the article that this immunity shall not prejudice the right of any person to take proceedings against the government makes it clear that an individual can sue the government on such contract or deed. But the question is whether the government can be sued on vicarious liability for the tort of its employees.

6.60A Though art.146 provides that the Government of Bangladesh may sue or be sued by the name of Bangladesh, the applicant has to mention a competent official in the facts of a particular case who can represent Bangladesh. If the government is not made a party or is not properly described in the application, the opposite party must raise objection, if they want to, at the earliest opportunity so that the applicant may get an opportunity to take steps. If the proper party is not before a tribunal then whether any objection is taken or not the applicant will run the risk of having an ineffective order to his peril and his application may be adjudged as incompetent.[2] A petition will not, however, fail

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[1] See Para 4.7 for the meaning of 'office of profit'.

[2] *Ali Emdad v. Labour Directorate*, 1998 BLD (AD) 137; see also *Abdul Naim v.*

where there is a mere misdescription of a necessary party.[1]

6.61 *Tort claims:* In British India a distinction was made between sovereign and non-sovereign acts and it was held that the government could not be sued for tort of its servant engaged in sovereign acts.[2] In some cases this distinction was not made.[3] After independence the same distinction was in most cases maintained in India.[4] In *Rajasthan v. Vidyawati*[5] the Indian Supreme Court made certain observation from which it appeared that the court was ready to give up the distinction, but in *Kasturi Lal Ralia Ram v. U.P.*[6] the Supreme Court maintained the distinction to deny a claim in tort. The courts, however, tried to alleviate the position by treating the functions as non-sovereign which were earlier treated as sovereign functions.[7] The Indian Supreme Court has allowed compensation for tort involving life and personal liberty in proceedings under art.32 and 226[8], but so far in respect of private law

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Chairman, Bd. of Directors, Sonali Bank, 3 BLC (AD) 1 and 1 BLC (AD) 80

[2] *Rashiduzzaman v. Bangladesh*, 49 DLR 43

[2] *Gurucharan v. Madras*, AIR 1942 Mad 539 (no suit could lie against the government for wrongful confinement as it was performing a sovereign function; *Etti v. Secretary of State*, AIR 1939 Mad 663 (tort of employees employed in government hospital); *Secretary of State v. Ram*, 37 CWN 967 (negligence of officer in discharge of statutory duty); *Mata Prasad v. Secretary of State*, AIR 1931 Oudh 29; *P. & O. Steam Navigation Co. Secretary of State*, 5 Bom. H.C.R. App.1; *Secretary of State v. Moment*, 40 IA 48

[3] *Secretary of State v. Hari Bhanji*, ILR 5 Mad 273

[4] *India v. Harbans Singh*, AIR 1959 Punj 39 (no cause of action against government for rash driving of military driver engaged in military duty which is a sovereign function); *Purnendu Deb v. India*, AIR 1956 Cal 66; *Kishanmurthy v. A.P.*, AIR 1961 AP 283 (injury by road roller engaged in maintaining roads);

[5] AIR 1962 SC 933

[6] AIR 1965 SC 1039 (Police seized some gold from the plaintiff suspecting it to be stolen and the gold was stolen from the malkhana by an employee. The plaintiff was acquitted of the charge, but the court denied his claim in tort as the damage had been caused by the state's employees during the course of employment and in exercise of statutory function delegated to them which fell within the concept of sovereign powers.)

[7] *Shyam Sunder v. Rajasthan*, AIR 1974 SC 890 (famine relief work); *Pushpa Thakur v. India*, AIR 1986 SC 1199 (negligent driving of a military truck by a military jawan); *State v. Hindusthan Lever*, AIR 1972 All 486 (banking business by State); *Mysore v. Ramchandra*, AIR 1972 Bom 93 (construction of reservoir for drinking water); *India v. Sadasiv*, AIR 1985 Bom 345 (injury caused while towing a crane of government department);

[8] *Nilabati Behra v. Orissa*, AIR 1993 SC 1960; *Rudul Shah v. Bihar*, AIR 1983 SC 1086

remedy of suit the distinction between sovereign and non-sovereign acts has been maintained. The Pakistan Supreme Court, however, took a different view and held in *Pakistan v. A. Hayat*[1] that the constitutional status of the Crown was wholly different from that of the Government of Pakistan and in a subsequent case found the government liable in tort observing that the expression 'sovereign act' was applicable only to acts committed in relation to other States or aliens and was inapplicable in a case where the government was acting in relation to its own citizens.[2]

6.62 The doctrine of sovereign immunity was developed from the English maxim, "King can do no wrong" and the doctrine was carried to the United States where it was applied to deny tort claims. When it was pointed out that there was no kingship in the U.S.A., the doctrine was rationalised by Justice Holmes, saying "A sovereign is exempt from suit not because of any formal conception or absolute theory, but on the logical and practical ground that there can be no legal right against the authority which makes the law on which the right depends."[3] But the position changed in that country with the passing of the Federal Tort Claims Act, 1946 and the amendment of the Administrative Procedure Act in 1976 eroding the doctrine of sovereign immunity. In England also the hardship has been removed by the Crown Proceedings Act, 1947 and the Crown is vicariously liable for the wrongful acts of its servants. The Crown sometimes claims exemption from liability on ground of public policy. But such claim has been rejected. In *Dorset Yacht Co. v. Home Office*[4] the House of Lords held that the Crown would be liable for damage of a yacht caused by boys escaping from an open borstal if negligent custody be found. Making a distinction between sovereign and non-sovereign acts to preclude tort action in respect of sovereign acts virtually amounts to application of the doctrine of act of State[5], but there can be no act of State by a sovereign against its own citizens[6].

6.63 In Bangladesh where the people are the ultimate sovereign and

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[1] 14 DLR (SC) 7

[2] *Pakistan v. Mohammad Yaqoob*, 15 DLR (SC) 369

[3] *Kawananakoa v. Polybank*, 205 US 349, 353

[4] [1970] AC 1044

[5] An act of State is an act of a sovereign against another sovereign or an alien outside its territory which derives its authority not from municipal law but from ultra-legal means and is not subject to scrutiny of municipal courts. See *East India Co. v. Syed Ally*, 7 MIA 555; *Secretary of State v. Kamachee Boyee Sahaba*, 7 MIA 476; *Eshugbayi Eleko v. Nigeria*, 1931 AC 662

[6] *Mir Ahmed Nawaz Khan v. Superintendent, Lyallpur Jail*, PLD 1966 SC 357, 360

its Constitution proclaims the rule of law, there is no justification for clinging to a doctrine developed centuries before in a country ruled by the monarchs. The doctrine really does not serve any legitimate purpose. On the contrary, it does incalculable harm in that if the government is not liable in tort for malfeasance of its employees, the government may not bother much about what its employees do to the citizens and in the ultimate analysis there remains no accountability on which success of democracy depends.

SAVING OF EXISTING LAWS AND REPEALS

6.64 Validity of laws depends on the continuance of the legal order under which those were made. Once that legal order is destroyed, the laws cease to have validity unless the new legal order recognises those pre-existing laws. Subject to the Proclamation of Independence, all Pakistani laws were continued by the Laws Continuance Enforcement Order, 1971. Art.152 defines 'existing law' as meaning any law in force in, or in any part of, the territory of Bangladesh immediately before the commencement of the Constitution, whether or not it has been brought into operation. Art.149 provides that subject to the provisions of this Constitution all existing laws shall continue to have effect but may be amended or repealed by law made under this Constitution. Thus all laws which were in force at the commencement of the Constitution were continued and have the force of law under the Constitution. The important question is what are the laws which were continued by the Laws Continuance Enforcement Order, 1971. In order to apply the Order of 1971 two conditions must be fulfilled - (1) the law must be a valid law and (2) it must not be inconsistent with the Proclamation of Independence.[1] If a piece of legislation cannot qualify as a valid law it is not necessary to consider whether it is inconsistent with the Proclamation of Independence. In *M/S Dulichand Omraolal v. Bangladesh*[2] the Enemy Property (Continuance of Emergency Provisions) Ordinance (Ordinance no.1 of 1969) was held to be a valid law. It was observed that the validity of the law was impliedly upheld in *Bangladesh Enemy Property Management Board v. Abdul Mazid*[3]. In

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[1] *Chittagong Textile Mills v. Bangladesh*, 1979 BSCR 440 (War Risk Insurance Ordinance, 1969 was held to be inconsistent with the Proclamation of Independence and hence not continued by the Law Continuance Enforcement Order, 1971)

[2] 33 DLR (AD) 30

[3] 27 DLR (AD) 52

Abdul Mazid the validity of the Ordinance was not questioned and as such it cannot be a precedent for the validity of the Ordinance. The Ordinance was promulgated on 17 February 1969 under art.29 of the Constitution of Pakistan of 1962 and in terms of art.29(3) the Ordinance ought to be deemed to have been repealed on the expiry of 180 days. The Ordinance was, however, continued in operation by the Provisional Constitution Order, 1969 passed on 4 April 1969 by Yahya Khan. Hence the validity of the Ordinance depended on the validity of the Provisional Constitution Order, 1969. Unquestionably Yahya Khan was an usurper and his acts had not been validated by any constitutional manipulation either in Pakistan or in Bangladesh and, in fact, he had been declared to be a usurper by the Pakistan Supreme Court in *Asma Jilani v. Punjab*[1]. In this situation the laws purported to have been made by Yahya Khan cannot be treated as valid law and the Ordinance could not be continued by the Laws Continuance Enforcement Order, 1971. It can be treated as a valid law only if the doctrine of implied mandate enunciated by Lord Pearce in *Madzimbamuto v. Lardner-Burke*[2] or the doctrine of condonation applied by Hamoodur Rahman CJ in *Asma Jilani*[3] is applied in this case. It is an open question whether a law made by a Pakistani usurper can be treated as a valid law by the application of the doctrine of necessity and whether the doctrine can at all be applied for finding continuity of the law in the completely new State of Bangladesh. The Appellate Division held the Ordinance valid without consideration of the issues involved. The court did not go into the question because of the repeal of the Ordinance by Parliament in 1974 from which it may be contended that Parliament considered that in case of this law the doctrine of necessity was applicable. In *Mullick Brothers v. Bangladesh*[4] the Appellate Division held that M.L.R. 32 of 1969 was not a valid piece of legislation and was not continued by the Order of 1971. But this judgment was reviewed and set aside by the court without coming to a finding that the holding in the original judgment was wrong.[5] Whatever be the position of the laws made by Yahya

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[1] PLD 1972 SC 139

[2] [1968] 3 All E.R. 561

[3] Yakub Ali J was of the view, "Laws saved by this rule do not achieve validity. They remain illegal, but acts done and proceedings undertaken under invalid law may be condoned on the conditions that the recognition given by the court is proportionate to the evil averted ..." (p.239)

[4] 31 DLR (AD) 165

[5] *Commr. of Income Tax v. Mullick Brothers*, 33 DLR (AD) 274 (for analysis of the

administration prior to 25 March 1971, all laws made in Pakistan after 25 March 1971 must be held to be inconsistent with the Proclamation of Independence and were not continued by the Order of 1971.[1]

6.65 A law to be continued under art.149 must not be inconsistent with any provision of the Constitution.[2] The expression 'existing laws' includes not only statutory laws, but also personal laws and the common law of the land which were being administered in the territory of Bangladesh.[3] The Indian Supreme Court held that the doctrine that the Crown was not bound by statute was also continued.[4] But the court later overruled this holding stating that the doctrine was inconsistent with the principle of equality and incongruous in the present set up and cannot be treated to be continued.[5] It is submitted that the same position must obtain in our constitutional dispensation.

TRANSITIONAL AND TEMPORARY PROVISIONS

6.66 Whenever a new constitution is adopted there occurs the necessity of making certain provisions for transition from the old legal order to the new legal order to ensure continuity. Thus art.150 provides for such transitional provisions in the Fourth Schedule and states that those provisions of the Fourth Schedule shall have effect notwithstanding any inconsistency with the provisions of the Constitution.

6.67 The provisions of the Fourth Schedule provide for dissolution of the Constituent Assembly constituted under the Provisional Constitution of Bangladesh Order, 1972, holding of the first general election of the members of Parliament, ratification of all things done from 26 March 1971 up to the commencement of the Constitution, continuance of the legislative and executive powers of the Republic till the commencement of the Constitution, continuance in the office of the President, Speaker, Deputy Speaker, Prime Minister and other Ministers and the persons who were holding those offices, continuation of persons holding the

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case, see Para 5.208)

[1] see *Md. Yahya v. Bangladesh*, 35 DLR 182

[2] *India v. City Municipal Council*, AIR 1978 SC 1803

[3] *Director of Rationing v. Corp. of Calcutta*, AIR 1960 SC 1355; *Builders Supply Corp. v. India*, AIR 1965 SC 1061

[4] *Director of Rationing v. Corp. of Calcutta*, AIR 1960 SC 1355

[5] *W.B. v. Corp. of Calcutta*, AIR 1967 SC 997

office of Judges of the High Court constituted under the Provisional Constitution of Bangladesh Order, 1972 and continuation of the proceedings pending in the High Court of Bangladesh and the interim rights of appeal, continuation of the Election Commission and the Public Service Commission and the holders of office in such Commissions and continuation of the members of the service of the Republic.[1] Paragraph 16 provided for vesting of the properties, assets and rights and liabilities and obligation of the Government of Bangladesh existing prior to the commencement of the Constitution in the Republic. Clause (3) of the paragraph provides that no liability or obligation of any other government which functioned in the territory of Bangladesh is or shall be a liability or obligation of the Republic unless it is expressly accepted by the Government of Bangladesh. Thus when not accepted by the Government of Bangladesh, it cannot be saddled with the liability of paying equivalent value of the demonetised notes deposited in pursuance of Martial Law Regulation of Pakistan regime.[2]

6.68 Under art.83 of the Constitution no tax can be levied or collected except by or under the authority of an Act of Parliament. Hence on the commencement of the Constitution no tax could be levied or collected under the pre-constitution laws as an Act of Parliament means an Act of Bangladesh Parliament constituted under art.65. To avoid this situation, paragraph 13 provides that all taxes and fees imposed under any law in force in Bangladesh immediately before the commencement of this Constitution shall continue to be imposed but may be varied or abolished by law.

6.69 Paragraph 17 conferred on the President power of adaptation of laws and removal of difficulties including the power to direct up to the time of first meeting of Parliament that the Constitution would have effect subject to adaptations (whether by way of modification, addition or omission) made by him for such period as he would specify.

6.70 After the Constitution came into force the Fourth Schedule was amended by incorporating paragraphs 3A, 6A and 6B by the Martial Law Proclamation Orders of 1976 and 1977. These amendments would have been void but for the Constitution (Fifth Amendment) Act, 1979 whereby paragraph 18 was inserted in the Fourth Schedule to impart

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[1] *Dr. Nurul Islam v. Bangladesh*, 1981 BLD 12 (terms and conditions of service of a pre-Constitution employee can be varied or revoked only by law)

[2] *Md. Yahya v. Bangladesh*, 35 DLR 182

validity to the acts and things including constitutional amendments done during the Martial Law period and ousting the jurisdiction of the courts in respect of those acts and things. The Constitution (Seventh Amendment) Act, 1986 followed the same pattern to achieve the same purpose by inserting paragraph 19 in the Fourth Schedule.[1] It is open to question whether these amendments are invalid on the ground of fraud on the Constitution and alteration of the basic features of the Constitution, namely, supremacy of the Constitution, judicial review and the rule of law.[2]

6.71 In some cases the actions of the Chief Martial Law Administrator were challenged, but the court rejected the challenge holding that those actions were protected by the Seventh Amendment of the Constitution.[3] It does not appear that invalidity of the amendment for alteration of the basic features of the Constitution was raised.

6.72 By paragraphs 3A, 18 and 19 laws made during Martial Law period have been imparted validity and protected from challenge of unconstitutionality. From this an argument was advanced in *Shahriar Rashid Khan v. Bangladesh*[4] that such laws became part of the Constitution and could not be repealed or amended by Parliament by simple majority. The argument was repelled and the court held that those paragraphs did not make those laws part of the Constitution, but merely protected the validity of the laws passed during the Martial Law period and have not the effect of precluding repeal of these laws in the way other laws can be repealed by Parliament.

6.73 Paragraphs 3A(6) and 19(8) provide that the revocation of Martial Law Proclamations and withdrawal of Martial Law shall not revive or restore any right or privilege not in existence at the time of such revocation or withdrawal. Read in proper context, these provisions refer to the rights and privileges destroyed or affected by the Martial Law Proclamations and not to the rights and privileges affected by ordinary laws.[5]

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[1] *Helaluddin v. Bangladesh*, 45 DLR (AD) 1

[2] see Para 4.68 and 4.69

[3] *Abdur Rashid Sarker v. Bangladesh*, 48 DLR (AD) 99; *Mujibur Rahman v. Bangladesh*, 1993 BLD (AD) 54; *Shah Mohd. v. Secy. to the President*, 1 BLC 8

[4] 1998 BLD (AD) 155

[5] See Para 1.103

APPENDIX A

THE PROCLAMATION OF INDEPENDENCE

Whereas free elections were held in Bangladesh from 7th December, 1970 to 17th January, 1971 to elect representatives for the purpose of framing a Constitution,

Whereas at these elections the people of Bangladesh elected 167 out of 169 representatives belonging to Awami League,

AND

Whereas General Yahya Khan summoned the elected representatives of the people to meet on the 3rd March, 1971, for the purpose of framing a Constitution,

AND

Whereas the assembly so summoned was arbitrarily and illegally postponed for an indefinite period,

AND

Whereas instead of fulfilling their promise and still conferring with the representatives of the people of Bangladesh, Pakistan authorities declared an unjust and treacherous war,

AND

Whereas in the facts and circumstances of such treacherous conduct Bangabandhu Sheikh Mujibur Rahman, the undisputed leader of 75 million people of Bangladesh in due fulfilment of the legitimate right of self-determination of the people of Bangladesh, duly made a declaration of independence at Dacca on March 26, 1971, and urged the people of Bangladesh to defend the honour and integrity of Bangladesh,

AND

Whereas in the conduct of a ruthless and savage war the Pakistani authorities committed and are still continuously committing numerous acts of genocide and unprecedented tortures, amongst others, on the civilian and unarmed people of Bangladesh,

AND

Whereas the Pakistan Government by levying an unjust war and committing genocide and by other repressive measures made it impossible for the elected representatives of the people of Bangladesh to meet and frame a Constitution, and give to themselves a Government,

AND

Whereas the people of Bangladesh by their heroism, bravery and revolutionary fervour have established effective control over the territories of

Bangladesh,

We, the elected representatives of the people of Bangladesh, as honour bound by the mandate given to us by the people of Bangladesh whose will is supreme, duly constituted ourselves into a Constituent Assembly, and

having held mutual consultations, and in order to ensure for the people of Bangladesh equality, human dignity and social justice,

declare and constitute Bangladesh to be a sovereign People's Republic and thereby confirm the declaration of independence already made by Bangabandhu Sheikh Mujibur Rahman and

do hereby affirm and resolve that till such time as a Constitution is framed, Bangabandhu Sheikh Mujibur Rahman shall be President of the Republic and that Syed Nazrul Islam shall be the Vice-President of the Republic, and

that the President shall be the Supreme Commander of all the Armed Forces of the Republic,

shall exercise all the Executive and Legislative powers of the Republic including the power to grant pardon,

shall have the power to appoint a Prime Minister and such other Ministers as he considers necessary,

shall have power to levy taxes and expend monies,

shall have the power to summon and adjourn the Constituent Assembly, and do all other things that may be necessary to give to the people of Bangladesh an orderly and just Government.

We, the elected representatives of the people of Bangladesh do further resolve that in the event of there being no President or the President being unable to enter upon his office or being unable to exercise his powers due to any reason whatsoever, the Vice-President shall have and exercise all the powers, duties and responsibilities herein conferred on the President.

We further resolve that we undertake to observe and give effect to all duties and obligations that devolve upon us as a member of the family of nations and to abide by the Charter of the United Nations.

We further resolve that this proclamation of independence shall be deemed to have come into effect from 26th day of March, 1971.

We further resolve that in order to give effect to this instrument we appoint Prof. Yusuf Ali our duly constituted Potentiary and to give to the President and the Vice-President oaths of office.

Mujibnagar, Bangladesh
10th April, 1971

Sd/ Prof. Yusuf Ali

Duly Constituted Potentiary by and under the authority of the Constituent Assembly of Bangladesh.

APPENDIX B

LAWS CONTINUANCE ENFORCEMENT ORDER, 1971

I, Syed Nazrul Islam, the Vice-President and Acting President of Bangladesh, in exercise of the powers conferred on me by the Proclamation of Independence dated tenth day of April, 1971 do hereby order that all laws that were in force in Bangladesh on 25th March, 1971, shall subject the Proclamation aforesaid continue to be so in force with such consequential changes as may be necessary on account of the creation of the sovereign independent State of Bangladesh formed by the will of the people of Bangladesh and that all Government officials, civil, military, judicial and diplomatic who take oath of allegiance to Bangladesh shall continue in their offices on terms and conditions of service so long enjoyed by them and that all District Judges and District Magistrates, in the territory of Bangladesh and all diplomatic representatives elsewhere shall arrange to administer the oath of allegiance to all government officials within their jurisdiction.

This order shall be deemed to have come into effect from 26th of March, 1971.

Sd: Syed Nazrul Islam
Acting President

APPENDIX C

PROVISIONAL CONSTITUTION OF BANGLADESH ORDER, 1972

Whereas by the Proclamation of Independence Order dated the 10th April, 1971 provisional arrangements were made for the governance of the People's Republic of Bangladesh;

And Whereas by the said Proclamation the President is invested with all executive and legislative authority and the power to appoint a Prime Minister;

And Whereas the unjust and treacherous war as referred to in the said Proclamation has now ended;

And Whereas it is the manifest aspiration of the people of Bangladesh that a parliamentary democracy shall function in Bangladesh;

And Whereas in pursuance of the said objective it is necessary immediately to make certain provisions in that behalf.

Now, Therefore, in pursuance of the Proclamation of Independence Order dated the 10th April, 1971 and all other powers enabling him in that behalf the President is pleased to make and promulgate the following Order:

(1) This Order may be called the Provisional Constitution of Bangladesh Order, 1972.

(2) It extends to the whole of Bangladesh.

(3) It shall come into force at once.

(4) Definition: "Constituent Assembly" referred to in this Order means the body comprising of the elected representatives of the people of Bangladesh returned to the N.A. and P.A. seats in the elections held in December, 1970, January, 1971 and March, 1971 not otherwise disqualified by or under any law.

(5) There shall be a Cabinet of Ministers, with the Prime Minister at the head.

(6) The President shall in exercise of all his functions act in accordance with the advice of the Prime Minister

(7) The President shall commission as Prime Minister a member of the Constituent Assembly, who commands the confidence of the majority of the members of the Constituent Assembly. All other Ministers, Ministers of State and Deputy Ministers shall be appointed by the President on the advice of the Prime Minister.

(8) In the event of a vacancy occurring in the office of the President at any time prior to the framing of the Constitution by the constituent Assembly, the Cabinet shall appoint as President a citizen of Bangladesh who will hold the office President until another President enters upon the office in accordance with the Constitution as framed by the Constituent Assembly.

(9) There shall be a High Court of Bangladesh, consisting of a Chief Justice and so many other Judges as may be appointed from time to time.

(10) The Chief Justice of the High Court of Bangladesh shall administer an oath of office to the President and the President shall administer an oath of office to the Prime Minister, other Ministers, Ministers of State and Deputy Ministers. The form of the oath shall be as prescribed by the Cabinet.

Dated this eleventh day of January, one thousand nine hundred and seventy two, being the twenty-sixth day of Poush, one thousand three hundred and seventy eight.

APPENDIX D

THE CONSTITUTION OF THE PEOPLE'S REPUBLIC OF BANGLADESH

[1][Bismillah-Ar-Rahman-Ar-Rahim
(In the name of Allah, the Beneficent, the Merciful)]

PREAMBLE

We, the people of Bangladesh, having proclaimed our Independence on the 26th day of March, 1971 and through [2][a historic war for national independence], established the independent, sovereign People's Republic of Bangladesh;

[3][Pledging that the high ideals of absolute trust and faith in the Almighty Allah, nationalism, democracy and socialism meaning economic and social justice, which inspired our heroic people to dedicate themselves to, and our brave martyrs to sacrifice their lives in, the war for national independence, shall be the fundamental principles of the Constitution;]

Further pledging that it shall be a fundamental aim of the State to realise through the democratic process a socialist society, free from exploitation - a society in which the rule of law, fundamental human rights and freedom, equality and justice, political, economic and social, will be secured for all citizens;

Affirming that it is our sacred duty to safeguard, protect and defend this Constitution and to maintain its supremacy as the embodiment of the will of the people of Bangladesh so that we may prosper in freedom and may make our full contribution towards international peace and co-operation in keeping with the progressive aspirations of mankind;

In our Constituent Assembly, this eighteenth day of *Kartick*, 1379 B.S. corresponding to the fourth day of November, 1972 A.D., do hereby adopt, enact and give to ourselves this Constitution.

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[1] The words, commas and brackets within brackets were inserted by the Proclamation amendment) Order, 1977

[2] Substituted ibid, for the words "a historic struggle for national liberation"

[3] Substituted ibid, for the second paragraph

PART I
THE REPUBLIC

1. *The Republic.* Bangladesh is a unitary, independent, sovereign Republic to be known as the People's Republic of Bangladesh.

2. *The territory of the Republic.* The territory of the Republic shall comprise –

(a) the territories which immediately before the proclamation of independence on the 26th day of March, 1971 constituted East Pakistan [1][and the territories referred to as included territories in the Constitution (Third Amendment) Act, 1974, but excluding the territories referred to as excluded territories in that Act; and]

(b) such other territories as may become included in Bangladesh.

[2][**2A.** *The state religion.* The state religion of the Republic is Islam, but other religions may be practised in peace and harmony in the Republic.]

3. *The state language.* The state language of the Republic is [3][Bangla].

4. *National anthem, flag and emblem.* (1) The national anthem of the Republic is the first ten lines of "*Amar Sonar Bangla*".

(2) The national flag of the Republic shall consist of a circle, coloured red through out its area, resting on a green background.

(3) The national emblem of the Republic is the national flower *Shapla* (*nymphoea nouchali*) resting on water, having on each side an ear of paddy and being surmounted by three connected leaves of jute with two stars on each side of the leaves.

(4) Subject to the foregoing clauses, provisions relating to the national anthem, flag and emblem shall be made by law.

5. *The capital.* (1) The capital of the Republic is [4][Dhaka].

(2) The boundaries of the capital shall be determined by law.

[5][**6.** *Citizenship.* (1) The citizenship of Bangladesh shall be determined and regulated by law.

(2) The citizens of Bangladesh shall be known as Bangladeshis].

7. *Supremacy of the Constitution.* (1) All powers in the Republic belong to the people, and their exercise on behalf of the people shall be effected only

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[1] Substituted by the Act LXXIV of 1974, s. 3.
[2] Inserted by Act XXX of 1988
[3] Substituted by Act XXX of 1988
[4] Substituted ibid, for "Dacca"
[5] Substituted by Proclamation Order I of 1977

under, and by the authority of, this Constitution.

(2) This Constitution is, as the solemn expression of the will of the people, the supreme law of the Republic, and if any other law is inconsistent with this Constitution that other law shall, to the extent of the inconsistency, be void.

PART II
FUNDAMENTAL PRINCIPLES OF STATE POLICY

8. *Fundamental Principles.* [1][(1) The principles of absolute trust and faith in the Almighty Allah, nationalism, democracy and socialism meaning economic and social justice, together with the principles derived from them as set out in this Part, shall constitute the fundamental principles of state policy.

(1A) Absolute trust and faith in the Almighty Allah shall be the basis of all actions.]

(2) The principles set out in this Part shall be fundamental to the governance of Bangladesh, shall be applied by the State in the making of laws, shall be a guide to the interpretation of the Constitution and of the other laws of Bangladesh, and shall form the basis of the work of the State and of its citizens, but shall not be judicially enforceable.

[2][**9.** *Promotion of local Government institutions.* The State shall encourage local Government institutions composed of representatives of the areas concerned and in such institutions special representation shall be given, as far as possible, to peasants, workers and women.

10. *Participation of women in national life.* Steps shall be taken to ensure participation of women in all spheres of national life.]

11. *Democracy and human rights.* The Republic shall be a democracy in which fundamental human rights and freedoms and respect for the dignity and worth of the human persons shall be guaranteed [3] * * * [4][, and in which effective participation by the people through their elected representatives in administration at all levels shall be ensured].

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[1] Clause (1) and (1A) of Art.8 was substituted for clause (1) by Proclamations Order I of 1977

[2] Articles 9 and 10 were substituted for articles 9 and 10, ibid.

[3] The comma and words ", and in which effective participation by the through their elected representatives in administration at all levels shall be ensured" were omitted by Act II of 1975, s.2

[4] The comma and words within square brackets were inserted by Act XXVIII of 1991, s.2 (w.e.f.18-9-91)

[1] * * * * * *

13. *Principles of ownership.* The people shall own or control the instruments and means of production and distribution, and with this end in view ownership shall assume the following form -

(a) state ownership, that is ownership by the State on behalf of the people through the creation of an efficient and dynamic nationalised public sector embracing the key sectors of the economy;

(b) co-operative ownership, that is ownership by co-operatives on behalf of their members within such limits as may be prescribed by law; and

(c) private ownership, that is ownership by individuals within such limits as may be prescribed by law.

14. *Emancipation of peasants and workers.* It shall be a fundamental responsibility of the State to emancipate the toiling masses - the peasants and workers - and backward sections of the people from all forms of exploitation.

15. *Provision of basic necessities.* It shall be a fundamental responsibility of the State to attain, through planned economic growth, a constant increase of productive forces and a steady improvement in the material and cultural standard of living of the people, with a view to securing to its citizens -

(a) the provision of the basic necessities of life, including food, clothing, shelter, education and medical care;

(b) the right to work, that is the right to guaranteed employment at a reasonable wage having regard to the quantity and quality of work;

(c) the right to reasonable rest, recreation and leisure; and

(d) the right to social security, that is to say to public assistance in cases of undeserved want arising from unemployment, illness or disablement, or suffered by widows or orphans or in old age, or in other such cases.

16. *Rural development and agricultural revolution.* The State shall adopt effective measures to bring about a radical transformation in the rural areas through the promotion of an agricultural revolution, the provision of rural electrification, the development of cottage and other industries, and the improvement of education, communications and public health, in those areas, so as progressively to remove the disparity in the standards of living between the urban and the rural areas.

17. *Free and compulsory education.* The State shall adopt effective measures for the purpose of -

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[1] Article 12 was omitted by the Proclamation Order No.I of 1977

(a) establishing a uniform, mass oriented and universal system of education and extending free and compulsory education to all children to such stage as may be determined by law;
(b) relating education to the needs of society and producing properly trained and motivated citizens to serve those needs;
(c) removing illiteracy within such time as may be determined by law.

18. *Public health and morality.*(1) The State shall regard the raising of the level of nutrition and the improvement of public health as among its primary duties, and in particular shall adopt effective measures to prevent the consumption, except for medical purposes or for such other purposes as may be prescribed by law, of alcoholic and other intoxicating drinks and of drugs which are injurious to heaLth.(2) The State shall adopt effective measures to prevent prostitution and gambling.

19. *Equality of opportunity.*(1) The State shall endeavour to ensure equality of opportunity to all citizens.

(2) The State shall adopt effective measures to remove social and economic inequality between man and man and to ensure the equitable distribution of wealth among citizens, and of opportunities in order to attain a uniform level of economic development throughout the Republic.

20. *Work as a right and duty.* (1) Work is a right, a duty and a matter of honour for every citizen who is capable of working, and everyone shall be paid for his work on the basis of the principle "from each according to his abilities to each according to his work".

(2) The State shall endeavour to create conditions in which, as a general principle, persons shall not be able to enjoy unearned incomes, and in which human labour in every form, intellectual and physical, shall become a fuller expression of creative endeavour and of the human personality.

21. *Duties of citizens and of public servants.* (1) It is the duty of every citizen to observe the Constitution and the laws, to maintain discipline, to perform public duties and to protect public property.

(2) Every person in the service of the Republic has a duty to strive at all times to serve the people.

22. *Separation of judiciary from the executive.* The State shall ensure the separation of the judiciary from the executive organs of the State.

23. *National culture.* The State shall adopt measures to conserve the cultural traditions and heritage of the people, and so to foster and improve the national language, literature and the arts that all sections of the people are afforded the opportunity to contribute towards and to participate in the enrichment of the national culture.

24. *National monuments, etc.* The State shall adopt measures for the protection against disfigurement, damage or removal of all monuments, objects or places of special artistic or historic importance or interest.

25. *Promotion of international peace, security and solidarity.* [1][(1) The State shall base its international relations on the principles of respect for national sovereignty and equality, non-interference in the internal affairs of other countries, peaceful settlement of international disputes, and respect for international law and the principles enunciated in the United Nations Charter, and on the basis of those principles shall -

(a) strive for the renunciation of the use of force in international relations and for general and complete disarmament;

(b) uphold the right of every people freely to determine and build up its own social, economic and political system by ways and means of its own free choice; and

(c) support oppressed peoples throughout the world waging a just struggle against imperialism, colonialism or racialism.

[2][(2) The State shall endeavour to consolidate, preserve and struggle against imperialism, colonialism or racialism.strengthen fraternal relations among Muslim countries based on Islamic solidarity.]

PART III
FUNDAMENTAL RIGHTS

26. *Laws inconsistent with fundamental rights to be void.* (1) All existing law inconsistent with the provisions of this Part shall, to the extent of such inconsistency, become void on the commencement of this Constitution.

(2) The State shall not make any law inconsistent with any provisions of this Part, and any law so made shall, to the extent of such inconsistency, be void.

[3][(3) Nothing in this article shall apply to any amendment of this Constitution made under article 142.]

27. *Equality before law.* All citizens are equal before law and are entitled to equal protection of law.

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[1] Article 25 was renumbered as clause (1) of that article by the Proclamation Order No.I of 1977

[2] Clause (2) was added by the Proclamation Order No.I of 1977

[3] Clause (3) was added by Act XXIV of 1973, s.2 (w.e.f. 15.7.73)

28. *Discrimination on grounds of religion, etc.* (1) The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex or place of birth.

(2) Women shall have equal rights with men in all spheres of the State and of public life.

(3) No citizen shall, on grounds only of religion, race, caste, sex or place of birth be subjected to any disability, liability, restriction or condition with regard to access to any place of public entertainment or resort, or admission to any educational institution.

(4) Nothing in this article shall prevent the State from making special provision in favour of women or children or for the advancement of any backward section of citizens.

29. *Equality of opportunity in public employment.* (1) There shall be equality of opportunity for all citizens in respect of employment or office in the service of the Republic.

(2) No citizens shall, on grounds only of religion, race, caste, sex or place of birth, be ineligible for, or discriminated against in respect of, any employment or office in the service of the Republic.

(3) Nothing in this article shall prevent the State from -

(a) making special provision in favour of any backward section of citizens for the purpose of securing their adequate representation in the service of the Republic;

(b) giving effect to any law which makes provision for reserving appointments relating any religious or denominational institution to persons of that religion or denomination;

(c) reserving for members of one sex any class of appointment or office on the ground that it is considered by its nature to be unsuited to members of the opposite sex.

[1][**30.** *Prohibition of foreign titles, etc.* No citizen shall without the prior approval of the President, accept any title, honour, award or decoration from any foreign state.]

31. *Right to protection of law.* To enjoy the protection of law, and to be treated in accordance with law, and only in accordance with law, is the inalienable right of every citizen, wherever he may be, and of every other person for the time being within Bangladesh, and in particular no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law.

32. *Protection of right to life and personal liberty.* No person shall be

[1] Substituted by Act XXX of 1988, s.5, for article 30.

deprived of life or personal liberty save in accordance with law.

[1]**33.** *Safeguards as to arrest and detention.* (1) No person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest, nor shall he be denied the right to consult and be defended by a legal practitioner of his choice.

(2) Every person who is arrested and detained in custody shall be produced before the nearest magistrate within a period of twenty-four hours of such arrest, excluding the time necessary for the journey from the place of arrest to the court of the magistrate and no such person shall be detained in custody beyond the said period without the authority of a magistrate.

(3) Nothing in clauses (1) and (2) shall apply to any person -

(a) who for the time being is an enemy alien; or

(b) who is arrested or detained under any law providing for preventive detention.

(4) No law providing for preventive detention shall authorise the detention of a person for a period exceeding six months unless an Advisory Board consisting of three persons, of whom two shall be persons who are, or have been, or are qualified to be appointed as, Judges of the Supreme Court and the other shall be a person who is a senior officer in the service of the Republic, has, after affording him an opportunity of being heard in person, reported before the expiration of the said period of six months that there is, in its opinion, sufficient cause for such detention.

(5) When any person is detained in pursuance of an order made under any law providing for preventive detention, the authority making the order shall as soon as may be, communicate to such person the grounds on which the order has been made, and shall afford him the earliest opportunity of making a representation against the order:

Provided that the authority making any such order my refuse to disclose facts which such authority considers to be against the public interest to disclose.

(6) Parliament may by law prescribe the procedure to be followed by an Advisory Board in an inquiry under clause (4).]

34. *Prohibition of forced labour.* (1) All forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law.

(2) Nothing in this article shall apply to compulsory labour -

(a) by persons undergoing lawful punishment for a criminal offence; or

(b) required by any law for public purposes.

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[1] Substituted by Act XXIV of 1973, s.3, for the original article 33.

35. *Protection in respect of trial and punishment.* (1) No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor shall be subjected to a penalty greater than, or different from, that which might have been inflicted under the law in force at the time of the commission of the offence.

(2) No person shall be prosecuted and punished for the same offence more than once.

(3) Every person accused of a criminal offence shall have the right to a speedy and public trial by an independent and impartial court or tribunal established by law.

(4) No person accused of an offence shall be compelled to be a witness against himself.

(5) No person shall be subjected to torture or cruel, inhuman or degrading punishment or treatment.

(6) Nothing in clause (3) or clause (5) shall affect the operation of any existing law which prescribes any punishment or procedure for trial.

36. *Freedom of movement.* Subject to any reasonable restrictions imposed by law in the public interest, every citizen shall have the right to move freely throughout Bangladesh, to reside and settle in any place therein and to leave and re-enter Bangladesh.

37. *Freedom of assembly.* Every citizen shall have the right to assemble and to participate in public meetings and processions peacefully and without arms, subject to any reasonable restrictions imposed by law in the interests of public order or public health.

38. *Freedom of association.* Every citizen shall have the right to form associations or unions, subject to any reasonable restrictions imposed by law in the interests of morality or public order:

[1] * * * * * *

39. *Freedom of thought and conscience, and of speech.* (1) Freedom of thought and conscience is guaranteed.

(2) Subject to any reasonable restrictions imposed by law in the interests of the security of the State, friendly relations with foreign states, public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence -

(a) the right of every citizen to freedom of speech and expression; and

(b) freedom of the press,

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[1] Proviso to article 38 was omitted by the Second Proclamation Order No. III of 1976

are guaranteed.

40. *Freedom of profession or occupation.* Subject to any restrictions imposed by law, any citizen possessing such qualifications, if any, as may be prescribed by law in relation to his profession, occupation, trade or business shall have the right to enter upon any lawful profession or occupation, and to conduct any lawful trade or business.

41. *Freedom of religion.* (1) Subject to law, public order and morality -

(a) every citizen has the right to profess, practise or propagate any religion;

(b) every religious community or denomination has the right to establish, maintain and manage its religious institutions.

(2) No person attending any educational institution shall be required to receive religious instruction, or to take part in or to attend any religious ceremony or worship, if that instruction, ceremony or worship relates to a religion other than his own.

42. *Right to property.* (1) Subject to any restrictions imposed by law, every citizen shall have the right to acquire, hold, transfer or otherwise dispose of property, and no property shall be compulsorily acquired, nationalised or requisitioned save by authority of law.

[1][(2) A law made under clause (1) shall provide for the acquisition, nationalisation or requisition with compensation and shall either fix the amount of compensation or specify the principles on which, and the manner in which, the compensation is to be assessed and paid; but no such law shall be called in question in any court on the ground that any provision in respect of such compensation is not adequate.

(3) Nothing in this article shall affect the operation of any law made before the commencement of the Proclamations (Amendment) Order, 1977 (Proclamations Order No. I of 1977), in so far as it relates to the acquisition, nationalisation or requisition of any property without compensation.]

43. *Protection of home and correspondence.* Every citizen shall have the right, subject to any reasonable restrictions imposed by law in the interests of the security of the State, public order, public morality or public health -

(a) to be secured in his home against entry, search and seizure; and

(b) to the privacy of his correspondence and other means of communication.

[2][**44.** *Enforcement of fundamental rights.*(1) The right to move the [1][High

[1] Clauses (2) and (3) were substituted for clause (2) by the Proclamation Order No. I of 1977

[2] Article 44 was substituted for the original article 44 by the Fourth Amendment and

Court Division] in accordance with [2][clause (1)] of article 102, for the enforcement of the rights conferred by this Part is guaranteed.

(2) Without prejudice to the powers of the [3][High Court Division] under article 102, Parliament may by law empower any other court, within the local limits of its jurisdiction, to exercise all or any of those powers.]

45. *Modification of rights in respect of disciplinary law.* Nothing in this Part shall apply to any provision of a disciplinary law relating to members of a disciplined force, being a provision limited to the purpose of ensuring the proper discharge of their duties or the maintenance of discipline in that force.

46. *Power to provide indemnity.* Notwithstanding anything in the foregoing provisions of this Part, Parliament may by law make provision for indemnifying any person in the service of the Republic or any other person in respect of any act done by him in connection with the national liberation struggle or the maintenance or restoration of order in any area in Bangladesh or validate any sentence passed, punishment inflicted, forfeiture ordered, or other act done in any such area.

47. *Saving of certain laws.* (1) No law providing for any of the following matters shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges, any of the rights guaranteed by this Part -

(a) the compulsory acquisition, nationalisation or requisition of any property, or the control or management thereof whether temporarily or permanently;

(b) the compulsory amalgamation of bodies carrying on commercial or other undertakings;

(c) the extinction, modification, restriction or regulation of rights of directors, managers, agents and officers of any such bodies, or of the voting rights of persons owning shares or stock (in whatever form) therein;

(d) the extinction, modification, restriction or regulation of rights to search for or win minerals or mineral oil;

(e) the carrying on by the Government or by a corporation owned, controlled or managed by the Government, of any trade, business, industry or service to the exclusion, complete or partial, of other

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again amended by the Proclamation Order No. I of 1977

[1] Substituted by the Second Proclamation Order No. I of 1977, for `High Court' (w.e.f. 1.12.77)

[2] Substituted, ibid, for `clause (2)'.

[3] Substituted by Second Proclamation Order No. I of 1977, for "High Court" (w.e.f. 1.12.77)

persons; or

(f) the extinction, modification, restriction or regulation of any right to property, any right in respect of a profession, occupation, trade or business or the rights of employers or employees in any statutory public authority or in any commercial or industrial undertaking;

if Parliament in such law (including, in case of existing law, by amendment) expressly declares that such provision is made to give effect to any of the fundamental principles of state policy set out in Part II of this Constitution.

(2) Notwithstanding anything contained in this Constitution the laws specified in the First Schedule (including any amendment of any such law) shall continue to have full force and effect, and no provision of any such law, nor anything done or omitted to be done under the authority of such law, shall be deemed void or unlawful on the ground of inconsistency with, or repugnance to, any provision of this Constitution:

[1][Provided that nothing in this article shall prevent amendment, modification or repeal of any such law.]

[2][(3) Notwithstanding anything contained in this Constitution, no law nor any provision thereof providing for detention, prosecution or punishment of any person, who is a member of any armed or defence or auxiliary forces or who is a prisoner of war, for genocide, crimes against humanity or war crimes and other crimes under international law shall be deemed void or unlawful, or ever to have become void or unlawful, on the ground that such law or provision of any such law is inconsistent with, or repugnant to, any of the provisions of this Constitution.]

[3][**47A.** *Inapplicability of certain articles.* (1) The rights guaranteed under article 31, clauses (1) and (3) of article 35 and article 44 shall not apply to any person to whom a law specified in clause (3) of article 47 applies.

(2) Notwithstanding anything contained in this Constitution, no person to whom a law specified in clause (3) of article 47 applies shall have the right to move the Supreme Court for any of the remedies under this Constitution.]

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[1] Substituted by the Proclamation Order No.1 of 1977, for the original proviso.

[2] Clause (3) added by Act XV of 1973, s.2.

[3] Article 47 inserted, ibid, s.3

PART IV
THE EXECUTIVE
[1][CHAPTER I - THE PRESIDENT

48. *The President.* (1) There shall be a President of Bangladesh who shall be elected by members of Parliament in accordance with law.

(2) The President shall, as Head of State, take precedence over all other persons in the State, and shall exercise the powers and perform the duties conferred and imposed on him by this Constitution and by any other law.

(3) In exercise of all his functions, save only that of appointing the Prime Minister pursuant to clause (3) of article 56 and the chief Justice pursuant to clause (1) of article 95, the President shall act in accordance with the advice of the Prime Minister:

Provided that the question whether any, and if so what, advice has been tendered by the Prime Minister to the President shall not be enquired into in any court.

(4) A person shall not be qualified for election as President if he -

(a) is less than thirty-five years of age; or

(b) is not qualified for election as a member of Parliament; or

(c) has been removed from the office of President by impeachment under this Constitution.

(5) The Prime Minister shall keep the President informed on matters of domestic and foreign policy, and submit for the consideration of the Cabinet any matter which the President may request him to refer to it.

49. *Prerogative of mercy.* The President shall have power to grant pardons, reprieves and respites and to remit, suspend or commute any sentence passed by any court, tribunal or other authority.

50. *Terms of office of President.* (1) Subject to the provisions of this Constitution, the President shall hold office for a term of five years from the date on which he enters upon his office:

Provided that notwithstanding the expiration of his term the President shall continue to hold office until his successor enters upon office.

(2) No person shall hold office as President for more than two terms, whether or not the terms are consecutive.

(3) The President may resign his office by writing under his hand addressed to the Speaker.

(4) The President during his terms of office shall not be qualified for election as a member of Parliament, and if a member of Parliament is elected as

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[1] Chapters I, II and III were substituted by Act XXVIII of 1991, s.3 (w.e.f. 18.9.91)

President he shall vacate his seat in Parliament on the day on which he enters upon his office as President.

51. *President's immunity.* (1) Without prejudice to the provisions of article 52, the President shall not be answerable in any court for anything done or omitted by him in the exercise or purported exercise of the functions of this office, but this clause shall not prejudice the right of any person to take proceedings against the Government.

52. *Impeachment of the President.* (1) The President may be impeached on a charge of violating this Constitution or of grave misconduct, preferred by a notice of motion signed by a majority of the total number of members of Parliament and delivered to the Speaker, setting out the particulars of the charge, and the motion shall not be debated earlier than fourteen not later than thirty days after the notice is so delivered; and the speaker shall forthwith summon Parliament if it is not in session.

(2) The conduct of the President may be referred by Parliament to any court, tribunal or body appointed or designated by Parliament for the investigation of a charge under this article.

(3) The President shall have the right to appear and to be represented during the consideration of the charge.

(4) If after the consideration of the charge a resolution is passed by Parliament by the votes of not less than two-thirds of the total number of members declaring that the charge has been substantiated, the President shall vacate his office on the date on which the resolution is passed.

(5) Where the Speaker is exercising the functions of the President under article 54 the provisions of this article shall apply subject to the modifications that the reference to the Speaker in clause (1) shall be construed as a reference to the Deputy Speaker, and that the reference in clause (4) to the vacation by the President of his office shall be construed as a reference to the vacation by the Speaker of his office as Speaker; and on the passing of a resolution such as is referred to in clause (4) the Speaker shall cease to exercise the functions of President.

53. *Removal of President on ground of incapacity.* (1) The President may be removed from office on the ground of physical or mental incapacity on a motion of which notice, signed by a majority of the total number of members of Parliament, is delivered to the speaker, setting out particulars of the alleged incapacity.

(2) On receipt of the notice the Speaker shall forthwith summon Parliament if it is not in session and shall call for a resolution constituting a medical board (hereinafter in this article called "the board"), and upon the necessary motion being made and carried shall forthwith cause a copy of the

notice to be transmitted to the President together with a request signed by the Speaker that the President submit himself within a period of ten days from the date of the request to an examination by the Board.

(3) The motion for removal shall not be put to the vote earlier than fourteen nor later than thirty days after notice of the motion is delivered to the Speaker, and if it is again necessary to summon Parliament in order to enable the motion to be made within that period, the Speaker shall summon Parliament.

(4) The President shall have the right to appear and to be represented during the consideration of the motion.

(5) If the President has not submitted himself to an examination by the Board before the motion is made in Parliament, the motion may be put to the vote, and if it is passed by the votes of not less than two-thirds of the total number of members of Parliament, the President shall vacate his office on the date on which the motion is passed.

(6) If before the motion for removal is made in Parliament, the President has submitted himself to an examination by the board, the motion shall not be put to vote until the board has been given an opportunity to reporting its opinion to Parliament.

(7) If after consideration by Parliament of the motion and of the report of the Board (which shall be submitted within seven days of the examination held pursuant to clause (2) and if not so submitted shall be dispensed with) the motion is passed by the votes of not less than two-thirds of the total number of members of Parliament, the President shall vacate his office on the date on which the resolution is passed.

54. *Speaker to act as President during absence, etc.* If a vacancy occurs in the office of President or if the President is unable to discharge the functions of his office on account of absence, illness or any other cause the Speaker shall discharge those functions until a President is elected or until the President resumes the functions of his office, as the case may be.

CHAPTER II - THE PRIME MINISTER AND THE CABINET

55. *The Cabinet.* (1) There shall be a Cabinet for Bangladesh having the Prime Minster at its head and comprising also such other Ministers as the Prime Minister may from time to time designate.

(2) The executive power of the Republic shall, in accordance with this Constitution, be exercised by or on the authority of the Prime Minister.

(3) the Cabinet shall be collectively responsible to Parliament.

(4) All executive actions of the Government shall be expressed to be taken in the name of the President.

(5) The President shall by rules specify the manner in which orders and other instruments made in his name shall be attested or authenticated, and the validity of any order or instrument so attested or authenticated shall not be questioned in any court on the ground that it was not duly made or executed.

(6) The President shall make rule for the allocation and transaction of the business of the government.

56. *Minister.* (1) There shall be a Prime Minister, and such other Ministers, Ministers of State and Deputy Ministers as may be determined by the Prime Minister.

(2) The appointments of the Prime Minister and other Ministers and of the Minister of State and Deputy Ministers shall be made by the President:

Provided that not less than nine-tenths of their number shall be appointed from among members of Parliament and not more than one-tenth of their number maybe chosen from among persons qualified for election as members of Parliament.

(3) The President shall appoint as Prime Minister the member of Parliament who appears to him to command the support of the majority of the members of Parliament.

(4) If occasion arises for making any appointment under clause (2) or clause (3) between a dissolution of Parliament and the next following general election of members of Parliament, the persons who were such members immediately before the dissolution shall be regarded for the purpose of this clause as continuing to be such members.

57. *Tenure of office of Prime Minister.* (1) The office of the Prime Minister shall become vacant -

(a) if he resigns from office at any time by placing his resignation in the hands of the President; or

(b) if he ceases to be a member of Parliament.

(2) If the Prime Minister ceases to retain the support of a majority of the members of Parliament, he shall either resign his office or advise the President in writing to dissolve Parliament, and if he so advises the President shall if he is satisfied that no other member of Parliament commands the support of the majority of the members of Parliament, dissolve Parliament accordingly.

(3) Nothing in this article shall disqualify the Prime Minister for holding office until his successor has entered upon office.

58. *Tenure of office of other Ministers.* (1) The office of a Minister other than the Prime Minister shall become vacant -

(a) if he resigns from office by placing his resignation in the hands of

the Prime Minister for submission to the President;

(b) if he ceases to be a member of Parliament, but this shall not be applicable to a Minister chosen under the proviso to article 56(2);

(c) if the President pursuant to the provisions of clause (2) so directs; or

(d) as provided in clause (4).

(2) The Prime Minister may at any time request a Minister to resign, and if such Minister fails to comply with the request, may advise the President to terminate the appointment of such Minister.

(3) Nothing in sub-clause (a), (b) and (d) of clause (1) shall disqualify a Minister for holding office during any period in which Parliament stands dissolved.

(4) If the Prime Minister resigns from or ceases to hold office each of the other Ministers shall be deemed also to have resigned from office but shall, subject to the provisions of this Chapter, continue to hold office until his successor has entered upon office.

(5) In this article "Minister" includes Minister of State and Deputy Minister.

[1][**58A**. *Application of Chapter*. Nothing in this Chapter, except the provisions of article 55(4), (5) and (6) shall apply during the period in which Parliament is dissolved or stands dissolved:

Provided that, notwithstanding anything contained in Chapter IIA, where the President summons Parliament that has been dissolved to meet under article 72(4), this Chapter shall apply.]

[2][CHAPTER IIA - NON-PARTY CARE-TAKER GOVERNMENT]

58B. *The Non-party Care-taker Government*. (1) There shall be a Non-party Care-taker Government during the period from the date on which the Chief adviser of such government enters upon office after Parliament is dissolved or stands dissolved by reason of expiration of its term till the date on which a new Prime Minister enters upon his office after the constitution of Parliament.

(2) The Non-party Care-taker Government shall be collectively responsible to the President.

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[1]Inserted by the Constitution (Thirteenth Amendment) Act, 1996, s.2

[2]New Chapter IIA inserted *ibid*, s.3

(3) The executive power of the Republic shall during the period mentioned in clause (1), be exercised, subject to the provisions of article 58D(1), in accordance within Constitution, by or on the authority of the Chief Adviser and shall be exercised by him in accordance with the advice of the Non-party Care-taker Government.

(4) The provisions of article55(4), (5) and (6) shall, with the necessary adaptations)apply to similar matters during the period mentioned in clause (1).

58C. *Composition of the Non-party Care-taker Government, appointment of Advisers, etc.* (1) The Non-party Care-taker Government shall consist of the Chief Adviser at its head and not more than ten other Advisers, all of whom shall be appointed by the President.

(2) The Chief Adviser and other Advisers shall be appointed within fifteen days after Parliament is dissolved or stands dissolved, and during the period between the date on which Parliament is dissolved or stands dissolved and the date on which the Chief Adviser is appointed, the Prime Minister and his Cabinet who were in office immediately before Parliament is dissolved or stood dissolved shall continue to hold office as such.

(3) The President shall appoint as Chief Adviser the person who among the retired Chief Justices of Bangladesh retired last and who is qualified to be appointed as an Adviser under this article:

Provided that if such retired Chief Justice is not available or is not willing to hold the office of Chief Adviser, the President shall appoint as Chief Adviser the person who among the retired Chief Justices of Bangladesh retired next before the last retired Chief Justice.

(4) If no retired Chief Justice is available or willing to hold the office of Chief Adviser, the President shall appoint as Chief Adviser the person who among the retired Judges of the Appellate Division retired last and who is qualified to be appointed as an Adviser under this article:

Provided that if such retired is not available or is not willing to hold the office of Chief Adviser, the President shall appoint as Chief Adviser the person who among the retired Judges of the Appellate division retired next before the last such retired Judge.

(5) If no retired Judge of the Appellate division is available or willing to hold the office of Chief Adviser, the President shall, after consultation, as far as practicable, with the major political parties, appoint the Chief Adviser from among citizens of Bangladesh who are qualified to be appointed as Advisers under this article.

(6) Notwithstanding anything contained in this Chapter, if the provisions of clauses (3), (4) and (5) cannot be given effect to, the President shall assume the functions of the Chief Adviser of the Non-party Care-taker government in

addition to his own functions under this Constitution.

(7) The President shall appoint Advisers from among the persons who are -

(a) qualified for election as members of Parliament;

(b) not members of any political party or of any organisation associated with or affiliated to any political party;

(c) not, and have agreed in writing not to be, candidates for the ensuing election of members of Parliament;

(d) not over seventy-two years of age.

(8) The Advisers shall be appointed by the President on the advice of the Chief Adviser.

(9) The Chief Adviser or an Adviser may resign his office by writing under his hand addressed to the President.

(10) The Chief Adviser or an Adviser shall cease to be Chief Adviser or Adviser if he is disqualified to be appointed as such under this article.

(11) The Chief Adviser shall have the status, and shall be entitled to the remuneration and privileges, of a Prime Minister, and an Adviser shall have the status, and shall be entitled to the remuneration and privileges, of a Minister.

(12) The Non-party Care-taker government shall stand dissolved on the date on which the Prime Minister enters upon his office after the constitution of new Parliament.

58D. *Functions of Non-Party Care-taker Government.* (1) the Non-party Care-taker Government shall discharge its functions as an interim government with the aid and shall carry on the routine functions of such government with the aid and assistance of persons in the service of the Republic; and, except in the case of necessity for the discharge of such functions it shall not make any policy decision.

(2) The Non-party Care-taker Government shall give to the Election Commission all possible aid and assistance that may be required for holding the general election of members of Parliament peacefully, fairly and impartially.

58E. *Certain provisions of the Constitution to remain ineffective.* Notwithstanding anything contained in articles 48(3), 141A(1) and 141C(1) of the constitution, during the period the Non-party Care-taker Government is functioning, provisions in the Constitution requiring the President to act on the advice of the Prime Minister or upon his prior counter-signature shall be ineffective.]

CHAPTER III - LOCAL GOVERNMENT

59. *Local Government.* (1) Local Government in every administrative unit of the Republic shall be entrusted to bodies composed of persons elected in accordance with law.

(2) Everybody such as is referred to in clause (1) shall, subject to this Constitution and any other law, perform within the appropriate administrative unit such functions as shall be prescribed by Act of Parliament, which may include functions relating to -

(a) administration and the work of public officers;
(b) the maintenance of public order;
(c) the preparation and implementation of plans relating to public services and economic development.

60. *Powers of local government bodies.* For the purpose of giving full effect to the provisions of article 59 Parliament shall, by law, confer powers on the local government bodies referred to in that article, including power to impose taxes for local purposes, to prepare their budgets and to maintain funds.]

CHAPTER IV - THE DEFENCE SERVICES

61. *Supreme Command.* The supreme command of the defence services of Bangladesh shall vest in the President and the exercise thereof shall b regulated by law.

62. *Recruitment, etc. of defence services.* (1) Parliament shall by law provide for regulating -

(a) the raising and maintaining of the defence services of Bangladesh and of their reserves;
(b) the grant of commissions therein;
(c) the appointment of chiefs of staff of the defence services, and their salaries and allowances; and
(d) the discipline and other matters relating to those services and reserves.

(2) Until Parliament by law provides for the matters specified in clause (1) the President may, by order, provide for such of them as are not already subject to existing law.

63. *War.* (1) War shall not be declared and the Republic shall not participate in any war except with the assent of Parliament.

[1]* * * * * *

CHAPTER V - THE ATTORNEY-GENERAL

64. *The Attorney General.* (1) The President shall appoint a person who is qualified to be appointed as a judge of the Supreme Court to be Attorney-General for Bangladesh.

(2) The Attorney-General Shall perform such duties as may be assigned to him by the President.

(3) In the performance of his duties, the Attorney-General shall have the right of audience in all courts of Bangladesh.

(4) The Attorney-General shall hold office during the pleasure of the President, and shall receive such remuneration s the President may determine.

[2]* * * * * *

PART V
THE LEGISLATURE
CHAPTER I - PAR LIAMENT

65. *Establishment of Parliament.* (1) There shall be a Parliament for Bangladesh (to be known as the House of the Nation) in which, subject to the provisions of this Constitution, shall be vested the legislative powers of the Republic.

Provided that nothing in this clause shall prevent Parliament from delegating to any person or authority, by Act of Parliament, power to make orders, rules, regulations, bye-laws or other instruments having legislative effect.

(2) Parliament shall consist of three hundred members to be elected in accordance with law from single territorial constituencies by direct election and, for so long as clause (3) is effective, the members provided for in that clause; the members shall be designated as Members of Parliament.

[3](3) Until the dissolution of Parliament occurring next after the expiration of the period of ten years beginning from the date of the first

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[1] Clauses (2) and (3) of article 63 were omitted by Act XXIV of 1973

[2] Chapter VI was omitted by the Second Proclamation Order No. I of 11977 (w.e.f. 1.12.77) which was added by the Second Proclamation Order No. IV of 1976 (w.e.f. 13.8.77)

[3] Substituted by Act XXXVIII of 1990, for clause (3)

meeting of the Parliament next after the Parliament in existence at the time of commencement of the Constitution (Tenth Amendment) Act, 1990, there shall be reserved thirty seats exclusively for women members, who shall be elected according to law by the members aforesaid:

Provided that nothing in this clause shall prevent a woman from being elected to any of the seats provided for in clause (2).]

(4) The seat of Parliament shall be in the capital.

66. *Qualifications and disqualifications for election to Parliament.* (1) A person shall, subject to the provisions of clause (2), be qualified to be elected as, and to be, a member of Parliament if he is a citizen of Bangladesh and has attained the age of twenty-five years.

(2) A person shall be disqualified for election as, or for being, a member of Parliament who -

(a) is declared by a competent court to be of unsound mind;

(b) is an undischarged insolvent;

(c) acquires the citizenship of, or affirms or acknowledges allegiance to, a foreign state;

(d) has been, on conviction for a criminal offence involving moral turpitude, sentenced to imprisonment for a term of not less than two years, unless a period of five years has elapsed since his release;[1]

[2][(dd) holds any office of profit in the service of the Republic other than an office which is declared by law not to disqualify its holders; or

[3] * * * * * *

[4] * * * * * *

(g) is disqualified for such election by or under any law.

[5][(2A) For the purposes of this article a person shall not be deemed to hold an office of profit in the service of the Republic by reason only that [6][he is a President, [7]* Prime Minister], [8]* * Minister, Minister of State or Deputy Minister.]

[9] * * * * * *

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[1] the word "or" was omitted by the Second Proclamation Order No.IV of 1978

[2] Sub-clause (dd) was inserted, ibid

[3] Sub-clause (e) was omitted by the Second Proclamation Order No.III of 1975

[4] Sub-clause (f) was omitted by Act II of 1975.

[5] Inserted by the Second Proclamation Order No.IV of 1978

[6] Substituted by Act XIV of 1981, s.3, for "he is a Prime Minister".

[7] The word and comma "Vice-President" were omitted by Act XXVIII of 1991, s.4 (w.e.f. 18.9.91)

[8] The words and comma "Deputy Prime Minister", were omitted, ibid.

[9] Clause (3) was omitted by Act II of 1975.

(4) If any dispute arises as to whether a member of Parliament has, after his election, become subject to any of the disqualifications mentioned in clause (2) or as to whether a member of Parliament should vacate his seat pursuant to article 70, the dispute shall be referred to the Election Commission to hear and determine it and the decision of the Commission on such reference shall be final.

(5) Parliament may, by law, make such provision as it deems necessary for empowering the Election Commission to give full effect to the provisions of clause (4).

67. *Vacation of seats of members.* (1) A member of Parliament shall vacate his seat -

(a) if he fails, within the period of ninety days from the date of the first meeting of Parliament after his election, to make and subscribe [1]* * the oath or affirmation prescribed for a member of Parliament in the Third Schedule:

Provided that the Speaker may, before the expiration of that period, for good cause, extend it;

(b) if he is absent from Parliament, without the leave of Parliament, for ninety consecutive sitting days;

(c) upon a dissolution of Parliament;

(d) if he has incurred a disqualification under clause (2) of article 66; or

(e) in the circumstances specified in article 70.

(2) A member of Parliament may resign his seat by writing under his hand addressed to the Speaker, and the seat shall become vacant when the writing is received by the Speaker or, if the office of Speaker is vacant or the Speaker is for any reason unable to perform his functions, by the Deputy Speaker.

68. *Remuneration, etc. of members of Parliament.* Members of Parliament shall be entitled to such [2][remuneration], allowances and privileges as may be determined by Act of Parliament or, until so determined, by order made by the President.

69. *Penalty for member sitting or voting before taking oath.* If a person sits or votes as a member of Parliament before he makes or subscribes the oath or affirmation in accordance with this Constitution, or when he knows that he is not qualified or is disqualified for membership thereof, he shall be liable in respect of each day on which he so sits or votes to a penalty of one thousand

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[1] The words "before Parliament" were omitted by Act II of 1975

[2] Substituted by Act XXX of 1988, s.6, for salaries.

taka to be recovered as a debt due to the Republic.

[1][**70.** *Vacation of seat on resignation, etc.* (1) A person elected as a member of Parliament at an election at which he was nominated as a candidate by a political party shall vacate his seat if he resigns from that party or votes in Parliament against that party.

Explanation - If a member of Parliament -

(a) being present in Parliament abstains from voting, or

(b) absents himself from any sitting of Parliament ignoring the direction of the party which nominated him at the election as a candidate not to do so, he shall be deemed to have voted against that party.

(2) If, at any time, any question as to the leadership of the Parliamentary party of a political party arises, the Speaker shall, within seven days of being informed of it in writing by a person claiming the leadership of the majority of the members of that party in Parliament, convene a meeting of all members of Parliament of that party in accordance with the Rules of procedure of Parliament and determine its Parliamentary leadership by the votes of the majority through division and if, in the matter of voting in Parliament, any member does not comply with the direction of the leadership so determined, he shall be deemed to have voted against that party under clause (1) and shall vacate his seat in the Parliament.

(3) If a person, after being elected a member of Parliament as an independent candidate, joins any political party, he shall, for the purpose of this article, be deemed to have been elected as a nominee of that party.]

71. *Bar against double membership.* (1) No person shall at the same time be a member of Parliament in respect of two or more constituencies.

(2) Nothing in clause (1) shall prevent a person from being at the same time a candidate for two or more constituencies, but in the event of his being elected for more than one -

(a) within thirty days after his last election the person elected shall deliver to the Chief Election Commissioner a signed declaration specifying the constituency which he wishes to represent, and the seats of the other constituencies for which he was elected shall thereupon fall vacant;

(b) if the person elected fails to comply with sub-clause (a) all the seats for which he was elected shall fall vacant; and

(c) the person elected shall not make or subscribe the oath or affirmation of a member of Parliament until the foregoing

[1] Substituted by Act XXVIII of 1991, s.5 (w.e.f. 18.9.91)

provisions of this clause, so far as applicable, have been complied with.

72. *Sessions of Parliament.* (1) Parliament shall be summoned, prorogued and dissolved by the President by public notification, and when summoning Parliament the President shall specify the time and place of the first meeting:

[1][Provided that a period exceeding sixty days shall not intervene between the end of one session and the first meeting of Parliament in the next session:

Provided further that in the exercise of his functions under this clause, the President shall act in accordance with the advice of the Prime Minister tendered to him in writing.]

(2) Notwithstanding the provisions of clause (1) Parliament shall be summoned to meet within thirty days after the declaration of the results of polling at any general election of members of Parliament.

(3) Unless sooner dissolved by the President, Parliament shall stand dissolved on the expiration of the period of five years from the date of its first meeting :

Provided that at any time when the Republic is engaged in war the period may be extended by Act of Parliament by not more than one year at a time but shall not be so extended beyond six months after the termination of the war.

(4) If after a dissolution and before the holding of the next general election of members of Parliament the President is satisfied that owing to the existence of a state of war in which the Republic is engaged it is necessary to recall Parliament, the President shall summon the Parliament that has been dissolved to meet.

[2]* * * * * *

(5) Subject to the provisions of clause (1) the sittings of Parliament shall be held at such times and places as Parliament may, by its rules of procedure or otherwise determine.

73. *President's address and messages to Parliament.* (1) The President may address Parliament and may send messages thereto.

(2) At the commencement of the first session after a general election of members of Parliament and at the commencement of the first session of each year the President shall address Parliament.

(3) Parliament shall, after the presentation of an address by the

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[1] Substituted by Act XXVIII of 1991, s, 6(a)

[2] Clause (4A) was omitted, ibid, s.6(b), which was inserted by Act XXXVIII of 1989, s.9

President, or the receipt of a message from him, discuss the matter referred to in such address or message.

[1][**73A.** *Right of Ministers as respects Parliament.* (1) Every Minister shall have the right to speak in, and otherwise take part in the proceedings of, Parliament, but shall not be entitled to vote [2][or to speak on any matter not related to his Ministry] unless he is a member of Parliament also.

(2) In this article, "Minister" includes a Prime Minister, [3]* * *, Minister of State and Deputy Minister.]

74. *Speaker and Deputy Speaker.* (1) Parliament shall at the first sitting after any general election elect from among its members a Speaker and a Deputy Speaker, and if either office become vacant shall within seven days or, if Parliament is not then sitting, at its first meeting thereafter, elect one of its members to fill the vacancy.

(2) The Speaker or Deputy Speaker shall vacate his office -

(a) if he ceases to be a member of Parliament;

(b) if he becomes a Minister;

(c) if Parliament passes a resolution (after not less than fourteen days' notice has been given of the intention to move the resolution) supported by the votes of a majority of all the members thereof, requiring his removal from office;

(d) if he resigns his office by writing under his hand delivered to the President;

(e) if after a general election another member enters upon that office; or

(f) in the case of the Deputy Speaker, if he enters upon the office of Speaker.

(3) While the office of the Speaker is vacant or the Speaker is [4][acting as] President, of if it is determined by Parliament that the Speaker is otherwise unable to perform the functions of his office, those functions shall be performed by the Deputy Speaker or, if the office of the Deputy Speaker is vacant, by such member of Parliament as may be determined by or under the rules of procedure of Parliament; and during the absence of the Speaker from any sitting of Parliament the Deputy Speaker or, if he is also absent, such person as may be determined by or under the rules of procedure, shall act as Speaker.

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[1] Inserted by Act II of 1975, s.9

[2] Words within bracket inserted by Act XXVIII of 1991, s.7(a)

[3] The words "Deputy Prime Minister" were omitted, Ibid, s.7(b)

[4] Substituted by Act II of 11975, s.10, for "exercising the functions of the"

(4) At any sitting of Parliament, while a resolution for the removal of the Speaker from his office is under consideration the Speaker (or while any resolution for the removal of the Deputy Speaker from his office is under consideration, the Deputy Speaker) shall not preside, and the provisions of clause (3) shall apply in relation to every such sitting as they apply in relation to a sitting from which the Speaker or, as the case may be, the Deputy Speaker is absent.

(5) The Speaker or the Deputy Speaker, as the case may be, shall have the right to speak in, and otherwise take part in, the proceedings of Parliament while any resolution for his removal from office is under consideration in Parliament, and shall be entitled to vote but only as a member.

(6) Notwithstanding the provisions of clause (2) the Speaker or, as the case may be, the Deputy Speaker, shall be deemed to continue to hold office until his successor has entered upon office.

75. *Rules of procedure, quorum, etc.* (1) Subject to this Constitution -

(a) the procedure of Parliament shall be regulated by rules of procedure made by it, and until such rules are made shall be regulated by rules of procedure made by the President;

(b) a decision in Parliament shall be taken by a majority of the votes of the members present and voting, but the person presiding shall not vote except when there is an equality of votes, in which case he shall exercise a casting vote;

(c) no proceeding in Parliament shall be invalid by reason only that there is a vacancy in the membership thereof or that a person who was not entitled to do so was present at, or voted or otherwise participated in, the proceeding.

(2) If at any time during which Parliament is in session the attention of the person presiding is drawn to the fact that the number of members present is less than sixty, he shall either suspend the meeting until at least sixty members are present, or adjourn it.

76. *Standing committees of Parliament.*(1) [1]* * * Parliament shall appoint from among its members the following standing committees, that is to say -

(a) a public accounts committee;

(b) a committee of privileges; and

(c) such other standing committees as the rules of procedure of Parliament require.

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[1] The words "At its first meeting in each session" were omitted by Act II of 1975, s.11

(2) In addition to the committees referred to in clause (1), Parliament shall appoint other standing committees, and a committee so appointed may, subject to this Constitution and to any other law -

(a) examine draft bills and other legislative proposals;

(b) review the enforcement of laws and propose measures for such enforcement;

(c) in relation to any matter referred to it by Parliament as a matter of public importance, investigate or inquire into the activities or administration of a Ministry and may require it to furnish, through an authorised representative, relevant information and to answer questions, orally or in writing;

(d) perform any other function assigned to it by Parliament.

(3) Parliament may by law confer on committees appointed under this article powers for -

(a) enforcing the attendance of witnesses and examining them on oath, affirmation or otherwise;

(b) compelling the production of documents.

77. *Ombudsman.* (1) Parliament may, by law, provide for the establishment of the office of Ombudsman.

(2) The Ombudsman shall exercise such powers and perform such functions as Parliament may, by law, determine, including the power to investigate any action taken by a Ministry, a public officer or a statutory public authority.

(3) The Ombudsman shall prepare an annual report concerning the discharge of his functions, and such report shall be laid before Parliament.

78. *Privileges and immunities of Parliament and members.* (1) The validity of the proceedings in Parliament shall not be questioned in any court.

(2) A member or officer of Parliament in whom powers are vested for the regulation of procedure, the conduct of business or the maintenance of order in Parliament, shall not in relation to the exercise by him of any such powers be subject to the jurisdiction of any court.

(3) A member of Parliament shall not be liable to proceedings in any court in respect of anything said, or any vote given, by him in Parliament or in any committee thereof.

(4) A person shall not be liable to proceedings in any court in respect of the publication by or under the authority of Parliament of any report, paper, vote or proceeding.

(5) Subject to this article, the privileges of Parliament and of its committees and members may be determined by Act of Parliament.

79. *Secretariat of Parliament.* (1) Parliament shall have its own secretariat.

(2) Parliament may, by law, regulate the recruitment and conditions of service of persons appointed to the secretariat of Parliament.

(3) Until provision is made by Parliament the President may, after consultation with the Speaker, make rules regulating the recruitment and condition of service of persons appointed to the secretariat of Parliament, and rules so made shall have effect subject to the provisions of any law.

CHAPTER II - LEGISLATIVE AND FINANCIAL PROCEDURE

80. *Legislative procedure.* (1) Every proposal in Parliament for making a law shall be made in the form of a Bill.

(2) When a Bill is passed by Parliament it shall be presented to the President for assent.

(3) The President, within fifteen days after a Bill is presented to him, shall assent to the Bill [1]* * * or, in the case of a Bill other than Money Bill, may return it to Parliament with a message requesting that the Bill or any particular provisions thereof be reconsidered, and that any amendments specified by him in the message be considered: and if he fails so to do he shall be deemed to have assented to the Bill at the expiration of that period.

(4) If the President so returns the Bill Parliament shall consider it together with the President's message, and if the bill is again passed by Parliament with or without amendments [2][by the votes of a majority of the total number of members of Parliament], it shall be presented to the President for his assent, whereupon the President shall assent to the Bill within the period of seven days after it has been presented to him, and if he fails to do so he shall be deemed to have assented to the Bill on the expiration of that period.

(5) When the President has assented or is deemed to have assented to a Bill passed by Parliament it shall become law and shall be called an Act of Parliament.

81. *Money Bills.* (1) In this Part "Money Bill" means a Bill containing only provisions dealing with all or any of the following matters -

(a) the imposition, regulation, alteration, remission or repeal of any tax;

(b) the borrowing of money or the giving of any guarantee by the

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[1] The words "or declare that he withholds assent therefrom" were omitted by the Second Proclamation Order No.IV of 1978 which were inserted by Act II of 1975, s.2

[2] The words within square brackets were inserted by the Second Proclamation Order No.IV of 1978

Government, or the amendment of any law relating to the financial obligations of the Government;

(c) the custody of the Consolidated Fund, the payment of money into, or the issue or appropriation of moneys from, that Fund;

(d) the imposition of a charge upon the Consolidated Fund, or the alteration or abolition of any such charge;

(e) the receipt of moneys on account of the Consolidated Fund or the Public Account of the Republic, or the custody or issue of such moneys, or the audit of the accounts of the Government;

(f) any subordinate matter incidental to any of the matters specified in the foregoing sub-clauses.

(2) A Bill shall not be deemed to be a Money Bill by reason only that it provides for the imposition or alteration of any fine or other pecuniary penalty, or for the levy or payment of a licence fee or a fee or charge for any service rendered, or by reason only that it provides for the imposition, regulation, alteration, remission or repeal of any tax by a local authority or body for local purposes.

(3) Every Money Bill shall, when it is presented to the President for his assent, bear a certificate under the hand of the Speaker that it is a Money Bill, and such certificate shall be conclusive for all purposes and shall not be questioned in any court.

82. *Recommendation for financial measures.* No Money Bill, nor any Bill which involves expenditure from public moneys, shall be introduced into Parliament except on the recommendation of the President:

Provided that no recommendation shall be required under this article for the moving of an amendment making provision for the reduction or abolition of any tax.

83. *No taxation except by or under Act of Parliament.* No tax shall be levied or collected except by or under the authority of an Act of Parliament.

84. *Consolidated Fund and the Public Account of the Republic.* (1) All revenues received by the Government, all loans raised by the Government, and all moneys received by it in repayment of any loan, shall form part of one fund to be known as the Consolidated Fund.

(2) All other public moneys received by or on behalf of the Government shall be credited to the Public Account of the Republic.

85. *Regulation of public moneys.* The custody of public moneys, their payment into and the withdrawal from the Consolidated Fund or, as the case may be, the Public Account of the Republic, and matters connected with or ancillary to the matters aforesaid, shall be regulated by Act of Parliament, and

until provision in that behalf is so made, by rules made by the President.

86. *Moneys payable to Public Account of Republic.* All moneys received by or deposited with -

(a) any person employed in the service of the Republic or in connection with the affairs of the Republic, other than revenues or moneys which by virtue of clause (1) of article 84 shall form part of the Consolidated Fund; or

(b) any court to the credit of any cause, matter, account or persons,

shall be paid into the Public Account of the Republic.

87. *Annual financial statements.* (1) There shall be laid before Parliament, in respect of each financial year, a statement of the estimated receipts and expenditure of the Government for that year, in this Part referred to as the annual financial statement.

(2) The annual financial statement shall show separately -

(a) the sums required to meet expenditure charged by or under this Constitution upon the Consolidated Fund; and

(b) the sums required to meet other expenditure proposed to be made from the Consolidated Fund;

and shall distinguish expenditure on revenue account from other expenditure.

88. *Charges on Consolidated Fund.* The following expenditure shall be charged upon the Consolidated Fund -

(a) the remuneration payable to the President and other expenditure relating to his office;

[1] * * * * * *

(b) the remuneration payable to -

(i) the Speaker and Deputy Speaker;

(ii) the Judges of the[2][Supreme Court];

(iii) the comptroller and Auditor-General;

(iv) the Election Commissioners;

(v) the members of the Public Service Commissions;

(c) the administrative expenses of, including remuneration payable to, officers and servants of Parliament, the supreme Court[3] * * *, the Comptroller and Auditor-General, the Election Commission and the Public Service Commissions;

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[1] Clause (aa) was omitted by Act XXVIII of 1991, s.8 which was inserted by Act II of 1975

[2] The words "Supreme Court and High Court" were substituted by the Second Proclamation Order No.I of 1977

[3] The comma and the words "High Court" were omitted, ibid

(d) all debt charges for which the Government is liable, including interest, sinking fund charges, the repayment or amortisation of capital, and other expenditure in connection with the raising of loans and the service and redemption of debt;

(e) any sums required to satisfy a judgment, decree or award against the Republic by any court or tribunal; and

(f) any other expenditure charged upon the Consolidated Fund by this Constitution or by Act of Parliament.

89. *Procedure relating to annual financial statement.* (1) So much of the annual financial statement as relates to expenditure charged upon the Consolidated fund may be discussed in, but shall not be submitted to the vote of, Parliament.

(2) So much of the annual financial statement as relates to other expenditure shall be submitted to Parliament in the form of demands for grants, and Parliament shall have power to assent to or to refuse to assent to any demand, or to assent to it subject to a reduction of the amount specified therein.

(3) No demand for a grant shall be made except on the recommendation of the President.

90. *Appropriation Act.* (1) As soon as may be after the grants under article 89 have been made by Parliament there shall be introduced in Parliament a Bill to provide for appropriation out of the Consolidated Fund of all moneys required to meet -

(a) the grants so made by Parliament; and

(b) the expenditure charged on the Consolidated Fund but not exceeding in any case the amount shown in the annual financial statement laid before Parliament.

(2) No amendment shall be proposed in Parliament to any such Bill which has the effect of varying the amount of any grant so made or altering the purpose to which it is to be applied, or of varying the amount of any expenditure charged on the Consolidated Fund.

(3) Subject to the provisions of this Constitution no money shall be withdrawn from the Consolidated Fund except under appropriation made by law passed in accordance with the provisions of this article.

91. *Supplementary and excess grants.* If in respect of any financial year it is found -

(a) that the amount authorised to be expended for a particular service for the current financial year is insufficient or that a need has arisen for expenditure upon some new service not included in the annual financial statement for that year; or

(b) that any money has been spent on a service during a financial year in excess of the amount granted for that service for that year;

the President shall have power to authorise expenditure from the Consolidated Fund whether or not it is charged by or under the Constitution upon that Fund and shall cause to be laid before Parliament a supplementary financial statement setting out the estimated amount of the expenditure or, as the case may be, an excess financial statement setting out the amount of the excess, and the provisions of articles 87 to 90 shall (with the necessary adaptations) apply in relation to those statements as they apply in relation to the annual financial statement.

92. *Votes of account, votes of credit, etc.* (1) Notwithstanding anything in the foregoing provisions of this Chapter, Parliament shall have power -

(a) to make any grant in advance in respect of the estimated expenditure for a part of any financial year pending the completion of the procedure prescribed in article 89 for the voting of such grant and the passing of a law in accordance with the provisions of article 90 in relation to that expenditure;

(b) to make a grant for meeting an unexpected demand upon the resources of the Republic when on account of the magnitude or the indefinite character of the service the demand cannot be specified with the details ordinarily given in an annual financial statement;

(c) to make an exceptional grant which forms no part of the current service of any financial year;

and Parliament shall have power to authorise by law the withdrawal of moneys from the Consolidated Fund for the purposes for which such grants are made.

(2) The provisions of articles 89 and 90 shall have effect in relation to the making of any grant under clause (1), and to any law to be made under that clause, as they have effect in relation to the making of a grant with regard to any expenditure mentioned in the annual financial statement and to the law to be made for the authorisation of appropriation of moneys out of the Consolidated Fund to met such expenditure.

[1][(3) Notwithstanding anything contained in the foregoing provisions of this Chapter, if, in respect of a financial year, Parliament -

(a) has failed to make the grants under article 89 and pass the law under article 90 before the beginning of that year and has not also made any grant in advance under this article; or

(b) has failed to make the grants under article 89 and pass the law under article 90 before the expiration of the period for which the grants in advance, if any, were made under this article,

[1] Added by Act XXVIII of 1991, s.9

the President may, upon the advice of the Prime Minister, by order, authorise the withdrawal from the Consolidated Fund moneys necessary to meet expenditure mentioned in the financial statement for that year for a period not exceeding sixty days in that year, pending the making of the grants and passing of the law.]

[1] * * * * * *

CHAPTER III - ORDINANCE MAKING POWER

93. *Ordinance making power.* (1) At any time when [2][Parliament stands dissolved or is not in session], if the President is satisfied that circumstances exist which render immediate action necessary, he may make and promulgate such Ordinances as the circumstances appear to him to require, and any Ordinance so made shall, as from its promulgation have the like force of law as an Act of Parliament:

Provided that no Ordinance under this clause shall make any provision-

(i) which could not lawfully be made under this Constitution by an Act of Parliament;

(ii) for altering or repealing any provision of this Constitution; or

(iii) continuing in force any provision of an Ordinance previously made.

(2) An Ordinance made under clause (1) shall be laid before Parliament at its first meeting following the promulgation of the Ordinance and shall, unless it is earlier repealed, cease to have effect at the expiration of thirty days after it is so laid or, if a resolution disapproving of the Ordinance is passed by Parliament before such expiration, upon the passing of the resolution.

(3) At any time when Parliament stands dissolved the President may, if he is satisfied that circumstances exist which render such action necessary, make and promulgate an Ordinance authorising expenditure from the Consolidated Fund, whether the expenditure is charged by the Constitution upon that fund or not, and any Ordinance so made shall, as from its promulgation, have the like force of law as an Act of Parliament.

(4) Every Ordinance promulgated under clause (3) shall be laid before Parliament as soon as may be, and the provisions of articles 87, 89 and 90 shall, with necessary adaptations, be complied with in respect thereof within thirty days of the reconstitution of Parliament.

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[1] Article 92A was omitted, ibid.

[2] The words within square brackets were substituted for the words "Parliament is not in session" by the Proclamation Order No. I of 1977

PART VI
THE JUDICIARY
[1][CHAPTER I - THE SUPREME COURT

94. *Establishment of Supreme Court.* (1) There shall be a Supreme Court for Bangladesh (to be known as the Supreme Court of Bangladesh) comprising the Appellate Division and the High Court Division.

(2) The Supreme Court shall consist of the Chief Justice, to be known as the Chief Justice of Bangladesh and such number of other Judges as the President may deem it necessary to appoint to each division.

(3) The Chief Justice, and the Judges appointed to the Appellate Division, shall sit only in that division, and the other Judges shall sit only in the High Court Division.

(4) Subject to the provisions of this Constitution the Chief Justice and the other Judges shall be independent in the exercise of their judicial functions.

95. *Appointment of Judges.* (1) The Chief Justice and other Judges shall be appointed by the President.

(2) A person shall not be qualified for appointment as a Judge unless he is a citizen of Bangladesh and -

(a) has, for not less than ten years, been an advocate of the Supreme Court; or

(b) has, for not less than ten years, held judicial office in the territory of Bangladesh; or

(c) has such other qualifications as may be prescribed by law for appointment as a Judge of the Supreme court.

(3) In this article, "Supreme Court" includes a Court which at any time before the commencement of the Second Proclamation (Tenth Amendment) Order, 1977, exercised jurisdiction as a High Court or Supreme Court in the territory now forming part of Bangladesh.

96. *Tenure of office of Judges.* (1) Subject to the other provisions of this article, a Judge shall hold office until he attains the age of [2][sixty-five] years.

(2) A Judge shall not be removed from office except in accordance with the following provisions of this article.

(3) There shall be a Supreme Judicial Council, in this article referred to

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[1] Chapter I was substituted by the Second Proclamation Order No.I of 1977 (w.e.f.1.12.1977), for Chapter I, IA and IB as amended by the Second Proclamation Order No.IV of 1976, to read as above.

[2] Substituted by Act I of 1986, for "sixty-two"

as the Council, which shall consist of the Chief Justice of Bangladesh, and the two next senior Judges:

Provided that if, at any time, the Council is inquiring into the capacity or conduct of a Judge who is a member of the Council, or a member of the Council is absent or is unable to act due to illness or other cause, the Judge who is next in seniority to those who are members of the Council shall act as such member.

(4) The functions of the Council shall be -

(a) to prescribe a Code of Conduct to be observed by the Judges; and

(b) to inquire into the capacity or conduct of a Judge or of any other functionary who is not removable from office except in like manner as a Judge.

(5) Where, upon any information received from the Council or from any other source, the President has reason to apprehend that a Judge -

(a) may have ceased to be capable of properly performing the functions of his office by reason of physical or mental incapacity, or

(b) may have been guilty of gross misconduct, the President may direct the Council to inquire into the matter and report its finding.

(6) If, after making the inquiry, the Council reports to the President that in its opinion the Judge has ceased to be capable of properly performing the functions of his office or has been guilty of gross misconduct, the President shall, by order, remove the Judge from office.

(7) For the purpose of an inquiry under this article, the Council shall regulate its procedure and shall have, in respect of issue and execution of processes, the same power as the Supreme Court.

(8) A Judge may resign his office by writing under his hand addressed to the President.

97. *Temporary appointment of Chief Justice.* If the office of the Chief Justice becomes vacant, or if the President is satisfied that the Chief Justice is, on account of absence, illness, or any other cause, unable to perform the functions of his office, those functions shall, until some other person has entered upon that office, or until the Chief Justice has resumed his duties, as the case may be, be performed by the next most senior Judge of the Appellate Division.

98. *Additional Supreme Court Judges.* Notwithstanding the provisions of article 94, if the President is satisfied that the number of the Judges of a division of the Supreme Court should be for the time being increased, the President may appoint one or more duly qualified persons to be additional Judges of that division for such period not exceeding two years as he may specify, or, if he thinks fit, may require a Judge of the High Court Division to

sit in the Appellate Division for any temporary period as an *ad hoc* Judge and such Judge while so sitting, shall exercise the same jurisdiction, powers and functions as a Judge of the Appellate Division:

Provided that nothing in this article shall prevent a person appointed as an Additional Judge from being appointed as a Judge under article 95 or as an Additional Judge for a further period under this article.

99. *Disabilities of Judges.* (1) Except as provided in clause (2), a person who has held office as a Judge otherwise than as an Additional Judge shall not, after his retirement or removal therefrom, plead or act before any court or authority or hold any office of profit in the service of the Republic not being a judicial or quasi-judicial office.

(2) A person who has held office as a Judge of the High Court Division may, after his retirement or removal therefrom, plead or act before the Appellate Division.

[1]**100.** *Seat of Supreme Court.* The permanent seat of the Supreme Court shall be in the capital, but sessions of the High Court Division may be held at such other place or places as the chief Justice may, with the approval of the President, from time to time appoint.

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[1] Original article 100 was amended by the Constitution (Eighth Amendment) Act, 1988 as follows -

"100. *Seat of the Supreme Court.* - (1) Subject to this article, the permanent seat of the Supreme Court shall be in the capital.

(2) The High Court Division and the Judges thereof shall sit at the permanent seat of the Supreme Court and at the seats of its permanent Benches.

(3) The High Court Division shall have a permanent Bench each at Barisal, Chittagong, Comilla, Jessore, Rangpur and Sylhet, and each permanent Bench shall have such Benches as the Chief Justice may determine from time to time.

(4) A permanent Bench shall consist of such number of Judges of the High Court Division as the Chief Justice may deem it necessary to nominate to that Bench from time to time and on such nomination the Judges shall be deemed to have been transferred to that Bench.

(5) The President shall, in consultation with the Chief Justice, assign the area in relation to which each permanent Bench shall have jurisdictions, powers and functions conferred or that may be conferred on the High Court Division by this Constitution or any other law; and the area not so assigned shall be the area in relation to which the High Court Division sitting at the permanent seat of the Supreme Court shall have such jurisdictions, powers and functions.

(6) The Chief Justice shall make rules to provide for all incidental, supplemental or consequential matters relating to the permanent Benches."

The original article 100 revived as the amendment was held *ultra vires* by the Appellate Division in *Anwar Hossain v. Bangladesh*, 41 DLR (AD) 165.

101. *Jurisdiction of High Court Division.* The High Court Division shall have such original, appellate and other jurisdictions, powers and functions as are or may be conferred on it by this Constitution or any other law.

102. *Powers of High Court Division to issue certain orders and directions, etc.* (1) The High Court Division on the application of any person aggrieved, may give such directions or orders to any person or authority, including any person performing any function in connection with the affairs of the Republic, as may be appropriate for the enforcement of any of the fundamental rights conferred by Part III of this Constitution.

(2) the High Court Division may, if satisfied that no other equally efficacious remedy is provided by law -

(a) on the application of any person aggrieved, make an order -
   (i) directing a person performing any functions in connection with the affairs of the Republic or of a local authority to refrain from doing that which he is not permitted by law to do or to do that which he is required by law to do; or
   (ii) declaring that any act done or proceeding taken by a person performing functions in connection with the affairs of the Republic or of a local authority has been done or taken without lawful authority and is of no legal effect; or

(b) on the application of any person, make an order -
   (i) directing that a person in custody be brought before it so that it may satisfy itself that he is not being held in custody without lawful authority or in an unlawful manner; or
   (ii) requiring person holding or purporting to hold a public office to show under what authority he claims to hold that office.

(3) Notwithstanding anything contained in the foregoing clauses, the High Court Division shall have no power under this article to pass any interim or other order in relation to any law to which article 47 applies.

(4) Where on an application made under clause (1) or sub-clause (a) of clause (2), an interim order is prayed for and such interim order is likely to have the effect of -

(a) prejudicing or interfering with any measure designed to implement any development programme, or any development work; or
(b) being otherwise harmful to the public interest, the High Court Division shall not make an interim order unless the Attorney-General has been given reasonable notice of the application and he (or an advocate authorised by him in that behalf) has been given opportunity of being heard, and the High Court Division is satisfied that the interim order would not have the effect referred to in sub-

clause (a) or sub-clause (b).

(5) In this article, unless the context otherwise requires, "person" includes a statutory public authority and any court or tribunal, other than a court or tribunal established under a law relating to the defence services of Bangladesh or any disciplined force or a tribunal to which article 117 applies.

103. *Jurisdiction of Appellate Division.* (1) The Appellate Division shall have jurisdiction to hear and determine appeals from judgments, decrees, orders or sentences of the High Court Division.

(2) An appeal to the Appellate Division from a judgment, decree, order or sentence of the High Court Division shall lie as of right where the High Court Division -

(a) certifies that the case involves a substantial question of law as to the interpretation of this Constitution; or

(b) has sentenced a person to death or to [1][imprisonment] for life; or

(c) has imposed punishment on a person for contempt of that division; and in such other cases as may be provided for by Act of Parliament.

(3) An appeal to the Appellate Division from a judgment, decree, order or sentence of the High Court Division in a case to which clause (2) does not apply shall lie only if the Appellate Division grants leave to appeal.

(4) Parliament by law declare that the provisions of this article shall apply in relation to any other court or tribunal as they apply in relation to the High court Division.

104. *Issue and execution of processes of Appellate Division.* The Appellate Division shall have power to issue such directions, orders, decrees or writs as may be necessary for doing complete justice in any cause or matter pending before it, including orders for the purpose of securing the attendance of any person or the discovery or production of any document.

105. *Review of judgments or orders by Appellate Division.* The Appellate division shall have power, subject to the provisions of any Act of Parliament and of any rules made by that division to review any judgment pronounced or order made by it.

106. *Advisory Jurisdiction of Supreme Court.* If at any time it appears to the President that a question of law has arisen , or is likely to arise, which is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme court upon it, he may refer the question to the Appellate Division for consideration and the division may, after such hearing as it thinks fit, report its opinion thereon to the President.

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[1] Substituted by Act XXX of 1988, s.8, for "transportation".

107. *Rule making power of the Supreme Court.* (1) Subject to any law made by Parliament the Supreme Court may, with the approval of the President, make rules for regulating the practice and procedure of each division of the Supreme Court and of any court subordinate to it.

(2) The Supreme Court may delegate any of its functions under clause (1) and article 113 to a division of that Court or to one or more Judges.

(3) Subject to any rules made under this article the Chief Justice shall determine which Judges are to constitute any Bench of a division of the Supreme Court [1]* * * and which Judges are to sit for any purpose.

(4) The Chief Justice may authorise the next most senior Judge of either Division of the Supreme Court to exercise in that division any of the powers conferred by clause (3) or by rules made under this article.

108. *Supreme Court as court of record.* The Supreme court shall be a court of record and shall have all the powers of such a court including the power subject to law to make an order for the investigation of or punishment for any contempt of itself.

109. *Superintendence and control over courts.* The High Court Division shall have superintendence and control over all courts [2][and tribunals] subordinate to it.

110. *Transfer of cases from subordinate courts to High Court Division.* If the High Court Division is satisfied that a case is pending in a court subordinate to it involves a substantial question of law as to the interpretation of this Constitution, or on a point of general public importance, the determination of which is necessary for the disposal of the case, it shall withdraw the case from that court and may -

(a) either dispose of the case itself; or

(b) determine the question of law and return the case to the court from which it has been so withdrawn (or transfer it to another subordinate court) together with a copy of the judgment of the division on such question, and the court to which the case is so returned or transferred shall, on receipt thereof, proceed to dispose of the case in conformity with such judgment.

111. *Binding effect of Supreme Court judgments.* The law declared by the Appellate Division shall be binding on the High Court Division and the law

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[1] The words, brackets and figures "or any Bench of a permanent Bench of the High court division referred to in clause (3) of article 100" inserted by Act XXX of 1988 was omitted in consequence of the amendment of article 100 being declared *ultra vires* by Appellate Division in *Anwar Hossain v. Bangladesh*, 41 DLR (AD) 165,

[2] The words "and tribunals" were inserted by Act.XXVIII of 1991, s.11

declared by either division of the Supreme Court shall be binding on all courts subordinate to it.

112. *Action in aid of Supreme Court.* All authorities, executive and judicial, in the Republic shall act in aid of the Supreme Court.

113. *Staff of Supreme Court.* (1) Appointments to the staff of the Supreme Court shall be made by the Chief Justice or such judge or officer of that Court as he may direct, and shall be made in accordance with rules made with the previous approval of the President by the Supreme Court.

(2) Subject to the provisions of any Act of Parliament the conditions of service of members of the staff of the Supreme Court shall be such as may be prescribed by rules made by that court.]

CHAPTER II - SUBORDINATE COURTS

114. *Establishment of subordinate courts.* There shall be in addition to the Supreme Court [1]* * * such courts subordinate thereto as may be established by law.

[2][**115.** *Appointments of subordinate courts.* Appointments of persons to offices in the judicial service or as magistrates exercising judicial functions shall be made by the President in accordance with rules made by him in that behalf.]

116. *Control and discipline of subordinate courts.* The control (including the power of posting, promotion and grant of leave) and discipline of persons employed in the judicial service and magistrates exercising judicial functions shall vest in the [3][President] [4][and shall be exercised by him in consultation with the Supreme Court.]

[5][**116A.** *Judicial officers to be independent in the exercise of their functions.* Subject to the provisions of the Constitution, all persons employed in the judicial service and all magistrates shall be independent in the exercise of their judicial functions.]

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[1] The words "and the High Court" (as inserted by the Second Proclamation Order No.IV of 1976) were omitted by the Second Proclamation Order No.I of 1977.

[2] Substituted by Act II of 1975

[3] Substituted, ibid, s.20 for "Supreme Court"

[4] The words within square brackets were inserted by the Second Proclamation Order No.IV of 1978.

[5] Art.116A was inserted by Act II of 1975, s.21

CHAPTER III - ADMINISTRATIVE TRIBUNALS

117. *Administrative tribunals.* (1) Notwithstanding anything hereinbefore contained, Parliament may by law establish one or more administrative tribunals to exercise jurisdiction in respect of matters relating to or arising out of -

(a) the terms and conditions of persons in the service of the Republic, including the matters provided for in Part IX and the award of penalties or punishments;

(b) the acquisition, administration, management and disposal of any property vested in or managed by the Government by or under any law, including the operation and management of, and service in any nationalised enterprise or statutory public authority;

[1][(c) any law to which clause (3) of article 102 applies.]

(2) Where any administrative tribunal is established under this article, no court shall entertain any proceedings or make any order in respect of any matter falling within the jurisdiction of such tribunal :

Provided that Parliament may, by law, provide for appeals from, or the review of, decisions of any such tribunal.

[2]* * * * * *

PART VII
ELECTIONS

118. *Establishment of Election Commission.* (1) There shall be an Election Commission for Bangladesh consisting of a Chief Election Commissioner and such number of other Election Commissioners, if any, as the President may from time to time direct, and the appointment of the Chief Election Commissioner and other Election commissioners (if any) shall, subject to the provisions of any law made in that behalf, be made by the President.

(2) When the Election Commission consists of more than one person, the Chief Election Commissioner shall act as the chairman thereof.

(3) Subject to the provisions of this Constitution the term of office of an Election Commissioner shall be five years from the date on which he enters upon his office, and -

(a) a person who has held office as Chief Election Commissioner shall

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[1] Substituted by Second Proclamation Order No.I of 1977

[2] Part VIA was omitted by the Proclamation dated 8.11.1975

not be eligible for appointment in the service of the Republic;

(b) any other Election Commissioner shall, on ceasing to hold office as such, be eligible for appointment as Chief Election Commissioner but shall not be otherwise eligible for appointment in the service of the Republic.

(4) the Election Commission shall be independent in the exercise of its functions and subject only to this Constitution and any other law.

(5) Subject to the provisions of any law made by Parliament, the conditions of service of Election Commissioners shall be such as the President may, by order, determine:

Provided that an Election Commissioner shall not be removed from his office except in like manner and on the like grounds as a judge of the [1][Supreme Court].

(6) An Election Commissioner may resign his office by writing under his hand addressed to the President.

119. *Functions of Election Commission.* [2][(1) The superintendence, direction and control of the preparation of the electoral rolls for elections to the office of President and to Parliament and the conduct of such elections shall vest in the Election Commission which shall, in accordance with this Constitution and any other law -

(a) hold elections to the office of President;

(b) hold elections of members of Parliament;

(c) delimit the constituencies for the purpose of elections to Parliament; and

(d) prepare electoral rolls for the purpose of elections to the office of President and to Parliament.]

(2) The Election Commission shall perform such functions, in addition to those specified in the foregoing clauses, as may be prescribed by this Constitution or by any other law.

120. *Staff of Election Commission.* The President shall, when so requested by the Election Commission, make available to it such staff as may be necessary for the discharge of its functions under this Part.

121. *Single electoral roll for each constituency.* there shall be one electoral roll for each constituency for the purposes of elections to Parliament, and no special electoral roll shall be prepared so as to classify electors according to religion, race, caste or sex.

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[1] Substituted by the Second Proclamation Order No. I of 1977, for "High Court".

[2] Substituted by Act XXVIII of 1991, s.12

122. *Qualifications for registration as voter.* (1) The elections [1]* * * to Parliament shall be on the basis of adult franchise.

(2) A person shall be entitled to be enrolled on the electoral roll for a constituency delimited for the purpose of election to Parliament, if he -

(a) is a citizen of Bangladesh;

(b) is not less than eighteen years of age;

(c) does not stand declared by a competent court to be of unsound mind; [2][and]

(d) is or is deemed by law to be a resident of that constituency [3][.]

[4]* * * * * * *

[5]* * * * * * *

123. *Time for holding elections.* [6][(1) In the case of a vacancy in the office of President occurring by reason of the expiration of his term of office an election to fill the vacancy shall be held within the period of ninety to sixty days prior to the date of expiration of the term:

Provided that if the term expires before the dissolution of the Parliament by the members of which he was elected the election to fill the vacancy shall not be held until after the next general election of members of Parliament, but shall be held within thirty days after the first sitting of Parliament following such general election.

(2) In the case of a vacancy in the office of President occurring by reason of the death, resignation or removal of the President, an election to fill the vacancy shall be held within the period of ninety days after the occurrence of the vacancy.]

(3) A general election of members of Parliament shall be held -

(a) in the case of a dissolution by reason of expiration of its term, within the period of ninety days preceding such dissolution; and

(b) in the case of dissolution otherwise than by reason of such expiration, within ninety days after such dissolution;

Provided that the persons elected at a general election under sub-clause (a) shall not assume office as members of Parliament except after the expiration

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[1] The words "to the offices of President and Vice-President and" were omitted, ibid., s.13

[2] Added by the Second Proclamation Order No.III of 1975

[3] Substituted for "and", ibid.

[4] Sub-clause (e) omitted, ibid.

[5] Clause (3) omitted by Act XXVIII of 1991, s.13, which was added by Act II of 1975

[6] Clauses (1) and (2) were substituted for clause (1), (2), (2A) and (2B), ibid, s.14(a).

of the term referred to therein.

(4) An election to fill the seat of a member of Parliament which falls vacant otherwise than by reason of the dissolution of Parliament shall be held within ninety days of the occurrence of the vacancy :

[1][Provided that in a case where, in the opinion of the Chief Election Commissioner, it is not possible, for reasons of an act of God, to hold such election within the period specified in this clause, such election shall be held within ninety days following next after the last day of such period.]

[2][**124.** *Parliament may make provision as to elections.* Subject to the provisions of this Constitution, Parliament may by law make provision with respect to all matters relating to or in connection with elections to Parliament, including the delimitation of constituencies, the preparation of electoral rolls, the holding of elections, and all other matters necessary for securing the due constitution of Parliament.]

125. *Validity of election law and elections.* Notwithstanding anything in this Constitution -

(a) the validity of any law relating to the delimitation of constituencies, or the allotment of seats to such constituencies, made or purporting to be made under article 124, shall not called in question in any court;

(b) no election to the [3][office of President] or to Parliament shall be called in question except by an election petition presented to such authority and in such manner as may be provided for by or under any law made by Parliament.

126. *Executive authorities to assist Election Commission.* It shall be the duty of all executive authorities to assist the Election Commission in the discharge of its functions.

PART VIII
THE COMPTROLLER AND AUDITOR-GENERAL

127. *Establishment of office of Auditor-General.* (1) There shall be a Comptroller and Auditor-General of Bangladesh (hereinafter referred to as the Auditor-General) who shall be appointed by the President.

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[1] Added by Act XXVIII of 1991, s.14(b)

[2] The article substituted, ibid

[3] The words "offices of President and Vice-President" were substituted for the words "office of President"

(2) Subject to the provisions of this Constitution and of any law made by Parliament, the conditions of service of the Auditor-General shall be such as the President may, by order, determine.

128. *Functions of Auditor-General.* (1) The public accounts of the Republic and of all courts of law and all authorities and officers of the Government shall be audited and reported on by the Auditor-General and for that purpose he or any person authorised by him in that behalf shall have access to all records, books, vouchers, documents, cash, stamps, securities, stores or other government property in the possession of any person in the service if the Republic.

(2) Without prejudice to the provisions of clause (1), if it is prescribed by law in the case of any body corporate directly established by law, the accounts of that body corporate shall be audited and reported on by such person as may be so prescribed.

(3) Parliament may by law require the auditor-General to exercise such functions, in addition to those specified in clause (1), as such law may prescribe, and until provision is made by law under this clause the President may, by order, make such provision.

(4) The Auditor-General, in the exercise of his functions under clause (1), shall not be subject to the direction or control of any other person or authority.

129. *Term of office of Auditor-General.* (1) The Auditor-General shall, subject to this article, hold office until he attains the age of sixty years.

(2) The Auditor-General shall not be removed from his office except in like manner and on the like ground as a judge of the [1][Supreme Court].

(3) The Auditor-General may resign his office by writing under his hand addressed to the President.

(4) On ceasing to hold office the Auditor-General shall not be eligible for further office in the service of the Republic.

130. *Acting Auditor-General.* At any time when the office of Auditor-General is vacant, or the President is satisfied that the Auditor-General is unable to perform his functions on account of absence, illness or any other cause, the President may appoint a person to act as Auditor-General and to perform the functions of that office until an appointment is made under article 127 or, ass the case may be, until the auditor-General resumes the functions of his office.

131. *Form and manner of keeping public account.* The public accounts of

[1] Substituted by the Second Proclamation Order No.I of 1977, for "High Court".

the Republic shall be kept in such form and in such manner as the Auditor-General may, with the approval of the President, prescribe.

132. *Reports of Auditor-General to be laid before Parliament.* The reports of the auditor-General relating to the public accounts of the Republic shall be submitted to the President, who shall cause them to be laid before Parliament.

PART IX
THE SERVICES OF BANGLADESH
CHAPTER I - SERVICES

133. *Appointment and conditions of service.* Subject to the provisions of this Constitution Parliament may by law regulate the appointment and conditions of service of persons in the service of the Republic.

Provided that it shall be competent for the President to make rules regulating the appointment and the conditions of service of such persons until provision in that behalf is made by or under any law, and rules so made shall have effect subject to the provisions of any such law.

134. *Tenure of office.* Except as otherwise provided by this Constitution every person in the service of the Republic shall hold office during the pleasure of the President.

135. *Dismissal, etc. of civilian public officers.* (1) No person who holds any civil post in the service of the Republic shall be dismissed or removed or reduced in rank by an authority subordinate to that by which he was appointed.

(2) No such person shall be dismissed, removed or reduced in rank until he has been given a reasonable opportunity of showing cause why that action should not be taken:

Provided that this clause shall not apply -

(i) where a person is dismissed or removed or reduced in rank on the ground of conduct which has led to his conviction of a criminal offence; or

(ii) where the authority empowered to dismiss or remove a person or to reduce him in rank is satisfied that, for a reason recorded by that authority in writing, it is not reasonably practicable to give that person an opportunity of showing cause; or

(iii) where the President is satisfied that in the interests of the security of the State it is not expedient to give that person such an opportunity.

(3) If in respect of such a person the question arises whether it is reasonably practicable to give him an opportunity to show cause in accordance

with clause (2), the decision thereon of the authority empowered to dismiss or remove such person or to reduce him in rank shall be final.

(4) Where a person is employed in the service of the Republic under a written contract and that contract is terminated by due notice in accordance with its terms, he shall not, by reason thereof, be regarded as removed from office for the purposes of this article.

136. *Reorganisation of service.* Provision may be made by law for the reorganisation of the service of the Republic y the creation, amalgamation or unification of services and such law may vary or revoke any condition of service of a person employed in the service of the Republic.

CHAPTER II - PUBLIC SERVICE COMMISSIONS

137. *Establishment of commissions.* Provisions shall be made by law for establishing one or more public service commissions for Bangladesh, each of which shall consist of a chairman and such other members as shall be prescribed by law.

138. *Appointment of members.* (1) The chairman and other members of each public service commission shall be appointed by the President:

Provided that not less than one-half of the members of a commission shall be persons who have held office for twenty years or more in the service of any government which has at any time functioned within the territory of Bangladesh.

(2) Subject to any law made by Parliament the conditions of service of the chairman and other members of a public service commission shall be such as the President may, by order, determine.

139. *Term of office.* (1) The term of office of the chairman and other members of a public service commission shall, subject to the provisions of this article, expire five years after the date on which he entered upon his office, or when he attains the age of sixty-two years, whichever is earlier.

(2) The chairman and other members of such a commission shall not be removed from office except in like manner and on the like grounds as a judge of the [1][Supreme Court].

(3) A chairman or other member of a public service commission may resign his office by writing under his hand addressed to the President.

(4) On ceasing to hold office a member of a public service commission shall not be eligible for further employment in the service of the Republic, but,

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[1] Substituted by the Second Proclamation Order No. I of 1977, for "High Court".

subject to the provisions of clause (1) -

(a) a chairman so ceasing shall be eligible for re-appointment for one further term, and

(b) a member (other than the chairman) so ceasing shall be eligible for re-appointment for one further term or for appointment as chairman of a public service commission.

140. *Functions of commissions.*-(1) The functions of a public service commission shall be -

(a) to conduct tests and examinations for the selection of suitable persons for appointment to the service of the Republic;

(b) to advise the President on any matter on which the commission is consulted under clause (2) or on any matter connected with is functions which is referred to the commission by the President; and

(c) such other functions as may be prescribed by law.

(2) Subject to the provisions of any law made by Parliament, and any regulation (not inconsistent with such law) which may be made by the President after consultation with a commission, the President shall consult a commission with respect to -

(a) matters relating to qualifications for, and methods of recruitment to, the service of the Republic;

(b) the principles to be followed in making appointments to that service and promotions and transfers from branch of the service to another, and the suitability of candidates for such appointments, promotions and transfers;

(c) matters affecting the terms and conditions (including pension rights) of that service; and

(d) the discipline of the service.

141. *Annual report.*-(1) Each commission shall, not later than the first day of March each year, prepare and submit to the President a report on the performance of its functions during the period ended on the previous 31st day of December.

(2) The report shall be accompanied by a memorandum setting out, so far as is known to the commission -

(a) the cases, if any, in which its advice was not accepted and the reasons why it was not accepted;

(b) the cases where the commission ought to have been consulted and was not consulted and the reasons why it was not consulted.

(3) The President shall cause the report and memorandum to be laid before Parliament at its first meeting held after 31st March in the year in which the report was submitted.

[1][PART IXA
EMERGENCY PROVISIONS

141A. *Proclamation of emergency.* (1) If the President is satisfied that a grave emergency exists in which the security or economic life of Bangladesh, or any part thereof, is threatened by war or external aggression or internal disturbance, he may issue a Proclamation of Emergency:

[2] * * * * * *

[3][Provided that such Proclamation shall require for its validity the prior counter signature of the Prime Minister.]

(2) A Proclamation of Emergency -

(a) may be revoked by a subsequent Proclamation;

(b) shall be laid before Parliament;

(c) shall cease to operate at the expiration of one hundred and twenty days, unless before the expiration of that period it has been approved by a resolution of Parliament:

Provided that if any such Proclamation is issued at a time when Parliament stands dissolved or the dissolution of Parliament takes place during the period of one hundred and twenty days referred to in sub-clause (c), the Proclamation shall cease to operate at the expiration of thirty days from the date on which Parliament first meets after its re-constitution, unless before the expiration of the said period of thirty days a resolution approving the Proclamation has been passed by Parliament.

(3) A Proclamation of Emergency declaring that the security of Bangladesh, or any part thereof, is threatened by war or external aggression or by internal disturbance may be made before the actual occurrence of war or any such aggression or disturbance if the President is satisfied that there is imminent danger thereof.

141B. *Suspension of provisions of certain articles during emergencies.* While the Proclamation of Emergency is in operation, nothing in articles 36, 37, 38, 39, 40 and 42 shall restrict the power of the State to make any law or to take any executive action which the State would, but for the provisions contained in Part III of this Constitution, be competent to make or to take, but any law so made shall, to the extent of the incompetency, cease to have effect as soon as the Proclamation ceases to operate, except as respects things done or omitted to be done before the law so ceases to have effect.

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[1] This Part was inserted by Act XXIV of 1973

[2] The proviso was omitted by Act II of 1975, s.28

[3] The proviso was added by Act XXVIII of 1991, s.17

141C. *Suspension of enforcement of fundamental rights during emergencies.* (1) While a Proclamation of Emergency is in operation, the President may, [1][on the written advice of the Prime Minister, by order], declare that the right to move any court for the enforcement of such of the rights conferred by Part III of this Constitution as may be specified in the order, and all proceedings in any court for the enforcement of the right so specified, shall remain suspended for the period during which the Proclamation is in force or for such shorter period as may be specified in the order.

(2) An order made under this article may extend to the whole of Bangladesh or any part thereof.

(3) Every order made under this article shall, as soon as may be, be laid before Parliament.]

PART X
AMENDMENT OF THE CONSTITUTION

~~142.~~ *Power to amend any provision of the Constitution.* [2][(1) Notwithstanding anything contained in this Constitution –

(a) any provision thereof may be [3][amended by way of addition, alteration, substitution or repeal] by Act of Parliament:

Provided that -

(i) no Bill for such amendment [4]* * * shall be allowed to proceed unless the long title thereof expressly states that it will amend [5]* * * a provision of the Constitution;

(ii) no such Bill shall be presented to the President for assent unless it is passed by the votes of not less than two-thirds of the total number of members of Parliament;

(b) when a Bill passed as aforesaid is presented to the President for his assent he shall, within the period of seven days after the Bill is presented to him assent to the Bill, and if he fails so to do he shall be deemed to have assented to it on the expiration of that period.

[6][(1A) Notwithstanding anything contained in clause (1), when a Bill,

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[1] The words and comma "on the written advice of the Prime Minister, by order" were substituted for the words "by order" by Act XXVIII of 1991, s.18

[2] Article 142 was renumbered as clause (1) of that article by Act XXIV of 1973, s.7

[3] Substituted, ibid for the words "amended or repealed"

[4] The words "or repealed" were omitted, ibid

[5] The words "or repealed" omitted, ibid

[6] Clauses (1A), (1B) and 1(C) were inserted by the Second Proclamation Order No.IV of 1978

passed as aforesaid, which provides for the amendment of the Preamble or any provisions of articles 8, 48 [1][or] 56 [2]* * * or this article, is presented to the President for assent, the President, shall, within the period of seven days after the Bill is presented to him, cause to be referred to a referendum the question whether the Bill should or should not be assented to.

(1B) A referendum under this article shall be conducted by the Election Commission, within such period and in such manner as may be provided by law, amongst the persons enrolled on the electoral roll prepared for the purpose of election to [3][Parliament].

(1C) On the day on which the result of the referendum conducted in relation to a Bill under this article is declared, the President shall be deemed to have -

(a) assented to the Bill, if the majority of the total votes cast are in favour of the bill being assented to; or

(b) Withheld assent therefrom , if the majority of the total votes cast are not in favour of the Bill being assented to.]

[4][(1D) Nothing in clause (1C) shall be deemed to be an expression of confidence or no-confidence in the Cabinet or Parliament.]

[5][(2) Nothing in article 26 shall apply to any amendment made under this article.]

PART XI
MISCELLANEOUS

143. *Property of the Republic.* (1) There shall vest in the Republic, in addition to any other land or property lawfully vested -

(a) all minerals and other things of value underlying any land of Bangladesh;

(b) all lands, minerals and other things of value underlying the ocean within the territorial waters, or the ocean over the continental shelf, of Bangladesh; and

(c) any property located in Bangladesh that has no rightful owner.

(2) Parliament may from time to time by law provide for the

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[1] Substituted by Act XXVIII of 1991, s.19(a), for the comma

[2] The commas and figures ", 58, 80, 92A" were omitted, ibid

[3] Substituted by Act XXVIII of 1991, s.19(b), for the words "the office of President".

[4] Clause (1D) was inserted, ibid, s, 19(c)

[5] Clause (2) was added by Act XXIV of 1973

determination of the boundaries of the territory of Bangladesh and of the territorial waters and continental shelf of Bangladesh.

144. *Executive authority in relation to property, trade, etc.* The executive authority of Republic shall extend to the acquisition, sale, transfer, mortgage and disposal of property, the carrying on of any trade or business and the making of any contract.

145. *Contracts and deeds.* (1) all contracts and deeds made in exercise of the executive authority of the Republic shall be expressed to be made by the President, and shall be executed on behalf of the President by such person and in such manner as he may direct or authorise.

(2) Where a contract or deed is made or executed in exercise of the executive authority of the Republic, neither the President nor any other person making or executing the contract or deed in exercise of that authority shall be personally liable in respect thereof, but this article shall not prejudice the right of any person to take proceedings against the Government.

[1][**145A.** *International treaties.* All treaties with foreign countries shall be submitted to the President, who shall cause them to be laid before Parliament:

[2][Provided that any such treaty connected with national security shall be laid in a secret session of Parliament.]]

146. *Suits in name of Bangladesh.* The Government of Bangladesh may sue or be sued by the name of Bangladesh.

147. *Remuneration, etc. of certain officers.* (1) The remuneration, privileges and other terms and conditions of service of a person holding or acting in any office to which this article applies shall be determined by or under Act of Parliament, but until they are so determined -

(a) they shall be those (if any) appertaining to the person holding or, as the case may be, acting in the office in question immediately before the commencement of this Constitution; or

(b) if the preceding sub-clause is not applicable, they shall be determined by order made by the President.

(2) The remuneration, privileges and other terms and conditions of service of a person holding or acting in any office to which article applies shall not be varied to the disadvantage of any such person during his term of office.

(3) No person appointed to or acting in any office to which this article applies shall hold any office, post or position of profit or emolument or take any part whatsoever in the management or conduct of any company,

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[1] Article 145A was inserted by the Second Proclamation Order No.IV of 1978

[2] Substituted by Act XXVIII of 1991, s.20 for the former proviso.

association or body having profit or gain as its object :

Provided that such person shall not for the purposes of this clause be deemed to hold any such office, post or position by reason only that he holds or is acting in the office first above-mentioned.

(4) This article applies to the offices of -

(a) President;

[1] * * * * * *

[2][(b) Prime Minister [3]* * *]

(c) Speaker or Deputy Speaker;

(d) Minister, Minister of State or Deputy Minister;

(e) Judge of the supreme Court;

[4] * * * * * *

(f) Comptroller and Auditor-General;

(g) Election commissioner;

(h) Member of a public service commission.

[5][**148.** *Oaths of office.* (1) A person elected or appointed to any office mentioned in the Third Schedule shall before entering upon the office make and subscribe an oath or affirmation (in this article referred to as "an oath") in accordance with that Schedule.

[6] * * * * * *

(2) Where under this Constitution an oath is required to be administered by a specified person [7]* * *, it may be administered by such other person and at such place as may be designated by that person.

(3) Where under this Constitution a person is required to make an oath before he enters upon an office he shall be deemed to have entered upon the office immediately after he makes the oath.]

149. *Saving for existing laws.* Subject to the provisions of this Constitution all existing laws shall continue to have effect but may be amended or repealed

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[1] Sub-clause (aa) was omitted by Act XXVIII of 1991, s.21(a), which was inserted by Act II of 1975, s.29

[2] Substituted by the Second Proclamation Order No.IV of 1978, for sub-clause (b)

[3] The words "or Deputy Prime Minister" were omitted by Act XXVIII of 1991, s.21(b)

[4] Sub-clause (ee) omitted by Second Proclamation Order No.I of 1977 which was inserted by the Second Proclamation Order No.IV of 1976

[5] See Proclamation dated 20.8.75

[6] Clause (1A) omitted by Act XXVIII of 1991, s.22, which was inserted by Act XXXVIII of 1989, s.15

[7] The words "and for any reason it is impracticable for the oath to be made before that person" omitted by Act II of 1975

by law made under this Constitution.

150. *Transitional and temporary provisions.* The transitional and temporary provisions set out in the Fourth Schedule shall have effect notwithstanding any other provisions of this Constitution.

151. *Repeals.* The following President's Orders are hereby repealed -

(a) The Laws Continuance enforcement Order made on 10th April, 1971;
(b) The Provisional Constitution of Bangladesh Order, 1972;
(c) The High Court of Bangladesh Order, 1972 (P.O. No. 5 of 1972);
(d) The Bangladesh Comptroller and Auditor-General Order, 1972 (P.O. No. 15 of 1972);
(e) The Constituent Assembly of Bangladesh Order, 1972 (P.O. No. 22 of 1972);
(f) The Bangladesh Election Commission Order, 1972 (P.O. No.25 of 1972);
(g) The Bangladesh Public Service Commissions Order, 1972 (P.O. No. 34 of 1972);
(h) The Bangladesh Transaction of Government Business Order, 1972 (P.O. No. 58 of 1972).

152. *Interpretation.* (10 In this Constitution, except where the subject or context otherwise requires -

"administrative unit" means a district or other area designated by law for the purposes of article 59;

"the Appellate Division" means the Appellate Division of the Supreme court;

"article" means an article of this Constitution;

"borrowing" includes the raising of money by annuity, and "loan" shall be construed accordingly;

"the capital" has the meaning assigned to that expression in article 5;

"Chief Election Commissioner" means a person appointed to that office under article 118;

"the chief Justice" means the Chief Justice of Bangladesh;

"citizen" means a person who is a citizen of Bangladesh according to the law relating to citizenship;

"clause" means a clause of the article in which the expression occurs;

"court" means any court of law including Supreme Court;

"debt" includes any liability in respect of any obligation to repay capital sums by way of annuities and any liability under any guarantee, and "debt charge" shall be construed accordingly;

"disciplinary law" means a law regulating the discipline of any

disciplined force;

"disciplined force" means -

(a) the army, navy or air force;

(b) the police force;

(c) any other force declared by law to be a discipline force within the meaning of this definition;

"district judge" includes additional district judge;

"existing law" means any law in force in, or in any part of, the territory of Bangladesh immediately before the commencement of this Constitution, whether or not it has been brought into operation;

"financial year" means a year commencing on the first day of July;

"guarantee" includes any obligation undertaken before the commencement of this Constitution to make payments in the event of the profits of an undertaking falling short of a specified amount;

"High Court Division" means the High Court Division of the Supreme Court;

"judge" means a judge of a division of the Supreme Court;

"judicial service" means a service comprising persons holding judicial posts not being posts superior to that of a district judge;

"law" means any Act, ordinance, order, rule, regulation, bye-law, notification or other legal instrument, and any custom or usage, having the force of law in Bangladesh;

"Parliament" means the Parliament for Bangladesh established by article 65;

"Part" means a Part of this Constitution;

"pension" means a pension, whether contributory or not, of any kind whatsoever payable to or in respect of any person, and includes retired pay or gratuity so payable by way of the return or any addition thereto of subscriptions to a provident fund;

"political party" includes a group or combination of persons who operate within or outside Parliament under a distinctive name and who hold themselves out for the purpose of propagating a political opinion or engaging in any other political activity;

"the President" means the President of Bangladesh elected under this Constitution or any person for the time being acting in that office;

"property" includes property of every description movable or immovable corporeal or incorporeal, and commercial and industrial undertakings, and any right or interest in any such property or undertaking;

"public notification" means a notification in the Bangladesh Gazette;

"public officer" means a person holding or acting in any office of

emolument in the service of the Republic;
"the Republic" means the People's Republic of Bangladesh;
"Schedule" means a schedule to this Constitution;
"securities" includes stock;
"the service of the Republic" means any service, post or office whether in a civil or military capacity, in respect of the Government of Bangladesh, and any other service declared by law to be a service of the Republic;
"session", in relation to Parliament, means the sittings of Parliament commencing when it first meets after the commencement of this Constitution or after a prorogation or dissolution of Parliament and terminating when Parliament is prorogued or dissolved;
"sitting" in relation to Parliament, means a period during which Parliament is sitting continuously without adjournment;
"the Speaker" means the person for the time being holding the officer of Speaker pursuant to article 74;
"the State" includes Parliament, the Government and statutory public authorities;
"statutory public authority" means any authority, corporation or body the activities or the principal activities of which are authorised by any Act, ordinance, order or instrument having the force of law in Bangladesh;
"sub-clause" means a sub-clause of the clause in which the expression occurs;
"the Supreme Court" means the Supreme Court of Bangladesh constituted by article 94;
"taxation" includes the imposition of any tax, rate, duty or impost, whether general, local or special, and "tax" shall be construed accordingly.

[1] * * * * * *

(2) The General Clause Act, 1897 shall apply in relation to -
(a) this Constitution as it applies in relation to an Act of Parliament;
(b) any enactment repealed by this Constitution, or which by virtue thereof becomes void or ceases to have effect, as it applies in relation to any enactment repealed by Act of Parliament.

153. *Commencement, citation and authenticity.* (1) This Constitution may be cited as the Constitution of the People's Republic of Bangladesh and shall come into force on the sixteenth day of December, 1972, in this Constitution

[1] The expression "Vice-President" omitted by Act XXVIII of 1991, s.16, which was added by Act XXXVIII of 1989

referred to as the commencement of this Constitution.

(2) There shall be an authentic text of this Constitution in Bengali, and an authentic text of an authorised translation in English, both of which shall be certified as such by the Speaker of the Constituent Assembly.

(3) A text certified in accordance with clause (2) shall be conclusive evidence of the provisions of this Constitution:

Provided that in the event of conflict between the Bengali and the English text, the Bengali text shall prevail.

FIRST SCHEDULE
[Article 47]

Laws effective notwithstanding other provisions

The State Acquisition and Tenancy Act, 1950 (E.B. Act XXVIII of 1951

The Bangladesh (Taking over of Control and Management of Industrial and Commercial Concerns Order, 1972 (A.P.O. No.1 of 1972)

[1] * * * * * *

[2]The Government of Bangladesh (Services) Order, 1972 (P.O. No.9 of 1972)

The Bangladesh Shipping Corporation Order, 1972 (P.O. No.10 of 1972)

The Bangladesh (Restoration of Evacuee Property) Order, 1972 (P.O. No.13 of 1972)

[3]The Bangladesh Public Servants' (Retirement) Order, 1972 (P.O. No. 14 of 1972)

The Bangladesh Abandoned Property (Control, Management and Disposal) Order, 1972 (P.O. No. 16 of 1972)

The Bangladesh Bank (Nationalisation) Order, 1972 (P.O. No.26 of 1972)

The Bangladesh Industrial Enterprises (Nationalisation) Order, 1972 (P.O. No.27 of 1972)

The Bangladesh Inland Water Transport Corporation Order, 1972 (P.O. No.28 of 1972)

The Bangladesh (Vesting of Property and Assets) Order, 1972 (P.O. No.29 of 1972)

The Bangladesh Insurance (Emergency Provisions) Order, 1972 (P.O. No.30 of 1972)

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[1] The entry "The Bangladesh Collaborators (Special Tribunal) Order, 1972 (P.O. No.8 of 1972)" omitted by the Second Proclamation Order no.III of 1975

[2] Repealed by Ordinance No.XLVI of 1975

[3] Repealed by Ordinance No.XXVI of 1973

[1]The Bangladesh Consumer Supplies Corporation Order, 1972 (P.O. No.47 of 1972)
[2]The Bangladesh Scheduled Offences (Special Tribunals) Order, 1972 (P.O. No.50 of 1972)
[3]The Bangladesh Nationalised and Private Organisations (Regulation of Salary of Employees) Order, 1972 (P.O. No.54 of 1972)
[4]The Bangladesh Jute Export Corporation Order, 1972 (P.O. No.57 of 1972)
The Bangladesh Water and Power Development Boards Order, 1972 (P.O. No.59 of 1972)
[5]The Government of Bangladesh (Services Screening) Order, 1972 (P.O. No.67 of 1972)
[6]The Bangladesh Government Hats and Bazars (Management) Order, 1972 (P.O. No.73 of 1972)
[7]The Bangladesh Government and Semi-autonomous Organisations (Regulation of Salary of Employees) Order, 1972 (P.O. No.79 of 1972)
The Bangladesh Insurance (Nationalisation) Order, 1972 (P.O. No.95 of 1972)
The Bangladesh Land Holding (Limitation) Order, 1972 (P.O. No. 98 of 1972)
[8]The Bangladesh Biman Order, 1972 (P.O. No.126 of 1972)
The Bangladesh Bank Order, 1972 (P.O. No.127 of 1972)
The Bangladesh Shilpa Rin Sangstha Order, 1972 (P.O. No.128 of 1972)
The Bangladesh Shilpa Bank Order, 1972 (P.O. No.129 of 1972)
And all Presidential Orders and other existing law effecting amendments to the above-mentioned Act and Orders.

SECOND SCHEDULE. - [*Omitted by the Constitution (Fourth Amendment) Act*, 1975 (Act II of 1975, s.31]

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[1] Repealed by Act III of 1981
[2] Repealed by Act XIV of 1974
[3] Repealed by Ordinance No.XLII of 1977
[4] Repealed by Ordinance No.XXX of 1985
[5] Repealed by Ordinance No.XV of 1977
[6] Repealed by Ordinance No.LIX of 1975
[7] Repealed by Ordinance No.XLII of 1977
[8] Repealed by Ordinance No.XIX of 1977

THIRD SCHEDULE
[Article 148]

OATHS AND AFFIRMATIONS

1. The President. - An oath (or affirmation) in the following form shall be administered by the [1][Chief Justice] -

"I, ..., do solemnly swear (or affirm) that I will faithfully discharge the duties of the office of President of Bangladesh according to law:

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the Constitution:

And that I will do right to all manner of people according to law, without fear or favour, affection or ill-will."

[2] * * * * * *

[3][**1A. The President in the case of performing the functions of the Chief Adviser.**- Oaths (or affirmations) in the following forms shall be administered by the Chief Justice-

(a) Oath (or affirmation) of office:

"I .....do solemnly swear (or Affirm) that I will faithfully discharge the duties of the office of Chief Adviser of the Non-Party Care-taker government according to law:

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the constitution:

And that I will do right to all manner of people according to law , without fear or favour, affection or ill-will".

(b) Oath (or affirmation) of secrecy:

"I ..... do solemnly swear (or Affirm) that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration or shall become known to me as Chief Adviser of the Non-Party Care-taker government except as may be required for the due discharge of my duty as Chief Adviser.]

2. The Prime Minister [4]* * * **and other Ministers, Ministers of State and Deputy Ministers.-**. Oaths (or affirmations) in the following forms shall

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[1] Substituted for the words "Chief Justice of the Supreme Court" by the Second Proclamation Order No.I of 1977

[2] Form 1A omitted by Act XXVIII of 1991, s.24(a), which was inserted by Act II of 1975

[3] Form 1A Was inserted by the Constitution (Thirteenth Amendment) Act, 1996 (Act 1 of 1996), s.9(1)

[4] The words "Deputy Prime Minister" omitted, ibid

be administered by the President -

(a) Oath (or affirmation) of office :

"I, ..., do solemnly swear (or affirm) that I will faithfully discharge the duties of the office of Prime Minister (or as the case may be) according to law:

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the Constitution:

And that I will do right to all manner of people according to law, without fear or favour, affection or ill-will."

(b) *Oath (or affirmation) of secrecy* :

"I, ..., do solemnly swear (or affirm) that I will not directly or indirectly communicate or reveal to any person any matter which will be brought under my consideration or shall become known to me as Prime Minister (or as the case may be) except as may be required for the due discharge of my duty as Prime Minister (or as the case may be)."

[1][**2A. The Chief Adviser and Advisers.**- Oaths (affirmations) in the following forms shall be administered by the President-

(a) Oath (or affirmation) of office:

"I ..... do solemnly swear (or affirm) that I will faithfully discharge the duties of the office of Chief Adviser (or Adviser) of the Non-Party Care-taker Government, according to law;

That I will bear true faith and allegiance to Bangladesh;

That I will preserve, protect and defend the Constitution;

That I will do right to all manner of people according to law, without fear or favour, affection or ill-will."

(b) Oath (or affirmation) of secrecy:

I ..... do solemnly swear (or affirm) I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration or shall become known to me as Chief Adviser (or Adviser) of the Non-Party Care-taker Government, except as may be required for the due discharge of my duty as Chief Adviser (or Adviser)".]

3. The speaker.- An oath (or affirmation) in the following form shall be administered by the [2][President]-

"I, ..., do solemnly swear (or affirm) that I will faithfully discharge the duties of the Speaker of Parliament and (whenever I am called upon so to do) of the President, according to law:

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[1] Form 2A was inserted by the Constitution (Thirteenth Amendment) Act, 1996 (Act I of 1996), s.9(2)

[2] Substituted for the words "Chief Justice" by Act II of 1975, s.32

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the Constitution:

And that I will do right to all manner of people according to law, without fear or favour, affection or ill-will."

4. **Deputy Speaker.** - An oath (or affirmation) in the following form shall be administered by the [1][President] -

"I, ..., do solemnly swear (or affirm) that I will faithfully discharge the duties of Deputy Speaker of Parliament and (whenever I am called upon so to do) of the Speaker, according to law:

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the Constitution:

And that I will do right to all manner of people according to law, without fear or favour, affection or ill-will."

5. **Member of Parliament.**- An oath (or affirmation) in the following form shall be administered [2]* * * by the Speaker -

"I, ..., having been elected a member of Parliament do solemnly swear (or affirm) that I will faithfully discharge the duties upon which I am about to enter according to law:

That I will bear true faith and allegiance to Bangladesh:

And that I will not allow my personal interest to influence the discharge of my duties as a member of Parliament."

[3][6. **Chief Justice or Judges.**- An oath (or affirmation) in the following form shall be administered, in the case of the Chief Justice by the President, and in the case of a Judge appointed to a division , by the Chief Justice -

"I, ... having been appointed Chief Justice of Bangladesh (or Judge of the Appellate/High Court Division of the Supreme Court) do solemnly swear (or affirm) that I will faithfully discharge the duties of my office according to law:

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the Constitution and the laws of Bangladesh :

And that I will do right to all manner of people according to law, without fear or favour, affection or ill-will."]

7. **Chief Election Commissioner or Election Commissioners.**- An oath (or affirmation) in the following form shall be administered by the [4]{Chief

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[1] Ibid

[2] The words "at a meeting of Parliament" were omitted, ibid

[3] Substituted by the Second Proclamation Order No. I of 1977

[4] Substituted by the Second Proclamation Order No.I of 1977, for the words "Chief

Justice] -

"I, ... having been appointed Chief Election Commissioner (or Election Commissioner), do solemnly swear (or affirm) that I will faithfully discharge the duties of my office according to law:

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the Constitution:

And that I will not allow my personal interest to influence my official conduct or my official decisions."

8. Comptroller and Auditor-General.- An oath (or affirmation) in the following form shall be administered by the [1][Chief Justice]-

"I, ... having been appointed Comptroller and Auditor-General do solemnly swear (or affirm) that I will faithfully discharge the duties of my office according to law:

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the Constitution:

And that I will not allow my personal interest to influence my official conduct or my official decisions."

9. Member of Public Service Commission.- An oath (or affirmation) in the following form shall be administered by the [2]{Chief Justice}-

"I, ... having been appointed Chairman (or Member) of a Public Service Commission do solemnly swear (or affirm) that I will faithfully discharge the duties of my office according to law:

That I will bear true faith and allegiance to Bangladesh:

That I will preserve, protect and defend the Constitution:

And that I will not allow my personal interest to influence my official conduct or my official decisions."

FOURTH SCHEDULE
(Article 150)

TRANSITIONAL AND TEMPORARY PROVISIONS

1. *Dissolution of Constituent Assembly.* Upon the commencement of this Constitution, the Constituent Assembly, having discharged its responsibility of framing a Constitution for the Republic, shall stand dissolved.

Justice of the High Court".

[1] Ibid

[2] Ibid

2. *First elections.* (1) The first general election of members of Parliament shall be held as soon as possible after the commencement of this Constitution and for this purpose the electoral rolls prepared under Bangladesh Electoral Rolls Order, 1972 (P.O. No. 104 of 1972) shall be deemed to be the electoral rolls prepared in accordance with article 119.

(2) For the purpose of the first general election of members of Parliament, the delimitation of constituencies made for the purpose of elections to constitute the erstwhile Provincial Assembly, and publish ed in 1970, shall be deemed to be made under article 119, and the Election Commission shall, after incorporating such changes, as it may consider necessary, in the nomenclature of any constituency or any subdivision or thana included therein, publish, by public notification, the list of such constituencies:

Provided that provision may be made by law to give effect to the provisions relating to seats for women members referred to in clause (3) of article 65.

3. *Provisions for maintaining continuity and interim arrangement.* (1) All laws made or purported to have been made in the period between the 26th day of March, 1971 and the commencement of this Constitution, all powers exercised and all things done during that period, under authority derived or purported to have been derived from the Proclamation of Independence or any law, are hereby ratified and confirmed and are declared to have been made, exercised and done according to law.

(2) Until the day upon which Parliament first meets pursuant to the provision of this Constitution, the executive and legislative powers of the Republic (including the power of the President, on the advice of the Prime Minister, to legislate by order) shall, notwithstanding the repeal of the Provisional Constitution of Bangladesh Order, 1972, be exercised in all respects in the manner in which, immediately before the commencement of this Constitution, they have been exercised.

(3) Any provision of this Constitution enabling or requiring Parliament to legislate shall, until the day upon which Parliament first meets as aforesaid, be construed as enabling the President to legislate by order, and any order made under this paragraph shall have effect as if the provisions thereof had been enacted by Parliament.

[1][**3A.** *Validation of certain Proclamations, etc.* (1) The Proclamations of the 20th August, 1975, and 8th November, 1975, and the Third Proclamation of the 29th November, 1976, and all other Proclamations and Orders amending or supplementing them, hereinafter in this paragraph collectively referred to as the said Proclamations, and all Marital Law Regulations, Martial Law Orders

[1] Inserted by Proclamation Order No.I of 1977

and all other laws made during the period between the 15th day of august, 1975 n the date of revocation of the said Proclamations and the withdrawal of Martial Law (both days inclusive), hereinafter in this paragraph referred to as the said period, shall be deemed to have been validly made and shall not be called in question in or before any Court or Tribunal on any ground whatsoever.

(2) All orders made, acts and things done, and actions and proceedings taken, or purported to have been made, done or taken by the President or the Chief Martial Law Administrator or by any other person or authority during the said period, in exercise or purported exercise of the powers derived from any of the said Proclamations or any Martial Law Regulation or Martial Law Order or any other law, or in execution of or in compliance with any order made or sentence passed by any Court or authority in the exercise or purported exercise of such powers, shall be deemed to have been validly made, done or taken and shall not be called in question in or before any Court or Tribunal on any ground whatsoever.

(3) No suit, prosecution or other legal proceeding shall lie in any court or Tribunal against any person or authority for or on account of or in respect of any order made, act or thing done, or action or proceeding taken whether in the exercise or purported exercise of the powers referred to in sub-paragraph (2) or in execution of or in compliance with orders made or sentences passed in exercise or purported exercise of such powers.

(4) All amendments, additions, modifications, substitutions and omissions made in this Constitution by the said Proclamations shall have effect as if such amendments, additions, modifications, substitutions and omissions were made in accordance with, and in compliance with the requirements of, this Constitution.

(5) Upon the revocation of the said Proclamations and the withdrawal of Martial Law this Constitution shall, subject to amendments, additions, modifications, substitutions and omissions as aforesaid, have effect and operate as if it had been in continuous operation.

(6) The revocation of the said Proclamations and withdrawal of Martial Law shall not revive or restore any right or privilege which was not existing at the time of such revocation and withdrawal.

(7) All laws in force immediately before the revocation of the said Proclamations and withdrawal of Martial Law shall, subject to the Proclamation revoking the said Proclamations and withdrawing the Martial Law, continue in force until altered, amended or repealed by the competent authority.

[1][(8) The General Clauses Act, 1897, shall apply to the said Proclamations and the Martial Law Regulations and Martial Law Orders made during the said period and also to the revocation of the said Proclamations and the withdrawal of Martial Law and the repeal of the said Martial Law Regulations and Martial Law Orders as it applies to, and to the repeal of , an Act of Parliament as if the said Proclamations and the Proclamation revoking them and withdrawing the Martial Law Regulations and Martial Law Orders were all Acts of Parliament.

(9) In the event of any conflict, contradiction, discrepancy or inconsistency between the Bengali and the English text of the Constitution, in so far as it relates to any amendment, addition, modification, substitution or omission made in any of the texts or in both the texts by the said Proclamations, the English text shall prevail.

(10) In this paragraph, 'law' includes Ordinances, rules, regulations, bye-laws, orders, notifications and other instruments having the force of law.]

4. *President.* (1) The person holding office as President of Bangladesh immediately before the commencement of this Constitution shall hold office as President, as if elected to that office under this Constitution, until a person elected as President under article 48 enters upon office:

Provided that the holding of office under this paragraph shall not be taken into account for the purposes of clause (2) of article 50.

(2) The persons holding office as Speaker and Deputy Speaker of the Constituent Assembly immediately before the commencement of this Constitution shall, notwithstanding that Parliament has not yet been constituted, be deemed to hold office respectively as Speaker and Deputy Speaker until an election to each of those offices is made under clause (1) of article 74.

5. *Prime Minister and other Ministers.* The person holding office as Prime Minister, immediately before the date of the commencement of this Constitution shall, until his successor appointed under article 56 after the first general election held under this Constitution enters upon office, hold office as Prime Minister as if appointed to that office under this Constitution, and the persons holding offices as Ministers immediately before that date shall continue to hold office as Ministers until the Prime Minister otherwise directs, and nothing in article 56 shall prevent the appointment of other Ministers on the advice of the Prime Minister.

6. *Judiciary.* (1) The person holding office as Chief Justice immediately before the date of the commencement of this Constitution and every person

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[1] Sub-paragraphs (8), (9) and (1)) were substituted for the former sub-paragraphs (8) and (9) by the Second Proclamation Order No.IV of 1978

who then held office as judge of the High Court constituted by the Provisional Constitution of Bangladesh Order, 1972, shall as from that date hold office as if appointed under article 95 as Chief Justice or, as the case may be, as judge.

(2) The persons (other than the Chief Justice) holding office as judges pursuant to sub-paragraph (1) if this paragraph shall at the commencement of this Constitution be deemed to have been appointed to the High Court Division, and appointments to the Appellate Division shall be made in accordance with article 94.

(3) All legal proceedings pending in the High Court immediately before the commencement of this Constitution (other than those referred to in sub-paragraph (4) of this paragraph) shall be transferred to, and be deemed to be pending before the High Court Division for determination, and any judgment or order of the High Court delivered or made before he commencement of this Constitution shall have the same force and effect as if it had been delivered or made by the High Court Division.

(4) All legal proceedings pending before the Appellate Division of the High Court immediately before the commencement of this Constitution shall be transferred to the Appellate Division for determination and any judgment or order of the former division delivered or made before the commencement of this Constitution shall have the same force and effect as if it had been delivered or made by the Appellate Division.

(5) Subject to the provisions of this Constitution and any other law -

(a) all original, appellate and other jurisdiction which was vested in the High Court constituted by the Provisional Constitution of Bangladesh Order, 1972 (other than jurisdiction vested in the Appellate Division of that Court) shall from the commencement of this Constitution, vest in and exercised by the High Court Division;

(b) all civil, criminal and revenue courts and tribunals exercising jurisdiction and functions immediately before the commencement of this Constitution shall continue to exercise their respective jurisdictions and functions, and all persons holding office in such courts and tribunals shall continue to hold their respective offices.

(6) The provisions of Chapter II of Part VI (which relate to subordinate courts) shall be implemented as soon as is practicable, and until such implementation the matters provided for in that Chapter shall (subject to any other provision made by law) be regulated in the manner in which they were regulated immediately before the commencement of this Constitution.

(7) Nothing in this paragraph shall affect the operation of any existing law relating to the abatement of proceedings.

[1][**6A.** *Provisions as to existing Judges and pending proceedings.* (1) The person holding office of Chief Justice of Bangladesh immediately before the commencement of the Second Proclamation (Seventh amendment) Order, 1976 (hereinafter referred to as the said Order), and every person who then held office as Judge or additional Judge of the Appellate Division of the Supreme Court shall as from such commencement hold office as Chief Justice, Judge and Additional Judge of the Supreme Court, as the case may be, on the same terms and conditions as to remuneration and other privileges as were applicable to him immediately before such commencement.

(2) A person holding office as Judge or Additional Judge of the High Court Division of the Supreme court immediately before the commencement of the said Order shall as from such commencement hold office as Judge or Additional Judge of the High Court as the case may be, on the same terms and conditions as to remuneration and other privileges as were applicable to him immediately before such commencement.

(3) All legal proceedings pending before the Appellate division of the Supreme Court immediately before the commencement of the said Order shall on such commencement stand transferred to and be deemed to be pending before, the Supreme Court for determination; and any judgment, or order of the Appellate Division of the supreme Court delivered or made before such commencement shall have the same force and effect as if it had been delivered and made by the Supreme Court.

(4) All legal proceedings pending before the High Court Division of the Supreme Court immediately before the commencement of the said Order shall on such commencement stand transferred to, and deemed to be pending before, the High Court for determination; and any judgment or order of the High Court Division delivered or made before such commencement shall have the same force and effect as if it had been delivered or made by the High Court.

(5) Subject to the other provisions of this Constitution, the Supreme Court shall have the same functions, jurisdiction and posers as were, immediately before the commencement of the same Order, exercisable by the Appellate Division of the Supreme Court, and references in any law, legal instrument or other document to the appellate Division of the Supreme Court shall, unless the context otherwise requires, be construed as references to the Supreme Court.

(6) Subject to the other provisions of this Constitution, the High Court shall have the same functions, jurisdiction and powers as were, immediately before the commencement of the said Order, exercisable by the High Court Division of the Supreme Court, and references in any law, legal instrument and

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[1] Inserted by the Second Proclamation Order No.IV of 1976 (w.e.f. 18.8.1976)

other document to the High Court Division of the Supreme Court shall, unless the context otherwise requires, be construed as references to the High Court.]

[1][**6B.** *Provisions as to Judges of the Supreme Court and High Court existing before the Second Proclamation Order No.I of 1977, proceedings pending before commencement of that Order, etc.* (1) A person holding office as Chief Justice or Judge or Additional Judge of the Supreme Court or chief Justice or Judge or Additional Judge of the High Court immediately before the commencement of the Second Proclamation (Tenth Amendment) Order No.I of 1977 (hereinafter referred to as the said Order), shall, if he has attained the age of sixty-two years on the date of such commencement, stand retired on that date.

(2) A person holding office as Chief Justice or Judge or Additional Judge of the Supreme Court immediately before the commencement of the said Order shall, if he has not attained the age of sixty-two years on the date of such commencement, as from such commencement hold office as Chief Justice of Bangladesh or Judge or Additional Judge of the Appellate Division as the case may be, on the same terms and conditions as to remuneration and other privileges as were applicable to him immediately before such commencement.

(3) The person holding office as Chief Justice of the High Court immediately before the commencement of the said Order shall, if he has not attained the age of sixty-two years on the date of such commencement, as from such commencement hold office as Judge of the High Court Division on the same terms and conditions as to remuneration and other privileges as were applicable to him immediately before such commencement.

(4) A person holding office as Judge or Additional Judge of the High Court immediately before the commencement of the said Order shall, if he has not attained the age of sixty-two years on the date of such commencement, as from such commencement hold office as Judge or Additional Judge of the High Court Division, as the case may be, on the same terms and conditions as to remuneration and other privileges as were applicable to him immediately before such commencement.

(5) All legal proceedings pending before the Supreme Court immediately before the commencement of the said Order shall on such commencement stand transferred to, and be deemed to be pending before, the Appellate Division for determination; and any judgment or order of the Supreme Court delivered or made before such commencement shall have the same force and effect as if it had been delivered or made by the Appellate Division.

(6) All legal proceedings pending before the High Court immediately

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[1] Inserted by the Second Proclamation Order No. I of 1977 (w.e.f. 1.12.1977)

before the commencement of the said Order shall on such commencement stand transferred to, and deemed to be pending before the High Court Division for determination; and any judgment or order of the High Court delivered or made before such commencement shall have the same force and effect as it had been delivered or made by the High Court Division.

(7) Subject to the other provisions of this Constitution, the Appellate Division shall have the same functions, jurisdiction and powers as were, immediately before the commencement of the said Order, exercisable by the Supreme Court, and references in any law, legal instrument or other document to the Supreme Court shall, unless the context otherwise requires, be construed as references to the Appellate Division.

(8) Subject to the other provisions of this Constitution, the High Court Division shall have the same functions, jurisdiction and powers as were, immediately before the commencement of the said Order, exercisable by the High Court, and reference in any law, legal instrument or other document to the High Court shall, unless the context otherwise requires, be construed as reference to the High Court Division.

(9) the person holding office as Advocate-General immediately before the commencement of the said Order shall on such commencement cease to hold that office.]

7. *Interim rights of appeal.* An appeal to the appellate Division shall lie, notwithstanding any limitation as to time, against any judgment, decree, order or sentence delivered, issued or pronounced since the 1st day of March, 1971 by any High Court (but excluding the Appellate division constituted by the High Court of Bangladesh (Amendment) Order (P.O. No.91 of 1972) functioning in the territory of Bangladesh:

Provided that article 103 shall apply in respect of any such appeal as it applies in respect of appeals from the High Court Division:

Provided further that no appeal under this article shall be lodged after the expiration of the period of ninety days from the commencement of this Constitution.

8. *Election Commission.* (1) The Election Commission existing immediately before the date of commencement of this Constitution, shall, as from that date, be deemed to be the Election Commission established by this Constitution.

(2) The person holding office as Chief Election Commissioner, and every person holding office as Election Commissioner, immediately before the date of the commencement of this Constitution, shall, as from that date, hold office as if appointed to such office under this Constitution.

9. *Public Service Commission.* (1) The public service commissions

existing immediately before the date of the commencement of this Constitution, shall, as from that date, be deemed to be Public service commissions established under this Constitution.

(2) Every person holding office as chairman or other member of a public service commission immediately before the date of the commencement of this Constitution shall as from that date hold office as if appointed to that office under this Constitution.

10. *Public service.* (1) Subject to this Constitution and to any other law-

(a) any person who immediately before the commencement of this Constitution was in the service of the Republic shall continue in that service on the same terms and conditions as were applicable to him immediately before such commencement;

(b) all authorities and all officers, judicial, executive and ministerial throughout Bangladesh exercising functions immediately before the commencement of this Constitution, shall, as from such commencement, continue to exercise their respective functions.

(2) Nothing in sub-paragraph (1) of this paragraph shall -

(a) derogate from the continued operation of the Government of Bangladesh (Services) Order, 1972 (P.O. No.9 of 1972), or the Government of Bangladesh (Services Screening) Order, 1972 (P.O. No. 67 of 1972); or

(b) prevent the making of any law varying or revoking the conditions of service (including remuneration, leave, pension rights and rights relating to disciplinary matters) of person employed at any time before the commencement of this Constitution or of persons continuing in the service of the Republic under the provisions of the paragraph.

11. *Oaths for continuance in office.* Any person who, under this Schedule, is continued in an office in respect of which a form of oath or affirmation is set out in the Third Schedule shall, as soon as practicable after the commencement of this Constitution, make and subscribe before the appropriate person an oath or affirmation in that form.

[1] * * * * * *

13. *Taxation.* All taxes and fees imposed under any law in force in Bangladesh immediately before the commencement of this Constitution shall continue to be imposed but may be varied or abolished by law.

14. *Interim financial arrangements.* Unless Parliament otherwise resolves,

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[1] Paragraph 12 omitted by Act II of 1975, s.33

the provisions of articles 87, 89, 90 and 91 of this Constitution shall not have effect in respect of the financial year current at the commencement of this Constitution, and expenditure defrayed during that year out of the Consolidated Fund or the Public Account of the Republic shall be deemed to have been validly incurred:

Provided that the President shall, as soon as is practicable, cause a statement of all such expenditure, authenticated by his signature, to be laid before Parliament.

15. *Audit of past accounts.* The powers of the Comptroller and Auditor-General under this Constitution shall apply in respect of all accounts relating to the financial year current at the commencement of this Constitution and to earlier years, and the reports of the Comptroller and Auditor-General relating to such accounts shall be submitted to the President who shall cause them to be laid before Parliament.

16. *Property, assets, rights, liabilities and obligations of the Government.* (1) All property, assets and rights which immediately before the commencement of this Constitution were vested in the government of the People's Republic of Bangladesh or any person or authority on its behalf shall vest in the Republic.

(2) All liabilities and obligations of the government of the Republic as they existed immediately before the commencement of this Constitution shall continue to be the liabilities and obligations of the Republic.

(3) No liability or obligation of any other government which at any time functioned in the territory of Bangladesh is or shall be a liability or obligation of the Republic unless it is expressly accepted by the Government of the Republic.

17. *Adaptation of laws and removal of difficulties.* (1) For the purpose of bringing the provisions of any law in force in Bangladesh into conformity with this Constitution the President may, within the period of two years from the commencement of this Constitution, by order, amend or suspend the operation of such provisions and any order so made may have retrospective effect.

(2) The President may, for the purpose of removing any difficulties in relation to the transition from the provisional constitutional arrangements existing before the commencement of this Constitution to the arrangements under this Constitution, by order direct that this Constitution shall, during such period as may be specified in the order, have effect subject to such adaptations, whether by way of modification, addition or omission, as he may deem necessary or expedient:

Provided that no such order shall be made after the first meeting of the Parliament constituted under this Constitution.

(3) Every order made under this paragraph shall have effect notwithstanding any other provision of this Constitution, shall be laid before Parliament, and may b amended or revoked by Act of Parliament.

[1][**18.** *Ratification and confirmation of Proclamations, etc.* All Proclamations, Proclamation Orders, Martial Law Regulations, Martial Law Orders and other laws made during the period between the 15th August, 1975, and the 9th April, 1979 (both days inclusive), all amendments, additions, modifications, substitutions and omissions made in this Constitution during the said period by any such Proclamation, all orders made, acts and things done, and actions and proceedings taken, or purported to have been made, done or taken, by any person or authority during the said period in exercise of the powers derived or purported to have been derived from any such Proclamation, Martial Law Regulation, Martial Law Order or any other law, or in execution of or in compliance with any order made or sentence passed by any court, tribunal or authority in the exercise or purported exercise of such powers, are hereby ratified and confirmed and are declared to have been validly made, done or taken and shall not be called in question in or before any court, tribunal or authority on any ground whatsoever.]

[2][**19.** *Ratification and confirmation of the Proclamation of the 24th March, 1982, etc.* (1) The Proclamation of the 24th March, 1982, hereinafter in this paragraph referred to as the said Proclamation, and all other Proclamations, Proclamation Orders, Chief Martial Law Administrator's Orders, Martial Law Regulations, Martial Law Orders, Martial Law Instructions, Ordinances and all other laws made during the period between the 24th March, 1982, and the date of commencement of the Constitution (Seventh Amendment) Act, 1986 (Act I of 1986) (both days inclusive), hereinafter in this paragraph referred to as the said period, are hereby ratified and confirmed and declared to have been validly made and shall not be called in question in or before any court, tribunal or authority on any ground whatsoever.

(2) All orders made, acts and things done, and actions and proceedings taken, or purported to have been made, done or taken, by the President or the Chief Martial Law Administrator or by any other person or authority during the said period, in exercise or purported exercise of the powers derived from the said Proclamation or from any other Proclamation, Proclamation Order, Chief Martial Law Administrator's Order, Martial Law Regulation, Martial Law Order, Martial Law Instruction, Ordinance or any other Law, or in execution of or in compliance with any order made or sentence passed by any court, tribunal

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[1] Paragraph 18 added by the Constitution (Fifth Amendment) Act, 1979

[2] Paragraph 19 added by the Constitution (Seventh Amendment) Act, 1986

or authority in the exercise or purported exercise of such powers, shall be deemed to have been validly made, done or taken and shall not be called in question in or before any court, tribunal or authority on any ground whatsoever.

(3) No suit, prosecution or other legal proceeding shall lie in any court or tribunal against any person or authority for or on account of or in respect of any order made, act or thing done, or action or proceedings taken whether in exercise or purported exercise of the powers referred to in sub-paragraph (2) or in execution of or in compliance with orders made or sentences passed in exercise or purported exercise of such powers.

(4) All appointments made, during the said period to any office mentioned in the Third Schedule shall be deemed to have been validly made and shall not be called in question in or before any court, tribunal or authority on any ground whatsoever, and any person appointed under the said Proclamation to any such office during the said period and holding such office immediately before the date of commencement of the Constitution (Seventh Amendment) Act, 1986 (Act I of 1986), hereinafter in this paragraph referred to as the said Act shall, as from that date hold such office as if appointed to that office under this Constitution; and shall as soon as practicable after that date, make and subscribe before the appropriate person an oath or affirmation in the form set out in the Third Schedule.

(5) All appointments made by the Chief Martial Law Administrator during the said period to any office or post which is continuing after the date of commencement of the said Act shall, as from that date, be deemed to be appointments made by the President.

(6) All Ordinances and other laws in force immediately before the date of commencement of the said Act shall, subject to the Proclamation revoking the said Proclamation and withdrawing the Martial Law, continue in force until altered, amended or repealed by competent authority.

(7) Upon the revocation of the said Proclamation and withdrawal of Martial Law, this Constitution shall stand fully revived and restored and shall, subject to the provisions of this paragraph, have effect and operate as if it had never been suspended.

(8) The revocation of the said Proclamation and withdrawal of Martial Law shall not revive or restore any right or privilege which was not existing at the time of such revocation and withdrawal.

(9) The General Clauses Act, 1897, shall apply to the said Proclamation, and all other Proclamations, Proclamation Orders, Chief Martial Law Administrator's Orders, Martial Law Regulations, Martial Law Orders and Martial Law Instructions made during the said period and also to the revocation of the said Proclamation and other Proclamations and the repeal of the said Proclamation Orders, Chief Martial Law Administrator's Orders, Martial Law

Regulations, Martial Law Orders and Martial Law Instructions as it applies to, and to the repeal of, an Act of Parliament as if the said Proclamation, and other Proclamations, Proclamation Orders, Chief Martial Law Administrator's Orders, Martial Law Regulations, Martial Law Orders and Martial Law Instructions and the Proclamation revoking the said Proclamation were all Acts of Parliament.

(10) In this paragraph, "law" includes rules, regulations, bye-laws, orders, notifications and other instruments having the force of law.]

[1][**21.** *Ratification and confirmation of the appointment of Vice-President, etc.* (1) The appointment of, and the administration of oath to the Chief Justice of Bangladesh as Vice-President on the 21st day of Agrahayan, 1397 B.S. corresponding to the 6th day of December, 1990, and the resignation tendered to him by the then President and all powers exercised, all laws and Ordinances made and all orders, acts and things done, and actions taken, or purported to have been made, done or taken by the said Vice-President acting as President during the period between the 21st day of Agrahayan, 1397 B.S. corresponding to the 6th day of December, 1990, and the date of commencement of the Constitution (Eleventh Amendment) Act, 1991 (Act No.XXIV of 1991) (both days inclusive) or till the new President elected under article 48(1) of the Constitution has entered upon his office (whichever is later), are hereby ratified and confirmed and declared to have been validly made, administered, tendered, exercised, done and taken according to law.

(2) The said Vice-President shall, after the commencement of the Constitution (Eleventh Amendment) Act, 1991 (Act No.XXIV of 1991), and after the new President elected under this Constitution has entered upon his office, be eligible to resume the duties and responsibilities of the Chief Justice of Bangladesh and the period between the 21st day of Agrahayan, 1397 B.S. corresponding to the 6th day of December, 1990 and the date on which he resumes such duties and responsibilities shall be deemed to be the period of actual service within the meaning of section 2(a) of the Supreme Court Judges (Leave, Pension and Privileges) Ordinance, 1982 (Ordinance No.XX of 1982).]

[2][**22.** Notwithstanding anything contained in the Constitution, the Parliament functioning immediately before the commencement of the Constitution (Twelfth Amendment) Act, 1991 (Act 28 of 1991) shall be deemed to have been duly elected and constituted in accordance with the Constitution and Law and shall continue to function under the provisions of article 72 of the Constitution.]

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[1] Paragraph 21 added by Act XXIV of 1991

[2] Paragraph 22 added by Act XXVIII of 1991

APPENDIX E

UNITED NATIONS UNIVERSAL DECLARATION OF HUMAN RIGHTS

PREAMBLE

Whereas recognition of the inherent human dignity and of the equal and inalienable tights of all the members of the human family is the foundation of freedom, justice and peace in the world,

Whereas disregard and contempt for human rights have resulted in barbarous acts which have outraged the conscience of mankind, and the advent of a world in which the human beings shall enjoy freedom of speech and belief and freedom from fear and want has been proclaimed as the highest aspiration of the common people,

Whereas it is essential, if man is not to be compelled to have recourse, as a last resort, to rebellion against tyranny and oppression, that human rights should be protected by the rule of law,

Whereas it is essential to promote the development of friendly relations between nations,

Whereas the peoples of the United Nations have in the Charter reaffirmed their faith in fundamental human rights , in the dignity and worth of the human person and in the equal rights of men and women and have determined to promote social progress and better standard of life in larger freedom,

Whereas Member States have pledged themselves to achieve, in co-operation with the United Nations, the promotion of universal respect for and observance of human rights and fundamental freedoms,

Whereas a common understanding of these rights and freedoms is of the greatest importance for the full realization of this pledge,

Now, therefore, the General Assembly proclaims THIS UNIVERSAL DECLARATION OF HUMAN RIGHTS as a common standard of achievement for all peoples and all nations, to the end that every individual and every organ of society, keeping this Declaration constantly in mind,

shall strive by teaching and education to promote respect for these rights and freedoms and by progressive measures, national and international, to secure their universal and effective recognition and observance, both among the peoples of Member States themselves and among the peoples of territories under their jurisdiction.

Article 1. – All human beings are born free and equal in dignity and rights. They are endowed with reason and conscience and should act towards one another in a spirit of brotherhood.

Article 2. – Everyone is entitled to all the rights and freedoms set forth in the Declaration, without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.

Furthermore, no distinction shall be made on the basis of the political, jurisdictional or international status of the country or territory to which a person belongs, whether it be independent, trust, non-self-governing or under any other limitation of sovereignty.

Article 3. – Everyone has the right to life, liberty and security of persons.

Article 4. – No one shall be held in slavery or servitude; slavery and the slave trade shall be prohibited in all their forms.

Article 5. – No one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment.

Article 6. – Everyone has the right to recognition everywhere as a person before the law.

Article 7. – All are equal before the law and are entitled without any discrimination to equal protection of the law. All are entitled to equal protection against any discrimination in violation of this Declaration and against any incitement to such discrimination.

Article 8. – Everyone has the right to an effective remedy by the competent national tribunals for acts violating the fundamental rights granted him by the constitution or the law.

Article 9. – No one shall be subjected to arbitrary arrest, detention or exile.

Article 10. – Everyone is entitled to full equality to a fair and public hearing by an independent and impartial tribunal, in the determination of his rights and obligations and of any criminal charge against him.

Article 11. – (1) Everyone charged with a penal offence has the right to be presumed innocent until proved guilty according to law in a public trial at which he has had all the guarantees necessary for his defence.

(2) No one shall be held guilty of any penal offence on account of any act or omission which did not constitute a penal offence, under national or international law, at the time when it was committed. Nor shall a heavier penalty be imposed than the one that was applicable at the time the penal offence was committed.

Article 12. – No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honour and reputation. Everyone has a right to the protection of the law against such interference or attacks.

Article 13. – **(1)** Everyone has the right to freedom of movement and residence within the borders of each state.

(2) Everyone has the right to leave any country, including his own, and to return to his country.

Article 14. – (1) Everyone has the right to seek and to enjoy in other countries asylum from persecution.

(2) This right may not be invoked in the case of prosecutions genuinely arising from non-political crimes or from acts contrary to the purposes and principles of the United Nations.

Article 15. – (1) Everyone has the right to a nationality.

(2) No one shall be arbitrarily deprived of his nationality nor denied the right to change his nationality.

Article 16. – (1) Men and women of full age, without any limitation due to race, nationality or religion, have the right to marry and found a family. They are entitled to equal rights as to marriage, during marriage and at its dissolution.

(2) Marriage shall be entered into only with the free and full consent of the intending spouses.

(3) The family is the natural and fundamental group unit of society and is entitled to protection by society and the State.

Article 17. – (1) Everyone has the right to own property alone as well as in association with others.

(2) No one shall be arbitrarily deprived of his property.

Article 18. – Everyone has the right to freedom of thought and conscience and religion, this right includes freedom to change his religion or belief, and freedom, either alone or in community with others and in public or private, to manifest his religion or belief in teaching, practice, worship and observance.

Article 19. – Everyone has the right to freedom of opinion and expression, this right includes freedom to hold opinion without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers.

Article 20. – (1) Everyone has the right to freedom of peaceful assembly and association.

(2) No one may be compelled to belong to an association.

Article 21. – (1) Everyone has the right to take part in the Government of his country, directly or through freely chosen representatives.

(2) Everyone has the right of equal access to public service in his country.

(3) The will of the people shall be the basis of the authority of Government, this shall be expressed in periodic and genuine elections which shall be by universal and equal suffrage and shall be held by secret vote or by equivalent free voting procedures.

Article 22. – Everyone, as a member of society, has the right to social security and is entitled to realization, through national effort and international co-operation and in accordance with the organization and resources of each State, of the economic, social and cultural rights indispensable for his dignity and the free development of his personality.

Article 23. – (1) Everyone has the right to work, to free choice of employment, to just and favourable conditions of work and to protect against unemployment.

(2) Everyone, without any discrimination, has the right to equal pay for equal work.

(3) Everyone who works has the right to just and favourable remuneration ensuring for himself and his family an existence worthy of human dignity, and supplemented, if necessary, by other means of social protection.

(4) Everyone has the right to form and to join trade unions for the protection of his interests.

Article 24. – Everyone has the right to rest and leisure, including reasonable limitation of working hours and periodic holidays with pay.

Article 25. – (1) Everyone has the right to a standard of living adequate for the health and well-being of himself and of his family, including food, clothing, housing and medical care and necessary social services, and the right to security in the event of unemployment, sickness, disability, widowhood, old age or other lack of livelihood in circumstances beyond his control.

(2) Motherhood and childhood are entitled to special care and assistance. All children, whether born in or out of wedlock, shall enjoy the same social protection.

Article 26. – (1) Everyone has the right to education. Education shall be free, at least in the elementary and fundamental stages. Elementary education shall be compulsory. Technical and professional education shall be made generally available and higher education shall be equally accessible to all on the basis of merit.

(2) Education shall be directed to the full development of the human personality and to the strengthening of respect for human rights and fundamental freedoms. It shall promote understanding, tolerance and friendship among all nations, racial and religious groups, and shall further the activities of the United Nations for the maintenance of peace.

(3) Parents have a prior right to choose the kind of education that shall be given to their children.

Article 27. – (1) Everyone has the right freely to participate in the cultural life of the community, to enjoy the arts and to share in scientific advancement and its benefits.

(2) Everyone has the right to protection of the moral and material interests resulting from any scientific, literary or artistic production of which he is the author.

Article 28. – Everyone is entitled to a social and international order in which the rights and freedoms set forth in this Declaration can be fully realized.

Article 29. – (1) Everyone has duties to the community in which alone the free and full development of his personality is possible.

(2) In the exercise of his rights and freedoms, everyone shall be subject only to such limitations as are determined by law solely for the purpose of securing due recognition and respect for the rights and freedoms of others

and of meeting the just requirements of morality, public order and the general welfare in a democratic society.

(3) These rights and freedoms may in no case be exercised contrary to the purposes and principles of the United Nations.

Article 30. – Nothing in this Declaration may be interpreted as implying for any State, group or persons any right to engage in any activity or to perform any act aimed at the destruction of any of the rights and freedoms set forth herein.

INDEX

Access to justice 1.85A, 2.1B, 2.111A
Accounts, audit of, 6.13
Act of State, 2.96, 6.62
Administrative tribunal, 5.27, 5.235- 242
  composition of, 5.235
  fundamental rights, 5.26-27
  judicial power, 5.239-241
Advisory Board, 2.130
Amendment of Constitution, 1.31-46A, 4.56-70
  amendments of the Constitution 1.32-46
  basic features of Constitution, 4.67
  basic structure doctrine, 4.57- 60, 4.65
  changes in the Constitution, 1.32-1.46A
  constituent and legislative power, 4.66
  delegation of constituent power, 4.66
  limitations on, 4.57-60
  meaning of amendment, 4.57
  procedure of, 4.56
  referendum, 4.56
  validity of,
    4th Amendment, 4.68-69
    5th Amendment, 4.69
    7th Amendment, 4.69
  whether a law under art.7, 1.90
Appellate Division
  advisory opinion, 5.212-213
  appeal by leave, 5.186-195
    civil cases, 5.188-191
    criminal cases, 5.192-195
  appeal, certificated, 5.183-184
  appeal of right, 5.185
  binding precedent, 5.214-218
    consent order, 5.214
    decision *per incuriam*, 5.214
    obiter dicta, 5.216
    stare decisis, 5.219
  complete justice, 5.196-201
    substantive law, against, 5.198-199
  contempt of court, 5.21-231
  new plea 5.190
  review, power of, 5.202-211
    in civil cases, 5.205
    in criminal cases, 5.206
    procedure, 5.211
Appropriation Act, 4.43, 4.46-47
Arrest and detention, right regarding, 2.121-132
  communication of grounds of arrest, 2.122, 2.125
  consultation with lawyer, 2.126
  defence by lawyer, 2.126
  legal aid, 2.127
  preventive detention, 2.129
    approval by Advisory Board, 2.130
    communication of grounds, 2.131
    time of communication, 2.132
  production before magistrate, 2.128
    time of production, 2.122

Assembly, right to, 2.162-166
public order, 2.164
reasonable restriction, 2.21-24, 2.166
restriction and prohibition, 2.20
restrictions on, 2.164-166
Association, right of, 2.167-172
association formed under law, 2.169
no right of recognition, 2.169
reasonable restriction, 2.21-24, 2.172
restriction and prohibition, 2.20
restrictions on, 2.171-172
right not to join association, 2.169
trade union, 2.170
Attorney General, 3.54-56
Bias, rule against, 5.62-69
departmental policy, 5.67
official bias, 5.67
pecuniary, proprietary interest, 5.63
real likelihood, 5.64-65
reasonable suspicion, 5.64
waiver of objection, 5.69
Bills, 4.25-26, 4.42
Money Bill, 4.42
private member's Bill, 4.26
Body, right to, 2.94, 2.111
Bona vacantia, 6.53
Business, freedom of, 2.201-206, 2.208
licence and permit, 2.208
restriction and prohibition, 2.20
restrictions on, 2.203-206
trade, *see* Trade
Cabinet, 3.20, 4.26
Care-taker government, 3.49A-49G
functions of, 3.49C
Certiorari, writ of, 5.31-80
abuse of discretion, 5.75-80
administrative functions, 5.31
against whom available, 5.31
arbitrariness, 5.75
distinction between prohibition and, 5.82
efficacious remedy, 5.123-128
error of facts, 5.39-44
error of law, 5.35-38
error of law and fact, 5.39
excess of jurisdiction, 5.35
exercise of discretion, 5.74-80
failure to exercise jurisdiction, 5.45
improper motive, 5.73
improper purpose, 5.71
jurisdictional facts, 5.41-44
legitimate expectation, 5.63A-63D, 5.143A
mala fide, 5.73
malice in law, 5.73
mixed question of error of law and fact, 5.39-44
no evidence rule, 5.40
proportionality, 5.80A
reasons, recording of, 5.63E-63F
unreasonableness, 5.72
violation of natural justice, *see* Bias and Fair hearing
want of jurisdiction, 5.34
without lawful authority, meaning of, 5.32-33
wrong grounds, 5.70
wrong procedure, 5.46-48
Chief Justice, 5.4-9
consultation regarding appointment of judges, 5.4
Citizen, 1.75A-75D, 2.19, 6.1
Classification, 2.26-52
bases of -
age, 2.41

commodities and things,2.51
companies, 2.48
companies and individuals, 2.49
exemption of minima, 2.37
fitness, 2.43
individual and partnership, 2.50
locality and territory, 2.45
manner of trading, 2.52
marital and family status, 2.42
occupation, 2.47
personal traits, 2.39
race, religion, caste, sex, place of birth, 2.40
size, amount, quantity, number, 2.36
State and subject, 2.46
time, 2.38
wealth and poverty, 2.44
Code of Civil Procedure, 5.140, 5.143-144, 5.146-150
Collective responsibility of ministers, 3.21-24
Colourable legislation, 4.27-29
Comptroller & Auditor-General, 6.12 -14
Compulsory retirement, 2.60, 2.109, 6.33
Consolidated fund, 4.43-46
Constitutional law, 1.1-6
conventions, 1.5-6
sources of, 1.2-6
Constitution of Bangladesh
amendments, 1.32-46
and effect of Martial law, 1.91-102
changes in the constitution, 1.32-46A
essential features, 1.20-31
fundamental principles of State policy, 1.21, 1.76-81
historical background, 1.7-19
preamble, 1.21, 1.73-75
rule of law, 1.82-85A
separation of powers, 1.24, 1.86-88
supremacy of, 1.23, 1.88-90
Constitutional offices
Special provisions of, 6.59B
Contempt of court, 5.221-231
apology, 5.231
disobedience to order of court, 5.226
freedom of speech, 2.190
interference with administration of justice, 5.227
scandalisation of judges, 5.225
Contracts and deeds of government
execution, mode of, 6.55-59
Contracts, Government auction or tender, by, 2.71
arbitrariness, 2.71
blacklisting of contractor, 2.71
equality in entering, 2.71
formal requirement in entering into, 6.55-59
legitimate expectation, 5.63D, 5.143A
mala fide, 2.71
public interest, 2.71
restitution, 5.167A
Contractual right, enforcement of, 5.131-135
Conventions, constitutional, 1.5, 1.6, 5.4
Council of Ministers, 3.8, 3.12, 3.20
Correspondence, right to privacy of, 2.220
Court of record, 5.221
Death sentence, 2.154
Decency and morality, *see* Speech and expression

Defamation, *see* Speech and expression
Definitions, 1.64
Delegated legislation, 4.30-40
abdication of legislative power, 4.36
constituent power, 4.66
in Bangladesh, 4.36
in British India, 4.32
in England and USA, 4.31
in India and Pakistan, 4.32-35
judicial control of, 4.38-40
matters which cannot be delegated, 4.37
standard, theory of, 4.31, 4.33, 4.34
Detention, preventive, *see* Arrest and detention
De minimis, doctrine of, 2.8
Discretion, exercise of, 5.74-80, 5.90
arbitrary, 5.75
abuse of, 5.75-80
acting on dictation, 5.77
coupled with duty, 5.90
discrimination and, 2.56-64
extraneous consideration, 5.79
irrelevant consideration, 5.79
judicial review of, 5.75-80
non-consideration of material fact, 5.79
proportionality, 5.80A
reasonableness, 5.72
surrender of, 5.76
unfettered, 5.74
valid exercise of, 5.80
Wednesbury reasonableness, 5.72
without guideline, 2.56-64
Discrimination
and arbitrariness, 2.65-67
Double jeopardy, *see* Trial and punishment
Due process of law, *see* Protection of law
Eclipse, doctrine of, *see* Fundamental rights
Elections
by-election pending election petition, 6.4A
electoral roll and constituency, 6.4, 6.7
members of Parliament, of, 6.2
President, of, 6.3
women members of Parliament, 4.2
Election Commission, 6.5-11
duty to hold fair election, 6.6
inherent power to hold fair election, 6.8-9
functions of, 6.7-10
Emergency, 3.42-44
approval by Parliament, 3.42
justiciability of declaration of, 3.44
suspension of fundamental rights, 3.43
withdrawal of, 3.42, 3.44
Equality, right to, 2.25-93
administrative action, 2.68-70
administrative policy, 2.70
admission in educational institution, 2.74
arbitrariness and, 2.65-67, 2.79A
backward section, 2.93
classification, doctrine of, 2.26-34
bases of, *see* Classification
completeness, 2.30
logical classification, 2.28
reasonableness, test of, 2.27-29
presumption of constitutionality, 2.32-34
single person or object, of, 2.31
underinclusive, 2.30

conditions of service, 2.88A
contract, 2.71
discretionary power without guideline, 2.56-64
harsher law, 2.57
special procedure, 2.58
economic regulation, 2.53
hostile discrimination, 2.69
illegality and, 2.25A
parliamentary privileges and, 4.97
public employment, 2.77-93
appointment, 2.78-93
conditions of service, 2.88A
illegality and, 2.25A
promotion, 2.81-82
seniority, 2.83-86
termination, 2.87
reservation of quota, 2.90-93
reverse discrimination, 2.73
sex, religion, place of birth, 2.72-73
taxation, 2.54-55
Error of fact, *see* Jurisdictional error
Error of law, *see* Jurisdictional error
Escheat, 6.53
Estoppel, 5.136-139
Excess of jurisdiction, *see* Jurisdictional errors
Executive
Care-taker government, 3.49A-49H
emergency power, 3.42-44
executive action, manner of exercise, 3.12-13
executive power, 3.28-32
local government, 3.50-53
ministerial responsibility, 3.21-24
ordinance making power, 3.32-38
pardon and reprieves, 3.45-49
President, 3.3-7
Prime Minister, 3.8-10
relationship with Parliament, 3.21-27
rule making power, 3.39-41
rules of business, 3.12
suspension of fundamental rights, 3.43
war power, 3.44
Executive authority of the Republic, 3.28-32
Existing law, 6.64-65
continued by the Constitution, 6.64-65
inconsistent with Proclamation of Independence, 6.64
invalid laws not continued, 6.64
Ex post facto law, 2.135-138
penal provision with retrospective operation, 2.136-137
retrospective increase or alteration of punishment, 2.138
Fair hearing
acting fairly, 5.51
charges, right to know, 5.52
contents of, 5.57-59
delegated hearings, 5.59
disclosure of materials, 5.57-58
disclosure when not needed, 5.58
exceptions, 5.51
extent of the right, 5.53-60
flexible doctrine, 5.49
hearing at appellate stage, 5.60
he who decides must hear, 5.59
ingredients of, 5.57
legitimate expectation, 5.50, 5.63A-63D
notice, 5.52-53
contents of, 5.54-55

opposing case, right to know, 5.57-58, 5.52
oral hearing, 5.56
pre-decision hearing, 5.59-60
post-decisional hearing, 5.60
right-privilege, 5.50
right to controvert allegation, 5.57
urgent action, 5.5
void or voidable, 5.61
where to be given, 5.49
whether can be excluded, 5.51
would make no difference, 5.53
Forced labour, prohibition against, 2.133-134
Freedom of
assembly, 2.162-166
association, 2.167-172
business, trade, profession, 2.200, 2.201-208
movement, 2.156-161
press, 2.194-198
property, 2.213-216
religion, 2.209-212
residence, 2.156
speech and expression, 2.174-193
Fraud on the Constitution, 4.27-29
Fundamental principles of State policy, 1.21, 1.76-81
conflict between fundamental rights, 2.17A
fundamental in governance, 1.77
guide to interpretation, 1.78-81
Fundamental rights, 2.1-2.237
administrative tribunal, 5.26-27
alternative forum, 5.26-27
citizen, 2.19
conflicting rights, 2.17A
disputed questions of fact, 5.19
eclipse, doctrine of, 2.229-231
effect of violation of, 2.228-236
efficacious remedy, 5.25-27
emergency and, 3.43
enforcement of, 5.18-527
evidence, 5.19
nature of relief, 5.20
nature of remedy, 5.18
procedure and practice, 5.21-25
pleadings, 5.24
proof of violation, 5.24
illegality and, 2.8A, 2.25A
international conventions, 2.1A
inter-relation of rights, 2.17-18
limitation on legislative power, 2.4-5
minimal infringement, 2.8
parliamentary privilege and, 4.98-99
persons entitled to fundamental rights, 2.19
reasonable restriction, 2.21-24
burden of proof of, 5.24
restriction and prohibition, 2.20
retrospectivity, 2.223-234
right not absolute, 2.2
right to enforce fundamental right, 2.222
scheme of, 2.9-18
saving of certain laws, 2.223-227
severability, doctrine of, 2.235-236
suspension of fundamental rights, 3.43
waiver and acquiescence, 2.237
when can an application be made, 5.23
who can apply for, 5.155-164
Habeas corpus, 5.93-111
aggrieved person, 5.101
and *certiorari*, 5.103

bail, 5.168
collateral purpose, 5.10
constitutional jurisdiction, 5.93
detention under warrant of court, 5.103
executive custody, 5.93
grounds of detention, 5.107
bad and good grounds, 5.109
irrelevant grounds, 5.109
specific criminal case, 5.108
sufficiency of grounds, 5.108
test of reasonableness, 5.108
initial illegality in detention, 5.98-99
effect of, 5.99
independent detention order, 5.99
legality of detention, 5.106
legality of initial detention, 5.98
mala fide, 5.110
materials in support of grounds of detention, 5.109
preventive detention, 5.104
private custody, 5.103
scope and nature, 5.94-97
statutory jurisdiction, 5.93
successive detention orders, 5.111
unlawful manner, 5.97
who can apply for, 5.101-102
without lawful authority, 5.96
validity of detention order, 5.105

High Court Division
contempt of court, 5.221-231
enforcement of fundamental rights, 5.18-27
judicial review, 5.15-17
principles followed in, 5.15
jurisdiction
under Constitution, 5.11
under law, 5.11
review, power of, 5.153
seat of, 5.10
supervisory power, 5.77-179
transfer of cases, 5.180-181

Home, right to be secured in, 2.217-221
search and seizure, 2.218
fruits of illegal search, 2.221
meaning of, 2.217
reasonable restriction, 2.21-24
restriction and prohibition, 2.20
restrictions, 2.218

Interpretation of Constitution
ambiguity, 1.60
ancillary power, 1.61
Bengali text, 1.65
definition clause, 1.64
directory provisions, 1.66-67
ejusdem generis, 1.62
expressio unius est exclusio alterius, 1.62
express meaning, 1.54-55
foreign decisions, 1.71
fundamental principles of State policy, use of, 1.78-81
generic interpretation, 1.69
golden rule, 1.59
hardship, 1.57
harmonious interpretation, 1.70
incidental power, 1.61
implied meaning, 1.54-55
intention of framers, 1.57
liberal interpretation, 1.61
literal interpretation, 1.59
mandatory provisions, 1.66-67
necessity of, 1.47
new things, application to, 1.69
nocitur a sociis, 1.62

non-obstante clause, 1.70
preamble, use of, 1.73-74
principles of interpretation, 1.56-70
proper approach, 1.48-53
prospective overruling, 1.72
purposive interpretation, 1.53
retrospective operation, 1.68
rules of language, 1.62
titles, headings, arrangements, 1.63
Judicial power, 5.2, 5.236, 5.238-242
Judicial review, 1.28, 5.15-17
contractual right, 5.131-135
delegated legislation, 4.38-40
political question, 3.33, 3.44, 5.13
principles of, 5.15
reading down a statute, 5.15
Judiciary, 5.1-3
independent judiciary, 1.28A
subordinate courts, 5.233-234G
Judicial Pay Commission, 5.234C
Judicial Service Commission, 5.234C
Jurisdiction
meaning of, 5.36
Jurisdictional errors
abuse of discretion, 5.75-80
error of facts, 5.39-44
error of law, 5.35-38
error of law and fact, 5.39
excess of jurisdiction, 5.35
exercise of discretion, 5.74-80
failure to exercise jurisdiction, 5.45
improper motive, 5.73
improper purpose, 5.71
jurisdictional facts, 5.41-44
mala fide, 5.73
mixed question of error of law and fact 5.39-44
no evidence rule, 5.40
unreasonableness, 5.72
violation of natural justice, *see* natural justice
want of jurisdiction, 5.34
wrong grounds, 5.70
wrong procedure, 5.46-48
Jurisdictional fact, 5.41-44
Laws Continuance Enforcement Order, Appendix B
Legal aid, 2.120, 2.127
Legitimate expectation, 5.63A-63D
contract and, 5.63D, 5.143A
Liberty
meaning of, 2.112
right to, *see* Protection of law
Life
meaning of, 2.211
right to, *see* Protection of law
Local government, 3.50-53
abolition of, 3.52
composition of, 3.50
designation of administrative unit, 3.51
functions of, 3.50
legislative power, 3.50, 3.52
taxation, 3.53
Mala fide, 5.73
Malice in law, 5.73
Mandamus, 5.83-92
abuse of discretion, 5.75-80
administrative functions, 5.87
against whom may be issued, 5.87-89
continuing mandamus, 5.89A
demand of justice, 5.91
discretion coupled with duty, 5.90

discretionary power, 5.90
enforcement of the writ, 5.92
legal duty, existence of, 5.83
legal right to demand performance of duty, 5.84-86
scope of the remedy, 5.83
Martial Law, 1.16-17, 1.91-102
effect of imposition of, 1.16, 1.91-101
effect of withdrawal of, 1.102
effect on court's jurisdiction, 1.94-101
Minister
collective responsibility, 3.21
individual responsibility, 3.22-23
right to address Parliament, 4.18
Movement, right to, 2.156-161
procedural reasonableness, 2.160-161
public interest, 2.158
reasonable restriction, 2.21-24, 2.159-161
restriction and prohibition, 2.20
restrictions, 2.157-158
substantive reasonableness, 2.159, 2.161
travel abroad, 2.156
Natural justice, 5.49-69 *see* Bias and Fair hearing
Necessity, doctrine of, 1.13, 1.97
Occupation, freedom of, *see* Trade
Ombudsman, 4.72-75
Ordinance, *see* Executive
Pardon and reprieves, 3.45-49
conditional, 3.48
contempt of court, 3.48
effect of, 3.48
nature of the act, 3.46
object of pardoning power, 3.45
remission of sentence, 3.48
whether justiciable, 3.49
Parliament, 4.1-98
adjournment of session, 4.21
and amendment of Constitution, 1.31-46, 4.56-70
and ministerial responsibility, 3.21-27
Appropriation Act, *see* financial procedure
bar against double membership, 4.9
committees, 4.71
composition of, 4.2
constitution of, 4.1
contempt power, 4.91-97
declaration of war, 3.44
delegated legislation, 4.30-40
deliberative functions, 4.58
deputy speaker, 4.11
disqualification of members of, 4.4-8
dissolution of, 3.15, 4.21-22
election of members of, 6.3-4
emergency, approval of declaration of, 3.42
executive and, 3.25-27
financial procedure, 4.42-54
Appropriation Act, 4.43, 4.46-47
borrowing, 4.51
budget, 4.45
charges on consolidated fund, 4.44
consolidated fund, 4.42-44, 4.46
Money bills, 4.42
President's power of withdrawal of money, 4.50
public account, 4.42-43
supplementary budget, 4.48
financial power, 4.41-54
floor crossing, 4.9C – 4.10B

functions of, 4.23-55
impeachment of President, 3.7
legislative power, 4.24-26
legislative procedure, 4.25-26
limitations on power of, 2.4, 4.56-65
implied limitation, 4.65
meeting of, 4.16-20
minister's right to address and vote, 4.18
Money bills, 4.42
officers of, 4.11-15
ordinance, approval of, 3.38
President's address, 4.17
President's assent, 4.25, 4.56
President's message, 4.17
privileges and immunities, 4.76-98
and fundamental rights, 4.97-98
breach of, 4.91-4.96
in respect of authorised reports, 4.90
law granting further privilege, 4.78-83
of committees, 4.77
of members and officers, 4.86
of proceedings, 4.84
pre-constitution laws, 4.78-83
prorogation of, 3.16, 4.20
qualification of members of, 4.4
quorum, 4.18
lack of, 4.18
resignation of members, 4.10D – 10F
rules of procedure, 4.18
secretariat of, 4.15
Speaker, 4.11-14
summoning of, 3.15-16
tax, levy and collection of, 4.52-54
tenure of, 4.3
termination of, 4.20-22
vacation of seats of members, 4.9
Personal liberty, *see* Protection of law
Political question, 3.33, 3.44, 5.13-14
Preamble, 1.21, 1.73-75
its use in interpretation, 1.73-75
Precedent, Binding, 5.214-218
President
Chief Justice, appointment of, 3.14
election of, 6.3
emergency, declaration of, 3.42-44
impeachment of, 3.7
immunity from process of court, 3.6
qualification of, 3.4
tenure of, 3.3
ordinance, proclamation of, 3.32
pardon and reprieves, 3.15
power of, *see* executive power
power, manner of exercise of, 3.12, 3.14
prime minister, appointment of, 3.14-15
residual power, 3.17A
summoning, prorogation and dissolution of Parliament, 3.15-16
suspension of fundamental right, 3.43
rule-making, power, 3.39-41
Press, freedom of, 2.194-198
circulation, 2.194, 2.196
contempt of Parliament, *see* Parliament
criticism of government, 2.194
editorials, news casting and reports, 2.194
nature of, 2.194-196
newsprint quota, 2.196

no higher than freedom of speech, 2.195
pre-publication censorship, 2.189
report of court cases, 2.198
restrictions, *see* Speech and expression
taxation, 2.195-196
to whom available, 2.194
Preventive detention, *see* Arrest and detention
Prime Minister, 3.8-10, 3.14-21, 3.27-28
Privacy, right to, *see* Home
Proclamation of Independence, Appendix A
Profession, freedom of, *see* Trade
Prohibition, writ of, 5.81-82
Property of the Republic, 6.52, 6.53
Property, right to, 2.213-216
meaning of property, 2.114
Proportionality, doctrine of, 5.80A
Protection of law, 2.98-110
arbitrariness, 2.98
contemporaneous law, 2.109-110
deprivation of liberty, 2.115-120
life, 2.115
personal liberty, 2.118
due process of law, 2.99-110
American concept, 2.99-104
application in Bangladesh, 2.105-110
arbitrariness, 2.98-99
exceptions to due process, 2.101, 2.107
executive action not supported by law, 2.96
natural justice, 2.99-100
overbreath of law, 2.104
procedural due process, 2.100
reasonable law, 2.98-99
rule against bias, 2.100
standard of reasonableness, 2.103, 2.108
substantive due process, 2.102
vagueness of law, 2.104
retrospective law, 2.109-110
treatment in accordance with law
body, 2.111
liberty, 2.112
life, 2.111
property, 2.114
reputation, 2.113
validating statute, 2.110
Provisional Constitution of Bangladesh Order, Appendix C
Public employment, 2.77-93
appointment, 2.78-80
conditions of service, 2.88A
equality in, 2.77
discrimination on ground of sex, religion etc., 2.72
exception re women and backward section, 2.73
promotion, 2.81-82
seniority, 2.83-86
termination of employment, 2.87
Public interest litigation, 5.155-164
Public order, 2.164
Public Service Commission, 6.47-51
consultation with, 6.49
functions of, 6.48-50
recommendation of, 6.51
report to President, 6.50
Public trust, doctrine of, 2.111

Punishment, cruel, degrading, *see* Trial and punishment
Quo warranto, writ of, 5.112
actual holding of office, 5.114
and *certiorari* or mandamus, 5.118
bona fide application, 5.116
de facto holder of office, 5.117
effect of issuance of writ, 5.117
public office of substantive character, 5.113
scope of, 5.112, 5.115
to whom may issue, 5.113
who may apply, 5.116
Reading down a statute, doctrine of, 5.12
Reasons, recording of 5.63E - F
Religion, right to, 2.209-2.212
meaning of religion, 2.210
religious instruction, 2.212
Reputation, right to, *see* Protection of law
Retrospective legislation, *see* Protection of law
Rule of law, 1.82-85
access to justice, 1.85A, 2.1B, 2.111A
basic feature, 4.67
Declaration of Delhi, 1.83
independence of judiciary, 1.85
Separation of powers, 1.24, 1.86-87
Service of the Republic, 6.15-46
administrative tribunal, 5.27, 5.235-242, 6.22
contract service, 6.32
compulsory retirement, 2.60, 2.109, 6.33
disciplinary action, 6.22-46
bias, rule against, 6.40
compulsory retirement, 6.33
disclosure of facts in support of charge, 6.40
dismissal and removal, meaning of, 6.26-32
dismissing authority, 6.39
notice and hearing, right to, 6.40
notice and hearing, when not required, 6.41-45
reduction in rank, 6.34-38
second show cause notice, 6.40
doctrine of pleasure, 6.17-18
equality on opportunity of employment, 2.77-93
fundamental rights of members, 2.223
military post, 6.22
non-temporary tenure, 6.29
promotion, 2.81-82
protection against arbitrary removal, 6.22-46
to whom available, 6.28-32, 6.34-38
reorganisation of, 6.20
retrospective operation of rules, 6.20
seniority, 2.83-86
service rules, 6.19-21
tenures of service, 6.16
terms and conditions of, 6.19-21
Severability, doctrine of, 2.235-236
Speaker, *see* Parliament
Speech and expression, freedom of, 2.174-193, 2.199
advertisement, 2.178
breach of parliamentary privilege, *see* Parliament
criticism of government, 2.186
exercise of right in public place, 2.179
extent of, 2.174-180
government servant, 2.180
leaflets, 2.184

loudspeaker, use of, 2.184
meaning of expression, 2.174-175
nature of, 2.174-177
reasonable restrictions, 2.21-24, 2.181
restrictions, 2.181-193
contempt of court, 2.190
decency or morality, 2.188-189
defamation, 2.191
friendly relations with foreign States, 2.187
incitement of offence, 2.192
public order, 2.183
security of State, 2.182
sedition, 2.186
television, 1.174
motion pictures, 2.199
pre-censorship of films, 2.199
Stare decisis, doctrine of, *see* Appellate Division
Subordinate courts, *see* Judiciary
Suits by or against government, 6.60-63
contracts, 6.55-59
tort claims against government, 6.61-63
Supremacy of Constitution, 1.23, 1.88-90
and Martial law, 1.91-102
Supreme Court
acting Chief Justice, 5.5
binding precedents, 5.214-218
Chief Justice, 5.4
consultation with, regarding subordinate courts, 5.234
court of record, 5.221
judges, appointment of, 5.4
judges, disabilities of, 5.9
judges, independence of, 5.8
judges, qualification of, 5.6
judges, removal of, 5.7
judges, tenure of, 5.7
judges, terms of service, 5.8
judicial review, power of, 5.15-17
jurisdiction conferred by law, 5.11
jurisdiction, constitutional, 5.11
permanent seat of, 5.10
rule making, 5.232
seat of, 5.10
Supreme Judicial Council, 5.7
Tax, levy and collection , *see* Parliament
Temporary and transitional provisions, 6.66-70
Territory of the Republic, 6.52
Thought and conscience, freedom of, 2.173
Tort, vicarious liability of government, 6.61-63
Trade, freedom of, 2.201-208
extent of, 2.201
lawful trade, 2.202
licence and permit, 2.208
prescription of qualification, 2.207
restrictions, 2.206-208
restriction whether includes prohibition, 2.20
Treaties, 6.59A
Trial and punishment, rights relating to, 2.135-155
autrofois convict, 2.139
cruel, inhuman and degrading punishment, 2.154
death sentence, 2.154
double jeopardy, 2.139-143
previous proceeding, 2.141
subsequent proceeding, 2.142
same offence, 2.143
fair trial, 2.149-151

independent and impartial tribunal, 2.149
public trial, 2.150
rule against ex post facto law, 2.136-138
increased penalty, 2.138
law in force, 2.136
retrospective penal provision, 2.137
self-incrimination, 2.152-153
civil cases, 2.152
speedy trial, 2.144
Unconstitutionality
not cured by lapse of time, 4.68
Writs
acquiescence, 5.120
against whom does not lie, 5.171-176
aggrieved person, 5.155-164
arbitrariness, 5.75
certiorari, *see Certiorari*
contractual right, 5.131-135
delay and laches, 5.122
disentitling conduct, 5.120-121
suppression of facts, 5.121
disputed questions of fact, 5.129-130
enforcing obedience to writs, 5.92
efficacious remedy, 5.123-128
inadequate remedy, 5.128
onerous remedy, 5.128
provided by law, 5.127
suit, 5.127
when bars remedy, 5.124-125
when not efficacious, 5.126, 5.128
equitable remedy, 5.119
estoppel, 5.136-139
evidence, 5.142
final order, 5.169-170
fundamental rights, enforcement of, 5.18-5.27
futile writ, 5.151
habeas corpus, *see Habeas corpus*
infructuous writ, 5.151
interim order, 5.165-168
jurisdiction, 5.28-30
jurisdictional error, *see* Jurisdictional error
mala fide, 5.73
mandamus, *see Mandamus*
nature of the proceeding, 5.119-122
new plea, 5.145
political question, 3.33, 3.44, 5.13
practice and procedure, 5.140-152
affidavit, 5.144
amendment of pleadings, 5.143
Code of Civil Procedure, 5.140
commission for taking evidence, 5.149
costs, 5.146
court-fees, 5.154
joint application, 5.46
parties, 5.146
pleadings, 5.146
representative action, 5.146
restoration of dismissed application, 5.147
rules of procedure, 5.140-142
summary dismissal, 5.148
premature application, 5.152
prohibition, *see* Prohibition
public interest litigation, 5.155-164
quo warranto, *see Quo Warranto*
res judicata, 5.150
review, 5.153